

SACERDOTAL CELIBACY

IN THE

CHRISTIAN CHURCH

HENRY C. LEA

SACERDOTAL CELIBACY

IN THE

CHRISTIAN CHURCH

HENRY C. LEA

The Project Gutenberg eBook of An Historical Sketch of Sacerdotal Celibacy in the Christian Church

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: An Historical Sketch of Sacerdotal Celibacy in the Christian Church

Author: Henry Charles Lea

Release date: January 15, 2020 [eBook #61176]

Most recently updated: October 17, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/61176

Credits: Produced by deaurider, Les Galloway and the Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive)

*** START OF THE PROJECT GUTENBERG EBOOK AN
HISTORICAL SKETCH OF SACERDOTAL CELIBACY IN THE
CHRISTIAN CHURCH ***

Transcriber's Notes

Obvious typographical errors have been silently corrected. Variations in hyphenation and accents remain but all other spelling and punctuation remains unchanged.

Footnote 1219 is missing. The footnote from a different edition has been included for information.

More doubtful typographical errors:

Page 341 They succeeded in making way with him. way changed to away.

Footnote 1620 reads L'Esaminatore, 15 Ott. 1867. This has been changed to 15 Oct.

The cover image was prepared by the transcriber and is placed in the public domain.



SACERDOTAL CELIBACY
IN THE
CHRISTIAN CHURCH.

AN
HISTORICAL SKETCH
OF
SACERDOTAL CELIBACY
IN THE
CHRISTIAN CHURCH.

BY
HENRY C. LEA.

SECOND EDITION, ENLARGED.

Οὐ γὰρ θεοῦ ἐστὶ κινεῖν ἐπὶ τὰ παρὰ φύσιν.
ATHENAGORÆ pro Christianis Legatio.

BOSTON
HOUGHTON MIFFLIN AND COMPANY
New York 11 East Seventeenth Street
The Riverside Press, Cambridge
1884

Entered according to Act of Congress, in the year 1884, by
HENRY C. LEA,
in the Office of the Librarian of Congress. All rights reserved.

DORNAN, PRINTER.

PREFACE.

The following work was written several years since, simply as an historical study, and with little expectation of its publication. Recent movements in several portions of the great Christian Church seem to indicate, however, that a record of ascetic celibacy, as developed in the past, may not be without interest to those who are watching the tendencies of the present.

So far as I am aware, no work of the kind exists in English literature, and those which have appeared in the Continental languages are almost exclusively of a controversial character. It has been my aim to avoid polemics, and I have therefore sought merely to state facts as I have found them, without regard to their bearing on either side of the questions involved. As those questions have long been the subject of ardent disputation, it has seemed proper to substantiate every statement with a reference to its authority.

The scope of the work is designedly confined to the enforced celibacy of the sacerdotal class. The vast history of monachism has therefore only been touched upon incidentally when it served to throw light upon the rise and progress of religious asceticism. The various celibate communities which have arisen in this country, such as the Dunkers and Shakers, are likewise excluded from the plan of the volume. These limitations occasion me less regret since the appearance of M. de Montalembert's "Monks of the West" and Mr. W. Hepworth Dixon's "New America," in which the student will probably find all that he may require on these subjects.

Besides the controversial importance of the questions connected with Christian asceticism, it has seemed to me that a brief history like the present might perhaps possess interest for the general reader, not only on account of the influence which ecclesiastical celibacy has exerted, directly and indirectly, on the progress of civilization, but also from the occasional glimpse into the interior life of past ages afforded in reviewing the effect upon society of the policy of the church as respects the relations of the

sexes. The more ambitious historian, in detailing the intrigues of the court and the vicissitudes of the field, must of necessity neglect the minuter incidents which illustrate the habits, the morals, and the modes of thought of bygone generations. From such materials a monograph like this is constructed, and it may not be unworthy the attention of those who deem that the life of nations does not consist exclusively of political revolutions and military achievements.

PHILADELPHIA, May, 1867.

In reprinting this work such changes have been made as further reading and reflection have seemed to render advisable. The first two and the last sections have been wholly rewritten, and numerous additions have been made throughout the volume. To accommodate as far as possible the considerable amount of matter thus introduced, I have omitted from the footnotes all extracts which merely verified without illustrating the text.

PHILADELPHIA, December, 1883.

CONTENTS.

A. D.	PAGE
Influence of the church on modern civilization	17
Effect of celibacy in moulding its destiny	19
I. —ASCETICISM.	
Character of early Judaism	21
Oriental and Hellenic influences	23
Growth of asceticism	25
Pauline Christianity	26
Admission that celibacy is of post-apostolic origin	28
II. —THE ANTE-NICENE CHURCH.	
Early ascetic tendencies	31
Exaggerated in the heresies	33
Influence of Buddhism	34
Objection to second marriages	36
c. 150 “Digami” rejected from the ministry	37
Application of the Levitical rule	38
Growth of asceticism—self-mutilation	40
Vows of virginity and their results	41
c. 280 Influence of Manichæism	43
Condemnation of marriage	45
305 First injunction of celibacy, by the Council of Elvira	50
314 Disregarded elsewhere	51
III. —THE COUNCIL OF NICÆA.	
Growing centralization of the church	52
325 The first general council	53
It prohibits the residence of suspected women	53
The story of Paphnutius	56
325-350 Married priests not as yet interfered with	58
IV. —LEGISLATION.	
348-400 Enforcement of voluntary vows	59
Prohibition of female ministry	60
362 Reaction—the Council of Gangra	61
384 Celibacy adopted by the Latin church	64
385 Decretal of Siricius	65

V.—ENFORCEMENT OF CELIBACY.

Resistance to enforced asceticism	67
390 Jovinian	69
404 Vigilantius	70
390-419 The church of Africa yields	73
401 Compromise of the Cis-Alpine church	75
Popular assistance in enforcing celibacy	77
Effect of enforced celibacy on clerical morals	78
General demoralization of society	81

VI.—THE EASTERN CHURCH.

Divergence between the East and the West	83
381 Compulsory celibacy unknown in the East	84
400 Council of Constantinople—Antony of Ephesus—Synesius	85
430 First enforcement of celibacy in Thessaly	86
Celibacy not obligatory	86
528-548 Legislation of Justinian	86
680 The Quinisext in Trullo—Discipline unchanged	88
900 Final legislation of Leo the Philosopher	90
The Nestorians—clerical marriage permitted	91
The Abyssinian church	92

VII.—MONACHISM.

Buddhist model of monachism	94
Apostolic order of widows	96
Devotees in the primitive church—no vows irrevocable	97
250-285 Paul the Thebæan and St. Antony	97
350-400 Increase of monachism	98
Early systems—vows not irrevocable	101
Greater strictness required of female devotees	103
c. 400 Marriages of nuns still valid	104
450-458 Conflicting legislation	105
Strictness of the Eastern church—Political necessity of controlling monachism	106
390-456 Monks confined to their convents	108
532-545 Justinian renders monastic vows irrevocable	108
Disorders of Western monachism	109
528 St. Benedict of Nursia—vows not irrevocable under his rule	111
590-604 Gregory I. enforces the inviolability of vows	113
Continued irregularities of monachism	115

VIII.—THE BARBARIANS.

The Church and the Barbarians	117
The Merovingian bishops	118
The Spanish Arians	120

589-711 Neglect of discipline in Spain	121
557-580 State of discipline in Italy	122
Dilapidation of ecclesiastical property	123
590-604 Reforms of Gregory the Great	123

[IX.](#)—THE CARLOVINGIANS.

Demoralization of the VII. and VIII. centuries	126
Reorganizing efforts of the Carolingians	128
742-755 Labors of St. Boniface	131
Resistance of the married clergy	132
755 Pepin-le-Bref undertakes the reform	134
Sacerdotal celibacy reestablished	135
Reforms of Charlemagne and Louis-le-Débonnaire—Their inefficiency	135
840-912 Increasing demoralization under the later Carolingians	139
874 Legal procedures prescribed by Hincmar	140
893 Sacerdotal marriage resumed	142

[X.](#)—THE TENTH CENTURY.

Barbarism of the tenth century—Debasement of the papacy	144
Tendency to hereditary benefices—Dilapidation of church property	145
938 Leo VII. vainly prohibits sacerdotal marriage	148
952 It is defended by St. Ulric of Augsburg	153
925-967 Unsuccessfully resisted by Ratherius of Verona and Atto of Vercelli	150
Opposing influences among prelates	152
Relaxation of the canons	154
942-1054 Three Archbishops of Rouen	155
Indifference of Sylvester II.	157
Celibacy practically obsolete	158

[XI.](#)—SAXON ENGLAND.

Corruption of the ancient British church	159
Asceticism of the Irish and Scottish churches	160
597 Celibacy introduced among the Saxons by St. Augustin	161
Disorders in the Saxon nunneries	163
747, 787 Councils of Clovesho and Chelsea	164
Neglect of discipline in the ninth and tenth centuries	165
964 St. Dunstan undertakes a reformation	166
964-974 Energy of Edgar the Pacific	168
975 Reaction after the death of Edgar	170
1006 Failure of Dunstan's reforms	171
1009 Council of Enham—Sacerdotal polygamy	172
1032 Legislation of Cnut	173
Sacerdotal marriage established	175

[XII.](#)—PETER DAMIANI.

1022 Council of Pavia—Efforts to restore discipline	178
1031 Council of Bourges	179
Clerical marriage and profligacy	180
Revival of asceticism—San Giovanni Gualberto	183
1046 Henry III. undertakes the reformation of the church—Clement II.	184
St. Peter Damiani	185
1049 Leo IX.	187
Damiani's Liber Gomorrhianus	188
Reformatory efforts of Leo—Councils of Rheims and Mainz	188
1051-1053 Attempts to reform the Italian clergy	189
Failure of the Reformation	190
1058 The Papacy independent—Damiani and Hildebrand	192
1059 Appeal to the laity for assistance	194
1059 Council of Melfi—Deposition of Bishop of Trani	197
1060 Damiani endeavors to reform the prelates	198
The persecuted clergy organize resistance	199
1061 Schismatic election of Cadalus	200
He is supported by the married clergy	201
1063 Renewed efforts of Alexander II. and Damiani	202
Their failure	204

[XIII.](#)—MILAN.

Milan the centre of Manichæism	207
1045 Election of an archbishop—four disappointed competitors	209
Marriage universal among Milanese clergy	210
Landolfo and Arialdo excite the people	211
1056 Popular tumults—Plunder of the clergy	212
1058 The Synod of Fontaneto defends the married priests	212
A furious civil war results	213
1059 Damiani obtains the submission of the clergy	213
1061 Milan embraces the party of Cadalus	215
Death of Landolfo—Erlembaldo takes his place	215
1062 His success	216
1066 Excommunication of Archbishop Guido—Martyrdom of Arialdo	216
1067 Compromise and temporary truce	217
1069 Guido forced to resign—War between Gotefrido and Azzo for the succession	218
1075 Death of Erlembaldo—Tedaldo archbishop in spite of Gregory VII.	219
Influence of celibacy on the struggle	220
1093-1095 Triumph of sacerdotalism	221
Similar trouble throughout Tuscany	222

[XIV.](#)—HILDEBRAND.

1073 Election of Gregory VII.—His character	223
Necessity of celibacy to his scheme of theocratic supremacy	225
1074 Synod of Rome—Repetition of previous canons	227

Attempts to enforce them throughout Europe—Resistance of the clergy	228
Three bishops—Otho of Constance—Altmann of Passau—Siegfrid of Mainz	229
1074 Gregory appeals to the laity	232
Resultant persecution of the clergy	234
1077 Violent resistance of the married clergy	236
Political complications	237
1085 Papalists and Imperialists both condemn sacerdotal marriage	239

[XV.](#)—CENTRAL EUROPE.

Depression of the Catholic party—Sacerdotal marriage connived at	241
1089 Urban II. renews the persecution	242
1094 Contumacy of the German priesthood	243
1105 Deposition of Henry IV.—Germany restored to Catholic unity	244
1118-1175 Sacerdotal marriage nevertheless common	245
1092-1257 First introduction of celibacy in Hungary	248
1197-1279 Introduction of celibacy in Poland	251
1213-1248 Disregard of the canons in Sweden	252
1117-1266 Their enforcement in Denmark	253
1219-1271 Their neglect in Friesland	254

[XVI.](#)—FRANCE.

1056-1064 Efforts to introduce sacerdotal celibacy	255
1074-1078 Contumacy of the clergy	256
1080 William the Conqueror intervenes—First allusion to licenses to sin	257
Successful resistance of the Norman and Breton clergy	258
1076-1094 Troubles in Flanders	259
Confusion caused by the attempted reform	262
1095 Council of Clermont—Its canons disregarded	263
Condition of the monastic establishments	264
Hereditary transmission of benefices	265
Miracles invoked in aid of the reform	266
1119 Calixtus II. commences a new reform	267
Resistance of the Norman priesthood	268
Abelard and Heloise—Standard of morals erected by the church	269
1212 Continuance of clerical marriage	270

[XVII.](#)—NORMAN ENGLAND.

1066 Canons not enforced by William I.	271
1076 First effort made by the Council of Winchester	272
1102 St. Anselm undertakes the reform—Council of London	273
Resistance of the priests—Failure of the movement	275
1104 Henry I. uses the reform as a financial expedient	276
1108 He enforces outward obedience	277
1126 Stubborn contumacy of the priesthood	279
1129 Henry again speculates on clerical immorality	280

1138-1171 Disorders of the English church	281
Consorts of priests no longer termed wives	283
1208 King John discovers their financial value	283
Venality of the ecclesiastical officials	284
“Focariæ” still universal	285
1215 Indignation of the clergy at the reforms of Innocent III.	286
1237 Cardinal Otto and the Council of London	288
Popular poems concerning the reform	289
1250-1268 Gradual extinction of clerical marriage in England	290
Robert Grosseteste, Bishop of Lincoln	292
Fruitless legislation against concubinage	293
12th-15th C. Sacerdotal marriage in Wales	293

[XVIII.](#)—IRELAND AND SCOTLAND.

Degradation of the Irish church prior to the twelfth century	295
1130-1149 Reforms of St. Malachi—Influence of Rome	296
Monastic character of the reformed church	297
1186-1320 Condition of the church in the English Pale	298
Degeneration of the Scottish Culdees	299
1124-1153 David I. reforms the church and reestablishes celibacy	300
1225-1268 Immorality of the Scottish clergy	301

[XIX.](#)—SPAIN.

11th Cent. Independent barbarism of the Spanish church—Marriage universal	302
1068-1080 Encroachments of Rome—sacerdotal marriage condemned	303
1101-1129 Reforms of Diego Gelmirez—Marriage not interfered with	305
1260 Legislation of Alfonso the Wise—Concubinage universal	308
1323 Concubinage organized as a safeguard by the laity	310
Corruption throughout the middle ages	311

[XX.](#)—GENERAL LEGISLATION.

1123 Marriage now first dissolved by Holy Orders	313
1130 The innovation not as yet enforced	314
1139 Sacerdotal marriage formally declared void by the Second Council of Lateran	315
1148 Confirmed by the Council of Rheims—Denied by Gratian	316
1150 The new doctrine receives no obedience	318
1158-1181 Alexander III. insists upon it	319
But excepts immoral ecclesiastics	320
Conflict of rules and exceptions	322
1206-1255 Case of Bossaert d’Avesnes	323
Alexander III. proposes to restore clerical marriage	325
1187-1198 Efforts of the popes to enforce the canons	326
1215 Fourth Council of Lateran—Triumph of Sacerdotalism	327

[XXI.](#)—RESULTS.

Recognition of the obligation of celibacy	330
Increase of immorality	331
13th-15th C. Fruitless attempts to restrain corruption	333
1231 Recognition of children of ecclesiastics	335
1225-1416 Efforts to restrict hereditary transmission	338
1317 Recognition of concubinage	339
Successful resistance to reform	340
12th-15th C. Morals of the papal court	341
Influence on society of sacerdotal celibacy	346
Influence of monachism	357

[XXII.](#)—THE MILITARY ORDERS.

1120 Knights of St. John vowed to celibacy	362
1128 Knights of the Temple vowed to celibacy	362
1175 Knights of St. James of the Sword allowed to marry	363
1441 Marriage permitted to the Order of Calatrava	364
1496 And to the Orders of Avis and Jesus Christ	365
1167 Order of St. Michael allowed to marry once	365
Reforms attempted in the Order of St. John	366
The Teutonic Knights	366

[XXIII.](#)—THE HERESIES.

Asceticism of mediæval Manichæism	367
Difficulty of combating it	369
1146 Antisacerdotalism—The Petrobrusians and Henricians	370
1148 Éon de l'Étoile	371
c. 1160 The Waldenses	372
1294 Antisacerdotalism of the Franciscans—The Fraticelli	375
1341 John of Pirna	378
1377 Wickliffe	378
1394 The Lollards denounce clerical celibacy	381
1415-1438 The Hussites—They maintain ascetic celibacy	382
1411-1414 Brethren of the Cross—Men of Intelligence	385
1488-1498 Savonarola	386

[XXIV.](#)—THE FIFTEENTH CENTURY.

Demoralization of the sacerdotal body	388
1418 Futile efforts of the Council of Constance	390
1422 Efforts of Martin V.	392
Undiminished corruption and symptoms of revolt	393
1435 The Council of Bâle attempts a reform	395

Impotence of the Basilian canons—Venality of the papal court	396
1484-1500 Condition of the church in Italy, France, England, Spain, Germany, and Hungary	398
1496 Relaxation of monastic discipline	402
1476 John of Nicklaushausen	405
Sacerdotal marriage advocated as a remedy	405
1479 John of Oberwesel	407
1485 Heresy of Jean Laillier	408

[XXV.](#)—THE REFORMATION IN GERMANY.

Irreverential spirit of the sixteenth century	410
1510 Complaints of the Germans against the church	411
Immobility of the church	412
Popular movement—Luther and Erasmus	413
1518 Official opposition to the abuses of the church	416
1517-1520 Luther neglects the question of celibacy—his gradual progress	417
1521 First examples of sacerdotal marriage	419
Approved by Carlostadt—Disapproved by Luther	419
1522 Zwingli demands sacerdotal marriage—Luther adopts it	421
1524 Efforts of the church to repress the movement	423
Popular approbation—Protection in high quarters	424
1523-1524 Emancipation of nuns and monks	425
1525 Marriage of Luther	425
Causes of popular acquiescence in the change	427
Extreme immorality of the clergy	427
Admitted by the Catholics to justify heresy	430
1522-1526 Erasmus advocates clerical marriage	432
Assistance from ambition of temporal princes	434
1530 Efforts at reunion—Confession of Augsburg	435
Failure of reconciliation—League of Schmalkalden	438
The Anabaptists	438
1532-1541 Partial toleration—Difficulties concerning the Abbey lands	439
1548 The Interim—Sacerdotal marriage tolerated	441
1552 The Reformation established by the Transaction of Passau	443

[XXVI.](#)—THE ANGLICAN CHURCH.

Conservative tendencies of England	444
1500-1523 John Colet and Sir Thomas More	445
1524 Difficulties of the situation—Wolsey undertakes the destruction of monachism	447
1528 General suppression of the smaller houses	448
1532 Henry VIII.'s quarrel with Rome	449
1535 General visitation of monasteries, and suppression of most of them	451
Popular opinions—The Beggars' Petition	453
1536 Popular discontent—The Pilgrimage of Grace	455
1537-1546 Final suppression of the religious houses	456

Fate of their inmates	460
1535-1541 Irish monastic establishments destroyed	461
Henry still insists on celibacy	461
Efforts to procure its relaxation	463
1537 Uncertainty of the subject in the public mind	465
1539 Henry's firmness—Act of the Six Articles	466
Persecution of the married clergy	469
1540 Modification of the Six Articles	471
1547 Accession of Edward VI.—Repeal of the Six Articles	472
1548-1549 Full liberty of marriage accorded to the clergy	473
Armed opposition of the people	474
1552 Adoption of the Forty-two Articles	475
Difficulty of removing popular convictions	476
1553 Accession of Queen Mary—Legislation of Edward repealed	477
1554 The married clergy separated and deprived	478
Suffering of the clergy in consequence	480
England reconciled to Rome—Church lands not recalled	482
1555 Cardinal Pole's Legatine Constitutions	483
1557 More stringent legislation required—Revival of the old troubles	485
1558 Accession of Queen Elizabeth	486
1559 Delay in authorizing marriage—Uncertainty of the married clergy	487
Elizabeth yields, but imposes degrading restrictions on clerical marriage	488
1563 The Thirty-nine Articles—Increased emphasis of permission to marry	490
Elizabeth maintains her prejudices	491
Disrepute of sacerdotal marriage—Evil effects on the Anglican clergy	494

[XXVII.](#)—CALVINISM.

1559-1640 The Huguenot Churches	498
The Reformation in Scotland	501
Corruption of the Scottish church in the sixteenth century	501
1542-1559 Efforts at internal reform—their fruitlessness	504
Marriage assumed as a matter of course by the Protestants	506
Temporal motives assisting the Reformation	507
Poverty of the Scottish church establishment	508
Influence of celibacy on the struggle	509
1560 No formal recognition of clerical marriage thought necessary	512

[XXVIII.](#)—THE COUNCIL OF TRENT.

1524-1536 Efforts at internal reform	514
Universal demand for a general council—Convoked at Mantua in 1536	519
1542-1547 Assemblies at Trent—it labors to separate, not to reunite the churches	520
1551-1552 Reassemblies at Trent—is again broken up	521
1562 Again assembles for the last time	522
1536 Paul III. essays an internal reform without result	522
1548 Charles V. tries to reform the German church	524

1548-1551 Local reformatory synods—their failure	525
1560 Clerical marriage demanded as a last resort	529
Clerical corruption urged as the reason	530
1563 The French court joins in the demand	533
1560 The question prejudged	533
1563 The council makes celibacy a point of faith	536
Attempts a reformation	538
1563-1564 The German princes continue their efforts	539
Essays of Cassander and Wicelius	542
1564 Maximilian II. renews the attempt	543
His requests peremptorily rejected	544

[XXIX.](#)—THE POST-TRIDENTINE CHURCH.

Reception of the Council of Trent except in France	546
1566-1572 Pius V. endeavors to effect a reform	547
1568-1570 Labors of St. Charles Borromeo at Milan	550
1565-1597 Reforms vainly attempted by Italian councils	552
1569-1668 Condition of the church in Central Europe	553
Marriage still practised until 1628	556
Clerical immorality still a justification of heresy	556
1560-1624 Condition of the church in France	558
The residence of women conceded	561
The church in the Spanish Colonies	562
Abuse of the confessional	566
Abuse of the power of absolution	575
Influence of the casuistic spirit	578

[XXX.](#)—THE CHURCH AND THE REVOLUTION.

Sacerdotal marriage obsolete—Grandier, Du Pin, Bossuet	581
1758-1800 The eighteenth century—Controversy reopened	582
1783 Joseph II. proposes to permit sacerdotal marriage	583
1760-1787 Clerical immorality undiminished	585
1789 The French Revolution	588
1789-1790 Confiscation of church property—Suppression of monachism	589
1791 Celibacy deprived of legal protection—Marriage of priests	590
1793 Marriage becomes a test of good citizenship	592
Persecution of the unmarried clergy	592
Resistance of the great body of the clergy	594
1795-1797 Married clergy repudiated by their bishops	595
1801 Celibacy restored by the Concordat	595
1801-1807 Clerical marriage continues—Napoleon decides against it	597

[XXXI.](#)—THE CHURCH OF TO-DAY.

1815-1883 Vacillating policy in France as to clerical marriage	599
1821-1866 Various movements in favor of clerical marriage	601

Immobility of the church	603
1878 The Old Catholics adopt clerical marriage	604
Civil marriage laws opposed by the church	605
Celibacy not likely to be disturbed	607
1820-1867 Suppression of monastic orders	608
Vigor and improvement of modern monachism	611
Its influence in the field of education	616
1880 Suppression of unauthorized orders in France	621
Influence of celibacy on clerical morality	624
Its influence on the social organization	638

[NOTE.](#)

On Celibacy as a matter of faith under the Council of Trent	640
---	---------------------

[INDEX.](#)

SACERDOTAL CELIBACY.

The Latin church is the great fact which dominates the history of modern civilization. All other agencies which moulded the destinies of mediæval Europe were comparatively isolated or sporadic in their manifestations. Thus in one place we may trace the beneficent influence of commerce at work, in another the turbulent energy of the rising Third Estate; the mortal contests of the feudal powers with each other and with progress are waged in detached and convulsive struggles; chivalry casts only occasional and evanescent flashes of light amid the darkness of military barbarism; literature seeks to gain support from any power which will condescend to lend transitory aid to the plaything of the moment. Nowhere do we see combined effort, nowhere can we detect a pervading impulse, irrespective of locality or of circumstance, save in the imposing machinery of the church establishment. This meets us at every point, and in every age, and in every sphere of action. In the dim solitude of the cloister, the monk is training the minds which are to mould the destinies of the period, while his roof is the refuge of the desolate and the home of the stranger. In the tribunal, the priest is wrestling with the baron, and is extending his more humane and equitable code over a jurisdiction subjected to the caprices of feudal or customary law, as applied by a class of ignorant and arbitrary tyrants. In the royal palace, the hand of the ecclesiastic, visible or invisible, is guiding the helm of state, regulating the policy of nations, and converting the brute force of chivalry into the supple instrument of his will. In Central Europe, lordly prelates, with the temporal power and possessions of the highest princes, joined to the exclusive pretensions of the church, make war and peace, and are sovereign in all but name, owing no allegiance save to Emperors whom they elect and Popes whose cause they share. Far above all, the successor of St. Peter from his pontifical throne claims the whole of Europe as his empire, and dictates terms to kings who crouch under his reproof, or are crushed in the vain effort of rebellion. At the other extremity of society, the humble minister of the altar, with his delegated power over heaven and hell, wields in cottage as in castle an authority hardly less potent, and sways the minds of the faithful with his right to implicit

obedience. Even art offers a willing submission to the universal mistress, and seeks the embodiment of its noblest aspirations in the lofty poise of the cathedral spire, the rainbow glories of the painted window, and the stately rhythm of the solemn chant.

This vast fabric of ecclesiastical supremacy presents one of the most curious problems which the world's history affords. A wide and absolute authority, deriving its force from moral power alone, marshalling no legions of its own in battle array, but permeating everything with its influence, walking unarmed through deadly strife, rising with renewed strength from every prostration, triumphing alike over the savage nature of the barbarian and the enervated apathy of the Roman tributary, blending discordant races and jarring nations into one great brotherhood of subjection—such was the Papal hierarchy, a marvel and a mystery. Well is it personified in Gregory VII., a fugitive from Rome, without a rood of ground to call him master, a rival Pope lording it in the Vatican, a triumphant Emperor vowed to internecine strife, yet issuing his commands as sternly and as proudly to prince and potentate as though he were the unquestioned suzerain of Europe, and listened to as humbly by three-fourths of Christendom. The man wasted away in the struggle; his death was but the accident of time: the church lived on, and marched to inevitable victory.

The investigations of the curious can hardly be deemed misapplied in analyzing the elements of this impalpable but irresistible power, and in examining the causes which have enabled it to preserve such unity of action amid such diversity of environment, presenting everywhere by turns a solid and united front to the opposing influences of barbarism and civilization. In detaching one of these elements from the group, and tracing out its successive vicissitudes, I may therefore be pardoned for thinking the subject of sufficient interest to warrant a minuteness of detail that would otherwise perhaps appear disproportionate.

The Janizaries of the Porte were Christian children, recruited by the most degrading tribute which tyrannical ingenuity has invented. Torn from their homes in infancy, every tie severed that bound them to the world around them; the past a blank, the future dependent solely upon the master above them; existence limited to the circle of their comrades, among whom they could rise, but whom they could never leave; such was the corps which bore

down the bravest of the Christian chivalry and carried the standard of the Prophet in triumph to the walls of Vienna. Mastering at length their master, they wrung from him the privilege of marriage; and the class in becoming hereditary, with human hopes and fears disconnected with the one idea of their service, no longer presented the same invincible phalanx, and at last became terrible only to the effeminate denizens of the seraglio. The example is instructive, and it affords grounds for the assumption that the canon which bound all the active ministers of the church to perpetual celibacy, and thus created an impassable barrier between them and the outer world, was one of the efficient instruments in creating and consolidating both the temporal and spiritual power of the Roman hierarchy.

I. ASCETICISM.

The most striking contrast between the Mosaic Dispensation and the Law of Christ is the materialism of the one, and the pure spiritualism of the other. The Hebrew prophet threatens worldly punishments, and promises fleshly rewards: the Son of Man teaches us to condemn the treasures of this life, and directs all our fears and aspirations towards eternity. The exaggeration of these teachings by the zeal of fervent disciples led to the ascetic efforts to subjugate nature, which present so curious a feature in religious history, and of which those concerning the relations of the sexes form the subject of our consideration.

This special phase of asceticism was altogether foreign to the traditions of Israel, averse as they were to all restrictions upon the full physical development of man. Enjoying, apparently, no conception of a future existence, the earlier Hebrews had no incentive to sacrifice the pleasures of the world for those of a Heaven of which they knew nothing; nor was the gross polytheism, which the monotheistic prophets combated, of a nature to lead to ascetic practices. The worship of Ashera—probably identical with the Babylonian Beltis or Mylitta—undoubtedly consecrated the sacrifice of chastity as a religious rite, and those who revered the goddess of fertility as one of the supreme deities were not likely to impose any restrictions on the exercise of her powers.¹ We see, indeed, in the story of Judah and Tamar, and in the lamentation of the daughter of Jephthah, that virginity was regarded almost as a disgrace, and that child-bearing was considered the noblest function of woman; while the institution of levirate marriage shows an importance attributed to descendants in the male line as marked as among the Hindu Arya. The hereditary character of the priesthood, moreover, both as vested in the original Levites, and the later Tsadukim and Baithusin, indicates conclusively that even among the orthodox no special sanctity attached to continence, and that the temporary abstinence from women required of those who handled the hallowed articles of the altar (*I. Samuel xxi. 4-5*) was simply a distinction drawn between the sacerdotal

class and the laity, for in the elaborate instructions as to uncleanness, there is no allusion made to sexual indulgence, though the priest who had partaken of wine was forbidden to enter the Tabernacle, and defilement arising from contact with the dead was a disability (*Levit. x., xxi., xxii.*),² while the highest blessing that could be promised as a reward for obedience to God was that “there shall not be male or female barren among you” (*Deut. vii. 14*). In fact, the only manifestation of asceticism as a religious ordinance, prior to the Second Temple, is seen in the vow of the Nazirites, which consisted merely in allowing the hair to remain unshorn, in the abstinence from wine and in avoiding the pollution arising from contact with the dead. Slender as were these restrictions, the ordinary term of a Nazirate was only thirty days, though it might be assumed for life, as in the cases of Samson and Samuel; and the vows for long terms were deemed sufficiently pleasing to God to serve as means of propitiation, as in the case of Hannah, who thus secured her offspring Samuel, and in that of Helena, Queen of Adiabene, who vowed a Nazirate of seven years if her son Izaces should return in safety from a campaign.³ The few references to the custom in Scripture, however, show that it was little used, and that it exercised no visible influence over social life during the earlier periods.

When the conquests of Cyrus released the Hebrews from captivity, the close relations established with the Persians wrought no change in this aspect of the Jewish faith. Mazdeism, in fact, was a religion so wholesome and practical in its character that asceticism could find little place among its prescribed observances, and the strict maintenance of its priesthood in certain families who transmitted their sacred lore from father to son, shows that no restrictions were placed upon the ministers of Hormadz, or athravas,⁴ though in the later period of the Achæmenian empire, after the purity of ancient Mazdeism had become corrupted, the priestesses of the Sun were required to observe chastity, without necessarily being virgins.⁵ With the conquests of Alexander, however, Judaism was exposed to new influences, and was brought into relation at once with Grecian thought and with the subtle mysticism of India, with which intercourse became frequent under the Greek empire. Beyond the Indus the Sankhya philosophy was already venerable, which taught the nothingness of life, and that the supreme good consisted in the absolute victory over all human wants and desires.⁶ Already Buddha had reduced this philosophy into a system of

religion, the professors of which were bound to chastity—a rule impossible of observance by the world at large, but which became obligatory upon its innumerable priests and monks, when it spread and established itself as a church, thus furnishing the prototype which was subsequently copied by Roman Christianity.⁷ Already Brahmanism had invented the classes of Vanaprasthas, Sannyasis, and others—ascetics whose practices of self-mortification anticipated and excelled all that is related of Christian Antonys and Simeons—although the ancestor worship which required every man to provide descendants who should keep alive the Sraddha in honor of the Pitris of his forefathers postponed the entrance into the life of the anchorite until after he should have fulfilled his parental duties;⁸ and we know from the references in the Greek writers to the Hindu gymnosophists how great an impression these customs had made upon those to whom they were a novelty.⁹ Already the Yoga system had been framed, whereby absorption into the Godhead was to be obtained by religious mendicancy, penances, mortifications, and the severest severance of self from all external surroundings.¹⁰ All this had been founded on the primæval doctrine of the Vedas with respect to the virtue of *Tapas*, or austere religious abstraction, to which the most extravagant powers were attributed, conferring upon its votaries the authority of gods.¹¹ With all the absurdities of these beliefs and practices, they yet sprang from a profound conviction of the superiority of the spiritual side of man's nature, and if their theory of the nothingness of mortal existence was exaggerated, yet they tended to elevate the soul, at the expense, it must be confessed, of a regard to the duties which man owes to society.

The influences arising from this system of religious philosophy, so novel to the Semitic races, were tardy in making themselves felt upon the Hebrews, but they became gradually apparent. The doctrine of a future life with rewards and punishments, doubtless derived from Chaldean and Mazdean sources during the Captivity and under the Persian Empire, slowly made its way, and though opposed by the aristocratic conservative party in power—the Tsadukim or Sadducees (descendants of Zadoc, or just men)—it became one of the distinctive dogmas of the Beth Sopherim or House of Scribes, composed of religious teachers, trained in all the learning of the day, sprung from the people, and eager to maintain their nationality against the temporizing policy of their rulers.¹² At the breaking out of the

Maccabean revolt against Antiochus Epiphanes we find the nation divided into two factions, the Sadducees, disposed rather to submit to the Hellenizing tyranny of Antioch, and the Chassidim (the Assideans of the Authorized Version), democratic reformers, ready for innovation and prepared to die in defence of their faith. In the triumph of the Hasmonean revolution they obtained control of the state, and in the development of the Oral Law by the scribes, supplementing the Torah or Written Law, they engrafted permanently their doctrines upon the ancestral belief. With the tenet of spiritual immortality, there followed as a necessary consequence the subordination of the present existence to life hereafter, which is the direct incentive to asceticism. The religious exaltation of the stormy period which intervened between the liberation from Antioch and the subjugation to Rome afforded a favorable soil for the growth of this tendency, and rendered the minds of the devout accessible to the influences both of Eastern and of Western speculation. How powerful eventually became the latter upon the Alexandrian Jews may be estimated from the mysticism of Philo.

With their triumph over Antioch, the name of the Chassidim disappears as that of an organized party, and in its place we find those of two factions or sects—the Perushim (Pharisees) or Separatists, who maintained an active warfare, temporal and theological, with the Sadducees, and the Essenes, mystics, who bound themselves by vows, generally including the Nazirate, and withdrew from active life for the benefit of spiritual growth and meditation.

The Essenes cultivated the soil and sometimes even lived in cities, but often dwelt as anchorites, using no artificial textures as clothing, and no food save what was spontaneously produced. They mostly practised daily ablutions and admitted neophytes to their society by the rite of baptism after a novitiate of a year, followed by two years of probation. Among those who did not live as hermits, property was held in common, and marriage was abstained from, and it is to this latter practice doubtless that reference was made by Christ in the text “There be eunuchs which have made themselves eunuchs for the kingdom of heaven’s sake.” The Essenes enjoyed high consideration among the people; their teachings were listened to with respect, and they were regarded as especially favored with the gifts of divination and prophecy. There can be no doubt that John the Baptist was an

Essene; James of Jerusalem, brother of Jesus, was a Nazirite and probably an Essene, and Christ himself may reasonably be regarded as trained in the principles of the sect. His tendencies all lay in that direction, and it is observable that while he is unsparing in his denunciations of the Scribes, and Pharisees, and Sadducees, he never utters a word of condemnation of the Essenes.^{[13](#)}

It is thus easy to understand the refined spirituality of Christ's teachings, and the urgency with which he called the attention of man from the gross temptations of earth to the higher things which should fit him for the inheritance of eternal life. Yet his profound wisdom led him to forbear from enjoining even the asceticism of the Essenes. He allowed a moderate enjoyment of the gifts of the Creator; and when he sternly rebuked the Scribes and Pharisees for imposing, in their development of the Oral Law, burdens upon men not easily to be borne by the weakness of human nature, he was far indeed from seeking to render obligatory, or even to recommend, practices which only the fervor of fanaticism could render endurable. No teacher before him had ventured to form so lofty a conception of the marriage-tie. It was an institution of God himself whereby man and wife became one flesh. "What therefore God hath joined together let not man put asunder;" and though he refrained from condemning abstention from wedlock, he regarded it as possible only to those whose exceptional exaltation of temperament might enable them to overcome the instincts and passions of humanity.^{[14](#)}

When the broad proselyting views and untiring energy of Paul, the apostle of the Gentiles, were brought to bear upon the little circle of mourning disciples, it was inevitable that a rupture should take place. No one in the slightest degree familiar with the spirit of Judaism at that day can have difficulty in understanding how those who still regarded themselves as Jews, who looked upon their martyr, not as the Son of God, but, in the words of Peter, as "Jesus of Nazareth, a man approved of God among you, by miracles and wonders and signs which God did by him in the midst of you," and who held, as is urged in the Epistle of James, firmly to their Master's injunction to preserve every jot and tittle of the Law, should regard with growing distrust and distaste the activity of the Pharisee Paul, who, like other Pharisees, was ready to encompass land and sea to gain one proselyte, and, more than this, was prepared to throw down the exclusive

barriers of the Law in order to invite all mankind to share in the glad tidings of Salvation.¹⁵ The division came in time, and as the Gentile church spread and flourished, it stigmatized as heretics those who adhered to the simple monotheistic reformed Judaism which Christ had taught. These became known as the Ebionim, or Poor Men, Essenes, and others, who followed Christ as a prophet inspired by God, who accepted all of the apostles save Paul, whom they regarded as a transgressor of the Law, holding their property in common, honoring virginity rather than marriage, but uttering no precept upon the subject, and observing the Written Law with rigid accuracy. They maintained a quiet existence for four centuries, making no progress, but exciting no antagonism save on the part of vituperative heresiologists, whose denunciations, however, contain no rational grounds for regarding them otherwise than as the successors of the original followers of Christ.¹⁶

Meanwhile, Pauline Christianity, launched on the tumultuous existence of the Gentile world, had adapted itself to the passions and ambitions of men, had availed itself both of their strength and of their weakness, and had become a very different creed from that which had been taught around the Sea of Galilee, and had seen its teacher expiate on Calvary his revolt against the Oral Law. In its gradual transformation through the ages, from Essenic and Ebionic simplicity to the magnificent sacerdotalism of the Innocents and Gregories, it has felt itself bound to find or make, in its earliest records, some precedent for every innovation, and accordingly its ardent polemics in modern times have endeavored to prove that the celibacy of its ministers was, if not absolutely ordained, at least practised from the earliest period. Much unnecessary logic and argument have been spent upon this subject since the demand which arose for clerical marriage at the Reformation forced the champions of the church to find scriptural authority for the canon which enjoins celibacy. The fact is that prior to the sixteenth century the fathers of the church had no scruple in admitting that in primitive times the canon had no existence and the custom was not observed. The reader may therefore well be spared a disquisition upon a matter which may be held to be self-evident, and be contented with a brief reference to some of the authorities of the church who, prior to the Reformation, admitted that in primitive times marriage was freely permitted to the ministers of Christ.

No doctor of the church did more than St. Jerome to impose the rule of celibacy on its members, yet even he admits that at the beginning there was no absolute injunction to that effect; and he endeavors to apologize for the admission by arguing that infants must be nourished with milk and not with solid food.¹⁷ In the middle of the eleventh century, during the controversy between Rome and Constantinople, Rome had no scruple in admitting that the celebrated text of St. Paul (*I. Cor. ix. 5*) meant that the apostles were married, though subsequent commentators have exhausted so much ingenuity in explaining it away.¹⁸ A century later Gratian, the most learned canonist of his time, in the “Decretum,” undertaken at the request of the papal court, which has ever since maintained its position as the standard of the canon law, felt no hesitation in admitting that, before the adoption of the canon, marriage was everywhere undisturbed among those in orders, as it continued to be in the Greek church.¹⁹ The reputation of St. Thomas Aquinas as a theologian was as unquestioned as that of Gratian as a canonist, and the Angelic Doctor admitted as freely as the canon lawyer that compulsory celibacy was an innovation on the rules of the primitive church, which he endeavors to explain by an argument contradictory to that of St. Jerome, for he says that the greater sanctity of the earlier Christians rendered them superior to the asceticism requisite to the purity of a degenerate age, even as no modern warrior could emulate the exploit of Samson in throwing himself amid a hostile army with no other weapon than a jaw-bone. He even admits, what other authorities have denied, that Christ required no separation between St. Peter and his wife.²⁰ There were in the thirteenth and fourteenth centuries few more learned men than Giraldus Cambrensis, whose orthodoxy was unquestioned, and who, as Archdeacon of St. David’s, vigorously sought to enforce the rule of continence upon his recalcitrant clergy. Yet in a strenuous exhortation to them to mend the error of their ways in this respect, he admits that clerical celibacy has no scriptural or apostolic warrant.²¹ That this was universally admitted at the time is manifested by Alfonso the Wise, of Castile, about the middle of the thirteenth century, asserting the fact in the most positive manner, while forbidding marriage to the priests of his dominions, in the code known as *Las Siete Partidas*.²²

Gerson, indeed, who, like most of the ecclesiastics of his time, attributes to the Council of Nicæa the introduction of celibacy, seems inclined to

justify the change assumed to have been then made, by alluding to the forged donation of Constantine. That the temporalities of the church could only be entrusted to men cut off from family ties was an axiom in his day, and though he does not himself draw the conclusion, he clearly regarded the supposed accession to the landed estates of the church as a satisfactory explanation of the prohibition of marriage to its ministers in the fourth century.²³ Shortly afterwards, Pius II., one of the most learned of the popes, had no scruple in admitting that the primitive church was administered by a married clergy.²⁴ Just before the Reformation, Geoffroi Boussard, dean of the faculty of theology of Paris, published, in 1505, a dissertation on priestly continence, in which he positively assumes, as the basis of his argument, that the use of marriage was universally permitted to those in holy orders, from the time of Christ to that of Siricius and Innocent I.; and this may be assumed to be the opinion of the University of Paris, for Boussard formally submitted his tract to that body, and its approbation is to be found in the fact that he was subsequently elevated to its chancellorship, and was sent as its delegate to the Council of Pisa.²⁵

Even after the Reformation, unexceptionable orthodox authority is found to the same effect. In 1564, Pius IV. admitted it in an epistle to the German princes, and explained it by the necessity of the times.²⁶ Zaccaria, probably the most learned of Catholic polemics on the subject, endeavors to reconcile his belief in the Apostolic origin of clerical celibacy with the indubitable practice of the primitive church, by suggesting that while the Apostles commanded the observance of the rule by the clergy in general, yet in special cases they discreetly dispensed with it to avoid greater scandals; and that with the gradual increase of these dispensations the clergy came at length to assume the indulgence as a matter of course without asking for special licenses.²⁷ More logical is the argument brought forward by a priest named Taillard, resisting in 1842 some efforts made to introduce priestly marriage in Prussian Poland. He coolly reasons that if celibacy was not enforced in the primitive church, it ought to have been—"if the celibacy of the priesthood be not from the beginning of Christianity, it ought to have been there, for, as our holy religion comes from God, it should contain in itself all the means possible to elevate the nations to the highest point of liberty and happiness."²⁸

II. THE ANTE-NICENE CHURCH.

Although no thought existed in the mind of Paul, and of his co-laborers in founding the church of the Gentiles, of prohibiting to his disciples the institution of marriage, there was a distinct flavor of asceticism in some of his teachings, which might readily serve as a warrant to those whose zeal was greater than their discretion, to mortify the flesh in this as in other ways. The Apostle, while admitting that the Lord had forbidden the separation of husband and wife, said of the unmarried and widowers:

“It is good for them if they abide even as I. But if they cannot contain let them marry, for it is better to marry than to burn.”

And though in one passage he seems to indicate a belief that woman could only be saved by maternity from the punishment incurred by the disobedience of Eve, in another he formally declares that “he that giveth her in marriage doeth well; but he that giveth her not in marriage doeth better,” thus showing a marked preference for the celibate state, in which the devout could give themselves up wholly to the service of the Lord.²⁹

The Apostle’s discussion of these subjects shows that already there had commenced a strong ascetic movement, raising questions which he found hard to answer, without on the one hand repressing the ardor of serviceable disciples, and on the other, imposing burdens on neophytes too grievous to be borne. He foresaw that the former would soon run beyond the bounds of reason, and he condemned in advance the heresies which should forbid marriage;³⁰ but that the tendency of the faithful lay in that direction was inevitable. In those times, no one would join the infant church who did not regard the things of earth as vile in comparison with the priceless treasures of heaven, and the more fervent the conviction, the more it was apt to find expression in mortifying the flesh and purchasing salvation by the sacrifice of passions and affections. Such especially would be the tendency of the stronger natures which lead their fellows; and the admiration of the

multitude for their superior virtue and fortitude would soon invest them with a reputation for holiness which would render them doubly influential.

There was much, indeed, in the teaching of the church, and in its relations with the Gentiles, to promote and strengthen this tendency. The world into which Christianity was born was hopelessly corrupt. Licentiousness, probably, has never been more defiant than amid the splendors of the early Empire. The gossip of Suetonius and the denunciations of Juvenal depict a society in which purity was scarce understood, and in which unchastity was no sin and hardly even a reproach. To reclaim such a population needed a new system of morality, and it is observable that in the New Testament particular stress is laid upon the avoidance of fornication, especially after the faith had begun to spread beyond the boundaries of Judea. The early Christians thus were a thoroughly puritan sect, teaching by example as well as by precept, and their lives were a perpetual protest against the license which reigned around them.³¹ It therefore was natural that converts, after their eyes were opened to the hideous nature of the prevailing vices, should feel a tendency to plunge into the other extreme, and should come to regard even the lawful indulgence of human instincts as a weakness to be repressed. Civilization, indeed, owes too much to the reform which Christianity rendered possible in the relations of the sexes, for us to condemn too severely even the extravagances into which it was sometimes betrayed.

That it was becoming not uncommon for Christians to follow a celibate life is shown by various passages in the early fathers. St. Ignatius alludes to abstinence from marriage in honor of God as a matter not uncommon, but which was wholly voluntary and to be practised in humility and secrecy, for the virtue of continence would be much more than counterbalanced by the sin of pride.³² The Apologists, Justin Martyr about the year 150, Athenagoras about 180, and Minucius Felix about 200, all refer to the chastity and sobriety which characterized the sect, the celibacy practised by some members, and the single marriage of others, of which the sole object was the securing of offspring and not the gratification of the passions. Athenagoras, indeed, condemns the exaggerations of asceticism in terms which show that already they had made their appearance among the more ardent disciples, but that they were strongly disapproved by the wiser portion of the Church. Origen seems to regard celibacy as rather springing

from a desire to serve God without the interruptions arising from the cares of marriage than from asceticism, and does not hesitate to condemn those who abandoned their wives even from the highest motives.³³ The impulse towards asceticism, however, was too strong to be resisted. Zealots were not wanting who boldly declared that to follow the precepts of the Creator was incompatible with salvation, as though a beneficent God should create a species which could only preserve its temporal existence by forfeiting its promised eternity. Ambitious men were to be found who sought notoriety or power by the reputation to be gained from self-denying austerities, which brought to them followers and believers venerating them as prophets. Philosophers were there, also, who, wearied with the endless speculations of Pythagorean and Platonic mysticism, sought relief in the practical morality of the Gospel, and perverted the simplicity of its teachings by interweaving with it the subtle philosophy of the schools, producing an apparent intoxication which plunged them either into the grossest sensuality or the most rigorous asceticism. Such were Julian Cassianus, Saturnilus, Marcion, the founder of the Marcionites, Tatianus, the heresiarch of the Encratitians, and the unknown authors of a crowd of sects which, under the names of Abstinentes, Apotactici, Excalceati, etc., practised various forms of self-mortification, and denounced marriage as a deadly sin.³⁴ Such, on the other hand, were Valentinus and Prodicus who originated the mystic libertinism of the Gnostics; Marcus, whose followers, the Marcosians, were accused of advocating the most disgusting practices, Carpocrates who held that the soul was obliged to have experience of all manner of evil before it could be elevated to God; Basilides whose sectaries honored the passions as emanating from the Creator, and taught that their impulses were to be followed. Even the Ebionites did not escape the taint, if Epiphanius is to be believed; and there was also a sect advocating promiscuous intercourse, to whom the name of Nicolites was given in memory of the story of Nicholas, the deacon of the primitive church, who offered to his fellow-disciples the wife whom he was accused of loving with too exclusive a devotion—a sect which merited the reproof of St. John, and which has a special interest for us because in the eleventh century all who opposed clerical celibacy were branded with its name, thus affording to the sacerdotal party the inestimable advantage of stigmatizing their antagonists with an opprobrious epithet of the most damaging character, and of invoking the authority of the Apocalypse for their destruction.³⁵

The church was too pure to be led astray by the libertinism of the latter class of heresiarchs. The time had not yet come for the former, and men who, in the thirteenth century, might perhaps have founded powerful orders, and have been revered by the Christian world as new incarnations of Christ, were, through their anachronism, stigmatized as heretics, and expelled from the communion of the faithful. Still, their religious fervor and rigorous virtue had a gradually increasing influence in stimulating the development of the ascetic principle, if not in the acknowledged dogmas, at all events, in the practice of the church, as may be seen when, towards the close of the second century, Dionysius of Corinth finds himself obliged to reprove Pinytus, Bishop of Gnosus, for endeavoring to render celibacy compulsory among his flock, to the manifest danger of those whose virtue was less austere.³⁶ In all this, unquestionably, the ascetic ideas of the East had much to do, and these were chiefly represented by Buddhism, which, since the reign of Asoka, in the third century B.C., had been the dominant religion of India. A curious allusion in St. Jerome to Buddha's having been born of a virgin,³⁷ shows a familiarity with details of Buddhist belief which presupposes a general knowledge of that faith; and though the divinized Maya, wife of Suddhodana, is not absolutely described as a virgin in eastern tradition, yet she and her husband had taken a vow of continence before Buddha, from the Tushita heaven, to fulfil his predestined salvation of mankind and establishment of the kingdom of righteousness, had selected her as the vehicle of his incarnation. Much in the legend of his birth, of the miracles which attended it, of his encounter with the Tempter, and other details of his life, is curiously suggestive of the source whence sprang the corresponding legend of the life of Christ, more particularly as related in the pseudo-gospels.³⁸ Not only this, but many of the observances of Latin Christianity can scarce be explained save by derivation from Buddhism, such as monasticism, the tonsure, the use of rosaries, confession, penance, and absolution, the sign of the cross, relic-worship, and miracles wrought by relics, the purchase of salvation by gifts to the church, pilgrimages to sacred places, etc. etc. Even the nimbus which in sacred art surrounds the head of holy personages, is to be found in the sculptures of the Buddhist Topes, and the Sangreal, or Holy Cup of the Last Supper, which was the object of lifelong quest by the Christian knight, is but the Patra or begging-dish of Buddha, which was the subject of many curious legends.³⁹ It is no wonder that when the good Jesuit missionaries of the sixteenth century

found among the heathen of Asia so much of what they were familiar with at home, they could not decide whether it was the remains of a preëxisting Catholicism, or whether Satan, to damn irrevocably the souls of men, had parodied and travestied the sacred mysteries and ceremonies, and introduced them in those distant regions.⁴⁰ We are therefore safe in ascribing to Buddhist beliefs at least a portion of the influence which led the church into the extravagances of asceticism.

The first official manifestation of this growing tendency, applied to the relations of the sexes, is to be seen in the legislation with regard to second marriages. In the passages alluded to above from Athenagoras and Minucius Felix, the fact is referred to that second marriages were already regarded as little better than adulterous, while Justin Martyr denounces them as sinful, in spite of the permission so freely granted by St. Paul for such unions.⁴¹ Though this opinion was branded by the church as heretical when it was elevated into an article of belief by the Montanists and Cathari, or Puritans, and though even the eminence and piety of Tertullian could not save him from excommunication when he embraced the doctrine, yet the orthodox came very near accepting it, for the Council of Neocæsarea, in 314, forbade priests from honoring with their presence the festivities customary on such occasions, as those who married a second time were subject to penance, and that of Laodicea, in 352, deemed it a matter of indulgence to admit to communion those who contracted such unions, after they had redeemed their fault by fasting and prayer for a certain time—a principle repeated by innumerable councils during the succeeding centuries. So far did this prejudice extend that as late as 484 we find the Pope, St. Gelasius, obliged to remind the faithful that such marriages are not to be refused to laymen.⁴² It is by no means impossible that this opposition to repeated wedlock may have arisen, or perhaps have been intensified, by a similar feeling which existed among the Pagans, at least with regard to the second marriages of women. Moreover, in Rome the Flamen Dialis was restricted to a single marriage with a virgin, and such was the strictness with which this was observed that as the assistance of the Flaminica, his wife, was necessary to the performance of some religious rites, he was obliged to resign when left a widower.⁴³

Although the church forbore to prohibit absolutely the repetition of matrimony among the laity, it yet, at an early though uncertain period, imitated the rule enforced on the Flamen Dialis, and rendered it obligatory on the priesthood, thus for the first time drawing a distinct line of separation between the great body of the faithful and those who officiated as ministers of Christ. It thus became firmly and irrevocably established that no “digamus” or husband of a second wife was admissible to holy orders. As early as the time of Tertullian we find the rule formally expressed by him, and he even assures us that the whole structure of the church was based upon the single marriages of its ministers. Indeed, the holy rites came to be regarded as so entirely incompatible with repetition of wedlock that the Council of Elvira, in 305, while admitting that in cases of extreme necessity a layman might administer baptism, is careful to specify that he must not be a “digamus.”⁴⁴

Yet this restriction on the priesthood was not easily enforced, and already we begin to hear the complaints, which have followed uninterruptedly for more than fifteen hundred years, of the evasion or disregard of the regulations whereby the church has sought to repress the irrepressible instincts of humanity. In the early part of the third century Hippolytus, Bishop of Portus, in his enumeration of the evil ways of Pope Calixtus, taxes the pontiff with admitting to the priesthood men who had been married twice, and even thrice, and with permitting priests to marry while in orders. Even the great apostle of celibacy, St. Jerome, expresses surprise that Oceanus should object to Carterius, a Spanish bishop, on the ground that he had had a wife before baptism, and a second one after admission to the church. The world, he adds, is full of such prelates, not only in the lower orders but in the episcopate, the digamous members of which exceed in number the three hundred prelates lately assembled at the Council of Rimini. Yet this was the formal rule of the church as enunciated in the Apostolic Constitutions and Canons—bodies of ecclesiastical law not included, indeed, in the canon of Scripture, but yet so venerable that their origin was already lost sight of, and they were everywhere received as authoritative expositions of primitive discipline.⁴⁵

The introduction of this entering-wedge is easily explicable. St. Paul had specified the monogamic condition—“unius uxoris vir”—as a prerequisite to the diaconate, priesthood, and episcopate, and the temper of the times

was such as to lead irresistibly to this being taken in its literal sense, rather than to adopt the more rational view that it was intended to exclude those among the Gentiles who indulged in the prevalent vice of concubinage, or who among the Jews had fallen into the sin of polygamy—or those among either race who had taken advantage, either before or after conversion, of the disgraceful laxity prevalent with regard to divorces, for, as we learn from Origen, the rule was by no means obeyed which forbade a divorced person to marry during the lifetime of the other spouse.⁴⁶

When once this principle was fairly established, and when at the same time the efforts of the Montanists to render it binding on the whole body of Christian believers had failed, a distinction was enforced between the clergy and the laity, as regards the marriage-tie, which gave to the former an affectation of sanctity, and which was readily capable of indefinite expansion. It is therefore easy to comprehend the revival, which shortly followed, of the old Levitical rule requiring the priesthood to marry none but virgins—a rule which was early adopted, though it took long to establish it in practice, for as late as 414 we find Innocent I. complaining that men who had taken widows to wife were even elevated to the episcopate, and Leo I. devoted several of his epistles to its enforcement.⁴⁷ A corollary to this speedily followed, which required a priest whose wife was guilty of adultery to put her away, since further commerce with her rendered him unfit for the functions of his office; and this again, as subsequent authorities were careful to point out, afforded a powerful reason for requiring absolute celibacy on the part of the clergy, for, in view of the fragility of the sex, no man could feel assured that he was not subject to this disability, nor could the faithful be certain that his ministrations were not tainted with irregularity.⁴⁸ We thus reach the state of ecclesiastical discipline at the close of the third century, as authoritatively set forth in the Apostolical Constitutions and Canons—bishops and priests allowed to retain the wives which they may have had before ordination, but not to marry in orders; the lower grades, deacons, subdeacons, etc., allowed to marry after entering the church; but all were to be husbands of but one wife, who must be neither a widow, a divorced woman, nor a concubine.⁴⁹

Meanwhile, public opinion had moved faster than the canons. Ascetic sects multiplied and increased, and the highest authorities in the church

could not always resist the contagion. A fresh incitement, indeed, had been found in the neo-platonic philosophy which arose in the beginning of the third century. Ammonius Saccas, its founder, was a Christian, though not altogether orthodox, and his two most noted disciples, Origen and Plotinus, fairly illustrate the influence which his doctrines had upon both the Christian and the Pagan world. As to the latter, neo-platonism borrowed from Christian and Indian as well as Greek philosophy, evolving out of them all a system of elevated mysticism in which the senses and the appetites were to be controlled as severely almost as in the Sankhya and Buddhist schools. Commerce between the sexes was denounced as a pollution degrading to the soul, and the best offering which a worshipper could bring to the Deity was a soul absolutely free from all trace of passion.⁵⁰ Although neo-platonism engaged in a hopeless struggle to stay the advancing tide of Christianity, and thus became its most active opponent, yet the lofty asceticism which it inculcated could not be without influence upon its antagonists, were it only through inflaming the emulation of those who were already predisposed to regard the mortification of the flesh as a means of raising the soul to communion with God.⁵¹

How these motives worked upon an ardent and uncompromising temperament is seen in the self-sacrifice of Origen, showing how absorbing was the struggle, and how intense was the conviction that nature must be conquered at all hazards and by any practicable means, although he himself afterwards condemned this practical rendering of the text (*Matt. xix. 12*) on which it was founded. Origen was by no means the first who had sought in this way to gain the kingdom of heaven, for he alludes to it as a matter by no means unexampled, and before him Justin Martyr had chronicled with approbation a similar case. In fact, there is said to have been an obscene sect which under the name of Valesians followed the practice and procured proselytes by inflicting forcible mutilation upon all who were unhappy enough to fall into their hands; and though their date and locality are unknown to those who allude to them, it would be rash, in view of similar eccentricities existing in more modern times, to pronounce them wholly apocryphal. The repeated prohibitions of the practice, in the canons of the succeeding century, show how difficult it was to eradicate the belief that such self-immolation was an acceptable offering to a beneficent Creator. Sextus Philosophus, an ascetic author of the third century, whose writings

long passed current under the name of Pope Sixtus II., did not hesitate openly to advocate it, and though his arguments were regarded as heretical by the church, they were at least as logical as the practical application given to the texts commonly cited in defence of the prohibition of marriage.⁵²

Not all, however, who sought the praise or the merits of austerity were prepared to pay such a price for victory in the struggle with themselves. Enthusiastic spirits, exalted with the prospect of earthly peace and heavenly rewards promised to those who should preserve the purity of virginity and live abstracted from the cares and pleasures of family life, frequently took the vow of continence which had already become customary. This vow as yet was purely voluntary. It bound those who assumed it only during their own pleasure, nor were they during its continuance, in any way segregated from the world. So untrammelled, indeed, were their actions that Cyprian is forced to rebuke the holy virgins for frequenting the public baths in which both sexes indiscriminately exposed themselves, and he does not hesitate to attribute to this cause much of the ruin and dishonor of its votaries which afflicted the church.⁵³ Yet, this was by no means the severest trial to which many of them subjected their constancy. Perhaps it was to court spiritual martyrdom and to show to their admirers a virtue robust enough to endure the most fiery trials, perhaps it was that they found too late that they had overestimated their strength, and that existence was a burden without the society of some beloved object—but, whatever may have been the motive, it became a frequent custom to associate themselves with congenial souls of the other sex, and form Platonic unions in which they aspired to maintain the purity which they had vowed to God. At the best, the sensible members of the church were scandalized by these performances, which afforded so much scope for the mockery of the heathen; but scandal frequently was justified, for Nature often asserted her outraged rights to the shame and confusion of the hapless votaries of an artificial and superhuman perfection. Tertullian does not hesitate to assert that the desire of enjoying the reputation of virginity led to much secret immorality, the effects of which were concealed by resort to infanticide.⁵⁴ Cyprian chronicles, not with surprise but sorrow, the numerous instances which he had known of ruin resulting to those who had so fatally miscalculated their power of resistance: with honest indignation he denounces the ecclesiastics who abandoned themselves to practices which, if not absolutely criminal, were

brutally degrading: and with a degree of common-sense hardly to be looked for in so warm an admirer of the perfection of virginity, he advises that those whose weakness rendered doubtful the strict observance of their vows should return to the world and satisfy their longings in legitimate marriage.⁵⁵ The heresiarch Paul of Samosata affords, perhaps, the most conspicuous example of the extent to which these and similar practices were sometimes carried, and in condemning him, the good fathers of the Council of Antioch lamented the general prevalence of the evils thence arising.⁵⁶ Cyprian's prudent consideration for the weakness of human nature was as yet shared by the ecclesiastical authorities. In the order of widows professed, which was recognized by the early church, the Apostolic Constitutions enjoin that none should be admitted below the age of sixty, in order to avoid the danger of their infringing their vows by a second marriage, but the writer is careful to add that such a marriage is not to be condemned for itself, but only on account of the falsehood which it occasioned. These widows and virgins were supported out of the tithes of the church, and were, therefore, necessarily subjected to its control, so that it is perfectly evident that there was nothing irrevocable in the vows wherewith they were bound. The change is marked by the end of the century, when widows who thus forsook their order were unrelentingly and irrevocably condemned, deprived of communion, and expelled from social intercourse.⁵⁷

While the Christian world was thus agitated with the speculative doctrines and practical observances of so many enthusiasts, heretical and orthodox, who seemed to regard the relations between the sexes as the crucial test and most trustworthy exponent of religious ardor, a new dogma arose in the East and advanced with a rapidity which shows how much progress the ascetic spirit had already made, and how ripe were the unsettled minds of zealots to welcome whatever system of belief promised to trample most ruthlessly upon nature, and to render the path of salvation inaccessible to all save those capable of the sternest self-mortification. Towards the end of the third century, the Persian Manes made his advent in the Empire, proclaiming himself as the Paraclete and as a new and higher Apostle. Though his career as an envoy of Christ was stoutly resisted by the orthodox, and though, after a chequered life, he was flayed alive, and his followers in Persia were slaughtered by Varahran I.,⁵⁸ his western disciples

were more fortunate, and the hateful name of Manichæan acquired a sinister notoriety which maintained its significance for a thousand years. His system was a compound of several faiths, and though it failed in its comprehensive design to bring all mankind together in one form of belief, it yet had features which won for it the enthusiastic adhesion of men of diverse races. The way was already prepared for its reception among both Gentiles and Christians by the prevalence on the one hand of the Mithraic worship, and on the other of Gnosticism. The Dualistic theory was attractive to those who were disheartened in the vain attempt to reconcile the existence of evil with an omnipotent and all-merciful Creator; the Platonic identity of the soul with the Godhead was a recommendation to the schoolmen; the Brahmanical and Buddhist views as to abstinence from meat and marriage won adherents among the remains of the ascetic sects, and were acceptable even to those among the orthodox who were yielding to the increasing influence of asceticism. The fierce temporal persecution of the still Pagan emperors, and the unavailing anathemas of the church, as yet confined to mere spiritual censures, seemed only to give fresh impetus to the proselyting energy of the Elect, and to scatter the seed more widely among the faithful. After this period we hear but little of the earlier ascetic heresies; the system of Manes, as moulded by his followers, was so much more complete, that it swallowed up its prototypes and rivals, and concentrated upon itself the vindictiveness of a combined church and state. So thorough was this identification that in 381 an edict of Theodosius the Great directed against the Manichæans assumes that the sects of Encratitæ, Apotactitæ, Hydroparastitæ, and Saccofori were merely nominal disguises adopted to elude detection.⁵⁹

That Manichæism, in fact, exercised a substantial influence over orthodoxy is shown in other directions besides that of asceticism. It can scarce be doubted that the expansion of the penitential remission of sins into the system of purchasable indulgences received a powerful impulsion from the precedent set by Manes; and the denunciations of Ephraem Syrus form a fitting precursor to those of Luther. In the same way the Eucharist was diverted from its original form of a substantial meal—one of the means by which the charity of the church was administered to the poor—into the symbolical wafer and wine which assimilated it so closely to the Izhne sacrifice, the most frequent Mazdean rite, and one which, like the Mass,

was customarily performed for the benefit of departed souls.⁶⁰ Manes, in combining Mazdeism with Christianity, had adopted the Eucharist in the Mazdean form, and had confined the use of the cup to the priesthood; and this lay communion in one element became so well recognized as a test of Manichæism that Leo the Great ordered the excommunication of all who received the sacrament after that fashion.⁶¹ It may therefore be remarked as a curious coincidence that when Manichæism was revived by the Albigenses, in the eleventh and twelfth centuries, the church, which until then had preserved its ancient custom, adopted the lay communion in one element and adhered to it so rigidly that, as we shall see hereafter, not even the dread of the Hussite schism nor the earnest requests of those who remained faithful during the perils of the Reformation, could induce it to grant the cup to the laity. Lay communion in one element drew a line of distinction between the priest and his flock which the former would not willingly abandon.

Although, in the region of asceticism, the church might not be willing to adopt the Manichæan doctrine that man's body is the work of the Evil Principle, and that the Soul as partaking of the substance of God was engaged in an eternal war with it, and should thus abuse and mortify it⁶², yet the general tendencies of the religious enthusiasm of the time made the practical result common to all, and there can be no doubt that the spreading belief in Manes exercised a powerful influence in accelerating the progress of orthodox asceticism. The fact that as yet the church was persecuted and had no power of imposing its yoke on others bound it to the necessity of maintaining its character for superior sanctity and virtue; and ardent believers could not afford to let themselves be outdone by heretics in the austerities which were popularly received as the conclusive evidence of religious sincerity. We may therefore easily imagine a rivalry in asceticism which, however unconscious, may yet have powerfully stimulated the stern and unbending souls of such men as St. Antony, Malchus, and Hilarion, even as Tertullian, after combating the errors of Montanus, adopted and exaggerated his ascetic heresies. It would be easy to show from the hagiologies how soon the church virtually assented to the Manichæan notion that the body was to be mortified and macerated as the only mode of triumphing in the perennial struggle with the evil principle, but this would be foreign to our subject. It is sufficient for us here to indicate how

narrowly in process of time she escaped from adopting practically, if not theoretically, the Manichæan condemnation of marriage. This is clearly demonstrated by the writings of the orthodox Fathers, who in their extravagant praise of virginity could not escape from decrying wedlock. It was stigmatized as the means of transmitting and perpetuating original sin, an act which necessarily entailed sin on its participants, and one which at best could only look for mercy and pardon and be allowed only on sufferance. It is therefore not surprising if those who were not prepared to join in the progress of asceticism should habitually stigmatize the mortifications of their more enthusiastic brethren as Manichæism in spirit if not in name. Jovinian, it would seem, did not neglect this ready means of attack; nor was he alone, for Jerome complains that the worldly and dissolute sheltered themselves behind the same excuse, and derided as Manichæans all who were pallid and faint from maceration and fasting.⁶³ The comparison, indeed, became a not untruthful one, when the Christian and the heretic both adopted the plan of restricting their sacred class from the pleasures of the world—when the Manichæan Elect, who remained unmarried and fasted upon vegetable food, were equivalent to the priesthood, while the Auditors, to whom a larger liberty was allowed, represented the orthodox laity. It is by no means improbable that the tenets of the Manichæans have been exaggerated by their opponents in controversy, and that in process of time, when the church became avowedly ascetic, there was practically little difference on this point between Manichæism and Orthodoxy. St. Augustin, indeed, represents the Manichæan Faustus as arguing that both in doctrine and practice his sect only followed the example of the church. He ridicules the idea that it could prohibit marriage, and asserts positively that it only encouraged those who manifested a desire to persevere in continence. If this is to be received as an authentic exposition of Manichæan principles, it will be seen that the church was not long in outstripping the heretics.⁶⁴

In fact, even as early as the time of Cyprian, that saint, in allusion to the parable of the sower, had rated the comparative merits of martyrdom to virginity as one hundred to sixty; while, after martyrdom had gone out of fashion, St. Patrick, in the fifth century, undertook a more elaborate classification in which bishops and doctors of the church, monks and virgins, were rated at one hundred, ecclesiastics in general and widows

professed at sixty, while the faithful laity stand only at thirty.⁶⁵ It was therefore a heresy for Jovinian to claim equal merit for maidens, wives, and widows; and though St. Jerome, in controverting this, commenced by carefully denying any intentional disrespect towards marriage, still his controversial ardor carried him so far in that direction, that he aroused considerable feeling among reasonable men and was obliged formally and repeatedly to excuse himself. His contempt for marriage, indeed, was so extreme that in spite of the recognized primacy of St. Peter, he considered that apostle as decidedly inferior to St. John, because the one had a wife and the other was a virgin—apparently not observing that, as he denied the marriage of all the apostles save Peter, he was thus relegating the head of the church to the last place among the holy twelve.⁶⁶ St. Augustin recognized the difficulty of reconciling the current views of his time with the necessities of humanity when he wrote a treatise for the purpose of proving the difference between the good of marriage and the evil of carnal desire, which, while it perpetuated the species, likewise perpetuated original sin; and he gave a signal example of the manner in which enthusiastic asceticism sought to improve upon the work of the Creator when he uttered the pious wish that all mankind should abstain from marriage, so that the human race might the sooner come to an end.⁶⁷ St. Martin of Tours was somewhat less extravagant when he was willing to admit that marriage was pardonable, while licentiousness was punishable and virginity glorious; and he was far behind the enthusiasts of his time, for, while he deplores the miserable folly of those who consider marriage to be equal to virginity, he is likewise obliged to reprove the error of those who were willing only to compare it to lechery—the former belief being evidently much more erroneous than the latter in the Saint’s estimation.⁶⁸ So a treatise on chastity, which passes under the name of Sixtus III., barely admits that married people can earn eternal life; and it apparently is only the dread of being classed with Manichæans that leads the author to shrink from the conclusions of his own reasoning, and to state that he does not absolutely condemn wedlock or prohibit it to those who cannot restrain their passions.⁶⁹ Not a little Manichæan in its tendency is a declaration of Gregory the Great to Augustin the Apostle of England that connubial pleasures cannot possibly be free from sin; and quite as decided is another assertion of the same Pope that the strictness of monastic life is the only

possible mode of salvation for the greater portion of mankind.⁷⁰ It was the natural practical deduction from this which is drawn by the Penitential of Theodore, when it commands those who contract a first marriage to abstain from entering a church for thirty days, after which they are to perform penance for forty more; while a digamus is subjected to penance for a year, and a trigamus, or one oftener married, for seven years.⁷¹ When marriage was thus regarded as a sin, we can scarcely be surprised at the practical Manichæism of Epiphanius who declares that the church is based upon virginity as on its corner-stone.⁷²

This ascetic development, however, was not destined to triumph without occasional efforts at repression. At the close of the third century, the highest authorities of the church still condemned the ruthless asceticism, which was subsequently glorified as the loftiest achievement of Christian virtue. Thus in the Apostolic Constitutions, the influence of Manichæism and its kindred sects is as yet only manifested by the opposition aroused to their doctrines; and the necessity of that opposition is indicated by the careful and repeated declaration of the purity and sanctity of the marriage-tie, both as regards the priesthood and the laity. Not less instructive is the bare toleration almost grudgingly extended to vows of celibacy, and the cautious restriction which declares that such vows are not to be held as justifying a disparagement of matrimony.⁷³ No stronger contrast can be looked for than that produced by little more than a century between the rational piety of these provisions and the extravagant rhapsodies of Jerome, Augustin, and Martin. The calm good sense of Lactantius also takes occasion to reprove the extravagance which regarded all indulgence of the natural affections as a sin requiring repentance and pardon. He assumes indeed that perpetual continence, as being opposed to the law of nature, is not recommended, but only permitted by the Creator, thus reversing the maxims of the zealots.⁷⁴ Equally suggestive are the Apostolic Canons. The sixth of these pronounces deposition on the bishop or priest who separates himself from his wife under pretext of religion; while the fiftieth threatens equally rigorous punishment on the clerk or layman who shall abstain from marriage, from wine, or from meat, not for the purpose of devoting himself to piety, but on account of holding them in abomination—such belief being a slander on the goodness of God, and a calumny on the perfection of His works.⁷⁵ Even a hundred years later there is still an occasional protest to be heard, showing

how the more moderate section of the church still felt the danger to which she was exposed by intemperate ascetic zeal, and how narrow was the path which she had to trace between orthodoxy and heresy. The Fourth Council of Carthage, in 398, prescribing the examination to which all bishops-elect were to be subjected, specifies for inquiry among other points of faith questions as to whether the candidate disapproves of marriage, or condemns second marriages, or prohibits the use of meat.⁷⁶ It shows how readily Manichæism or Catharism might lurk in the asceticism of the most devout.

The tide, however, was fairly on the flood, and the resistance of the more reasonable among ecclesiastics was unavailing. It is true, that the influences which were now so powerful could evidently not be applied to the whole body of believers, as they would only result in gradual extinction or in lawless licentiousness; but as the ecclesiastical body was perpetuated by a kind of spiritual generation, it could, without hazarding a decrease of numbers, be subjected to regulations which should render obligatory the asceticism which as yet had been optional. The only wonder, in fact, is that this had not been earlier attempted. Such a rule, by widening the distinction between laymen and ecclesiastics, would be grateful to the growing sacerdotalism which ere long was to take complete possession of the church. Such a rule, moreover, was not only indicated by the examples of Buddhism and Manichæism, but had abundant precedent among the Pagans of the Empire. More than one passage in classical writers show that abstinence from women was regarded as an essential prerequisite to certain religious observances, and the existence of this feeling among the primitive Christians, based upon the injunction of Ahimelech, is indicated by St. Paul⁷⁷—and this custom, as sacerdotalism developed, and formalism rendered the life of the minister of the altar a ceaseless round of daily service, would practically separate husband and wife. Moreover, much of the Pagan worship subjected its officials to general restrictions of greater or less severity. Diodorus Siculus states that the Egyptian priests were permitted to have but one wife, although unlimited polygamy was allowed to the people; while Chæremon the Stoic, according to St. Jerome, and Plutarch indicate that they were obliged to observe entire continence. The castration of the Galli, the priests of Rhea at Hierapolis, though explained by the myth of Attys, was evidently only a survival of the fierce asceticism which counterbalanced the licentiousness of the older Phenician worship.

The rites of the Gaditanian Hercules were conducted by ministers obliged to observe chastity, and the foot of woman was not permitted to pollute the sacred precincts of the temple; while the priestesses of Gea Eurysternus at Ægæ were required to preserve the strictest celibacy.⁷⁸ The hierophants of Demeter in Athens, were obliged to maintain unsullied continence. The priestesses of the Delphic Apollo, the Achaian Hera, the Scythian Artemis, and the Thespian Heracles were virgins. In Africa, those of Ceres were separated from their husbands with a rigor of asceticism which forbade even a kiss to their orphaned children; while in Rome the name of Vestal has passed into a proverb, although it is true that while they were only six or seven in number, the distinguished honors and privileges accorded to them were insufficient to induce parents to devote them to the holy service, and there was difficulty in keeping the ranks filled.⁷⁹

The earliest recorded attempt by the church to imitate these restrictions, was made in 305 by the Spanish council of Elvira, which declared, in the most positive manner, that all concerned in the ministry of the altar should maintain entire abstinence from their wives under pain of forfeiting their positions. It further endeavored to put an end to the scandals of the Agapetæ, or female companions of the clergy, which the rigor of this canon was so well fitted to increase, by decreeing that no ecclesiastic should permit any woman to dwell with him, except a sister or a daughter, and even these only when bound by a vow of virginity.⁸⁰ This was simply the legislation of a local synod, and its canons were not entitled to respect or obedience beyond the limits of the churches directly represented. Its action may not improbably be attributed to the commanding influence of one of its leading members, Osius, Bishop of Cordova, and that action had no result in inducing the church at large to adopt the new rule, for some ten years later were held the more important councils of Ancyra and Neocæsarea, and the absence of any allusion to it in their proceedings seems to fix for us the discipline of the period in this respect, at least in the East. By the canons of Ancyra we learn that marriage in orders was still permitted, as far as the diaconate, provided the postulant at the time of ordination declared his desire to enjoy the privilege and asserted his inability to remain single. This is even less stringent than the rule quoted above from the Apostolic Constitutions, and proves incontestably that there was no thought of imposing any restriction upon the intercourse between the married clergy

and their wives. By the council of Neocæsarea it was provided that a priest marrying in orders should be deposed, but a heavier punishment was reserved for what was then, in reverse of the standard of later times, regarded as the greater sin of licentiousness. That no interference was intended by this with the relations existing between those who had married in the lower grades and their wives, is shown by another canon which deprives of his functions any priest who submitted to the commission of adultery by his wife without separating from her—being a practical extension of the Levitical rule, now by common consent adopted as a portion of ecclesiastical discipline.⁸¹ Yet, even in the East, there was a growing tendency to more rigid asceticism than this, for, about the same period, we find Eusebius stating that it is becoming in those who are engaged in the ministry of God, to abstain from their wives, though his argument in justification of this is based upon the multiplicity of occupation, which in civilized society rendered it desirable for those enlisted in the service of the church to be relieved from family cares and anxieties.⁸²

III.

THE COUNCIL OF NICÆA.

Thus far the church had grown and strengthened without any recognized head or acknowledged legislative power. Each patriarch or metropolitan, surrounded by his provincial synod, established regulations for his own region, with no standard but the canon of Scripture, being responsible only to the opinion of his compeers, who might refuse to receive his clergy to communion. Under this democratic autonomy the church had outlived persecution, had repudiated and cast out innumerable successive heresies, and, thanks to external pressure, had managed to preserve its unity. The time, however, had now come for a different order of things. Constantine, following the dictates of his unerring political sagacity, allied himself with the Christians and professed conversion; and Christianity, powerful even when merely existing on sufferance, became the religion of the state. As such, the maintenance of its unity was a political necessity, to accomplish which required some central power entitled to general respect and implicit obedience. The subtle disputations concerning the fast-spreading Arian heresy were not likely to be stilled by the mere *ipse dixit* of any of the Apostolic Sees, nor by the secular wisdom of crown lawyers and philosophic courtiers. A legislative tribunal, which should be at once a court of last appeal and a senate empowered to enact laws of binding force, as the final decisions of the Church Universal, was not an unpromising suggestion. Such an assemblage had hitherto been impossible, for the distances to be traversed and the expenses of the journey would have precluded an attendance sufficiently numerous to earn the title of Œcumenic; but an imperial rescript which put the governmental machinery of posts at the service of the prelates could smooth all difficulties, and enable every diocese to send its representative. In the year 325, therefore, the FIRST GENERAL COUNCIL assembled at Nicæa. With the fruitlessness of its endeavors to extinguish the Arian controversy we have nothing to do, but in its legislative capacity its labors had an influence upon our subject which merits a closer examination than would appear necessary from the seemingly unimportant nature of the proceedings themselves.

With the full belief that the canons of a general council were the direct operation of the Holy Ghost, they were of course entitled to unquestioning reverence, and those of Nicæa have always been regarded as of special and peculiar authority, cutting off all debate on any question to which they might be applicable. The third of the series has been the main reliance of sacerdotal controversialists, and has been constantly appealed to as the unanswerable justification for enforcing the rule of discipline which enjoined celibacy on all admitted to holy orders. Its simple phraseology would hardly seem to warrant such conclusion. “The Great Synod has strictly forbidden to bishop, priest, and deacon, and to every ecclesiastic, to have a ‘subintroductam mulierem,’ unless perhaps a mother, a sister, an aunt, or such person only as may be above suspicion.”⁸³

This is the only allusion to the subject in the Nicene canons. As it does not include wives among those exempted from the prohibition of residence, we can hardly be surprised that those who believe celibacy to be of apostolic origin should assume that it was intended to pronounce an absolute separation between husband and wife. As the Council of Elvira, however, contains the only enunciation of such a rule previous to that of Nicæa, and as those of Ancyra and Neocæsarea and the Apostolic Constitutions and Canons, directly or indirectly, allow the conjugal relations of ecclesiastics to remain undisturbed, we are certainly justified in assuming the impossibility that an innovation of so much importance would be introduced in the discipline of the universal church without being specifically designated and commanded in terms which would admit of no misunderstanding. That the meaning of the canon is really and simply that alone which appears on the surface—to put an end to the disorders and scandals arising from the improper female companions of unmarried priests—is, moreover, I think, susceptible of easy demonstration.

The term “subintroducta mulier”—γυνή συνεισάκτος—is almost invariably used in an unfavorable sense, and is equivalent to the “fœmina extranea,” and nearly to the “focaria” and “concubina” of later times, as well as to the “agapeta” and “dilecta” of earlier date. We have already seen how Cyprian, seventy-five years before, denounced the agapetæ who even then were so common, and whose companionship proved so disastrous to all parties, but the custom continued, and its evil consequences became more and more openly and shamelessly displayed. In 314 the council of

Ancyra denounced it in terms implying its public recognition.⁸⁴ At the close of the same century, Jerome still finds in it ample material for his fiery indignation; and his denunciations manifest that it was still a corroding cancer in the purity of the church, prevailing to an extent that rendered its suppression a matter of the utmost importance.⁸⁵ The testimony of Epiphanius is almost equally strong, and shows that it was a source of general popular reproach.⁸⁶ Such a reform was therefore well worthy the attention of the Nicene fathers, and that this was the special object of the canon is indicated by Jerome himself, who appeals to it as the authority under which an ecclesiastic refusing to separate himself from his agapeta could be punished; it was to be read to the offender, and if he neglected obedience to its commands, he was to be anathematized.⁸⁷

That it had no bearing upon the wives of priests can moreover be proved by several reasons. The restriction on matrimony has never at any time extended below the subdiaconate, the inferior grades of the secular clergy having always been free to live with their wives, even in the periods of the most rigid asceticism. The canon, however, makes no distinction. Its commands are applicable “alicui omnino qui in clero est.” To suppose, therefore, that it was intended to include wives in its restriction is to prove too much—the *reductio ad absurdum* is complete.⁸⁸ Equally convincing is the fact that when, towards the close of the century, the rule of celibacy and separation was introduced, and Siricius and Innocent I. ransacked the Gospels for texts of more than doubtful application with which to support the innovation, they made no reference whatever to the Nicene canon.⁸⁹ Had it been understood at that period as bearing on the subject, it would have been all-sufficient in itself. The reverence felt for the Council of Nicæa was too great, and the absolute obedience claimed for its commands was too willingly rendered, for such an omission to be possible. That Siricius and Innocent should not have adduced it is therefore proof incontrovertible that it was as yet construed as directed solely against the improper companions of the clergy. If further evidence to the same effect be required, it may be found in a law of Honorius, promulgated in 420, in which, while forbidding the clergy to keep “mulieres extraneæ” under the name of “sorores,” and permitting only mothers, daughters, and sisters, he adds that the desire for chastity does not prohibit the residence of wives whose merits have assisted in rendering their husbands worthy of the

priesthood.⁹⁰ The object of the law is evidently to give practical force and effect to the Nicene canon, and the imperial power under Honorius had sunk to too low an ebb for us to imagine the possibility of his venturing to tamper with and overrule the decrees of the most venerable council.⁹¹ Even in the sixth century the Nicene canon was not yet considered to have the meaning subsequently attributed to it, for otherwise there would have been no necessity of inserting a provision prohibiting the marriage of priests in the account forged at that time of a Roman council said to have been held by Silvester I.⁹²

If the proof thus adduced be as convincing as it appears to me, the story of Paphnutius is not so important as to deserve the amount of controversy that has been expended upon it, and a brief reference is all that seems necessary. Socrates and Sozomen relate that while the canons of the council were under consideration, some of the fathers desired to introduce one interdicting all intercourse between those in orders and their wives. Whereupon Paphnutius, an Egyptian bishop, protested against the heavy burden to be thus imposed upon the clergy, quoting the well-known declaration of St. Paul to the Hebrews respecting the purity of the marriage-bed. The influence of St. Paphnutius was great, for he was a confessor of peculiar sanctity; the loss of his right eye bore testimony to the severity of the persecutions which he had endured, and his immaculate chastity, preserved from boyhood in a monastery, rendered his motives and his impartiality on the subject unimpeachable. The bishops, who had been on the point of accepting the proposed canon, were convinced, and the project was abandoned.⁹³

If this account be true, it of course follows that the third canon has no bearing on the wives of ecclesiastics, and that the enforcement of celibacy dates from a later period than that of the council. Accordingly, when the Nicene canon was found necessary to give authority to the rule, it became requisite to discredit the story of Paphnutius. The first attempt to do this, which has come under my observation, occurred during the fierce contentions aroused by the efforts of Gregory VII. to restore the almost forgotten law of celibacy. Bernald of Constance has left a record of a discussion held by him in 1076 with Alboin, a zealous defender of sacerdotal marriage, in which the authenticity of the story is hotly

contested.⁹⁴ Bernald's logic may be condensed into the declaration that he considered it much more credible that Sozomen was in error than that so holy a man as St. Paphnutius could have been guilty of such blasphemy. No reason whatever was vouchsafed when Gregory VII. caused the story to be condemned in the Synod of Rome of 1079.⁹⁵ In spite of this, Pius IV., in 1564, admitted its authenticity in his epistle to the German princes who had requested of him the concession of sacerdotal marriage.⁹⁶ Later writers, from Bellarmine down, have, however, entered into elaborate arguments to prove its impossibility. They rest their case principally on the assertion of the existence of celibacy as a rule anterior to the council, and on its enforcement afterwards; on the fact that Socrates and Sozomen flourished a little more than a century after the council, and that they are therefore untrustworthy; and that the name of St. Paphnutius does not appear in the acts of the council. To the first of these objections the preceding pages afford, I think, a sufficient answer; to the second it can only be replied that we must be content with the best testimony attainable, and that there is none better than that of the two historians, whose general truthfulness and candor are acknowledged;⁹⁷ and to the third it may be remarked that of the 318 bishops present, but 222 affixed their signatures to the acts, while Rufinus and Theodoret both expressly assert that Paphnutius was present.⁹⁸ That the statement was not discredited until controversialists found it desirable to do so, is shown by its retention in the full account of the proceedings of the council by Gelasius of Cyzicus, in the fifth century, and also by its repetition in the "Historia Tripartita," a condensation of the narratives of Socrates, Sozomen, and Theodoret, compiled in the sixth century by Cassiodorus, whose irreproachable orthodoxy would hardly have permitted him to give it currency if it had then been considered as blasphemous as the writers of the eleventh century would have us believe. In fact, the learned and orthodox Christian Wolff, in his great work on the Councils, rejects as trifling the assertion that the story of Paphnutius is fictitious. His theory of the whole matter is that the western church endeavored to subject the eastern to its views on the celibacy required of the priesthood; that the effort failed, in consequence of the opposition of Paphnutius, and that the canon adopted had reference merely to the scandals of the Agapetæ.⁹⁹

Various indications have been collected by controversialists to show that for some time after the council of Nicæa no interference was attempted with

married priests. Of these, one or two will suffice.

St. Athanasius, whose orthodoxy it would not be prudent for any one to question, and whose appearance during his diaconate at the council of Nicæa first attracted general attention to his commanding abilities, has left us convincing testimony as to the perfect freedom allowed during his time to all classes of ecclesiastics. An Egyptian monk named Dracontius had been elected to an episcopate, and hesitated to accept the dignity lest its duties should prove incompatible with the fulfilment of his vows. To remove these scruples, Athanasius addressed him an epistle containing various arguments, among which was the declaration that in his new sphere of action he would find no difficulty in carrying out whatever rules he might prescribe for himself. “Many bishops,” said the Saint, “have not contracted matrimony, while on the other hand, monks have become fathers. Again, we see bishops who have children, and monks who take no thought of having posterity.”¹⁰⁰ The tenor of the whole passage is such as to show that no laws had yet been enacted to control individual action in such matters, and while rigid asceticism was largely practised, it was to be admired as the result of private conviction, and not as mere enforced submission to an established rule.

Testimony equally unequivocal is afforded by the case of St. Gregory Theologos, Bishop of Nazianzum. He relates that his father, who was likewise a St. Gregory Bishop of Nazianzum, was converted about the period of the Nicene council, and was shortly afterwards admitted to the priesthood and created bishop. His mother, St. Nonna, prayed earnestly for male issue, saw her future son St. Gregory in a prophetic vision, and devoted him, before his birth, to the service of God. That this occurred after his father’s admission to orders is shown by the address which he represents the latter as making to him, “I have passed more years in offering the sacrifice than measure your whole life,”¹⁰¹ while the birth of a younger son, Cæsarius, shows that conjugal relations continued undisturbed. St. Gregory evidently felt that neither shame nor irregularity attached to his birth during the sacred ministry of his father.

IV. LEGISLATION.

Thus far the progress of asceticism had been the result of moral influence alone. Those who saw in the various forms of abstinence and mortification the only path to salvation, and those who may have felt that worldly advantages of power or reputation would compensate them for the self-inflicted restrictions which they underwent, already formed a numerous body in the church, but as yet had not acquired the numerical ascendancy requisite to enable them to impose upon their brethren the rules which they had adopted for their own guidance. The period was one of transition, and for sixty years after the council of Nicæa there was doubtless a struggle for supremacy not perhaps the less severe because at this late date we can but dimly trace its outlines amid the records of the fierce Arian controversy which constitutes the ecclesiastical history of the time, and which absorbed the attention of writers almost to the exclusion of everything else.

The first triumph of the ascetic party was in establishing recognized restrictions on those who had voluntarily assumed vows of celibacy. With them, at least, the case was clear. Aspiring to no rank in the church, they simply dedicated themselves to God, and pledged themselves to lives of abstinence. Their backsliding caused scandal to the church, which, if it were held responsible in the eyes of men for their conduct, must necessarily assume the power to control their mode of life, while the fact of simply holding them to the performance of vows solemnly undertaken could not reasonably be regarded as an arbitrary stretch of authority. These voluntary vows, which speedily led to the establishment of the vast fabric of monachism will form the subject of a subsequent section, and need not be further alluded to here.

Another move in the direction of asceticism was the prohibition by the Council of Laodicea in 352 of women serving as priests or presiding over the churches.^{[102](#)} Although in later Judaism the Temple service was confined to men, the examples of Deborah and Huldah show that in earlier times

women were considered as capable of inspiration and were sometimes revered as prophets; the Gentiles, among whom the infant churches were founded, had priestesses almost everywhere actively employed in the duties of worship and sacrifice; and it would have been strange if women, to whom the propagation of the Gospel was so greatly owing, had not been sometimes admitted to the function of conducting the simple services of the primitive church. We learn from St. Paul that Phœbe was a deacon (διάκονος) of the church at Cenchrea,¹⁰³ and the canon of Laodicea shows that until the middle of the fourth century they still occasionally occupied recognized positions in the active ministry of the church. They could not have been numerous, or the references to them in the history of the period would have been more frequent, and the enforcement of their disability for divine service would have required constant repetition in the canons of the general and local synods; but unquestionably the growth of Mariolatry and the adoration of female saints would have sufficed to prevent the inconsistency of regarding women as absolutely unfitted for any function in public worship, had it not been for the rising influence of asceticism, which demanded the separation of the sexes, and insisted upon an artificial purity in all concerned in the ministry of the altar. Even as late as the tenth century, so good a celibatarian as Atto of Vercelli was perfectly willing to assert that in the early church, when the laborers were few, women were admitted to share in the ceremonies of divine worship.¹⁰⁴

Still, as yet, the secular clergy were at liberty to follow the dictates of their own consciences, and if an attempt was made to erect the necessity of ascetic abstinence into an article of either faith or discipline, the church was prompt to stamp it with the seal of unequivocal reprobation. Eustathius, Bishop of Sebastia, in Cappadocia, himself the son of the Bishop of Cappadocian Cæsarea, Eulalius, carried his zeal for purity to so great an excess that his exaggerated notions of the inferiority of the married state trenched closely upon Manichæism, although his heretical rejection of canonical fasting showed that on other points he was bitterly opposed to the tenets of that obnoxious sect. His horror of matrimony went so far as to lead him to the dogma that married people were incapable of salvation; he forbade the offering of prayer in houses occupied by them; and he declared that the blessings and sacraments of priests living with their wives were to be rejected, and their persons treated with contempt.¹⁰⁵

There were not wanting those to whom even these extreme opinions were acceptable, and Eustathius speedily accumulated around him a host of devotees whose proselyting zeal threatened a stubborn heresy. The excesses attributed to their inability to endure the practical operation of their leader's doctrines may be true, or may be merely the accusations which are customarily disseminated when it becomes necessary to invest schismatics with odium. Be this as it may, the orthodox clergy felt the importance of promptly repressing opinions which, although at variance with the creed of the church, were yet dangerously akin to the extreme views of those who were regarded as pre-eminently holy. Eulalius, the father of the heresiarch, himself presided at a local synod held at Cæsarea, and condemned his son. This did not suffice to repress the heresy, and about the year 362 a provincial council was assembled at Gangra, where fifteen bishops, among whom was Eulalius, pronounced their verdict on Eustathius and his misguided followers, and drew up a series of canons defining the orthodox belief on the questions involved. That they were received by the church as authoritative is evident from their being included in the collections of Dionysius and Isidor. These canons anathematize all who refuse the sacraments of a married priest, and who hold that he cannot officiate on account of his marriage; also those who, priding themselves on their professed virginity, arrogantly despise their married brethren, and who hold that the duties of wedlock are incompatible with salvation.¹⁰⁶ The whole affords a singularly distinct record of the doctrines accepted at this period, showing that there was no authority admitted for imposing restrictions of any kind on the married clergy. It probably was an effort on the part of the conservatives of the church to restrain their more progressive brethren, and they no doubt gladly availed themselves of the wild theories of Eustathius to stigmatize the extravagances which were daily becoming more influential. At the same time, they were careful to shield themselves behind a qualified concession to the ascetic spirit of the period, for in an epilogue they apologetically declare their humble admiration of virginity, and their belief that pious continence is most acceptable to God.¹⁰⁷

In little more than twenty years after this emphatic denunciation of all interference with married priests, we find the first absolute command addressed to the higher orders of the clergy to preserve inviolate celibacy. So abrupt a contrast provokes an inquiry into its possible causes, as no records have reached us exhibiting any special reasons for the change.

While the admirers of ascetic virginity became louder and more enthusiastic in their praises of that blessed condition, it is fair to presume that they were daily more sensible of a lower standard of morality in the ministers of the altar, and that their susceptibilities were more deeply shocked by the introduction and growth of abuses. While the church was kept purified by the fires of persecution, it offered few attractions for the worldly and ambitious. Its ministry was too dangerous to be sought except by the pure and zealous Christian, and there was little danger that pastors would err except from over-tenderness of conscience or unthinking ardor. When, however, its temporal position was incalculably improved by its domination throughout the empire, it became the avenue through which ambition might attain its ends, while its wealth held out prospects of idle self-indulgence to the slothful and the sensual. A new class of men, dangerous alike from their talents or their vices, would thus naturally find their way into the fold, and corruption, masked under the semblance of austere virtue, or displayed with careless cynicism, would not be long in penetrating into the Holy of Holies. Immorality must have been flagrant when, in 370, the temporal power felt the necessity of interfering by a law of the Emperor Valentinian which denounced severe punishment on ecclesiastics who visited the houses of widows and virgins.¹⁰⁸ When an increasing laxity of morals thus threatened to overcome the purity of the church, it is not surprising that the advocates of asceticism should have triumphed over the more moderate and conservative party, and that they should improve their victory by seeking a remedy for existing evils in such laws as should render the strictest continence imperative on all who entered into holy orders. They might reasonably argue that if nothing else were gained, the change would at least render the life of the priest less attractive to the vicious and the sensual, and that the rigid enforcement of the new rules would elevate the character of the church by preventing such wolves from seeking a place among the sheep. If by such legislation they only added fresh fuel to the flame; if they heightened immorality by hypocrisy

and drove into vagabond licentiousness those who would perhaps have been content with lawful marriage, they only committed an error which has ever been too common with earnest men of one idea to warrant special surprise.

Another object may not improbably have entered into the motives of those who introduced the rule. The church was daily receiving vast accessions of property from the pious zeal of its wealthy members, the death-bed repentance of despairing sinners, and the munificence of emperors and prefects, while the effort to procure the inalienability of its possessions dates from an early period.¹⁰⁹ Its acquisitions, both real and personal, were of course exposed to much greater risk of dilapidation when the ecclesiastics in charge of its widely scattered riches had families for whose provision a natural parental anxiety might be expected to override the sense of duty in discharging the trust confided to them. The simplest mode of averting the danger might therefore seem to be to relieve the churchman of the cares of paternity, and, by cutting asunder all the ties of family and kindred, to bind him completely and forever to the church and to that alone. This motive, as we shall see, was openly acknowledged as a powerful one, in later times, and it no doubt served as an argument of weight in the minds of those who urged and secured the adoption of the canon.

It appears to me not unreasonable to suppose that all these various motives lent additional force to the zeal for the purity of the church, and to the undoubting belief in the necessity of perpetual celibacy, which impelled the popes, about the year 385, to issue the first definite command imposing it as an absolute rule of discipline on the ministers of the altar. The question evidently was one which largely occupied the minds of men, and the conclusion was reached progressively. A Roman synod, to which the date of 384 is assigned, answered a series of interrogatories propounded by the bishops of Gaul, among which was one relating to the chastity of the priesthood. To this the response was rather argumentatory and advisory in its character than imperative; the continence of the higher grades of ecclesiastics was insisted on, but no definite punishment was ordered for its violation¹¹⁰—and no maxim in legislation is better understood than that a law without a penalty expressed is practically a dead letter. Allusion was made to previous efforts to enforce the observance in various churches; surprise was expressed that light should be sought for on such a question—

for the Gallic prelates had evidently been in doubt respecting it—and numerous reasons were alleged in a manner to show that the subject was as yet open to argument, and could not be assumed as proved or be decided by authority alone. These reasons may be briefly summed up as consisting of references to the well-known texts referred to in a previous section, together with a vague assertion of the opinion of the Fathers to the same effect. Allusion was made to the inconsistency of exhortations to virginity proceeding from those who themselves were involved in family cares and duties, a reasonable view when we consider how much of ecclesiastical machinery by this time turned on monachism; and the necessity was urged of bishops, priests, and deacons preserving the purity requisite to fit them for the daily sacrifice of the altar and the ministration of the sacraments. This latter point was based upon the assumption of a similar abstinence being imposed by the old law on the Levites during their term of service in the Temple, and the example of the pagan priesthood was indignantly adduced to shame those who could entertain a sacrilegious doubt upon a matter so self-evident.¹¹¹ The conclusion arrived at was definite, but, as I have already remarked, no means were suggested or commanded for its enforcement.

Not many months later Pope Damasus died, but the cause was safe in the hands of his successor. Scarcely had Siricius ascended the pontifical throne, when, in 385, he addressed an epistle to Himerius, Archbishop of Tarragona, expressing his grief and indignation that the Spanish clergy should pay so little regard to the sanctity of their calling as to maintain relations with their wives. It is evident from the tenor of the decretal that Himerius had been unable to enforce the new discipline, and had appealed to Rome for assistance in breaking down the stubborn resistance which he had encountered, for allusion is made to some of the refractory who had justified themselves by the freedom of marriage allowed to the Levites under the old law, while others had expressed their regret and had declared their sin to be the result of ignorance. Siricius adopted a much firmer tone than his predecessor. He indulged in less elaboration of argument; a few texts, more or less apposite; an expression of wonder that the rule should be called in question; a distinct assertion of its application to the three grades of bishops, priests, and deacons; a sentence of expulsion on all who dared to offer resistance, and a promise of pardon for those who had offended

through ignorance, allowing them to retain their positions as long as they observed complete separation from their wives, though even then they were pronounced incapable of all promotion—such was the first definitive canon, prescribing and enforcing sacerdotal celibacy, exhibited by the records of the church.^{[112](#)}

The confident manner in which the law is thus laid down as incontrovertible and absolute might almost make us doubt whether it were not older than the preceding pages have shown it to be, if Siricius had not confessed the weakness of the cause by adopting a very different tone within a year. In 386 he addressed the church of Africa, sending it certain canons adopted by a Roman synod. Of these the first eight relate to observances about which there was at that time no question, and they are expressed in the curtest and most decisive phraseology. The ninth canon is conceived in a spirit totally different. It persuades, exhorts, and entreats that the three orders shall preserve their purity; it argues as to the propriety and necessity of the matter, which it supports by various texts, but it does not assume that the observance thus enjoined is even a custom, much less a law, of the church; it urges that the scandal of marriage be removed from the clergy, but it threatens no penalty for refusal.^{[113](#)} Siricius was too imperious and too earnest in all that he undertook for us to imagine that he would have adopted pleading and entreaty if he had felt that he possessed the right to command; nor would he have condescended to beg for the removal of an opprobrium if he were speaking with all the authority of unquestioned tradition to enforce a canon which had become an unalterable part of ecclesiastical discipline.

It is observable that in these decretals no authority is quoted later than the Apostolic texts, which, as we have seen, have but little bearing on the subject. No canons of councils, no epistles of earlier popes, no injunctions of the Fathers are brought forward to strengthen the position assumed, whence the presumption is irresistible that none such existed, and we may rest satisfied that no evidence has been lost that would prove the pre-existence of the rule.

V. ENFORCEMENT OF CELIBACY.

Celibacy was but one of the many shapes in which the rapidly progressing sacerdotalism of Rome was overlaying religion with a multitude of formal observances. That which in earlier times had been the spontaneous expression of fervid zeal, or the joyful self-sacrifice of ardent asceticism, was thus changed into a law, bearing upon all alike, and taking no count of the individual idiosyncrasies which might render the burden too heavy for the shoulders of the less fiery though not less conscientious Christian. That it should meet with resistance was to be expected when we consider that the local independence of primitive times had not as yet been crushed under the rapidly growing preponderance of the Roman see. In fact energetic protests were not wanting, as well as the more perplexing stubbornness of passive resistance.

St. Ambrose admits that although the necessity of celibacy was generally acknowledged, still, in many of the remoter districts, there were to be found those who neglected it, and who justified themselves by ancient custom, relying on precautions to purify themselves for their sacred ministry.¹¹⁴ In this he gives countenance to the tradition of the Leonistæ, simple Christians whose refusal to adapt themselves to the sacerdotalism, which was daily becoming more rigorous and indispensable, caused their expulsion from Rome, and who, taking refuge in the recesses of the Cottian Alps, endeavored to preserve the unadulterated faith of earlier times in the seclusion and privation of exile.

All who revolted against the increasing oppression of the hierarchy were not, however, content to bury themselves in solitude and silence, and heresiarchs sprang up who waged a bold but unequal contest. Bonosus, Jovinian, and Vigilantius are the names which have reached us as the most conspicuous leaders in the unsuccessful attempt to turn back the advancing spirit of the age, and of these Jovinian is the foremost figure. Bonosus, who was Bishop of Sardica, acquired a peculiarly sinister notoriety, for, in his

opposition to the ascetic spirit, he adopted a heresy of Tertullian and Photinus, and assailed one of the chief arguments of the admirers of celibacy by denying the perpetual virginity of the Virgin; whence his followers acquired the euphonious title of Bonosiacs.¹¹⁵ For this he was denounced by Pope Siricius with all the vehemence which doctrines so sacrilegious were calculated to excite,¹¹⁶ and his followers were duly condemned by the Council of Capua in 389, while the tireless pen of St. Jerome was called into requisition to refute errors so unpardonable.¹¹⁷ Notwithstanding this they continued to flourish, for an epistle of Innocent I. to Lawrence, Bishop of Segna, proves that the error was openly taught on the eastern shores of the Adriatic in the early part of the fifth century;¹¹⁸ in 443 the Council of Arles shows their existence in France by promising reconciliation to those who should manifest proper repentance, and that of Orleans as late as 538 still contains an allusion to them.¹¹⁹ The belief even extended to Arabia, where a sect professing it is stigmatized by Epiphanius as Antidicomarianitarians, whose conversion that worthy bishop endeavored to secure by a long epistle, in which his labored explanations of the stubborn text of Matthew are hardly more convincing than his hearty objurgations of the blasphemous dogma, or his illustrative comparison of the Virgin to a lioness bearing but one whelp.¹²⁰

While Jovinian shared in this particular the error of Bonosus and Helvidius, he did not attach undue importance to it. More practically inclined, his heresy consisted principally in denying the efficacy of celibacy, and this he maintained in Rome itself, with more zeal than discretion. Siricius caused his condemnation and that of his associates in a synod held about the year 390,¹²¹ and succeeded in driving him to Milan, where he had many proselytes. There was no peace for him there. A synod held under the auspices of St. Ambrose bears testimony to the wickedness of his doctrines and to the popular clamor raised against him, and the wanderer again set forth on his weary pilgrimage.¹²² Deprived of refuge in the cities, he disseminated his tenets throughout the country, where ardent followers, in spite of contumely and persecution, gathered around him and

conducted their worship in the fields and hamlets. The laws promulgated about this time against heresy were severe and searching, and bore directly upon all who deviated from the orthodox formulas of the Catholic church, yet Jovinian braved them all. The outraged church called upon its most unscrupulous polemic, St. Jerome, who indulged in the customary abuse which represented the schismatics as indulging in the grossest promiscuous licentiousness and Jovinian as teaching them that all things were permitted to those baptized in Christ, in contradiction to St. Augustin who admits the sobriety and virtue of Jovinian, in spite of his denying the efficacy of celibacy.^{[123](#)} All this was insufficient to put down the stubborn schismatics, who maintained their faith until the church, wearied out with their obstinacy and unable to convert or to silence them, appealed to the secular power for more efficient assistance. Perhaps Jovinian's long career of successful resistance may have emboldened him; perhaps his sect was growing numerous enough to promise protection; at all events, despite the imperial rescripts which shielded with peculiar care the Apostolic city from the presence of heretics, Jovinian in 412 openly held assemblages of his followers in Rome, to the scandal of the faithful, and made at least sufficient impression to lead a number of professed virgins to abandon their vows and marry.^{[124](#)} The complaints of the orthodox were heard by the miserable shadow who then occupied the throne of Augustus, and Honorius applied himself to the task of persecution with relentless zeal. Jovinian was scourged with a leaded thong and exiled to the rock of Boa, on the coast of Dalmatia, while his followers were hunted down, deported, and scattered among the savage islands of the Adriatic.^{[125](#)}

Nor was this the only struggle. A wild shepherd lad named Vigilantius, born among the Pyrenean valleys, was fortunate enough to be the slave of St. Sulpicius Severus, whose wealth, culture, talents, and piety rendered him prominent throughout Southern Gaul. The earnest character of the slave attracted the attention of the master; education developed his powers; he was manumitted, and the people of his native Calagurris choose him for their priest. Sent by Sulpicius as bearer of letters to his friends St. Paulinus at Nola, and St. Jerome in his Bethlehem retreat, Vigilantius had the

opportunity of comparing the simple Christianity of his native mountains with the splendid pageantry of Rome, the elegant retirement of Nola, and the heated controversialism which agitated the asceticism of Bethlehem. Notwithstanding the cordiality of their first acquaintance, his residence with Jerome was short. Both were too earnestly dogmatic in their natures for harmony to exist between the primitive Cantabrian shepherd and the fierce apostle of Buddhist and Mazdean Christianity, who devoted his life to reconciling the doctrines of the Latin church with the practices of Manichæism. Brief friendship ended in a quarrel, and Vigilantius extended his experiences by a survey of Egypt, where the vast hordes of Nitrian anchorites were involved in civil strife over the question of Origenism. Returning through Italy, he tarried in Milan and among the Alps, where he found the solution of his doubts and the realization of his ideas in the teaching of Jovinian. He had left Gaul a disciple; he returned to it a missionary, prepared to do battle with sacerdotalism in all its forms. Not only did he deny the necessity of celibacy, but he pronounced it to be the fertile source of impurity, and in his zeal for reform he swept away fasting and maceration, he ridiculed the adoration of relics, and pronounced the miracles wrought at their altars to be the work of demons; he objected to the candles and incense around the shrines, to prayers for the dead, and to the oblations of the faithful.^{[126](#)}

No doubt the decretals of Siricius had rendered compulsory the celibacy of the priesthood throughout Gaul and Spain. The machinery of the hierarchy may readily have stifled open opposition, however frequent may have been the secret infractions of the rule. This may perhaps have contributed to the success of Vigilantius. Even his former master, St. Sulpicius Severus, and St. Exuperius, Bishop of Toulouse, were inclined to favor his reforms. That they spread with dangerous rapidity throughout Gaul from south to north is shown by the fact that in 404 Victricius, Bishop of Rouen, and in 405 St. Exuperius of Toulouse applied to Innocent I. for advice as to the manner in which they should deal with the new heresy. It also counted numerous adherents throughout Spain, among whom even some bishops were enumerated. The alarm was promptly sounded, and the enginery of the church was brought to bear upon the hardy heretic. The vast reputation and authority of Jerome lent force to the coarse invective with which he endeavored to overwhelm his whilom acquaintance, and though

the nickname of Dormitantius which he bestowed on Vigilantius was a sarcasm neither very severe nor very refined, the disgusting exaggeration of his adversary's tenets in which he as usual indulged had doubtless its destined effect.¹²⁷ Pope Innocent was not backward in asserting the authority of Rome and the inviolable nature of the canon. In his epistle to Victricius, he repeated the decretal of Siricius, but in a somewhat more positive form;¹²⁸ while in the following year (405) he confirmed the vacillating faith of Exuperius by declaring that any violation of the strictest celibacy on the part of priest or deacon subjects the offender to the deprivation of his position.¹²⁹ As in the previous effort of Siricius, however, ignorance is admitted as an excuse, entitling him who can plead it to retain his grade without hope of preferment—and the test of this ignorance is held to be the canon of 385. This latter point is noteworthy, for it is a tacit confession of the novelty of the rule, although Innocent labored at great length to prove both its antiquity and necessity from the well-known texts of St. Paul and the Levitical observances. Yet no intermediate authority was quoted, and punishment was only to be inflicted on those who could be proved to have seen the decretal of Siricius.

The further career of Vigilantius and his sectaries is lost in the darkness and confusion attendant upon the ravages of the Alans and Vandals who overran Gaul during the following year. We only know that Sulpicius and Exuperius, frightened by the violence of Jerome and the authority of Innocent, abandoned their protégé, and we can presume that, during the period of wild disorder which followed the irruption of the Barbarians, what little protection Rome could afford was too consoling to the afflicted churches for them to risk its withdrawal by resisting on any point the daily increasing pretensions of the Apostolic See to absolute command.¹³⁰

The victory was won, for with the death of Vigilantius and Jovinian ended the last organized and acknowledged attempt to stay the progress of celibacy in the Latin church, until centuries later, when the regulation was already too ancient and too well supported by tradition and precedent to be successfully called in question.

In Africa we find no trace of open resistance to the introduction of the rule, though time was evidently required to procure its enforcement. We have seen that Siricius, in 386, addressed an appeal to the African bishops. To this they responded by holding a council in which they agreed “*conscriptio quadam*” that chastity should be preserved by the three higher orders. This apparently was not conclusive, for in 390 another council was held in which Aurelius, Bishop of Carthage, again introduced the subject. He recapitulated their recent action, urged that the teaching of the Apostles and ancient usage required the observance of the rule, and obtained the assent of his brother prelates to the separation from their wives of those who were concerned in administering the sacraments.¹³¹ The form of these proceedings shows that it was an innovation, requiring deliberation and the assent of the ecclesiastics present, not a simple affirmation of a traditional and unalterable point of discipline, and, moreover, no penalty is mentioned for disobedience. Little respect, probably, was paid to the new rule. The third and fourth councils of Carthage, held in 397 and 398, passed numerous canons relating to discipline, prescribing minutely the qualifications and duties of the clergy, and of the votaries of the monastic profession. The absence from among these canons of any allusion to enforced celibacy would therefore appear to prove that it was still left to the conscience of the individual. If this be so, the triumph of the sacerdotal party was not long delayed, as might be expected from the rising influence and authority of St. Augustin, whose early Manichæism led him, after his conversion, to be one of the most enthusiastic admirers and promoters of austere asceticism. We may not unreasonably assume that it was through his prompting that his friend St. Aurelius, at the fifth council of Carthage in 401, proposed a canon, which was adopted, ordering the separation of the married clergy of the higher grades from their wives, under pain of deprivation of office.¹³² As before, the form of the canon shows it to be an innovation.

That the rule was positively adopted and frequently submitted to is shown by St. Augustin, who, in his treatise against second marriages, states that, in arguing with those desirous of entering upon those unhallowed unions, he was accustomed to strengthen his logic by citing the continence of the clergy, who, however unwillingly they had in most cases been forced to undertake the burden, still, by the aid of God, were enabled to endure it

to the end.¹³³ Yet it is evident that its enforcement was attended with many difficulties and much opposition, for, twenty years later, at another council of Carthage, we find Faustinus, the Papal Legate, proposing that the three higher orders shall be separated from their wives, to which the fathers of the council somewhat evasively replied that those who were concerned in the ministry of the altar should be chaste in all things. No attempt, however, was apparently made to strengthen the resolution by affixing a penalty for its infringement. It was a simple declaration of opinion, and nothing more.¹³⁴

Symptoms of similar difficulty in the rigid enforcement of the canon are observable elsewhere. The proceedings of the first council of Toledo, held in the year 400, shows not only that it was a recent innovation which continued to be disregarded, but that it had given rise to a crowd of novel questions which required imperatively to be settled, as to the status of the several grades of clerks who were guilty of various forms of disobedience¹³⁵—the prototype and exemplar of innumerable similar attempts at legislation which continued for more than a thousand years to occupy a good part of the attention of almost every council and synod. The prelates of Cis-Alpine Gaul, assembled in the council of Turin in 401, could only be brought to pronounce incapable of promotion those who contravened the injunction which separated them from their wives.¹³⁶ The practical working of this was to permit those to retain their wives who were satisfied with the grade to which they had attained. Thus the priest, who saw little prospect of elevation to the episcopate, might readily console himself with the society of his wife, while the powerful influence of the wives would be brought to bear against the promptings of ambition on the part of their husbands. The punishment thus was heaviest on the lower grades and lightest on the higher clergy, whose position should have rendered the sin more heinous—in fact, the bishop, to whom further promotion was impossible, escaped entirely from the penalty.

Even as late as 441 the first council of Orange shows how utterly the rule had been neglected by ordering that for the future no married man should be ordained deacon without making promise of separation from his wife, for contravention of which he was to suffer degradation; while those who had previously been admitted to orders were only subjected to the canon of the

council of Turin, incurring merely loss of promotion.¹³⁷ This evidently indicates that the regulation was a novelty, for it admits the injustice of subjecting to the rigor of the canon those who had taken orders without being aware of the obligations incurred; and it is a fair conclusion to suppose that this was a compromise by which the existing clergy gave their assent to the rule for the benefit of their successors, provided that they themselves escaped its full severity. In fact, it seemed to be impossible to make the church of Gaul accept the rule of discipline. About 459, we find Leo I., in answer to some interrogatories of Rusticus, Bishop of Narbonne, laboriously explaining that deacons and subdeacons, as well as bishops and priests, must treat their wives as sisters.¹³⁸ Rusticus had evidently asked the question, and Leo expresses no surprise at his ignorance.

The Irish Church, founded about the middle of the fifth century, although it was to a great extent based on monachism, apparently did not at first order the separation of the sexes. A century later an effort seems to have been made in this direction; but the canons of a synod held in the early part of the eighth century show that priests at that time were not prevented from having wives.¹³⁹

Even where the authority of the decretals of Siricius and Innocent was received with respectful silence, it was not always easy to enforce their provisions. An epistle of Innocent to the bishops of Calabria shows that, within territory depending strictly upon Rome itself, a passive resistance was maintained, requiring constant supervision and interference to render the rule imperative. Some priests, whose growing families rendered their disregard of discipline as unquestionable as it was defiant, remained unpunished. Either the bishops refused to execute the laws, or their sympathies were known to be with the offenders, for the pious layman whose sensibilities were wounded by the scandal felt himself obliged to appeal to the Pope. Innocent accordingly ordered the accused to be tried and to be expelled, while he expressed no little surprise at the negligence of the prelates who were so remiss.¹⁴⁰ It is more difficult to understand the edict of 420, issued by Honorius, to which allusion has already been made (p. 55). This law expressly declares that the desire for purity does not require the separation of wives whose marriage took place before the ordination of their husbands.

These disconnected attempts at resistance were unsuccessful. Sacerdotalism triumphed, and the rule which forbade marriage to those in orders, and separated husband and wife, when the former was promoted to the ministry of the altar, became irrevocably incorporated in the canon law. Throughout the struggle the Papacy had a most efficient ally in the people. The holiness and the necessity of absolute purity was so favorite a theme with the leading minds of the church, and formed so prominent a portion of their daily homilies and exhortations, that the popular mind could not but be deeply impressed with its importance, and therefore naturally exacted of the pastor the sacrifice which cost so little to the flock. An instance or two occurring about this period will show how vigilant was the watch kept upon the virtue of ecclesiastics, and how summary was the process by which indignation was visited upon even the most exalted, when suspected of a lapse from the rigid virtue required of them. Thirty years after the ordination of St. Brice, who succeeded St. Martin in the diocese of Tours, rumor credited him with the paternity of a child unseasonably born of a nun. In their wrath the citizens by common consent determined to stone him. The saint calmly ordered the infant, then in its thirtieth day, to be brought to him, and adjured it in the name of Christ to declare if it were his, to which the little one firmly replied "Thou art not my father!" The people, attributing the miracle to magic, persisted in their resolution, when St. Brice wrapped a quantity of burning coals in his robe, and pressing the mass to his bosom carried it to the tomb of St. Martin, where he deposited his burden, and displayed his robe uninjured. Even this was insufficient to satisfy the outraged feelings of the populace, and St. Brice deemed himself fortunate in making his escape uninjured, when a successor was elected to the bishopric.¹⁴¹ Somewhat similar was the case of St. Simplicius, Bishop of Autun. Even as a layman, his holy zeal had led him to treat as a sister his beautiful wife, who was inspired with equal piety. On his elevation to the episcopate, still confident of their mutual self-control, she refused to be separated from him. The people, scandalized at the impropriety, and entertaining a settled incredulity as to the superhuman virtue requisite to such restraint, mobbed the bishop's dwelling, and expressed their sentiments in a manner more energetic than respectful. The saintly virgin called for a portable furnace full of fire, emptied its contents into her robe, and held it uninjured for an hour, when she transferred the ordeal to her husband, saying that the trial was as nothing to the flames through which

they had already passed unscathed. The result with him was the same, and the people retired, ashamed of their unworthy suspicions.¹⁴² Gregory of Tours, who relates these legends, was sufficiently near in point of time for them to have an historical value, even when divested of their miraculous ornaments. They bring before us the popular tendencies and modes of thought, and show us how powerful an instrument the passions of the people became, when skilfully aroused and directed by those in authority.

The Western church was thus at length irrevocably committed to the strict maintenance of ecclesiastical celibacy, and the labors of the three great Latin Fathers, Jerome, Ambrose, and Augustin, were crowned with success. It is perhaps worth while to cast a glance at such evidences as remain to us of the state of morals about this period and during the fifth century, and to judge whether the new rule of discipline had resulted in purifying the church of the corruptions which had so excited the indignation of the anchorite of Bethlehem, and had nerved him in his fierce contests with those who opposed the enforced asceticism of the ministers of Christ.

How the morals of the church fared during the struggle is well exhibited in the writings of St. Jerome himself, as quoted above, describing the unlawful unions of the agapetæ with ecclesiastics and the horrors induced by the desire to escape the consequences of incautious frailty. Conclusions not less convincing may be drawn from his assertion that holy orders were sometimes assumed on account of the superior opportunities which clericulture gave of improper intercourse with women;¹⁴³ and from his description of the ecclesiastics, who passed their lives in female companionship, surrounded by young female slaves, and leading an existence which differed from matrimony only in the absence of the marriage ceremony.¹⁴⁴

But a short time after the recognition of the rule appeared the law of Honorius, promulgated in 420, to which reference has already been made. It is possible that the permission of residence there granted to the wives of priests may have been intended to act as a partial cure to evils caused by the enforcement of celibacy; and this is rendered the more probable, since other

portions of the edict show that intercourse with improper females had increased to such a degree that the censures of the church could no longer restrain it, and that an appeal to secular interference was necessary, by which such practices should be made a crime to be punished by the civil tribunals.¹⁴⁵ That even this failed lamentably in purifying the church may be gathered from the proceedings of the provincial councils of the period.

Thus, in 453, the council of Anjou repeats the prohibition of improper female intimacy, giving as a reason the ruin constantly wrought by it. For those who thereafter persisted in their guilt, however, the only penalty threatened was incapacity for promotion on the part of the lower grades, and suspension of functions for the higher¹⁴⁶—whence we may conclude that practically an option was afforded to those who preferred sin to ambition. The second council of Arles, in 443, likewise gives an insight into the subterfuges adopted to evade the rule and to escape detection.¹⁴⁷ About this period a newly-appointed bishop, Talasius of Angers, applied to Lupus of Troyes and Euphronius of Autun for advice concerning various knotty points, among which were the rules respecting the celibacy of the different grades. In their reply the prelates advised their brother that it would be well if the increase of priests' families could be prevented, but that such a consummation was almost impossible if married men were admitted to orders, and that if he wanted to escape ceaseless wrangling and the scandal of seeing children born to his priests, he had better ordain those only who were single.¹⁴⁸ The subject was one of endless effort. In fact, of the numerous councils whose canons have reached us, held in Gaul and Spain during the centuries which intervened until the invasion of the Saracens and the decrepitude of the Merovingian dynasty caused their discontinuance, there is scarcely one which did not feel the necessity of legislating on this delicate matter. It would be tedious and unprofitable to detail specifically the innumerable exhortations, threats, and ingenious devices resorted to in the desperate hope of enforcing obedience to the rules and of purifying the morals of the clergy. Suffice it to say that the constantly varying punishments enacted, the minute supervision ordered over every action of the priesthood, the constant attendance of witnesses whose inseparable companionship should testify to the virtue of each ecclesiastic, and the perpetual iteration of the rule in every conceivable shape, prove at once the hopelessness of the attempt, and the incurable nature of the disorders of

which the church was at once the cause and the victim. In short, this perpetual legislation frequently betrays the fact that it was not only practically impossible to maintain separation between the clergy and their wives, but that at times marriage was not uncommon even within the prohibited orders. [149](#)

Perhaps this may not move our surprise when we glance at the condition of morality existing throughout the Empire in the second quarter of the fifth century, as sketched by a zealous churchman of the period. Salvianus, Bishop of Marseilles, was a native of Trèves. Three times he witnessed the sack of that unfortunate city by the successive barbarian hordes which swept over Western Europe, and he lifts up his voice, like Jeremiah, to bewail the sins of his people, and the unutterable misfortunes which were the punishment but not the cure of those sins. Nothing can be conceived more utterly licentious and depraved than the whole framework of society as described by him, with such details as preclude us from believing that holy indignation or pious sensibility led him to exaggerate the outlines or to darken the shades of the picture. The criminal and frivolous pleasures of a decrepit civilization left no thought for the absorbing duties of the day or the fearful trials of the morrow. Unbridled lust and unblushing indecency admitted no sanctity in the marriage-tie. The rich and powerful established harems, in the recesses of which their wives lingered, forgotten, neglected, and despised. The banquet, the theatre, and the circus exhausted what little strength and energy were left by domestic excesses. The poor aped the vices of the rich, and hideous depravity reigned supreme and invited the vengeance of Heaven. Such rare souls as could remain pure amid the prevailing contamination would naturally take refuge in the contrast of severe asceticism, and resolutely seek absolute seclusion from a world whose every touch was pollution. The secular clergy, however, drawn from the ranks of a society so utterly corrupt, and enjoying the wealth and station which rendered their position an object for the ambition of the worldly, could not avoid sharing to a great extent the guilt of their flocks, whose sins were more easily imitated than eradicated. Nor does Salvianus confine his denunciations to Gaul and Spain. Africa and Italy are represented as even worse, the prevalence of unnatural crimes lending a deeper disgust to the rivalry in iniquity. Rome was the sewer of the nations, the centre of

abomination of the world, where vice openly assumed its most repulsive form, and wickedness reigned unchecked and supreme.

It is true that the descriptions of Salvianus are intended to include the whole body of the people, and that his special references to the church are but few. Those occasional references, however, are not of a nature to exempt it from sharing in the full force of his indignation. When he pronounces the Africans to be utterly licentious, he excepts those who have been regenerated in religion—but these he declares to be so few in number that it is difficult to believe them Africans. What hope, he asks, can there be for the people when even in the church itself the most diligent search can scarce discover one chaste amid so many thousands: and when imperial Carthage was tottering to its fall under the assaults of the besieging Vandals, he describes its clergy as wantoning in the circus and the theatre—those without falling under the sword of the barbarian, those within abandoning themselves to sensuality.¹⁵⁰ This, be it remembered, is that African church which had just been so carefully nurtured in the purest asceticism for thirty years, under the unremitting care of Augustin, who died while his episcopal city of Hippo was encircled with the leaguer of the Vandals.

Nor were these disorders attributable to the irruption of the Barbarians, for Salvianus sorrowfully contrasts their purity of morals with the reckless dissoluteness of the Romans. The respect for female virtue, inherent in the Teutonic tribes, has no warmer admirer than he, and he recounts with wonder how the temptations of luxury and vice, spread before them in the wealthy cities which they sacked, excited only their disgust, and how, so far from yielding to the allurements that surrounded them, they sternly set to work to reform the depravity of their new subjects, and enacted laws to repress at least the open manifestations which shocked their untutored virtue.

When corruption so ineradicable pervaded every class, we can scarce wonder that in the story of the trial of Sixtus III., in 440, for the seduction of a nun, when his accusers were unable to substantiate the charge, he is said to have addressed the synod assembled in judgment by repeating to them the story of the woman taken in adultery, and the decision of Christ. Whether it were intended to be regarded as a confession, or as a sarcasm on

the prelates around him, whom he thus challenged to cast the first stone, the tale whether true or false is symptomatic of the time.^{[151](#)}

As regards the East, if the accusations brought against Ibas, Metropolitan of Edessa, at the Synod of Berytus in 448,^{[152](#)} are worthy of credit, the Oriental church was not behind the West in the effrontery of sin.

VI. THE EASTERN CHURCH.

During the period which we have been considering, there had gradually arisen a divergence between the Christians of the East and of the West. The Arianism of Constantius opposed to the orthodoxy of Constantine lent increased development to the separation which the division of the Empire had commenced. The rapid growth of the New Rome founded on the shores of the Bosphorus gave to the East a political metropolis which rendered it independent of the power of Rome, and the patriarchate there erected absorbed to itself the supremacy of the old Apostolic Sees, which had previously divided the ecclesiastical strength of the East. In the West, the Bishop of Rome was unquestionably the highest dignitary, and when the separation relieved him of the rivalry of prelates equal in rank, he was enabled to acquire an authority over the churches of the Occident undreamed of in previous ages. As yet, however, there was little pretension of extending that power over the East, and though the ceaseless quarrels which raged in Antioch, Constantinople, and Alexandria enabled him frequently to intervene as arbiter, still he had not yet assumed the tone of a judge without appeal or of an autocratic lawgiver.

Though five hundred years were still to pass before the Greek schism formally separated Constantinople from the communion of Rome, yet already, by the close of the fourth century, the characteristics which ultimately led to that schism were beginning to develop themselves with some distinctness. The sacerdotal spirit of the West showed itself in the formalism which loaded religion with rules of observance and discipline enforced with Roman severity. The inquiring and metaphysical tendencies of the East discovered unnumbered doubtful points of belief, which were argued with exhaustive subtlety and supported by relentless persecution. However important it might be for any polemic to obtain for his favorite dogma the assent of the Roman bishop, whose decisions on such points thus constantly acquired increased authority, yet when the Pope undertook to issue laws and promulgate rules of discipline, whatever force they had was

restricted to the limits of the Latin tongue. Accordingly, we find that the decretals of Siricius and Innocent I. produced no effect throughout the East. Asceticism continued to flourish there as in its birthplace, but it was voluntary, and there is no trace of any official attempt to render it universally imperative. The canon of Nicæa of course was law, and the purity of the church required its strict observance, to avoid scandals and immorality;¹⁵³ but beyond this and the ancient rules excluding digami and prohibiting marriage in orders no general laws were insisted on, and each province or patriarchate was allowed to govern itself in this respect. How little the Eastern prelates thought of introducing compulsory celibacy is shown by the fact that at the second general council, held at Constantinople in 381, only four or five years before the decretals of Siricius, there is no trace of any legislation on the subject; and this acquires increased significance when we observe that although this council has always been reckoned Œcumenic, and has enjoyed full authority throughout the church universal, yet out of one hundred and fifty bishops who signed the acts, but one—a Spanish prelate—was from the West.

This avoidance of action was not merely an omission of surplusage. Had the disposition existed to erect the custom of celibacy into a law, there was ample cause for legislation on the subject. Epiphanius, who died in the year 403 at a very advanced age, probably compiled his “Panarium” not long after this period; he belonged to the extreme school of ascetics, and lost no opportunity of asserting the most rigid rule with regard to virginity and continence, which he considered to be the base and corner-stone of the church. While assuming celibacy to be the rule for all concerned in the functions of the priesthood, he admits that in many places it was not observed, on account of the degradation of morals or of the impossibility of obtaining enough ministers irreprehensible in character to satisfy the needs of the faithful.¹⁵⁴

That Epiphanius endeavored to erect into a universal canon rules only adopted in certain churches is rendered probable by an allusion of St. Jerome, who, in his controversy with Vigilantius, urged in support of celibacy the custom of the churches of the East (or Antioch), of Alexandria, and of Rome.¹⁵⁵ He thus omits the great exarchates of Ephesus, Pontus, and Thrace, as not lending strength to his argument. Of these the first is perhaps

explicable by the latitudinarianism of its metropolitan, Anthony, Bishop of Ephesus. At the council of Constantinople, held in 400, this prelate was accused of many crimes, among which were simony, the conversion to the use of his family of ecclesiastical property and even of the sacred vessels, and further, that after having vowed separation from his wife, he had had children by her.¹⁵⁶ Even Egypt, the nursery of monachism, affords a somewhat suspicious example in the person of Synesius, Bishop of Ptolemais. This philosophic disciple of Hypatia, when pressed to accept the bishopric, declined it on various grounds, among which was his unwillingness to be separated from his wife, or to live with her secretly like an adulterer, the separation being particularly objectionable to him, as interfering with his desire for numerous offspring.¹⁵⁷ Synesius, however, was apparently able to reconcile the incompatibilities, for after accepting the episcopal office, we find, when the Libyans invaded the Pentapolis and he stood boldly forth to protect his flock, that two days before an expected encounter, he confided to his brother's care his children, to whom he asked the transfer of that tender fraternal affection which he himself had always enjoyed.¹⁵⁸

It is easy to imagine what efforts were doubtless made to extend the rule and to render it as imperative throughout the East as it was becoming in the West, when we read the extravagant laudations of virginity uttered about this time by St. John Chrysostom, who lent the sanction of his great name and authority to the assertion that it is as superior to marriage as heaven is to earth, or as angels are to men.¹⁵⁹ Strenuous as these efforts may have been, however, they have left no permanent record, and their effect was short-lived. Within thirty years of the time when Jerome quoted the example of the eastern churches as an argument against Vigilantius, Socrates chronicles as a novelty the introduction into Thessalia of compulsory separation between married priests and their wives, which he says was commanded by Heliodorus, Bishop of Trica, apparently to compensate for the amatory character of the "*Æthiopica*," written in his youth. The same rule, Socrates informs us, was observed in Greece, Macedonia, and Thessalonica, but throughout the rest of the East he asserts that such separation was purely voluntary, and even that many bishops had no scruple in maintaining ordinary intercourse with their wives¹⁶⁰—a statement easy to be believed in view of the complaints of St. Isidor of

Pelusium, about the same time, that the rules of the church enjoining chastity received little respect among the priesthood.^{[161](#)}

The influence of Jerome, Chrysostom, and other eminent churchmen, the example of the West, and the efforts of the Origenians in favor of philosophic asceticism, doubtless had a powerful effect during the first years of the fifth century in extending the custom, but they failed in the endeavor to render it universal and obligatory, and the testimony of Socrates shows how soon even those provinces which adopted it in Jerome's time returned to the previous practice of leaving the matter to the election of the individual. The East thus preserved the traditions of earlier times, as recorded in the Apostolic Constitutions and Canons, prohibiting marriage in orders and the ordination of digami, but imposing no compulsory separation on those who had been married previous to ordination.

Even these rules required to be occasionally enunciated in order to maintain their observance. In 530 a constitution of Justinian calls attention to the regulation prohibiting the marriage of deacons and subdeacons, and in view of the little respect paid to it, the Emperor proceeds to declare the children of such unions spurious (not even *nothi* or *naturales*) and incompetent to inherit anything; the wife is likewise incapacitated from inheritance, and the whole estate of the father is escheated to the church—the severity of which may perhaps be a fair measure of the extent of the evil which it was intended to repress.^{[162](#)} Five years later Justinian recurs to the subject, and lays down the received regulations in all their details. Any one who keeps a concubine, or who has married a divorced woman or a second wife, is to be held ineligible to the diaconate or priesthood. Any member of those orders or of the subdiaconate who takes a wife or a concubine, whether publicly or secretly, is thereupon to be degraded and to lose all clerical privileges; and though the strongest preference is expressed for those who though married preserve strict continence, the very phrase employed indicates that this was altogether a matter of choice, and that previous conjugal relations were not subject to any legislative interference.^{[163](#)} These same regulations were repeated some ten years later in a law, promulgated about 545,^{[164](#)} which was preserved throughout the whole period of Greek jurisprudence, being inserted by Leo the Philosopher

in his Basilica,¹⁶⁵ quoted by Photius in the Nomocanon, and referred to as still in force by Balsamon in the thirteenth century.¹⁶⁶ At the same time Justinian tacitly admits the failure of previous efforts when he adds a provision by which an unmarried postulant for the diaconate is obliged to pledge himself not to marry, and any bishop permitting such marriage is threatened with degradation.¹⁶⁷

Bishops, however, were subjected to the full severity of the Latin discipline. As early as 528, Justinian ordered that no one should be eligible to the episcopate who was burdened with either children or grandchildren, giving as a reason the engrossing duties of the office, which required that the whole mind and soul should be devoted to them, and still more significantly hinting the indecency of converting to the use of the prelate's family the wealth bestowed by the faithful on the church for pious uses and for charity.¹⁶⁸ It is probable that this was not strictly observed, for in 535, when repeating the injunction, and adding a restriction on conjugal intercourse, he intimates that no inquiry shall be made into infractions previously occurring, but that it shall be rigidly enforced for the future.¹⁶⁹ The decision was final as regards the absence of a wife, for it was again alluded to in 548, and that law is carried through the Nomocanon and Basilica.¹⁷⁰ The absence of children as a prerequisite to the episcopate, however, was not insisted upon so pertinaciously, for Leo the Philosopher, after the compilation of the Basilica, issued a constitution allowing the ordination of bishops who had legitimate offspring, arguing that brothers and other relatives were equally prone to withdraw them from the duties of their position.¹⁷¹

It is not worth while to enter into the interminable controversy respecting the council held at Constantinople in 680, the canons of which were promulgated in 692, and which is known to polemics as the *Quinisext in Trullo*. The Greeks maintain that it was Œcumenic, and its legislation binding upon Christendom; the Latins, that it was provincial and schismatic; but whether Pope Agatho acceded to its canons or not; whether a century later Adrian I. admitted them, or whether their authentication by

the second council of Nicæa gave them authority over the whole church or not, are questions of little practical importance for our purpose, for they never were really incorporated into the law of the West, and they are only to be regarded as forming a portion of the received ecclesiastical jurisprudence of the East. In one sense, however, their bearing upon the Latin church is interesting, for, in spite of them, Rome maintained communion with Constantinople for more than a century and a half, and the schism which then took place arose from altogether different causes. In the West, therefore, celibacy was only a point of discipline, of no doctrinal importance, and not a matter of heresy, as we shall see it afterwards become under the stimulus afforded by Protestant controversy.

The canons of the Quinisext are very full upon all the questions relating to celibacy, and show that great relaxation had occurred in enforcing the regulations embodied in the laws of Justinian. Digami must have become numerous in the church, for the prohibition of their ordination is renewed, and all who had not released themselves from such forbidden unions by June 15th of the preceding year are condemned to suffer deposition. So marriage in orders had evidently become frequent, for all guilty of it are enjoined to leave their wives, when, after a short suspension, they are to be restored to their position, though ineligible to promotion.¹⁷² A much severer punishment is, however, provided for those who should subsequently be guilty of the same indiscretion, for all such infractions of the rule are visited with absolute deposition¹⁷³—thus proving that it had fallen into desuetude, since those who sinned after its restoration were regarded as much more culpable than those who had merely transgressed an obsolete law. Even bishops had neglected the restrictions imposed upon them by Justinian, for the council refers to prelates in Africa, Libya, and elsewhere, who lived openly with their wives; and although this is prohibited for the future under penalty of deposition, and although all wives of those promoted to the episcopate are directed to be placed in nunneries at a distance from their husbands, yet the remarkable admission is made that this is done for the sake of the people, who regarded such things as a scandal, and not for the purpose of changing that which had been ordained by the Apostles.¹⁷⁴

With regard to the future discipline of the great body of the clergy, the council, after significantly acknowledging that the Roman church required a

promise of abstinence from married candidates for the diaconate and priesthood, proceeds to state that it desires to adhere to the Apostolic canon by keeping inviolate the conjugal relations of those in holy orders, and by permitting them to associate with their wives, only stipulating for continence during the time devoted to the ministry of the sacraments. To put an end to all opposition to this privilege, deposition is threatened against those who shall presume to interfere between the clergy and their wives, and likewise against all who, under pretence of religion, shall put their wives away. At the same time, in order to promote the extension of the church, in the foreign provinces, this latter penalty is remitted, as a concession to the prejudices of the “Barbarians.”¹⁷⁵ How thoroughly in some regions sacerdotal marriage had come to be the rule we learn from a reference to Armenia, where the Levitical custom of the Hebrews was imitated, in the creation of a sacerdotal caste, transmitted from father to son, and confined to the priestly houses. This limitation is condemned by the council, which orders that all who are worthy of ordination shall be regarded as eligible.¹⁷⁶

The Eastern church thus formally and in the most solemn manner recorded its separate and independent discipline on this point, and refused to be bound by the sacerdotalism of Rome. It thus maintained the customs transmitted from the early period, when asceticism had commenced to show itself, but it shrank from carrying out the principles involved to their ultimate result, as was sternly attempted by the inexorable logic of Rome. The system thus laid down was permanent, for throughout the East the Quinisext was received unquestioningly as a general council, and its decrees were authoritative and unalterable. It is true that in the confusion of the two following centuries a laxity of practice gradually crept in, by which those who desired to marry were admitted to holy orders while single, and were granted two years after ordination during which they were at liberty to take wives, but this was acknowledged to be an abuse, and about the year 900 it was formally prohibited by a constitution of Leo the Philosopher.¹⁷⁷ Thus restored, the Greek church has preserved its early traditions unaltered to the present day. Marriage in orders is not permitted, nor are digami admissible, but the lower grades of the clergy are free to marry, nor are they separated from their wives when promoted to the sacred functions of the diaconate or priesthood. The bishops are selected from the regular clergy or

monks, and, being bound by the vow of chastity, are of course unmarried and unable to marry. Thus the legislation of Justinian is practically transmitted to the nineteenth century. Even this restriction on the freedom of marriage renders it difficult to preserve the purity of the priesthood, and the Greek church, like the Latin, is forced occasionally to renew the Nicene prohibition against the residence of suspected women.¹⁷⁸

The strongly marked hereditary tendency, which is so distinguishing a characteristic of mediæval European institutions has led, in Russia at least, since the time of Peter the Great, to the customary transmission of the priesthood, and even of individual churches, from father to son, thus creating a sacerdotal caste. To such an extent has this been carried that marriage is obligatory on the parish priest, and custom requires that the wife shall be the daughter of a priest. Some of the results of this are to be seen in a law of 1867, forbidding for the future the aspirant to a cure from marrying the daughter of his predecessor or undertaking to support the family of the late incumbent as a condition precedent to obtaining the preferment. It shows how entirely the duties of the clergy had been lost in the sense of property and hereditary right attaching to benefices, leading inevitably to the neglect or perfunctory performance of ecclesiastical duties.¹⁷⁹ We shall see hereafter how narrowly the Latin church escaped a similar transformation, and how prolonged was the struggle to avoid it.

One branch of the Eastern church, however, relaxed the rules of the Quinisext. In 431, Nestorius, Patriarch of Constantinople, was excommunicated for his heretical subtleties as to the nature of the Godhead in Christ. Driven out from the Empire by the orthodox authorities, his followers spread throughout Mesopotamia and Persia, where, by the end of the century, their efforts had gradually converted nearly the whole population. About the year 480, Barsuma, metropolitan of Nisibi, added to his Nestorian heresy the guilt of marrying a nun, when to justify himself he assembled a synod in which the privilege of marriage was granted not only to priests, but even to monks. In 485, Babueus, Patriarch of Seleucia, held a council which excommunicated Barsuma and condemned his licentious doctrines; but, about ten years later, a subsequent patriarch, Babeus, in the

council of Seleucia, obtained the enactment of canons conferring the privilege of marriage on all ranks of the clergy, from monk to patriarch. Some forty years later a debate recorded between the Patriarch Mar Aba and King Chosroes shows that repeated marriages were common among all orders, but Mar Aba subsequently issued a canon depriving patriarchs and bishops of the right, and subjecting them to the rules of the Latin and Greek churches.^{[180](#)}

The career of the Nestorians shows that matrimony is not incompatible with mission-work, for they were the most successful missionaries on record. They penetrated throughout India, Tartary, and China. In the latter empire they lasted until the thirteenth century; while in India they not improbably exercised an influence in modifying the doctrines of ancient Brahmanism,^{[181](#)} and the Portuguese discoverers in the fifteenth century found them flourishing in Malabar. So numerous were they that during the existence of the Latin kingdom of Jerusalem they are described, in conjunction with the monophysite sect of the Jacobines, as exceeding in numbers the inhabitants of the rest of Christendom.^{[182](#)}

Another segment of the Eastern church may properly receive attention here. The Abyssinians and Coptic Christians of Egypt can scarcely in truth be considered a part of the Greek church, as they are monophysite in belief, and have in many particulars adopted Jewish customs, such as circumcision, &c. Their observances as regards marriage, however, tally closely with the canons of the Quinisext, except that bishops are permitted to retain their wives. In the sixteenth century, Bishop Zaga Zabo, who was sent as envoy to Portugal by David, King of Abyssinia, left behind him a confession of faith for the edification of the curious. In this document he describes the discipline of his church as strict in forbidding the clericature to illegitimates; marriage is not dissolved by ordination, but second marriage, or marriage in orders, is prohibited, except under dispensation from the Patriarch, a favor occasionally granted to magnates for public reasons. Without such dispensation, the offender is expelled from the priesthood, while a bishop or other ecclesiastic convicted of having an

illegitimate child is forthwith deprived of all his benefices and possessions. Monasteries, moreover, were numerous and monachal chastity was strictly enforced.¹⁸³ These rules, I presume, are still in force. A recent traveller in those regions states that “if a priest be married previous to his ordination, he is allowed to remain so; but no one can marry after having entered the priesthood”—while a mass of superstitious and ascetic observances has overlaid religion, until little trace is left of original Christianity.¹⁸⁴

VII. MONACHISM.

The Monastic Orders occupy too prominent a place in ecclesiastical history, and were too powerful an instrument both for good and evil, to be passed over without some cursory allusion, although the secular clergy is more particularly the subject of the present sketch, and the rise and progress of monachism is a topic too extensive in its details to be thoroughly considered in the space which can be allotted to it.

In this, as in some other forms of asceticism, we must look to Buddhism for the model on which the Church fashioned her institutions. Ages before the time of Sakyamuni, the life of the anchorite had become a favorite mode of securing the *moksha*, or supreme good of absorption in Brahma. Buddhism, in throwing open the way of salvation to all mankind, popularized this, and thus multiplied enormously the crowd of mendicants, who lived upon the charity of the faithful and who abandoned all the cares and duties of life in the hope of advancing a step in the scale of being and of ultimately obtaining the highest bliss of admission to Nirvana. In the hopeless confusion of Hindu chronology, it is impossible to define dates with exactness, but we know that at a very early period these Bhikshus and Bhikshunis, or mendicants of either sex, were organized in monasteries (Viharas or Sangharamas) erected by the piety of the faithful, and were subjected to definite rules, prominent among which were those of poverty and chastity, which subsequently became the foundation of all the Western orders. Probably the oldest existing scripture of Buddhism is the Pratimoksha, or collection of rules for observance by the bhikshus, which tradition, not without probability, ascribes to Sakyamuni himself. In this, infraction of chastity falls under the first of the four Parajika rules; it is classed, with murder, among the most serious offences entailing excommunication and expulsion without forgiveness. The solicitation of a woman comes within the scope of the thirteen Sanghadisesa rules, entailing penance and probation, after which the offender may be absolved by an assembly of not less than twenty bhikshus. Other punishments are allotted

for every suspicious act, and the utmost care is shown in the regulations laid down for the minutest details of social intercourse between the sexes.¹⁸⁵

Under these rules, Buddhist monachism developed to an extent which more than rivals that of its Western derivative. The remains of the magnificent Viharas still to be seen in India testify at once to the enormous multitudes which found shelter in them and to the munificent piety of the monarchs and wealthy men who, as in Europe, sought to purchase the favor of Heaven by founding and enlarging these retreats for the devotee. In China, Buddhism was not introduced until the first century A.D., and yet, by the middle of the seventh century, in spite of repeated and severe persecutions, the number of monasteries already amounted to 3716, while two hundred years later the persecuting Emperor Wu-Tsung ordered the destruction of no less than 4600; and at the present day it is estimated that there are 80,000 Buddhist monks in the environs of Pekin alone. When, in the seventh century, Hiouen-Thsang visited India, he describes the Sangharama of Nalanda as containing ten thousand monks and novices; and the later pilgrim, Fah-Hian, found fifty or sixty thousand in the island of Ceylon. In the fourteenth century, the city of Ilchi, in Chinese Tartary, possessed fourteen monasteries, averaging three thousand devotees in each; while in Tibet, at the present time, there are in the vicinity of Lhasa twelve great monasteries, containing a population of 18,500 lamas. In Ladak, the proportion of lamas to the laity is as one to thirteen; in Spiti, one to seven; and in Burmah, one to thirty.¹⁸⁶ Great as were the proportions to which European monachism grew, it never attained dimensions such as these.

It was some time, however, before the intercourse between East and West led to the introduction of anchoritic and monastic customs. The first rudimentary development of a tendency in such direction is to be found in the vows, which, as stated in a previous section, had already, at an early period in the history of the church, become common among female devotees. In fact an order of widows, employed in charitable works and supported from the offerings of the faithful, was apparently one of the primitive institutions of the Apostles. To prevent any conflict between the claims of the world and of the church, St. Paul directs that they shall be childless and not less than sixty years of age, so that on the one hand there might be no neglect of the first duty which he recognized as owing to the

family, nor, on the other hand, that the devotee should be tempted by the flesh to quit the service which she had undertaken.¹⁸⁷

This admirable plan may be considered the germ of the countless associations by which the church has in all ages earned the gratitude of mankind by giving to Christianity its truest practical exposition. It combined a refuge for the desolate with a most efficient organization for spreading the faith and administering charity; and there was no thought of marring its utility by rendering it simply an instrument for exaggerating and propagating asceticism. St. Paul, indeed, expressly commands the younger ones to marry and bring up children;¹⁸⁸ and he could little have anticipated the time when this order of widows, so venerable in its origin and labors, would, by the caprice of ascetic progress, come to be regarded as degraded in comparison with the virgin spouses of Christ, who selfishly endeavored to purchase their own salvation by shunning all the duties imposed on them by the Creator.¹⁸⁹ Nor could he have imagined that, after eighteen centuries, enthusiastic theologians would seriously argue that Christ and his Apostles had founded regular religious orders, bound by the three customary vows of chastity, poverty, and obedience.¹⁹⁰

In the early church, as has been already shown, all vows of continence and dedication to the service of God were a matter of simple volition, not only as to their inception, but also as to their duration. The male or female devotee was at liberty to return to the world and to marry at any time;¹⁹¹ although during the purer periods of persecution, such conduct was doubtless visited with disapprobation and was attended with loss of reputation. As, moreover, there was no actual segregation from the world and no sundering of family ties, there was no necessity for special rules of discipline. When, under the Decian persecution, Paul the Thebæan, and shortly afterwards St. Antony, retired to the desert in order to satisfy a craving for ascetic mortification which could only be satiated by solitude, and thus unconsciously founded the vast society of Egyptian cenobites, they gave rise to what at length became a new necessity.¹⁹² The associations which gradually formed themselves required some government, and the institution of monachism became too important a portion of the church, both in numbers and influence, to remain long without rules of discipline to regulate its piety and to direct its powers. As yet, however, a portion of the

church, adhering to ancient tradition, looked reprovably on these exaggerated pietistic vagaries. Lactantius, for instance, in a passage written subsequent to the conversion of Constantine, earnestly denounces the life of a hermit as that of a beast rather than of a man, and urges that the bonds of human society ought not to be broken, since man cannot exist without his fellows.^{[193](#)}

It was in vain to attempt to stem the tide which had now fairly set in, nor is it difficult to understand the impulsion which drove so many to abandon the world. No small portion of pastoral duty consisted in exhortations to virginity, the praises of which were reiterated with ever increasing vehemence, and the rewards of which, in this world and the next, were magnified with constantly augmenting promises. Indeed, a perusal of the writings of that age seems to render it difficult to conceive how any truly devout soul could remain involved in worldly duties and pleasures, when the abandonment of all the ties and responsibilities imposed on man by Providence was represented as rendering the path to heaven so much shorter and more certain, and when every pulpit resounded with perpetual amplifications of the one theme. Equally efficacious with the timid and slothful was the prospect of a quiet retreat from the confusion and strife which the accelerating decline of the empire rendered every day wilder and more hopeless; while the crushing burdens of the state drove many, in spite of all the efforts of the civil power, to seek their escape in the exemptions accorded to those connected with the church. When to these classes are added the penitents—prototypes of St. Mary of Egypt, who retired to the desert as the only refuge from her profligate life, and for seventeen years waged an endless struggle with the burning passions which she could control but could not conquer—it is not difficult to estimate how vast were the multitudes unconsciously engaged in laying the foundations of that monastic structure which was eventually to overshadow all Christendom.^{[194](#)} Indeed, even the church itself at times became alarmed at the increasing tendency, as when the council of Saragossa, in 381, found it necessary to denounce the practice of ecclesiastics abandoning their functions and embracing the monastic life, which it assumes was done from unworthy motives.^{[195](#)}

Soon after his conversion, Constantine had encouraged the prevailing tendency by not only repealing the disabilities imposed by the old Roman law on those who remained unmarried, but by extending the power of making wills to minors who professed the intention of celibacy.¹⁹⁶ His piety and that of subsequent emperors speedily attributed to all connected with the church certain exemptions from the intolerable municipal burdens which were eating out the heart of the empire. An enormous premium was thus offered to swell the ecclesiastical ranks, while, as the number of the officiating clergy was necessarily limited, the influx would naturally flow into the mass of monks and nuns on whose increase there was no restriction, and whose condition was open to all, with but slender examination into the fitness of the applicant.¹⁹⁷ The rapidly increasing wealth of the church, and the large sums devoted to the maintenance of all orders of the clergy, offered additional temptations to those who might regard the life of the ascetic as the means of securing an assured existence of idleness, free from all care of the morrow. If, therefore, during a period when ridicule and persecution were the portion of those who vowed perpetual continence, it had been found impossible to avoid the most deplorable scandals,¹⁹⁸ it can readily be conceived that allurements such as these would crowd the monastic profession with proselytes of a most questionable character, drawn from a society so frightfully dissolute as that of the fourth century. The fierce declamations of St. Jerome afford a terrible picture of the disorders prevalent among those vowed to celibacy, and of the hideous crimes resorted to in order to conceal or remove the consequences of guilt, showing that the asceticism enforced by Siricius had not wrought any improvement.¹⁹⁹ The necessity of subjecting those bound by vows to established rules must therefore have soon become generally recognized; and although as we have already seen, they were free at any time to abandon the profession which they had assumed, still, while they remained as members, the welfare of the church would render all right-minded men eager to hail any attempt to establish rules of wholesome discipline. The first authoritative attempt to check disorders of the kind is to be found in the first council of Carthage, which in 348 insisted that all who, shunning marriage, elected the better lot of chastity, should live separate and solitary, and that none should have access to them under penalty of excommunication; and in 381 the Council of Saragossa sought to remedy

the evil at its root by forbidding virgins to take the veil unless they could furnish proof that they were at least forty years of age.^{[200](#)}

Although the church, in becoming an affair of state, had to a great extent sacrificed its independence, still it enjoyed the countervailing advantage of being able to call upon the temporal power for assistance when its own authority was defied, nor was it long in requiring this aid in the enforcement of its regulations. Accordingly, in 364, we find a law of Jovian forbidding, under pain of actual or civil death, any attempt to marry a sacred virgin,^{[201](#)} the extreme severity of which is the best indication of the condition of morals that could justify a resort to penalties so exaggerated. How great was the necessity for reform, and how little was actually accomplished by these attempts, may be estimated from an effort of the Council of Valence, in 374, to prevent those who married from being pardoned after too short a penance,^{[202](#)} and from the description which ten years later Pope Siricius gives of the unbridled and shameless license indulged in by both sexes in violation of their monastic vows.^{[203](#)}

Certain definite rules for the governance of these constantly increasing crowds of all stations, conditions, and characters, who were obviously so ill-fitted for the obligations which they had assumed, became of course necessary, but it was long before they assumed an irrevocable and binding force. The treatise which is known as the rule of St. Oriesis is only a long and somewhat mystic exhortation to asceticism. That which St. Pachomius is said to have received from an angel is manifestly posterior to the date of that saint, and probably belongs to the commencement of the fifth century. Minute as are its instructions, and rigid as are its injunctions respecting every action of the cenobite, yet it fully displays the voluntary nature of the profession and the lightness of the bonds which tied the monk to his order. A stranger applying for admission to a monastery was exposed only to a probation of a few days, to test his sincerity and to prove that he was not a slave; no vows were imposed, only his simple promise to obey the rules being required. If he grew tired of ascetic life, he departed, but he could not be again taken back without penitence and the consent of the

archimandrite.²⁰⁴ Even female travellers applying for hospitality were not refused admittance, and an inclosure was set apart for them, where they were entertained with special honor and attention; a place was likewise provided for them in which to be present at vespers.²⁰⁵

A similar system of discipline is manifested in the detailed statement of the regulations of the Egyptian monasteries left us by John Cassianus, Abbot of St. Victor of Marseilles, who died in 448. No vows or religious ceremonies were required of the postulant for admission. He was proved by ten days' waiting at the gate, and a year's probation inside, yet the slender tie between him and the community is shown by the preservation of his worldly garments, to be returned to him in case of his expulsion for disobedience or discontent, and also by the refusal to receive from him the gift of his private fortune—although no one within the sacred walls was permitted to call the simplest article his own—lest he should leave the convent and then claim to revoke his donation, as not unfrequently happened in institutions which neglected this salutary rule.²⁰⁶ So, in a series of directions for cenobitic life, appended to a curious Arabic version of the Nicene canons, the punishment provided for persistent disobedience and turbulence is expulsion of the offender from the monastery.²⁰⁷

As a temporary refuge from the trials of life, where the soul could be strengthened by seclusion, meditation, peaceful labor, and rigid discipline, thousands must have found the institution of Monachism most beneficial who had not resolution enough to give themselves up to a life of ascetic devotion and privation. These facilities for entrance and departure, however, only rendered more probable the admission of the turbulent and the worldly; and the want of stringent and effective regulations must have rendered itself every day more apparent, as the holy multitudes waxed larger and more difficult to manage, and as the empire became covered with wandering monks, described by St. Augustin as beggars, swindlers, and peddlers of false relics, who resorted to the most shameless mendacity to procure the means of sustaining their idle and vagabond life.²⁰⁸

It was this, no doubt, which led to the adoption and enforcement of the third of the monastic vows—that of obedience—as being the only mode by which during the period when residence was voluntary, the crowds of devotees could be kept in a condition of subjection. To what a length this

was carried, and how completely the system of religious asceticism succeeded in its object of destroying all human feeling, is well exemplified by the shining example of the holy Mucius, who presented himself for admission in a monastery, accompanied by his child, a boy eight years of age. His persistent humility gained for him a relaxation of the rules, and father and son were admitted together. To test his worthiness, however, they were separated, and all intercourse forbidden. His patience encouraged a further trial. The helpless child was neglected and abused systematically, but all the perverse ingenuity which rendered him a mass of filth and visited him with perpetual chastisement failed to excite a sign of interest in the father. Finally the abbot feigned to lose all patience with the little sufferer's moans, and ordered Mucius to cast him in the river. The obedient monk carried him to the bank and threw him in with such promptitude that the admiring spectators were barely able to rescue him. All that is wanting to complete the hideous picture is the declaration of the abbot that in Mucius the sacrifice of Abraham was completed.²⁰⁹ This epitomizes the whole system—the transfer to man of the obedience due to God—and shows how little, by this time, was left of the hopeful reliance on a beneficent God which distinguished the primitive church, and which led Athenagoras, in the second century, to argue from the premises “God certainly impels no one to those things which are unnatural.”

The weaker sex, whether from the greater value attached to the purity of woman or from her presumed frailty, as well as from some difference in the nature of the engagement entered into, was the first to become the subject of distinct legislation, and the frequency of the efforts required shows the difficulty of enforcing the rule of celibacy and chastity. Allusion has already been made to a law of Jovian which, as early as 364, denounced the attempt to marry a nun as a capital crime. Subsequent canons of the church show that this was wholly ineffectual. The council of Valence, in 374, endeavored to check such marriages. The synod of Rome, in 384, alludes with horror to these unions, which it stigmatizes as adultery, and drawing a distinction between virgins professed and those who had taken the veil, it prescribes an indefinite penance before they can be received back into the church, but at the same time it does not venture to order their separation from their husbands.²¹⁰ A year later, the bolder Siricius commands both monks and nuns guilty of unchastity to be imprisoned, but he makes no allusion to

marriage.²¹¹ Notwithstanding the fervor of St. Augustin's admiration for virginity and the earnestness with which he waged war in favor of celibacy, he pronounces that the marriage of nuns is binding, ridicules those who consider it as invalid, and deprecates the evil results of separating man and wife under such circumstances, but yet his asceticism, satisfied with this concession to common sense, pronounces such unions to be worse than adulterous.²¹² From this it is evident that these infractions of discipline were far from uncommon, and that the stricter churchmen already treated such marriages as null and void, which resulted in the husbands considering themselves at liberty to marry again. Such view of monastic vows was not sustained by the authorities of the church, for about the same period Innocent I., like St. Augustin, while condemning such marriages as worse than adulterous, admitted their validity by refusing communion to the offenders until one of the partners in guilt should be dead; and, like the synod of 384, he considered the transgression as somewhat less culpable in the professed virgin than in her who had consummated her marriage with Christ by absolutely taking the veil.²¹³ It was probably this assumed marriage with Christ—a theory which St. Cyprian shows to be as old as the third century, and which is very strongly stated by Innocent—which rendered the church so much more sensitive as to the frailty of the female devotees than to that of the men. As yet, however, the stability of such marriages was generally accepted throughout the church, for, a few years before the epistle of Innocent we find it enunciated by the first council of Toledo, which decided that the nun who married was not admissible to penitence during the life of her husband, unless she separated herself from him.²¹⁴

It is evident from all this that an effort had been made to have such marriages condemned as invalid, and that it had failed. We see, however, that the lines had gradually been drawn more tightly around the monastic order, that the vows could no longer be shaken off with ease, and that there was a growing tendency to render the monastic character ineffaceable when once assumed. Towards the middle of the fifth century, however, a reaction took place, possibly because the extreme views may have been found impracticable. Thus Leo I. treats recalcitrant cenobites with singular tenderness. He declares that monks cannot without sin abandon their profession, and therefore that he who returns to the world and marries must

redeem himself by penitence, for however honorable be the marriage-tie and the active duties of life, still it is a transgression to desert the better path. So professed virgins, who throw off the habit and marry, violate their duty, and those who in addition to this have been regularly consecrated commit a great crime—and yet no further punishment is indicated for them;²¹⁵ and the little respect still paid to the indelible character claimed for monachism is shown by the manner in which the civil power was ready to interfere for the purpose of putting an end to some of the many abuses arising from monastic institutions. In 458 Majorian promulgated a law in which he inveighs with natural indignation against the parents who, to get rid of their offspring, compel their unhappy daughters to enter convents at a tender age, and he orders that, until the ardor of the passions shall be tempered by advancing years, no vows shall be administered. The minimum age for taking the veil is fixed at forty years and stringent measures are provided for insuring its observance. If infringed by order of the parents, or by an orphan girl of her own free will, one-third of all the possessions of the offender is confiscated to the state, and the ecclesiastics officiating at the ceremony are visited with the heavy punishment of proscription. A woman forced into a nunnery, if her parents die before she reaches the age of forty, is declared to be free to leave it and to marry, nor can she be disinherited thereafter.²¹⁶ Fruitless as this well-intentioned effort proved, it is highly suggestive as to the wrongs which were perpetrated under the name of religion, the stern efforts felt to be requisite for their prevention, and the power exercised to annul the vows.

In the East, the tendency was to give a more rigid and unalterable character to the vows, nor is it difficult to understand the cause. Both church and state began to feel the necessity of reducing to subjection under some competent authority the vast hordes of idle and ignorant men who had embraced monastic life. In the West, monachism was as yet in its infancy, and was to be stimulated rather than to be dreaded, but it was far otherwise in the East, where the influence of the ascetic ideas of India was much more direct and immediate. The examples of Antony and Pachomius had brought them innumerable followers. The solitudes of the deserts had become

peopled with vast communities, and as the contagion spread, monasteries arose everywhere and were rapidly filled and enlarged.²¹⁷ The blindly bigoted and the turbulently ambitious found a place among those whose only aim was retirement and peace; while the authority wielded by the superior of each establishment, through the blind obedience claimed under monastic vows, gave him a degree of power which rendered him not only important but dangerous. The monks thus became in time a body of no little weight which it behooved the church to thoroughly control, as it might become efficient for good or evil. By encouraging and directing it, she gained an instrument of incalculable force, morally and physically, to consolidate her authority and extend her influence. How that influence was used, and how the monks became at times a terror even to the state is written broadly on the history of the age. Even early in the fifth century the hordes of savage Nitrian cenobites were the janizaries of the fiery Cyril, with which he lorded it over the city of Alexandria, and almost openly bade defiance to the imperial authority. The tumult in which Orestes nearly lost his life, the banishment of the Jews, and the shocking catastrophe of Hypatia show how dangerous an element to society they were even then, when under the guidance of an able and unscrupulous leader.²¹⁸ So the prominent part taken by the monks in the deplorable Nestorian and Eutychian controversies, the example of the Abbot Barsumas at the Robber Synod in Ephesus, the exploits of Theodosius of Jerusalem and Peter of Antioch, who drove out their bishops and usurped the episcopal chairs, the career of Eutyches himself, the bloodthirsty rabble of monks who controlled the synod of Ephesus and endeavored to overawe that of Chalcedon, and, in the succeeding century, the insurrections against the Emperor Anastasius which were largely attributed to their efforts—all these were warnings not lightly to be neglected. The monks, in fact, were fast becoming not only disagreeable but even dangerous to the civil power; their organization and obedience to their leaders gave them strength to seriously threaten the influence even of the hierarchy, and the effort to keep them strictly under subjection and within their convent walls became necessary to the peace of both church and state.

At the council of Chalcedon, in 451, the hierarchy had their revenge for the insults which they had suffered two years before in the Robber Synod. A large portion of the monks, infected with Eutychianism, came into direct

antagonism with the bishops, whom they defied. With the aid of the civil power, the bishops triumphed, and endeavored to put an end for the future to monastic insubordination, by placing the monasteries under the direct control and supervision of the secular prelates. A series of canons was adopted which declared that monks and nuns were not at liberty to marry; but while excommunication was the punishment provided for the offence, power was given to the bishops to extend mercy to the offenders. At the suggestion of the Emperor Marcian, the council deplored the turbulence of the monks who, leaving their monasteries, stirred up confusion everywhere, and it commanded them to devote themselves solely to prayer and fasting in the spot which they had chosen as a retreat from the world. It forbade them to abandon the holy life to which they had devoted themselves, and pronounced the dread sentence of the anathema on the renegades who refused to return and undergo due penance. No monastery was to be founded without the license of the bishop of the locality, and he alone could give permission to a monk to leave it for any purpose.^{[219](#)}

This legislation was well adapted to the end in view, but the evil was too deep-seated and too powerful to be thus easily eradicated. Finding the church unable to enforce a remedy, the civil power was compelled to intervene. As early as 390 Theodosius the Great had ordered the monks to confine themselves strictly to deserts and solitudes.^{[220](#)} Two years later he repealed this law and allowed them to enter the cities.^{[221](#)} This laxity was abused, and in 466 the Emperors Leo and Anthemius issued an edict forbidding for the future all monks to go beyond the walls of their monasteries on any pretext, except the apocrisarii, or legal officers, on legitimate business alone, and these were strictly enjoined not to engage in religious disputes, not to stir up the people, and not to preside over assemblages of any nature.^{[222](#)}

History shows us how little obedience this also received, nor is it probable that much more attention was paid to the imperial rescript when, in 532, Justinian confirmed the legislation of his predecessors, and added provisions forbidding those who had once taken the vows from returning to the world under penalty of being handed over to the *curia* of their municipality, with confiscation of their property, and personal punishment if penniless.^{[223](#)} Had the effort then been successful, he would not have been

under the necessity of renewing it in 535 by a law making over to the monastery, by way of satisfaction to God, the property of any monk presuming to abandon a life of religion and returning to the cares of the world.²²⁴ The prevalent laxity of manners is further shown by another provision according to which the monk who received orders was not allowed to marry, even if he entered grades in which marriage was permitted to the secular clergy, the penalty for taking a wife or a concubine being degradation and dismissal, with incapacity for serving the state.²²⁵ Ten years later, further legislation was found necessary, and at length the final expedient was hit upon, by which the apostate monk was handed over to the bishop to be placed in a monastery, from which if he escaped again he was delivered to the secular tribunal as incorrigible.²²⁶ The trouble was apparently incurable. Three hundred and fifty years later, Leo the Philosopher deploras it, and orders all recalcitrant monks to be returned to their convents as often as they may escape. As for the morals of monastic life, it may be sufficient to refer to the regulation of St. Theodore Studita, in the ninth century, prohibiting the entrance of even female animals.²²⁷

Thus gradually the irrevocable nature of monastic vows became established in the East, more from reasons of state than from ecclesiastical considerations. In the West, matters were longer in reaching a settlement, and the causes operating were somewhat different. Monachism there had not become a terror to the civil power, and its management was left to the church; yet, if its influence was insufficient to excite tumults and seditions, it was none the less disorganized, and its disorders were a disgrace to those on whom rested the responsibility.

The Latin church was not by any means insensible to this disgrace, nor did it underrate the importance of rendering the vows indissoluble, of binding its servants absolutely and forever to its service, and of maintaining its character and influence by endeavoring to enforce a discipline that should insure purity. During the period sketched above, and for the two following centuries, there is scarcely a council which did not enact canons showing at once the persistent effort to produce these results and the almost

insurmountable difficulty of accomplishing them. It would lead us too far to enter upon the minutiae of these perpetually reiterated exhortations and threats, or of the various expedients which were successively tried. Suffice it to say that the end in view was never lost sight of, while the perseverance of the wrongdoer seems to have rivalled that of the disciplinarian. The anvil bade fair to wear out the hammer, while the confusion and lawlessness of those dismal ages gave constantly increasing facilities to those who desired to escape from the strictness of the ascetic life to which they had devoted themselves. Thus arose a crowd of vagabond monks, *gyrovagi*, *acephali*, *circilliones*, *sarabaitæ*, who, without acknowledging obedience to any superior, or having any definite place of abode, wandered over the face of the country, claiming the respect and immunities due to a sacred calling, for the purpose of indulging in an idle and dissolute life—vagrants of the worst description, according to the unanimous testimony of the ecclesiastical authorities of the period.^{[228](#)}

Thus, up to the middle of the fifth century, no regular system of discipline had been introduced in the monastic establishments of the Latin church. About that period Cassianus, the first abbot of St. Victor of Marseilles, wrote out, for the benefit of the ruder monasticism of the West, the details of discipline in which he had perfected himself among the renowned communities of the East. He deplores the absence of any fixed rule in the Latin convents, where every abbot governed on the plan which suited his fancy; where more difficulty was found in preserving order among two or three monks than the Abbot of Tabenna in the Thebaïd experienced with the flock of five thousand committed to his single charge; and where each individual retained his own private hoards, which were carefully locked up and sealed to keep them from the unscrupulous covetousness of his brethren.^{[229](#)} How little all these efforts accomplished is clearly manifested when, in 494, we find Gelasius I. lamenting the incestuous marriages which were not uncommon among the virgins dedicated to God, and venturing only to denounce excommunication on the offenders, unless they should avert it by undergoing public penance. As for widows who married after professing chastity, he could indicate no earthly chastisement, but only held out to them the prospect of eternal reward or punishment, and left it for them to decide whether they would seek or abandon the better part.^{[230](#)} Still, the irrevocable nature of the vow of

celibacy was so little understood or respected that in 502 Cæsarius, who had just been translated from the abbacy of a monastery to the bishopric of Arles, wrote to Pope Symmachus asking him to issue a precept forbidding marriage to nuns, to which the pontiff promptly acceded.^{[231](#)}

A new apostle was clearly needed to aid the organizing spirit of Rome in her efforts to regulate the increasing number of devotees, who threatened to become the worst scandal of the church, and who could be rendered so efficient an instrument for its aggrandizement. He was found in the person of St. Benedict of Nursia, who, about the year 494, at the early age of sixteen, tore himself from the pleasures of the world, and buried his youth in the solitudes of the Latian Apennines. A nature that could wrench itself away from the allurements of a splendid career dawning amid the blandishments of Rome was not likely to shrink from the austerities which awe and attract the credulous and the devout. Tempted by the Evil Spirit in the guise of a beautiful maiden, and finding his resolution on the point of yielding, with a supreme effort Benedict cast off his simple garment and threw himself into a thicket of brambles and nettles, through which he rolled until his naked body was lacerated from head to foot. The experiment, though rude, was eminently successful; the flesh was effectually conquered, and Benedict was never again tormented by rebellious desires.^{[232](#)} A light so shining was not created for obscurity. Zealous disciples assembled around him, attracted from distant regions by his sanctity, and after various vicissitudes he founded the monastery of Monte Casino, on which for a thousand years were lavished all that veneration and munificence could accumulate to render illustrious the birthplace and capital of the great Benedictine Order.

The rule promulgated by Benedict, which virtually became the established law of Latin Monachism, shows the more practical character of the western mind. Though pervaded by the austere asceticism, yet labor, charity, and good works occupy a much more prominent place in its injunctions than in the system of the East. Salvation was not to be sought simply by abstinence and mortification, and the innate selfishness of the monastic principle was relaxed in favor of a broader and more human view of the duties of man to his Creator and to his fellows. This gave to the institution a firmer hold on the affections of mankind and a more enduring

vitality, which preserved its fortunes through the centuries, in spite of innumerable aberrations and frightful abuses.

Still there were as yet no irrevocable vows of poverty, chastity, and obedience exacted of the novice. After a year of probation he promised, before God and the Saints, to keep the Rule under pain of damnation, and he was then admitted with imposing religious ceremonies. His worldly garments were, however, preserved, to be returned to him in case of expulsion, to which he was liable if incorrigibly disobedient. If he left the monastery, or if he was ejected, he could return twice, but after the third admission, if he again abandoned the order, he was no longer eligible.^{[233](#)} Voluntary submission was thus the corner-stone of discipline, and there was nothing indelible in the engagement which bound the monk to his brethren.

Contemporary with St. Benedict was St. Cæsarius of Arles, whose Rule has been transmitted to us by his nephew, St. Tetradius. It is very short, but is more rigid than that of Benedict, inasmuch as it requires from the applicant the condition of remaining for life in the convent, nor will it permit his assumption of the habit until he shall have executed a deed bestowing all his property either on his relatives or on the establishment of his choice, thus insuring the rule of poverty, and depriving him of all inducement to retire.^{[234](#)}

The Rule of St. Benedict, however, overcame all rivalry, and was at length universally adopted; Charlemagne, indeed, inquired in 811 whether there could be any monks except those who professed obedience to it.^{[235](#)} Under it were founded the innumerable monasteries which sprang up in every part of Europe, and were everywhere the pioneers of civilization; which exercised a more potent influence in extending Christianity over the Heathen than all other agencies combined; which carried the useful arts into barbarous regions, and preserved to modern times whatever of classic culture has remained to us. If they were equally efficient in extending the authority of the Roman curia, and in breaking down the independence of local and national churches, it is not to be rashly assumed that even that result was a misfortune, when the anarchical tendencies of the Middle Ages were to be neutralized principally by the humanizing force of religion, and consolidation was requisite to carry the church through the wilderness. Until the thirteenth century the Benedictines were practically without rivals,

and their numbers and holiness may be estimated by the fact that in the fifteenth century one of their historians computed that the order had furnished fifty-five thousand five hundred and five blessed members to the calendar of saints.^{[236](#)}

Yet it could not but be a scandal to all devout minds that a man who had once devoted himself to religious observances should return to the world. Not only did it tend to break down the important distinction now rapidly developing itself between the clergy and the laity, but the possibility of such escape interfered with the control of the church over those who formed so large a class of its members, and diminished their utility in aiding the progress of its aggrandizement. We cannot be surprised, therefore, that within half a century after the death of St. Benedict, among the reforms energetically inaugurated by St. Gregory the Great, in the first year of his pontificate, was that of commanding the forcible return of all who abandoned their profession—the terms of the decretal showing that no concealment had been thought necessary by the renegades in leading a secular life and in publicly marrying.^{[237](#)} Equally determined were his efforts to reform the abuses which had so relaxed the discipline of some monasteries that women were allowed perfect freedom of access, and the monks contracted such intimacy with them that they openly acted as godfathers to their children;^{[238](#)} and when, in 601, he learned that the monks of St. Vitus, on Mount Etna, considered themselves at liberty to marry, apparently without leaving their convent, he checked the abuse by the most prompt and decided commands to the ecclesiastical authorities of Sicily.^{[239](#)}

By the efforts of Gregory the monk was thus, in theory at least, separated irrevocably from the world, and committed to an existence which depended solely upon the church. Cut off from family and friends, the door closed behind him forever, and his only aspirations, beyond his own personal wants and hopes, could but be for his abbey, his order, or the church, with which he was thus indissolubly connected. There was one exception, however, to this general rule. No married man was allowed to become a monk unless his wife assented, and likewise became a nun. The marriage-tie was too sacred to be broken, unless both parties agreed simultaneously to embrace the better life. Thus, on the complaint of a wife, Gregory orders her husband to be forcibly removed from the monastery which he had

entered and to be restored to her. We shall see hereafter how entirely the church in time outgrew these scruples, and how insignificant the sacrament of marriage became in comparison with that of ordination or the vow of religion.^{[240](#)}

The theory of perpetual segregation from the world was thus established, and it accomplished at last the objects for which it was designed, but it was too much in opposition to the invincible tendencies of human nature to be universally enforced without a struggle which lasted for nearly a thousand years. To follow out in detail the vicissitudes of this struggle would require too much space. Its nature will be indicated by occasional references in the following pages, and meanwhile it will be sufficient to observe how little was accomplished even in his own age by the energy and authority of Gregory. It was only a few years after his death that the council of Paris, in 615, proves to us that residence in monasteries was not considered necessary for women who took the vows, and that the civil power had to be invoked to prevent their marriage.^{[241](#)} Indeed, it was not uncommon for men to turn their houses, nominally at least, into convents, living there surrounded with their wives and families, and deriving no little worldly profit from the assumption of superior piety, to the scandal of the truly religious.^{[242](#)} St. Isidor of Seville, about the same period, copies the words of St. Augustin in describing the wandering monastic impostors who lived upon the credulous charity of the faithful;^{[243](#)} and he also enlarges upon the disgraceful license of the *acephali*, or clerks bound by no rule, whose vagabond life and countless numbers were an infamy to the western kingdoms which they infested.^{[244](#)} The quotation of this passage by Louis-le-Débonnaire, in his attempt to reform the church, shows that these degraded vagrants continued to flourish unchecked in the ninth century;^{[245](#)} and, indeed, Smaragdus, in his Commentary on the Rule of St. Benedict, assures us that the evil had rather increased than diminished.^{[246](#)}

Monachism was but one application of the doctrine of justification by works, which, by the enthusiasm and superstition of ages, was gradually built into a vast system of sacerdotalism. Through it were eventually opened

to the mediæval church sources of illimitable power and wealth by means of the complicated machinery of purgatory, masses for the dead, penances, indulgences, &c., under the sole control of the central head, to which were committed the power of the keys and the dispensation of the exhaustless treasure of salvation bestowed on the church by the Redeemer and perpetually increased by the merits of the saints. To discuss these collateral themes, however, would carry us too far from our subject, and I must dismiss them with the remark that at the period now under consideration there could have been no anticipation of these ulterior advantages to be gained by assuming to regulate the mode in which individual piety might seek to propitiate an offended God. Sufficient motives for the assumption existed in the evils and aspirations of the moment without anticipating others which only received their fullest development under the skilful logic of the Thomists.

VIII. THE BARBARIANS.

While the Latin church had thus been engaged in its hopeless combat with the incurable vices of a worn-out civilization, it had found itself confronted by a new and essentially different task. The Barbarians who wrenched province after province from the feeble grasp of the Cæsars had to be conquered, or religion and culture would be involved in the wreck which blotted out the political system of the Empire. The destinies of the future hung trembling in the balance, and it might not be an uninteresting speculation to consider what had been the present condition of the world if Western Europe had shared the fate of the East, and had fallen under the domination of a race bigoted in its own belief and incapable of learning from its subjects. Fortunately for mankind, the invaders of the West were not semi-civilized and self-satisfied; their belief was not a burning zeal for a faith sufficiently elevated to meet many of the wants of the soul; they were simple barbarians, who, while they might despise the cowardly voluptuaries on whom they trampled, could not fail to recognize the superiority of a civilization awful even in its ruins. Fortunately, too, the Latin church was a more compact and independently organized body than its Eastern rival, inspired by a warmer faith and a more resolute ambition. It faced the difficulties of its new position with consummate tact and tireless energy; and whether its adversaries were Pagans like the Franks, or Arians like the Goths and Burgundians, by alternate pious zeal and artful energy it triumphed where success seemed hopeless, and where bare toleration would have appeared a sufficient victory.

While the celibacy, which bound every ecclesiastic to the church and dissevered all other ties, may doubtless be credited with a leading share in this result, it introduced new elements of disorder where enough existed before. The chaste purity of the Barbarians at their advent aroused the wondering admiration of Salvianus, as that of their fathers four centuries earlier had won the severe encomium of Tacitus;^{[247](#)} but the virtue which sufficed for the simplicity of the German forests was not long proof against

the allurements accumulated by the cynicism of Roman luxury. At first the wild converts, content with the battle-axe and javelin, might leave the holy functions of religion to their new subjects, their strength scarcely feeling the restraint of a faith which to them was little more than an idle ceremony; but as they gradually settled down in their conquests, and recognized that the high places of the church conferred riches, honor, and power, they coveted the prizes which were too valuable to be monopolized by an inferior race. Gradually the hierarchy thus became filled with a class of warrior bishops, who, however efficient in maintaining and extending ecclesiastical prerogatives, were not likely to shed lustre on their order by the rigidity of their virtue, or to remove, by a strict enforcement of discipline, the scandals inseparable from endless civil commotions.

Reference has been made above (p. 80), to the perpetual iteration of the canon of celibacy, and of the ingenious devices to prevent its violation, by the numerous councils held during this period, showing at once the disorders which prevailed among the clergy and the fruitlessness of the effort to repress them. The history of the time is full of examples illustrating the various phases of this struggle.

The episcopal chair, which at an earlier period had been filled by the votes of the people, and which subsequently came under the control of the Papacy, was at this time a gift in the hands of the untamed Merovingians, who carelessly bestowed it on him who could most lavishly fill the royal coffers, or who had earned it by courtly subservience or warlike prowess. The supple Roman or the turbulent Frank, who perchance could not recite a line of the Mass, thus leaped at once from the laity through all the grades;^{[248](#)} and as he was most probably married, there can be no room for surprise if the rule of continence, thus suddenly assumed from the most worldly motives, should often prove unendurable. Even in the early days of the Frankish conquest we see a cultured noble, like Genebaldus, married to the niece of St. Remy, when placed in the see of Laon ostensibly putting his wife away and visiting her only under pretext of religious instruction, until the successive births of a son and a daughter—whom he named Latro and Vulpecula in token of his sin—and we may not unreasonably doubt the

chronicler's veracity when he informs us that the remorse of Genebaldus led him to submit to seven years' imprisonment as an expiatory penance.²⁴⁹ Equally instructive is the story of Felix of Nantes, whose wife, banished from his bed on his elevation to the episcopate, rebelled against the separation, and, finding him obdurate to her allurements, was filled with jealousy, believing that only another attachment could account for his coldness. Hoping to detect and expose his infidelity, she stole into the chamber where he was sleeping and saw on his breast a lamb, shining with heavenly light, indicative of the peaceful repose which had replaced all earthly passions in his heart.²⁵⁰ A virtue which was regarded as worthy of so miraculous a manifestation must have been rare indeed among the illiterate and untutored nominees of a licentious court, and that it was so in fact is indicated by the frequent injunctions of the councils that bishops must regard their wives as sisters; while a canon promulgated by the council of Macon, in 581, ordering that no woman should enter the chamber of a bishop without two priests, or at least two deacons, in her company, shows how little hesitation there was in publishing to the world the suspicions that were generally entertained.²⁵¹ How the rule was sometimes obeyed by the wild prelates of the age, while trampling upon other equally well-known canons, is exemplified by the story of Macliaus of Brittany. Chanao, Count of Brittany, had made way with three of his brothers; the fourth, Macliaus, after an unsuccessful conspiracy, sought safety in flight, entered the church, and was created Bishop of Vannes. On the death of Chanao, he promptly seized the vacant throne, left the church, threw off his episcopal robes, and took back to himself the wife whom he had quitted on obtaining the see of Vannes—for all of which he was duly excommunicated by his brother prelates.²⁵²

When such was the condition of morals and discipline in the high places of the church, it is not to be wondered at if the second council of Tours, in 567, could declare that the people suspect, not indeed all, but many of the arch-priests, vicars, deacons, and subdeacons, of maintaining improper relations with their wives, and should command that no one in orders should visit his own house except in company with a subordinate clerk, without whom, moreover, he was never to sleep; the clerk refusing the performance of the duty to be whipped, and the priest neglecting the precaution to be deprived of communion for thirty days. Any one in orders

found with his wife was to be excommunicated for a year, deposed, and relegated among the laity; while the arch-priest who neglected the enforcement of these rules was to be imprisoned on bread and water for a month. An equally suggestive illustration of the condition of society is afforded by another canon, directed against the frequent marriages of nuns, who excused themselves on the ground that they had taken the veil to avoid the risk of forcible abduction. Allusion is made to the laws of Childebert and Clotair, maintained in vigor by Charibert, punishing such attempts severely, and girls who anticipate them are directed to seek temporary asylum in the church until their kindred can protect them under the royal authority, or find husbands for them.²⁵³

Morals were even worse among the Arian Wisigoths of Spain than among the orthodox believers of France. It is true that priestly marriage formed no part of the Arian doctrines, but as the heresy originated prior to the council of Nicæa, and professed no obedience to that or any other council or decretal, its practice in this respect was left to such influence as individual asceticism might exercise. Having no acknowledged head to promulgate general canons or to insist upon their observance, no rule of the kind, even if theoretically admitted, could be effectually enforced. How little, indeed, the rule was obeyed is shown by the proceedings of the third council of Toledo, held in 589 to confirm the reunion of the Spanish kingdom with the orthodox church. It complains that even the converted bishops, priests, and deacons are found to be publicly living with their wives, which it forbids for the future under threat of degrading all recalcitrants to the rank of lector.²⁵⁴ The conversion of the kingdom to Catholicism did not improve matters. The clergy continued not only to associate with their wives, but also to marry openly, for the secular power was soon afterwards forced to interfere, and King Recared I. issued a law directing that any priest, deacon, or subdeacon connecting himself with a woman by marriage or otherwise, should be separated from his guilty consort by either the bishop or judge, and be punished according to the canons of the church, while the unfortunate woman was subjected to a hundred lashes and denied all access to her husband. To insure the enforcement of the edict, the heavy mulct of

two pounds of gold was levied on any bishop neglecting his duty in the premises.²⁵⁵ Recared also interposed to put a stop to the frequent marriages of nuns, whose separation from their husbands and condign punishment were decreed, with the enormous fine of five pounds of gold exacted of the careless ecclesiastic who might neglect to carry the law into effect—a fair measure of the difficulties experienced in enforcing the rule of celibacy.²⁵⁶ This legislation had little effect, for a half century later the eighth council of Toledo, in 653, shows us that all ranks of the clergy, from bishops to subdeacons, had still no scruple in publicly maintaining relations with wives and concubines;²⁵⁷ and, despite these well-meant efforts, clerical morals went from bad to worse until the licentious reign of King Witiza broke down all the accustomed barriers. According to the monkish chroniclers, that reckless prince issued, in 706, a law authorizing not only polygamy but unlimited concubinage to both laity and clergy; a privilege of which it is not unreasonable, from what we have seen, to suppose that they largely availed themselves.²⁵⁸ There seems to be no record of any remonstrance on the part of the Gothic prelates, and when, three years later, Pope Constantine took cognizance of the innovation, and threatened Witiza with dethronement if he should not abrogate his iniquitous legislation, the monarch retorted with a promise to repeat the exploits of his predecessor Alaric, in sacking and plundering the Apostolic city. It is a little singular, however, that one of the first acts of the usurper, Don Roderic, in 711, was the repeal of this obnoxious law.²⁵⁹ If he had any intentions of undertaking the reform of his subjects' morals, however, his adventure with Count Julian's daughter and the Saracenic invasion caused its indefinite postponement.

Italy was almost equally far removed from the ideal purity of Jerome and Augustin. In the early part of the sixth century was fabricated an account of a supposititious council, said to have been held in Rome by Silvester I., and the neglect of celibacy is evident when it was felt to be necessary to insert in this forgery a canon forbidding marriage to priests, under penalty of deprivation of functions for ten years.²⁶⁰ Even in this it is observable that there was no thought of annulling the marriage, as subsequently became

established in orthodox doctrines. Nothing can be more suggestive of the demoralization of the Italian church than the permission granted about the year 580 by Pelagius II. for the elevation to the diaconate of a clerk at Florence, who while a widower had had children by a concubine. What renders the circumstance peculiarly significant is the fact that the Pope pleads the degeneracy of the age as his apology for this laxity.^{[261](#)}

Such was the condition of the Christian world when Gregory the Great, in 590, ascended the pontifical throne. He was too devout a churchman and too sagacious a statesman not to appreciate thoroughly the importance of the canon in all its various aspects—not only as necessary to ecclesiastical purity according to the ideas of the age, but also as a prime element in the influence of the church over the minds of the people, as well as an essential aid in extending ecclesiastical power, and in retaining undiminished the enormous possessions acquired by the church through the munificence of the pious. The prevailing laxity, indeed, was already threatening serious dilapidation of the ecclesiastical estates and foundations. How clearly this was understood is shown by Pelagius I. in 557, when he refused for a year to permit the consecration of a bishop elected by the Syracusans. On their persisting in their choice he wrote to the Patrician Cethegus, giving as the reason for his opposition the prelate's wife and children, by whom, if they survive, the substance of the church is wont to be jeopardized;^{[262](#)} and his consent was finally given only on the condition that the bishop elect should provide competent security against any conversion of the estate of the diocese for the benefit of his family, a detailed statement of the property being made out in advance to guard against attempted infractions of the agreement. That this was not a merely local abuse is evident from a law of the Wisigoths, which provides that on the accession of any bishop, priest, or deacon, an accurate inventory of all church possessions under his control shall be made by five freemen, and that after his death an inquest shall be held for the purpose of making good any deficiencies out of the estate of the decedent, and forcing the restoration of anything that might have been alienated.^{[263](#)}

There evidently was ample motive for a thorough reformation, and Gregory accordingly addressed himself energetically to the work of enforcing the canons. In his decretals there are numerous references to the subject, showing that he lost no opportunity of reviving the neglected rules of discipline regarding the ordination of digami,²⁶⁴ the residence of women, and abstinence from all intercourse with the sex.²⁶⁵ In his zeal he even went so far as to decree that any one guilty of even a single lapse from virtue should be forever debarred from the ministry of the altar²⁶⁶—a law nullified by its own severity, which rendered its observance impossible. In 587, his predecessor Pelagius had ordered that in Sicily the Roman rule should be followed of separating subdeacons from their wives, but it appeared cruel to Gregory that this should be enforced on those who had no warning of such rigor when accepting the subdiaconate, and one of the earliest acts of his pontificate was to allow them to resume relations with their wives; but he ordered that they should abstain from all service of the altar, and that in future no one should be admitted to that grade who would not formally take a vow of continence.²⁶⁷ There is not much trace in contemporary history of any improvement resulting from these efforts, and towards the very close of his pontificate, in 602, we find him entreating Queen Brunhilda to exercise her power in restraining the still unbridled license of the Frankish clergy—a task which he assures her is essential if she desires to transmit her possessions in peace to her posterity.²⁶⁸ He also endeavored to reform the perennial abuse of the residence of women, a reform which the church has been vainly attempting ever since the canon of Nicæa.²⁶⁹ That Gregory's zeal, however, exercised some influence is manifested by the fact that tradition in the Middle Ages occasionally associated his name with the introduction of celibacy in the church. The impression which he produced is shown by the wild legend which relates that, soon after issuing and strictly enforcing a decretal on the subject, he happened to have his fishponds drawn off, when the heads of no less than six thousand infants were found in them—the offspring of ecclesiastics, destroyed to avoid detection—which filled him with so much horror that he abandoned the vain attempt.²⁷⁰ Yet in Italy the residence of wives was still permitted to those in orders, under the restriction that they should be treated as sisters;²⁷¹ and Gregory relates as worthy of all imitation the case of a holy priest of Nursia who, following the example of the saints in depriving himself of even

lawful indulgences, had persistently relegated his wife to a distance. When at length he lay on his death-bed, to all appearance inanimate, the wife came to bid him a last farewell, and placed a mirror to his lips, to see whether life was yet extinct. Her kindly ministrations roused the dominant asceticism in his expiring soul, and he gathered strength enough to exclaim, “Woman, depart! Take away the straw, for there is yet fire here”—which supreme effort of self-immolation procured him on the instant a beatific vision of St. Peter and St. Paul, during which he lapsed ecstatically into eternity.^{[272](#)}

In considering so thoroughly artificial a system of morality, it is perhaps scarcely worth while to inquire into the value of a virtue which could only be preserved by shunning temptation with so scrupulous a care.

IX.

THE CARLOVINGIANS.

Even the energy and authority of Gregory the Great were powerless to restore order in the chaos of an utterly demoralized society. In Spain, the languishing empire of the Wisigoths was fast sinking under the imbecility which invited the easy conquest of the Saracens. In France, Brunhilda and Fredegonda were inflaming the fierce contentions which eventually destroyed the Merovingian dynasty, and which abandoned the kingdom at once to the vices of civilization and the savage atrocities of barbarism.²⁷³ In Italy, the Lombards, more detested than any of their predecessors, by their ceaseless ravages made the Ostrogothic rule regretted, and gleaned with their swords such scanty remnants of plunder as had escaped the hordes which had successively swept from the gloomy forests of the North across the rich valleys and fertile plains of the mistress of the world. Anarchy and confusion everywhere scarce offered a field for the exercise of the humbler virtues, nor could the church expect to escape the corruption which infected every class from which she could draw her recruits. Still, amid the crowd of turbulent and worldly ecclesiastics, whose only aim was the gratification of the senses or the success of criminal ambition, some holy men were to be found who sought the mountain and forest as a refuge from the ceaseless and all-pervading disorder around them. St. Gall and St. Columba, Willibrod and Boniface, were types of these. Devoted to the severest asceticism, burying themselves in the wilderness and subsisting on such simple fare as the labor of their hands could wring from a savage land, the selfishness of the anchorite did not extinguish in them the larger aims of the Christian, and by their civilizing labors among the heathen they proved themselves worthy disciples of the Apostles.

Thicker grew the darkness as Tarik drove the Gothic fugitives before him on the plains of Xeres, and as the house of Pepin d'Heristel gradually supplanted the long-haired descendants of Clovis. The Austrasian Mayors of the Palace had scanty reverence for mitre and crozier, and it is a proof how little hold the clergy had earned upon the respect and affection of the

people, when the usurpers in that long revolution did not find it necessary to conciliate their support. In fact, the policy of those shrewd and able men was rather to oppress the church and to parcel out its wealth and dignities among their warriors, who made no pretence of piety nor deigned to undertake the mockery of religious duties. Rome could interpose no resistance to these abuses, for, involved alternately in strife with the Lombards and the Iconoclastic Emperors, the Popes implored the aid of the oppressor himself, and were in no position to protest against the aggressions which he might commit at home.

In Italy, the condition of discipline may be inferred from the fact that, in 721, Gregory II. considered it necessary to call a synod for the special purpose of condemning incestuous unions and the marriages of nuns, which he declared were openly practised,²⁷⁴ and the canons then promulgated received so little attention that they had to be repeated by another synod in 732.²⁷⁵ In fact, the vow of chastity was frequently taken by widows that they might escape a second marriage and thus be able to live in shameless license without being subject to the watchful control of a husband, and an edict of Arechis Duke of Beneventum about the year 774 orders that all such godless women shall be seized and shut up in convents.²⁷⁶ That the secular clergy should consider ordination no bar to matrimony need therefore excite little surprise. There is extant a charter of Talesperianus, Bishop of Lucca, in 725, by which he confirms a little monastery and hospital to Romuald the priest and his wife—"presbiteria sua." The document recites that this couple had come on a pilgrimage from beyond the Po; that they had settled in the lands of the Convent of St. Peter and St. Martin in the diocese of Lucca, where they had bought land and built the institution which the good bishop thus confirms to them with certain privileges. He evidently felt that there was nothing irregular in their maintaining the connection, and he lays upon them no conditions of separation.²⁷⁷

In France, it may be readily believed that discipline was even more neglected. For eighty years scarce a council was held; no attempts were made to renew or enforce the rules of discipline, and the observances of religion were at length well-nigh forgotten. In 726, Boniface even felt scruples as to associating in ordinary intercourse with men so licentious and

depraved as the Frankish bishops and priests, and he applied to Gregory II. for the solution of his doubts. Gregory, in reply, ordered him to employ argument in endeavoring to convince them of their errors, and by no means to withdraw himself from their society,²⁷⁸ a politic toleration of vice contrasting strangely with his fierce defiance of the iconoclastic heresy of Leo the Isaurian, when he risked the papacy itself in his eagerness to preserve his beloved images.

When, however, the new dynasty began to assume a permanent position, it sought to strengthen itself by the influence of the church. Like the modern Charlemagne, it saw in a restoration of religion a means of assuring its stability by linking its fortunes with those of the hierarchy. A radical in opposition becomes of necessity a conservative in power; and the arts which had served to supplant the hereditary occupants of the throne were no longer advisable after success had indicated a new line of policy. As Clovis embraced Christianity in order to consolidate his conquests into an empire, so Carloman and Pepin-le-Bref sought the sanction of religion to consecrate their power to their descendants, and the Carolingian system thenceforth became that of law and order, organizing a firm and settled government out of the anarchical chaos of social elements.

It was the pious Carloman who first saw clearly how necessary was the aid of the church in any attempt to introduce civilization and subordination among his turbulent subjects. Immediately on his accession, he called upon St. Boniface to assist him in the work, and the Apostle of Germany undertook the arduous task. How arduous it was may be conceived from his description of the utterly demoralized condition of the clergy, when he appealed to Pope Zachary for advice and authority to assist in eradicating the frightful promiscuous licentiousness which was displayed with careless cynicism throughout all grades of the ecclesiastical body.²⁷⁹ The details are too disgusting for translation, but the statement can readily be believed when we see what manner of men filled the controlling positions in the hierarchy.

Charles Martel had driven out St. Rigobert, Archbishop of Rheims, and had bestowed that primatial see on one of his warriors named Milo, who soon succeeded in likewise obtaining possession of the equally important archiepiscopate of Trèves.²⁸⁰ Milo was himself an indication of the

prevailing laxity of discipline, for he was the son of Basinus his predecessor in the see of Trèves.²⁸¹ He is described as being a clerk in tonsure, but in every other respect an irreligious laic, yet Boniface, with all the aid of his royal patrons, was unable to oust him from his inappropriate dignities, and in 752, ten years after the commencement of his reforms, we find Pope Zachary, in response to an appeal for advice, counselling him to leave Milo and other similar wolves in sheep's clothing to the divine vengeance.²⁸² Boniface, apparently, found it requisite to follow this advice and the divine vengeance did not come until Milo had enjoyed his incongruous dignities for forty years, when at length he was removed by an appropriate death, received from a wild boar in hunting.²⁸³ He was only a type of many others who openly defied all attempts to remove them. One, who is described as "pugnator et fornicator," gave up, it is true, the spiritualities of his see, but held to the temporalities with a gripe that nothing could loosen; another utterly disregarded the excommunications launched at his head, and Zachary and Boniface at last were fain to abandon him to his evil courses.²⁸⁴ Somewhat more success, indeed, he had with Gervilius, son and successor to Geroldus, Bishop of Mainz. The latter, accompanying Carloman in an expedition against the Saxons, was killed in battle. Bishop Gervilius, in another foray, recognized his father's slayer, invited him to a friendly interview, and treacherously stabbed him, exclaiming, in the rude poetry of the chronicler, "Accipe jam ferrum quo patrem vindico carum." This act of filial piety was not looked upon as unclerical, until Boniface took it up; Gervilius was finally forced to abandon the see of Mainz, and it was given to Boniface himself.²⁸⁵ When such were the prelates, it is not to be supposed that rules of abstinence and asceticism received much attention from their subordinates. Boniface admits, in an epistle to King Ecgberht, that, in consequence of the universal licentiousness, he was compelled to restore the guilty to their functions after penitence, as the canonical punishment of dismissal would leave none to perform the sacred offices.²⁸⁶ What the church, however, could not prevent on earth, it at least had the satisfaction of seeing punished in the future life. It was principally for the support given to Milo of Rheims among his many other similar misdeeds, that Charles Martel was condemned to eternal torture, which was, as a wholesome example, made manifest to the most incredulous. St. Eucherius, in a vision, saw him plunged into the depths of hell, and on consulting St.

Boniface and Fulrad Abbot of St. Denis, it was resolved to open Charles's tomb. The only tenant of the sepulchre was found to be a serpent, and the walls were blackened as though by fire, thus proving the truth of the revelation, and holding out an awful warning to future wrongdoers.²⁸⁷

How much of the license complained of was indiscriminate concubinage, and how much was merely intercourse with legitimate wives, we have no means of ascertaining. The latter Boniface succeeded in suppressing, for the church could control her sacraments.²⁸⁸ The former was beyond his power.

Armed with full authority from Pope Zachary, Carloman and Boniface commenced the labor of reducing to order this chaos of passion and license. Under their auspices a synod was held, April 23, 742, in which all unchaste priests and deacons were declared incapable of holding benefices, were degraded and forced to do penance. Bishops were required to have a witness to testify to the purity of their lives and doctrines, before they could perform their episcopal functions. For all future lapses from virtue, priests were to be severely whipped and imprisoned for two years on bread and water, with prolongation of the punishment at the discretion of their bishops. Other ecclesiastics, monks, and nuns were to be whipped thrice and similarly imprisoned for one year, besides the stigma of having the head shaved. All monasteries, moreover, were to adopt and follow rigidly the rule of St. Benedict.²⁸⁹

The stringency of these measures shows not only the extent of the evil requiring such means of cure, but the fixed determination of the authorities to effect their purpose. The clergy, however, did not submit without resistance. It is probable that they stirred up the people, and that signs of general disapprobation were manifested at a rigor so extreme in punishing faults which for more than two generations had passed wholly unnoticed, for during the same year Zachary addressed an epistle to the Franks with the object of enlisting them in the cause. The ill-success of their arms against the Pagans he attributes to the vices of their clergy, and he promises them that if they show themselves obedient to Boniface, and if they can enjoy the prayers of pure and holy priests, they shall in future have an easy triumph over their heathen foes.²⁹⁰ Yet many adulterous priests and bishops, noted for the infamy of their lives, pretended that they had received from Rome

itself dispensations to continue in their ministry—an allegation which Zachary of course repelled with indignation.^{[291](#)}

Carloman, however, pursued his self-imposed task without flinching. On March 1st, 743, he held another synod at Leptines, where the clergy promised to observe the ancient canons, and to restore the discipline of the church. The statutes enacted the previous year were again declared to be in full vigor for future offences, while for previous ones penitence and degradation were once more decreed.^{[292](#)}

These regulations affected only Austrasia, the German portion of the Frankish empire, ruled by Carloman. His brother, Pepin-le-Bref, who governed Neustria, or France, was less pious, and had not apparently as yet recognized the policy of reforming out of their possessions the warrior vassals whom his father had gratified with ecclesiastical benefices. At length, however, he was induced to lend his aid, and in 744 he assembled a synod at Soissons for the purpose. So completely had the discipline of the church been neglected and forgotten, that Pepin was obliged to appeal to Pope Zachary for an authoritative declaration as to the grades in which marriage was prohibited.^{[293](#)} Yet his measures were but lukewarm, for he contented himself with simply forbidding unchastity in priests, the marriage of nuns, and the residence of stranger women with clerks, no special punishment being threatened, beyond a general allusion to existing laws.^{[294](#)}

Thus assailed by both the supreme ecclesiastical and temporal authorities, the clergy still were stubborn. Some defended themselves as being legitimately entitled to have a concubine—or rather, we may presume, a wife. Among these we find a certain Bishop Clement described as a pestilent heresiarch, with followers who maintained that his two children, born during his prelacy, did not unfit him for his episcopal functions; and a synod held in Rome, October 31st, 745, was required for his condemnation, the local authorities apparently proving powerless. Even this was not sufficient, for in January, 747, we find Zachary directing Boniface to bring him before a local council, and if he still proved contumacious, to refer the matter again to Rome.^{[295](#)} Others, again, unwilling to forego their secular mode of existence, or to abandon the livelihood afforded by the church, were numerous and hardy enough to ask Pepin and Carloman to set apart for them churches and monasteries in

which they could live as they were accustomed to do. So nearly did they succeed in this attempt, that Boniface found it necessary to appeal to Zachary to prevent so flagrant an infraction of the canons, and Zachary wrote to the princes with instructions as to the mode of answering the petition.²⁹⁶ Others, still more audacious, assailed Boniface in every way, endeavored to weary him out, and even, rightly regarding him as the cause of their persecution and tribulations, made attempts upon his life.²⁹⁷

That he should have escaped, indeed, is surprising, when the character of the age is considered, and the nature of the evils inflicted on those who must have regarded the reform as a wanton outrage on their rights. As late as 748, Boniface describes the false bishops and priests, sacrilegious and wandering hypocrites and adulterers, as much more numerous than those who as yet had been forced to compliance with the rules. Driven from the churches, but supported by the sympathizing people, they performed their ministry among the fields and in the cabins of the peasants, who concealed them from the ecclesiastical authorities.²⁹⁸ This is not a description of mere sensual worldlings, and it is probable that by this time persecution had ranged the evil-disposed on the winning side. Those who thus exercised their ministry in secret and in wretchedness, retaining the veneration of the people, were therefore men who believed themselves honorably and legitimately married, and who were incapable of sacrificing wife and children for worldly advantage or in blind obedience to a rule which to them was novel, unnatural, and indefensible.

Boniface escaped from the vengeful efforts of those who suffered from his zeal, to fall, in 755, under the sword of the equally ungrateful Frisians. It is probable that up to the time of his death he was occupied with the reformation of the clergy in conjunction with his missionary labors, for in 752 we find him still engaged in the hopeless endeavor to eject the unclerical prelates, who even yet held over from the iron age of Charles Martel. His disappearance from the scene, however, made but little change in the movement which had owed so much to his zeal.

In 747 Carloman's pious aspirations had led him from a throne to a cloister, and the monastery of Monte Casino welcomed its most illustrious inmate. Pepin received the whole vast kingdom, and his ambitious designs drew him daily closer to the church, the importance of whose support he commenced to appreciate. His policy, in consolidating the power of his house and in founding a new dynasty, led him necessarily to reorganize the anarchical elements of society. As an acknowledged monarch, a regularly constituted hierarchy and recognized subordination to the laws, both civil and ecclesiastical, were requisite to the success of his government and to the establishment of his race. Accordingly, we find him carrying out systematically the work commenced by Carloman and Boniface, to which at first his support had been rather negative than positive.

Six weeks after the martyrdom of Boniface, Pepin held a synod in his royal palace of Verneuil, in which this tendency is very apparent. Full power was given to the bishops in their respective dioceses to enforce the canons of the church on the clergy, the monks, and the laity. The monasteries were especially intrusted to the episcopal care, and means were provided for reducing the refractory to submission. The rule of Benedict was proclaimed as in force in all conventual establishments, and cloistered residence was strictly enjoined. All ecclesiastics were ordered to pay implicit obedience to their bishops, and this was secured by the power of excommunication, which was no longer, as in earlier ages, the simple suspension from religious privileges, but was a ban which deprived the offender of all association with his fellows, and exposed him, if contumacious, to exile by the secular power. By the appointment of metropolitans, a tribunal of higher resort was instituted, while two synods to be held each year gave the opportunity both of legislation and of final judgment. Submission to their decisions was insured by threatening stripes to all who should appeal from them to the royal court.^{[299](#)}

Such are the main features, as far as they relate to our subject, of this Capitulary, which so strikingly reveals the organizing system of the Carolingian polity. Carried out by the rare intelligence and vigor of Charlemagne, it gave a precocious development of civilization to Europe, transitory because in advance of the age, and because it was based on the intellectual force of the ruler, and not on the virtue and cultivation of a people as yet too barbarous to appreciate it.

The organization of the church, moreover, received at the same time an efficient impulse by the institution of the order of canons, founded virtually in 762, the year in which St. Chrodegang, Bishop of Metz, promulgated the Rule for their government. This Rule of course entirely forbids all intercourse with women, and endeavors to suppress it by punishing transgressors with stripes, incarceration, and deposition.³⁰⁰ The lofty rank of St. Chrodegang, who was a cousin of Pepin-le-Bref, and the eminent piety which merited canonization, gave him wide influence which doubtless assisted in extending the new institution, but it also had recommendations of its own which were sufficient to insure its success. By converting the cathedral clergy into monks, bound by implicit obedience towards their superiors, it brought no little increase of power to the bishops, and enabled them to exert new authority and influence. It is no wonder therefore that the Order spread rapidly and was adopted in most of the dioceses.

For a century we hear nothing more of sacerdotal marriage—and yet it may be doubted whether clerical morality had really been improved by the well-meant reforms of Boniface. These were followed up by Charlemagne with all his resistless energy, and the importance which he attached to the subject is shown by an epistle of Adrian I. denying certain assertions made to the Frankish sovereign, inculcating the purity of the Roman clergy. Adrian, in defending his flock, assumes that the object of the slanders can only have been to produce a quarrel between himself and Charlemagne, who must evidently have made strong representations on the subject to the Pontiff.³⁰¹ Under such pressure perhaps there was something less of shameless licentiousness; the episcopal chairs were no longer defiled by the cynical lubricity of unworthy prelates; but in the mass of the clergy the passions, deprived of all legitimate gratification, could not be restrained in a race so little accustomed to self-control, and unchastity remained a corroding ulcer which Charlemagne and Louis-le-Débonnaire vainly endeavored to eradicate. The former, indeed, we find asking in 811 whether the only difference between clerk and layman is that the former does not bear arms and is not publicly married;³⁰² while Ghaerbald, Bishop of Liége, a few years before had ordered that all priests maintaining intercourse with

their wives should be deprived of their benefices and be subjected to penitence until death.³⁰³

It would be an unprofitable task to recapitulate the constantly repeated legislation prohibiting the residence of women with the clergy and repressing the disorders and irregularities of the monastic establishments. It would be but a reiteration of the story already related in previous centuries, and its only importance would be in showing by the frequency of the edicts how utterly ineffectual they were. When Louis-le-Débonnaire, in 826, decreed³⁰⁴ that the seduction of a nun was to be punished by the death of both the partners in guilt; that the property of both was to be confiscated to the church, and that the count in whose district the crime occurred, if he neglected its prosecution, was to be degraded, deprived of his office, undergo public penance, and pay his full wer-gild to the fisc, the frightful severity of the enactment is the measure of the impossibility of effecting its purpose, and of the inefficiency of the reformation which had been so elaborately prepared and so energetically promulgated by Louis in 817.³⁰⁵

But perhaps the most convincing evidence of the debased morality of the clergy, and of the low standard which even the most zealous prelates were forced to adopt, is to be found in a curious fabrication by the authors of the False Decretals. The collection of decretals which they put forth in the names of the early popes embodied their conception of a perfect church establishment, as adapted to the necessities and aspirations of the ninth century. While straining every point to throw off all subjection to the temporal power, and to obtain for the hierarchy full and absolute control over all ecclesiastical matters and persons, they seem to have felt it necessary to relax in an important point the rigor of the canons respecting sacerdotal purity. Gregory the Great had proclaimed in the clearest and most definite manner the rule that a single lapse from virtue condemned the sinner to irrevocable degradation, and rendered him forever unfit for the ministry of the altar.³⁰⁶ Yet "Isidor Mercator" added to a genuine epistle of Gregory a long passage elaborately arguing the necessity of forgiveness for those who expiate by repentance the sin of impurity, "of which, among many, so few are guiltless."³⁰⁷ The direct testimony is notable, but not less so is the indirect evidence of the prevalent laxity which could induce such a

bid for popularity on the part of high churchmen like those concerned in the Isidorian forgeries.

Evidence, also, is not wanting, that the denial of the appropriate and healthful human affections led to the results which might be expected of fearful and unnatural crimes. That the inmates of monasteries, debarred from female society, occasionally abandoned themselves to the worst excesses, or, breaking through all restraint, indulged in less reprehensible but more open scandals, is proclaimed by Charlemagne, who threatened to vindicate the outrage upon religion with the severest punishment.³⁰⁸ Nor were the female convents more successfully regulated, for the council of Aix-la-Chapelle, in 836, states that in many places they were rather brothels than houses of God; and it shows how close a supervision over the spouses of Christ was thought requisite when it proceeds to direct that nunneries shall be so built as to have no dark corners in which scandals may be perpetrated out of view.³⁰⁹ The effect of these efforts may be estimated from a remark in a collection of laws which bears the name of Erchenbald, Chancellor of Charlemagne, but which is rather attributable to the close of the ninth century, that the licentiousness of nuns commonly resulted in a worse crime—infanticide;³¹⁰ and, as this is extracted textually from an epistle of St. Boniface to Ethelbald, King of Mercia,³¹¹ it is presumable that the evil became notorious simultaneously with the reform under the early Carolingians, and continued unabated throughout their dynasty. One device to subjugate nature, adopted in the monasteries, was to let blood at stated intervals, in the hope of reducing the system and thus mitigating the effects of prolonged continence—a device prohibited by Louis-le-Débonnaire, but long subsequently maintained as part of monastic discipline.³¹² As regards the secular clergy, even darker horrors are asserted by Theodulf, Bishop of Orleans, and other prelates, who forbade to their clergy the residence of mother, aunt, and sister, in consequence of the crimes so frequently perpetrated with them at the instigation of the devil;³¹³ and the truth of this hideous fact is unfortunately confirmed by the declarations of councils held at various periods.³¹⁴

If, under the external polish of Carolingian civilization, such utter demoralization existed, while the laws were enforced by the stern vigor of Charlemagne, or the sensitive piety of Louis-le-Débonnaire, it is easy to

understand what was the condition of society when the sons of the latter involved the whole empire in a ceaseless tumult of civil war. Not only was the watchful care of the first two emperors withdrawn, but the state was turned against itself, and rapine and desolation became almost universal. The royal power was parcelled out, by the rising feudal system, among a crowd of nobles whose energies were solely directed to consolidating their position, and was chiefly employed, as far as it affected the church, in granting abbeys and other ecclesiastical dignities to worthless laymen, whose support could only be secured by bribes which the royal fisc could no longer supply. Pagan Danes and infidel Saracens were ravaging the fairest provinces of the empire, and their blows fell with peculiar weight on the representatives of a hated religion. For seventy years previous to the treaty of Clair-sur-Epte no mass resounded in the walls of the cathedral church of Coutances, so fierce and unremitting had been the incursions of the Northmen. It is therefore no wonder that, as early as 845, the bishops assembled at the council of Vernon confess that their ecclesiastical authority is no longer sufficient to prevent the marriage of monks and nuns and to suppress the crowds who escaped from their convents and wandered over the country in licentiousness and vagabondage. To restrain these disorders they are obliged to invoke the royal power to cast into prison these reprobates and force them to undergo canonical penance.³¹⁵

During this period of anarchy and lawlessness, the church was skilfully emancipating itself from subjection to the temporal power, and was laying the foundation of that supremacy which was eventually to dominate Christendom. While its aspirations and ambitions were thus worldly, and its ranks were recruited from a generation trained under such influences, it is easy to believe that the disorders which Charlemagne himself could not repress, grew more and more flagrant. Even the greatly augmented power of the papacy added to the increasing license, although Nicholas I. in 861 had ordered the deposition and degradation of all priests convicted of immorality,³¹⁶ for the appellate jurisdiction claimed by Rome gave practical immunity to those against whom the enforcement of the canons was attempted. About the year 876, Charles-le-Chauve, in a spirited argument against the pretensions of the popes, calls attention specially to the exemption thus afforded to unchaste priests, who, after due conviction by their bishops, obtained letters from Rome overruling the judgments; the

distance and dangers of the journey precluding the local authorities from supporting their verdicts by sending commissioners and witnesses to carry on a second trial beyond the Alps.³¹⁷

This shows that the effort to enforce purity was not as yet abandoned, however slender may have been the success in eradicating an evil so general and so deeply rooted. The nominal punishment for unchastity—loss of benefice and deposition—was severe enough to induce the guilty to hide their excesses with care, when they chanced to have a bishop who was zealous in the performance of his duties. Efforts at concealment, moreover, were favored by the forms of judicial procedure, which were such as to throw every difficulty in the way of procuring a conviction, and to afford, in most cases, practical immunity for sin, unless committed in the most open and shameless manner. Hincmar, Archbishop of Rheims, the leading ecclesiastic of his day, whose reputation for learning and piety would have rendered him one of the lights of the church, had not his consistent opposition to the innovations of the papacy caused his sanctity to be questioned in Rome, has left us elaborate directions as to the forms of prosecution in such matters. Notwithstanding his earnest exhortations and arguments in favor of the most ascetic purity, he discourages investigation by means of neighbors and parishioners, or irreverent inquiries on the subject. Only such testimony was admissible as the laws allowed, and the laws were very strict as to the position and character of witnesses. In addition to the accusers themselves, seven witnesses were necessary. Of these, one was required to substantiate the oaths of the rest by undergoing the ordeal, thus exposing himself and all his fellows to the heavy penalties visited on perjury, upon the chance of the red-hot iron or cold-water trial, administered, perhaps, by those interested in shielding the guilty. If, as we can readily believe was generally the case, these formidable difficulties could not be overcome, and the necessary number of witnesses were not ready to sacrifice themselves, then the accused could purge himself of the sins imputed to him by his own oath, supported by one, three, or six compurgators of his own order; and Hincmar himself bears testimony to the associations which were formed among the clergy to swear each other through all troubles.³¹⁸ Even simpler, indeed, was the process prescribed not long before by Pope Nicholas I., who ordered that when legal evidence

was not procurable, the accused priest could clear himself on his own unsupported oath.^{[319](#)}

Under these regulations, Hincmar orders an annual investigation to be made throughout his province, but the results would appear to have been as unsatisfactory as might have been expected. In 874, at the Synod of Rheims, he complains that his orders have been neglected and despised, and he warns his clergy that proof of actual criminality will not be required, but that undue familiarity with women, if persisted in, will be sufficient for condemnation when properly proved.^{[320](#)}

In the presence of facilities for escape such as were afforded by the practice of ecclesiastical law as constructed by the decretalists, and as expounded by Hincmar himself, the threats in which he indulged could carry but little terror. We need not wonder, therefore, if we meet with but slender indications of priestly marriage during all this disorder, for there was evidently little danger of punishment for the unchaste priest who exercised ordinary discretion in his amours, while the penalties impending over those who should openly brave the canonical rules were heavy, and could hardly be avoided by any one who should dare to unite himself publicly to a woman in marriage. Every consideration of worldly prudence and passion therefore induced the priest to pursue a course of illicit licentiousness—and yet, as the century wore on, traces of entire neglect or utter contempt of the canons began to manifest themselves. How little the rule really was respected by the ecclesiastical authorities, when anything was to be gained by its suppression, is shown in the decision made by Nicholas I., the highest of high churchmen, when encouraging the Bulgarians to abandon the Greek church, although the separation between Rome and Constantinople was not, as yet, formal and complete. To their inquiry whether married priests should be ejected, he replied that though such ministers were objectionable, yet the mercy of God was to be imitated, who causes his sun to shine on good and evil alike, and as Christ did not dismiss Judas, so they were not to be dismissed. Besides, laymen were not to judge priests for any crime, nor to make any investigation into their lives, such inquiries being reserved for bishops.^{[321](#)} As no bishops had yet been appointed by Rome, the answer was a skilfully tacit permission of priestly marriage, while avoiding an open avowal.

It need awaken no surprise if those who united recklessness and power should openly trample on the canons thus feebly supported. A somewhat prominent personage of the period was Hubert, brother of Teutberga, Queen of Lotharingia, and his turbulent conduct was a favorite theme for animadversion by the quiet monastic chroniclers. That he was an abbot is perhaps no proof of his clerical profession, but when we find his wife and children alluded to as a proof of his abandoned character, it shows that he was bound by vows or ordained within the prohibited grades, and that he publicly violated the rules and defied their enforcement.^{[322](#)}

The earliest absolute evidence that has reached us, however, of marriage committed by a member of the great body of the plebeian clergy, subsequent to the reforms of Boniface, occurs about the year 893. Angelric priest of Vasnau appealed to the synod of Chalons, stating that he had been publicly joined in wedlock to a woman named Grimma. Such an attempt by a priest, the consent of the woman and her relatives, and the performance of the ceremony by another priest all show the prevailing laxity and ignorance, yet still there were found some faithful and pious souls to object to the transaction, and Angelric was not allowed to enjoy undisturbed the fruits of his sin. Yet even the synod was perplexed, and unable to decide what ought to be done. It therefore only temporarily suspended Angelric from communion, while Mancio, his bishop, applied for advice to Foulques of Rheims, metropolitan of the province, and the ignorance and good faith of all parties are manifested by the fact that Angelric himself was sent to Foulques as the bearer of the letter of inquiry.^{[323](#)}

With the ninth century the power, the cultivation, and the civilization of the Carolingians may be considered virtually to disappear, though for nearly a hundred years longer a spectral crown encircled the brows of the ill-starred descendants of Pepin. Centralization, rendered impossible in temporal affairs by feudalism, was transferred to the church, which, thenceforth, more than ever independent of secular control, became wholly responsible for its own shortcomings; and the records of the period make only too plainly manifest how utterly the power, so strenuously contended for, failed to overcome the ignorance and the barbarism of the age.

X.

THE TENTH CENTURY.

The tenth century, well characterized by Cave as the “Sæculum Obscurum,” is perhaps the most repulsive in Christian annals. The last vestiges of Roman culture have disappeared, while the dawn of modern civilization is as yet far off. Society, in a state of transition, is painfully and vainly seeking some form of security and stability. The marauding wars of petty neighboring chiefs become the normal condition, only interrupted when two or three unite to carry destruction to some more powerful rival. Though the settlement of Normandy relieved Continental Europe to a great extent from the terror of the Dane, yet the still more dreaded Hun took his place and ravaged the nations from the Danube to the Atlantic, while England bore the undivided fury of the Vikings, and the Saracen left little to glean upon the shores of the Mediterranean.

When brutal ignorance and savage ferocity were the distinguishing characteristics of the age, the church could scarce expect to escape from the general debasement. It is rather a matter of grateful surprise that religion itself was not overwhelmed in the general chaos which engulfed almost all previously existing institutions. When the crown of St. Peter became the sport of barbarous nobles, or of a still more barbarous populace, we may grieve, but we cannot affect astonishment at the unconcealed dissoluteness of Sergius III., whose bastard, twenty years later, was placed in the pontifical chair by the influence of that embodiment of all possible vices, his mother Marozia.^{[324](#)} The last extreme of depravity would seem attained by John XII., but as his deposition in 963 by Otho the Great loosened the tongues of his accusers, it is possible that he was no worse than some of his predecessors. No extreme of wickedness was beyond his capacity; the sacred palace of the Lateran was turned into a brothel; incest gave a flavor to crime when simple profligacy palled upon his exhausted senses, and the honest citizens of Rome complained that the female pilgrims who formerly crowded the holy fanes were deterred from coming through fear of his promiscuous and unbridled lust.^{[325](#)}

With such corruption at the head of the church, it is lamentably ludicrous to see the popes inculcating lessons of purity, and urging the maintenance of canons which they set the example of disregarding so utterly. The clergy were now beginning to arrogate to themselves the privilege of matrimony; and marriage, so powerful a corrective of indiscriminate vice, was regarded with peculiar detestation by the ecclesiastical authorities, and awoke a far more energetic opposition than the more dangerous and corrupting forms of illicit indulgence. The pastor who intrigued in secret with his penitents and parishioners was scattering the seeds of death in place of the bread of life, and was abusing his holy trust to destroy the souls confided to his charge, but this worked no damage to the temporal interests of the church at large. The priest who, in honest ignorance of the canons, took to himself a wife, and endeavored faithfully to perform the duties of his humble sphere, could scarcely avoid seeking the comfort and worldly welfare of his offspring, and this exposed the common property of all to dilapidation and embezzlement. Disinterested virtue perhaps would not be long in making a selection between the comparative evils, but disinterested virtue was not a distinguishing characteristic of the age.

Yet a motive of even greater importance than this rendered matrimony more objectionable than concubinage or licentiousness. By the overruling tendency of the age, all possessions previously held by laymen on precarious tenure were rapidly becoming hereditary. As the royal power slipped from hands unable to retain it, offices, dignities, and lands became the property of the holders, and were transmitted from father to son. Had marriage been openly permitted to ecclesiastics, their functions and benefices would undoubtedly have followed the example. An hereditary caste would have been established, who would have held their churches and lands of right; independent of the central authority, all unity would have been destroyed, and the collective power of the church would have disappeared. Having nothing to gain from obedience, submission to control would have become the exception, and, laymen in all but name, the ecclesiastics would have had no incentive to perform their functions, except what little influence, under such circumstances, might have been retained over the people by maintaining the sacred character thus rendered a mockery.

In an age when everything was unsettled, yet with tendencies so strongly marked, it thus became a matter of vital importance to the church to prevent anything like hereditary occupation of benefices or private appropriation of property, and against these abuses its strongest efforts were directed. The struggle lasted for centuries, and it is indeed most fortunate for our civilization that sacerdotalism triumphed, even at the expense of what at the moment may appear of greater importance. I cannot here pause to trace the progress of the contest in its long and various vicissitudes. It will be found constantly reappearing in the course of the following pages, and for the present it will suffice to group together a few evidences to show how rapidly the hereditary tendency developed itself in the period under consideration.

The narrowness of the escape from ecclesiastical feudalization is well illustrated by an incident at the council of Tours, in 925, where two priests, *father and son*, Ranald and Raymond, appeared as complainants, claiming certain tithes detained from them by another priest. They gained the suit, and the tithes were confirmed to them and their successors forever.^{[326](#)} Even more suggestive is the complaint, some thirty years later, of Ratherius, Bishop of Verona, who objects strenuously to the ordination of the children sprung from these illegal marriages, as each successive father made his son a priest, thus perpetuating the scandal indefinitely throughout the church; and as he sorrowfully admits that his clergy could not be restrained from marriage, he begs them at least to bring their children up as laymen.^{[327](#)} This, however, by his own showing, would not remove the material evil, for in another treatise he states that his priests and deacons divided the church property between them, that they might have lands and vineyards wherewith to provide marriage portions for their sons and daughters.^{[328](#)} This system of appropriation also forms the subject of lamentation for Atto, Bishop of Vercelli, whose clergy insisted on publicly keeping concubines—as he stigmatizes those who evidently were wives—to whom they left by will everything that they could gather from the possessions of the church, from the alms of the pious, or from any other source, to the ruin of ecclesiastical property and to the deprivation of the poor.^{[329](#)} How well founded were these complaints is evident from a document of the eleventh century concerning the churches of St. Stephen and St. Donatus in Aretino. The priests in charge appropriated to themselves all the possessions of the

churches, including the revenues of the altars, the oblations, and the confessional. These they portioned out among each other and handed down from father to son as regularly as any other property, selling and exchanging their shares as the interest of the moment might suggest, and the successive transmission of each fragment of property is detailed with all the precision of a brief of title. The natural result was that for generations the religious services of Aretino were utterly disregarded. Sometimes the priestly owners would hire some one to ring the bells, light the candles, and minister to the altar, but in the multitude of ownerships the stipends were irregularly paid, and the officiator refused continually to serve, candles were not furnished, bell-ropes were not renewed, and even the leathers which attached the clappers to the bells were neglected. The church of St. Stephen was the cathedral of Aretino, yet the bishops were powerless to correct these abuses. The marriages of their priests they do not seem to have even attempted to repress, and were quite satisfied if they could occasionally get a portion of the revenues devoted to the offices of religion.³³⁰ The same condition of affairs existed among the Anglo-Saxons. "It is all the worse when they have it all, for they do not dispose of it as they ought, but decorate their wives with what they should the altars, and turn everything to their own worldly pomp ... Let those who before this had the evil custom of decorating their women as they should the altars, refrain from this evil custom, and decorate their churches, as they best can; then would they command for themselves both divine counsel and worldly worship. A priest's wife is nothing but a snare of the devil, and he who is ensnared thereby on to his end, he will be seized fast by the devil."³³¹

It will be observed that, as the century advanced, sacerdotal marriage became more and more common. Indeed, in 966, Ratherius not only intimates that his clergy all were married, but declares that if the canon prohibiting repeated marriages were put in force, only boys would be left in the church, while even they would be ejected under the rule which rendered ineligible the offspring of illicit unions;³³² and, in spite of his earnest asceticism, he only ventures to prohibit his clergy from conjugal intercourse during the periods likewise forbidden to laymen, such as Advent, Christmas, Lent, etc.³³³ It was not that the ancient canons were forgotten,³³⁴ nor that strenuous efforts were not made to enforce them, but that the temper of the times created a spirit of personal independence so complete

that the power of the ecclesiastical authorities seemed utterly inadequate to control the growing license. About the year 938, Gerard, Archbishop of Lorsch and Papal Legate for Southern Germany, laid before Leo VII. a series of questions relating to various points in which the ancient canons were set at naught throughout the region under his supervision. Leo answered by a decretal addressed to all the princes and potentates of Europe, in which he laments over Gerard's statement of the public marriages of priests, and replies to his inquiry as to the capacity of their children for ecclesiastical promotion. The first he pronounces forbidden by the canons, and those guilty of it he orders to be deprived of their benefices. As for the offspring of such marriages, however, he says that they are not involved in the sins of their parents.³³⁵

The unusual liberality of this latter declaration, however, was not a precedent. The church always endeavored to prevent the ordination of the children of ecclesiastics, and Leo, in permitting it, was only yielding to a pressure which he could not withstand. It was a most dangerous concession, for it led directly to the establishment of the hereditary principle. An effort was soon after made, by an appeal to the temporal power, to recover the ground lost, and about the year 940 Otho the Great was induced to issue an edict prohibiting the sons of deacons, priests, and bishops from occupying the positions of notary, judge, or count³³⁶—the bare necessity of which shows how numerous and powerful the class had already become.

Although, as early as 925, the council of Spalatro seemed to find nothing to condemn in a single marriage, but threatened excommunication against those who so far forgot themselves as to contract a second,³³⁷ and though by the middle of the century the practice had become generally established, yet some rigid prelates continued to keep alive the memory of the ancient canons by fruitless protests and ineffectual efforts at reform. In 948, the synod of Engelheim, under the presidency of Marino, Bishop of Ostia and Papal Vicar, condemned such marriages as incestuous and unlawful.³³⁸ In 952, at the council of Augsburg, the assembled German and Italian prelates made a further and more desperate effort. Deposition was pronounced

against the subdeacon, deacon, priest, or bishop who should take to himself a wife; separation of those already married was ordered, and even the lower grades of the clergy, who had not previously been subjected to any such rule, were commanded to observe the strictest continence. An attempt was also made to prevent concubinage by visiting suspected women with stripes and shaving; but there evidently was some difficulty anticipated in enforcing this, for the royal power is invoked to prevent secular interference with the sentence.^{[339](#)}

This stringent legislation of course proved utterly nugatory, but, futile as it was, it yet awakened considerable opposition. St. Ulric, in whose episcopal town of Augsburg the council was held, addressed a long epistle to the Pope, remonstrating against his efforts to enforce the rule of celibacy, and arguing the question, temperately but forcibly, on the grounds both of scriptural authority and of expediency. He pointed out how much more obnoxious to Divine wrath were the promiscuous and nameless crimes indulged in by those who were foremost in advocating the reform, than the chaste and single marriages of the clergy; and the violent distortion of the sacred texts, by those who sought authority to justify the canon, he not unhappily characterized as straining the breast of Scripture until it yielded blood in place of milk.^{[340](#)}

Despite the inefficiency of these attempts, the clergy were not always allowed to enjoy their unlawful domestic ties in peace, and, where the votaries of asceticism were bold and determined, the contest was sometimes severe. The nature of the struggle is well illustrated by the troubles which arose between Ratherius of Verona and the ecclesiastics of his diocese. In April, 967, John XIII. held a council at Ravenna which commanded those who were in holy orders to give up at once either their wives or their ministry, and Otho the Great was induced to issue a precept confirming this peremptory decree. Ratherius had long been vainly wishing for some authority on the subject more potent than the ancient and now obsolete canons, and on his return from Ravenna he summoned a synod for the purpose of promulgating the new regulations. His clergy got wind of his intention; very few of them obeyed the summons, and most of those who came boldly declared that they would neither be separated from their wives nor abandon their functions; in fact, they did not scruple to maintain that marriage was not only permissible, but even necessary to protect the church

from the most hideous vices. The utmost concession he could obtain, indeed, came from a few who endeavored to excuse themselves on the ground of poverty, which did not enable them to live without the assistance of their wives, and who professed to be willing to separate from them if they could be assured of a regular stipend.³⁴¹ Ratherius had passed through too many vicissitudes in his long and agitated career to shrink from the collision, now that he was backed by both the papal and imperial authority. He promptly threw the recalcitrant pastors into prison, declaring that they should lie there until they paid a heavy fine for the benefit of the cathedral of the Virgin, and he further commanded the presence of those who had failed to appear. The clergy of the diocese, finding that the resistance of inertia was unavailing, took more decided steps, and appealed for protection to the temporal power, in the person of Nanno, Count of Verona. He promptly espoused their cause, and his *missus* Gilbert forbade their obedience to the summons of their bishop for a year. Ratherius remonstrated vehemently against the assumption of Nanno that the priests were his vassals, subject to his jurisdiction, and entitled to protection, and he lost no time in invoking the power of Otho, in a letter to Ambrose, the Imperial Chancellor.³⁴² The clergy were too powerful; the imperial court decided against the bishop, and before the end of the year Ratherius was forced to retire from the unequal contest and to take refuge in the peaceful abbey of Lobbes, whence he had been withdrawn a quarter of a century before to fill the see of Verona. Three times had he thus been driven from that city, and an intermediate episcopate of Liège, with which one of his periods of exile was gratified, had been terminated in the same abrupt manner by the unruly clergy, unable to endure the severity of his virtue.³⁴³ How great was the revolution, to the unavailing repression of which he sacrificed his life, is shown by his declaration, two years before, that ecclesiastics differed from laymen only in shaving and the tonsure, in some slight fashioning of their garments, and in the careless performance of the church ritual. The progress of sacerdotal marriage during the preceding quarter of a century is shown by a similar comparison drawn by Ratherius some thirty years before, in which matrimony is included among the few points of difference, along with and the tonsure.³⁴⁴

That the Veronese clergy were not alone in obtaining from the secular potentates protection against these efforts on the part of reforming bishops,

is evident from the lamentations of Atto of Vercelli. That estimable prelate deplores the blindness of those who, when paternally warned to mend their evil ways, refuse submission, and seek protection from the nobles. If we may believe him, however, they gained but little by this course, for their criminal lives placed them at the mercy of the secular officials, whose threats to seize their wives and children could only be averted by continual presents. Thus they not only plundered the property of their churches, but forfeited the respect and esteem of their flocks; all reverence for them was thereby destroyed, and, living in perpetual dread of the punishment due to their excesses, in place of commanding obedience, they were exposed to constant oppression and petty tyranny.³⁴⁵

When prelates so sincere and so earnest as Ratherius and Atto were able to accomplish so little, it is easy to understand what must have been the condition of the dioceses intrusted to the great mass of bishops, who were rather feudal nobles than Christian prelates. St. Wolfgang of Ratisbon might issue thousands of exhortations to his clergy, inculcating chastity as the one indispensable virtue, and might laboriously reform his monasteries in which monks and nuns led a life almost openly secular;³⁴⁶ but he was well-nigh powerless for good compared with the potentiality of evil conveyed by the example of such a bishop as Segenfrid of Le Mans, who, during an episcopate which lasted for thirty-three years, took to himself a wife named Hildeberga, and who stripped the church for the benefit of his son Alberic, the sole survivor of a numerous progeny by her whom he caused to be revered as his *Episcopissa*;³⁴⁷ or of Archembald, Archbishop of Sens, who, taking a fancy to the Abbey of St. Peter, drove out the monks and established a harem of concubines in the refectory, and installed his hounds and hawks in the cloister.³⁴⁸ Guarino of Modena might hope to stem the tide of license by refusing preferment to all who would not agree to hold their benefices on a sort of feudal tenure of chastity;³⁴⁹ but he had much less influence on his age than such a man as Alberic of Marsico, whose story is related as a warning by Peter Damiani. He was married (for, in the language of Damiani, “*obscæna meretricula*” may safely be translated a wife), and had a son to whom he transferred his bishopric, as though it had

been an hereditary fief. Growing tired of private life, however, he aspired to the abbacy of Monte Casino. That humble foundation of St. Benedict had become a formidable military power, of which its neighbors the Capuans stood in constant dread. Alberic leagued with them, and a plot was laid by which the reigning abbot's eyes were to be plucked out and Alberic placed in possession, for which service he agreed to pay a heavy sum, one-half in advance, and the rest when the abbot's eyes should be delivered to him. The deed was accomplished, but while the envoys were bearing to Alberic the bloody tokens of success, they were met by tidings of his death, and on comparing notes they found that he had expired at the very moment of the perpetration of the atrocious crime.^{[350](#)}

So St. Abbo of Fleury might exhaust his eloquence in inculcating the beauty and holiness of immaculate purity, and might pile authority on authority to demonstrate the punishments which, in this world and the next, attended on those who disobeyed the rule;^{[351](#)} yet when he endeavored, in the monastery of La Réole, a dependency on his own great abbey of Fleury, to put his precepts into practice, the recalcitrant monks flew to arms and murdered him in the most brutal manner, not even sparing the faithful Adalard, who was reverently supporting the head of his beloved and dying master.^{[352](#)} Damiani might well exclaim, when bewailing the unfortunate fate of abbots, on whom was thrown the responsibility of the morals of their communities—

Phinees si imitatur,
Fugit vel expellitur;
Si Eli, tunc irridetur
Atque parvipenditur;
Odiosus est, si fervens,
Et vilis, si tepidus.^{[353](#)}

How little disposed were the ecclesiastical authorities in general to sustain the efforts of puritans like St. Abbo was clearly shown in the council of St. Denis, convened in 995 for the purpose of restoring the neglected discipline of the church, when, passing over the object of its assembling, the reverend fathers devoted their whole attention to the more practically interesting question of tithes.^{[354](#)}

All prelates, however, were not either feudal chiefs or ascetic puritans. Some, who were pious and virtuous, had so far become infected with the prevailing laxity that they regarded the stricter canons as obsolete, and offered no opposition to the domestic aspirations of their clergy. Thus Constantine, Abbot of the great house of St. Symphorian of Metz, in his life of Adalbero II., who was Bishop of Metz from 984 to 1005, actually praises him for his liberality in not refusing ordination to the sons of priests, and attributes discreditable motives to those bishops who insisted on the observance of the canons prohibiting all such promotions.³⁵⁵ As Constantine was a monk and a disciple of Adalbero, the tone which he adopts that the higher prelates and the regular clergy were beginning to recognize sacerdotal marriage as a necessity of the age. This view is strengthened by the fact that no effort to reform an abuse so universal was made at the great synod of Dortmund, held in 1005 for the special purpose of restoring the discipline of the church.³⁵⁶

How completely, indeed, marriage came to be regarded as a matter of course is manifest when, in 1019, an assembly of German bishops, with the Emperor St. Henry at their head, gravely deliberated over the knotty question whether, when a noble permitted his serf to enter into holy orders, and the serf, presuming upon his new-born dignities and the wealth of his benefices, married a free woman and endeavored to withhold his children from the servitude which he still owed to his master, such infraction of his master's rights could be permitted out of respect to his sacerdotal character. Long and vehement was the argument among the learned prelates, until finally St. Henry decided the point authoritatively by pronouncing in favor of the servitude of the children.³⁵⁷

But perhaps the most instructive illustration of the character and temper of the age may be found in the three prelates who for more than a century filled the rich and powerful archiepiscopal see of Rouen. Hugh, whose episcopate lasted from 942 to 989, was nominated at a period when William Longsword, Duke of Normandy, was contemplating retirement from the world to shroud his almost regal dignity under the cowl of the monk, yet what little is known of his archbishop is that, though he was a monk in habit, he was an habitual violator of the laws of God³⁵⁸—in short, we may presume, a man well suited to the wild half-pagan times which witnessed

the assassination of Duke William and the minority of Richard the Fearless. On his death, in 989, Duke Richard, whose piety was incontestably proved by the liberality of his monastic foundations and by his zeal for the purity of his monkish protégés,³⁵⁹ filled the vacant see with his son Robert, who held the position until 1037. Robert was publicly and openly married, and by his wife Herleva he had three sons, Richard, Rodolf, and William, to whom he distributed his vast possessions. Ordericus, the conscientious cenobite of the twelfth century, looks, in truth, somewhat askance at this disregard of the rules accepted in his own time,³⁶⁰ yet no blame seems to have attached to Robert in the estimation of his contemporaries. The family chronicler characterizes him as “Robert bons clers, honestes hom,” and assures us that he was highly esteemed as a wise and learned prelate

Li secunz fu genz e aperz
Et si fu apelez Roberz.
Clerc en firent, mult aprist bien,
Si fi sage sor tote rien;
De Roem out l’arcevesquié
Honoré fu mult e preisié.³⁶¹

His successor, Mauger, son of Duke Richard II., and archbishop from 1037 to 1054, was worthy of his predecessors. Abandoned to worldly and carnal pleasures, his *legitimate* son Michael was a distinguished knight, and half a century later stood high in the favor of Henry I. of England, in whose court he was personally known to the historian.³⁶² The times were changing, however, and Mauger felt the full effects of reformatory zeal, for he was deposed in 1054; the see was bestowed on St. Maurilio, a Norman, who as abbot of Santa Maria in Florence had been driven out and nearly poisoned to death by his monks on account of the severity of his rule, and the Norman clergy, as we shall see hereafter, experienced their share of suffering in the mutation of discipline.

Notwithstanding this all-pervading laxity, the canons of the church remained unaltered, and their full force was theoretically admitted. Hopeless efforts, moreover, were occasionally made to re-establish them, as

in the council of Anse in 990, which reminded the clergy that intercourse with wives after ordination was punishable with forfeiture of benefice and deprivation of priestly functions;³⁶³ and in that of Poitiers about the year 1000, which prohibited concubines under pain of degradation.³⁶⁴ In a similar spirit, a Penitential of the period recapitulates the severe punishments of a former age, involving degradation and fearfully long terms of penance.³⁶⁵ All this, however, was practically a dead letter. The person who best represents the active intelligence of the age was Gerbert of Aurillac, the most enlightened man of his time, who, after occupying the archiepiscopal seats of Rheims and Ravenna, finally became pope under the name of Sylvester II. The lightness with which he treats the subject of celibacy is therefore fairly a measure of the views entertained by the ruling spirits of the church, beyond the narrow bounds of cloistered asceticism. Gerbert, describing in a sermon the requisites of the episcopal and sacerdotal offices, barely refers to the “unius uxoris vir,” which he seems to regard in an allegorical rather than in a literal sense; he scarcely alludes to chastity, while he dilates with much energy on simony, which he truly characterizes as the almost universal vice of his contemporaries.³⁶⁶ So when, in 997, he convened the council of Ravenna to regulate the discipline of his church, he paid no attention whatever to incontinence, while strenuously endeavoring to root out simony.³⁶⁷ At an earlier period, while Abbot of Bobbio, in an epistle to his patron, the Emperor Otho II., refuting various calumnies of his enemies, he alludes to a report of his having a wife and children in terms which show how little importance he attached to the accusation.³⁶⁸

Such, at the opening of the eleventh century, was the condition of the church as regards ascetic celibacy. Though the ancient canons were still theoretically in force, they were practically obsolete everywhere. Legitimate marriage or promiscuous profligacy was almost universal, in some places unconcealed, in others covered with a thin veil of hypocrisy, according as the temper of the ruling prelate might be indulgent or severe. So far, therefore, Latin Christianity had gained but little in its struggle of six centuries with human nature. Whether the next eight hundred years will show a more favorable result remains for us to develop.

Before proceeding, however, to discuss the events of the succeeding century, it will be well to cast a rapid glance at a portion of Christendom, the isolation of which has thus far precluded it from receiving attention.

XI. SAXON ENGLAND.

Whatever of virtue or purity may have distinguished the church of Britain under Roman domination was speedily extinguished in the confusion of the Saxon occupation. Gildas, who flourished in the first half of the sixth century, describes the clergy of his time as utterly corrupt.³⁶⁹ He apparently would have been satisfied if the bishops had followed the Apostolic precept and contented themselves with being husbands of one wife; and he complains that instead of bringing up their children in chastity, the latter were corrupted by the evil example of their parents.³⁷⁰ Under Saxon rule, Christianity was probably well-nigh trampled out, except in the remoter mountain districts, to be subsequently restored in its sacerdotal form under the direct auspices of Rome.

Meanwhile, the British Isles were the theatre of another and independent religious movement. While the Saxons were subverting Christianity in Britain, St. Patrick was successfully engaged in laying the foundations of the Irish church.³⁷¹ We have seen (p. 76) that celibacy was not one of the rules enforced in the infant Irish church; but this was of comparatively little moment, for that church was almost exclusively monastic in its character, and preserved the strictest views as to the observance of the vows by those who had once taken them.³⁷² That the principles thus established were long preserved is evident from a curious collection of Hibernian canons, made in the eighth century, of which selections have been published by d'Achery and Martène. Some of these are credited by the compilers to Gildas, and thus show the discipline of the early British as well as of the Irish church.³⁷³ Their tendency is towards the purest asceticism. A penance of forty days was even enjoined on the ecclesiastic who, without thought of evil, indulged in the pleasure of converse with a woman.³⁷⁴ So in Ireland, a council held in 672 decrees that a priest guilty of unchastity, although removable according to the strict rule of discipline, may be allowed, if truly contrite, to retain his position on undergoing ten years of penitence³⁷⁵—an

alternative, one might think, rather of severity than of mercy. One canon attributed to Gildas shows that in the British monastic system unchastity was considered the most heinous of offences, and also that it was sufficiently common;³⁷⁶ while another alludes to the same vice among prelates as justifying immediate excommunication.³⁷⁷

The missionary career by which the Irish church repaid the debt that it owed to Christianity is well known, and the form of faith which it spread was almost exclusively monastic. Luanus, one of the monks of Benchor, is said to have founded no less than a hundred monasteries;³⁷⁸ and when Columba established the Christian religion in Scotland, he carried with him this tendency to asceticism and inculcated it among his Pictish neophytes. His Rule enjoins the most absolute purity of mind as well as body;³⁷⁹ and that his teachings were long obeyed is evident when we find that, a hundred and fifty years later, his disciples are praised for the chastity and zeal of their self-denying lives by the Venerable Bede, who was fully alive to the importance of the rule, and who would have wasted no such admiration on them had they lived in open disregard of it.³⁸⁰ Equally convincing is the fact that Scotland and the Islands were claimed to be under the supremacy of the see of York, and that during the long controversy requisite to break down their schismatic notions respecting the date of Easter and the shape of the tonsure, not a word was said that can lead to the supposition that they held any unorthodox views on the far more important subject of sacerdotal purity.³⁸¹

When, a hundred and fifty years after the Anglo-Saxon invasion, Gregory the Great undertook the conversion of the islanders, the missionaries whom he despatched under Augustin of course carried with them the views and ideas which then held undisputed sway in Rome. Apparently, however, asceticism found little favor at first with the new converts, rendering it difficult for Augustin to obtain sufficient co-laborers among his disciples, for he applied to Gregory to learn whether he might allow those who could not restrain their passions to marry and yet remain in the ministry. To this Gregory replied evasively, stating, what Augustin already knew, that the

lower grades might marry, but making no reference whatever to the higher orders.³⁸² He apparently did not wish to assume the responsibility of relaxing the rule, while willing perhaps to connive at its suspension in order to encourage the infant Anglican church. If so, the indulgence was but temporary.

The attempt has been made to prove that marriage was permitted in the early Saxon church, and support for this supposition has been sought from a clause in the Doms of King Ina, of which the date is about the year 700, fixing the wer-gild of the son of a bishop. But the rubric of the law shows that it refers rather to a godson;³⁸³ and even if it were not so, we have already seen how often in France, at the same period, the episcopal office was bestowed on eminent or influential laymen, who were obliged on its acceptance to part with their wives. The Magdeburg Centuriators, indeed, describe a council held in London in 712 or 714, by which image-worship was introduced and separation between priests and their wives was decreed,³⁸⁴ but there is no authority cited, nor is such an assembly elsewhere alluded to, even Cave pronouncing it evidently supposititious.³⁸⁵

These speculations are manifestly groundless. The celebrated Theodore, who was Archbishop of Canterbury from 668 to 690, in his *Liber Pœnitentialis*, forbids the marriage of the clergy under pain of deposition, and all intercourse with such wives was punished by lifelong penance as laymen; not only were digami ineligible to ordination, but also even those who had kept concubines; and the zeal for purity is carried so far that even baptism performed by priests guilty of fornication was pronounced invalid and had to be repeated—an expression of reprobation which it would be hard to parallel elsewhere in the history of the church.³⁸⁶ When such were the views of the primate, and such were the laws which he prescribed, we cannot imagine that under his vigorous rule these canons were permitted to be inoperative in a church sufficiently enlightened to produce the learning and piety of men like Bede and St. Aldhelm; where the admiration of virginity was as great as that which finds utterance in the writings of these fathers,³⁸⁷ and the principles of asceticism were so influential as to lead a powerful monarch like Ina to retire with his queen, Ethelberga, from the throne which he had gloriously filled, to the holy restrictions of a monastic life.

Ecgberht, who was Archbishop of York from 732 to 766, is almost equally decisive in his condemnation of priestly irregularities, though he returned to the received doctrine of the church that baptism could not be repeated.³⁸⁸ It is also probable that even the Britons, who derived their Christianity from the older and purer sources of the primitive church, preserved the rule with equal reverence. At the request of a national council, St. Aldhelm addressed an epistle to the Welsh king, Geruntius, to induce him to reform his church so as to bring it within the pale of Catholic unity. To accomplish this, he argues at length upon the points of difference, discussing the various errors of faith and discipline, such as the shape of the tonsure, the date of Easter, &c., but he is silent with regard to marriage or concubinage.³⁸⁹ Had the Welsh church been schismatic in this respect, so ardent a celibatarian as Aldhelm would certainly not have omitted all reference to a subject of so much interest to him. The inference is therefore justifiable that no difference of this nature existed.

We may fairly conclude that the discipline of the church in these matters was reasonably well maintained by the Saxon clergy, with the exception of the monasteries, the morals of which institutions appear to have been deplorably and incurably loose. About the middle of the seventh century John IV. reproves the laxity of the Saxon monasticism under which the holy virgins did not hesitate to marry.³⁹⁰ In 734 we find Bede, in an epistle to Ecgberht of York, advising him to create suffragan bishoprics and to endow them from the monastic foundations, of which there were a countless number totally neglectful of all monastic discipline, whose reformation could apparently be accomplished in no other way.³⁹¹ St. Boniface, whose zeal on the subject has already been sufficiently made manifest, about the year 746 paused in his reformation of the French priesthood to urge upon Cuthbert, Archbishop of Canterbury, the necessity of repressing the vices of the Saxon ecclesiastics. He dwells at considerable length upon their various crimes and misdemeanors—drunkenness, unclerical garments, neglect of their sacred functions, &c.—but he does not accuse them of unchastity, which he could not well have avoided doing had there been colorable grounds for such a charge. In fact, the only allusion connected with the question in his epistle is a request that some restrictions should be laid upon the permissions granted to women and nuns for pilgrimage to Rome, on account of the attendant dangers to their virtue; in illustration of which he

states the lamentable fact that scarcely a city in Lombardy, France, or the Rhinelands but had Saxon courtesans derived from this source, to the shame and scandal of the whole church.³⁹²

Pope Zachary seconded these representations, and in 747 Cuthbert, yielding to the impulsion, held the celebrated council of Clovesho, which adopted thirty canons on discipline, to remedy the disorders enumerated by Boniface. Among these, the only ones directed against unchastity relate solely to the nunneries, which were represented as being in a condition of gross immorality.³⁹³ The council does not spare the vices of the secular clergy, and its silence with respect to their purity fairly permits the inference that there was not much to correct with regard to it, for had licentiousness been so prevalent that Cuthbert had feared to denounce it, or had sacerdotal marriage been passed over as lawful, the zeal of St. Boniface would have led to an explosion, and Zachary would not have sanctioned the proceedings by his approval.

The same argument is applicable to the council of Chelsea, held in 787 by the legates of Adrian I., under the presidency of Gregory, Bishop of Ostia. The vices and shortcomings of the Anglican church were there sharply reproved, but no allusion was made to any unchastity prevailing among the priesthood, with the exception, as before, of nuns, on whom we may infer that previous reformatory efforts had been wasted;³⁹⁴ and in an epistle from Alcuin to Ethelred King of Northumbria near the close of the century there is the same reference to nuns, without special condemnation of the other classes of the clergy.³⁹⁵ That this reticence did not arise from any license granted for marriage is conclusively shown by the interpolation of the word *laicus* in the text I. Cor. vii. 2, which is quoted among the canons adopted.³⁹⁶ To the same effect are the canons of the council of Chelsea, in 816, in which the only allusion to such matters is a provision to prevent the election of unfit persons to abbacies, and to punish monks and nuns who secularize themselves.³⁹⁷

On the other hand, it is true that about this time St. Swithun, after obtaining orders, was openly married; but his biographer states that he had a special dispensation from Leo III., and that he consented to it because, on the death of his parents, he was the sole representative of his family.³⁹⁸ As

Swithun was tutor to Ethelwulf, son of King Ecgberht, the papal condescension is by no means impossible.

Such was the condition of the Anglo-Saxon church at this period. During the century which follows, the materials for tracing the vicissitudes of the question before us are of the scantiest description. The occasional councils which were held have left but meagre records of their deliberations, with few or no references to the subject of celibacy. It is probable, however, that a rapid deterioration in the strictness of discipline occurred, for even the power of the great Bretwalda Ecgberht was unequal to the task of repressing effectually the first invasions of the Northmen, and under his feebleness successors they grew more and more destructive, until they culminated in the anarchy which gave occasion to the romantic adventures of Alfred.

It is to this period of darkness that we must attribute the introduction of sacerdotal marriage, which became so firmly established and was finally so much a matter of course that it attracted no special attention, until the efforts made for its abrogation late in the succeeding century. When Alfred undertook to restore order in his recovered kingdom, the body of the laws which he compiled contains no allusion to celibacy, except as regards the chastity of nuns. The same may be said of the constitutions of Odo, Archbishop of Canterbury, to which the date of 943 is attributed, although they contain instructions as to the conduct of bishops, priests, and clerks³⁹⁹—whence we may infer that the marriage even of consecrated virgins was not uncommon, and that it was the only infraction of the rule which aroused the opposition of the hierarchy. Simple immorality called forth an occasional enactment, as in the laws of Edward and Guthrun about the year 906, and in those of Edmund I. in 944,⁴⁰⁰ yet even to this but little attention seems to have been attracted, until St. Dunstan undertook a reformation which was sorely needed.

St. Dunstan himself, although regularly bred to the church, with the most brilliant prospects both from his distinguished abilities and his powerful kindred, betrothed himself in marriage after receiving the lower orders. His

uncle, St. Elphege, Bishop of Winchester—apparently a churchman of the stricter school—vehemently opposed the union, but Dunstan was immovable in his determination. Elphege, finding his worldly wisdom set at naught, appealed to the assistance of heaven. His prayer was answered, and Dunstan was attacked with a mysterious and loathsome malady, under which his iron resolution gave way. He sought Elphege, took the monastic vow (the only inseparable bar to matrimony), and was ordained a priest.⁴⁰¹ This stern experience might have taught him charity for the weakness of natures less unbending than his own, but his temperament was not one to pause half-way. If, too, religious conviction urged him to the task of restoring the forgotten discipline of the church, worldly ambition might reasonably claim its share in his motives. He could not but feel that his authority would be vastly enhanced by rendering the great ecclesiastical body dependent entirely upon him as the representative of Rome, and by sundering the ties which divided the allegiance due wholly to the church.

The opportunity to effect a reformation presented itself when the young king, Edgar the Pacific, in 963 violated all the dictates of honor and religion in his adventure with the nun at Wilton. Her resistance attested her innocence, and the birth of a daughter did not prevent her subsequent canonization as St. Wilfreda; but Edgar's crime and remorse were only the more heightened. When the terror-stricken king sought pardon and absolution, Dunstan was prepared with his conditions. Seven years of penitence, during which he was to abstain from wearing the crown, was the personal infliction imposed on him, but the most important portion of the sentence was that by which the vices of the king were to be redeemed by the enforced virtues of his subjects. He promised the founding of monasteries and the reformation of the clergy; and his implicit obedience to the demands of his ghostly judge is shown, perhaps, less in the fact that his coronation did not take place until 973, than in the active measures immediately set on foot with respect to the morals of the ecclesiastics.⁴⁰²

That their morals, indeed, needed reformation is the unanimous testimony of all the chroniclers of the period. Among all the monasteries of England, formerly so noted for their zeal and prosperity, only those of Glastonbury and Abingdon were inhabited by monks.⁴⁰³ The rest had fallen into ruin, or were occupied by the secular clergy, with their wives, or worse,

and were notorious as places of the most scandalous dissipation and disorder.⁴⁰⁴ So low was the standard of morality that priests even scrupled not to put away the wives of whom they grew tired, and to form new connections, of open and public adultery;⁴⁰⁵ and so common had this become that a code of ecclesiastical law, probably drawn up about this time, reproves this systematic bigamy, and appears to tacitly authorize marriage as legitimate and honorable.⁴⁰⁶ One author declares that none but paupers could be found willing to bind themselves by monastic vows;⁴⁰⁷ and another asserts, with every show of reason, that the clergy were not only not superior to the laity in any respect, but were even far worse in the scandals of their daily life.⁴⁰⁸

When King Edgar made his peace with the church by consenting to the vicarious penitence of the priesthood, three rigid and austere monks were the ardent ministers of the royal determination. Of St. Dunstan, the primate of England, I have already spoken. St. Ethelwold, his pupil, Abbot of Abingdon, was elevated to the see of Winchester, and commenced the movement by expelling the occupants of the monastery there. A few who consented to take monastic vows were allowed to remain, and the remainder were replaced by monks; but even St. Ethelwold's rigor had to bend to the depravity of the age, and he was forced to relax the rigidity of discipline in non-essentials in order to obtain recruits of a better class.⁴⁰⁹ The difficulties he encountered are indicated by the legend which relates that he was poisoned in his wine and carried from table to his couch in excruciating torment, where he lay hopeless till, reproaching himself with want of faith, he repeated the text—"Et si mortiferum quid biberint, non eis nocebitur," and was cured on the instant.⁴¹⁰ That his canons were quite capable of such an attempt may be assumed from the description given of them in the bull procured by Dunstan from John XIII., authorizing their ejection by the king. The pope does not hesitate to stigmatize them as vessels of the devil, hateful to all good Christians on account of their inveterate and ineradicable wickedness.⁴¹¹

The third member of the reforming triumvirate was St. Oswald, Bishop of Worcester, who undertook a similar transformation of the clergy occupying the monastery of St. Mary in his cathedral city. Many promises they made to conform to his wishes, and many times they eluded the

performance, till, losing patience with the prolonged procrastination, he one day entered the chapel with a quantity of monkish habits as they were vigorously chanting “Servite Domino in timore,” when he made practical application of the text by forcing them to put on the garments and take the vows on the spot, under the alternative of instant expulsion.⁴¹²

These proceedings met the unqualified approbation of Edgar, who in 964, by his “Charter of Oswalde’s Law,” confirmed the ejection of the recusants who refused to part with their wives, and transferred all their rights and possessions to the newcomers. In the same document he boasted that he had instituted forty-seven abbeys of monks and nuns, and that he hoped to increase the number to fifty.⁴¹³ The same year a similar summary process was carried out in the convents of Chertsey and Winchester;⁴¹⁴ and in 966 Edgar was able to boast of the numerous religious houses throughout England which he had purified by replacing lascivious clerks with pious monks.⁴¹⁵

These efforts, however, tended only to restore the monastic foundations to their original position, and left the secular clergy untouched, except in so far as a few of them were deprived of the comfortable quarters which they had usurped in the abbeys. This immunity it was no part of Dunstan’s plan to permit, and accordingly Edgar issued a series of laws restoring the obsolete ecclesiastical discipline throughout his kingdom. By this code a lapse from virtue on the part of a priest or monk was visited with the same penalty as homicide, with a fast of ten years; for a deacon the period of penitence was seven years; for the lower grades, six years. The monk, priest, or deacon who maintained relations with his wife was subjected to the same punishment; but there is no mention of degradation or deprivation of benefice.⁴¹⁶

The struggle was long, and at one time the three reformers seem to have grown wearied with the stubborn resistance which they met, while the zeal of King Edgar grew more fiery as, with the true spirit of the huntsman, he followed up the prey, his ardor increasing as the chase grew more difficult. In 969 he eloquently addressed Dunstan, Ethelwold, and Oswald, blaming their lukewarmness in the good cause, and promising them every support and assistance in removing this opprobrium from the church.⁴¹⁷ Stimulated

by these reproaches, Dunstan summoned a council which adopted a canon depriving unchaste priests of their benefices.⁴¹⁸ Still the conflict continued, and a charter dated in 974, the last year of Edgar's reign, shows that he persevered to the end with unabated zeal.⁴¹⁹

The contumacious clerks may have been silenced; they were not subdued, and they but waited their opportunity. It came in 975, with the early death of Edgar and with the dissensions caused by his widow, Elfritha, who endeavored to deprive of the succession his eldest son, the youthful Edward, fruit of a former marriage. During the confusion, the ejected priests banded together and bribed Elfhre, the powerful Ealdorman of Mercia, together with some other magnates, to espouse their cause. In many abbeys the regulars were expelled and the priests with their wives were reinstated. In East Anglia, however, the nobles took sides with the monks, and, rising in arms, valiantly defended the monasteries. At length, on the accession of Edward, a council was assembled to make final disposition of the question. The married priests were present, and promised amendment; their noble protectors pleaded earnestly for them; the boy-king was moved, and was about to pronounce in their favor, when a miracle preserved the purity of the church. The council was sitting in the refectory of the monastery of Hyde, the headquarters of the ascetic party; Edward and Dunstan were enthroned separately from the rest, with their backs to a wall on which, between them, hung a small crucifix. At the critical moment, just as the king was yielding, the crucifix spoke, in a low tone inaudible to all save Edward and the primate, "Let not this thing be done"—the mandate was imperative, and the married clergy lost their cause.⁴²⁰

Still the stubborn priests and their patrons held out, and another miracle was necessary—this time a more impressive one. A second council was called to discuss the matter, and was held at Calne in 978. During the heat of the argument the floor gave way, carrying with it the whole assembly, except St. Dunstan, who remained triumphantly and miraculously perched upon a joist, while his adversaries lay groaning below, in every variety of mutilation.⁴²¹ His triumph, however, was but short. The same year the pious

child Edward perished through the intrigues of Elfritha, whose son, Ethelred the Unready, succeeded to the throne. The mixed political and religious character of these events is shown by the canonization of Edward, who, though yet a child, was regarded as a martyr by the ascetics, whose cause he had espoused.

As Elfritha had evidently sought the alliance of the secular clergy to strengthen her party, her success proved disastrous to the cause of reform. The respite of peace, too, which had blessed the island during the vigorous reigns of Athelstan the Magnificent and Edgar the Pacific, gave place to the ravages invited by the feeble and vacillating policy of Ethelred the Unready; the incursions of the pagan Danes became more and more frequent and terrible; and what little respect had been inculcated for the strictness of discipline was speedily forgotten in the anarchy which ensued.

The efforts of the reformers appear to have extended even to the British churches of Wales, which had followed Saxon example in abandoning celibacy. The *Brut y Tywysogion* relates that about the year 861 the priests were forbidden to marry without dispensation from the pope; but they did not submit, and the disturbances thus provoked rendered necessary the abandonment of the effort, so that sacerdotal marriage continued unchecked.⁴²² We shall see hereafter that in the Principality the custom remained in full vigor until the thirteenth century was well advanced.

How thoroughly the work of Dunstan and Edgar was undone in England is sufficiently indicated by the efforts made not long after, with the consent of Ethelred, to introduce some feeble restraints upon the prevailing immorality. About the year 1006 we find the chief monastery of England, Christ Church at Canterbury, in full possession of the secular clergy, whose irregularities were so flagrant that even Ethelred was forced to expel them, and to fill their places with monks.⁴²³ What was the condition of discipline among the secular priests may be guessed from the reformatory efforts of St. Ælfric, who was Archbishop of Canterbury from 995 to 1006. In his series of canons the first eight are devoted to inculcating the necessity of continence; after quoting the Nicene canon, he feels it to be so much at variance with the habits and customs of the age, that he actually deprecates the surprise of his clergy at hearing a rule so novel and so oppugnant to the received practice, "as though there was no danger in priests living as

married men;" he anticipates the arguments which they will bring against him, and refutes them with more gravity than success.⁴²⁴ There is also extant, under the name of St. Ælfric, a pastoral epistle, which is regarded as supposititious by some critics; but its passages on this subject are too similar in spirit to the canons of Ælfric to be reasonably rejected. They show how hopeless was the effort to maintain the purity desired by the ecclesiastical authorities, and that entreaties and exhortations were uttered merely from a sense of duty, and with hardly an expectation of commanding attention. "This, to you, priests, will seem grievous, because ye have your misdeeds in custom, so that it seems to yourselves that ye have no sin in so living in female intercourse as laymen; and say that Peter the Apostle had a wife and children.... Beloved, we cannot now forcibly compel you to chastity, but we admonish you, nevertheless, that ye observe chastity, so as Christ's ministers ought, in good reputation, to the pleasure of God."⁴²⁵

That these well-meant homilies effected little in reforming the hearts of so obdurate a generation becomes manifest by the proceedings of the council of Enham, held by King Ethelred in 1009. The priests are there entreated, by the obedience which they owe to God, to observe the chastity which they know to be due. Yet so great was the laxity prevailing that some are stated to have two or more wives, and many to be in the habit of changing their spouses at pleasure, in violation of all Christian law. The council was apparently, however, powerless to repress these scandals by an adequate punishment, and contented itself with promising to those who lived chastely the privileges and legal status of nobles, while the vicious were vaguely threatened with the loss of the grace of God and man.⁴²⁶

The injunctions of the council as regards the regular clergy, though not particularly specific in their nature, show that even the monks had not responded to the benefits conferred upon them by Edgar the Pacific, nor fulfilled the expectations of the pious Dunstan. An expression employed, indeed, leads the learned Spelman to suggest that there possibly were two orders of monks, the one married and the other unmarried; but this is probably without foundation.⁴²⁷

Such was the condition of the church when the increasing assaults of the Northman finally culminated in overthrowing the house of Cerdic, and placing the hated Dane upon the throne of England. Cnut's long and prosperous reign, and his earnest veneration for the church, as shown by his pilgrimage to Rome, may perhaps have succeeded in removing some of the grosser immoralities of the clergy, but that marriage was still openly and unrestrainedly practised by those in orders is evident. The ecclesiastical laws of Cnut exhort priests to chastity in precisely the same words, and with the same promises as the canons of the council of Enham, but do not allude to the habit of keeping a plurality of wives; while, in the same chapter, a warning to the whole people against unlawful concubinage would seem to indicate that clergy and laity were bound by rules identical in strictness.⁴²⁸

That the rule of celibacy was recognized as only binding on the regulars, or monks, and that the secular priesthood were at full liberty to marry is evident from the system of purgation enjoined on them by the same code. The priest who was also a monk (*sacerdos regulariter vivens*—*sacerd þe regollice libbe*), could clear himself from an accusation in a simple suit by merely saying mass, and taking the communion, while the secular priest (*plebeius sacerdos*—*mæssepreorst þe regol-lif næbbe*) is only equal to the deacon-monk (*diaconus regularis*—*diacon þe regollice libbe*), requiring two of his peers as compurgators.⁴²⁹ The significance of the distinction thus drawn is rendered clear by the version of the passage in a curious Latin text of the code published by Kolderup-Rosenvinge. The chapter is divided into two, the first one with the rubric "*De Sacerdotibus*," and commencing "*Si contigerit presbyterum regulariter et caste viventem*," &c., while the second is headed "*De vulgare sacerdote non casto*," the meaning of which is defined in the expression "*Si vulgaris presbyter qui non regulariter vivit*."⁴³⁰ It is thus evident that purity was expected from those only who had entered into the obligations of monastic life, and also that the reforms of Dunstan had caused the ministers of the altar to be frequently selected from among the monks.

To this period are also, in all probability, to be attributed the "Institutes of Polity, civil and ecclesiastical," to which reference has been made in the preceding section as blaming priests for decorating their wives with the ornaments belonging to their churches. Unable to denounce efficient

penalties for the prevention of such evil practices, the author is obliged to content himself with invoking future punishment from heaven, in vague and meaningless threats—"A priest's wife is nothing but a snare of the devil, and he who is ensnared thereby on to his end, he will be seized fast by the devil."⁴³¹

From all this it is evident that the memory of the ancient canons was not forgotten, and that their observance was still urged by some ardent churchmen, but that the customs of the period had rendered them virtually obsolete, and that no sufficient means existed of enforcing obedience. If open scandals and shameless bigamy and concubinage could be restrained, the ecclesiastical authorities were evidently content. Celibacy could not be enjoined as a law, but was rendered attractive by surrounding it with privileges and immunities denied to him who yielded to the temptations of the flesh, and who thus in some degree assimilated his sacred character to that of the laity.

The Saxon church thus was practically regardless of the rule of celibacy when Edward the Confessor ascended the throne. The ascetic piety of that prince and his Norman education alike led him to abhor the sensual indulgences in which he found his subjects plunged, and he attached himself almost exclusively to the horde of Norman monks who flocked to his court from across the Channel. Their influence was all-powerful, and though reasons of the highest state necessity forced him to ally himself in marriage with Edith, daughter of the puissant Duke Godwin, whom Edward hated with all the energy of his feeble nature, it was not difficult for his artful ghostly counsellors to persuade him that a vow of virginity, taken and kept amid the seductions of a throne, would insure his glory in this world and his salvation in the next. A minstrel historian describes at length the engagement of perpetual chastity entered into between Edward and Edith at their marriage, and though he mentions the popular derision to which this exposed the royal monk at the hands of a gross and brutal generation, he is firmly persuaded that the crown of martyrdom was worthily won and worn

Par veinere charnel desir,
Bein deit estre clamez martir.
Ne sai cunter en nul estoire
Rei ki feist si grant victoire,
Sa char, diable e mund venqui,
Ki sont troi fort enimi.⁴³²

How little the royal pair expected this example to be followed and how relaxed were all the rules of monastic discipline is shown by an anecdote of the period. The austere Gervinus, Abbot of St. Riquier in Ponthieu was always welcomed by them when he visited England, and on one occasion Queen Edith offered to kiss him. The Abbot's rigidity overcame his courtliness and he refused the royal salutation, to the great indignation of the Queen, who ordered certain gifts which she had set apart for him to be withdrawn. Edward, however, approved of the action of the monk, and after Edith had been made to understand his motives she not only joined in applauding him but demanded that a similar rule should be made imperative on all the monks of England.⁴³³

It cannot be doubted that Edward made efforts to effect a reform among his sensual and self-indulgent subjects, but his want of success is developed in the description of the Saxon clergy at the time of the Conquest. The Norman chroniclers speak of them as abandoned to sloth, ignorance, and the lusts of the flesh; even monastic institutions were matters rather of tradition than of actual existence, and the monks themselves were hardly distinguishable by their mode of life from the laity.⁴³⁴ There doubtless may be some contemptuous exaggeration in this, and yet one author of the period, who is wholly Saxon in his feelings, does not hesitate to attribute the ruin of the Saxon monarchy and the devastation of the kingdom to the just wrath of God, provoked by the vices of the clergy.⁴³⁵

The rule of the Normans removed England from her isolation. Brought into the commonwealth of Christendom and under the active supremacy of the Holy See, her history henceforth becomes more closely connected with

the general ecclesiastical movement which received its irresistible impulsion about this period. That movement it is now our business to examine.

XII.

PETER DAMIANI.

In a previous section I have shown the laxity prevailing throughout Continental Europe at the commencement of the eleventh century. It is not to be supposed, however, that even where this was tacitly permitted, it was openly and unreservedly authorized. The perversity of a sinful generation might render impossible the enforcement of the ancient canons; they might even be forgotten by the worldly and unthinking; but they were still the law of the church, and their authority was still admitted by some ardent devotees who longed to restore the purity of earlier ages. Burckhardt, who was Bishop of Worms from the year 1000 to 1025, in his voluminous collection of canons, gives a fair selection from the councils and decretals prohibiting all female intercourse to the clergy.⁴³⁶ Benedict VIII. and the Emperor St. Henry II.—whose admiration of virginity was evinced by the personal sacrifice to which reference has just been made—in 1022 endeavored in the most solemn manner to reform the universal laxity. At the synod of Pavia a series of canons was adopted pronouncing sentence of deposition upon all priests, deacons, and subdeacons having wives or concubines, and upon all bishops keeping women near them, while special stress was laid upon the continued servitude of the children of all such ecclesiastics as were serfs of the church.⁴³⁷ These canons, signed by the pope and attendant bishops, were laid before the emperor, who indorsed them with his sanction, declared them to be municipal as well as ecclesiastical law, promised that their observance should be enforced by the civil magistrates, and thanked Benedict and his prelates for their vigilance in seeking a remedy for the incontinence of the clergy, the evils whereof swept like a storm over the face of Christendom.⁴³⁸

In France, the long reign of Robert the Pious seems to have been marked with almost entire indifference to the subject, but the accession of his son Henry I. was attended with a strenuous effort to effect a reform. The council of Bourges, held in November, 1031, but four months after the death of Robert, may perhaps have been assembled at the request of the dying

monarch, desirous of redeeming his own sins with the vicarious penance of his subjects. It addressed itself vigorously to eradicating the evil by a comprehensive series of measures, admirably adapted to the end in view. Priests, deacons, and subdeacons were forbidden to have wives or concubines, and all such consorts were ordered to be dismissed at once and forever. Those who refused obedience were to be degraded to the rank of lectors or chanters, and in future no ecclesiastic was to be permitted to take either wife or concubine. A vow of chastity was commanded as a necessary prerequisite to assuming the subdiaconate, and no bishop was to ordain a candidate without exacting from him a promise to take neither wife nor concubine. Children of the clergy in orders, born during the ministry of their parents, were pronounced incapable of entering the church, in justification of which was cited the provision of the municipal law which incapacitated illegitimates from receiving inheritance or bearing witness in court; but those who were born after their fathers had been reduced to the condition of laymen were not to be considered as the children of ecclesiastics.^{[439](#)}

Nothing could be more reasonable than all this, considered from the high-church stand-point, and nothing better adapted to effect the object in view. All that was wanting was the enforcement of the legislation—and laws, when opposed to the spirit of the age, are not apt to be enforced. How much was really gained by the united efforts of the pope, the emperor, and the Gallican hierarchy can readily be gathered from a few out of innumerable incidents afforded by the history of the period.

The able and energetic, though unscrupulous, Benedict VIII. was no more, and the great House of Tusculum, which ruled the Eternal City, had filled the chair of St. Peter with a worthless scion of their stock, as though to declare their contempt for the lofty pretensions of the Apostolic Episcopate. A fit descendant of the infamous Marozia and Alberic, Benedict IX., a child of ten years old at the time of his elevation in 1032, grew up in unrestrained license, and shocked even the dull sensibilities of a gross and barbarous age by the scandals of his daily life.^{[440](#)} The popular appreciation of his character is shown by the legend of his appearing after death to a holy man, in the figure of a bear, with the ears and tail of an ass, and declaring that, as he had lived in bestiality, so he was destined to wear the form of a beast and to suffer fiery torments until the Day of Judgment, after which he

was to be plunged, body and soul, into the fathomless pit of hell.⁴⁴¹ When the Vicegerent of God, the head of the Christian church, was thus utterly depraved, the prospect of reforming the corruption of the clergy was not promising, and the good work was not likely to be prosecuted with vigor.

Nor were the members of the hierarchy unworthy of their superior. We hear of Rainbaldo, Bishop of Fiesole, who, not contented with numerous concubines, had publicly married a wife, and whose children were established as a wide-spread and powerful family—and, what is perhaps more remarkable, this dissolute prelate was gifted with the power of working miracles.⁴⁴² The bishops, indeed, at this period, were still rather warrior nobles than Christian ministers. Bisantio, the good Bishop of Bari, is praised quite as much for his terrible prowess in battle as for his pious benevolence and munificence; and on his death, in 1035, his flock chose a military official as his successor.⁴⁴³

Descending in the scale, we may instance the priest Marino, who, though he lived openly with his wife, was a noted miracle-worker. Among quaint wonders wrought by him it is recorded that water rendered holy by his blessing, when sprinkled over the cornfields, had the power of driving away all caterpillars and other noxious insects. His child, Eleuchadio, was a most venerable man, who subsequently, as abbot of the monastery of the Virgin at Fiano, won the esteem and respect of even the stern Damiani himself.⁴⁴⁴ In fact, the pious Desiderius, Abbot of Monte Casino, better known as pope under the name of Victor III., declares that throughout Italy, under the pontificate of Benedict, all orders, from bishops down, without shame or concealment, were publicly married and lived with their wives as laymen, leaving their children fully provided for in their wills; and what rendered the disgrace more poignant was the fact that the scandal was greatest in Rome itself, whence the light of religion and discipline had formerly illuminated the Christian world.⁴⁴⁵ Another contemporary writer asserts that this laxity prevailed throughout the whole of Latin Christendom, sacerdotal marriage being everywhere so common that it was no longer punished as unlawful, and scarcely even reprehended.⁴⁴⁶

In becoming thus universal and tacitly permitted it was not incompatible with the most fervent piety; and though it may be an evidence of

hierarchical disorganization, it can no longer be considered as indicating of itself a lowered standard of morals in the ministers of the church. This is forcibly illustrated in the case of St. Procopius, selected by Duke Ulric of Bohemia as the first abbot of the monastery of Zagow. He was regularly bred to the church under the care of Bishop Quirillus, and was noted for the rectitude of his deportment in the priesthood; yet we learn that he was married during this period, when we are told that, on being disgusted with the hollow vanities of the world, he abandoned wife and friends for the solitude of a hermit's cave. Here an accidental meeting with Duke Ulric, while hunting, led to the foundation of Zagow and to the installation of Procopius as its head.⁴⁴⁷

Silently the church seemed to acquiesce in the violation of her canons, until, at length, she appeared content if her ministers would satisfy themselves with reputable marriage and avoid the grosser scandals. When Ulric, Abbot of Tegernsee, about 1041, deplored the evil influence of a priest who had two wives living, he seems to have felt that lawful marriage might be tolerated, but that polygamy was of evil example in a Christian pastor.⁴⁴⁸ So when Albert the Magnificent, Archbishop of Hamburg, was accustomed to exhort his clergy to continence and to shun the pestiferous society of women, his worldly wisdom prompted him to add that, if they were unequal to the effort, they should at least keep unsullied the bonds of marriage and should live “si non caste, tamen caute.”⁴⁴⁹

If irregularities such as these existed, they are not justly imputable to the church itself. It can scarcely be a matter of wonder if the clergy, in assimilating themselves to the laity as regards the liberty of wedlock, should also have adopted the license which in that lawless age rendered the marriage-tie a slender protection for the weakness of woman. Though it was indissoluble according to the teachings of religion, yet the church, which at that time was the only protector of the feeble against the strong, had not acquired the commanding authority which subsequently enabled it to enforce its decrees everywhere and on all occasions. If, under a vigorous pope, the sentence of excommunication had been able to frighten a superstitious monarch like Robert the Pious, yet the pontiffs of the House of Tusculum were not men to trouble themselves, or to be successful had they made the attempt, to rectify the wrongs perpetrated in every obscure

baronial castle or petty hamlet in Europe. The isolation and independence of the feudal system made every freeman, so to speak, the arbiter of his own actions. The wife whose charms ceased to gratify the senses of her husband, or whose temper threatened to disturb his equanimity, stood little chance of retaining her position, if an opportunity offered of replacing her to advantage, unless she was fortunate in having kindred able to resent the wrong which the church and the law were powerless to prevent or to punish.⁴⁵⁰ If, then, the clergy occasionally indulged in similar practices, the evil is not attributable to the license of marriage which they had usurped. That license had, at all events, borne some fruits of good, for, during its existence, we hear somewhat less of the system of concubinage so prevalent before and after this period, and there is no authentic indication of the nameless horrors so suggestively intimated by the restrictions on the residence of relatives enjoined in the frequent canons promulgated at the close of the ninth century.

It is not to be supposed, however, that the race of ascetics was extinct. Amid the license which prevailed in every class, there were still some men who, disgusted with the turbulent and dissolute world, despairing of salvation among the temptations and trials of active life or the sloth and luxury of the monastic establishments, sought the path to heaven in solitude and maceration. Such men could not but look with detestation on the worldly priests who divided their thoughts between their sacred calling and the cares of an increasing household, and who profaned the unutterable mysteries of the altar with hearts and hands not kept pure from the lusts of the flesh.

Prominent among these holy anchorites was S. Giovanni Gualberto, who fled from the snares of the world to the forests of Camaldoli, where his austerities, his holiness, and his miracles soon attracted crowds of disciples, who formed a numerous community of humble imitators of his virtues. Restoring in its strictness the neglected Rule of Benedict, his example and his teaching wrought conviction, and the order of monks which he founded and carried with him to the peaceful shades of Vallombrosa became renowned for its sanctity and purity. Thus withdrawn by the will of heaven

from the selfish egotism of a hermit's existence, he labored earnestly to reform the laxity of priestly life in general, and his success was most encouraging. Moved by his admonitions, self-indulgent clerks abandoned wives and mistresses, devoted themselves to the performance of their sacred functions, or sought in monastic seclusion to make atonement for their past excesses.^{[451](#)}

Though it may well be supposed that Gualberto was not unassisted in his efforts, yet all such individual exertions, dependent upon persuasion alone, could be but limited in their influence and temporary in their results. Reform, to be universal and permanent, required to be authoritative in its character and to proceed from above downward. The papacy itself must cease to be a scandal to Christendom, and must be prepared to wield the awful force of its authority, seconded by the moral weight of its example, before disorders so firmly rooted could be attacked with any hope of success. In 1044, Benedict IX. was driven out of Rome by a faction of rebels or patriots, who elected Silvester III. as pontiff in his place. A sudden revolution sent Silvester into exile, and brought Benedict back, who, to complete the confusion, sold the papal dignity to a new aspirant, known as Gregory VI. The transaction was not one which could decently be recognized by the church, and Benedict was held incapable of thus transferring the allegiance of Christendom or of depriving himself of his position. There were thus three popes, whose conflicting claims to reverence threw all Europe into the doubt and danger of schism, nor could the knotty question be solved by the power of distracted Italy. A more potent judge was required, and the decision was referred, as a matter of course, to the sagacious and energetic Emperor, Henry the Black, whose success in repressing the turbulence of the empire, and whose sincere reverence for the church gave reasonable promise of a happy solution of the tangled problem.^{[452](#)} His proceeding was summary. The three competitors were unceremoniously dismissed, and Henry filled the vacancy thus created by the appointment of Suidger, Bishop of Bamberg, who assumed the name of Clement II.

Henry III. was moved by a profound conviction that a thorough and searching reform was vitally necessary to the church. The conscientious severity of his character led him to have little toleration for the abuses and disorders which were everywhere so painfully apparent. How far his views

were in advance of those generally entertained, even by ecclesiastical dignitaries, was clearly manifested as early as 1042, when Gebhardt, Bishop of Ratisbon, urged the claims of his favorite arch-priest Cuno for the vacant see of Eichstedt. Henry refused on the ground that Cuno was the son of a priest, and therefore by the established canons ineligible to the position. The reason, though unanswerable, was so novel that Gebhardt refused to accept it as the true one, and Henry, to pacify him, promised to nominate any other one of the Ratisbon clergy whom Gebhardt might select. The choice fell upon a young and unknown man, also named Gebhardt, whose abilities, brought into notice thus accidentally, rendered him afterwards more conspicuous as Pope Victor II.⁴⁵³

Henry did not neglect the opportunity now afforded him of carrying into effect his reformatory views, and in his selection of a pontiff he was apparently influenced by the conviction that the Italian clergy were too hopelessly corrupt for him to expect from them assistance in his plans. Clement exchanged with him promises of mutual support in the arduous undertaking. We have nothing to do with the most crying evil; the one first vigorously attacked, and the one which was productive of the greatest real detriment to the church—simony. That was everywhere open and avowed. From the blessing of the priest to the nomination for a primacy, every ecclesiastical act was the subject of bargain and sale, reduced in many places to a regular scale of prices.⁴⁵⁴ To remove this scandal, Clement set vigorously to work, and soon found an united opposition which promised little for the success of the undertaking. He was doubtless sincere, but he was clearly alone in his struggle with the fierce Italian prelates, who were resolved not to abandon the emoluments and indulgences to which they had grown accustomed, and the result of his efforts did not fulfil the expectations of the more sanguine aspirants for the purification of the church. Even his patron the emperor appears to have doubted his earnestness in the cause, for we find Henry not only addressing him a letter urging him to fresh exertion, but intrusting it to Peter Damiani, with a command to present it in person, and to use all his powers of exhortation to stimulate the flagging zeal of the pope. Damiani refused to leave his hermitage even at the imperial mandate, but he enclosed the missive in one of his own, deploring the unhealed wounds of the church, recapitulating the shortcomings of Clement, and goading him to fresh efforts, in a style which

savored little of the reverence due to the Vicegerent of God.⁴⁵⁵ The pontifical crown was evidently not a wreath of roses. Clement sank under its weight, and died October 9th, 1047, in less than ten months after he had accepted the perilous dignity.

St. Peter Damiani, who thus introduces himself to our notice, was one of the remarkable men of the epoch. Born about the year 988 at Ravenna, of a noble but decayed family, and the last of a numerous progeny, he owed his life to a woman of the very class to the extirpation of which he devoted all the energies of his prime. His mother, worn out in the struggle with poverty, regarded his birth with aversion, refused to suckle the infant saint, and neglected him until his forlorn and emaciated condition awoke the compassion of a female retainer, the wife of a priest, who remonstrated with the unfeeling parent until she succeeded in arousing the sense of duty and restored to existence the little sufferer, who was destined to bring unnumbered woes to all who were of her condition.⁴⁵⁶ His early years are said to have been passed as a swineherd, till the opportunity for instruction offered itself, which he eagerly embraced. Retiring at length from the world, he joined the disciples of St. Romuald, who practised the strictest monastic life, either as monks or hermits, at Avellana, near Agubio. Immuring himself there in the desert, his austerities soon gained for him the reputation of preëminent sanctity, and led to his election as prior of the brotherhood. Gifted by nature with an intellect of unusual strength, informed with all the learning of the day, his stern asceticism, his dauntless spirit, and the uncompromising force of his zeal brought him into notice and marked him as a fitting instrument in the cause of reform. Occasionally, at the call of his superiors, he left his beloved retreat to do battle with the hosts of evil, returning with renewed zest to the charms of solitude, until, in 1057, Stephen IX. forced him to accept the cardinalate and bishopric of Ostia—the highest dignity in the Roman court. The duties of his episcopate, however, conflicted with his monastic fervor, and after a few years he rendered up the pastoral ring and staff and again returned to Avellana, where he died in 1072, full of years and honors. His position and authority can best be estimated from the terms employed by Alexander II., who, when

sending him on an important mission to France, described him as next in influence to himself in the Roman church, and the chief support of the Holy See.⁴⁵⁷

With a nature ardent and combative, worked up to the highest pitch of ascetic intolerance by the introspective musings of his cell, it may readily be conceived that the corruptions of the church filled him with warm indignation and fierce desire to restore it to its pristine purity. To this holy cause he devoted the last half of his life, and was always ready, with tongue and pen, at the sacrifice of his dearly prized solitude, to further the great movement on which he felt that the future of Christianity depended. The brief hopes excited by the promises of Clement and Henry were speedily quenched by the untimely death of the German pontiff, and the most sanguine might well despair at seeing the odious Benedict IX. reinstated as pope. But the emperor was in earnest, and listened willingly to the cry of those who besought him not to leave his good work unfinished. Nine brief months saw Benedict again a wanderer, and another German prelate installed in his place. Poppo of Brixen, however, enjoyed his new dignity, as Damasus II., but twenty-one days, when he fell a martyr to the cause, perishing miserably, either through the insalubrious heats of a Roman summer, or the hidden vindictiveness of Italian party rage. It required some courage to accept the honorable but fatal post, and six months elapsed ere a worthy candidate could be found. Henry's choice this time fell upon Bruno of Toul, a prelate to whom admiring biographers ascribe every virtue and every qualification. As Leo IX. he ascended the pontifical throne in February, 1049, and he soon gave ample evidence of the sincerity with which he intended to carry out the views of the puritans whom he represented.

It was significant that he took with him to Rome the monk Hildebrand, lately released from the service of his master Gregory VI., who had died in his German exile, restored by a miracle at his death to the honors of which he had been adjudged unworthy while living.⁴⁵⁸ Still more significant was the fact that Leo entered Rome, not as pope, but as a barefooted pilgrim, and that he required the empty formality of an election within the city, as though the nomination of the emperor had given him no claim to his high office. Whether this was the result of a voice from heaven, as related by the

papal historians,⁴⁵⁹ or whether it was done at the suggestion of the high-churchman Hildebrand, it showed that the new pontiff magnified his office, and felt that the line of distinction between the clerk and the layman was to be sharply drawn and vigorously defended.

Damiani lost no time in stimulating the stranger to the duties expected of him by the party of reform. From the retreat of Avellana he addressed to Leo an essay, which is the saddest of all the sad monuments bequeathed to us by that age of desolation. With cynical boldness he develops the frightful excesses epidemically prevalent among the cloistered crowds of men, attributable to the unnatural restraints imposed upon the passions of those unfitted by nature or by training to control themselves; and his laborious efforts to demonstrate the propriety of punishing the guilty by degradation show how hideous was the laxity of morals which was disposed to regard such crimes with indulgence.⁴⁶⁰ Like the nameless horrors of the Penitentials, it is the most convincing commentary on the system which sought to enforce an impossible exaltation of purity on the ministers of a religion whose outward formalism had absorbed its internal life.⁴⁶¹

Leo IX. was not long in manifesting his intentions, and his first point of attack was chosen with some skill, the ecclesiastical rank of the victim and his want of power rendering him at once a striking example and an easy sacrifice. Dabralis, Archbishop of Salona (or Spalatro) in Dalmatia, was married and lived openly with his wife. Leo sent a legate to investigate and punish. Called before a synod, Dabralis could not or deigned not to deny his guilt, but boldly justified it, as the woman was his lawful wife, and he instanced the customs of the Greek church in his defence. This only aggravated his guilt, and he was promptly degraded forever.⁴⁶²

Leaving, for a time, the Italian church for subsequent efforts at reformation, Leo undertook a progress throughout Northern Europe, for the purpose of restoring the neglected discipline of those regions. Before the year of his installation had expired, in November, 1049, we find him presiding with the emperor at a council in Mainz, where the simony and marriage of the clergy were condemned under severe penalties.⁴⁶³ That the influence thus brought to bear had some effect, at least in externals, is shown by the courtly Albert of Hamburg, who, on returning from the council to his see, revived a forgotten regulation of his predecessors, by

virtue of which the women of ecclesiastics were ordered to live outside of the towns, in order to avoid public scandal.⁴⁶⁴ A few weeks before, in France, Leo had presided over a national council at Rheims, where his vigorous action against simony caused numerous vacancies in the hierarchy. The records and canons of this council contain no allusions to the subject of marriage or concubinage, but it is altogether improbable that they escaped attention, for they were indulged in without concealment by all classes of ecclesiastics, and some subsequent writers assert that they were rigorously prohibited by the council, but that the injunctions promulgated were unavailing.⁴⁶⁵

Returning to the South, the Easter of 1051 beheld a council assembled at Rome for the purpose of restoring discipline. Apparently, the Italian prelates were disposed to exercise considerable caution in furthering the wishes of their chief, for they abstained from visiting their indignation on the guilty priests, and directed their penalties against the unfortunate females. In the city itself these were declared to be enslaved, and were bestowed on the cathedral church of the Lateran, while all bishops throughout Christendom were desired to apply the rule to their own dioceses, and to seize the offending women for the benefit of their churches.⁴⁶⁶ The atrocity of this legislation against the wives of priests is all the more noteworthy when contrasted with the tenderness shown to worse crimes committed by men whose high position only rendered their guilt the more heinous. At this council, Gregory, Bishop of Vercelli, was convicted of what, by the rules of the church, was considered as incest—an amour with a widow betrothed to his uncle. For this aggravated offence he was merely excommunicated, and when, soon after, he presented himself in Rome, he was restored to communion on his simple promise to perform adequate penance.⁴⁶⁷

The reformatory zeal of Leo and of the monastic followers of Damiani was thus evidently not seconded by the Italian church. A still more striking proof of this was afforded by the attempt to hold a council at Mantua early in 1053. The prelates who dreaded the result conspired to break it up. A riot was provoked between their retainers and the papal domestics; the latter, taken unawares and speedily overpowered, fled to the council-chamber for safety, and Leo, rushing to the door to protect them, was in imminent danger from the arrows and stones which hurtled thickly around him.⁴⁶⁸

The reckless plot succeeded, and the council dispersed in undignified haste. Whether Leo was disgusted with his want of success and convinced of the impracticability of the undertaking, or whether his attention was thenceforth absorbed by his unlucky military operations against the rapidly augmenting Norman power in Southern Italy, it is not easy now to ascertain: suffice it to say that no further indications remain of any endeavor to carry out the reforms so eagerly commenced in the first ardor of his pontificate. The consistent Damiani opposed the warlike aspirations of the pontiff, but Leo persisted in leading his armies himself. A lost battle threw Leo into the power of the hated Normans, when, after nine months, he returned to Rome to die, in April, 1054, and to be revered as a saint after death by those who had withstood him during life in every possible manner.^{[469](#)}

It is not easy to repress a smile on seeing Leo, who had been so utterly unable to enforce the canons of the Latin church at home, seriously undertaking to procure their adoption in Constantinople. From his prison, in January, 1054, he sent Cardinal Humbert of Silva Candida on a mission to convert the Greek church. There is extant a controversy between the legate and Nicetas Pectoratus, a learned Greek abbot, on the various points in dispute. I cannot profess to decide which of the antagonists had the advantage on the recondite questions of the use of unleavened bread, the Sabbath fasts, the calculation of Easter, &c., but the contrast between the urbanity of the Greek and the coarse vituperation of the Latin is strikingly suggestive as a tacit confession of defeat on the part of the latter. In view of the frightful immorality of the Italian clergy, there is something peculiarly ludicrous in the mingled anger, contempt, and abhorrence with which Humbert alludes to the marriage of the Greek clergy, which, as he declares, renders their church the synagogue of Satan and the brothel of Balaam and Jezebel, with other equally courteous and convincing arguments. Humbert attributes priestly marriage altogether to the heresy of the Nicolites, and lays down the law on the subject as inexorably as though it were at the time observed in his own church.^{[470](#)}

After an interval of about a year, the line of German pontiffs was continued in the person of Gebhardt, Bishop of Eichstedt (Victor II.), whose appointment by the emperor was owing in no small degree to the influence of Hildebrand—an influence which was daily making itself more felt. Installed in the pontifical seat by Godfrey, Duke of Tuscany, his efforts to

continue the reformation commenced by his predecessors aroused a stubborn resistance. There may be no foundation for the legend of his being saved by a miracle from a sacramental cup poisoned by a vengeful subdeacon, nor for the rumors that his early death was hastened by the recalcitrant clergy who sought to escape the severity of his discipline. There is some probability in the stories, however, for, during his short pontificate, interrupted by a lengthened stay in Germany and the perpetual vicissitudes of the Neapolitan troubles, he yet found time to hold a synod at Florence, where he degraded numerous prelates for simony and licentiousness; but, whether true or false, the existence of the reports attests at once the sincerity of his zeal and the difficulties of the task.⁴⁷¹

His death in July, 1057, was followed after but a few days' interval by the election of Frederic, Duke of Lorraine—the empire having passed in 1056 from the able hands of Henry III. to the feeble regency of his empress, Agnes, as guardian of the unfortunate infant Henry IV.—thus releasing the Roman clergy from the degrading dictation of a Teutonic potentate. That Frederic should have abandoned the temptations and ambitions of his lofty station to embrace the austerities of monastic life in the abbey of Monte Casino, is a sufficient voucher that he would not draw back from the work thus far hopelessly undertaken by his predecessors. Notwithstanding the severity of the canons promulgated during the previous decade, and the incessant attempts to enforce them, Rome was still full of married priests, and the battle had to be recommenced, as though nothing had yet been done. Immediately on his installation, as Stephen IX., he addressed himself unshrinkingly to the task. For four months, during the most unhealthy season, he remained in Rome, calling synod after synod, and laboring with both clergy and people to put an end to such unholy unions,⁴⁷² and he summarily expelled from the church all who had been guilty of incontinence since the prohibitions issued in the time of Leo.⁴⁷³ One case is related of a contumacious priest whose sudden death gave him the opportunity of striking terror into the hearts of the reckless, for the mutilated funeral rites which deprived the hardened sinner of the consolation of a Christian burial it was hoped would prove an effectual warning to his fellows.⁴⁷⁴ Feeling the necessity of support in these thankless labors, he forced Damiani to leave the retirement of the cloistered shades of Avellana, and to bear, as Bishop of Ostia, his share of the burden

in the contest which he had done so much to provoke—but it was all in vain.

In little more than half a year Stephen found refuge from strife and turmoil in the tomb. The election of his successor, Gerard, Bishop of Florence, was the formal proclamation that the church was no longer subjected to the control of the secular authority. January 18th, 1058, saw the power of the emperor defied, and the gauntlet thrown for the quarrel which for three centuries was to plunge Central and Southern Europe in turmoil and bloodshed. Henry III. had labored conscientiously to rescue the papacy from the disgrace into which it had fallen. By removing it from the petty sphere of the counts of Tusculum and the barons of the Campagna, and by providing for it a series of highminded and energetic pontiffs, he had restored its forfeited position, and indeed had conferred upon it an amount of influence which it had never before possessed. His thorough disinterestedness and his labors for its improvement had disarmed all resistance to the exercise of his power, but when that power passed into the hands of an infant but five years old, it was natural that the church should seek to emancipate itself from subjection; and if almost the first use made of its new-found prerogatives was to crush the hand that had enabled it to obtain them, we must not tax with ingratitude those who were undoubtedly penetrated with the conviction that they were only vindicating the imprescriptible rights of the church, and that to them was confided the future of religion and civilization.

In the revolution which thus may date its successful commencement at this period the two foremost figures are Damiani and Hildebrand. Damiani the monk, with no further object than the abolition of simony and the enforcement of the austerities which he deemed indispensable to the salvation of the individual and to the purity of the church, looked not beyond the narrow circle of his daily life, and sought merely to level mankind by the measure of his own stature. Hildebrand, the far-seeing statesman, could make use of Damiani and his tribe, perhaps equally fervent in his belief that the asceticism of his fellow laborer was an acceptable offering to God, but yet with ulterior views of transcendently greater

importance. In his grand scheme of a theocratic empire, it became an absolute prerequisite that the church should hold undivided sway over its members; that no human affection should render their allegiance doubtful, but that their every thought and action should be devoted to the common aggrandizement; that they should be separated from the people by an impassable barrier, and should wield an influence which could only be obtained by those who were recognized as superior to the weaknesses of common humanity; that the immense landed possessions of the church should remain untouched and constantly increasing as the common property of all, and not be subjected to the incessant dilapidations inseparable from uxorious or paternal affections at a time when the restraints of law and of public opinion could not be brought to bear with effect. In short, if the church was to assume and maintain the position to which it was entitled by the traditions of the canon law and of the False Decretals, it must be a compact and mutually supporting body, earning by its self-inflicted austerities the reverence to which it laid claim, and not be diverted from its splendid goal by worldly allurements or carnal indulgences and preoccupations. Such was the vision to the realization of which Hildebrand devoted his commanding talents and matchless force of will. The temporal success was at length all that he could have anticipated. If the spiritual results were craft, subtlety, arrogance, cruelty, and sensuality, hidden or cynical, it merely proves that his confidence in the strength of human nature to endure the intoxicating effects of irresponsible power was misplaced. Meanwhile he labored with Damiani at the preliminary measures of his enterprise, and together they bent their energies to procure the enforcement of the neglected rules of discipline.

The new pope, Nicholas II. by name, entered unreservedly into their views. Apparently taught by experience the fruitlessness of additional legislation when the existing canons were amply sufficient, but their execution impossible through the negligence or collusion of the ecclesiastical authorities, he assembled, in 1059, a council of a hundred and thirteen bishops, in which he adopted the novel and hazardous expedient of appealing to the laity, and of rendering them at once the judges and executioners of their pastors. A canon was promulgated forbidding all Christians to be present at the mass of any priest known to keep a concubine or female in his house.⁴⁷⁵ This probably remained, like its

predecessors, a dead letter for the present, but we shall see what confusion it excited when it was revived and put effectually in force by Gregory VII. some fifteen years later. Meanwhile I may observe that it trenched very nearly on the Donatist heresy that the sacrament was polluted in polluted hands, and it required the most careful word-splitting to prevent the faithful from drawing a conclusion so natural.⁴⁷⁶

In addition to this, the council ordered, under pain of excommunication, that no priest who openly took a concubine (or rather a wife), or who did not forthwith separate himself from such a connection already existing, should dare to perform any sacred function, or enjoy any portion of ecclesiastical revenue.⁴⁷⁷ Hildebrand, who was all-powerful at the papal court—his enemies accused him of keeping Nicholas like an ass in the stable, feeding him to do his work—has the credit of procuring this legislation.⁴⁷⁸ Nicholas, whether acting under the impulsion of Hildebrand and Damiani, or from his own convictions, followed up the reform with vigor. During the same year he visited Southern Italy, and by his decided proceedings at the council of Melfi endeavored to put an end to the sacerdotal marriages which were openly practised everywhere throughout that region, and the Bishop of Trani was deposed as an example and warning to others.⁴⁷⁹ Damiani was also intrusted with a mission to Milan for the same purpose, of which more anon.

Nor did Nicholas confine his efforts to Italy. His legates in other countries endeavored to enforce the canons, and apparently had little difficulty in obtaining the adoption of stringent regulations—the more easily acceded to that they were utterly disregarded. Thus his legate Stephen, early in 1060, held councils at Vienne and Tours, where the prohibitions of the synod of Rome were agreed to, and those who did not at once abandon either their women or their benefices were declared to be degraded forever, without hope of restitution.⁴⁸⁰

In practice, however, all these measures of reform were scarcely felt except by the lower grades of the ecclesiastical body. The prelates, whose lives were equally flagitious, and far more damaging to the reputation and purity of the church, were enabled virtually to escape. The storm passed beneath them, and with few exceptions persecuted only those who were powerless to oppose anything but passive resistance. The uncompromising

zeal of Damiani was not likely to let a temporizing lenity so misplaced and so fatal to the success of the cause remain unrebuked; and he calls to it the attention of Nicholas, stigmatizing the toleration of episcopal sins as an absurdity no longer to be endured.⁴⁸¹ The occasion of this exhortation was a commission intrusted by the pope to Damiani, to hold a friendly conference with the prelates, and to induce them to reform their evil ways without forcing the authorities to the scandal of public proceedings. The fear of such results and the fiery eloquence of Damiani were alike unheeded. The bishops confessed themselves unequal to the task of preserving their chastity, and indifferent to the remote contingency of punishment which had so often been ineffectually threatened that its capacity for exciting apprehension had become exhausted. With all the coarseness of monastic asceticism, Damiani describes the extent of the evil, and its public and unblushing exhibition; the families which grew and increased around the prelates, the relationships which were ostentatiously acknowledged, and the scandals perpetrated in the church of God. In the boldest strain he then incites the pope to action, blames his misplaced clemency, and urges the degradation of all offenders, irrespective of rank, pointing out the impossibility of reforming the priesthood if the bishops are allowed full and undisturbed license.⁴⁸²

This shows that even if the machinery of ecclesiastical authority was at work to correct the errors of the plebeian clergy, it was only local and sporadic in its efforts. In some favored dioceses, perhaps, blessed with a puritan bishop, the decrees of the innumerable councils may have been put in force, but in the great body of the church the evil remained unaltered. During this very year, 1060, Nicholas again found it necessary to promulgate a decretal ordering priests to quit their wives or resign their position, and this in terms which prove how utterly futile had been all previous fulminations. He also manifested some consideration for temporal necessities by allowing the discarded wives to live with their husbands under proper supervision.⁴⁸³

How complete was the disregard of these commands is well illustrated by an epistle which about this time Damiani addressed to the chaplains of Godfrey the Bearded, Duke of Tuscany. From this we learn that these prominent ecclesiastics openly defended sacerdotal marriage, pronounced it

canonical, and were ready to sustain their position in controversy.⁴⁸⁴ As Duke Godfrey, with the pious Beatrice his wife, was the leading potentate in Italy, and as his territories were in close proximity to Rome itself, it is evident that the reform so laboriously prosecuted for the previous ten or fifteen years had thus far accomplished little.

Parties were now beginning to define themselves. The reformers, irritated by their want of success, were for more stringent measures, and when the canonical punishments of degradation and excommunication were derided and defied, they were ready, as we shall see hereafter at Milan, to have recourse to the secular arm, and to invoke the aid of sword and lance. The clergy, finding that passive resistance did not wear out the zeal of their persecutors, that the storm promised to be endless, and warned by the fate of the Milanese, were prepared to adopt an aggressive policy, and to seek their safety in revolutionizing the central authority. Perhaps the bishops, whose silence had been secured by the toleration so distasteful to Damiani, began to feel the pressure which he was bringing to bear upon them, and to look forward with apprehension to the unknown evils of the future. If so, they were ready to make common cause with their flocks, and throw into the scale the immense influence due to their sacred character and temporal power. Thus only the occasion was wanting for an open rupture, and that occasion was furnished by the death of Nicholas in July, 1061.

The factions of the day had alienated a powerful portion of the Roman barons from the papal party as represented by Hildebrand. They at once united with the Lombard clergy in addressing a deputation to the young Henry IV., who was still under the tutelage of his mother Agnes, offering him a golden crown and the title of Patrician. The empire was not indisposed to vindicate its old prerogatives, recently annulled by the initial act of Nicholas limiting the right of papal election to the Roman clergy. The overtures were therefore welcomed, and while Anselmo, Bishop of Lucca, was chosen in Rome, October 1st, 1061, assuming the name of Alexander

II., on the 28th of the same month a rival election took place in Germany, by which Cadalus, Bishop of Parma, was invested with the perilous dignity of Antipope, and divided the allegiance of Christendom under the title of Honorius II. At least two Italian bishops lent their suffrages to these proceedings—those of Vercelli and Piacenza—as representatives of the Lombard interest; and, if the testimony of Damiani is to be believed, they were men whose dissolute lives fitly represented the license which the reformers asserted to be the principal object of the schismatics.^{[485](#)}

The married or concubinary clergy were now no longer merely isolated criminals, to be punished more or less severely for infractions of discipline. They were a united body, who boldly proclaimed the correctness of their course, and defended themselves by argument as well as by political intrigues and military operations. They thus became offenders of a far deeper dye, for the principles of the church led irrevocably to the conclusion, paradoxical as it may seem, that he who was guilty of immorality, knowing it to be wrong, was far less criminal than he who married, believing it to be right.^{[486](#)} What before had been a transgression, to be redeemed by penance and repentance, became heresy—an awful word in those fierce times. The odious name of Nicolites was speedily fastened on the schismatics, and the Apocalyptic denunciations of St. John were universally held applicable to them. According to Damiani, they supported Cadalus in the expectation that his success would lead to a modification in the discipline of the church, by which the license to marry would be accorded to all ecclesiastics.^{[487](#)}

That support was efficient, and it was shortly needed. A revolution suddenly occurred in the politics of Germany. Some dissatisfied nobles and prelates conspired to obtain power by overthrowing the regency of the dowager Empress Agnes. A stroke of daring treachery put them in possession of the person of the boy-king, and the arch-conspirator Hanno of Cologne earned his canonization by reversing at once the policy of the previous administration. In a solemn council held at Osber in 1062, the pretensions of Cadalus were repudiated, and Alexander II. was recognized as pope. Still Cadalus did not despair, but with the aid of the Lombard clergy he raised forces and marched on Rome, relying on his adherents within the walls. They admitted him into the Leonine city, where he threw

himself into the impregnable castle of San Angelo. Immediately besieged by the Romans, he resolutely held out for two years, in spite of incredible privations, but at length he sought safety in flight with but a single follower. Meanwhile his party, as a political body, had become broken up, and though Henry, Archbishop of Ravenna, still adhered to him, he was powerless to maintain his claims. Finally, in 1067, Alexander held a council at Mantua, cleared his election of imputed irregularity, and was universally recognized.

During this period, the “Nicolitan” clergy by no means abandoned their tenets. In 1063, as soon as he could feel reasonably assured of his eventual success, Alexander assembled more than a hundred bishops in council at Rome, where he emphatically repeated the canon promulgated in 1059 by Nicholas II., which was not only a proclamation of his fidelity to the cause of reform, but an admission that the legislation of his predecessor had thus far proved fruitless. Damiani, also, labored unceasingly with argument and exhortation, but the vehemence of his declamation only shows how widely extended and how powerful the heresy still was. We shall see hereafter that on a mission to Milan, to reduce the married clergy to obedience, he barely escaped with his life; and on another to Lodi, with the same object, the schismatics, after exhausting argument, in support of priestly marriage, threatened him with arms in their hands, and again his saintly dignity came near being enhanced by the honors of martyrdom.⁴⁸⁸ Even the restriction upon second marriages was occasionally lost sight of, and such most irregular unions were celebrated with all the ceremony and rejoicings that were customary among laymen in their public nuptials.⁴⁸⁹ Yet, notwithstanding the pious fervor which habitually stigmatized the wives as harlots and the husbands as unbridled adulterers, Damiani himself allows us to see that the marriage relation was preserved with thorough fidelity on the part of the women, and was compatible with learning, decency, and strict attention to religious duty by the men. Urging the wives to quit their husbands, he finds it necessary to combat their scruples at breaking what was to them a solemn engagement, fortified with all legal provisions and religious rites, but which he pronounces a frivolous and meaningless ceremony.⁴⁹⁰ So, in deploring the habitual practice of marriage among the Piedmontese clergy, he regards it as the only blot upon men who otherwise appeared to him as a chorus of angels, and as shining lights in the church.⁴⁹¹

Such considerations as these, however, had no influence in diminishing Damiani's zeal. To Cunibert, Bishop of Turin, whose spiritual flock he thus so much admired, he addressed, about 1065, an epistle reproaching him with his criminal laxity in permitting such transgressions in his diocese, and urging him strenuously to undertake the reform which was so necessary to the purity of the church.⁴⁹² Cunibert apparently did not respond to the exhortation, for Damiani proceeded to appeal to the temporal sovereign of Savoy and Piedmont, Adelaide, widow of Humbert-aux-Blanches-Mains, who was then regent. In an elaborate epistle he urges her to attack the wives, while her bishops shall coerce the husbands; but if the latter neglect that duty, he invites her to interpose with the secular power, and thus avert from her house and her country the Divine wrath which must else overtake them.⁴⁹³ That so strict a churchman as Damiani should not only tolerate but advise the exercise of temporal authority over ecclesiastics, and this, too, in a matter purely ecclesiastical, shows how completely the one idea had become dominant in his mind, since he was willing to sacrifice to it the privileges and immunities for which the church had been struggling, by fair means and foul, for six centuries. It would appear, moreover, that this was not the first time that potentates had been allowed, or had assumed, to exercise power in the matter, for Damiani cautions the Countess Adelaide not to follow the example of some evil-minded magnates and make the pretence of reformation an excuse for spoiling the church.⁴⁹⁴

The zeal of the indefatigable Damiani continued to be as unconquerable as the stubbornness of his adversaries, and some two years later we find him again at work. The date of 1067 is generally attributed to a letter which he addressed to Peter, Cardinal Archpriest of the Lateran, stimulating him to renewed exertions in extirpating this foul disgrace to the church, and arguing at great length in reply to the reasons and excuses with which the clerical Benedicks continued to defend their vile heresy.⁴⁹⁵

In all this controversy, it is instructive to observe how Damiani shows himself to be the pure model of monkish asceticism, untainted with any practical wisdom and unwarped by any earthly considerations. When Hildebrand struggled for sacerdotal celibacy, the shrewdness of the serpent guided the innocence of the dove, and he fought for what he knew would prove a weapon of tremendous power in securing for the church the

theocracy which was his pure ideal of human institutions. Not a thought of the worldly advantages consequent upon the reform appears to have crossed the mind of Damiani. To him it was simply a matter of conscience that the ministers of Christ should be adorned with the austere purity through which alone lay the path to salvation. Accordingly the arguments which he employs in his endless disputations carefully avoid the practical reasons which were the principal motive for enforcing celibacy. His main reliance is on the assumption that, as Christ was born of a virgin, so he should be served and the Eucharist be handled only by virgins; and his subsidiary logic consists of mystical interpretations of passages in the Jewish history of the Old Testament. Phineas, of course, affords a favorite and oft-repeated argument and illustration. Allusions to Ahimelech can also be understood, but the reasoning based upon the tower of Sichem, the linen girdle of Jeremiah, and the catastrophe of Cain and Abel is convincing only as to the unworldliness of the recluse of Avellana.

Notwithstanding all his learning and eloquence, the authority of his name, the lustre of his example, and the tireless efforts of his fiery energy, the cause to which he had devoted himself did not advance. The later years of Alexander's pontificate afford unmistakable indications that the puritan party were becoming discouraged; that they were disposed to abate some of their demands, and were ready to make concessions to the refractory spirit which refused obedience in both principle and practice. Thus, in 1068, a decretal addressed to the authorities of Dalmatia merely threatens suspension until satisfaction is made by those who marry in orders or who refuse to abandon their wives.⁴⁹⁶ A somewhat different position was taken with the Venetians. An epistle to the Patriarch of Grado orders the deprivation of those who live in open and undisguised concubinage, but significantly confines its penalties to notorious infractions of the rule, and leaves to God the investigation of such as may be prudently concealed.⁴⁹⁷ This manifests a willingness to temporize with offenders whose respect for papal authority would induce them to abstain from defiant disobedience—a pusillanimous tempting of hypocrisy to which the bolder Hildebrand could never have given his consent. A principle of great importance, moreover, was abandoned when, in 1070, Alexander assented to the consecration of the bishop-elect of Le Mans, who was the son of a priest,⁴⁹⁸ and when he stated that this was not a precedent for the future, but merely a concession

to the evil of the times, his laxity was the more impressive, since he thus admitted his violation of the canons. He subsequently even enlarged this special permission into a general rule, with merely the saving clause that the proposed incumbent should be more worthy than his competitors.⁴⁹⁹ Alexander, moreover, maintained in force the ancient rule that no married man could assume monastic vows unless his wife gave her free consent, and entered a convent at the same time.⁵⁰⁰ We shall see that in little more than half a century the progress of sacerdotalism rendered the sacrament of marriage powerless in comparison with the vows of religion.

Alexander clearly had not in him the stuff of which persecutors and reformers are made, as, indeed, his merciful liberality in extending over the Jews throughout Europe the protection of the Holy See would sufficiently demonstrate. At length he, too, was released from earthly cares, and on the day after his decease, on April 22, 1073, his place was filled by the man who of all others was the most perfect impersonation of the aggressive churchmanship of the age.

Before proceeding, however, to sketch the stormy pontificate of Hildebrand in its relation to our subject, I must pause to relate the episode of the Milanese clergy. The struggle in that city to enforce the ascetic principles of the reformers gives so perfect an inside view of the reformation itself, and its various stages have been handed down to us with so much minuteness by contemporary writers, that it deserves to be treated by itself as a disconnected whole.

XIII. MILAN.

In the primitive ages of the church, Milan was at the head of the Northern Vicariate of Italy, as Rome was of the Southern. When the preponderance of the latter city became established, the glory of St. Ambrose shed a lustre over his capital which the true Milanese fondly regarded as rivalling that of St. Peter and the superiority of Rome was grudgingly admitted. In the eleventh century, Milan is found occupying the chief place among the Lombard cities, virtually governed by its archbishop, whose temporal as well as spiritual power rendered his position one of great influence and importance. Yet even at that early period, the republican spirit was already developed, and the city was divided into factions, as the nobles and citizens struggled for alternate supremacy.

Milan was moreover the headquarters of the hidden Manichæism which, after surviving centuries of persecution in the East, was now secretly invading Europe through Bulgaria, and had already attracted the vigilant attention of the church in localities widely separated. Its earliest open manifestation was in Toulouse, in 1018; at Orleans, in 1023, King Robert the Pious caused numerous sectaries to expiate their heresy at the stake, where their unshrinking zeal excited general wonder. At Cambrai and Liège similar measures of repression became necessary in 1025; the Emperor Henry III. endeavored at Goslar, in 1052, to put an end to them with the gallows; and traces of them are to be found at Agen about the year 1100; at Soissons in 1114; at Toulouse in 1118; at Cologne in 1146; at Périgord in 1147; in England in 1166, until we can trace their connection with the Albigenses, whose misfortunes fill so black a page in the history of the thirteenth century. Calling themselves Cathari, and stigmatized by true believers under various opprobrious names, of which the commonest was Paterins, their doctrines were those of the ancient Manichæans, their most characteristic tenets being belief in the dualistic principle, and the abhorrence of animal food and of marriage.⁵⁰¹ The prevalence of these dogmas among the Milanese populace furnishes a probable explanation of

much that took place during the contest between Rome and the married priests.

Eriberto di Arzago, who filled the archiepiscopal chair of Milan from 1019 to 1045, was one of the most powerful princes of Italy, and though unsuccessful in the revolt which he organized in 1034 against the Emperor Conrad the Salic, his influence was scarcely diminished after his return from the expulsion which punished his rebellion.⁵⁰² At the time of his death, Milan was passing through one of its accustomed civil dissensions. The Motta, or body of burgesses, had quarrelled with the nobles and archbishop, and, under the leadership of an apostate noble named Lanzo, had expelled them from the city—an ejection which was followed by an unsuccessful siege of three years. At length, in 1044, Lanzo obtained promise of armed assistance from Henry III., which reduced the nobles to subjection, and they returned in peace. Eriberto died the following year, and the election of his successor caused great excitement. Erlembaldo, the popular chief (*dominus populi*), called the citizens together to nominate candidates, and induced them to select four. One of these was Landolfo Cotta, a notary of the sacred palace, who was brother to Erlembaldo; another was Anselmo di Badagio, Cardinal of the Milanese church, subsequently Bishop of Lucca, and finally, as we have seen, pope, under the name of Alexander II.; the third was Arialdo, of the family of the capitanei of Carinate; and the fourth was Otho, another Milanese cardinal. These four were sent to the Emperor, for him to make his selection; but the faction of the nobles despatched a rival in the person of Guido di Valate, who already held the appointment of secretary from the emperor, and who had recommended himself by zealous services, which now claimed their reward. Henry gave the coveted dignity to Guido, to the great surprise and indignation of the popular nominees. Their expostulations were unavailing, and both parties returned—Guido to assume an office harassed by the opposition of the people on whom he had been forced, and the disappointed candidates to brood over the wrongs which had deprived them of the splendid prize.⁵⁰³ We shall see how thoroughly three of those candidates avenged themselves.

It is observable from this transaction that Milan was completely independent of Rome. The sovereignty of the distant emperor, absorbed in the dissensions of Germany, could press but lightly on the powerful and turbulent city. Rome was not even thought of in creating the archbishop, whose spiritual and temporal power were granted by the imperial investiture. But when, soon after, the German popes had rescued the papacy from the contempt into which it had fallen, its domination over Milan became a necessary step in its progress to universal supremacy, and lent additional vigor to the desires of the reformers to restore the forgotten discipline of the church in a city so influential.

Marriage, at this time, was a universal privilege of the Milanese clergy. If we may believe the testimony of one who was almost a contemporary, the candidate for holy orders was strictly examined as to his learning and morals. These being satisfactory, he was, if unmarried, asked if he had strength to remain so, and if he replied in the negative, he could forthwith betroth himself and marry with the ordinary legal and religious ceremonies. Second marriages were not allowed, and the Levitical law as to the virginity of the bride was strictly observed. Those who remained single were objects of suspicion, while those who performed their sacred functions duly, and brought up their families in the fear of God, were respected and obeyed by their flocks as pastors should be, and were eligible to the episcopate. Concubinage was regarded as a heinous offence, and those guilty of it were debarred from all promotion⁵⁰⁴—in this reversing the estimate placed upon the respective infractions of discipline by the Roman church.

The see of Lucca consoled Anselmo di Badagio for the failure of his aspirations towards the archiepiscopate, and the other disappointed candidates for a while cherished their mortification in silence. Landolfo and Arialdo were inclined to asceticism, and a visit which Anselmo paid to Milan stimulated them to undertake a reform which could not but prove a source of endless trouble to their successful competitor Guido. Leaders of the people, and masters of the art of inflaming popular passion, they caused assemblies to be held in which they inveighed in the strongest terms against the irregularities of the clergy, whose sacraments they stigmatized as the

foulest corruption, whose churches they denounced as dens of prostitution, and whose property they assumed to be legitimate prey for the spoiler. Guido in vain endeavored to repress the agitation thus produced, argued in favor of the married clergy, and was sustained by the party of the nobles. In a city like Milan, it was not difficult to excite a tumult. Besides the influence of the perennial factions, ever eager to tear each other's throats, the populace were ready to yield to the eloquence of the bold reformers. The Manichæan heresy had taken deep root among the masses, who, afraid to declare their damnable doctrines openly, were rejoiced in any way to undermine the authority of the priesthood, and whose views were in accordance with those now broached on the subject of marriage.⁵⁰⁵ While these motives would urge forward the serious portion of the citizens, the unthinking rabble would naturally be prompt to embrace any cause which promised a prospect of disturbance and plunder. Party lines were quickly drawn, and if the reformers were able to revive a forgotten scandal by stigmatizing their opponents as Nicolites, the party of the clergy and the nobles had their revenge. The meetings of Landolfo and Arialdo were held in a spot called Pataria, whence they soon became known as Paterins—a term which for centuries continued to be of fearful import, as synonymous with Manichæans.⁵⁰⁶

Matters could not long remain in this condition. During an altercation in the church of San Celso, a hot-headed priest assaulted Arialdo, whom Landolfo extricated from the crowd at considerable personal risk. Thereupon the reformers called the people together in the theatre; inflammatory addresses speedily wrought up the popular passions to ungovernable fury; the priests were turned out of the churches, their houses sacked, their persons maltreated, and they were finally obliged to purchase a suspension of oppression by subscribing a paper binding themselves to chastity. The nobles, far from being able to protect the clergy, finding themselves also in danger, sought safety in flight; while the rabble, having exhausted the support derivable from intramural plunder, spread over the country and repeated in the villages the devastations of priestly property which they had committed in Milan.⁵⁰⁷

The suffering clergy applied for relief to the bishops of the province, and finding none, at length appealed to Rome itself. Stephen IX., who then

filled the papal chair, authorized the archbishop to hold a synod for the purpose of restoring peace. It met, in the early part of 1058, at Fontaneto, near Novara. The prelates were unanimous in sustaining their clergy, and the reformers Landolfo and Arialdo were excommunicated without a dissentient voice. They disregarded the interdict, however, redoubled their efforts with the people, whom they bound by a solemn oath to adhere to the sacred cause, and even forced the priests to join in the compact. Arialdo then proceeded to Rome, where he developed in full the objects of the movement, and pointed out that it would not only result in restoring purity and discipline, but might also be used to break down the dangerous independence of the Ambrosian church and reduce it to the subjection which it owed and refused to the Apostolic see. The arguments were convincing, the excommunication was removed, and Arialdo returned to his work with zeal more fiery than ever.⁵⁰⁸

Meanwhile the nobles had taken heart and offered armed resistance to the Patarian faction, resulting in incessant fights and increasing bloodshed. Nicholas II., who by this time had succeeded Stephen IX., sent Hildebrand and Anselmo di Badagio on a mission to Milan, with instructions to allay the passions which led to such deplorable results, and, while endeavoring to uphold the rules of discipline, to pacify if possible the people, and to arrange such a basis of reconciliation as might restore peace to the distracted church. The milder Anselmo might perhaps have succeeded in this errand of charity, but the unbending Hildebrand was not likely to listen to aught but unconditional subjection to the canons and to Rome. The quarrel therefore waxed fiercer and deadlier; the turmoil became more inextricable as daily combats embittered both parties, and the missionaries departed, leaving Guido with scarcely a shadow of authority over his rebellious city, and the seeds of discord more widely scattered and more deeply planted than ever.⁵⁰⁹

Again, in 1059, a papal legation was sent with full authority to force the recalcitrant clergy to submission. Anselmo again returned to his native city, accompanied this time by Peter Damiani. Their presence and their pretensions caused a fearful tumult, in which Damiani and Landolfo were in deadly peril.⁵¹⁰ An assembly was at length held, where the legates asserted the papal preëminence by taking the place of honor, to the general

indignation of the Milanese, who did not relish the degradation of their archbishop before the representatives of a foreign prelate. The question in debate hinged upon the authority of Rome, which was stoutly denied by the Lombards.⁵¹¹ Peter, in a long oration, showed that Rome had christianized the rest of Western Europe, and that St. Ambrose himself had invoked the papal power as superior to his own. The pride of the Ambrosian church gave way, and the supremacy of St. Peter was finally acknowledged. This granted, the rest followed as a matter of course, and the heretical errors of simony and marriage had to be abandoned. Peter thought himself merciful in his triumph; where all alike were guilty, punishment for the past became impossible, and he restricted himself to provisions for the future. The archbishop and his clergy signed a paper expressing their contrition in the most humiliating terms, and binding themselves and their successors, under penalty of eternal damnation, to render simony thereafter unknown. As regards the Nicolitan heresy, a significant caution was observed, for its extirpation was only promised in as far as it should be found possible;⁵¹² and when Arnolfo, the nephew of Guido, swore for his uncle that in future monks should be the only persons ordained without a preliminary oath that no money had been paid or received, it is observable that the maintenance of chastity was discreetly passed over. Then the archbishop and his clergy swore, in the hands of Damiani at the altar, their faithful observance of the pledge to destroy the simoniacal and Nicolitan heresies, under penalties the most tremendous; and Guido prostrating himself on the ground, humbly deplored his negligence in the past, imposed on himself a penitence of a hundred years (redeemable at a certain sum per annum), and vowed a pilgrimage to Santiago de Compostella to atone for his sin. Not content with this, Damiani mounted the pulpit and made both priests and people take an oath to extirpate both heresies; and the clergy, before being reconciled to the church and restored to the positions which they had forfeited by their contumacy, were forced individually under oath to anathematize all heresies, and especially those of simony and marriage. A penance was imposed on every one involved in simony—no allusion being made to those who were married; some, who were manifestly unfit for their sacred duties, were suspended, and the legates returned, after triumphantly accomplishing the objects of their mission.⁵¹³

If Damiani fancied that argumentative subtlety and paper promises, even though solemnly given in the name of God and all his saints, were to settle a question involving the fiercest passions of men, the cloistered saint knew little of human nature. The pride of the Milanese was deeply wounded by a subjection to Rome, unknown for many generations, and ill endured by men who gloried in the ancient dignity of the Ambrosian church. When, therefore, in 1061, their townsman, Anselmo di Badagio, was elevated from the episcopate of Lucca to that of the Holy See, Milan, in common with the rest of Lombardy, eagerly embraced the cause of the anti-pope Cadalus. One of Anselmo's earliest acts as pope was to address a letter to the Milanese, affectionately exhorting them to amendment, and expressing a hope that his pontificate was to witness the extinction of the heresies which had distracted and degraded the church.⁵¹⁴ He could scarcely have entertained the confidence which he expressed, for though Landolfo and Arialdo endeavored, with unabated zeal, to enforce the canons, the Nicolitan faction, regardless of the pledges given to Damiani, maintained the contest with equal stubbornness. Landolfo, on a mission to Rome, was attacked at Piacenza, wounded, and forced to return. Soon after this he was prostrated by a pulmonary affection, lost his voice, and died after a lingering illness of two years.⁵¹⁵ The Paterins, thus deprived of their leader, found another in the person of his brother, Erlembaldo, just then returned from a pilgrimage to the Holy Land. Gifted with every knightly accomplishment, valiant in war, sagacious in council, of a commanding presence, and endowed with eloquence to sway the passions of the multitude, he was the impersonation of a popular leader; while, in the cause to which he was now called, his deep religious convictions lent an attraction which was heightened by an unpardonable personal wrong—for, early in life, he had been betrothed to a young girl, who fell under the seductive wiles of an unprincipled priest. Yet Erlembaldo did not embark in civil strife without a hesitation which reflects honor on his character. He refused, at first, but was persuaded to seek counsel of the pope. Arialdo accompanied him to Rome, and urged Alexander to adopt him as military leader in the war against sacerdotal marriage. Alexander, too, shrank from the responsibility of authorizing war in such a cause, but Arialdo sought the assistance of Hildebrand, and the scruples of the pope were removed by the prospect of asserting the authority of Rome. When Erlembaldo heard the commands of the Vicegerent of God, and received a sacred banner to be

borne through the expected battles, he could no longer doubt as to his duty. He accepted the mission, and to it he devoted his life.⁵¹⁶

Returning to Milan with this sanction, the zeal and military experience of Erlembaldo soon made themselves felt. He enrolled secretly all the young men whom persuasion, threats, or promises could induce to follow his standard, and thus supported by an organized body, he endeavored to enforce the decretals inhibiting simony and marriage. All recalcitrant priests presuming to officiate were torn from the altars. The riots, which seem to have ceased for a time, became, with varying fortune, more numerous and alarming than ever, and the persecution of the clergy was greatly intensified. Guido, at length, after vainly endeavoring to uphold and protect the sacerdotal body, was driven from the city, and the popular reformers seemed at last to have carried their point, after a civil war which had now lasted, with short intervals, for nearly ten years.⁵¹⁷

As though to confirm the victory, Arialdo, in 1066, at a council held in Rome, procured the excommunication of his archbishop, Guido, with which he returned triumphantly to Milan. Some popular revolution among the factions, however, had brought Guido back to the city, where he maintained a precarious position. Disregarding the excommunication, he resolved to officiate in the solemn services of Pentecost (June 4th, 1066), and, braving all opposition, he appeared at the altar. Excited to fury at this unexpected contumacy, the popular party, led on by Erlembaldo and Arialdo, attacked him in the church; his followers rallied in his defence, but, after a stubborn fight, were forced to leave him in the hands of his enemies, by whom he was beaten nearly to death. Shocked by this outrage, many of the citizens abandoned the party of the reformers, and the nobles, taking advantage of the revulsion of feeling, again had the ascendancy. Arialdo was obliged to fly for his life, and endeavored to conceal himself, travelling only by night. The avengers were close upon his track, however; he was betrayed by a priest, and the satellites of Guido carried him to an island in Lago Maggiore, where (June 27th, 1066) they put him to death, with all the refinement of cruelty. A series of miracles prevented the attempted concealment of the martyred corpse, and ten months later Erlembaldo recovered it, fresh and untouched by corruption. Carried to Milan, it was interred with stately pomp in the monastery of San Celso, where the miracles wrought at his tomb proclaimed the sanctity of him who had died

for the faith, and ere long his canonization formally enrolled St. Arialdo among the saints of Heaven.⁵¹⁸

Erlembaldo for a while remained quiet, but in secret he reconstructed his party, and, undaunted by the fate of his associate, he suddenly renewed the civil strife. Successful at first, he forced the clergy to bind themselves by fresh oaths, and expelled Guido again from the city; but the clerical party recovered its strength, and the war was carried on with varying fortune, until, in 1067, Alexander II. despatched another legation with orders to harmonize, if possible, the endless strife. Cardinals Mainardo and Minuto appear to have been sincerely desirous of reconciling the angry factions. They proclaimed an amnesty and promulgated a constitution which protected the clergy from abuse and persecution, and though they decreed suspension for married and concubinary priests, they required that none should be punished on suspicion, and laid down such regulations for trial as gave great prospect of immunity.⁵¹⁹ There must have been pressing necessity for some such regulations, if we may believe the assertion of Landolfo that when Erlembaldo found his funds running low he appointed thirty judges to examine all ecclesiastics in holy orders. Those who could not procure twelve conjurators to swear with them on the Gospels as to their immaculate purity since ordination, had all their property confiscated. At the same time the rabble used to prowl around at night and throw female ornaments and articles of apparel into priests' houses; then, breaking open the doors, they would proclaim the criminality of the inmates, and plunder everything that they could lay their hands on.⁵²⁰

Moderate men of both parties, wearied with the unceasing strife, eagerly hailed the accommodation proposed by the papal legates, and rejoiced at the prospect of peace. Erlembaldo, however, was dissatisfied, and, visiting Rome, soon aroused a fresh cause of quarrel. At the suggestion of Hildebrand he started the portentous question of investitures, and on his return he endeavored to force both clergy and laity to take an oath that in future their archbishops should apply to the pope, and not to the emperor, for confirmation—thus securing a chief devoted to the cause of reform. Guido sought to anticipate this movement, and, in 1069, old and wearied with the unending contention, he resigned his archbishopric to the subdeacon Gotefrido, who had long been his principal adviser. The latter

procured his confirmation from Henry IV., but the Milanese, defrauded of their electoral privileges, refused to acknowledge him. Erlembaldo was not slow to take advantage of the popular feeling; a tumult was readily excited, and Gotefrido was glad to escape at night from the rebellious city. Guido added fresh confusion by asserting that he had been deceived by Gotefrido, and by endeavoring to resume his see. To this end he made a treaty with Erlembaldo, but that crafty chieftain, obtaining possession of his person, imprisoned him in the monastery of San Celso, and then proceeded to besiege Gotefrido in Castiglione. The new archbishop defended himself bravely, until, in 1071, Erlembaldo was forced to abandon the enterprise. [521](#)

Meanwhile another aspirant, Azzo, installed by Erlembaldo, fared no better than his rivals. The people, unbidden guests, rushed in to his inaugural banquet, unearthed him in the corner where he had hidden himself, dragged him by the heels into the street, and, placing him in a pulpit, forced him to swear that he would make no further pretensions to the see; while the papal legate, who had presided over the solemnities, was glad to escape with his life. Azzo, however, was recognized by Rome; he was released from the obligation of his oath, and money was furnished to enable him to maintain his quarrel. On the other hand, Henry IV. sent assistance to Gotefrido, which enabled him to carry on the campaign with some vigor; but he was unable to obtain a foothold in Milan. Azzo fled to Rome, and the city remained without an archbishop and under an interdict launched in 1074 by Hildebrand, who, in April, 1073, had succeeded to Alexander II. [522](#)

The Milanese were disposed to disregard the interdict, while Erlembaldo, who now held undisputed command of the city—and, indeed, of almost all Lombardy—used every effort to enforce respect for it. At length, at Easter, 1075, he resolutely prevented the solemnization of the sacred rites, and cast out the holy chrism which the priests had persisted in preparing. This roused the populace to resistance; both parties flew to arms, and, at the very commencement of the fray, Erlembaldo fell mortally wounded under the shade of the papal banner, which was still the emblem of his cause, and in virtue of which he was canonized as a saintly martyr to the faith. The Milanese, sinking all past animosities, united in promptly sending an embassy to Henry IV. to congratulate him on the death of the common enemy, and to request the appointment of another archbishop. To this he responded by nominating Tedaldo, who was duly consecrated,

notwithstanding the pretensions of his competitors, Gotefrido and Azzo. Tedaldo was the leader of the disaffected bishops who, at the synod of Pavia, in 1076, excommunicated Pope Gregory himself; and though, after the interview at Canosa, in 1077, the Lombards, disgusted with Henry's voluntary humiliation before that papal power which they had learned to despise, abandoned the imperialists for a time, yet Tedaldo kept his seat until his death in 1085, notwithstanding the repeated excommunications launched against him by Gregory.⁵²³

In the later years of this long and bloody controversy, it is evident that the political element greatly complicated the religious ground of quarrel—that pope and emperor without made use of burgher and noble within, and the latter took sides, as respects simony and sacerdotal marriage, to further the ends of individual ambition. Still, the disputed points of discipline were the ostensible causes of the struggle, whatever might be the private aims of civic factions, or of imperial and papal rivals; and these points gave a keener purpose to the strife, and furnished an inexhaustible supply of recruits to each contending faction. Thus, about the year 1070, a conference took place at Milan between priests deputed by both sides, in which the question of marriage was argued as earnestly as though it were the source of all the intestine troubles.⁵²⁴ So when, in 1073, Gregory, shortly after his accession, addressed letters to Erlembaldo urging him to persevere in the good work, and to the Lombard bishops commanding them to assist him, the object of his labors is assumed to be the extirpation of simony and the restoration of the clergy to the purity becoming their sacred office.⁵²⁵ And when, in 1076, the schismatic bishops, under the lead of Tedaldo of Milan, met in council at Pavia to renounce all obedience to Gregory, one of the articles of accusation brought against him was that he separated husbands and wives, and preferred licentiousness to marriage, thus giving, in their grounds of complaint against him, especial prominence to his zeal for the introduction of celibacy.⁵²⁶

Yet at last the question of sacerdotal marriage sank out of sight when the civil broils of Milan merged into the European quarrel between the empire

and papacy. When, in 1093, Henry IV. was driven out of Italy by the revolt of his son Conrad, and the latter was created King of Lombardy by Urban II. and the Countess Matilda, the dependence of the young king upon the pope rendered impossible any further open defiance of the laws of the church, and public marriage there, as elsewhere, was doubtless replaced by secret immorality.⁵²⁷ The triumph of the sacerdotal party was consummated at the great council of Piacenza, held by Urban II. in February, 1095, to which prelates flocked from every part of Europe, and the people gathered in immense numbers. If, as the chronicler informs us, four thousand ecclesiastics and thirty thousand laymen assembled on the occasion, and the sessions were held in the open air because no building could contain the thronging masses, we may reasonably attribute so unprecedented an assemblage to the wild religious ardor which was about to culminate in the first Crusade. That council condemned Nicolitism in the most absolute and peremptory manner, and there is no reason to believe that the power of so formidable a demonstration was lightly disregarded.⁵²⁸ Yet in Milan, as we shall see elsewhere throughout Europe, the custom of sacerdotal marriage had become so thoroughly established that it could not be eradicated suddenly. It continued to survive stubbornly after every attempt at repression with more or less openness as the persecution of married priests was more or less severe. A synod held in Milan in 1098 is discreetly silent as to wedlock or concubinage among ecclesiastics, though it is severe upon the concurrent vice of simony, and though its prohibition of hereditary succession in church benefices and dignities would show that marriage among their incumbents must have been by no means infrequent. Moreover, even as late as 1152, Mainerio Boccardo, a canon of Monza, in his will specifies that certain provisions for the benefit of his brother canons shall not be enjoyed by those who are married, thus proving that the Hildebrandine reforms had not yet been successful, though Rome had long since attained its object in breaking down the independence of the Ambrosian church.⁵²⁹

It is not to be supposed that the story of Milan is an exceptional one. Perhaps the factions there were fiercer, and the contest more prolonged,

than elsewhere; but the same causes were at work in other Italian cities, and were attended with results similar in character, if differing in intensity. In Lucca, for instance, in 1051, we find Leo IX., when confirming the possessions of the canons of the cathedral church of St. Martin, expressing the hope that God would liberate them from their married priests, who dissipated the property of the foundation, while utterly unworthy of partaking of the divine oblation.⁵³⁰ His desire that they would live in concord and harmony with their bishop was, however, not destined to be long gratified. When St. Anselmo, in 1073, accepted the episcopate at the urgent request of his friend, Gregory VII., he labored for years to reform the dissolute lives of his clergy, until at length finding threats and exhortations alike ineffectual, he implored the intervention of the Countess Matilda. Even the sovereign of Tuscany was unable to accomplish the submission of the recalcitrant ecclesiastics, and in 1074 St. Anselmo took advantage of the presence of Gregory VII. in the city to invoke his interposition. The resolute pope, finding his personal efforts fruitless, summoned the offenders to trial before a court of bishops, presided over by the celebrated Pietro Igneo, Bishop of Albano. Being condemned and excommunicated, they resisted by force of arms, excited a rebellion in the city, drove out St. Anselmo, and joined the imperialists; and when, in 1081, Guiberto the anti-pope came to Italy, he consecrated their leader, a subdeacon named Pietro, as bishop, in place of the exiled martyr.⁵³¹ In Piacenza, the schismatics were guilty of excesses more deplorable, for, not content with deposing Bonizo, who had been set over them as bishop, they gave him the fullest honors of martyrdom by plucking out his eyes and then cutting him to pieces.⁵³² Similar troubles occurred in Parma, Modena, Reggio, and Pistoia, and it was not until the death of their respective schismatic bishops that the Countess Matilda was able to recover her authority in those places.

XIV. HILDEBRAND.

Alexander II. died April 21st, 1073, and within twenty-four hours the Archdeacon Hildebrand was elected as his successor—a promptitude and unanimity which showed the general recognition of his fitness for the high office. For more than twenty years he had been the power behind the throne which had directed and given purpose to the policy of Rome, and the assertion of his biographers that his disinclination for the position had alone prevented his previous elevation may readily be believed. Whether he was forced on the present occasion to assent to the choice of the conclave, against his earnest resistance, is, however, more problematical.

Hildebrand was the son of a poor carpenter of Soano, and had been trained in the ascetic monachism of Cluny. Gifted by nature with rare sagacity, unbending will, and indomitable spirit, imbued with the principles of the False Decretals, and firmly believing in the wildest pretensions of ecclesiastical supremacy, he had conceived a scheme of hierarchical autocracy, which he regarded not only as the imprescriptible right of the church, but also as the perfection of human institutions. To the realization of this ideal he devoted his life with a fiery zeal and unshaken purpose that shrank from no obstacles, and to it he was ready to sacrifice not only the men who stood in his path, but also the immutable principles of truth and justice. All considerations were as dross compared with the one object, and his own well-being and life were ventured as recklessly as the peace of the world.

Such a man could comprehend the full importance of the rule of celibacy, not alone as essential to the ascetic purity of the church, but as necessary to the theocratic structure which he proposed to elevate on the ruins of kingdoms and empires. The priest must be a man set apart from his fellows, consecrated to the one holy purpose, revered by the world as a being superior to human passions and frailties, devoted, soul and body, to the interests of the church, and distracted by no temporal cares and anxieties foreign to the welfare of the great corporation of which he was a member.

We have seen the strenuous efforts which, for a quarter of a century, successive pontiffs had unceasingly made to accomplish this reform, and we have also seen how fruitlessly those efforts were expended on the passive or active resistance of the priesthood. When Hildebrand took the reins into his vigorous grasp, the change at once became manifest, and the zeal of his predecessors appears lukewarm by comparison. He had had ample leisure to note how inefficient was the ordinary machinery to accomplish the result, and he hesitated not to call to his assistance external powers; to give to the secular princes authority over ecclesiastics at which enthusiastic churchmen stood aghast, and to risk apparently the most precious immunities of the church to secure the result. The end proved his wisdom, for the power delegated to the laity for a special object was readily recalled, after it had served its purpose, and the rebellious clerks were subdued and rendered fit instruments in the lapse of time for humiliating their temporary masters. In one respect, however, Hildebrand's policy proved a blunder. The faithful readily submitted to the restoration of clerical immunity, but the idea that ecclesiastics forfeited their privileges by sin became a favorite one with almost all heretics, as we shall see hereafter in the case of the Albigenses, Waldenses, Wickliffites, and Hussites, costing the church many a desperate struggle.

To Gregory, as we must hereafter call him, was generally attributed, by his immediate successors, the honor of introducing, or of enforcing, the absolute chastity of the ministers of the altar. Some chroniclers mention Alexander II. or Leo IX. as participating in the struggle, but to his vigorous management its success was popularly conceded.⁵³³ He earned the tribute thoroughly, for during his whole pontificate it seems to have been ever present to his thoughts, and whatever were his preoccupations in his fearful struggle with the empire, on which he risked the present and the future of the papacy, he always had leisure to attend to the one subject in its minutest details and in the remotest corner of Christendom.

Perhaps in this there may have been an unrecognized motive urging him to action. Sprung from so humble an origin, he may have sympathized with the democratic element, which rendered the church the only career open to peasant and plebeian. He may have felt that this was a source of hidden power, as binding the populations more closely to the church, and as enabling it to press into service an unknown amount of fresh and vigorous

talent belonging to men who would owe everything to the establishment which had raised them from nothingness, and who would have no relationships to embarrass their devotion. All this would be lost if, by legalizing marriage, the hereditary transmission of benefices inevitably resulting should convert the church into a separate caste of individual proprietors, having only general interests in common, and lazily luxuriating on the proceeds of former popular beneficence. To us, retrospectively philosophizing, it further appears evident that if celibacy were an efficient agent in obtaining for the church the immense temporal power and spiritual authority which it enjoyed, that very power and that authority rendered celibacy a necessity to the welfare of civilization. When even the humblest priest came to be regarded as a superior being, holding the keys of heaven in his hand, and by the machinery of confession, absolution, and excommunication wielding incalculable influence over each member of his flock, it was well for both parties that the ecclesiastic should be free from the ties of family and the vulgar ambition of race. It is easy to see how the churchmen could have selected matrimonial alliances of the most politic and aggrandizing character; and as possession of property and hereditary transmission of benefices would have necessarily followed on the permission to marry, an ecclesiastical caste, combining temporal and spiritual power in the most dangerous excess, would have repeated in Europe the distinctions between the Brahman and Sudra of India. The perpetual admission of self-made men into the hierarchy, which distinguished the church even in times of the most aristocratic feudalism, was for ages the only practical recognition of the equality of man, and was one of the most powerful causes at work during the Middle Ages to render rational liberty eventually possible with advancing civilization. Looking therefore upon the church as an instrumentality to effect certain beneficent results in the course of human improvement, we may regard celibacy as a necessary element of sacerdotalism, the abolition of which would have required the entire destruction of the papal system and the fundamental reconstruction of ecclesiastical institutions.

What we may now readily discern to have been a means, to Gregory, however, was an end, and to the enforcement of celibacy as necessary to that object he devoted himself with unrelenting vigor. The belief that he was appointed of God, and set apart for the task of cleansing the church of the

Nicolitan heresy which had defied his predecessors is well illustrated by the contemporary legend of some pious Pisans, who, spending the night before his election in prayer in the basilica of St. Peter, saw that holy saint himself traverse the church accompanied by Hildebrand, whom he commanded to gather some droppings of mares with which the sacred edifice was defiled, to place them in a sack, and to carry them out on his shoulders.⁵³⁴ The severe austerity of his virtue, moreover, was displayed by his admirers in the story that once, when dangerously ill, his niece came to inquire as to his health. To relieve her anxiety he played with her necklace, and jestingly asked if she wished to be married; but on his recovery he found that he could no longer weep with due contrition over his sins, and that he had lost the grace of repentance. He long and vainly searched for the cause, and finally entreated his friends to pray for him, when the Virgin appeared to one of them, and sent word to Gregory that he had fallen from grace in consequence of the infraction of his vows committed in touching the necklace of his niece.⁵³⁵

His first movement on the subject appears to have been an epistle addressed in November, 1073, to Gebhardt Archbishop of Salzburg, taking him severely to task for his neglect in enforcing the canons promulgated not long before in Rome, and ordering him to carry them rigidly into effect among his clergy.⁵³⁶ This, no doubt, was a circular letter addressed to all the prelates of Christendom, and it was but a preliminary step. Early in Lent of the next year (March, 1074), he held his first synod, which adopted a canon prohibiting sacerdotal marriage, ordering that no one in future should be admitted to orders without a vow of celibacy, and renewing the legislation of Nicholas II. which commanded the people not to attend the ministrations of those whose lives were a violation of the rule.⁵³⁷ There was nothing in the terms of this more severe than what had been decreed in innumerable previous councils—indeed, it was by no means as threatening as many decretals of recent date; but Gregory was resolved that it should not remain, like them, a mere protest, and he took immediate measures to have it enforced wherever the authority of Rome extended.

The controversy as respects Italy has already been so fully described that to dilate upon it further would be superfluous. Even though Alexander II. in his later years had shrunk somewhat from the contest, yet from Naples to the Tyrol the question was thoroughly understood, and its results depended more upon political revolutions than on ecclesiastical exertions. Beyond the Alps, however, the efforts of preceding popes had thus far proved wholly nugatory, and on this field Gregory now bent all his energies. The new canon was sent to all the bishops of Europe, with instructions to promulgate it throughout their respective dioceses, and to see that it was strictly obeyed; while legates were sent in every direction to support these commands with their personal supervision and exertion.⁵³⁸

That the course which Gregory thus adopted was essentially different from that pursued by his predecessors is amply attested by the furious storm which these measures aroused. The clergy protested in the most energetic terms that they would rather abandon their calling than their wives; they denounced Gregory as a madman and a heretic, who expected to compel men to live as angels, and who in his folly, while denying to natural affection its accustomed and proper gratification, would open the door to indiscriminate licentiousness; and they tauntingly asked where, when he should have driven them from the priesthood, he expected to find the angels who were to replace them.⁵³⁹ Even those who favored celibacy condemned the means adopted as injudicious, contrary to the canons, and leading to scandals more injurious to the church than the worst of heresies.⁵⁴⁰ Gregory paid little heed to threats or remonstrances, but sent legate after legate to accuse the bishops of their inertness, and to menace them with deposition if they should neglect to carry out the canon to the letter, and he accompanied these measures with others of even more practically efficient character.

The bishops, in fact, were placed in a most embarrassing position, which may be understood from the adventures of three prelates, who took different positions with regard to the wishes of Gregory—Otho of Constance, who leaned to the side of the clergy; St. Altmann of Passau, who was an enthusiastic papalist; and Siegfried of Mainz, who was a trimmer afraid of both parties.

To Otho, Gregory, in 1074, sent the canons of the synod inhibiting marriage and simony, with orders to use every exertion to secure the

compliance of his clergy. Otho apparently did not manifest much eagerness to undertake the unpopular task, and Gregory lost little time in calling him to account. Before the year expired, we find the pope addressing a second epistle to the bishop, angrily accusing him of disobedience in permitting the ministration of married priests, and summoning him to answer for his contumacy at a synod to be held in Rome during the approaching Lent. Nor was this all, for at the same time he wrote to the clergy and people of the diocese, informing them of the disobedience of their bishop and of his summons to trial, commanding them, in case of his persistent rebellion, to no longer obey or reverence him as bishop, and formally releasing them from all subjection to him. Otho doubtless considered it imprudent to show himself at the synod of 1075; consequently in that of 1076 he was excommunicated and deprived of his episcopal functions. During the autumn of the same year, however, the legate Altmann of Passau restored him to communion at Ulm, but without granting him the privilege of officiating. Otho disregarded this restriction, and not only persisted in exercising his functions, but openly favored and protected the married clergy. For this Gregory absolved his flock from all obedience to him, whereupon Otho abandoned the Catholic party and formally joined the imperialists, who were then engaged in the effort to depose Gregory. From some motives of policy, the pope granted the hardened sinner three years for repentance, at the expiration of which, in 1080, he sent Altmann to Constance to superintend the election of another bishop. The new incumbent, however, proved incapable through bodily infirmity; and, in 1084, Otto of Ostia was sent to Constance, and under his auspices Gebhardt was elected bishop, and duly consecrated in 1085.⁵⁴¹ Evidently Gregory was not a man to abandon his purpose, and those who opposed him could not count upon perpetual immunity.

St. Altmann of Passau was renowned for his piety and the strictness of his religious observance. When the canon of 1074 reached him, he assembled his clergy, read it to them, and adjured them to pay to it the respect which was requisite. His eloquence was wasted; the clerks openly refused obedience, and defended themselves by immemorial custom, and by the fact that none of their predecessors had been called upon to endure so severe and unnatural a regulation. Finding the occasion unpropitious, the pious Altmann dissembled; he assured his clergy that he was perfectly

willing to indulge them if the papal mandate would permit it, and with this he dismissed them. He allowed the matter to lie in abeyance until the high feast of St. Stephen, the patron saint of the church, which was always attended by the magnates of the diocese. Then, without giving warning of his intentions, he suddenly mounted the pulpit, read to the assembled clergy and laity the letters of the pope, and threatened exemplary punishment for disobedience. Though thus taken at advantage and by surprise, the clerks were not disposed to submit. A terrible tumult at once arose, and the crafty saint would have been torn to pieces had it not been for the strenuous interference of the nobles, aided, as his biographer assures us, by the assistance of God. The clergy continued their resistance, and when, not long after, the empire and papacy became involved in internecine strife, they sought the protection of Henry IV., who marched upon Passau, and drove out St. Altmann and his faction. How unbending was this opposition, and how successfully it was maintained, is manifest from the fact that when St. Altmann at length returned to his diocese as papal legate, about the year 1081, even Gregory felt it necessary to use policy rather than force, and instructed him to yield to the pressure of the evil times, and to reserve the strict enforcement of the reform for a more fortunate period.⁵⁴² The political question had thus, for the moment, overshadowed the religious one.

The archiepiscopate of Mainz was, both temporally and spiritually, one of the most powerful of the ecclesiastical principalities of Germany. To the Archbishop Siegfrid, Gregory sent the canon of 1074 with instructions similar to those contained in his epistle to Otho of Constance. In reply, Siegfrid promised implicit obedience; but, recognizing the almost insuperable difficulties of the task assigned him, he temporized, and gave his clergy six months in which to make up their minds, exhorting them to render willing obedience and relieve him from the necessity of employing coercion. At the expiration of the period, in October, 1074, he assembled a synod at Erfurt, where he boldly insisted that they should give up their wives or abandon their functions and their benefices. Their arguments and entreaties were in vain. Finding him immovable, they retired for consultation, when some proposed to separate and return home at once, without further parley, and thus elude giving sanction to the new regulations; while bolder spirits urged that it would be better to put the

archbishop to instant death, before he could promulgate so execrable a decree, thus leaving for posterity a shining example, which would prevent any of his successors from attempting so abominable an enterprise.

Siegfrid's friends advised him of the turn which affairs were likely to take. He therefore sent to his clergy a request that they would reassemble in synod, promising that he would take the first opportunity to apply to Rome for a relaxation of the canon. They agreed to this, and, on meeting them the next day, Siegfrid astutely started the question of his claims on the Thuringian tithes, which had shortly before been settled by the Saxon war. Indignant at this, the Thuringian clergy raised a tumult, flew to arms, and the synod broke up in the utmost confusion. In December, Gregory wrote to the shuffling archbishop an angry letter, reproaching him with his lukewarmness in the cause, and ordering him to present himself at the synod announced for the coming Lent. Siegfrid obediently went to Rome, but was with difficulty admitted to communion. What promises he made to obtain it were not kept, for again in September, 1075, Gregory addressed him with commands to enforce the canons. Stimulated by this, Siegfrid convoked a synod at Mainz in October, where the Bishop of Coire appeared with a papal mandate threatening him with degradation and expulsion if he failed in compelling the priests to abandon either their wives or their ministry. Thus goaded, Siegfrid did his best, but the whole body of the clergy raised such a clamor and made demonstrations so active and so formidable that the archbishop saw little prospect of escaping with life. The danger from his mutinous flock was more instant and pressing than that from the angry pope; his resolution gave way, and he dissolved the synod, declaring that he washed his hands of the affair, and that Gregory might deal as he saw fit with a matter which was beyond his power to control. Thus placed between the upper and the nether millstone, it is not to be wondered at if Siegfrid took refuge in the party of the imperialists, nor that his name stands at the head of the list of bishops who in 1076 passed judgment on Gregory, and pronounced that he had forfeited all claim to the papacy; neither is it surprising that Gregory lost no time in excommunicating him at the Roman synod of the same year.⁵⁴³

These examples are sufficient to illustrate the difficulties with which Gregory had to contend, and the manner in which he endeavored to overcome them. The incidents are by no means exceptional, and his

marvellous vigor and energy in supervising the movement everywhere, encouraging the zealous co-worker and punishing the lukewarm and indifferent, are abundantly attested by his correspondence. He apparently had an eye on every corner of Europe, and lost no opportunity of enforcing his views with threats or promises, as the case might seem to demand.⁵⁴⁴

It did not take long, however, to convince him that he could count upon no efficient assistance from the hierarchy, and that if the church was to be purified, it must be purified from without, and not from within. To the unutterable horror of those strict churchmen who regarded the immunity from all temporal supervision or jurisdiction as one of the most precious of ecclesiastical privileges, he took, as early as 1074, the decided and unprecedented step of authorizing the laity to withdraw their obedience from all prelates and priests who disregarded the canons of the Holy See on the subjects of simony and incontinence.⁵⁴⁵ This principle, once adopted, was followed up with his customary unalterable resolution. In October, 1074, he wrote to a certain Count Albert, exhorting him not to mind what the simoniacal and concubinary priests might say, but, in spite of them, to persist in enforcing the orders which emanated from Rome. Still more menacing was an epistle addressed in January, 1075, to Rodolf, Duke of Swabia, and Bertolf, Duke of Carinthia, commanding them—"whatever the bishops may say or may not say concerning this, do you in no manner receive the ministrations of those who owe promotion or ordination to simony, or whom you know to be guilty of concubinage ... and, as far as you can, do you prevent, by force if necessary, all such persons from officiating. And if any shall presume to prate and say that it is not your business, tell them to come to us and dispute about the obedience which we thus enjoin upon you"—and adding a bitter complaint of the archbishops and bishops who, with rare exceptions, had taken no steps to put an end to these execrable customs, or to punish the guilty.⁵⁴⁶

These extraordinary measures called forth indignant denunciations on the part of ecclesiastics, for these letters were circulars sent to all the princes on whom he could depend, and he insured their publicity by causing similar orders to be published in the churches themselves. Thus Theodoric, Bishop of Verdun, who had inclined to the side of Gregory and had secretly left the Assembly of Utrecht in 1076 to avoid countenancing by his presence the

excommunication then pronounced against the pope, in a letter to Gregory bitterly reproaches his own folly in promulgating the decretal and in not foreseeing its effect as destructive to the peace of the church, to the safety of the clerical order, and as creating a disturbance which threatened even the Christian faith.⁵⁴⁷ So Henry, Bishop of Speyer, indignantly denounced him as having destroyed the authority of the bishops and subjected the church to the madness of the people;⁵⁴⁸ and when the bishops, at the Diet of Worms, threw off their allegiance to him, one of the reasons alleged, in Henry's letter to him, is the surrender which he had made of the church to the laity.⁵⁴⁹ Yet Gregory was not to be diverted from his course, and he was at least successful in rousing the Teutonic church from the attitude of passive resistance which threatened to render his efforts futile. The princes of Germany, who were already intriguing with Gregory for support in their perennial revolts against their sovereign, were delighted to seize the opportunity of at once obliging the pope, creating disturbance at home, and profiting by the church property which they could manage to get into their hands by ejecting the unfortunate married priests. They accordingly proceeded to exercise, without delay and to the fullest extent, the unlimited power so suddenly granted them over a class which had hitherto successfully defied their jurisdiction; nor was it difficult to excite the people to join in the persecution of those who had always held themselves as superior beings, and who were now pronounced by the highest authority in the church to be sinners of the worst description. The ignorant populace were naturally captivated by the idea of the vicarious mortification with which their own errors were to be redeemed by the abstinence imposed upon their pastors, and they were not unreasonably led to believe that they were themselves deeply wronged by the want of purity in their ecclesiastics. Add to this the attraction which persecution always possesses for the persecutor, and the license of plunder so dear to a turbulent and barbarous age, and it is not difficult to comprehend the motive power of the storm which burst over the heads of the secular clergy, and which must have satisfied by its severity the stern soul of Gregory himself.

A contemporary writer, whose name has been lost, but who is supposed by Dom Martène to have been a priest of Trèves, gives us a very lively picture of the horrors which ensued, and as he shows himself friendly in principle to the reform attempted, his account may be received as

trustworthy. He describes what amounted almost to a dissolution of society, slave betraying master and master slave; friend informing against friend; snares and pitfalls spread before the feet of all; faith and truth unknown. The peccant priests suffered terribly. Some, reduced to utter poverty, and unable to bear the scorn and contempt of those from whom they had been wont to receive honor and respect, wandered off as homeless exiles; others, mutilated by the indecent zeal of ardent puritans, were carried around to exhibit their shame and misery; others, tortured in lingering death, bore to the tribunal on high the testimony of blood-guiltiness against their persecutors; while others, again, in spite of danger, secretly continued the connections which exposed them to all these cruelties. In the midst of these troubles, as might be expected, the offices of religion were wholly neglected; the new-born babe received no holy baptism; the dying penitent expired without the saving viaticum; the sinner could cleanse his soul by no confession and absolution; and the devotee could no longer be strengthened by the daily sacrifice of the mass.⁵⁵⁰ Another writer, of nearly the same date, relates with holy horror how the laity shook off all the obedience which they owed to their pastors, and, despising the sacraments prepared by them, trod the Eucharist under foot and cast out the sacred wine, administered baptism with unlicensed hands, and substituted for the holy chrism the filthy wax collected from their own ears.⁵⁵¹

When such was the fate of the pastors, it is easy to imagine the misery inflicted on their unfortunate wives. A zealous admirer of Gregory relates with pious gratulation, as indubitable evidence of divine vengeance, how, maddened by their wrongs, some of them openly committed suicide, while others were found dead in the beds which they had sought in perfect health; and this being proof of their possession by the devil, they were denied Christian sepulture. The case of Count Manigold of Veringen affords a not un instructive instance of the frightful passions aroused by the relentless cruelty which thus branded them as infamous, tore them from their families, and cast them adrift upon a mocking world. The count had put in force the orders of Gregory with strict severity throughout his estates in the Swabian Alps. One miserable creature thus driven from her husband swore that the count should undergo the same fate, and, in the blindness of her rage, she poisoned the Countess of Veringen, whose widowed husband, overwhelmed with grief, sought no second mate.⁵⁵²

Nor was the customary machinery of miracles wanting to stimulate the zeal of the faithful in this pious work, and to convince the doubters whose worldly wisdom or humanity might shrink from the task assigned them. Unchaste priests at Mass would find sudden blasts of wind overturn the cup, and scatter the sacred wine upon the ground, or the holy wafer would be miraculously snatched out of their polluted hands. The saintly virgin Herluca saw in a vision the Saviour, with his wounds profusely bleeding, and was told that if she desired to escape a repetition of the horrifying spectacle, she must no longer be present at the ministrations of Father Richard, the officiating priest of her convent—a revelation which she employed effectually upon him and his parishioners. The same holy maiden being observed staring intently out of the window, declared, upon being questioned, that she had seen the soul of the priest of Rota carried off by demons to eternal punishment; and, on sending to his habitation, it was found that he had expired at the very moment.⁵⁵³ Puerile as these tales may seem to us, they were stern realities to those against whose weaknesses they were directed, and whose sufferings were thus enhanced by every art which bigotry could bring to bear upon the credulous passions of a barbarous populace.

It cannot be a matter of surprise if men, who were thus threatened with almost every worldly evil, should seek to defend themselves by means as violent as those employed by their persecutors. Their cruel intensity of fear is aptly illustrated by what occurred at Cambrai in 1077, where a man was actually burned at the stake as a heretic for declaring his adhesion to the Hildebrandine doctrine that the masses of simoniacal and concubinary priests were not to be listened to by the faithful.⁵⁵⁴ So, in the same year, when the pseudo-emperor Rodolf of Swabia was elected by the papalists at the Diet of Forcheim as a competitor to Henry IV., he manifested his zeal to suppress the heresies of avarice and lust by refusing the ministration of a simoniacal deacon in the coronation solemnities at Mainz. The clergy of that city, who had so successfully resisted, for two years, the efforts of their archbishop Siegfrid to reduce them to subjection to the canons, were dismayed at the prospect of coming under the control of so pious a prince, who would indubitably degrade them or compel them to give up their wives and simoniacally acquired churches. They therefore stirred up a tumult among the citizens, who were ready to espouse their cause; and when

Rodolf left his palace for vespers, he was attacked by the people. The conflict was renewed on his return, causing heavy slaughter on both sides, and though the townsmen were driven back, Rodolf was forced to leave the city.⁵⁵⁵

This incident affords us a glimpse into the political aspects of the reform. In the tremendous struggle between the empire and papacy, Gregory allied himself with all the disaffected princes of Germany, and they were careful to justify their rebellions under the specious pretext of zeal for the apostolic church. They of course, therefore, entered heartily into his measures for the restoration of ecclesiastical discipline, and professed the sternest indignation towards those whom he placed under the ban. Thus, after Henry, in 1076, had caused his bishops to declare the degradation of Gregory, when the revolted princes held their assembly at Tribur, and in turn decreed the deposition of Henry, they used the utmost caution to exclude all who had communicated with Henry since his excommunication, together with those who had obtained preferment by simony, or who had joined in communion with married priests.⁵⁵⁶ The connection, indeed, became so marked that the papalists throughout Germany were stigmatized by the name of Patarini—a term which had acquired so sinister a significance in the troubles of Milan.⁵⁵⁷ In this state of affairs it was natural that common enmities and common dangers should unite the persecuted clergy and the hunted sovereign. Yet it is a curious illustration of the influence which the denunciations of sacerdotal marriage had exercised over the public mind, that although Henry tacitly protected the simoniacal and married ecclesiastics, and although they rallied around him and afforded him unquestionable and invaluable aid, still he never ventured openly to defend them. Writers both then and since have attributed the measure of success with which he sustained the fluctuating contest, and the consequent sufferings of the unbending pope, to the efforts of the recalcitrant clergy who resisted the yoke imposed on them by Rome.⁵⁵⁸ Yet Henry had formally and absolutely pledged his assistance when Gregory commenced his efforts, and had repeated the promise in 1075;⁵⁵⁹ and from this position he never definitely withdrew. Even when the schismatic

bishops of his party, at the synod of Brixen, in 1080, pronounced sentence of deposition on Gregory, and filled the assumed vacancy with an anti-pope, the man whom they elected never ventured to dispute the principle of Gregory's reforms, although the Lombard prelates, at that very time, were warmly defending their married and simoniacal clergy.⁵⁶⁰ Indeed, Guiberto of Ravenna, or Clement III., took occasion to express his detestation of concubinage in language nearly as strong as that of his rival, although he threatened with excommunication the presumptuous laymen who should refuse to receive the sacraments of priests that had not been regularly tried and condemned at his own papal tribunal.⁵⁶¹ In thus endeavoring to place himself as a shield between the suffering priesthood and the persecuting populace, he was virtually striving to annul the reforms of Gregory, since in no other way could they be carried into effect; but he was forced to coincide with Gregory as to the principle which dictated those reforms. Notwithstanding all these precautions, however, the papalists were not disposed to allow their opponents to escape the responsibility of the alliance which brought them so much strength by dividing the church, and no opportunity was lost of stigmatizing them for the license which they protected. When Guiberto and his cardinals were driven out of Rome in 1084 by Robert Guiscard and his Normans, the flying prelates were ridiculed, not for their cowardice, but for their shaven chins, and the wives and concubines whom they publicly carried about with them.⁵⁶²

At length Henry and his partisans appear to have felt it necessary to make some public declaration to relieve themselves from the odium of supporting and favoring a practice which was popularly regarded as a heresy and a scandal. When the papalists, under their King Hermann, at the Easter of 1085 (April 20th), convened a general assembly of their faction at Quedlinburg and again forbade all commerce with women to those in orders,⁵⁶³ the imperialists lost no time in putting themselves on the same record with their rivals. Three weeks later Henry gathered around him, at Mainz, all the princes and prelates who professed allegiance to him, for the purpose of securing the succession to his eldest son, Conrad, as King of Germany, and there, in that solemn diet, marriage was formally prohibited to the priesthood.⁵⁶⁴ Gregory was then lying on his dying bed in the far off castle of Salerno, and ere the news could reach him he was past the vanities of earthly triumph. Could he have known, however, that the cause for which

he had risked the integrity and independence of the church had thus received the support of its bitterest enemies, and that his unwavering purpose had thus achieved the moral victory of forcing his adversaries to range themselves under his banner, his spirit would have rejoiced, and his confidence in the ultimate success of the great theocratic system, for the maintenance of which he was thus expiring in exile, would have softened the sorrows of a life which closed in the darkness and doubt of defeat.

XV. CENTRAL EUROPE.

Hildebrand had passed away, leaving to his successors the legacy of inextinguishable hate and unattained ambition. Nor was the reform for which he had labored as yet by any means secured in practice, even though his opponents had been reduced to silence or had been forced to render a formal adhesion to the canons which he had proclaimed so boldly.

The cause of asceticism, it is true, had gained many adherents among the laity. Throughout Germany, husbands and wives separated from each other in vast numbers, and devoted themselves to the service of the church, without taking vows or assuming ecclesiastical garments; while those who were unmarried renounced the pleasures of the world, and, placing themselves under the direction of spiritual guides, abandoned themselves entirely to religious duties. To such an extent did this prevail, that the pope was applied to for his sanction, which he eagerly granted, and the movement doubtless added strength to the party of reform.⁵⁶⁵ Yet but little had thus far been really gained in purifying the church itself, notwithstanding the fearful ordeal through which its ministers had passed.

As for Germany, the indomitable energy of Henry IV., unrepressed by defeat and unchilled by misfortune, had at length achieved a virtual triumph over his banded enemies. But four bishops of the Empire—those of Wurzburg, Passau, Worms, and Constance—owed allegiance to Urban II. All the other dioceses were filled by schismatics, who rendered obedience to the anti-pope Clement. In 1089 the Catholic or papalist princes offered to lay down their arms and do homage to Henry if he would acknowledge Urban and make his peace with the true church. The emperor, however, had a pope who suited him, and he entertained too lively a recollection of the trials from which he was escaping to open the door to a renewal of the papal pretensions, which he had at length successfully defied, nor would he consent to stigmatize his faithful prelates as schismatics.⁵⁶⁶ He therefore pursued his own course, and Guiberto of Ravenna enjoyed the honors of the

popedom, checkered by alternate vicissitudes of good and evil fortune, until removed by death in the year 1100,⁵⁶⁷ his sanctity attested by the numerous miracles wrought at his tomb, which only needed the final success of the imperialist cause to enrich the calendar with a St. Clement in place of a St. Gregory and a St. Urban.⁵⁶⁸

Under such auspices, no very zealous maintenance of ecclesiastical discipline was to be expected. If Clement's sensibilities were humored by a nominal reprobation of sacerdotal marriage, he could scarcely ask for more or insist that Henry should rekindle the embers of disaffection by enforcing the odious rules which had proved so powerful a cause of trouble to their authors and his enemies. Accordingly, it cannot surprise us to observe that Urban II., in following out the views of his predecessors, felt it necessary to adopt measures even more violent than those which in Gregory's hands had caused so much excitement and confusion, but whose inefficiency was confessed by the very effort to supplement them. In 1089, the year after his consecration, Urban published at the council of Amalfi a decree by which, as usual, married ecclesiastics were sentenced to deposition, and bishops who permitted such irregularities were suspended; but where Gregory had been content with ejecting husbands and wives, and with empowering secular rulers to enforce the edict on recalcitrants, Urban, with a refinement of cruelty, reduced the unfortunate women to slavery, and offered their servitude as a bribe to the nobles who should aid in thus purifying the church.⁵⁶⁹ If this infamous canon did not work misery so wide-spread as the comparatively milder decretals of Gregory, it was because the power of Urban was circumscribed by the schism, while he was apparently himself ashamed or afraid to promulgate it in regions where obedience was doubtful. When Pibo, Bishop of Toul, in the same year, 1089, sent an envoy to ask his decision on various points of discipline, including sacerdotal marriage (the necessity of such inquiry showing the futility of previous efforts), Urban transmitted the canons of Amalfi in response, but omitted this provision, which well might startle the honest German mind.⁵⁷⁰ Perhaps, on reflection, Urban may himself have wished to disavow the atrocity, for in a subsequent council, when again attacking the ineradicable sin, he contented himself with simply forbidding all such marriages, and ordering all persons who were bound by orders or vows to be separated from their wives or concubines, and to be subjected to due penance.⁵⁷¹

Yet even in those regions of Germany which persevered in resisting Henry and in recognizing Urban as pope, the persecution of twenty years was still unsuccessful, and the people had apparently relapsed into condoning the wickedness of their pastors. In an assembly held at Constance in 1094, it was deemed necessary to impose a fine on all who should be present at the services performed by priests who had transgressed the canons.⁵⁷² When this was the case in the Catholic provinces, it is easy to imagine that in the imperialist territories the thunders of Gregory and Urban had long since been forgotten, and that marrying and giving in marriage were practised with as little scruple as ever. A fair illustration, indeed, of the amount of respect paid to the rules of discipline is afforded by a discussion on the choice of a successor to Cosmo Bishop of Prague, who died in 1098. Duke Brecislas, in filling the vacancy with his chaplain Hermann, endeavored to rebut the arguments of those who objected to the foreign birth of the appointee by urging that fact as a recommendation, since, as a stranger, he would not be pressed upon by a crowd of kindred nor be burdened with the care of children, thus showing that the native priesthood, as a general rule, were heads of families.⁵⁷³ For this, moreover, they could not plead ignorance, for a Bohemian penitential of the period expressly prohibits priests from having companions whose society could give rise to suspicion of any kind.⁵⁷⁴

At length the duel which, for more than thirty years, Henry had so gallantly fought with the successors of St. Peter drew to a close. Ten years of supremacy he had enjoyed in Germany, and he looked forward to the peaceful decline of his unquiet life, when the treacherous calm was suddenly disturbed. Papal intrigues in 1093 had caused the parricidal revolt of his eldest born, the weak and vacillating Conrad, whose early death had then extinguished the memory of his crime. That unnatural rebellion had gained for Rome the North of Italy; and as the emperor's second son, Henry, grew to manhood, he, too, was marked as a fit instrument to pierce his father's heart, and to extend the domination of the church by the foulest wrongs that man can perpetrate. The startling revolution which in 1105 precipitated Henry from a throne to a prison, from an absolute monarch to a

captive embracing the knees of his son and pleading for his wretched life, established forever the supremacy of the papacy over Germany. The consequent enforcement of the law of celibacy became only a question of time.

As the excuse for the rebellion was the necessity of restoring the empire to the communion of Rome, one of the first measures of the conspirators was the convocation of a council to be held at Nordhausen, May 29, 1105, and one of the objects specified for its action was the expulsion of all married priests.⁵⁷⁵ The council was duly held, and duly performed its work of condemning the heresy which permitted benefices to be occupied and sacred functions exercised by those who were involved in the ties of matrimony.⁵⁷⁶ Pope Paschal II. was not remiss in his share of the ceremony, by which he was to receive the fruits of his treacherous intrigues. The following year a great council was held at Guastalla, where, after interminable discussions as to the propriety of receiving without re-ordination those who had compromised themselves or who had been ordained by schismatics, he admitted into the fold all the repentant ecclesiastics of the party of Henry IV.⁵⁷⁷ The text of the canon granting this boon to the imperialist clergy bears striking testimony to the completeness of the separation which had existed between the Teutonic and the Roman churches in stating that throughout the empire scarce any Catholic ecclesiastics were to be found.⁵⁷⁸ It scarcely needed the declaration which Paschal made in 1107 at the synod of Troyes, condemning married priests to degradation and deprivation,⁵⁷⁹ to show that the doctrines of Damiani and Hildebrand were thenceforth to be the law of the empire.

The question thus was definitely settled in prohibiting the priests of Germany from marrying or from retaining the wives whom they had taken previous to ordination. It was settled, indeed, in the rolls of parchment which recorded the decrees of councils and the trading bargains of pope and kaiser, yet the perennial struggle continued, and the parchment roll for yet awhile was powerless before the passions of man, who did not cease to be man because his crown was shaven and his shoulders wore cope and stole.

Cosmo, who was Dean of Prague, who had been bred to the church, and had been promoted to the priesthood in 1099, chronicles, in 1118, the death of Boseteha, his wife, in terms which show that no separation had ever

occurred between them; and five years later he alludes to his son Henry in a manner to indicate that there was no irregularity in such relationship, nor ought that would cause him to forfeit the respect of his contemporaries in acknowledging it.⁵⁸⁰ Even more to the point is the case of a pious priest, his friend, who, on the death of his wife (“presbytera”), made a vow that he would have no further intercourse with women. Cosmo relates that the unaccustomed deprivation proved harder than he had expected, and that for some years he was tortured with burning temptation. Finding at length that his resolution was giving way, he resolved to imitate St. Benedict in conquering the flesh; and having no suitable solitude for the execution of his purpose, he took a handful of nettles to his chamber, where, casting off his garments, he thrashed himself so unmercifully that for three days he lay moribund. Then he hung the nettles in a conspicuous position on his wall, that he might always have before his eyes so significant a memento and warning.⁵⁸¹ Cosmo’s admiration for this, as a rare and almost incredible exhibition of priestly virtue and fortitude, shows how few were capable of even remaining widowers, while the whole story proves that not only the clergy were free to marry, but also that it was only the voluntary vow that prevented a second marriage. At the close of the century Pietro, Cardinal of Santa Maria in Via Lata, sent as Legate to Bohemia by Celestin III., was much scandalized at this state of affairs; and when a number of postulants for holy orders were assembled in the church of St. Vitus at Prague, before ordaining them he pronounced a discourse on the subject of celibacy and demanded that they should all swear to preserve continence. Thereupon all the priests who were present rushed forward and urged them not to assume an obligation hitherto unknown, and when the Cardinal ordered the Archdeacon to repress their somewhat active demonstrations, they proceeded to pummel that unhappy official and the tumult was with difficulty repressed by the soldiery who were summoned. The legate sentenced some of the rioters to be starved to death in prison and the rest to be exiled—a wholesome severity which broke the spirit of the Bohemian priesthood and led to the introduction of celibacy.⁵⁸²

That this state of things was not confined to the wild Bohemian Marches, but obtained throughout Germany in general, is sufficiently attested by the fact that when Innocent II. was driven out of Rome by the anti-pope Anaclet, and was wandering throughout Europe begging recognition, he

held, in conjunction with the Emperor Lothair, in 1131, a council at Liège, where he procured the adoption of a canon prohibiting priestly marriage or attendance on the mass of married priests. Not only does the necessity of this fresh legislation show that previous enactments had become obsolete, but the manner in which these proceedings are referred to by the chroniclers plainly indicates that it took the Teutonic mind somewhat by surprise, and that the efforts of Gregory and Urban had not only remained without result, but had become absolutely forgotten.⁵⁸³

If these proceedings of Innocent had any effect, it was only to make matters worse. The pious Rupert, Abbot of Duits, writing a few years later, deplores the immorality of the priesthood, who not only entered into forbidden marriages, but, knowing them to be illegal, had no scruple in multiplying the tie, considering it to be, at their pleasure, devoid of all binding force.⁵⁸⁴ And in Liège itself, where Innocent had held his council, Bishop Albero, whose episcopate commenced in 1135, permitted his priests to celebrate their marriages openly, so that, as we are told, the citizens rather preferred to give their daughters in marriage to them than to laymen; and the naïve remark of the chronicler that the clergy gave up keeping concubines in secret and took wives openly would seem to show that the cause of morality had not gained during the temporary restriction imposed by Innocent.⁵⁸⁵ It was not to much purpose that Albero was deprived of his see for this laxity, for the same state of things continued. No province of Germany was more orthodox than Salzburg, yet the archdeacon of the archiepiscopal church there, writing in 1175, bewails the complete demoralization of his clergy, whom he was utterly unable to reform. Priests who were content with their own wives and did not take those of other men were reputed virtuous and holy; and he complains that in his own archidiaconate he was powerless to prevent the ordination and ministry of the sons of priests, even while they were living in open adultery with women whom they had taken from their husbands.⁵⁸⁶ How little sympathy, indeed, all efforts to enforce the rule called forth is instructively shown by the wondering contempt with which a writer, strictly papalist in his tendencies, comments upon the indiscreet reformatory zeal of Meinhard, Archbishop of Trèves. Elevated to this lofty dignity in 1128, he at once undertook to force his clergy to obey the rule by the most stringent measures, and speedily became so odious that he was obliged to leave his

bishopric within the year; and the chronicler who tells the story has only words of reprobation for the unfortunate prelate.⁵⁸⁷ Even as late as the end of the twelfth century, a chronicler of the popes, writing in southern Germany, calls Gregory VII. an enforcer of impossibilities—“præceptor impossibilium”—because he had endeavored to make good the rule of celibacy;⁵⁸⁸ and a council of Ratisbon, in the thirteenth century, while lamenting the fact that there were few priests who did not openly keep their concubines and children in their houses, quotes the canon of Hildebrand forbidding the laity to attend at the ministrations of such persons, but without venturing to hint at its enforcement.⁵⁸⁹

Hungary had been Christianized at a time when the obligation of celibacy was but lightly regarded, though it had not as yet become obsolete. In reducing the dreaded and barbarous Majjars to civilization, the managers of the movement might well smooth the path and interpose as few obstacles as possible to the attainment of so desirable a consummation. It is probable, therefore, that restrictions on marriage, as applied to the priesthood, were lightly passed over, and, not being insisted on, were disregarded by all parties. Even the decretals of Nicholas II. and the fulminations of Gregory VII. appear to have never penetrated into the kingdom of St. Stephen, for sacerdotal celibacy seems to have been unknown among the Hungarians until the close of the century. The first allusion to it occurs in the synod of Zabolcs, held in 1092, under the auspices of St. Ladislav II., and is of a nature to show not only that it was an innovation on established usages, but also that the subject required tender handling to reconcile it to the weakness of undisciplined human nature. After the bitter denunciations and cruelly harsh measures which the popes had been promulgating for nearly half a century, there is an impressive contrast in the mildness with which the Hungarian church offered indulgence to those legitimately united to a first wife, until the Holy See could be consulted for a definitive decision;⁵⁹⁰ and though marriages with second wives, widows, or divorced women were pronounced null and void, the disposition to evade a direct meeting of the question is manifested in a regulation which provided that if a priest united himself to his female slave “uxoris in locum,” the woman should be sold;

but if he refused to part with her, he was simply to pay her price to the bishop.⁵⁹¹ Whether or not the pope's decision was actually sought, we have no means of knowing; if it was, his inevitable verdict received little respect, for the Synod of Gran, held about the year 1099 by the Primate Seraphin of Gran, only ventured to recommend moderation to married priests, while its endeavor to enforce the rule prohibiting marriage after the assumption of orders shows how utterly the recognized discipline of the church was neglected. The consent of wives was also required before married priests could be elevated to the episcopate, and after consecration separation was strictly enjoined, affording still further evidence of the laxity allowed to the other grades. The iteration of the rules respecting *digami* and marriage with widows also indicates how difficult was the effort to resuscitate those well-known regulations, although they were universally admitted to be binding on all ecclesiastics.⁵⁹²

King Coloman, whose reign extended from 1095 to 1114, has the credit of being the first who definitely enjoined immaculate purity on the Hungarian priesthood. His laws, as collected by Alberic, have no dates, and therefore we are unable to affix precise epochs to them; but his legislation on the subject appears to have been progressive, for we find edicts containing injunctions respecting *digami* and irregular unions in terms which indicate that single marriages were not interfered with; and these may reasonably be deemed earlier than other laws which formally prohibit the elevation to the diaconate of an unmarried man without exacting from him a vow of continence, or of a married man without the consent of his wife. The import of this latter condition is explained by another law, which provided that no married man should officiate at the altar unless his wife professed continence, and was furnished by her husband with the means of dwelling apart from him.⁵⁹³ As these stringent regulations form part of the canons of a council held by Archbishop Seraphin about the year 1109,⁵⁹⁴ they were probably borrowed from that council by Coloman, and incorporated into his laws at a period somewhat later.

I have not met with any indications of the results of the legislation which thus combined the influence of the temporal and ecclesiastical authorities. That it effected little, however, is apparent from the evidence afforded by Dalmatia, at that time a province of Hungary. Shortly before it lost its

independence, its duke, Dimitri, resolved to assume the crown of royalty, and purchased the assent of Gregory VII. at the price of acknowledging him as feudal superior. Gregory took advantage of Dimitri's aspirations to further the plans of reform, of which he never lost sight; for, in the coronation oath taken in 1076 before Gebizo, the papal legate, the new king swore that he would take such measures as would insure the chastity of all ecclesiastics, from the bishop to the subdeacon.⁵⁹⁵ The new dynasty did not last long, for before the end of the century St. Ladislav united the province of Dalmatia to the kingdom of Hungary; but neither the oath of Dimitri, the laws of Coloman, nor the canons of the national councils succeeded in eradicating the custom of priestly marriage. When we find, in 1185, Urban III. in approving the acts of the synod of Spalatro, graciously expressing his approbation of its prohibiting the marriage of priests, and desiring that the injunction should be extended so as to include the diaconate,⁵⁹⁶ we see that marriage must have been openly enjoyed by all ranks, that the synod had not ventured to include in the restriction any but the highest order, and that Urban himself did not undertake to apply the rule to subdeacons, although they had been specially included in Dimitri's oath. Yet still pope and synod labored in vain, for fourteen years later, in 1199, another national council complained that priests kept both wives and benefices. It therefore commanded that those who indulged in this species of adultery should either dismiss their partners in guilt, and undergo due penance, or else should give up their churches; while no married man should be admitted to the diaconate, unless his wife would take a vow of continence before the bishop.⁵⁹⁷ Even yet, however, the subdiaconate is not alluded to, although the legates who presided over the council were those of Innocent III.

Of how little avail were these efforts is shown by the national council held at Vienna as late as 1267, by Cardinal Guido, legate of Clement IV. It was still found necessary to order the deprivation of priests and deacons who persisted in retaining their wives; while the special clauses respecting those who married after taking orders prove that such unions were frequent enough to require tender consideration in removing the evil. The subdiaconate, also, was declared liable to the same regulations, but the resistance of the members of that order was probably stubborn, for the canons were suspended in their favor until further instructions should be received from the pope.⁵⁹⁸

Poland was equally remiss in enforcing the canons on her clergy. The leaning of the Slavonic races towards the Greek church rendered them, in fact, peculiarly intractable, and marriage was commonly practised by the clergy at least until the close of the twelfth century.⁵⁹⁹ At length the efforts of Rome were extended to that distant region, and in 1197 the papal legate, Cardinal Peter of Capua, held the synod of Lanciski, when the priests were peremptorily ordered to dismiss their wives and concubines, who, in the words of the historian, were at that time universally and openly kept.⁶⁰⁰ The result of this seems to have amounted to little, for in 1207 we find Innocent III. sharply reproving the bishops of the province of Gnesen because married men were publicly admitted to ecclesiastical dignities, and canons took no shame in the families growing up around them. The children of priests were brought up to the sacred profession of their fathers, assisted them in their ministrations, and succeeded to their benefices. Whether or not the other disorders which Innocent designated as infecting the churches were the result of the carnal affections which thus superseded the spiritual we may fairly doubt, in view of the abuses still prevailing in more favored regions.⁶⁰¹ The effort was continued, and was apparently at length successful, at least in the western portions of the Polish church, for at the council of Breslau, held in 1279, there is no mention of wives, and the constitution of Guido, legate of Clement IV., is quoted, depriving of benefices those who openly kept concubines.⁶⁰²

The church of Sweden was no purer than its neighbors. That the rule was recognized there at a tolerably early period is shown by the fact that when the people of Scania, about the year 1180, revolted against the exactions of Waldemar I. of Denmark, they demanded to be released from the oppression of tithes and that the clergy should be married. Singularly enough, the clerks stood by their bishop, Absalom, when he laid an interdict on the province, and the arms of Waldemar speedily subdued the revolt.⁶⁰³ Not much, however, was gained for church discipline by this. In 1204, the Archbishop of Lunden reported to Innocent III. that he had used every

endeavor to enforce the canons and had brought many of his priests to observe chastity, but that there still were many who persisted in retaining their women, whom they treated as though they were legitimate wives, with fidelity and conjugal affection. To this Innocent replied that the recalcitrants must be coerced by suspension, and, if necessary, by deprivation of benefice.⁶⁰⁴ How little result this achieved is evident when we find the archbishop again writing to Innocent III. complaining that the Swedish priests persisted in living with their wives, and that they moreover claimed to have a papal dispensation permitting it. Innocent, in reply, cautiously abstained from pronouncing an opinion as to the validity of these pretensions until he should have an opportunity of examining the document to which they appealed.⁶⁰⁵ The efforts at this time were fruitless, for, in 1248, we find the Cardinal of St. Sabina as legate of Innocent IV. holding a council at Schening, of which the principal object was to reform these abuses, and so firmly were they established, that the Swedes were considered as schismatics of the Greek church, in consequence of the marriage of their priests. The council supported by the royal power, succeeded in forcing the Swedish ecclesiastics to give up their wives, by a liberal use of all the punishments then in vogue, together with the significant threat of abandoning them to the tender mercies of the secular tribunals.⁶⁰⁶

In Denmark and along the northern coasts of Germany, there was equal delay in enforcing the canon of celibacy. It is suggestive of some powerful intercession in favor of the married clergy when we see Paschal II., in 1117, writing to the King of Denmark that the rule was imperative, and that he could admit of no exceptions to it.⁶⁰⁷ His insistence, however, was of little avail. In 1266, Cardinal Guido, legate of Clement IV., held a council at Bremen, where he was obliged to take rigorous measures to put an end to this Nicolitan heresy. All married priests, deacons, and subdeacons were pronounced incapable of holding any ecclesiastical office whatever. Children born of such unions were declared infamous, and incapable of inheritance, and any property received by gift or otherwise from their fathers was confiscated. Those who permitted their daughters, sisters, or

other female relatives to contract such marriages, or gave them up in concubinage to priests, were excluded from the church. That a previous struggle had taken place on the subject is evident from the penalties threatened against the prelates who were in the habit of deriving a revenue from the protection of these irregularities, and from an allusion to the armed resistance, made by the married and concubinary priests with their friends, to all efforts to check their scandalous conduct.⁶⁰⁸

In Friesland, too, the efforts of the sacerdotalists were long set at naught. In 1219 Emo, Abbot of Wittewerum, describing the disastrous inundations which afflicted his country, considers them as a punishment sent to chastise the vices of the land, and among the disorders which were peculiarly obnoxious to the wrath of God he enumerates the public marriage of the priests, the hereditary transmission of benefices, and the testamentary provision made by ecclesiastics for their children out of the property which should accrue to the church; while his references to the canon law inhibiting these practices, show that these transgressions were not excusable through ignorance.⁶⁰⁹ The warning was unheeded, for Abbot Emo alludes incidentally, on various subsequent occasions, to the hereditary transmission of several deaneries as a matter of course.⁶¹⁰ The deans in Friesland were ecclesiastics of high position, each having six or more parishes under his jurisdiction, which he governed under legatine power from the Bishop of Munster. When, in 1271, the people rose against them, exasperated by their intolerable exactions, in some temporary truce the deans gave their *children* as hostages; and when, after their expulsion, Gerard of Munster came to their assistance by excommunicating the rebels, the latter defended the movement by the argument that the deans had violated the laws of the church by handing down their positions from father to son, and that each generation imitated the incontinence of its predecessor.⁶¹¹ Hildebrand might have applauded this reasoning, but his days were past. The church by this time had gained the position to which it had aspired, and no longer invoked secular assistance to enforce its laws. Even Abbot Menco, while admitting the validity of the popular argument, claimed that such questions were reserved for the decision of the church alone, and that the people must not interfere.

After thus marking the slow progress of the Hildebrandine movement in these frontier lands of Christendom, let us see what efforts were required to establish the reform in regions less remote.

XVI. FRANCE.

Gregory VII. had not been so engrossed in his quarrels with the Empire as to neglect the prosecution of his favorite schemes of reform elsewhere. If he displayed somewhat less of energy and zeal in dealing with the ecclesiastical foibles of other countries, it was perhaps because the political complications which gave a special zest to his efforts in Germany were wanting, and because there was no organized resistance supported by the temporal authorities. Yet the inertia of passive non-compliance long rendered his endeavors and those of his successors equally nugatory.

As early as 1056 we find Victor II., by means of his vicars at the council of Toulouse, enjoining on the priesthood separation from their wives, under penalty of excommunication and deprivation of function and benefice.^{[612](#)} This was followed up in 1060 by Nicholas II., who sought through his envoys to enforce the observance of his decretals on celibacy in France, and under the presidency of his legate the council of Tours in that year adopted a canon of the most decided character. All who, since the promulgation of the decretal of 1060, had continued in the performance of their sacred functions while still preserving relations with their wives and concubines were deprived of their grades without hope of restoration; and the same irrevocable penalty was denounced against those who in the future should endeavor to combine the incompatible duties of husband and minister of Christ.^{[613](#)}

In what spirit these threats and injunctions were likely to be received may be gathered from an incident which occurred, probably about this time. A French bishop, as in duty bound, excommunicated one of his deacons for marrying. The clergy of the diocese, keen to appreciate the prospect of future trouble, rallied around their persecuted brother, and rose in open rebellion against the prelate. The latter, apparently, was unable to maintain his position, and the matter was referred for adjudication to the celebrated Berenger of Tours. Although, in view of the papal jurisprudence of the

period, the bishop would seem to have acted with leniency, yet Berenger blamed both parties for their precipitancy and quarrelsome humor, and decided that the excommunication of a deacon for marrying was contrary to the canons, unless rendered unavoidable by the contumacy of the offender.⁶¹⁴

Even more significant was the scene which occurred in 1074 in the council of Paris, where the holy St. Gauthier, Abbot of Ponthoise, undertook to sustain the decretal by which Gregory VII. prohibited attendance on the masses of married and concubinary priests. The assembly manifested its disapprobation of the measure in a manner so energetic that its unlucky advocate, after being furiously berated and soundly pummelled, was glad to escape with his life from the hands of his indignant brethren.⁶¹⁵

When such was the spirit of the ecclesiastical body, there was little to be expected from any internal attempt at reform. At the stormy synod of Poitiers, in 1078, the papal legate, Hugh, Bishop of Die, succeeded in obtaining the adoption of a canon which threatened with excommunication all who should knowingly listen to the mass of a concubinary or simoniacal priest,⁶¹⁶ but this seems to have met with little response. Coercion from without was evidently requisite, and in this case, as we have seen, Gregory did not shrink from subjecting the church to the temporal power. In Normandy, for instance, a synod held at Lisieux in 1055 had commanded the degradation of priests who resided with wives or concubines. This was, of course, ineffective, and in 1072 John, Archbishop of Rouen, held a council in his cathedral city, where he renewed that canon in terms which show how completely all orders and dignitaries were habitually liable to its penalties.⁶¹⁷ The Norman clergy were not disposed to submit quietly to this abridgement of their accustomed privileges, and they expressed their dissent by raising a terrible clamor and driving their archbishop from the council with a shower of stones, from which he barely escaped alive.⁶¹⁸ At length, in view of the utter failure of all ecclesiastical legislation, the laity were called in. William the Conqueror, therefore, in 1080, assisted the Archbishop of Rouen in holding a synod at Lillebonne, where the stern presence of the suzerain prevented any unseemly resistance to the adoption of most unpalatable regulations. All who were in holy orders were forbidden, under any pretext, to keep women in their houses, and if, when

accused of disobedience, they were unable to prove themselves innocent, their benefices were irretrievably forfeited. If the accusation was made by the ecclesiastical officials, the offender was to be tried by the episcopal court, but if his parishioners or feudal superior were the complainants, he was to be brought before a mixed tribunal, composed of the squires of his parish and the officials of the bishop. This startling invasion of the dearest privileges of the church was declared by William to proceed from no desire to interfere with the jurisdiction of his bishops, but to be a temporary expedient, rendered necessary by their negligence. Nor was this remarkable measure the only thing that renders the synod of Lillebonne worthy of note, for it affords us the earliest authoritative indication of a practice which subsequently became a standing disgrace to the church. The fifth canon declares that no priest shall be forced to give anything to the bishop or to the officers of the diocese beyond their lawful dues, and especially that no money shall be exacted on account of women kept by clerks.⁶¹⁹ A tribute known as “cullagium” became at times a recognized source of revenue, in consideration of which the weaknesses of human nature were excused, and ecclesiastics were allowed to enjoy in security the society of their concubines. We shall see hereafter that this infamous custom continued to flourish until the sixteenth century, despite the most strenuous and repeated endeavors to remove so grievous a scandal.

It is probable that the expedient of mixed courts for the trial of married and concubinary priests was not adopted without the concurrence of Gregory, who was willing to make almost any sacrifice necessary to accomplish his purpose. That they were organized and performed the functions delegated to them is shown by a reference in a charter of 1088 to one held at Caumont, which required a priest to abandon either his wife or his church.⁶²⁰ So far, indeed, was Gregory from protesting against this violation of ecclesiastical immunities, that he was willing even to connive at the abuses which immediately crept into the system, and to purchase the assistance of the laity by allowing them to lay sacrilegious hands on the temporalities of the church. Many of the nobles who thus assisted in expelling the offending clergy seized the tithes and retained them. The papal legate, Hugh, Bishop of Die—better known by his subsequent primatial dignity of Lyons—proceeded against these invaders of church property in the usual manner, and excommunicated them as a matter of

course. Gregory, however, who under ordinary circumstances would have promptly consigned the spoilers to the bottomless pit, now virtually took their side. He discreetly declined to confirm the excommunication, reproved his legate for superserviceable zeal, and ordered him in future to be more guarded and temperate in his proceedings.⁶²¹

Church and state—the zeal of the ecclesiastic and the avarice of the noble—vainly united to break down the stubbornness of the Norman priesthood, for marriage continued to be enjoyed as openly as ever. The only effect of the attempted reform, indeed, appeared to be that when a priest entered into matrimony he took a solemn vow never to give up his wife, a measure prompted doubtless by the fears of the bride and her kindred. The nuptials were public; male issue succeeded to benefices by a recognized primogeniture, and female children received their fathers' churches as dower, when other resources were wanting. About the beginning of the twelfth century, three enthusiastic ascetic reformers, the celebrated Robert d'Arbrissel, founder of Fontevrault, Bernard Abbot of Tiron, and Vitalis of Mortain traversed Normandy and preached with great earnestness against these abuses, the result of which was that they nearly came to an untimely end at the hands of the indignant pastors and their more indignant spouses. On one occasion, when Bernard was preaching at Coutances, a married archdeacon assailed him, with a crowd of priests and clerks, asking how he, a monk, dead to the world, presumed to preach to the living. Bernard replied that Samson had slain his foes with the jaw-bone of a dead ass, and then proceeded with so moving a discourse on Samson, that the archdeacon was converted, and interfered to save him from the mob.⁶²²

If William the Conqueror found his advantage in thus assisting the hopeless reform within his duchy of Normandy, he had no hesitation in obstructing it when his policy demanded such a course in his subject province of Brittany. During the three and a half centuries through which the Breton church maintained its independence of the archiepiscopal see of Tours, its metropolis was Dol. Judhaël, who occupied its lofty seat, not only obtained it by simony, but sullied it by a public marriage; and when the offspring of this illicit union reached maturity he portioned them from the property of the church. This prolonged violation of the canons attracted the attention of Gregory soon after his accession, and in 1076 he informed William that he had deposed the offender. William, however, saw fit to

defend the scandal, and refused to receive Evenus, Abbot of St. Melanious, whom Gregory had appointed as a successor.⁶²³ Judhaël, indeed, was no worse than his suffragans. For three generations the diocese of Quimper was held by father, son, and grandson; while the Bishops of Rennes, Vannes, and Nantes were openly married, and their wives enjoyed the recognized rank of countesses, as an established right.⁶²⁴ How much improvement resulted from the efforts of Gregory and his legate Hugh may be estimated from the description, in general terms, of the iniquities ascribed to the Breton clergy, both secular and regular, in the early part of the next century, by Paschal II. when granting the pallium to Baldric, Archbishop of Dol. All classes are described as indulging in enormities hateful to God and man, and as having no hesitation in setting the canons at defiance. In Brittany, as in Wales and Spain, the centralizing influence of Rome was at fault, and priestly marriage was persevered in long after it had been abrogated elsewhere.⁶²⁵

In Flanders, Count Robert the Frisian and Adela, his mother, were well disposed to second the reformatory measures of Gregory, but, doubting their right to eject the offenders, they applied to him, in 1076, for instructions. His answers were unequivocal, urging them to the most prompt and summary proceedings.⁶²⁶ The spirit in which the clergy met the attack was manifested by the incident already described, when, in 1077, an unfortunate zealot was burned at the stake in Cambrai for maintaining the propriety of the papal decretals. The same disposition, though fortunately leading to less deplorable results, was exhibited in Artois. At the instance of Adela, Robert, in 1072, had founded the Priory of Watten, near St. Omer. Despite this powerful interest and patronage, the house had a severe struggle for existence, as its prior, Otfrid, lent his influence to support the reform and to enforce the decrees of Gregory. Reproaches and curses were showered upon the infant community, and it was openly threatened with fire and sword, until the unfortunate brethren felt equally insecure within their walls and abroad. At length the Countess Adela took Otfrid with her on a pilgrimage to Rome, and there the holy man procured from Gregory a confirmation of the privileges of his house. On his return, he found that this

instrument only made the persecution more vehement. Accusations of all kinds were made against the priory, and its enemies succeeded in causing the brethren to be brought for trial before the local synod, where the production of the papal charter was ordered. It was at once pronounced a forgery, was taken away by force, and was retained by the Bishop, Drogo of Terouane, in spite of all remonstrance.⁶²⁷

The opposition of the clergy was not lessened by the manner in which the secular authorities exercised the power bestowed upon them. Count Robert saw the advantages derivable from the position of affairs and seems to have been resolved to turn it thoroughly to account. Among other modes adopted was that of the “*jus spoli*,” by which he seized the effects of dying ecclesiastics, turning their families out of doors and disinheriting the heirs. These arbitrary proceedings he defended on the ground of the incontinence of the sufferers, boldly declaring that wicked priests were no priests—as if, groaned the indignant clerks, sinful men were not men.⁶²⁸ In 1091, the Flemish priests complained of these acts to Urban II., and he vainly endeavored to interfere in their behalf.⁶²⁹ Finding this resource fail, they appealed to their metropolitan, Renaud, Archbishop of Rheims, who by active measures succeeded in putting an end to the abuse in 1092.

Amid all this the church proved powerless to enforce its laws, and again it called upon the feudal authority for assistance—this time in a manner by which it admitted its impotence on a question so vital. In 1099, Manasses of Rheims held a provincial synod at St. Omer, which instructed the Count of Flanders, Robert the Hierosolymitan, to seize the wives of all priests who after excommunication declined to abandon their guilty partners; and in this he was not to ask or wait for the assent of the bishop of the diocese. The sturdy Crusader would doubtless have carried out this order to the letter, with all its attendant cruelty and misery, but the clergy of the province united in remonstrances so vehement that Manasses was forced to abandon his position. He accordingly requested Robert on no account to disturb the married priests and their wives, or to permit his nobles to do so, except when assistance was demanded by the bishops. He acknowledged the injustice he had committed in overslaughing the constituted authorities of the church, and deprecated the rapine and spoliation which so ill-advised a proceeding might cause. At the same time he admonished his suffragans to

proceed vigorously against all who married in orders, and to call on the seigneurial power to coerce those who should prove contumacious.^{[630](#)}

Harsh and violent as were the measures thus threatened, there appears to have been extreme hesitation in carrying them out. A certain clerk known as Robert of Artois committed the unpardonable indiscretion of marrying a widow, and openly resisted all the efforts of his bishop to reduce him to obedience. Not only his original crime, but his subsequent contumacious rebellion would assuredly justify the severest chastisement, yet both the secular and ecclesiastical powers of the province seem to have been at fault, for it was found necessary to ask the interference of no less a personage than Richard, Bishop of Albano, then enjoying the dignity of papal legate in France. In 1104 the legate accordingly addressed the Count of Flanders with the very moderate request that the obstinate rebel and his abettors should be held as excommunicate until they should reconcile themselves to their bishop. Robert finally appealed to Rome itself, but in the end was obliged to succumb. Similar was the case of two Artesian deacons who refused to abandon their wives until Lambert, the bishop of Artois, excommunicated them, when they travelled to Rome in hopes of reconciliation to the church. Paschal II. absolved them on their taking a solemn oath upon the Gospels to live chastely in future, and he sent them back to Lambert with instructions to keep a careful watch upon them.^{[631](#)} These cases, which chance to remain on record, show how obstinately the clergy held to their wives and how difficult it was to convince them that the authorities of the church were determined to enforce the canons. We therefore need not be surprised to find Paschal II., after the year 1100, writing to the clergy of Terouane, expressing his astonishment that, in spite of so many decretals of popes and canons of councils, they still adhered to their consorts, some of them openly and some secretly. To remedy this, he has nothing but a repetition of the old threat of deprivation.^{[632](#)}

The confusion which this attempted reformation caused in France was apparently not so aggravated as we have seen it in Germany, and yet it was sufficiently serious. Guibert de Nogent relates that in his youth commenced

the persecution of the married priests by Rome, when a cousin of his, a layman of flagrant and excessive licentiousness, made himself conspicuous by his attacks on the failings of the clergy. The family were anxious to provide for young Guibert, who was destined to the church, and the cousin used his influence with the patron of a benefice to oust the married incumbent and bestow the preferment on Guibert. The priest thus forcibly ejected abandoned neither his wife nor his functions, but relieved his mind by excommunicating every day, in the Mass, Guibert's mother and all her family, until the good woman's fears were so excited that she abandoned the prebend which she had obtained with so much labor.⁶³³ We can readily conceive this incident to be a type of what was occurring in every corner of the kingdom, when, in an age of brute force, the reverence which was the only defence of the priesthood was partially destroyed, and the people hardly knew whether they were to adore their pastors as representatives of God or to dread them as the powerful ministers of evil.

When the religious ardor of Europe rose to the wild excitement that culminated in the Crusades, and Pope Urban II. astutely availed himself of the movement to place the church in possession of a stronger influence over the minds of men than it had ever before enjoyed, it was to no purpose that the great council of Clermont, in 1095, took the opportunity to proclaim in the most solemn manner the necessity of perfect purity in ministers of the altar, to denounce irrevocable expulsion for contravention of the rule, and to forbid the children of ecclesiastics from entering the church except as monks or canons.⁶³⁴ It was the weightiest exposition of church discipline, and was promulgated under circumstances to give it the widest publicity and the highest authority. Yet, within a few years, we find Gualo, Bishop of Paris, applying to Ivo of Chartres for advice as to what ought to be done with a canon of his church who had recently married, and Ivo in reply recommending as a safe course that the marriage be held valid, but that the offender be relieved of his stipend and functions.⁶³⁵ His answer, moreover, is written in a singularly undecided tone, and an elaborate argument is presented as though the matter were still open to discussion, although Ivo's laborious compilations of the canon law show that he was thoroughly

familiar with the ancient discipline which the depravity of his generation had rendered obsolete.⁶³⁶ Hardly less significant is another epistle in which Ivo calls the attention of Daimbert, Archbishop of Sens, to the conduct of one of his dignitaries who publicly maintained two concubines and was preparing to marry a third. He urges Daimbert to put an end to the scandal, and suggests that if he is unable to accomplish it single-handed, he should summon two or three of his suffragans to his assistance.⁶³⁷ Either of these instances is a sufficient confession of the utter futility of the ceaseless exertions which for half a century the church had been making to enforce her discipline. Nor, perhaps, can her ill-success be wondered at when we consider how unworthy were the hands to which was frequently intrusted the administering of the law and the laxity of opinion which viewed the worst transgressions with indulgence. The archdeacons were the officials to whom was specially confided the supervision over sacerdotal morals, and yet, when a man occupying that responsible position, like Aldebert of Le Mans, publicly surrounded himself with a harem, and took no shame from the resulting crowd of offspring, so little did his conduct shock the sensibilities of the age that he was elevated to the episcopal chair, and only the stern voice of Ivo could be heard reproving the measureless scandal.⁶³⁸

Equal looseness pervaded the monastic establishments. Hildebert, Bishop of Le Mans, made numerous fruitless attempts to restore discipline in the celebrated abbey of Euron, the monks of which indulged in the grossest licentiousness, and successfully defied his power until he was obliged to appeal to the papal legate for assistance.⁶³⁹ Albero of Verdun, after fruitless attempts to reform the monastery of St. Paul, in his episcopal city, was obliged to turn out the monks by force and replace them with Premonstratensians, who were then in the full ardor of their new discipline.⁶⁴⁰ The description which Ivo of Chartres gives of the convent of St. Fara shows a promiscuous and shameless prostitution, on the part of the nuns of that institution, even more degrading.⁶⁴¹ Instances like these could be almost indefinitely multiplied, such as that of St. Mary of Argentueil, reformed by Heloise, the great foundation of St. Denis, previous to the abbacy of Suger, and that of St. Gildas de Ruys in Brittany, as described by

Abelard;⁶⁴² who, moreover, depicts the nuns of the period, in general terms, as abandoned to the most hideous licentiousness—those who were good-looking prostituting themselves for hire, those who were not so fortunate hiring men to gratify their passions, while the older ones, who had passed the age of lust, acted as procuresses.⁶⁴³ Innocent III. may therefore be absolved from the charge of exaggeration when, in ordering the reform of the nuns of St. Agatha, he alludes to their convent as a brothel which infected with its evil reputation the whole country around it.⁶⁴⁴ A contemporary chronicler records as a matter of special wonder that John of Salisbury, Bishop of Chartres, forced his canons to live in cloisters according to the Rule of St. Augustin; and he adds that, stimulated by this example, his uncle, John of Lisieux, and his successor, Geoffrey of Chartres, attempted the same reform, but without success.⁶⁴⁵ It is true that some partial reform was effected by St. Bernard, but the austerities of the new orders founded by enthusiasts like him and St. Bruno, Robert d'Arbrissel and St. Norbert, did not cure the ineradicable vices of the older establishments.

With such examples before us, it is not difficult to believe the truth of the denunciations with which the celebrated Raoul of Poitiers, whose fiery zeal gained for him the distinctive appellation of Ardens, lashed the vices of his fellows; nor can we conclude that it was mere rhetorical amplification which led him to declare that the clergy, who should be models for their flocks, were more shameless and abandoned than those whose lives it was their duty to guide.⁶⁴⁶ Peter Cantor, indeed, deplores the superiority of the laity to the clergy as the greatest injury that afflicted the church.⁶⁴⁷

The natural result of such a state of morals was the prevalence of the hereditary principle against which the church had so long and so perseveringly striven. How completely this came to be regarded as a matter of course, is shown by a contemporary charter to the ancient monastery of Bèze, by which a priest named Germain, on entering it bestowed upon it his holding, consisting of certain specified tithes. This deed of gift is careful to declare the assent of the sons of the donor, showing that the title of the

monastery would not have been considered good as against the claims of Germain's descendants had they not joined in the conveyance.⁶⁴⁸ Even as late as 1202 we find Innocent III. endeavoring to put a stop to the hereditary transmission of benefices in the bishopric of Toul, where it was practised to an extent which showed how little impression had as yet been made by the unceasing efforts of the last hundred and fifty years.⁶⁴⁹

When in the presence of so stiff-necked and evil disposed a generation, all human efforts seemed unavailing to secure respect for the canons of councils and decretals of popes, we need scarcely wonder if recourse was had to the miraculous agencies which so often proved efficacious in subduing the minds of men. Wondrous stories, accordingly, were not wanting, to show how offended Heaven sometimes gave in this world a foretaste of the wrath to come, awaiting those who lived in habitual disregard of the teachings of the church. Thus Peter the Venerable relates with much unction how a priest, who had abandoned himself to carnal indulgences, died amid the horrors of anticipated hell-fire. Visible to him alone, the demons chuckling around his death-bed heated the frying-pan of burning fat in which he was incontinently to be plunged, while a drop flying from the sputtering mass seared him to the bone, as a dreadful material sign that his agony was not the distempered imagining of a tortured conscience. A miracle equally significant wrung a confession of his weakness from the Dean of Minden in 1167.⁶⁵⁰

If Heaven thus miraculously manifested its anger, it was equally ready to welcome back the repentant sinner. In the first energy of the reforms of St. Bernard, a priest entered the abbey of Clairvaux. The rigor of the Cistercian discipline wore out his enthusiasm; he fled from the convent, returned to his parish, and, according to the general custom, (*"sicut multis consuetudinis est"*) took to himself a concubine, and soon saw a family increasing around him. The holy St. Bernard chanced to pass that way and accepted the priest's warm hospitality without recognizing him. When the Saint was ready to depart in the morning he found that his host was absent performing his functions in the church, and, turning to one of the children, he sent him with a message to his father. Though the child had been a deaf-mute from birth, he promptly performed the errand. Roused by the miracle to a sense of his iniquity, the apostate rushed to the Saint, threw himself at his feet,

confessed who he was, and entreated to be taken back to the monastery. St. Bernard touched by his repentance, promised to call for him on his return. To this the priest objected, on the ground that he might die during the interval, but was comforted with the assurance that if he died in such a frame of mind, he would be received by God as a monk. When St. Bernard returned, the repentant sinner was dead. Inquiring as to the ceremonies of his interment, he was told that the corpse had been buried in its priestly garments; whereupon he ordered the grave to be opened, and it was found arrayed, not in its funeral robes, but in full Cistercian habit and tonsure, showing that God had fulfilled the promises made in his name.^{[651](#)}

Such was the condition of the Gallican church when, in 1119, Calixtus II. stepped from the archiepiscopal see of Vienne to the chair of St. Peter. His first great object was to end the quarrel with the empire on the subject of investitures, the vicissitudes of which rendered the papacy at the time of his accession an exile from Italy; his second was to carry out the reforms so long and so fruitlessly urged by his predecessors. To accomplish both these results he lost no time in summoning a great council to assemble at Rheims, and when it met in November, 1119, no less than fifteen archbishops, more than two hundred bishops, and numerous abbots responded to the call, representing Italy, France, Aquitaine, Spain, Germany, and England. The attempted reconciliation with the Emperor Henry V. failed, but the vices and corruptions of the church were vigorously attacked and sternly prohibited for the future. All commerce with concubines or wives was positively forbidden under pain of deprivation of benefice and function. No choice was granted the offender, for continuance in his sin after expulsion was punishable with excommunication; and the hereditary transmission of ecclesiastical dignities and property was strictly prohibited.^{[652](#)} Whether it was the lofty character of the new pope, his royal blood and French extraction, or whether the solemnity of the occasion impressed men's minds, it is not easy now to guess, but unquestionably these proceedings produced greater effect upon the Transalpine churches than any previous efforts of the Holy See. Calixtus was long regarded as the real author of sacerdotal celibacy in France, and his memory has been embalmed in the jingling verses which express the dissatisfaction and spite of the clergy, deprived of their ancestral privileges.

O bone Calliste, nunc clerus odit te;
Olim presbyteri poterant uxoribus uti;
Hoc detruxisti quando tu papa fuisti,
Ergo tuum festum nunquam celebratur honestum.⁶⁵³

Calixtus was not a man to rest half way, nor was he content with an empty promise of obedience. Under the pressure of his influence, the French prelates found themselves obliged to take measures for the vigorous enforcement of the canons. What those measures were, and the disposition with which they were received, may be understood from the resultant proceedings in Normandy. Geoffrey, Archbishop of Rouen, on leaving the council of Rheims, promptly called a synod, which assembled ere the month was out. The canon prohibiting female intercourse roused abhorrence and resistance among his clergy, and they inveighed loudly against the innovation. Geoffrey singled out one who rendered himself particularly prominent in the tumult, and caused him to be seized and cast into prison; then, leaving the church, he called in his guards, whom, with acute anticipation of trouble, he had posted in readiness. The rude soldiery fell upon the unarmed priests, some of whom promptly escaped; the rest, grasping what weapons they could find, made a gallant resistance, and succeeded in beating back the assailants. A mob speedily collected, which took sides with the archbishop. Assisted by this unexpected reinforcement, the guards again forced their way into the church, where they beat and maltreated the unfortunate clerks to their heart's content; when, as the chronicler quaintly observes, the synod broke up in confusion, and the members fled without awaiting the archiepiscopal benediction.⁶⁵⁴

The immediate effect of the reformation thus inaugurated may perhaps be judged with sufficient accuracy by the story of Abelard and Heloise, which occurred about this period. That Abelard was a canon when that immortal love arose, was not, in such a state of morals, any impediment to the gratification of his passion, nor did it diminish the satisfaction of the canon Fulbert at the marriage of his niece, for such marriages, as yet, were valid by ecclesiastical law. In her marvellous self-abnegation, however, Heloise recognized that while the fact of his openly keeping a mistress, and acknowledging Astrolabius as his illegitimate son, would be no bar to his preferment, and would leave open to him a career equal to the wildest

dreams of his ambition, yet to admit that he had sanctified their love by marriage, and had repaired, as far as possible, the wrong which he had committed, would ruin his prospects forever. In a worldly point of view it was better for him, as a churchman, to have the reputation of shameless immorality than that of a loving and pious husband; and this was so evidently a matter of course that she willingly sacrificed everything, and practised every deceit, that he might be considered a reckless libertine, who had refused her the only reparation in his power. Such was the standard of morals created by the church, and such were the conclusions inevitably drawn from them.

Nor were these conclusions erroneous, if we may judge by an incident of the period. An archdeacon of Angoulême had committed the unpardonable crime of seducing the abbess of a convent in the district under his charge. When the results of the amour could be no longer concealed, and the Count of Angoulême ventured to remonstrate with Gérard, the bishop of the diocese, that worthy prelate protected the offender by dismissing the charge with a filthy jest. Yet so far was Gérard from forfeiting the respect of his contemporaries by this laxity, that he was soon afterwards appointed papal legate.⁶⁵⁵ Somewhat similar is the conclusion to be drawn from an occurrence about the same time in the diocese of Comminges, where a deacon was entangled in a guilty connection and was summoned with his paramour before the bishop, St. Bertrand. The reproof of the holy man reduced the deacon to contrition, but the woman was defiant. He escaped punishment, while she was seized by demons and expired on the spot.⁶⁵⁶

Yet there are evidences that the efforts of Calixtus, and of the fathers whose assembled authority was concentrated at Rheims, did not by any means eradicate a custom which had now become traditional. Soon afterwards King Louis-le-Gros, in granting a charter to the church of St. Cornelius at Compiègne, felt it necessary to accompany the privileges bestowed with a restriction, worded as though it were a novelty, to the effect that those in holy orders connected with the foundation should have no wives—a condition which shows how little confidence existed in the mind of the sagacious prince as to the efficacy of the canons so portentously promulgated by the rulers, and so energetically resisted by the ruled.⁶⁵⁷ That he was justified in this lack of confidence is evident when we

see, further on in the century, an epistle of Alexander III., undated, but probably written about 1170, complaining of the canons of St. Ursmar and Antoin who openly kept concubines in their houses, while some of them did not hesitate to marry;^{[658](#)} while as late as 1212 a council of Paris was obliged to adopt canons forbidding clerks married in the lower orders to hold parishes while retaining their wives, and suspending from benefice and functions all those who marry while in holy orders.^{[659](#)}

XVII. NORMAN ENGLAND.

We have already seen what was the condition of the Anglo-Saxon church when William the Conqueror overran the island with his horde of adventurers. Making all due allowance for the fact that our authorities are mostly of the class whose inclination would lead them to misrepresent the conquered and to exaggerate the improvement attributable to the conquest, it cannot be doubted that the standard of morality was extremely low, and that the clergy were scarcely distinguishable from the laity in purity of life or devotion to their sacred calling.

If the reformatory efforts of the popes had not penetrated into the kingdom of Edward the Confessor, it was hardly to be expected that they would excite attention amid the turmoil attendant upon the settlement of the new order of political affairs and the division of the spoils among the conquerors. Accordingly, even the vigilance of Gregory VII. appears to have virtually overlooked the distant land of Britain, conscious, no doubt, that his efforts would be vain, even though the influence of Rome had been freely thrown upon the side of the Norman invader, and had been of no little assistance to him in his preparations for the desperate enterprise. In fact, though William saw fit to aid in the suppression of matrimony among the priests of his hereditary dominions, and had thereby earned the grateful praises of Gregory himself,⁶⁶⁰ he does not seem to have regarded the morals of his new subjects as worthy of any special attention. It is true that in his system of transferring all power from the subject to the dominant race, when Saxon bishops were to be ejected and their places filled with his own creatures, it was necessary for him to effect his purpose in a canonical way, and to procure the degradation of his victims by the church itself, as it was impossible for him to lay unhallowed hands upon their consecrated heads, or to remove prelates from their sees on questions of mere political expediency. To accomplish this, the scandals and irregularities of their lives afforded the promptest and most effective excuse, and it was freely used. The vigor with which these changes were carried into effect is visible in the

synods of Winchester and Windsor in 1070, where numerous bishops and abbots were deprived on various pleas; and the character of the prelates removed may be assumed from the description of the Bishop of Litchfield (Chester) by Lanfranc, in a letter of the same year to Alexander II., where his public maintenance of wife and children is alleged, in addition to other crimes of which he was accused.⁶⁶¹ Though a puritan, like Lanfranc, bred in the asceticism of the Abbey of Bec, might seek to enforce the canons in an individual case, as when he orders Arfastus, Bishop of Thetford, to degrade a deacon who refused to part with his wife,⁶⁶² yet that no general effort was made to effect a reform in the ranks of the clergy is evident from an epistle addressed in 1071 to William by Alexander II., in which, while praising his zeal in suppressing the heresy of simony, and exhorting him to fresh exertion in the good work, no mention whatever is made of the kindred error of Nicolitism, which is usually inseparable in the papal diatribes of the period.⁶⁶³ Equally conclusive is the fact that when, in 1075, Lanfranc held a national council in London for the purpose of reforming the English church, canons were passed to restrain simony, to prevent incestuous marriages, and to effect other needful changes, but nothing was said respecting sacerdotal marriage, at that time the principal object of Gregory's vigorous measures.⁶⁶⁴

How thoroughly, indeed, clerical marriage and the hereditary descent of benefices was received as legitimate by common consent is manifested by a case quoted by Camden from the MS. records of the Abbey of St. Peter and St. Paul of Shrewsbury. Under the Conqueror, Roger de Montgomery in founding that house bestowed upon it the church of St. Gregory, subject to the life estate of the canons then holding it, whose prebends as they died should fall within the gift of the monks. The children of the canons, however, disputed the gift, claimed that they had a right to their fathers' holdings, and actually gave rise to a great lawsuit to defend their position.⁶⁶⁵

The first steps to check the irregularities of the priesthood appear to have been taken in 1076, at the council of Winchester, and the extreme

tenderness there displayed by Lanfranc for the weakness of his flock shows how necessary was the utmost caution in treating a question evidently new, and one which deprived the English clergy of a privilege to which no taint of guilt had previously been attached. We have seen by the instance related above that when Lanfranc could act according to his own convictions, he was inclined to enforce the absolute rule of celibacy, and we may therefore conclude that on this occasion he was overruled by the convictions of his brother prelates that it was impossible to obtain obedience. All that the council would venture upon was a general declaration against the wives of men in orders, and it permitted parish priests to retain their consorts, contenting itself with forbidding future marriages, and enjoining on the bishops that they should thereafter ordain no one in the diaconate or priesthood without a pledge not to marry in future.⁶⁶⁶

Such legislation could only be irritating and inconclusive. It abandoned the principle for which Rome had been contending, and thus its spirit of worldly temporizing deprived it of all respect and influence. Obedience to it could be therefore invoked on no higher ground than that of an arbitrary and unjustifiable command, and accordingly it received so small a share of attention that when, some twenty-six years later, the holy Anselm, at the great council of London in 1102, endeavored to enforce the reform, the restrictions which he ordered were exclaimed against as unheard of novelties, which, being impossible to human nature, could only result in indiscriminate vice, bringing disgrace upon the church.⁶⁶⁷ The tenor of the canons of this council, indeed, proves that the previous injunctions had been utterly disregarded. At the same time they manifest a much stronger determination to eradicate the evil, though they are still far more lenient than the contemporary Continental legislation. No archdeacon, priest, or deacon could marry, nor, if married, could retain his wife. If a subdeacon, after professing chastity, married, he was to be subjected to the same regulation. No priest, as long as he was involved in such unholy union, could celebrate mass; if he ventured to do so, no one was to listen to him; and he was, moreover, to be deprived of all legal privileges. A profession of chastity was to be exacted at ordination to the subdiaconate and to the higher grades; and, finally, the children of priests were forbidden to inherit their father's churches.⁶⁶⁸

One symptom of weakness is observable in all this. The council apparently did not venture to prescribe any ecclesiastical punishment for the infraction of the rules thus laid down. If this arose from timidity, St. Anselm did not share it, for, when he proceeded to put the canons in practice, we find him threatening his contumacious ecclesiastics with deprivation for persistence in their irregularities. A letter of instruction from him to William, Archdeacon of Canterbury, shows the earnestness with which he entered upon the reform, and also affords an instructive insight into the difficulties of the enterprise, and the misery which the forcible sundering of family ties caused among those who had never doubted the legality and propriety of their marriages. Some ecclesiastics of rank sent their discarded wives to manors at a distance from their dwellings, and these St. Anselm directs shall not be molested if they will promise to hold no intercourse except in the presence of legitimate witnesses. Some priests were afraid to proceed to extremities with their wives, and for these weak brethren grace is accorded until the approaching Lent, provided they do not attempt meanwhile to perform their sacred functions, and can find substitutes of undoubted chastity to minister in their places. The kindred of the unfortunate women apparently endeavored to avert the blow by furious menaces against those who should render obedience, and these instigators of evil are to be restrained by threats of excommunication.⁶⁶⁹ Another letter to the Bishop of Hereford, who had applied for instructions on the subject, directs him to replace recalcitrant priests with monks and to stir up the laity to drive from the land the obstinate parsons and their wives.⁶⁷⁰ In the enforcement of these reforms he seemed to meet with questions for which he was not prepared, for about this time we find him seeking instructions from Paschal II. on several knotty points: whether a priest living with his wife can be allowed to administer the viaticum at the death-bed in the absence of one professing continence; and what is to be done with him if he refuses his ministration on the ground that he is not allowed to celebrate mass. Paschal replies, sensibly enough, that it is better to have the ministrations of an unchaste priest than to die unhouselled, and that a priest refusing his offices under such circumstances is to be punished as a homicide of souls. This abandoned the Hildebrandine theory and practice, and Anselm was more consistent when he assumed that a layman could perform baptism in preference to an unchaste priest.⁶⁷¹

Notwithstanding these zealous efforts of the primate, and the countenance of Henry Beauclerc, in whose presence the council had been held, Eadmer is forced sorrowfully to admit that its canons received but scant respect. Many of the priests adopted a kind of passive resistance, and, locking up their churches, suspended the performance of all sacred rites.⁶⁷² Even in Anselm's own diocese, ecclesiastics were found who obstinately refused either to part with their wives or to pretermitt their functions, and who, when duly excommunicated, laughed at the sentence, and continued to pollute the church with their unhallowed ministry.⁶⁷³ Soon after this Anselm fell into disfavor with the king and was exiled. His absence promised immunity, and the clergy were not slow to avail themselves of it. In 1104 one of his friends, in writing to him, bewails the utter demoralization of the kingdom, of which the worst manifestation was that priests still continued to marry; and two years later another letter informs him that those who had apparently reformed their evil ways were all returning to their previous life of iniquity. Finally, Henry I. resolved to turn to account this clerical backsliding, as a financial expedient to recruit his exhausted treasury. All who were suspected of disobedience to the canons of the council of London were seized and tried, and the property of those who could be proved guilty was confiscated. By this time Anselm had been reconciled to the king, and he promptly interfered to check so gross a violation of ecclesiastical immunity. His remonstrances were met by Henry with well-feigned surprise, and finally the matter was compromised by discharging those who had not been fined, while those who had been forced to pay were promised three years' undisturbed possession of their positions.⁶⁷⁴

That it was impossible to effect suddenly so great a change in the habits and lives of the Anglican clergy was, indeed, admitted by Paschal II. himself, when, in 1107, he wrote to Anselm concerning the questions connected with the children of priests. While reminding him of the rules of the church, he adds that as, in England, the larger and better portion of the clergy fall within the scope of the prohibition, he grants to the primate power of dispensation, by which, in view of the sad necessity of the times, he can admit to the sacred offices those born during their parents' priesthood, who are fitted for it by their education and purity of life. A second epistle on the same subject attests the perplexity of the pope, recalling to Anselm's recollection his former injunctions, and

recommending that, as there was no personal guilt involved, those of the proscribed class who were in orders should, if worthy of their positions, be allowed to retain them, without the privilege of advancement.⁶⁷⁵ The question, indeed, was hotly debated. There is extant a letter written about this time by Thibaut of Étampes, a dignitary of Oxford, to a certain Rosceline, who with more zeal than discretion had promulgated the doctrine that the sons of priests were canonically ineligible to ordination. Thibaut characterizes this as not only an innovation, but a blasphemy, and seems utterly unconscious that there was any authority for such a rule.⁶⁷⁶

It may be remarked that thus far the proceedings of the reformers were directed solely against the marriage of ecclesiastics. It may possibly be that this arose from general conjugal virtue, and that, satisfied with the privilege, no other disorders prevailed among the clergy; but it is more probable that the heresy of marriage was so heinous in the eyes of the sacerdotalists, that it rendered all other sins venial, and that such other sins might be tacitly passed over in the endeavor to put an end to the greater enormity. Be this as it may, the stubborn wilfulness of the offenders only provoked increasing rigor on the part of the authorities. We have seen that the council of 1102 produced little result, and that when the secular power interfered to enforce its canons, the church, jealous of its privileges, protested, so that many priests retained their wives, and marriage was still openly practised. King Henry, therefore, at length, in 1108, summoned another council to assemble in London, where he urged the bishops to prosecute the good work, and pledged his power to their support.⁶⁷⁷ Fortified by this and by the consent of the barons, they promulgated a series of ten canons, whose stringent nature and liberal denunciation of penalties prove that the prelates felt themselves strengthened by the royal co-operation and thus able to compel obedience. The Nicene canon was declared the unalterable law of the church; those ecclesiastics who had disregarded the decrees of the previous council were debarred from performing their functions if longer contumacious; any priest requiring to see his wife was only to do so in the open air and in the presence of two legitimate witnesses; accusations of guilt were to be met by regular

canonical purgation, a priest requiring six compurgators, a deacon four, and a subdeacon two, each of his own order. Disobedience to these canons was declared punishable with deprivation of function and benefice, expulsion from the church, and infamy. Only eight days of grace were allowed; further persistence in wrong-doing being visited with instant excommunication, and confiscation to the bishops of the private property of the transgressors and of their women, together with the persons of the latter. A very significant clause, moreover, shows that grasping officials had discovered the speculative value of previous injunctions, and that the degrading custom of selling indulgence was already in common use, for the council required of all archdeacons and deans, under penalty of forfeiture, an oath that they would not receive money for conniving at infractions of the rule, nor permit priests who kept women to celebrate mass or to employ vicars to officiate for them.⁶⁷⁸

From the account of the historian, we may assume these to be rather acts of parliament than canons of a council, and that the assembly was convened for the special purpose of devising measures for subduing the recalcitrant clergy. The temporal power was thus pledged to enforce the regulations, and as so enterprising and resolute a monarch as Henry had undertaken the reform, there can be little doubt that he prosecuted it with vigor. Anselm died in 1109, and the clergy rejoiced in the hope that their persecution would cease with the removal of their persecutor, but the king proceeded to enforce the regulations of the council of London with more vigor than ever, and soon obtained at least an outward show of obedience. Eadmer darkly intimates that this resulted in a great increase of shocking crimes committed with those relatives whose residence was allowed, and he is at some pains to argue that Anselm and his attempted reforms were not responsible for an effect so little contemplated in their well-meant endeavors. Finally, the ardor of the king cooled off; ecclesiastical officials were found readily accessible to bribes for permitting female intercourse, and those who had grown tired of the wives from whom they had been separated found no difficulty in forming more desirable unions with new ones. Eadmer sorrowfully adds that by this time there were few indeed who continued to preserve the purity with which Anselm had labored so strenuously to adorn his clergy.⁶⁷⁹

The evil influences of this laxity in the Anglican church were not altogether confined to Britain. At that period the Swedish bishoprics were frequently filled by Englishmen, and it is quite possible that from them was derived the laxity which, as we have seen, at a later period, caused the Swedes to be regarded as heretics adhering to the Greek schism. An incident occurring about this time shows the wisdom of the church in her endeavors to sunder the earthly ties of her ministers. An English priest named Edward was promoted to the Swedish episcopate of Scaren. Unluckily, he had left a wife behind him in England, and, after a short residence in his new dignity had enabled him to collect together the treasures of his see, he absconded with them to his spouse, leaving his diocese widowed and penniless.⁶⁸⁰

At length the condition of the church in England attracted the attention of the pontiffs who had bestowed so much fruitless energy on the morals of the Continental priesthood; and Honorius II. sent Cardinal John of Crema to England, for the purpose of restoring its discipline. In September, 1126, the legate held a council in London, where he caused the adoption of a canon menacing with degradation all those in orders who did not abstain from the society of their wives, or of other women liable to suspicion;⁶⁸¹ and the expressions employed show that previous legislation had been altogether nugatory. That the cardinal's endeavors excited the opposition of at least a powerful portion of the clergy is fairly deducible from the unlucky adventure which put a sudden termination to his mission. After fiercely denouncing the concubines of priests and expatiating on the burning shame that the body of Christ should be made by one who had but just left the side of a harlot, he was that very night surprised in the company of a courtesan, though he had on the same day celebrated mass; and the suggestion that he had been entrapped by his enemies, while it did not palliate his guilt, may be assumed to indicate the power and determination of those who opposed his reforms.⁶⁸²

The energy of the reformers and the stubborn obstinacy of the clergy are alike manifested by the council of Westminster, held the following year, which found it necessary to repeat the prohibition and to guard it with stringent provisions, based upon those of 1108.⁶⁸³ This, however, proved as ineffectual as its predecessors, and another effort was made the next year

under auspices which promised a happier result. King Henry seemed suddenly to recover the holy zeal which had lain dormant for a score of years, and in the summer of 1129 he convened a great assembly of all the bishops, archdeacons, abbots, priors, and canons of England, who found that they were summoned to meet for the purpose of putting an end to the immorality of the clergy. After long discussion, it was decreed that all who should not put away their wives by St. Andrew's day (November 30th) should be deprived of their functions, their churches, and their houses; and the assembly separated, intrusting to the zealous sovereign the execution of the decree. Perhaps Henry remembered how St. Anselm had interfered in 1106 to protect the guilty clergy from the royal extortioners; perhaps the experience of his long reign had shown him the fruitlessness of endeavoring to impose an impossible virtue on carnal-minded men. His exchequer, as usual, was in danger of collapse. The whole transaction may have been a deeply-laid scheme to extort money, or the sudden promptings of temptation may have been too powerful for his self-denial—who now can tell? We only know that he at once put into action an extended system of “cullagium,” and having, by the blind simplicity of his prelates, the temporalities of nearly all the minor clergy in his power, he proceeded to traffic in exemptions shamelessly and on the largest scale. As a financial device, the plan was a good one; he realized a vast sum of money, and his afflicted priests were at least able to show their superiors a royal license to marry or to keep their concubines in peace.⁶⁸⁴

The repetition of almost identical enactments, year after year, with corresponding infinitesimal results, grows wearisome and monotonous. If, therefore, I refer to the synod of Westminster, held in 1138, by the papal legate Alberic, Bishop of Ostia, which deprived of function and benefice all married and concubinary ecclesiastics,⁶⁸⁵ it is only to observe that no notice was taken of the doctrine of the invalidity of sacerdotal marriage, which at that period Innocent II. was engaged in promulgating. So, if I allude to an epistle of Lucius II. in 1144, reprehending the general English custom by which sons succeeded to the churches of their fathers, it is merely to chronicle the commencement of the direct efforts of the popes, fruitlessly

continued during the remainder of the century, to abolish that wide-spread and seemingly ineradicable abuse.⁶⁸⁶

What was the condition of the church resulting from these prolonged and persistent efforts may be guessed from one or two examples. When, in 1139, Nigel, Bishop of Ely, revolted against King Stephen, he intrusted the defence of his castle of Devizes to his concubine, Maud of Ramsbury. She bravely fulfilled her charge and repulsed the assaults of the king, until he bethought him of a way to compel a surrender. Obtaining possession of Roger, son of Maud and Nigel, the unhappy youth was brought before the walls, and preparations were made to hang him in his mother's sight. At this her courage gave way, and she capitulated at once.⁶⁸⁷ Though the monkish chronicler stigmatizes Maud as "pellex episcopi," she may probably have been his wife—in either case the publicity of the connection is a sufficient commentary on the morals and manners of the age which took no exception to the elevation of Richard Fitz-Neal, another son of the same reverend prelate, to the bishopric of London and to the post of treasurer to King Henry II.

If this be attributed to the unbridled turbulence of Stephen's reign, we may turn to the comparatively calmer times of Henry II., when Alexander III., amid his ceaseless efforts to restore the church discipline of England, in 1171, ordered the Bishops of Exeter and Worcester and the Abbot of Feversham to examine and report as to the evil reputation of Clarembald, abbot-elect of St. Augustine's of Canterbury. In the execution of this duty they found that that venerable patriarch had seventeen bastards in one village; purity he ridiculed as an impossibility, while even licentiousness had no attraction for his exhausted senses unless spiced with the zest of publicity.⁶⁸⁸ That a man whose profligacy was so openly and shamelessly defiant could be elected to the highest place in the oldest and most honored religious community in England is a fact which lends color to the assertion of a writer of the time of King John, that clergy and laity were indistinguishably bad,⁶⁸⁹ and perhaps justifies the anecdote told of Hugh, Bishop of Lincoln, who assumed that the clergy were much worse than the laity.⁶⁹⁰ How little these scandals shocked the public is shown by the fact that it required papal interference to cause the reformation of the nunnery of Avesbury. The abbess had borne three children and the nuns, as the

chronicler informs us, were worse than their superior, but when Alexander forced an investigation no canonical punishment was inflicted on the guilty. Such of the nuns as promised to live chastely in future were allowed to remain, and the rest were simply dismissed, while the abbess was pensioned liberally with ten marks a year to preserve her from disgrace and want. The vacancies thus created were filled with nuns from Fontevraud, who proved to be as bad as those whom they replaced.⁶⁹¹ The same insensibility is manifested in a legal transaction of the period, when Witgar, the priest of Mendlesham, desired to secure the reversion of his benefice to his son Nicholas, and applied to the patron of his church, Martin, Abbot of Battle Abbey, who agreed to conform to his wishes on condition that the annual payment exacted from the church in question should be increased from ten shillings to forty. Witgar agreed, and on an appointed day, accompanied by his son, he met the abbot and his attendants at Colchester, where oaths were publicly interchanged and a formal agreement was entered into.⁶⁹²

The efforts of Alexander and his successors were seconded by frequent national and local synods, to whose special injunctions it is scarcely worth while to refer in full. One noticeable point about them, however, is that the term “wife” disappears, and is replaced by “concubina” or “focaria”—the latter meaning a person who was a permanent occupant of the priest’s hearth, but was not recognized by the authorities as a lawful wife. Deans and archdeacons were enjoined to hunt up these illegal companions, but from the frequency of the injunctions, we may safely conclude that the search was not often successful, and that the officials found the duty assigned to them too difficult or too unprofitable for execution. That it was not impossible, however, when earnestly undertaken, is shown by the readiness with which King John unearthed the unfortunate creatures when it suited his policy to do so. During the long dispute over the election of Giraldus Cambrensis to the see of St. David’s, the king, who was resolved that no Welshman should hold that preferment, instructed his officers, in 1202, to seize the women of all the cathedral chapter who persisted in supporting Giraldus.⁶⁹³ The measure was doubtless an efficacious one, and he repeated it when, in 1208, he persecuted the clergy in his blind

impotence of wrath at the interdict set upon his kingdom by Innocent III. Discerning in these quasi-conjugal relations the tenderest spot in which to strike those who had rebelled against his authority by obeying the interdict, and at the same time as the surest and readiest means of extorting money, among his other schemes of spoliation he caused all these women to be seized, and then forced the unfortunate churchmen to buy their partners back at exorbitant prices.⁶⁹⁴

The ease, indeed, with which the eyes of the officials were blinded to that which was patent to the public was the subject of constantly recurring legislation, the reiteration and increasing violence of which bears irrefragable testimony at once to its necessity and its impotence. Not only in grave synods and pastorals was the abuse reprehended and deplored, but it offered too favorable a subject for popular animadversion to escape the shafts of satire. In the preceding century, Thomas à Becket, in a vehement attack upon simony, includes this among the many manifestations of that multiform sin—

Symon auffert, Symon donat;
Hunc expellit, hunc coronat;
Hunc circumdat gravi peste,
Illum nuptiali veste.⁶⁹⁵

There were few more popular poems in the Middle Ages than the “Apocalypsis Goliæ,” the more than doubtful authorship of which, at the close of the twelfth or beginning of the thirteenth century, is claimed for Walter Mapes in England and Gautier de Châtillon in France; and the enduring reputation of which is attested by an English version as late as the sixteenth century. The author, whoever he be, inveighing against the evil courses of the archdeacons, assumes that the extortion of the “cullagium” was almost universal.

Seductam nuntii fraude præambuli
Capit focariam, ut per cubiculi
Fortunam habeat fortunam loculi,
Et per vehiculum omen vehiculi.
Decano præcipit quod si presbiteri
Per genitivos scit dativos fieri,
Accusans faciat vocatum conteri,
Ablatis fratribus a porta inferi.[696](#)

Towards the middle of the thirteenth century, Peter de Vinea also has his fling at the same corruption, and though the part he took in the fierce quarrels between his master Frederic II. and the papacy renders him perhaps a prejudiced witness, still his ample experience of the disorders of the church makes him an experienced one.

Non utuntur clerici nostri vestimentis:
Sed tenent focarias, quod clamor est gentis—
—Dehinc reum convocant, et, turba rejecta,
Dicunt: Ista crimina tibi sunt objecta;
Pone libras quindecim in nostra collecta,
Et tua flagitia non erunt detecta.
Reus dat denarios, Fratres scriptum radunt;
Sic infames plurimi per nummos evadunt:
Qui totam pecuniam quam petunt non tradunt,
Simul in infamiam et in pœnam cadunt.[697](#)

The example which King John had set, however instructive, was not appreciated by the ecclesiastical authorities, and the “focariæ” were allowed to remain virtually undisturbed, at least to such an extent as to render them almost universal. Although by rigid churchmen they were regarded as mere concubines, there can be little doubt that the tie between them and the priests was of a binding nature, which appears to have wanted none of the rites essential to its entire respectability. Giraldus Cambrensis, who died at an advanced age about the year 1220, speaks of these companions being publicly maintained by nearly all the parish priests in England and Wales. They arranged to have their benefices transmitted to their sons, while their daughters were married to the sons of other priests, thus establishing an

hereditary sacerdotal caste in which marriage appears to have been a matter of course.⁶⁹⁸ In 1202 the Bishop of Exeter complained to Innocent III. of the numerous sons of parish priests and vicars who seized their churches and claimed to hold them of right, actually appealing to Rome when he sought to interfere with them. Innocent of course ordered their removal and subjection to discipline without appeal: but the evil continued, and in 1205 we find him writing on the subject to the Bishop of Winchester whom he required to eject the sons of priests who in many cases held their father's benefices.⁶⁹⁹ The propriety of the connection, and the hereditary ecclesiastical functions of the offspring are quaintly alluded to in a poem of the period, wherein a logician takes a priest to task for entertaining such a partner—

L.—Et præ tot innumeris quæ frequentas malis,
Est tibi presbytera plus exitialis.

P.—Malo cum presbytera pulchra fornicari,
Servituros domino filios lucrari,
Quam vagas satellites per antra sectari:
Est inhonestissimum sic dehonestari.⁷⁰⁰

Even the holy virgins, spouses of Christ, seem to have claimed and enjoyed the largest liberty. To this period is attributed a homily addressed to nuns, which earnestly dissuades them from leaving their blessed state and subjecting themselves to the cares and toils inseparable from matrimony. The writer appeals to no rules of ecclesiastical law that could be enforced to prevent them from following their choice, but labors drearily to prove that they would not better their condition, either in this world or the next, by forsaking their heavenly bridegroom for an earthly one.—“And of godes brude. and his freo dohter. for ba to gederes ha is; bicumeth theow under mon and his threl to don al and drehen that him liketh.”⁷⁰¹

Innocent III. had not overlooked such a state of discipline, especially after the transactions between himself and John had rendered him the suzerain of England, and doubly responsible for the morals of the Anglican

Church. Thus as early as 1203 we find him expressing to the Bishop of Norwich his surprise that priests in his diocese contend that they can retain their benefices after having solemnly contracted marriage in the face of the church. All such are peremptorily ordered to be removed without appeal, either by the bishop himself, or by his superior in cases in which he had personally conferred the preferment.⁷⁰² His zealous efforts to effect an impossible reform are chronicled by a rhymist of the period, who enters fully into the dismay of the good pastors at the prospect of the innovation, and who argues their cause with all the sturdy common-sense of the Anglo-Saxon mind.

Prisciani regula penitus cassatur,
Sacerdos per hic et hæc olim declinabatur;
Sed per hic solummodo nunc articulatur,
Cum per nostrum præsulem hæc amoveatur.

Quid agant presbyteri propriis carentes?
Alienas violant clanculo molentes,
Nullis pro conjugiiis fœminis parcentes,
Pœnam vel infamiam nihil metuentes.

Non est Innocentius, immo nocens vere,
Qui quod Deus docuit studet abolere;
Jussit enim Dominus fœminas habere,
Sed hoc noster pontifex jussit prohibere.

Gignere nos præcipit vetus testamentum;
Ubi novum prohibet nusquam est inventum.
A modernis latum est istud documentum,
Ad quod nullum ratio præbet argumentum.⁷⁰³

Nor were the Anglican bishops remiss in seconding the efforts of the pope to break down the opposition which thus openly defied their power and ventured even to justify the heresy of sacerdotal marriage. Councils were held which passed canons more stringent than ever; bishops issued constitutions and pastorals denouncing the custom; inquests were organized to traverse the dioceses and investigate the household of every priest. The women especially were attacked. Christian sepulture was denied them; property left to them and their children by their partners in guilt was confiscated to the bishops; churching after childbirth was interdicted to them; and, if still contumacious after a due series of warnings, they were to be handed over to the secular arm for condign punishment.⁷⁰⁴ How much all this bustling legislation effected is best shown by the declaration of the legate, Cardinal Otto, in 1237, at the great council of London. He deplores the fact that married men received orders and held benefices while still retaining their wives, and did not hesitate to acknowledge their children as legitimate by public deeds and witnesses. After descanting upon the evils of this neglect of discipline, he orders that all married clerks shall be deprived of preferment and benefice, that their property shall not descend to wife or children, but to their churches, and that their sons shall be incapable of holy orders unless specially dispensed for eminent merit; then turning upon concubinary priests, he inveighs strongly against their licentiousness, and decrees that all guilty of the sin shall within thirty days dismiss their women forever, under pain of suspension from function and benefice until full satisfaction, persistent contumacy being visited with deprivation. The archbishops and bishops are commanded to make thorough inquisition throughout all the deaneries, to bring offenders to light, and also to put an end to the iniquitous practice of ordaining the offspring of such connections as successors in their father's benefices.⁷⁰⁵

This legislation produced much excitement, and the legate even had fears for his life. Some prelates, indeed, maintained that it only was binding on the church of England during the residence of Otto, but they were overruled, and it remained at least nominally in force and was frequently referred to subsequently as the recognized law in such matters. Its effect was considerable, and some of the bishops endeavored to carry out its provisions with energy, as may be presumed from a constitution of William of Cantilupe, Bishop of Worcester, issued in 1240, ordering his officials to

investigate diligently whether any of the clergy of the diocese had concubines or were married.⁷⁰⁶

To this period and to the disturbance caused by these proceedings are doubtless to be attributed several satirical pieces of verse describing the excitement occurring among the unfortunate clerks thus attacked in their tenderest spot. The opening lines of one of these poems indicate the novelty and unexpectedness of the new regulations:—

Rumor novus Angliæ partes pergiravit,
Clericos, presbyteros omnes excitavit,

Nascitur presbyteris hinc fera procella:
Quisquis timet graviter pro sua puella.

The author then describes a great council, attended by more than ten thousand ecclesiastics, assembled to deliberate on the course to be pursued in so delicate a conjuncture. An old priest commences—

Pro nostris uxoribus sumus congregati;
Videatis provide quod sitis parati,
Ad mandatum domini papæ vel legati,
Respondere graviter ne sitis dampnati.⁷⁰⁷

Another poem of similar character describes a chapter held by all orders and grades to consider the same question. The various speakers declare their inability to obey the new rule, except two, whose age renders them indifferent. A learned doctor exclaims—

Omnis debet clericus habere concubinam;
Hoc dixit qui coronam gerit auro trinam:
Hanc igitur retinere decet disciplinam.

The general belief in the legality of the connection is shown by the remark of another—

Surgens unus presbyter turba de totali ...
“Unam” dixit “teneo amore legali,
Quam nolo dimittere pro lege tali.”

Another expects to escape by paying his “cullagium”—

Duodecimus clamat magno cum clamore:
“Non me pontifex terret minis et pavore:
Sed ego nummos præbeam pro Dei amore,
Ut in pace maneam cara cum uxore.”

Another urges the indiscriminate immorality attending upon the attempt to enforce an impossible asceticism—

Addidit ulterius: “Sitis memor horum,
Si vetare præsul vult specialem torum,
Cernet totum brevi plenum esse chorum
Ordine sacrorum adulterorum.”

And at length the discussion closes with the speech of a Dominican, who ends his remarks by predicting—

Habebimus clerici duas concubinas:
Monachi, canonici totidem vel trinas:
Decani, prælati, quatuor vel quinas:
Sic tandem leges implebimus divinas.⁷⁰⁸

Notwithstanding these flights of the imagination, no organized resistance was offered to the reform. The clergy sullenly acquiesced, and submitted to a pressure which was becoming irresistible. The triumph of the sacerdotal party, however, was gradual, and no exact limit can be assigned to the recognition of the principle of celibacy. In 1250 the idea of married priests was still sufficiently prevalent to lead the populace of London to include matrimony among the accusations brought against Boniface, Archbishop of Canterbury, when his tyranny had aroused general resistance;⁷⁰⁹ and in 1255 Walter Kirkham, Bishop of Durham, still felt it necessary to prohibit the marriage of his clergy under pain of suspension and deprivation.⁷¹⁰ It is perhaps noteworthy, however, that, not long after this, Horne, in his Myrror

of Justice, when treating of exceptions to the benefit of clergy, specifies second marriages, but not single marriages, as depriving clerks of the privilege of ecclesiastical trial.^{[711](#)}

By this time, however, priestly marriage may be considered to have become nearly obsolete in England. When, in 1268, the Cardinal-legate Ottoboni held a great national council in London, and renewed the constitutions of his predecessor Otto, he made no allusion to marriage, and only denounced the practice of concubinage, which he endeavored to eradicate by commanding all archdeacons to make a thorough inquisition annually into the morals of the clergy under their jurisdiction.^{[712](#)} These constitutions of Otto and Ottoboni long remained the law of the English church, and we find them constantly referred to in the canons of councils and pastorals of bishops, ceaselessly laboring to effect the impossible enforcement of discipline; even as late as 1399 the Archbishop of Canterbury ordered his suffragans to have them read and explained in the vernacular in all their episcopal synods.^{[713](#)} How hard was the task may be readily conceived when we see, in 1279, the primate Peckham, Archbishop of Canterbury, applying to Rome for assistance in prosecuting a certain bishop against whom he had long been vainly endeavoring to bring the law to bear. A concubine had confessed to having borne five children to the offender;^{[714](#)} he had himself admitted his guilt in a private interview with Peckham, for which he had afterwards claimed the seal of the confessional; yet the archbishop complains that his efforts will be unsuccessful unless he is fortified with letters from the pope himself. His strict injunctions of secrecy on his correspondent, and his evident dread lest the criminal's agents in Rome should get wind of the application, show how difficult was the enterprise, and how rarely prelates could be expected to undertake duties so arduous and so unpromising.^{[715](#)}

Perhaps the man to whom the church owed most for his energy and activity in promoting the cause of reform was the celebrated Robert Grosseteste, Bishop of Lincoln. The leading part which he took in the political troubles of the stormy reign of Henry III. has thrown his ecclesiastical character somewhat into the shade, and he is better known as the friend of Leicester than as the untiring churchman. Notwithstanding his consistent opposition to Henry III. and to the encroachments of the papacy,

he was the inflexible enemy of clerical irregularities, and he enforced the decretals throughout his diocese with as firm a hand as that which he raised in defence of the rights of the nation and the privileges of the Anglican church. Thus, in 1251, he made a rigorous inquisition in his bishopric, forcing all his beneficed clergy to the observance of the strictest chastity, removing from their houses all suspected women, and punishing transgressors with deprivation. It is not easy to approve of his brutal expedient for testing the virtue of the inmates of his nunneries,⁷¹⁶ the adoption of which could only be justified and suggested by the conviction that general licentiousness was everywhere prevalent; and though such treatment of the spouses of Christ was to the last degree degrading, yet it was doubtless more efficacious than the ordeal of the Eucharist, which was frequently resorted to in special cases. Not only, however, did he thus endeavor to reform the morals of his flock, but he made the closest scrutiny into the character of applicants for ordination. In this he was largely aided by his ascetic friend and admirer, Adam de Marisco, and the correspondence between them shows not only the importance which they reasonably attached to the subject, but the sleepless vigilance required to counteract the prevalent immorality of the clergy, and the incredible laxity with which the patrons of livings bestowed the benefices in their gift.⁷¹⁷

The rule was now fairly established and generally acknowledged; concubinage, though still prevalent—nay, in fact almost universal—was not defended as a right, but was practised with what concealment was possible, and was the object of unremitting assault from councils and prelates. To enter into the details of the innumerable canons and constitutions directed against the ineradicable vice during the succeeding half century would be unprofitable. Their endless iteration is only interesting as proving their inefficacy. A popular satirist of the reign of Edward II. declares that bribery of the ecclesiastical officials insured the domestic comfort of the clergy and their female companions;⁷¹⁸ while in time the canon law seems to have lost all its terrors. One of the earliest acts of the reign of Henry VII. was a law empowering the ecclesiastical officials to imprison “priests, clerks, and religious men” convicted of incontinence, and guaranteeing them against prosecution by the offenders.⁷¹⁹ That the aid of the secular legislator should thus have been invoked for protection under such circumstances showed the

audacity resulting from long immunity, and is the abject confession that the ceaseless labor of four centuries had utterly failed.

In one part of England, however, the reform seems to have penetrated even more slowly. We have seen above, on the testimony of Giraldus Cambrensis, that in the early part of the thirteenth century the marriage of priests and the hereditary transmission of benefices were almost universal in Wales. As in the wild fastnesses of the Principality the ecclesiastical regulations seemed powerless, recourse was had to the secular law, which was employed to inflict various disabilities on offenders and their offspring, and the repetition of these shows how obstinately the custom was adhered to by the clergy until a comparatively late period. Thus, in the Gwentian and Dimetian Codes there is a provision that the son of a married priest, born after the ordination of his father, shall not share in the paternal estate;⁷²⁰ and this provision is retained and repeated in a collection of laws which contains the date of 2 Henry IV., showing it to be posterior to the year 1400.⁷²¹ The same collection enumerates married priests among “thirteen things corrupting the world, and which will ever remain in it; and it can never be delivered of them.”⁷²² In the same spirit, the Book of Cynog, which is of uncertain date, declares “nor is a married priest, as he has relinquished his law, to be credited in law,” and it therefore directs that the testimony of such witnesses shall not be receivable in court;⁷²³ while another collection of laws, occurring in a MS. of the fifteenth century, repeats the provision—“their testimony is not to be credited in any place, and they are excluded from the law, unless they ask a pardon from the pope or a bishop, through a public penance.”⁷²⁴ In fact, we may, perhaps, almost hazard the conclusion that, notwithstanding the efforts of both ecclesiastical and secular legislators, sacerdotal marriage scarcely became obsolete in Wales before it was once more recognized as legitimate under the Reformation.

XVIII. IRELAND AND SCOTLAND.

In a previous section it has already been shown that the rule of celibacy was observed by the Celtic churches of the British Islands during a period in which their Christianity was a model for the rest of Europe. Their religion, however, could not preserve its purity and simplicity amid the overwhelming barbarism of those dreary ages. From an ancient commentary on the “Cain Patraic,” or Patrick’s Law, of uncertain date, but probably belonging to the ninth or tenth century, it would seem as though there were at that time two classes of bishops, one bound by monastic vows, the other permitted to marry; and, what is somewhat singular, the law appears to favor the latter, for the “cumad espuc,” or virgin bishop, is condemned to perpetual degradation or to the life of a hermit for offences which the “bishop of one wife” can redeem by prompt penance.^{[725](#)}

The Feini, prior to the advent of St. Patrick, were far in advance of the contemporary barbarian tribes, and their conversion to Christianity introduced a new and powerful element of progress. It was not lasting, however, and they lapsed into a condition but little removed from that of savages. The marriage-tie was virtually unknown or habitually disregarded among the laity.^{[726](#)} What was the condition of the clergy may be inferred from the fact that the episcopates were regarded as the private property of certain families in which they descended by hereditary succession. Thus, in the primatial see of Armagh, fifteen archbishops were of one house, the last eight of whom were married. At length Celsus, who died about the year 1130, bequeathed the dignity to his friend St. Malachi. The kindred rose in arms at this infringement of their rights, and two of their members successively occupied the position, which Malachi was not able to obtain until the anger of God had miraculously destroyed the whole family.^{[727](#)}

During all this period the Irish church had been completely independent of the central authority at Rome, but the extension of influence resulting from the labors of Hildebrand and his successors soon began to make itself

felt. In the quarrels concerning the succession of Archbishop Celsus, there figures a certain Bishop Gilbert, who is described as being the first papal legate seen in Ireland.⁷²⁸ When Malachi abandoned Armagh and revived the extinct episcopate of Down, he resolved on a pilgrimage to Rome to obtain the *pallium*, a powerful instrument of papal authority, until then unknown on the island; and perhaps the opposition manifested to his wishes by his friends as well as by the authorities may be attributable to a repugnance towards the gradual encroachments of Romanizing influence.⁷²⁹

Malachi returned from Rome armed with legatine powers, and proceeded vigorously with the reforms which he had long before commenced. He held numerous councils, extirpating abuses everywhere, renovating the ancient rules of discipline and introducing new ones, bending all his energies to abrogating the national institutions and replacing them with those of Rome.⁷³⁰ The earnest asceticism of his nature, exaggerated by the training of his youth, led him to give a strongly monastic character to the church of which he was thus the second founder. On his journey homeward from Rome, he had tarried a second time at Clairvaux to see his friend St. Bernard, and had left there four of his attendants to be exercised in the severe Cistercian discipline that they might serve as missionaries and as models for his compatriots, who had heard, indeed, of monkhood, but had never seen it.⁷³¹ His efforts, in this respect, were to a considerable extent successful, at least in a portion of the island, though his death in 1149, at the comparatively early age of 54, cut short his labors before they could yield their full fruit.⁷³²

The incongruous character thus imparted to the Irish church is described by Giraldus Cambrensis some forty years later. The prelates were selected from the monasteries, and the church was completely monastic. Chastity was the only rule of discipline thoroughly preserved, and Giraldus confesses his wonder that it could be maintained, in contradiction to all former experience, when gluttony and drunkenness were carried to excess. The monastic principle of selfishness was all-pervading, and the pastors took no care of their flocks. Among the people, marriage was still unknown, incest was of common occurrence, even the rudiments of Christian faith were left untaught, and the church was regarded without reverence.⁷³³ His account of the absence of regular stipends and tithes is confirmed by the

fact that an Irish bishop attending the council of Lateran in 1179, in complaining of the condition of his native church, stated that his only revenues were derived from three milch cows, which his flock were bound to replace as they became dry.⁷³⁴ This poverty, however apostolic in itself, can only, in an age of magnificent sacerdotalism, be regarded as an indication of a church whose degradation could command neither the respect nor the support of its children. That the reforms of Malachi, one-sided as they were, extended only over a portion of the island, is evident from the inquiry which, a few years later, the Archbishop of Cashel addressed to Clement III. as to whether the children of bishops could receive orders and hold benefices; and the exceptional character of the Irish establishment was recognized by the pope when he decided that they could, provided they were born in wedlock, and were otherwise worthy of position.⁷³⁵ This requisite of legitimacy was apparently not imposed in ignorance, for at the council of Cashel in 1171 we find an effort made to enforce Christian marriage among the people, who are still described as indulging in unrestricted polygamy and disregarding the nearest ties of consanguinity.⁷³⁶

When about this period the English commenced the conquest which was to lead to five centuries of cruel anarchy, they of course carried with them their civil and ecclesiastical institutions. The original conquerors—the Butlers, the Clares, and the Fitzgeralds—speedily became incorporated with the native race, and were as Irish as the O'Briens and the McCauras. Although the royal authority was limited practically to the confines of the Pale, and embraced little beyond the Ostman ports, yet it is easy to understand that the clerical license habitual to the English spread beyond the political boundaries, and the monastic spirit of the Hibernians was grievously wounded by the unchastity which was disseminated like a contagion from the dissolute priests who followed in the wake of Strongbow and Prince John.⁷³⁷ Not twenty years after the first invasion, a council, summoned in 1186 by John in Dublin, was troubled by a quarrel between the Saxon priests of Wexford, who mutually accused each other of publicly marrying and keeping wives. This being duly proved, they were promptly degraded, to the intense satisfaction of the Irish clergy, triumphant in their own comparative purity of morals.⁷³⁸ When, therefore, in 1205, Innocent III. specially ordered his legate, Cardinal Julian, to put an end to the

hereditary transmission of benefices common in Ireland, the abuse to which he referred was probably confined to the English Pale.⁷³⁹ The church establishments, in fact, were distinct, and consequently when an Irish synod was held in Dublin, in 1217, its canons cannot be considered as having authority beyond the narrow territory through which the king's writ would likewise run. Those canons show us that the morality of the Saxon priesthood had not improved by the example made of the priests of Wexford. The denunciations of concubinage indicate the prevalence of that vice, and the severities threatened against the unfortunate women contrast strangely with the lenity shown to their more guilty partners.⁷⁴⁰ A century later, if we may believe the declaration of the synod of Ossory in 1320, the evil continued to flourish, open, avowed, and universal, resisting alike the authority of the church and the efforts to repress it by severity.⁷⁴¹ Whether the offenders dismissed their consorts after the thirty days' grace allowed by the synod may well be doubted. With the spread of English domination, the purity of the native church disappeared, and so great became the general disregard of the canons that shortly before the Reformation it was not an unusual thing for Irish priests to be openly married, nor do those who did so seem to have thereby forfeited the esteem of their neighbors.⁷⁴²

In Scotland, the Christianity introduced by St. Columba had fallen into the hands of the Culdees. These were originally monks of a more than ordinary strictness of discipline, to whom the earliest recorded allusion occurs in Ireland towards the close of the eighth century—the name, Céle-dé (Keledeus, or Servus Dei) meaning simply Servant of God. In the course of time the Culdees had so relaxed their rule that they reappear in the eleventh century as an order nominally of monks, yet fulfilling the functions of the secular clergy, and enjoying free permission to marry, only abstaining from their wives when employed in the actual ministry of the altar. With marriage had come the hereditary transmission of the endowments of the church to their children, so that the ancient abbeys and churches were well-nigh stripped of all their possessions, and the distinction between clergy and laity was rather in term than in fact. It may please the

poet to construct a world of his own, peopled by imaginary beings of angelic purity—

Peace to their shades! The pure Culdees
Were Albyn's earliest priests of God,
Ere yet an island of her seas
By foot of Saxon monk was trod,
Long ere her churchmen by bigotry
Were barred from wedlock's holy tie.
'Twas then that Aodh, famed afar,
In Iona preached the word with power,
And Reullura, beauty's star,
Was the partner of his bower—

but in sober truth the Culdees were pure as long as they kept the tradition of their founder, and it was not until they sank to a level with their savage compatriots that they transgressed the rule and became worldly and corrupt.⁷⁴³ In 1125 the Cardinal-legate, John of Crema, whose unlucky adventure in London has been already alluded to, visited Scotland in the execution of his reformatory mission. There he found on the throne David I., a prince whose life was devoted to rescuing his subjects from their primæval barbarism. We know few details of the history of those times, but it is fair to conjecture that the exhortations of the legate had a share in arousing David to a realization of the deficiencies and the corruptions of the Scottish church, and in guiding him to the course which he adopted in its reformation. After some fruitless efforts to restore the order of Culdees to its original condition, he resolved on the sweeping measure of removing all who should prove incorrigible. They were accordingly turned out bodily from their establishments, such property as could be traced was restored, and donations on an extended scale were made both to the old foundations and to the new ones which the royal reformer established—donations which gained for him, from an ungodly descendant, the appellation of “Ane soir sanct for the crown.” These foundations were then filled with regular clergy, brought from France and England—chiefly canons of the order of St. Augustin—and the unfortunate Culdees were turned adrift unless they would promise to observe the strictness of monastic rule. It is probable that in a few places they did so, for references to Culdees still occur

occasionally even in the next century, but these measures were effective and practically they and their customs disappeared together.^{[744](#)}

In a church thus constructed from the regular clergy, the heresy of marriage could find no foothold, especially as it had been so sternly punished in the expulsion of the Culdees. Still was the desired purity not yet attained. In 1181, during the long quarrel between William the Lion and the papacy on the subject of the archbishopric of St. Andrews, an interdict was pronounced on all ecclesiastics who should refuse to recognize the papal candidate John, whereupon the King persecuted those who obeyed the mandate, and the chronicler, in expatiating upon his cruelty, is careful to mention that he did not spare their children, even to babes in their mothers' arms, who were remorselessly driven into exile.^{[745](#)} The state of things indicated by this remained without improvement. In 1225, Honorius III. ordered the Scottish ecclesiastics to assemble in council for the correction of the many enormities which were committed with impunity; and the council held in obedience to the papal command denounced the shameless licentiousness of the clergy as a disgrace to the church.^{[746](#)} Inquests to detect the offenders, suspension and deprivation to punish them, were ordered with all the verbal energy of which we have already witnessed so many examples, and were attended with the same plentiful lack of success. With what disposition the clergy regarded these efforts for their improvement we may guess from the reception which they gave to the constitutions of Cardinal Ottoboni. Reference has already been made to the council held by that legate in London in 1268. The church of Scotland had been ordered to join in this council, and had sent two bishops and two abbots as its representative delegates. These took home with them the constitutions of Ottoboni, which the clergy of Scotland utterly refused to obey.^{[747](#)}

XIX.

SPAIN.

We have already seen (p. 121) that among the Wisigoths of Spain the rule of celibacy had never been successfully enforced, and that during the later period of the Gothic dynasty the demoralization of the clergy was daily increasing. The Saracenic invasion, and the subsequent struggles of the Christians, who founded petty kingdoms among the wild mountainous regions of the North and East of the Peninsula, were not favorable to the growth of regular discipline and settled observances. The centralized sacerdotalism of Rome, which took so remarkable an extension in the ninth and tenth centuries, and which penetrated every portion of the Carolingian empire, was powerless to intrude into the strongholds of the *Jalikhah*, whence the descendants of Pelayo and his companions gradually extended their frontiers from Oviedo to Toledo. Communication with the apostolic city was rare. The nominal subjection of Barcelona and Navarre to the Carolingians, indeed, brought the eastern provinces of Spain under the domination of the Archbishops of Narbonne, and kept them, to a certain extent, under the influences which were moulding the rest of Europe; but the kingdoms of Leon and Castile grew up in complete ecclesiastical independence. Even at the close of the eleventh century a Spanish ecclesiastic describes his contemporary brethren as rude and illiterate, owning no obedience to the mother church of Rome, and governed by the discipline of Toledo.⁷⁴⁸ Wild and insubordinate as was a large portion of the European clergy, the ecclesiastics of Spain were even wilder and more insubordinate. Another writer of the period, himself a canon of Compostella, and subsequently Bishop of Mondonego, speaking of his brother canons previous to the reforms of Diego Gelmirez, denounces them as reckless and violent men, ready for any crime, prompt in quarrel, and even occasionally indulging in mutual slaughter.⁷⁴⁹ How little, indeed, there was to distinguish the clerk from the layman is evident from a regulation promulgated by the council of Compostella in 1113. It provides that all priests, gentlemen, and peasants shall devote themselves to wolf-hunting on every Sunday, except Easter and Pentecost, under a penalty of a fine of five

sols for the priest and gentleman, and one sol, or a sheep, for the peasant—visitation of the sick being the only excuse exempting the priest from the performance of this duty. Every church, moreover, was bound to furnish for the hunt seven iron-tipped reeds.⁷⁵⁰ A similar condition of society is indicated at the other end of Spain, where, in 1027, the Synod of Elna, in Roussillon, had forbidden, under pain of excommunication, any one to attack a monk or a clerk who was without arms.⁷⁵¹

In such lack of social organization it is easy to imagine that the rule of celibacy received little attention. According to Mariana, the clergy of the period were, for the most part, publicly married;⁷⁵² and when, in 1056, the council of Compostella specifically forbade to bishops and monks all intercourse with women, except with mothers, aunts, and sisters wearing the monastic habit,⁷⁵³ the inference is fair that even so elementary a prohibition was an innovation, and that the secular clergy, below the episcopate, were not regarded as subject to any restriction.

In the comprehensive efforts, however, made during the later half of the eleventh century by the Roman church to bring all Christendom under its domination, the rising states of Spain were not likely to remain undisturbed in their independent isolation; nor was it to be expected that so complete a defiance of the canons would be passed unobserved by the pontiffs who were convulsing the rest of Europe in their efforts to reform the church. Accordingly, in 1068, we find the Cardinal Hugo of Silva Candida, as legate of Alexander II., assembling a council at Girona, and procuring the adoption of a regulation reducing to the condition of laymanship all who, in holy orders, either entered into matrimony or kept concubines; while those who should dismiss their wives were promised immunity for the past and security for the future.⁷⁵⁴ In 1077, Gregory VII. sent a certain Bishop Amandus as his legate, with an epistle addressed to the Spaniards, in which he told them that Spain had anciently belonged to St. Peter and the Roman church; that the carelessness of his predecessors, and the Saracenic conquest, had caused the papal rights to be forgotten, but that the time had come for them to be revendicated, and that he consequently claimed implicit obedience.⁷⁵⁵ Accordingly, in 1078, we find the legate presiding over another council at Girona, which confirmed the canons of the previous one, and added several others to prevent the ordination of sons of priests,

and the hereditary transmission of benefices.⁷⁵⁶ Such slender reforms as may have resulted from these efforts were probably confined to Catalonia and Aragon; but not long afterwards influences were brought to bear upon the rest of Spain, which had a powerful effect in extending the authority of Rome over the Peninsula. Constance of Burgundy, Queen of Alfonso VI. of Castile and Leon, prevailed upon her husband to ask of Gregory a legate to reform the church, and to condemn the Gothic or Mozarabic ritual, which was jealously preserved by the people as a symbol of their independent nationality. The prayer, of course, was granted. Richard, Abbot of Marseilles, was sent, and in 1080 he held a council at Burgos, where he commanded the ordained clergy to put away their wives. The novelty and hardship of this order created great excitement. The pope, who was rightly regarded as its author, became the object of no little abuse and insult, and was held up to popular derision in innumerable lampoons.⁷⁵⁷

All of these efforts were nugatory. The Spaniards, engaged in an interminable and often doubtful struggle with the Infidel, might well claim consideration from the Holy Father, while the independent spirit which they manifested in their resistance to the introduction of the Roman ritual was a warning that it would be prudent not to proceed too abruptly in the process of bringing them within the fold of St. Peter. Whatever be the motives, indeed, which induced such strenuous apostles of celibacy as Gregory, Urban, Paschal, and Calixtus to abstain from urging upon them the reform which was so earnestly enforced elsewhere, certain it is that little effort was made to deprive the Spanish clergy of their wives. In all the epistles of the popes up to 1130 I can find but one allusion to the subject, though communication between Spain and Italy became daily more frequent, and the papal authority was constantly exercised with greater decisiveness in the internal affairs of the Spanish church.

When, in 1101, Diego Gelmirez succeeded in obtaining the see of Compostella, Paschal II. addressed him an epistle, reproaching him with the utter contempt of discipline in his diocese, and commanding a reform. He chiefly complained of the incongruous common residence of monks and nuns, which he severely condemned and peremptorily prohibited, but he made some concession to the necessities of the time in permitting the ordination of the sons of those priests who had, "according to the ordinary custom of the country," married prior to the promulgation of what the pope

significantly termed the Roman law; and he carefully abstained from ordering a separation between them and their wives, or even an enforcement of the canons for the future.⁷⁵⁸

Diego, who possessed no common measure of vigor and ambition, and who needed the particular favor of the popes for the success of his plans in elevating and aggrandizing his see, accordingly proceeded to reform his clergy. There is extant a minute and circumstantial contemporary history of his episcopate, written by his admiring disciples, who dwell with much instance on his labors and success in reducing to discipline the refractory canons of his cathedral seat; but in the numerous allusions to these reforms there is no mention of the enforcement of celibacy, while the fact that he would not allow them to minister at the altar without canonical vestments is made the subject of repeated gratulation and praise.⁷⁵⁹ The absolute silence of the authors with respect to the clergy at large shows that the reticence of Pope Paschal was not misunderstood, and that there was no effort made to bring the secular priesthood under subjection to the Roman discipline. In the twenty-five canons of the council of Compostella in 1113 it therefore need not surprise us that there is no reference whatever to the subject, beyond an allusion to the children of ecclesiastics, whose nurses were declared entitled to clerical privileges, thus giving them a recognized and highly prized position.⁷⁶⁰

That Diego's reforms, indeed, did not extend to the abrogation of clerical marriage is evident from several incidental circumstances. Thus, in 1114, the lords of the monastery of Botoa made it over to the church of Santiago of Compostella, reserving to themselves their life interest, with a reversion to any of their descendants who should be ecclesiastics, and who might be willing to profess celibacy, showing that the matter was optional with the secular clergy.⁷⁶¹ That even the canons were bound by no absolute rules on the subject is manifested by a very curious transaction which may be worth recounting as illustrative in several aspects of the spirit of the age. In 1127, Diego, at the head of his Gallician troops, accompanied Alfonso VIII. on an expedition into Portugal. On their return, the army halted at Compostella, where the archbishop received and entertained his sovereign. They were bound by the closest ties, for Diego had baptized, knighted, and crowned him, and had, moreover, constantly stood his friend throughout his stormy

youth, in the endless civil wars which marked the disastrous reign of his mother, Queen Urraca. Yet, prompted by evil counsellors who were jealous of Diego, the king suddenly demanded of him an enormous sum of money, to pay off the army, under threat of seizing and pillaging the city. After considerable resistance, Diego was forced to submit, and to pay a thousand marks of silver. He then sought a private interview, in which he solemnly and affectionately warned Alfonso of the ruin of his soul which would ensue if he did not undergo penance for thus impiously spoiling the Apostle Santiago. Alfonso listened humbly, and professed entire willingness to repent, but for the difficulty that he had always been taught that penitence was fruitless without restitution, and restitution he was unable and unwilling to make. Diego then suggested that he should meet the chapter and discuss the case, to which he graciously assented. In the assembly which followed, Diego proposed that the king should follow the example of his father, Raymond of Galicia, in commending himself to the peculiar patronage of Santiago, and in bequeathing his body to be buried in their church, promising, moreover, that if he should do so they would pray specially for him, which, from the promise of his youth, bade fair to be no easy task. Alfonso was delighted to escape so easily: he eagerly accepted the proposition, and added that he would like to become a canon of their church, in order to enjoy the fullest possible share in the Masses of such holy men. To this the chapter assented at once; he was forthwith duly installed as a canon of the church which he had just despoiled, and his conscience was set at rest, while the church felt that it had acquired a moral supremacy over the spoiler.⁷⁶² In thus formally becoming a canon, there could have been no assumption of celibacy, expressed or implied. Alfonso was but twenty-one years of age, and in the following year he married Berengaria, daughter of the Count of Barcelona.⁷⁶³

In fact, in the absence of urgency on the part of Rome, the question of sacerdotal celibacy seems to have been virtually ignored in Spain. How little importance was attached to the preëminent sanctity of asceticism becomes evident when we are told that in the whole of Galicia there was no convent of nuns until Diego, in 1129, founded the house of S. Maria of Conjo.⁷⁶⁴ Equal indifference is manifested in the legislative assemblies of the church. The council of Leon and Compostella, in 1114, only prohibited the residence of such women as were forbidden by the canons,⁷⁶⁵ which, in

the existing discipline of the Spanish church, may safely be presumed to offer no impediment to the marriage relation; and a synod held at Palencia in 1129 is even more significant in its reticence, for it merely provides that notorious concubines of the clergy shall be ejected, without apparently venturing to threaten any punishment on the reverend offenders.⁷⁶⁶

Towards the close of his restless life, however, Archbishop Diego found time, amid his military, political, and ecclesiastical schemes of aggrandizement, to undertake the much needed reform of a single monastery. The Abbot of S. Pelayo de Antealtaria was a paragon of brutish sensuality, who wasted the revenues of his house in riotous living and took no shame in a numerous progeny. The archbishop remonstrated with him long and earnestly, both in public and private: seven times in the general chapter of the diocese he admonished and threatened the offender without result. At length, in 1130, after forbearance so remarkable, Diego held a chapter in the abbey for his trial, when he was proved by competent witnesses to have kept no less than seventy concubines. He was accordingly deposed, but was so far from being canonically punished that a benefice in the abbey lands was assigned for his support. A new abbot was then appointed, who swore to observe the Benedictine rule as far as he should find himself able to do so.⁷⁶⁷ It is a significant commentary on the state of discipline and opinion to find so weak an effort to remove and punish the grossest licentiousness characterized by the biographer of Diego with the warmest expressions of wondering admiration as a work which doubtless gave ineffable satisfaction to the Divine Omnipotence, and which was without example in previous history.

It is very evident that the pontiffs who so energetically enforced the rule of celibacy throughout the rest of Europe were content to offer little opposition to the obstinacy of the Celtiberian priesthood. We can safely conclude, indeed, that matters were allowed to remain virtually undisturbed, and that the clergy were permitted to retain their wives. A council held in Galicia in the early part of the thirteenth century, for the purpose of reforming ecclesiastical discipline, preserves absolute silence on the subject of marriage and concubinage;⁷⁶⁸ and, about the middle of the same century, we find Alfonso the Wise of Castile obliged to formally interdict matrimony to those in holy orders. In the elaborate code drawn up by that monarch and

known as “Las Siete Partidas,” there is a law punishing sacerdotal marriage with deprivation of function and benefice; while the wives, if vassals of the church, are to be reduced to servitude, and if serfs, are to be sold and the proceeds appropriated for the benefit of the church of the offender. The wording of the law would seem to indicate that it was an enactment intended to repress existing disorders, and not merely a well-known provision inserted in the code for the purpose of completing a compilation of statutes;⁷⁶⁹ while the existence in secular legislation of such invasions of the province of ecclesiastical law is a convincing proof of the continued independence of Rome asserted by the Spanish church and state. The prelates were further authorized to command the assistance of the secular power in enforcing these barbarous penalties to their full measure of severity, and this secular legislation seems to have accomplished what the ecclesiastical authorities had so utterly failed to effect. After this we hear little of regular marriage, which was replaced by promiscuous concubinage or by permanent irregular unions.

In Valencia a council in 1255 prohibited the residence with priests of all women, except mothers and sisters and such others as were beyond suspicion, but no penalty was prescribed for infractions of the rule; and the character of the clergy with whom the council had to deal is sufficiently shown by its complaint that the priests of the country parishes frequented the city too much and indulged there in disgraceful excesses, for which reason it forbids them from visiting the city more often than twice a month, and requires them to return home the same day.⁷⁷⁰ Arnaldo de Peralta, Bishop of Valencia, not long after, deplores the utter contempt with which all previous efforts to suppress clerical concubinage had been received, and the prevalence of the custom by which ecclesiastics endowed their bastards with the spoils of the church. Yet the only punishment he finds himself able to threaten is a fine of thirty maravedis on public concubinarians and of five on parish priests who connive at such offences or neglect to report them to the bishop. Ecclesiastics, indeed, are directed to put away their children, but no penalty is indicated for disobedience.⁷⁷¹ The council of Gerona in 1257 was more energetic, for it decreed the deprivation of all concubinary priests who persisted in their sin, but this apparently was not effectual, for in 1274 the threat was repeated, with the addition that the women should be excommunicated and should receive after death the burial of asses;⁷⁷² and

very similar was the legislation of the council of Peñafiel in 1302.⁷⁷³ However well meant these efforts were, they proved as useless as all previous ones, for in 1322 the council of Valladolid, under the presidency of the papal legate William Bishop of Sabina, animadverts strongly on the indecency of ecclesiastics, from the highest prelates down, officiating at the nuptials of their children, both legitimate and illegitimate. For those who publicly kept concubines it provides a graduated scale of confiscation, ending in the deprivation of the persistently contumacious who gave no prospect of amendment, the exceedingly elaborate regulations prescribed showing at once the difficulty of the subject and the importance attached to it. The acts of this council, moreover, are interesting as presenting the first authentic evidence of a custom which subsequently prevailed to some extent elsewhere, by which parishioners were wont to compel their priest to take a female consort for the purpose of protecting the virtue of their families from his assaults. The iniquity of this precaution seems to have especially scandalized the legate, and he treats the audacious laymen concerned in such transactions with much less ceremony than the concubinary clergy.⁷⁷⁴ The elaborate regulations promulgated by this council produced little effect. The council of Salamanca in 1335 renews the previous repressive legislation, adding a threat of *ipso facto* excommunication for those who give Christian burial to priestly concubines, including all who are present on such occasions, who are not to be absolved until they shall have paid a fine of fifty maravedis to the cathedral church.⁷⁷⁵ At length, in 1388, a national council held at Palencia under Cardinal Pedro de Luna, papal legate, made a determined effort to eradicate the ineradicable vice. It renewed the regulations of the council of Valladolid, which it stated were not obeyed, and added to them a clause by which all benefices were held under a sort of tenure of chastity, and subject to forfeiture. Besides this, all ecclesiastics who, within two months of death, had kept concubines, were declared incapable of testating, and their property was adjudged, one-third to the fabric of their churches, one-third to the Ordinary of the diocese, and one-third to the fund for the redemption of captives under the care of the Orders of Trinidad and Mercede, who were empowered to seize their share. Moreover, all bishops were commanded to appoint official Visitors, who were to report at annual synods, to be held thereafter, all cases of infraction of the rules.⁷⁷⁶ The desolation which the enforcement of such regulations would have wrought may be inferred from

the description which a contemporary, Alvarez Pelayo, Bishop of Silva in Portugal, gives us of his fellow ecclesiastics. He states that many of the clergy in holy orders throughout the Peninsula publicly associated themselves with women, frequently of noble blood, binding themselves against separation by notarial acts and solemn oaths, endowing their consorts with the goods of the church, and celebrating with the kindred these illegal espousals as joyously as though they were legitimate nuptials. Yet even this flagrant defiance of the canons was better than the wickedness common between confessors and their penitents, or than the promiscuous and unrestrained licentiousness of those who were not fettered by the forms of marriage, whose children, as Pelayo asserts, almost rivalled in number those of the laity.⁷⁷⁷ These excesses were not suppressed by the council of Palencia. In 1429 the council of Tortosa, under the presidency of the Cardinal de Foix, papal legate, renewed the lament that the canons of Valladolid remained unobserved, and in repeating them it added a penalty of incarceration for pertinacious offenders, indicating, moreover, one of the worst abuses to which the subject gave rise, in forbidding all officials to take bribes from those who transgressed the rules.⁷⁷⁸ This effort was as fruitless as all previous ones had been, and we shall see hereafter that the same state of affairs continued until the sixteenth century was well advanced.

XX.

GENERAL LEGISLATION.

In a former section we have seen the efforts made by Calixtus II. to enforce the received discipline of the church, and we have noted the scanty measure of success which attended his labors. He apparently himself recognized that they were futile, and that some action of more decided character than had as yet been attempted was necessary to accomplish the result so long and so energetically sought, and so illusory to its ardent pursuers. On his return to Italy, and his triumph over his unfortunate rival, the anti-pope Martin Burdino, he summoned, in 1123, the first general council of the West, to confirm the Concordat of Worms, which had just closed half a century of strife between the papacy and the empire. Nearly a thousand prelates obeyed his call, and that august assembly promulgated a canon which not only forbade matrimony to those bound by vows and holy orders, but commanded that if such marriages were contracted they should be broken, and the parties to them subjected to due penance.^{[779](#)}

This was a bold innovation. With the exception of a decretal of Urban II. in 1090, to which little attention seems to have been paid, we have seen that, previous to Calixtus, while the sacrament of marriage was held incompatible with the ministry of the altar and with the enjoyment of church property, it yet was respected and its binding force was admitted, even to the point of rendering those who assumed it unfitted for their sacred functions. At most, and as a concession to a lax and irreligious generation, the option was allowed of abandoning either the wife or the church. At Rheims, Calixtus had deprived them of this choice, and had ordered their separation from their wives. He now went a step further, and by the Lateran canon he declared the sacrament of marriage to be less potent than the religious vow: the engagement with the church swallowed up and destroyed all other ties. This gave the final seal to the separation between the clergy and the laity, by declaring the priestly character to be indelible. When once admitted to orders, he became a being set apart from his fellows, consecrated to the service of God; and the impassable gulf between him and

the laity bound him forever to the exclusive interests of the church. It is easy to perceive how important an element this irrevocable nature of sacerdotalism became in establishing and consolidating the ecclesiastical power.

The immensity of the change thus wrought in the practice, if not in the doctrine, of the church can best be understood by comparing the formal command thus issued to the Christian world with the unqualified condemnation pronounced in earlier times against those who attempted to dissolve marriage under religious pretexts.⁷⁸⁰ And in all ages the church has regarded the chastity of the monastic orders as even more imperative than that of the secular clergy.

Revolutions never go backwards. Perhaps the Lateran fathers who adopted the canon scarcely realized its logical conclusions. If they did, they at all events shrank from expressing them openly and fully, and left the faithful to draw their own deductions as to the causes and consequences of such an order. Time, however, familiarized the minds of ardent churchmen with the idea, and it was seen that if the practice thus enjoined was correct, doctrine must be made to suit and to justify it. To this end an additional stimulus was afforded by the failure of the canon to accomplish the results anticipated from it, for the custom of sacerdotal marriage was as yet by no means eradicated. The council of Liége, held by Innocent II. in 1131, referred to in a preceding section, and those of Clermont and Rheims, over which he likewise presided, in 1130 and 1131, show how little had been accomplished, and how generally the clergy of Europe disregarded the restrictions nominally imposed upon them, and the punishments which they so easily escaped.⁷⁸¹ In the canons of these councils not only is it observable that the question of marriage and celibacy is treated as though it were a matter now for the first time brought to the attention of the clergy, but also that the innovation attempted by the council of Lateran, only seven or eight years previous, is prudently suppressed and passed over without even an allusion.

Innocent, restored to Rome and to power, was bolder than when wandering through Europe, soliciting the aid of the faithful. Surrounded by a thousand bishops at the second great council of Lateran, in 1139, he no longer dreaded to offend the susceptibilities of the clergy, and he proceeded to justify the canon of 1123 by creating a doctrine to suit the practice there enjoined. After repeating the canons of Clermont and Rheims, he unhesitatingly pronounced that a union contracted in opposition to the rule of the church was not a marriage.⁷⁸² He draws no argument from the conflict of sacraments assumed to be incompatible; a simple vow dissolves the sacrament of marriage, and renders it null and void—or rather destroys its efficacy and anticipates its existence.

The abounding wickedness of a perverse generation caused this decree of the loftiest Christian tribunal to fall still-born and abortive as its forerunners had done.⁷⁸³ The church, however, was irrevocably committed to the new doctrine and to all its consequences. When Eugenius III. was driven out of Rome by Arnold of Brescia, he presided, in 1148, over a council held at Rheims, where eleven hundred bishops and abbots from Northern and Western Europe assembled to do honor to the persecuted representative of St. Peter, and to condemn the teachings of Gilbert de la Porrée. From this great assembly he procured the confirmation of the new dogma by their adoption of the Lateran canon; while the repetition of that of Clermont and Rheims (of 1130 and 1131) shows that the evil which it was intended to repress still existed in full force.⁷⁸⁴ The vague assertion of Eugenius that he was but following in the footsteps of the holy fathers, and a special reference to Innocent II. as his authority, render it probable that the members of the council demurred in committing themselves to the new principle, and that it was only by showing that the matter was already decided under the irrefragable authority of a general council that the consent of the Transalpine churches was obtained.

St. Bernard himself, the impersonation of ascetic sacerdotalism, hesitated to subscribe to the new dogma, and when the monks of Chartres asked him to reconcile it with the teachings of Augustin and Gregory the Great he candidly confessed that his dialectical skill was unequal to the task.⁷⁸⁵ So when an abbot applied to him for advice in the case of one of his monks, who had left the convent and married, St. Bernard stigmatized the act as

highly improper, but hesitated to pronounce it unlawful. He recommended that an attempt be made to convince the parties that they were perilling their salvation, and if this failed he thought that perhaps they might be separated by episcopal authority.⁷⁸⁶ In fact, four years after the council of Rheims, St. Bernard reproached Eugenius with having caused the adoption of canons which no one pretended to obey. If he thought that they were enforced, he grievously erred; if he did not think so, he had sinned either by decreeing what was not to be observed or in neglecting to punish their non-observance—and no one was punished for his disobedience.⁷⁸⁷

Even in Rome itself the point was still disputed. At that very time Gratian, the greatest canonist of the age, was engaged in the compilation of his “*Concordia discordantium Canonum*,” a work undertaken at the request of the papal curia to restore to the canon law the preëminence which it was fast losing in consequence of the recently revived study of the Justinian jurisprudence. Published in 1151 under the auspices of Eugenius himself, and presented to the world as the authoritative exposition of the laws and discipline of the church, it was everywhere received with acclamation, and has remained to this day the foundation of the canon law. Yet Gratian himself, in this work without appeal, distinctly declares his opposition to the doctrine of Innocent and Eugenius, asserting that a deacon can lawfully marry if he chooses to abandon the ministry, and that the sacrament of marriage is so potent that no antecedent vow can render it void.⁷⁸⁸

The new law was long in winning its way to general respect, nor can it be a subject of wonder if those who disregarded the acknowledged canons of the church by marrying in orders, or by permitting such marriages in those under their charge, should neglect a rule of recent origin and of more than doubtful propriety. The church, however, was committed to it, and, moreover, could see in its eventual recognition a more effectual means of accomplishing the long desired object than in any expedient previously tried. By destroying all such marriages, pronouncing them null and void, inflicting an ineffaceable stigma on wife and offspring, subjecting the woman to the certainty of being cast off without resource and without option on the part of the husband, the position of the wife of an ecclesiastic would become most unenviable; her kindred would prevent her from exposing herself to such calamities, and no priest could succeed in finding a

consort above the lowest class, whose union with him would expose him to the contempt of his flock.

How slender was the immediate result of the efforts of Innocent and Eugenius, however, is manifested by the allusions of Geroch, Provost of Reichersperg, who, writing about the middle of the century, complains that any one who would shun intercourse with Nicolitan and simoniacal heretics must quit the world, for it was full of them, and he maintains the propriety of calling them heretics because they openly defended and justified their evil courses.⁷⁸⁹ Indeed, so shamelessly were their transgressions displayed, that the faithful were sometimes scandalized by the sight of the priests' wives assisting their husbands in the ministry of the altar;⁷⁹⁰ while conventual discipline had sunk so low that nuns were in the habit of deferring their formal vows until the lassitude of old age should render the restraints thereby assumed easy to be endured,⁷⁹¹ and canons led a life which was only distinguishable from that of the laity by its shamelessness.⁷⁹² Nor was this confined to Germany. In France, Hugh, Archbishop of Rouen, complains that those who married in orders openly defended their evil practices and quoted Scripture to sustain themselves.⁷⁹³

In England, as seen in a preceding section, the new theory of Innocent and Eugenius remained a dead letter. Indeed, as late as 1470 Sir John Fortescue incidentally alludes to a recent case in which a priest named John Fringe, who had lived in orders for three years, procured two false witnesses to swear that he had previously been betrothed to a certain maiden, and this preliminary promise of marriage was held by court to supersede his priestly ordination; he was ejected from the priesthood and compelled to marry the girl, with whom he lived fourteen years, until he was executed for treason by the Lancastrians during the wars of the Roses.⁷⁹⁴ In Spain, as we have already seen, priestly marriage was forbidden by the secular law as late as the latter half of the thirteenth century, and priests in consequence were wont to protect their partners by entering into the most solemn compacts, the customary employment of which shows that they must have been habitually enforced by the municipal tribunals regardless of the censures of the church.

The long pontificate of Alexander III., extending from 1159 to 1181, was absorbed for the most part by his deadly strife with Frederic Barbarossa. Yet, even before he was released from that ever-present danger, he found leisure to urge the cause of sacerdotal celibacy; and after the humiliation of his mortal enemy he devoted himself to it with a zeal which earned for him among his contemporaries the credit of establishing its observance.⁷⁹⁵ He who, as the legate Roland, had nearly paid, under the avenging sword of Otho of Wittelsbach, the forfeit of his life for his rude boldness at the imperial court, was little likely to abate one jot of the claims which the church asserted on the obedience of layman and clerk; and he recognized too fully the potency of the canons of Lateran and Rheims not to insist upon their observance. The very necessity under which he found himself, however, of repeating those canons shows how utterly neglected they had been, and how successfully the clergy had thus far resisted their reception and acknowledgment. Thus when, in 1163, he held the council of Tours, he was obliged to content himself with a canon which allowed three warnings to those who publicly kept concubines, and it was only after neglect of these warnings that they were threatened with deprivation of functions and benefice;⁷⁹⁶ and when, in 1172, his legates presided over the council of Avranches, which absolved Henry II. for the murder of A'Becket, the Norman clergy were emphatically reminded that those who married in holy orders must put away their wives, and this in terms which indicate that the rule had not been previously obeyed.⁷⁹⁷ Yet notwithstanding this formal declaration, only a few years later we find the Archbishop of Rheims applying to him for counsel in the case of a deacon who had committed matrimony, to which Alexander of course replied that the marriage was no marriage, and that the offending ecclesiastic must be separated from the woman, and undergo due penance.⁷⁹⁸ The persistence of the pope, and the necessity of his urgency, are farther shown by sundry epistles to various English bishops, in which the rule is enunciated as absolute and unvarying;⁷⁹⁹ and he takes occasion to stigmatize such marriages with the most degrading epithet, when he graciously pardons those concerned, and permits their restitution after a long course of penitence, on their giving evidence of a reformed life.⁸⁰⁰

Yet even Alexander was forced to abate somewhat of his stern determination, in consideration of the incorrigible perversity of the time,

though he seems not to have remarked that he abandoned the principle by admitting exceptions, and that the reasons assigned in such individual cases might, with equal cogency, be applied to the total withdrawal of the rule. When the Calabrian bishops informed him that clerks in holy orders throughout their dioceses committed matrimony, he ordered that priests and deacons should be irrevocably separated from their wives; but, in the case of subdeacons of doubtful morals, he instructed the prelates that they should tacitly connive at the irregularity, lest in place of one woman, many should be abused, and a greater evil be incurred, in the endeavor to avoid a less.^{[801](#)} This worldly wisdom also dictated his orders to the Bishop of Exeter, in whose diocese subdeacons were in the habit of openly marrying. He directs an examination into the lives and characters of the offenders; those whose regular habits and staid morality afford fair expectation of their chastity in celibacy are to be forcibly separated from their wives; while those whose disorderly character renders probable their general licentiousness if condemned to a single life are not to be disturbed—taking care, however, that they do not minister at the altar, or receive ecclesiastical benefices.^{[802](#)}

Alexander adopted the principle that a simple vow of chastity did not prevent marriage or render it null, but that a formal vow, or the reception of orders, created a dissolution of marriage, or a total inability to enter into it;^{[803](#)} but Celestin III. carried the principle still farther, and decreed that a simple vow, while it did not dissolve an existing connection, was sufficient to prevent a future one.^{[804](#)}

Alexander did not confine himself to this portion of the question, but with ceaseless activity labored to enforce the observance of celibacy in general, and to repress the immorality which disgraced the church throughout Christendom—immorality which led Alain de l'Isle, the "Universal Doctor," to characterize the ecclesiastics of his time as being old men in their inefficiency and young men in their unbridled passions.^{[805](#)} Alexander's efforts were particularly directed to put an end to the practice of hereditary priesthood, and its constant consequence, hereditary benefices. If I have made little allusion to this subject during the century under consideration, it is not that the church had relaxed her exertions to place some limit on this apparently incurable disorder, or that the passive resistance to her efforts had been less successful than we have seen it on

previous occasions. The perpetual injunctions of Alexander show at once the universality of the vice, and the determination of the pontiff to eradicate it. At the same time it became a frequent, and no doubt a profitable portion of the duties of the papal chancery, to grant special dispensations when those who held such preferment, or who desired to retain their wives, underwent the dangers and expense of a journey to Rome, and were rewarded for their confidence in the benignity of the Holy Father by a rescript to their bishops, commanding their reinstatement in the benefices from which they had been ejected.⁸⁰⁶ The power to grant such dispensations was shrewdly reserved as the exclusive privilege of the papal court;⁸⁰⁷ and a high churchman of the period assures us that there was no difficulty in obtaining them.⁸⁰⁸ It need not, therefore, surprise us that Alexander's successor, Lucius III., found the hereditary transmission of the priestly office claimed as an absolute right.⁸⁰⁹ And not only did the claims of the papal chancery thus interfere with the execution of the law by its power of granting dispensations, but its appellate jurisdiction was constantly used to avert punishment from the worst offenders. Thus Lucius III., about the year 1181 was obliged to grant to Maurice de Sully, Bishop of Paris, the right to dispossess of their benefices and functions, without appeal, certain notorious concubinarians who, on being threatened with the application of the law, had defied him by interposing an appeal to Rome.⁸¹⁰ This centralization of all power in the papal court, and the unblushing venality of the Roman officials, meet us in every age as the efficient obstacle to the efforts of reforming prelates throughout Europe.

The uncertainty of this conflicting legislation, at times enforced, and at times dispensed with by the supreme power, led to innumerable complications and endless perplexity in private life. Indeed, a large portion of the canons are founded on responses given by the popes to settle cases of peculiar difficulty arising from ignorance or neglect of the discipline enjoined, and many of these reveal extreme hardship inflicted on those who could be convicted of no intentional guilt. Perhaps the most noteworthy instance of the troubles caused by the new regulations was that of Bossaert d'Avesnes, which resulted in a desperate war to determine the possession of the rich provinces of Flanders and Hainault. As it illustrates the doubts which still environed these particular points, and the conflicting decisions to

which they were liable, even from the infallibility of successive popes, it may be worth briefly sketching here.

When Baldwin of Flanders, Emperor of Constantinople, died in 1206, his eldest daughter Jane succeeded to his territories of Flanders and Hainault, while his second child, Margaret, was placed under the guardianship of Bossaert d'Avesnes. Bossaert was a relative of her mother, Mary of Champagne, and though he held the comparatively insignificant position of chanter of Tournay, he was yet a man of great repute and influence. With the assent and approbation of the estates of Flanders, Margaret and Bossaert were married, the issue of the union being three sons. Whether the fact of his having received the subdiaconate was publicly known or not is somewhat doubtful; but he seems at length to have been awakened to a sense of his uncertain position, when he went to Rome for the purpose of obtaining a dispensation and legitimating his children. Innocent III. not only refused the application, but commanded him to restore Margaret to her relatives and to do penance by a pilgrimage to the Holy Land. Disregarding these injunctions, he lived openly with his wife after his return and was excommunicated in consequence. At length Margaret left him and married Guillaume de Dampierre, while Bossaert was assassinated during a second visit to Rome, where he was seeking reconciliation to the church. When at last, in 1244, the Countess Jane closed her long and weary career by assuming the veil at Marquette, without leaving heirs, the children of Margaret by both marriages claimed the succession, and Margaret favored the younger, asserting, without scruple, that her elder sons were illegitimate. The difficult question was referred to St. Louis for arbitration, and in 1247 the good king assigned Flanders to Gui de Dampierre and Hainault to Jean d'Avesnes, thus recognizing both marriages as legitimate. This, of course, satisfied neither party. Innocent IV. was appealed to, and in 1248 he sent commissioners to investigate the knotty affair. They reported that the marriage of Bossaert had been contracted in the face of all Flanders, and that the d'Avesnes were legitimate, which judgment was confirmed by Innocent himself in 1252. Thus fortified, Jean d'Avesnes resisted the proposed partition, and a bloody civil war arose. The victory of Vacheren placed the Dampierre in the hands of their half-brothers, and promised to be decisive, until Margaret called in Charles de Valois, bribing him with the offer of Hainault to complete the disinheriting of her first-born. The war

continued until Louis, returning from the East in 1255, compelled the combatants to lay down their arms, and to abide by his arbitration.^{[811](#)}

In this case we see Innocent III. deciding that marriage was incompatible with the subdiaconate. Yet it is a striking illustration of the uncertainty which still surrounded the matter to find the same pope, in 1208, commanding a subdeacon of Laon to return to the wife whom he had abandoned on taking orders, and to treat her in all respects as a wife. Innocent is not to be suspected of any temporizing concession to prevailing laxity, and yet in this case he overruled the uninterrupted tradition of the canons that married men taking orders should thenceforth treat their wives as sisters; and the doubts which experienced ecclesiastics entertained with regard to the law are visible in the fact that when the wife complained of her abandonment to the metropolitan authorities at Rheims they did not pretend to give judgment, but sent the testimony in the case at once to Innocent for his decision.^{[812](#)}

Another curious case occurring about the same time illustrates the complexity of the questions which arose and the manner in which the selfishness of ascetic zeal sometimes eluded even the very slender barriers with which the church limited its gratification. As we have seen, it was an ancient rule that no man could assume monastic vows without the assent of his wife, with the additional condition that she must at the same time enter a nunnery. It appears that a husband desiring to become a monk, and finding his wife obstinately opposed to his designs, enlisted the services of various priests to influence her, carefully concealing from her the obligation which her assent would impose upon her to take the veil. Still she obstinately refused, until at last he threatened to castrate himself, when she yielded and went through the ceremony of placing with her own hands his head on the altar. The wife thus abandoned took to evil courses, and the husband-monk applied in person to Innocent III. to learn whether he ought to remain in his order, seeing that his continence might be responsible for her unchastity. In spite of the deceit practised upon the wife, Innocent resolved his doubts in favor of the maintenance of his vows, giving as a reason that her adulteries deprived her of claim on him. At the same time, nothing was said as to compelling the woman to take the veil.^{[813](#)}

In view of these perplexities, it is no wonder that even the resolute spirit of Alexander III., dismayed at the arduous nature of the struggle, or appalled at the ineradicable vices which defied even papal authority, at times shrank from the contest and was ready to abandon the principle. If we may believe Giraldus Cambrensis, who, as a contemporary intimately connected with the highest ecclesiastical authorities in England, was not likely to be mistaken, and whose long sojourn at the court of Innocent III. would have afforded him ample opportunities of correcting a misstatement, Alexander had once resolved to introduce the discipline of the Greek church in Western Europe, permitting single marriages with virgins. To this he had obtained the assent of his whole court, except his chancellor Albert, who was afterwards pope under the name of Gregory VIII. The resistance of this dignitary was so powerful as to cause the abandonment of the project.⁸¹⁴ Alexander, indeed, was not alone in this conviction. Giraldus himself was fully convinced that such a change would be most useful to the church, though as archdeacon of St. David's he had displayed his zeal for the enforcement of the canon by measures too energetic for the degeneracy of the age, and though he occupies, in his "*Gemma Ecclesiastica*," twenty-one chapters with an exhortation to his clergy to abandon their evil courses.⁸¹⁵ Men of high character did not hesitate to take even stronger ground against the rule. The celebrated Peter Comestor, whose orthodoxy is unquestioned, taught publicly in his lectures that the devil had never inflicted so severe a blow on the church as in procuring the adoption of celibacy.⁸¹⁶

These were but individual opinions. The policy of the church remained unaltered, and Alexander's successors emulated his example in endeavoring to enforce the canons. Clement III. took advantage of the profound impression which the capture of Jerusalem by Saladin (Oct. 1187) produced on all Europe, when the fall of the Latin kingdom was attributed to the sins of Christendom. He preached a general reformation. Abstinence from meat on Wednesdays and Saturdays for five years, and various other kinds of mortification were enjoined on all, to propitiate a justly offended Deity, but the clergy were the objects of special reproof. Their extreme laxity of morals, their neglect of the dress of their order, their worldly ambition and pursuits, drinking, gambling, and flocking to tournaments, and the unclerical deportment which left little difference between them and the laity, were some of the accusations brought against them. To their

incontinence, however, was chiefly attributed the wrath of God, besides the measureless scandals to which their conduct exposed the church, and they were commanded to remove all suspected females from their houses within forty days, under pain of suspension from their functions and revenues.⁸¹⁷ That these rebukes were not the mere angry declamation of an ascetic is shown by the declaration of Celestin III., a few years later, that throughout Germany the custom still prevailed of fathers substituting in their benefices their sons, born during priesthood, so that frequently parent and offspring ministered together in the same church;⁸¹⁸ and the extent of the demoralization is evident when we find the sons of priests and deacons alluded to as a class ineligible to knighthood in a constitution of Frederic Barbarossa in 1187.⁸¹⁹ The regular clergy offered no exception to the general relaxation of discipline. In 1192 Odo, Bishop of Toul, felt himself forced to deplore the wickedness of monks who left their monasteries and publicly took to themselves wives, but he could devise no better means of arresting the scandal than excommunicating them and their growing families.⁸²⁰

Yet, with all his ardor, Clement admitted that celibacy was only a local rule of discipline, and that there was nothing really incompatible between marriage and the holy functions of the altar. The time had not yet come when the council of Trent could erect the inviolable continence of the priesthood into an article of faith, and Clement was willing to allow that priests of the Greek church, under his jurisdiction, could legitimately be married and could celebrate mass while their families were increasing around them.⁸²¹

Innocent III., who, by the fortunate conjunction of the time in which he flourished with his own matchless force of character, enjoyed perhaps the culmination of papal power and prerogative, at length brought to the struggle an influence and a determination which could scarcely fail to prove decisive on any question capable of a favorable solution. By his decretals and his legates he labored assiduously to enforce obedience to the canons, and when, in 1215, he summoned the whole Christian world to meet in the

fourth council of Lateran, that august assembly of about thirteen hundred prelates, acting under his impulsions, and reflecting his triumph over John of England and Otho of Germany, spoke with an authority which no former body since that of Nicæa had possessed. Its canons on the subject before us were simple, perhaps less violent in their tone than those of former synods, but they breathed the air of conscious strength, and there was no man that dared openly to gainsay them. A more rigid observance of the rules was enjoined, and any one officiating while suspended for contravention was punishable with perpetual degradation and deprivation of his emoluments. Yet the rule was admitted to be merely a local ordinance peculiar to the Latin church, for, in the effort made by the council to heal the schism with Constantinople, the right of the East to permit the marriage of its priests was acknowledged by a clause visiting with severer penalties those who by custom were allowed to marry, and who, notwithstanding this license, still permitted themselves illicit indulgences. The disgraceful traffic by which in some places prelates regularly sold permissions to sin was denounced in the strongest terms, as a vice equal in degree to that which it encouraged; and the common custom of fathers obtaining preferment in their own churches for their illegitimate offspring was reprobated as it deserved.^{[822](#)}

There is nothing novel in these canons, nor can they in strictness be said to constitute an epoch in the history of sacerdotal celibacy. They enunciate no new principles, they threaten no new punishments, yet are they noteworthy as marking the settled policy of the church at a period when it had acquired that plenitude of power and vigor of organization which insured at least an outward show of obedience to its commands. The successive labors of so long a series of pontiffs, during more than a century and a half, carrying with them the cumulative authority of Rome, had gradually broken down resistance, and the Lateran canons were the definitive expression of its discipline on this subject. Accordingly, though we shall see how little was accomplished in securing the purity of the priesthood, which was the ostensible object of the rule, yet hereafter there are to be found few traces of marriage in holy orders, except in the distant countries to which reference has already been made.

Yet the readiness to relax the rule when a substantial advantage was to be gained still continued, and when the effort, commenced at the council of Lyons in 1274, to reunite the Greek church under the supremacy of the

Holy See was apparently successful, Nicholas III. stoutly insisted upon the addition of “*filioque*” to the Symbol, but was discreetly silent as to separating the wives of priests from their husbands, promising in general terms that in all that merely concerned ritual observances the way should be made easy for them.^{[823](#)}

In Southern Italy, when the churches were actually brought together under the domination of Rome, priests of Greek origin were allowed to retain their wives, but married clerks of Latin parentage were not permitted to enter holy orders without separation. It not infrequently happened that the latter endeavored to elude the prohibition by getting themselves ordained in the Greek church, and it became necessary to denounce severe penalties not only against them, but against the prelates who permitted it.^{[824](#)}

XXI. RESULTS.

The unrelaxing efforts of two centuries had at length achieved an inevitable triumph. One by one the different churches of Latin Christendom yielded to the fiat of the successor of St. Peter, and their ecclesiastics were forced to forego the privilege of assuming the most sacred of earthly ties with the sanction of heaven and the approbation of man. Sacerdotalism vindicated its claim to exclusive obedience; the church successfully asserted its right to command the entire life of its members, and to sunder all the bonds that might allure them to render a divided allegiance. In theory, at least, all who professed a religious life or assumed the sacred ministry were given up wholly to the awful service which they had undertaken: no selfishly personal aspirations could divert their energies from the aggrandizement of their class, nor were the temporal possessions of the establishment to be exposed to the minute but all-pervading dilapidation of the wife and family.

If these were the objects of the movement inaugurated by Damiani and Hildebrand, and followed up with such unrelenting vigor by Calixtus and Alexander and Innocent, the history of the mediæval church attests how fully they were attained. It is somewhat instructive, indeed, to observe that in the rise of the papal power to its culmination under Innocent III. it was precisely the pontiffs most conspicuous for their enforcement of the rule of celibacy who were likewise most prominent in their assertion of the supremacy, temporal and spiritual, of the head of the Roman church. Whether or not they recognized and acknowledged the connection, they labored as though the end in view was clearly appreciated, and their triumphs on the one field were sure to be followed by corresponding successes on the other.

Yet in all this the ostensible object was always represented to be the purity of the church and of its ministers. The other advantages were either systematically ignored or but casually alluded to. One warning voice, indeed, was raised, in a quarter where it would have at least commanded

respectful attention, had not the church appeared to imagine itself superior to the ordinary laws of cause and effect. While Innocent II. was laboring to enforce his new doctrine that ordination and religious vows were destructive of marriage, St. Bernard, the ascetic reformer of monachism and the foremost ecclesiastic of his day, was thundering against the revival of Manichæism. The heresies of the Albigenses respecting marriage were to be combated, and, in performing this duty, he pointed out with startling vigor the evils to the church and to mankind of the attempt to enforce a purity incompatible with human nature. Deprive the church of honorable marriage, he exclaimed, and you fill her with concubinage, incest, and all manner of nameless vice and uncleanness.⁸²⁵ It was still an age of faith; and while earnest men like St. Bernard could readily anticipate the evils attendant upon the asceticism of heretics, they could yet persuade themselves, as the Council of Trent subsequently expressed it, that God would not deny the gift of chastity to those who rightly sought it in the bosom of the true church—though St. Bernard himself confessed that crimes which he dared not even to name commonly followed after the fornication, adultery, and incest which specially characterized innumerable ministers of Christ.⁸²⁶ It remains for us to see what was the success of the attempt thus deliberately to tempt the Lord.

It is somewhat significant that when, in France, the rule of celibacy was completely restored, strict churchmen should have found it necessary also to revive the hideously suggestive restriction which denied to the priest the society of his mother or of his sister. Even in the profoundest barbarism of the tenth century, or the unbridled license of the eleventh; even when Damiani descanted upon the disorders of his contemporaries with all the cynicism of the most exalted asceticism, horrors such as these are not alluded to. It is reserved for the advancement of the thirteenth century and the enforcement of celibacy to show us how outraged human nature may revenge itself and protest against the shackles imposed by zealous sacerdotalism or unreasoning bigotry. In 1208, Cardinal Guala, Innocent's legate in France, issued an order in which he not only repeated the threadbare prohibitions respecting focariæ and concubines, but commanded that even mothers and other relatives should not be allowed to reside with men in holy orders, the devil being the convenient personage on whom, as usual, was thrown the responsibility of the scandals which were known to

occur frequently under such circumstances.⁸²⁷ That this decree was not allowed to pass into speedy oblivion is shown by a reference to it as still well known and in force a century later, in the statutes of the church of Tréguier.⁸²⁸ And that the necessity for it was not evanescent may be assumed from its repetition in the regulations of the see of Nismes, the date of which is uncertain, but probably attributable to the close of the fourteenth century.⁸²⁹ At the same time, we have evidence that Cardinal Guala's efforts were productive of little effect. Four years later, in 1212, we find Innocent formally authorizing the prelates of France mercifully to pardon those who had been excommunicated under Guala's rules, with the suggestive proviso that the power thus conferred was not to be used for the purpose of extorting unhallowed gains.⁸³⁰ Still more significant is the fact that in the same year Innocent dispatched another legate, Cardinal Robert, duly commissioned to renew the endless task of purifying the Gallican church. Guala's efforts would seem to have already passed into oblivion, for in a council which Cardinal Robert held in Paris, he gravely promulgated a canon forbidding the priesthood from keeping their concubines so openly as to give rise to scandal, and threatening the recalcitrants with excommunication if they should persist in retaining their improper consorts for forty days after receiving notice.⁸³¹ That monachism was no less productive of sin in the depraved moral atmosphere of the age is rendered evident by other canons of the same council, which prohibit both monks and nuns from sleeping two in a bed, with the avowed object of repressing crimes against nature.⁸³² It may well be asked what was the value of the continence aimed at in monastic vows when the whole body of the monastic orders was the subject of such degrading regulations as these.

The clergy of France were not exceptional, and, unfortunately, there can be no denial of the fact that notorious and undisguised illicit unions, or still more debasing secret licentiousness, was a universal and pervading vice of the church throughout Christendom. Its traces amid all the ecclesiastical legislation of the thirteenth, fourteenth, and fifteenth centuries are too broad and deep to be called into question, and if no evidence remained except the constant and unavailing efforts to repress it, that alone would be sufficient. National and local synods, pastoral epistles, statutes of churches, all the records of ecclesiastical discipline are full of it. Now deploring and now threatening, exhausting ingenuity in devising new regulations and more

effective punishments, the prelates of those ages found themselves involved in a task as endless and as bootless as that of the Danaidæ. Occasionally, indeed, it is lost sight of momentarily, when the exactions and usurpations of the laity, or the gradual extension of secular jurisdiction monopolized the attention of those who were bound to defend the privileges of their class; but, with these rare exceptions, it may be asserted as a general truth that scarcely a synod met, or a body of laws was drawn up to govern some local church, in which the subject did not receive a prominent position and careful consideration. It would be wearisome and unprofitable to recapitulate here the details of this fruitless iteration. Without by any means exhausting the almost limitless materials for investigation, I have collected a formidable mass of references upon the subject, but an examination of them shows so little of novelty and so constant a recurrence to the starting-point, that no new principles can be evolved from them, and their only interest lies in their universality, and in demonstrating how resultless was the unceasing effort to remove the uneffaceable plague-spot.

Spasmodic efforts, it is true, occasionally wrought a temporary improvement, as when Alexander IV., in 1259, proclaimed to the world that licentious ecclesiastics were the cause of all the evils under which the church was groaning, for through them the name of God was blasphemed throughout the world, the sacraments were polluted, the Catholic religion lost the reverence of the faithful, the people were deprived of the benefits of divine service, the substance of the church was dissipated, the Word of God was defiled by their impure lips, heretics were encouraged in their opposition, oppressors were emboldened to persecution, and the sacrilegious were able to expose the whole church to mockery and contempt. To alleviate these troubles, he not only ordered the prelates of Christendom to prosecute all offences of this nature with the utmost severity, but, recognizing his own court as an obstacle to reform, he surrendered his appellate jurisdiction in such cases, and forbade all appeals to Rome.⁸³³ His earnestness bore some fruit, and many prelates were stimulated to reform their flocks, causing large numbers of ecclesiastics to be expelled. A contemporary rhymester, Adam de la Halle (better known perhaps as Le Bossu d'Arras), thus alludes to the effects of the Bull:—

“Et chascuns le pape encosa
Quant tant de bons clers desposa.—
—Romme a bien le tierche partie
Des clers fais sers et amatis.”⁸³⁴

As in all similar attempts, however, the results were but transitory. Ferry, Bishop of Orleans, would scarce have been murdered, in 1299, by a knight whose daughter he had seduced, had the father felt that there was any chance of punishing the criminal by having the canons enforced against him.⁸³⁵

In the confessed nullity of penal legislation it was natural for the church to have recourse to her supernatural armory, and accordingly we have ample store of legends framed with the hope of frightening by spiritual terrors those who were indurated to canon and decretal. The dead concubine of a priest was seen chased by infernal demons, and a knight who sought to protect her had a handful of hair left in his grasp by her mad terror; and the reality of the awful scene was verified on opening her tomb and finding her tresses deficient. So a nun who had yielded to temptation and had sought to conceal her frailty by murdering her child, dying unconfessed, was seen wandering hopelessly with a burning infant clasped to her bosom, which she proclaimed was to be her torment throughout eternity.⁸³⁶ It is no wonder that the well-meant ingenuity which devised these tales met with slender reward, and that the threat of post-mortem punishment was as powerless as that of temporal penalties, for these tales were counterbalanced by other superstitions, such as that which taught that the most sinful, even among laymen, could obtain eternal salvation by the simple expedient of enveloping himself in a monastic habit on his death-bed. The Benedictines had well-authenticated cases in plenty where the most vicious of men, by adopting this plan, were rescued by St. Benedict himself from the hands of demons conducting them to eternal punishment, in spite of Satan's complaints that he was defrauded of his rights.⁸³⁷ The Franciscans contended with the Benedictines as to the efficacy of their respective patrons, and related with pride that St. Francis visited purgatory every year and carried with him to heaven the souls of his followers—a general plan of salvation which gave his vestments a decided superiority over those of the

older order. As the practice became more common, it was recognized as equally dangerous to the welfare of the faithful and to the revenues of the church, and was condemned as a pernicious error.⁸³⁸

So open and avowed was the shame of the church that the Neapolitan code, promulgated about 1231 by the enlightened Frederic II., absolutely interfered to give a quasi legitimacy to the children of ecclesiastics, and removed, to a certain extent, their disability of inheritance. The imperial officials were ordered to assign appropriate shares in parental estates to such children, notwithstanding their illegitimacy, conditioned on the payment of an annual tax to the imperial court; and parents were not allowed to alienate their property to the prejudice of such children, any more than in cases of the offspring of lawful wedlock.⁸³⁹ The numbers and influence of the class thus protected must indeed have been great to induce such interference in their favor.

We have already seen ecclesiastical authority for the assertion that in the Spanish Peninsula the children sprung from such illicit connections rivalled in numbers the offspring of the laity. That they were numerous elsewhere may be presumed when we see Innocent IV., in 1248, forced to grant to the province of Livonia the privilege of having them eligible to holy orders, except when born of parents involved in monastic vows,⁸⁴⁰ for necessity alone could excuse so flagrant a departure from the canons enunciated during the preceding two centuries. A similar conclusion is deducible from the fact that in the municipal code in force throughout Northern Germany during the thirteenth and fourteenth centuries, they were deemed of sufficient importance to be entitled to a separate place in the classification of *wer-gilds*, or blood-moneys; while the aim of the lawgiver to stigmatize them is manifested by his placing them below the peasant, deeming them superior only to the juggler;⁸⁴¹ and that this was not a provision of transient force is clear from the commentary upon it in a body of law dating from the end of the fourteenth century.⁸⁴² Nor is the evidence less convincing which may be drawn from the use of the old German word *pfaffenkind*, or priest's son, which became generally used as equivalent to bastard.⁸⁴³ It would not,

indeed, be difficult to understand the numbers of this class of the population if ecclesiastics in general followed the example of Henry III., Bishop of Liège, whose natural children amounted to no less than sixty-five.⁸⁴⁴

The direct encouragement thus given to illicit connections, by providing for the children sprung from them, neutralized one of the principal modes by which the church endeavored to suppress them. The innumerable canons issued during this period, forbidding and pronouncing null and void all testamentary provisions in favor of concubines and descendants, prove not only how much stress was laid upon this as an efficient means of repression, but also how little endeavor was made by the guilty parties to conceal their sin. As all testaments came within the sphere of ecclesiastical jurisdiction, it would seem that there should have been no difficulty in enforcing regulations of this kind, yet their constant repetition proves either that those who were intrusted with their execution were habitually remiss, or else that the popular feelings were in favor of the unfortunates, and interfered with the efficacy of the laws.

A single instance, out of many that might be cited, will illustrate this. In 1225 the Cardinal-legate Conrad held, at Mainz, a national council of the German empire, of which one of the canons declared that, in order to abolish the custom of ecclesiastics leaving to their concubines and children the fruits of their benefices, not only should such legacies be void, but those guilty of the attempt should lie unburied, all who endeavored to enforce such testaments should be anathematized, and the church where it was permitted should lie under an interdict as long as the wrong was permitted.⁸⁴⁵ The terrible rigor of these provisions shows how deep seated was the evil aimed at; nor were they uncalled for when we see a will, executed in 1218 by no less a personage than Gotfrid, Archdeacon of Wurzburg, in which he leaves legacies to the children whom he confesses to have been born in sin, and of whom he expects his relatives to take charge.⁸⁴⁶ Had any earnest attempt been made to enforce the canons of the Legate, they would have been amply sufficient to eradicate the evil; yet their utter inefficiency is demonstrated by the council of Fritzlar in 1246, and that of Cologne in 1260. The former of these was held by the Archbishop of Mainz; it has no canons directed against concubinage, which was as public as ever, but it deplores the dilapidation of the temporalities of

the church by the testamentary provisions of priests in favor of their guilty partners and children, and it repeats, with additional emphasis, the regulations of 1225.⁸⁴⁷ The latter renews the complaint that priests not only continue their evil courses throughout life, but are not ashamed, on their death-beds, to leave to their children the patrimony of Christ; and another provision is equally significant in forbidding priests to be present at the marriages of their children, or that such marriages should be solemnized with pomp and ostentation.⁸⁴⁸ The following year another council, held at Mainz, repeated the prohibition as to the diversion of church property to the consorts and natural children of priests;⁸⁴⁹ while that regarding the solemnization of their children's marriages was renewed by the synod of Olmutz in 1342.⁸⁵⁰ In 1416 the synod of Breslau deplored that the old canons were forgotten and despised, and that priests were not ashamed to bequeath to their bastards accumulations of property which would form fit portions for lofty nobles.⁸⁵¹ How thoroughly in fact it was deemed a matter of course for the children of ecclesiastics to marry well and to have good dowries, is to be seen in Chaucer's description of the wife of "deinous Simekin", the proud miller of Trompington:—

"A wif he hadde, comen of noble kin;
The person of the toun hire father was.
With hire he yaf ful many a panne of bras,
For that Simkin shuld in his blood allie.
She was yfostered in a nonnerie." (The Reves Tale.)

As time wore on, and the clergy, despite the innumerable admonitions and threats which were everywhere showered upon them, persisted in retaining their female companions, they appear, in some places, to have gradually assumed the privilege as a matter of right; and, what is even more remarkable, they seem to have had a certain measure of success in the assumption. In 1284 the Papal Legate, Gerard Bishop of Sabina, at the Council of Amalfi, renewed and strengthened the decretals of Alexander III. respecting the concubinary priests of the Neapolitan provinces, ordering the ejection of all who should not separate from their partners within a month, suspending all prelates who should neglect to enforce the rule, and fining heavily those who, as in so many other places, made the frailties of their subordinates a source of filthy gain.⁸⁵² The severity of these provisions was

as unsuccessful as usual, and at length the secular power endeavored to come to the assistance of the ecclesiastical authorities. The pious Charles the Lame of Naples, whose close alliance with Rome rendered him eager in everything that would gratify the head of the church, about the year 1300 imposed a heavy fine on the concubines of priests if they persisted in their sin for a year after excommunication. This law, like so many similar ones, soon fell into desuetude, but in 1317, under his son Robert the Good, the justiciary of the Principato Citra undertook to put it into execution. In the diocese of Marsico the clergy openly resisted these proceedings, boldly laid their complaints before the king, and were so energetic that Robert was obliged to issue an ordinance directing the discontinuance of all processes before the lay tribunals, and granting that the concubines should be left to the care of the ecclesiastical courts alone. These women thus, by reason of their sinful courses, came to be invested with a quasi-ecclesiastical character, and to enjoy the dearly prized immunities attached to that position, at a time when the church was vigorously striving to uphold and extend the privileges which the civil lawyers were systematically laboring to undermine. Nor was the pretension thus advanced suffered to lapse. Towards the close of the same century, Carlo Malatesta of Rimini applied to Ancarano, a celebrated doctor of canon and civil law (“*juris canonici speculum et civilis anchora*”), to know whether he could impose penalties on the concubines of priests, and the learned jurist replied decidedly in the negative; while other legal authorities have not hesitated to state that such women are fully entitled to immunity from secular jurisdiction, as belonging to the families of clerks—*de familia clericorum*.⁸⁵³ When a premium was thus offered for sin, and the mistresses of priests—like the *maîtresses-en-titre* of the Bourbons—acquired a certain honorable position among their fellows from the mere fact of their ministering to the unhallowed lusts of their pastors, it is not to be wondered at if such connections multiplied and flourished, and if the humble laity came to regard them as an established institution.

Robert of Naples was not the only potentate who found an organized resistance to his well-meant endeavors to restore discipline. When, in 1410, the stout William, Bishop-elect of Paderborn, had triumphed with fire and sword over his powerful foes, the Archbishop of Cologne and the Count of Cleves, he turned his energies to the reformation of the dissolute morals of

his monks. They positively refused to submit to the ejection of their women from the monasteries, and he at length found the task too impracticable even for his warlike temper. For seven long years the quarrel lasted, legal proceedings being varied by attempts at poison on the one side, and reckless devastations by the episcopal troops on the other, until the prelate, worn out by the stubbornness of his flock, was obliged to give way.⁸⁵⁴

Equal success waited on the resistance of the Swiss clergy when, in 1230, the civil authorities of Zurich sacrilegiously ordered them to dismiss their women. They resolutely replied that they were flesh and blood, unequal to the task of living like angels, and unable to attend to the kitchen and other household duties. The townsmen entered into a league against them, and succeeded in driving away some of the sacerdotal consorts, when the Bishop of Constance and his chapter, allowing perhaps the pride of the churchman to get the better of ascetic zeal, interfered with a threat of excommunication on all who should presume to intervene in a matter which related specially to the church. He absolved the leaguers from the oaths with which they were mutually bound, and thus restored security to the priestly households. About the same time Gregory IX. appointed a certain Boniface to the see of Lausanne. On his installation, the new bishop commenced with ardor to enforce the canons, but the clergy conspired against his life, and were so nearly successful that he incontinently fled, and never ventured to return.⁸⁵⁵

If the irregular though permanent connections which everywhere prevailed had been the only result of the prohibition of marriage, there might perhaps have been little practical evil flowing from it, except to the church itself and to its guilty members. When the desires of man, however, are once tempted to seek through unlawful means the relief denied to them by artificial rules, it is not easy to set bounds to the unbridled passions which, irritated by the fruitless effort at repression, are no longer restrained by a law which has been broken or a conscience which has lost its power. The records of the Middle Ages are accordingly full of the evidences that indiscriminate license of the worst kind prevailed throughout every rank of the hierarchy.

Even supposing that this fearful immorality were not attributable to the immutable laws of nature revenging themselves for their attempted

violation, it could readily be explained by the example set by the central head. Scarcely had the efforts of Nicholas and Gregory put an end to sacerdotal marriage in Rome when the morals of the Roman clergy became a disgrace to Christendom. How little the results of the reform corresponded with the hopes of the zealous puritans who had brought it about may be gathered from the martyrdom of a certain Arnolfo, who, under the pontificate of Honorius II., preached vehemently against the scandals and immorality of the ecclesiastics of the apostolic city. They succeeded in making away with him, notwithstanding the protection of Honorius, and the veneration of the nobles and people who regarded him as a prophet.⁸⁵⁶ When such was the condition of clerical virtue, we can scarcely wonder that sufficient suffrages were given in 1130 by the sacred college to Cardinal Pier-Leone to afford him a plausible claim to the papacy, although he was notoriously stained with the foulest crimes. Apparently his children by his sister Tropea, and his carrying about with him a concubine when travelling in the capacity of papal legate, had not proved a bar to his elevation in the church, nor to his employment in the most conspicuous and important affairs.⁸⁵⁷ A severer satire on the standard of ecclesiastical morality could scarcely be imagined than the inculcation by such a man, in his capacity as pope, of the canons requiring the separation of priests from their wives, on the plea of the spotless purity required for the service of the altar.⁸⁵⁸

What were the influences of the papal court in the next century may be gathered from the speech which Cardinal Hugo made to the Lyonese, on the occasion of the departure of Innocent IV. in 1251 from their city, after a residence of eight years—"Friends, since our arrival here, we have done much for your city. When we came, we found here three or four brothels. We leave behind us but one. We must own, however, that it extends without interruption from the eastern to the western gate"—the crude cynicism of which greatly disconcerted the Lyonese ladies present.⁸⁵⁹ Robert Grosseteste, Bishop of Lincoln, therefore only reflected the popular conviction when, on his deathbed in 1253, inveighing against the corruption of the papal court, he applied to it the lines—

Ejus avaritiæ totus non sufficit orbis,
Ejus luxuriæ meretrix non sufficit omnis.⁸⁶⁰

A hundred years later saw the popes again in France. For forty years they had bestowed on Avignon all the benefits, moral and spiritual, arising from the presence of the Vicegerent of Christ, when Petrarch recorded, for the benefit of friends whom he feared to compromise by naming, the impressions produced by his long residence there in the household of a leading dignitary of the church. Language seems too weak to express his abhorrence of that third Babylon, that Hell upon Earth, which could furnish no Noah, no Deucalion to survive the deluge that alone could cleanse its filth—and yet he intimates that fear compels him to restrain the full expression of his feelings. Chastity was a reproach and licentiousness a virtue. The aged prelates surpassed their younger brethren in wickedness as in years, apparently considering that age conferred upon them the license to do that from which even youthful libertines shrank; while the vilest crimes were the pastimes of pontifical ease.⁸⁶¹ Juvenal and Brantôme can suggest nothing more shameless or more foul. Nor was the tone of morality heightened when, fifty years later, Nicholas de Clemanges takes up the tale. His brief reference to the adulteries and vileness with which the cardinals befouled the papal court, and the obscenities in which their families imitated their example, shows that the matter was so generally understood that it needed no details.⁸⁶²

The Great Schism perhaps could scarcely be expected to improve the morals of the papal court. Yet when the church universal, to close that weary quarrel, agreed to receive one of the competitors as its head, surely it might have selected, as the visible representative of God upon earth, some more worthy embodiment of humanity than Balthazar Cossa, who, as John XXIII., is alone, of the three competitors, recognized in the list of popes. When the great council of Constance in 1415 adopted the awful expedient of trying, condemning, and deposing a pope, the catalogue of crimes—notorious incest, adultery, defilement, homicide, and atheism—of which the fathers formally accused him, and which he confessed without defending himself,⁸⁶³ is fearfully suggestive of the corruption which could not only spawn such a monster, but could elevate him to the highest place in the hierarchy, and present him for the veneration of Christendom. It affords a curious insight into the notions of morality prevalent in the Papal court to observe that when he had as chamberlain of Boniface IX., scandalized Rome by openly keeping his brother's wife as a concubine, the remedy

adopted for the disorder was to create him Cardinal and send him as legate to Bologna, while the lady was conveyed to her husband in Naples. The result of this course of procedure was that during his sway at Bologna two hundred maids, matrons, and widows, including a few nuns, fell victims to his brutal lust.⁸⁶⁴ So obtuse, in fact, were the sensibilities of the age, that after his release from the prison to which he had been consigned by the fathers of Constance, his successor, Martin V. consoled him in his degradation by creating him Dean of the Sacred College.

If the Councils of Constance and of Bâle worked some apparent reform in the outward morality of the papacy, their effect soon passed away. The latter half of the fifteenth century scarcely saw a supreme pontiff without the visible evidences of human frailty around him, the unblushing acknowledgment of which is the fittest commentary on the tone of clerical morality. Sixtus IV. was believed to embody the utmost possible concentration of human wickedness,⁸⁶⁵ until Borgia came to divide with him the preëminence of evil. The success of Innocent VIII. in increasing the population of Rome was a favorite topic with the wits of the day;⁸⁶⁶ but the epitaph which declared that filth, gluttony, avarice, and sloth lay buried in his tomb⁸⁶⁷ did not anticipate the immediate resurrection of the worst of those vices in the person of his successor Alexander VI. If the crimes of Borgia were foul, their number and historical importance have rendered them so well known that I may be spared more than a passing allusion to a career which has made his name synonymous with all that can degrade man to a level at once with the demon and the brute.⁸⁶⁸

Such men as Alexander can hardly be deemed exceptional, save inasmuch as brilliant talents and native force of character might enable them to excel their contemporaries in guilt as in ambition. They were the natural product of a system which for four centuries had bent the unremitting energies of the church to securing temporal power and wealth, with exemption from the duties and liabilities of the citizen. Such were the fruits of the successful theocracy of Hildebrand, which, intrusting irresponsible authority to fallible humanity, came to regard ecclesiastical aggrandizement as a full atonement for all and every crime. That the infection had spread even to the ultimate fibres of the establishment can readily be believed, for the supremacy of the Papal authority gave it the

power of controlling the character of every parish in Christendom. We shall see hereafter, as we have already seen, how that power was habitually abused, and how the nullification of the canons was a recognized source of income to the successor of St. Peter and his needy officials. The evil was one that had long been recognized and complained of since Hincmar of Rheims so emphatically denounced it. St. Bernard declared that Rome was the acknowledged refuge of all ambitious and licentious men who desired either promotion or to retain the preferment which they had forfeited.⁸⁶⁹ In the fiery zeal with which he warns his protégé, Eugenius III., not to be deceived by such suitors, he shows us how useless were local efforts at reformation when they could be so readily set aside and rendered nugatory by the venal influences at work in the Apostolic court. But the abuse was too profitable to be suppressed, and it continued until after the Reformation had shown the necessity of some decent reticence in the exercise of powers no longer regarded as wholly irresponsible.

My object has been to consider the subject of ascetic celibacy as a portion simply of ecclesiastical history, and yet I cannot well conclude this section without a hasty glance at its influence on society at large. That influence, as far as the secular clergy were its instruments, was evidently one of almost unmixed evil. The parish priest, if honestly ascetic, was thereby deprived of the wholesome common bond of human affections and sympathies, and was rendered less efficient for good in consoling the sorrows and aiding the struggles of his flock. If, on the other hand, he was a hypocrite, or if he had found too late that the burden he had assumed was too heavy for his strength, the denial of the natural institution of marriage was the source of immeasurable corruption to those intrusted to his charge, who looked up to him not only as a spiritual director, but as a superior being who could absolve them from sin, and whose partnership in guilt was in itself an absolution.⁸⁷⁰ That such was the condition of innumerable parishes throughout Europe, there is unfortunately no reason to doubt, and all of the severer churchmen of the period, in attacking the vices of the clergy, give us to understand that either their example led the laity into evil, or that their immorality rendered it impossible for them to correct the vices of the

flocks. As Cæsarius of Heisterbach says, "Since the priesthood mostly lead evil and incontinent lives, they soothe rather than excite the consciences of the worldly."⁸⁷¹ The incongruity of this may perhaps explain to some extent the anomaly of the practical grossness of the Middle Ages, combined with the theoretical ascetic purity which was held out as the duty of every Christian who desired to be acceptable to his Creator.

The curious contrasts and confusion of the standard of morality, arising from this striving against nature, are well illustrated by a homily of the thirteenth century against marriage, addressed to youthful nuns, which exhausts all the arguments that the ingenuity of the writer could suggest. On the one hand he appeals to the pride which could be so well gratified by the exalted state of virginity; he pictures the superior bliss vouchsafed in heaven to those who were stained by no earthly contamination, confidently promising them a higher rank and more direct communing with the Father than would be bestowed on the married and the widowed; he rapturously dwells upon the inward peace, the holy ecstasy which are the portion of those who, wedded to Christ, keep pure their mystic marriage vow; and his ascetic fervor exhausts itself in depicting the spiritual delights of a life of religious seclusion. Mingled inextricably with these exalted visions of beatific mysticism, he presents in startling contrasts the retribution awaiting the sin of licentiousness and the evils inseparable from a life of domestic marriage. With a crude nastiness that is almost inconceivable, he minutely describes all the discomforts and suffering, physical and mental, attendant upon wifehood and maternity, entering into every detail and gloating over every revolting circumstance that his prurient imagination can suggest. The license of Shakespeare, the plain speaking of Chaucer, Boccaccio, and the mediæval trouvères show us what our ancestors were, and what they were is easily explained when such a medley of mysticism and grossness could be poured into the pure ears of innocent young girls by their spiritual director.⁸⁷²

Thus, with the fearful immorality of which we have seen such ample evidence, the church still presented the same exaggerated asceticism as her guiding principle. The rhapsodies of St. John Chrysostom and St. Aldhelm were rivalled in an age when the priest was forbidden to live in the same house as his mother, because experience had shown the danger of such propinquity. How the estimate placed on purity increased as virtue

diminished is fairly illustrated in a characteristic legend which was very popular with ecclesiastical teachers in the thirteenth and fourteenth centuries. It relates how a pagan entering a heathen temple saw Satan seated in state on a throne. One of the princes of Hell entered, worshipped his master, and proceeded to give an account of his work. For thirty days he had been engaged in provoking a war, wherein many battles had been fought with heavy slaughter. Satan sharply reproached him with accomplishing so little in the time, and ordered him to be severely punished. Another then approached the throne and reported that he had devoted twenty days to raising tempests at sea, whereby navies had been wrecked and multitudes drowned. He was likewise reprovved and punished for wasting his time. A third had for ten days been engaged in troubling the wedding festivity of a city, causing strife and murder, and he was similarly treated. A fourth then entered and recounted how for forty years he had been occupied in tempting a hermit to yield to fleshly desire, and how he had that night succeeded. Then Satan arose and placed his crown on the head of the new-comer, seating him on the throne as one who had worthily achieved a signal triumph. The spectator, thus seeing the high estimate placed by the Evil One on ascetic chastity, was immediately converted, and forthwith became a monk.⁸⁷³

While thus attaching so fanciful a holiness to virginity, the church came practically to erect a most singular standard of morality, the influence of which could but be most deplorable on the mass of the laity. In the earlier days of celibacy, the rule was regarded by the severer ecclesiastics as simply an expression of the necessity of purity in the minister of God. Theophilus of Alexandria, in the fifth century, decided that a man, who as lector had been punished for unchastity and had subsequently risen to the priesthood, must be expelled on account of his previous sin.⁸⁷⁴ We have seen, however, how, when celibacy was revived under Damiani and Hildebrand, the question of immorality virtually disappeared, and the essential point became, not that a priest should be chaste, but that he should be unmarried, and this was finally adopted as the recognized law of the church. In 1213 the Archbishop of Lunden enquired of Innocent III. whether a man who had had two concubines was ineligible to orders as a *digamus*, and the pontiff could only reply that no matter how many concubines a man might have, either at one time or in succession, he did not

incur the disability of digamy.⁸⁷⁵ When such was the result of seven centuries of assiduous sacerdotalism in a church which was daily growing in authority; when the people thus saw that sexual excesses were no bar to ecclesiastical preferment in that church which made extravagant pretensions to purity; when the strict rules which forbade ordination to a layman who had married a widow, were relaxed in favor of those who were stained with notorious impurity, it is no wonder that the popular perceptions of morality became blunted, and that the laity did not deny themselves the indulgences which they saw tacitly allowed to their spiritual guides.

Nor was it only in stimulating this general laxity of principle that the influence of the church was disastrous. The personal evil wrought by a dissolute priesthood was a wide-spreading contagion. The abuse of the awful authority given by the altar and the confessional, was a subject of sorrowful and indignant denunciation in too many synods for a reasonable doubt to be entertained of its frequency or of the corruption which it spread through innumerable parishes and nunneries.⁸⁷⁶ The almost entire practical immunity with which these and similar scandals were perpetrated led to an undisguised and cynical profligacy which the severer churchmen acknowledged to exercise a most deleterious influence on the morals of the laity, who thus saw the exemplars of evil in those who should have been their patterns of virtue.⁸⁷⁷ In his bull of 1259, Alexander IV. does not hesitate to declare that the people, instead of being reformed, are absolutely corrupted by their pastors.⁸⁷⁸ Thomas of Cantimpré, one of the early lights of the Dominican order, indeed, is authority for the legend which represents the devil as thanking the prelates of the church for conducting all Christendom to hell;⁸⁷⁹ and the conviction which thus expressed itself is justified by the reproach of Gregory X., who, in dismissing the second council of Lyons, in 1274, told his assembled dignitaries that they were the ruin of the world.⁸⁸⁰ Unfortunately, his threat to reform them if they did not reform themselves, remained unexecuted, and the complaint was repeated again and again.⁸⁸¹

That this state of things was clearly understood by the laity is only too visibly reflected in contemporary records. When, in 1374, the dancing mania, one of those strange epidemics which afflicted the Middle Ages, broke out through Germany and Flanders, the populace called to mind the

forgotten regulations of Damiani and Hildebrand, and found a ready explanation of the visitation by assuming it to be a consequence of the vitiated baptism of the people by a concubinary priesthood.⁸⁸² Chaucer, with his wide range of observation and shrewd native sense, took a less superstitious, and more practical view of the evil, and in the admirable sermon which forms his “Persone’s Tale” he records the convictions which every pure-minded man must have felt with regard to the demoralizing tendencies of the sacerdotal licentiousness of the time.⁸⁸³

How instinctively, indeed, the popular mind assumed the immorality of the pastor is illustrated by a passage in the earliest French pastoral that has reached us, dating from the latter half of the thirteenth century

WARNIERS. Segneur je sui trop courechies.

GUIOS. Comment?

WARNIERS. Mehalès est agute,
M’amie, et s’a esté dechute;
Car on dist que ch’est de no prestre.

ROGAUS. En non Dieu! Warnier, bien puet estre;
Car ele i aloit trop souvent.

WARNIERS. Hé, las! jou avoie en couvent
De li temprement espouser.

GUIOS. Tu te puès bien trop dolouser,
Biaus très dous amis; ne te caille,
Car ja ne meteras maaille,
Que bien sai, à l’enfant warder.⁸⁸⁴

Those who were heretically disposed were keen to take advantage of a weakness so general and so universally understood. The author of the “Creed of Piers Ploughman” does not hesitate to assert with Gregory X. that the clergy were the corruption of the world—

For falshed of freres
Hath fullich encombred
Manye of this maner men,
And made hem to leven
Her charité and chastité,
And shosen hem to lustes,
And waxen to werly,
And wayven the trewethe,
And leven the love of her God. [885](#)

The widely received feeling on this subject, perhaps, finds its fittest expression in a satire on the mendicant friars, written by a Franciscan novice who became disgusted with the order and turned Wickliffite. The exaggerated purity and mortification of the early followers of the blessed St. Francis had long since yielded to the temptations which attended on the magnificent success of the institution, and the asceticism which had been powerful enough to cause visions of the holy Stigmata degenerated into sloth and crime which took advantage of the opportunities afforded by the privilege to hear confessions. The grosser accusations of the writer are, perhaps, unfit for quotation, but the spirit in which the Franciscan friars were regarded is sufficiently indicated by the following lines:

For when the gode man is fro hame
And the frere comes to oure dame,
He spares, nauther for synne ne shame,
That he ne dos his will.

Ich man that here shal lede his life
That has a faire doghter or a wyfe
Be war that no frer ham shryfe
Nauther loude ne still. [886](#)

When such was the moral condition of the priesthood, and such were the influences which it cast upon the flocks intrusted to its guidance, it is not to

be wondered at if those who deplored so disgraceful a state of things, and whose respect for the canons precluded them from recommending the natural and appropriate remedy of marriage, should regard an organized system of concubinage as a safeguard. However deplorable such an alternative might be in itself, it was surely preferable to the mischief which the unquenched and ungoverned passions of a pastor might inflict upon his parish; and the instances of this were too numerous and too glaring to admit of much hesitation in electing between the two evils. Even Gerson, the leader of mystic ascetics, who recorded his unbounded admiration for the purity of celibacy in his “*Dialogus Naturæ et Sophiæ de Castitate Clericorum*,”⁸⁸⁷ saw and appreciated its practical evils, and had no scruple in recommending concubinage as a preventive, which, though scandalous in itself, might serve to prevent greater scandals.⁸⁸⁸ It therefore requires no great stretch of credulity to believe the assertion of Sleidan that in some of the Swiss Cantons, it was the custom to oblige a new pastor, on entering upon his functions, to select a concubine, as a necessary protection to the virtue of his female parishioners, and to the peace of the families intrusted to his spiritual direction.⁸⁸⁹ Indeed, we have already seen, on the authority of the council of Palencia in 1322, that such a practice was not uncommon in Spain.

In thus reviewing the influences which a nominally celibate clergy exercised over those intrusted to their care, it is perhaps scarcely too much to conclude that they were mainly responsible for the laxity of morals which is a characteristic of mediæval society. No one who has attentively examined the records left to us of that society, can call in question the extreme prevalence of the licentiousness which everywhere infected it. Christianity had arisen as the great reformer of a world utterly corrupt. How earnestly its reform was directed to correcting sexual immorality is visible in the persistence with which the Apostles condemned and forbade a sin that the Gentiles scarcely regarded as a sin. The early church was consequently pure, and its very asceticism is a measure of the energy of its protest against the all-pervading license which surrounded it. Its teachings, as we have seen, remained unchanged. Fornication continued to be a mortal sin, yet the period of its unquestioned domination over the conscience of Europe was the very period in which license among the Teutonic races was most unchecked. A church which, though founded on the Gospel, and

wielding the illimitable power of the Roman hierarchy, could yet allow the feudal principle to extend to the “jus primæ noctis” or “droit de marquette,” and whose ministers in their character of temporal seigneurs could even occasionally claim the disgusting right themselves⁸⁹⁰ was evidently exercising its influence not for good but for evil.

There is no injustice in holding the church responsible for the lax morality of the laity. It had assumed the right to regulate the consciences of men and to make them account for every action and even for every thought. When it promptly caused the burning of those who ventured on any dissidence in doctrinal opinion or in matters of pure speculation, it could not plead lack of authority to control them in practical virtue. Its machinery was all-pervading, and its power autocratic. It had taught that the priest was to be venerated as the representative of God and that his commands were to be implicitly obeyed. It had armed him with the fearful weapon of the confessional, and by authorizing him to grant absolution and to pronounce excommunication, it had delegated to him the keys of heaven and hell. By removing him from the jurisdiction of the secular courts it had proclaimed him as superior to all temporal authority. Through ages of faith the populations had humbly received these teachings and bowed to these assumptions, until they entered into the texture of the daily life of every man. While thus grasping supremacy and using it to the utmost possibility of worldly advantage, the church therefore could not absolve itself from the responsibilities inseparably connected with power, and chief among these responsibilities is to be numbered the moral training of the nations thus subjected to its will. While the corruption of the teachers thus had necessarily entailed the corruption of the taught, it is not too much to say that the tireless energy devoted to the acquisition and maintenance of power, privileges, and wealth, if properly directed, under all the advantages of the situation, would have sufficed to render mediæval society the purest that the world has ever seen.

That the contrary was notoriously the case resulted naturally from the fact that the church, after the long struggle which finally left it supreme over Europe, contented itself with the worldly advantages derivable from the wealth and authority which surpassed its wildest dreams. If, then, it could secure a verbal submission to its doctrines of purity, it was willing to issue countless commands of chastity and to tacitly connive at their

perpetual infraction. The taint of corruption infected equally its own ministers and the peoples committed to their charge, and the sacerdotal theory gradually came to regard with more and more indifference obedience to the Gospel in comparison with obedience to man and subservience to the temporal interests of the hierarchy. As absolution and indulgence grew to be a marketable commodity, it even became the interest of the traders in salvation to have a brisk demand for their wares. When infraction of the Divine precepts could be redeemed with a few pence or with the performance of ceremonies that had lost their significance, it is not surprising if priest and people at length were led to look upon the violation of the Decalogue with the eye of the merchant and customer rather than with the spirit of the great Lawgiver.^{[891](#)}

The first impulse in the reaction of the sixteenth century was to recur to the Gospel and to interpret its commands in accordance with the immutable principles of human conscience rather than with the cunningly devised subtleties of scholastic theology. The reformers thus stood face to face with God, and, needing no intermediary to negotiate with Him, vice and sin reappeared to them in all their hideous deformity and attended with all their inevitable consequences.^{[892](#)} For the first time since primitive Christianity was absorbed in sacerdotalism, were the doctrines of morality enforced as the primal laws of man's being and of human society, and the world was made to see, by the energetic action of Puritan sects, that virtue was possible as the rule of life in large communities. We may smile at the eccentricities of Puritanism, but the rescue of modern civilization from the long heritage of ancient vice, and the decency which characterizes modern society, may fairly be attributed to the force of that fierce reaction against the splendid corruptions of the mediæval church.

In considering, however, the influence of the regular clergy, or monastic orders, we find a more complex array of motives and results. The earlier foundations of the West, as we have seen, to a great extent neutralized the inherent selfishness of monachism by the regulations which prescribed a due proportion of labor to be mingled with prayer. The duty which man owes to the world was to some extent recognized as not incompatible with

the duty which he owed to his God, and civilization has had few more efficient instruments than the self-denying work of the earnest men who, from Columba to Adalbert, sowed the seeds of Christianity and culture among the frontier lands of Christendom. When discipline such as these men inculcated could be enforced, the benefits of monachism far outweighed its evils. All the peaceful arts, from agriculture to music, owed to the Benedictines their preservation or their advancement, and it would be difficult to estimate exactly the influence for good which resulted from institutions to which the thoughtful and studious could safely retire from a turbulent and barbarous world. These institutions, however, from their own inherent defects, carried in them the germs of corruption. The claims to supereminent sanctity, which secured for them the privileges of asylums, were inevitably used as means for the accumulation of wealth wrung from the fears or superstition of the sinner. With wealth came the abandonment of labor; and idleness and luxury were the prolific parents of license. True-hearted men were not wanting to combat the irrepressible evil. From Chrodegang to St. Vincent de Paul, the history of monachism is full of illustrious names of those who devoted themselves to the mission of reforming abuses and restoring the ideal of the perfect monk, dead to the seductions of the world, and living only to do the work which he deems most acceptable to God. Many of these mistakenly assumed that exaggerated mortification was the only gateway to salvation, and the only cure for the frightful immorality which pervaded so many monastic establishments. Others, with a truer insight into the living principles of Christianity, sought to turn the enthusiasm of their disciples to account in works of perennial mercy and charity, at a period when no other organizations existed for the succor of the helpless and miserable.

Yet when we reflect how large a proportion of the wealth and intellect of Europe was absorbed in the religious houses, it will be seen that the system was a most cumbrous and imperfect one, which gave but a slender return for the magnitude of the means which it involved. Still, it was the only system existing, and possibly the only one which could exist in so rude a structure of society, individualized to a degree which destroyed all sense of public responsibility, and precluded all idea of a state created for the well-being of its component parts. Thus, the monastery became the shelter of the wayfarer, and the dispenser of alms to the needy. It was the principal school

of the poor and humble; and while the Universities of Oxford and Paris were devoting their energies to unprofitable dialectics and the subtle disputations of Aristotelian logic, in multitudes of abbey libraries quiet monks were multiplying priceless manuscripts, and preserving to after ages the treasures of the past. When fanciful asceticism did not forbid the healing of the sick, monks labored fearlessly in hospitals and pest-houses, and distributed among the many the benefactions which they had wrung from the late repentance of the few. As time wore on, even the religious teaching of the public passed almost exclusively into their hands, and to the followers of Dominic and Francis of Assisi the people owed such insight as they could obtain into the promises of the gospel. If the enthusiasm which prompted labors so strenuous did not shrink from lighting the fires of persecution, we must remember that religious zeal, accompanied by irresponsible power, has one invariable history.

While thus, in various ways, the ascetic spirit led to institutions which promoted the progress of civilization, in others it necessarily had a directly opposite tendency. Nothing contributes more strongly to the extension of knowledge and of culture than the striving for material comfort and individual advancement in worldly well-being. Luxury and ambition thus have their uses in stimulating the inquiring and inventive faculties of man, in rendering the forces of nature subservient to our use, and in softening the rugged asperities which are incompatible with the regular administration of law. Every instinct of human nature has its destined purpose in life, and the perfect man is to be found in the proportionate cultivation of each element of his character, not in the exaggerated development of those faculties which are deemed primarily good, nor in the entire repression of those which are evil only when their prominence destroys the balance of the whole. The ascetic selected for eradication one group of human aspirations, which was the most useful under proper discipline, and not perhaps the worst even in its ordinary excess. Only those who have studied the varied aspects of mediæval society can rightly estimate the enormous influence which the church possessed, in those ages of faith, to mould the average habits of thought in any desired direction. It can readily be seen that if the tireless preaching of the vanity of human things and the beatitude of mortification occasionally produced such extravagances as those of the flagellants, the spirit which now and then burst forth in such eruption must

have been an element of no little power in the forces which governed society at large, and must have exercised a most depressing influence in restraining the general advance of civilization. Not only did it thus more or less weigh down the efforts of almost every man, but the ardent minds that would otherwise have been leaders in the race of progress were the ones most likely, under the pervading spirit of the age, to be the foremost in maceration and self-denial; while those who would not yield to the seduction were either silenced or wasted their wisdom on a generation which believed too much to believe in them. When idleness was holy, earnest workers had little chance.

The effect of monastic asceticism in moulding the character may be seen in the admiring picture drawn by a disciple in the fifteenth century of a shining light of the Carthusian order in the monastery of Vallis Dei, near Seez in Normandy. He had every virtue, he was an earnest reader and transcriber of MSS., and he practised mortifications even greater than those prescribed by the severe rules of the order. He rarely slept on the couch provided for each brother, but passed his nights in prayer on the steps of the altar. In the hair shirt worn next his skin he cultivated lice and maggots so assiduously that they were often seen crawling over his face, and he scourged himself for every unhallowed wandering thought. He had preserved his virginity to old age, and his life had been passed in the church, yet in his daily confessions he accused himself of every sin possible to man, and he rigorously performed whatever penance was assigned to him. With all this maceration, the flesh would still assert itself, and he was tormented with evil desires which the sharp cords of the discipline failed to subdue. His office of procureur of the abbey required him to make frequent visits on business to the neighboring town, and he never left the gates of his retreat without lamenting and expressing the fear that he should not return to it the same as he left it.⁸⁹³ If we consider what might have been effected by the energies of thousands of men such as this, had those energies not been absorbed in lifelong asceticism, we may conceive in some measure the retardation of human progress wrought by the influence of monachism.

Another result which may fairly be attributed to the ascetic teachings of the church is the slow growth of population during the mediæval period. Notwithstanding the gross and flagrant disregard of the rule, it was impossible to immure in convents men and women by the hundred thousand

during successive generations without retarding greatly the rate of increase of the species. The rudeness of the arts and sciences, war, pestilence and famine were doubtless efficient causes, yet were they less efficient than enforced celibacy. This is evident when we see the rapid rate of growth established on the abrogation or even relaxation of the rule. The suppression of the monastic orders in France followed soon after the reforms by which Joseph II. discouraged them throughout the Austrian empire, and the result is visible in the enormous increase of European population which followed, notwithstanding the fearful destruction of life in the Napoleonic wars. It is calculated that in 1788 Europe numbered 144,561,000 souls, which within fifty years had been augmented to 253,622,000, or about seventy-five per cent. Of late years the birth-rate has decreased in consequence of the severity of conscription in the military monarchies, but the enormous growth in the half-century following the French Revolution is the best commentary on the influences which for so many ages kept the population almost stationary.^{[894](#)}

It required the unbelief of the fifteenth century to give free rein to the rising commercial energies and the craving for material improvement that paved the way for the overthrow of ascetic sacerdotalism. The fearful corruptions of the church, which indirectly caused and accompanied that awakening of the human mind, will be alluded to hereafter when we come to consider the movements leading to the great Protestant Reformation. At present we must turn aside for a moment to consider one or two external developments of the religious activity of the Middle Ages.

XXII.

THE MILITARY ORDERS.

The Military Orders were the natural expression of the singular admixture of religious and warlike enthusiasm, reacting on each other, which produced and was fostered by the Crusades. When bishops considered that they rendered a service acceptable to God in leading vast hosts to slaughter the Paynim, it was an easy transition for soldiers to turn monks, and to consecrate their swords to the bloody work of avenging their Redeemer.

When the Hospitallers—Knights of St. John of Jerusalem, of Rhodes, or of Malta—first emerged from their humble position of ministering to the afflictions of their fellow-pilgrims, and commenced to assume a military organization under Raymond du Puy, about the year 1120, their statutes required the three ordinary monastic vows of poverty, obedience, and chastity.^{[895](#)} In fact, they were at first Benedictines; but when they became numerous enough to form a separate body, they adopted the rule of St. Augustin.

When the rule for the Templars—“*Regula pauperum commilitonum sanctæ civitatis*”—was adopted in 1128, at the council of Troyes, it contained no special injunction to administer a vow of celibacy, but the context shows that such a condition was understood as a matter of course.^{[896](#)} Some little difficulty was evidently experienced at first, since, from the nature of the case, novices had to be trained warriors who must frequently have been bound by family ties, and whose education had not been such as to fit them for the restraints of their new life. It is probable also that the perpetual nature of the obligations assumed was not easy to be enforced upon the fierce members of the brotherhood, for, in 1183, Lucius III., in confirming the privileges of the order, specially commands that no one who enters it shall be allowed to return to the world.^{[897](#)}

The history of these two orders is too well known to require it to be traced minutely here. If, with the growth of their reputation and wealth, the

austere asceticism of their early days was lost, and if luxury and vice took the place of religious enthusiasm and soldierly devotion to the Cross, they but obeyed the universal law which in human institutions is so apt to render corruption the consequence of prosperity. One conclusion may be drawn, however, from the proceedings by which the powerful order of the Temple was extinguished at the commencement of the fourteenth century. Notwithstanding the open and scandalous licentiousness of the order, it is a little singular that the interminable articles of accusation against the members contain no allusion to unchastity, while crimes most fantastic, practices most beastly, and charges most frivolous are heaped upon them in strange confusion.⁸⁹⁸ As the object of those who conducted the prosecution was to excite a popular abhorrence that would justify the purposed spoliation, it is evident that the simple infraction of vows of chastity was regarded as so venial a fault and so much a matter of course that its proof could in no way serve the end of rousing indignation against the accused.

It is somewhat remarkable that the same century which saw the foundation of the orders of the Hospital and Temple also witnessed one which, although bound by the rule of St. Augustin, and subjected to the ordinary vows of obedience, property in common, and inability to return to the world, yet allowed to its members the option of selecting either marriage or celibacy, and even of contracting second marriages. This was the Spanish Order of St. James of the Sword. What we have seen of the want of respect paid by the Spanish church to asceticism may lessen surprise at the founding of an order based upon such regulations, yet it is difficult to understand how so great a violation of established principles could be sanctioned by Alexander III., who confirmed the order in 1175,⁸⁹⁹ or by Innocent III. and Honorius III., who formally approved its privileges.⁹⁰⁰ Perhaps these military vassals of the pope, to whom they were bound in implicit obedience as their head, were too important a source of power and influence to be lightly rejected. Perhaps, also, Honorius III. may have quieted his conscience when, in confirming their charters in 1223, he commanded that their principal care and watchfulness should be devoted to seeing that those who were married preserved conjugal fidelity, and that those who elected a single life maintained inviolable chastity.

The example was one of evil import in the Peninsula. The Council of Valladolid in 1322 felt itself obliged to denounce under severe penalties the practice of dowering children with the possessions of the community, in which the military orders followed the precedent set them by the church.⁹⁰¹ During the universal license of the fifteenth century, when ascetic vows became a mockery, and the profligacy of those who took them exposed all such observances to contempt, the military orders formed no exception to the general shamelessness. In 1429 the council of Tortosa deplored the destruction and waste of the temporal possessions of the religious knights from the general concubinage in which they indulged, and to effect a cure it promulgated regulations of peculiar severity, threatening with a liberal hand the penalties of excommunication and degradation.⁹⁰² These proved as powerless as usual, and not long after a more sensible remedy was adopted by Eugenius IV. when he released the ancient and renowned Order of Calatrava from the obligation of celibacy, for reasons which would have led him to extend the privilege of marriage to the whole church, had the purity of ecclesiastics been truly the object of the rule. He recounts with sorrow the disorderly lives of the knights, and, quoting the text which says that it is better to marry than to burn, he grants the privilege of marriage because he deems it preferable to live with a wife than with a mistress.⁹⁰³ How could he avoid applying his own reasoning to the church in general?

Similar arguments were employed to extend the same privilege to the Orders of Avis and of Jesus Christ, of Portugal. The former was founded in 1147 by Alfonso I., under the Cistercian rule, and chastity was one of its fundamental obligations;⁹⁰⁴ the latter was the continuation of the order of the Temple, which, preserved in Portugal by the humanity of King Dionysius, assumed in the fourteenth century the name of Jesus. Both institutions became incurably corrupted; their preceptories were dens of avowed and scandalous prostitution, and their promiscuous amours filled the kingdom with hate and dissension. When at length, in 1496, King Emanuel applied to Alexander VI. to grant the privilege of marriage, in hopes of reforming the orders, it is interesting to observe how instinctively the minds of men turned to this as the sole efficient remedy for the immorality which all united in attributing to the hopeless attempt to enforce a purity impossible in the existing condition of society. Alexander assented to the request, and bestowed on the orders the right of marriage on the same

conditions as those enjoined on the Knights of St. James of the Sword.⁹⁰⁵ It is true that Osorius doubts whether the benefits of the change were not exceeded by its evils, as he states that it lowered the character of the orders, opened the door to unworthy members, and led to the dissipation of their property.⁹⁰⁶

There was another Portuguese order of a somewhat different character. Twenty years after founding the Knights of Avis, Alfonso I., in 1167, to commemorate his miraculous victory over the Moors at Santarem, instituted the Order of St. Michael. The knights were allowed to marry once; if widowed, they were obliged to embrace celibacy; and the Abbot of Alcobaça, who was the superior of the Order, was empowered to excommunicate them for irregularity of life, to compel them to give up their mistresses. They were moreover bound to perform the same religious exercises as lay brothers of the Cistercians. The Order is interesting as forming a curious link between the secular, religious, and military elements of the period.⁹⁰⁷

During all this, the knights of St. John adhered to their ancient statutes, and endeavored from time to time to reform the profligacy which seemed inseparable from the institution. When the ascetic Antonio Fluviano, who held the grand mastership from 1421 to 1437, promulgated a regulation that any one guilty of public concubinage should receive three warnings, with severe penalties for contumacy,⁹⁰⁸ it suggests a condition of morals by no means creditable to the brethren. So, a century later, the stern Villiers de l'Isle-Adam was forced to declare that any one openly acknowledging an illegitimate child should be forever after incapacitated for office, benefice, or dignity.⁹⁰⁹ What the knights were soon afterwards, the scandalous pages of Brantôme sufficiently attest.

The Marian or Teutonic Order, perhaps the most wealthy and powerful of all, was founded in 1190, and adopted the rule of the Templars as regards its religious government, with that of the Hospitallers to regulate its duties of charity and hospitality. For a full century of its existence it was sorely oppressed with poverty,⁹¹⁰ but at length, when transferred from the Holy Land to Northeastern Germany, it bore a prominent part in Christianizing those regions, and what it won by the sword it retained possession of in its

own right. With wealth came indolence and luxury, and the order became corrupt, as others had been.^{[911](#)} Its history offers nothing of special interest to us until, in 1525, the grand master Albert of Brandenburg went over to Lutheranism with many of his knights, founded the hereditary dukedom of Prussia, and married—of which more hereafter. Those of the order who adhered to Catholicism maintained the organization on the rich possessions which the piety of ages had bestowed upon them throughout Germany, until this worn-out relic of the past disappeared in the convulsions of the Napoleonic wars.

XXIII. THE HERESIES.

Allusion has already been made to the introduction of Manichæism into Western Europe through Bulgaria and Lombardy. Notwithstanding its stern and unrelenting suppression wherever it was discovered during the eleventh and twelfth centuries, its votaries multiplied in secret. The disorders of the clergy, their oppression of the people, and their quarrels with the nobles over their temporal possessions made them many enemies among the laity; and the simplicity of the Manichæan belief, its freedom from aspirations for temporal aggrandizement, and its denunciations of the immorality and grasping avidity of the priesthood, found for it an appreciative audience and made ready converts. Towards the close of the twelfth century the South of France was discovered to be filled with heretics, in whom the names of Cathari, Paterins, Albigenses, &c., concealed the more odious appellation of Manichæans.

It is not our province to trace out in detail the bloody vicissitudes of Dominic's Inquisition and Simon de Montfort's crusades. It is sufficient for our purpose to indicate the identity of the Albigensian belief with that of the ancient sect which we have seen to exercise so powerful an influence in moulding and encouraging the asceticism of the early church. The Dualistic principle was fully recognized. No necessity was regarded as justifying the use of meat, or even of eggs and cheese, or in fact of anything which had its origin in animal propagation. Marriage was an abomination and a mortal sin, which could not be intensified by adultery or other excesses.^{[912](#)}

Engrafted on these errors were others more practically dangerous, as they were the inevitable protest against the all-absorbing sacerdotalism which by this time had become the distinguishing characteristic of the church. In denying the existence of purgatory, and the efficacy of prayers for the dead and the invocation of saints, a mortal blow was aimed against the system to which the church owed its firmest hold on the souls and purses of the people. In reviving the Hildebrandine doctrine that the sacraments were not

to be administered by ecclesiastics in a state of sin, and in exaggerating it into an incompatibility between sin and holding church preferment, a most dangerous and revolutionary turn was given to the wide-spread discontent with which the excesses of the clergy were regarded.⁹¹³ So sure a hold, indeed, had such views upon the popular feeling, that we find them reappear with every heresy, transmitted with regular filiation through the Waldenses, the Wickliffites, and the Hussites, so that in every age, from Gregory to the Reformation, the measures with which he broke down the independence of the local clergy returned to plague their inventors.

Yet with all this, the heretics to outward appearance long continued unexceptionably orthodox. Industrious and sober, none were more devoted to all the observances of the church, none more regular at mass and confessional, more devout at the altar or more liberal at the offertory. Hidden beneath this fair seeming, their heresy was only the more dangerous, as it attracted converts with unexampled rapidity. Priests gave up their churches to join the society, wives left their husbands, and husbands abandoned their wives; and when questioned as to their renunciation of the duties and privileges of marriage, they all professed to be bound with a vow of chastity. Yet if so ardent a combatant as St. Bernard is to be believed, their rigorous asceticism was only a cloak for libertinism. It is possible that the enthusiastic self-mortification of the sectaries led them to test their resolution by the dangerous experiments common among the early Christians, and possibly also with the same deplorable results. St. Bernard at least argues that constant companionship of the sexes without sin would require a greater miracle than raising the dead, and as these heretics could not perform the lesser prodigy, it was reasonable to presume that they failed of the greater—and his conclusion is not unlikely to be true.⁹¹⁴ Be this as it may, the virtue of these puritan sects rendered chastity dangerous to the orthodox, for the celebrated Peter Cantor relates as a fact within his own knowledge, that honest matrons who resisted the attempts of priests to seduce them were accused of Manichæism and condemned as heretics.⁹¹⁵

The orthodox polemics, in controverting the exaggerated asceticism of these heretics, had a narrow and a difficult path to tread. Their own authorities had so exalted the praises of virgin purity, that it was not easy to meet the arguments of those who merely carried out the same principle

somewhat further, in fearlessly following out the premises to their logical conclusion.⁹¹⁶ There is extant a curious tract, being a dialogue between a Catholic and a Paterin, in which the latter of course has the worst of the disputation, yet he presses his adversary hard with the texts which were customarily cited by the orthodox advocates of clerical celibacy—“qui habent uxores sint tanquam non habentes,” “qui non reliquerit uxorem et filios propter me non est me dignus,” &c.; and the Catholic can only elude their force by giving to them metaphorical explanations very different from those which of old had been assumed in the canons requiring the separation of man and wife on ordination.⁹¹⁷

The stubborn resistance of the Albigenses to the enormous odds brought against them shows the unconquerable vitality of the antisacerdotal spirit which was then so widely diffused throughout Southern Europe. In a different shape it had already manifested itself during the first half of the twelfth century, when Pierre de Bruys infected all the South of France with the heresy called, after him and his most noted follower, the Petrobrusian or Henrician. This was an uncompromising revolt against the whole system of Roman Christianity. It not only abrogated pædo-baptism, and promulgated heretical notions respecting the Eucharist, but it abolished the visible symbols and ceremonies which formed so large a portion of the sacerdotal fabric—churches, crucifixes, chanting, fasting, gifts and offerings for the dead, and even the mass. But little is known respecting the Petrobrusians, except what can be derived from the refutation of their errors by Peter the Venerable. He says nothing specifically respecting their views upon ascetic celibacy, but we may assume that this was one of the doctrinal and practical corruptions which they assailed, from a passage in which, describing their excesses, he complains of the public eating of flesh on Passion Sunday, the cruel flagellation of priests, the imprisonment of monks, and their being forced to marry by threats and torments. Even after de Bruys was burned alive in 1146, his disciple, Henry, boldly carried on the contest, and the papal legate, Cardinal Alberic, sent for St. Bernard to assist him in suppressing the heretics. The latter, in a letter written in 1147 to the Count of Toulouse, describes the religious condition of his territories as most deplorable in consequence of the prevalence of the heresy—the churches were without congregations, the pastors without flocks, the people without pastors, the sacraments without reverence, the dying without consolation,

and the new-born without baptism. Even making allowance for some exaggeration in all this, there can be no doubt that the heresy received extensive popular support and that it was professed publicly without disguise. At Alby it was dominant, so that when the Cardinal-legate went there, the people received him in derision with asses and drums, and when he preached, scarce thirty persons assembled to hear him; but two days later St. Bernard so affected them with his eloquence that they renounced their errors. He was less successful at Vertfeuil where resided a hundred knights-banneret, who refused to listen to him, and whom he cursed in consequence, whereof they all perished miserably. Though St. Bernard was forced to return to Clairvaux without accomplishing the extirpation of the heresy, Henry was finally captured, and probably died in prison.^{[918](#)}

In Brittany, about the same period, there existed an obscure sect concerning whom little is known, except that they were probably a branch of the Petrobrusians. Their errors were nearly the same, and the slender traces left of them show that their doctrine was a protest against the overwhelming sacerdotalism of the period. The papal legate, Hugh, Archbishop of Rouen, sought to convert them by an elaborate denunciation of their tenets, among which he enumerates promiscuous licentiousness and disregard of clerical celibacy. Daniel, he gravely assures them, symbolizes virginity; Noah, continence; and Job, marriage. Then, quoting Ezekiel xiv. 13-20, wherein Jehovah, threatening the land with destruction, says, "Though these three men, Noah, Daniel, and Job, were in it, they should deliver but their own souls through their righteousness," he proceeds triumphantly to the conclusion that recantation alone can save his adversaries from the fate which their errors have deserved.^{[919](#)}

It was probably another branch of the same sect which was discovered at Liège in 1144, described as brought thither from the south and pervading all France and the neighboring countries. Its followers denied the efficacy of baptism, of the Eucharist and of the imposition of hands; they rejected not only oaths and vows, but marriage itself, and denied that the Holy Spirit could be gained except through good works. These heretics, however, had not in them the spirit of martyrdom, and speedily recanted on being discovered.^{[920](#)}

Connected probably in some way with these movements of insubordination, was the career of the singular heresiarch, Éon de l'Étoile. During one of the epidemics of maceration and fanaticism which form such curious episodes in mediæval history, Éon, born of a noble Breton family, abandoned himself to the savage life of a hermit in the wilderness. Drawn by a vision to attend divine service, his excited mysticism caught the words which ended the recitation of the collect, "*Per eum* qui venturus est judicare vivos et mortuos;" and the resemblance of "*eum*" with his own name inspired him with the revelation that he was the Son of God. Men's minds were ready for any extravagance, and Éon soon had disciples who adored him as a deity incarnate. Nothing can be wilder than the tales which are related of him by eye-witnesses—the aureole of glory which surrounded him, the countless wealth which was at the disposal of his followers, the rich but unsubstantial banquets which were served at his bidding by invisible hands, the superhuman velocity of his movements when eluding those who were bent on his capture. Éon declared war upon the churches which monopolized the wealth of the people while neglecting the duties for which they had been enriched; and he pillaged them of their treasures, which he distributed lavishly to the poor. At last the Devil abandoned his protégé. Éon, when his time had come, was easily taken and carried before Eugenius III. at the Council of Rouen, in 1148. There he boldly proclaimed his mission and his power. Exhibiting a forked staff which he carried, he declared that when he held it with the fork upwards, God ruled heaven and hell, and he governed the earth; but that when he reversed its position, then he had at command two-thirds of the universe, and left only the remaining third to God. He was pronounced hopelessly insane, but this would not have saved him had not his captor, the Archbishop of Rheims, represented that his life had been pledged to him on his surrender. He was therefore, delivered to Suger, Abbot of St. Denis, to be imprisoned, and he soon afterwards died. Even this did not shake the faith of his disciples. Many of them, in their fierce fanaticism, preferred the stake to recantation, and numbers of them were thus put to death before the heresy could be extinguished. [921](#)

When, about the middle of the twelfth century, the sudden death of a companion so impressed Peter Waldo of Lyons that he distributed his fortune among the poor, and devoted himself to preaching the supereminent merits of poverty, nothing was farther from his thoughts than the founding of a new heresy. Ardent disciples gathered around him, disseminating his views, which spread with rapidity; but their intention was to establish a society within the church, and they applied, between 1181 and 1185, to Lucius III. for the papal authorization. Lucius, however, took exception to their going barefoot, to their neglect of the tonsure, and to their retaining the society of women. They were stubborn, and he condemned them as heretics.⁹²² The enthusiasm which the church might have turned to so much account, as it subsequently did that of the Franciscans and Dominicans, was thus diverted to unorthodox channels, and speedily arrayed itself in opposition. The character of the revolt is shown in a passage of the *Nobla Leyczon*, written probably not long after this time, which declares that all the popes, cardinals, bishops, and abbots together cannot obtain pardon for a single mortal sin; thus leading directly to the conclusion that no intercessor could be of avail between God and man—

Ma yo aus o dire, car se troba en ver,
Que tuit li papa que foron de Silvestre entro en aquest,
Et tuit li cardinal et tuit li vesque e tuit li aba,
Tuit aquisiti ensemp non han tan de potesta,
Que ilh poissan perdonar un sol pecca mortal.
Solament Dio perdona, que autre non ho po far.⁹²³

Still, they did not even yet consider themselves as separated from the church, for they consented to submit their peculiar doctrines to the chances of a disputation, presided over by an orthodox priest. Of course, the decision went against them, and a portion of the “Poor Men of Lyons” submitted to the result. The remainder, however, maintained their faith as rigidly as ever. From Bernard de Font-Cauld, who records this disputation, and from Alain de l’Isle, another contemporary, who wrote in confutation of their errors, we have a minute account of their peculiarities of belief. Their principal heresy was a strict adherence to the Hildebrandine doctrine that neither reverence nor obedience was due to priests in mortal sin, whose ministrations to the living and whose prayers for the dead were equally to be despised. In the existing condition of sacerdotal morals, this necessarily

destroyed all reverence for the church at large, and Bernard and Alain had no hesitation in proving it to be most dangerously heterodox. Their recurrence to Scripture, moreover, as the sole foundation of Christian belief, with the claim of private interpretation, was necessarily destructive to all the forms of sacerdotalism, and led them to entertain many other heretical tenets. They admitted no distinction between clergy and laity. Every member of the sect, male or female, was a priest, entitled to preach and to hear confessions. Purgatory was denied, and the power of absolution derided. Lying and swearing were mortal sins, and homicide was not excusable under any circumstances.⁹²⁴ Yet naturally they did not repudiate the ascetic principles of the church, and they regarded continence as counselled, though not commanded, by the Christian dispensation—

La ley velha maudi lo ventre que fruc non a porta,
Ma la novella conselha gardar vergeneta.⁹²⁵

Though marriage is praised and its purity is to be preserved—

Gardes ferm lo matrimoni, aquel noble convent,⁹²⁶

thus showing their disapproval of the Manichæan doctrines of the Cathari and Paterins.

Independence such as this could only result in open revolt against sacerdotalism in general, and it shortly came. The Waldensian exaltation of poverty was grateful to the nobles, who were eager to grasp the possessions of the church; its condemnation of the pride and immorality of the clergy secured for its sectaries the goodwill of the people, who everywhere suffered from the oppression and vices of their pastors. Under such protection the sect multiplied with incredible rapidity, not only throughout France, but in Italy and Germany. Enveloped, with the Albigenses, in merciless persecution, they endured with fortitude the extremity of martyrdom. The Germans and Italians sought refuge in the recesses of the Alpine valleys, and in the Marches of Brandenburg and Bohemia, where they seem to have adopted the custom of sacerdotal marriage, and where in time they merged with the churches of the Orthodox Brethren.⁹²⁷ Some feeble remnants also managed to maintain an obscure existence in Provence, but their tacit revolt could not be forgotten or forgiven, and at

intervals they were exposed to pitiless attempts at extermination. These are well known, and the names of Cabrières and Merindol have acquired a sinister notoriety which renders further allusion to the Waldenses unnecessary, except to mention that in 1538 they formally merged themselves with the German reformers by an agreement of which the 8th and 9th articles declare that marriage is permissible, without exception of position, to all who have not received the gift of continence.⁹²⁸

The antisacerdotal spirit, however, did not develop itself altogether in opposition to the church. Devout and earnest men there were, who recognized the evil resulting from the overgrown power and wealth of the ecclesiastical establishment, without shaking off their reverence for its doctrine and its visible head, and the authorities at length saw in these men the effective means of combating the enemy. In thus availing themselves of one branch of the reformers to destroy the other and more radical portion, the chiefs of the hierarchy were adopting an expedient effective for the present, yet fraught with danger for the future. The Franciscans and Dominicans were useful beyond expectation. They restored to the church much of the popular veneration which had become almost hopelessly alienated from it, and their wonderfully rapid extension throughout Europe shows how universally the people had felt the want of a religion which should fitly represent the humility, the poverty, the charity of Christ. Yet when Innocent III. hesitated long to sanction the mendicant orders, he by no means showed the want of sagacity which has been so generally asserted by superficial historians; rather, like Lucius III. with the Waldenses, his far-seeing eye took in the possible dangers of that fierce ascetic enthusiasm which might at any moment break the bonds of earthly obedience, when its exalted convictions should declare that obedience to man was revolt against God.

Before the century was out, the result was apparent. When St. Francis erected poverty into an object of adoration, attaching to it an importance as insane as that attributed to virginity by the early ascetics, he at once placed himself in opposition to the whole system of the church establishment, though his exquisite humility and exhaustless charity might disguise the

dangerous tendency of his doctrines.⁹²⁹ As his order grew in numbers and wealth with unexampled rapidity, it necessarily declined from the superhuman height of self-abnegation of which its founder was the model. Already, in 1261, the council of Mainz can hardly find words severe enough to condemn the mendicant friars who wandered around selling indulgences and squandering their unhallowed gains in the vilest excesses. One of these lights of the order publicly preached, in the horse-market of Strassburg, the doctrine that a nun who surrendered her virtue to a monk was less guilty than if she had an intrigue with a layman.⁹³⁰ This falling from grace naturally produced dissatisfaction among those impracticable spirits who still regarded St. Francis as their exemplar as well as their patron. The breach gradually widened, until at length two parties were formed in the order. The ascetics finally separated themselves from their corrupted brethren, and under the name of Begghards in Germany, Frèrots in France, and Fraticelli in Southern Europe, assumed the position of being the only true church. Their excommunication at the council of Vienne, in 1311, in no wise disconcerted them. The long-forgotten doctrines of Arnold of Brescia were revived and intensified. Poverty was an absolute necessity to true Christianity; the holding of property was a heresy, and the Roman church was consequently heretic. Rome, indeed, was openly denounced as the modern Babylon.

While thus carrying out to its necessary consequences the sanctification of poverty, which was the essence of Franciscanism, they were equally logical with regard to the doctrines of ascetic purity which had been so earnestly enforced by the church. Their admiration of virginity thus trenched closely on Manichæism, and in combating their errors the church was scarcely able to avoid condemning both the vow of poverty and that of celibacy, which were the corner-stones of the monastic theory.⁹³¹ Active persecution, of course, aroused equally active resistance. The Fraticelli espoused the cause of the Emperor Louis of Bavaria, in his long and disastrous quarrel with John XXII., whom they did not hesitate to excommunicate. Exterminated after a prolonged and desperate struggle, their memory was blackened with the slanders disseminated by a priesthood incapable of emulating their ascetic virtues; and principal among these slanders was the accusation which we find repeated on all occasions when an adversary is to be rendered odious—that of promiscuous and brutal

licentiousness. No authentic facts, however, can be found to substantiate it.⁹³²

The Fraticelli form a connecting link in the generations of heresy. Their errors, as taught by one of their most noted leaders, Walter Lolhard, who was burned at Cologne in 1322, had a tinge of the Manichæism of the Albigenses, for Satan was to them an object of compassion and veneration.⁹³³ Their prevalence in Bohemia prepared the ground for Huss, and left deep traces in the popular mind which were not eradicated in the eighteenth century; while their proselytes in England served to swell the party of Wickliffe, and eventually gave to it their name, though their peculiar doctrines bore little resemblance to his.⁹³⁴ Antisacerdotalism, however, was the common tie, and in this Luther, Zwingli, and Knox were the legitimate successors of Dolcino and Michael di Cesena.

Another precursor of Wickliffe and Huss was John of Pirna, who in 1341 taught the most revolutionary doctrines. According to him, the pope was Antichrist and Rome was the whore of Babylon and the church of Satan. The Silesians listened eagerly to his denunciations of the clergy, and the citizens of Breslau, with their magistrates, openly embraced his heresy. When the Inquisitor, John of Schweidnitz, was sent thither by the Holy Office of Cracow, the people rose in defence of their leader and put the Inquisitor to death. John of Pirna appears to have maintained his position, but after his death the church enjoyed the pious satisfaction of exhuming his body, burning it, and scattering the ashes to the winds.⁹³⁵ It was easier to do this than to destroy the leaven which was working everywhere in men's minds. No sooner were its manifestations repressed in one quarter than they displayed themselves in another.

In the ineradicable corruption of the church, indeed, every effort to purify it could only lead to a heresy. Except on the delicate point of Transsubstantiation, Wickliffe proposed no doctrinal innovation, but he keenly felt and energetically sought to repress the disorders which had brought the church into disrepute. His scheme swept away bishop, cardinal, and pope, the priesthood being the culminating point in his system of ecclesiastical polity. The temporalities which weighed down the spiritual aspirations of the church were to be abandoned, and with them the train of abuses by which the worldly ambition of churchmen was sustained—

indulgences, simony, image-worship, the power of excommunication, and the thousand other arts by which the authority to bind and to loose had been converted into broad acres or current coin of the realm. In all this he was to a great extent a disciple of the Fraticelli, but his more practical mind escaped their leading error, and he denounced as an intolerable abuse the beggary of the mendicant friars. Indeed, the monastic orders in general were the objects of his special aversion, as having no justification in the precepts of Christ, and his repeated attacks upon them have a bitterness which shows not only his deep-rooted aversion, but his sense of their importance as a bulwark of the abuses which he assailed.⁹³⁶ He reduced holy orders to two—the priesthood and diaconate—but he maintained the indelible character of ordination as separating the recipient from his fellows, and he urged that all ministers of Christ should live in saintly poverty.⁹³⁷ All this was unreasonable enough in a perverse and stiff-necked generation, but his unpardonable error was his revival of the doctrine of Gregory VII. regarding the ministrations of unfaithful priests, which he carried out resolutely to its logical consequences.⁹³⁸ According to him, a wicked priest could not perform his sacred functions, and forfeited both his spiritualities and temporalities, of which laymen were justified in depriving him. Nay more, priest and bishop were no longer priest or bishop if they lived in mortal sin, and his definition of mortal sin was such as to render it scarce possible for any one to escape.⁹³⁹

What his opinions were on the subject of clerical celibacy was a mooted point even shortly after his death. Thomas of Walden, the confessor of Henry V., in his *Doctrinale Fidei*, written to confute the errors of Lollardry, declares that he could not persuade himself that the Wickliffites derived from their leader their opposition to celibacy until he had recently read in Wickliffe's Sermon on Midsummer Eve the passage which says that "prestis ben dowid and wyflees agens Goddis autorite.... And this is the caste of the fend to kyndle fir in heerdys" &c.,⁹⁴⁰ and Mr. Arnold, the latest editor of Wickliffe, seems to entertain no doubt as to the authenticity of the text, or of the views of the reformer as expressed there, and in other passages of tracts attributed to him.⁹⁴¹ Yet had Wickliffe taught this doctrine it would have been as widely known as his other errors, it would have been condemned in the repeated proceedings taken against him and his teachings, and it would not have been left for Thomas of Walden to discover it in one

of the numerous sermons which passed from hand to hand as the works of the heresiarch. Wickliffe was too earnest and sincere in his convictions to leave anyone in doubt as to his belief on any point that he thought worth discussion.

What his views were on this subject can perhaps best be sought in the most mature of his works, the *Triologus*, the authenticity of which I believe is indisputable. No one can read the chapters on Sensuality and Chastity without seeing that the whole line of argument is directed towards proving the superiority of virginity over marriage, even to the fanciful etymology of “*cœlibatus*” from the state of the “*beati in cælo*;” while in the chapter on the riches of the clergy, they are regarded as virgins betrothed to Christ, and the vow of chastity which they take is likened to their similar vow of poverty, and not to be infringed.⁹⁴² Wickliffe’s austerity, in fact, was deeply tinged with asceticism, and in aiming to restore the primitive simplicity of the church, he had no thought of relegating its ministers to the carnalities of family life, which would render impossible the Apostolic poverty that was his ideal. Even the laity, in his scheme, were to be so rendered superior to the lusts of the flesh that he pronounced those who married from any other motive than that of having offspring to be not truly married.⁹⁴³ He evidently had no intention to interfere with clerical celibacy, and the passages which have been cited to the contrary may safely be regarded as supposititious. Either the writings in which they occur have been erroneously ascribed to Wickliffe, or the passages themselves have been interpolated by too zealous disciples, eager to procure the authority of the master for the later development of doctrines that were not his—a pious fraud too common in all ages of the church to excite surprise.

It is easier to start a movement than to restrain it. Wickliffe might deny the authority of tradition, and yet preserve his respect for the tradition of celibacy, but his followers could not observe the distinction. They could see, if he could not, that the structure of sacerdotalism, to the overthrow of which he devoted himself, could not be destroyed without abrogating the rule which separated the priest from his fellow-men, and which severed all other ties in binding him to the church. In 1394, only ten years after Wickliffe’s death, the Lollards, by that time a powerful party, with strong revolutionary tendencies, presented to Parliament a petition for the thorough reformation of the church, containing twelve conclusions

indicating the points on which they desired change. Of these, the third denounced the rule of celibacy as the cause of the worst disorders, and argued the necessity of its abrogation; while the eleventh attacked the vows of nuns as even more injurious, and demanded permission for their marriage with but scanty show of respect.⁹⁴⁴ This became the received doctrine of the sect, for in a declaration made in 1400 by Arundel, Archbishop of Canterbury, concerning the Lollard heresies, we find enumerated the belief that those in holy orders could take to themselves wives without sin, and that monks and nuns were at liberty to abandon their profession, and marry at pleasure.⁹⁴⁵

The fierce persecutions of Henry V., to repress what he rightly considered as a formidable source of civil rebellion as well as heresy, succeeded in depriving the sect of political power; yet its religious doctrines still continued to exist among the people, and even sometimes obtained public expression.⁹⁴⁶ They unquestionably tended strongly to shake the popular reverence for Rome, and had no little influence in paving the way for the revolt of the sixteenth century.

John Huss was rather a reformer than a heresiarch. Admirer though he was of Wickliffe, even to the point of wishing to risk damnation with him,⁹⁴⁷ he avoided the doctrinal errors of the Englishman on the subject of the Eucharist. Yet his predestinarian views were unorthodox, and he shared in some degree Wickliffe's Gregorian ideas as to the effect of mortal sin in divesting the priesthood of all claim to sacredness or respect. According to his enemies, he asserted that no one could be the vicar of Christ or of Peter unless he were an humble imitator of the virtues of him whom he claimed to represent; and a pope who was given to avarice was only the representative of Judas Iscariot.⁹⁴⁸ His friend, Jerome of Prague, maintained with his latest breath that Huss was thoroughly orthodox, and was only inspired by indignation at seeing the wealth of the church, which was the patrimony of the poor, lavished on prostitutes, feasting, hunting, rich apparel, and other unseemly extravagance.⁹⁴⁹ In the Bohemian clergy he had an ample target for his assaults, for they were in no respect better than

their neighbors. During the latter half of the fourteenth century scarce a synod was held which did not denounce their vices, gambling, drunkenness, usury, simony, and concubinage; and when to put an end to the latter irregularity a strict visitation was made throughout the archiepiscopal diocese of Prague, the cunning rogues sent away or secreted their partners in guilt, and openly recalled them as soon as the storm had passed. The following year, Archbishop Sbinco peremptorily commanded that all concubines should be dismissed within six days, under pain of perpetual imprisonment, but this was evidently regarded as a mere *brutum fulmen*, for the next year a new device was resorted to, by pronouncing all concubinary priests to be heretics.⁹⁵⁰ All this might certainly seem to warrant any effort that might be made to accomplish what the authorities so signally failed in doing, but that any individual should assert the right of private judgment in reforming the church in its head and its members threatened results too formidable to the whole structure of sacerdotalism, and the condemnation of Huss was inevitable. Still, like Wickliffe, he was a devout believer in ascetic purity. His denunciations of the wealth and disorders of the clergy raised so great an excitement throughout Bohemia that King Wenceslas was forced to issue a decree depriving immoral ecclesiastics of their revenues. The partisans of Huss took a lively interest in the enforcement of this law, and brought the unhappy ecclesiastics before the tribunals with a pertinacity which amounted to the persecution of an inquisition.⁹⁵¹

Unlike the Lollards, the Hussites maintained the strictness of their founder's views on the subject of celibacy. If the fiercer Taborites cruelly revenged their wrongs upon the religious orders, it was to punish the minions of Rome, and not to manifest their contempt for asceticism; and, at the same time, even the milder Calixtins treated all lapses from clerical virtue among themselves with a severity which proved their sincerity and earnestness, and which had long been a stranger to the administration of the church.⁹⁵² One of the complaints against the priesthood formulated in the proclamation of Procopius and the other chiefs in 1431, at the assembling of the Council of Bâle, was that the clergy were all fornicators, committing adultery with men's wives, or having wives and "presbyterissæ" of their own;⁹⁵³ and when, in 1562, the Emperor Ferdinand endeavored to procure from the Council of Trent the use of the cup for the Utraquists or Calixtins of Bohemia, he urged in their favor that they would not admit the

ministrations of any priest who did not lead a celibate life.⁹⁵⁴ Traces of the teachings of the Fraticelli, moreover, are to be found in the doctrines which dis severed temporal from spiritual power, and denied to the clergy all ownership or dominion over landed possessions.⁹⁵⁵

The Hussite movement thus was an efficient protest against some of the forms of sacerdotalism. The nominal reconciliation effected by the Council of Bâle, against the wishes of the papacy, afforded considerable scope for religious liberty, which was strengthened by the alliance between Bohemia and Poland. The reigns of George Podiebrad, Vlasdislav, and Louis, which extended from 1458 to 1525, favored this spirit and prepared the soil for the rapid spread of Lutheranism throughout those regions, which in the sixteenth century narrowly escaped permanent separation from Catholic unity.

One fragment of the Hussites, however, held wholly aloof from reconciliation to Rome and professed to uphold in their purity the doctrines of their founder. These called themselves the Orthodox Brethren, but were stigmatized by their adversaries with the opprobrious name of Picardi, in allusion to an obnoxious heresy of the previous centuries. In process of time they admitted the validity of priestly marriage, though it was discouraged among them in view of the dangers to which they were exposed and the constant risk of martyrdom incurred by all who ventured to be conspicuous among them, for Hussite and Catholic alike sought their extermination. Yet they bravely maintained their existence until the Reformation, when they eagerly fraternized with Luther,⁹⁵⁶ such minor differences as existed in the organization of the respective churches being amicably regulated in 1570 by the agreement of Sendomir.⁹⁵⁷

Wickliffe and Huss were not the only inheritors of the antisacerdotal spirit of the Fraticelli. About the close of the fourteenth century there arose in Thuringia a heresiarch of the flagellants named Conrad Schmidt, whose teachings swept away the forms and observances which had so thickly incrust ed the simple doctrines of Christianity. The sacrifice of the mass, image-worship, fasting, feasts, purgatory, confession, and absolution, all fell

before the fearless logic of the reformer, and his disciples fondly treasured him in memory as a second incarnation of Enoch. For forty years the sect flourished in secret, but at length it was discovered in Misnia, where its members were known as Brethren of the Cross, and where it was exterminated in 1414 by the fagots of Sangerhausen. The licentious doctrines attributed to them by the monkish chronicler show that sacerdotal celibacy was one of the observances which they repudiated.⁹⁵⁸ Similar in its tendency, and almost identical in details, was the heresy which, in 1411, was condemned in Flanders by Peter d'Ailly, Archbishop of Cambrai. Giles Cantor, a layman, and a Carmelite known as William of Hilderniss gathered around them followers who assumed the title of Men of Intelligence. Like Conrad Schmidt, they rejected the empty formalism which had to so great an extent usurped the place of religion. The Atonement had satisfied God for all; there was no necessity for the intervention of sacerdotal ministrations, for confession and absolution were useless, Christ was not present in the sacrament, purgatory did not exist, and all mankind, besides the fallen angels, would in the end be saved. There was, however, little of the temper of martyrs about them, and a public renunciation of their errors at Brussels speedily deprived them of all importance.⁹⁵⁹

Savonarola can scarcely be classed among heretics. Though he was tortured and put to death by the church for his rebellious attempts to purify it, still his doctrines never varied from strict orthodoxy, and Benedict XIV. even included him in a catalogue of the holy servants of God.⁹⁶⁰ Yet Savonarola, when his career was cut short, was rapidly becoming a schismatic, as was inevitable with all reformers of ardent temperament as soon as they discovered the impossibility of removing the corruptions of the establishment. If, instead of the fickle support of the Florentine populace, which betrayed him at his utmost need, he had enjoyed the steadfast protection of such a patron as the Elector Frederic of Saxony, he would doubtless have ripened in time, as Luther subsequently did, into a full-blown heresiarch, though his innate defects of character would scarcely have enabled him, under any circumstances, to conduct successfully so complicated a movement as a separation from the church.

The principal feature of his history which concerns us is the good-natured indifference with which Alexander VI. endured his repeated attacks on the scandals and vices of the papal court. There were so many political interests entangled in Savonarola's career that it is not always easy to reach the hidden springs of action at work, but it may be assumed that Alexander, if left to himself, would have allowed the reformer to declaim unmolested. More than once he interdicted the Dominican from preaching and ordered him to Rome, but took little heed of disobedience. At length he launched an excommunication, which for nearly a year received as little respect as his previous orders, and when at length a sudden revulsion of feeling among the Florentine mob enabled him to dispose of his adversary under the forms of law, it is probable that even then he would not have pushed matters to such extremity had not Savonarola been led to an act of aggressive rebellion. The Duke of Milan forwarded to the pope intercepted letters in which the reformer, by command of God, urged the monarchs of Europe to call a general council under pretext that the church was without a head, since Alexander was an infidel who had obtained the tiara by simony and had polluted it with unimaginable vices. In his capacity of prophet, Savonarola promised the rulers triumph over their enemies if they would aid in the good work of cleansing the church, and he engaged to prove before the council the truth of his allegations by working miracles.⁹⁶¹ It would probably be unjust to condemn him as an imposter, but such conclusion is only to be escaped by pronouncing him partially insane. That fierce age was not apt to invoke such considerations in palliation of so flagrant an attempt at revolution, and Savonarola was doomed.

While thus trampling out these successive revolts, the church was blind to the lesson taught by their perpetual recurrence. The minds of men were gradually learning to estimate at its true value the claim of the hierarchy to veneration, and at the same time the vices of the establishment were yearly becoming more odious, and its oppression more onerous. The explosion might be delayed by attempts at partial reformation, but it was inevitable.

XXIV. THE FIFTEENTH CENTURY.

Neither the assaults of heretics nor the constant efforts at partial reform attempted by individual prelates had thus far proved of any avail. As time wore on, the church sank deeper into the mire of corruption, and its struggles to extricate itself grew feebler and more hopeless. We have seen that, early in the fifteenth century, Gerson advised an organized system of concubinage as preferable to the indiscriminate licentiousness which was everywhere prevalent. Even more suggestive are the declarations of Nicholas de Clemanges, Rector of the University of Paris and Secretary of Benedict XIII. (Pedro de Luna). He does not hesitate to say that the vices of the clergy were so universal that those who adhered to the rule of chastity were the objects of the most degrading and disgusting suspicions, so little faith was there in the possible purity of any ecclesiastic. He also records the extension of a custom to which I have already alluded when he states that in a majority of parishes the people insisted on their pastors keeping concubines, and that even this was a precaution insufficient for the peace and honor of their families.⁹⁶² In another tract he describes the mass of the clergy as wholly abandoned to worldly ambition and vices, oppressing and despoiling those subjected to them and spending their ill-gotten gains in the vilest excesses, while they ridiculed unsparingly such few pious souls as endeavored to live according to the light of the gospel.⁹⁶³ In most of the dioceses the parish priests openly kept concubines, which they were permitted to do on payment of a tax to their bishops. Nunneries were brothels, and to take the veil was simply another mode of becoming a public prostitute.⁹⁶⁴ Cardinal Peter d'Ailly declares that he does not dare to describe the immorality of the nunneries.⁹⁶⁵ In a similar indignant mood Gerson stigmatizes the nunneries of his time as houses of prostitution, the monasteries as centres of trade and amusement, the cathedral churches as dens of ravishers and robbers, and the priesthood at large as habitual concubinarians.⁹⁶⁶ That he felt these evils to be inseparable from the condition of the church is evident when, in an argument to prove the

necessity of celibacy, he is driven to the assertion that it is better to tolerate incontinent priests than to have no priests at all.⁹⁶⁷ He argues that the clergy are worthy of as many sentences of damnation as they seduce souls to perdition by their corrupt example, and he asks, when he who destroys himself by his own sins is to be condemned, whether he who draws with him numerous others is not still more worthy of perdition.⁹⁶⁸ Theodoric a Niem represents the bishops of Scandinavia as carrying with them their concubines on their pastoral visitations, and as inflicting penalties on such of the parish priests as they found living without similar companions, while these women habitually took precedence in church of the wives of the neighboring gentry—and he adds that the clergy of the south of Europe were no better.⁹⁶⁹ Theodoric Vrie, a learned and pious churchman of Saxony, is equally unsparing in his denunciations of the Teutonic clergy⁹⁷⁰—and, indeed, the testimony of the writers of the period is so unanimous that their descriptions of clerical vices cannot be regarded as the mere rhetorical declamation of disappointed reformers.

It was evident that the efforts of local synods were fruitless to eradicate evils so general and so deeply rooted, while the necessity for some reform became every day more apparent. Though Lollardry had been crushed in England under the stern hand of Henry V., yet it was reappearing in Bohemia in a form even more threatening. The council of Pisa had not succeeded in healing the Great Schism, and there arose a general demand for an Œcumenic Council in which the church universal should assemble for the purpose of purifying itself, of eradicating heresy, and of settling definitely the pretensions of the three claimants of the papacy. John XXIII. yielded to the pressure, and the call for the Council of Constance went forth in his name and in that of the Emperor Sigismund.

So powerful a body had never before been gathered together in Europe. It claimed to be the supreme representative of the church, and though it acknowledged John XXIII. as the lawful successor of St. Peter, it had no scruples in arraigning, trying, condemning, and deposing him—an awful expression of its supremacy, without precedent in the past, and without imitation in succeeding ages. As regards heresy, it did the best it could, according to the lights of its age, by burning John Huss and Jerome of Prague. Its functions as a reformer, however, required for their exercise

more nerve than even the condemnation of a pope. Many members were thoroughly penetrated with the conviction that reform was of instant necessity, and such men as Gerson, Peter d'Ailly of Cambrai, and Nicholas de Clemanges were prepared to shrink from none of the means requisite for so hallowed an end. In the existing corruption, however, of the body from which representatives were drawn, such men could scarcely form a controlling majority. After the council had been in session for nearly two years, the reformers began to despair of effecting anything, and Clemanges did not hesitate to assert that nothing was to be expected from men who would regard reform as the greatest calamity that could befall themselves;⁹⁷¹ while another of the members of the council declared that every one wanted such a reform as should allow him to retain his own particular form of iniquity.⁹⁷² These estimates, indeed, of the character of the majority of the good fathers of Constance is borne out by the contemporary accounts of the multitudes who flocked to it to ply their trades among the assembled dignitaries of the church, showing that they were by no means all devoted to mortifying the flesh.⁹⁷³

The feelings of those who sincerely desired reform, as they saw the prospect rapidly fading before their eyes, may be estimated by a sermon of a sturdy Gascon abbot, Bernhardus Baptisatus, preached before the council in August, 1517, about three months before the conservatives succeeded in carrying their point by electing Martin V. He denounces the members of the council as Pharisees, falsely pretending to be devout in order to elude the punishment due to their crimes. The masses and processions, which were the main business of the assemblage, he declares to be valueless in the eye of God, for most of those who so busily took part in them were involved solely in worldly cares, laughing, cheating, sleeping, or demoralizing the rest with their ungodly conversation. The Holy Spirit did not hold the acts of the council acceptable, nor dwell with its unrighteous members.⁹⁷⁴ Such a convocation could have but one result.

It is easy therefore to understand the influences that were brought to bear to defeat the expectations of the reformers; how the subject could be postponed until after the questions connected with the papacy and with heresy were disposed of; and how, after the election of Martin V., those who shrank from all reform could assume that it might safely be intrusted to the

hands of a pontiff so able, so energetic, and so virtuous. In all this they were successful. The council closed its weary sessions, April 22, 1418, and during its three years and a half of labor it had only found leisure to regulate the dress of ecclesiastics, the unclerical cut of whose sleeves was especially distasteful to the representative body of Christendom.^{[975](#)}

Still, the reformers had made a stubborn fight, and had procured the appointment of a commission to consider all reformatory propositions and prepare a general scheme for the adoption of the council. This body labored as diligently as though its deliberations were to be crowned with practical results, and various projects of reform proposed by it have been preserved. In one of these the severest measures of repression were suggested to put an end to the scandal of concubinage which was openly practised in the majority of dioceses. Under this scheme, while all the canonical punishments heretofore decreed were maintained in full vigor, deprivation was pronounced against all holders of ecclesiastical preferment, from bishops down, who should not within one month eject their guilty partners; their positions were declared vacant *ipso jure*, and their successors were to be immediately appointed. Those who did not hold benefices were similarly to be declared ineligible to preferment. It appears that scandals had arisen in many places from the Hildebrandine and Wickliffite heresy whereby parishioners declined the ministrations of those who were living in open and notorious sin; and to avoid these, while the commission declined to pass an opinion on the propriety of such action, it advised that such private judgment should not be exercised.^{[976](#)} In another elaborate system of reform, which bears the marks of long deliberation, the attempt was made to eradicate the long-standing abuse of admitting to preferment the illegitimate children of ecclesiastics, and it was declared that papal dispensations should no longer be recognized except in cases of peculiar fitness or high rank.^{[977](#)} The same code of discipline struck a significant blow at the inviolability of the monastic profession when it endeavored to check the prevailing and deplorable licentiousness of the nunneries by decreeing that no woman should be admitted to the vows beneath the age of twenty, and that all vows taken at a younger age should be null and void.^{[978](#)} These projects are interesting merely as indicating the direction in which the reforming portion of the church desired to move, and as showing that even they did not

propose to remove the celibacy which was the chief cause of the evils they so sincerely deplored.

Martin V. had assumed the responsibility of reforming the church, and he did, in fact, attempt it after some fashion, though he apparently took to heart Dante's axiom—

Lunga promessa, con l'attender corto
Ti farà trionfar nell' alto seggio.

In 1422 Cardinal Branda of Piacenza, his legate, when sent to Germany to preach a crusade against the Hussites, was honored with the title of Reformer General, and full powers were given to him to effect this part of his mission. The letters-patent of the pope bear ample testimony to the fearful depravity of the Teutonic church,⁹⁷⁹ while the constitution which Branda promulgated declares that in a portion of the priesthood there was scarcely left a trace of decency or morality. According to this document, concubinage, simony, neglect of sacred functions, gambling, drinking, fighting, buffoonery, and kindred pursuits, were the prevalent vices of the ministers of Christ; but the punishments which he enacted for their suppression—repetitions of those which we have seen proclaimed so many times before—were powerless to overcome the evils which had become part and parcel of the church itself.⁹⁸⁰

What was the condition of clerical morals in Italy soon after this may be learned from a single instance. When Ambrose was made General of the austere order of Camaldoli he set vigorously to work to reform the laxity which had almost ruined it. One of his abbots was noted for abounding licentiousness; not content with ordinary amours, he was wont to visit the nunneries in his district to indulge in promiscuous intercourse with the virgins dedicated to God. Yet Ambrose in taking him to task did not venture to punish him for his misdeeds, but promised him full pardon for the past and to take him into favor, if he would only abstain for the future—a task which ought to be easy as he was now old and should be content with having long lived evilly and be ready to dedicate his few remaining years to

the service of God.⁹⁸¹ When a reformer, who enjoyed the special friendship and protection of Eugenius IV., was forced to be so moderate with such a criminal, it is easy to imagine what was the tone of morality in the church at large.

While the Armagnacs and Burgundians were rivalling the English in carrying desolation into every corner of France, it could not be expected that the peaceful virtues could flourish, or sempiternal corruption be reformed. Accordingly, it need not surprise us to see Hardouin, Bishop of Angers, despondingly admit, in 1428, that licentiousness had become so habitual among his clergy that it was no longer reputed to be a sin; that concubinage was public and undisguised, and that the patrimony of Christ was wasted in supporting the guilty partners of the priesthood. That gambling, swearing, drunkenness, and all manner of unclerical conduct should accompany these disorders, is too probable to require the concurrent testimony which the worthy bishop affords us.⁹⁸² Alain Chartier, Archdeacon of Paris and Secretary to Charles VI. and Charles VII., confirms this in a more general way, when he attributes to enforced celibacy and the temporal endowments of the church the vices and crimes which rendered the clergy so odious and contemptible to the laity that he looks forward to the speedy advent of Antichrist to wipe out the whole system in universal ruin.⁹⁸³ Apparently its corruption was too deep-seated to hope for any milder means of reformation. To this we may at least partially attribute the utter loss of respect for sacred things which rendered the churches and their pastors a special mark for pillage and persecution during the dreary civil wars of the period.⁹⁸⁴

In England, which had enjoyed comparative immunity from civil strife, matters were quite as bad. At the request of Henry V., in 1414, the University of Oxford prepared a series of articles for the reformation of the church, whose shortcomings were vehemently attacked by the Lollards. It is not easy to imagine a more humiliating confession than is contained in the 38th article, directed against priestly immorality. The carnal and undisguised profligacy of ecclesiastics is declared to be a scandal to the church, and its impurity to be a dangerous temptation to others. It is therefore recommended that all public fornicators be suspended for a limited time from the ministry of the altar, and that some corporal

chastisement be inflicted on them, in place of the trifling pecuniary mulct, which, levied in secret, had no effect in deterring them from their evil courses.⁹⁸⁵

Such was the state of sacerdotal morals when the great council of Bâle attracted to itself the hopes of Christendom as the sole instrument by which the purification of the church could be effected—a purification which was felt to be the only safeguard against a revolutionary uprising of the indignant laity. When Eugenius IV., towards the close of the year 1431, dreading the antagonism between the council and the papacy, sent his Bull ordering its dissolution, his legate, Cardinal Cesarini, took the responsibility of refusing obedience. His letter explaining the reasons of his contumacy affords a curious picture of the internal condition of the church and of the relations existing between it and the laity. The extreme corruption of ecclesiastical morals had been the principal object of convoking the council and had given rise to a feeling of fierce hostility towards the church. To this was attributable the success which had attended the Hussite movement, and unless the people could have reason to anticipate amendment, there was ample cause to fear a general imitation of the Hussites. So many provincial synods were daily held without result that confidence was no longer felt in the ordinary ecclesiastical machinery; the state of the public mind grew constantly more threatening as fresh scandals were wrought by the clergy, and the hopes entertained of the council were the only restraint which prevented the breaking out of a wide-spread revolt. As a proof of his assertions, the legate refers to various local troubles. Magdeburg had expelled her archbishop and clergy, was preparing wagons with which to fight, after the Bohemian fashion, and was said to have sent for a Hussite to command her forces. Passau had revolted against her bishop, and was even then laying close siege to his citadel. Bamberg was engaged in a violent quarrel with her bishop and chapter. These cities were regarded as the centres of formidable secret confederacies, and were believed to be negotiating with the Hussites.⁹⁸⁶ The good fathers evidently recognized the full magnitude of the danger. The results of the inaction of the Council of Constance were full of pregnant warnings. The reformers could no longer be brought to trust the papacy, and those who might secretly deprecate reform were fully alive to the threatening aspect of affairs. They therefore addressed themselves resolutely to the removal of the cause. All who were

guilty of public concubinage were ordered to dismiss their consorts within sixty days after the promulgation of the canon, under pain of deprivation of revenue for three months. Persistent contumacy or repetition of the offence was visited with suspension from functions and stipend until satisfactory evidence should be afforded of repentance and amendment. Bishops who neglected to enforce the law were to be held as sharing the guilt which they allowed to pass unpunished; and those prelates who were above the jurisdiction of local tribunals or synods were to be remanded to Rome for trial. The council deplored the extensive prevalence of the “cullagium,” by which those to whom was entrusted the administration of the church did not hesitate to enjoy a filthy gain by selling licenses to sin. A curse was pronounced on all involved in such transactions; they were to share the penalties of the guilt which they encouraged, and were, in addition, to pay a fine of double the amount of their iniquitous receipts.⁹⁸⁷ In the Pragmatic Sanction, moreover, agreed upon in 1438 between the Emperor Albert II. and Charles VII. of France, the regulation confiscating three months’ revenues of concubinary priests was embodied.⁹⁸⁸

Honest, well-meant legislation this; yet the fathers of the council or the princes of Christendom could hardly deceive themselves with the expectation that it would prove effectual. If legislation could accomplish the desired result, there had already been enough of it since the days of Siricius. The compilations of canon law were full of admirable regulations, by which generation after generation had endeavored to attain the same object by every imaginable modification of inquisition and penalty. Ingenuity had been exhausted in devising laws which were only promulgated to be despised and forgotten. Something more was wanting, and that something could not be had without overturning the elaborate structure so skilfully and laboriously built up by the craft and enthusiasm of ten centuries.

How utterly impotent, in fact, were the efforts of the council, is evident when, within five years after the adoption of the Basilian canons, Doctor Kokkuis, in a sermon preached before the council of Freysingen, could scarcely find words strong enough to denounce the evil courses of the clergy as a class;⁹⁸⁹ and when, within fifteen years, we find Nicholas V. declaring that the clergy enjoyed such immunity that they scarcely regarded incontinence as a sin—a declaration sustained by the regulations

promulgated for the restraint of the officials of his own court, which imply the previous open and undisguised defiance of the canons.⁹⁹⁰

Even in this attempt of Nicholas, however, is to be seen one of the causes which perpetuated the corruption of the church. He orders that all who thereafter persist in keeping concubines in defiance of the regulations shall be incapable of receiving benefices without special letters of indulgence from the Holy See.⁹⁹¹ Shrouded under a thin veil of formality, this in substance indicates the degrading source of revenue which was so energetically condemned in inferior officials. The pressing and insatiable pecuniary needs of the papal court, indeed, rendered it impotent as a reformer, however honest the wearer of the tiara might himself be in desiring to rescue the church from its infamy. Reckless expenditure and universal venality were insuperable obstacles to any comprehensive and effective measures of reformation. Every one was preoccupied either in devising or in resisting extortion. The local synods were engaged in quarrelling over the subsidies demanded by Rome, while the chronicles of the period are filled with complaints of the indulgences sold year after year to raise money for various purposes. Sometimes the objects alleged are indignantly declared to be purely supposititious; at other times intimations are thrown out that the collections were diverted to the private gain of the popes and of their creatures.⁹⁹² The opinion which the church in general entertained of the papal court is manifested with sufficient distinctness in a letter from Ernest, Archbishop of Magdeburg, to his ambassador at Rome. The prelate states that he has deposited five hundred florins in Fugger's bank at Augsburg, for which he desires to procure certain bulls, one to enable him to sell indulgences, the other to compel the chapter of Magdeburg to allow him to dispose of the salt-works of Halle, in defiance of the vested rights of his church—thus taking for granted a cynicism of venality which it would be difficult to parallel in the secular affairs of the most corrupt of courts.⁹⁹³ Even the power to dispense from the vow of continence was occasionally turned to account in this manner. One of the accusations against John XXIII. was that for 600 ducats he had released Jacques de Vitry, a Hospitaller, from his vows, had restored him to the world, and enabled him to marry.⁹⁹⁴ In fact, when a pope like Sixtus IV. was found who openly sold all preferment, who kept a regular scale for every grade from the cardinalate downwards, and who only varied from his fixed

prices by putting up at auction some choice benefice,⁹⁹⁵ it can hardly be expected that discipline could be enforced or the ideal of chastity realized.

The aspirations of Christendom had culminated in the council of Bâle in the most potent form known to the church universal. If the results were scarce perceptible while the influences of the council were yet recent, and while the antagonistic papacy was under the control of men sincerely desirous to promote the best interests of the church, such as Nicholas V. and Pius II., we can feel no wonder, if the darkness continued to grow thicker and deeper under the rule of such pontiffs as Sixtus IV., Innocent VIII., and Alexander VI. Savonarola found an inexhaustible subject of declamation in the fearful vices of the ecclesiastics of his times, whom he describes as *ruffiani e mezzani*.⁹⁹⁶ In the kingdom of Naples the state sought to share with the church in the profits of impurity, and a regular tax was laid upon the concubines of ecclesiastics. In a document still preserved in the Neapolitan archives, Alfonso I. complains that this tax had not been paid for three years, and directs his bishops to compel its collection in their several dioceses.⁹⁹⁷ In the assembly of the Trois États of France, held at Tours in 1484, the orator of the Estates, Jean de Rély, afterwards Bishop of Angers, in his official address to Charles VIII., declared it to be notorious that the religious orders had lost all devotion, discipline, and obedience to their rule, while the canons (and he was himself a canon of Paris) had sunk far below the laity in their morals, to the great scandal of the church.⁹⁹⁸

In England, the facts developed by the examination which Innocent VIII. in 1489 authorized Morton, Archbishop of Canterbury, to make into the condition of the religious houses, present a state of affairs quite as bad. Henry VII.'s first Parliament, in 1485, had endeavored to accomplish some reform by passing an Act empowering the episcopal authorities to imprison all priests and monks convicted of carnal lapses,⁹⁹⁹ but this, like all similar legislation, whether secular or ecclesiastical, appears to have been useless. Innocent describes the monasteries, in his bull to the archbishop, as wholly fallen from their original discipline, and this is folly confirmed by the results of the visitation. The old and wealthy abbey of St. Albans, for

instance, was little more than a den of prostitutes, with whom the monks lived openly and avowedly. In two priories under its jurisdiction the nuns had been turned out and their places filled with courtezans, to whom the monks of St. Albans publicly resorted, indulging in all manner of shameless and riotous living, the details of which can well be spared.¹⁰⁰⁰ These irregularities were emulated by the secular ecclesiastics. Among the records of the reign of Henry VII. is a memorial from the gentlemen and farmers of Carnarvonshire, complaining that the seduction of their wives and daughters was pursued systematically by the clergy.¹⁰⁰¹ That the prevalence of these practices was thoroughly understood is shown in a book of instructions for parish priests drawn up by a canon of Lilleshall about this period. In enumerating the causes for which a parson may shrive a man not of his own parish, he includes the case in which the penitent has committed sin with the concubine or daughter of his own parish priest.¹⁰⁰²

Spain was equally infected. The council of Aranda, in 1473, denounced bitterly the evil courses by which the clergy earned for themselves the wrath of God and the contempt of man, and it endeavored to suppress the sempiternal vice by the means which had been so often ineffectually tried—visitations, fines, excommunication, suspension, forfeiture of benefice, and imprisonment—but all to as little purpose as before.¹⁰⁰³ The trouble continued without abatement and the council of Seville, in 1512, felt itself obliged to repeat as usual all the old denunciations and penalties, including those against ecclesiastics who officiated at the marriages of their children, which it prohibited for the future under a fine of 2000 maravedis—a mulct which it likewise provided for those who committed the indecency of having their children as assistants in the solemnity of the Mass.¹⁰⁰⁴

What was the condition of morals in Germany may be inferred from some proceedings of the chapter of Brunswick in 1476. The canons intimate that the commission of scandals and crimes has reached a point at which there is danger of their losing the inestimable privilege of exemption from episcopal jurisdiction. They therefore declare that for the future the canons, vicars, and officiating clergy ought not to keep their mistresses and concubines publicly in their houses, or live with them within the bounds of the church, and those who persist in doing so after three warnings shall be suspended from their prebends until they render due satisfaction.¹⁰⁰⁵ In this

curious glimpse into the domestic life of the cathedral close, it is evident that the worthy canons were moved by no shame for the publicity of their guilt, but only by a wholesome dread of giving to their bishop an excuse for procuring the forfeiture of their dearly prized right of self-judgment.

The Hungarian church, by a canon dating as far back as 1382, had finally adopted a pecuniary mulct as the most efficacious mode of correcting offenders. The fine was five marks of current coin, and by granting one-half to the informer or archdeacon, and the other to the archiepiscopal chamber, it was reasonably hoped that the rule might be enforced. The guardians were not faithful, however, for two synods of Gran, one in 1450 and the other in 1480, reiterate the complaint, not only that the archdeacons and other officials kept the whole fine to themselves, but also, what was even worse, that they permitted the criminals to persevere in sin, in order to make money by allowing them to go unpunished.^{[1006](#)} This state of affairs was not to be wondered at if the description of his prelates by Matthias Corvinus be correct. They were worldly princes, whose energies were devoted to wringing from their flocks fabulous revenues to be squandered in riotous living on the hordes of cooks and concubines who pandered to their appetites.^{[1007](#)} The morals of the regular clergy were no better, for a Diet held by Vladislas II. in 1498 complained of the manner in which abbots and other monastic dignitaries enriched themselves from the revenues of their offices, and then, returning to the world, publicly took wives, to the disgrace of their order.^{[1008](#)}

In Pomerania the evil had at length partially cured itself, for the female companions of the clergy seem to have been regarded as wives in all but the blessing of the church. Benedict, Bishop of Camin, in 1492, held a synod in which he quaintly but vehemently objurgates his ecclesiastics for this wickedness; declares that no man can part such couples joined by the devil; alludes to their offspring as beasts creeping over the earth, and has his spleen peculiarly stirred by the cloths of Leyden and costly ornaments with which the fair sinners were bedecked, to the scandal of honest women.^{[1009](#)} His indignation was wasted on a hardened generation, for his successor, Bishop Martin, on his accession to the see in 1499, found the custom still unchecked. The new bishop promptly summoned a synod at Sitten in 1500, where he reiterated the complaints of Benedict, adding that the priests

convert the patrimony of Christ into marriage portions for their children, and procure the transmission of benefices from father to son, as though glorying in the perpetuation of their shame. What peculiarly exasperated the good prelate was that the place of honor was accorded as a matter of course to the priests and their consorts at all the merry-makings and festivities of their parishioners, which shows how fully these unions were recognized as legitimate, and, apparently, for prudential reasons, encouraged by the people.^{[1010](#)}

Similar customs, or worse, doubtless prevailed in Sleswick, for when Eggard was consecrated bishop in 1494, he signalized the commencement of his episcopate by forbidding his clergy to keep such female companions. The result was that before the year expired he was forced to abandon his see, and five years later he died, a miserable exile in Rome.^{[1011](#)}

The monastic orders were no better than the secular clergy. When Ximenes was made Provincial of the Franciscan order in Spain, he set himself earnestly at work to force the brethren to live according to the Rule. A large portion of them, known as Claustrels, led disorderly lives, almost purely secular, and refused absolutely to submit to the observance of their vows. King Ferdinand being appealed to pronounced sentence of banishment upon them, and they absolutely preferred existence in exile to the insupportable yoke of their Order. Yet they considered themselves so aggrieved that when they left Toledo they marched in procession through the Puerta Visagra with a crucifix at their head, singing the 113th Psalm “In exitu Israel de Egypto.” When Ximenes was promoted to the primatial see of Toledo, the malcontents appealed to the Vicar General of the Order in Rome, who came to Spain and warmly espoused their cause, being only forced to desist by the decided stand taken by Queen Isabella in favor of Ximenes.^{[1012](#)} It was the same with the other monastic orders. A bull of Alexander VI., issued in 1496 for the purpose of reforming the Benedictines, describes the inhabitants of many establishments of both sexes in that ancient and honored institution as indulging in the most shameless profligacy; and marriage itself was apparently not infrequently practised.^{[1013](#)} Savonarola did not hesitate to declare that nuns in their convents became worse than harlots.^{[1014](#)} Even the strictest of all the orders—the Cistercian—yielded to the prevailing laxity. A general chapter, held in

1516, denounces the intolerable abuse indulged in by some abbots who threw off all obedience to the rule, and dared to keep women under pretence of requiring their domestic services.¹⁰¹⁵ To fully appreciate the force of this indication, it is requisite to bear in mind the stringency of the regulations which forbade the foot of woman to pollute the sacred retirement of the Cistercian monasteries.¹⁰¹⁶

The efforts constantly made to check these abuses produced little result. A Carthusian monk, writing in 1489, deplores the fact that while monasteries were everywhere being reformed, few if any of them maintained their morals, but returned to their old condition immediately on the death of the zealous fathers who had sought to improve them.¹⁰¹⁷ That condition is described by a Benedictine Abbot, the celebrated Trithemius, in general terms, as that of dens in which it was a crime to be without sin, their inhabitants for the most part being addicted to all manner of vices, and being monks only in name and vestment.¹⁰¹⁸

That the clergy, as a body, had become a stench in the nostrils of the people is evident from the immense applause which greeted all attacks upon them. In 1476 a rustic prophet arose in the hamlet of Niklaushausen, in the diocese of Wurzburg, who was a fit precursor of Muncer and John of Leyden. John of Niklaushausen was a swineherd, who professed himself inspired by the Virgin Mary. From the Rhine-lands to Misnia, and from Saxony to Bavaria, immense multitudes flocked to hear him, so that at times he preached to crowds of twenty and thirty thousand men. His doctrines were revolutionary, for he denounced oppression both secular and clerical; but he was particularly severe upon the vices of the ecclesiastical body. A special revelation of the Virgin had informed him that God could no longer endure them, and that the world could not, without a speedy reformation, be saved from the divine wrath consequent upon them.¹⁰¹⁹ The unfortunate man was seized by the Bishop of Wurzburg; the fanatical zeal of his unarmed followers was easily subdued, and he expiated at the stake his revolt against the powers that were.

Such being the state of ecclesiastical morality throughout Europe, there can be little wonder if reflecting men sought occasionally to reform it in the only rational manner—not by an endless iteration of canons, obsolete as soon as published, or by ingeniously varied penalties, easily evaded or

compounded—but by restoring to the minister of Christ the right to indulge legitimately the affections which bigotry might pervert, but could never eradicate. Even as early as the close of the thirteenth century, the high authority of Bishop William Durand had acknowledged the inefficacy of penal legislation, and had suggested the discipline of the Greek church as affording a remedy worthy of consideration.^{[1020](#)} As the depravity of the church increased, and as the minds of men gradually awoke from the slumber of the dark ages, and shook off the blind reverence for tradition, the suggestion presented itself with renewed force. At the council of Constance Cardinal Zabarella did not hesitate to suggest that if the concubinary practices of the clergy could not be suppressed it would be better to concede to them the privilege of marriage,^{[1021](#)} and shortly after the failure of the council to effect a reform had become apparent, Guillaume Saignet wrote a tract entitled “*Lamentatio ob Cælibatum Sacerdotum*” in which he attacked the existing system, and called forth a rejoinder from Gerson. When the council of Bâle was earnestly engaged in the endeavor to restore forgotten discipline, the Emperor Sigismund laid before it a formula of reformation which embraced the restoration of marriage to the clergy. His orator drew a fearful picture of the evils caused by the rule of celibacy—evils acknowledged by every one in the assembly—and urged that as it had produced more injury than benefit, the wiser course would be to follow the example of the Greek church.^{[1022](#)} A majority of the council assented to the principle, but shrank from the bold step of adopting it. Eugenius IV. had just been forced to acknowledge the legitimacy of the body as an œcumenic council; the strife with the papacy might again break forth at any moment, and it was not politic to venture on innovations too audacious. The conservatives, therefore, skilfully eluded the question by postponing it to a more favorable time, and the postponement was fatal.

One of the most celebrated members of the council, Cardinal Nicholas Tudeschi, surnamed Panormitanus, whose preëminence as an expounder of the canon law won for him the titles of “*Canonistarum Princeps*” and “*Lucerna Juris*,” declared that the celibacy of the clergy was not essential to ordination or enjoined by divine law; and he records his unhesitating opinion that the question should be left to the option of the individual—those who had resolution to preserve their purity being the most worthy, while those who had not would be spared the guilt which disgraced

them.¹⁰²³ So Æneas Sylvius, who as Pius II. filled the pontifical throne from 1458 to 1464, and who knew by experience how easy it was to yield to the temptations of the flesh, is reported to have said that marriage had been denied to priests for good and sufficient reasons, but that still stronger ones now required its restoration.¹⁰²⁴ Indeed, when arguing before the Council of Bâle in favor of the election of Amedeus of Savoy to the papacy, he had not scrupled to declare that a married priesthood would be the salvation of many who were damned in celibacy.¹⁰²⁵ And we have already seen that Eugenius IV., in 1441, and Alexander VI., in 1496, granted permission of marriage to several military orders, as the only mode of removing the scandalous license prevailing among them.

This question of the power of the pope to dispense with the necessity of celibacy seems to have attracted some attention about this period. In 1505, Geoffroy Boussard, afterwards Chancellor of the University of Paris, published a tract wherein he argued that priestly continence was simply a human and not a divine ordinance, and that the pope was fully empowered to relax the rule in special cases, though he could not abolish wholly an institution of such long continuance which had received the assent of so many holy fathers and general councils. At the same time, one of his arguments in favor of its enforcement shows how little respect was left in the minds of all thinking men for the claims of the church to veneration. He quotes Bonaventura to the effect that if bishops and archbishops had license to marry they would rob the church of all its property, and none would be left for the poor, for, he adds, “since already they seize the goods of the church for the benefit of distant relatives, what would they not do if they had legitimate children of their own?”¹⁰²⁶

When the advantages and the necessity of celibacy thus were doubted by the highest authorities in the church, it is no wonder if those who were disposed to question the traditions of the past were led to reject it altogether. In 1479 John Burckhardt, of Oberwesel, graduate of Tübingen, and Doctor of Theology, in his capacity of preacher at Worms, openly disseminated doctrines which differed in the main but little from those of Wickliffe and

Huss. He denied the authority of popes, councils, and the fathers of the church to regulate matters either of faith or discipline. The Scripture was the only standard, and no one had a right to interpret it for his brethren. The received observances of religion, prayers, fasts, indulgences, were all swept away, and universal liberty of conscience proclaimed to all. Of course, sacerdotal celibacy shared the same fate, as a superstitious observance, contrived by papal ingenuity in opposition to evangelical simplicity.¹⁰²⁷ Thus his intrepid logic far outstripped the views of his predecessors, and Luther afterwards acknowledged the similarity between his teachings and those of John of Oberwesel. Yet he had not the spirit of martyrdom, and the Inquisition speedily forced him to a recantation, which was of little avail, for he soon after perished miserably in the dungeon in which he had been thrust.¹⁰²⁸

Still more remarkable as an indication of the growing spirit of independence was an event which in July, 1485, disturbed the stagnation of the centre of theological orthodoxy—the Sorbonne. A certain Jean Laillier, priest and licentiate in theology, aspiring to the doctorate, prepared his thesis or “Sorbonique,” in which he broached various propositions savoring strongly of extreme Lollardry. He denied the supremacy of the pope, and indeed reduced the hierarchy to the level of simple priesthood; he rejected confession, absolution, and indulgences; he refused to acknowledge the authority of tradition and legends, and insisted that the fasts enjoined by the church had no claim to observance. Celibacy was not likely to escape so audacious an inquirer, and accordingly, among his postulates were three, declaring that a priest clandestinely married required no penitence; that the Eastern clergy committed no sin in marrying, nor would the priests of the Western church, if they were to follow the example; and that celibacy originated in 1073, in the decretals of Gregory VII., whose power to introduce the rule he more than questioned. The Sorbonne, as might be anticipated, refused the doctorate to so rank a heretic, and Laillier had the boldness not only to preach his doctrines publicly, but even to appeal to the Parlement for the purpose of forcing his admission to the Sorbonne. The Parlement referred the matter to the Bishop of Paris and to the Inquisitor; Laillier’s audacity failed him, and he agreed to recant.¹⁰²⁹ In Poland, too, there were symptoms of similar revolt against the established ordinances of

the church, as shown in a book published at Cracow in 1504, “De Matrimonia Sacerdotum.”^{[1030](#)}

The corruption of the church establishment, in fact, had reached a point which the dawning enlightenment of the age could not much longer endure. The power which had been intrusted to it, when it was the only representative of culture and progress, had been devoted to selfish purposes, and had become the instrument of unmitigated oppression in all the details of daily life. The immunity which had been necessary to its existence through centuries of anarchy had become the shield of unimaginable vices. The wealth, so freely lavished upon it by the veneration of Christendom, was wasted in the vilest excesses. All efforts at reformation from within had failed; all attempts at reformation from without had been successfully crushed and sternly punished. Intoxicated with centuries of domination, the muttered thunders of growing popular discontent were unheeded, and its claims to spiritual and temporal authority were asserted with increasing vehemence, while its corruptions were daily displayed before the people with more careless cynicism. There appeared to be no desire on the part of the great body of the clergy to make even a pretence of the virtue and piety on which were based their claims for reverence, while the laity were daily growing less reverent, were rising in intelligence, and were becoming more inclined to question where their fathers had been content to believe. Such a complication could have but one result.

XXV.

THE REFORMATION IN GERMANY.

The opening of the sixteenth century witnessed an ominous breaking down of the landmarks of thought. The revival of letters, which was fast rendering learning the privilege of all men in place of the special province of the legal and clerical professions; the discovery of America, which destroyed reverence for primæval tradition, and accustomed men's minds to the idea that startling novelties might yet be truths; the invention of printing, which placed within the reach of all inquirers who had a tincture of education the sacred writings for investigation and interpretation and enabled the thinker and the innovator at once to command an audience and disseminate his views in remote regions; the European wars, commencing with the Neapolitan conquest of Charles VIII., which brought the nations into closer contact with each other, and carried the seeds of culture, civilization, and unbelief from Italy to the farthest Thule; all these causes, with others less notable, had been silently but effectually wearing out the remnants of that pious and unquestioning veneration which for ages had lain like a spell on the human mind.

In this bustling movement of politics and commerce, arts and arms, science and letters, religion could not expect to escape the spirit of universal inquiry. Even before opinion had advanced far enough to justify examination into doctrinal points and dogmas, there was a general readiness to regard the shortcomings of sacerdotalism, in the administration of its sacred trust, with a freedom of criticism which could not long fail to destroy the respect for claims of irrefragable authority. John of England and the Emperor Otho might gratify individual spite, in the intoxication of anticipated triumph, by insultingly defying the sacerdotal power. Philippe-le-Bel, a man far in advance of his age, might reduce the papacy to temporary subjection by means of rare instruments such as Guillaume de Nogaret. Philippe de Valois, with the aid of his civil lawyers, might essay to limit the extent of ecclesiastical jurisdiction. Wickliffe, and Huss, and Savonarola might raise the standard of opposition to papal usurpation—but

these were sporadic instances of rebellion, resulting either from the selfish ambition of rulers or the fanatical enthusiasm of individuals, unsupported by the concurrent opinion of the masses of the people, and their permanent results were rather remote than direct. At the period to which we have arrived, however, the disposition to criticise the abuses of the ecclesiastical system, to note its shortcomings, and to apply remedial measures was general, and savored little of the respect which an infallible church had for so many centuries inculcated as one of the first of Christian duties. Its past services were forgotten in present wrongs. Its pretensions had, at one time, enabled it to be the protector of the feeble, and the sole defence of the helpless; but that time had passed. Settled institutions were fast replacing anarchy throughout Europe, and its all-pervading authority would no longer have been in place, even if exercised for the common benefit. When it was notorious, however, that the powers and immunities claimed by the church were everywhere employed for the vilest ends, their anachronism became too palpable, and their destruction was only a question of time.

Signs of the coming storm were not wanting. In 1510 a series of complaints against the tyranny and extortion of Rome was solemnly presented to the emperor. The German churches, it was asserted, were confided by the successors of St. Peter to the care of those who were better fitted to be keepers of mules than pastors of men, and the pope was significantly told that he should act more tenderly and kindly to his children of Teutonic race, lest there might arise a persecution against the priesthood, or a general defection from the Holy See, after the manner of the Hussites.^{[1031](#)} The emperor was warned, in his efforts to obtain the desired reform, not to incur the censures and enmity of the pope, in terms which show that only the political effects of excommunication were dreaded, and that its spiritual thunders had lost their terrors. He was further cautioned against the prelates in general, and the mendicant friars in particular, in a manner denoting how little reverence was left for them in the popular mind, and how thoroughly the whole ecclesiastical system had become a burden and reproach, a thing of the past, an excrescence on society, and no longer an integral part of every man's life, and the great motive power of Christendom.^{[1032](#)}

It was evident that the age was rapidly outstripping the church, and that the latter, to maintain its influence and position, must conform to the necessities of progress and enlightenment. On previous occasions it had done so, and had, with marvellous tact and readiness, adapted itself to the exigencies of the situation in the long series of vicissitudes which had ended by placing it supreme over Europe. But centuries of almost uninterrupted prosperity had hardened it. The corruption which attends upon wealth had rendered wealth a necessity, and that wealth could only be had by perpetuating and increasing the abuses which caused ominous murmurs of discontent in those nations not fortunate enough to be defended by Concordats or Pragmatic Sanctions. The church had lost its suppleness, and was immovable. A reform such as was demanded, while increasing its influence over the souls of men, would have deprived it of control over their purses; reform meant poverty. The sumpter-mule loaded with gold, wrung from the humble pittance of the Westphalian peasant, under pretext of prosecuting the war against the infidel, would no longer cross the Alps to stimulate with its treasure the mighty genius of Michael Angelo, or the fascinating tenderness of Raphael; to provide princely revenues for the bastards of a pope, or to pay mercenaries who were to win them cities and lordships; to fill the antechamber of a cardinal with parasites, and to deck his mistresses with the silks and jewels of Ind; to feed needy men of letters and scurrilous poets; to soothe the itching palms of the Rota, and to enable all Rome to live on the tribute so cunningly exacted of the barbarian.¹⁰³³

The wretched ending of the council of Bâle rendered any internal reformation impossible which did not derive its initiative and inspiration from Rome, as was shown by the failure of the council of Pisa. In Rome, it would have required the energy of Hildebrand, the stern self-reliance of Innocent, the unworldly asceticism of Celestin combined, to even essay a reform which threatened destruction so complete to all the interests accumulated by sacerdotalism around the Eternal City. Leo X. was neither Hildebrand, nor Innocent, nor Celestin. With his voluptuous nature, elegant culture, and easy temper, it is no wonder that he failed to read aright the signs of the times, and that he did not even recognize the necessity which should impose upon him a task so utterly beyond his powers. The fifth council of Lateran had no practical result. Blindly he plunged on; money must be had at any cost, until the salvation mongering of Tetzels, little if any worse than that of his predecessors, could no longer bear the critical spirit

of the age, and Teutonic insubordination at length found a mouth-piece in the Monk of Wittenberg.

It would be a mistake to credit Luther with the Reformation. His bold spirit and masculine character gave to him the front place, and drew around him the less daring minds who were glad to have a leader to whom to refer their doubts, and on whom their responsibility might partly rest; yet Luther was but the exponent of a public sentiment which had long been gaining strength, and which in any case would not have lacked expression. In that great movement of the human mind he was not the cause, but the instrument. Had his great opponent Erasmus enjoyed the physical vigor and practical boldness of Luther, he would have been handed down as the heresiarch of the sixteenth century.¹⁰³⁴ He, too, had borne his full share in preparing the minds of men for what was to come. The whole structure of sacerdotalism felt the blows of his irreverential spirit, which boldly declared that the Scriptures alone contained what was necessary to salvation.¹⁰³⁵ Theological subtleties and priestly observances were alike useless or worse than useless. For the living, it was idle to attend mass; for the dead, it was folly to look to such a means for extrication from purgatory.¹⁰³⁶ The confessional was to be visited only as a formal prerequisite to partaking the Eucharist;¹⁰³⁷ pilgrimages and the veneration of relics were ridiculed with a reckless freedom which showed that the advance of enlightenment had utterly destroyed the reverence of the past.¹⁰³⁸ Nothing, indeed, can give us a more thorough conviction of the readiness of the public to welcome a radical change than the wealth of indignant bitterness which Erasmus, himself a canon regular and a priest, heaps upon all orders of the church, and the immense applause which everywhere greeted his attacks. His sarcastic humor, his biting satire, his exquisite ridicule, nowhere find a more congenial subject than the vices of the monks, the priests, the prelates, the cardinals, and even of the pope himself, until even Luther, as late as 1517, feels constrained to deplore that the evils which afflicted the church should be thus exposed to derision.¹⁰³⁹ It affords a curious illustration of the times to read those writings which a century earlier would have consigned him to the dungeon or the stake, and to reflect that he was not only the admiration of both the learned and the vulgar of Europe, but also the petted protégé of king and kaiser, the correspondent of popes, and finally the champion of the system which he had so ruthlessly reviled, and which he

never ceased to deplore.¹⁰⁴⁰ The extraordinary favor with which his works were received by all classes shows how fully he was justified in the indignation which he so unsparingly lavished on clerical abuses, and how eagerly the public appreciated one who could so well express that which was felt by all. Equally significant was the popularity of the “*Epistolæ Obscurorum Virorum*,” in which the learned wits of the new school poured forth upon the clergy a broad and homely ridicule which exactly suited the taste of the age;¹⁰⁴¹ while Cornelius Agrippa more than rivalled Erasmus in the wealth of vigorous denunciation with which he lashed the vices of all the orders of ecclesiastics, from the pope to the béguine.¹⁰⁴²

Not less indicative of the dangerous state of opinion was an address delivered in the Diet held at Augsburg in 1518, when the legates of Leo X. appealed to Germany for a tithe to assist in carrying on the war against the Turk. The orator who replied to them did not restrain his indignation at the deplorable condition of the church, which he attributed solely to the worldly ambition of the popes. Since they had united temporal with spiritual dominion—or, rather, since they had allowed temporal interests to divert them wholly from their spiritual duties—all had gone amiss. Christendom was despoiled from without, and filled with tumult within. Religion was openly contemned; Christ was daily bought and sold; the sheep were shorn, and the pastor took no care of them. He did not even hesitate to charge, with emphasis and at much detail, that the money extorted from Germany under pious pretexts was squandered in Italy on the private quarrels and for the aggrandizement of the papal houses, and those of the members of the sacred college.¹⁰⁴³ All other nations were protected from papal rapacity and tyranny by formal agreements. Germany alone was surrendered defenceless, and not only were her bishops plundered but even the smallest benefice could not be confirmed without the recipient running the gauntlet of a horde of officials whose exactions forced him to sell the very furniture of his church. As the rules of law and the dictates of justice were equally disregarded, the popular sentiment was becoming openly hostile to the church.¹⁰⁴⁴ A state of feeling which dictated and permitted such a declaration from the supreme representative body of the empire, when brought into collision with the pretensions of the Holy See, now more exaggerated than ever, could have but one result—Revolution.

With all this license Germany was still, by the force of circumstances, less independent of the papacy than any other Tramontane power. What was going on elsewhere in Europe may be guessed from the humiliating conditions exacted in 1517 of Silvester Darius, the papal collector, on his assuming the functions of his important office in England. He bound himself by oath not to execute any letters or mandates of the pope injurious to the king, the kingdom, or the laws; not to transmit from England to Rome, without a special royal license, any gold, or silver, or bills of exchange; not to leave the kingdom himself without a special license under the great seal; with other less notable restrictions, the practical effect of all being to place him and his duties wholly under the control of the king.¹⁰⁴⁵ The position of England had changed since the days of Innocent and John. Had the dissensions of Germany permitted equal progress, Luther might perhaps have only been known as an obscure but learned orthodox doctor, and the inevitable revolt of half of Christendom have been postponed for a century.

It is not my province to follow in detail the vicissitudes of the Reformation, but only to indicate briefly its relations with sacerdotal asceticism. Luther, at first, like Wickliffe and Huss, paid no attention to the subject. In fact, when, on the 31st of October, 1517, he nailed on the church door of Wittenberg his celebrated ninety-five propositions, nothing was further from his expectations than to create a heresy, a schism, or even a general reform in the church. He had simply in view to vindicate his ideas on the subject of justification, derived from St. Augustin, against the Thomist doctrines which had been exaggerated into the monstrous abuses of Tetzel and his fellows.¹⁰⁴⁶ In the general movement of the human mind at that period so much had been said that was inimical to the received practices of the church, without calling forth the thunders of Rome, that men seemed to think the day of toleration had at last come. The hierarchy sat serenely upon their thrones and in the confidence of unassailable power appeared willing to allow any freedom of speculation which did not assail their temporal privileges. Yet amid the general agitation and opposition to Rome which pervaded society, it was impossible for a bold and self-reliant

spirit such as Luther's not to advance step by step in a career of which the ultimate goal was as little foreseen by himself as by others. Still his progress was wonderfully slow. Even in 1519 he still considered himself within the pale of the church, and held that no wrong committed by her could justify a separation or excuse any resistance to the commands of a pope;¹⁰⁴⁷ and in the same year, in a sermon on matrimony, he alluded not unfavorably to the life of virginity.¹⁰⁴⁸ Events soon after forced him to further and more dangerous innovations, yet when Leo X., in June, 1520, issued his celebrated bull, "Exsurge Domine" to crush the rising heresy, in the forty-one errors enumerated as taught by Luther, there is no allusion to any doctrine specially inimical to ascetic celibacy.¹⁰⁴⁹

This condemnation, followed as it was by the public burning of his writings, aroused Luther to a more active and aggressive hostility than he had previously manifested. In his book "De Captivitate Babylonica Ecclesiæ" he attacked the sacrament of ordination, denied that it separated the priest from his fellows, and ridiculed the rule concerning digami, which excluded from the priesthood a man who had been the husband of any but a virgin, while another who had polluted himself with six hundred concubines was eligible to the episcopate or papacy.¹⁰⁵⁰ Finally on Dec. 10th, 1520, he proclaimed war to the knife by burning at Wittenberg the books of the canon law and justifying this act by a manifesto recapitulating the damnable doctrines contained in them. Among these he enumerates the prohibition of sacerdotal marriage, as the origin and cause of excessive vice and scandal.¹⁰⁵¹ As he said himself, hitherto he had only been playing at controversy with the Pope, but this was the beginning of the tragedy.¹⁰⁵² Soon after this, in a controversy with Ambrogio Catarino, he stigmatized the rule of celibacy as angelical in appearance, but devilish in reality, and invented by Satan as a fertile source of sin and perdition.¹⁰⁵³

In the mighty movement which was agitating men's minds, Luther had been anticipated in this. As early as 1518, a monk of Dantzic named James Knade, abandoned his order, married, and publicly preached resistance to Rome. It is evident that in this he had the support of the people, for though he was imprisoned and tried by the ecclesiastical authorities, the only punishment inflicted on him was banishment.¹⁰⁵⁴ In the multitude of other questions more interesting to the immediate disputants this point of

discipline seems to have attracted but little attention until 1521, when during Luther's enforced seclusion in Wartburg, Bartholomew Bernhardt, pastor of Kammerich, near Wittenberg, put the heresiarch's views into action in the most practical way by obtaining the consent of his parish and celebrating his nuptials with all due solemnity. Albert, Archbishop of Mainz and Magdeburg, addressed to Frederic, Elector of Saxony, a demand for the rendition of the culprit, which that prudent patron of the Reformation skilfully eluded, and Bernhardt published a short defence or apology in which he denounced the rule of celibacy as a "frivolam traditiunculam." He argued the matter, quoting the texts which since his time have been generally employed in support of sacerdotal marriage; he referred to Peter and Philip, Spiridon of Cyprus, and Hilary of Poitiers, as examples of married bishops, quoted the story of Paphnutius, and relied on the authority of the Greek church. This apparently did not satisfy the archbishop, for Bernhardt felt obliged to address a second apology to Frederic of Saxony, to whom he appealed for protection against the displeasure of his ecclesiastical superiors.^{[1055](#)} In spite of molestation, he continued in the exercise of his priestly functions until death. Less fortunate were his immediate imitators. A priest of Mansfeld who took to himself a wife was thrown into prison at Halle by the Archbishop of Mainz, and Jacob Siedeler, pastor of Glashütten, in Misnia, who was guilty of the same crime, perished miserably in the dungeon of Stolpen, to which he was committed by Duke George of Saxony.^{[1056](#)}

The enthusiastic Carlostadt, relieved for the time from the restraint of Luther's cooler wisdom, threw himself with zeal into this new movement of reform, and lost no time in justifying it by a treatise in which he argued strenuously in favor of priestly marriage, and energetically denounced the monastic vows as idle and vain. Luther, however, in his retreat, seems not yet prepared to take any very decided position. In a letter of Jan. 17th, 1522, to Wolfgang Fabricius Capito, one of the officials of the Archbishop of Mainz, he takes the latter severely to task with respect to his action in a case of the kind—probably that of the priest of Mansfeld alluded to above. The man had been set at liberty, but forced to separate himself from his wife, and Capito had defended himself on the ground that the woman was a harlot. Luther asks him why he had been so earnest with a single strumpet, when he had taken no action with so many under his jurisdiction in

Halberstadt, Mainz, and Magdeburg, and adds that when the priest had acknowledged the woman as his wife there should have been nothing further done. He proceeds to say, however, that he does not ask for the freedom of sacerdotal marriage, and that he is not prepared to take any general position concerning it, except that it is lawful under God.¹⁰⁵⁷ Either with or without his approbation, however, his friends lost no time in enforcing the new dogma which they proclaimed to the world in the most authoritative manner. During the same year Luther's own Augustinian order held a provincial synod at Wittenberg, in which they formally threw open the doors of the monasteries, and permitted all who desired it to return to the world, declaring that in Christ there was no distinction between Jew and Greek, monk and layman, and that a vow in opposition to the gospel was no vow, but an impiety. Ceremonies, observances, and dress were pronounced futile; those who chose to abide by the established rule were free to do so, but their preferences were not to be a law to their fellows. Those who were fitted for preaching the word were advised to depart; those who remained were obliged to perform the manual labor which had been so prominent a portion of primæval Teutonic monasticism, and mendicancy was strictly forbidden. In a few short and simple canons a radical rebellion thus declared itself in the heart of an ancient and powerful order, and principles were promulgated which were totally at variance with sacerdotalism in all its protean forms.¹⁰⁵⁸

This broad spirit of toleration did not suit the views of the more progressive reformers. In Luther's own Augustinian convent at Wittenberg, one of his most zealous adherents, Gabriel Zwilling, preached against monachism in general, taking the ground that salvation required the renunciation of their vows by all who had been ensnared into assuming the cowl; and so great was his success that thirteen monks at once abandoned the convent. Yet even on Luther's return to Wittenberg, he at first took no part in the movement. He retained his Augustinian habit, and continued his residence in the convent; but before the close of the year (1522) he put forth his work, "De Votis Monasticis," in which he fully and finally adopted the views of his friends, and showed himself as an uncompromising enemy of monasticism.¹⁰⁵⁹ How difficult it was for him, however, to shake off the habitudes in which he had been trained is shown by the fact that, even at the

end of 1523, he still sometimes preached in his cowl and sometimes without it.^{[1060](#)}

Notwithstanding the zealous opposition of the orthodox ecclesiastical authorities, the doctrine and practice of Wittenberg were not long in finding earnest defenders and imitators. But few such marriages, it is true, are recorded in 1522, although Balthazar Sturmius, an Augustinian monk of Saxony, committed the bolder indiscretion of marrying a widow of Franconia. In that year, however, we find Franz von Sickingen, knight-errant and condottiero, who was then a power in the state, advocating the emancipation and marriage of the religious orders, in a letter to his father-in-law, Diedrich von Henthschuchsheym. Still more important was the movement inaugurated in Switzerland by Ulrich Zwingli, who, with ten other monks of Nôtre-Dame-des-Hermes, on the 2d of July, 1522, addressed to Hugo von Hohenlandenberg, Bishop of Constance, a petition requesting the privilege of marriage. The petitioners boldly argued the matter, citing the usual Scriptural authorities, and adjured the bishop in the most pressing terms to grant their request. They warned him that a refusal might entail ruinous disorders on the whole sacerdotal body, and that, unless he seized the opportunity to guide the movement, it might speedily assume a most disastrous shape. They asserted, indeed, that not only in Switzerland, but elsewhere, it was generally believed that a majority of ecclesiastics had already chosen their future wives, and that a return to the old order of things was beyond the power of man to accomplish.^{[1061](#)}

In this assertion, Zwingli and his companions followed perhaps rather the dictates of their hopes than of their judgment, for the revolution was by no means as universal or immediate as their threats or warnings would indicate. Its progress, nevertheless, was rapid and decided. Luther, whom we have seen, in the earlier part of 1522, still giving but a qualified assent to the daring innovation of his followers, in February, 1523, wrote to Spalatin in favor of a married pastor who was seeking preferment at the hands of the Elector Frederic;^{[1062](#)} and in April, 1523, he himself officiated and preached a sermon in favor of matrimony to a multitude of distinguished friends at the wedding of Wenceslas Link, vicar of the Augustinian order, one of his oldest and most valued supporters, who had stood unflinchingly by him when arraigned by Cardinal Caietano before the

Emperor Maximilian at the Diet of Augsburg.¹⁰⁶³ Not less important was the countenance given to the innovation, two days later, by the Elector Frederic, who consented to act as sponsor at the baptism of the first-born of Franz Gunther, pastor of Loch;¹⁰⁶⁴ the ceremony being performed by the honest chronicler Spalatin himself.

It is curious to see in Spalatin's diary how each successive marriage is recorded as a matter of the utmost interest, the hopes of the reformers being strengthened by every accession to the ranks of those who dared to defy the rules which had been deemed irreversible for centuries. Nor was it an act without danger, for no open rupture had as yet taken place between the temporal power of any state and the central authority at Rome. Even in Electoral Saxony, though Duke Frederic, by a cautious course of passive resistance, afforded protection to the heretics, yet he still considered himself a Catholic, and the ritual of his chapel was unaltered. Elsewhere the ecclesiastical power was bent on asserting its supremacy over the licentious apostates who ventured to sully their vows and prostitute the sacrament of marriage by their incestuous unions. The old charge of promiscuous intercourse was resorted to in their case, as it has been with almost every heresy in every age, for the purpose of exciting popular odium,¹⁰⁶⁵ and wherever the discipline of the church could be enforced, it was done unsparingly. The temper of these endeavors to repress the movement is well illustrated by the regulations promulgated under the authority of the Cardinal-legate Campeggi, when, in 1524, he succeeded in uniting a number of reactionary princes at the Assembly of Ratisbon. Deploring the sacrilege committed in the marriages of priests and monks, which were becoming extremely common, he granted permission to the secular powers to seize all such apostates and deliver them to the ecclesiastical officials, significantly restraining them, however, from inflicting torture. The officials were empowered to condemn the offenders to perpetual imprisonment, or to hand them over to the secular arm—a decent euphuism for a frightful death; and any negligence on the part of the ordinaries exposed those officers to the pains and penalties of heresy.¹⁰⁶⁶

In spite of all this, however, the votaries of marriage had the support and sympathy of the great body of the people. It shows how widely diffused and strongly implanted was the conviction of the evils of celibacy, when those

who four centuries earlier had so cruelly persecuted their pastors for not discarding their wives now urged them to marriage, and were ready to protect them from the consequences of the act. Thus, during the summer of 1524, Wolfgang Fabricius Capito, provost of St. Thomas and priest of the church of St. Peter at Strassburg, whom we have seen two years earlier prosecuting a married priest, took to himself a wife, by the request of his parishioners, and when the chapter of canons endeavored to interfere with him, the threatening aspect of the populace warned them to desist. Nor was this the only case, for Bishop William undertook to excommunicate all the married priests of Strassburg, when the senate of the city resolutely espoused their cause, and even the authority of the legate Campeggi could not reconcile the quarrel.^{[1067](#)}

Even higher protection was sometimes not wanting. When Adrian II., in 1522, reproached the Diet of Nürnberg with the inobservance of the decree of Worms and the consequent growth of Lutheranism, and King Ferdinand, in the name of the German states, replied that a council for the reformation of the church was the only remedy, the question of married priests arose for discussion. The German princes alleged that they could find in the civil and municipal laws no provisions for the punishment of such transgressions, and that the canons of discipline could only be enforced by the ecclesiastical authorities themselves, who ought not to be interfered with in the discharge of their duty by the secular authorities.^{[1068](#)} This was scant encouragement, but even this was often denied in practice. When, in 1523, Conrad von Tungen, Bishop of Wurzburg, threw into prison two of his canons, the doctors John Apel and Frederic Fischer, for the crime of marrying nuns, the Council of Regency at Nürnberg forced him to liberate them in a few weeks.^{[1069](#)} This latter fact is the more remarkable, since, but a short time previous (March 6th, 1523), the Imperial Diet at Nürnberg, under the auspices of the same Regency, had expressed its desire to give every assistance to the ecclesiastical authority in enforcing the canons. In a decree on the subject of the religious disturbances, it adopted the canon law on celibacy as part of the civil law, pronouncing sentence of imprisonment and confiscation on all members of the clergy who should marry, and ordering the civil power in all cases to assist the ecclesiastical in its efforts to punish offenders.^{[1070](#)}

The emancipation of nuns excited considerable public interest, and in many instances was effected by aid from without. A certain Leonhard Kopp, who was a determined enemy of monachism, rendered himself somewhat notorious by exploits of the kind. One of the earliest instances was that by which, on Easter eve, 1523, at considerable risk, he succeeded in carrying off from the convent of Nimptschen, in Misnia, eight young virgins of noble birth, all of whom were subsequently married, and one of whom was Catharine von Bora.¹⁰⁷¹ The example was contagious. Before the month was out six nuns, all of noble blood, left the abbey of Sormitz, and soon after eight escaped from that of Peutwitz, at Weissenfels.¹⁰⁷² Monks enfranchised themselves with still less trouble. At Nürnberg, in 1524, the Augustinians in a body threw off their cowls and proclaimed themselves citizens.¹⁰⁷³

Finally, Luther gave the last and most unquestionable proof of his adhesion to the practice of sacerdotal marriage by espousing Catharine von Bora, whom we have seen escaping, two years before, from the convent of Nimptschen. Scandal, it would seem, had been busy with the intimacy between the pious doctor and the fair renegade, who had spent nearly the whole period of her liberty at Wittenberg, and Luther, with the practical decision of character which distinguished him, suddenly resolved to put the most effectual stop to rumors which his enemies doubtless were delighted to circulate. On the evening of June 13th, 1525, without consulting his friends, he invited to supper Pomeranius, Lucas Cranach, and Apellus, and had the marriage ceremony performed.¹⁰⁷⁴ It took his followers completely by surprise; many of them disapproved of it, and Justus Jonas, in communicating the fact to Spalatin, characterizes it as a startling event, and evidently feels that his correspondent will require the most incontrovertible evidence of the fact, when he declares that he himself had been present and had seen the bridegroom in the marriage bed.¹⁰⁷⁵ If the portraits after Lucas Cranach given in Mayer's Dissertation on Catharine be faithful likenesses, it was scarcely the beauty of his bride that led Luther to take this step, for her features seem rather African than European.¹⁰⁷⁶

When Luther had once decided for himself on the propriety of sacerdotal marriage, he was not likely to stop half-way. Some of the reformers were disposed to adopt the principles of the early church, and, while permitting

married priests to officiate, denied to them the right to marry a second time or to espouse any but virgins, declaring all *digami* worthy of death and calling upon the people to drive them out. Against these Luther, in 1528, took up the cudgels vigorously, arguing the question in all its bearings and arriving at the conclusion that only bigamists were to be shunned or deemed unworthy of holy orders.¹⁰⁷⁷ Yet at the same time his thoroughly practical mind prevented him from losing sight of some of the evils inseparable from the revolution which he had wrought in an institution so deeply affecting daily life as monasticism. As late as 1543, in a letter to Spalatin, while congratulating him on the desire expressed by some nuns to leave their convent, he cautions them not to do so unless they have a certainty or, at least, a speedy prospect of marriage. He complains of the number of such cases in which he had been obliged to support the fugitives, and he concludes by declaring that old women who had no chance of finding husbands had much better remain in their cloisters.¹⁰⁷⁸

It is not difficult to explain why there was so ready and general an acquiescence in the abrogation of a rule established by the veneration of so many centuries. Not only had the doctrines of the reformers taken a deep and firm hold of the popular heart throughout Germany, destroying the reverence for tradition and antiquity, and releasing the human mind from the crushing obligation of blind obedience, but there were other motives, natural, if not particularly creditable. The ecclesiastical foundations had long neglected the duties of charity, hospitality, and education, on which were grounded their claims to their broad lands and rich revenues. While, therefore, the temporal princes might be delighted with the opportunity of secularizing and seizing the church possessions, the people might reasonably hope that the increase of their rulers' wealth would alleviate their own burdens, as well as release them from the direct oppression which many of them suffered from the religious establishments. Even more potential was the disgust everywhere felt for the flagrant immorality of the priesthood. The dread experienced by every husband and father lest wife and daughter might at any moment fall victims to the lust of those who had every opportunity for the gratification of unholy passions, led them to welcome the change, in the hope that it would result in restoring decency and virtue to a class which had long seemed to regard its sacred character as the shield and instrument of crime.

The moral character of the clergy, indeed, had not improved during the busy and eventful years which marked the first quarter of the sixteenth century. There is a curious little tract, printed in Cologne in 1505, with the approbation of the faculty, which is directed against concubinage in general, but particularly against that of the priests. Its laborious accumulation of authorities to prove that licentiousness is a sin is abundant evidence of the existing demoralization, while the practices which it combats, of guilty ecclesiastics granting absolution to each other and mutually dispensing themselves from confession, show how easily the safeguards with which the church had sought to surround her ministers were eluded.¹⁰⁷⁹ The degradation of the priesthood, indeed, can readily be measured when, in the little town of Hof, in the Vogtland, three priests could be found defiling the sacredness of Ash-Wednesday by fiercely fighting over a courtesan in a house of ill-fame,¹⁰⁸⁰ or when Leo X., in a feeble effort at reform, was obliged to argue that systematic licentiousness was not rendered excusable because its prevalence amounted to a custom, or because it was openly tolerated by those whose duty was to repress it.¹⁰⁸¹ In fact, a clause in the Concordat with Francis I. in 1516, renewing and enhancing the former punishments for public concubinage, would almost justify the presumption that the principal result of the rule of celibacy was to afford to the officials a regular revenue derived from the sale of licenses to sin¹⁰⁸²—the old abuse, which rises before us in every age from the time of Damiani and Hildebrand, and which, since John XXII. had framed the tariff of absolutions for crime known as the “Taxes of the Penitentiary,” had the authority of the papacy itself to justify it. In this curious document we find that a concubinary priest could procure absolution for less than a ducat “in spite of all provincial and synodal constitutions;” while half a ducat was sufficient to absolve for incest committed with a mother or a sister.¹⁰⁸³

That no concealment was thought necessary, and that sensual indulgence was not deemed derogatory in any way to the character of a Christian prelate, may be reasonably deduced from the panegyric of Gerard of Nimeguen on Philip of Burgundy, granduncle of Charles V., a learned and accomplished man, who filled the important see of Utrecht from 1517 to 1524. Gerard alludes to the amorous propensities and promiscuous intrigues of his patron without reserve, and as his book was dedicated to the Archduchess Margaret, sister of Charles V., it is evident that he did not feel

his remarks to be defamatory. The good prelate, too, no doubt represented the convictions of a large portion of his class, when he was wont to smile at those who urged the propriety of celibacy, and to declare his belief in the impossibility of chastity among men who, like the clergy, were pampered with high living and tempted by indolence. Those who professed to keep their vows inviolate he denounced as hypocrites of the worst description, and he deemed them far worse than their brethren who sought to avoid unnecessary scandal by decently keeping their concubines at home.^{[1084](#)}

Even this reticence, however, was considered unnecessary by a large portion of the clergy. In 1512, the Bishop of Ratisbon issued a series of canons in which, after quoting the Basilian regulations, he adds that many of his ecclesiastics maintain their concubines so openly that it would appear as though they saw neither sin nor scandal in such conduct, and that their evil example was the efficient cause of corrupting the faithful.^{[1085](#)} In Switzerland the same abuses were quite as prevalent, if we may believe a memorial presented, in 1533, by the citizens of Lausanne, complaining of the conduct of their clergy. They rebuked the incontinence of the priests, whose numerous children were accustomed to earn a living by beggary in the streets, but the canons were the subjects of their especial objurcation. The dean of the chapter had defied an excommunication launched at him for buying a house near the church in which to keep his mistress; others of the canons had taken to themselves the wives of citizens and refused to give them up; but the quaintest grievance of which they had been guilty was the injury which their competition inflicted on the public brothel of the town.^{[1086](#)} What was the condition of clerical morality in Italy may be gathered from the stories of Bishop Bandello, who, as a Dominican and a prelate, may fairly be deemed to represent the tone of the thinking and educated classes of society. The cynical levity with which he narrates scandalous tales about monks and priests shows that in the public mind sacerdotal immorality was regarded almost as a matter of course.^{[1087](#)}

The powerful influence of all this on the progress of the Reformation was freely admitted by the authorities of the church. When the legate Campeggi was sent to Germany to check the spread of heresy, in his reformatory edict issued at Ratisbon in 1524, he declared that the efforts of the Lutherans had no little justification in the detestable morals and lives of the clergy, and this

is confirmed by his unsparing denunciation of their licentiousness, drunkenness, quarrels, and tavern-haunting; their traffic in absolution for enormous offences; their unclerical habits and hideous blasphemy; their indulgence in incantations and dabbling in witchcraft.¹⁰⁸⁸ Very significant is his declaration that the canonical punishments shall be inflicted on concubinary priests, in spite of all custom to the contrary or all connivance with the prelates.¹⁰⁸⁹

How little, indeed, licentious ecclesiastics might reasonably dread the canonical punishments is illustrated in the report, by the celebrated jurisconsult Grillandus, of a case which came before him while he was auditor of the Papal Vicar in Rome. A Spanish priest and Doctor of Canon Law, residing in the Christian capital, became enamoured of several young nuns at once, and endeavored to seduce them by teaching them that, as they and he were alike spouses of Christ, carnal affection between them was their duty. Failing in this, he sought to compel the assistance of God in his designs, and, being a man of literary culture, he composed a number of prayers of singular obscenity, and bribed various ignorant priests to recite them amid the ineffable mysteries of the Mass, hoping thus to obtain the aid of heaven in overcoming the chastity of his intended victims. At length he chanced to offer one of these prayers to a priest of somewhat better character, who was sufficiently shocked by it to communicate with the authorities. Brought before Grillandus, the guilty Spaniard sought to justify himself by alleging various Scriptural texts, but, upon being warned that such a defence would subject him to a prosecution for heresy, he recanted and acknowledged his errors. For this complicated mingling of lust and sacrilege, his only punishment was a short banishment from Rome.¹⁰⁹⁰ When the papal court set such an example, what was to be expected of less enlightened regions?

How keenly these evils were felt by the people, and how instinctively they were referred to the rule of celibacy as to their proper origin, is shown by an incidental allusion in the formula of complaint laid before the pope by the imperial Diet held at Nürnberg early in 1522, before the heresy of priestly marriage had spread beyond the vicinity of Wittenberg. The Diet, in recounting the evils arising from the ecclesiastical jurisdiction which allowed clerical offenders to enjoy virtual immunity, adduced, among other

grievances, the license afforded to those who, debarred by the canons from marriage, abandoned themselves night and day to attempts upon the virtue of the wives and daughters of the laity, sometimes gaining their ends by flattery and presents, and sometimes taking advantage of the opportunities offered by the confessional. It was not uncommon, indeed, for women to be openly carried off by their priests, while their husbands and fathers were threatened with vengeance if they should attempt to recover them. As regards the sale to ecclesiastics of licenses to indulge in habitual lust, the Diet declared it to be a regular and settled matter, reduced to the form of an annual tax, which in most dioceses was exacted of all the clergy without exception, so that when those who perchance lived chastely demurred at the payment, they were told that the bishop must have the money, and that after it was handed over they might take their choice whether to keep concubines or not.¹⁰⁹¹ In the face of this condition of ecclesiastical morality, it required some obtuseness for Adrian VI. to compare Luther to Mahomet, the one seeking to attract to his party the carnal-minded by permitting marriage, even as the other had established polygamy,¹⁰⁹² and, further, to abuse him for uniting the ministers of Christ with the vilest harlots.¹⁰⁹³

Among the diverse opinions of existing evils and their remedy, it is interesting to see what was the view of the subject taken by those ecclesiastics whose purity of life removed them from all temptation to indulgence, and who yet were not personally interested in upholding the gigantic but decaying structure of sacerdotalism. Of these men Erasmus may be taken as the representative. His opinion on all the questions of the day was too eagerly desired for him to escape the necessity of pronouncing his verdict on the innovation portended by the one or two marriages which took place near Wittenberg in 1521, and accordingly, in 1522, from his retreat at Bâle he issued a short dissertation on the subject, which, although addressed merely to Bishop Christopher of that city, was evidently intended for a European audience. In this essay, after sketching the rise of celibacy and attributing it to the purity and fervor of the early Christians, he proceeds to depict the altered condition of the church. Among the innumerable multitude of priests who crowd the monasteries, the chapters,

and the parishes, he declares that there are few indeed whose lives are pure, even as respects open and avowed concubinage, without penetrating into the mysteries of secret intrigue. As, therefore, there is no Scriptural injunction of celibacy, he concludes that, however desirable it might be to have ministers free from the cares of marriage and devoting themselves solely to the service of God, yet, since it seems impossible to conquer the rebellious flesh, it would be better to allow those who cannot control themselves to have wives with whom they could live in virtuous peace, bringing up their children in the fear of God, and earning the respect of their flocks. No more startling evidence, indeed, of the demoralization of the period could be given than the cautious fear which Erasmus expresses lest such a change should be opposed by the episcopal officials, who would object to the diminution of their unhallowed gains levied on the concubines of the clergy.^{[1094](#)}

When such was the condition of ecclesiastical morality, and such were the opinions of all except those directly interested in upholding the old order of things, it is no wonder if the people were disposed to look with favor on the marriage of their pastors, and if the rejection of celibacy gave a fresh impetus to the cause of Lutheranism. In the early days of all sects, it is only those of ardent faith and pure zeal who are likely to embrace a new belief, with all the attendant risks of persecution and contumely. The laxity of life allowed to the Catholic clergy would attract to its ranks and retain those whose aim was sensual indulgence. Thus, necessarily, the reformers who married would present for contrast regular and chaste lives and well-ordered households, purified by the dread of the ever-impending troubles to which the accident of a day might at any time expose them. The comparison thus was in every way favorable to the new ideas, and they flourished accordingly.

Nor, perhaps, were the worldly inducements to which I have before alluded less powerful in their own way in advancing the cause. Shortly before Luther's marriage, whatever influence was derivable from an aristocratic example was obtained when the Baron of Heydeck, a knight of the Teutonic order, renounced his vows and publicly espoused a nun of

Ligny.^{[1095](#)} This may possibly have encouraged his superior, Albert of Brandenburg, grand-master of the order, to execute his remarkably successful coup d'état in changing his religion and seizing the estates of the order, thus practically founding the state which chance and talent have exalted until it has been able to realize, at least for a time, the day-dream of a united Germany. The liberty of marriage which he thus assumed was soon turned to account in his advantageous alliance with Frederic, King of Denmark, whose daughter Dorothea he espoused, the Bishop of Szamland officiating as his proxy, and the actual marriage being celebrated June 14, 1526.^{[1096](#)}

Luther may reasonably be held excusable for counselling and aiding a transaction which lent such incalculable strength to the struggling cause of the Reformation, and it is not to be wondered at if he endeavored to follow it up with another of a similar character. The nephew of the Duke of Prussia, also named Albert of Brandenburg, occupied the highest place in the Teutonic hierarchy, as Archbishop both of Mainz and Magdeburg, in the latter of which powerful sees the Lutheran heresies had taken deep root. Luther sought to induce the archbishop to follow his uncle's example; to take possession in his own right of the Magdeburg territories, and to transmit them to the posterity with which heaven could not fail to bless his prospective marriage—a scheme which met the warm approbation of the leading nobles of the diocese. Albert thought seriously of the project, especially as the Peasants' War then raging was directed particularly against the lands of the church, but he finally abandoned it, and his flock had to work out their reformation without his assistance.^{[1097](#)}

Perhaps some plans of territorial aggrandizement may have stimulated the zeal of the Count of Embden, who boasted that he had assisted and encouraged the marriage of no less than five hundred monks and nuns;^{[1098](#)} yet the process of secularizing the monastic foundations was in many places by no means sudden or violent. Thus, when the Abbot of Ilgental in Saxony died, in 1526, the Elector John simply forbade the election of a successor, and placed the abbey in charge of a prefect, while the remaining monks were liberally supplied until they one after another died out,^{[1099](#)} and in 1529, when Philip, Count of Waldeck, took possession of the ancient

monastery of Hainscheidt, he caused all the monks to be supported during life. [1100](#)

Through all this period the hope had never been abandoned of such an arrangement as would prevent an irrevocable separation in the church. Moderate and temperate men on both sides were ready to make such concessions of form as would enable Christendom to remain united, as the great vital truths on which all were agreed so far outweighed the points of divergence. Whether these hopes were well or ill-founded was to be determined at the Diet of Augsburg, to which, in June, 1530, both parties were summoned for the purpose of submitting their differences to the emperor. Charles came to Germany in the full flush of his recent extraordinary triumphs, the most powerful prince since the days of Charlemagne. Europe was at length at peace, even the Turk only looming in the East as a probable, not as an existing, enemy. But Charles, newly crowned at Bologna, came ostensibly as the steadfast ally of the pope, and Clement VII. had not the slightest intention of renouncing the traditional and imprescriptible rights of the Holy See. The Catholic princes of Germany, too, had their grounds of private quarrel with their Protestant peers, and, holding an unquestioned majority, were not disposed to abandon their position. The Protestant princes, on the other hand, were firm in their new-found faith, and, however disposed to avert the threatened storm by the sacrifice of non-essentials, their convictions were too strong for them to retrace the steps which they had taken during so many long and weary years. It is evident that, with such materials on either side, no reunion was probable; and, even had an accommodation on points of doctrine been possible, there was one subject which scarcely seemed to admit of satisfactory compromise. In the states of the reform, the downfall of monachism had placed in the hands of the temporal powers large bodies of sequestrated abbey lands. To the Catholic it was sacrilege to leave these in the hands of the spoiler; the Protestant would not willingly give up the spoil.

The contest was opened by the Protestants submitting a statement of their belief, divided into two parts, the one devoted to points of faith, the other to

matters of practice. Prepared principally by Melanchthon, it presents their tenets in the mildest and least objectionable form, and becoming the recognized standard of their creed, it has attained a world-wide renown under the name of the Confession of Augsburg. The questions of celibacy and monastic vows were ably and temperately argued; their post-scriptural origin was shown, and the reasons which induced the reformers to reject them were placed in a light as little offensive as possible.¹¹⁰¹ At first, a counter-statement was anticipated from the Catholics, and negotiations were expected to be carried on by a comparison of the two, but they took higher ground, and contented themselves with drawing up a refutation of the Confession. The emperor was firm. His aspirations for the universal monarchy, which ever eluded his grasp, did not comport with encouraging independence of thought and freedom of religious belief. In his theory, uniform subordination of religion was a necessary element of the political system which was to make him sovereign of Europe, and he would listen to no compromise. He was inclined to summary measures, but the Catholic princes were hardly prepared for the consequences of an immediate rupture, and, after a threatening interval, another effort was made to effect a reconciliation. Conferences between the leading theologians on both sides took place, and the Lutherans, warned of their danger, were more disposed than ever to make concessions and to accept such terms as the stronger party were willing to offer them. At length, on the 8th of September, the draft of a proposed plan of accord was laid before the Diet. In this the points in dispute were referred to that future œcumenic council which had so long been demanded as the panacea for all ecclesiastical ills, and which, after more than thirty years of continued expectation, was destined to fail so miserably in reconciling difficulties. Such monasteries as had not been destroyed were to be maintained in the exercise of the customary rites and observances of religion. Abbots and communities who had been ejected were to be allowed to return; and all religious houses which had been emptied of their occupants were to be placed in the hands of officers appointed by the emperor, who were to administer to their possessions until the future council should decide upon all the points relating to monachism; the Protestants thus relieving themselves of the accusation that they were actuated by motives of worldly gain. Similar proposals were made with regard to communion in the two elements and clerical marriage. These were left as open questions for the council to settle, while a phrase of doubtful

import subjected them in the mean time to the governments of the several states.¹¹⁰² The concessions in this project, however, though they might suit the views of temperate doctors and princes in Germany, and though even the Roman curia might be willing to grant them in order to save its threatened temporal power over the Teutonic states, did not suit the policy of Charles, who regarded the church as simply one of the instruments with which he was to build up his universal empire.¹¹⁰³ It was not difficult for him, therefore, to bring to naught all such schemes of conciliation. The restoration of all abbots and monks was ordered; restitution of church lands was commanded, or their delivery to the emperor to be held until the assembling of the future council; and when the Diet adjourned, Charles issued a decree enjoining on all married priests to abstain from their wives, to eject them, and to seek absolution from their ordinaries.¹¹⁰⁴

The threatening aspect of affairs warned the Protestant princes that no time was to be lost in making provision for mutual defence, and ere the year was out the famous League of Schmalkalden enabled them to present a united front to the powers which they had virtually defied. Into the political history of that eventful time it is not my province to enter. Suffice it to say that they were able to maintain their position, and in their own states to oppose the reactionary movement which at times seemed to be on the point of destroying all that had been accomplished.

In this their task was complicated by the extravagances of those whose enthusiasm, unbalanced by reason, carried them beyond restraint. If Luther had found it no easy task to break the chains which for so many ages had kept in check the spirit of free inquiry, he discovered that it was impossible to control that spirit once let loose; and the wild excesses of Anabaptism were at once the exaggeration and the opprobrium of Lutheranism. Originally earnest and self-denying, the primitive Anabaptists had captivated the fiery soul of Carlostadt, while Luther was in his Patmos of Wartburg, but the pure asceticism of Storck and Muncer gradually grew irksome to the followers who flocked to their standard, and, if we may believe contemporary writers, the unchaining of human passions in that lawless horde resulted in the *igneum baptisma*, or fiery baptism, by which at Munster John Mathison encouraged the most hideous licentiousness in

the elect, to be followed up by his successor, John of Leyden, who, in imitation of the patriarchs, promulgated the law of polygamy.^{[1105](#)}

Luther, however, was quite as resolute in setting limits to his movement as Rome had been in forbidding all progress, and the Anabaptists were to him enemies as detestable as Catholics. The Protestant princes, moreover, had too much worldly wisdom to imperil their dangerous career by any alliance with fanatics whose extravagances provoked abhorrence so general. The cause of the Reformation, therefore, although it suffered no little from so portentous an illustration of the dangers resulting from the destruction of the ancient barriers, escaped all contamination in itself, and its leaders pursued their course undeviatingly.

Meanwhile the League of Schmalkalden accomplished its purpose. Henry VIII. and Francis I. were eager to seize the opportunity of encouraging dissension in the empire. The Turk became more menacing than ever. Charles, always ready to yield for a time when opposition was impolitic, gracefully abandoned the position assumed at Augsburg; and the negotiations of Schweinfurth and Nürnberg resulted in the decree of the Diet of Ratisbon in 1532, by which, until the assembling of the future council, all religious disturbances were prohibited, and the imperial chamber was commanded to undertake no prosecutions on account of heresy. Toleration was thus practically established for the moment, but the abbots and monks who had been ejected, and who had been anticipating their restoration, became naturally restive. Charles cunningly sent from Italy full powers to the chamber to decide as to what causes arose from religious disputes, and what were simply civil or criminal. Thus intrusted with the interpretation of the Ratisbon decree, the chamber assumed that claims on church lands were not included in the forbidden class, while old edicts prohibiting the observances of Lutheranism brought all religious questions within the scope of criminal law. The promised toleration was thus practically denied, but, fortunately for the Protestants, Ferdinand was anxiously negotiating for their recognition of his dignity as king of the Romans, and by the Transaction of Cadam in 1533 he purchased the coveted homage by accepting their construction of the edict of Ratisbon.

Still the Protestants complained of persecution and the Catholics of proselytism. The ensuing fifteen years were filled with a series of bootless negotiations, pretended settlements, quarrels, recriminations, and mutual encroachments which year after year occupied the successive Diets, and kept Germany constantly trembling on the verge of a desolating civil war. It would be useless to disturb the dust that covers these forgotten transactions, which can teach us nothing save that the Protestants still refused to recognize that the schism was past human power to heal; that Rome, recovering from her temporary hesitation, would not abate one jot of her pretensions to save her supremacy over half of Christendom;^{[1106](#)} and that Charles, as a wily politician, was always ready in adversity to abandon with a good grace that which he had arrogantly seized in prosperity.^{[1107](#)} How eager, indeed, were the Protestants to effect some compromise which should relieve them from their exceptional position is strikingly manifest in the Articles which Melanchthon and his friends, in 1535, submitted to Francis I., after the Sorbonne had refused to enter into a disputation or conference with them. In this document all non-essentials were abandoned; doctrinal dissidences were skilfully evaded, and stress only was laid upon such regulations as should remove the external corruption of the church. Melanchthon proposed that the monastic orders should be continued, but that the vows should not be perpetual, so that religion might not be disgraced by the excesses of those who had mistaken their vocation. So, as regards priestly celibacy, he proposed that, as human nature rendered it impossible to supply the multitude of parishes with men able to live in continence, those who could not preserve their purity should be allowed to marry; while, to prevent the dilapidation of church property, the higher positions should be reserved to men of mature age, who could lead a single life.^{[1108](#)} The Sorbonne, in reply, condescended to no argument, but contented itself with asserting that the Protestants desired the subversion of all religion, while, on the other hand, Melanchthon had the satisfaction of being proclaimed a traitor by the Germans.

In all this the only point which possesses special interest for us is another authoritative attempt at reconciling the irreconcilable which occurred in 1541. After a conference between Melanchthon and Dr. Eck at Worms, Charles himself presented to the Diet of Ratisbon a statement of the questions in dispute, with propositions for mutual concession and

compromise. In the course of this, he reviewed the practice of the church in various ages with regard to sacerdotal celibacy, admitting that the enforcement of it was not in accordance with the ancient canons, and indicating a willingness to see it abrogated.¹¹⁰⁹ The Protestants, who were ready to make many sacrifices for peace, hailed this intimation with triumph, stoutly insisting on the repeal of the obnoxious rule, which they stigmatized as unjust and pernicious.¹¹¹⁰ So nearly did the parties at length approach each other, that there appeared every reason to anticipate a successful result to the effort, when Paul III. again interfered and pronounced all the proceedings null and void, as the church alone had power to regulate its internal affairs. The expectations excited by these negotiations naturally stimulated the desire of the people for a change in the discipline of the church, and the next year we find Paul III. obliged to exhort the Bishop of Merseburg to resist the clamors of his subjects, who demanded the abrogation of priestly celibacy and the use of the cup for the laity, under threats of ejecting him. The pope evidently considered the Germans unduly impatient, since they objected to await the assembling of the Council of Trent, which was called to decide upon these matters.¹¹¹¹

Charles had long recognized that the perpetual menace of a powerful confederation such as the Schmalkaldic League, entertaining constant relations with the external enemies of the empire, was incompatible with the peace of Germany and with an imperial power such as he was resolved to wield. The time at last came for the development of his plans. The skill of Alva and the treachery of Maurice of Saxony were crowned with success. The battle of Muhlberg broke the power of the Protestants utterly, and laid them helpless at the feet of their bitterest foes. Yet the progress of the new ideas had already placed them beyond the control of even the triumphant Charles, though he had the Elector of Saxony and the Landgrave of Hesse in his dungeons. When, at the Diet of Augsburg, in 1548, he proposed the curious arrangement known as the *Interim*, by which he hoped to keep matters quiet until the final verdict of that œcumenic council which constantly vanished in the distance, he felt it necessary to permit all married priests to retain their wives until the question should be decided by the

future council. A faint expression of a preference for celibacy, moreover, was significant both in what it said and what it left unsaid.^{[1112](#)}

The Interim, of course, satisfied neither party. The Catholics regarded it as an unauthorized reformation, the Protestants as disguised popery. Charles, however, in the plenitude of his power, obliged many of the Lutheran states to accept it; while, as regards the Catholics, he was perhaps not sorry to show the pope that he, too, like Henry VIII., could regulate the consciences of his subjects, and prescribe their religious faith. He had broken with Paul III.; the council of Trent, against his wishes, had been removed to Bologna on a frivolous pretext; and a schism like that of England was apparently impending. At the least, Charles might not unreasonably desire to manifest that at last he was independent of that papal power with which mutual necessities had so long enforced the closest relations, and to prove that deference to his wishes was henceforth to be the price of his all-important support. He demanded that legates should be sent to Germany armed with extraordinary powers, among which was included authority to grant dispensations to married priests. Paul III. referred the request to the Sacred College and to the council then sitting at Bologna, and it was unanimously replied that it should be granted, with the limitations that monks should not be included, and that priests thus permitted to retain their wives should not exercise their functions or enjoy the fruits of their benefices.^{[1113](#)} That Paul forthwith dispatched three nuncios entrusted with authority to do this shows not only the disposition which then existed to relax the rigor of the canons respecting celibacy, but also the importance which the question had assumed in the religious disputes of the time,^{[1114](#)} though an absolute refusal was soon afterwards returned to the request of a German prince (supposed to be the Duke of Bavaria) requesting for his subjects the use of the cup, priestly marriage, and the relaxation of the obligation of fasting.^{[1115](#)}

Temporary expedients and compromises such as these are interesting merely as they mark the progress of opinion. Paltry makeshifts to elude the decision of that which had to be decided, they exercised little real influence on the history of the time. It is true that when Charles, in 1551, at the Diet of Augsburg, issued a call for the reassembling of the council of Trent, he confirmed the Interim until that council should decide all unsettled

questions,^{[1116](#)} yet this confirmation was destined to be effective for a period ludicrously brief. A fresh treason of Maurice of Saxony undid all that his former plotting had accomplished; and, while Henry II. was winning at the expense of the empire the delusive title of Conqueror, Charles found himself reduced to the hard necessity of restoring all that his crooked policy had for so many years been devoted to extorting. The Transaction of Passau, signed August 2d, 1552, gave full liberty of conscience to the Lutheran states, until a national council or Diet should devise means of restoring the unity of the church; and in case such means could not be agreed upon, then the rights guaranteed by the Transaction were granted in perpetuity.^{[1117](#)} If Charles was disposed to withdraw the concessions thus exacted of him, the miserable siege of Metz and the increasing desire for abdication prevented him from attempting it; and, at the Diet of Augsburg, in 1555, the states and cities of the Augsburg Confession were confirmed in their right to enjoy the practices of their religion in peace.^{[1118](#)}

The long struggle thus was over. The public law of Germany at last recognized the legality of the transactions based upon the Reformation, and not the least in importance among those transactions were the marriages of the ministers of Christ.

XXVI. THE ANGLICAN CHURCH.

The abrogation of celibacy in England was a process of far more perplexity and intricacy than in any other country which adopted the Reformation. Perhaps this may be partially explained by the temperament of the race, whose fierce spirit of independence made them quick to feel and impatient to suffer the manifold evils of the sacerdotal system, while their reverential conservatism rendered them less disposed to adopt a radical cure than their Continental neighbors.

In no country of Europe had the pretensions of the papal power been so resolutely set aside. In no country had ecclesiastical abuses been more earnestly attacked or more persistently held up for popular odium, and the applause which greeted all who boldly denounced the shortcomings of priest and prelate shows how keenly the people felt the evils to which they were exposed. William Langlande, the monk of Malvern, was no heretic, yet he was unsparing in his reprobation of the corruptions of the church:—

“Right so out of holi chirche,
Alle yveles springeth,
There inparfit preesthode is,
Prechours and techeris

.. . .

And prechours after silver,
Executours and sodenes,
Somonours and hir lemmannes;
That that with gile was geten,
Ungraciousliche is despended;
So harlotes and hores
Arn holpe with swiche goodes,
And Goddes folk, for defaute thereof,
For-faren and spillen.”^{[1119](#)}

And he boldly prophesied the violent downfall of the whole fabric—

“Right so, ye clerkes,
For youre coveitise, er longe,
Shal thei demen *dos ecclesiæ*,
And youre pride depose.
Deposuit potentes de sede, etc.

.. . .
Leveth it wel ye bisshopes
The lordshipe of your londes
For evere shul ye lese,
And lyven as *levitici*, etc.”[1120](#)

But while the people greeted these assaults with the keenest pleasure, they were attached to the old observances, and were in no haste to see the predictions of the poet fulfilled. A little sharp persecution was sufficient to suppress all outward show of Lollardry, and there was no chance in England for the fierce revolutionary enthusiasm of the Taborites.

As the sixteenth century opened, John Colet did good work in disturbing the stagnation of the schools by his contempt for the petrified theological science of the schoolmen. His endeavor to revert to the Scriptures as the sole source of religious belief was a step in advance, while he was unsparing in his denunciations of the corruptions which were as rife in the English church as we have seen them elsewhere. Yet Colet, though at one time taxed with heretical leanings, kept carefully within the pale of orthodoxy, and seems never to have entertained the idea that the evils which he deplored were to be attacked save by a renewal of the fruitless iteration of obsolete canons.[1121](#) Perhaps, however, his friend and disciple, Sir Thomas More, is the best example of this frame of mind in England's worthiest men, the besetting weakness of which made the Anglican reformation a struggle whose vicissitudes can scarce be said to have even yet reached their final development.

Before Luther had raised the standard of revolt, More keenly appreciated the derelictions of the church, and allowed his wit to satirize its vices with a freedom which showed the scantiest respect for the sanctity claimed by its hierarchy.[1122](#) Yet when Luther came with his heresies to sweep away all abuses, More's gentle and tender spirit was roused to a vulgarity of

vituperation which earned for him a distinguished place among the foul-mouthed polemics of the time, and which is absolutely unfit for translation.¹¹²³ As regards ascetic observances, before the Lutheran movement, More seems to have inclined towards condemning all practices that were not in accordance with human nature, though he appears willing to admit that there may be some special sanctity, though not wisdom, in conquering nature.¹¹²⁴ After the commencement of the Reformation, however, his views underwent a reaction, and he not only defended monastic vows, but he even went so far as to argue that by the recent marriages of the Saxon reformers God had manifested his signal displeasure, for in the old law true priests could be joined only to the chastest virgins, while God permitted these false pastors to take to wife none but public strumpets.¹¹²⁵ If he accused Luther of sweeping away the venerable traditions of man and of God,¹¹²⁶ he showed how conscientious was this rigid conservatism when he laid his head upon the block in testimony for the principal creation and bulwark of tradition—the papal supremacy.

A community thus halting between an acute perception of existing evils and a resolute determination not to remove them was exactly in the temper to render the great movement of the sixteenth century as disastrous to themselves as possible. How to meet the inevitable under such conditions was a problem which well might tax the acutest intellect, and Wolsey, whose fate it was to undertake the task, seems to have been inspired with more than his customary audacious ingenuity in seeking the solution.

Wolsey himself was no ascetic, as the popular inscription over the door of his palace—“*Domus meretricium Domini Cardinalis*”—sufficiently attests. A visitation of the religious houses undertaken in 1511 by Archbishop Warham had revealed all the old iniquities without calling forth any remedy beyond an admonition.¹¹²⁷ In 1518, Wolsey himself had attempted a systematic reformation in his diocese of York, and had revived the ancient canons punishing concubinage among his priesthood,¹¹²⁸ and in 1519 we find him applying to Leo X. for a Bull conferring special power to correct the enormities of the clergy.¹¹²⁹ When, in 1523, he proposed a general visitation for the reformation of the ecclesiastical body, Fox, Bishop of Winchester, urged it as in the highest degree necessary, stating that he

himself had for three years been devoting all his energies to restore discipline in his diocese, and that his efforts had been so utterly fruitless that he had abandoned all hope of any change for the better.¹¹³⁰ Cranmer, indeed, in his “Confutation of Unwritten Verities,” had no hesitation to say that “within my memory, which is above thirty years, and also by the information of others that be twenty years elder than I, I could never perceive or learn that any one priest, under the pope’s kingdom, was ever punished for advoutry by his ordinary.”¹¹³¹ It may readily be believed, therefore, that Wolsey fully recognized the utter inefficiency of the worn-out weapons of discipline. Yet he was too shrewd a statesman not to foresee that reformation from within or from without must come, and, in taking the initiative, he commenced by quietly and indirectly attacking the monastic orders. As a munificent patron of letters, it was natural that he should emulate Merton and Wykeham in founding a college at Oxford; and “Cardinal’s College,” now Christ Church, became the lever with which to topple over the vast monastic system of England.

The development of the plan was characteristically insidious. By a Bull of April 3d, 1524 (confirmed by Henry, May 10th), Clement VII. authorized him to suppress the priory of St. Frediswood at Oxford, and to remove the monks for the purpose of converting it into a “Collegium Clericorum Seculorum.”¹¹³² This was followed by a Bull, dated August 21st of the same year, empowering him as legate to make inquisition and reformation in all religious houses throughout the kingdom, to incarcerate and punish the inmates, and to deprive them of their property and privileges, all grants or charters to the contrary notwithstanding.¹¹³³ The real purport of this extraordinary commission is shown by the speedy issue of yet another Bull, dated September 11th, conceding to him the confiscation of monasteries to the amount of 3000 ducats annual rental, for the endowment of his college, and alleging as a reason for the measure that many establishments had not more than five or six inmates.¹¹³⁴

The affair was now fully in train, and proceeded with accelerating momentum. On the 3d of July, 1525, Henry confirmed the incorporation of the college; his letters-patent of May 1st, 1526, enumerate eighteen monasteries suppressed for its benefit, while other letters of May 10th grant seventy-one churches or rectories for its support, and yet other grants are

alluded to as made in letters which have not been preserved.¹¹³⁵ In 1528 these were followed by various other donations of religious houses and manors; and during the same year Wolsey founded another Cardinal's College at Ipswich, which became a fresh source of absorption.¹¹³⁶

Had Henry VIII. entertained any preconceived design of suppressing the religious houses, his impatient temper would scarcely have allowed him to remain so long a witness of this spoliation without taking his share and carrying the matter out with his accustomed boldness and disregard of consequences. At length, however, he claimed his portion, and procured from Clement a Bull dated November 2d, 1528, conceding to him, for the benefit of the old foundations of the King's Colleges at Cambridge and Windsor, the suppression of monasteries to the annual value of 8000 ducats.¹¹³⁷ This was followed by another, a few days later, empowering Wolsey and Campeggi, co-legates in the affair of Queen Katharine's divorce, to unite to other monasteries all those containing less than twelve inmates—thus suppressing the latter, of which the number was very large.¹¹³⁸ Another Bull of the same date (November 12th) attacked the larger abbeys, which had thus far escaped. It ordered the two cardinals, under request from the king, to inquire into the propriety of suppressing the rich monasteries enjoying over 10,000 ducats per annum, for the purpose of converting them into bishoprics, on the plea that the seventeen sees of the kingdom were insufficient for the spiritual wants of the people.¹¹³⁹ The report of the cardinals apparently seconded the views of Henry, for Clement granted to them, May 29th, 1529, the power of creating and arranging bishoprics at their discretion, and of sacrificing additional monasteries when necessary to provide adequate revenues.¹¹⁴⁰ It is probable that the monks who had been unceremoniously deprived of their possessions did not in all cases submit without resistance, for the Bull of November 12th, 1528, suppressing the smaller houses, was repeated August 31st, 1529, with the suggestive addition of authority to call in the assistance of the secular arm.¹¹⁴¹

Wolsey was now tottering to his fall. Process against him was commenced on October 9th, 1529, and on the 18th the Great Seal was delivered to More. His power, however, had lasted long enough to break down all the safeguards which had for so many centuries grown around the

sacred precincts of ecclesiastical property; and the rich foundations which covered so large a portion of English territory lay defenceless before the cupidity of a despot, who rarely allowed any consideration, human or divine, to interfere with his wishes, whose extravagance rendered him eager to find new sources of supply for an exhausted treasury, and whose temper had been aroused by the active support lent by the preaching friars to the party of Queen Katharine in the affair of the divorce. Yet it is creditable to Henry's self-command that the blow did not fall sooner, although it came at last.

It is not my province to enter into the details of Henry's miserable quarrel with Rome, which, except in its results, is, from every point of view, one of the most humiliating pages of history. The year 1532 saw the proclamation of the king commanding the support of his subjects in the impending rupture, and the subscription of the clergy to a paper which, with unparalleled servility, placed the whole ecclesiastical constitution of the kingdom in his absolute power.¹¹⁴² The following year his long-protracted divorce from Katharine of Arragon was consummated; the annates were withdrawn from the pope, and Henry assumed the title of Supreme Head of the Church of England.¹¹⁴³ In 1535 an obedient Parliament confirmed the acts of the sovereign, and forbade the promulgation of any canons by synods or convocations without his approval. The power of the pope was abolished by proclamation; and Universities and prelates rivalled each other in obsequiously transferring to Henry the reverence due to Rome.¹¹⁴⁴

The greater portion of the monasteries, which had already experienced a foretaste of the wrath to come, hastened to proclaim their adhesion to the new theological autocracy, and means not the most gentle were found to persuade the remainder. The Carthusians of the Charter House of London gave especial trouble, and the contest between them and the king affords a vivid picture of the times. There is something very affecting in the account given by Strype of the humble but resolute resignation with which the prior and his monks prepared themselves for martyrdom in vindication of the papal supremacy.¹¹⁴⁵ Their courage was soon put to the test. Between the 27th of April and the 4th of August, 1535, the prior and eleven of his monks were put to death with all the horrors of the punishment for high treason;¹¹⁴⁶ but neither this nor the efforts of a new and more loyal prior

were able to produce submission. In 1536 ten of the most unyielding were sent to other houses, where several of them were subsequently executed, and in 1537 ten more were thrown into Newgate, where nine of them died almost immediately—it is to be presumed from the rigor of their confinement and the foulness of the jail. In 1539 the few that remained were expelled; the house was seized and used as an arsenal, until it was given to Sir Edward North, who changed it into a residence, pulling down the cloisters and converting the church into his parlor.^{[1147](#)}

The most conspicuous of the recalcitrants, however, was the powerful order of the Franciscans. These refused the oath exacted of them, causing no little trouble, and affording a cover for the intrigues of that large body of the clergy who were dissatisfied with the innovations, but afraid of open opposition.^{[1148](#)} This precipitated the ruin of the monastic orders, which could not, under any circumstances, have been long delayed, and a general visitation was considered the most effective means of encompassing their destruction. It was accordingly ordered in 1535, and as their immorality and neglect of their sacred duties had passed almost into a proverb, there was not much difficulty in accumulating evidence to justify the measure. The visitation was commanded to examine into the foundation, title, history, condition of discipline, and number and character of the inmates of all religious houses;^{[1149](#)} and, as might have been expected, the report disclosed a state of affairs which called for the immediate removal of so foul a source of corruption and scandal. The visitors had their work assigned them in advance, and they performed it thoroughly; but we cannot assume that the evils which they described were the creation of their own invention to gratify the wishes and advance the purposes of their master.

One of the earliest abbeys visited was that of Langdon, where the visitor, Dr. Leighton, suddenly breaking open the abbot's door, found him with his concubine, whose disguise as a man was discovered secreted in a coffer. Leighton's account of this little adventure "scribullede this Satterday," to his patron, Cromwell, is full of humor, showing how thoroughly he enjoyed his success, and how fully he was assured that the Secretary would likewise be gratified by it.^{[1150](#)} Bishop Burnet's general summary of the result of the visitation asserts that "for the lewdness of the confessors of nunneries, and the great corruption of that state, whole houses being found almost all with

child; for the dissoluteness of abbots and the other monks and friars, not only with whores, but married women; and for their unnatural lusts and other brutal practices; these are not fit to be spoken of, much less enlarged on, in a work of this nature. The full report of the visitation is lost, yet I have seen an extract of a part of it, concerning 144 houses, that contains abominations in it equal to any that were in Sodom.”^{[1151](#)}

The good bishop was not likely to extenuate what he had read, but we yet may readily believe the truth of his account of it, for we cannot assume that the charges were manufactured, like the accusations against the Templars, for the purpose of serving as an excuse for confiscation. The monasteries were not likely to have improved in morals since Archbishop Morton described a similar condition of affairs half a century earlier; nor is there any ground for imagining them better than their Continental contemporaries, whose lapses were the subject of animadversion by censors favorable to the monastic system. Scarce anything, indeed, can be conceived worse than the condition of the German convents as described in a document drawn up by command of the Emperor Ferdinand to stimulate the sluggishness of the council of Trent.^{[1152](#)} A short account of “The Manner of Dissolving the Abbeys,” by a contemporary,^{[1153](#)} states the result of the visitation in terms even stronger than those of Burnet, and Strype gives some most suggestive extracts from the report of the visitation of the diocese of Litchfield.^{[1154](#)} Descriptions of the disorders of special houses are very frequent in the private letters of the visitors and commissioners to Cromwell,^{[1155](#)} which may be the more readily believed, since they also report favorably of many abbeys as being well governed, and of the utmost benefit to their neighborhoods through their generous hospitality and charity. It should be added that, in some districts at least, the morals of the laity were no better than those of the clergy.^{[1156](#)} Nicander Nucius, who visited England about the year 1545, in relating the suppression of the monastic orders, gives as bad an account of their discipline as Burnet. He is not, of course, an original authority, but, as an impartial observer, his statements are worthy of consideration as reflecting the current views of society at the period.^{[1157](#)} It was evidently for the purpose of influencing public opinion abroad that a book on the subject was written in Italian by William Thomas, who summed up by stating that the visitors found “not

seven, but more than 700,000 deadly sins,” and who received the reward of his vivacity by being put to death under Queen Mary.^{[1158](#)}

A portion of the people were ready and eager to welcome the secularization of the religious houses. Their views and arguments are set forth with more force than elegance in the well-known “Beggars’ Petition,” which calculates that, besides the tithes, one-third of the kingdom was ecclesiastical property, and that these vast possessions were devoted to the support of a body of men who found their sole serious occupation in destroying the peace of families and corrupting the virtue of women. The economical injury to the commonwealth, and the interference with the royal prerogative of the ecclesiastical system, were argued with much cogency, and the king was entreated to destroy it by the most summary methods. That any one should venture to publish so violent an attack upon the existing church, at a time when punishment so prompt followed all indiscretions of this nature, renders this production peculiarly significant both as to the temper of the educated portion of the people, and the presumed intentions of the king.^{[1159](#)}

The visitation produced the desired effect. In 1536, after reading the report, Parliament passed without opposition a bill suppressing, for the benefit of the crown, all monasteries with less than twelve inmates or possessing a revenue under £200 per annum. Three hundred and seventy-six houses were swept away by this act, and the “Court of Augmentations of the King’s Revenue” was established to take charge of the lands and goods thus summarily escheated. The rents which thus fell to the king were valued at £32,000 a year, and the movable property at £100,000, while the commissioners were popularly supposed to have been “as careful to enrich themselves as to increase the king’s revenue.” Stokesley, Bishop of London, remarked, concerning the transaction, that “these lesser houses were as thorns soon plucked up, but the great abbots were like putrefied old oaks, yet they must needs follow, and so would others do in Christendom before many years were passed.” But Stokesley, however true a prophet in the general scope of his observation, was mistaken as to the extreme facility of eradicating the humble thorns. The country was not as easily reconciled to the change as the versatile, more intelligent, and less reverent inhabitants of the cities. Henry, unluckily, not only had not abrogated Purgatory by proclamation, but had specially recommended the continuance of prayers

and masses for the dead,¹¹⁶⁰ and thousands were struck with dread as to the future prospects of themselves and their dearest kindred, when there should be few to offer the sacrifice of the mass for the benefit of departed souls. The traveller and the mendicant, too, missed the ever open door and the coarse but abundant fare, which smoothed the path of the humble wayfarer. Discontent spread widely, and was soon manifested openly. To meet this, most of the lands were sold at a very moderate price to the neighboring gentry, under condition of exercising free hospitality, to supply the wants of those who had hitherto been dependent on conventual charity.¹¹⁶¹

The plan was only partially successful, and soon another element of trouble made itself apparent. Of the monks whose houses were suppressed, those who desired to continue a monastic life were transferred to the larger foundations, while the rest took “capacities,”¹¹⁶² under promise of a reasonable allowance for their journey home. They received only forty shillings and a gown, and with this slender provision it was estimated that about ten thousand were turned adrift upon the world, in which their previous life had incapacitated them from earning a support. The result is visible in the act for the punishment of “sturdy vagabonds and beggars,” passed by Parliament in this same year, inflicting a graduated scale of penalties, of which hanging was the one threatened for a third offence.¹¹⁶³

This was a dangerous addition to society when discontent was smouldering and ready to burst into flame. The result was soon apparent. After harvest-time great disturbances convulsed the kingdom. A rising, reported as consisting of twenty thousand men, in Lincolnshire, was put down by the Duke of Suffolk with a heavy force and free promises of pardon. In the North matters were even more serious. The clergy there were less tractable than their southern brethren, and some Injunctions savoring strongly of Protestantism aroused their susceptibilities afresh. Unwilling to submit without a struggle, they held a convocation, in which they denied the royal supremacy and proclaimed their obedience to the pope. This was rank rebellion, especially as Paul III., on the 30th of August, 1535, had issued his Bull of excommunication against Henry, and self-preservation therefore demanded the immediate suppression of the recalcitrants. They would hardly, indeed, have ventured on assuming a position of such dangerous opposition without the assurance of popular support, nor were

their expectations or labors disappointed. The “Pilgrimage of Grace,” according to report, soon numbered forty thousand men. Although Skipton and Scarborough bravely resisted a desperate siege, the success of the insurgents at York, Hull, and Pomfret Castle was encouraging, and risings in Lancashire, Durham, and Westmoreland gave to the insurrection an aspect of the most menacing character. Good fortune and skilful strategy, however, saved the Duke of Norfolk and his little army from defeat; the winter was rapidly approaching, and at length a proclamation of general amnesty, issued by the king on the 9th of December, induced a dispersion of the rebels. The year 1537 saw another rising in the North, but this time it only numbered eight thousand men. Repulsed at Carlisle, and cut to pieces by Norfolk, the insurgents were quickly put down, and other disturbances of minor importance were even more readily suppressed.¹¹⁶⁴

Strengthened by these triumphs over the disaffected, Henry proceeded, in 1537, to make the acknowledgment of papal authority a crime liable to the penalties of a *præmunire*;¹¹⁶⁵ and, as resistance was no longer to be dreaded, he commenced to take possession of some of the larger houses. These did not come within the scope of the act of Parliament, and therefore were made the subject of special transactions. The abbots resigned, either from having been implicated in the late insurrections, or feeling that their evil lives would not bear investigation, or doubtless, in many cases, from a clear perception of the doom impending in the near future, which rendered it prudent to make the best terms possible while yet there was time. Thus, in these cases, the monks were generally pensioned with eight marks a year, while some of the abbots secured a revenue of 400 or 500 marks.¹¹⁶⁶ In an agreement which has been preserved, the monks were to receive pensions varying from 53s. 4d. to £4 a year, according to their age.¹¹⁶⁷ In some cases, indeed, according to Bishop Latimer, in a sermon preached before Edward VI., the royal exchequer was relieved by finding preferment for most unworthy objects—“however bad the reports of them were, some were made bishops and others put into good dignities in the church; that so the king might save their pensions that otherwise were to be paid them.”¹¹⁶⁸ An effectual means, moreover, of inducing voluntary surrenders was by stopping their source of support, and thus starving them out. Richard, Bishop of Dover, one of the commissioners in Wales, writes to Cromwell, May 23d, 1538: “I thinke before the yere be owt ther schall be very fewe

howsis abill to lyve, but schall be glade to giffe up their howseis and provide for them selvys otherwise, for their thei schall have no living.” In anticipation of the impending doom, many of the abbots and priors had sold everything that was salable, from lands and leases down to spits and kitchen utensils, leaving their houses completely denuded. The letters of the commissioners are full of complaints respecting this sharp practice, and of their efforts to trace the property. Another mode of compelling surrenders was by threatening the strict enforcement of the rules of the order. Thus, in the official report of the surrender of the Austin friars of Gloucester, we find the alternative given them, when “the seyd freeres seyed ... as the worlde ys nowe they war not abull to kepe them and leffe in ther howseys, wherfore voluntarily they gaffe ther howseys into the vesytores handes to the kynges use. The vesytor seyed to them, ‘thynke nott, nor hereafter reportt nott, that ye be suppresseyd, for I have noo such auctoryte to suppressse yow, but only to reforme yow, wherfor yf ye woll be reformeyd, accordeyng to good order, ye may contynew for all me.’ They seyed they war nott abull to contynew,” whereupon they were ejected.^{[1169](#)}

In the year 1538 the work proceeded with increased rapidity, no less than 158 surrenders of the larger houses being enrolled. Many of the abbots were attainted of treason and executed, and the abbey lands forfeited. Means not of the nicest kind were taken to increase the disrepute of the monastic orders, and they retaliated in the same way. Thus, the Abbot of Crossed-Friars, in London, was surprised in the day time with a woman under the worst possible circumstances, giving rise to a lawsuit more curious than decent;^{[1170](#)} while, on the other hand, the Abbess of Chepstow accused Dr. London, one of the visitors, of corrupting her nuns.^{[1171](#)} Public opinion, however, did not move fast enough for the rapacity of those in power, and strenuous exertions were made to stimulate it. All the foul stories that could be found or invented respecting the abbeys were raked together; but these proving insufficient, the impostures concerning relics and images were investigated with great success, and many singular exposures were made which gave the king fresh warrant for his arbitrary measures, and placed the religious houses in a more defenceless position than ever.^{[1172](#)}

Despite all this, in the session of 1539 all the twenty-eight parliamentary abbots had their writs, and no less than twenty sat in the House of

Lords.¹¹⁷³ Yet the influence of the court and the progress of public opinion were shown in an act which confirmed the suppressions of the larger houses not embraced in the former act, as well as all that might thereafter be suppressed, forfeited, or resigned,¹¹⁷⁴ and May 9th, 1540, by special enactment, the ancient order of the Knights of St. John was broken up, pensions being granted to the grand prior and some of the principal dignitaries.¹¹⁷⁵ These measures consummated the ruin of the monastic system in England. Henceforth it was altogether at the king's mercy, and his character was not one to temper power with moderation. In 1539 there are upon record fifty-seven surrenders of the great abbeys,¹¹⁷⁶ and a large number in 1540, the good house of Godstow being the last of the great monasteries to fall. Of the old monastic system this left only the chantries, free chapels, collegiate churches, hospitals, &c., which were gradually absorbed during the succeeding years;¹¹⁷⁷ until the necessities of the king prompted a sweeping measure for their destruction. Accordingly in 1545 a bill was brought in placing them all at his disposition. There were some indications of opposition, but the king pleaded the expenditures of the French and Scottish wars, and solemnly promised his Parliament "that all should be done for the glory of God and common profit of the realm," whereupon it was passed.¹¹⁷⁸ It is computed that the number of monasteries suppressed by these various measures was 645; of colleges, 90; of chantries and free chapels, 2374; and of hospitals, 110.¹¹⁷⁹

A vast amount of property thus passed into the hands of the court. The clear yearly rental of the suppressed houses alone was rated at £131,607 6s. 4d.—an immense sum in those days; but Burnet states that in reality it was almost tenfold the amount.¹¹⁸⁰ Small as may have been the good effected by these enormous possessions in the hands of the monks, it was even more worthless under the management of its new masters. Henry admitted the heavy responsibility which he assumed in thus seizing the wealth which had been dedicated to pious uses, and he entertained magnificent schemes for devoting it to the public benefit, but his own necessities and the grasping avarice of needy courtiers wrought out a result ridiculously mean. Thus he designed to set aside a rental of £18,000 for the support of eighteen "Byshopprychys to be new made."¹¹⁸¹ For this purpose he obtained full power from Parliament in 1539,¹¹⁸² and in 1540 he established one on the

remains of the Abbey of Westminster. Those of Chester, Gloucester, and Peterboro' were established in 1541, and in 1543 those of Oxford and Bristol,¹¹⁸³ and one of them, that of Westminster, was suppressed in 1550, leaving only five as the result. The people were quieted by assurances that taxes would be abrogated forever and the kingdom kept in a most efficient state of defence; but subsidies and benevolences were immediately exacted with more frequency and energy than ever.¹¹⁸⁴ Splendid foundations were promised for institutions of learning, but little was given; a moderate sum was expended in improving the sea-ports, while broad manors and rich farms were granted to favorites at almost nominal prices; and the ill-gotten wealth abstracted from the church disappeared without leaving traces except in the sudden and overgrown fortunes of those gentlemen who were fortunate or prompt enough to make use of the golden opportunity, and who to obtain them had no scruple in openly tendering bribes and shares in the spoil to Cromwell, the omnipotent favorite of the king.¹¹⁸⁵ The complaints of the people, who found their new masters harder than the old, may be estimated from some specimens printed by Strype.¹¹⁸⁶

If it be asked what became of the "holy idle thieves" and "sturdy loobies" whom the Beggars' Petition so earnestly desired to be thrown upon the world, the answer may be found in the legislation of Edward VI. A poor-law, the commencement of a series which to this day has pressed upon England with ever-increasing weight, was enacted in 1552.¹¹⁸⁷ This tells its own story, but even more suggestive was another bill for the suppression of vagabondage, the provisions of which mark not only the inhumanity of the age, but the magnitude of the evil caused by the violent acts of Henry. Every able-bodied man loitering in any place for three days without working or offering to work was held to be a vagabond. He was thereupon to be branded on the breast with a letter V, and adjudged as a slave for two years to any one who might bring him for that purpose before a justice of the peace.¹¹⁸⁸ Such was the ignominious end of the powerful and wealthy monastic orders of England.

The monastic establishments of Ireland shared the same fate. Rymer¹¹⁸⁹ gives the text of a commission for the suppression of a nunnery of the diocese of Dublin, in 1535. The insubordination of the island, however, rendered it difficult to carry out the measure everywhere, and finally, in

1541, it was accomplished by virtually granting their lands to the native chieftains. These were good Catholics, but they could not resist the temptation. They joined eagerly in grasping the spoil, and the desirable political object was effected of detaching them, for the time, from the foreign alliances with the Catholic powers which threatened serious evils.^{[1190](#)}

It is a striking proof of Henry's strength of will and intense individuality of character, that, in thus tearing up by the roots the whole system of monachism, he did not yield one jot to the powerful section of his supporters who had pledged themselves to the logical sequence of his acts, the abrogation of sacerdotal celibacy in general. While every reason of policy and statesmanship urged him to grant the privilege of marriage to the secular clergy, whom he forced to transfer to him the allegiance formerly rendered to Rome; while his chief religious advisers at home and his Protestant allies abroad used every endeavor to wring from him this concession, he steadily and persistently refused it to the end, and we can only guess whether his firmness arose from conscientious conviction or from the pride of a controversialist.

Notwithstanding his immovable resolution on this point, his power seemed ineffectual to stay the progress of the new ideas. An assembly held by his order in May, 1530, to condemn the heretical doctrines disseminated in certain books, shows how openly the advocates of clerical marriage had promulgated their views while yet Wolsey was prime minister and Henry gloried in the title of Defender of the Faith. Numerous books were denounced in which celibacy was ridiculed, its sanctity disproved, and its evil influences commented upon in the most irreverent manner.^{[1191](#)} These doctrines were sometimes carried into practice, and the orthodox clergy had little ceremony in visiting them with the sharpest penalties of the canons. It was about this time that Stokesley, Bishop of London, condemned to imprisonment for life Thomas Patmore, the incumbent of Hadham in Hertfordshire, for encouraging his curate to marry and permitting him subsequently to officiate; and the unfortunate man actually lay for three

years in gaol, until released by the intercession of Cranmer.¹¹⁹² This severity offers a significant contrast to the lenity which punished priestly incontinence with trifling fines and penalties, or sold licenses to sin almost openly.¹¹⁹³

If the reforming polemics were thus bold while Henry was yet orthodox, it may readily be imagined how keenly they watched the progress of his quarrel with the pope, and how loud became their utterances as he gradually threw off his allegiance to Rome and persecuted all who hesitated to follow in his footsteps. He soon showed, however, that he allowed none to precede him, and that all consciences were to be measured by the royal ell-wand. Thus his proceedings against the Carthusians and Franciscans in 1534 were varied by a proclamation directed against seditious books and priestly marriages. As we have seen, some unions had taken place, and all who had committed the indiscretion were deprived of their functions and reduced to the laity, though the marriages seem to have been recognized as valid. Future transgressions, moreover, were threatened with the royal indignation and further punishment—words of serious import at such a time and under such a monarch.¹¹⁹⁴

In spite of all this, the chief advisers of Henry did not scruple to connive at infractions of the proclamation. Both Cranmer and Cromwell favored the Reformation; the former was himself secretly married, and even ventured to urge the king to reconsider his views on priestly celibacy;¹¹⁹⁵ while the latter, though, as a layman, without any such personal motive, was disposed to relax the strictness of the rule of celibacy. During the visitation of the monasteries, for instance, the Abbot of Walden had little hesitation in confessing to Ap Rice, the visitor, that he was secretly married, and asked to be secured from molestation. The confidence thus manifested in the friendly disposition of the vicar-general was satisfactorily responded to. Cromwell replied, merely warning him to “use his remedy” without, if possible, causing scandal.¹¹⁹⁶ A singular petition, addressed to him in 1536 by the secular clergy of the diocese of Bangor, illustrates forcibly both the confidence felt in his intentions, and the necessity of the Abbot of Walden’s “remedy” in the fearful state of immorality which prevailed. There had been a visitation in which the petitioners admit that many of them had been found in fault, and as their women had been consequently taken away, they

pray the vicar-general to devise some means by which their consorts may be restored. They do not venture to ask directly for marriage, but decency forbids the supposition that they could openly request Cromwell to authorize a system of concubinage. Nothing can be more humiliating than their confession of the relations existing between themselves, as ministers of Christ, and the flocks entrusted to their spiritual care. After pleading that without women they cannot keep house and exercise hospitality, they add: “We ourselves shall be driven to seek our living at ale-houses and taverns, for mansions upon the benefices and vicarages we have none. *And as for gentlemen and substantial honest men, for fear of inconvenience, knowing our frailty and accustomed liberty, they will in nowise board us in their houses.*”^{[1197](#)}

The tendencies thus exhibited by the king’s advisers called forth the remonstrances of the conservatives. In June, 1536, the lower house of convocation presented a memorial inveighing strongly against the progress of heresy, and among the obnoxious opinions condemned was “That it is preached and taught that all things awght to be in comen and that Priests shuld have wiffes,” and they added that books containing heretical opinions were printed “cum privilegio,” were openly sold among the people, and were not condemned by those in authority.^{[1198](#)} Possibly it was in consequence of this that in the following November Henry issued a circular letter to his bishops in which he commanded them—“Whereas we be advertised that divers Priests have presumed to marry themselves contrary to the custom of our Church of England, Our Pleasure is, Ye shall make secret enquiry within your Diocess, whether there be any such resiant within the same or not”—and any such offenders who had presumed to continue the performance of their sacred functions were ordered to be reported to him or to be arrested and sent to London.^{[1199](#)} Curiously enough, there is no reference to the subject in the “Articles devised by the Kinges Highnes Majestie to stablyshe Christen Quietnes and Unitie amonge us,” issued by Henry in this year.^{[1200](#)}

Notwithstanding the ominous threat in the letter to the Bishops there appears, about this period, to have been great uncertainty in the public mind respecting the state of the law and the king’s intentions. Two letters happen to have been preserved, written within a few days of each other, in June,

1537, to Cromwell, which reveal the condition of opinion at the time. One of these complains that the vicar of Mendelsham, in Suffolk, has brought home a wife and children, whom he claims to be lawfully his own, and that it is permitted by the king. Although “thys acte by hym done is in thys countre a monstre, and many do growdge at it,” yet, not knowing the king’s pleasure, no proceedings can be had, and appeal is therefore made for authority to prosecute, lest “hys ensample wnponnyched shall be occasion for other carnall evyll dysposed prestes to do in lyke manner.” The other letter is from an unfortunate priest who had recently married, supposing it to be lawful. The “noyse of the peopull,” however, had just informed him that a royal order had commanded the separation of such unions, and he had at once sent his wife to her friends, threescore miles away. He therefore hastens to make his peace, protesting that he had sinned through ignorance, though he makes bold to argue that “yf the kyngys grace could have founde yt lafull that prestys mught have byn maryd, they wold have byn to the crowne dubbyll and dubbyll faythefull; furste in love, secondly for fere that the byschoppe of Rome schuld sette yn hys powre unto ther desolacyon.”^{[1201](#)}

It is evident from these letters that there was still a genuine popular antipathy to clerical marriage, and yet that the royal supremacy was so firmly established by Henry’s ruthless persecutions that this antipathy was held subject to the pleasure of the court, and could at any moment have been dissipated by proclamation. In fact, the only wonder is that any convictions remained in the minds of those who had seen the objects of their profoundest veneration made the sport of avarice and derision. Stately churches torn to pieces, the stone sold to sacrilegious builders, the lead put up at auction to the highest bidder, the consecrated bells cast into cannon, the sacred vessels melted down, the holy relics snatched from the shrines and treated as old bones and offal, the venerated images burned at Smithfield—all this could have left little sentiment of respect for worn-out religious observances in those who watched and saw the sacrilege remain unpunished.

Notwithstanding the reforming influences with which he was surrounded, Henry sternly adhered to the position which he had assumed.^{[1202](#)} When, in 1538, the princes of the Schmalkaldic League offered to place him at its head, and even to alter, if possible, the Augsburg Confession so as to make

it a common basis of union for all the elements of opposition to Rome, Henry was well inclined to obtain the political advantages of the position tendered him, but hesitated to accept it until all doctrinal questions should be settled. The three points on which the Germans insisted were the communion in both elements, the worship in the vulgar tongue, and the marriage of the clergy. In the Convocation of that year a series of questions was submitted for decision embracing the contested points, and the clergy decided in favor of celibacy, private masses, and communion in one element.¹²⁰³ Thus sustained, Henry was firm, and the ambassadors of the League spent two months in conferences with the English bishops and doctors without result. On their departure (August 5th, 1538), they addressed him a letter arguing the subjects in debate—the refusal of the cup, private masses, and sacerdotal celibacy—to which Henry replied at some length, defending his position on these topics with no little skill and dexterity, and refusing his assent finally.¹²⁰⁴ The reformers, however, did not yet despair, and the royal preachers even ventured occasionally to debate the propriety of clerical marriage freely before him in their sermons, but in vain.¹²⁰⁵ An epistle which Melanchthon addressed him in April, 1539, arguing the same questions again, had no better effect.¹²⁰⁶

In the spring of 1539 Henry renewed negotiations with the German princes, and his envoys in soliciting another visit from deputies of the League held out some vague promises of his yielding on the point of celibacy. The Germans in turn, to show their earnest desire for union with England, submitted a series of propositions, in which they suggested that the marriage of priests might be left to the discretion of the pope, and that if it were to be prohibited only persons advanced in life should be ordained.¹²⁰⁷ Both parties, however, were too firmly set in their opinions for accord to be possible. Notwithstanding any seeming hesitation caused by the policy of the moment, Henry's mind was fully made up, and the consequences of endeavoring to persuade him against his prejudices soon became apparent. Even while the negotiations were in progress he had issued a series of injunctions degrading from the priesthood all married clergy, and threatening with imprisonment and his displeasure all who should thereafter marry.¹²⁰⁸ Argumentation confirmed his opinions, and he proceeded to enforce them on his subjects in his own savage manner, "for though on all other points he had set up the doctrines of the Augsburg

Confession,” yet on these he had committed himself as a controversialist, and the worst passions of polemical authorship—the true “odium theologicum”—acting through his irresponsible despotism, rendered him the cruellest of persecutors. But a few weeks after receiving the letter of Melancthon, he answered it in cruel fashion.

In May a new parliament met, chosen under great excitement, for the people were inflamed on the subject of religion, and animosities ran high. The principal object of the session was known to be a settlement of the national church, and as the reformers were in a minority against the court, the temper of the Houses was not likely to be encouraging for them.¹²⁰⁹ On the 5th of May, a week after its assembling, a committee was appointed, at the king’s request, to take into consideration the differences of religious opinion. On the 16th, the Duke of Norfolk, who was not a member of the committee, reported that no agreement could be arrived at, and he therefore laid before the House of Lords, for full discussion, articles embracing—1st. Transsubstantiation; 2d. Communion in both kinds; 3d. Vows of Chastity; 4th. Private Masses; 5th. Sacerdotal Marriages; and 6th. Auricular Confession. Cranmer opposed them stoutly, arguing against them for three days, and especially endeavoring to controvert the third and fifth, which enjoined celibacy, but his efforts and those of his friends were vain, when pitted against the known wishes of the king, who himself took an active part in the debate, and argued in favor of the articles with much vigor. Under such circumstances, the adoption of the Six Articles was a foregone conclusion. On the 30th of May the chancellor reported that the House had agreed upon them, and that it was the king’s pleasure “that some penal statute should be enacted to compel all his subjects who were in any way dissenters or contradicters of these articles to obey them.” The framing of such a bill was intrusted to two committees, one under the lead of Cranmer, the other under that of the Archbishop of York, and they were instructed to lay their respective plans before the king within forty-eight hours. Of course the report of the Archbishop of York was adopted. Introduced on the 7th of June, Cranmer again resisted it gallantly, but it passed both Houses by the 14th, and received the royal assent on the 28th. It was entitled “An Act for abolishing Diversity of Opinions in certain Articles concerning Christian Religion,” and it stands as a monument of the cruel legislation of a barbarous age. The Third Article was “that Priests after the order of

Priesthood might not marry by the Law of God;" the Fourth, "that Vows of Chastity ought to be observed by the Law of God," and those who obstinately preached or disputed against them were adjudged felons, to suffer death without benefit of clergy. Any opposition, either in word or writing, subjected the offender to imprisonment during the king's pleasure, and a repetition of the offence constituted a felony, to be expiated with the life of the culprit. Priestly marriages were declared void, and a priest persisting in living with his wife was to be executed as a felon. Concubinage was punishable with deprivation of benefice and property, and imprisonment, for a first offence; a second lapse was visited with a felon's death, while in all cases the wife or concubine shared the fate of her partner in guilt. Quarterly sessions were provided, to be held by the bishops and other commissioners appointed by the king, for the purpose of enforcing these laws, and the accused were entitled to trial by jury.¹²¹⁰ Vows of chastity were only binding on those who had taken them of their own free will when over twenty-one years of age.¹²¹¹ According to the Act, the wives of priests were to be put away by June 24th, but on that day, as the act was not yet signed, an order was mercifully made extending the time to July 12th.¹²¹²

Cranmer argued, reasonably enough, that it was a great hardship, in the case of the ejected monks, to insist on the observance of the vow of chastity, when those of poverty and obedience were dispensed with, and when the unfortunates had been forcibly deprived of all the advantages, safeguards, and protection of monastic life.¹²¹³ The matter, however, was not decided by reason, but by the whimsical perversity of a self-opinionated man, who, unfortunately, had the power to condense his polemical notions in the blood of his subjects.

To comprehend the full iniquity of this savage measure we must remember the rapid progress which the new opinions had been making in England for twenty years; the tacit encouragement given them by the suppression of the religious houses, and by the influence of the king's confidential advisers; and the hopes naturally excited by Henry's quarrel with Rome and negotiations with the League of Schmalkalden. In spite, therefore, of the comparatively mild punishments hitherto imposed on priestly marriage, which were no doubt practically almost obsolete, such

unions may safely be assumed as numerous. Even Cranmer himself, the primate of Henry's church, was twice married, his second wife, then living, the niece of Osiander, being kept under a decent veil of secrecy in his palace.¹²¹⁴ When, after his fruitless resistance to the Six Articles, the bill was passed, he sent his wife to her friends in Germany, until the death of his master enabled him to bring her back and acknowledge her openly;¹²¹⁵ but vast numbers of unfortunate pastors could not have had the opportunity, and perhaps lacked the self-control, thus to arrange their domestic affairs. Even the gentle Melancthon was moved from his ordinary equanimity, and ventured to address to his royal correspondent a remonstrance expressing his horror of the cruelty which could condemn to the scaffold a man whose sole guilt consisted in not abandoning the wife to whom he had promised fidelity through good and evil, before God and man—a cruelty which could find no precedent in any code that man had previously dared to frame.¹²¹⁶

As might be expected, numerous divorces of married priests followed this Draconian legislation, and these divorces were held good by the act of 1549, which, under Edward VI., granted full liberty in the premises to ecclesiastics.¹²¹⁷ Even Henry, however, began to feel that he had gone too far, and the influence of Cromwell was sufficient to prevent the harshest features of the law from being enforced in all their odious severity, especially as the projected marriage with Ann of Cleves and the alliance with the German Lutherans rendered active persecution in the highest degree impolitic. When the comedy of Henry's fourth marriage culminated in the tragedy of Cromwell's ruin (June, 1540), the reactionary elements again gathered strength. There can be no little doubt that the atrocity of the law had greatly interfered with its efficient execution and had aroused popular feeling, for now, although the Vicar-General was removed, the Catholics passed with speedy alacrity a bill moderating the act of the Six Articles, in so far as it related to marriage and concubinage. For capital punishment was substituted the milder penalty of confiscation to the king of all the property and revenue of the offenders.¹²¹⁸

The Six Articles, as thus modified, remained the law of England during the concluding years of Henry's reign, nor is it likely that any one ventured to urge upon him seriously a relaxation of the principles to which he had committed himself thus definitely. The fall of Cromwell and the danger to

which Cranmer was exposed for several years were sufficient to insure him against troublesome remonstrants, even if his increasing irritability and capriciousness had not made those around him daily more alive to the danger of thwarting or resisting his idlest humor. How little progress, indeed, the Reformation had thus far made in England is shown in a letter written in 1546 by John Hooper, afterwards Bishop of Gloucester and Worcester, during the exile into which he was forced by the act of the Six Articles—"Our king has destroyed the pope, but not popery; he has expelled all the monks and nuns, and pulled down their monasteries; he has caused all their possessions to be transferred into his exchequer, and yet they are bound, even the frail female sex, by the king's command, to perpetual chastity. England has at this time at least ten thousand nuns, not one of whom is allowed to marry. The impious mass, the most shameful celibacy of the clergy, the invocation of saints, auricular confession, superstitious abstinence from meats, and purgatory, were never before held by the people in greater esteem than at the present moment."¹²¹⁹

On the 28th of January, 1547, Henry VIII. died, and Edward VI. succeeded to the perilous throne. Not yet ten years of age, his government of course received its direction from those around him, and the rivalry between the protector Somerset and the chancellor Wriothesley, Earl of Southampton, threw the former into the hands of the progressives, as the latter was the acknowledged head of the reactionary party. The ruin of Southampton and the triumph of Somerset, strengthened by his successful campaign in Scotland, soon began to develop their natural consequences on the religion of the country. Under the auspices of Cranmer, a Convocation was assembled, which was empowered to decide all questions in controversy. When the primate was anxious to again enjoy the solace of his wife's company and to relieve both her and himself from the stigma of unlawful marriage, it is easy to understand that the subject of celibacy would receive early and appropriate attention; and so confident were the reformers of success that they did not hesitate to enter into matrimony without waiting for any formal sanction.¹²²⁰ Accordingly, on December 17, 1547, a proposition was submitted to the effect that all canons, statutes, laws, decrees, usages, and customs, interfering with or prohibiting marriage, should be abrogated, and it was carried by a vote of 53 to 22. No time was lost. Two days afterwards a bill was introduced in the Commons

permitting married men to be priests and to hold benefices. It was received with so much favor that it was read twice the same day, and on the 21st it was sent up to the Lords; but in the Upper House it raised debates so prolonged that, as the members were determined to adjourn before Christmas, it was laid aside. This might be the more readily agreed to, since on the 23d an act was approved which abolished numerous severe laws of the former reign, including the statute of the Six Articles, and was immediately followed by another granting the use of the cup to the laity and prohibiting private masses.^{[1221](#)}

The repeal of the Six Articles left the marriage of the clergy subject to the previous laws of Henry, imposing on it various pains and penalties, but with the votes recorded in Convocation and Parliament, it is not likely that much vigor was displayed in their enforcement. Those interested could thus afford to await the reassembling of the Houses, which did not take place until November 24, 1548, but they claimed the reward of their patience by an early hearing in the session. On the 3d of December a bill was introduced, similar to that of the previous year, rendering married men eligible to the priesthood; it passed second reading on the 5th, and third reading on the 6th. Apparently encouraged by the favorable reception accorded to it, the friends of the measure resolved on demanding further privileges. The bill was therefore laid aside, and on the next day a new one was presented which granted the additional liberty of marriage to those already in orders. It conceded to the established opinions the fact that it were better that the clergy should live chaste and single, yet, "as great filthiness of living had followed on the laws that compelled chastity and prohibited marriage," therefore all laws and canons inhibiting sacerdotal matrimony should be abolished. This bill, after full discussion, was read a second and third time on the 10th and 12th, and was sent up to the Lords on the 13th. Again the Upper House was in no haste to pass it. It lay on the table until February 9, 1549, when it was stoutly contested, and, after being recommitted, it finally passed on the 19th, with the votes of nine bishops recorded against it.^{[1222](#)}

Cranmer and his friends were now at full liberty to establish the innovation by committing the clergy individually to marriage, and by enlisting the popular feeling in its support. During the discussion they had not been idle. Much controversial writing had occurred on both sides, in which Poynette, afterwards Bishop of Winchester, took an active part, while

Bale, Bishop of Ossory, distinguished himself on the same side by raking together all the foul stories that could be collected concerning the celibate clergy—a scandalous material not likely to be lacking in either quantity or quality. Burnet declares that no law passed during the reign of Edward excited more contradiction and censure, and the matrimonialists soon found that, even with the act of parliament in their favor, their course was not wholly a smooth one. Cranmer ordered a visitation in his province, and directed as one of the points for inquiry and animadversion, “Whether any do condemn married priests, and, for that they be married, will not receive the communion or other sacraments at their hands,”¹²²³ which distinctly reveals the difficulties encountered in eradicating the convictions of centuries from the popular mind. Sanders says, and with every appearance of probability, that the Archbishop of York united with Cranmer in ordering a visitation of the whole kingdom, during which the visitors investigated particularly the morals of the clergy, and used every argument to impel them to marriage, not only declaring celibacy to be most dangerous to salvation, but intimating that all who adhered to it would be regarded as papists and enemies of the king.¹²²⁴ The active interest which Cranmer took in the question is manifested by the fact that when Dr. Richard Smith, who had fled to Scotland in consequence of having endeavored to stir up a tumult at Oxford against Peter Martyr, desired to make his peace and return, the inducement which he offered to the Archbishop of Canterbury to obtain for him the king’s pardon was that he would write a book in favor of priestly marriage, as he had previously done against it.¹²²⁵

The Reformers speedily found that they were not to escape without opposition. The masses of the people throughout England were in a state of discontent. The vast body of abbey lands acquired by the gentry and now inclosed bore hard upon many; the raising of rents showed that secular landlords were less charitable than the ancient proprietors of the soil; the increase of sheep-husbandry threw many farm laborers out of employ;¹²²⁶ and the savage enactments, already alluded to, against the unfortunate expelled monks show how large an element of influential disaffection was actively at work in the substratum of society. Those priests who disapproved of the rapid Protestantizing process adopted by the court could hardly fail to take advantage of opportunities so tempting, and they accordingly fanned the spark into a flame. The enforcement of the new

liturgy, on Whitsunday, 1549, seemed the signal of revolt. Numerous risings took place, which were readily quelled, until one in Devonshire assumed alarming proportions. Ten thousand men in arms made demands for relief in religious as well as temporal matters. Lord Russel, unable to meet them in the field, endeavored to gain time by negotiation, and offered to receive their complaints. These were fifteen in number, of which several demanded the restoration of points of the old religion, and one insisted on the revival of the Six Articles. On their refusal, another set was drawn up, in which not only were the Six Articles called for, but also a special provision enforcing the celibacy of the clergy. This was likewise rejected; but during the delay another rising occurred in Norfolk, reckoned at twenty thousand men, and yet another of less formidable dimensions in Yorkshire. Russel finally scattered the men of Devon, while the Earl of Warwick succeeded in suppressing the rebels of Norfolk, when the promise of an amnesty caused the Yorkshiresmen to disperse.^{[1227](#)}

The question of open resistance thus was settled. Cranmer and his friends had now leisure to consolidate their advantages and organize a system that should be permanent. In 1551, he and Ridley prepared with great care a series of forty-two articles, embodying the faith of the church of England, which was adopted by the convocation in 1552, and was ordered to be signed by all men in orders and all candidates for ordination.^{[1228](#)} Burnet speaks of it as bringing the Anglican doctrine and worship to perfection. It remained unaltered during the rest of Edward's reign, and under Elizabeth it was only modified verbally in the recension which resulted in the famous Thirty-nine Articles—the foundation stone of the Episcopalian edifice. Of these forty-two articles, the thirty-first declared that “Bishops, priests, and deacons are not commanded by God's law to vow the estate of a single life or to abstain from marriage.”^{[1229](#)}

The canon law had thus invested the marriage of the clergy with all the sanctity that the union of man and wife could possess. Yet still the deep-seated conviction of the people as to the impropriety of such proceedings remained, troubling the repose of those who had entered into matrimony, and doubtless operating as a restraint upon the numbers of the imitators of Cranmer. Among the interrogatories drawn up by John Hooper for the visitation of his diocese of Gloucester, in 1552, is one which enquires

whether any midwife refuses to attend the confinement of women who are married to ministers of the church¹²³⁰—a suggestion which indicates how rooted was the popular aversion to such matches. If Strype's description of the clergy of the period, indeed, be correct, there was nothing in the character of the body to overcome the popular aversion in consideration of its purity and devotion to its sacred duties.¹²³¹ The act of 1549 had to a certain extent justified these prejudices by admitting the preferableness of a single life in the ministers of Christ, and it was resolved to remove every possible stigma by a solemn declaration of parliament. A bill was therefore prepared and speedily passed (Feb. 10th, 1552), which reveals how strong was the popular opposition, and how uncertain the position of the wives and children of the clergy. It declares "That many took occasion, from the words in the act formerly made about this matter, to say that it was only permitted, as usury and other unlawful things were, for the avoidance of greater evils, who thereupon spoke slanderously of such marriages, and accounted the children begotten in them to be bastards, to the high dishonor of the King and Parliament, and the learned clergy of the Realm, who had determined that the laws against priests' marriages were most unlawful by the law of God; to which they had not only given their assent in the Convocation, but signed it with their hands. These slanders did also occasion that the Word of God was not heard with due reverence." It was therefore enacted "That such marriages made according to the rules prescribed in the Book of Service should be esteemed good and valid, and that the children begot in them should be inheritable according to law."¹²³² A still further confirmation of the question was designed in a body of ecclesiastical law which was for several years in preparation by various commissions appointed for the purpose. In this it was proposed to make the abrogation of celibacy even more distinctly a matter of faith, for, in the second Title, among the various heresies condemned is that which, through the suggestion of the Devil, asserts that admission to holy orders takes away the right to marry. This work, however, though completed, had not yet received the royal assent, when the death of Edward VI. caused it to pass out of sight until 1571, when it was printed by Foxe and brought to the attention of Parliament, but was laid aside owing to the opposition of Queen Elizabeth.¹²³³

If the Protestants indulged in any day-dreams as to the permanency of their institutions, they were not long in finding that a change of rulers was destined to cause other changes disastrous to their hopes. Even the funeral of Edward, on the 8th of August, 1553, afforded them a foretaste of what was in store. Although Cranmer insisted that the public ceremonies in Westminster Abbey should be conducted according to the reformed rites, Queen Mary, still resident in the Tower, had private obsequies performed with the Roman ritual, where Gardiner celebrated mortuary mass in presence of the queen and some four hundred attendants. When the incense was carried around, after the Gospel, it chanced that the chaplain who bore it was a married man, and the zealous Dr. Weston snatched it from him, exclaiming, "Shamest thou not to do thine office, having a wife as thou hast? The queen will not be censured by such as thou!"^{[1234](#)}

Trifling as was this incident, it foreboded the wrath to come. Though Mary was not crowned until October 1st, she had issued writs for a parliament to assemble on the 10th, and, as an entire change in the religious institutions of the country was intended, we may not uncharitably believe the assertion that every means of influence and intimidation was employed to secure the return of reactionary members. These efforts were crowned with complete success. The Houses had not sat for three weeks, when a bill was sent down from the Lords repealing all the acts of Edward's reign concerning religion, including specifically those which permitted the marriage of priests and legitimated their offspring; and after a debate of six days it passed the Commons.^{[1235](#)}

The effect of this was, of course, to revive the statute of the Six Articles, and to place all married priests at the mercy of the queen; and as soon as she felt that she could safely exercise her power, she brought it to bear upon the offenders. A day or two after the dissolution of parliament she commenced by issuing a proclamation inhibiting married priests from officiating.^{[1236](#)} The Spanish marriage being agreed upon and the resultant insurrection of Sir Thomas Wyatt being suppressed, Mary recognized her own strength, and her Romanizing tendencies, which had previously been somewhat restrained, became openly manifested. On the 4th of March, 1554, she issued a letter to her bishops, of which the object was to restore the condition of affairs under Henry VIII., except that the royal prerogatives

as head of the church were expressly disavowed. It contained eighteen articles, to be strictly enforced throughout all dioceses. Of these the seventh ordered that the bishops should by summary process remove and deprive all priests who had been married or had lived scandalously, sequestrating their revenues during the proceedings. Article VIII. provided that widowers, or those who promised to live in the strictest chastity, should be treated with leniency, and receive livings at some distance from their previous abode, being properly supported meanwhile; while Article IX. directed that those who suffered deprivation should not on that account be allowed to live with their wives, and that due punishment should be inflicted for all contumacy.^{[1237](#)}

No time was lost in carrying out these regulations. By the 9th of the same month, a commission was already in session at York, which cited the clergy to appear before it on the 12th. From an appeal which is extant, by one Simon Pope, rector of Warmington, it appears that men were deprived without citation or opportunity for defence;^{[1238](#)} and that this was not infrequent is probable from the proceedings commenced against offenders of the highest class, designed and well fitted to strike terror into the hearts of the humbler parsons. On the 16th a commission was issued to the Bishops of Winchester (Stephen Gardiner), London (Bonner), Durham, St. Asaphs, Chichester, and Landaff, to investigate the cases of the Archbishop of York and the Bishops of St. Davids, Chester, and Bristol, who, according to report, had given a most pernicious example by taking wives, in contempt of God, to the damage of their own souls, and to the scandal of all men. Any three of the commissioners were empowered to summon the accused before them, and to ascertain the truth of the report without legal delays or unnecessary circumlocution. If it were found correct, then they were authorized to remove the offenders at once and forever from their dignities, and also to impose penance at discretion. This was scant measure of justice, considering that the marriage of these prelates had been contracted under sanction of law, and, if that law had recently been repealed, that at least the option of conforming to the new order of things could not decently be denied; yet even this mockery of a trial was apparently withheld, for the congé d'élire for their successors is dated March 18th, only two days after the commission was appointed.^{[1239](#)}

During the summer the bishops went on their visitations. The articles prepared by Bonner for his diocese are extant, among which we find directions to inquire particularly of the people whether their pastors are married, and, if separated, whether any communication or intercourse takes place between them and their wives; also, whether any one, lay or clerical, ventures to defend sacerdotal matrimony.¹²⁴⁰ Few of the weaker brethren could escape an inquisition so searching as this, and though some controversy arose, and a few tracts were printed in defence of priestly marriage,¹²⁴¹ such men as Bonner were not likely to shrink from the thorough prosecution of the work which they had undertaken.

When the convocation assembled in this year, it was therefore to be expected that only orthodox opinions would find expression. Accordingly, the lower House presented to the bishops an humble petition praying for the restoration of the old usages, among the points of which are requests that married priests be forcibly separated from their wives, and that those who endeavor to abandon their order be subjected to special animadversion. This clause shows that many unfortunates preferred to give up their positions and lose the means of livelihood, rather than quit the wives to whom they had sworn fidelity, demanding, as we shall see, much subsequent conflicting legislation. The social complications resulting from the change of religion are also indicated in the request that married nuns may be divorced, and that the pretended wives of priests have full liberty to marry again.¹²⁴²

Everything being thus prepared, the purification of the church from married heretics was prosecuted with vigor. Archbishop Parker states that there were in England some 16,000 clergymen, of whom 12,000 were deprived on this account, many of them most summarily; some on common report, without trial, others without being summoned to appear before their judges, and others again while lying in jail for not obeying the summons. Some renounced their wives, and were yet deprived, while those who were deprived were also, as we have seen, forced to part with their wives. We can readily believe that the most ordinary forms of justice were set aside, in view of the illegal and indecorous haste of the proceedings against the married bishops described above, but Parker's estimate of the number of sufferers is greatly exaggerated. According to Dr. Tanner, in the diocese of Norfolk—then estimated at one-eighth of the whole kingdom—there were

only 335 deprivations on this account; and at York, from April 27th to December 20th, 1554, there were only fifty-one ejected.¹²⁴³ It is probable, therefore, that the list throughout England would not exceed three thousand; yet when to these are added the hosts who no doubt succeeded in retaining their positions by a compliance with the law in quietly putting away their wives,¹²⁴⁴ it will be seen that the privilege of marriage had been eagerly improved by the clergy, and that an amount of misery which it would be difficult to estimate was caused by the enforcement of the canons.

The proceedings in the case of John Turner, rector of St. Leonard's, London, would seem to show that the extremity of humiliation was inflicted on these unfortunates. Cited on March 16th to answer to the charge of being a married man, he confessed the accusation, and we find him on the 19th condemned to lose his benefice and be suspended from all priestly functions, to be divorced from his wife, and to undergo such further punishment as the canons required. The sentence of divorce soon followed, and on May 14th he was obliged to do penance in his late church in Eastcheap, holding a lighted candle in his hand and solemnly declaring to the assembled congregation—"Good people, I am come hither, at this present time, to declare unto you my sorrowful and penitent heart, for that, being a priest, I have presumed to marry one Amy German, widow; and, under pretence of that matrimony, contrary to the canons and custom of the universal church, have kept her as my wife, and lived contrary to the canons and ordinances of the church, and to the evil example of good Christian people; whereby now, being ashamed of my former wicked living here, I ask Almighty God mercy and forgiveness, and the whole Church, and am sorry and penitent even from the bottom of my heart therefore. And in token hereof, I am here, as you see, to declare and show unto you my repentance: that before God, on the latter day, you may testify with me of the same. And I most heartily and humbly pray and desire you all, whom by this evil example doing I have greatly offended, that for your part you will forgive me, and remember me in your prayers, that God may give me grace, that hereafter I may live a continent life, according to His laws and the godly ordinances of our mother the holy Catholic Church, through and by His grace. And do here, before you all, openly promise for to do during my life."¹²⁴⁵ Such scenes as these were well calculated to produce the effect desired upon the people, but we can only guess at the terrorism which was

requisite to force educated and respectable men to submit to such degradation.

All this was done by the royal authority, wielding the ecclesiastical power usurped by Henry VIII. Strictly speaking, it was highly irregular and uncanonical, but as the papal supremacy was yet in abeyance it could not be accomplished otherwise. At last, however, the kingdom was ripe for reconciliation with Rome. In calling the parliament of 1554, the queen issued a circular letter to the sheriffs commanding them to admonish the people to return members “of the wise, grave, and Catholic sort.”¹²⁴⁶ Her wishes were fulfilled, and ere the year was out Cardinal Pole was installed with full legatine powers, and Julius III. had issued his Bull of Indulgence, reuniting England to the church from which she had been violently severed.¹²⁴⁷ An obedient parliament lost no time in repealing all statutes adverse to the claims of the Holy See, but its subserviency had limits, and one class largely interested in the reforms of Henry had sufficient influence to maintain its heretical rights. The church lands granted or sold to laymen were not revendicated. Indeed, the queen, in her call for the parliament, had felt it necessary to contradict the rumour that she and Philip intended the “alteration of any particular Man’s Possessions.” Though the transactions by which they had been acquired were wholly illegal; though no duration of possession could bar the imprescriptible rights of the church, yet the nobles and country gentlemen enriched by the spoliation were too numerous and powerful, and the reclamation of the kingdom was too important, to incur any peril by unseasonably insisting on reparation for Henry’s injustice. The abbatial manors and rich priories, the chantries, hospitals, and colleges were therefore left in the impious hands of those who had been fortunate enough to secure them,¹²⁴⁸ and the miserable remnants of the religious orders were left to the conscience of the queen, who made haste to get rid of such fragments of the spoil as had been retained by the crown.¹²⁴⁹

Whatever tacit understanding there may have been on this delicate subject between Queen Mary and Pope Julius was not assented to by the imperious Caraffa who shortly afterwards ascended the chair of St. Peter. Elected May 23, 1555, he lost no time in proclaiming the imprescriptible rights of the church, and by his Bull “Injunctum nobis” issued June 21st, he pronounced null and void “de apostolicæ potestatis plenitudine” all

transactions by which ecclesiastical possessions had passed into the hands of laymen, who were duly threatened with excommunication for prolonged attempts to hold their unhallowed acquisitions.¹²⁵⁰ The effort of course was fruitless, but the spirit in which the English protestants watched the apparent opening of a breach between England and Rome is well expressed in a letter of Aug. 23, 1555, from Sir Richard Morrison to Henry Bullinger —“This anti-Paul, Paul of the apostasy, the servant of the devil, this antichrist newly created at Rome, thinks it but a very small plunder that is offered to him, that he is again permitted in England to tyrannise over our consciences, unless the revenues be restored to the monasteries, that is, the pigsties; the patrimony, as he calls it, of the souls that are now serving in the filth of purgatory. Our ambassadors, who went to Rome for the purpose of bringing back the wolf upon the sheep of Christ, are now with the emperor, and bring us these demands of the chief pontiff: God grant that he may urge them in every possible way.”¹²⁵¹ The hopes of the reformers however were disappointed, for Paul IV. gave way, and on the reassembling of Parliament, Oct. 23, 1555, a Bull was read by which the pope assented to the arrangement agreed to by Cardinal Pole, confirming the church lands to their new possessors.¹²⁵²

Cardinal Pole, indeed, was not remiss in giving the sanction of the papal authority to all that had been done. Convoking a synod, he issued, in 1555, his Legatine Constitutions, by which all marriages of those included in the prohibited orders were declared null and void. Such apostates were ordered to be separated by ecclesiastical censures and by whatever legal processes might be required; all who dared to justify such marriages or to obstinately remain in their unholy bonds were to be rigorously prosecuted and punished according to the ancient canons, which were revived and declared to be in full force in order to prevent similar scandals for the future.¹²⁵³ As the queen by special warrant had decreed that all canons adopted by synods should have the full effect of laws binding on the clergy, these constitutions at once restored matters to their pristine condition. It was doubtless in order to mark in the most conspicuous manner his detestation of clerical marriage that Pole descended to the pettiness of ordering the body of Peter Martyr's wife to be dug up from its resting-place, near the tomb of St. Frideswide in Christ's Church, Oxford, and to be buried in a dung-hill.¹²⁵⁴

It was easy to pass decrees; it was doubtless gratifying to eject married priests by the thousand and to grant their livings to hungry reactionaries or to the crowd of needy churchmen whom Italy had ever ready to supply the spiritual wants and collect the tithes of the faithful. All this was readily accomplished, but the difficulty lay in overcoming the eternal instincts of human nature. The struggle to effect this commenced at once.

It was, indeed, hardly to be expected that those who had entered into matrimony with the full conviction of its sanctity would willingly abandon all intercourse with their wives, although they might yield a forced assent to the pressure of the laws, the prospect of poverty, and the certainty of infamous punishment. Accordingly we find that the necessity at once arose of watching the “reconciled” priests, who continued to do in secret what they could no longer practise openly. Some, indeed, found the restrictions so onerous that they endeavored to release themselves from the bonds of the church rather than to submit longer to the separation from their wives; and this apparently threatened so great a dearth in the ranks of the clergy that Cardinal Pole, as Archbishop of Canterbury, in 1556, forbade the withdrawal of any one from the mysteries and functions of the altar, under pain of the law.^{[1255](#)}

Notwithstanding all this legislation, royal, parliamentary, and ecclesiastical, the question refused to settle itself, and the Convocation which assembled on the 1st of January, 1557, was obliged to publish an elaborate series of articles, which demonstrated that previous enactments had either not been properly observed or that they had failed in effecting their purpose. Thus the prohibition of marriage to those in priests’ orders was formally renewed. Such of the married clergy, who had undergone penance and had been restored, as still persisted in holding intercourse with their separated wives, were to be deprived irrevocably of their office, and only to be admitted to lay communion—thus reversing the policy of Cardinal Pole’s injunctions. As all priests who had been married were obnoxious to the people, they were to be removed from the priesthood; or, at least, on account of the scarcity of ministers, to act only as curates, and to be incapable of holding benefices until a thorough course of penance should have washed away their sins. Even then, in no case were they to officiate in the dioceses wherein they had been married, but were to be removed to a distance of at least sixty miles, and if detected in any intercourse with their

wives, they were to incur severe punishment, a single interchange of words being sufficient to call down the penalty. To insure the observance of these rules, all synods were directed to make special inquiry into the lives of these unfortunates, who were thus to exist under a perpetual surveillance, at the mercy of inimical spies and informers.^{[1256](#)} This may, perhaps, be considered a moderate expiation for men who, in those days of fierce religious convictions, possessed that flexibility of faith which enabled them to change their belief with every dynastic accident.

If the rigid rules now introduced were successful in nothing else, they at all events succeeded in restoring the old troubles with the old canons. Denied the lawful gratification of human instincts, the clergy immediately returned to the habits which had acquired for them so much odium in times past, and the rulers of the church at once found themselves embarked in the sempiternal struggle with immorality in all its shapes and disguises. If the scandalous chronicles of the period be worthy of credit, neither Gardiner nor Bonner, nor other active promoters of the canons, were without the visible evidences of the frailty of the flesh;^{[1257](#)} and though they were above the reach of correction, the minor clergy were not so fortunate. The Convocation of 1557, which issued the stringent regulations just quoted, was also obliged to promulgate articles concerning the residence of women with priests, and the punishment of licentiousness, similar to those which we have seen reproduced so regularly for ten centuries. Cardinal Pole, too, in his visitation of the same year, directed inquiries to be made on these points in a manner which shows that they were existing, and not merely anticipated evils.^{[1258](#)}

Fortunately for the character of the Anglican clergy, the reign of reaction was short. On the 17th of November, 1558, Queen Mary closed her unhappy life, and Cardinal Pole followed her within sixteen hours. The Marian persecution had been long enough and sharp enough to give to heresy all the attractions of martyrdom, thus increasing its fervor and enlarging its circle of earnest disciples; and the sudden termination of that persecution, before it had time to accomplish its work of extirpation, left the

reformers more zealous and dangerous than ever. Heresy had likewise been favored by the discontent of the people arising from the disastrous and expensive war with France, which aided the improvident restoration of the church lands in impoverishing the exchequer and in rendering necessary heavy subsidies from the nation, repaid only by cruelty and misfortune. Dread of Spanish influence also had a firm hold of the imagination of the masses, while the church itself was especially unpopular, as the conviction was general that the ill-success of Mary's administration was attributable to the control exercised by ecclesiastics over the public affairs. Under such auspices, the royal power passed into the hands of a princess who, though by nature leaning to the Catholic faith and disposed to tread in the footsteps of her father, was yet placed by the circumstances of her birth in implacable hostility to Rome, and who held her throne only on the tenure of waging eternal warfare with reaction. The reformers felt that the doom of Catholicism was sealed. Emerging from their hiding-places and hastening back from exile, the religious refugees proceeded at once to practise the rites of Edward VI. Elizabeth, however, after ordering some changes in the Roman observances, forbade, on the 27th of December, all further innovations until the meeting of Parliament, which was convoked for January 23, 1559.

Parliament assembled on the appointed day and sat until the 8th of May. It at once passed acts resuming the ecclesiastical crown lands and restoring the royal supremacy in ecclesiastical matters, and it repealed all of Mary's legislation concerning the power of the papacy. Several other bills were adopted modifying the religion of the kingdom, with a view of discovering some middle term which should unite the people in a common form of belief and worship.¹²⁵⁹ Anxious to avoid all extremes, it negatived the measures introduced by the ardent friends of the Reformation, and among the unsuccessful attempts was one which proposed to restore all priests who had been deprived on account of marriage. This, indeed, was laid aside by the special command of the queen herself.¹²⁶⁰

The question of clerical marriage was thus left in a most perplexed and unsatisfactory condition. The Six Articles had been repealed by Edward VI., and had been virtually revived by Mary; but Mary's efforts had been to restore the independent jurisdiction of the church, and she had therefore not continued to regard the Six Articles as in force, the canons of synods and

the legatine constitutions of Pole being the law of her ecclesiastical establishment. This was now all swept away, a statute to fill the void was refused, and men were left to draw their own deductions and act at their own peril. Elizabeth refused the sanction of law to sacerdotal marriage, and would not restore the deprived priests, yet she did not enforce any prohibitory regulations, and even promoted many married men. Dr. Parker, the religious adviser of Ann Boleyn, who had left him in charge of her daughter's spiritual education, was married, and one of Elizabeth's earliest acts was to nominate him for the vacant primacy of Canterbury, which after long resistance he was forced to accept. The uncertainty of the situation and the anxiety of those interested are well illustrated by a letter to Dr. Parker, dated April 30th, just before the rising of Parliament, from Dr. Sandys, afterwards Bishop of Worcester: "The bill is in hand to restore men to their livings; how it will speed I know not.... Nihil est statutum de conjugio sacerdotum, sed tanquam relictum in medio. Lever was married now of late. The queen's majesty will wink at it, but not stablsh it by law, which is nothing else but to bastard our children."¹²⁶¹ In this, Dr. Sandys spoke nothing but truth, and those who were married were obliged formally to have their children legitimated, as even Dr. Parker found it necessary to do this in the case of his son Matthew.¹²⁶²

At length Elizabeth made up her mind, and in the exercise of her royal supremacy she asked for no act of Parliament to confirm her decree. Archbishop Parker has the credit of being the most efficient agent in overcoming her repugnance to the measure, and the ungracious manner in which she finally accorded the permission shows how strong were the prejudices which he had to encounter. In June, 1559, she issued a series of "Injunctions to the Clergy and Laity" which restored the national religion to nearly the same position as that adopted by Edward VI., and it is curious to observe that when she comes to speak of sacerdotal matrimony, she carefully avoids the responsibility of sanctioning it herself, but assumes that the law of Edward is still in force. All that she does, therefore, is to surround it with such limitations and restrictions as shall prevent its abuse, and although this form had perhaps the advantage of establishing the legality of all preëxisting marriages, yet the regulations promulgated were degrading in the highest degree, and the reason assigned for permitting it

could only be regarded as affixing a stigma on every pastor who confessed the weakness of his flesh by seeking a wife.^{[1263](#)}

From the temper of these regulations it is manifest that if Elizabeth yielded to the advice of her counsellors and to the pressure of the times, she did not give up her private convictions or prejudices, and that she desired to make the marriage of her clergy as unpopular and disagreeable as possible. It was probably for the purpose of meeting her objections that the order for a return of the clergy, issued by Archbishop Parker, October 1st, 1561, contained in the blanks issued the unusual entry classifying them as married or unmarried,^{[1264](#)} and Strype informs us that in the Archdeaconry of London the returns show the ministry for the most part to have been filled with married men.^{[1265](#)} Even the haughty spirit of the Tudor, thus, could not restrain the progress which had now fairly set in. Those around her who controlled the public affairs were all committed to the Reformation, and were resolved that every point gained should be made secure. When, therefore, in 1563, there was published a recension of the Forty-two Articles issued by Edward VI. in 1552, resulting in the well-known Thirty-nine Articles of the Church of England, care was taken that the one relating to the liberty of marriage should be made more emphatic than before. Not content with the simple proposition of the original that “Bishops, priests, and deacons are not commanded by God’s law either to vow the estate of a single life, or to abstain from marriage,” the emphatic corollary was added, “Therefore it is lawful for them as for all other Christian men to marry at their own discretion, as they shall judge the same to serve better to Godliness”^{[1266](#)}—such as we find it preserved to the present day. This specific declaration in a special article marks the necessity which was felt to place the matter beyond controversy, as a rule of practice. The Articles on Justification and Works of Supererogation (Arts. xi. and xix.) would have sufficed, so far as principle was concerned.

This was not an empty form. Not only the right to marry at their own discretion, thus expressly declared, did much to relieve them from the degrading conditions laid down by the queen, but the revival and strengthening of the article marked a victory gained over the reaction. When, in 1559, the queen appointed a commission to visit all the churches of England and enforce compliance with the order of things then existing,

the articles prepared for its guidance enjoin no investigation into opinions respecting priestly marriage, showing that to be an open question, concerning which every man might hold his private belief.¹²⁶⁷ After the adoption of the Thirty-nine Articles, however, this latitude was no longer allowed. In 1567 Archbishop Parker's articles of instruction for the visitation of that year enumerate, among the heretical doctrines to be inquired after, the assertion that the Word of God commands abstinence from marriage on the part of ministers of the church.¹²⁶⁸ As we shall see, it was about the same time that the council of Trent likewise erected the question of clerical marriage into a point of belief.

Yet Elizabeth never overcame her repugnance to the marriage of the clergy, nor is it, perhaps, to be wondered at when we consider the contempt in which she held the church of which she was the head,¹²⁶⁹ and her general aversion to sanctioning in others the matrimony which she was herself always toying with and never contracting. When she made her favorites of both sexes suffer for any legalized indiscretions of the kind, it is scarcely surprising that she always looked with disfavor on those of the clergy who availed themselves of the privilege which circumstances had extorted from her, and which she would fain have withheld. When Archbishop Parker ventured to remonstrate with her on her popish tendencies, she sharply told him that "she repented of having made any married bishops." This was a cutting rejoinder, but even more pointed was the insolence from which his life-long services could not protect his wife. The first time the queen visited the archiepiscopal palace, on her departure she turned to thank Mrs. Parker:—"And you—madam I may not call you, mistress I am ashamed to call you, so I know not what to call you—but, howsoever, I thank you."¹²⁷⁰ So in Ipswich, in August, 1561, she found great fault with the marriage of the clergy, and especially with the number of wives and children in cathedrals and colleges—a feeling possibly justified by occasional disorders not unlikely to occur. In 1563 we find Sir John Bourne complaining to the Privy Council that the Dean and Chapter of Worcester had broken up the large organ, the pride of the cathedral, which had cost £200; the metal pipes whereof were melted into dishes and divided among the wives of the prebendaries and the case used to make bedsteads for them; the copes and ornaments, he added, would likewise have been distributed had not some of the unmarried men prevented it, "and as by their Habit and Apparel you

might know the Priests wives, and by their Gate in the Market and the Streets from an hundred other Women: so in the Congregation and Cathedral Church they were easy to be known by placing themselves above all other of the most ancient and honest Calling of the said City.”¹²⁷¹ There was no lack of persons to pour such stories into the queen’s ear, and, with her well-known tendencies, it is no wonder that her counsellors found it difficult to restrain her to the simple order which she issued from Ipswich, declaring “that no manner of person, being either the head or member of any college or cathedral church within this realm, shall, from the time of the notification hereof in the same college, have, or be permitted to have, within the precinct of any such college, his wife, or other woman, to abide and dwell in the same, or to frequent and haunt any lodging within the same college, upon pain that whosoever shall do to the contrary shall forfeit all ecclesiastical promotions in any cathedral or collegiate church within this realm.” Burghley, in sending this royal mandate to Parker, remarks, “Her Majesty continueth very evil affected to the state of matrimony in the clergy. And if [I] were not therein very stiff, her Majesty would openly and utterly condemn and forbid it. In the end, for her satisfaction, this injunction now sent to your Grace is devised. The good order thereof shall do no harm. I have devised to send it in this sort to your Grace for your province; and to the Archbishop of York for his; so as it shall not be promulged to be popular.”¹²⁷² It is doubtless to this occurrence that we may attribute the last relic of clerical celibacy enforced among Protestants, that of the Fellows of the English Universities.

This injunction of Queen Elizabeth caused no little excitement. Though Burghley had prudently endeavored to prevent its becoming “popular,” yet Cox, Bishop of Ely, in remonstrating against its cruelty to those whom it affected in his cathedral seat, shows that it was speedily known to all men, and that it gave exceeding comfort to the reactionaries—“What rejoicing and jeering the adversaries make! How the godly ministers are discouraged, I will pass over.”¹²⁷³ In the Universities, where crowds of young men were collected, there might be some colorable excuse for the regulation, but in the splendid and spacious buildings connected with the cathedrals some milder remedy might easily have been found, and the mandate was particularly unpalatable to married bishops. Parker himself, who was individually interested in the matter, made a personal appeal to the queen,

the result of which was to wound him deeply, as well as to show him how extreme were her prejudices on the subject. He pours forth his feelings in a letter to Burghley describing the interview—"I was in an horror to hear such words to come from her mild nature and Christianly learned conscience, as she spake of God's holy ordinance and institution of matrimony. I marvel that our states in that behalf cannot please her Highness, which we doubt nothing at all to please God's sacred Majesty." He deplores the effect which it must produce on the people—"We alone of our time openly brought in hatred, shamed and traduced before the malicious and ignorant people, as beasts without knowledge to Godward, in using this liberty of his word, as men of effrenate intemperency, without discretion or any godly disposition worthy to serve in our state. Insomuch that the queen's Highness expressed to me a repentance that we were thus appointed in office, wishing it had been otherwise." The interview had evidently been stormy, and Parker had been made to feel the full force of Elizabeth's perverseness—"I have neither joy of house, land, or name, so abased by my natural sovereign good lady; for whose service and honor I would not think it cost to spend my life"—and he even goes so far as to threaten resistance—"I would be sorry that the clergy should have cause to show disobedience, with *oportet Deo obedire magis quam hominibus*. And what instillers soever there be, there be enough of this contemned flock, which will not shrink to offer their blood to the defence of Christ's verity, if it be either openly impugned or secretly suggilled."¹²⁷⁴ Evidently, before Parker could have been driven to such scarcely covered threats, there must have been an intimation by the angry queen that she would recall the permission to marry, which, in the existing state of the law, she could readily have done.

The same spirit which rendered the marriage of a pastor dependent on the approbation of the neighboring squires caused the retention of ancient rules, which prove the profound distrust still entertained as to the discretion and morality of the clergy, and the difficulty with which the Anglican church threw off the traditions of Catholicism. Thus, even in 1571, Grindal, Archbishop of York, promulgates a modification of the canon of Nicæa, forbidding the residence with unmarried ministers of women under the age of sixty, except relatives closely connected by blood.¹²⁷⁵ Indeed, in some remote corners of the kingdom the old license was kept up. Archbishop

Parker, about the year 1565, in speaking of the diocese of Bangor, states —“I hear that diocese to be much out of order, both having no preaching there and pensionary concubinary openly continued, notwithstanding liberty of marriage granted.”¹²⁷⁶ It evidently required time to accustom the clergy to the substitution of the new privileges for the old.

Although sacerdotal marriage was now fully sanctioned by the organic canon law of the church, yet it was still exposed to serious impediments of a worldly character. When thus frowned upon by her who was in reality, if not in name, Supreme Head of the church; when the wife of the primate himself could be exposed to such indelible impertinence; when the marriage of every unfortunate parson was subjected to degrading conditions, and when it was assumed that his bride must be a woman at service, the influences affecting the matrimonial alliances of the clergy must have been of the worst description. The higher classes of society would naturally model their opinions on those of the sovereign, while the lower orders had not as yet shaken off the prejudices in favor of celibacy, implanted in them by the custom of centuries. Making due allowance for polemical bitterness, there is therefore no doubt much truth in the sarcastic account which Sanders gives of the wives of the Elizabethan clergy. Taking advantage of the refusal of Parliament to formally legalize such marriages—a refusal which could not but greatly affect the minds of the people—he assumes that the wives were concubines and the children illegitimate in the eyes of the law; consequently decent women refused to undergo the obloquy attached to a union with a minister of the church, who was therefore forced to take as his spouse any one who would consent to accept him. The wives of prelates were ostracized; not received at court, and sharing in no way the dignities of their husbands, they were kept closely at home for the mere gratification of animal passion. The members of universities had been wholly unsuccessful in their efforts to obtain the same license, which was only granted to the heads of colleges, under condition that their wives should reside elsewhere, and should rarely pollute with their presence the learned precincts.¹²⁷⁷

The accuracy of this sarcastic description is confirmed by a statement made by Percival Wiburn for the benefit of his friends in Zurich, subsequent to the adoption of the Thirty-nine Articles. He asserts that “The marriage of priests was counted unlawful in the times of queen Mary, and was also

forbidden by a public statute of the realm, which is also in force at this day; although by permission of queen Elizabeth clergymen may have their wives, provided only they marry by the advice and assent of the bishop and two justices of the peace, as they call them. The lords bishops are forbidden to have their wives with them in their palaces; as are also the deans, canons, presbyters, and other ministers of the church, within colleges, or the precincts of cathedral churches.”¹²⁷⁸ It is not a little curious, indeed, to observe that in spite of the formal declaration in the Thirty-nine Articles, the absence of a special act of Parliament long caused the question to remain a doubtful one in the public mind. As late as July, 1566, Lawrence Humphrey and Thomas Sampson, two zealous Protestants, in denouncing “some straws and chips of the popish religion” which still defaced the Anglican church, state that “the marriage of the clergy is not allowed and sanctioned by the public laws of the kingdom, but their children are by some persons regarded as illegitimate;” in answer to which, Bishops Grindal and Horn rejoined that “the wives of the clergy are not separated from their husbands, and their marriage is esteemed honorable by all, the papists always excepted.”¹²⁷⁹ The matter evidently was still regarded as a subject of controversy, not yet decided beyond appeal; and the experience of the previous quarter of a century had accustomed men to too many vicissitudes for them to feel safe with so slender a guarantee as the Articles afforded. The Catholics still constituted a very large proportion of the population, and they scarcely concealed their feelings towards the innovation. When Sir John Bourne quarrelled with Dr. Sandys, Bishop of Worcester, among the formal articles of accusation which he presented to the Privy Council was the assertion that the Bishop in a sermon had ridiculed celibacy and had decried the virtue of unmarried priests.¹²⁸⁰ The knight apparently believed that this would be damaging to the bishop, and the latter seems likewise to have thought so, for in his answer he emphatically denied it, retorting that his adversary was a papist who had mass celebrated in his house and who was in the habit of applying the most opprobrious epithets to the wives of priests.¹²⁸¹ So when in 1569 the Catholics of the North rose in insurrection under the Earls of Westmoreland and Northumberland, one of the grievances of which they complained was the marriage of the ministers of Christ.¹²⁸² During the whole of this transition period the question was evidently one which occupied largely the

public mind, and in the diversity of opinion it was not easy to see what the ultimate decision might be. When an irrevocable step such as marriage was legal only during the pleasure of a capricious woman, whose assent was known to have been extorted from her, it is no wonder that it should be looked upon with disfavor by all prudent relatives of women inclined to venture on it.

Such a state of feeling could not but react most injuriously on the character of the great body of the clergy. It deprived them of the respect due to their sacred calling, and consequently reduced them to the level of such scant respect as was accorded to them. How long this lasted, and how materially it degraded the ministers of Christ as a body, cannot be questioned by any one who recalls the description of the rural clergy in the brilliant third chapter of Macaulay's History of England. In 1686 an author complains that the rector is an object of contempt and ridicule for all above the rank of the neighboring peasants; that gentle blood would be held polluted by any connection with the church, and that girls of good family were taught with equal earnestness not to marry clergymen, nor to sacrifice their reputation by amorous indiscretions—two misfortunes which were commonly regarded as equal.^{[1283](#)}

Thus eagerly accepted and grudgingly bestowed, the privilege of marriage established itself in the Church of England by connivance rather than as a right; and the evil influences of the prejudices thus fostered were not extinguished for generations.

XXVII. CALVINISM.

When John Calvin formulated the system of theology which bears his name, sacerdotal marriage had already become recognized as one of the necessary incidents of the revolt against Rome. That the French Huguenots should accept it accordingly was therefore a matter of course. Calvin himself manifested his contempt for all the ancient prejudices by marrying, in 1539, Idelette de Bure, the widow of the Anabaptist Jean Stordeur, whom he had converted.¹²⁸⁴ The Huguenot Confession of Faith was drawn up by him, and was adopted by the first national synod, held at Paris in 1559. Of course the Genevan views of justification swept away all the accumulated observances of sacerdotalism, and ascetic celibacy shared the fate of the rest.¹²⁸⁵ The discipline of the Calvinist church with regard to the morality of its ministers was necessarily severe. The peculiar purity expected of a pastor's household was shown by the rule which enjoined any church officer whose wife was convicted of adultery to dismiss her absolutely, under pain of deposition, while laymen, under such circumstances, were exhorted to be reconciled to their guilty partners.¹²⁸⁶ Any lapse from virtue on the part of a minister was visited with peremptory deposition;¹²⁸⁷ nor was this a mere idle threat such as were too many of the innumerable decrees of the Catholic councils quoted above, for the proceedings of various synods show that it was carried sternly into execution. A list of such vagrant and deposed ministers was even kept and published to the churches, with personal descriptions of the individuals, that they might not be able to impose on the unwary. Indeed, the national synod of Lyons, in 1563, went so far as to punish those ministers who brought contempt upon the church by unfitting marriages;¹²⁸⁸ and, though this was omitted from the final code of discipline, it shows the exceeding strictness with which the internal economy of the ecclesiastical establishment of the Huguenots was regulated.

The relations of the Catholic church with its apostates were somewhat confused, and they varied with the political exigencies of the situation.

Ecclesiastics who left the Catholic communion did not hesitate to enter into matrimony;¹²⁸⁹ and when the desolation of civil war rendered a forced tolerance of the new religion necessary, their position was a source of considerable debate, varying with the fluctuations of the tangled politics of the time. The Edict of Pacification of Amboise, in March, 1562, was held by the Huguenots to legalize the marriages of these apostates, but the explanatory declaration of August, 1563, ordered their reclamation by the church under pain of exile. When the Spanish alliance gave fresh assurances of triumph to the Catholics this was enforced with increased severity. The Edict of Roussillon, in 1564, commands that all priests, monks, and nuns, who had abandoned their profession and entered into matrimony, shall sunder their unhallowed bonds and return to their duties. Recalcitrants were required to leave the kingdom within two months, under pain, in the case of men, of condemnation to the galleys for life, and in that of women, of perpetual imprisonment.¹²⁹⁰ As most of the Calvinist ministers necessarily belonged to the class thus assailed, the effect of this legislation in stimulating the troubles of the kingdom can readily be perceived.

The dismal strife of the succeeding ten years at length showed that, in spite of the Tridentine canons, the toleration of this iniquity was a necessity. Thus in the Edicts of Pacification issued by Henry III. in 1576 and 1577 there is a provision which admits as valid the marriages theretofore contracted by all priests or religious persons of either sex. The issue of such unions was declared competent to inherit the personalty of the parents and such realty as either parent might have acquired, but was incapable of other inheritance, direct or collateral.¹²⁹¹

The church was forced to submit to this temporizing tolerance of evil, and condescended to entreaty since force was no longer permitted. In 1581, the council of Rouen, while deploring the number of monks and nuns who had left their convents, apostatized and married, directs that they shall be tempted back, treated with kindness, and pardon be sought for them from the Holy See.¹²⁹² In the final settlement of the religious troubles, the concessions made by Henry III. were renewed and somewhat amplified by the Edict of Nantes in 1598.¹²⁹³ When the reaction came, however, these provisions were held to be only retrospective in their action, and were not admitted as legalizing subsequent marriages. Thus in 1628 a knight of

Malta, in 1630 a nun, and in 1640 a priest of Nevers, who had embraced Calvinism, ventured on matrimony, but were separated from their spouses and the marriages were pronounced null.^{[1294](#)} These decisions were based on the principle that the celibacy of ecclesiastics was prescribed by municipal as well as by canon law, and that a priest in abjuring his religion did not escape from the obligations imposed upon him by the laws of the kingdom.^{[1295](#)}

In Scotland, as in France, the question of sacerdotal marriage may be considered as having virtually been settled in advance. Lollardry had not been confined to the southern portion of Great Britain. It had penetrated into Scotland, and had received the countenance of those whose position and influence were well calculated to aid in its dissemination among the people. In 1494, thirty of these heretics, known as “the Lollards of Kyle,” were prosecuted before James IV. by Robert Blacater, Archbishop of Glasgow. Their station may be estimated from the fact that they escaped the punishment due to their sins by the favor of the monarch, “for divers of them were his great familiars.” The thirty-four articles of accusation brought against them are mostly Wickliffite in tendency, and their views on the question of celibacy are manifested in the twenty-second article which accuses them of asserting “That Priests may have wives according to the constitution of the Law and of the Primitive Christian Church.”^{[1296](#)}

The soil was thus ready for the plough of the Reformation; while the temper of the Scottish race gave warrant that when the mighty movement should reach them, it would be marked by that stern and uncompromising spirit which alone could satisfy conscientious and fiery bigots, who would regard all half-measures as pacts with Satan. Nor was there lacking ample cause to excite in the minds of all men the desire for a sweeping and effectual reform. Corruption had extended through every fibre of the Scottish church as foul and as all-pervading as that which we have traced throughout the rest of Christendom.

Not long after the year 1530, and before the new heresy had obtained a foothold, William Arith, a Dominican, ventured to assail the vices of his fellow churchmen. In a sermon preached at St. Andrews, with the approbation of the heads of the universities, he alluded to the false miracles with which the people were deceived, and the abuses practised at shrines to

which credulous devotion was invited. “As of late dayes,” he proceeded, “our Lady of Karsgreng hath hopped from one green hillock to another: But, honest men of St. Andrewes, if ye love your wives and daughters, hold them at home, or else send them in good honest company; for if ye knew what miracles were wrought there, ye would thank neither God nor our Lady.” In another sermon, arguing that the disorders of the clergy should be subjected to the jurisdiction of the civil authorities, he introduced an anecdote respecting Prior Patrick Hepburn, afterwards Bishop of Murray. That prelate once, in merry discourse with his gentlemen, asked of them the number of their mistresses, and what proportion of the fair dames were married. The first who answered confessed to five, of whom two were bound in wedlock; the next boasted of seven, with three married women among them; and so on until the turn came to Hepburn himself, who, proud of his *bonnes fortunes*, declared that although he was the youngest man there, his mistresses numbered twelve, of whom seven were men’s wives.¹²⁹⁷ Yet Arith was a good Catholic, who, on being driven from Scotland for his plain speaking, suffered imprisonment in England under Henry VIII. for maintaining the supremacy of the pope.

How little concealment was thought requisite with regard to these scandals is exemplified in the case of Alexander Ferrers, which occurred about the same time. Taken prisoner by the English and immured for seven years in the Tower of London, he returned home to find that his wife had been consoled and his substance dissipated in his absence by a neighboring priest, for the which cause he not unnaturally “spake more liberally of priests than they could bear.” By this time, heresy was spreading, and severe measures of repression were considered necessary. It therefore was not difficult to have the man’s disrespectful remarks construed as savoring of Lutheranism, and he was accordingly brought up for trial at St. Andrews. The first article of accusation read to him was that he despised the Mass, whereto he answered, “I heare more Masses in eight dayes than three bishops there sitting say in a yeare.” The next article accused him of contemning the sacraments. “The priests,” replied he, “were the most contemnors of the sacraments, especially of matrimony.” “And that he witnessed by many of the priests there present, and named the man’s wife with whom they had meddled, and especially Sir John Dungwaill, who had seven years together abused his own wife and consumed his substance, and

said: because I complain of such injuries, I am here summoned and accused as one that is worthy to be burnt: For God's sake, said he, will ye take wives of your own, that I and others whom ye have abused may be revenged on you." Old Gawain Dunbar, Bishop of Aberdeen, not relishing this public accusation, sought to justify himself, exclaiming, "Carle, thou shalt not know my wife;" but the prisoner turned the tables on him, "My lord, ye are too old, but by the grace of God I shall drink with your daughter or I depart." "And thereat there was smiling of the best and loud laughter of some, for the bishop had a daughter married with Andrew Balfour in that town." The prelates who sat in judgment found that they were exchanging places with the accused, and, fearful of further revelations from the reckless Alexander, commanded him to depart; but he refused, unless each one should contribute something to replace the goods which his wife's paramour had consumed, and finally, to stop his evil tongue, they paid him and bade him begone.^{[1298](#)}

All prelates, however, were not so sensitive. When Cardinal Beatoun, Archbishop of St. Andrews, primate of Scotland, and virtual governor of the realm, about the year 1546 married his eldest daughter to the eldest son of the Earl of Crawford, he caused the nuptials to be celebrated with regal magnificence, and in the marriage articles, signed with his own hand, he did not hesitate to call her "my daughter." It is not difficult, therefore, to credit the story that the night before his assassination was passed with his mistress, Marion Ogilby, who was seen leaving his chamber not long before Norman Leslie and Kirkaldy of Grange forced their way into his castle.^{[1299](#)} His successor in the see of St. Andrews, John Hamilton, was equally notorious for his licentiousness; and men wondered, not at his immorality, but at his taste in preferring to all his other concubines one whose only attraction seemed to be the zest given to sin by the fact that she was the wife of one of his kindred.^{[1300](#)}

This is testimony from hostile witnesses, and we might perhaps impugn their evidence on that ground, were it not that the Catholic Church of Scotland itself admitted the abandoned morals of its members when the rapid progress of Calvinism at length drove it in self-defence to attempt a reform which was its only chance of salvation. In the last Parliament held by James V. before his death in 1542, an act was passed exhorting the

prelates and ecclesiastics in general to take measures “for reforming of their lyvis, and for avoyding of the opin sclander that is gevin to the haill estates throucht the spirituale mens ungodly and dissolut lyves.”¹³⁰¹ Nothing was then done in spite of this solemn warning, though the countenance afforded to the Reformers by the Regent Arran, strengthened by his alliance with Henry VIII., was daily causing the heresy to assume more dangerous proportions. When, therefore, the Catholic party, rallying after the murder of Cardinal Beaton, at length triumphed with the aid of France, and sent the young Queen of Scots to marry Francis II., they seemed to recognize that they could only maintain their advantage by meeting public opinion in endeavoring to reform the church. Accordingly, in November, 1549, a council was convoked at Edinburgh, of which the first canon declares that the licentiousness of the clergy had given rise to the gravest scandals, to repress which the rules enjoined by the council of Bâle must be strictly enforced and universally obeyed. The second canon is no less significant in ordering that prelates and other ecclesiastics shall not live with their illegitimate children, nor provide for them or promote them in the paternal churches, nor marry their daughters to barons by endowing them with the patrimony of Christ, nor cause their sons to be made barons by the same means.¹³⁰²

This was of small avail. Ten years afterwards, the progress of heresy becoming ever more alarming, another council was held, in March, 1559, to devise means to put a stop to the encroachments of the enemy. To this assembly the Catholic nobles addressed an earnest prayer for reformation. After alluding to the proceedings of the Parliament of 1542, they add, “And siclyk remembring in diverss of the lait provinciale counsailes haldin within this realm, that poynt has been treittet of, and sindrie statutis synodale maid therupon, of the quhilks nevertheless thar hes folowit nan or litill frutt as yitt, bot rathare the said estate is deteriorate ... it is maist expedient therefore that thai presentlie condescend to seik reformation of thir lyvis ... and naymlie that oppin and manifest sins and notor offencis be forborn and abstenit fra in tyme to cum.” In this request they had been anticipated by the Reformers, who, the previous year, in a supplication addressed to the queen-regent, included among their demands “That the wicked, slanderous and detestable life of Prelats and of the State Ecclesiasticall may be reformed, that the people by them have not occasion (as of many dayes they

have had) to contemne their Ministrie and the Preaching whereof they should be Messengers.”

The council, thus urged by friend and foe, recognized the extreme necessity of the case, and did its best to cure the immedicable disease. Its first canon reaffirmed the observance of the Basilian regulations, and appointed a commission empowered to enforce them; and, that nothing should interfere with its efficiency, the Archbishops of St. Andrews and Glasgow made a special renunciation of their exemption from the jurisdiction of the council. The second canon, in forbidding the residence of illegitimate children with their clerical fathers, endeavored to procure obedience to the rule ordered by the council of 1549, by permitting it for four days in each quarter, and by a penalty for infractions of £200 in the case of an archbishop, £100 in that of a bishop, and leaving the mulct to be imposed on inferior ecclesiastics at the discretion of the officials. The third canon prohibited the promotion of children in their father's benefices, and supplicated the queen-regent to obtain of the pope that no dispensations should be granted to evade the rule. The fourth canon inhibited ecclesiastics from marrying their daughters to barons and lairds, and endowing them with church lands, or making their sons barons or lairds with more than £100 annual income, under pain of fine to the amount of the dowry or lands abstracted from the church; and all grants of church lands or tithes to concubines or children were pronounced null and void.^{[1303](#)}

When such legislation was necessary, the disorders which it was intended to repress are acknowledged in terms admitting neither of palliation nor excuse. The extent of the evil especially alluded to in the latter canons is further exemplified by the fact that during the thirty years immediately following the establishment of the Reformation in Scotland, more letters of legitimation were taken out than were issued in the subsequent two centuries. These were given to the sons of the clergy who were allowed to retain their benefices, and who then made over the property to their natural children.^{[1304](#)}

Such being the state of morals among the ministers of the old religion, it is easy to appreciate the immense advantage enjoyed by the Reformers. They made good use of it. Knox loses no opportunity of stigmatizing the “pestilent Papists and Masse-mongers” as “adulterers and whoremasters,” who were thus perpetually held up to the people for execration, while the individual wrongs from which so many suffered were noised about and made the subject of constantly-increasing popular indignation.¹³⁰⁵ Yet the abrogation of celibacy occupies less space in the history of the Scottish Reformation than in that of any other people who threw off the allegiance to Rome.

The remote position of Scotland and its comparative barbarism rendered it in some degree inaccessible to the early doctrines of Luther and Zwingli. Before it began to show a trace of the new ideas, clerical marriage had long passed out of the region of disputation with the Reformers, and was firmly established as one of the inseparable results of the doctrine of justification professed by all the reformed churches.¹³⁰⁶ Not only was it thus accepted as a matter of course by all converts to the new faith, but that faith, when once introduced, spread in Scotland with a rapidity proportioned to the earnest character of the people. The permission to read the Scriptures in the vulgar tongue, granted by Parliament in 1543, doubtless had much to do with this; the leaning of the Regent Arran to the same side gave it additional impetus, and the savage fierceness with which the Reformers were prepared to vindicate their belief is shown by the murder of Cardinal Beaton, which was countenanced and justified by Knox himself. Powerful nobles soon saw in it the means of emancipating themselves from the vacillating control of the regent; nor was the central authority strengthened when, in 1554, the reins of power were wrested from the feeble Arran and confided to the queen-dowager, Mary of Guise, who found herself obliged to encourage each party by turns, and to balance one against the other, to prevent either Catholic or Calvinist from obtaining control over the state. Then, too, as in Germany and England, the temporal possessions of the church were a powerful temptation to its destruction. From the great Duke of Chatelleraut to the laird of some insignificant peel, all were needy and all eager for a share in the spoil. When, in 1560, an assembly of the nobles at Edinburgh listened to a disputation on the Mass, and the Catholic doctors were unable to defend it as a propitiatory sacrifice, the first exclamation of the lords

revealed the secret tendencies of their thoughts—“We have been miserably deceived heretofore; for if the Mass may not obtain remission of sins to the quick and to the dead, Wherefore were all the Abbies so richly doted and endowed with our Temporall lands?”¹³⁰⁷

Of course less selfish purposes were put forward to enlist the support of the people. On the 1st of January, 1559, when the storm was gathering, but before it had burst, the inmates of the religious houses found affixed to their gates a proclamation in the name of “The Blinde, Crooked, Lame, Widows, Orphans, and all other Poor, so visited by the hand of God as cannot work,” ordering the monks to leave the patrimony intended to relieve the suffering, but usurped by indolent shavelings, giving them until Whit-Sunday to make their exit, after which they would be ejected by force, and ending with the significant warning—“Let him, therefore, that hath before stolen, steal no more, but rather let him work with his hands that he may be helpfull to the poore.”¹³⁰⁸

Such a cry could hardly fail to be popular, but when the threat was carried into execution, the blind and the crooked, the widow and orphan received so small a share of the spoil that they were worse off than before. As we have already seen in England, the destruction of the Scottish monasteries was the commencement of the necessity of making some public provision for paupers.¹³⁰⁹ The nobles seized the lion’s share; the rest fell to the crown, subject to the payment of the very moderate stipends assigned to the comparatively few ministers required by the new establishment, and these stipends were so irregularly paid that the unfortunate ministers were frequently in danger of starvation, and were constantly besieging the court with their dolorous complaints. Where the lands and revenues went is indicated with grim humor by Knox, in describing the resistance offered in 1560 to the adoption of his Book of Discipline by those who had professed great zeal for the Lord Jesus. Lord Erskine had been one of the first and most consistent of the “Lords of the Congregation,” yet he also refused to sign the book—“And no wonder, for besides that he had a very evill woman to his wife, if the Poore, the Schooles, and the Ministerie of the Church had their owne, his Kitchin would lack two parts and more of that which he unjustly now possesseth.”¹³¹⁰

Yet, when compared with the rich abbatial manors of England or the princely foundations of Germany, the spoil of the church was mean indeed. Knox had resided much abroad, and had seen the vast wealth which the piety of ages had showered upon the church in the most opulent lands of Europe, yet his simplicity or fanaticism finds source of wondering comment in the homespun luxury of the unfortunate monks whom he assisted in dispossessing. When the destruction of the monasteries in 1559 commenced by a brawl in Perth, caused by a sermon preached by Knox, and three prominent convents were broken up, he expatiates on the extravagance revealed to sight—"And in very deed the Grey-Friers was a place so well provided that unlesse honest men had seen the same, we would have feared to have reported what provision they had, their sheets, blankets, beds and coverlets were such that no Earle in Scotland had better: Their naperie was fine; they were but 8 persons in the Convent, and yet they had 8 puncheons of salt beef (consider the time of the yeere, the eleventh of May), wine, beere, and ale, beside store of victuals belonging thereto."¹³¹¹ Imagine an abbot of St. Albans or an abbess of Poissy reduced to the coverlets and salt beef which the stern Calvinist deemed an indulgence so great as to be incredible!

Still, in so impoverished a country as the Scotland of that period, even these poor spoils were a motive sufficient to prove a powerful aid to the conquering party in the struggle. And yet, amid all the miserable ambitions of the Erskines and Murrays, the Huntleys and Bothwells, who occupied the prominent places in the court and camp, we should do grievous wrong to the spirit which triumphed at last over the force and fraud of the Guises, if we attributed to temporal motives alone the movement which expelled licentious prelates and drove Queen Mary to the fateful refuge of Fotheringay. The selfish aims of the nobles would have been fruitless but for the zealous earnestness of the people, led by men of iron nature, who doubted themselves as little as they doubted their God, and who, in the death-struggle with Antichrist, were as ready to suffer as they were ruthless to inflict. Nor can the disorders of the Catholic clergy be rightly imputed to the temperament of the race, for the Reformers, who carried with them so large a portion of the middle and lower classes, preached a system of rigid morality to which the world had been a stranger since the virtues of the Germanic tribes had been lost in the overthrow of the Empire; and they not

merely preached it, but obtained its embodiment in a code of repressive laws, which their vigilant authority strictly enforced.

I have said above that the question of celibacy appears but rarely in the course of the contest, yet, notwithstanding the causes which rendered it a less prominent subject of debate than elsewhere, it occasionally rises to view. The first instance of clerical marriage that I find recorded occurred in 1538, when Thomas Coklaw, parish priest of Tillibodie, married a widow of the same village named Margaret Jameson. This, however, was not done openly and defiantly, as in Germany, but in secret, and the married couple continued to dwell apart. That the infraction of the canons was not without danger was shown by the result, for, when it became known, Coklaw was tried by the Bishop of Dumblane and condemned to perpetual imprisonment; but his relatives broke open his dungeon and he escaped to England. When, early in the following year, a group of reformers, including Dean Thomas Forret, Friar John Killore, Friar John Beverege, and others, were put on trial, their presence at this wedding was one of the crimes for which they were executed upon Castle Hill at Edinburgh.¹³¹² In fact, the abrogation of the rule of celibacy, in Scotland as elsewhere, was necessarily one of the leading points at issue between the Reformers and the Catholics. Thus, when George Wishart, one of the early heretics who ventured openly to preach the Lord Jesus, was seized, in spite of powerful protectors, and after a prolonged captivity was brought for trial before Cardinal Beatoun in 1545, in the accusation against him article 14th asserted, “Thou false Hereticke hast taught plainly against the Vows of Monks, Friers, Nuns, and Priests, saying, That whosoever was bound to such like Vows, they vowed themselves to the state of damnation. Moreover, That it was lawfull for Priests to marry wives and not to live sole.” Wishart tacitly confessed the truth of this impeachment by rejoining—“But as many as have not the gift of chastity, nor yet for the Gospel have overcome the concupiscence of the flesh, and have vowed chastity; ye have experience, although I should hold my tongue, to what inconveniences they have exposed themselves.”¹³¹³ He was accordingly condemned as an incorrigible heretic, and promptly burnt. Yet when, in 1547, John Knox held his disputation with Dean Wynrame and Friar Arbuckle, though the nine articles drawn up for discussion ranged from the supremacy of the pope and the existence of purgatory to the

payment of tithes, the subject of vows of chastity was not even mentioned.^{[1314](#)}

Still, even as late as 1558 the trial of Walter Mill shows that the question was even yet agitated in the controversies between the polemics of the two parties. Mill had been a priest and had married, and the first of the articles of accusation against him was that he asserted the lawfulness of sacerdotal marriage. To this he boldly assented, declaring that he regarded matrimony as a blessed bond, open for all men to enter, find that it were better for priests to marry than to vow chastity and not preserve it, as they were wont to do. Condemned to the stake, the unfortunate old man commanded the sympathies of the people, even in the archiepiscopal town of St. Andrews. No one could be found to act as executioner, until at length one of the servants of the archbishop consented to fill the abhorrent office; but when a rope was sought with which to bind the wretched sufferer to the stake, no one would furnish it, and the tragedy was necessarily postponed. Equally unsuccessful was the next day's search, until the archbishop, fearing to lose his victim, gave the cords of his own pavilion, and the sentence was carried into effect. Even after the sacrifice, the popular feeling was manifested raising a pile of stones as a monument on the place of torture, and as often as these were cast aside by the priests they were replaced by the people, until the followers of the archbishop carried them off by night, and used them for building.^{[1315](#)}

These incidents show us that the question received its share of attention in the controversy by which each side endeavored to secure the support of the nation, but it makes no appearance in public negotiations and declarations. Thus, in 1558, when the growing strength of the Lords of the Congregation led the Catholics to offer concessions, which were rejected by the conscious power of the Reformers, there was no allusion to celibacy on either side. In fact, between the respective leaders, the questions were almost purely personal and political; while among the conscientiously religious supporters of either party, opinions were too rigidly defined for argument. Convictions were too divergent and too firm for compromise or concession to be possible, and Catholic and Calvinist grimly recognized, as by a tacit understanding, the alternative of extermination. When the English alliance at last drove the Catholics to the wall, and in July, 1560, there assembled the parliament to which by the Articles of Leith was referred the

duty of effecting a settlement of the kingdom, the vanquished party made no struggle against their fate. Such Catholic prelates and lords as took their seats refrained from all debate, and allowed the victors to arrange the temporal and spiritual affairs of the kingdom at their pleasure.

In this settlement, our subject affords a curious comparison between the English and Scotch churches. In the former, at a period even later than this, it was considered necessary to embody a renunciation of celibacy in the organic law, which has been maintained to the present day. In the latter, ecclesiastical marriage had become already so firmly established in the minds of the Reformers that it was accepted as a matter of course, which needed no special confirmation. Although laws were passed prohibiting the Mass and abolishing the supremacy of the pope, none were thought necessary to legalize the marriages of the clergy. Even in Knox's Confession of Faith, adopted by the parliament on the 17th of July, there is no direct allusion to the matter. The only passage which can be construed as having any bearing upon it occurs in Chapter xiv., when considering "What works are reputed good before God"—"And evill works we affirme not onely those that are expressly done against God's commandment, but those also that in matters of religion and worshipping of God have no assurance, but the invention and opinion of man, which God from the beginning hath ever rejected, as by the prophet Isaiah and by our Master Christ Jesus we are taught in these words—*In vain do they worship me, teaching doctrines which are precepts of Men.*"¹³¹⁶

Nothing more, in fact, was needed when the triumph of the new ideas was so complete that Knox could exultingly exclaim, "For what Adulterer, what Fornicator, what known Masse-monger or pestilent Papist durst have been seen in publike within any Reformed Town within this Realme before that the Queen arrived?... For while the Papists were so confounded that none within the Realme durst avow the hearing or saying of Masse then the thieves of Tiddisdale durst avow their stouth or stealing in the presence of any upright judge."¹³¹⁷ When persecution thus had changed sides, no minister could feel that his nuptials required special authorization. How thoroughly, indeed, they were legitimated is shown by a curious little incident occurring in 1563. A minister named Baron made complaint to the General Assembly that his wife, an English woman named Anne Goodacre, "after great rebellions by her committed," had left him and taken refuge in

England, whereupon he requested the Assembly to have her brought back to him. Spotswood, the Superintendent of Lothian, with Knox and Craig, actually wrote to Archbishop Parker officially asking him to have the woman sought for and sent to Scotland; but Parker, considering it to be an international question and beyond his sphere, prudently referred the request to Secretary Cecil.[1318](#)

It were foreign to our object to enter into the dark details of Mary's short and disastrous reign. The intrigues of the camarilla, the boyish weakness of Darnley, the subtlety of Rizzio, and the coarse ambition of Huntley and Bothwell, were alike harmless against the earnest reverence of the people for the new faith; and the expiring struggles of Catholicism were too feeble to give any practical importance to the vain attempts at reaction.

XXVIII.

THE COUNCIL OF TRENT.

It has already been observed that the dissolute and unchristian life of the priesthood was one of the efficient causes which led to the success of the Reformation. At an early period in the movement, the Catholic church felt the necessity of purifying itself, if it was to retain the veneration of the people; and the veneration of the people was now not merely a source of revenue, but a condition of the very existence of the stupendous structure reared upon the credulity of ages. As soon as it became clearly apparent that Lutheranism was not to be suppressed by the ordinary machinery, and that it was spreading with a rapidity which portended the worst results, an effort was made to remove the reproach which incorrigible immorality had entailed upon the church. Allusion has been made above to the stringent measures of reform proclaimed by the legate Campeggi at Ratisbon, in 1524, in which he acknowledged that the new heresy had no little excuse in the detestable morals and abandoned lives of the clergy—a truth repeatedly admitted by the ecclesiastical authorities.¹³¹⁹ His well-meant endeavors had little result, and we have seen that, some years later, Erasmus still urged the abolition of the rule of celibacy as the only practicable mode of removing the scandal.

Not long afterwards the Gallican church made a strenuous effort of the same nature to check the spread of Lutheranism. In 1521, before it had to encounter a hostile heresy, the council of Paris had deplored the pervading corruptions with exceeding candor. The condition of conventual discipline was such as to threaten the very existence of the system, and the customary denunciations of ineradicable abuses were freely published.¹³²⁰ In 1528 the Cardinal-legate Duprat, Chancellor of France, held a council in Paris, where he condemned, *seriatim*, the new doctrines as heresies, and elevated the rule of celibacy to the dignity of a point of faith.¹³²¹ He also caused the adoption of a series of canons designed to remove from the church the disgrace caused by the laxity of clerical morals and manners. The bishops were instructed to enforce the decrees of the councils and of the fathers until

concubinage and incontinence should be completely exterminated, and a rule was laid down which would have been eventually effectual if conscientiously carried out. No one was thereafter to be admitted to holy orders without written testimony as to his age and moral character from his parish priest, substantiated by the oaths of two or three approved witnesses.¹³²² At the same time similar councils were held at Bourges by the Cardinal Archbishop Tournon, and at Lyons by Claude, Bishop of Macon. To what extent these excellent rules were put in force may be guessed by a description of the French clergy in 1560, as portrayed by Monluc, Bishop of Valence, in a speech before the royal council. The parish priests were for the most part engrossed in worldly pursuits, and had obtained their preferment by illicit means, nor did there seem much prospect of an improvement so long as the prelates were in the habit of bestowing the benefices within their gift on their lackeys, barbers, cooks, and other serving men, rendering the ecclesiastics as a body an object of contempt to the people.¹³²³ We need, therefore, not be surprised to find in the councils of the period a repetition of all the old injunctions, showing that the maintenance of improper consorts and the disgrace of priestly families were undiminished evils.¹³²⁴ This description of the French clergy is most emphatically extended to the whole church in the project for reformation drawn up by order of Paul III. in 1538, and to these evils are attributed the innumerable scandals which afflicted the faithful, as well as the contempt in which the ecclesiastical body was held and the virtual extinction of all reverence for the services of religion.¹³²⁵

In 1530 Clement VII. addressed himself vigorously to the task of putting an end to the scandalous practice of hereditary transmission of benefices, which he describes as almost universal. A special Bull was issued, prohibiting the children of priests or monks from enjoying any preferment in their father's benefices, and, recognizing that the Roman curia was one of the chief obstacles to all reform, he provided that if he or his successors should grant dispensations permitting such infraction of the canons, they should be considered as issued unwittingly, and be held null and void.¹³²⁶ Like so many others, this Bull seems to have been forgotten almost as soon as issued, and the pecuniary needs of the Roman court rendered it unable to abandon so lucrative a source of revenue. Even as soon as 1538 the cardinals to whom Paul III. committed the task of drawing up the project of

reformation cautiously intimate that they hear of such dispensations being granted, and to this they attribute a large share of the troubles of the church and the enmity felt towards the Holy See.¹³²⁷ This warning passed unheeded, and, as we have seen, in 1559 a Scottish council prayed the queen-regent to use her influence with the pope to prevent dispensations being granted to enable illegitimate children to hold preferment in their father's benefices,¹³²⁸ while in 1562 the frequency and readiness with which such dispensations were still obtained are enumerated in a list of abuses laid before the council of Trent by Sebastian King, of Portugal, as one of the matters requiring reformation by the supreme power of the council.¹³²⁹ To this and other similar appeals the papal legates loftily replied that laws were not to be prescribed to the Holy See;¹³³⁰ and the motive for the refusal is easily comprehended when we see that in the "Taxes of the Penitentiary" the price for a dispensation admitting the bastard of a priest to holy orders was a ducat and a carlino.¹³³¹

In Spain, the most dangerous opponent of the Reformation, Ignatius Loyola, succeeded to some extent in repressing the public and unblushing manifestation of concubinage. His biographer states that the female companions of the Peninsular clergy were accustomed to pledge their faith to their consorts, as if united by the marriage-tie, and that they wore the distinguishing costume of married women, as though glorying in their shame.¹³³² Scandalized by this, on his return to his native land, in 1535, Ignatius exerted himself to abolish it, together with other priestly peccadilloes, and his influence was sufficient to procure the enactment and enforcement by the temporal authorities of sundry laws which relieved the Spanish church from so great an opprobrium.¹³³³ Yet, though this semi-authorized cohabitation may have been checked, the custom of notorious concubinage continued to flourish. Bernardino Diaz de Luco, a Spanish jurist, not long afterwards, deploras the frequency of the vice, but warns judges that they should not be over-severe in repressing it, since so few are found guiltless, and there is danger that those who are restrained from it may be forced into darker sins.¹³³⁴

About the same time, Hermann von Wied, Archbishop of Cologne, undertook the reformation of his extensive diocese. He assembled a council which issued a series of 275 canons, prescribing minutely the functions,

duties, and obligations of all grades of the clergy. As regards the delicate subject of concubinage, he contented himself with quoting the Nicene canon prohibiting the residence of women not nearly connected by blood, and added that if the degeneracy of the times prevented the enforcement of a regulation so strict, at all events he forbade the companionship of females obnoxious to suspicion.¹³³⁵ The good bishop himself could hardly have expected that so mild an allocution would have much effect upon a perverse and hardened generation.

In 1537, Matthew, Archbishop of Salzburg, assembled his provincial synod, which, recognizing the urgent necessity of preserving the church and protecting the people, adopted a series of reformatory canons. Apparently afraid of promulgating them, however, it was resolved to suppress them for the present under the pretext that the approaching general council would regulate the discipline of the church at large, and the archbishop contented himself with a pastoral letter addressed to his suffragans, in which he urged upon them to consider the contamination to which the laity were exposed through the vices of their pastors, and timidly suggested that, if the clergy could not restrain their passions, they should at all events indulge them secretly, so that scandal might be avoided and the punishment of their transgressions be left to an avenging God.¹³³⁶

Even in the council of Trent itself, the Bishop of St. Mark, in opening its proceedings with a speech, January 6th, 1546, drew a fearful picture of the corruption of the world, which had reached a degree that posterity might possibly equal but not exceed. This he assured the assembled fathers was attributable solely to the wickedness of the pastors, who drew their flocks with them into the abyss of sin. The Lutheran heresy had been provoked by their own guilt, and its suppression was only to be hoped for by their own reformation.¹³³⁷ At a later session, the Bavarian orator, August Baumgartner, told the assembled fathers that the progress of the Reformation was attributable to the scandalous lives of the clergy, whose excesses he could not describe without offending the chaste ears of his auditory. He even asserted that out of a hundred priests there were not more than three or four who were not either married or concubinarians¹³³⁸—a statement repeated in a consultation on the subject of ecclesiastical reform drawn up in 1562 by order of the Emperor Ferdinand, with the addition that

the clergy would rather see the whole structure of the church destroyed than submit to even the most moderate measure of reform.^{[1339](#)}

It is not to be wondered therefore that the Christian world had long and earnestly demanded the convocation of an œcumenic council which should represent all parties, should have full powers to reconcile all differences, and should give to the ancient church the purification thus recognized as the only efficient means of healing the schism. This was a remedy to the last degree distasteful to the Holy See. The recollections of Constance and Bâle were full of pregnant warnings as to the almost inevitable antagonism between the Vicegerent of Christ and an independent representative body, believing itself to act under the direct inspiration of the Holy Ghost, claiming autocratic supremacy in the church, and convoked for the special purpose of reforming abuses, the most of which were fruitful sources of revenue to the papal court. Such a body, if assembled in Germany, would be the pope's master; if in Italy, his tool; and it behooved him to act warily if he desired to meet the unanimous demand of Christendom without risking the sacrifice of his most cherished prerogatives. Had the council been called in the early days of the Reformation, it could hardly have prevented the separation of the churches; yet, in the temper which then existed, it would probably have effected as thorough a purification of the ecclesiastical establishment as was possible in so corrupt an age. By delaying it until the reactionary movement had fairly set in, the chances of troublesome puritans gaining the ascendancy were greatly diminished, and the papal court exposed itself to little danger when, under the urgent pressure of the emperor, it at length, in 1536, proposed to convoke the long desired assembly at Mantua.^{[1340](#)}

A place so completely under papal influence was not likely to meet the views of the opposition, and it is not surprising that both the Lutherans and Henry VIII. refused to connect themselves with such a council. The latter, indeed, in his epistle of April 8, 1538, to Charles V., expressed himself more forcibly than elegantly:—"Nowe, if he [the pope] calle us to one of his owne townes, we be afraid to be at suche an hostes table. We saye, Better to

ryse a hungred, then to goo thense with oure bellyes fulle.”¹³⁴¹ The formality of its opening, May 17th, 1537, was therefore an empty ceremony; its transfer to Vicenza was little more; and, as no delegates presented themselves up to the 1st of May, 1538, it was prorogued until Easter, 1539, with the promise of selecting a satisfactory place for the meeting. The pressure still continued until, in May, 1542, Paul finally convoked it to assemble at Trent. The Reformers were no better satisfied than before. They had so long professed their readiness to submit all the questions in dispute to a free and unbiased general council, that they could not refuse absolutely to countenance it; but they were now so completely established as a separate organization, that they had little to hope and everything to fear from the appeal which they had themselves provoked, and nothing which Rome could now offer would have brought them into willing attendance upon such a body.¹³⁴² They accordingly kept aloof, and on the assembling of the council, November 22d, 1542, its numbers were so scanty that it could accomplish nothing, and it was accordingly suspended in July, 1543. When again convoked, March 15th, 1545, but twenty bishops and a few ambassadors were present; these waited with what patience they might command for accessions, which were so tardy in arriving that when at length the assembly was formally opened, on the 13th of December, the number had increased by only five. For fifteen months the council continued its sessions, completely under the control of the pope, and occupied solely with measures designed to draw the line between the Catholic and the Reformed churches more sharply than ever.

The appeals of the German bishops and of the imperial ambassadors for some effective efforts at reform became at length too pressing, and to evade them, in March, 1547, the council was transferred to Bologna, against the earnest protest of the emperor and the Spaniards, who refused to follow.¹³⁴³ At Bologna little was done except to dispute over the sharp protests of the emperor and to adjourn the council from time to time, until, after falling into universal contempt, it was suspended in 1549. Julius III., who received the tiara on the 22d of February, 1550, signaled his accession by convoking it again at Trent; and there it once more assembled on the 1st of May, 1551.

At that time Lutheranism in Germany was under the heel of Charles V.; Maurice of Saxony was ripening his schemes of revolt, and concealing them with the dexterity in which he was unrivalled; it was the policy of both that Protestant theologians should take part in the discussions—of the one, that they should there receive their sentence; of the other, that their presence might assist in cloaking his designs. The flight from Innsbruck, followed by the Transaction of Passau, changed the face of affairs. The Lutheran doctors rejoicingly shook the dust from their feet as they departed from Trent, complaining that they had been treated as criminals on trial, not as venerable members of a body assembled to decide the gravest questions relating to this life and that to come. Other symptoms of revolt among the Catholic nations were visible, and on the 28th of April, 1552, the council again broke up.^{[1344](#)}

Ten years passed away; the faithful impatiently demanded the continuation of the work which had only been commenced, and at last the pressure became so strong that Pius IV. was obliged to reassemble the council.^{[1345](#)} His Bull bears date November, 1560, but it was not until twenty years after Trent had witnessed the first convocation that the holy men again gathered within its walls, and on the 18th of January, 1562, the council resumed its oft-interrupted sessions. The States of the Augsburg Confession had been politely invited to participate in the proceedings, but they declined with the scantest of courtesy.^{[1346](#)}

During this long-protracted farce there were times when those who sincerely desired the restoration of the church could not restrain their impatience. In 1536, Paul III., who earnestly admitted the necessity of some reform, called to his aid nine of his prelates most eminent for virtue and piety, as a commission to prepare a scheme for internal reformation.^{[1347](#)} According to a papal historian, his object in this was to stop the mouths of the heretics who found in the Roman court an inexhaustible subject of declamation.^{[1348](#)} For two years the commission labored at its work, and finally produced the “*Consilium de emendanda ecclesia*,” to which allusion has been made above.

The stern and unbending Cardinal Caraffa was head of the commission, assisted by such men as Contarini, Sadoletto, and Reginald Pole. They seem to have been inspired with a sincere desire to root out the chief abuses

which gave such power to the assaults of the Protestants, and the result of their labors affords us a picture of ecclesiastical corruptions almost as damaging to the church as the complaints of the Diet of Nürnberg. As regards celibacy, they were disposed to make no concession; indeed, they protest against the facility with which men in holy orders were able to purchase from the Roman curia dispensations to marry. It is significant, however, that they had so little confidence in the possibility of purifying the religious orders that they actually recommended the abolition of the whole monastic system. To prevent individual cases of suffering they proposed that the convents should not be immediately abolished, but that all novices should be discharged and no more be admitted, thus allowing the orders to die out gradually, as had been done in Saxony; and meanwhile they urged that, to prevent further scandals, all nunneries should be removed from the supervision and direction of monks.¹³⁴⁹ The “Consilium,” in fact, was so candid a confession of most of the abuses charged upon the church by the reformers that Luther forthwith translated it and published it with a commentary, as an effective pamphlet in aid of his cause. Caraffa himself, after he had attained the papacy, under the name of Paul IV., quietly put his own work, in 1559, into the Index Expurgatorius.¹³⁵⁰

The changes recommended in the “Consilium” attacked too many vested interests for Paul III., however earnest himself, to be able to give it effect. The project therefore was dropped and only resulted in rendering still more clamorous the call for a reform in the head and members of the church. As, moreover, it had shown the powerlessness of the papacy to overcome acknowledged abuses, the only hope of a radical change, such as was needful, was seen to lie in the untrammelled debates of a great assembly, which should meet as a parliament of the nations; and the prospect of this grew more and more distant. While the project of transferring the council from Trent was being matured, it occurred to the papal court that possibly the objections to that measure and the pressure on the council for a thorough reformation might be averted by showing a disposition on the part of Rome to undertake the task of cleansing the Augean stable. It was also recognized as an important gain if the council could be confined to the harmless task of defining questions of faith, while the substantial powers involved in reforming the corruptions of the church could be claimed and exercised by the Pope. Accordingly Pius III. drew up an elaborate Bull

designed to limit some of the more flagrant pecuniary abuses which existed, and exhorting the bishops to correct the morals of their subordinates. This was sent to the legates at Trent, but they and their confidants unanimously agreed that, in the existing temper of the council, the promulgation of such a document would be in the highest degree imprudent. It was accordingly suppressed, and has only seen the light within the present century.^{[1351](#)} In its failure the church lost but little, for it touched the evils of the time with a tender and hesitating hand, and would have proved utterly inefficacious.

At length, when shortly afterwards the unmannerly urgency of the Germans, clamoring for decided measures of reform, was met by the translation of the council to Bologna in 1547, and men despaired of further results from it, Charles V. resolved to take the matter into his own hands, and to effect, for his own dominions at least, that which had been vainly expected of the council for Christendom. The “Interim,” which has already been alluded to, was intended to answer this purpose as far as Lutheranism was concerned, in healing the breach of religion. The other great object of the council, the restoration of the neglected discipline of the church, he attempted to effect by means of the secular authority of the empire acting on the regular machinery of the Teutonic ecclesiastical establishment. How utterly neglected that discipline had become is inferable from an expression in the important and carefully drawn project which had been laid by Charles before the Diet of Ratisbon in 1541, to the effect that if the canon requiring celibacy was to be enforced, it would be necessary also to revive those canons which punished incontinence, thus admitting that there existed no check whatever upon immorality.^{[1352](#)}

To accomplish this desirable revival of discipline he accordingly caused the adoption by the Diet of Augsburg of a code of reformation, well adapted, if enforced, to restore the long-forgotten purity of the church, while at the same time it acknowledged that the degeneracy of the times rendered impossible the resuscitation of the ancient canons in their strictness. Thus, after reciting the canon of Neocæsarea (see p. 51), it adds, that as such severity was now impracticable, those in holy orders convicted of impurity should be separated from their concubines, and visited with suspension from function and benefice proportioned to the gravity of the offence. A repetition of the fault was punishable with increased severity, and incorrigible sinners who were found to be incapable of reformation

were finally to be deprived of their benefices. As concubines were threatened with immediate excommunication, it is evident that a severity was designed towards them which was not ventured on with respect to their more guilty partners. Relaxation of the rules is also observable in the section which, despite the Nicene canon, permitted the residence of women over forty years of age, whose character and conduct relieved them from suspicion.¹³⁵³ The imperative injunctions of chastity laid upon the regular clergy, canons, and nuns, show not only the determination to remove the prevailing scandals, but also the magnitude and extent of the evil.¹³⁵⁴

Nor was this all. Local councils were ordered for the purpose of embodying these decrees in their statutes, and of carrying out with energy the reformation so earnestly desired. Thus, in November, 1548, about five months after the Diet, a synod assembled at Augsburg, which inveighed bitterly against the unclerical dress and pomp of the clergy, their habits of drunkenness, gluttony, licentiousness, tavern-lounging, and general disregard of discipline; and adopted a canon embracing the regulations enacted by the emperor.¹³⁵⁵ The Archbishop of Trèves did not wait for his synod, but issued, October 30th, a mandate especially directed against concubinary priests, in which he announced his intention of carrying out the reform commanded by Charles. He could find no reason more self-evident for the dislike and contempt felt by the people for so many of the clergy than the immorality of their lives, differing little, except in legality, from open marriage. "This vice, existing everywhere throughout our diocese, in consequence of the license of the times and the neglect of the officials, we must eradicate. Therefore all of you, of what grade soever, shall dismiss your concubines within nine days, removing them beyond the bounds of your parishes, and be no longer seen to associate with loose and wanton women. Those who neglect this order shall be suspended from office and benefice, their concubines shall be excommunicated, and they themselves be brought before our synod to be presently held."¹³⁵⁶

These were brave words, but when, some three weeks later, the synod was assembled, and the malefactors perchance brought before it, the good bishop found apparently that his flock was not disposed to submit quietly to the curtailment of privileges which had almost become imprescriptible. His tone accordingly was softened, for though he deprecated their immorality

more strongly than ever, and asserted his intention of enforcing his mandate, he condescended to argue at much length on the propriety of chastity, and even descended to entreaty, beseeching them to preserve the purity so essential to the character of the church, the absence of which had drawn upon the clergy an odium which could scarce be described in words.^{[1357](#)} How slender was his success may be inferred from the fact that the next year he felt it necessary to hold another synod, in which he renewed and confirmed the proceedings of the former one, and endeavored to reduce the monks and nuns of his diocese into some kind of subjection to the rules of discipline.^{[1358](#)}

The Archbishop of Cologne was as energetic as his brother of Trèves, with about equal success. On September 1st he issued the Augsburg Formula of Reformation, with a call for a synod to be held on October 2d. At the same time he manifested his sense of the primary importance of correcting clerical immorality by promulgating a special mandate respecting concubinage. He asserted this to be the chief cause of the contempt popularly felt for the church,^{[1359](#)} and he ordered all ecclesiastics to send their women beyond the bounds of their parishes within nine days, under the penalties provided in the imperial decree. The synod was held at the time indicated, and, though it adopted no regular canons, it accepted the Augsburg Formula and the mandate of the archbishop, with a trifling alteration.^{[1360](#)}

This proved utterly ineffectual, for in March, 1549, he assembled a provincial council, in which he deplored the license of the times, which rendered the strictness of the ancient canons unadvisable, and he announced that it had been decided to proceed gradually with the intended reforms. As to the morals of the clergy, he stated that everywhere the cure of souls was delegated to improper persons, many of them living in the foulness of concubinage, in perpetual drunkenness, and in other infamous vices, encouraged by the negligence of bishops and the thirst of archdeacons for unhallowed gains. The unions of those who, infected by the new heresies, did not hesitate to enter into matrimony, were of course pronounced illicit and impious, their offspring illegitimate, and the parents anathematized; but for those who remained in the church, yet submitted to no restraint upon their passions, a more merciful spirit was shown, for the punishments

ordered by the Diet of Augsburg were somewhat lightened in their favor. The extreme license of the period may be understood from another canon directed against the comedians, who, not content with the ordinary theatres, were in the habit of visiting the nunneries, where their profane plays and amatory acting excited to unholy desires the virgins dedicated to God.^{[1361](#)} No one acquainted with the coarseness of the drama of that rude age can doubt the propriety of the archbishop's reproof. Supplementary synods were also held in October, 1549, and February, 1550, to perfect the details of a very thorough inquisitorial visitation of the whole province.

This visitation, so pompously heralded, did not take place. At a synod held in October, 1550, the archbishop made sundry lame excuses for its postponement. Another synod was assembled in February, 1551, at which we hear nothing more of it; but the prelates of the diocese were requested to collect such ancient and forgotten canons as they could find, which might be deemed advantageous in the future;^{[1362](#)} and with this the work of reformation in the province of Cologne appears to end.

In 1549, Ernest, Archbishop of Salzburg, assembled the synod of his extensive province, but when his clergy understood that it was intended to confirm the reformatory edict of the emperor, they had the audacity to present a petition praying that the clause ordering the removal of their concubines should not be enforced. They declared that the attempt to do so would be attended with serious difficulty, and that it would lead to greater evils than it sought to remove, and they asked that the consideration of the matter should be referred to the general council, whose reassembling was no longer dreaded. The synod, with a proper sense of its dignity, refused to receive the shameless petition, and listened rather to those of its members who complained of the practice of the officials in receiving bribes for permitting illicit indulgences, and the representations of Duke William, of Bavaria, who asserted that the Lutheran heresy had been caused by the scandalous corruption of the church. A canon was accordingly adopted which renewed the regulations of Bâle and ordered the speedy removal of all recognized and notorious concubines.^{[1363](#)}

In October and November, 1548, and April, 1549, the Bishops of Paderborn, Wurzburg, and Strassburg held synods which adopted the reformatory measures decreed at Augsburg.^{[1364](#)} These were preparatory to

the metropolitan synod of Mainz, assembled in May, 1549, which commanded that no one should be thereafter admitted to orders without a preliminary examination by his bishop on the subject of doctrine, and testimonials from the people as to purity of character. After thus wisely providing for the future, attention was directed to the present. It was declared intolerable that, in spite of the reiterated prohibitions of the fathers and councils, concubines should be universally kept; the Basilian canon was therefore revived, and its enforcement strictly enjoined on the ordinaries, who were forbidden in any manner to connive at these disorders for the sake of profit.^{[1365](#)}

The pressure was continued, for when Cambrai, which owed temporal obedience to the emperor, while ecclesiastically it formed part of the province of Rheims, neglected to adopt the Formula of Augsburg for two years, it was not allowed to escape. In October, 1550, a synod was finally assembled there under stringent orders from Charles, and the Formula was published, together with an elaborate series of canons, which would have been well adapted to correct abuses that were not incorrigible.^{[1366](#)}

Charles had thus exerted all the resources of his imperial supremacy, and, whether willingly or not, the powerful prelates who ruled the German church had united in carrying out his views. The temporal and spiritual authorities had thus been concentrated upon the vices of the church, and if its reformation had been possible, in the existing condition of its organization, some improvement must have resulted from these combined and persistent efforts. How nugatory were the results may be guessed from a memorial presented in 1558, by the University of Louvain, to Philip II., exhorting him to grant no toleration to the heretics, but, at the same time, urging upon him the absolute necessity of some comprehensive system of reform to purify the church, all the orders of which were given over utterly to the twin vices of avarice and licentiousness.^{[1367](#)} The same testimony is borne by a consultation drawn up in 1562 by order of the Emperor Ferdinand. After alluding to the efforts at reform made by Paul III. and Charles V., it declares that their only result has been to make the condition

of clerical morality worse than before, exciting the hatred of the people for their priests to an incredible pitch, and doing more to inflame the ardor of heresy than all the teaching of Christian truth can do to restrain it. [1368](#)

As the failure of all efforts to improve clerical morality under the existing rules of discipline was thus found to be complete, there arose in the minds of thinking men a conviction, such as Erasmus had already declared, that, since all other measures had proved fruitless, the only mode of securing a virtuous clergy was to remove the prohibition of marriage. At the Polish Diet of 1552 petitions praying for sacerdotal matrimony were presented, and, though they failed in their object, the Diet of 1556 authorized King Sigismund Augustus to address Paul IV. with a request, in the name of the nation, to grant it as well as communion in both elements. [1369](#)

The dissension thus existing within the church is exhibited in a volume published in 1558 by Stanislas Hosius, Bishop of Ermeland, earnestly arguing against communion in both elements, clerical marriage, and the use of the vulgar tongue in worship. As regards celibacy, he assumes that it had been maintained unbrokenly for fifteen hundred years, and was not now to be abandoned to gratify a few disorderly monks. The example of the Greek church he meets by pointing out that the Greeks were suffered to be persecuted by the Turks; the argument that marriage would purify the church he silences with the observation that many married men are adulterers; and he holds it to be a doubting of God to suppose that the gift of continence would be denied to those who properly seek it. [1370](#) In spite of the logic of polemics such as Hosius, the opinions of the innovators continued to gain ground, until at length they won even the highest dignitaries of the empire, and in 1560 the Emperor Ferdinand himself undertook their advocacy with the pope, after having for some years countenanced the practice within his own territories.

Almost immediately on the consecration of Pius IV., in addressing to him an argument for the reassembling of the council of Trent, or the convocation of a new council, Ferdinand seized the opportunity to ask especially for the communication of the cup to the laity, and permission for the clergy to marry. The latter of these points he considered to be the only remedy for the fearful immorality of the church, for, though all flesh was corrupt, the corruption of the priesthood surpassed that of all other men. [1371](#) That he had

not waited for the papal assent to favor these innovations within his own dominions is shown by his statement that the Archbishop of Salzburg had recently, in a synod, earnestly called upon him to put a stop to the progress which they were making, but, he added, his long experience in such matters had shown him what was possible, and what impossible, and he had accordingly set forth the difficulties of the task in a paper addressed to the archbishop, a copy of which he inclosed to the pope.¹³⁷²

The nuncio Commendone, in transmitting this document to Rome, accompanied it with a letter from the Cardinal Bishop of Augsburg, recommending the postponement of the question until the reassembling of the council of Trent, and, as Pius answered it in this sense, no further action was taken, though Ferdinand made haste to repeat his demand, in view of the impatience of both clergy and people, who could ill brook the delays inseparable from the discussion of the subject in so unwieldy a body.¹³⁷³ When Commendone, moreover, passed through Cleves on his way to the council, then about to be reopened, the Duke of Cleves earnestly besought him to lend his influence to the accomplishment of the measure, urging as a reason that in the whole of his dominions—and he was sovereign of three populous duchies—there could not be found five priests who did not keep concubines. In order to secure his favor for the approaching council, Commendone did not scruple to hold out expectations that the concessions would be granted.¹³⁷⁴

During the progress of the Reformation, when the fate of the Catholic church of Germany had sometimes seemed to hang in the balance, no princes had earned a larger title to the gratitude of Rome than the powerful Dukes of Bavaria, who were the leaders of the reaction. Yet now the influence of that important region was thrown in favor of the abrogation of celibacy, and Duke Albert was the first who boldly brought the matter before the council by a demand for ecclesiastical marriage, presented on the 27th of June, 1562. To this the evasive answer was returned that the council would take such action as would be found to redound to the glory of God and to the benefit of the church.¹³⁷⁵ During the same year the Emperor Ferdinand also repeatedly urged its consideration. A plan for the reform of the church presented by his delegates not only called attention to the necessity of purifying the morals of the regular and secular clergy, but

demanded that, to some nations at least, the privilege of sacerdotal marriage should be conceded.¹³⁷⁶ Another elaborate paper argued the question with much temperate force, and declared that many priests had already married for the purpose of escaping the corruptions of celibacy, while studiously preserving themselves from the errors of Lutheranism. Out of a hundred parish priests scarcely one could be found who was not either openly or secretly married, and it was necessary to tolerate them to prevent the utter destruction of the church.¹³⁷⁷

A third document is extant, without date, which was laid before the cardinals of the papal court by the emperor, in which the question was argued at considerable length and with much vehemence. After asserting that from the records of the primitive church celibacy was not then recognized as imperative, it proceeded to declare that if marriage ever were permissible, the present carnal and licentious age rendered it a necessity, for not one Catholic priest out of fifty could be found who lived chastely. All were asserted to be notoriously dissolute, scandalizing the people and inflicting great damage on the church. The request was made not so much to satisfy the priests who desired marriage as to meet the wishes of the laity, for many patrons of livings refused presentation to all but married men. However preferable a single life might be for the clergy, it therefore was thought better to give it up than to leave open the door to the scandalous impurities traceable to celibacy. Another weighty reason was alleged in the great scarcity of priests, caused alone by the prohibition of marriage, in proof of which it was urged that the Catholic schools of divinity were all but empty and the episcopal function of ordination nearly disused, while the Lutheran colleges were crowded by those who subsequently obtained admission into the true church, where they worked incredible mischief. The argument that the temporal possessions of the church would be imperilled by sacerdotal matrimony was met by indignantly denouncing the worldly wisdom which would protect such perishable interests at the cost of innumerable souls sacrificed by the existing condition of affairs. For these and other reasons it asked that marriage should in future be allowed to all the priesthood, whether already in orders or to be subsequently admitted: that married men of good character and education should be ordained to supply the want of pastors: that those who had contracted matrimony, in contravention of the canons, should no longer be ejected, seeing that it was

most absurd to turn out men because they were married, while retaining notorious concubinarians, and that if, with equal justice, both classes should be dismissed, the people would be left almost, if not entirely, destitute of spiritual guides. The paper concluded by asserting that if the prayer be granted the clergy could be retained in the church and in the faith, to the great benefit of their flocks, and that the scandal of promiscuous licentiousness, which had involved the church in so much disgrace, would be removed.^{[1378](#)}

This vivid sketch of the condition of the church, with the evils which were everywhere felt, and the remedies which suggested themselves to clear-sighted and impartial men, was as ineffectual as other similar efforts had been, for to all such arguments the council of Trent was deaf. France, too, was more than willing to see celibacy abolished. M. de Lanssac, the French ambassador, was ordered to place himself in close relations with the representatives of the emperor, and to unite with them in seeking the relaxation of all regulations which tended to prevent the reunion of the Protestants, while the Gallican bishops were commanded to show themselves reasonable and yielding in such matters; and when Lanssac reported the demands of the emperor, comprehending clerical marriage among other changes, Charles IX. assented to them in terms of warm commendation.^{[1379](#)} The Cardinal of Lorraine, moreover, was instructed to urge some measures efficient to reform the licentious lives of the ecclesiastics which spread corruption and debauchery among the people, while permission for priestly marriage was recommended as one of the means essential to recall the heretics to the bosom of the true church.^{[1380](#)} As a compromise, however, the French prelates contented themselves with suggesting that none but elderly men should be eligible to the priesthood, and that the testimony of the people in favor of their moral character should be a prerequisite to ordination, in hopes that by such means the necessary purification of the clergy at least could be effected, while the sharpest measures should be adopted to punish their licentiousness.^{[1381](#)}

All this was useless, and, in fact, it is difficult to imagine how any one could expect a reform of this nature from a body composed of prelates all whom were obliged by Pius IV., in a decree of September 4th, 1560, to solemnly swear to a profession of faith containing a specific declaration that

the vows of chastity assumed on entering into holy orders or monastic life were to be strictly observed and enforced.¹³⁸² The question thus was prejudged, and the council was more likely to listen to Bartholomew a Martyribus, the Archbishop of Bracara, who laid before them a paper containing the points which, in his opinion, required reformation, among which were the revival of the canons respecting concubinary bishops and priests, the prohibition of sons succeeding to their father's benefices, and the excommunication of confessors who debauched their fair penitents¹³⁸³—though when the sturdy archbishop in a stormy debate declared that “*illustrissimi cardinales egent illustrissima reformatione*,” he doubtless was held to be a most uncourtly and impracticable reformer.

Despite all the urgency from without, it was not until the 8th of February, 1563, after the council had been in session for more than a year, that the theologians at last arranged for disputation the articles on matrimony, and laid them before the council for discussion. They were divided into five classes, of which the fourth was devoted to the bearing of the subject on the clergy, consisting of two propositions artfully drawn up to justify rejection, while preserving the appearance of presenting the subject for deliberation.—That matrimony was preferable to celibacy, and that God bestowed grace on the married rather than on the single.—That the priests of the Western Church could lawfully contract marriage, notwithstanding the canons; that to deny this was to condemn matrimony, and that all were at liberty to marry who did not feel themselves graced with the gift of chastity.¹³⁸⁴

The disputation on the various questions connected with matrimony commenced the next day, and was continued at intervals for six months. By August 7th all the canons on the subject were agreed to, except the one on clandestine marriages, which gave the fathers much more trouble than the more important decision respecting the retention of celibacy.¹³⁸⁵ This latter, indeed, was a foregone conclusion. In the minute account, transmitted from day to day by Archbishop Calini to Cardinal Cornaro, in which all the details of internal discussion and external intrigue attainable by a quick-witted member of the council were reported, there is no allusion to the subject. No debates or diversity of opinion are mentioned, no intimation that the matter was regarded as open to a doubt, and even the appeals made by the emperor and other potentates are passed over in silence, for the very

sufficient reason that the papal legates, who controlled all the business of the council, refused to allow them to be read.¹³⁸⁶ In their reply to the emperor's remonstrances, indeed, they declared that to have such a subject publicly broached in the council would create a fearful scandal throughout Christendom, and Pius IV. approved of their answer as the best that could be given.¹³⁸⁷ It is no wonder, therefore, that in the correspondence of the nuncio Visconti the only allusion to the matter is a simple reference, under date of March 22, 1563, to the demand previously made by the Duke of Bavaria.¹³⁸⁸

In fact, when, on March 4th, the 5th and 6th articles were reached, they were both unanimously pronounced heretical without any prolonged debate. Doctor Juan de Ludegna pronounced a "disputation" on the subject, the tone of which showed that the result was already decided, and that the only disposition of the council was to vilify those who desired the abrogation of celibacy.¹³⁸⁹ A discussion, however, then arose as to the power of the pope to dispense the clergy, both regular and secular, from the obligation of celibacy, and on this point there was considerable diversity of opinion, occupying numerous successive meetings in its settlement. The majority were in favor of the papal power; and its exercise in the existing condition of the church was even recommended by those who recognized the evils of the system, but shrank from the responsibility of themselves introducing the innovation. This was promptly rebuked by the conservatives, according to Fra Paolo, with the remark that a prudent physician would not attempt to cure one disease by bringing on a greater.¹³⁹⁰ The legates, indeed, were blamed for allowing any discussion on so dangerous a topic, since, if priests were permitted to marry, their affections would be concentrated on family and country, in place of the church; their subjection to the Holy See would be diminished, the whole system of the hierarchy destroyed, and the pope himself would eventually become a simple Bishop of Rome.¹³⁹¹ If such consequences as these were anticipated by the able men who represented the papal interests, we may readily believe that Pallavicini speaks the sense of the managers of the council when he remarks, concerning the princes who exerted themselves in favor of sacerdotal marriage, that they seemed to consider that the council had been convoked for the purpose not of condemning but of contenting the heretics, whom they proposed to convert by gratifying in place of repressing their contumacious desires.¹³⁹² If this be

so, the Protestants were amply justified in refusing to submit their cause to a body so different in its objects from that free and unbiased œcumenic council to which they had so often appealed from their persecutors.

Yet, notwithstanding that the policy of the church was thus immutable, there seems to have been no hesitation in holding out fallacious hopes to the expectant populations. When, in the spring of 1563, the Bavarians, wearied with endless promises, rose in revolt and demanded the use of the cup and priestly marriage, their duke was obliged to make a promise to his Diet that if the required concessions were not granted in June, by either the council or the pope, he would himself give the desired permission. The threatened defection of this Catholic stronghold caused such alarm that the legates at Trent forthwith despatched Niccolo Ormanetto to the duke, to persuade him to withdraw his promised reforms under a pledge that the council would take such order as would satisfy the demands of his people.^{[1393](#)}

These promises were soon forgotten, though it was not until the 11th of November that the canons on matrimony were finally adopted and formally published. Of these there are two relating to our subject. The first one pronounced the dread anathema on all who should dare to assert that clerks in holy orders, monks, or nuns could contract marriage, or that such a marriage was valid, since God would not deny the gift of chastity to those who rightly sought it, nor would He expose us to temptation beyond our strength. The other similarly anathematized all who dared to assert that the married state was more worthy than virginity, or that it was not better to live in celibacy than married.^{[1394](#)}

Thus the church, in endeavoring to meet the novel exigencies caused by the progress and enlightenment of mankind, in place of making the concessions demanded by almost all beyond the narrow pale of the papal court, devoted its energies to the miserable task of separating itself as widely as possible from those who had left it.^{[1395](#)} Its rulers seemed to imagine that their only hope of safety lay in intrenching themselves behind the exaggerations of those particular points of policy which had afforded to their adversaries the fairest chances of attack. The faithful throughout Germany might suffer from the absence of the ministers of Christ, or might endure yet more from the unrestrained passions of the wolves in sheep's clothing let loose among their wives and daughters, but the church militant

in this conjuncture dreaded even more to lose the aid of that monastic army which, in theory at least, had no earthly object but the service of St. Peter; it selfishly feared that the parish priest who might legitimately see his fireside surrounded by a happy group of wife and children would lose the devotion which a man without ties should entertain for the prosperity and glory of the ecclesiastical establishment; and perhaps, more than all, it saw with terror avaricious princes eager for the secularization of that immense property to which it owed so large a portion of the splendor which dazzled mankind, of the influence which rendered it powerful, and of the luxury which made its high places attractive to the ambitious and able men who controlled its destiny. To put an end, therefore, at once and forever, to the mutterings of dissatisfaction among those who compared the calm and virtuous life of the Protestant pastors with the reckless self-indulgence of the ministers of the old religion, it was resolved to place the canon of celibacy in a position where none of the orthodox should dare to attack it, and to accomplish this the simple rule of discipline was elevated to the dignity of a point of belief. As the church had already been forced, in defending the rule from the assaults of the reformers, to attribute to it apostolic origin, we may not perhaps be surprised that it was made a point of doctrine, but we cannot easily appreciate the reasons that would justify the anathema launched against all who regarded the marriage of those in holy orders as binding. The dissolution of such marriages, as we have seen, was not suggested until the middle of the twelfth century, and the decision of the council thus condemned as heretics the whole body of the church during three-quarters of its previous existence.

Although the doctrinal canon threw the responsibility of priestly unchastity upon God, yet as the council had so peremptorily refused to adopt the remedy urged by the princes of the empire, it did not hesitate to employ human means to remove, if possible, the scandals which God had permitted to afflict the church. The decree of reformation, published in December, 1563, contained provisions intended to curb the vice which the Tridentine fathers, with all their reliance on Divine power, well knew to be ineradicable. These provisions, however, were little more than a repetition of what we have seen enacted in every century since Siricius. Any ecclesiastic guilty of keeping a concubine, or woman liable to suspicion, was admonished; disregarding this first warning, he was deprived of one-

third of his revenue; if still contumacious, suspension from functions and benefice followed; and a persistence in guilt was then visited with irrevocable deprivation. No appeal from a sentence could gain exemption; these cases were removed from the jurisdiction of inferior officials and confided to the bishops, who were enjoined to be prompt and severe in their decisions; while guilty bishops were liable to suspension by their provincial synods, and, if irreclaimable, were sent to Rome for punishment. The illegitimate children of priests were pronounced incapable of preferment. Those already in orders, if employed in their fathers' parishes, were required, under pain of deprivation, to exchange their positions within three months for preferment elsewhere, and any provision made by a clerical parent for the benefit of his children was pronounced to be a fraud.^{[1396](#)}

Such were the regulations which this great general council of the Catholic church considered sufficient to relieve the establishment of the curse which had hung around it for a thousand years. There is nothing in them that had not been tried a hundred times before, with what success the foregoing pages may attest. In some respects, indeed, they were not as prompt and efficacious as the decrees which Charles V. and his bishops had promulgated a few years previous, and which had proved so lamentably inefficient. There were not wanting enlightened members of the council who bitterly felt the inefficiency of what they were doing, but the undignified haste of the closing sessions, and the all-powerful opposition of Rome, rendered them unable to accomplish more. As the Bishop of Astorga said in a letter to Granvelle—"They are not as we would have wished, to correct the abuses and scandals of the church, which cause so many to fall into error, but we have to do what we are permitted to do, not what we would wish to do."^{[1397](#)} Heretics, indeed, who asserted that there was in reality no intention of suppressing concubinage, could point in justification to the curious fact that, while previous councils had provided heavy penalties against the concubines of priests, that of Trent passed them over as though they were guiltless.

Strange as it may seem, the anathema so decidedly enunciated by the council did not deter Albert of Bavaria and the Emperor Ferdinand from

continuing their efforts to procure for their subjects the benefit of a relaxation of the canon. The decision of a majority of the doctors of the council favoring the papal power of dispensation suggested the mode of obtaining it. Although the form of the canons had been adopted on the 7th of August, and the previous proceedings left no doubt as to their authoritative promulgation in full session, yet, on the 26th of August, the nuncio Visconti writes that he had heard from his colleague Delfino, then in Vienna, that the three ecclesiastical electors (Mainz, Trèves, and Cologne), the Archbishop of Salzburg and the Duke of Bavaria had held a conference, in which it was resolved to unite with the emperor in an appeal for Bulls permitting the marriage of the clergy and the use of the cup by the laity.¹³⁹⁸ Early in September the emperor wrote to his ambassadors, stating that he had called together at Vienna the deputies of the electors and princes of the empire, where, after mature deliberation, it had been determined to ask the cup and clerical marriage of the pope and not of the council; that a protocol had already been drawn up, which accompanied the despatch, but as it was a matter not yet fully settled, he desired it to be communicated to no one but the Count de Luna, the ambassador of Philip II.¹³⁹⁹

It was not, however, until February, 1564, after the conclusion of the council, which brought its weary labors to an end on the 4th of December, 1563, that Ferdinand and Albert presented their requests to Pius IV. The two papers were essentially the same. In the name of the princes of the empire, after demanding the communion in both elements for the laity, they proceeded to argue earnestly for the other concession. Perhaps the decided opposition of the council to the principle of sacerdotal marriage had produced an influence upon them; perhaps they had found themselves obliged to yield some of their own views in order to secure the coöperation of the Teutonic hierarchy; be this as it may, their demands were greatly abated. In place of asking, as before, the privilege for the clergy at large, they now reduced their entreaties to the simple request of allowing such Catholic priests as had entered into matrimony, to retain their wives and perform their functions, which they assured the pope was absolutely essential to the preservation of the fragments of the church still doing battle with the prevailing heresies throughout Germany.¹⁴⁰⁰ They likewise asked that in such places as could not obtain a sufficiency of pastors, the bishops

should be empowered to ordain married laymen of approved piety, learning, and fitness.

These appeals were successful as far as communion in both elements was concerned, for, on April 16th, Pius granted that concession under certain conditions. The subject of priestly marriage, however, he still postponed, and on June 17th we find Ferdinand writing to Cardinal Morone, to express his thanks for what he had obtained, and to urge the other subject on the consideration of the papal court. He had instructed his ambassador, he said, to press it earnestly, and he besought the Cardinal to aid in so pious and advantageous a work. [1401](#)

Nor was this the only means which Ferdinand, then verging rapidly to the grave, adopted to attain the object of his unwearied pursuit. George Wicelius had thrown aside the monastic gown in 1531, to embrace the errors of Lutheranism, but had returned to the old religion. His learning and piety earned for him a deserved reputation, and elevated him to the position of imperial councillor, where his talents were devoted to the endless task of bringing about a reconciliation between the churches. George Cassander, equally eminent, had never incurred the imputation of apostasy, but had labored with tireless industry to convert his erring brethren from heresy to the true faith. Men like these might perhaps be heard when the voice of princes and prelates, actuated by motives of personal advantage, met a deaf ear; and Ferdinand applied to them for disquisitions on the subject. [1402](#) Before their labors were concluded the monarch was dead (July 25, 1564), but his son Maximilian II. inherited his father's ideas, and gladly made use of the opinions which the learned Catholic doctors had no hesitation in expressing.

Both took strong ground against celibacy. Cassander, while defending the church for originally introducing the rule, deplored the terrible and abominable scandals which its untimely enforcement caused throughout the church, and he urged that the reasons which had led to its introduction not only existed no longer, but had even become arguments for its abrogation, since now the choice lay only between married priests and concubinarians. He declared it to be the source of numerous evils, chief among which was promiscuous and unbridled licentiousness, and he added that the already scanty ranks of the priesthood were deprived of the accessions which were

so necessary, since men of a religious turn of mind were prevented from taking orders by the universal wickedness which prevailed under the excuse of celibacy, while pious parents kept their sons from entering the church for fear of debauching their morals. On the other hand, those who sought a life of ease and license were attracted to the holy calling which they disgraced. He was even willing to permit marriage in orders, arguing that it was only a question of canon law, in which faith and doctrine were not involved. As regards the monastic orders, while fully appreciating the principles upon which the system was founded, he warmly deplored the corruption engendered by wealth and luxury. Though the convents contained many pious and holy men, still for the most part religion was forgotten in the observance of ceremonies that had lost their significance, and nothing could be more licentious and profane than the life led in many of the monasteries.¹⁴⁰³ Wicelius was equally severe in his denunciations of the clerical licentiousness attributable to the rule of celibacy, and concluded his tract by attacking the supineness, blindness, and perversity of the prelates who suffered such foulness to exist everywhere among the priesthood, in contempt of Christ, and to the burdening of their consciences.¹⁴⁰⁴

It was already evident that both the great objects for which the council of Trent had ostensibly been assembled were failures; that it would effect as little for the purification of the church as for the reconciliation of the heretics. Perhaps Maximilian felt that under these circumstances no one could deny the necessity of such changes as would at least afford a chance of the reformation that could no longer be expected of the Tridentine canons; perhaps he felt strengthened by the support of his ecclesiastical counsellors and controversialists; perhaps, with the zealous hopefulness of youth, he felt a confidence of which age and many disappointments had deprived his father; or perhaps he was encouraged by the concession to his subjects and to those of Albert of Bavaria, of the communion in both elements, not knowing that in two short years it would be withdrawn. Certain it is that in a negotiation with the Bishop of Vintimiglia, papal nuncio at his court, he lost no time in renewing, with increased energy, the effort to obtain the recognition of married priests. After the departure of the nuncio, he addressed, in November, 1564, a most pressing demand to Pius IV., in which he declared that the matter brooked no further postponement; that throughout Germany, and especially in his dominions, there was the

greatest need of proper ministers and pastors; that there was no other measure which would retain them in the Catholic church, from which, day by day, they were withdrawing, principally from this cause. He assured the Holy Father that the danger was constantly increasing, and that he feared a further delay would render even this remedy powerless to prevent the total destruction of the old religion. If only this were granted to the clergy, even as the cup had been communicated to the laity, he hoped for an immediate improvement. The bishops could then exercise their authority over those who at present were beyond their control, as unrecognized by the church; and so thoroughly was this lawless condition of affairs understood that a refuge was sought in his provinces by those disreputable pastors who were banished from the Lutheran states on account of their disorderly lives.^{[1405](#)} His brother, the Archduke Charles, was equally urgent, in a letter which he addressed, a few days later, to the Pope, repeating the same arguments, and assuring him that the only hope for the true religion in his dominions was to find some means of admitting the services of a married clergy.^{[1406](#)}

Ferdinand and Maximilian were actuated in these persevering efforts not merely by the desire of gratifying the wishes of their people, or of remedying the depravity of the ecclesiastical body. It had been a favorite project with the father, warmly adopted by the son, to heal the differences between the two religions, and to restore to the church its ancient and prosperous unity. In their opinion, and in that of many eminent men, the main obstacle to this was the question of celibacy. It was evidently hopeless to expect this sacrifice of the Lutheran pastors, while numerous members of the Catholic church regarded the change as essential to the purification of their own establishment. The only mode of effecting so desirable a reconciliation was therefore to persuade the pope to exercise the power of dispensation which the council of Trent had admitted to be inherent in his high office. The spirit of the papal court, however, was that which Pallavicini attributes to the council—that the heretics were to be cut off, and not to be cajoled into returning. Pius IV. himself was not personally averse to the plan so persistently urged upon him, but those around him saw greater dangers in concession than in refusal. De Thou, indeed, says that he was inclined to grant the privilege for the territories of Maximilian, but that Philip II., at the instigation of Cardinal Pacheco, fearing an example so dangerous to his turbulent and excitable subjects in the Netherlands,

opposed it strenuously, and sent Don Pedro d'Avila to Rome, who persuaded the pope to elude the demand, by keeping matters in suspense, and by holding out prospects of accommodation destined never to be accomplished.^{[1407](#)}

This is probably not strictly correct. Maximilian's demand had perhaps been rendered more pressing than respectful by the necessity of conciliating his people in view of the war with John of Transylvania and the Turks. Its tone was not relished at Rome, nor could the papacy be expected to listen with as much patience to remonstrances from a prince who had just grasped the reins of power as it had to those of the mature and experienced Ferdinand, especially as Maximilian had been shrewdly suspected of secretly leaning to the tenets of the Reformers.^{[1408](#)} The response to Maximilian was therefore of the sharpest. Pius replied, arguing against clerical marriage and positively declaring that it would not be tolerated,^{[1409](#)} and to prevent further trouble Cardinal Commendone was sent to warn him that any interference with the interests of religion would be visited with the severest penalties; in fact, he was threatened with deprivation of the imperial title, and a convocation of the Catholic princes for the purpose of electing a successor.^{[1410](#)}

The Catholic church thus definitely accepted the ancient canons, erected them into an article of faith, and resolved to meet whatever consequences might flow from their maintenance. In the existing condition of clerical morals, we are almost justified in saying that it assumed the position attributed by St. Bernard to the Manichæans of the twelfth century—that they took vows of continence in order to cover their incontinence, and that marriage was the only sexual relation which they regarded as a sin.^{[1411](#)} We shall see hereafter what were the results of this abnormal position.

XXIX.

THE POST-TRIDENTINE CHURCH.

The great council, on which so long had hung the hopes of the Christian world, had at last been held. The reformation of the church, postponed by the skilful policy of the popes, had been reached in the closing sessions, and had been hurriedly provided for. As we have seen, the regulations which concerned the morals of the clergy were sufficient for their purpose, if only they could be enforced, yet as they were but the hundredth repetition of an endeavor to conquer human nature, which had always previously failed, even those who enacted them could have felt little faith in their efficacy. August Baumgartner, the Bavarian ambassador, in his address to the council, June 27th, 1562, had alluded to the prevailing belief that any comprehensive effort to enforce the chastity required by the canons would result in driving the mass of the Catholic clergy over to Protestantism.¹⁴¹² Since continence was held by them to be impossible, it was thought that they would prefer to marry their concubines as Lutherans rather than give them up as Catholics. Possibly the fear of such untoward result may explain the slender effect which can be discerned from a scheme of reform so laboriously reached and so pompously heralded as the panacea for the woes which were destroying the church.

Although Catherine de Medicis and her sons refused to allow the council to be formally published in France, yet she permitted its decrees to be freely circulated, and her bishops were at liberty to adopt them as the code of discipline in their dioceses.¹⁴¹³ The difficulties raised by the Emperor Maximilian on the score of priestly celibacy were met with a vigor on the part of Pius IV. which savored of the thirteenth rather than the sixteenth century. Philip II., after some hesitation, ordered the reception of the council in all his dominions, which extended from Naples to the North Sea;¹⁴¹⁴ and Poland, despite some opposition from an ambitious prelate, submitted to it before the year 1564 was ended.¹⁴¹⁵

As an authoritative exposition of the law of the church of Christ, conceived and elaborated under the influence of the Holy Ghost, and commanded for implicit observance by the Vicegerent of God; as the expression of the needs and wants of the Catholic faith, wrought by the concentrated energy and wisdom of the leading doctors of Christendom, and transmitted for practical application through the wondrous machinery of the Catholic hierarchy, it should have had an immediate influence on the evils which it was intended to eradicate. Those evils had confessedly done much to create and foster the schism under which the church was reeling; their magnitude was admitted by all, and no one ventured to defend or to palliate them. Their removal was acknowledged to be a necessity of the gravest character, and every adherent of Catholicism was bound to lend his aid to the good work. What, then, was accomplished by the Council which had for so long a period labored ostensibly with the object of restoring Latin Christianity to its primitive purity?

Pius IV. rested satisfied with promulgating and confirming the decrees of the council, and waited to see them produce their destined effect. In 1566, however, he was succeeded by Pius V., whose experience as grand inquisitor had doubtless rendered him familiar with the prevailing neglect of ecclesiastical discipline, while his unbending temper made him rigorous in his determination to restore it. One of the earliest acts of his pontificate was the publication of a Bull commanding the ordinaries of all churches to put in force the Tridentine canons respecting concubinary priests, thus showing that already they were treated with contempt,¹⁴¹⁶ while a special mandate on the subject, addressed to the Archbishop of Salzburg, describes the unchecked corruption of the German priesthood as threatening the speedy destruction of the Catholic religion there.¹⁴¹⁷ Two years later he found it necessary to issue another Bull, directed against darker crimes, the deplorable prevalence of which can hardly be attributed to any additional and unaccustomed vigor in removing the female companions of the clergy,¹⁴¹⁸ for the Archbishop of Salzburg, in reply to a fresh command to reform his church, had replied that he and his suffragans had never ceased to attempt it, but that all their efforts had been fruitless and that he despaired of success.¹⁴¹⁹ Even a worse experience befell Bernardt Rasfeldt, Bishop of Munster, who, in his synod of 1566, published a papal brief commanding the dismissal of clerical concubines, for his action roused the

fury of his canons to such a degree that they forced him to resign his bishopric and spend the rest of his days in obscurity. He was succeeded by Johann von Hoya, Bishop of Osnabruck and President of the Imperial Chamber, a man distinguished by his birth and learning, but who speedily wearied of the conflict and sought peace by imitating the example of his subordinates.^{[1420](#)}

In 1571 Pius undertook another subject of reform. Notwithstanding the decree of the council that any action of clerical fathers for the benefit of their offspring should be considered as fraudulent, the transmission of ecclesiastical property to such illegitimate heirs continued almost unchecked, and Pius recognized the necessity of further legislation to diminish the abuse. His Bull on the subject is drawn up with a care and minuteness which show the magnitude of the evil and the extreme difficulty of preventing it.^{[1421](#)} Nor was there only the need of preserving the possessions of the church; the scandal of sacerdotal families required repression, and all other means having apparently failed, in 1572 another decretal declared that such children were incapable of receiving even the private and patrimonial property of their fathers.^{[1422](#)} These successive edicts are a full confession that the long-promised reformation was a failure, and that, while the council might regulate doctrine, it was utterly powerless to enforce discipline. The papal fulminations proved equally powerless, and Rome itself apparently winked at contraventions of the rule, which could be rendered profitable by the prerogative of issuing dispensations. In 1610 the Synod of Augsburg found it necessary to declare that it would enforce the Tridentine canons prohibiting the illegitimate sons of priests from holding preferment in their father's benefices, notwithstanding what dispensations they might produce to the contrary.^{[1423](#)}

Yet even these legislative labors of the pope are less instructive than the war which he commenced against the courtesans of Rome. If the new enactments could have been expected to command respect, the example should have been set in the Holy City itself, but Pius IV. had allowed the most public and scandalous immorality to flourish unchecked under his immediate supervision. In 1538 the "Consilium de Emendanda Ecclesia" had animadverted upon the cynical licentiousness of the Roman clergy in terms which show that not much improvement had taken place since

Petrarch's description of the papal court,¹⁴²⁴ and the thirty years which had intervened had not served to purify it. Pius V. felt the disgrace keenly, and resolved on its suppression. He at first proposed to put an end to the nefarious trade, and to banish all the public women who would not give a pledge of reformation by an immediate marriage. Forced to relinquish this measure as impracticably harsh, he contented himself by restricting their residence to certain houses, and forbade their plying their vocation in the streets by day or night. Although he thus admitted the necessity of the evil, and endeavored to restrain only its public manifestation, even this moderate attempt at reform was deemed insufferable. The clergy were ashamed to offer opposition openly, but found no difficulty in urging the Senate to strenuous resistance. The remonstrance made by that body shows not only the frightful extent of the prevalent immorality, but also the settled conviction that immorality was inseparable from celibacy. It was represented that if the proposed rules were enforced, the prosperity of the city would be destroyed and the rents of houses be reduced to nothing; moreover, it was urged that, amid so vast a number of men condemned to celibacy, if any such restrictions were put in force, it would be impossible to preserve the virtue of the wives and daughters of the citizens. The contest was stubbornly continued until at length Pius was driven to declare that, if any further difficulty were interposed, he would abandon the city.¹⁴²⁵

In spite of these well-meant but nugatory efforts of Pius, the immorality of the papal court itself and of its highest dignitaries was admitted by a Bull which Sixtus V. promulgated in 1586. In decreeing that no one who had children, even if they were legitimate, should be eligible to the cardinalate, he took care to let the world understand the cause of the restriction by declaring that in no other way could evidence be had of the observance of their vows.¹⁴²⁶

If Pius V. met with opposition in the task of purifying the Augean stable of Rome, St. Charles Borromeo, encouraged and stimulated by his example, found himself involved in a more dangerous quarrel when he attempted, in the equally demoralized city of Milan, to enforce respect for the decrees of

Trent. In 1569 he undertook to reform the canons of S. Maria della Scala, whose licentious mode of life was a scandal to the faithful. So persistently did they deny their subjection to his archiepiscopal jurisdiction, that, after a long discussion, his only resource for vindicating his authority was excommunication. The contumacious canons were still indisposed to yield, and, assembling in their church, they maltreated his messenger. Thinking that his presence might bring them to reason, he ventured himself to expostulate with them, and found them drawn up in their cemetery, with arms in their hands, and supported by soldiers whom they had hired. On reaching the gate, he dismounted from his mule and advanced towards them with his cross, which he had snatched from his cross-bearer. Unabashed by this symbol at once of religion and authority, the mutinous canons rushed upon him with shouts of “Spagna,” “Spagna,” brandishing their weapons and discharging their fire-arms at the cross in his hands—fortunately without injuring him. Having thus driven him off, they continued for some time in open rebellion, until they were at length obliged to submit, when Pius V. and Philip II. united their power in support of St. Charles.^{[1427](#)}

Still greater was the peril to which the saint was exposed in his quarrel with the Umiliati. They were a branch of the Benedictine order, founded in 1180 by the Milanese who escaped the destruction of their city by Frederic Barbarossa. Sharing in the general license of the age, the excesses of the Umiliati became so infamous that they surpassed in turpitude the worst exploits of the unbridled youth of the city. Supported by the decretals of Pius, in 1568 St. Charles undertook to reduce the order to the observance of monastic rule. The Umiliati resisted with so much energy and success that, after two years of contest, they were still defiant. Regarding St. Charles as the cause of all their troubles, Girolamo Lignana, Provost of S. Cristoforo di Vercelli, who assumed their leadership in 1570, engaged a monk of the order named Girolamo Donati to murder him. The blackness of the deed was not relieved by the circumstances under which it was attempted. While the holy archbishop was absorbed at midnight in his devotions, Donati stole into the oratory and discharged full upon him an arquebuss loaded with slugs. Some of the missiles struck St. Charles, but rebounded to the floor, leaving him unhurt, and the miraculous nature of his escape was proved by the depth to which others penetrated the walls. At this moment the policy of Philip the Catholic supported the disaffected and rebellious monks, and for

some time yet they escaped the retribution due to their many crimes, but at length those concerned in the attempted murder were caught and executed, and the order of the Umiliati was broken up.¹⁴²⁸

These examples sufficiently show how little the great body of ecclesiastics was disposed to submit to a curtailment of the license which had become traditional, and how little respect was paid either to the commands of the great Œcumenic Council, or to the general and local authorities. It is easy to imagine that few prelates were so disposed to court martyrdom as the saintly Charles, and that churches with less conscientious pastors easily found means to purchase or compel exemption from the laws which bound them to morality. In fact, President d'Espeisses, in his memorial presented to Henry III. in 1583, against the publication of the council in France, drew one of his arguments from the greater corruption of the Italian church, where, though the council was received without demur, yet none of its orders reforming the morals of the clergy received the least attention.¹⁴²⁹ That the Tridentine canons in this respect were wholly inefficacious throughout Italy, and that the officials, with rare exceptions, did not venture to enforce them, can indeed be seen in the series of provincial councils held during the remainder of the century, from Lombardy to Naples.

The papacy had succeeded in crushing the reformers who had responded in so many Italian cities to the uprising in Germany; it had then convoked and managed at its will the great Congress of Catholic Christendom which was to put an end at once and forever to all the evils which had led to the schism; it had every opportunity and every motive for vindicating itself from the aspersions of its enemies, and yet we see it at once recur to the old machinery of local councils enacting canons whose frequency and wordy severity are the inverse measure of their efficiency. Had the promises of reform so liberally made been possible in their fulfilment, there had been no need of further legislation. A convocation of the ecclesiastics of each province to receive and publish the decrees of Trent would have been all-sufficient. When, therefore, we see the endless iteration with which the guilty clergy were threatened with the Tridentine canons, and with other new or revived penalties—as at the councils of Milan in 1565 and 1582,¹⁴³⁰ and at those of Manfredonia in 1567, of Ravenna in 1568, of

Urbino in 1569, of Florence in 1573, of Naples in 1576, of Consenza in 1579, of Salerno in 1596, of S. Severino in 1597, and of Melfi in 1597¹⁴³¹—we can only conclude that the evil was irremediable, in spite of the well-meant efforts to suppress it, or to throw off the responsibility of its existence.

In fact, the manner in which the council of Trent was greeted by the clergy may be judged from its treatment in the archiepiscopate of Utrecht. Though Philip II. had authoritatively ordered its reception in 1565, we find the Duke of Alva in May, 1568, issuing his commands to the prelates of the five churches of Utrecht to offer no further opposition to it. Even so stern a ruler could not obtain immediate obedience, however, to so obnoxious a series of regulations, and they responded by pleading their ancient privileges. This availed them little, for in June he replied that his instructions were positive, and he proceeded to enforce them by sending royal commissioners to the province, empowered to carry them out. In July, therefore, the Archbishop assembled his clergy and in conjunction with the commissioners issued a series of regulations designed to give effective force to the canons of the council. Visiting nunneries and haunting taverns, joining in dances and hunting and indecent songs were forbidden. The clergy were ordered to shave their beards and to give up their concubines, whom they were not to retake or to replace. Even yet they did not yield, but while they were ashamed to claim the right to keep their female companions, they demurred as to the sacrifice of their beards, and the Archbishop was obliged to issue another peremptory command.¹⁴³²

Throughout the whole extent of Central Europe the Tridentine canons met with a like slackness of obedience. Even the question of sacerdotal marriage, which had been raised by the council to the dignity of a point of faith, was stubbornly contested, and was not yielded until after a protracted struggle.

In 1569 we find the synod of the extensive and important province of Salzburg virtually dividing its clergy into two classes—those who haunt the taverns under pretext of getting their meals, but really for the purpose of indulging in drunken riots with their parishioners, and those who keep houses, with concubines under the guise of female servants, whom they secretly marry, and who are openly known by their husbands' names. To

meet this condition of affairs, the synod devised an elaborate system by which the richer clergy were directed to keep as domestics respectable middle-aged married women with their husbands, while the poorer ecclesiastics were to club together for the same purpose.¹⁴³³ This expedient proved as fruitless as its predecessors, for in 1572 Gregory XIII. complained to the archbishop that in many places priests who were known to be married were permitted by their bishops to celebrate Mass and to handle the sacred elements.¹⁴³⁴ In spite of all this the evil continued unabated, and in 1616 the Archbishop of Salzburg, in his instructions for a general visitation, ordered that all priests should remove their concubines to a distance of at least six miles, and should not allow their illegitimate children to live openly with them, except under special license from him.¹⁴³⁵

In 1565, Anthony, Archbishop of Prague, promulgated the council of Trent in his provincial synod. He was a man of more than ordinary vigor; he had been the imperial orator at Trent, understood fully the views of the council, and was not likely to underrate either their importance or their authority. Armed with the Tridentine canons, he set actively to work and instituted a very thorough system of inquisitorial visitations, which ought to have succeeded if success were possible. Yet, after the lapse of thirteen years, in a special mandate issued by him in 1578, he deplores the obstinate blindness of many of his clergy, who still believed, with the heretics, that marriage was not incompatible with priesthood, while those who did not marry were guilty of the less dangerous error of maintaining concubines and children on the revenues of their benefices.¹⁴³⁶

The same wilful ignorance apparently existed in the diocese of Wurzburg, for Bishop Julius, in 1584, found it necessary, in his episcopal statutes, to discountenance clerical matrimony and to prove its nullity by laboriously quoting innumerable canons and decretals; and he even condescended to remind his priesthood that in taking orders they had willingly and knowingly entered into an engagement of continence, by the consequences of which they must be prepared to abide.¹⁴³⁷

A provincial synod of Gnesen, of which the date is uncertain, but which was probably held in 1577, deplored the insane audacity displayed by ecclesiastics in marrying, and threatened them with the Tridentine

anathema.¹⁴³⁸ This warning appears to have been completely disregarded, for the Bishop of Breslau, a suffragan of the metropolis of Gnesen, in opening his diocesan synod in 1580, still complained that many of his clergy were guilty of this perversity, and he was at some pains to disavow any complicity with it, or any connivance at the licentiousness which was prevalent among the unmarried.¹⁴³⁹ In 1591 the synod of Olmutz asserted that many clerks in holy orders contracted pretended marriages, and were not ashamed of the families growing up publicly around them, while others indulged in scandalous concubinage with women, whom they styled house-keepers or cooks. In endeavoring to put an end to this state of affairs, the synod manifested its estimation of the morals of the priesthood by renewing the hideous suggestions which we have seen in the tenth and twelfth centuries, for pastors were allowed to have near them the female relatives authorized by the Nicene canons, but, in view of the assaults of the tempter, were prudently advised not to let them reside in their houses.¹⁴⁴⁰ The disregard of the Tridentine canon continued, and as late as 1628, at the synod of Osnabruck, the orator who opened the proceedings inveighed in the vilest terms against the female companions of the clergy, who not only occupied the position of wives, but were even dignified with the title.¹⁴⁴¹

Even in Spain, under Philip II., the new ideas had penetrated, and priestly marriages became sufficiently numerous to render it necessary for the Inquisition to add to its “Edict of Denunciations,” which was read during Lent in every church, a command to reveal to the authorities any case of marriage on the part of monks or of ecclesiastics in holy orders.¹⁴⁴²

We have seen above that the highest authorities in the church did not hesitate openly to attribute the origin and success of the Reformation to the scandalous corruption of the ecclesiastical body. The council of Trent had not resulted in removing the scandal, and clear-sighted prelates were not wanting who proclaimed that the same causes continued to operate and to produce the same effect. Anthony, Archbishop of Prague, in his synod of 1565, took occasion to declare that the misfortunes of the church were attributable to the dissoluteness of the clergy, and that the extirpation of

heresy could best be effected by reforming the depraved morals and filthy lives of ecclesiastics.¹⁴⁴³ At the council of Salzburg, in 1569, Christopher Spandel, in the closing address, asked the assembled prelates what title was more contemptible or more odious than that of priest in consequence of the license in which the clergy as a body indulged.¹⁴⁴⁴ The clergy of France, assembled at Melun in July, 1579, when addressing Henry III. with a request for the publication of the council of Trent, assured him that the heresy which afflicted Christendom was caused by the corruption of the church, and that it could only be eradicated by a thorough reformation.¹⁴⁴⁵ Though the Inquisition took care that Spain should not be much troubled by heretics, yet the synod of Orihuela, in 1600, declared that the concubinage practised by ecclesiastics was the principal source of popular animosity and complaint against them.¹⁴⁴⁶ These complaints were general. In 1599, Cuyck, Bishop of Ruremonde, published a work aimed at concubinary priests, in which he assured them that they and their predecessors were the cause of the ruin and devastation of the Netherlands for the last thirty years, for their vices had led to the contempt felt for the clergy, and thus to the heresy which had caused the civil wars. Those who kept their vows he asserts to be as rare as the grapes that can be gleaned after the vintage or the olives left after gathering the crop; but the only remedy he can suggest is increased vigilance and severity on the part of the prelates.¹⁴⁴⁷ Evidently, the Tridentine canons had thus far been a failure. In 1609, at the synod of Constance, the Rev. Dr. Hamerer, in an official oration to the assembled prelates, deplored the continued spread of heresy, which he boldly told them was caused by the perpetually increasing immorality that pervaded all classes of the priesthood. The Reformation had begun, had derived its strength, and was still prospering through their weakness, which rendered them odious to the people, and made the Catholic religion a by-word and a shame.¹⁴⁴⁸ In 1610, the Bishop of Antwerp, in a synodal address, agreed with Bishop Cuyck in attributing the evils which had so grievously afflicted the church of Flanders for nearly half a century, to the same cause, and, while recounting the various successive efforts at internal reform made since the council of Trent, he pronounced each one to have been a failure in consequence of the incurable obstinacy of the clergy.¹⁴⁴⁹ Damhouder, a celebrated jurisconsult of Flanders, whose unquestioned piety and orthodoxy gained for him the confidence of Charles V. and Philip II., does

not hesitate to speak of the clergy of his time as men who rarely lived up to their professions, and who as a general rule were scoundrels distinguished for their indulgence in all manner of evil.¹⁴⁵⁰ In a similar mood the Bishop of Bois-le-Duc, in opening his synod of 1612, declared that the scandalous lives of the ecclesiastics were a source of corruption to the laity and a direct encouragement of heresy.¹⁴⁵¹ So, in 1625, the synod of Osnabruck gave as its reason for endeavoring to enforce the Tridentine canons that the true religion was despised on account of the depraved morals of its ministers, whose crimes were a sufficient explanation of the stubbornness of the heretics. So little concealment of their frailty was thought necessary that they openly enriched their children from the patrimony of the church, and decked their concubines with ornaments and vestments taken from the holy images, even as we have seen was the custom among the Anglo-Saxons of the tenth century.¹⁴⁵²

The Thirty Years' War proved a more effectual bar to the spread of heresy than these fruitless efforts to cure the incurable malady of the church. After the Peace of Westphalia, there was no further need to appeal to the dread of proselyting Lutheranism as a stimulus to virtue, but still the same process of reasoning appears in exhortations to regain the forfeited respect of the community. Thus, in 1652, the Bishop of Munster expressed his horror at the obstinacy with which, in spite of fines, edicts, and canons, his clergy persisted in retaining their concubines, and he declared that the discordance between the professions and the practice of the priesthood rendered them a stench in the nostrils of the people and destroyed the authority of religion itself;¹⁴⁵³ and in 1662 the synod of Cologne deplored that the notorious want of respect felt for the ministers of Christ was the direct result of their own immorality.¹⁴⁵⁴ A doctrine even sprang up to the effect that it was not requisite to force a concubinarian to eject his companion if she was useful to him in his housekeeping or if it would be difficult for him to obtain another servant; and this became sufficiently formidable to entitle it to a place among the errors of belief formally condemned by the Roman Inquisition in its decree of March, 1666.¹⁴⁵⁵

In France the influence of the Tridentine canons had been equally unsatisfactory. At a royal council held in 1560, which resolved upon the assembly of the States at Orleans, Charles de Marillac, Bishop of Vienne, declared that ecclesiastical discipline was almost obsolete, and that no previous time had seen scandals so frequent or the life of the clergy so reprehensible.¹⁴⁵⁶ From the proceedings of the Huguenot Synod of Poitiers, in 1560, it is evident that priests not infrequently secretly married their concubines, and, when the woman was a Calvinist, her equivocal position became a matter of grave consideration with her church.¹⁴⁵⁷ The only result of the Colloquy of Poissy, in 1561, was that Catherine de Medicis prevailed upon the bishops to present a request to the king asking him to use his influence with the pope to concede the marriage of priests and the use of the cup by the laity. Means were found, as we have seen, to prevent the former of these demands from being made, while the latter, when presented, was peremptorily refused.¹⁴⁵⁸ In the existing condition of affairs, the council of Trent could not reasonably be expected to effect much, for, as the orthodox Claude d'Espence informs us, the French prelates, like the Germans, were in the habit of collecting the "cullagium" from all their priests and informing those who did not keep concubines that they might do so if they liked, but must pay the license-money, whether or no.¹⁴⁵⁹ In 1564, the Cardinal of Lorraine, not long after his return from the council, held a provincial synod at Rheims, where he contented himself with declaring that the ancient canons enjoining chastity should be enforced.¹⁴⁶⁰ The next year, 1565, a synod held at Cambray reduced the penalties to a minimum, and afforded every opportunity for purchasing immunity, by enacting that those who consorted with loose women, and who remained obdurate to warnings and reprehension, should be punished at the pleasure of the officials.¹⁴⁶¹ In two years more the same council was fain to ask the aid of the secular arm to remove the concubines of its clergy¹⁴⁶²—a course again suggested as late as 1631.¹⁴⁶³ The terms in which Claude, Bishop of Evreux, at his synod of 1576, announced his intention of taking steps to eject those who for the future should persist in their immorality show not only that such measures were even yet an innovation, but also indicate little probability of their being successful.¹⁴⁶⁴ The council of Rheims, in 1583, while proclaiming that the Tridentine canons shall be enforced on all concubinary priests, manifests a reasonable doubt as to the amount of respect which they will

receive in threatening that those who are contumacious shall be subdued by the secular arm.¹⁴⁶⁵ The council of Tours, in the same year, deplores that the whole ecclesiastical body is regarded with aversion by the good and pious on account of the scandals perpetrated by a portion of them. To cure this evil, the residence of suspected women, even when connected by blood, is forbidden, as well as of the children acknowledged to be sprung from such unions, and various penalties are denounced against offenders.¹⁴⁶⁶ The council of Avignon, in 1594, declares that the numerous decrees relative to the morals and manners of the clergy are either forgotten or neglected, and then proceeds to forbid the residence of suspected women.¹⁴⁶⁷ That of Bordeaux, in 1624, earnestly warns the clergy of the province not to allow their sisters and nieces to live in their houses, and especially not to sleep in the same room with them;¹⁴⁶⁸ and various other synods held during the period repeated the well-known regulations on the subject, which are only of interest as showing how little they were respected.¹⁴⁶⁹

No one, in fact, who is familiar with the popular literature of France during that period can avoid the conviction that the ecclesiastical body was hopelessly infected with the corruption which, emanating from the foulest court in Christendom, spread its contagion throughout the land. If Rabelais and Bonaventure des Periers reflect the depravity which was universal under Francis I., Brantôme, Beroalde de Verville and Noël du Fail continue the record of infamy under Catherine de Medicis and her children.¹⁴⁷⁰ The genealogy of sin is carried on by Tallemant des Réaux, Bussy-Rabutin, and the crowd of memoir writers who flourished in the Augustan age of French literature. Into these common sewers of iniquity it is not worth our while to penetrate; but, when the high places in the hierarchy were filled with men to whom the very name of virtue was a jest, we need not hesitate to conclude that the humbler members of the church were equally regardless of their obligations to God and man.

It is evident from all this that the standard of ecclesiastical morals had not been raised by the efforts of the Tridentine fathers, and yet a study of the records of church discipline shows that with the increasing decency and

refinement of society during the seventeenth and eighteenth centuries the open and cynical manifestations of license among the clergy became gradually rarer. It may well be doubted, nevertheless, whether their lives were in reality much purer. A few spasmodic efforts were made to enforce the Nicene canon, prohibiting the residence of women, but they were utterly fruitless, and were so recognized by all parties; and the energies of the arch-priests and bishops were directed to regulating the character of the handmaidens, who were admitted to be a necessary evil. The devices employed for this purpose were varied, and repeated with a frequency which shows their insufficiency; and it would be scarce worth our while to do more than indicate some sources of reference for the curious student who may wish to follow up the reiteration which we have traced already through so many successive centuries.^{[1471](#)} Among them, however, one new feature shows itself, which indicates the growing respect paid to the appearance of decency—complaints that concubines are kept under the guise of sisters and nieces.

That the monastic orders had profited more than the secular clergy by the Tridentine reformation may well be doubted. Laurent de Peyrinnis, one of the heads of the Order of Minims, in 1668, issued a code of regulations in which he showed that scandal was more dreaded than sin when he promulgated an exemption from excommunication in favor of those brethren who, when about to yield to the temptations of the flesh, or to commit theft, prudently laid aside the monastic habit.^{[1472](#)} Another celebrated jurist of the same Order bears testimony to the demoralization of his brethren when he declares that if the severe punishments provided for unchastity by the statutes were enforced they would result in the destruction of all the religious congregations.^{[1473](#)}

In the New World the licentiousness of the priesthood, as might be expected, began to vex the infant church as soon as it was organized among the heathen. The earliest synods and councils which were held contain the customary denunciations of concubinage and prohibitions for ecclesiastics to keep their children in their houses, to celebrate their baptisms and

nuptials, and to be assisted by them in the ministry of the altar. Many, as we are informed by the first council of Mexico, held in 1555, brought with them from Spain their concubines under the guise of relatives.¹⁴⁷⁴ For the most part, however, they formed connections with the natives.

In fact, the institution of slavery and the subject populations among whom its ministers were scattered gave rise to fresh problems, which the church sought perseveringly, but vainly, to solve. Thus, in New Grenada, before the conquest was fairly achieved, Bishop Barrios, of Santafé, held his first synod, in 1556, and there, after premising that the fruits of religion among the Indians depended upon the good example of their pastors, he proceeded to prohibit any priest stationed in an Indian town from having any Indian woman residing in his house; his food was to be cooked by men, or, if this was impossible, his female servant must be a married woman, residing with her husband under another roof¹⁴⁷⁵—a provision repeated by the synod of Lima in 1585.¹⁴⁷⁶ A curious experiment in dealing with the troubles arising from slavery is seen in the Mexican canons, which directed that if an ecclesiastic had children by his slave, the ownership of the woman was to be transferred to the church and the children were to be set free. It will be remembered (p. 178) that in 1022 the church insisted upon the continued servitude of clerical bastards whose mothers were serfs of the church; and the contrast between this and the regulation which proclaimed the freedom of the children as a punishment inflicted upon the father is perhaps the sorriest exhibit that could be made of the character of those who were engaged in spreading the teachings of Christ among the heathen.¹⁴⁷⁷

While there can be no doubt that much heroic self-devotion was shown in the efforts made to convert the new subjects of Spain, it is equally unquestionable that a majority of the ecclesiastics who sought the colonies were men of the worst description. The councils held in the several provinces deplore the evil example which they set to their newly converted flocks, and the regulations which were issued time and again against their excesses show the impossibility of keeping them under control. In Peru, for instance, when in 1581 St. Toribio commenced the quarter of a century of labor as Archbishop which worthily won for him the canonization accorded by Benedict XIII. in 1726, two councils had already been held in Lima, one in 1552 and the other in 1567, which had essayed a reformation of morals.

He, in turn, lost no time in summoning a provincial council, which assembled in 1583, the decrees of which, in their denunciation of all manner of vices, show how ineffectual the previous efforts had been. The clergy were not disposed to submit tamely to the new restraints which Toribio sought to impose, and, while the active resistance which some of them raised was subdued, the underhand management of others was so far successful that the royal assent to the proceedings of the council was delayed till 1591.¹⁴⁷⁸ Notwithstanding the activity of Toribio, who, between 1583 and 1604, held three provincial councils and ten diocesan synods, who three times personally visited every portion of his vast archbishopric, and who repeatedly ordered his vicars to send secret reports of concubinary and dissolute priests, he was obliged, in the provincial council of 1601, to content himself with renewing the regulations of 1583, sorrowfully observing that they had received scant obedience, and that consequently the corruption and abuses prevalent among the clergy deprived them of usefulness among their Indian parishioners.¹⁴⁷⁹ We can thus readily understand the grief with which the honest Fray Gerónimo de Mendieta, a contemporary, after depicting the eager docility with which the natives at first welcomed Christianity, contrasts it with the hatred which sprang up for the very name of Christian when they realized the hopeless wretchedness of their position under their new taskmasters; and the Fray does not conceal the fact that this was partly owing to the character of some of the clergy, while the better ones were disheartened and discharged their trusts mechanically, without expectation of accomplishing good.¹⁴⁸⁰ This condition of morals did not improve with time. In his official report of 1736, the Marques del Castel-Fuerte, Viceroy of Peru, remarks that the greater portion of those of Spanish blood born in the colonies embraced an ecclesiastical life, as offering an easier and more assured career than any other. Surrounded by their Indian subjects, the pastors lived in luxury and license, which their superiors did little or nothing to check. In 1728 the civil power was ordered to make an investigation into the morals of the priesthood, and especially to designate those whose concubinage was open and notorious—an invasion of the sacred immunities of the church which provoked a storm against the secular authorities, although only an examination was proposed, and there was no attempt to be made of conviction or punishment.¹⁴⁸¹

That the monastic establishments shared in the general dissoluteness we may fairly conclude when we see the precautions which St. Toribio found necessary to preserve the purity of the spouses of Christ. Thus one regulation provides that no ecclesiastic shall visit a nun without a written permission, to be granted only by the Archbishop himself, or his Provisor; and so little confidence did he feel in the guardians whom he himself appointed, that he directs that the official visitors who inspected the nunneries should not enter them without some special and urgent reason.^{[1482](#)}

A curious rule adopted by the first council of Mexico in 1555 shows how much more scandal was dreaded than sin. In order, as it says, to avert danger and infamy from the clerical order and from married women, it prohibits the Fiscal, or prosecuting officer, from taking cognizance of cases of adultery committed by ecclesiastics, unless the husband be a consenting party, or the adulterer makes public boast of it, or the fact is so notorious that it cannot be passed over in silence; and even when action thus is not to be avoided, in no case is the name of the woman to be mentioned in the proceedings. The Provisors, however, are not forbidden to take notice of such crimes, but are allowed to settle them, if they can, with all due discretion.^{[1483](#)} As might be expected these regulations, by giving practical immunity, led to an increase in crime, and the third council of Mexico in 1585 tells us that many of the clergy indulged in it, in preference to ordinary concubinage, in the confidence that they would not be prosecuted; but the amended rule adopted by the Council to meet this trouble differs so little from its predecessors, that we may reasonably doubt whether it was followed by any diminution in the evil.^{[1484](#)} And this, judging from Rivera's notes to his edition of 1859, is the existing state of ecclesiastical law in Mexico,^{[1485](#)} although the Tridentine canon specially orders the Episcopal Ordinaries to proceed *ex officio* in all such cases, even of laymen.^{[1486](#)}

The church of the post-Tridentine period began to find a darker and more dangerous sin attract closer attention than of old, and call for more serious efforts to prevent its offending the awakened consciousness of the faithful.

The power of the confessional, one of the most effective instrumentalities invented by the ingenuity of man for enslaving the human mind, was peculiarly liable to abuse in sexual relations. No one can be familiar with the hideous suggestiveness of the penitentials without recognizing how fearfully frequent must be the temptations arising between confessor and penitent, while their respective relations render seduction comparatively easy, and unspeakably atrocious.¹⁴⁸⁷ To deprive such relations of danger requires the confessor to be gifted with rare purity and holiness, and when these functions were confided to men such as those who composed the sacerdotal body, as we have seen it throughout the Middle Ages, the result was inevitable.

The scandals of the confessional were no new source of tribulation to the church and the people. No sooner had the early custom of public and lay confession tended to fall into the hands of the priesthood than it was found necessary to call attention to the dangers thence arising. The first council of Toledo, in 398, forbids any familiarity between the virgins dedicated to God and their confessors.¹⁴⁸⁸ About the year 500, Symmachus calls attention to the spiritual affinity contracted between the confessor and his penitent, rendering the latter his daughter; he alludes to Silvester as having denounced guilty relations between them, and proceeds to decree not only deposition in such cases, but life-long penitence.¹⁴⁸⁹ As sacerdotal confession gradually became customary, a decretal was forged—whether to give additional authority to the practice, or to impress upon the minds of confessors the necessity of prudence—by which the name of Celestin I. was used for a regulation confiscating all the possessions of the female delinquent and confining her in a monastery for life, while the seducer was warned that such sin with his spiritual daughter amounted to a grave case of adultery, for which he must be deposed and undergo penance for twelve years, provided, always, that the facts had become known to the people,¹⁴⁹⁰ thus indicating that scandal rather than sin was the danger most dreaded.

It was inevitable that this trouble should continue, as we have seen it do throughout the whole history of a celibate priesthood.¹⁴⁹¹ That it was the subject of frequent and indignant reprehension on the part of those who sought to elevate and purify the church we may well believe. Calixtus II. freely assumes the perdition of the priest who thus betrays the sacred

confidence reposed in him, denouncing him as a lion devouring sheep, as a bear attacking a traveller who has lost his way, as a fowler spreading lures for birds and attracting them with sweet sounds, while the woman he treats not as a partner in guilt, but as an unfortunate who finds destruction where she is seeking salvation.¹⁴⁹² It is observable here that the fault is assumed to lie exclusively with the confessor, and such is likewise the case in the eloquent denunciations of Savonarola, who declares that the Italian cities are full of these wolves in sheep's clothing, who are constantly seeking to entice the innocent into sin by all the arts for which their spiritual directorship affords so much scope.¹⁴⁹³ The extent to which the evil sometimes grew may be guessed from a case mentioned by Erasmus, in which a theologian of Louvain refused absolution to a pastor who confessed to having maintained illicit relations with no less than two hundred nuns confided to his spiritual charge.¹⁴⁹⁴

The view which was taken of this crime during the progress of the Reformation is set forth in a work on the Criminal Canon Law printed in Venice in 1543, which intimates that improper relations between a confessor and his penitents are not much worse than ordinary concubinage, but that when they become publicly known they should be severely punished by deprivation and imprisonment, seeing that their notoriety tends to prevent men from allowing their wives and daughters to confess, and exposes the sacrament of penitence to the assaults of the heretics.¹⁴⁹⁵ It was probably this worldly wisdom which prevented the Council of Trent from alluding specifically to the matter and endeavoring to put an end to a crime so heinous, for assuredly it had not grown less in the ever increasing license of the age. It is rather curious that in Spain, the only kingdom where heresy was not allowed to get a foothold, the trouble seems to have been greatest and to have first called for special remedial measures. Already, in 1556, Paul IV. had addressed a brief to the Inquisitors of Grenada, calling their attention to the frequency of the crime and assuming that confessors who could so abuse their office must hold unorthodox views as to the sacrament of penitence, which rendered them suspect of heresy and thus brought them within the jurisdiction of the Holy Office. He therefore instructed the Inquisitors to prosecute such offenders zealously, but it was deemed best not to attract public attention to a matter so delicate, lest the faithful should be deterred from frequenting the confessional. The investigations were

accordingly prosecuted in secret, and the criminals were privately punished.^{[1496](#)}

Enough was discovered to show that the trouble was general, and in 1564 Pius IV. issued a Bull addressed to the Inquisitor General, in which, assuming like his predecessor that the offence must be heretical, he authorized the Holy Office to prosecute it throughout the Spanish dominions, and revoked all immunities which the monastic orders might enjoy exempting them from local jurisdiction.^{[1497](#)} This brought the subject formally within the scope of the Inquisition which thenceforth took charge of it in those countries blessed with that institution. In some portions of Spain the Inquisitors added the crime of “solicitation” to the list of offences published in their annual “Edict of Denunciation,” which required every one, under pain of excommunication, to denounce to the Holy Office all cases of which he might happen to be cognizant. Gonsalvo relates that in 1563 this was done in Seville, when it brought such a crowd of accusing women to the Inquisition that twenty secretaries were unable to take down the depositions, within the allotted time of thirty days, and the limit had to be extended until it reached the term of four months, causing finally so great a popular ferment and implicating so large a number of ecclesiastics that the attempt had to be abandoned.^{[1498](#)}

Llorente considers this to be an exaggeration, as is probably the case, but he admits that the Consejo de la Suprema was led to forbid the inclusion of the offence in the Edict of Denunciation, which greatly diminished the number of accusations, and this prohibition was repeated in 1571, in the hope that through the machinery of the episcopal courts the crime would be suppressed; but this expectation proving illusory, in 1576 the Consejo ordered the crime to be reinstated in the Edict.^{[1499](#)}

In 1608 Paul V. seems suddenly to have awakened to the necessity of extending to Portugal the means employed in Spain, and he issued to the Portuguese Inquisitor General a Bull similar in purport to those of his predecessors. Little was accomplished, even in these favored countries, and in 1622 Gregory XV. published a Bull extending to all Christendom the provisions of the previous ones, and granting to the episcopal courts full jurisdiction over all accused of “solicitation,” notwithstanding whatever immunities they might otherwise enjoy; a single witness was pronounced

sufficient, when supported by circumstantial evidence, and the punishment of those convicted was left to the discretion of the judge, with the suggestion that it might extend to perpetual imprisonment or condemnation to the galleys for life, or even abandonment to the secular arm—that Inquisitorial euphuism for the faggot and the stake.¹⁵⁰⁰ Apparently these Bulls received slender attention, for in 1633 a special decree directs that they shall be read at least once a year and an emphatic warning be given in a chapter of each order, and sworn evidence of the fact be transmitted to the congregation of the Inquisition at Rome.¹⁵⁰¹ Even this was but partially successful. Gregory's Bull was not published in either France or Germany, and for a century or more its observance throughout those regions depended entirely upon such bishops, of whom there were but few, who might see fit to promulgate its regulations in their individual dioceses;¹⁵⁰² although the established rule of the church protected the criminal by not permitting a woman who had been seduced in the confessional to name her seducer to another confessor.¹⁵⁰³

Even in the kingdoms where the Bull was legally received and published, its provisions in practice seem to have been held as directed almost exclusively against those who might be foolish enough to incur suspicion of heresy by asserting that they were not aware of their guilt. While the Holy Office stretched its power to convict and punish all the wretched heretics whom it could bring within its grasp, it was singularly tender of those whom successive popes denounced as the worst of offenders. In a learned work on the subject, the author, an official of the Portuguese Inquisition, urges the caution requisite in proceedings which affect the honor of ecclesiastics, bringing scandal and grief to the faithful and glory and joy to the heretic. As the accused had all presumptions in his favor, since he had been selected for the sacred functions of the confessional, and as women were by nature inconstant, corruptible, deceitful, mendacious, and given to perjury, he concludes that the evidence of a single witness is wholly inconclusive; two witnesses of good character may justify the seclusion of the accused, either in prison or in his own convent or house, but four were necessary to his conviction; he decides adversely the question whether deficiency of evidence can be supplemented by torture; and he cites Potiphar's wife to caution his brethren against lending too hasty credence to accusations which may be only the revengeful promptings of a baffled

tempter.¹⁵⁰⁴ Casuists were found to argue that the solicitation must occur during the act of confession itself to bring the accused within the words of the papal decrees, which were not applicable even if it took place in the confessional immediately before the woman commenced to confess, or immediately after she had received absolution.¹⁵⁰⁵ The accused who denied, might be shown the torture, but could not be exposed to it, and if punished, his punishment must be secret, so as not to give rise to popular disquiet.¹⁵⁰⁶ In Spain, when the local tribunal had agreed upon a sentence, it could not be executed without referring the case and all the evidence to the Consejo de la Suprema;¹⁵⁰⁷ but the sentence which was thus so carefully to be considered, was not usually severe. Some instructions on the subject issued in 1577, after premising that there must be neither public penitence nor appearance in an auto de fé, and that the sentence, unlike that of heretics, must be made known only to the ecclesiastics of the place, proceed to state that the penalties to be imposed on the guilty are at the discretion of the Tribunal, except that he is obliged to abjure the implied heresy and is prohibited from hearing confessions in the future. Whether he is to be suspended from administering the other sacraments, or from preaching, and whether he is to be imprisoned or banished from the place of his crime, must depend upon the gravity of the offence. In grave cases, secular priests may be punished by seclusion, or deprivation of function or benefice, or pecuniary fines, with discipline, secret prayers and fasting; and monks may be visited with the discipline, removal from the scene of their misdeeds, suspension or privation of orders, of the privilege of voting in their convents, and relegation to the last place in the choir and refectory.¹⁵⁰⁸ All this manifests not only a provident care to prevent scandal among the faithful, but a singular tolerance of crime when compared with the severity which characterized the ordinary operations of the Inquisition, in lapses of faith however slight. A man who asserted that simple fornication was not a mortal sin was treated as a heretic and “relaxed” or “reconciled,” with all the tremendous consequent penalties upon him and his posterity; and it is significant in many ways to observe that a culprit guilty of prostituting the confessional to seduce his spiritual daughters was to be punished by being made to take the lowest seat in the choir. This misplaced lenity was more than carried out in practice. According to Llorente, the records of the Inquisition show that not ten per cent. of those accused were convicted; and

even when convicted it was not unusual for the convict, through influences brought to bear on the Inquisitors General, to obtain a removal of the interdiction of hearing confessions.¹⁵⁰⁹ In one case of special atrocity which occurred under the eyes of Llorente himself, the culprit, in addition to the discipline, deprivation of vote, and degradation to the lowest seat in the choir (he had been Provincial of the Capuchins of New Grenada), was condemned to five years' imprisonment in a convent of his own order—a most inadequate penalty for a man who had seduced thirteen nuns in a convent under his spiritual guardianship.¹⁵¹⁰ In the horrible affair of Corella, which occurred in 1743, it is true that the Abbess, Doña Agueda de Luna, died under the torture; and her principal accomplice, Fray Juan de la Vega, after being tortured in his examination, was declared suspect in the highest degree and was confined in the desert convent of Duruelo till his death, but in this case the accused were Molinists, or Illuminati, which of itself rendered them worthy of the stake, and in addition, besides numerous infanticides, they had entered into a pact with Satan.¹⁵¹¹

The nunneries, indeed, appear to have suffered especially from this cause, particularly when their spiritual directors were monks. This was a complaint of old standing, and the authors of the “*Consilium de Emendanda Ecclesia*,” in 1538, proposed to put an end to the scandals thence arising by prohibiting members of the conventual orders from serving in that capacity, which was to be confided in the future to the Episcopal Ordinaries.¹⁵¹² A more partial cure was that suggested in 1627 by Urban VIII. when he granted a special Bull to Christobal de Lobera, Bishop of Cordova, depriving the mendicant orders of their right to papal jurisdiction, and subjecting them to the Ordinary of the diocese in order to put a stop, if possible, to crimes committed by them in the confessional.¹⁵¹³ These monastic troubles were by no means confined to Spain. When, as we shall see hereafter, the Grand Duke, Leopold of Tuscany, undertook in 1774 to reform the nunneries of his dominions, they had for a century and a half been the scene of the worst disorders, committed by the regular clergy who were their spiritual directors, and Leopold found his principal opposition in the court of Rome itself.¹⁵¹⁴ In Provence, the canons of Pignau made no secret of their domination over the bodies as well as over the souls of the nuns of the district, so that in a single year there were sixteen declarations of pregnancy officially made by the latter, who seemed to consider it as one

of the duties of their profession. As Michelet remarks, this at least diminished the monastic crime of infanticide, for the children were openly put out to nurse and were generally adopted by their foster-mothers.¹⁵¹⁵

Some statistics, given by Llorente from the archives of the Inquisition, afford a curious commentary upon the influence of monasticism. Comparing the number of accusations brought for this offence with the total census of the secular and regular clergy, he found that one out of every ten thousand secular priests was charged with it, while among the monastic orders the proportion was much greater. The Benedictines, Bernardines, Jeronimites, Premonstratensians, Basilians, Agonizantes, Theatins, and Oratorians, and the canons regular of Calatrava, Santiago, Alcantara, Montesa, St. Juan, and of the Holy Sepulchre showed a proportion of one in every thousand. Among the Carmelites, Augustinians, Mathurins, the Order of La Merced, the Dominicans, Franciscans, and Minims of St. Francis de Paul, there was one in every five hundred: one in four hundred among the barefooted orders of the Augustinians, Mathurins, and Fathers of La Merced; and one in two hundred among the barefooted Carmelites, the Alcantarians and the Capuchins.¹⁵¹⁶ These results Llorente explains partly by the greater attention paid by some orders to the duties of the confessional, but chiefly by the differences in their rules of discipline. Those who, like the secular priests, had comparative wealth and freedom were able to gratify their passions without resorting to indulgence so dangerous, while those whose vows bound them to poverty and asceticism were most liable to be tempted by the opportunities of the confessional. It was precisely the orders that were most rigid which produced the greatest number of culprits. Another significant fact was that the greater portion of these accusations were brought by nuns, and from this Llorente seeks to explain the small proportion of cases in which the accused was found guilty. The inquiries necessary to confession often appeared to the simple-minded devotee a direct enticement to sin, and her excited imagination, in dwelling upon them, would lead her to imagine herself the object of her confessor's impure desires—a defence of the system almost as damaging as the facts which it attempts to extenuate.¹⁵¹⁷

Whatever may be Llorente's opinion as to the comparative innocence of the secular priesthood, it does not appear to have been shared by the church.

The local ecclesiastical legislation of the seventeenth century is surcharged with innumerable minute directions as to the age of the confessor and the form and structure of confessionals; restricting female penitents, unless dangerously ill, from being heard except in church and by daylight, and prescribing the relative positions to be maintained by confessor and penitent.¹⁵¹⁸ In the earlier, though scarce purer, period of the fifteenth century John Myrc contents himself with simpler rules—

But when a wommon cometh to the
Loke hyre face that thou ne se,
But teche hyre to knele downe the by,
And sum what thy face from hyre thou wry,
Stille as ston ther thou sitte,
And kepe the welle that thou ne spyte.
Koghe thow not thenne thy thonkes,
Ne wrynge thou not wyth thy schonkes—¹⁵¹⁹

and the attention which was now given to the minutest details of these matters shows how much men's minds were excited by the subject, and how, as usual, the church sought palliatives for the evil to which she dared not apply a radical cure.

A natural result of the effort made to suppress the evil was a refinement of ingenuity on the part of the evil-doers to escape the result of their transgressions, and the subtlety of casuists was taxed to the utmost in defining with precision all the acts and motives which would render offenders liable to the penalties decreed in the Papal Bulls, thus giving rise to quite a literature specially devoted to the subject.¹⁵²⁰ In 1614, the Roman Inquisition, under Paul V., was obliged formally to declare that priests who used the confessional as a place of assignation were liable to the decrees, even though not engaged at the moment in administering the sacrament of penitence;¹⁵²¹ and in 1665 Alexander VII. felt it necessary to condemn the proposition that a confessor, while hearing a confession, could give his penitent a love-letter without incurring the guilt of solicitation.¹⁵²² The mode, however, which offered the surest escape was for the confessor to absolve his partner in sin, and thus release her from all obligation to denounce him,¹⁵²³ for such an absolution was good, according to St.

Thomas Aquinas.¹⁵²⁴ This gave the church infinite trouble. It satisfied the conscience of the woman, for the council of Trent had taken care to declare that priests in mortal sin did not lose the power of absolution conferred on them by the Holy Ghost in their ordination,¹⁵²⁵ while so vile a prostitution of the sacrament could not but bring the whole system into contempt. Yet casuists were found to distinguish between the guilt of him who soothes the conscience of the woman whom he had seduced by absolving her after the act, in which case he is not exposed to the penalties of solicitation,¹⁵²⁶ and of him who promises absolution in advance as a temptation to sin, which brings him within the scope of the decrees.¹⁵²⁷

The condemnation issued in 1665 by Alexander VII. of the proposition that absolution under such circumstances relieves the woman from the obligation of denunciation¹⁵²⁸ shows the extent of the evil and the boldness of the perpetrators, but did nothing to cure it. A more effective step had been taken in 1661 by the provincial synod of Cambray, which was the revival of the ancient rule that no confessor should have power in such cases to grant absolution to his paramour except *in articulo mortis*; a precedent which was followed in 1663 by the congregation of arch-priests of the province of Mechlin.¹⁵²⁹ This action seems to have aroused considerable opposition and no little discussion, for, at a convocation of bishops, held at Brussels in January, 1665, it was the first subject submitted for debate.¹⁵³⁰ The question, however, remained unsettled, for, although the power to grant such absolution was specially excepted in all commissions issued to confessors in the province, the evil continued, and again came up for discussion at the synod of Namur, in 1698, when the practice was peremptorily forbidden for the future.¹⁵³¹ In the province of Besançon a canon of 1689 declares that although the abuse had been long prohibited, yet that it continued to flourish; and a formal enunciation was considered necessary, taking away the power of conferring absolution in such cases—a regulation which had to be repeated in 1707.¹⁵³² In 1709 the Cardinal de Noailles, Archbishop of Paris, issued an order prohibiting it in his diocese, but as late as 1741 Pontas informs us that such absolutions were valid in all places where they had not been forbidden by episcopal authority.¹⁵³³ This extraordinary confession on such a subject was most discreditable to the church, and in 1741 Benedict XIV. signaled the commencement of his

pontificate by converting these local regulations into a general law by his Bull, “Sacramentum Pœnitentiæ,” in which he not only endeavored to sweep away all the refinements by which casuists had so nearly nullified the decrees of his predecessors, but he devoted a special clause to the device by which the sacrilegious ministers of Satan rather than of God absolved their partners in guilt. This he absolutely prohibited for the future, except *in articulo mortis* when no other priest could be had; he took away the power of administering the sacrament of penitence in such cases, pronounced absolution null and void when thus given, and punished the attempt to give it by *ipso facto* excommunication removable by the papal court alone.¹⁵³⁴ Four years later, he relaxed somewhat the rigor of these regulations in a manner which shows how everpresent was the fear of attracting attention to the frailties of ecclesiastics, for he permitted absolution *in articulo mortis* in all cases where another confessor could not be called in without attracting attention and causing suspicion and scandal, which was virtually to remove the prohibition.¹⁵³⁵ In the same year he also renewed the decree of 1633 requiring the Papal Bulls on the subject to be read at least once a year in the chapters of all the monastic orders,¹⁵³⁶ who seem to have been the principal offenders in these matters; doubtless for the reason which Llorente says was usually alleged as an excuse by culprits—because they had no other opportunity of sinning.¹⁵³⁷

Energetic as was the legislation of Benedict, it by no means put an end to the trouble. The year after his Bull appeared, in 1742, the synod of Namur found it necessary to remind confessors that they could not absolve women whom they had seduced;¹⁵³⁸ and in 1768 the Bishop of Ypres was obliged to recall to the attention of his clergy the Bulls of Gregory and of Benedict, and to threaten their transgressors with excommunication.¹⁵³⁹ The abuse was by no means confined to Europe, but extended to the missionary stations of the church. In 1775 the Apostolic Vicar of Cochin China inquired of Pius VI. whether the Bull of Benedict XIV. applied to the Franciscan missionaries under his charge, and, if so, whether it could not be moderated, to which Pius replied affirmatively as to the first question and negatively as to the second. That the scandal continued is shown by a pastoral letter of the Apostolic Vicar of Suchuen in 1803.¹⁵⁴⁰ It is not surprising that St. François de Sales should have declared that a confessor

was to be selected out of ten thousand, seeing that so few among them were fitted for the function.^{[1541](#)}

In considering the slow progress of improvement in the character of the clergy, we must bear in mind not only the debased material which required to be reformed, and the prevailing low standard of sexual morality throughout Europe, but also the prevalence within the church of the casuistic spirit, which tended to obliterate the distinctions between right and wrong and to extenuate all offences against the Decalogue. This spirit received a powerful impulse from the rising influence of the Company of Jesus, which furnished the most distinguished casuists and fostered the habit of testing everything by an artificial standard. If scandal could be averted, if the immediate temporal interests of the Order or of the church could be subserved, it mattered little whether morality suffered; and the subtle dialectics of the schools could always invent a justification for any line of action which appeared expedient at the moment. We have already seen how the successive Bulls of reforming pontiffs directed against the abuses of the confessional were virtually nullified in this manner; and the same processes were employed to soften the harshness of the canons which sought to repress the other vices of the clergy.^{[1542](#)} To one who examines the works of these skilful dialecticians, the only wonder is that a church which not only tolerated but exalted them could retain any respect for virtue or any reverence for law, human or divine.

When these resources failed, recourse could be had to other means to avert scandal, as in the case of Father Mena, a priest of the Company of Jesus, at Salamanca, who persuaded one of his female penitents that God required her to abandon herself to him. He kept her in a hermitage conveniently near to the College of Jesuits where he officiated, and several children were the result of the union, when the matter became so notorious that the Inquisition interfered and threw the culprit into its prison at Valladolid. The Company of Jesus undertook his defence, and on the strength of certificates of his illness obtained his transfer to their college, where he was to be watched by officials of the Inquisition. His apparent illness increased, until a report was spread of his death; an image with a

mask resembling him was interred with all the ceremonies of religion, and he was secretly conveyed to Genoa, where he was intrusted with a mission to convert the Jews. [1543](#)

More strenuous exertion, however, was required in the struggle over the case of Father Girard and la Cadière, which, in 1730 and 1731, convulsed society in Provence. Girard was a Jesuit of high reputation, who came to Toulon in 1728, where he soon obtained the spiritual direction of a number of women, among whom he selected seven to minister to his lusts. One of them, Catharine Cadière, a girl of 19, was especially distinguished for her exaltation of religious sensibility, which rendered her eminently fitted for the dangerous extravagances of Quietism. Under his guidance she speedily had ecstatic visions of heaven and hell, and was marked as the favorite of Divine Love by the stigmata which appeared on hands, feet, forehead, and side. While enjoying the popular veneration as a saint, it was not difficult for her spiritual guide to persuade her that God required her submission to him. This continued for some months, until, convinced that Girard had led her into sin, in place of the state of perfection to which she aspired, she changed her confessor, when the matter leaked out, and she brought a formal accusation against her seducer. At once the Company of Jesus took up the quarrel, and, as it suited the policy of Cardinal Fleury, the all-powerful minister, to gratify them, the unfortunate girl had no chance. The Episcopal courts, in which the case was first brought, sided with the guilty, and even the secular tribunals, to which the matter was transferred, were bitterly hostile to her. The accuser became the accused. She was persecuted, imprisoned, and threatened with torture, and in the Parlement of Aix, before which the case was finally brought, two members actually proposed that she should be burnt alive, but agreed, in order to secure the support of others, to accept the milder sentence of strangling after due infliction of torture, and this verdict was brought before the Parlement for debate. Despite the social influence of the Jesuits, this atrocity aroused public opinion throughout Provence and excited tumults which frightened the friends of Girard, so that when the final vote was taken only half the members of the Parlement pronounced him innocent, the other half voting for his condemnation, and he was saved by the casting vote of the President, Lebret. So strong was the popular feeling against him that he had to be conveyed away secretly to escape the vengeance of the mob, and died two years afterwards in the odor

of sanctity, fully upheld by the Company of Jesus. As for la Cadière, she disappeared from sight, and the fate of the unfortunate girl is unknown.[1544](#)

XXX.

THE CHURCH AND THE REVOLUTION.

If the council of Trent had thus failed utterly in its efforts to create that which had never existed—purity of morals under the rule of celibacy—it had at length succeeded in its more important task of putting an end to the aspirations of the clergy for marriage. With the anathema for heresy confronting them, few could be found so bold as openly to dispute the propriety of a law which had been incorporated into the articles of faith; and the ingenious sophistries and far-fetched logic of Bellarmine were reverently received and accepted as incontrovertible. Urbain Grandier might endeavor to quiet the conscience of his morganatic spouse by writing a treatise to prove the lawfulness of priestly wedlock, but he took care to keep the manuscript carefully locked in his desk.¹⁵⁴⁵ A man of bold and independent spirit, fortified by unfathomable learning, like Louis Ellies Du Pin, might secretly favor marriage, and perhaps might contract matrimony.¹⁵⁴⁶ Du Pin's great antagonist, Bossuet, might incur a similar imputation, and be ready to partially yield the point if thereby he might secure the reconciliation of the hostile churches.¹⁵⁴⁷ All this, however, could have no influence on the doctrines and practice of Catholicism at large, and the principle remained unaltered and unalterable.

Yet it was impossible that the critical spirit of inquiry which marked the eighteenth century, its boldness of unbelief, and its utter want of faith in God and man, could leave unassailed this monument of primæval asceticism, while it was so busy in undermining everything to which the reverence of its predecessors had clung. Accordingly, the latter half of the century witnessed an active controversy on the subject. In 1758, a canon of Estampes, named Desforges, who had been forced to take orders by his family, published a work in two volumes in which he attempted to prove that marriage was necessary for all ranks of ecclesiastics. The book

attracted attention, and by order of the Parlement it was burnt, September 30, 1758, by the hangman, and the unlucky author was thrown into the Bastille. These proceedings were well calculated to give publicity to the work; it was reprinted at Douay in 1772; a German translation was published in 1782 at Göttingen and Munster, and an Italian one, with some omissions, had already appeared in 1770, without an acknowledged place of publication. The Abbé Villiers undertook to answer Desforges in a weak little volume, the “Apologie du Célibat Chretien,” published in 1762, which consists principally of long extracts from the Fathers in praise of virginity. Even Italy felt the movement, and an anonymous work, entitled “Pregiudizi del Celibato,” appeared in Naples in 1765, and was reprinted in Venice in 1766. Some more competent champion was necessary to answer these repeated attacks, and the learned Abate Zaccaria brought his fertile pen and his inexhaustible erudition to the rescue in his “Storia Polemica del Celibato Sacro,” which saw the light in 1774, and which not long afterwards was translated into German. In 1781 appeared a new aspirant for matrimonial liberty in the Abbé Gaudin, who issued at Geneva (Lyons) his work entitled “Les inconveniens du célibat des prêtres,” a treatise of considerable learning and no little bitterness against the whole structure of sacerdotalism and Roman supremacy. This was followed, in 1782, by Andreas Forster, in his “De Cœlibatu Clericorum Dissertatio,” published at Dillingen, and dedicated to Pius VI., for the purpose of replying to the attacks of the innovating Catholics.

The latter, indeed, had some hope for the approaching realization of their demands. The reforms which illustrated the minority of Ferdinand IV. of Naples excited the priests of Southern Italy to petition him for the right of marriage, and Serrao, the Jansenist Bishop of Potenza, does not hesitate to say that the request would have been granted if the unfriendly relations between the courts of Rome and Naples had continued much longer.^{[1548](#)} The Emperor Joseph II., amid his many fruitless schemes for philosophical reform, inclined seriously to the notion of permitting marriage to the priesthood of his dominions. In an edict of 1783 he asserted, incidentally, that the matter was subject to his control,^{[1549](#)} and the advocates of clerical marriage confidently expected that in a very short period they would see the ancient restrictions swept away by the imperial power. A mass of controversial essays and dissertations made their appearance throughout

Germany, and the well-known Protestant theologian Henke took the opportunity of bringing out, in 1783, a new edition of the learned work of Calixtus, “De Conjugio Clericorum,” as the most efficient aid to the good cause. It is a striking illustration of the temper of the times to observe that this work, so bitterly opposed to the orthodox doctrines and practice, is dedicated by Henke to Archdeacon Anthony Ganoczy, canon of the cathedral church of Gross-Wardein and apostolic prothonotary. The hope of success brought out other writers, and the movement made sufficient progress to cause some hesitation in Rome as to the propriety of yielding to the pressure.^{[1550](#)}

Zaccaria again entered the lists, and produced, in 1785, his “Nuova Giustificazione del Celibato Sacro,” in answer to the Abbé Gaudin and to an anonymous German writer whose work had produced considerable sensation. To this he was principally moved by a report that he had himself been converted by the facts and arguments advanced by the German, an imputation which he indignantly refuted in three hundred quarto pages.

The half-formed resolutions of Joseph II. led to no result, and the subject slumbered for a few years until the outbreak of the French Revolution. At an early period in that great movement, the adversaries of sacerdotal asceticism bestirred themselves in bringing to public attention the evils and cruelty of the system. Already, in 1789, a mass of pamphlets appeared urging the abrogation of celibacy. In 1790 the work of the Abbé Gaudin was reprinted, and was promptly answered by the prolific Maultrot. Even in Germany the same spirit again awoke, and an Hungarian priest named Katz published at Vienna, in 1791, a “Tractatus de conjugio et cœlibatu clericorum,” in which he argued strongly for a change. In Poland these doctrines made considerable progress, for in 1801 we find a little tract issued at Warsaw vehemently arguing against those who imperil their souls by violating their vows and the laws of the church.^{[1551](#)} In England, a Catholic priest distinguished for talents and learning, Dr. Geddes, published, in 1800, a work in which he denied the Apostolic origin of celibacy and urged that, at most, it should only be punished by degradation from the priesthood, without entailing disgrace. Indeed, he argued that the rule caused more proselytes to Protestantism than any other cause.^{[1552](#)}

During this period it can hardly be supposed that the defiant immorality which characterized the eighteenth century had been favorable to the purity of a celibate priesthood. That the church, indeed, had made but scanty improvement in the character of its ministers is visible throughout the literature of the age, and I need only allude to a few instances where efforts at reform revealed the prevailing corruption.

In France the attacks upon the vow of celibacy, to which allusion has already been made, seem to have given rise to a spasmodic attempt to regulate the church. In 1760 an arrêt of the Parlement of Paris prohibited the organization of religious congregations without express royal permission, verified by that body. The assembly of the clergy in Paris in 1766 produced no notable improvement, nor was greater success obtained when the temporal power intervened in the Edicts of 1766 and 1767. Further effort apparently was requisite, and in the Edict of March, 1768, Louis XV. undertook to diminish in some degree the causes of the more flagrant disorders among the regular clergy. Men were not to be allowed to take the vows under the age of 22, nor women under 19; and as the smaller religious houses were especially notorious for laxness of discipline, all were suppressed which could not number at least fifteen professed monks or nuns, except those attached to larger congregations. The ecclesiastical authorities, moreover, were emphatically commanded to make a thorough visitation, and to compel the observance of the rules of discipline of the several orders.^{[1553](#)} The enforcement of this edict created no little excitement, and several of the smaller orders narrowly escaped destruction in their endeavors to evade its provisions. That these efforts did not succeed in accomplishing their object we may well believe, even without the testimony of an eye-witness.^{[1554](#)} As for the secular clergy, when Louis XV. amused himself by ordering the arrest of all ecclesiastics caught frequenting brothels, the number of victims in a short time amounted to 296, of whom no less than 100 were priests actively engaged in the service of the altar.^{[1555](#)}

When the Grand-Duke Leopold of Tuscany undertook to reform the monasteries of his dominions and to put an end, if possible, to the abuse of the confessional, it led to a long diplomatic correspondence with the papal curia as to the jurisdiction over such cases. A public document of the year 1763 had already stated that the special crime in question had become less

frequent, and attributed this improvement to the exceeding laxity of morals everywhere prevalent, for few confessors could be so foolish as to attempt seduction in the confessional when there was so little risk in doing the same thing elsewhere.¹⁵⁵⁶ Specious as this reasoning might seem, the facts on which it was based were hardly borne out by the investigations of Leopold shortly after into the morals of the monastic establishments. Nothing more scandalous is to be found in the visitations of the religious houses of England under Morton and Cromwell. The spiritual directors of the nunneries had converted them virtually into harems, and such of the sisters as were proof against seduction armed with the powers of confession and absolution suffered every species of persecution. It was rare for them to venture on complaint, but when they did so they received no attention from their ecclesiastical superiors, and only the protection of the grand-ducal authority at length emboldened them to reveal the truth. The prioress of S. Caterina di Pistoia declared that, with three or four exceptions, all the monks and confessors with whom she had met in her long career were alike; that they treated the nuns as wives, and taught them that God had made man for woman and woman for man; and that the visitations of the bishops amounted to naught, even though they were aware of what occurred, for the mouths of the victims were sealed by the dread of excommunication threatened by their spiritual directors.¹⁵⁵⁷ When it is considered that the convents thus converted into dens of prostitution were the favorite schools to which the girls of the higher classes were sent for training and education, it can readily be imagined what were the moral influences thence radiating throughout society at large, and we can appreciate the argument above referred to, as to the ease with which the clergy could procure sexual indulgence without recourse to the confessional. Leopold's chief assistant in this struggle was Scipione de' Ricci, Bishop of Pistoia and Prato, whose experiences in the investigation caused him to induce the council of Pistoia, in 1786, to declare the duties of the confessional wholly incompatible with the monastic state, and, in view of the improbability of any permanent reform, to propose the abolition of the monastic orders by restricting vows to the duration of a twelvemonth¹⁵⁵⁸—propositions which were not approved by the congregation of Tuscan prelates held at Florence in 1787, and which were scornfully condemned by Rome.¹⁵⁵⁹ Leopold, however, sought to palliate the evil by raising to the age of 24 the minimum limit for taking the vows,

which the council of Trent had fixed at 16, but the benefit of this salutary measure was neutralized by the ease with which parents desiring to get rid of their children could place them in the institutions of the neighboring states, such as Lucca and Modena.¹⁵⁶⁰

Rome itself was no better than its dependent provinces, despite the high personal character of some of the pontiffs. When the too early death of Clement XIV., in 1774, cut short the hopes which had been excited by his enlightened rule, St. Alphonso Liguori addressed to the conclave assembled for the election of his successor a letter urging them to make such a choice as would afford reasonable prospect of accomplishing the much-needed reform. The saint did not hesitate to characterize the discipline of the secular clergy as most grievously lax, and to proclaim that a general reform of the ecclesiastical body was the only way to remove the fearful corruption of the morals of the laity.¹⁵⁶¹ When we hear, about this time, of two Carmelite convents at Rome, one male and the other female, which had to be pulled down because underground passages had been established between them, by means of which the monks and nuns lived in indiscriminate licentiousness, and when we read the scandalous stories which were current in Roman society about prelates high in the church, we can readily appreciate the denunciations of St. Alphonso.¹⁵⁶² A curious glimpse at the interior of conventual life is furnished by a manual for Inquisitors, written about this period by an official of the Holy Office of Rome. In a chapter on nuns he describes the scandals which often cause them to fall within the jurisdiction of the Inquisition, and prescribes the course to be pursued with regard to the several offences. Among those who were forced to take the veil, despair frequently led to the denial of God, of heaven, and of hell; feminine enmity caused accusations of sorcery and witchcraft, which threw not only the nunneries, but whole cities, into confusion; vain-glory of sanctity suggested pretended revelations and visions; and these latter were also not infrequently caused by licentiousness, for in these utterances were sometimes taught doctrines utterly subversive of morality, of which Godless confessors took advantage to teach their spiritual daughters that there was no sin in sexual intercourse. As in Spain, it was the practice of the Roman Inquisition to treat the offenders mildly, partly in consideration of the temptations to which they were exposed, and partly to avoid scandal.¹⁵⁶³ The contaminating influence on society at large,

emanating from a church so incurably corrupted, was vastly heightened by the overgrown numbers of the clerical body. In 1775, for example, a census of the *terra-firma* provinces of Venice showed in that narrow territory no less than 45,773 priests, or one to every fifty inhabitants, while in the kingdom of Naples, exclusive of Sicily, there were, in 1769, one to every seventy-six.¹⁵⁶⁴ Such overcrowding as this was not only in itself an efficient cause of disorder, but intensified incalculably the power of infection.

The virtues of the clergy, therefore, could offer but a feeble barrier to the spirit of innovation when the passions of the French Revolution were brought to bear upon the immunities and distinctive laws of the church. The attack commenced on that which had been the strength, but which was now the weakness, of the ecclesiastical establishment. As early as the 10th of August, 1789, preliminary steps were taken in the National Assembly to appropriate the property of the church to meet the fearful deficit which had been the efficient cause of calling together the high council of the nation. This property was estimated as covering one-fifth of the surface of France, yielding with the tithes an annual revenue of three hundred millions of francs. So vast an amount of wealth, perverted for the most part from its legitimate purposes, offered an irresistible temptation to desperate financiers, and yet it was a prelate who made the first direct attack upon it. On the 10th of October, 1789, Talleyrand, then Bishop of Autun, introduced a motion to the effect that it should be devoted to the national wants, subject to the proper and necessary expenses for public worship; and on the 2d of November the measure was adopted by a vote of 568 to 346. This settled the principle, though the details of a transaction of such magnitude were only perfected by successive acts during the two following years. One of the earliest results was the secularization of those ecclesiastics whose labors did not entitle them to support, a preliminary necessary to the intended appropriation of their princely revenues. This was accomplished by an act of February 13th, 1790, by which the religious orders were suppressed, monastic vows were declared void, and a moderate annuity accorded to the unfortunates thus turned adrift upon the world.

The great body of the parochial clergy, patriotic in their aspirations, and suffering from the abuses of power, had hailed the advent of the Revolution with joy; and their assistance had been invaluable in rendering the Tiers-État supreme in the National Assembly. These measures, however, assailing

their dearest interests and privileges, aroused them to a sense of the true tendency of the movement to which they had contributed so powerfully. A breach was inevitable between them and the partisans of progress. Every forward step embittered the quarrel. It was impossible for the one party to stay its course, or for the other to assent to acts which daily became more menacing and revolutionary. Forced, therefore, into the position of reactionaries, the clergy ere long became objects of suspicion and soon after of persecution. The progressives devised a test-oath, obligatory on all ecclesiastics, which should divide those who were loyal to the Revolution from the contumacious, and lists were kept of both classes.¹⁵⁶⁵ Harmless as the oath was in appearance, when it was tendered, in December, 1790, five-sixths of the clergy throughout the kingdom refused it. Those who yielded to the pressure were termed *assermentés*, the recusants *insermentés* or *réfractaires*, and the latter, of course, at once became the determined opponents of the new régime, the more dangerous because they were the only influential partisans of reaction belonging to the people. To their efforts were attributed the insurrections which in La Vendée and elsewhere threatened the most fearful dangers. They were accordingly exposed to severe legislation. A decree of November 29, 1791, deprived them of their stipends and suspended their functions; another of May 27, 1792, authorized the local authorities to exile them on the simple denunciation of twenty citizens. Under the Terror their persons were exposed to flagrant cruelties, and a *prêtre réfractaire* was generally regarded, *ipso facto*, as an enemy to the Republic.

Under these circumstances, sacerdotal marriage came to be looked upon as a powerful lever to disarm or overthrow the hostility of the church, and also as a test of loyalty or disloyalty. Yet the steps by which this conclusion was reached were very gradual. In the early stages of the Revolution, while it was still fondly deemed that the existing institutions of France could be purified and preserved, the National Assembly was assailed with petitions asking that the privilege of marriage should be extended to the clergy.¹⁵⁶⁶ These met with no response, even after the suppression of the monastic orders. As late as September, 1790, when the Abbé Professor Cournand, of the Collège de France, made a motion in favor of sacerdotal marriage in the assembly of the district of St. Etienne du Mont in Paris, the question, after considerable debate, was laid aside as beyond the competence of that body.

It was not until September 3d, 1791, that Mirabeau introduced into the Assembly a decree providing that no profession or vocation should debar a citizen from marriage or be considered as incompatible with marriage, and forbidding the public officials and notaries from refusing to ratify any marriage contract on such pretext. Though no allusion was made in this to ecclesiastics, its object was evident, and was so admitted in the eloquent speech with which he urged its adoption—a speech which contained a very telling résumé of the arguments in favor of priestly marriage, but which, in its glowing anticipations of the benefits to be expected from the measure, affords a somewhat lamentable contrast to the meagreness of the realization.¹⁵⁶⁷ The principle, when once established, was considered of sufficient importance to deserve recognition in the Constitution of September, 1791, a section in the preamble of which declares that the law does not recognize religious vows or any engagements contrary to the rights of nature or to the constitution,¹⁵⁶⁸ and this was followed, as Mirabeau had proposed, by a decree of September 20, 1791, which, in enumerating the obstacles to marriage, does not allude to monastic vows or holy orders.

Professor Cournand was probably the first man of position and character to take advantage of the privilege thus permitted, and his example was followed by many ecclesiastics who had won an honorable place in the church, in literature, and in science. Among them may be mentioned the Abbé Gaudin of the Oratoire, the author of a work already alluded to on the evils of celibacy, who in 1792 represented La Vendée in the Legislative Assembly, and who in 1805 did not hesitate to publish a little volume entitled “Avis à mon fils, âgé de sept ans”—although, in the preface to his work in 1781, he had described himself as long past the age of the passions. Even bishops yielded to the temptation. Loménie, coadjutor of his uncle the Archbishop of Sens, Torné Bishop of Bourges, Massieu of Beauvais, and Lindet of Evreux were publicly married. Many nuptials of this kind were celebrated with an air of defiance. Pastors announced their approaching weddings to their flocks in florid rhetoric, as though assured of finding sympathy for the assertion of the triumph of nature over the tyranny of man. Others presented themselves with their brides at the bar of the National Convention, as though to demonstrate that they were good citizens, who had thrown off all reverence for the obsolete traditions of the past.

A nation maddened and torn by the extremes of hope, of rage, and of terror, which met the triumphal march of three hundred and fifty thousand hostile bayonets with the heads of its king and queen, which blazoned forth to Europe its irrevocable breach with the past by instituting festivals in honor of a new Supreme Being and parading a courtesan through the streets of Paris as the Goddess of Reason, was not likely to employ much tenderness in coercing its internal enemies; and chief among these it finally numbered the ministers of religion. To them it soon applied the marriage test. To marry was to acknowledge the supremacy of the civil authority, and to sunder allegiance to foreign domination; celibacy was at the least a tacit adherence to the enemy, and a mute protest against the new régime. Matrimony, therefore, rose into importance as at once a test and a pledge, and every effort was made to encourage it. Among the records of the revolutionary tribunal is the trial of Mahue, Curé of S. Sulpice, Aug. 13, 1793, accused of having written a pamphlet against priestly marriage, and he was only acquitted on the ground that his crime had been committed prior to the adoption of the law of July 19, 1793.¹⁵⁶⁹ A decree of November 19, 1793, relieved from exile or imprisonment all priests who could show that their banns had been published, and when, soon afterwards, at the height of the popular frenzy, the Convention sent its deputies throughout France with instructions to crush out every vestige of the dreaded reaction, those emissaries made celibacy the object of their especial attacks. Thus, in the Department of the Meuse, deputy De la Croix announced that all priests who were not married should be placed under surveillance; while in Savoy the harsh measures taken against the clergy were modified in favor of those who married by permitting them to remain under surveillance. One zealous deputy ordered a pastor to be imprisoned until he could find a wife, and another released a canon from jail on his pledging himself to marry. Many of those thus forced into matrimony were decrepit with years, and chose brides whose age secured them from all suspicions of yielding to the temptations of the flesh. Such was the venerable Martin of Marseilles, who, after seeing his bishop and two priests, his intimate friends, led to the scaffold, took, at the age of 76, a wife nearly 60 years old. As an unfortunate ecclesiastic, who had thus succeeded in weathering the storm, fairly expressed it, in defending himself against the reproaches of a returned emigré bishop, he took a wife to serve as a lightning rod. These unwilling bridegrooms not infrequently deposited with a notary or a trusty friend a

protest against the violence to which they had yielded, and a declaration that their relations with their wives should be merely those of brother and sister.

Yet in this curious persecution the officials only obeyed the voice of the excited people. The press, the stage, all the organs of public opinion, were unanimous in warring with celibacy, ridiculing it as a fanatical remnant of superstition, and denouncing it as a crime against the state. The popular societies were especially vehement in promulgating these ideas. The *Congrès fraternel* of Auch, in September, 1793, ordered the local clubs to enlighten the benighted minds of the populace on the subject, and to exclude from membership all priests who should not marry within six months. A petition to the National Assembly from the republicans of Auxerre demanded that all ecclesiastics who persisted in remaining single should be banished; while a more truculent address from Condom urged imperiously that celibacy should be declared a capital crime, and that the death-penalty should be enforced with relentless severity. In times so terrible, when suspicion was conviction and conviction death, and when such were the views of those who swayed public affairs, it is not to be wondered at if many pious churchmen, unambitious of the crown of martyrdom, thought matrimony preferable to the guillotine or the noyade.

Indeed, the only source of surprise is that so few were found to betray their convictions. In the vast body of the Gallican church it is estimated that only about 2000 marriages of men in orders took place, after the reign of terror had rendered it a measure of safety. In addition to this, about 500 nuns were also married; and though this proportion is larger, it is still singularly small when we consider that these poor creatures, utterly unfitted by habit or education to take care of themselves, were suddenly ejected from their peaceful retreats, and cast upon a world which was raging in convulsions so terrible. [1570](#)

This is doubtless attributable to the steadfast resistance which the better part of the clergy made to the innovation, in spite of the danger of withstanding the popular frenzy, and in disregard of the laws which denounced such opposition. Even the *assermentés*, who had pledged themselves to the Revolution by taking the oath of allegiance, were mostly unfavorable to the abrogation of celibacy, and the position thus maintained

by the clergy gave tone to such of the people as retained enough of devout feeling still to frequent the churches and partake of the mysteries of religion. The existence of an active and determined opposition is revealed by an act of August 16th, 1792, guaranteeing the salaries of all married priests, thus showing that, in some places at least, their stipends had been withheld. Many pastors, indeed, were driven from their parishes by their congregations, in consequence of marriage, to put an end to which a decree of September 17th, 1793, ordered the communes to continue payment of salaries in all such cases of ejection.

There were not wanting courageous ecclesiastics who opposed the innovation by every means in their power. Although Gobel, Bishop of Paris, a creature of the Revolution, favored the marriages of his clergy, a portion of his curates openly and vigorously denounced them, and Gratien, Archbishop of Rouen, addressed to him a severe reproach for his criminal weakness. The same Gratien excommunicated one of his priests for marrying, and published, July 24th, 1792, an instruction directed especially against such unions. For this he was thrown into prison, where he was long confined. Fauchet, of Bayeux, for the same offence, was reported to the Convention, but was fortunate enough to elude the consequences. Philibert, of Sedan, issued, January 20th, 1793, a pastoral in which he more cautiously argued against the practice, and, after a long persecution, he was lucky to escape with a decree of costs against him. Pastorals to the same effect were also promulgated by Clément of Versailles, Héraudin of Châteauroux, Sanadon of Oléron, Suzor of Tours, and others.

The Convention was not disposed to tolerate proceedings such as these. To put a stop to them, it adopted, July 19th, 1793, a law punishing with deprivation and exile all bishops who interfered in any way with the marriage of their clergy. For a while this appears to have put a stop to open opposition, but when the reign of terror was past, and the Catholics saw a prospect of reorganizing the distracted church, one of their earliest efforts was directed to the restoration of celibacy. On the 15th of March, 1795, some *assermentés* bishops, members of the Convention, issued from Paris an encyclical letter to the faithful, in which they denounced sacerdotal marriage in the strongest terms. Those who entered into such unions were declared unworthy of confidence; the fearful constraint under which they had sought refuge in matrimony was pronounced to be no justification, and

even renunciation of their wives was not admitted as entitling them to absolution for the one unpardonable sin.¹⁵⁷¹ In a second letter, issued December 15th of the same year, this denunciation was repeated in even stronger terms.

In these manifestoes the bishops did not speak by authority. They could not threaten or command, for they were acting beyond or in opposition to the law. With the progress of reaction they became bolder. In 1797 the church ventured to hold a national council, in which it forbade the nuptial benediction to those who were in orders or were bound by monastic vows, thus reducing their marriages to the mere civil contract, and depriving them of all the sanction of religion. The local synods which, encouraged by the fall of the Directory, were held in 1800, adopted these principles as a matter of course, and took measures to enforce them. That of Bourges even prohibited the churching of women who were wives of ecclesiastics.

This condemnation of the married clergy carried despair and desolation into the households of those who had offended, and upon whom the door of reconciliation was so sternly closed. Grégoire of Blois, a leading actor in all these scenes, records the innumerable appeals received from the unfortunates, who, torn by remorse and thus repudiated by the church, begged in vain for the mercy which was incompatible with the respect due to the ancient and inviolable canons.

All this, however, was merely local action. The Gallican church had not yet been reunited to Rome. In reconstructing a system of social order, Napoleon speedily recognized the necessity of religion in the state, and, despite the opposition of those who still believed in the Republic, the Concordat of 1801 restored France to its place in the hierarchy of Latin Christianity. There is nothing in the Concordat interfering with the right of the priest, as a citizen, to contract marriage; but as, in all affairs purely ecclesiastical, the internal regulation and discipline of the church were necessarily left to itself, the rights of the priest, as a priest, became of course subject to the received rules of the church, which could thus refuse the nuptial benediction, and suspend the functions of any one contravening its canons. In consequence of the power thus restored, when the question soon after arose as to the legality of sacerdotal marriages contracted during the troubles, the Cardinal-legate Caprara issued rescripts to those whose

unions were anterior to the Concordat, depriving them of their priestly character, reducing them to the rank of laymen, and empowering the proper officials to absolve them and remarry them to the wives whom they had so irregularly wedded. This created a strong feeling of indignation among the prelates who had carried the tabernacle through the wilderness, and who, while opposing such marriages most strenuously, regarded this intervention of papal authority as a direct assault upon the liberties of the Gallican church. Their time was past, however, and their denunciations of this duplication of the sacrament were of no avail. Yet the legality of such marriages, and the unimpaired right of priests to contract them, were asserted and proved by Portalis, in his masterly speech of April 15th, 1802, before the Corps Législatif, advocating the adoption of the Concordat as a law, although he admitted that the duties of the priesthood and the feeling of the people rendered sacerdotal celibacy desirable.¹⁵⁷²

Notwithstanding the authority thus restored to the church, and the certainty of ecclesiastical penalties following such infraction of the Tridentine articles of faith, the practice which had been introduced could not be immediately eradicated. Priests were constantly contracting marriage, and the question gave considerable trouble to the government, which hesitated for some time as to the policy to be pursued. Portalis, in 1802, as we have seen, declared the full legality of such marriages, and the unimpaired right of ecclesiastics to contract them; and the provisions of the code respecting marriage, adopted in 1803, make no allusions to vows or religious engagements as causing incapacity.¹⁵⁷³ Yet in 1805, when Daviaux, Archbishop of Bordeaux, opposed the application of a priest named Boisset to the civil authorities for a marriage contract, Portalis, then minister of religious affairs, on being appealed to, replied that the government would not allow its officers to register such contracts. The local administrations sometimes assented to such applications and sometimes referred them to the central authority, until at length, in 1807, a definite conclusion was promulgated. This was to the effect that although the civil law was silent as regards such marriages, yet they were condemned by public opinion. The government considered them fraught with danger to the

peace of families, as the powerful influence of the pastor could be perverted to evil purposes, and, if seduction could be followed by marriage, that influence would be liable to great abuse. The emperor therefore declared that he could not tolerate marriage on the part of those who had exercised priestly functions since the date of the Concordat. As for those who had abandoned the ministry previous to that period and had not since resumed it, he left them to their own consciences. Thus, in practice, although marriage was regarded as purely a civil institution, a limitation was introduced which was not authorized by the code, which rested solely upon the authority of the emperor, and which, far from indicating respect to the church, was a flagrant insult. As Napoleon withdrew himself more and more from the principles of the new order of things, we find him disposed to take even stronger ground in opposition to the civil privileges accorded to the priesthood by the Concordat. The question of sacerdotal marriage continued to present itself under perplexing shapes, and at length the emperor, on the eve of his downfall, perhaps with a view to propitiate the sacerdotal power, proposed to apply to married priests the penalty imposed by the law on bigamy.¹⁵⁷⁴ It was too late, however; the empire was rapidly vanishing, and these suggestions were soon forgotten in the hurrying march of events.¹⁵⁷⁵

XXXI.

THE CHURCH OF TO-DAY.

The question of sacerdotal marriage was left in France, on the collapse of the empire, in a curiously unsettled condition, giving rise to very remarkable contradictions in the judicial decisions which since then have from time to time been rendered by the tribunals as cases were brought before them.

Under the Restoration, a priest named Martin, an old *réfractaire* of 1792, committed the imprudence of marrying in 1815. Not long after he died without issue. His relatives contested the succession with the widow, and in 1817 the inferior court decided in her favor. The next year the court of appeals reversed the judgment on the ground that sacerdotal marriage had only been sanctioned indirectly by the legislation of the Revolution, and that the Charter of 1814 (Art. 6) had restored Catholicism as the religion of the state. In 1821, however, the final decision of the court of cassation settled the question in favor of the widow, thus legalizing such unions, for the incontrovertible reason that the code did not recognize vows or holy orders as causes incapacitating for marriage.^{[1576](#)}

Even yet, however, the matter was not held to be finally disposed of. In 1828, Louis Thérèse Saturnin Dumonteil, a priest of Paris, who desired to contract marriage, failed to obtain from the courts the customary assistance required by the law to set aside the refusal of his parents, who declined their assent to his projected union. The case was argued in all its bearings on civil and ecclesiastical law, and he found the tribunals resolutely opposed to him. When the Revolution of July unsettled the public mind with visions of the revival of the principles of '89, Dumonteil endeavored to carry out his project. The lower court decided in his favor, March 26, 1831, but the higher courts reversed the decision and pronounced definitely that priests could not contract civil marriage,^{[1577](#)} and this in spite of the Charter of 1830, which simply affirmed Catholicism to be the religion of the majority

of Frenchmen, while that of 1814 had declared it to be the religion of the state.

This curiously vexed question seems incapable of positive solution. The case of Dumonteil apparently discouraged aspirants for clerical marriage during the next thirty years, for I have met with no allusions to any attempt in that direction until 1861. In that year M. de Brou-Laurière, a priest already debarred from his sacred functions, engaged himself in marriage with Mdlle. Elizabeth Fressanges, of Deuville near Périgueux. On calling upon the mayor of the village to perform the ceremony and register the contract, that functionary refused to act. He was supported by the public authorities, and the expectant bridegroom was obliged to appeal to the tribunals to obtain his rights. The question was warmly contested and thoroughly argued, and it was not until a year had elapsed that the court of Périgueux rendered a decision ordering the mayor to perform his functions and to marry the patient couple. The case was then carried to the superior court at Bordeaux, which reversed the previous decision.

Again, in 1864, in the case of the Abbé Chataigneu, the court of Angoulême decided that a priest was, under the law of France, not competent to contract civil marriage.¹⁵⁷⁸ On the other hand, in 1870, the court of Algiers, in the case of a M. Q——, delivered an elaborate decision to the effect that in France there is no law forbidding the civil marriage of priests.¹⁵⁷⁹ Yet in 1878 the court of cassation confirmed a decision of the court of Rennes, pronouncing null and void the marriage of a priest, at the instance of his nephew and niece, to whom he had bequeathed his property by a will anterior to the marriage. When M. Loyson (Père Hyacinthe) married Mrs. Merriman, in 1872, the ceremony was performed in London, at the office of the Registrar of Marriages, and M. Loyson gave as the reason of his seeking a foreign land the refusal of the French officials to confirm the civil ceremony. So the Abbé Chavard, vicar at Marseilles, in 1874, went to Geneva for the same purpose, where he continued his priestly functions; and this leads me to regard as exceedingly improbable a recent statement in the daily journals that priestly marriages occur in France at the rate of twenty or thirty a year. In fact, so lately as September, 1883, there was before the courts a case which shows how uncertain is the question still in France. A certain Abbé Junqua was expelled from the church and was condemned to three months' imprisonment for continuing to wear the

priestly robes. He subsequently married and engaged in trade, when he failed, and his wife sought to secure her dowry from the bankrupt assets, but was resisted on the ground that her marriage was illegal under the Concordat, although the church had itself deprived the husband of his ecclesiastical character.

In Switzerland I have met with two or three cases of such marriages, but they have no special significance. In one of them, occurring in Lucerne some thirty years ago, the priest left the church in order to marry, and lived with his wife until her death, in 1880, when he permitted her to be buried as a Catholic, and had the mortification of seeing her name entered on the register, publicly exposed in the parish church, as an unmarried woman.

In Wiesbaden, in 1821, a priest named Koch, with the permission of the authorities, abandoned the priesthood and applied to the curé of the place to marry him, when, meeting with a refusal, he had the ceremony performed by a Protestant pastor, and was promptly excommunicated by the Vicar of Ratisbon. Not deterred by this, in 1828 a hundred and eighty priests of Baden petitioned the secular power for permission to marry, and the Chamber of Deputies showed a disposition to grant the request. This effort was imitated in 1831 by the Catholic clergy of Silesia, but the movement was repressed by the Prussian government; and in 1833, at Trèves, a clerical association was formed to carry out the same object.¹⁵⁸⁰ These efforts brought forth from Gregory XVI. an encyclical letter, in which he urged the faithful to stand by the canons, and severely condemned the weakness of some prelates who were disposed to yield.¹⁵⁸¹ Some similar movements in Austria in the next decade led Pius IX., almost immediately after his accession to the papal chair, in his encyclical letter of November 9th, 1846, to condemn the foul conspiracy against celibacy which was favored by ecclesiastics plunged in sensuality and forgetful of their own dignity.¹⁵⁸² In 1851, moreover, he took especial pains to stigmatize a work, published in Lima by Francisco de Paula in 1848, entitled “Defensa de la Autoridad de los Gobiernos,” which impiously sought to decentralize the church, and which took strong grounds against enforced celibacy.¹⁵⁸³

How immovable, indeed, is the position of the hierarchy on this matter is shown by the case of Panzini. Panzini is, or was, a Capuchin monk who, in 1854, conceived the idea that the greater part of the evils under which the

establishment labors are the result of celibacy and its attendant immorality. He addressed to the pope an anonymous memorial urging him to submit the question to the bishops then assembled in Rome, and followed this with two similar subsequent applications. Finally, in the troubles of 1859, anticipating the assembling of a European congress, he resolved to print an essay on the subject, addressed to all the bishops of the church, thinking that the congress would afford him an opportunity of reaching them. The printer to whom he confided his manuscript promptly placed the dangerous matter in the hands of Cardinal Antonelli, when Panzini was at once thrown into prison and delivered to the Inquisition. After a trial which lasted six months, he was condemned to twelve years' incarceration and perpetual suspension from the sacerdotal functions which were his only source of livelihood. After two years of his sentence had expired, he was released at the instance of the Italian government, and in 1865 he published his essay, rewritten from memory, under the title of "Pubblica Confessione di un Prigioniero dell' Inquisizione Romana ed origine dei mali della Chiesa Cattolica."

Now, Panzini's persecution arose solely from his affirming that enforced celibacy is impolitic and unnatural. He professed unbounded reverence for the church in all matters of faith, and claimed that the point at issue was merely one of discipline on which the church might make a mistake. Even here, however, he was careful to declare his measureless admiration for voluntary asceticism. Virginité he believed to be immensely superior to matrimony, and he anathematized as cheerfully as the council of Trent could wish all who should proclaim the contrary. Even monasticism he defended as a state of perfection recommended by Christ. His sole objective point was the rigidity of the law which renders the single state indispensable to all ecclesiastics, and he essayed to prove that this is in direct antagonism to all the general principles of Catholic theology, that the purity which is its pretext is impossible to enforce, and that the effort itself is most disastrous to the church and to the faithful. The authorities were not disposed to consider that these opinions were an allowable dissidence on matters of policy, and they hastened to brand them as heretical. In the sentence passed upon Panzini the Inquisition took occasion to stigmatize as heresy the assertion that enforced celibacy is contrary to nature, that it is a stumbling-block and the cause of perpetual transgression.¹⁵⁸⁴ That this

theory was enforced in practice so long as the church could control the secular power is shown in the case of an Italian priest who, preferring to sanctify love by marriage rather than to indulge in illicit intrigue, married and fled with his bride to Africa, seeking among the Infidel the liberty denied him in Christendom. Three children blessed his union, but the unrelenting vigilance of the church discovered his retreat, when, with the aid of the French consulate, he was seized, carried back to Naples, and thrown into prison to repent indefinitely over his errors. [1585](#)

There evidently could be no reasonable ground for expecting a change of policy in this respect on the part of the Roman curia, and this was recognized in 1866 by some Catholic priests of Hungary, who desiring liberty of marriage, and seeing the futility of anticipating it at the hands of their superiors, united in petitioning the National Diet for the requisite permission. Yet in spite of the extravagance of supposing that a body which, since the Council of Trent, has become so thoroughly centralized as the church, would listen to the wishes of its lower classes, there were not wanting those who imagined that the Council of the Vatican in 1870 would adopt the discipline of the Eastern Church and permit marriage to the inferior orders. Any such expectations were destined to be disappointed as soon as the preliminary machinery of the council became known. A *congregazione centrale* was appointed by Pius IX. in advance, consisting exclusively of cardinals connected with the Inquisition, and to this body was delegated the sole determination of the matters to be submitted to the council for discussion. Under this congregazione, and presided over by its members, were five *consulte*, to act as sub-committees on the subjects respectively confided to their deliberations. The consulta on faith and dogma was under the presidency of Cardinal Bilio, notorious as the compiler of the Syllabus of December, 1864; and that on canons and discipline was committed to Cardinal Catarini, whose whole career had been passed in the Inquisition, and who had acquired a sinister fame by his rigorous punishment of all attempts at reform. If, as the church asserts, the proceedings of general councils are under the immediate operation of the Holy Ghost, it will be seen what reverent care was observed to keep Him in due subjection, and to spare the church the scandal of being brought, by thoughtless innovators, into opposition with Him.

As the destined outcome of the council was simply the dogma of papal infallibility, the hopes of the anti-celibatarians were transferred to the schism caused by that dogma, and known as that of the Old Catholics. In 1875, a Dean Suczinsky married the Baroness Gazewaska, and joined the schismatics, when the Prussian government decided to protect him in the enjoyment of his temporalities, and his new brethren agreed to receive him, and thus committed themselves on the question of celibacy—a decision confirmed in 1878 by the Synod of Bonn, which decreed, by a vote of 75 against 22, that the prohibition of the canons is not an obstacle to the marriage of ecclesiastics, or to the cure of souls by married priests. Yet the Old Catholic movement, despite the well-earned eminence of some of its leaders, such as Döllinger, was destined to failure from the start. It sought a compromise where no compromise was possible—asserting the right of private judgment against the Church Universal only to a certain point, and that point one which concerned itself rather with intellectual subtleties than actual daily affairs. The unbearable oppressions which lent practical application to the polemics of Luther no longer existed; and the secular powers of Europe felt too secure in their ability to defend themselves against ecclesiastical encroachment to give substantial aid to the opponents of Rome. The Old Catholic schism may therefore already be regarded almost as a thing of the past, and one which will exercise no influence over the future.

A more serious blow than that which Döllinger and his friends sought to aim at the Roman curia has been dealt, in the matter of marriage, by the adoption, in successive Catholic states, of what is known as Civil Marriage, by which matrimony is withdrawn from the exclusive control of the church, and the sacrament and benediction are declared to be accidents not necessary to the legal status of husband and wife or to the legitimacy and heritable capacity of children. We have already seen that this was one of the legislative results of the French Revolution, and the example thus early set by France has been followed of late by Italy and Austria after its adoption, in 1853 by Sardinia, as one of the earliest reformatory measures of Cavour. Yet the church positively refuses to regard such marriages as entitled to respect. When the project was under discussion in Italy, the *Unità Cattolica*, one of the papal organs, in its issue of July 16th, 1864, did not hesitate to assert that the establishment of civil matrimony was establishing the liberty

of licentiousness, and that, after having scattered houses of ill-fame throughout Italy, it would convert the whole peninsula into one brothel. In a similar spirit, Pius IX., in his allocution of October 30th, 1866, denounced it as leading to an organized system of scandalous concubinage. When, in May, 1868, Austria followed the example of Italy, Pius, within a month, delivered an allocution, in which he not only condemned the “abominable law,” but declared it to be null and void; and Cardinal Rauscher, Archbishop of Vienna, issued a manifesto, in which he not only denied that the civil contract constituted marriage and directed that children sprung from such unions should be entered on the parish registers as neither legitimate nor illegitimate, but gave positive instructions that absolution should be denied, even *in articulo mortis*, to all parties who had cohabited in such unions—thus stigmatizing them as worse than concubinage. In a similar spirit, when, in 1869, civil marriage was proclaimed under the short-lived republic of Spain, the clergy, under inspiration from the Vatican, denounced it as concubinage, and threatened to suspend the celebration of the Mass. With the restoration of the monarchy the law was promptly repealed, and an effort to restore it was rejected by an emphatic vote of the Cortes in February, 1883, though, with the more liberal tendencies that have since arisen, the matter is again proposed for discussion. Leo XIII. has been vigorous in his opposition to the innovation. In his first Encyclical, issued April 21st, 1878, he declared that “citizens, profaning the dignity of Christian marriage, have adopted legal concubinage in place of religious matrimony;” and he returned to the attack in a special Encyclical on the subject, published February 10th 1880. In this he assumes that, as “by the will of Christ the church alone can and ought to legislate and decide concerning sacraments, so it is out of the question to attempt to transfer any, even the smallest part, of her power to the government of the state,” and therefore “judicial sentences on conjugal contracts, as to whether they have been entered upon rightly or wrongly,” are a direct infringement of the rights of the church, whether those judgments be adverse or not to the canons.

The earlier passages of this Encyclical are so warm and eloquent a defence of the holiness of matrimony, as the natural condition of man decreed by God, that it would probably trouble its author to explain why so exalted and divine a state should be prohibited to the ministers of the God

who devised it and fitted his creatures specially for it. Yet the persistent and bitter opposition of the church to the civil marriage laws may not unreasonably be attributed to the fact that under them the state has the power to recognize and permit clerical marriage. For more than half a century such laws had existed in France, but as the French tribunals leaned towards upholding ecclesiastical celibacy, they were acquiesced in comparatively in silence. When Italy, however, followed the example, it was seen that the temper of the Italian government would lead to construing them in a sense favorable to priestly liberty, and hence the opposition, which has been justified and intensified by the result. Immediately on the passage of the Civil Marriage Act, Dr. Prota, of Naples, an energetic reformer within the church, in a letter of October 30th, 1865, advised all his clerical friends to marry and to persist in the exercise of their functions, "and the more who do so at once and simultaneously the safer for all, for the bishops will venture the less to persecute you in the face of public opinion." Accordingly cases of priestly marriage commenced to occur, and when they were contested their validity was confirmed by the tribunals. The superior courts of Genoa, Trani, and Palermo successively decided in this sense, and finally, in 1869, occurred the case of Andrea Treglia, of the diocese of Salerno, which settled the question in Naples. The municipal officers of Vietri refused to marry him; the court of Salerno decided against him, but when the matter was carried up to the court of appeals of Naples judgment was rendered in his favor, and he was married forthwith—thus legitimating the unions of some fifty priests who had preceded him, without the question having been settled by the tribunal of last resort. In the organ of the reforming Catholics of Naples, the *Emancipatore Cattolica*, it is curious to see the successive marriages chronicled with the same satisfaction as that evinced by Spalatin in the stormy days of Luther. [1586](#)

Yet the whole question is one of but slender practical importance. In no country is the Catholic church subservient to the state. It controls its own sacraments, and no government is likely to venture upon interference with it in its own sphere. While, therefore, it may be deprived of the power to persecute and punish those of its members who enter upon civil marriage, it yet possesses the ability to deprive them of their functions, which in most cases is equivalent to depriving them of bread; and it has an unquestioned right to expel them from its communion. The priest who marries, therefore,

is virtually separated from his church and deprived of his means of livelihood—motives which, combined with the moral forces at work to keep men within the accustomed bounds, are quite sufficient to prevent defection from growing common, or to render marriage with a priest attractive to women above the lowest class. Even in the United States, where there is no legal impediment to priestly marriage, and the tone of society is such as rather to welcome those who escape from the pale of Rome, such cases are very rare. A few years since one occurred in Philadelphia, and in February, 1882, Father Agudi, of Hartford, committed matrimony, but these are the only instances which I remember to have noted for many years past. While, therefore, the civil marriage laws of Europe unquestionably loosen the ties which in this respect bind the priest to his church, there are still sufficient material and moral forces at work to prevent desertions from this cause from assuming any serious proportions.

Predictions, as a rule, are idle, and yet it would appear entirely safe to assume that those who look forward to a change in the policy of the church as regards the enforcement of celibacy among its ministers are prompted rather by their wishes than by judgment, or by knowledge of the influences at work. It matters little what may be the aspirations of the vast body of men who form the working ecclesiastical force—the humble priests and curés upon whom it depends for its support among the populations. The autocratic theocracy, founded in the dark ages, and strengthened by the council of Trent, received its final and irrevocable shape when the church submissively adopted the Vatican decree, which declared “that the Roman pontiff, when he speaks *ex cathedra*, that is, when in discharge of the office of pastor and doctor of all Christians, by virtue of his supreme apostolic authority, he defines a doctrine regarding faith or morals, to be held by the universal church, by the divine assistance promised him in blessed Peter, is possessed of that infallibility with which the divine Redeemer willed that his church should be endowed for defining doctrine regarding faith or morals; and that therefore such definitions are irreformable of themselves, and not from the consent of the church. But if any one—which may God avert—presume to contradict this definition let him be anathema.”¹⁵⁸⁷ It

would be futile to imagine after this that any pressure could be brought to bear upon the Roman curia sufficient to induce a change in its immemorial policy—a change, moreover, which would overwhelm it with the bitterest humiliation by contradicting all its teachings since the days of St. Jerome. What was so unbendingly refused to all the princes and nearly all the clergy of Catholic Christendom in the doubtful days of the Reformation will not be granted now, when, despite the destruction of the temporal power in Italy, the spiritual influence of the church is as great as ever, and it sees the results of its policy in the rapidly extending area of its domination. When Pius IX. could boast that during his single pontificate he had founded twenty-nine metropolitan sees and one hundred and thirty episcopal dioceses, there would seem to be no valid reason, from the stand-point of the Vatican, for an act so revolutionary as the abrogation of celibacy, which would convert its janizaries into householders, with human interests dissociated from those of the church-militant.

The monastic orders have not escaped the innovating spirit of the nineteenth century. In Spain, the revolutionary cortes of 1820 enacted a law suppressing all the existing monastic foundations, excepting the Knights of Malta and the Hospitalarios de San Juan, and further prohibiting the founding of new institutions and the administering of vows; but when in 1823 the constitutional government fell under French bayonets, the Orders reestablished themselves and took a bloody revenge upon their persecutors. Again in 1836 the government of Isabella II. undertook the same task, excepting the Padres de las Escuelas Pias, the Hospitalarios de San Juan, and the Clerigos de la Mision, but the attempt was short-lived; as was also that of 1868 under the Republic. In the Netherlands, a series of laws adopted between 1818 and 1826 forbade the admission of novices in the contemplative orders, which, being of no public utility, had no claim for recognition; and irrevocable vows, moreover, were declared illegal. In 1820 a similar effort was made in Naples, but it was unsuccessful. In the New World still more sweeping reforms have been undertaken. Thus Paraguay, in 1824, suppressed all monasteries as useless; Brazil, in 1829, prohibited the entrance of new devotees in the existing foundations, thus condemning

them to gradual extinction; and in 1851 New Grenada not only expelled the Company of Jesus and forbade the establishment of any Order professing the doctrine of passive obedience, but threw open the doors of all religious establishments, and promised legal protection to those who should abandon them. Ten years later it suppressed them altogether, and in 1874 its example was followed in Venezuela.¹⁵⁸⁸ In 1849, one of the first acts of the Roman Republic was to liberate all monks and nuns from obedience to their vows; and in 1853 Cavour suppressed all the monastic houses of the Kingdom of Sardinia, applying their property to the improvement of the clergy, in spite of the superstitious fears excited by the almost simultaneous deaths of several members of the royal family. After the formation of the Kingdom of Italy, the law of June 28th, 1866, completed the suppression of all the religious houses, pensioned or subsidized their members, and confiscated their property. This process of secularization was rapidly carried out, and early in 1867 the journals reported that nearly all the inmates of the monasteries were dispersed, some of them returning to their families, some of them accepting refuge offered by the charitable, but most of them clubbing together and hiring houses in which to live as of old. Two exceptions, indeed, were made in the enforcement of the law. Monte Casino, the venerable mother of western monachism, was spared, and provision made for its maintenance as a national monument; while Savonarola's convent of San Marco was similarly favored, rather perhaps because of its frescoes than of its historical associations. Against all this the church of course protested vigorously, pronouncing the suppression of the orders and the secularization of their possessions to be null and void; but the readiness with which purchasers were found to give even more than the appraised value of the property, shows how futile was resistance to the tendency of the age.

So great a social revolution was of course not effected without much of individual suffering, which, in some cases at least, was not diminished by the methods adopted in enforcing the law. The fact that in 1856, 8000 monks petitioned Pius IX. for secularization, shows that the ideas of the age had penetrated into some of the monasteries, but in the greater number of cases the inmates were naturally averse to the change. Panzini, who can assuredly not be regarded as a prejudiced witness, speaks with bitter indignation of the files of soldiery sent to drive from their houses the

terrified nuns, who were thrown upon the world without the means of subsistence or the training to earn a livelihood, while their vows precluded them from marrying or from worldly employment. Even the private fortunes brought by them in many cases to their convents shared the common fate of confiscation, and they sought in vain to have their dowers restored to them.¹⁵⁸⁹ It is impossible not to feel sympathy for those whose misfortune consists in having been born too late, and who are made to expiate the sins of a system which they have reverently received from their forefathers. The student of the past, moreover, may be pardoned a feeling of regret at the destruction of the venerable institutions which, for a thousand years, fostered the religious growth of Christendom; but the civilization which they rendered possible has outgrown them. In the history of development it is inevitable that Zeus should dethrone his father Cronos; and the progress of humanity demands the removal of that which has outlived its usefulness, and has become only a stumbling-block in the path of human improvement.

Pius IX. himself had felt the need of some measure of reform in the religious orders, but was powerless to enforce it. It is asserted that before his early liberal tendencies had become completely eradicated, on his return from Gaeta, he entertained the idea of rendering life in common indispensable in all monastic institutions, of substituting for the irrevocable vow one which should be renewable at a fixed interval, and of deferring all ordinations to the priesthood until the applicant should have entered on his 36th year. These sensible measures, however, were opposed so strenuously by all the officials that the Pope gave way—the General of the Franciscans even proclaiming vehemently that they would assuredly result in the destruction of all the religious orders.¹⁵⁹⁰ It would seem that Pius eventually, in this respect as in others, fell completely into the hands of the ultra-conservatives, for though in 1857 he defined that the simple vow of the novitiate should not be taken before the age of 16, and that the irrevocable vow should be deferred until the accomplishment of a novitiate of three years, yet the following year he decreed that the simple vow of the novice was irrevocable, except by papal dispensation, unless, indeed, the general of the order should see fit to expel the postulant.¹⁵⁹¹ It is remarked, moreover, that while he not infrequently exercised his dispensing power in releasing worthy applicants from the vows of poverty and obedience, he

never absolved them from that of chastity;¹⁵⁹² though it is not unreasonably urged that all enlightened legislation holds engagements, even in matters of trifling import, to be invalid when made by minors, while the church permits, and even incites, children in their sixteenth year to enter into obligations the nature of which they are unable to appreciate, and then unyieldingly exacts of them the rigid execution of the rash promise, under pain of eternal damnation.

Yet, notwithstanding these successive shocks, monasticism has rarely been more flourishing or more vigorous than of late years. Warned by the successive secularization of its temporalities in one country after another, the church has learned to give to the monastic system the direction in which its evils are least sensibly felt, its benefits to humanity are greatest, and the influence which it is capable of exerting is most serviceable to the hierarchy. Though at times mistaken in the spirit of the age; though often misled by pride, by ambition, and by avarice, the Roman church has missed its aim and mistaken its vocation, yet, upon the whole, it has manifested that adaptation to the wants of successive generations which is the real secret of its power and the condition of its success. Clearly recognizing the scant toleration which our hard-working nineteenth century has for holy idleness and unproductive sanctity, it moulds its institutions to meet the necessities of the age. It no longer glories in new and fantastic forms of worship or insane feats of asceticism—not the pillar of Stylites, the poverty of Francis, or the thong of the Flagellants¹⁵⁹³—but it seeks to organize systems by which the beneficence of the many may be efficiently administered by the trained labor of the few. It endeavors no longer to agglomerate around idle communities the wealth which could only pander to their vices, but rather to render useful by associated action the benevolent self-abnegation which in other communions is apt to be lost or frittered away for lack of judicious organization and direction. When thus the vow of celibacy is uttered, not in the hope of a life of ease and sensual indulgence, not in the pride of Pharisaical holiness, not in the lust of exaggerated maceration, not in the hope of purchasing by solitude and mortification the favor of an all-merciful Creator, but for the single-minded purpose of devoting a life to elevating fellow-creatures from degradation or to relieving their physical and mental miseries, no one can deny that institutions which in their wantonness of prosperity accomplished so much

of evil possess fruitful germs of good to be developed through adversity and tribulation.

The results of this wise policy have shown themselves especially in France and Belgium. When, in 1625, St. Vincent de Paul founded the Order of the Sisters of Charity, he accomplished a work which was destined to prove as useful to the church as the mendicant and preaching orders which resuscitated it in the thirteenth century, or the Company of Jesus, which enabled it to set bounds to the Protestant Reformation. It was a return to the primal and vital principles of Christianity, which bound anew the peoples to the hierarchy and bridged over the all but impassable gulf between them.

This tie, so delicate and yet so firm, proved lasting. Even amid the horrors of the Revolution, when conventual vows were forbidden, and the monastic orders were scattered ruthlessly abroad, the gentle virtues and the tireless ministrations of the Sisters of Charity won for them respect and toleration from the cruel fanatics who respected and tolerated nothing else. When, even under the Concordat of 1801, the reëstablishment of monastic orders was strictly forbidden, and those which endeavored timidly to organize themselves under the names of *Pères de la Foi*, *Victimes de l'Amour de Dieu*, *Cœur de Jésus*, etc., were broken up in 1804 without ceremony,¹⁵⁹⁴ exceptions were made in favor of the charitable associations of females, the missionary societies of Saint-Esprit and the Lazaristes, and the brotherhood of the *Écoles Chrétiennes*. The missionary societies proved to be a focus of reactionary intrigue, which the First Empire was powerful enough to crush. They were accordingly suppressed in 1809, but at the same time an imperial decree placed under the fostering care of Madame Lætitia the women who devoted themselves to works of charity and mercy. Annual appropriations for their support were regularly made, and, thus favored, they prospered amazingly. The religious activity of the people seemed to flow in this channel with redoubled force from its long retention, and in the eight years from 1807 to 1815 there were no less than 1261 congregations authorized—an average of 157 per annum. At the same time the state refused to recognize the right of any person to abstract himself irrevocably from society. The law wisely prohibited engagements for life in any service, and this was held applicable to the religious congregations, in which, by the decree of 1809, the period of engagement was limited to five years.¹⁵⁹⁵

In spite of the favor shown to the charitable associations, the prejudice against the monastic system was still so strong that the Restoration, with all its reactionary tendencies, did not dare to run counter to the convictions of the people. The law of 1809 forbidding male congregations was never repealed, and the most that the Bourbons ventured openly to do was to authorize a few by special decree, such as the Lazaristes, the Missions Etrangères, &c. Meanwhile the female congregations continued to increase; a general law was enacted in May, 1825, providing for their authorization under definite provisions, and between 1815 and 1830, 643 new ones were officially recognized. The efforts made from 1825 to 1827, under Charles X., to introduce the Jesuits and other male orders gave rise to lively agitation, and the elections of 1827 settled the question definitely in the negative.¹⁵⁹⁶ The Revolution of 1830 put an end for the time to all hope of reëstablishing the monastic system in France, and a law in 1834 specially affirmed the application of Art. 291 of the Penal Code, directed against unauthorized associations, to those for religious purposes. The constitutional government of Louis Philippe showed itself persistently hostile to monachism. It is true that in 1840 Lacordaire succeeded in obtaining sufferance for his order of Dominicans, but this was exceptional; and even towards the female orders the policy of the monarchy was repressive. During the eighteen years of its existence, but fourteen authorizations for founding new congregations were granted, while the Jesuits, who had ventured to enter the kingdom without permission, were formally expelled in 1845 after a severe parliamentary struggle. The Second Republic was more liberal, and the Second Empire ostentatiously sought the alliance of the church. The Loi Falloux, in 1850, seemed to recognize the existence of male orders, and advantage was immediately taken of a vague phrase to assume their legality. At length, in 1852, a law was passed regulating, by a general form, the incorporation of all religious societies, and under this their growth was amazingly rapid—none the less so, perhaps, because they were not even required by the authorities to observe the law and go through the formality of procuring authorizations. In 1827 there were but 20,943 female devotees, while the number of males under conventual vows was too insignificant for computation,¹⁵⁹⁷ and under the monarchy of July the growth was exceedingly small. In 1861 these had increased to 17,776 males and 90,343 females, and in 1877 to 22,207 males and 127,000 females.

In Belgium the figures are equally startling. In 1856 that little kingdom had 2383 monks and 12,247 nuns—a total of 14,630—an enormous proportion in so small a population, enabling the clergy, as has more than once been seen, almost to control the elections.

To comprehend the full significance of these figures, they may be compared with the undisturbed monasticism of an old Catholic state such as Austria. That empire, in 1859, had but 10,449 monks and 6463 nuns, or 16,912 in all. For the Catholic population alone of Austria, this gives one to every 1579 inhabitants, while, about the same period in France the proportion was one to every 346 souls, and in Belgium, one to every 308.

The Company of Jesus furnishes an equally instructive illustration of the flourishing condition and rapid growth of monachism despite the shackles apparently imposed on it by modern institutions. The Jesuits, formally reëstablished in 1814 by Pius VII. and gradually working an entrance into one kingdom after another, have increased with a rapidity which is exceedingly significant.

Thus in 1834 the Company numbered but 2684,			
”	1844	”	4133,
”	1854	”	5510,
”	1864	”	7734,

and a still later computation gives them 7949 members, divided into 3389 priests, 2323 brother coadjutors, and 2237 novices—the large proportion of the latter indicating how great is the prospective increase. In France alone their number had grown from 200 in 1845 to 1085 in 1865, and to 1509 in 1877.

In this enormous spread of monachism, it is interesting to observe the change which has occurred from mediæval sensual indulgence and mystic asceticism to modern utilitarianism. Thus in France, by the census of 1861, there were, out of 17,776 men bound by vows,

Devoted to education,	12,845,
Distribution of charity and care of the sick,	389,

In charge of houses of refuge and farm schools,	496,
Devoted to religious contemplation,	4,046,

while of 90,343 women, there were

Devoted to education,	58,883,
Distribution of charity and care of the sick,	20,292,
In charge of houses of refuge and farm schools,	3,073,
Devoted to religious contemplation,	8,095.

The large proportion of almoners and hospital nurses among the women is easily explicable by what has already been stated as to the favor shown by successive governments to the Sisters of Charity, and the good which is effected by these organizations cannot easily be overrated. Who is there who can fail to do justice to these humble Christians, when once he has had the good fortune to witness their self-devotion and the benefits arising from their tireless ministrations, made doubly valuable by system and special training? In our own land, torn by sudden and gigantic civil war, when the sick and wounded had accumulated almost beyond the possibility of care, who that then noted the blessed agency of those angels of the hospital, would willingly pause to coldly criticise the institutions of which they are the most perfect development? In a Catholic country like France, the opportunities for good works are of course vastly greater, for almost every benevolent institution naturally seeks the aid of the church, and that aid is willingly given, not only from charitable motives, but also, we may assume, on account of the enormous influence thence accruing among the masses of the population who are the beneficiaries, and this is especially felt in the manufacturing centres and amid the periodical crises attendant upon modern financial and industrial development. The crèches where babies are kept while their mothers are at the factory are presided over by nuns; the distribution of bread and soup at the Bureaux de Bienfaisance is made by nuns; the neglected and wretched little children who are sent to the infant schools are washed and tended by nuns;¹⁵⁹⁸ and, in fact, whatever tender, or humane, or charitable influence reaches the prolétaire in his grieving and despairing wretchedness, almost necessarily comes to him through some channel connected with a religious order.

A much more complex question, however, is presented by the numbers and the activity of the orders devoted to education. While giving due weight to the purely benevolent impulses which lead so many to undertake the task of training the young, and while freely acknowledging the vast amount of good arising from the education, in so many cases gratuitous, of those who might otherwise remain in the darkness of ignorance, the inquirer cannot shut his eyes to other considerations. The eagerness with which the church seeks to acquire for itself the direction of the docile mind of childhood shows how fully it is alive to the importance of this most fruitful source of influence. Previous to 1849, the educational system of France was, nominally at least, in the hands of the State, though even then the church had made large inroads upon its province. The leading instrumentality in this was the congregation of the *Frères des Écoles Chrésiennes*, founded in 1680 by the Abbé de la Salle, for the gratuitous instruction of the poor, and Frère Philippe, the General of the Order, testified in 1849 before a parliamentary committee that the body then consisted of 3300 members with 200,000 children under their care. The spread of communism among the people, as manifested in the overthrow of the monarchy, alarmed the conservatives, and one of the first acts of the Republic under Louis Napoleon was to encourage by the *Loi Falloux* the efforts of the church to extend its operations. How successful was the attempt is shown by a comparison of the statistics of twenty years.

	1843.	1863.
Religious of both sexes engaged in primary teaching,	16,958	46,840
Number of primary schools under their direction,	7,590	17,206
Number of scholars in these schools,	706,917	1,610,674
Children in <i>salles d'asile</i> , under sisterhoods,		301,536

By 1861, in the next grade of schools, the religious orders had 55,151 male pupils, while those in the government institutions of similar class numbered only 63,291. In 1865 the whole number of children between the ages of 7 and 12 in France was 4,018,427; while, two years previous, out of 2,265,576 boys attending school, 443,732 were in institutions conducted by the religious orders, and of 2,070,612 girls, no less than 1,166,942, or more than half, were under the care of sisterhoods.

This enormous and rapidly increasing proportion shows how largely the coming generation is trained under monkish influences, and justifies the efforts made by the Ferry ministry, after the overthrow of the reactionary government of MacMahon, to check the growth of these schools. The religious orders are bound to a peculiar obedience to the Holy See; all other bonds, whether of family or of country, are as nothing in comparison. The monk who conscientiously regards his vows cannot be a citizen, or be fitted to train future citizens. The congregation, for instance, of the *Frères de la Saintè-Croix* is largely engaged in educating and furnishing teachers; and among the secret statutes of the order is one forbidding its members to admit the existence of any opinion, whether in politics, theology, or religion, contrary to the opinion of Rome.¹⁵⁹⁹ What are the political opinions of Rome may readily be found in the Syllabus of 1864, among its anathemas directed against freedom of thought and of the press, against any liberty which threatens to abridge the temporal power of the hierarchy or to limit its absolute authority, and indeed against the simplest toleration in the matter of religious belief. That these are in fact the principles which govern education in clerical schools was shown during the debates on the Ferry laws in 1879, by M. Ferry, who had, after some difficulty, procured copies of text-books used in them, and who quoted from them passages praising feudal rights and reviling the Revolution, justifying the Inquisition and the revocation of the Edict of Nantes, denouncing civil marriage as concubinage, alluding to religious toleration as a temporary necessity, and inculcating the doctrine of the submission of the state to the church. It needs no argument to show that institutions which teach such principles as these are not fit to be trusted with the training of those who are to constitute a self-governing Republic.

Nor was this the only evil arising from the successful efforts made by the church through its monastic legions to control the education of France. The enormous demand for recruits to fill the rapidly growing ranks of its army of teachers exceeded its capacity to provide suitable material, whether as regards mental or moral training. In its desire to favor the growth of clerical schools, the Second Empire waived in favor of the religious orders the rigorous examinations required of the laity as a condition precedent to employment as teachers. The supervision of the state being thus withdrawn, discretion was left with those whose unworldly duties can scarcely be

supposed to render them competent judges, and that discretion has been necessarily much abused. It is related by Mdlle. Daubié, herself an instructress of high reputation, that when she was eight years old she was applied to, by a woman employed in tending cows, to teach her the catechism, and within a year she was surprised to find her whilom pupil suddenly reappear as a sister, duly authorized to teach. It is computed that, among the male religious employed in teaching, not more than one in ten has the *brevet*, which would be indispensable to them if they were laymen; while, of the sisters engaged in instruction, out of 8000 superiors of institutions, only about 1000 are *brevetées*, and, of their assistants, not more than one per cent. are so qualified.

If the mental qualifications of these educators were thus disregarded, their moral characters were equally relieved from proper scrutiny; and this, combined with the temptations inseparable from the celibate system, has not infrequently led to the most shocking results. The enormous influence of the ecclesiastical establishment, working upon the bureaus of the government, the officials of justice, and the press, was usually sufficient to prevent much public scandal under Louis Napoleon and Marshal MacMahon; but a list of the prosecutions reported in the newspapers from 1861 to April, 1879, collected by Dr. Wahu,¹⁶⁰⁰ shows about fifty cases in which the male teachers had abused the children under their charge, many of these cases being of appalling turpitude. As eleven of these occurred during the first three months of 1879, it may reasonably be concluded that equal freedom on the part of the public prosecutors and the press during the previous eighteen years would have produced a vastly larger number of convictions; and not the least deplorable feature of the matter is that in more than one case the culprit had been previously transferred several times from one institution to another, giving grounds for the assumption that the authorities were cognizant of his wickedness, and preferred to allow him to spread contagion throughout different communities rather than incur the scandal of punishing him.

As illustrative of two phases of the subject, I may briefly refer to two cases from among a number which were brought to light in 1861, as the result of the efforts of a writer bold enough to brave the anger of the church, and who found a journal with the hardihood to second his efforts. One of these occurred at Saintes, in a school under the care of the *Frères des*

Écoles Chrétiennes. Out of 300 boys, one hundred had been the victims of the monsters to whom they had been confided, and who enjoyed with a Satanic zest the corruption which they spread through so many households. The evil became rumored abroad, but no one dared to attack the members of so powerful an order, until an old soldier who held the post of gendarme found the evil in his family. Unused to prudence, he complained. The local board of supervision, afraid of compromising the “interests of religion,” endeavored to hush up the affair, but the prefect, fortunately, was of different temper, and took up the matter energetically. The guilty brethren disappeared, and their superior professed to know nothing about them, while the gendarme was soon afterwards dismissed from his post, and the matter passed over, leaving nothing behind it but a hundred ruined youths and corrupted families. The other case is that of Frère Cléonique at Jonsac, whose offences were too fully proved for denial, and whose counsel on his trial could only urge in palliation that the responsibility rested, not on his client, but on the system which employed such creatures and exposed them to temptations beyond their strength—“Gentlemen,” said he, “look at my client. What is he, after all? A clown, a *goîtreux*, almost a *crétin*; surely less than a man! He was herding flocks, when they undertook to persuade him that he had a call. A black gown was thrown on his shoulders, and, behold him in charge of a school! Such a nature could only attempt that career through pride and sloth. There he is, utterly untrained, ignorant of everything in life, and yet charged with teaching our children how to live!... Do you wonder that one day the beast awoke in that soul, into which nothing lofty had been instilled?... There he is before you, but who is really to blame; who is the criminal? Assuredly not this poor wretch, involved in the blindest ignorance, whom they drew from his obscurity, and to whom they taught nothing before confiding to him the grave responsibility of training youth.” It is satisfactory to add that this ingenious plea was unsuccessful, and that the brute was sentenced to imprisonment at hard labor—but he had been seven years at Jonsac, and his victims counted by the hundred.^{[1601](#)}

It was during these prosecutions, in 1861, that Frère Philippe, the General of the “*Frères des Écoles Chrétiennes*,” was stimulated to issue a secret circular, in which, after alluding to two previous ones of the same nature sent out in 1854 and 1860, he said that the time had come to speak plainly

about the “horrible disease which devours the Order,” and which, under the investigations then in progress, was leading one brother after another to prison, and was sowing scandal broadcast. But the prosecutions died away, and matters soon resumed their usual course. It is but two or three years since that the *Bien-Public*, in comparing the morality of the lay schools with those in charge of the church, was able to produce these statistics:—

In 10,000 lay schools, 5.44 crimes and 22.29 offences (*delits*).

In 10,000 church schools, 65.10 crimes and 90.50 offences (*delits*).

Nor are these shocking cases confined to France. In 1873 a similar scandal was suddenly brought to light in the great Barnabite college at Monza, in Lombardy, where there were more than 300 students, many of whom were found to have been debauched by their instructors. The institution was promptly closed by the authorities, but the chief criminals, Father Stanislas Cereza, the principal, and Father Villa, one of his assistants, escaped, having prudently disappeared at the first rumors of the development.

It was, however, political considerations rather than moral ones which led the French cabinet, shortly after the fall of MacMahon had destroyed the alliance between church and state, to commence an attack on the clerical schools. The measure proposed in what were known as the Ferry laws was certainly not a sweeping one, for the seventh article, on which the struggle took place, simply provided that “no man can be allowed to direct an establishment of public or private teaching, of whatever order this establishment may be, if he belongs to a *non-authorized* religious congregation;” and an official list of the non-authorized congregations showed them to consist merely of 1502 Jesuits, 327 Dominicans, 222 Marists, 230 Benedictines, 193 Eudists, 65 Basilians, 22 Barnabites, 14 Oratorians, 91 members of the Congregation of St. Bertin, and 105 of the Congregation of the *Sacré Cœur de Jésus*. The measure, in fact, was aimed rather at the Jesuits than at the others; but clerical influence was as yet too strong, and after a discussion, which lasted for about nine months, this section of the law was rejected by the Senate. Jules Ferry accepted the defeat, but at once announced that the existing statutes against the Jesuits and other unauthorized orders would be enforced—a declaration which received the approval of the Chamber of Deputies. Within a fortnight, on

March 31st, 1880, accordingly, two decrees were issued. The first of these expelled the order of the Jesuits from France, giving them until June 30th to dissolve, and allowing a further delay until August 30th for the closing of their schools and colleges, in order not to inconvenience the students by dispersing them before the usual period of vacation. The other decree called upon all non-authorized congregations within three months to take the necessary steps to obtain the verification and ratification of their statutes and regulations, and the legal recognition of their establishments, and promising that when this was done provisions for the male congregations should be made by special acts, while those for female communities should be by either special acts or by simple decrees. The enforcement of the existing laws was threatened against all which should neglect within the given period to apply for authorization with all the prescribed details. Now, the laws required that the superiors of all orders should be residents of France, and that all congregations should submit in spiritual matters to the jurisdiction of the episcopal ordinaries, while, in fact, the more important orders have foreign superiors and are independent of episcopal jurisdiction. It was distasteful in the last degree to submit to this, and the indisposition to do so was strengthened by the prospect that each congregation would come before the Chambers as the subject of a special debate, in which their regulations would be discussed, with very slender prospect of ultimately obtaining the desired permission, since a special act would confer on them the right to hold real-estate—a right which many members, even of the Catholic Right, were not prepared to grant them.

The result of the first decree was that at the dates appointed the Jesuit establishments and colleges were closed, with but a faint show of passive resistance; but, as the members were not personally exiled, a large portion of them remained, and their colleges were continued by placing over them as nominal principals influential laymen under their control.

The second decree struck at 5917 members of unauthorized congregations. Its execution was postponed in hopes that the bodies thus threatened would endeavor to comply with the law, but the only concession they were willing to make was by putting forth a declaration containing a public act of submission to the constitution and a resolution to take no part whatever in public or political matters. At last, in November, 1880, the government found itself obliged to employ force, and the establishments

were closed by the police, aided where necessary by the military. A general system of passive resistance had been organized; doors had to be violently broken open, and the inmates carried out through jeering or sympathizing crowds. The popular feeling, in fact, had been worked upon as far as possible, and at some places, as at Lyons, civil conflict seemed for a moment to be imminent, while at Turquoing (Nord) even blood was shed; but on the whole the crisis passed away with much less disturbance than had been anticipated. Since then the growing strength of republicanism throughout France, unimpeded by clerical and reactionary efforts, shows how much slighter a hold the religious orders had on the popular mind than had been supposed, and how mistaken had been Napoleon III. in regarding an alliance with the church as a necessity for the preservation of his dynasty. In fact, there has been no banishment of individuals nor expropriation of property. Though the unauthorized congregations have been dissolved, in accordance with laws which date back to the *Ancien Régime*, the members retain their property, enjoy all the rights of citizenship, and can perform Mass in the churches near their convents—indeed, the aristocracy, which naturally affiliates with them, has rather made a point of offering them ostentatious hospitality.

The effort to separate education from clericalism still continues. The execution of the decrees was accompanied by the adoption of laws establishing government colleges for women and providing free primary education, and, March 24th, 1882, there was passed an act rendering education compulsory. For nearly nine months there had been hot debate between the Deputies and the Senators over an amendment of Jules Simon's, that instruction should be given in the public schools on the duties of the pupils "towards God and towards their country," but the elections of January, 1882, deprived the clericals of their power, the Senate receded from the amendment, and the education provided for by the act is to be purely secular.

It may safely be assumed that France will not abandon the institutions thus established to attacks by the priesthood such as the Belgian clergy habitually make upon the public schools of that kingdom. In a parliamentary debate, February 22, 1881, on this subject, it was stated, without contradiction, that the curés were in the habit of refusing communion not only to the children who attend these schools, but also to

their parents and grandparents, uncles, and aunts—in fact, admission to communion under the circumstances is the exception and refusal is the rule. Even threats are made to withhold baptism from future infants, the sacrament is denied to dying parents, and wives are urged to withdraw from all sexual relations with their husbands. When spiritual weapons are insufficient, more carnal means are employed by efforts to ruin the business of the disobedient by a system of “Boycotting,” which is sometimes successful; and the enthusiastic curé of Virginal admitted that he had pronounced it to be a less offence to commit murder than to vote for a Liberal, because Liberalism is heresy.¹⁶⁰² When such is the spirit of the church at the present day, French republicanism may be pardoned for desiring to limit its control over popular education.

It only remains for us to consider what is the present effect of celibacy on the moral condition of the church, and whether it has succeeded, after fifteen centuries of fruitless effort, in at last obtaining a priesthood whose chastity is more than nominal. At the commencement of the struggle, the great apostle of asceticism, St. Jerome, calmed the fears of those who dreaded a diminution of population from the spread of vows of continence, by assuring them that few would be found to persevere to the end in a task so difficult as the maintenance of virginity.¹⁶⁰³ Has, then, human nature changed during the interval, and has the church been justified in its assertion at the council of Trent that God would not withhold the gift of chastity from those who rightly seek it, or permit us to be tempted beyond our strength?¹⁶⁰⁴ It is certainly not so easy to answer this question now, as we have seen it in former ages, when men were more plain-spoken and less decent, when offences against morality were committed more openly, and when they were denounced both by the church and its enemies with a distinctness of utterance unfit for modern ears. Yet it is not impossible to find some evidence bearing on the question which may enable the impartial inquirer to arrive at a conclusion.

The church is unquestionably violating the precept “Thou shalt not tempt the Lord thy God” when, in its reliance that the gift of chastity will

accompany ordination, it confers the subdiaconate at the age of 22 and the priesthood at 25¹⁶⁰⁵—or even earlier by special dispensation—and then turns loose young men, at the age when the passions are the strongest, trained in the seminary and unused to female companionship, to occupy a position in which they are brought into the closest and most dangerous relations with women who regard them as beings gifted with supernatural powers and holding in their hands the keys of heaven and hell. Whatever may have been the ardor with which the vows were taken, the youth thus exposed to temptations hitherto unknown, finds his virtue rudely assailed when in the confessional female lips repeat to him the story of sins and transgressions, and he recognizes in himself instincts and passions which are only the stronger by reason of their whilom repression. That a youthful spiritual director, before whom are thrown down all the barriers with which the prudent reserve of society surrounds the social intercourse of the sexes, should too often find that he has over-estimated his self-control, is more than probable.

This, of course, is merely *a priori* reasoning, and of itself proves nothing, except the extreme imprudence of a system which applies fire to straw and assumes that combustion will not follow. Doubtless there are cases in which the assumption is justified by the result—whole countries, indeed, where scandals are few. In Ireland, for instance, we rarely hear of immoral priests, though such cases would be relentlessly exposed by the interests adverse to Catholicism, and the proverbial chastity of the Irish women may be both a cause and a consequence of this. In the United States, also, troubles of the kind only come occasionally to public view; but here, again, the church is surrounded by antagonistic churches, the laborers are few and hardly worked, and the position is not one to attract those who might seek a life of sloth and indulgence. At the same time, it must be borne in mind that the extreme care with which the church avoids scandal renders it impossible for one not within the pale to ascertain what may really be the relations between ecclesiastics and the female servants whom, as we shall see, they are permitted to keep in their houses.

In lands where Catholicism is dominant I fear that there can be little doubt as to this, although Ernest Renan, a witness of unquestionable impartiality, whose clerical training gave him every opportunity of observation, declares emphatically that he has known no priests but good

priests, and that he has never seen even the shadow of a scandal.¹⁶⁰⁶ In spite of the Nicæan canon, on which the rule of celibacy has virtually rested, the church, after a struggle of more than a thousand years, was forced to admit the “subintroducta mulier” as an inmate of the priest’s domicile. The order of Nature on this point refused so obstinately to be set aside, that the Council of Trent finally recognized women as a necessary evil, and only sought to regulate the necessity by forbidding those in holy orders from keeping in their houses or maintaining any relations with concubines or women liable to suspicion.¹⁶⁰⁷ It is true that the severe virtue of St. Charles Borromeo refused to grant to a septuagenary priest a license for more than a year for the residence of a sister equally aged, and forced him to apply annually for its renewal; it is also true that the council of Rome, in 1725, allowed the residence of women only within the first and second degrees of kindred;¹⁶⁰⁸ but in modern times the Tridentine canon has been interpreted as allowing the residence of female servants or house-keepers, in view of the hardship of doing without domestics and the expense of employing men. In order to meet the Tridentine caution to avoid suspicion, efforts have sometimes been made to define a minimum “canonical” age for these women, varying from thirty to fifty years, but usually placed at forty—a palliative which, as might be expected, accomplishes little, even when, as is not always the case, the rule is observed more scrupulously than by the device of dividing the canonical age and keeping two girls of twenty.¹⁶⁰⁹

Few priests, it may be assumed, have the self-denial to live without this female companionship, which is permitted by the church as a matter of course. Indeed, the census-paper officially filled in at the Vatican and returned in January, 1882, stated the population of the palace to be 500, of which one-third were women. While, of course, it does not follow that the relations between these women and the grave dignitaries of the papal court may not be perfectly virtuous, still, considering the age at which ordination is permitted, it would be expecting too much of human nature to believe that, in at least a large number of cases among parish priests, the companionship is not as fertile of sin as we have seen it to be in every previous age since the ecclesiastic has been deprived of the natural institution of marriage. The “niece” or other female inmate of the parsonage throughout Catholic Europe still excites the smile of the heretic traveller, and is looked upon as a matter of course by the parishioner, while the

prelates, content if open scandal be avoided, affect to regard the arrangement as harmless, knowing that it serves as a preventive of more flagrant and more public trouble, though the fact that this companionship is made the subject of discussion and regulation at virtually every council or synod or episcopal convention held by the church shows that privately it is recognized as a necessary evil at best. Yet the old sophistry is not forgotten, which proves that such sin is less than the infraction of ecclesiastical laws. In a tract in favor of celibacy, published at Warsaw in 1801, with the extravagant laudation of the authorities, argument is gravely made that as priestly marriage is incestuous, such adultery is vastly worse than simple licentiousness, the latter being only a lapse of the flesh, while marriage would be schism and arrogant disobedience, involving sin of a far deeper dye.¹⁶¹⁰

It would, of course, be vain to expect, at the present day, from the rulers of the church, the outspoken candor of the Middle Ages, when evils were denounced openly and in the coarsest terms. In those days councils could speak, because none but those connected with the church were likely to be cognizant of their proceedings; while, in the 16th and 17th centuries, the immorality of ecclesiastics was so notorious that no harm could arise from admitting it in the efforts made for its correction. In modern times, however, when an external veil of decency is to be maintained before the eyes of antagonistic critics, when scandal is, of all things, to be avoided, and when the proceedings of ecclesiastical bodies are carefully revised at Rome, before they are allowed to become public, with the consciousness that they may be spread by the press before a world of hostile mockers, ready to jeer at the woes of the church, only the most guarded allusions can be made to such subjects, and these only when the case is urgent. When, therefore, we see that almost every council held in modern times has deemed it necessary to insist on the supreme importance of preserving chastity—lying, swearing, stealing, and other sins not being even alluded to; when the caution against undue familiarity with women, even devotees, is constantly urged; and when the relations between the priest and his servant are frequently indicated by directions that he must not admit her to companionship at the table, or on walks and journeys, and especially not in visiting fairs and merrymakings, it would be difficult not to recognize under this guarded phraseology an admission of the actual relationship existing

between the good pastors and their female inmates, and a friendly warning, *si non caste saltem caute*.¹⁶¹¹

It is not often that we can obtain an inside view of these matters, especially from a source that is at once well informed and not hostile, but such a view, confirming the worst suspicions, is afforded by an indignant remonstrance addressed, in 1832, to Monseigneur Sterckx, Archbishop of Mechlin, by the Abbé Helsen, who for twenty-five years had been a popular preacher in Brussels.¹⁶¹² The abbé calls upon his prelate to enforce the Tridentine canon by banishing the women who are universally inmates of the houses of priests, and thus put a stop to the sin and the scandal which destroy the influence of the church and spread immorality among the faithful. Even the bishops and dignitaries of the church are not spared, and the archbishop himself is summoned to dismiss the “Petronilla” who had accompanied him from the curacy of Bouchout to the cathedral of Antwerp, and from Antwerp to the metropolitan seat of Mechlin.¹⁶¹³ Throughout this plain-spoken epistle the author assumes as a matter of course not only that the relations between the clergy and their servants are guilty, but that they are so recognized by every one—so notorious, indeed, as to need no proof—and, as a natural consequence, he regards the priesthood as a source of infection destructive to public morals. The cure is to be found in putting a stop to these irregular unions—“If women were forever banished from the houses of ecclesiastics vowed to celibacy, I think we should not see so great a number of prostitutes who ply their trade at night in our great cities, nor so many illegitimate children who curse their destiny as they multiply more and more around us. We ridicule the Seraglio of the Grand Turk and the polygamy of the Moslem, but they too, on their side, ridicule the infinite number of strumpets with whom Christian Europe is deluged, and the custom of keeping as many concubines as can be afforded. Whence comes to us this shameful trade, so hurtful to society, which is found under our religion more than under any other? We dare not doubt that it is the result of our own misconduct; we dare not accuse only the heretics and the philosophers of modern times; no, no! the most poisonous spring is in us, among us, with us, and it will not dry up without us. Let us blush to our eye-balls; let us hide ourselves from public sight! Oh for the times and the virtues of the primitive church! Why come ye not again?”¹⁶¹⁴ That this sort of scarcely veiled concubinage is, in fact, a fruitful source of prostitution

can scarcely be doubted if, as Helsen asserts, the ordinary custom is, when one of these priest's servants becomes pregnant and cannot be saved by a prudent absence, to dismiss her and take another, perhaps younger and more attractive; and that this may occur repeatedly without the ecclesiastic being subjected to any special annoyance or supervision—unless, indeed, he is so ill-advised as to take pity on the unfortunate girl and refuse to send her away. In that case he becomes a public concubinarian, liable to the canonical penalties, with which he is sometimes disciplined. As Helsen indignantly exclaims, “Would the Mahometans tolerate such infamy in their fakirs and dervishes? The Japanese, the Chinese, the Hindus in their bonzes? The pagans in their Vestals? Our ancestors in their Druids? Even the Jews and Protestants have blushed for it, since they advise their Rabbis and ministers to marry rather than thus to contaminate themselves.”¹⁶¹⁵ Helsen does not fail to allude to the public familiarity of these servants with their employers—the familiarity condemned in almost the same words by many of the councils cited above—and it would seem the extreme of Pyrrhonism to doubt that almost universal concubinage is tolerated, even where on the surface there are no public scandals to attract the attention of the malicious.

Testimony of the same nature exists as to Italy, where the upheaval of the last quarter of a century has created discussion and brought forth statements of facts and opinions which reveal to some extent the internal condition of the church. That immorality should be prevalent would seem to be inevitable, if only from the overgrown number of the clergy, which has been fostered by the ambition of the church. In Rome itself, by the census of July 1st, 1867, there were no less than 7404 ecclesiastics of both sexes, in a population of 215,573, or one to every 29 inhabitants of all ages. In the Pontifical States, prior to their absorption by the Kingdom of Italy, the proportion was one to every 55 of the population. In Northern Italy, embracing the Pontificate, the Duchies, Lombardo-Venetia and Piedmont, there was one to every 140; while in the whole of Italy, exclusive of the Pontificate, in 24,231,860 souls there were 174,001 ecclesiastics, showing a proportion of one to 239. These numbers are so wholly beyond the spiritual needs of the people that it is evident that an ecclesiastical career must be sought by thousands who have no vocation for a life of abstinence and self-denial; while even among those who are induced in the fervor of youth to

bind themselves by the irrevocable vow of chastity, there must be other thousands who find too late that they have over-estimated their strength. That passions thus denied their appropriate relief in the institution of marriage should degenerate often into brutal license, is too natural to excite special wonder.^{[1616](#)}

It would be difficult to restrain the appetites of so vast a body as this even with the most determined vigilance on the part of prelates and in the presence of the sternest popular feeling, but both of these elements of repression may safely be assumed to be lacking. The scandal of the Countess Lambertini, whose suit for a share of the estate of her father, Cardinal Antonelli, has for ten years been before the Roman courts, would seem to show that even the virtues of Pius IX. were powerless to eradicate the license which has been traditional in the papal court; and when a theological manual, which is still largely used as a text-book in Catholic seminaries, coolly states that in Italy lust is not regarded as disgraceful,^{[1617](#)} though we may hope that the standard of morality has improved since it was written, yet we cannot expect to find in the people of which such a statement could be made, the virtue that would hold to strict account a priesthood whose example has been one of the efficient means of its degradation. That there is no restraining influence would in fact appear from the consensus of opinion of all who have had an opportunity of forming a judgment.

An address purporting to emanate from sixteen bishops to Cardinal Catarini, begging for an enlargement of the questions to be discussed in the Vatican Council, assumes the rule of celibacy to be the cause, not only of heresy and schism, but of scandal to the people and of disgrace to the church. It speaks of the disgusting trials which are perpetually coming before the tribunals, making the priestly garb a source of shame to its wearers, and leading the people to regard them, not as the flower of the soldiers of Christ, but as a colony sprung from Sodom.^{[1618](#)} The Archbishop of Tarento, Giuseppe Capecepatro, has had no scruple in urging the abrogation of the canon in order to reduce the immense number of bastards whose existence disgraces the church.^{[1619](#)} In a similar mood, D. Marco Petronio, a priest of Pirano, in Istria, declares that the boasted chastity of the priesthood has filled the church with demons in place of angels, who

lead their flocks to ruin by their acts and example,¹⁶²⁰ and Panzini describes the church as a brothel filled with men ruined by the attempt to deprive them of marriage. When the latter, indeed, was on his trial before the Inquisition, he asserted that in consequence of the canon, there were daily committed in Rome itself more than twenty thousand mortal sins, and the advocate of the Holy Office, D. Giuseppe Cipriani, contented himself with quietly responding, “Perhaps not so many.”¹⁶²¹ We may therefore feel confident that there is no exaggeration in the remarks of the Rev. William Chauncy Langdon, who had ample opportunities of observation during his long residence in Italy as agent of the American Episcopal Church—“I learned to regard a priest, who had lived all his mature life, openly and faithfully with a woman to whom he had not of course been married; by whom he had children now grown up, and for all of whom he was faithfully providing—with a relative respect as one who had greatly risen above the morality of his church, and of the society around him, and whose life really might be considered, on the dark moral background behind him, a source of relative light.”¹⁶²²

We have here an example of the tolerated concubinage which Helsen describes as universal under the interpretation put upon the Tridentine canons. It would seem that it ought to be in some degree a safeguard against worse offences and more public scandals, as a kind of substitute for marriage; but unlawful indulgence weakens the power of resistance to temptation and hardens the conscience to sin. In spite, therefore, of this practical relaxation of the canons, we see the old troubles of the relations between spiritual directors and their fair penitents continue to vex the pious. As we have seen with the less delicate matter of the female companions of the clergy, the councils of modern times are not likely to be outspoken with regard to such a subject, but the frequency with which they reiterate commands that the confessions of women shall not be heard, save in case of infirmity, except in church; that when heard elsewhere it shall always be with open doors, and that in church the confessional shall be in a spot publicly visible, with a grating between the confessor and his penitent; that before and after sunset the lamps shall always be lighted, with other similar precautions, shows that the risk is fully recognized and requires constant watchfulness.¹⁶²³ Helsen, in fact, alludes to the scandals of the confessional as a cause of its avoidance by the faithful and as contributing powerfully to

the growth of religious indifference;¹⁶²⁴ and that these scandals exist is not a mere matter of conjecture or inference. If it were so, there would be no need for reiterating the prohibitions against the absolution by confessors of their fair partners in guilt, which is still occasionally found to be necessary by modern councils;¹⁶²⁵ nor would Pius IX. in 1866 have felt himself obliged to declare that the power granted to bishops to absolve in cases reserved to the Pope shall not in future extend to offences reserved for papal absolution by Benedict XIV.'s Bull "Sacramentum Pœnitentiæ." In fact, the crime of "solicitation" must have become notoriously frequent before the Congregation of the Inquisition of Rome could have felt impelled, in 1867, to put forth an Instruction addressed to all archbishops, bishops, and ordinaries, complaining that the constitutions on the subject did not receive proper attention, and that in some places abuses had crept in, both as to requiring penitents to denounce guilty confessors, and as to the punishing of confessors guilty of solicitation. It therefore urged the officials everywhere to greater vigor in investigating such offences and gave a summary of the practice of the Inquisition in regard to these matters, supervision over which, it will be remembered, was confided to the Holy Office by the Bulls of Pius IV. and Gregory XVI. From this it appears that when such a denunciation is received, it is the custom of the Inquisition to order the accused to be watched, and not to prosecute him unless he is the subject of three separate accusations. When this number has been reached, a special court is convened whose business it is to examine whether there may not be some special enmity on the part of the accusers. Failing this, the accused is then examined under oath, care being taken not to reveal the names of the accusers nor to violate the seal of the confessional. If the transgressor confesses or is convicted, he is deprived forever of the faculty of hearing confessions and must abjure the heresy implied in his crime; but the severer punishments decreed by Gregory XV. of degradation from holy orders and delivery to the secular arm are not to be inflicted. Those who voluntarily confess without being denounced, even though they may subsequently be denounced, are allowed to escape with a suitable penance and are ordered merely not to hear subsequently the confessions of those whom they have solicited; confession after denunciation, but before trial, also diminishes the penalty. The utmost secrecy is enjoined on all concerned, who are to be sworn to silence, and so great a stress is laid on this that even priests are required to take the oath on the Gospels. The accuser is not to be asked

whether she consented to the solicitation, and if she voluntarily makes such a statement it is not to be entered in the proceedings of the case. After the trial is finished, moreover, the whole is to be consigned to oblivion.¹⁶²⁶ In view of this nervous anxiety for secrecy, and the tenderness manifested throughout to the offender, it is surely not uncharitable to conclude that scandal is more feared than sin in these matters.

Possibly the abuses of the confessional may be less frequent now than they were in the seventeenth and eighteenth centuries, yet it is evident that they are still quite prevalent enough to require a much more efficient system of repression than they are at all likely to receive. It is true that the questions put to the penitent by the confessor are divested of the extremity of brutal coarseness prescribed by Bishop Burckhardt, but they are still sufficiently suggestive to be revolting to the pure-minded, and dangerous in no small degree to those who are likely to lapse.¹⁶²⁷

What in reality is the extent of these abuses can only be a subject of conjecture. Their very nature causes them to be scrupulously concealed not only by the principals, but by those who may incidentally find themselves wronged, and the church itself exerts all its influence to shield the guilty and suppress the scandal. How powerfully and how unscrupulously its influence is exerted to this end may be judged from a few examples. In 1817, at Availles, in France, the sacristan complained to the mayor that his daughter was received every night by the curé, to the scandal of the people. The mayor thus invited entered the priest's house suddenly one night and found the girl in dishabille, hidden in a corner. He drew up an official statement of the facts and forwarded it to the authorities, and the response to this was his summary dismissal from office on the ground of having violated the domicil of the curé and increased the scandal.¹⁶²⁸ More recent than this is the notorious case of the Abbé Mingrat, who while curé of Saint-Opre, near Grenoble, got into trouble by seducing one of his penitents, but was saved from prosecution and transferred to Saint-Quentin. Here he established relations with a devout young married woman, which ended in his cutting her in pieces with his pocket-knife and throwing the fragments into the river Isère. Even yet no action would have been taken had not the mayor of the place insisted, but Mingrat was enabled to escape to Savoy, where he was provided for as a persecuted saint.¹⁶²⁹ Similarly, in

1877, the Abbé Debra, condemned at Liège in default, for no less than thirty-two offences, was, after proper seclusion in a convent, given a parish in Luxembourg by the Bishop of Namur.¹⁶³⁰ In the case of the Abbé Mallet, which occurred in 1861, the church was unable to save the culprit from punishment, but did what it could to conceal his crimes from the faithful. As a canon of Cambrai, he seduced three young Jewish girls and procured their confinement in convents under pretext of laboring for their conversion. One of his victims lost her reason in consequence of her sufferings, and the court of Douay condemned him to six years at hard labor—a sentence which was announced by an orthodox journal thus—“M. le chanoine Mallet de Cambrai, accusé de détournement de *mineurs* pour cause de prosélytisme religieux a été condamné à six ans de reclusion”—where the skilful use of the masculine “mineurs” and the characterization of his offence as religious proselytism elevate the worst of criminals into a martyr for the faith.¹⁶³¹ It is quite within the bounds of probability that, as such a martyr, he may, since the expiration of his sentence, have been enjoying, in some cure of souls, the opportunity of repeating his missionary experiments.

It is evident from these various causes that the criminal records can give only the barest suggestion as to the extent of crimes thus committed in secret by a class shielded by influences so powerful. The records of the *ministère de la justice*, moreover, are not in France open to the public, and the only mode of obtaining even an approximate idea of the number of prosecutions in these cases is to gather them from the journals in which they chance to appear as items of news. An attempt to effect this has been made by Dr. Wahu, and though, from the nature of the case, necessarily imperfect, it affords some interesting and suggestive statistics. His list extends from the beginning of 1861 to April, 1879, and is thus tabulated:—

1861	3 cases.
1862	2 ”
1863	1 ”
1864	1 ”
1866	2 ”
1867	3 ”
1868	3 ”
1869	3 ”

1872	10	”
1873	6	”
1875	5	”
1876	1	”
1877	16	”
1878	35	”
1879(Jan. to April)	19	”

In all 110 cases, of which nearly one-half were brethren connected with educational institutions, referred to above.

The earlier years of this list must be necessarily imperfect, and, indeed, M. Charles Sauvestre has given details of nine cases occurring in schools in 1861, [1632](#) all which have escaped Dr. Wahu, but, even making allowance for the impossibility of hunting up all the fugitive records of the past, the increase during recent years is not to be regarded as indicating an increase of immorality. It rather proves how powerful were the forces protecting the church and repressing publicity under the Second Empire. The absence of cases in 1870-1 is probably attributable to the preoccupations of the Franco-Prussian War and its consequent troubles. While the presidency of M. Thiers, in 1872, yielded 10 cases, the reactionary government of Marshal MacMahon showed but 12 cases in four years. After the fall of MacMahon the number rapidly increases, the first four months of 1879 affording no less than 19 cases. Whether, since then, this rate of progression has been maintained I have no means of knowing, but it is to be hoped that the breaking up of the unauthorized orders, and the increased vigilance of the authorities, aided by an aroused public sentiment, have led to a decrease in the dismal record. One deplorable feature of many of these cases is the large number of victims frequently represented in a single prosecution, and that the perpetrator had often been afforded the opportunity of continuing his crimes in successive situations. Thus, in the affair of the Abbé Debra, at Liège, in 1877, there were 32 offences charged against him; and, of those occurring in the single year 1878, frère Marien was condemned for no less than 299, frère Mélisse, at Saint-Brice, for 50, frère Climène at Candé, Mazé, and Martigné-Ferchaud, for 25, and frère Adulphe at Guipry, Saint-Meloir-des-Ondes, and Pleurtuit, for 67.

It would be a libel on human nature to assert that this catalogue of sin does not represent more than an average of wickedness, and the responsibility for the existence of so shocking a condition of morality must, at least in part, be attributed to the rule of celibacy, for there is nothing in the status of the church in France to attract to it those who seek merely a career of sloth and self-indulgence. The income of the parish priest in France only averages about 1100 francs per annum, and his position, in a vast majority of cases, is wholly insecure, being dependent altogether upon the pleasure of his bishop, who can dismiss him at any moment and thus deprive him of all means of livelihood. In 1866, out of a total of 33,707 priests in service, only 3715 held preferment of which they could not be thus deprived at the whim of their superiors.¹⁶³³ A profession so poorly rewarded, subjected to discipline nominally so severe, and held under such a tenure, can scarce be expected to draw to its ranks men of character and position; and in fact, the Bishop of Poitiers, in 1877, made in a pastoral letter the humiliating avowal that the better and more intelligent classes as a rule avoided the church, which was compelled to find its recruits among the children of peasants and laborers. This is confirmed by a work entitled “Le grand péril de l’église de France,” issued in 1879 by the Abbé Bougaud, Vicar-General of Bishop Dupanloup of Orléans, by which it appears that the districts which furnish the most recruits are those which are most ignorant, and that, as education increases, the willingness to enter the church diminishes. Moreover, not only is this the case, but even the numbers of the secular clergy, necessary for the ministrations of religion, are deficient. In his own diocese of Orléans there were 180 priests lacking, and in that of Troyes there were 100 parishes without curés; and though the want of qualified ministers was daily increasing, the pupils in the seminaries were diminishing, and it seemed impossible to fill the void.¹⁶³⁴ While some allowance must of course be made for the character of the material thus pressed into service, this fact only increases the responsibility of those who persist in subjecting youths fitted neither by nature nor training to the tremendous strain of enforced celibacy in a career which surrounds them with the most dangerous temptations.

Irrespective of questions of morality, the rule of celibacy in modern society is harmful to the state in proportion as it contributes to the aggrandizement of those who enforce it. A sacerdotal caste, divested of the natural ties of family and of the world, with interests in many respects antagonistic to the communities in which its members reside, with aims which, from the nature of the case, must be for the temporal advancement of its class, is apt to prove a dangerous element in the body politic, and the true interests of religion, as well as of humanity, are almost as likely to receive injury as benefit at its hands, especially when it is armed with the measureless power of confession and absolution, and is held in strict subjection to a hierarchy. Such a caste would seem to be the inevitable consequence of compulsory celibacy in an ecclesiastical organization such as that of the Catholic church, and the hierarchy based upon it can scarce fail to become the enemy of human advancement, so long as the priest continues to share the imperfections of our common nature. How little the aims of that hierarchy have changed with the lapse of ages may be seen in the pretensions which it still advances, as of old, to subject the temporal sovereignty of princes and peoples to the absolute domination of the spiritual power. The temper of Innocent III. and Boniface VIII. is still the leading influence in its policy, and the opportunity alone is wanting for it to revive in the nineteenth century the all-pervading tyranny which it exercised in the thirteenth. Even the separation of church and state is condemned as a heresy, and as the state is denied the privilege of defining the limits of its own authority, and as the right of the church to use force is asserted, it would be difficult to set bounds to the empire which is its rightful heritage, and of which it is deprived by the irreligious tendencies of the age. [1635](#)

Yet, in spite of this antagonism to the spirit of modern society and civilization, it would be futile to anticipate the downfall of the church, or even any marked modification in its general organization or teaching. It arose out of a necessity in human development. With all its aberrations, it has been, perhaps, the most efficacious of agencies for the improvement and civilization of man, and it will not disappear or undergo any essential change until the necessity for its existence shall have passed away in the elevation of mankind. The human race is not yet prepared for independence in religious and moral thought, and the masses in many lands will long

require to be controlled with the awful authority claimed for an infallible church, and will find inexpressible comfort in that implicit faith which throws upon another the burden of sin and the responsibility of salvation. The church thus is doing its work, and has its work to do. We may, indeed, look forward hopefully to the time when the diffusion of education and the growth of intelligence will enable man to throw off the trammels which still are requisite to his well-being and well-doing, and will seek and obey his Creator without an intermediary, but that time is yet far off, and until it comes Latin Christianity has a mission from which it cannot be spared.

NOTE.

A Catholic reviewer of my first edition has assured me that I am in error in assuming clerical celibacy to be a point of faith in his church. To use his own words—"The writer is mistaken when he calls the celibacy of the clergy a point of faith. It never was more than a point of discipline, as is keeping the fasts and other commandments of the church, which may be modified by the same authority which prescribed them." That it may, even as a point of faith, be abrogated by the same authority which defined it, I do not doubt, for everything is possible to a General Council guided by an infallible Pope; that it may now be occasionally represented and even treated as a point of discipline, I think quite possible and shall not undertake to dispute, seeing that the Greek discipline is tolerated in that portion of the Greek church which admits the supremacy of Rome,¹⁶³⁶ but that the council of Trent intended to make it a point of faith and did so make it is susceptible of the plainest demonstration. Any one who will read the Tridentine canons (ante, pp. 536-7) will see that their form is purely doctrinal and not disciplinary. If this be questioned, I may refer to Chr. Lupus, whose orthodoxy and accuracy in such matters no good Catholic can doubt, and who informs us, what indeed is self-evident, that the council of Trent classified its anathemas of faith as canons, and its regulations of discipline as decrees of reformation—"Sacrosancta Tridentina synodo fidei anathematismos, canones; morum autem regulas appellet decreta reformationis" (App. ad Synod. Chalced. Art. I.—Opp. II. 248), and the anathemas on the subject will be found classed under the title "Doctrina de Sacramento Matrimonii," followed by disciplinary regulations under the rubric "Decretum de Reformatione Matrimonii." The form of the canons in fact tells its own story. The dread anathema, the final and highest condemnation of the church ("Anathema est æternæ mortis damnatio et non nisi pro mortali debet imponi crimine et illi qui aliter non potuerit corrigi"—Grat. Decret. P. II. Caus. XI. Q. iii. c. 41) is directed, not against him who actually marries, but against those who assert that all may marry who have not the gift of chastity; and the same condemnation is pronounced on those who hold that marriage is preferable to celibacy. It is therefore

treated purely as a matter of belief, the mere discussion of which is practical heresy. This was the form adopted by the council throughout in defining points of faith, as, for instance, in treating of Original Sin, which no one will pretend to be a matter of discipline—"Si quis per Jesu Christi Domini nostri gratiam quæ in baptismo confertur, reatum originalis peccati remitti negat ... anathema sit" (Sess. v. de Peccat. Orig. c. 5). Any one believing in the validity of priestly marriage is therefore not merely a contemner of a point of discipline but a heretic, and it is simply a libel on the good fathers of Trent to assert that they would anathematize as worthy of perpetual perdition a simple theoretical opinion on a matter of discipline.

Their intentions, moreover, as to this, are rendered indisputable by the answer of Pius V. in 1561, just before the final meeting of the Council, to the demand of Charles IX. for the concession of the cup to the laity. The pontiff states that he had considered that point and the marriage of the clergy to be matters of law, and therefore capable of alteration by due authority, but that, on expressing this opinion in the last conclave, he had been stigmatized as a Lutheran (Le Plat, Monument. Concil. Trident. IV. 734). This is confirmed by the remarks of Fra Paolo on the canon which pronounces the anathema on those who deny that a non-consummated marriage is dissolved by the vow of either spouse (Sess. XXIV. de Sacram. Matrim. c. vi.), where he alludes to the surprise caused by making it a point of faith—"Nel sesto anathematismo del Matrimonio restarono molti ammirati che fosse posto per articolo di fede" (Ist. del Concil. Trident. Lib. VIII.—Ed. Helmstadt. II. 382).

The same view continued long to be upheld as orthodox. It would be difficult to find a work published under auspices more authoritative than Andreas Forster's "*De Cœlibatu Clericorum Dissertatio*," a thesis publicly read in the University of Dillingen in 1782, printed by authority, and dedicated to Pius VI. At that time there were serious efforts making, in the bosom of the church itself, to overthrow the rule of celibacy, and there was no hesitation on the part of the ecclesiastical rulers to avow the full purport of the Tridentine canons. Forster accordingly does not scruple to declare the truth as to the orthodox doctrine, nor was exception taken to his assertion by the authorities whose imprimatur the volume bears. The condemnation of those, he says, who rashly assert that marriage can be contracted by those in orders or bound by solemn vows of chastity is a dogma of faith, while the

definition that virginity is better than matrimony is a dogma of morals —“Pro certo nos tenemus et ab omnibus Catholicis tenendum esse firmiter adserimus, Ecclesiam in laudato consilio recte omnino definiisse ... melius esse ac beatius manere in virginitate aut cœlibatu quam jungi matrimonio. Recte porro damnasse eos qui matrimonium a clericis in SS. Ordinibus constitutis, vel a regularibus castitatem solemniter professis, valide posse contrahi temere adsererent. Et hoc ultimum ad Dogma Fidei, illud prius ad Dogma Morum proculdubio pertinet” (op. cit. § xxxi. Dilingæ, 1782). In full accordance with this was the line of argument adopted by the advocates of the church in 1831, when it became necessary to overrule the decision which had authorized the marriage of the priest Dumonteil. They represented that to permit the civil marriage of a priest was, in fact, to persecute the church, because “qui veut une religion la veut avec ses dogmes, et la chasteté du prêtre est un de ceux de l’église Catholique” (Bouhier de l’Écluse, de l’État du Prêtre en France, p. 31).

I do not doubt that the peculiar dialectics by which Bishop Dupanloup explained away all that was shocking in the Syllabus of December, 1864 (La Convention et l’Encyclique, Paris, 1865), might make out a tolerably fair line of argument to prove that the Tridentine fathers did not do what they meant to do. In the subtle insincerity which pervades the formulas of the Latin church, allowing either side of a question to be affirmed as opportunity serves, the formulas of Trent constitute no exception. Thus if the rule of celibacy were to be abrogated, I presume that it could be readily accomplished by doing away with the vow of chastity and assuming that the administering of that vow is merely a matter of discipline. The papal power to dispense from vows is likewise too well established to be called in question, as was shown by the decision of the council of Trent on that very matter. The Latin church, in fact, has ample resources to enable it to adopt any line of policy that its rulers may consider adapted to the exigencies of the present or of the future; and if it should, at any time, consider sacerdotal and cenobitic celibacy undesirable, I am perfectly willing to concede that it would find no difficulty in setting aside or eluding the Tridentine anathemas; yet none the less would those anathemas remain to show us what was the position which it occupied in the sixteenth century. Meanwhile it may be suggested to the orthodox who regard celibacy as merely disciplinary that the church holds both marriage and ordination to be

sacraments, and that a definition that the two are incompatible and a decision as to which of the two must give way to the other can hardly in the nature of things, or by any rational use of language, be regarded as merely a matter of discipline. Those, indeed, who are inclined to take such view, may well bear in mind the fate of Panzini, who, regarding celibacy as a point of discipline, was condemned, in 1860, by the Roman Inquisition to twelve years' incarceration for merely writing an essay, which never was printed, arguing in favor of its impolicy.

INDEX.

Abbey lands, disposition of in Germany, [434](#), [437](#), [439](#)
 in England, [454](#), [482](#)
 in Scotland, [508](#)
 confiscated in France, [589](#)
 in Italy, [609](#)-10

Abbo, St., of Fleury, his martyrdom, [153](#)

Abbot of Langdon, case of, [451](#)
 of Crossed-Friars, case of, [457](#)
 of Walden, his marriage, [463](#)

Abbots, their marriage, in Hungary, [401](#)
 execution of English, [457](#)

Abelard, his description of monachism, [264](#)
 his marriage, [269](#)
 his "Sic et Non," [316](#)
 his answer to Heloise, [348](#)
 on abuse of confessional, [350](#)

Abingdon, Abbey of, [167](#)

Absalom of Scania, [252](#)

Absolution, purchasable, in Manichæism, [44](#)
 marketable value of, in Rome, [356](#), [428](#)
 mutual, of guilty priests, [428](#)
 by partner in guilt, [346](#), [575](#)-7, [633](#)

Abstinence from women in pagan priesthood, [49](#)

Abstinentes, heresy of, [33](#)

Abuse of confessional (see *Confessional*).

Abyssinian church, customs of, [92](#)

Accomplice, immunity of, [291](#)

Acephali, [109](#), [115](#)

Adalbero of Metz ordains sons of priests, [154](#)

Adam de la Halle on Alexander IV., [334](#)

Adam de Marisco, his labors, [292](#)

Adela of Flanders, seeks to enforce celibacy, [260](#)

Adela of Flanders, miraculous cure of, [404](#)

Adelaide of Savoy, her interposition asked, [203](#)

Adolph of Nassau, Archb. of Mainz, [412](#)

Adorateurs de Jésus, [613](#)

Adrian I. asserts the morality of his clergy, [135](#)

Adrian VI., his views on priestly marriage, [422](#)
 reproaches Diet of Nürnberg, [424](#)
 on Luther's abrogation of celibacy, [432](#)

Adulphe, frère, case of, [637](#)

Adulterous wives of priests to be put away, [39](#)
 of Huguenot pastors, [498](#)

Adultery, clerical, habitual, [247](#)
 immunity for, [447](#)
 toleration of, in Mexico, [565](#)
 less objectionable than marriage, [627](#)

Ælfric, St., of Canterbury, his canons, [172](#)

Æneas Sylvius (see *Pius II.*).

Africa, celibacy urged on, [66](#)
 introduction of celibacy in, [73](#)
 immorality in, [81](#)
 married bishops in, [89](#)
 Donatist monks in, [107](#)

Agapetæ, scandals of, [41](#), [50](#), [54](#), [78](#)
 forbidden by Council of Elvira, [50](#)
 by Council of Ancyra, [54](#)
 by Council of Nicæa, [54](#)
 by Emp. Honorius, [55](#)

Agde, Council of, in 506, [80](#)

Age, minimum, for vows in early church, [100](#), [105](#)
 under Council of Trent, [587](#)
 in France, [585](#)
 in Tuscany, [587](#)
 under Pius IX., [611](#)
 for ordination under Council of Trent, [624](#)
 for resident women, [626](#)

Agen, Manichæism in 1100, [207](#)

Agnes, Empress, deprived of regency, [201](#)

Agrippa, Cornelius, on the clergy, [415](#)
 on licenses to sin, [428](#)
 on character of Roman prelates, [429](#)

Agudi, Father, case of, [607](#)

Ain-Traz, Synod of, in 1835, [91](#)

Aix, Council of, in 1850, [626](#)

Aix-la-Chapelle, proportion of clergy in, [631](#)
 Council of, in 817, [138](#)
 in 836, [137](#)

Alain de l'Isle on clerical morals, [321](#)
 on Waldenses, [374](#)

Alberic, Cardinal, and the heretics, [370](#)

Alberic of Marsico, his crimes, [153](#)

Alberic of Ostia, Legate to England, [281](#)

Albero of Liège permits priestly marriage, [247](#)

Albero of Mercke, heresy of, [196](#)

Albero of Verdun, his efforts at reform, [264](#)

Albert II. (Emp.) fines concubinary priests, [396](#)

Albert of Bavaria asks for clerical marriage, [531](#), [539](#)

Albert of Brandenburg embraces Lutheranism, [366](#)
 founds kingdom of Prussia, [434](#)

Albert of Hamburg on chastity, [181](#)
his measures of reform, [189](#)

Albert of Mainz seeks to restrain priestly marriage, [419](#)
his proposed marriage, [434](#)

Albigenses, heresy of, [207](#)
attacked by St. Bernard, [331](#)
their tenets, [367](#)

Alby, extent of heresy in, [370](#)
Council of, in 1850, [626](#)

Alcobaça, Abbot of, head of Order of St. Michael, [365](#)

Alcuin on disorders of Saxon nunneries, [165](#)

Aldebert of Le Mans, licentiousness of, [264](#)

Aldhelm, St., on virginity, [162](#)

Alemanni, unchastity of, [118](#)

Alexander II. seeks archbishopric of Milan, [209](#)
his election to Papacy, [200](#)
his estimate of Damiani, [186](#)
suppresses the Liber Gomorrh., [188](#)
he enforces the reform, [202](#)
his discouragement, [204](#)
he protects the Jews, [205](#)
his two missions to Milan, [213](#)
he authorizes war against marriage, [215](#)
he sends legation to Milan, [217](#)
his efforts in Spain, [303](#)
his letter to William the Conqueror, [272](#)
his death, [206](#)
enforcement of celibacy attributed to him, [225](#)

Alexander III. on married canons, [270](#)
his efforts in England, [281](#)
his endeavors at reform, [319](#), [321](#)
he inclines to priestly marriage, [325](#)
he confirms Order of St. James, [364](#)

on hereditary transmission, [516](#)

Alexander IV., his reforms, [333](#)
on corruption of laity by priesthood, [350](#)

Alexander VI., his character, [345](#)
he grants marriage to Portuguese orders, [365](#)
his patience with Savonarola, [386](#)
he reforms the Benedictines, [403](#)

Alexander VII. defines solicitation, [575](#), [576](#)

Alexandria, disorderly monachism in, [106](#)

Alfonso the Wise on origin of celibacy, [28](#)
forbids priestly marriage, [308](#)

Alfonso VI. (Castile) asks for a legate, [304](#)

Alfonso VIII. of Leon, [306](#)

Alfonso I. (Portugal) founds orders of Avis and St. Michael, [365](#)

Alfonso I. (Naples) collects tax on concubines, [399](#)

Alfred on chastity of nuns, [166](#)

Allocution Acerbissimum, [609](#)

Alphonso Liguori, St., on clerical corruption, [587](#)

Altmann of Passau, his mission to Constance, [229](#)
his enforcement of celibacy, [230](#)

Alva, Duke of, enforces reception of Council of Trent, [553](#)

Alvarez Pelayo, on Spanish clergy, [311](#)

Amalfi (see *Melfi*).

Amandus of Maestricht, case of, [126](#)

Amandus, papal legate to Spain, [304](#)

Amboise, edict of, in 1562, [499](#)

Ambrose, St., admits disregard of celibacy, [67](#)
condemns Jovinian, [69](#)

priestly marriage attributed to him, [250](#)

Ambrose of Camaldoli, [393](#)

America, Spanish church in, [563](#)-66
(See, also, *United States* and *Canada*.)

Ammonius Saccas, [39](#)

Ammonius, St., his fortitude, [188](#)

Anabaptists, the, [438](#)

Anaclet, antipope, enforces celibacy, [342](#)

Anastasius (Emp.), revolts against, [107](#)

Anathema, nature of, [640](#)
for disbelief in celibacy, [536](#)

Ancarano, his opinion as to priests' concubines, [339](#)

Anchorite, estimate of chastity of, [348](#)

Ancyra, Council of, in 314, regulates priestly marriage, [51](#)
forbids agapetæ, [54](#)
on vows of celibacy, [97](#)

Andrea of Vallombrosa on Milanese clergy, [210](#)

Andreas of Lunden on concubines, [197](#)

Andrew of Tarentum, case of, [123](#)

Angelric of Vasnau, case of, [142](#)

Angers, clergy of, their demoralization, [394](#)

Anglican bishops, regulations for their marriage, [489](#)

Anglican clergy, popular contempt for, [476](#)
restrictions on their marriage, [489](#)
flexibility of their faith, [490](#)
evil influences on their marriage, [494](#)
their position, [497](#)

Anglican Church, the, [444](#)-497
Queen Elizabeth's estimate of, [491](#)

Anglican priests, manual of confessional for, [634](#)
Anglican ritual, marriage service in, [476](#)
Anglo-Irish church, disorders of, [298](#)
Anglo-Saxon church, celibacy enforced, [162](#)
disorders of, in 10th century, [147](#), [167](#)
Angoulême, case occurring in, [269](#)
Anjou, Council of, in 453, [79](#)
in 1262, 1291, 1312, [332](#), [350](#)
Ann of Cleves, her marriage, [470](#)
Annates, increase of, by the Popes, [412](#)
withdrawn by Henry VIII., [450](#)
Anomalies, ethical, [269](#), [347](#), [627](#)
Anse, Council of, in 990, [156](#)
Anselm, St., on sacraments of sinful priests, [195](#)
his reforms, [273](#)
his death in 1109, [278](#)
Anselmo di Badagio (see *Alexander II.*).
Anselmo, St., of Lucca, his persecution, [222](#)
Antealtaria, Abbot of, [308](#)
Anthony, St., retires to the desert, [97](#)
Anthony of Ephesus, crimes of, [85](#)
Anthony of Prague enforces Tridentine canons, [534](#)
heresy encouraged by corruption, [556](#)
Antichrist, anticipation of, [394](#)
Antidicomarianitarians, heresy of, [69](#)
Antioch, Council of, [42](#)
Antisacerdotalism of Vigilantius, [71](#)
mediæval, [370](#) sqq.

Antoin, married canons of, [270](#)

Antonelli, Cardinal, imprisons Panzini, [602](#)
his daughter, [631](#)

Antwerp, Synod of, in 1610, [557](#), [562](#)

Apel, John, punished for marrying, [424](#)

Apocalypsis Goliae, [284](#)

Apollinaris of Rhodes, [118](#)

Apollo, celibacy of priestess of, [50](#)

Apology for Confession of Augsburg, [436](#)

Apostle, Junia the, [60](#)

Apostolical canons on digami, [37](#)
permit priestly marriage, [39](#)
marriage honored in, [48](#)

Apostolical constitutions on digami, [37](#)
permit priestly marriage, [39](#)
order of widows in, [42](#)
honors rendered to marriage, [48](#)

Apostolical Letter, Multiplices inter, [602](#)

Apostoloci, heresy of, [97](#)

Apotactici, heresy of, [33](#), [44](#)

Appeals discountenanced at Trent, [538](#)

Appeals to Rome, immunity caused by, [139](#)
their effect, [322](#)
forbidden by Alex. IV., [334](#)

Ap Rice and the Abbot of Walden, [463](#)

Aquinas, St. Thomas, on origin of celibacy, [28](#)
on sacraments of sinful priests, [195](#)
on vows, [321](#)
on absolution by guilty confessors, [575](#)

Arab monachism, nature of, [102](#)
Arabic version of Nicene canons, [53](#)
Aranda, Council of, in 1473, [400](#)
Archembald of Sens, his evil courses, [153](#)
Arechis of Beneventum, law of, [127](#)
Aretino, abuses in church of, [147](#)
Arfastus of Thetford, [272](#)
Arialdo, St., seeks archbishopric of Milan, [209](#)
 raises question of priestly marriage, [211](#)
 is excommunicated, [212](#)
 procures excom. of Archbp. Guido, [216](#)
 his martyrdom, [217](#)
Arianism, celibacy under, [120](#)
Arith, Wm., on clerical disorders, [501](#)
Arles, Council of, in 314, [51](#)
 in 441, [69](#), [79](#), [105](#)
Armagh, hereditary archbishops of, [296](#)
Armagh, Council of, in 1854, [626](#)
Armenia, hereditary priesthood in, [90](#)
Armenia, Council of, in 1362, [90](#)
Arnald of Brescia, heresy of, [195](#)
Arnaldo de Peralta, his reforms, [309](#)
Arnolfo, a reformer, fate of, [341](#)
Arran, Regent, favors the Reformation, [507](#)
Artemis, virgins for priestesses of, [50](#)
Arthur of Brittany a canon of Tours, [307](#)
Articles, Thirty-nine, clerical marriage in the, [490](#)
Articles, Forty-two, clerical marriage in the, [475](#), [490](#)

Articles, the Six, enacted by Parliament, [467](#)
heretics burnt under them, [458](#)
their modification, [471](#)
repealed in 1547, [472](#)
popular call for their restoration, [475](#)
revived under Mary, [478](#)
repealed under Elizabeth, [487](#)

Artois, Council of, in 1025, [369](#)

Arundel of Canterbury on Lollardry, [381](#)

Asceticism, unknown to early Jews, [21](#)
in Brahmanism and Buddhism, [23](#)
in Essenism, [25](#)
not encouraged by Christ, [25](#)
tendency to, in Ebionism, [27](#)
tendencies of St. Paul, [31](#)

Asceticism, commencement of, in the church, [31](#)
repressed by the church, [32](#)
of heretics, [33](#)
stimulated by the heresies, [34](#)
and by influence of Buddhism, [35](#)
growth of, in the church, [36](#)
stimulated by neo-Platonism, [39](#)
and by Manichæism, [45](#)
combated by the church, [48](#)
overcomes all resistance, [49](#)
still voluntary in 4th century, [58](#)
becomes obligatory, [59](#)
reproved by Council of Gangra, [61](#)
voluntary in the East, [84](#)
severity of, in Armenia, [90](#)
of monachism, [97](#)
instances in 11th century, [227](#)
spreads among the laity, [241](#)
of Irish church, [160](#), [296](#)
neglect of, in Spain, [307](#)

mediaeval, [347](#), [359](#)
of military orders, [362](#)
of Albigenses, [368](#)
of Fraticelli, [377](#)
of Wickliffe, [381](#)
of Hussites, [383](#)
exclusion of women from monasteries, [404](#)
influence of, on solicitation, [574](#)
in modern times, [612](#)

Aschaffenburg, Council of, in 1292, [196](#)

Ashera, worship of, [21](#)

Assembly, National, secularizes church property, [589](#)
legalizes clerical marriage, [590](#)

Assermentés priests, [590](#)

Assideans, [24](#)

Astorga, Bishop of, on Council of Trent, [539](#)

Athanasius on priestly marriage, [58](#)

Athenagoras on morals of Christians, [33](#)
on second marriage, [36](#)
on asceticism, [103](#)

Athravas, hereditary functions of, [23](#)

Atto of Vercelli on female ministration, [60](#)
on dilapidation of property, [146](#)
on married priests, [152](#)

Attys, worship of, [50](#)

Augsburg, the Confession of, [436](#)

Augsburg, Council of, in 10th century, [55](#)
in 952, [149](#)
in 1548, [514](#), [525](#)
in 1567, [561](#)
in 1610, [549](#)

Augsburg, Diet of, in 1518, [416](#)
in 1530, [435](#)
in 1548, [441](#), [524](#)
in 1551 and 1555, [443](#)

Augsburg Formula of Reformation, [524](#), [526](#), [528](#)

Augustin of Canterbury, [161](#)

Augustin, St., on Jewish high-priesthood, [22](#)
on marriage, [47](#), [314](#)
on marriage of nuns, [104](#)
on Manichæism, [46](#)
his testimony as to Jovinian, [70](#)
he enforces celibacy, [74](#)
on temporary nature of vows, [97](#)
on wandering monks, [102](#)
on danger of female residence, [138](#)

Augustin, Rule of, adopted by military orders, [362](#), [363](#)

Augustinians of Gloucester, suppression of, [457](#)
of Nürnberg, secularization of, [425](#)
of Saxony, revolution of, [420](#)

Aunts, residence of, forbidden, [138](#), [628](#)

Aurelius, St., enforces celibacy, [73](#)

Auricular confession, commencement of, [566](#)

Ausch, Congrès fraternel in 1793, [593](#)

Ausch, Council of, in 1851, [626](#)

Australia, Council of, in 1844, [633](#)

Austrasia, reforms in, [130](#)

Austria, enforcement of celibacy in, [251](#)
efforts for clerical marriage in, [601](#)
civil marriage in, [605](#)
monastic orders in 1859, [615](#)

Autun, Council of, in 690, [80](#)

Auvergne, Council of, in 535, [80](#)

Auxerre, Council of, in 578, [80](#)
persecution of celibacy in, [593](#)

Availles, case occurring at, in 1817, [635](#)

Avellano, monks of, [186](#)

Avesbury, nunnery of, its morals, [282](#)

d'Avesnes, case of the, [323](#)

Avignon, residence of popes in, [342](#)
Council of, in 1594, [560](#)
in 1725 and 1849, [626](#)

Avila, his casuistry, [578](#)

Avis, order of, [365](#)

Avranches, Council of, in 1172, [319](#)

Ayenbite of Inwyt, [348](#)

Azzo, Archbishop of Milan, [218](#)

Babueus grants marriage in orders, [92](#)

Babueus excommunicates Barsuma, [92](#)

Bachelors ineligible to episcopate, [38](#)

Badegisilus of Le Mans, [118](#)

Baden, petitions for clerical marriage in 1828, [601](#)

Bahia, Council of, in 1707, [626](#)

Baithusin, hereditary priesthood of, [22](#)

Bale, Bishop, his writings, [473](#), [480](#)

Bâle, Council of, [395](#)
reconciles the Hussites, [382](#)
clerical marriage suggested in, [406](#)
canons of, affirmed in Scotland, 1559, [505](#)
revived in Germany, [528](#)

Balsamon on legislation of Greek church, [87](#)

Baltimore, Councils of, in 1829, 1843, [633](#)
in 1840, [627](#)
in 1866, [627](#), [633](#)

Bamburg, troubles of, in 1431, [395](#)
Synod of, in 1491, [196](#)
morals of clergy in 1505, [431](#)

Bandello, Bishop, his novels, [430](#)

Bangor, morals of clergy of, [463](#), [494](#)

Baptism by immoral priests invalid, [162](#)
repetition of, refused, [163](#)

Baptisma igneum, [438](#)

Barbarians, the, and the Church, [117](#)-25
superior morality of, [82](#)

Bardsey, Culdees of, [301](#)

Bari, military bishops of, [180](#)

Barnabite college at Monza, case of, [621](#)

Baronius on Gregory of Nazianzum, [58](#)

Barrios, Bish. of Santafé, regulations of, [563](#)

Barsuma of Nisibi, case of, [92](#)

Barsumas, Abbot, at Ephesus, [107](#)

Bartelot, John, case of, [457](#)

Bartholomew of Bracara, his demand for reforms, [534](#)

Basil, St., his strictness, [84](#)

Basilica of Leo the Philosopher, [87](#)

Basilides, heresy of, [34](#)

Bastardy increased by celibacy, [629](#), [631](#)

Bathing, promiscuous, [41](#), [42](#)

Baumgartner, Aug., his speech at Trent, [518](#)

Bavaria, marriage of nuns forbidden, in 772, [135](#)
demand for clerical marriage in, [442](#), [531](#), [536](#)
clerical marriage after C. of Trent, [554](#)
immorality of clergy, 16th cent., [548](#)
abuse of confessional in, [570](#)
proportion of clergy in, [631](#)

Beards, clergy insist on wearing, [553](#)

Beatoun, Cardinal, his immorality, [503](#)
his proclamation of 1540, [511](#)

Bede on Aaron's linen breeches, [65](#)
on the rule of celibacy, [161](#)

Beggars' Petition, the, [453](#)

Beggars, legislation against, under Henry VIII., [455](#)

Begghards, the, [376](#)

Beguines, condemnation of, [377](#)

Belgium, monastic orders in, [615](#)
clerical attacks on public schools, [623](#)
clerical morality in, [629](#)

Bellarmino on story of Paphnutius, [57](#)
his defence of celibacy, [581](#)

Beltis, [21](#)

Benchor, oratory of, [295](#)

Benedict VIII. enforces celibacy, [178](#)

Benedict IX., character of, [179](#)
he sells the papacy, [184](#)
is reinstated as pope, [187](#)

Benedict XIV. approves of Savonarola, [386](#)
on abuse of confessional, [577](#)

Benedict of Camin on clerical morals, [401](#)

Benedict the Levite on residence of female relations, [138](#)

Benedict, St., of Nursia, [111](#)

his example followed, [246](#)

salvation procured by him, [335](#)

rule of, becomes universal, [131](#)

supplemented by Louis-le-Débonnaire, [136](#)

adopted by military orders, [362](#)

Benedictine order, saints in, [113](#)

its services to civilization, [357](#)

its morals in 15th century, [403](#)

Benefices held by tenure of chastity, [311](#)

bestowal of, on servants, [515](#)

hereditary (see *Hereditary Transmission*).

Benefit of clergy for married priests, [291](#)

extended to concubines, [339](#)

Benevento, Council of, in 1693, [574](#), [626](#)

Benzo, his account of Hildebrand, [197](#)

his use of the term Paterins, [212](#)

on Nicolitism, [238](#)

Berenger of Tours on priestly marriage, [256](#)

Bernald of Constance on Paphnutius, [56](#)

Bernard, St., reforms effected by him, [265](#)

miracle wrought by him, [266](#)

on barbarism of Ireland, [296](#)

his hymn on St. Malachi, [297](#)

on dissolution of priestly marriage, [316](#)

his defence of marriage, [331](#)

on influence of papal court, [346](#)

on the Albigenses, [368](#)

on the Petrobrusians, [370](#)

on Manichæan abhorrence of marriage, [545](#)

Bernard of Font-Cauld on Waldenses, [374](#)

Bernard of Tiron preaches reform, [258](#)
Bernhardi, Bart., marries in 1521, [419](#)
Bernhardus Baptisatus, his sermon, [391](#)
Bertrand, St., of Comminges, miracle by, [269](#)
Berytus, Synod of, in 448, [82](#)
Besançon, Synod of, in 1707, [562](#), [576](#)
Beverege, John, burnt, [510](#)
Beza, Theod., on marriage in Anglican church, [489](#)
Bèze, charter to monastery of, [265](#)
Bhagavad-gita, the, [92](#)
Bhikshus and Bhikshunis, Bhuddist, [94](#)
Bigamy of priests in 10th century, [167](#)
 in 11th century, [172](#), [181](#)
 in 12th century, [247](#)
 caused by celibacy, [278](#)
 penalties of, for clerical marriage, [598](#)
Bigorre, legalized concubinage in, [197](#)
Bilio, Card., author of the Syllabus, [604](#)
Bisantio of Bari, [180](#)
Bishops, marriage of (see *Marriage*).
Bishops to be husbands of one wife, [38](#)
 number of digamous, [37](#), [159](#)
 their morality in Coptic church, [93](#)
 witnesses required for their chastity, [131](#)
 they are nominated by the Merovingians, [118](#)
 are held responsible for diocesan property, [123](#)
 their power increased by institution of canons, [135](#)
 wer-gild for their godsons, [162](#)
 their military character in 10th century, [153](#)
 in 11th century, [180](#)

they are attacked by Damiani, [198](#)
their lukewarmness as to celibacy, [233](#)
penalties for tolerating priestly marriage, [242](#)
their wives rank as countesses, [259](#)
their children eligible to ordination, [298](#)
female intercourse forbidden to them, [303](#)
they sell licenses to sin, [389](#), [432](#), [559](#)
concubinary, punishment for, at Trent, [538](#)
opposing clerical marriage exiled, [594](#)
their restoration of celibacy in France, [595](#)
Irish, poverty of, [297](#)

Bishops, Anglican, regulation for marriage of, [489](#)
position of their wives, [495](#)

Bishoprics, hereditary, in Brittany, [259](#)
in Ireland, [296](#)
created from English monasteries, [459](#)

Blacater, Bishop, persecutes Lollards, [501](#)

Bloodletting of monks, [138](#)

Bohemia, priestly marriage in 11th century, [243](#)
enforcement of celibacy in, [246](#)
marriage in post-Tridentine church, [554](#)
Waldensian refugees in, [375](#)
Begghards in, [377](#)
Hussitism in, [383](#)
Orthodox Brethren in, [385](#)

Bois-le-duc, Synod of, in 1571, [562](#)
in 1612, [558](#)

Boisset, permission to marry refused to him, [597](#)

Bologna, Cossa as Legate in, [344](#)

Bologna, Council of Trent transferred to, [442](#), [521](#)

Bonaventura, St., on absolution, [346](#)
on abuse of confessional, [350](#)
on dilapidation of church property, [407](#)

Boniface IX., legalized simony under, [398](#)
he relaxes the rule of Fulda, [404](#)

Boniface of Canterbury, [290](#)

Boniface of Lausanne, his fate, [341](#)

Boniface, St., his scruples as to Frankish clergy, [128](#)
he reforms the Frankish clergy, [131](#)
attempts on his life, [133](#)
on infanticide caused by celibacy, [137](#)
on Anglo-Saxon church, [163](#)
he founds Abbey of Fulda, [404](#)

Bonizo of Piacenza, martyrdom of, [222](#)

Bonn, Old Catholic Synod of, in 1878, [604](#)

Bonner, Bishop, deprives married priests, [478](#)
his visitation of London, [479](#)
scandals concerning him, [486](#)

Bonosus, his heresy, [68](#)

Books of canon law burned by Luther, [418](#)

Bora, Catharine von, marries Luther, [425](#)

Bordeaux, Councils of, in 1583, 1624, [560](#)
in 1850, [626](#)

Borgia, Roderic, his character, [345](#)

Boseteha, wife of Cosmo of Prague, [245](#)

Bosnia, heretics of, [369](#)

Bossaert d'Avesnes, case of, [323](#)

Bossu d'Arras, Le, on Alex. IV., [334](#)

Bossuet, his probable marriage, [582](#)

Botoa, monastery of, [306](#)

Bougaud, Abbé, on dangers to the church, [638](#)

Bourges, Council of, in 1031, [179](#)

in 1528, [515](#)

in 1584, [560](#)

in 1800, [595](#)

in 1850, [626](#)

Bourne, Sir John, complains of Chapter of Worcester, [491](#)
his quarrel with Sandys, [496](#)

Boussard, Geoffroi, on origin of celibacy, [29](#)
on dispensing power, [407](#)

Boutaric on droit de marquette, [355](#)

Bouthors on droit de marquette, [355](#)

Boyer on droit de marquette, [354](#)

Bracton on position of concubines, [197](#)

Braga, Councils of, in 563, 572, and 675, [80](#)

Brahmanism, asceticism of, [23](#)

Branda, Cardinal, his reforms, [392](#)

Brazil, suppression of monasteries in, [609](#)

Brecislas of Bohemia, [243](#)

Bremen, Council of, in 1266, [253](#)

Breslau, Council of, in 1279, [252](#)

in 1416, [338](#)

in 1580, [555](#)

Brethren of the Cross, [385](#)

Brethren, Orthodox, [385](#)

Bribes to avert suppression of monasteries, [454](#)

Brice, St., case of, [77](#)

Bridfrith, his life of St. Dunstan, [166](#)

Bristol, see of, created, [460](#)

Britanny, church of, [120](#)

priestly marriage in, [259](#)
heresies in, [371](#)

British clergy, their corruption, [159](#)
church, discipline of, [160](#)
in 9th century, [171](#)

Brixen, schismatic Synod of, in 1080, [238](#)
orthodox Synod, in 1603, [562](#)

Brothels kept by prelates, [429](#)
frequented by priests, [586](#)

de Brou-Laurière, case of, [600](#)

Bruges, Synod of, in 1693, [562](#)

Brunhilda, appeal of Gregory I. to, [124](#)

Bruno of Toul created pope, [187](#)

Bruno St., reforms effected by, [265](#)
founds the Grande Chartreuse, [404](#)

Brunswick, chapter of, in 1476, [400](#)

Brut y Tywysogion on married clergy, [171](#)

Bruys, Pierre de, his heresy, [370](#)

Bucer insists on priestly marriage, [441](#)

Buddha, Sankhyism of, [23](#)
his legend, [35](#)
death of his mother, [68](#)

Buddhism, its influence on Christianity, [34](#)
its connection with Manichæism, [44](#)
its system of monachism, [94](#)

Bulgaria, Manichæism transmitted through, [207](#)

Bulgarian church, rules for, [141](#)

Bull, Papal, Exsurge Domine, [418](#)
Ad canonum, [516](#)
Cum primum, [548](#)

Horrendum, [548](#)
Ad Romanum, [549](#)
Quæ ordini, [549](#)
Postquam verus, [550](#)
Quemadmodum sollicitus, [552](#)
Cum sicut nuper, [568](#)
Universi Dominici gregis, [569](#)
Etiam pastoralis, [577](#)
Sacramentum pœnitentiæ, [577](#)
Auctorem fidei, [587](#)
suppressing English monasteries, [447](#)-9
excommunicating Henry VIII., [455](#)
defining Cardinal Pole's powers, [478](#)
reconciling England, [483](#)

Burckhardt of Worms on celibacy, [178](#)
his instructions to confessors, [566](#)

Bure, Idelette de, Calvin's wife, [498](#)

Burghley endeavors to restrain Q. Elizabeth, [492](#)

Burgos, Council of, in 1080, [304](#)

Burial, Christian denied to married priests, [192](#)

Burial, Christian, denied to concubines, [310](#)

Burmah, number of monks in, [95](#)

Burnet, Bishop, on the English monasteries, [451](#)
on the Beggars' Petition, [453](#)

Burning alive threatened for married priests, in 1524, [423](#)

Butler, John, on marriage of clergy, [466](#)

Cabassut on Apostolical canons, [49](#)

Cadalus, his election as antipope, [200](#)
his cause embraced by Milan, [215](#)

Cadam, Transaction of, [439](#)

Cadière, Catherine, case of, [579](#)

Cæsarea, Synod of, about [360](#), [61](#)

Cæsarius, St., of Arles, Rule of, [112](#)
on marriage of nuns, [111](#)

Cæsarius of Heisterbach on influence of priesthood, [346](#)

Cain Patraic, the, [159](#)
two classes of bishops in, [295](#)

Caisho, priest of, his case, [485](#)

Calabria, celibacy enforced in, [76](#), [320](#)

Calatrava, knights of, marriage permitted to, [364](#)

Calini, Archbp., his reports from Trent, [534](#)

Calixtins, the, [383](#)

Calixtus I., his laxity, [37](#)

Calixtus II., on Manichæism, [208](#)
he enforces celibacy in France, [267](#)
his consequent unpopularity, [268](#)
he declares marriage dissolved by orders, [313](#)
on abuse of confessional, [567](#)

Calixtus, his work on celibacy, [583](#)

Calne, Council of, in 978, [170](#)

Calvi, Donato, on religious orders, [96](#)

Calvin, his confession of faith, [498](#)
his marriage, [498](#)

Calvinism, [498](#)-513
its discipline, [498](#)
clerical marriage a matter of course, [498](#), [510](#)

Calvinist converts, marriage of, [499](#)

Camaldoli, monks of, [183](#)
their demoralization, [393](#)

Cambrai, Manichæism in 1025, [207](#)

Hildebrandine doctrine punished, [236](#)
Council of, in 1025, [208](#)
 in 1550, [528](#)
 in 1565 and 1567, [559](#)
 in 1631, [560](#)
 in 1661, [576](#)

Camin, Synods of, in 1454 and 1492, [402](#)

Campeggi, Card., persecutes married priests, [423](#)
 heresy justified by clerical immorality, [430](#)
 assists in suppression of English monasteries, [449](#)

Canada, duration of vows in, [613](#)
 modern Councils of, [626-7](#), [633](#)

Canonical age for resident women, [626](#)

Canons, Apostolical (see *Apostolical*).

Canons regular, institution of, [134](#)
 of Fécamp, expulsion of, [155](#)
 discussion concerning their marriage, [263](#)

Canons are forced to cloistered life, [265](#)
 marriage of, in 12th century, [270](#)
 hereditary in England, [272](#)
 replace Culdees in Scotland, [300](#)
 laxity of their rule, [307](#)
 of Compostella, reform of, [305](#)
 demoralization of, in 15th cent., [399](#)
 their unclerical habits, Germany, 14th century, [340](#)
 of Brunswick in 1476, their morals, [401](#)
 of Lausanne, their demoralization, [429](#)
 of Munster, refuse to be reformed, [548](#)
 of Milan, their contest with St. Charles Borromeo, [550](#)

Canterbury, Christ Church, in 11th cent. [171](#)
 number of married clergy in, [489](#)

“Capacities” given to ejected monks, [455](#)

Capito, Wolf. Fab., persecutes married priests, [420](#)

is married, [423](#)

Caprara, Legate, on married priests, [596](#)

Capua, Council of, in 389, [68](#)

Caraffa, Card., on need of reformation, [522](#)

Cardinalate, childlessness a prerequisite, [550](#)

Cardinal's college, founded by Wolsey, [447](#)

Carinthia, enforcement of celibacy in, [233](#)

Carloman seeks to reform the church, [128](#), [130](#)
enters Monte Casino, [134](#)

Carlostadt advocates priestly marriage, [419](#)
favors the Anabaptists, [438](#)

Carlovingian alliance with the church, [128](#)
civilization, its disappearance, [143](#)

Carmelites, corruption of, [353](#), [587](#)

Carnarvonshire, complaints of priests in, [400](#)

Carpocrates, heresy of, [34](#)

Carracioli, Bishop of Troyes, married, [499](#)

Carterius, Bishop, case of, [37](#)

Carthage, immorality in, [82](#)
Council of, in 348, [100](#)
in 390, [73](#)
in 397, [73](#)
in 398, [49](#), [73](#)
in 401, [74](#)
in 411, [107](#)
in 419, [74](#)

Carthusian asceticism, [359](#)

Carthusians of London resist Henry VIII., [450](#)

Cashel, Archb. of, on children of bishops, [297](#)

Cashel, Council of, in 1171, [298](#)
in 1853, [633](#)

Cassander, G., on clerical marriage, [542](#)

Cassianus, heresy of, [33](#)

Cassianus, St., Rule of, [101](#), [110](#)

Cassiodorus relates the story of Paphnutius, [57](#)

Caste, priestly, dangers of creating, [225](#)

Castel-Fuerte, Marques del, [565](#)

Castration of Galli, [50](#)

Castro, Alfonso de, heresy justified by clerical wickedness, [430](#)

Casuistry applied to solicitation, [571](#), [575](#), [576](#)
its effect on morality, [578](#)

Catarini, Card., and the Vatican Council, [604](#)

Catarino, Ambrogio, [418](#)

Cathari, heresy of, [207](#), [367](#)

Catharine von Bora, [425](#)

Catherine de Medicis on reception of Council of Trent, [546](#)
her efforts for clerical marriage, [559](#)

Catholicism, observances borrowed from Buddhism, [35](#)
from Mazdeism, [44](#)

Catholics, persecution of, in Scotland, [512](#)

Caumont, case of married priest of, [258](#)

Cavour introduces civil marriage in Sardinia, [605](#)
suppresses monasteries in Sardinia, [609](#)

Céle-dé, or Culdee, [299](#)

Celestin III. on vows and marriage, [321](#)
on hereditary priesthood, [326](#)

Celestin (pseudo) on abuse of confessional, [567](#)

Celibacy, its influence on history, [19](#)
its post-apostolical origin admitted, [27](#)
not favored in Apost. Constitutions, [48](#)
its enforcement by Council of Elvira in 305, [50](#)
not required by Council of Nicæa, [53](#)
its first enforcement, [64](#)
opposition to it, [67](#)
attributed to Gregory I., [124](#)
and to Gregory VII., [224](#)
its necessity to the church, [193](#), [225](#)
deprecated by Alexander III., [325](#)
its final enforcement, [330](#)
its results, [331](#)-361
Wickliffe's opinion of it, [379](#)
condemned by Lollards, [381](#)
maintained by Hussites, [384](#)
not observed by Orthodox Brethren, [385](#)
nor by Brethren of the Cross, [385](#)
evils attributed to, [394](#)
is deprecated in 15th century, [405](#)
is denounced by Luther, [418](#)
is the main obstacle to reunion, [544](#)
is made a point of faith in 1528, [515](#)
and by Council of Trent, [536](#), [640](#)
and by the Inquisition, [603](#)
attacked in the 18th century, [582](#)
persecuted in French Revolution, [593](#)
reëstablished after the Terror, [595](#)
modern policy of the church, [602](#)-4
is likely to be maintained in the future, [607](#), [608](#)
modern influence of, [638](#)

Celibates, disabilities of, removed, [99](#)

Celsus of Armagh, [296](#)

Celtic churches, original purity of, [295](#)

Cenobitic life, commencement of, [97](#)

Ceres, celibacy of priestesses of, [50](#)

Cereza, father, of Monza, [621](#)

Cesarini, Cardinal, on revolt against church, [395](#)

Ceylon, number of monks in, [95](#)

Chalcedon, Council of, in 451, [107](#)

Chalons, Council of, in 649, [80](#)
in 813, [567](#)
in 893, [142](#)

Chuntries, English, absorption of, [459](#)

Charibert, his laws on forcible marriage, [120](#)

Charity of the monastic orders, [358](#)

Charity in modern church, [612](#), [616](#)
religious organization of, in France, [615](#)

Charlemagne, his efforts to reform the church, [134](#), [135](#)

Charles, Archduke, asks for clerical marriage, [544](#)

Charles Borromeo, St., his reforms, [550-2](#)

Charles-le-Chauve on appellate jurisdiction of Rome, [139](#)

Charles the Lame imposes fines on concubinage, [339](#)

Charles Martel oppresses the church, [129](#)
his punishment, [130](#)

Charles IV. (Emp.) urges reform, [340](#)

Charles V. (Emp.), his policy in 1530, [435](#)
he temporizes with the Reformation, [439](#), [440](#)
he issues the Interim, [441](#)
he demands dispensations for married priests, [442](#)
he accepts the Reformation, [443](#)
his demands for Council of Trent, [519](#)
he objects to its transfer to Bologna, [521](#)
on the reforms of Paul III., [522](#)
he seeks to reform the German church, [524](#)

Charles VII. (France) fines concubinary priests, [396](#)

Charles IX. (France) asks for clerical marriage, [533](#), [641](#)

Charles de Valois intervenes in Flanders, [323](#)

Charter-House, monks of, their fate, [450](#)

Charter of Oswalde's Law, [169](#)

Charters of 1814 and 1830, [600](#)

Chartier, Alain, on condition of church, [394](#)

Chartreuse, strictness of rules of, [404](#)

Chassidim, [24](#)

Chastity, estimate of, by Cassianus, [102](#)
feudal tenure by, [153](#), [311](#)
gift of, to be obtained by seeking, [331](#), [530](#), [536](#)
gift of, assured by Council of Trent, [624](#)
sacrifice of, [21](#)
vows of, their introduction, [41](#)
their perversion, [127](#)
required for holy orders, [179](#)
in military orders, [362](#)
maintained in the Six Articles, [468](#)
papal dispensation for, [535](#), [642](#)
never dispensed for, [611](#)
prelates at Trent sworn to support, [533](#)

Châtillon, Cardinal de, his marriage, [499](#)

Chaucer on priest's children, [338](#)
on corrupting influence of priests, [351](#)

Chavard, Abbé, case of, [601](#)
on age of ordination, [624](#)

Chelsea, Council of, in 787, [164](#)

Chepstow, Abbess of, accuses Dr. London, [457](#)

Cheregato, Legate, on priestly immunity, [424](#)

Chertsey, monastery of, reformed, [169](#)

Chester, see of, created, [460](#)

Childebert, his laws on forcible marriage, [120](#)

Child-bearing, importance of, among the Jews, [21](#)

Child-bearing, St. Paul's estimate of, [31](#)

Children cause ineligibility to episcopate, [87](#)
and to cardinalate, [550](#)

Children of ecclesiastics (see *Hereditary transmission*).

in tenth century, [145](#), [146](#), [148](#), [149](#)

ordained by Adalbero of Metz, [154](#)

disabilities of, in 11th century, [179](#)

yet openly provided for, [181](#)

ineligibility of, [184](#)

refused preferment by Henry III., [187](#)

admitted by Alexander II., [205](#)

declared infamous in 1266, [253](#)

openly acknowledged in Normandy, [258](#)

have claims on paternal benefice, [265](#)

disallowed in England in 1102, [274](#)

their ordination permitted in 1107, [276](#)

refused in 1144, [281](#)

universal in 13th century, [285](#)

forbidden in 1237, [288](#)

universal in Spain, [304](#), [305](#), [311](#), [400](#)

avored by dispensing power, [321](#)

forbidden by Celestin III., [326](#)

rendered heritable by Fred. II., [335](#)

fruitless efforts to prevent it, [327](#)-8

legislation of Clement VII., [616](#)

papal dispensation for, [517](#)

regulations in Scotland, 1559, [505](#)

of Council of Trent, [538](#)

of Pius V., [548](#)

of Synod of Augsburg, 1610, [549](#)

- of Salzburg, 1616, [554](#)
- of Osnabruck in 1625, [558](#)
- of apostate priests in France, [500](#)
- of priests by slaves emancipated, [563](#)
- of knights of Spanish orders, [364](#)
- of Anglican priests legitimated in 1552, [476](#)
 - legitimated under Elizabeth, [488](#)
 - held illegitimate, [494](#), [496](#)
- China, development of Buddhism in, [95](#)
- Christ, his toleration of Essenism, [25](#)
- Christ Church College founded by Wolsey, [447](#)
- Christians, puritanism of early, [32](#)
- Christians, heretics of Bosnia, [369](#)
- Christianity, purifying influence of, [354](#)
- Chrodegang of Metz, Rule of, [134](#)
- Chrysostom, St. John, on virginity, [85](#)
- Church, morals of (see *Morals*).
 - the Ante-Nicene, [31](#)
 - the Latin, its influence, [17](#)
 - its temporalities endangered by marriage, [63](#), [123](#)
 - extension of its jurisdiction, [139](#)
 - growth of its independence, [143](#)
 - it is a protector of the weak, [182](#)
 - necessity of celibacy to it, [193](#)
 - its responsibility, [355](#)
 - enmity against it in 15th cent., [394](#), [395](#)
 - its growth under Pius IX., [608](#)
 - its superiority to the State, [618](#)
 - its modern claims, [639](#)
 - lands, question of, in Reformation, [437](#), [439](#)
 - fate of, in England, [454](#)
- Church lands, fate of, in Scotland, [508](#)
 - in France, [589](#)

in Italy, [609](#)

Churches, confessions only to be heard in, [574](#)

Churching of wives of priests forbidden, [595](#)

Cincinnati, Council of, in 1861, [627](#)

Cipriani, Gius., on clerical morality, [632](#)

Circester, Synod of, in 1289, [350](#)

Circumcelliones, [107](#), [109](#)

Cirita, Juan, St., case of, [111](#)

Cistercian order, relaxation of, [403](#)

Cistercian Rule adopted by knights of Calatrava and Avis, [364](#), [365](#)

Cities, monks not allowed to enter, [108](#)

Civil marriage, [605](#)-7
practical control of church over, [607](#)

Civil power invoked to remove concubines, [559](#), [560](#)

Civilization promoted by monachism, [113](#), [357](#)

Clarembald, Abbot, his morals, [281](#)

Clares, barefooted, in Paris, [612](#)

Claude of Evreux essays reform, [560](#)

Claude of Macon essays reform, [515](#)

Claustrals, Franciscan, [402](#)

Clemanges on condition of church, [343](#), [388](#), [389](#), [390](#), [394](#)

Clement II. appointed by Henry III., [184](#)
endeavors to suppress simony, [185](#)

Clement III. on self-mutilation, [40](#)
on children of bishops, [297](#)
enforces the canons, [326](#)

Clement IV. enforces celibacy in Austria, [251](#)
and in Denmark, [253](#)

Clement VII. maintains the claims of the church, [435](#)
his bulls to Wolsey, [448](#)
on hereditary transmission, [516](#)

Clement III. (Antipope) on concubinage, [238](#)
his death in 1100, [242](#)

Clement of Alexandria on heresies, [33](#)
on the Virgin, [68](#)

Clement, Bishop, case of, [132](#)

Clément of Versailles on clerical marriage, [594](#)

Cléonique, frère, case of, [620](#)

Clergy worse than laity, [168](#), [265](#), [282](#), [428-31](#), [530](#), [552](#)
it corrupts the laity, [340](#), [353](#), [388](#), [504](#), [518](#), [532](#), [560](#), [629](#)

Clergy, Anglican, position of, [497](#)
French, become antagonistic to Revolution, [589](#)
their present position, [637](#)
Spanish, their rudeness, [302](#)
resistance of, to celibacy, [202](#), [212](#), [222](#), [228](#), [231](#)
statistics of, in modern times, [588](#), [593](#), [630](#)

Clermont, Council of, in 1095, [263](#)
in 1130, [314](#)

Cleves, Duke of, demands clerical marriage, [531](#)

Climène, frère, case of, [637](#)

Clotair I., laws on forcible marriage, [120](#)

Clotair II. on monastic excesses, [115](#)

Clovesho, Council of, in 747, [164](#)

Cnut the Great, his laws, [173](#)

Cochin China, abuse of confessional in, [578](#)

Cochlæus, John, on Confession of Augsburg, [542](#)

Code civile, clerical marriage under, [597](#)

Cœur de Jésus, society of, [613](#)

Coklaw, Thomas, marriage of, [509](#)

Colet, John, his work, [445](#)

Colloquy of Poissy in 1561, [559](#)

Cologne, Council of, in 1146, [208](#)
in 1260, [338](#)
in 1306, [377](#)
in 1307 and 1310, [340](#)
in 1423, [393](#)
in 1527, [514](#)
in 1536, [518](#)
in 1548, [526](#)
in 1549, 1550, 1551, [527](#)
in 1651, [562](#)
in 1662, [558](#), [562](#)
in 1860, 1863, [627](#), [633](#)
Manichæism in 1146, [207](#)
condemnation of Lolhard in, [377](#)
clerical marriage forbidden in 1548, [530](#)
proportion of clergy in, [631](#)
Archbishop of, asks for clerical marriage, [539](#)

Coloman, King, enforces celibacy, [249](#)

Columba, St., his labors, [126](#)
his mission to Scotland, [160](#)

Comedians forbidden to perform in nunneries, [527](#)

Commendone, Legate, promises clerical marriage, [531](#)

Comminges, miracle occurring in, [269](#)

Communion, refusal of, in Belgium, [623](#)

Communion in both elements in early church, [44](#)
refused to laity, [45](#)
demanded by the Hussites, [384](#)
by Emperor Ferdinand, [530](#)

by Bavaria, [536](#)
by Charles IX., [641](#)
granted to Germany, [541](#)
withdrawn, [543](#)

Comparative merits of virginity and marriage, [46](#), [47](#), [318](#), [347](#)
settled by Council of Trent, [536](#), [641](#)

Compiègne, marriage of priests in, [270](#)

Compostella, Council of, in 1056, [303](#)
in 1113, [303](#), [306](#)
canons of, [302](#)
their reform, [305](#)

Compurgation, immunity gained by, [140](#)

Concordat of 1516 with France, [428](#)
of 1801, [595](#)
clerical marriage under it, [596](#)-98
monastic orders forbidden, [613](#)

Concubinage, punishment of, by Justinian, [87](#)
is worse than marriage in Milan, [210](#)
is more venial than marriage in orthodoxy, [349](#), [627](#)
is recognized as a necessity, [353](#), [389](#)
its punishment under the Six Articles, [468](#)
in Anglican Church, [494](#)
its recognition asked for, [527](#)
its punishment at Trent, [538](#)

Concubinage in the modern church, [626](#)-32
(See, also, *Licenses to Sin.*)

Concubinarians ineligible in Saxon Church, [162](#)
proportion of, among the clergy, [519](#)

Concubines of clergy in Spain, [121](#), [517](#)
priests compelled to keep them, [310](#), [388](#)
priests fined for not keeping them, [389](#)
they acquire legal position, [339](#)
they do not count in digamy, [349](#)

are liable to death under the Six Articles, [468](#)
are not punished at Trent, [539](#)
secular aid invoked for their removal, [559](#), [560](#)

Concubines, their position in middle ages, [196](#)

Condom, persecution of celibacy, [593](#)

Confessio Goliæ on celibacy, [290](#)

Confession of Augsburg, [436](#), [443](#)

Confession of Faith, Calvinistic, [498](#)

Confession not good against accomplice, [291](#)

Confession, auricular, commencement of, [566](#)
dispensation from, [428](#)

Confessional, abuse of, in middle ages, [311](#), [350](#), [352](#)
in Germany, 16th century, [432](#)
in nunneries, [523](#)
acknowledged at Trent, [534](#)
in post-Tridentine Church, [566](#)-80
in Italy, 18th century, [586](#), [588](#)
in modern times, [632](#)-7
testimony of Ernest Renan, [625](#)

Confessionals, regulations concerning, [574](#), [632](#)

Confessors, guilty, absolution by, [575](#)-7
protection accorded to them, [570](#), [633](#)

Confiscation of estates of married priests, [87](#)

Congregations, religious, subjected to the State, in 1760, [585](#)

Conjo, convent of S. Maria of, [307](#)

Conrad, King of Lombardy, [220](#)

Conrad, Legate, holds Council of Mainz, [337](#)

Conrad of Mainz on the Hussites, [384](#)

Conrad of Prague, the Hussite, [384](#)

Conrad of Wurtzburg on morals of clergy, [424](#), [431](#)

Consenza, Council of, in 1579, [553](#)

Consejo de la Suprema on solicitation, [569](#), [571](#)

Consilium de emendanda ecclesia, [516](#), [522](#), [549](#)
put into the Index, [523](#)

Constance, enforcement of celibacy in, [229](#)
assembly of, in 1094, [243](#)
Council of, in 1415, deposes John XXIII., [343](#)
its failure, [390](#)
Synod of, in 1567, [430](#), [562](#)
in 1609, [557](#), [562](#)
Bishop of, defends his clergy, [340](#)

Constance of Burgundy, her influence, [304](#)

Constantine assembles the C. of Nicæa, [52](#)
encourages monachism, [99](#)

Constantine Copronymus, persecution of monks by, [90](#)

Constantine (Pope) threatens Witiza, [121](#)

Constantine of St. Symphorian, [154](#)

Constantinople, Council of, in 381, [84](#)
in 400, [85](#)
in 680, [88](#)

Constitutions, Apostolical (see *Apostolical*).

Constitution of 1791, clerical marriage in, [591](#)

Contarini, Cardinal, on need of reformation, [522](#)
on evils of celibacy, [561](#)

Continence overbalanced by pride, [32](#)

Continence, vows of (see *Chastity*).

Convention, National, supports clerical marriage, [594](#)

Convents (see *Monachism*).

Converts from Catholicism, marriage of, [499](#), [500](#)

Convocation of 1547 approves of clerical marriage, [472](#)
of 1554 enforces celibacy, [480](#)
of 1557, its legislation, [485](#)

Coptic Church, customs of, [92](#)

Corella, affair of, [572](#)

Corruption of laity by clergy, [265](#), [350](#), [518](#), [548](#)

Cosmo of Prague, case of, [245](#)

Cossa, Balthazar, his crimes, [343](#)

Cotta, Landolfo, seeks archbishopric of Milan, [209](#)
is excommunicated, [212](#)
his life threatened, [213](#)
his death, [215](#)

Councils, revision of their proceedings at Rome, [628](#)
of France, in 1797 and 1800, [595](#)

Countesses, bishop's wives rank as, [259](#)

Cournand, Abbé, proposes clerical marriage, [590](#)
his marriage, [591](#)

Courtenay of Canterbury on Wickliffe, [379](#)

Courtesans in Rome, necessity for, [550](#)

Court of Augmentations, the, [454](#)

Courts, mixed, for married priests, [257](#)

Cowl, Luther's wearing of the, [421](#)

Cows as source of episcopal revenue, [297](#)

Cox, Bishop, on Q. Elizabeth's Injunctions, [492](#)

Cozza, Card., on abuse of confessional, [575](#)

Cranach, Lucas, his portraits of Catharine von Bora, [425](#)

Cranmer on immunity for adultery, [447](#)

intercedes for Thomas Patmore, [462](#)
urges priestly marriage on Henry VIII., [463](#)
opposes the Six Articles, [467](#)
his marriages, [469](#)
encourages priestly marriage, [472](#), [473](#)
prepares the Forty-two Articles, [475](#)
his children claimed as slaves, [190](#)

Creed of Piers Ploughman, [352](#)
on Carmelites, [353](#)
on sacerdotal powers, [355](#)
on Franciscans, [376](#)

Cremona, reform of priesthood in, [217](#)

Cromwell, bribes tendered to, [454](#), [460](#)
he favors priestly marriage, [463](#)
he mitigates the Six Articles, [470](#)
his fall, [471](#)

Crossed-Friars, case of Abbot of, [457](#)

Culdees, [299](#)
their disappearance, [300](#)

Cullagium (see *Licenses*).

Culm, Synod of, in 1745, [562](#)

Cumad espuc, or virgin bishop, [295](#)

Cunegunda, St., her asceticism, [176](#)

Cunha, Rod. à, on solicitation, [571](#)

Cunibert of Turin, laxity of, [203](#)

Cuno of Ratisbon, [184](#)

Cuthbert of Canterbury reforms Saxon Church, [164](#)

Cuthbert of London prohibits the Beggars' Petition, [453](#)

Cuyck, Bish., on corruption of Church, [557](#)

Cynog, Book of, priestly marriage in, [294](#)

Cyprian, St., on vows of continence, [41](#), [42](#)
on martyrdom and virginity, [46](#)

Cyril, St., his use of monachism, [106](#)

Cyrillus converts Bohemia, [244](#)

Dabralis of Spalatro, degradation of, [188](#)

Daimbert of Sens, his negligence, [263](#)

Dalmatia, priestly marriage in 10th century, [149](#)
in 11th century, [188](#)
relaxation of canons in, [204](#)
enforcement of celibacy in, [250](#)

Dalmatia, Synod of, in 1194, [250](#)

Damasus I. asserts sacerdotal celibacy, [64](#)
on marriage of nuns, [103](#)

Damasus II., his pontificate, [187](#)

Damhouder, Josse, on character of clergy, [557](#)

Damiani, St. Peter, his early career, [186](#)
his character, [193](#)
on troubles of abbots, [154](#)
he urges Clement II. to reform, [185](#)
and Leo IX., [188](#)
his Liber Gomorrhianus, [188](#)
is forced to leave his retreat in 1057, [192](#)
on sacraments of sinful priests, [195](#)
he stigmatizes wives of priests, [196](#)
he endeavors to reform the prelates, [198](#)
he confutes the Tuscan chaplains, [199](#)
on election of Cadalus, [200](#)
on heresy of sacerdotal marriage, [201](#)
his continued efforts, [202](#)
his motives and arguments, [204](#)
his mission to Milan, [213](#)

Damnation for dissidence on celibacy, [640](#)

Dampierre, case of the, [323](#)

Dancing mania, cause assigned to, [351](#)

Danes, effect of their incursions, [139](#)

Danes, Pierre, his repartee at Trent, [413](#)

Darius, Silvester, papal collector, [417](#)

Daughters (see *Children*).

Davanzati, Bishop, favors clerical marriage, [583](#)

Daviaux of Bordeaux prohibits clerical marriage, [597](#)

David I., his reforms, [300](#)

Dax, Council of, in 1585, [560](#)

Daylight, confessions only to be heard during, [574](#)

Deaconesses, ordination of, forbidden, [60](#)
their marriage punished, [96](#)

Deacons allowed to marry, [39](#)
their marriage forbidden, [86](#)

Deans of Friesland, [254](#)

Death penalty for marrying a nun, [100](#)
for marriage under Six Articles, [468](#)
for celibacy in 1793, [593](#)

Debra, Abbé, case of, [635](#), [637](#)

Decretals, False, on clerical chastity, [136](#)

Decretum Gratiani, compilation of, [317](#)
denies apostolic origin of celibacy, [28](#)

De la Croix, deputy, on unmarried priests, [592](#)

De la Sallé, Abbé, [617](#)

Demeter, worship of, in Athens, [50](#)

Democratic element in the Church, [226](#)

Denis, St., mistaken relics of, [217](#)

Denmark, position of concubines in, [197](#)
enforcement of celibacy in, [253](#)

Dens, Peter, on Italian morality, [631](#)

Denunciation, duty of, by seduced women, [576](#), [633](#)

Denunciations, Edict of, [569](#)

Desforges on clerical marriage, [582](#)

Desiderius of Monte Casino, [180](#)

Devonshire rebels demand the Six Articles, [469](#)

Devotees permitted to return to the world, [41](#), [97](#)

Diabolic possession of priests' wives, [235](#)

Diaconate, women admitted to, [60](#)

Diaz de Luco, on dissolution of marriage, [317](#)
on concubinage, [517](#)
on abuse of confessional, [568](#)

Diego Gelmirez, his reforms, [305](#)

Diet, German, complaints of, in 1510, [411](#)

Diet of Hungary, in 1498, [401](#)

Diether of Mainz, case of, [412](#)

Digami, ordination of, forbidden, [37](#), [86](#), [89](#), [123](#)
their prevalence in British Church, [159](#)
in 10th century, [148](#)
condemned by Council of Spalatro, [149](#)
ineligible in Anglo-Saxon Church, [162](#)
recognition of, in 11th century, [202](#)
not allowed in Milan, [210](#)
condemned in Hungary, [249](#)
condemned by some of the German reformers, [426](#)

Digamy, concubines do not count in, [349](#)
rule of, ridiculed by Luther, [418](#)

Dilapidation of church property, [123](#), [145](#), [147](#)

Dimitri of Dalmatia assumes the crown, [250](#)

Dingolfing, Council of, in 772, [135](#)

Dionysius of Corinth on asceticism, [34](#)

Dionysius, King, founds Order of Jesus Christ, [365](#)

Disabilities of married priests, [294](#)

Dispensations, papal, evil influence of, [397](#)
sale of, [321](#), [322](#), [345](#), [398](#), [516](#), [517](#), [522](#)
power of, debated, [407](#)
for unchastity, [131](#)
for marriage, sale of, [522](#)
for married priests, [442](#)
from confession, [428](#)
from vows of chastity, [535](#), [642](#)
refused by Pius IX., [611](#)
in favor of priests' children, [505](#), [516](#), [549](#)

Divorces of married priests in England, [470](#), [478](#)

Dogma, celibacy, a matter of, [641](#)

Döllinger and the Old Catholic movement, [604](#)

Dominicans, influence of, [375](#)
admitted to France in 1840, [614](#)

Donati, Girolamo, attempts to murder St. Charles, [551](#)

Donatist heresy condemned, [107](#)
revived by Theodore of Canterbury, [162](#)
by Nicholas II., [194](#)
by Gregory VII., [227](#)
by Innocent II., [246](#)
condemned by Lucius III., [195](#)
and by St. Anselm, [288](#)
revived by the heretics, [368](#), [374](#), [379](#), [383](#)

Döring on sale of indulgences, [397](#)

Dorothea of Denmark, marriage of, [434](#)

Dortmund, Council of, in 1005, [155](#)

Down, St. Malachi's episcopate of, [296](#)

Dracontius, case of, [58](#)

Dress, clerical, regulated at Constance, [391](#)

Drogo of Terouane persecutes Watten, [260](#)

Droit de marquette, [354](#)

Dualism in Manichæism, [43](#)
of the Albigenses, [208](#), [367](#)

Dublin, Councils of, in 1186 and 1217, [298](#)

Du Fail, Noël, on clerical corruption, [561](#)

Dumonteil, case of, [600](#), [641](#)

Dunbar, Bishop, his immorality, [503](#)

Dunstan, St., takes the vows, [166](#)
his miraculous preservation, [171](#)

Dupanloup, Bishop, on the Syllabus, [642](#)

Du Pin, Louis Ellies, on clerical marriage, [581](#)

Duprat, Cardinal, his efforts at reform, [515](#)

Durand, William, advocates clerical marriage, [405](#)

Durham, Council of, in 1220, [288](#)

Eadmer on results of celibacy, [278](#)

East Anglia, defence of monasteries in, [170](#)

Eastern church, divergence of, [83](#)
its rules as to celibacy, [86](#)
its monachism, [106](#)

Easter, different computations of, [161](#), [163](#)

Ebionim, or Poor Men, [27](#)
accused of immorality, [34](#)

Ebrard, his history of Watten, [260](#)

Ecclesiastical procedure, immunity caused by, [140](#)

Ecclesiastics, children of (see *Children*).
immorality of (see *Morals*).

Ecgberht of York, his Penitential, [163](#)

Eck, Dr., his conference with Melanchthon, [440](#)

Edgar the Pacific, penitence imposed on, [167](#)
his reformatory zeal, [169](#)

Edict of Denunciation, priestly marriage in, [536](#)
solicitation in, [569](#)

Edinburgh, Council of, in 1549, [504](#)
in 1559, [505](#)

Edith, Queen of Edward the Confessor, [175](#)

Edmund I. on immorality of priests, [166](#)

Education, monastic influence on, [358](#), [616](#)-21
secularization of, in France, [623](#)

Edward and Guthrun on immorality of clerks, [166](#)

Edward the Martyr supports Dunstan, [170](#)

Edward the Confessor, his virginity, [175](#)

Edward, Bishop of Scaren, [279](#)

Edward VI., his accession, [472](#)
his funeral services, [477](#)

Egara, Council of, in 614, [80](#)

Eggard of Sleswick, his fate, [402](#)

Eggs, punishment for eating, in Lent, [511](#)

Egypt, purity required of priests, [50](#)
neglect of celibacy in, [85](#)

Egyptian monachism, commencement of, [97](#)

Ejection of married priests, [594](#)

Elect, Manichæan, [46](#)

Election of popes limited to Roman clergy, [200](#)

Eleuchadio, Abbot of Fiano, [180](#)

Elfhære of Mercia supports the married priests, [170](#)

Elfritha, her intrigues against Edward, [170](#)

Elizabeth, Queen, her hesitation as to priestly marriage, [487](#)
her assent to it, [488](#)
her continued repugnance, [489](#), [493](#)
her insolence to Mrs. Parker, [491](#)
her Injunctions of Ipswich, [492](#)

Elna, Council of, in 1027, [303](#)

Elphege of Winchester and St. Dunstan, [166](#)

Elvira, Council of, in 305, on digami, [37](#)
celibacy introduced by, [50](#)
on morals of nuns, [99](#)

Emancipation of nuns in 1523, [425](#)

Emancipatore Cattolico, the, [606](#)

Embsen, Count of, promotes marriage of nuns, [435](#)

Embrun, Council of, in 1727, [626](#)

Emanuel, King, grants marriage to military orders, [365](#)

Emo of Wittewerum on priestly marriage, [254](#)

Empire, Roman, licentiousness under, [32](#)

Emser, Jerome, his epithalamium on Luther, [426](#)

Encratitians, heresy of, [33](#), [44](#)

Encyclical, papal, Mirari vos, [601](#)
Qui pluribus, [602](#)
Incredibili afflictamur, [609](#)
Neminem latet, [611](#)

Encyclicals of Leo XIII. on civil marriage, [605](#)

Enforcement of celibacy in 4th century, [67-82](#)

by Gregory I., [123](#)

in 8th century, [131](#)

attributed to Gregory VIII., [224](#)

difficulties attending it, [229](#)

in 12th century, [245](#)

in Bohemia, [246](#)

in Germany, [247](#)

in Hungary, [249](#)

in Poland, [251](#)

in Sweden, [252](#)

in Denmark, [253](#)

in France, [255](#)

in Normandy, [257](#)

in Flanders, [261](#)

by Calixtus II., [268](#)

in England, [273](#)

in Ireland, [296](#)

in Scotland, [300](#)

in Spain, [304](#)

by Innocent III., [327](#)

finally successful, [330](#)

by Henry VIII., [468](#)

by Queen Mary, [480](#)

by Council of Trent, [536](#)

after the Terror, [595](#)

Engelheim, Council of, in 948, [149](#)

England, disorders caused by Anglo-Saxon priests, [147](#)

Saxon period, [159](#)

celibacy at first enforced, [162](#)

introduction of marriage in 9th century, [166](#)

disorders in 10th century, [167](#)

reformation attempted, [168](#)

its failure, [172](#)

church under Cnut the Great, [174](#)

under Edward the Confessor, [176](#)
position of concubines in, [197](#)
heresy in 1166, [207](#)
enforcement of celibacy in, [271](#)
marriage still prevalent in 13th century, [285](#)
hereditary benefices, [272](#), [281](#), [282](#), [285](#)
excitement caused by introduction of celibacy, [289](#)
priestly marriage becomes obsolete, [291](#)
delay in enforcing the canons, [318](#), [320](#)
marriage of priests' children, [338](#)
Hali Meidenhad, [347](#)
Begghards in, [378](#)
Wickliffe and Lollardry, [379](#)
demoralization in 15th century, [394](#), [399](#)
restrictions on papal power in 1517, [417](#)
the reformation in, [444](#) sqq.
Dr. Geddes's modest apology, [584](#)
case of Shaw v. Starr and Kennedy, [611](#)
Council of Westminster in 1852, [626](#)

English bishops in Sweden, [278](#)
priests in Ireland, [298](#)

Enham, Council of, in 1009, [172](#)

Éon de l'Étoile, [371](#)

Epaone, Council of, in 513, [60](#)
in 517, [80](#)

Ephraem Syrus on Manichæism, [44](#)

Epiphanius on Ebionites, [27](#), [34](#)
his Manichæan tendencies, [48](#)
on agapetæ, [54](#)
on female ministration, [60](#)
on the Antidicomarianitarians, [69](#)
on non-observance of celibacy, [84](#)
on temporary nature of vows, [97](#)

Episcopissa, [152](#)

Epistolæ Obscurorum Virorum, [413](#), [414](#), [415](#)

Erasmus on religious immorality, [356](#)
his relation to the reformation, [414](#)
on indulgences, [417](#)
on priestly marriage, [432](#)
on abuse of confessional, [567](#)

Erchenbald on infanticide, [137](#)

Erfurt, Synod of, in 1074, [231](#)

Eriberto of Milan, his episcopate, [208](#)

Erlembaldo, St., popular chief of Milan, [209](#)
assumes leadership of Paterins, [215](#)
his death, [219](#)

Ermeland, Synod of, in 1497, [402](#)
in 1577, [562](#)

Ernest of Magdeburg, his cynicism, [398](#)

Erskine, Lord, characterized by Knox, [508](#)

Escobar, his casuistry, [578](#)

d'Espeisses, President, on Italian morals, [552](#)

d'Expense, Claude, on virginity of the Virgin, [69](#)
on clerical morality, [559](#)

Essenes, asceticism of, [25](#)

Ethelred the Unready, state of England under, [171](#)

Ethelwold of Winchester, his reforming zeal, [168](#)

Eucharist, modified by Manichæism, [44](#)

Eucherius, St., his vision, [130](#)

Eugenius II. on concubinage, [196](#)

Eugenius III. dissolves marriage of priests, [315](#)
convicts Éon de l'Étoile, [372](#)

Eugenius IV. permits marriage to Knights of Calatrava, [364](#)

orders Council of Bâle dissolved, [395](#)

Eulalius condemns Eustathius, [61](#)

Euphronius of Autun, [79](#)

Euphronius of Tours, [119](#)

Euron, Abbey of, its reform, [264](#)

Eusebius condemns priestly marriage, [51](#)

Eustathius, heresy of, [61](#)

Eutychianism of monastic order, [107](#)

Evangelical Doctor, Wickliffe the, [382](#)

Evenus of St. Melanius, [259](#)

Evreux, Synod of, in 1576, [560](#)

Excalceati, heresy of, [33](#)

Excommunication, effectiveness of, [134](#)

Exemptions conferred on ecclesiastics, [99](#)

Exeter, Bishop of, on children of priests, [286](#)
case of subdeacons of, [320](#)

Expilly on number of French clergy, [593](#)

Expulsion of monks in early times, [101](#)

Exuperius, St., favors Vigilantius, [71](#)

Fabre, Bishop, of Montreal, [613](#)

Fah-Hian, his account of Buddhist monachism, [95](#)

Faith, celibacy as a point of, [515](#), [536](#), [603](#), [640](#)
clerical marriage as a point of, [490](#)

False Decretals on clerical chastity, [136](#)

Faricius of Abingdon, case of, [227](#)

Fasting in penance, [160](#)

Fauchet of Bayeux on clerical marriage, [594](#)

Faustinus on separation of wives, [74](#)

Faustus the Manichæan, [46](#), [75](#)

Fécamp reformed by Richard the Fearless, [155](#)

Feini, civilization of, [295](#)

Felix of Nantes, case of, [119](#)

Fellows, University, celibacy of, [492](#)

Felony, priestly marriage is, in Six Articles, [468](#)

Ferdinand (Emp.) asks use of cup for Bohemia, [384](#)
demands a general Council in 1522, [424](#)
tolerates Protestantism, [439](#)
on German monasteries, [452](#)
on clerical immorality, [519](#), [529](#)
his demands suppressed at Council of Trent, [535](#)
asks for clerical marriage, [530-2](#), [539](#)

Ferdinand of Aragon supports Ximenes, [402](#)

Ferdinand IV. (Naples), his reforms, [583](#)
enacts civil marriage, [607](#)

Fermo, Council of, in 1726, [626](#)

Ferrers, Alex., case of, [502](#)

Ferry of Orleans, his murder, [334](#)

Ferry, Jules, on political influence of monachal education, [618](#)
enforces laws against unauthorized orders, [621](#)
his secularization of education, [623](#)

Feudal system, independence of, [182](#)
tenure by chastity, [153](#)

Fifteenth century, demoralization of, [388](#)

Fischer, Fred., punished for marrying, [424](#)

Fish, Simon, his Beggars' Petition, [453](#)

Flamen Dialis, second marriage forbidden to, [36](#)

Flanders, enforcement of celibacy in, [259](#)
case of Bossaert d'Avesnes, [323](#)
character of post-Tridentine church, [557](#)
troubles arising from solicitation, [576](#)

Florence, Synod of, in 1057, [191](#)
in 1573, [553](#)
congregation of bishops in 1787, [587](#)

Florentines reject their bishop in 1060, [195](#)

Fluviano, Antonio, Grand Master of St. John, [366](#)

Focaria, introduction of the term, [283](#)

Fontaneto, Council of, in 1058, on priestly marriage, [212](#)

Forcheim, Diet of, in 1077, [236](#)

Formal vows dissolve marriage, [321](#)

Formulas, insincerity of Latin, [642](#)

Forret, Thomas, burnt, [510](#)

Forster, Andreas, his defence of celibacy, [583](#)
on celibacy as a point of faith, [641](#)

Fortescue, Sir John, on priestly marriage, [318](#)

Fox of Winchester unable to restore discipline, [447](#)

France, celibacy first introduced in 384, [64](#)
difficulty in enforcing it, [76](#)
popular desire for it, [77](#)
constant legislation required, [79](#)
morals of, in 4th century, [81](#)
monasticism in 7th century, [115](#)
state of church under the Merovingians, [118](#)
in 8th century, [128](#)
in 9th century, [136](#)
in 10th century, [146](#), [152](#), [155](#)
Council of Bourges in 1031, [179](#)

council of Rheims in 1049, [189](#)
heresies in 11th and 12th centuries, [207](#), [367](#)-75
enforcement of celibacy in, [255](#)
morals of clergy in 12th century, [264](#)
persistence of priestly marriage, [270](#), [318](#), [319](#), [320](#)
efforts of Maurice de Sully, [322](#)
results of celibacy, [331](#)
demoralization in 15th cent., [394](#), [399](#)
heresy of Jean Laillier, [408](#)
Concordat of 1516, [428](#)
the Sorbonne refuses a conference with Melanchthon, [440](#)
condition of church in 16th cent., [515](#)
clerical marriage asked of Council of Trent, [533](#), [641](#)
reception of Council of Trent refused, [546](#)
character of post-Tridentine church, [559](#)
abuse of confessional, [570](#), [576](#)
case of la Cadière, [579](#)
question of marriage reopened in 18th century, [581](#)
corruption in 18th century, [585](#)
the church during the Revolution, [588](#)-95
National Council in 1797, [595](#)
clerical marriage under the Concordat, [596](#)-8
varying policy as to clerical marriage, [599](#)-601
monachism in modern times, [613](#)-6
education by monachism, [617](#)-20
reaction against monachism, [621](#)-3
morality of clergy in, [625](#)
modern councils held in, [626](#), [633](#)
prosecution of clerical offenders, [635](#)-6
position of clergy in, [637](#)

Francis, St., of Assisi, on obedience, [103](#)
his annual visits to Purgatory, [335](#)
his exaltation of poverty, [376](#)

Francis de Sales, St., on choice of confessor, [578](#)

Francis I. favors League of Schmalkalden, [438](#)
Melanchthon submits Articles to him, [440](#)

Franciscans, their corruption, [350](#), [352](#), [353](#), [376](#)
their influence, [375](#)
reformed by Ximenes, [402](#)
their resistance to Henry VIII., [451](#)
of Bavaria on abuse of confessional, [570](#)

Fraticelli, the, [376](#)

Frederic of Lorraine created pope, [192](#)

Frederic I. on sons of clergy, [326](#)
his visit to Fulda, [404](#)

Frederic II. on Milanese heresies, [211](#)
on children of ecclesiastics, [335](#)

Frederic of Saxony protects married priests, [419](#)
acts as sponsor to child of priest, [422](#)
still considers himself a Catholic, [423](#)

Frères de la Sainte-Croix, [617](#)-8

Frères des Écoles Chrétiennes, [617](#), [619](#)-20

Frérôts, the, [376](#)

Fressanges, Mdlle., case of, [600](#)

Freysingen, Council of, in 1440, [396](#)

Frideswide, St., treatment of her remains, [484](#)

Friesland, enforcement of celibacy in, [254](#)

Fringe, John, case of, [318](#)

Fritzlar, Council of, in 1246, [337](#)

Froude, Mr., on Henry VIII. and the Six Articles, [468](#)

Fructuosus, St., of Braga, his rule, [115](#)

Fuero Juzgo, clerical celibacy in, [121](#)

Fuess, Wolfgang, his marriage, [422](#)

Fulbert of Chartres on military bishops, [152](#)

Fulbert of Paris and Heloise, [269](#)
Fulda, Abbey of, its strictness, [404](#)
Future life, unknown to early Jews, [21](#)
 doctrine of, introduced, [24](#)

Gaeidhil, conversion of the, [159](#)
Gall, St., his labors, [126](#)
Galli, castration of, [50](#)
Gallicia, Council of, on discipline, [308](#)
 first nunnery in 1129, [307](#)
Gangra, Council of, in 362, [61](#)
Gardiner, Bishop, celebrates mass for Edward VI., [477](#)
 sits in judgment on married bishops, [479](#)
 scandals concerning him, [486](#)
Gaudin, Abbé, defends clerical marriage, [583](#)
 his marriage, [591](#)
Gaul (see *France*).
Gauthier of Ponthoise, [256](#)
Gea Eurysternus, priestesses of, [50](#)
Gebhardt of Constance, election of, [229](#)
Gebhardt of Eichstedt created pope, [184](#), [191](#)
Gebhardt of Ratisbon, [184](#)
Gebhardt of Salzburg ordered to enforce celibacy, [227](#)
Gebizo enforces celibacy in Dalmatia, [250](#)
Geddes, Dr., on celibacy, [584](#)
Gelasius I. on second marriages, [36](#)
 on marriage of nuns, [110](#)
Gelasius of Cyzicus on Paphnutius, [57](#)
Genebaldus of Laon, case of, [119](#)

Genoa, civil marriage valid in, [606](#)

Geoffrey of Chartres fails in his reforms, [265](#)

Geoffrey of Llanthony, case of, [227](#)

Geoffrey of Rouen enforces celibacy, [268](#)

Geoffrey of Tuscany, his chaplains, [199](#)

George of Saxony persecutes married priests, [419](#)

Gerard of Angoulême, case of, [269](#)

Gerard of Cambray on Manichæans, [208](#), [369](#)

Gerard of Florence created pope, [192](#)

Gerard of Lorsch, his inquiries, [148](#)

Gerard of Munster assists Friesland deans, [254](#)

Gerard of Nimeguen on clerical morality, [429](#)

Gerard of Sabina, his reforms, [339](#)

Gerbert of Aurillac on celibacy, [157](#)

Germain, his charter to Bèze, [265](#)

Germany, virtue of Teutonic tribes, [82](#)
 reforms attempted by Carloman, [128](#)
 condition of church in 10th century, [148](#), [154](#)
 Council of Mainz, in 1049, [189](#)
 heresies in 11th and 12th centuries, [207](#)
 enforcement of celibacy by Gregory VII., [230](#)
 triumph of schism in 11th century, [241](#)
 continuance of priestly marriage, [243](#)
 rebellion of Henry V., [244](#)
 impossibility of enforcing the canons, [247](#), [318](#)
 hereditary priesthood in 12th century, [326](#)
 children of ecclesiastics, 13th century, [336](#)
 testamentary provisions for, [337](#)
 condition of monachism, 15th century, [340](#)
 Marian, or Teutonic Order, [366](#)
 Waldensian heresy, [375](#)

the Hussites, [382](#)
Orthodox Brethren, [382](#)
Brethren of the Cross, [382](#)
Cardinal Branda's reforms, [392](#)
demoralization in 15th century, [393](#), [400](#)
the Reformation, [410](#)
demoralization in the 16th century, [429](#), [432](#)
success of the Reformation, [443](#)
morals of the monasteries, [452](#)
reforms attempted by Charles V., [524](#)-8
corruption of the clergy, [529](#)-32, [542](#)-3
demand for clerical marriage, [530](#)-44
clerical marriage refused, [545](#)
post-Tridentine immorality, [548](#)-56
abuse of confessional, [570](#), [576](#)
demand for clerical marriage in 18th century, [583](#)
 in 19th century, [601](#), [604](#)
civil marriage, [605](#)
monachism in Austria, [615](#)
modern councils held in, [626](#)-7, [633](#)
census of ecclesiastics, [630](#)-1

Geroch of Reichersperg on sacraments of sinful priests, [195](#)
 on disregard of canons, [317](#)

Gerson on origin of celibacy, [29](#)
 on abuse of confessional, [350](#)
 on concubinage as a necessity, [353](#)
 on clerical immorality, [389](#)

Gervilius of Mainz, case of, [130](#)

Gervinus of St. Riquier, [176](#)

Ghaerbald of Liège, his canons, [135](#)

Gieus de Robin et de Marion, [351](#)

Gilbert, papal legate in Ireland, [296](#)

Gilbert of Chichester on abuse of confessional, [350](#)

Gilbert de la Porrée, condemnation of, [315](#)
Gildas, description of British clergy, [159](#)
Giles Cantor, his heresy, [385](#)
Giovanni Gualberto, St., [183](#)
Giraldus Cambrensis on origin of celibacy, [28](#)
 on the Irish church, [297](#), [298](#)
 his struggle for St. David's, [283](#)
 on married priests, [285](#)
 on dispensations, [322](#)
 he deprecates celibacy, [325](#)
 on residence of relatives, [332](#)
Girard, Father, case of, [579](#)
Girona, Council of, in 517, [80](#)
 in 1068, [303](#)
 in 1078, [304](#)
 in 1197, [373](#)
 in 1257, 1274, [310](#)
Glastonbury, Abbey of, [167](#)
Gloucester, Augustinians of, their suppression, [457](#)
 See of, created, [460](#)
Gnesen, clerical marriage in, [251](#)
 Synod of, in 1577, [555](#)
Gnostics, heresy of, [33](#), [43](#)
Gobel of Paris, [594](#), [599](#)
Godric, St., case of, [111](#)
Godsons of bishops, wer-gild for, [162](#)
Godstow, the last of English abbeys, [459](#)
Golias Episcopus, [279](#)
Gomorrhianus Liber, [188](#)
Gonsalvo, Reginaldo, on solicitation, [569](#)

Goodacre, Anne, case of, [512](#)

Goslar, Manichæism at, in 1052, [207](#)

Gotefrido of Tuscany installs Victor II., [191](#)

Gotefrido, Archbishop of Milan, [218](#)

Gotfrid of Wurtzburg, his will, [337](#)

Goths, Spanish, their immorality, [120](#)

Grace, the Pilgrimage of, [455](#)

Gran, Synod of, in 1099, [249](#)
in 1382, 1450, 1480, [401](#)
in 1858, [627](#)

Grandchildren cause ineligibility to episcopate, [87](#)

Grandier, Urban, case of, [581](#)

Gratian on origin of celibacy, [28](#)
on dissolution of priestly marriage, [317](#)
on nature of anathema, [640](#)

Gratian of Rouen on clerical marriage, [594](#)

Great Malvern, prior of, his offer, [454](#)

Greece, influence of, on the Jews, [25](#)

Greek church, its divergence from Rome, [83](#)
its rules as to celibacy, [86](#)
its present customs, [91](#)
tolerated by Rome, [327](#), [328](#), [640](#)
abuse of confessional in, [577](#)
of Bohemia, [244](#)

Grégoire of Blois, [598](#)

Gregory I. on marriage, [47](#)
his monastic reforms, [113](#)
his enforcement of celibacy, [122](#)
forged epistle of, [137](#)
his conversion of England, [161](#)

on indissolubility of marriage, [314](#)
legend related by him, [349](#)

Gregory II. forbids marriage of nuns, [127](#)
his advice to Boniface, [128](#)
on sacraments of sinful priests, [195](#)

Gregory VI. purchases the papacy, [184](#)
miracle at his obsequies, [187](#)

Gregory VII. condemns the story of Paphnutius, [56](#)
condemns the epistle of St. Ulric, [150](#)
adopts the heresy condemned at Gangra, [61](#)
accompanies Leo IX. to Rome, [187](#)
his increasing influence, [191](#)
his character and aims, [193](#)
his activity under Nicholas II., [196](#)
he refuses ordination to illegitimates, [205](#)
his mission to Milan, [213](#)
his excommunication, [219](#)
he urges Erlembaldo to persevere, [220](#)
his exertions in Lucca, [222](#)
his election as pope, [223](#)
his enforcement of celibacy, [227](#)
his action in Dalmatia, [250](#)
 in France, [256](#)
 in Normandy, [258](#)
 in Brittany, [259](#)
overlooks England in his reforms, [271](#)
his efforts in Spain, [304](#)
his death, [239](#)
enforcement of celibacy attributed to him, [224](#)
legends concerning him, [226](#)
results of his theocracy, [345](#)
his doctrine revived by the heretics, [368](#), [374](#), [379](#), [383](#)

Gregory VIII. prevents abolition of celibacy, [325](#)

Gregory IX. on Neapolitan clergy, [335](#)

Gregory X. on corrupting influence of prelates, [351](#)
deposes Henry of Liège, [336](#)

Gregory XIII. complains of married priests, [554](#)

Gregory XV. on abuse of confessional, [569](#)

Gregory XVI. represses clerical marriage, [601](#)

Gregory of Nazianzum on priestly marriage, [58](#)

Gregory of Tours on nominations of bishops, [118](#)
on enforcement of celibacy, [120](#)

Gregory of Vercelli, case of, [190](#)

Grey-Friars of Perth, their luxury, [509](#)

Grillandus, case reported by, [431](#)

Grindal, Archbishop, revives the Nicene canon, [494](#)
on position of married clergy, [496](#)

Grosseteste, Robert, his reforms, [292](#)
on papal court, [342](#)

Guala, Cardinal, constitutions of, [332](#)

Gualo of Paris, his uncertainty, [263](#)

Guarino of Modena, oath of chastity required by, [153](#)

Guastalla, Council of, in 1106, [244](#)

Guibert de Nogent, case of, [262](#)

Guiberto of Ravenna on concubinage, [238](#)
his death, [242](#)

Guido, Cardinal, enforces celibacy in Austria, [251](#)
and in Denmark, [253](#)

Guido di Valate appointed to See of Milan, [209](#)
penance imposed on him, [214](#)
is driven from Milan, [216](#)
resigns the archbishopric, [218](#)

Gulielmus Appulus on Nicholas II., [197](#)

Gunzo Grammaticus, [148](#)

Gwentian code on sons of priests, [294](#)

Gyrovagi, [109](#)

Haarlem, Synod of, in 1564, [554](#)

Habit, monastic, salvation insured by, [335](#)

Hali Meidenhad, [286](#), [347](#)

Halifax, Council of, in 1868, [627](#), [633](#)

Hamburg, reform undertaken at, [189](#)
Council of, in 1406, [335](#)

Hamerer, Dr., on clerical corruption, [557](#)

Hamilton, Patrick, the Scottish protomartyr, [506](#)

Hamilton, Catherine, her escape, [506](#)

Hamilton, Archbp., his character, [503](#), [505](#)

Hanno of Cologne, his canonization, [201](#)

Hardouin of Angers on morals of clergy, [394](#)

Heads of colleges, position of their wives, [495](#)

Helena of Adiabene, [22](#)

Heliodorus of Trica, rigor of, [86](#)

Helisacar, Abbot, strict rules of, [404](#)

Heloise reforms Convent of St. Mary, [264](#)
denies her marriage, [269](#)

Helsen on clerical morality, [629](#)
on abuse of confessional, [633](#)

Helvidius, his heresy, [68](#)

Henke, his edition of Calixtus, [583](#)

Henrician heretics, [370](#)

Henry II. (Emp.) on sons of priests, [155](#)

his asceticism, [176](#)
he enforces celibacy, [178](#)

Henry III. (Emp.), his desire for reform, [184](#)
urges Clement II. to reform, [185](#)
creates Bruno of Toul pope, [187](#)
makes Gebhardt of Eichstedt pope, [191](#)
persecutes heretics, [207](#)
appoints Guido di Valate, [209](#)
his death, [192](#)

Henry IV. (Emp.), accession of, [192](#)
offers made to him in 1061, [200](#)
his humiliation at Canosa, [219](#)
he expels Altmann of Passau, [230](#)
he protects married priests, [237](#)
but condemns priestly marriage, [239](#)
his triumph over the church, [241](#)
his final overthrow, [244](#)

Henry V. (Emp.), his successful rebellion, [244](#)
failure of negotiations with him, [267](#)

Henry I. (France), attempt to enforce celibacy under, [179](#)

Henry III. (France), his edicts of pacification, [500](#)

Henry I. (Eng.), his speculation in priestly marriage, [276](#), [280](#)
he enforces celibacy, [278](#)

Henry V. (Eng.), his persecution of Lollards, [381](#)
he attempts a reform, [394](#)

Henry VIII. favors League of Schmalkalden, [438](#)
joins in suppression of monasteries, [448](#)
assumes supremacy of the church, [450](#)
completes suppression of monasteries, [454](#)
is excommunicated by Paul III., [455](#)
his plans for use of monastic property, [459](#)
he maintains celibacy, [461](#), [466](#)
negotiates with German reformers, [466](#)
persecutes married priests, [467](#)

is responsible for the Six Articles, [468](#)
objects to council held at Mantua, [520](#)
his death, [472](#)

Henry of Lausanne, the heretic, [370](#)

Henry III. of Liège, [336](#)

Henry of Ravenna adheres to Cadalus, [201](#)

Henry of Salzburg on priestly immorality, [247](#)

Henry of Speyer, his remonstrances, [233](#)

Hepburn, Bishop, his immorality, [502](#)

Hera, celibacy of priestess of, [50](#)

Heracles, Thespian, celibacy of priests of, [50](#)

Héraudin of Châteauroux on clerical marriage, [594](#)

Hercules, Gaditanian, chastity of priests of, [50](#)

Hereditary tendency in Greek church, [91](#)
in Latin church of 10th century, [105](#)
its dangers, [225](#)

Hereditary priesthood allowed by Alex. II., [205](#)

Hereditary transmission, in Poland, 13th century, [252](#)
in Friesland, [254](#)
in Normandy, 12th century, [258](#)
in Brittany, 12th century, [259](#)
in France, 12th century, [265](#)
forbidden by C. of Rheims in 1119, [267](#)
in England, in 11th century, [272](#)
in 12th century, [281](#), [282](#)
in 13th century, [285](#)
in Ireland, [296](#), [298](#)
among Culdees, [299](#)
in Spain, in 11th century, [304](#)
its persistence in 12th century, [321](#), [322](#), [326](#)
condemned by IVth Lateran Council, [327](#)

persists in Livonia, [336](#)
in Pomerania, in 15th century, [402](#)
in 16th century, [505](#), [516](#)
in post-Tridentine church, [549](#)

Heresies, the, [367](#)
encouraged by clerical immorality, [334](#)

Heresy of sacerdotal marriage, [201](#)
of concubinarians condemned in 1666, [558](#)
abuse of confessional is, [568](#)
opposition to celibacy is, [515](#), [603](#), [640](#)
Lutheran, justified by clerical corruption, [430](#), [514](#), [516](#), [518](#), [527](#),
[529](#), [548](#), [556](#) sqq.

Heretics, persecution of, in 4th century, [70](#)
on corruption of priesthood, [352](#)
to be condemned, not contented, [536](#)

Herluca, her visions, [236](#)

Hermann, Bishop of Prague, [243](#)

Hermann von Wied of Cologne, [518](#)

Hermann, King, condemns priestly marriage, [239](#)

Heydeck, Baron of, his marriage, [434](#)

High Commission, Court of, [490](#)

Hilarion introduces monachism in Palestine, [97](#)

Hildebert of Le Mans, his efforts at reform, [264](#)

Hildebrand (see *Gregory VII.*).

Hildebrandine doctrine as to sinful priests, [224](#)
its treatment at Cambray, [236](#)
is enforced in 12th century, [246](#)
becomes obsolete in 12th century, [248](#), [275](#)
is adopted by the heretics, [368](#), [374](#), [379](#), [383](#)
is condemned in 15th century, [382](#)
but is enforced by laity, [392](#)

Hildesheim, Synod of, in 1652, [562](#)

Hilles, Richard, on the Six Articles, [471](#)

Himerius of Tarragona on celibacy, [65](#)

Hincmar of Rheims on appellate jurisdiction of Rome, [139](#)
endeavors to enforce the canons, [141](#)

Hiouen-Thsang on Buddhist monachism, [95](#)

Hippolytus of Portus on digami, [37](#)

Hof, immorality of priests of, [428](#)

Holland, reception of C. of Trent in, [553](#)

Homicide, unchastity punished as, [169](#)

Honorius (Emp.) on residence of women, [55](#)
he persecutes Jovinian, [70](#)
his edict of 420, [77](#), [79](#)

Honorius I. reproves Scottish clergy, [161](#)

Honorius II. enforces celibacy in England, [279](#)
morality of Rome under, [341](#)

Honorius III. endeavors to reform the Scottish church, [301](#)
confirms Order of St. James, [364](#)

Honorius II. (antipope), his election, [200](#)

Honorius of Autun on sacraments of sinful priests, [195](#)

Hooper, Bishop, on effect of the Six Articles, [471](#)
his visitation of Gloucester, [476](#)

Horn, Bishop, on position of married clergy, [496](#)

Horne on married clerks, [291](#)

Hosius, Bishop, on celibacy, [529](#)

Hospitallers, the, [362](#), [366](#)
suppressed in England, [458](#)

Hostility to the church in 15th century, [394](#), [395](#)

Hoya, Bishop of Munster, [548](#)

Hubert, Abbot, marriage of, [142](#)

Huesca, Council of, in 598, [80](#)

Hugh of Grenoble, his asceticism, [227](#)

Hugh, Bishop of Lincoln, on clerical morals, [282](#)

Hugh of Lyons (Die) endeavors to enforce celibacy, [256](#)
is reproved by Gregory VII., [258](#)
his efforts in Brittany, [259](#)

Hugh, Archbishop of Rouen, character of, [155](#)

Hugh of Rouen on priestly marriage, [318](#)
he controverts heresy, [371](#)

Hugo of Constance, Zwingli's demand on, [421](#)

Hugo of Silva Candida at Council of Girona, [303](#)

Hugo, Cardinal, his speech at Lyons, [342](#)

Huguenots, priestly marriage among, [498](#)
toleration of their marriages, [499](#)

Humbert of Silva Candida on Greek errors, [191](#)
on simony, [201](#)

Humphrey, Lawrence, on Richard Smith, [474](#)
on position of married clergy, [496](#)

Hungary, introduction of celibacy in, [248](#)
clerical immorality in 15th cent., [401](#)
discussion of celibacy in 18th cent., [584](#)
effort for clerical marriage in 1866, [603](#)
National Synod of, in 1822, [626](#)

Huss, John, on sacraments of sinful priests, [196](#)
his heresy, [382](#)
causes of its success, [395](#)

Hutten, Ulric von, [415](#)

Hyde, Council of, in 975, [170](#)

Hydroparastitæ, [44](#)

Hypatia, murder of, [106](#)

Ibas of Edessa, case of, [82](#)

Iceland, rights of illegitimates in, [197](#)

Idelette de Bure, [498](#)

Ignatius, St., on abstinence from marriage, [32](#)

Illegitimates ineligible to priesthood in Coptic church, [93](#)
in Latin church, [205](#)

Illegitimacy of children of ecclesiastics, [86](#)
of Anglican clergy, [494](#), [496](#)

Immorality arising from vows of celibacy, [41](#)
less reprehensible than marriage, [145](#), [201](#), [627](#)
favors shown to, [320](#)

Immorality of church (see *Morals*).

Immunity caused by appellate power of Rome, [139](#)
by forms of ecclesiastical procedure, [140](#)
for adultery by priests, [447](#)

Impostures of relics and miracles, [458](#)

Ina, King, Dooms of, [162](#)

Incest caused by celibacy, [138](#), [278](#), [331](#), [555](#), [628](#)
common in Ireland, [297](#), [298](#)
price of absolution for, [428](#)
diminished by marriage, [182](#)
clerical marriage held to be, [628](#)

Indelibility of priesthood, [314](#)

India, influence of, on the Jews, [23](#)

Indians, relations of priests with, [563](#)
their hatred of Christianity, [564](#)

Indulgences in Manichæism, [44](#)
marketable value of, [356](#)
sale of, [397](#)
opposition to, [417](#)

Infallibility decreed by Vatican Council, [608](#)

Infanticide resulting from vows of continence, [42](#), [100](#), [137](#)
tradition as to, [124](#)

Infessura, his character of Sixtus IV., [344](#)

Influence of celibacy on civilization, [225](#), [357](#)
political, of modern monachism, [617](#)-18

Injunctions of Queen Elizabeth, [489](#)

Innocent of Rhodéz, [118](#)

Innocent I. on priestly marriage of widows, [39](#)
makes no reference to Nicene canon, [55](#)
condemns the Bonosiacs, [68](#)
condemns Vigilantius, [72](#)
enforces celibacy in Calabria, [76](#)
on marriage of nuns, [104](#)

Innocent II. dissolves marriage of priests, [315](#)
his enforcement of celibacy, [246](#)

Innocent III. enforces celibacy [251](#), [252](#), [286](#), [327](#), [332](#)
reforms convent of S. Agatha, [265](#)
on hereditary benefices, [266](#), [286](#), [298](#)
condemns Bossaert d'Avesnes, [323](#)
decisions rendered by him, [324](#)
on digamy, [349](#)
confirms Order of St. James, [364](#)
converts heretics of Bosnia, [369](#)
his hesitation as to the mendicant orders, [375](#)

Innocent IV. enforces celibacy in Sweden, [253](#)
his judgment for d'Avesnes, [323](#)
permits hereditary priesthood, [336](#)
promotes Henry of Liége, [336](#)

his enmity to Grosseteste, [342](#)

Innocent VIII., his character, [345](#)
orders visitation of English monasteries, [399](#)

Inquisition, the, denounces priestly marriage, [556](#)
condemns heresy of concubinarians, [558](#)
abuse of confessional confided to, [568](#)
its decrees on solicitation, [575](#)
its modern procedure in such cases, [633](#)
its tenderness to clerical delinquents, [570](#)
case of Father Mena, [579](#)
its merciful treatment of nuns, [588](#)
its condemnation of Panzini, [602](#)
it defines celibacy a matter of faith, [603](#), [642](#)
its justification by the church, [618](#)

Insabbatati, [373](#)

Insermenté clergy, [590](#)

Interdict laid on Milan, in 1074, [219](#)

Interim, recognition of marriage in the, [441](#)

Investitures, question of, [218](#)

Ipswich, injunctions of, by Q. Elizabeth, [491](#)

Ireland, character of its early church, [76](#), [159](#)
enforcement of celibacy in, [295](#)
monasticism of its church, [297](#)
corruption introduced by the English, [298](#)
priestly marriage in 16th century, [299](#)
suppression of monasteries in, [461](#)
morality of clergy in, [625](#)
modern Councils of, [626](#), [633](#)

Isabella of Castile supports Ximenes, [403](#)

Isidor of Pelusium on neglect of celibacy, [86](#)

Isidor, St., of Seville on monastic impostors, [115](#)

Isidorian forgeries, relaxation of canon in, [136](#)

Isis, vow of continence made by, [50](#)

Italy, enforcement of celibacy in 384, [69](#)

- resistance to celibacy, [76](#)
- morals in 4th century, [81](#)
- St. Benedict of Nursia, [111](#)
- monachism reformed by Gregory I., [113](#)
- state of church in 6th century, [122](#)
 - in 8th century, [127](#)
- Charlemagne and the Roman clergy, [135](#)
- state of church in 10th century, [144](#)
- Ratherius of Verona, [146](#), [150](#)
- Atto of Vercelli, [147](#), [152](#)
- Guarino of Modena and Alberic of Marsico, [153](#)
- Silvester II., [157](#)
- state of church in 11th century, [180](#)
- San Giovanni Gualberto, [183](#)
- Henry III. and the papacy, [184](#)
- St. Peter Damiani, [185](#)
- vain attempts at reform, [190](#)
- Damiani and Hildebrand, [192](#)
- Council of Melfi, in 1059, [197](#)
- schism of the Lombard clergy, [200](#)
- the antipope Cadalus, [201](#)
- failure of the reform, [204](#)
- the reform in Milan, [207](#)-221
- troubles in various cities, [222](#)
- Synod of Melfi, [242](#)
- Calabria, priestly marriage in 12th century, [320](#)
- Greek church in South, [328](#)
- children of ecclesiastics, [335](#)
- privileges accorded to concubines, [339](#)
- morality of papal court, [341](#)
- Savonarola, [386](#), [398](#)
- demoralization in 15th cent., [393](#), [399](#)
 - in 16th century, [430](#), [549](#)-52

clerical marriage proposed in 18th century, [583](#)
corruption in 18th century, [586-8](#)
case of Panzini, [602](#)
civil marriage, [605](#)
followed by clerical marriage, [606](#)
suppression of monastic orders, [609](#)
Barnabite college at Monza, scandal of, [621](#)
modern councils held in, [626-7](#)
number of clergy in, [630](#)
morality of clergy, [631](#)

Ivo of Chartres on the canons, [263](#)
he reproves immorality, [264](#)

Izeshne sacrifice, [44](#)

Jacobines, number of, [92](#)

Jainas, the, [35](#)

Jalikia, its church independent of Rome, [302](#)

James of Jerusalem, a Nazirite, [25](#)
the brother of Jesus, [68](#)

James IV. (Scotland) protects Lollards, [501](#)

James V. (Scotland), his parliament of 1542, [503](#)

James VI. (Scotland), his baptism, [505](#)

Jameson, Margaret, her marriage, [509](#)

Jane of Flanders, [323](#)

Janizaries, celibacy required of them, [19](#)

Jarnsida, rights of illegitimates in, [197](#)

Jean de Rély on morals of church, [399](#)

Jephthah, daughter of, [21](#)

Jerome, St., on the origin of celibacy, [28](#)
on Buddha, [34](#)
on Manichæism, [46](#)

- on marriage, [47](#)
- on agapetæ, [54](#)
- on heresy of Bonosus, [68](#)
 - of Jovinian, [70](#)
 - of Vigilantius, [72](#)
- on clerical morality, [78](#)
- on observance of celibacy, [85](#)
- on early monachism, [97](#)
- on immorality of nuns, [100](#)
- on difficulty of virginity, [624](#)

Jerome of Prague on Huss, [382](#)

Jerusalem, effect of its capture, [326](#)

Jesuits, they protect their erring members, [579](#)

- their influence on morality, [578](#)
- their expulsion from New Grenada, [609](#)
- they endeavor to enter France, [614](#)
- their recent growth, [615](#)
- their suppression in France in 1880, [621](#)

Jesus Christ, Order of, [365](#)

Jews, their relation to asceticism, [21](#)-6

- their polygamy, [38](#)

Jodocus of Lubec as deputy of papal legates, [442](#)

John IV. on Anglo-Saxon monachism, [163](#)

John XII., his vices, [144](#)

John XIII. condemns priestly marriage, [150](#)

- ejects canons of Winchester, [168](#)

John XXII. and the Fraticelli, [377](#)

- his taxes of the penitentiary, [428](#)

John XXIII., his crimes and deposition, [343](#)

- convokes Council of Constance, [390](#)
- his sale of dispensations, [398](#)

John, King (Eng.), speculates on priests' wives, [283](#)

John of Alexandria, his strictness, [123](#)
John the Baptist, Essenism of, [25](#)
John of Crema, his misadventure, [279](#)
 his Scottish reforms, [300](#)
John the Evangelist condemns the Nicolites, [34](#)
John of Frankfort, independence of, [397](#)
John of Jerusalem, rule of, [101](#)
John of Leyden permits polygamy, [438](#)
John of Liège, his murder, [336](#)
John of Lisieux fails in his reforms, [265](#)
John Merlaw of Fulda relaxes the rules, [404](#)
John of Nicklaushausen, his heresy, [405](#)
John of Oberwesel, [407](#)
John of Pirna, [378](#)
John of Rouen enforces celibacy, [256](#)
John of Salisbury reforms his canons, [265](#)
John of Saxony, his treatment of monasteries, [435](#)
John of Schweidnitz, his death, [378](#)
John of Utrecht reforms the nunneries, [340](#)
Jonas, Justus, on Luther's marriage, [425](#)
Joseph II. (Emp.), his reforms, [583](#)
Jovian on marriage of nuns, [100](#)
Jovinian on Manichæism, [46](#)
 his resistance to celibacy, [69](#)
Judah and Tamar, [21](#)
Judhaël of Dol, his marriage, [259](#)
Julian (Emp.) on Syrian asceticism, [50](#)

Julian, Cardinal, legate to Ireland, [298](#)

Julius II. approves of Savonarola, [386](#)

Julius III. defends Savonarola, [386](#)
grants powers to Cardinal Pole, [478](#)
his bull of indulgence to England, [482](#)
he reconvenes the Council of Trent, [521](#)
on treatment of Lutherans at Trent, [521](#)

Julius of Wurzburg argues against clerical marriage, [535](#)

Junia the apostle, [60](#)

Junqua, Abbé, case of, [601](#)

Jurisdiction, appellate, effects of, [140](#)
temporarily surrendered, [334](#)

Jus primæ noctis [354](#)

Jus spoli enforced by Robert the Frisian, [260](#)

Justification by works, doctrine of, [115](#)
in Calvinism, [498](#)
in Scotland, [506](#)

Justin Martyr on morals of Christians, [33](#)
denounces second marriages, [36](#)
approves of mutilation, [40](#)

Justinian, legislation of, [86](#)
regulates monachism, [108](#)

Katherine of Arragon divorced, [450](#)

Katz, his work on celibacy, [584](#)

Keledeus, or Culdee, [299](#)

Killore, John, burnt, [510](#)

King's College enriched by Henry VIII., [448](#)

Kirkaldy of Grange, [503](#)

Kirkham, Walter, of Durham, prohibits marriage, [290](#)

Knade, James, first married priest of Reformation, [419](#)

Knox, John, his denunciation of Catholics, [506](#)
he justifies Beatoun's murder, [507](#)
his Book of Discipline, [508](#)
his disputation with Wynrame and Arbuckle, [510](#)
his confession of faith, [512](#)

Koch of Wiesbaden, case of, [601](#)

Kokkius, Doctor, on clerical morals, [396](#)

Kolderup-Rosenvinge, his text of Cnut's laws, [174](#)

Kopp, Leonhard, emancipates nuns, [425](#)

Krishna, similarity of, to Christ, [92](#)

Kyle, Lollards of, [501](#)

Lacordaire obtains admission of Dominicans, [614](#)

Lactantius condemns asceticism, [48](#)
reprobates monachism, [98](#)

Ladak, number of monks in, [95](#)

Ladislav II. introduces celibacy in Hungary, [248](#)

Lætitia, Madame, patroness of charitable orders, [613](#)

Lagrèze on droit de marquette, [355](#)

Laillier, Jean, his heresies, [408](#)

Laity corrupted by the clergy, [265](#), [346](#), [350](#), [429](#), [430](#), [518](#), [533](#), [586](#), [629](#)
in favor of priestly marriage, [252](#), [423](#)
in favor of celibacy, [235](#), [465](#), [496](#)
require pastors to keep concubines, [310](#), [353](#), [388](#)
their assistance invoked by the church, [194](#), [232](#), [256](#), [257](#), [261](#), [559](#), [560](#)
their asceticism in 11th century, [241](#)

Lambert of Artois enforces celibacy, [262](#)

Lambertini, Countess, case of, [631](#)

Lanciski, Synod of, in 1197, [251](#)

Lands of Church in German Reformation, [434](#), [437](#), [439](#)
in England, [454](#), [482](#)
in Scotland, [508](#)
in France, [589](#)
in Sardinia, [609](#)
in Italy, [610](#)

Lanfranc, moderation of his reforms, [272](#), [273](#)

Langdon, case of Abbot of, [451](#)

Langdon, Rev. W. C., on clerical morality, [632](#)

Langlande on foreign prelates, [290](#)
on venality of officials, [293](#)
on the church, [444](#)

Languedoc, Manichæism in, [208](#)

Lansac, his instructions at Trent, [517](#)
on clerical marriage at Trent, [533](#)

Lanzo of Milan, [209](#)

Laodicea, Council of, in 352, [36](#), [60](#)

Laon, case of subdeacon of, [324](#)

La Réole, monks of, kill St. Abbo, [153](#)

Lasteyrie on clerical corruption, [585](#)

Lateran, first Council of, in 1123, [313](#)
second Council of, in 1139, [315](#)
fourth Council of, in 1215, [327](#), [567](#)
fifth Council of, in 1516, [413](#), [428](#)

Latimer, Bishop, concerned in bribing Cromwell, [454](#)
on unworthy promotions, [456](#)
his imprisonment, [469](#)

Latin clerks in Greek church, [329](#)

Laurentius Gallus, [349](#)

Lausanne, clergy of, drive out their bishop, [341](#)
popular complaints in 1533, [429](#)
case of clerical marriage in, [601](#)

Lawney and the Duke of Norfolk, [469](#)

Lay communion in both elements, [44](#)
wine withdrawn from, [45](#)
demanded by the Hussites, [384](#)
demands for it in 16th century, [530](#), [536](#), [641](#)
conceded to and withdrawn from Germany, [541](#), [543](#)

Lazarists, [613](#)-4

Lead, value of, in English monasteries, [459](#)

League of Schmalkalden founded, [438](#)

Le Bas, number of ecclesiastics of France, [593](#)

Lebret, Président, absolves Girard, [580](#)

Legacies to church restricted, [63](#)

Legitimation of priests' children, in 1552, [476](#)
under Elizabeth, [488](#)
letters of, in Scotland, [506](#)

Leibnitz, his negotiations with Bossuet, [582](#)

Leigh, Thomas, on morals of laity, [464](#)

Leighton, Dr., his report of monasteries, [451](#)

Leith, Articles of, [511](#)

Le Mans, bishop of, the son of a priest, [205](#)
Synod of, in 1248, [350](#)

Leo I. on priestly marriage of widows, [39](#)
on communion in one element, [44](#)
he enforces celibacy, [76](#)
on virginity of nuns, [104](#)
on disregard of vows, [105](#)

on concubinage, [196](#)

Leo III. dispenses St. Swithin, [165](#)

Leo. VIII. permits ordination of priests' sons, [148](#)
approves statutes of St. Martin of Tours, [404](#)

Leo IX., his entry in Rome, [187](#)
he commences reform, [188](#)
endeavors to reform the Greek church, [191](#)
on priestly marriage in Lucca, [222](#)
his death and canonization, [190](#)

Leo X., his character, [413](#)
he honors Savonarola, [386](#)
is replied to by Diet of Augsburg, [416](#)
he excommunicates Luther, [418](#)
his efforts at reform, [428](#)
his thanks to Henry VIII., [463](#)

Leo XIII. denounces civil marriage, [605](#)

Leo and Anthemius, their laws on monachism, [108](#)

Leo the Isaurian persecutes monks, [90](#)

Leo Marsicanus on Alberic, [153](#)

Leo the Philosopher, legislation of, [87](#)
forbids marriage in orders, [90](#)
on monachism, [109](#)

Leon, Council of, in 1114, [307](#)

Leonistæ, the, [67](#)

Leopold of Tuscany endeavors to reform nunneries, [573](#), [586](#)

Leptines, Synod of, in 743, [131](#)

Lerida, Council of, in 523, [80](#)

Leslie, Norman, murders Cardinal Beatoun, [503](#)

Levirate marriage among the Jews, [21](#)

Levites, hereditary functions of, [22](#)

Levitical rule of virgin marriage, [38](#)
maintained in Milan, [210](#)

Leyden, John of, [438](#)

Lhasa, number of monks in, [95](#)

Liber Gomorrhianus, [188](#)

Libya, married bishops in, [89](#)

Licentiousness better than marriage, [145](#), [201](#), [628](#)

Licenses to sin, first allusion to, in 1080, [257](#)
sale of, in Denmark, [253](#)
condemned by Lateran Council, [327](#)
continued in England, [278](#), [280](#), [284](#), [289](#), [293](#)
in France, [332](#)
in Germany, [337](#)
in Naples, [339](#)
condemned by Council of Bâle, [396](#)
continued throughout 15th century, [312](#), [389](#), [401](#)
in 16th century, [428](#), [432](#), [433](#), [462](#), [526](#), [528](#), [559](#)

Liège, Manichæism, in 1025, [207](#)
priestly marriage in 12th century, [247](#)
heretics in, [371](#)
Bishop of, on clerical corruption, [530](#)
Council of, in 1131, [246](#), [314](#)
in 1548, [526](#), [530](#)

Lignana, Girolamo, his attempt to murder St. Charles, [551](#)

Lillebonne, Council of, in 1080, [257](#)

Lima, Councils of, in 1552-1601, [563](#)-5

Limitation on vows in France, [613](#)

Lincoln, case of subdeacon of, [321](#)

Lindet of Evreux, his marriage, [591](#)

Link, Wences., his marriage, [422](#)

Lippomani condemns Orzechowski, [541](#)

Lisieux, case of archdeacon of, [349](#)
Council of, in 1055, [256](#)

Litchfield, Saxon Bishop of, [272](#)
visitation of diocese of, [452](#)

Livonia, hereditary priesthood in, [336](#)

Livres de Jostice et de Plet, [321](#)

Llorente on abuse of confessional, [569](#), [572](#)-3

Lodi, turbulence of married priests at, [202](#)

Loi Falloux of 1850, [614](#), [617](#)

Lolhard, Walter, [377](#)

Lollards, the, [381](#)
of Kyle, [501](#)

Lombardo-Venitia, number of clergy in, [630](#)

Lombardy independent of Rome, [219](#)
submits to Rome, [221](#)

Loménie of Sens, his marriage, [591](#)

London, Dr., his career, [457](#)
on false relics, [458](#)
on permission of marriage of nuns, [466](#)
on ejected monks, [469](#)

London, married priests deprived in 1554, [478](#)
enumeration of married priests in, [489](#)
Council of, in 1075, [272](#)
in 1102, [273](#)
in 1108, [277](#)
in 1126, [279](#)
in 1129, [280](#)
in 1200, [288](#)
in 1237, [288](#)
in 1268, [291](#)

Lords, House of, delays priestly marriage, [472](#)

Loretto, Episcopal Convention of, in 1850, [626](#)

Lorraine, Cardinal of, his instructions at Trent, [533](#)
endeavors to enforce chastity, [559](#)

Lothair (Emp.) aids to enforce celibacy, [246](#)
visits Fulda, [404](#)

Louis-le-Débonnaire on monastic impostors, [115](#)
his reforms, [136](#)
prohibits phlebotomy to monks, [138](#)

Louis-le-Gros, his charter to St. Cornelius, [270](#)

Louis IX. arbitrates for the d'Avesnes, [323](#)

Louis XII. and relics of St. Denis, [217](#)

Louis XV. reforms monastic orders, [585](#)
his arrests of brothel-haunting priests, [586](#)

Louis-Philippe adverse to monachism, [614](#)

Louvain, University of, urges reform, [529](#)
Synod of, in 1556, [541](#)
in 1574, [561](#)

Loyola, his reformation of Spain, [517](#)

Luanus, monasteries founded by, [160](#)

Lucca, priestly marriage in, [222](#)

Lucius II. on hereditary priesthood, [281](#)

Lucius III. on sacraments of sinful priests, [195](#)
on hereditary benefices, [322](#)
confirms the Order of the Temple, [363](#)
condemns the Waldenses, [373](#)

Lucretia Borgia, [345](#)

Ludegna, Juan, his disputation on priestly marriage, [535](#)

Luna, Doña Agueda de, [572](#)

Lunden, Archbishop of, on priestly marriage, [252](#)

Lupus of Troyes on celibacy, [79](#)

Lupus, Christian, on Paphnutius, [57](#)
on Tridentine canons, [640](#)

Luther, his place in the Reformation, [413](#)
his ninety-five propositions, [417](#)
his gradual progress, [418](#)
he hesitates as to priestly marriage, [420](#)
he approves of priestly marriage, [422](#)
his marriage, [425](#)
his opinions on marriage, [426](#)
he opposes the Anabaptists, [438](#)
he fraternizes with Orthodox Brethren, [385](#)
he reprints Caraffa's "Concilium," [523](#)
Sir Thomas More's assault on him, [440](#)

Lutheranism caused by clerical immorality, [514](#), [516](#), [518](#), [527](#), [529](#)
its spread in Bohemia, [384](#)

Lutherans, the, adopt the Waldenses, [375](#)
they object to Council held at Mantua, [520](#)
their treatment at Trent, [521](#)
they decline further participation, [522](#)

Luxury, uses of, [358](#)

Lyons, Poor Men of, [373](#)

Lyons, effect of papal court on, [342](#)
suppression of unauthorized orders in, [622](#)
Council of, in 583, [80](#)
in 1274, [328](#), [336](#), [351](#)
in 1528, [515](#)
in 1850, [626](#)

Lyons, Huguenot Synod of, in 1563, [38](#), [499](#)

Macaulay, Lord, on Anglican clergy, [497](#)

Macedonia, celibacy enforced in, [86](#)

Macliaus of Brittany, case of, [119](#)

Macon, Council of, in 581, [80](#), [119](#)

Mæsse-þegnes, wer-geld of, [173](#)

Magdeburg Centuriators, their mistake, [162](#)
 Council of, in 1403, [353](#)
 troubles of, in 1431, [395](#)

Mahavira, legend of, [35](#)

Mahue of S. Sulpice, case of, [592](#)

Maiden Bradley, prior of, his morals, [458](#)

Maillard, Olivier, his sermon, [399](#)

Mainardo, Card., his mission to Milan, [217](#)

Mainerio Boccardo, will of, [221](#)

Mainz, enforcement of celibacy in, [230](#)
 revolt against Rodolf of Swabia, [236](#)
 Diet of, in 1085, [239](#)
 annates of, [412](#)
 Archbishop of, asks for clerical marriage, [539](#)
 Council of, in 888, [138](#)
 in 1049, [189](#)
 in 1075, [231](#)
 in 1225, [337](#)
 in 1261, [338](#), [376](#)
 in 1527, [423](#)
 in 1549, [528](#)

Majorian, laws of, respecting nuns, [105](#)

Malachi, St., his reforms, [296](#)
 his death, [297](#)

Malatesta, Carlo, interferes with concubinage, [339](#)

Mallet, Abbé, case of, [635](#)

Malone, Malachi, on dispensations, [541](#)

Malta, Knights of, [362](#), [366](#)
 suppressed in England, [458](#)

Manasses of Rheims, his violent measures, [261](#)

Mancio of Chalons, his indecision, [142](#)

Manes, career of, [43](#)

Manfredonia, Council of, in 1567, [553](#)

Manichæism, influence of, [43](#)
 indulgences and Eucharist in, [44](#)
 revival of, in 11th century, [207](#)
 prevalent in Milan, [211](#)
 opposed by St. Bernard, [331](#)
 of Albigenses, [367](#)

Manigold of Veringen, case of, [235](#)

Mansfeld, married priest of, [419](#)

Mantua, Council of, in 1053, [190](#)
 in 1067, [202](#)
 Council of Trent to be held at, [519](#)

Mapes, Walter, his satirical verses, [289](#)

Mar Aba prohibits priestly marriage, [92](#)

Marcellin, Abbé, on droit de marquette, [354](#)

Marcian (Emp.) restricts monachism, [107](#)

Marcion, heresy of, [33](#)

Marcus, heresy of, [33](#)

Margaret of Flanders, case of, [323](#)

Margaret of Parma delays reception of Council of Trent, [547](#)

Mariana on married clergy of Spain, [303](#)

Marian Order, [366](#)

Marien, frère, case of, [637](#)

Marillac, Bishop Charles de, on clerical discipline, [559](#)

Marino, a married priest, [180](#)

Marino of Ostia condemns priestly marriage, [149](#)

Marisco, Adam de, [292](#)

Marozia, her power, [144](#)

Marquardo dei Susani on celibacy, [547](#)

Marquette, droit de, [354](#)

Marriage exalted by Christ, [26](#)

in Apostolic Constitutions and Canons, [48](#)

abstinence from, among early Christians, [32](#)

heresies condemning, [31](#)

orthodox condemnation of, [45](#)

depreciation of, by Chrysostom, [86](#)

comparative merit of, [46](#), [47](#), [318](#), [347](#)

abhorrence of, by Manichæans, [43](#)

by Albigenses, [208](#), [367](#)

orthodox embarrassment concerning, [369](#)

disregard of, in 11th century, [182](#)

in Ireland, [295](#), [297](#), [298](#)

Wickliffe's view of, [381](#)

permitted to those under vows, [100](#)

not dissolved by monastic vows, [114](#)

indissoluble in early church, [314](#)

dissolved by orders and vows in 12th century, [313](#)

effect of vows upon, [321](#)

worse than licentiousness, [145](#), [201](#), [628](#)

clerical, is incest, [628](#)

sacrament of, inferior to ordination, [642](#)

of Martin Luther, [425](#)

of Albert of Brandenburg, [434](#)

of converts to Calvinism, [499](#)

in orders forbidden, [39](#), [77](#)

persisted in [80](#)

forbidden in the East, [86](#)

custom of Greek church, [89](#), [90](#)

permitted among Nestorians, [92](#)

anathematized at Trent, [536](#)

in Spanish military orders, [363](#), [364](#)

Marriage of abbots, Hungary, 15th century, [401](#)

Marriage of bishops, prohibited in orders, [39](#)

- in 4th century, [58](#)
- in Greek church, [87](#), [91](#)
- practised in Africa, [89](#)
- in Frankish Gaul, [119](#)
- in Gothic Spain, [121](#)
- in 8th century, [132](#)
- in 10th century, [154](#), [155](#)
- in 11th century, [181](#), [189](#), [197](#), [198](#)
- separated from their wives in Hungary, [249](#)
- in Ireland, [295](#)
- treatment of, under Mary, [479](#)

Marriage of deaconesses punished, [96](#)

Marriage of monks permitted in 4th century, [58](#)

- forbidden by Justinian, [108](#)
- and by Gregory I., [113](#)
- St. Bernard on, [316](#)
- common in 9th century, [139](#)
- in 12th century, [324](#), [326](#)
- in 14th century, [340](#)
- in 15th century, [401](#), [403](#)
- in Reformation, [420](#)
- dispensations refused them, [442](#)

Marriage of nuns a capital crime, [100](#)

- is binding, [103](#), [104](#), [105](#)
- common in 5th century, [110](#)
- in 7th century, [115](#)
- in Merovingian France, [120](#)
- in Gothic Spain, [121](#)
- in Italy, in 8th century, [127](#)
- forbidden in 8th century, [132](#), [135](#), [137](#)
- common in 9th century, [139](#)
- in 10th century, [163](#), [166](#)

- in 14th century, [340](#)
- in 15th century, [403](#)
- in Reformation, [425](#), [435](#)
- under Henry VIII., [466](#)
- in France in 1581, [500](#)
- in French Revolution, [593](#)

Marriage of priests in early church, [27](#)-30, [48](#)

- restricted to single marriage, [37](#)
- and with virgins, [38](#)
- forbidden in orders, [39](#)
- forbidden in Manichæism, [45](#)
- and by Council of Elvira, [50](#)
- but not by Council of Nicæa, [54](#)
- first prohibition, in 385, [64](#)
- prohibition gradually enforced in Western church, [66](#)-82
- custom of Eastern church, [89](#)
- common in Gothic Spain, [121](#)
- common in Italy in 6th and 8th centuries, [122](#), [127](#)
- in Merovingian France, [119](#)-20
- prohibited in 8th century, [133](#)-5
- reappears in 9th century, [142](#)
- common in 10th century, [148](#), [150](#), [152](#), [155](#), [158](#)
- in British church, [159](#)
- in Saxon England, [167](#), [169](#), [172](#)
- in Wales, [171](#)
- universal in 11th century, [181](#)
- in southern Italy, [197](#)
- in Tuscany, [199](#)
- creates a political party in 1061, [200](#)
- becomes a heresy, [201](#)
- struggle over, in Lombardy, [210](#)-21
- persecution of, [234](#)
- penalties inflicted on, [242](#)
- in Bohemia, [245](#)
- in Germany, [247](#)
- in Hungary, [248](#)-9
- in Dalmatia, [250](#)

in Poland, [251](#)
in Sweden, [252](#)
in Denmark, [253](#)
in Friesland, [254](#)
in France, [255](#), [270](#)
in Normandy, [256](#)
in Brittany, [259](#)
in Flanders, [260](#)
in England, [272](#)-91
in Wales, [294](#)
in Ireland, in 16th century, [299](#)
in Scotland, [299](#)
in Spain, [303](#)
 delay in abrogating it, [305](#)
 forbidden by Alfonso the Wise, [308](#)
 irregular, continued, [311](#)
St. Bernard on, [316](#)
Gratian on, [317](#)
advocated by Alexander III., [325](#)
condemned by Wickliffe, [379](#)
allowed by Lollards, [381](#)
condemned by Hussites, [384](#)
allowed by Brethren of the Cross, [385](#)
 and by Orthodox Brethren, [385](#)
advocated in 15th century, [405](#)
commencement of, in Reformation, [419](#)
demanded by Zwingli, [421](#)
accepted by Luther, [422](#)
favored by the people, [423](#)
persecuted by the church, [423](#)
recognized by the Interim, [441](#)
dispensations granted by Paul III., [442](#)
recognized by Transaction of Passau, [443](#)
advocated in England in 1530, [461](#)
commencement of, in England, [462](#)-5
refused by Henry VIII., [461](#)-4
a capital offence under the Six Articles, [468](#)

permitted under Edward VI., [472](#)
popular repugnance for, [475](#), [476](#)
suppressed under Mary, [478](#)
admitted by Elizabeth, [488](#)
a matter of Anglican faith, [475](#), [490](#)
effects of its uncertainty on Anglican clergy, [497](#)
a matter of course in Calvinism, [498](#), [510](#)
dispensations for, sale of, [522](#)
demanded of Council of Trent, [529](#)-33
prevalence of, [531](#)-2
disastrous consequences to church, [535](#)
prejudged at Trent, [534](#)-6
asked for by German princes and prelates, [539](#)-43
condemned as heresy at Trent, [536](#), [640](#)-2
papal dispensations for, [541](#)
refused by Pius IV., [545](#)
in post-Tridentine church, [554](#)
denounced by Inquisition, [556](#)
demand for, in 18th century, [582](#)-4
in French Revolution, [590](#)-4
under the Concordat, [596](#)-8
varying policy in France, [599](#)-601
attempted revival in modern times, [601](#), [606](#)
accepted by Old Catholics, [604](#)
in the United States, [607](#)

Marriage of subdeacon valid, [324](#)

Marriage, civil, [605](#)-7

Marriage with Christ by taking the veil, [104](#)

Marriages, second, commanded by St. Paul, [96](#)

objected to, [33](#)
regarded as adulterous, [36](#)
forbidden to priesthood, [37](#)
St. Augustin on, [74](#)
legislation against, [86](#), [89](#)
in 11th century, [202](#), [210](#)

Married men, admission of, to orders, [76](#), [79](#)

Married nuns, divorce of, [480](#)

Married priests, their audacious demands in 8th century, [132](#)
their divorce, [470](#)
numbers ejected under Queen Mary, [480](#)
penance inflicted on, [481](#)
not permitted to leave the church, [424](#), [484](#)
enumeration of, in England, [489](#)

Marsico, priests of, defend their concubines, [339](#)

Marsiglio of Padua on confessional, [350](#)

“Marthas” of Franciscans, [353](#)

Martin I., his advice to Amandus, [126](#)

Martin V., his election, [391](#)
his favors to John XXIII., [344](#)
condemns the Begghards, [377](#)
his attempts at reform, [392](#)

Martin, St., on marriage, [47](#)

Martin, case of, in 1817-21, [599](#)

Martin of Battle Abbey, [282](#)

Martin of Camin on clerical morals, [402](#)
tries to reform his clergy, [496](#)

Martin, St., of Leon, his dialectics, [371](#)

Martin of Marseilles, marriage of, [592](#)

Martin, Dr. T., at trial of Cranmer, [190](#)
his treatise on celibacy, [480](#)

Martyrdom, its comparison with virginity, [46](#)
of English monks, [450](#)

Marullus on Innocent VIII., [345](#)

Mary, St., of Egypt, [98](#)

Mary of Guise, her policy, [507](#)

Mary, Queen, her obsequies of Edward VI., [477](#)
her death, [486](#)

Mass, disputation on, Scotland, in 1560, [507](#)

Masses for the dead, copied from Mazdeism, [44](#)
maintained by Henry VIII., [454](#)

Masses of married priests to be rejected, [194](#), [227](#), [246](#), [256](#), [274](#)

Massieu of Beauvais, his marriage, [591](#)

Massipia, legalized concubines, [197](#)

Materialism of Mosaic Law, [21](#)

Maternity, dissuasions from, [347](#)

Mathison, John, and the Anabaptists, [438](#)

Matilda, Countess, and married priests of Lucca, [222](#)

Matrimony, Tridentine canons on, [534](#)-6, [640](#)-1

Matthew Paris on Milanese heresies, [211](#)

Matthew of Salzburg, his attempted reforms, [518](#)

Matthias Corvinus on priestly morals, [401](#)

Maud of Ramsbury, [281](#)

Mauger of Rouen, his character, [156](#)

Mauléon, Mdlle. Desvieux de, [582](#)

Maultrot, his answer to Gaudin, [584](#)

Maurice of Saxony, [441](#), [443](#)

Maurice de Sully, powers granted to, [322](#)

Maurilio, St., of Rouen, [156](#)

Mauritanian nuns, case of, [104](#)

Maximilian II. asks for clerical marriage, [543](#)
his requests refused, [545](#)

Maya, mother of Buddha, [35](#)

Mayer, Dr., on clerical corruption, [557](#)

Mayer's dissertation on Cath. von Bora, [425](#)

Mazdeism, character of, [22](#)
its Messiah, [35](#)
its Izeshne sacrifice, [44](#)

Meat, abstinence from, not recommended, [48](#)
use of, forbidden by Manes, [43](#)
and by Albigenses, [208](#), [367](#)

Meaux, Bishop of, his propositions condemned, [382](#)

Mechlin, regulation of confessionals, [574](#)
discussion as to solicitation in, [576](#)
clerical morals in, [628](#)
Synods of, in 1570 and 1607, [561](#)

Medicine, incompatibility of, with priesthood, [227](#)

Meinhard of Trèves, misfortunes of, [248](#)

Melanchthon on Luther's marriage, [425](#)
prepares the Confession of Augsburg, [436](#)
seeks conference with Sorbonne, [440](#)
argues with Henry VIII., [466](#)
remonstrates with him, [470](#)

Melchoir of Wurzburg on condition of clergy, [528](#)

Melfi, Council of, in 1059, [197](#)
in 1089, [242](#)
in 1284, [329](#), [339](#)
in 1597, [553](#)

Mélisse, frère, case of, [637](#)

Melun, Assembly of, in 1579, [556](#)

Men of Intelligence, [385](#)

Mena, Father, case of, [579](#)

Menco, Abbot, on priestly marriage, [254](#)

Mendelsham, Vicar of, his marriage, [465](#)

Mendicant Orders, the, [375](#)

Mendicancy of Begghards condemned, [377](#)

Mendicancy disapproved by Wickliffe, [379](#)
forbidden in Reformation, [420](#)

Mendieta on Spanish colonial church, [564](#)

Merit, comparative, of virginity and marriage, [46](#), [47](#), [318](#), [347](#), [536](#),
[641](#)

Merseburg, priestly marriage demanded by people of, [441](#)

Messiah, the, of Mazdeism, [35](#)

Methodius converts Bohemia, [244](#)

Metz, sons of priests ordained in, [154](#)
Council of, in 895, [138](#)
in 1604 and 1610, [562](#)

Mexico, Councils of, in 1555 and 1585, [563](#), [565-6](#)
corruption of its church, [563-6](#)

Michelet on abuse of confessional, [573](#)

Milan, struggle over celibacy in, [207-221](#)
prevalence of Manichæism in, [211](#)
its independence of Rome, [210](#)
its submission to Rome, [213](#), [221](#)
Synod of, in 1098, [221](#)
in 1565 and 1582, [553](#)
reforms of St. Charles Borromeo, [550-2](#)
Episcopal Convocation, in 1849, [626](#)

Military bishops in 10th and 11th centuries, [153](#), [180](#)

Military Orders, the, [362](#)

Military service enforced on monks, [99](#)

Mill, Walter, his trial, [510](#)

Milo of Rheims, case of, [129](#)

Minden, Dean of, miracle occurring to, [266](#)

Mingrat, Abbé, case of, [635](#)

Minims, corruption of, [562](#)

Minimum age for vows, [585](#), [587](#), [611](#)
for ordination, [624](#)
for resident women, [626](#)

Ministers, Calvinist, strictness of rules, [499](#)

Minors, irrevocable engagements by, [611](#)

Minucius, Felix, on morals of Christians, [33](#)
on second marriages, [36](#)

Minuto, Cardinal, his mission to Milan, [217](#)

Mirabeau advocates clerical marriage, [590](#)

Miracles in support of celibacy, [170](#), [236](#), [334](#)
by married priests, [180](#)
to enforce morality, [266](#)
false, [458](#)

Misnia, the Brethren of the Cross, [385](#)
priestly marriage in, [419](#)

Missionary work of monachism, [113](#)

Missions, abuse of confessional in, [578](#)

Missions Étrangères, the, [614](#)

Mithraic worship in Rome, [43](#)

Mixed tribunal for married priests, [257](#)

Modena, trouble with married priests in, [222](#)

Molanus, his negotiation with Bossuet, [582](#)

Monachism, [94](#)
its Buddhist prototype, [95](#)
commencement of, [97](#)

originally temporary, [101](#)
rules of Greek church, [107](#)
difficulties of the West, [109](#)
Western, practical character of, [112](#)
rendered irrevocable by Gregory I., [113](#)
benefits of, [113](#)

Monachism, disorders of, under Carlovingsians, [137](#), [139](#)
reforms in 10th century, [152](#)
in Irish church, [160](#), [295](#)
Anglo-Saxon, [163](#), [173](#), [176](#)
condition of, in France, [264](#)
in early Scottish church, [299](#)
degrading regulations of, [332](#)
influence of, [357](#)
demoralization in 15th century, [340](#), [392](#), [393](#), [399](#), [403](#)
ridiculed by Erasmus, [415](#)
opposition to, in Reformation, [421](#)
position of, in Reformation, [437](#), [439](#)
overthrown by Wolsey, [447](#)
effort to enforce discipline, in 1549, [526](#)
its description by Cassander, [543](#)
its abolition recommended, [523](#), [573](#)
its influence on solicitation, [573](#)
corruption of post-Tridentine, [562](#)
in Spanish Colonies, [565](#)
corruption in 18th century, [585](#), [586](#)
its abolition recommended, [587](#)
subjected to the State, in 1760, [585](#)
its modern vicissitudes, [608](#)-21

Monasteries, residence in, enforced in the East, [107](#)
not necessary in the West, [115](#)
subjected to the bishops, [134](#)
women excluded from, [403](#)
treatment of, in Reformation, [435](#)
English, their immorality, [451](#)
suppression of, by Wolsey, [448](#)

- and by Henry VIII., [454](#)
- means used for, [457](#)
- financial results of, [460](#)
- suppression of, in Austria, [584](#)
 - in France, [589](#)
 - in Spain, [608](#)
 - in Italy, [609](#)
 - in South America, [609](#)

Monastic habit, salvation ensured by, [335](#)

Monks, persecuted by the Iconoclasts, [90](#)

- number of, in Coptic church, [93](#)
- subjected to military service, [99](#)
- wandering, described by Augustin, [102](#)
 - and by St. Benedict, [110](#)
 - and by Smaragdus, [115](#)
- political influence of, [106](#)
- confined to their convents, [107](#)
- their wives must become nuns, [114](#)
- punishment of unchastity, [103](#), [131](#)
- custom of letting blood, [138](#)
- secular life of, in 10th century, [152](#)
- as priests in Anglo-Saxon England, [174](#)
- married priests replaced with, [275](#)
- residence of, with nuns, in Spain, [305](#)
- ordered to sleep singly, [332](#)
- ridiculed by Von Hutten, [416](#)
- fate of English, [460](#)
- ejected, held to chastity, in England, [469](#)
- unfit to be confessors, [432](#), [569](#), [572](#), [577](#), [587](#)
- marriage of (see *Marriage*).

Monluc of Valence, his marriage, [499](#)

- his description of French clergy, [515](#)

Montanists denounce second marriages, [36](#)

Montariol, Abbey of, and droit de marquette, [354](#)

Monte Casino, foundation of, [111](#)
 Carloman becomes a monk there, [133](#)
 Abbey of, in 10th century, [153](#)
 preservation of, in 1866, [609](#)

Monza, clerical marriage in 1152, [221](#)
 Barnabite college at, case of, [621](#)

Morales, Ambrosio, case of, [40](#)

Morality, reformed by early Christians, [32](#)
 of Puritanism, [357](#)
 of Scottish Reformers, [509](#)
 artificial standard of, [269](#), [347](#), [349](#), [627](#)

Morals, clerical, described by Cyprian, [41](#)
 by Tertullian, [42](#)
 reforms at Council of Nicæa, [54](#)
 how affected by introduction of celibacy, [78](#)
 as described by Salvianus, [81](#)
 by Council of Elvira, [99](#)
 by St. Jerome, [100](#)
 of monks, described by St. Augustin, [102](#)
 by St. Benedict, [110](#)
 by St. Isidor of Seville, [115](#)
 by Smaragdus, [115](#)
 of bishops in Merovingian France, [119](#)
 of clergy in Gothic Spain, [121](#)
 in Italy, in 8th century, [127](#)
 in France, in 8th century, [128](#)
 in 9th century, [136](#)
 in Italy, in 10th century, [145](#), [147](#), [153](#)
 in England, in 10th century, [167](#)
 in 11th century, [172](#)
 in monasteries, in 11th century, [188](#)
 of bishops, in 11th century, [198](#)
 of married clergy, in 11th century, [202](#)
 in Milan, [210](#)
 in Germany, in 12th century, [247](#)

in France, in 12th century, [264](#)
worse than laity, [265](#), [346](#), [350](#), [429](#), [430](#), [518](#), [533](#), [586](#), [629](#)
in England, in 12th century, [281](#)
 in 13th century, [293](#)
in Ireland, in 14th century, [299](#)
in Scotland, in 13th century, [301](#)
in Spain, in 14th century, [311](#)
in church of 12th century, [321](#), [326](#)
 of 13th century, [331](#)
in monasteries in 14th century, [340](#)
in papal court, [341](#)
in mediæval church, [350](#)
in military orders, [364](#)
in Bohemian church, [383](#)
in 15th century, [388](#)
in 16th century, [427](#), [515](#)-33
in English church of 16th century, [447](#)
in English monasteries, [451](#)
of clergy of Bangor, [463](#)
in Scottish church, [501](#) sqq.
in German church described by Cassander and Wicelius, [542](#)-3
 after Council of Trent, [548](#)
in Rome, in 16th century, [549](#)
in post-Tridentine church of Italy, [550](#)-3
in Bavaria and Bohemia, [554](#), [556](#)
in the Low Countries, [557](#)
in France, [559](#)
in confessional, [566](#)-77
affected by casuistry, [578](#)
in 18th century, [585](#)-8

Morals of monachal educators, [619](#)-21
 in the modern church, [624](#)-37

More, Sir Thomas, his position, [445](#)
 appointed Chancellor, [449](#)
 on sheep-farming, [474](#)

Morone, Cardinal, asked to aid in furthering clerical marriage, [541](#)

Morrison, Sir Richard, on resumption of church lands, [483](#)

Mortal sin, Wickliffe's definition of, [379](#)

Morton, Archbishop, his visitation, [399](#)

Mosaic Law, materialism of, [21](#)

Mothers, residence of, forbidden, [138](#), [331](#)

Mount Lebanon, Synod of, in 1736, [91](#)

Mozarabic ritual, contest over, [304](#)

Mucius, his blind obedience, [102](#)

Muhlberg, battle of, [441](#)

Mulieres subintroductæ, forbidden by Council of Nicæa, [53](#)
allowed in modern times, [626](#)

Muncer and the Anabaptists, [438](#)

Munster, Council of, in 1279, [575](#)
in 1652, [558](#)
impossibility of reform, in 16th cent., [548](#)
proportion of clergy in, [631](#)

Mutilation, practice of, [40](#)

Mutilés de Russie, sect of, [41](#)

Mylitta, [21](#)

Mynecena, [173](#)

Myrc, John, his Instructions, [400](#)
on confessor and penitent, [574](#)

Myrror of Justice on married clerks, [291](#)

Mystic rewards of virginity, [347](#)

Nalanda, Buddhist monastery of, [95](#)

Namur, Synods of, in 1604 and 1639, [562](#)
in 1698, [576](#)
in 1742, [577](#)

Nanno of Verona protects married priests, [151](#)

Nantes, Council of, in 895, [138](#)
Edict of, [500](#)

Naples, children of ecclesiastics in, [335](#)
position of priests' concubines in, [339](#)
tax on concubines in, [399](#)
clerical marriage proposed in 18th century, [583](#)
numbers of clergy in, [588](#), [631](#)
civil marriage in, [606](#), [607](#)
restrictions on monachism in 1820, [609](#)
Council of, in 1576, [553](#)
in 1699, [574](#)

Napoleon I. reestablishes religion, [595](#)
prohibits clerical marriage, [597](#)

Napoleon III. favors monachism, [614](#), [617-8](#)

Narbonne, Council of, in 1551, [516](#)
in 1609, [560](#)

Nature, crimes against, [137](#), [332](#), [548](#)

Nausea, Frederic, on priestly marriage, [423](#)

Nazirate, the Jewish, [22](#)

Neocæsarea, Council of, in 314, [36](#), [51](#)

Neo-Platonism, influence of, [39](#)

Nestorians, the, [91](#), [92](#)

Netherlands, reception of Council of Trent, [547](#), [553](#)
troubles of, caused by clerical corruption, [557](#)
restrictions on monachism, [609](#)

Neustria, reforms in, [132](#)

New Grenada, corruption of church in, [563](#)
abuse of confessional in, [572](#)
suppression of monasteries in, [609](#)

Nicæa, Council of, its relation to celibacy, [53](#)

celibacy attributed to, [555](#)

Nicæa, canon of, its enforcement, [84](#)
renewed by Greek church, [91](#)
enforced by Gregory I., [124](#)
enforcement attempted in 744, [132](#)
in 9th century, [136](#)
in England, in 12th century, [277](#)
by Council of Coyanza, in 1050, [303](#)
in Anglican church, [494](#)
applied to female relatives, [138](#), [331](#), [628](#)
relaxation of, in 1536 and 1548, [518](#), [525](#)
by Council of Trent, [538](#)
efforts to enforce, in 17th century, [561](#)
disregarded in modern times, [626](#)

Nicetas Pectoratus, his defence of Greek church, [191](#)

Nicholas de Clemanges (see *Clemanges*).

Nicholas I. enforces the rule of celibacy, [139](#)
his relaxation of the rules, [141](#)
on sacraments of sinful priests, [194](#)

Nicholas II., his election, [192](#)
his reforms, [194](#), [197](#), [199](#)
he intervenes in Milanese troubles, [213](#)
his canons on celibacy renewed, [227](#)
he enforces celibacy in France, [255](#)
his death, [200](#)

Nicholas III., his efforts with Greek church, [328](#)

Nicholas V., regulations of, [397](#)

Nicholas the deacon, [34](#)

Nicolites, heresy of, [34](#)
priestly marriage ascribed to, [191](#), [201](#)
married priests stigmatized as, [211](#)
abjuration of, in Milan, [214](#)
condemnation by C. of Piacenza, [221](#)

in Germany, in 12th century, [318](#)

Nigel of Ely, his revolt, [281](#)

Niklaushausen, Hans of, [405](#)

Nimptschen, escape of nuns from, [425](#)

Nismes, residence of relatives forbidden, [332](#)

Noailles, Cardinal, on absolution by guilty confessor, [576](#)

Nobla Leyczon, La, [373](#), [374](#)

Nomocanon of Photius, [87](#)

Norbert, St., reforms effected by, [265](#)

Nordhausen, Council of, in 1105, [244](#)

Norfolk, married priests ejected in, [480](#)

Norfolk, Duke of, suppresses the Pilgrimage of Grace, [456](#)
introduces the Six Articles, [467](#)

Normandy, condition of church in 10th century, [155](#)
enforcement of celibacy in 12th century, [268](#), [319](#)

North, Sir Edward, obtains the Charter-House, [451](#)

Northmen, effect of their incursions, [139](#)

Northumberland, Earl of, his insurrection in 1569, [496](#)

Northumbrian priests, rules for, [168](#)

Norway, rights of illegitimates in, [197](#)

Nowell, Dean, on Council of Trent, [537](#)

Nucius, Nicander, on English monasteries, [452](#), [458](#), [469](#)

Nullity of marriage in orders introduced in 1123, [313](#)
at Council of Trent, [536](#)

Nunneries, disorders of, under Carlovingians, [137](#)
in 10th century, [152](#)
in 12th century, [264](#), [282](#), [318](#)
in 13th century, [268](#)

in 14th century, [340](#)
in 15th century, [389](#), [393](#), [399](#)
in 16th century, [451](#), [526](#), [527](#)
abuse of confessional in, [572](#)

Nuns, shaving of head prohibited, [104](#)
punishment for unchastity, [131](#)
seduction of, a capital offence, [136](#)
their scandalous lives under Carolingians, [137](#)
test for their virtue, [292](#)
their residence with monks, in Spain, [305](#)
wives of monks must become, [324](#)
ordered to sleep singly, [332](#)
Lollard denunciations of them, [381](#)
apostate, claimed by the church, [424](#)
their emancipation, in the Reformation, [425](#), [427](#), [435](#)
ejected, held to chastity in England, [469](#)
their numbers in England, [471](#)
married, divorce of, [480](#)
their corruption by confessors, [523](#), [574](#), [586](#), [588](#)
their trial by Inquisition, [588](#)
secularized in Italy, [610](#)
marriage of (see *Marriage*).

Nürnberg, Diet of, in 1522, [424](#), [431](#)
in 1523, [69](#), [413](#), [424](#)
secularization of Augustinians, [425](#)
friars deprived of superintendence of nuns, [432](#)

Nurses of priests' children, their position, [306](#)

Nursia, priest of, case of, [124](#)

Oath of Knight Templars, [362](#)
prescribed for French clergy, [589](#)

Obedience, monachal, nature of, [102](#)

Observances common to Catholicism and Buddhism, [35](#)
and Mazdeism, [44](#)

Odo of Canterbury, his indifference to celibacy, [166](#)

Odo of Toul on relaxation of discipline, [326](#)

Ogilby, Marion, [503](#)

Old Catholics, schism of, [604](#)

Olmütz, Synod of, in 1342, [338](#)
in 1413, [383](#)
in 1591, [555](#)

Oral Law, development of, [24](#)
burdens imposed by, [26](#)

Orange, Council of, in 441, [60](#), [76](#)

Ordeal, its use in ecclesiastical trials, [140](#)

Ordericus Vitalis, [156](#), [176](#)

Order of widows, apostolic, [96](#)

Orders, military, the, [362](#)
mendicant, the, [375](#)

Orders, religious, their abolition recommended, [523](#), [587](#)
unauthorized, suppressed in France, [621](#)

Orders, holy, in Wicliffe's reforms, [379](#)

Ordination dissolves marriage, [313](#), [536](#)
indelible under Wicliffe, [379](#)
in modern France, [600](#)-1
minimum age for, [624](#)
sacrament of, attacked by Luther, [418](#)
superior to marriage, [314](#), [642](#)

Oriesis, St., rule of, [101](#)

Origen, asceticism condemned by, [33](#)
his self-mutilation, [40](#)

Origenism, influence of, [86](#)

Original sin, Council of Trent on, [640](#)

Orihuella, Council of, in 1600, [557](#), [562](#), [574](#)

Orleans, Council of, in 511, [80](#)
in 533, [60](#), [80](#)
in 538, [69](#), [80](#)
in 541 and 549, [80](#)

Ormanetto, Niccolo, his mission to Bavaria, [536](#)

Orthodox Brethren, the, [375](#), [385](#)

Orzechowski, Stanislas, case of, [540](#)

Osber, Council of, in 1062, [201](#)

Osbern, his life of St. Dunstan, [166](#)

Osiander on virginity of the Virgin, [69](#)

Osius of Cordova, influence of, [51](#)

Osnabruck, Synods of, in 1625, 1628, [556](#), [558](#)

Osorius on marriage of military orders, [365](#)

Ossory, Council of, in 1320, [299](#)

Oswald, St., his reforms, [169](#)

Oswalde's Law, charter of, [169](#)

Otfrid of Watten, his troubles, [260](#)

Othlonus, his temptations, [188](#)

Otho I. deposes John XII., [144](#)
condemns priestly marriage, [150](#)
on sons of priests, [229](#)

Otho IV., his league with John of England, [283](#)

Otho of Constance, case of, [229](#)

Otto of Ostia, his mission to Constance, [229](#)

Otto, Cardinal, constitutions of, [288](#), [291](#)

Ottoboni, constitutions of, [291](#)
in Scotland, [301](#)

Oxford, Council of, in 1222, [288](#)
University of, on Wickliffe, [379](#)
reform proposed by, [394](#)
See of, created, [460](#)

Paccanaristes, [613](#)

Pachomius, rule of, [101](#)

Paderborn, Synod of, in 1548, [528](#)
proportion of clergy in, [631](#)

Pagan priests, restrictions on, [49](#)-50

Paleario, Aonio, on Council of Trent, [520](#)

Palencia, Council of, in 1129, [308](#)
in 1388, [311](#)

Palermo, civil marriage valid in, [606](#)

Palestine, monachism introduced in, [97](#)

Panzini on condemnation of marriage, [47](#)
on the suppression of religious orders, [610](#)
on clerical morality, [632](#)
is condemned as a heretic, [602](#), [642](#)

Papacy, degradation of, in 10th cent., [144](#)
in 11th century, [176](#)
released from subjection, [192](#)
election limited to Roman clergy, [200](#)
distrust inspired by, [395](#)
restrictions on it in England, [417](#), [517](#)
opposition to it in England, [444](#)
supremacy abolished in England, [450](#)
restored in England, [482](#)
dependent on celibacy, [536](#)

Papal Court, its immorality, [341](#), [345](#)
its rapacity, [412](#), [416](#)
its repugnance for C. of Trent, [519](#), [522](#)
it hesitates as to celibacy in 18th century, [584](#)

number of women in, 1882, [628](#)

Papal dispensations, their effect, [322](#), [397](#)
sale of, [321](#), [322](#), [345](#), [398](#), [516](#), [517](#), [522](#)
admitted by Council of Trent, [535](#), [642](#)
for married priests, [407](#), [442](#)

Papal infallibility in Vatican Council, [608](#)

Papalists known as Paterins, [237](#)

Paphnutius, story of, [56](#)
quoted in the Reformation, [419](#)

Paraguay, suppression of monasteries in, [609](#)

Parajika rules, in Buddhism, [94](#)

Paregorius, case of, [84](#)

Paris, Council of, in 615, [114](#)
in 1074, [256](#)
in 1212, [270](#), [332](#)
in 1323, [351](#)
in 1521 and 1528, [515](#)
Huguenot Synod of, in 1559, [498](#)
diocese of, absolution in, [576](#)
Parlement of, regulates monastic orders, [585](#)

Parker, Archbishop, his marriage, [472](#)
his rejoinder to Martin, [480](#)
his promotion, [487](#)
he obtains priestly marriage from Elizabeth, [488](#)
his visitation of 1567, [491](#)
he remonstrates with Elizabeth, [493](#)
he evades an extradition question, [513](#)

Parker, Mrs., Elizabeth's insolence to, [491](#)

Parkyns, his account of Abyssinian church, [93](#)

Parlement of Paris regulates monastic orders, [585](#)

Parliament (English) confirms supremacy of Henry VIII., [450](#)

enacts the Six Articles, [467](#)
modifies the Six Articles, [471](#)
legalizes priestly marriage, [473](#)
commands respect for it, [476](#)
reactionary measures under Mary, [478](#)
repeals the laws of Henry VIII., [482](#)
on confessional manuals, [634](#)

Parliament (Scotch) of 1542, [503](#)
of 1560, [506](#)

Parliamentary Abbots in 1539, [458](#)

Parma, trouble with married priests in, [222](#)

Partidas, Las Siete, marriage forbidden in, [309](#)

Partner in guilt, absolution by, [575-8](#), [633](#)

Paschal II., his efforts to enforce celibacy, [244](#)
enforces celibacy in Denmark, [253](#)
in Brittany, [259](#)
in Flanders, [262](#)
in Spain, [305](#)
on ministration of married priests, [275](#)
on children of priests, [276](#)

Passau, enforcement of celibacy in, [230](#)
Council of, in 1284, [338](#)
troubles of, in 1431, [395](#)
Transaction of, [443](#)

Paterins, origin of the name, [211](#)
their heresy, [207](#)
their doctrines, [367](#)
German papalists so called, [237](#)

Patmore, Thomas, punishment of, [462](#)

Patra, the Buddha's begging-dish, [35](#)

Patrician heresy, [45](#)

Patrick, St., his classification of merit, [46](#)

founds Irish church, [159](#)
celibacy in his church, [76](#)
Synod of, in 672, [160](#)

Patronage, abuse of, France, 16th cent., [515](#)

Paul, St., his liberalizing views, [26](#)
his asceticism, [31](#)
he enjoins abstinence from women, [49](#)
on ministration of women, [60](#)
his order of widows, [96](#)

Paul III. prevents reconciliation with Lutherans, [441](#)
grants dispensations for married priests, [442](#)
excommunicates Henry VIII., [455](#)
convokes Council of Trent, [520](#)
attempts a reform of the church, [516](#), [522](#)
obliged to abandon it, [523](#)

Paul IV. pronounces Savonarola orthodox, [386](#)
on English church-lands, [483](#)
on abuse of confessional, [568](#)
puts his own “Consilium” in the Index, [523](#)

Paul V. on abuse of confessional, [569](#)

Paul of Samosata, case of, [42](#)

Paul the Thebæan, the first anchorite, [97](#)

Paula, Francisco de, advocates clerical marriage, [602](#)

Pauline Christianity, [27](#)

Paupers, monastic vows taken only by, [168](#)

Pavia, Council of, in 1022, [178](#)
schismatic Synod of, in 1076, [219](#), [220](#)

Payne, Peter, [382](#)

Peasants’ War, the, [435](#)

Peckham of Canterbury, efforts of, [291](#)

Pedro de Luna, legate to Spain, [310](#)

Pekin, number of Buddhist monks in, [95](#)

Pelagius I. endeavors to enforce the canons, [123](#)
separates wives of subdeacons, [124](#)

Pelagius II., his relaxation of rules, [122](#)

Peñafiel, Council of, in 1302, [310](#)

Penance of married priests under Mary, [481](#)
term of, for infraction of canons, [80](#), [157](#), [160](#)
for unchastity, [169](#)

Penitential of Theodore on marriage, [48](#)

Penitentials, coarseness of, [566](#), [634](#)

Penitentiary, taxes of the, [428](#)

Pepin d'Heristel, policy of his house, [127](#)

Pepin-le-Bref reforms the clergy, [132](#)
his policy, [134](#)

Pères de la Foi, [613](#)

Périgord, Manichæism in, in 1147, [207](#)

Persecution of Manichæans, [43](#)

Persecution of monks by Leo the Isaurian, [90](#)
by Valens, [99](#)
of married priests, [234](#), [423](#)
of Catholics in Scotland, [512](#)
of celibacy under the Terror, [593](#)

Perth, monasteries destroyed in, [508](#)

Peru, corruption of church of, [564](#)-5

Perushim, [25](#)

Peter, St., his view of Christ's mission, [26](#)

Peter d'Ailly on corruption of priests, [350](#)
on nunneries, [389](#)
he condemns Men of Intelligence, [385](#)

Peter of Antioch, [107](#)

Peter Cantor on clerical morals, [265](#)
on false accusations, [369](#)

Peter of Capua, Cardinal, enforces celibacy in Poland, [251](#)

Peter, Cardinal, exhorted to suppress marriage, [203](#)

Peter Comestor deprecates celibacy, [325](#)

Peter Martyr, tumult in Oxford against, [474](#)
exhumation of his wife, [484](#)

Peter the Venerable, miracle related by, [266](#)
he refutes the Petrobrusians, [370](#)

Peter de Vineia on official venality, [284](#)

Peter Waldo, his career, [372](#)

Peterboro', the first bishop of, [454](#)
See of, created, [460](#)

Petrarch, his opinion of papal court, [342](#)

Petrobrusian heresy, [370](#)

Petronio, Marco, on clerical morality, [631](#)

Peutwitz, escape of nuns from, [425](#)

Peyrinnis, Laurent de, regulations of, [562](#)

Pfaffenkind, [336](#)

Pharisees, [25](#)

Philibert of Sedan on clerical marriage, [594](#)

Philip of Burgundy, bishop of Utrecht, [429](#)

Philip of Savoy, his career, [290](#)

Philip II. prevents the granting of clerical marriage, [544](#)
his policy with regard to Council of Trent, [547](#), [553](#)
he supports St. Charles Borromeo, [551](#)

Philippe, frère, of the Écoles Chrétiennes, [617](#), [620](#)

Philo on Therapeutæ, [26](#)

Phlebotomy of monks prohibited, [138](#)

Phœbe the deacon, [60](#)

Photinus, [39](#)
his heresy as to the Virgin, [68](#)

Physicians, prelates not to be, [227](#)

Piacenza, Bishop of, aids to elect Cadalus, [200](#)
Council of, in 1095, [221](#)
trouble in, [222](#)

Pibo of Toul inquires as to sacerdotal marriage, [243](#)

Picardi, [385](#)

Pictish church, character of, [160](#)

Piedmont, priestly marriage in, [202](#)
monastic orders suppressed in, [609](#)
number of clergy in, [630](#)

Pier-Leone, antipope, his character, [341](#)

Pierre de Bruys, [370](#)

Piers Ploughman, Vision of (see *Langlande*).

Piers Ploughman, Creed of, [352](#)
on Franciscans, [376](#)

Pietro Igneo excommunicates married priests, [222](#)

Pietro, schismatic Bishop of Lucca, [222](#)

Pietro de Santa Maria enforces celibacy in Bohemia, [246](#)

Pignan, disorders of canons of, [573](#)

Pilgrimage of Grace, the, [455](#)

Pilgrims, female, dangers to, [164](#)
deterred from visiting Rome, [145](#)

Pinytus of Gnosus, his asceticism, [34](#)

Pisa, Council of, failure of its reforms, [413](#)

Pistoia, trouble with married priests in, [222](#)
state of convents of, [586](#)
Council of, in 1786, [587](#)

Pius II. on the origin of celibacy, [29](#)
he favors clerical marriage, [406](#)
he increases the annates of Mainz, [412](#)

Pius III. his Bull of Reformation, [523](#)

Pius IV. on the origin of celibacy, [29](#)
he admits the story of Paphnutius, [56](#)
he reconvenes the Council of Trent, [521](#)
he temporizes with demand for clerical marriage, [531](#)
he swears his prelates to support vows of chastity, [533](#)
he approves his legates' tergiversation, [535](#)
he concedes the cup to German laity, [541](#)
his treatment of Orzechowski, [541](#)
he inclines to grant clerical marriage, [544](#)
but at length refuses, [545](#)
he orders reception of C. of Trent, [547](#)
on abuse of confessional, [568](#)

Pius V. admits that heresy is justified by clerical immorality, [430](#)
his accession, [547](#)
his reforms, [548](#)-50
he suppresses the Umiliati, [552](#)
his Bull Contra Sodomitas, [578](#)
is stigmatized as a Lutheran, [641](#)

Pius VI. on abuse of confessional, [578](#)

Pius VIII. offers to permit clerical marriage, [598](#)

Pius IX. on dissolution of priestly marriage, [317](#)
he resists clerical marriage, [601](#)
his organization of the Vatican Council, [603](#)
he denounces civil marriage, [605](#)
growth of church under him, [608](#)
his policy on monastic vows, [610](#)-11

- on absolution for solicitation, [633](#)
- Podiebrads, the, of Bohemia, [384](#)
- Poissy, Colloquy of, on virginity of the Virgin, [69](#)
 - its result, [559](#)
- Poitiers, Council of, in 1000, [157](#)
 - in 1078, [256](#)
 - Huguenot Synod of, in 1560, [559](#)
 - Bishop of, on degradation of clergy, [638](#)
- Poland, enforcement of celibacy in, [251](#)
 - its alliance with Bohemia, [384](#)
 - its complaints of papal exactions, [397](#)
 - clerical celibacy questioned in 15th century, [409](#)
 - clerical marriage demanded in 1556, [529](#)
- case of Orzechowski, [540](#)
 - reception of Council of Trent, [547](#)
 - celibacy discussed in 18th century, [584](#)
- Pole, Cardinal, on need of reformation, [522](#)
 - his legatine powers, [478](#)
 - is installed as legate, [482](#)
 - he enforces celibacy, [483](#)
 - he orders exhumation of Peter Martyr's wife, [484](#)
 - he forbids withdrawal of married priests, [485](#)
 - his death, [486](#)
- Political importance of celibacy, [201](#)
 - influence of married priests in 1061, [200](#)
 - of monachism, [106](#)
 - of Belgian clergy, [623](#)
 - teaching of monachism, [617](#)-8
- Pollution of priests among the Jews, [22](#)
- Polygamy of Jews and Christians, [38](#)
 - of priesthood, [172](#), [181](#), [247](#)
 - permitted by John of Leyden, [438](#)
- Pomerania, clerical morals in 15th cent., [401](#)

Pomeranius on Luther's marriage, [425](#)

Pontanus on Alexander VI., [345](#)

Pontigny, Abbot of, punished, [404](#)

Poor Men of Lyons, [373](#)

Poor-laws, English, commencement of, [460](#)

Poor, relief of, in Scotland, [508](#)

Pope (see *Papal*).

Pope, Simon, case of, [479](#)

Poppo of Brixen created pope, [187](#)

Popular desire for clerical celibacy, [77](#), [234](#)
invoked by the church, [227](#), [232](#)

Population, influence of celibacy on, [360](#)

Port of Spain, Council of, in 1854, [626](#), [633](#)

Portalis promises clerical marriage under the Concordat, [596](#)
forbids it, [597](#)

Portugal, military orders in, [365](#)
abuse of confessional in, [569](#)

Poverty not required in primitive monachism, [101](#), [112](#)
enforced in rule of Tetradius, [112](#)
in rule of military orders, [362](#)
of Irish church, [297](#)
of Scottish church, [508](#)
of Waldenses, [374](#)
of Franciscans, [376](#)

Poynette, Bishop, his writings, [473](#), [480](#)

Præmunire for recognizing papal authority, [456](#)

Pragmatic Sanction of 1438, [396](#)

Prague, enforcement of celibacy in, [246](#)
Univ. of, condemns Wickliffe, [382](#)

Councils of, in 1405-7, [383](#)
in 1565, [554](#), [556](#)
in 1860, [627](#), [633](#)
clerical marriage in 1578, [555](#)
Confession of Faith of 1432, [384](#)

Pratimoksha, the, [94](#)

Predestinarianism of Huss, [382](#)

Prelates not to be physicians, [227](#)

Prélibation, droit de, [354](#)

Premontre, order of, [264](#)

Priests, children of (see *Children*).

divorces of (see *Divorces*).

marriage of (see *Marriage*).

immorality of (see *Morals*).

forbidden to bear arms, in 1049, [189](#)

compelled to keep concubines, [310](#), [388](#), [389](#)

privileges of their concubines, [339](#)

reconciled, treatment of, in England, [484](#), [485](#)

their position, in French Revolution, [590](#)-2

obliged to join in wolf-hunts, [303](#)

purgation of, in Saxon England, [174](#)

punishment of, for unchastity, [131](#)

responsible for parish property, [123](#)

their position in modern France, [637](#)

sinful, their ministrations, [194](#), [368](#), [374](#), [379](#), [383](#)

their influence, [346](#)

mutually absolve each other, [428](#)

adulterous wives of, to be put away, [39](#)

their wives in Italy, in 8th century, [127](#)

disorders caused by, [147](#), [175](#)

stigmatized as concubines, [196](#)

reduced to slavery, [242](#)

assumed to be women in service, [489](#)

their resistance to celibacy, [202](#), [212](#), [222](#), [228](#), [231](#)

their power and privileges, [355](#)
they corrupt the laity, [265](#), [346](#), [350](#), [429](#), [430](#), [518](#), [530](#), [533](#), [586](#),
[629](#)

Priesthood, hereditary (see *Hereditary*).
becomes indelible, in 12th century, [314](#)
is incompatible with medicine, [227](#)

Priestly caste, danger of creating, [225](#)

Primitive church, asceticism in, [31](#)
marriage permitted in, [28](#)

Privileges accorded to priests' concubines, [339](#)

Procedure, ecclesiastical, gives practical immunity, [140](#)

Procopius, St., his marriage, [181](#)

Procopius the Hussite, [384](#)

Prodicus, heresy of, [33](#)

Promotion dependent on celibacy, [75](#), [76](#)

Property, church, threatened by priestly marriage, [123](#)
dilapidation, in 10th cent., [145](#), [147](#)
in France before 1789, [589](#)

Property, monastic, in England, [459](#)
confiscated in Germany, [434](#), [437](#), [439](#)
in France, [589](#)
in Italy, [609](#)

Prosecution of clerical offenders in France, [636](#)

Prostitution encouraged by celibacy, [629](#)

Prota, Dr., on civil marriage, [606](#)

Protection accorded to clerical criminals, [635](#)

Provence, Waldenses in, [375](#)

Prussia, foundation of kingdom of, [434](#)
acknowledges clerical marriage, [604](#)
proportion of clergy in, [630](#)

Prussia, West, morals of clergy, in 15th century, [402](#)

Public school system of France, [623](#)

Punishment, mildness of, for solicitation, [571](#)

Purgation of Anglo-Saxon priests, [174](#)
of married priests, [277](#)

Purgatory maintained by Henry VIII., [454](#)

Puricelli on marriage of Eriberto of Milan, [209](#)
on Ambrosian tradition, [210](#)

Puritanism, influence of, [357](#)

Purity required of pagan priests, [49](#)

Quebec, Councils of, in 1851 and 1854, [626](#), [633](#)

Quedlinburg, Diet of, in 1085, [239](#)

Quimper, diocese of, hereditary descent in, [259](#)

Quinisext in Trullo, [88](#)

Quito, Council of, in 1869, [627](#)

Radulphus Ardens on Manichæism, [208](#)
on clerical morals, [265](#)

Rainbaldo of Fiesole, [180](#)

Ranald and Raymond, case of, [146](#)

Rapacity of papal court, [412](#), [416](#)

Rasfeldt, Bishop, his misadventures, [548](#)

Ratherius of Verona on hereditary transmission, [146](#)
his priests all married, [148](#)
his contest with his clergy, [150](#)

Ratisbon, Council of, in 13th century, [248](#)
in 1512, [429](#)
Assembly of, in 1524, [423](#)
Diet of, in 1532, [439](#)

in 1541, [440](#)
Bishop John of, [429](#)
Ratramnus of Corvey on Nicene canons, [55](#)
Rauscher, Cardinal, denounces civil marriage, [605](#)
Ravenna, Council of, in 967, condemns priestly marriage, [150](#)
in 997, [157](#)
in 1568, [553](#)
in 1855, [627](#)
Raymond of Gallicia, [307](#)
Raymond du Puy founds Knights of St. John, [362](#)
Recared I. enforces celibacy, [121](#)
Reconciliation of Imperialist clergy, in 1106, [245](#)
of Anglican clergy, [484](#), [485](#)
of England to Rome, [482](#)
Reformation, the, in Germany, [410](#)-43
caused by clerical corruption, [430](#), [514](#), [516](#), [518](#), [527](#), [529](#), [548](#),
[556](#) sqq.
in England, [444](#)-97
in France, [498](#)-500
in Scotland, [501](#)-13
Reforms proposed at Constance, [391](#)
undertaken at Bâle, [395](#)
attempted at Trent, [538](#)
Réfractaires priests, [590](#)
Regency, Council of, in 1523, [424](#)
Reggio, trouble with married priests in, [222](#)
Reginald of Canterbury, his life of St. Malchus, [275](#)
Regino of Pruhm on residence of female relatives, [138](#)
on legalized concubinage, [196](#)
Regnier the Albigenian, [367](#)

Relatives, residence of (see *Residence*).

Relaxation for abuse of confessional, [569](#)

Relics, false, sold by monks, [102](#)

ridiculed by Erasmus, [414](#)

impostures of, in England, [458](#)

Renan, Ernest, on morality of clergy, [625](#)

Renaud of Rheims protects Flemish priests, [261](#)

Residence of relatives forbidden, [138](#), [331](#), [555](#), [560](#)

its danger, [628](#)

of women, canon of Nicæa on, [53](#)

Emperor Honorius on, [55](#)

prohibition enforced, [84](#)

in Greek church, [91](#)

by Gregory I., [124](#)

forbidden, in 744, [132](#)

legislation on, [136](#)

tolerated in Spain, [303](#), [307](#), [309](#)

regulated in 1536, [518](#)

over forty years old permitted, [525](#)

permitted by Council of Trent, [538](#)

regulations for, [554](#), [560](#), [561](#)

in Spanish colonies, [563](#)

modern rules for, [626](#), [628](#)

Resistance of clergy to celibacy, [202](#), [212](#), [222](#), [228](#), [231](#)

Responsibility of the church, [355](#)

thrown upon God, [536](#), [624](#)

Restoration, monachism under the, [613](#)

Restrictions on monachism by Valens, [99](#)

by Majorian, [105](#)

in the East, [107](#)

in modern times, [608](#), [613](#), [621](#)

on clerical marriage by Elizabeth, [489](#)

Results of celibacy, [330](#)

Reuchlin and the theologians, [413](#)

Revolution, French, its treatment of the church, [588](#)-94
tolerates Sisters of Charity, [613](#)
of 1830, its influence on monachism, [614](#)

Rhea, worship of, [50](#)

Rheims, Council of, in 874, [141](#)
in 1049, [189](#)
in 1119, [267](#)
in 1130, [314](#), [315](#)
in 1148, [315](#)
in 1408, [350](#)
in 1564, [559](#)
in 1583, [560](#)
in 1849, [626](#)

Rhodes, Knights of, [362](#), [366](#), [458](#)

Ribadeneira, his life of Loyola, [517](#)

Ricci, Scipione dei, [587](#)

Richard of Albano appealed to, [261](#)

Richard of Dover on suppression of monasteries, [455](#), [456](#)
on starving out of monasteries, [457](#)
on false relics, [458](#)
intercedes for ejected monks, [460](#)

Richard the Fearless reforms Fécamp, [155](#)

Richard Fitz-Neal, his advancement, [281](#)

Richard of Marseilles, papal legate to Spain, [304](#)

Richmond, Thos., case of, [382](#)

Richstich Landrecht, children of clerks in, [336](#)

Riculfus of Soissons on incest, [138](#)

Ridley, Bishop, prepares the Forty-two Articles, [475](#)

Rigobert, St., of Rheims, [129](#)

Ritualists, Anglican, on marriage, [476](#)

Rivera on toleration of adultery, [566](#)

Robber Synod at Ephesus, [107](#)

Robert d'Arbrissel, his reforms, [258](#), [265](#)

Robert of Artois, case of, [261](#)

Robert, Cardinal, his constitutions, [332](#)

Robert the Frisian enforces celibacy, [260](#)

Robert the Good (Naples) remits fines on concubinage, [339](#)

Robert the Hierosolymitan of Flanders, [261](#)

Robert the Pious, his neglect of celibacy, [179](#)
he burns heretics, [207](#)

Robert of Rouen, his character, [155](#)

Robles, his life of Ximenes, [403](#)

Roderic of Spain repeals Witiza's laws, [122](#)

Rodolf of Bourges on residence of female relatives, [138](#)

Rodolf of Swabia, his coronation at Mainz, [236](#)

Rodolphus Glaber on simony, [185](#)

Rodriguez on seduction in confessional, [570](#)

Roman clergy, papal election by, [200](#)

Roman Law, concubinage under, [196](#)

Roman Republic, abrogation of monastic vows in 1849, [609](#)

Rome, Council of, in 384, [64](#), [103](#)
in 721, and 722, [127](#)
in 745, [132](#)
in 826, [196](#)
in 1051, [189](#)
in 1052, [196](#)
in 1057, [192](#)

- in 1059, [194](#)
- in 1063, [196](#), [202](#)
- in 1066, [216](#)
- in 1074, [227](#)
- in 1075, [231](#)
- in 1076, [229](#), [232](#)
- in 1079, [56](#)
- in 1725, [626](#)
- pseudo-council under Silvester, [55](#), [122](#)
- avarice of, [397](#), [412](#)
- brothels kept by prelates in, [429](#)
- England reconciled to, [482](#)
- Germany oppressed by, [412](#)
- heretics forbidden in, [70](#)
- its influence extended to Ireland, [296](#)
 - to Spain, [303](#)
- jurisdiction of, its limits, [84](#)
 - its demoralizing effect, [139](#), [322](#), [345](#)
 - surrendered by Alexander IV., [334](#)
- morals of Pagan, [32](#)
 - of Christian, [81](#), [181](#), [341](#), [549](#), [587](#)
- modern political opinions of, [618](#)
- number of clergy in, [630](#)
- pilgrims deterred from visiting, [145](#)
- reforms of Pius V., [550](#)
- revision of modern councils at, [628](#)
- rule respecting the subdiaconate, [124](#)
- supremacy over Milan asserted, [213](#)
- toleration of attacks, 15th cent., [387](#), [417](#)
 - of sacrilege and lust, [431](#)
 - of Greek discipline, [640](#)
- Romuald the priest, case of, [127](#)
- Romuald, St., [186](#)
- Rosceline on priests' children, [276](#)
- Rota, priest of, his fate, [236](#)

Rothius on the Nicolites, [34](#)

Rouen, Archbishops of, in 10th cent., [155](#)

Council of, in 1072, [256](#)

in 1148, [372](#)

in 1189, [322](#)

in 1581, [500](#)

in 1850, [626](#), [633](#)

Roussillon, Edict of, in 1564, [499](#)

Rules of monachism, early, [101](#)

of St. Benedict, [112](#)

of St. Cassianus, [101](#), [110](#)

of St. Chrodegang, [134](#)

of St. Columba, [160](#)

of St. Oriesis, [101](#)

of St. Pachomius, [101](#)

of St. Tetradius, [112](#)

Rupert of Duits on priestly marriage, [247](#)

Ruremonde, Synod of, in 1570, [562](#)

Russel, Lord, suppresses insurrection in Devon, [475](#)

Russian church, customs of, [91](#)

Rusticus of Narbonne, [76](#)

Sabatati, [373](#)

Saccofori, [44](#)

Sacerdotalism, necessity of celibacy to, [225](#)

popular antagonism to, [368](#)

Sachsenspiegel, children of clerks in, [336](#)

Sacrament of marriage inferior to ordination, [313](#), [315](#), [642](#)

of sinful priests, [194](#), [368](#), [374](#), [379](#), [383](#)

Sacrilege and lust, tolerance for, [431](#)

Sadducees, conservatism of, [24](#)

Sadoletto, Card., on need of reformation, [522](#)

Saignet, his advocacy of clerical marriage, [353](#), [406](#)

St. Albans, Abbey of, its disorders, [399](#)

St. Caterina di Pistoia, Abbess of, [586](#)

St. Cornelius, church of, charter to, [270](#)

St. Denis, Council of, in 995, [154](#)
Abbey of, its disorders, [264](#)

St. Esprit, Society of, [613](#)

St. Fara, monastery of, its disorders, [264](#)

St. Gildas de Ruys, Abbey of, [264](#)

St. Iago of Compostella, church of, [306](#)

St. James of the Sword, Order of, [363](#)

St. John, Knights of, [362](#), [366](#), [458](#)

St. Louis, Council of, in 1858, [627](#)

St. Marco, preservation of, in 1866, [609](#)

St. Martin of Tours, Abbey of, [404](#)

St. Mary of Argenteuil, Convent of, [264](#)

St. Michael, Order of, [365](#)

St. Omer, Synod of, in 1099, [261](#)
in 1583, [560](#)
in 1640, [562](#)

St. Peter of Sens, Abbey of, [153](#)

St. Riquier, Abbey of, its strictness, [404](#)

St. Sabina, Cardinal of, enforces celibacy in Sweden, [253](#)

St. Stephen, church of, in Aretino, [147](#)

St. Ursmar, married canons of, [270](#)

St. Vitus, monks of, reformed by Gregory I., [114](#)

Saintes, monastic school at, case of, [619](#)

Saints in Benedictine Order, [113](#)

Salamanca, Council of, in 1335, [310](#)

Salerno, Council of, in 1596, [553](#)

Salona, Archbishop of, degraded, [188](#)

Salvianus on condition of morals, [81](#)

Salzburg, disorders in 12th century, [247](#)
Archbishop of, demands suppression of clerical marriage, [530](#)
asks for clerical marriage, [539](#)
impossibility of reform, 16th century, [548](#), [554](#)
XXXth Council of, [350](#)
in 1537, [518](#)
in 1549, [527](#)
in 1562, [531](#)

Sampson, Thos., on position of married clergy, [496](#)

Samson, Nazirate of, [22](#)

Samuel, Nazirate of, [22](#)

Sanadon of Oléron on clerical marriage, [594](#)

Sanders on Cranmer, [470](#), [474](#)
on delay in authorizing priestly marriage, [488](#)
on Elizabethan clergy, [494](#)

Sandys, Bishop, on delay of priestly marriage, [488](#)
his quarrel with Sir J. Bourne, [496](#)

Sanghadisesa rules, in Buddhism, [95](#)

Sangharamas, Buddhist, [94](#)

Sangreal, the, [35](#)

Sankhya school, [23](#)

Sannazaro on Innocent VIII. and Alexander VI., [345](#)

Sannyasis, class of, [23](#)

Sanseverino, Council of, in 1597, [553](#)

Santafé, Council of, in 1556, [563](#)

Saoshyans, the Zend Messiah, [35](#)

Sarabaitæ, [107](#), [109](#), [115](#)

Saragossa, Council of, in 381, [98](#), [100](#)
in 592, [80](#)

Sarah, Abbess, her fortitude, [188](#)

Sardinia, civil marriage enacted, [605](#)
suppression of monasteries, [609](#)

Sarpi, Fra Paolo, on Tridentine points of faith, [641](#)

Satan, his estimate of chastity, [348](#)
his gratitude to the church, [351](#)
venerated by Begghards, [377](#)

Saturnilus, heresy of, [33](#)

Saurin vs. Starr and Kennedy, [611](#)

Savonarola, [386](#)
on priestly morals, [399](#)
on morals of nunneries, [403](#)
on abuse of confessional, [567](#)

Savoy, priestly marriage in, [203](#)
in the Revolution, [592](#)

Saxon bishops ejected by Normans, [271](#)
married priests in Ireland, [298](#)
(See, also, *Anglo-Saxon*.)

Saxony, commencement of priestly marriage in, [419](#)

Sbinco of Prague, his reforms, [383](#)

Scandal more dreaded than sin, [518](#), [565](#), [567](#), [568](#), [571](#), [577](#), [579](#), [619](#),
[628](#), [634](#)-5

Scandals of agapetæ, [41](#)

Scandinavia, morals of bishops, [389](#)

Scania, demand for priestly marriage in, [252](#)

Scaren, plunder of bishopric of, [279](#)

Schening, Council of, in 1548, [253](#)

Schism of 1061, influence of celibacy on, [200](#)

Schmalkalden, League of, its founding, [438](#)
its overthrow, [441](#)
its negotiations with Henry VIII., [466](#)

Schmidt, Conrad, his heresy, [385](#)

Schmidt, Johann, Bishop of Vienna, [439](#)

School system, public, in France, [623](#)

Schools of monastic orders in France, [617](#)-21

Scotland, its church, founded by Columba, [160](#)
claim of York on, [161](#)
celibacy in early church of, [161](#)
position of concubines in, [197](#)
enforcement of celibacy in, [299](#)
Council of, in 1225, [301](#)
the Reformation in, [501](#)-13

Scribes, their influence, [24](#)

Scythianus, precursor of Manes, [44](#)

Sebastian of Portugal on papal dispensations, [517](#)

Second marriages (see *Marriage*).

Secular power invoked to regulate monachism, [100](#)
protects married priests, [151](#), [152](#)
its assistance invoked, [178](#), [203](#), [293](#), [294](#), [309](#), [559](#), [560](#)
celibacy subject to, [583](#)

Secularization of church property in Germany, [427](#), [435](#), [437](#)
in England, [454](#)-60
in France, [589](#)

in Italy, [609](#)
of education in France, [623](#)
Seduction of nuns a capital offence, [136](#)
Segenfrid of Le Mans, evil courses of, [152](#)
Sendomir, Agreement of, [385](#)
Sens, Council of, in 1850, [626](#)
Seraphin of Gran on marriage, [249](#)
Sergius III., his immorality, [144](#)
Serfs, ordination of, [155](#)
Servant, priest's wife assumed to be a, [489](#)
Servitude of sons of priests, [155](#)
of their wives, [189](#), [242](#), [309](#)
Severus repeals Majorian's laws, [106](#)
Seville, Council of, in 590, [80](#)
in 1512, [400](#)
dress of concubines regulated, [517](#)
abuse of confessional in, [569](#)
Sextus Philosophus on mutilation, [40](#)
Shaving, resistance of clergy to, [553](#)
Shaxton, Bishop, opposes the Six Articles, [469](#)
Sheep-farming, discontent caused by, [474](#)
Shrewsbury, hereditary benefices in, [272](#)
Sicily, monachism reformed by Gregory I., [114](#)
celibacy of subdeacons, [124](#)
children of ecclesiastics in, [335](#)
civil marriage valid, [606](#)
episcopal convention of, in 1850, [626](#)
Sickingen, Franz von, [421](#)
Siedeler, Jacob, fate of, [419](#)

Siegfrid of Mainz, his troubles with celibacy, [231](#)

Siete Partidas on origin of celibacy, [29](#)
celibacy enjoined in, [309](#)

Sigismund (Emp.) advocates clerical marriage, [406](#)

Silesia, heresy of John of Pirna, [378](#)
marriage in post-Tridentine church, [555](#)
clerical marriage asked for in 1831, [601](#)

Silvester I. on abuse of confession, [567](#)
forged canons of, [122](#), [137](#)

Silvester II. on celibacy, [157](#)

Silvester III., election of, [183](#)

Simon, Jules, opposes secularized education, [623](#)

Simoniacal priests, sacraments of, [195](#)

Simony, in 11th century, [185](#), [214](#)
its repression by Leo IX., [189](#)
by Gregory VII., [229](#)
papal, [398](#)

Simple vows prevent marriage, [321](#)

Simplicius, St., of Autun, case of, [78](#)

Sin (see *Scandal*).
its influence on sacraments, [194](#)
Wickliffe's definition of, [379](#)

Siricius makes no reference to Nicene canon, [55](#)
commands celibacy, [65](#), [72](#)
on heresy of Bonosus, [68](#)
of Jovinian, [69](#)
on disregard of vows, [100](#)
on monastic unchastity, [103](#)

Sister, residence of (see *Residence*).

Sisters of Charity, [612](#)-3

Sithieu, Abbey of, its strictness, [404](#)

Sitten, Synod of, in 1500, [402](#)

Six Articles (see *Articles*).

Sixtus III. on marriage, [47](#)
his trial, [82](#)

Sixtus IV., his vices, [344](#)
his sale of preferments, [398](#)

Sixtus V. on children of cardinals, [550](#)

Skopsis, sect of, [41](#)

Slave children of priests emancipated, [563](#)

Slavery for wives of priests, [189](#), [242](#), [389](#)
for their sons, [155](#)

Slaves, female, their union with priests, [249](#)

Slavonic church, its connection with the Greek, [244](#)
adherence to priestly marriage, [251](#)

Sleidan on organized concubinage, [353](#)

Sleswick, clerical morals in 15th cent., [402](#)

Smaragdus on monastic impostors, [115](#)

Smith, Dr. Richard, on clerical matrimony, [474](#)

Smith, Sir Thomas, on celibacy, [497](#)

Socrates on the story of Paphnutius, [56](#)
on observance of celibacy, [86](#)

Soissons, Synod of, in 744, [132](#)
Manichæism in 1114, [207](#)

Solicitation (see *Confessional*).

Somerset the Protector encourages the reformers, [472](#)

Sons of priests (see *Children*).

Sorbonne, the, condemns Hildebrandine doctrine, [382](#)

condemns Jean Lallier, [408](#)
refuses conference with Melanchthon, [440](#)

Sormitz, escape of nuns from, [425](#)

Sousa, Ant. de, on solicitation, [571](#)

Sozomen relates the story of Paphnutius, [56](#)

Spain, celibacy first enforced in, [50](#), [66](#)
disregarded in 375, [65](#)
legislation in 400, [75](#)
continued efforts required, [80](#)
morals of, in 4th century, [81](#)
monasticism in 7th century, [115](#)
celibacy in Arian church, [120](#)
reforms attempted by Catholicism, [121](#)
church property guarded, [123](#)
concubines, position of, [196](#), [197](#)
enforcement of celibacy in, [302](#)
priestly marriage universal, [303](#)
delay in abrogating priestly marriage, [305](#)
immorality of clergy, [311](#)
military orders, [363](#)
demoralization in 15th century, [400](#)
Ximenes and the Franciscans, [402](#)
morals in 16th century, [517](#)
priestly marriage demanded, [556](#)
concubinage of ecclesiastics, [557](#)
the Colonial church, [563](#)
abuse of confessional, [568](#)-74
case of Father Mena, [579](#)
census of the church in 1764, [588](#)
civil marriage agitated, [605](#)

Spalatin, his record of priestly marriages, [422](#)

Spalatro, Council of, in 925, [149](#)
in 1185, [250](#)

Spaldwick, Vicar of, scandal caused by, [485](#)

Spandel, Chris., on corruption of clergy, [556](#)

Spanish church, its independence of Rome, [302](#)
colonies, corruption of church in, [563](#)

Spelman on Anglo-Saxon monachism, [173](#)

Spifame, Bishop of Nevers, [499](#)

Spiti, number of monks in, [95](#)

Spotswood claims extradition of Baron's wife, [513](#)

Sraddha, [23](#)

Standards of morality, [269](#), [347](#), [349](#), [627](#)

State, permission of the, required by monastic orders in 1760, [585](#)
its subjection to the church, [618](#), [639](#)

Statistics of abuse of confessional, [573](#), [636](#)
of Buddhist monachism, [95](#)
of clergy in France, [593](#), [637](#)
in Germany, [630](#)-1
in Italy, [630](#)
in Naples, [631](#)
of Company of Jesus, [615](#)
of monachism in Austria, [615](#)
in Belgium, [615](#)
in France, [614](#), [615](#), [617](#)

Stephen IX. forces episcopate on Damiani, [186](#)
his efforts at reform, [192](#)
intervenes in Milanese troubles, [212](#)

Stephen, King (England), his siege of Devizes, [281](#)

Stephen of Halberstadt on the Imperialists, [239](#)

Sterckx, Archbishop, his "Petronilla," [629](#)

Stipends of married priests guaranteed, [594](#)

Stokesley of London on suppression of monasteries, [454](#)
on priestly marriage, [462](#)

Storck and the Anabaptists, [438](#)

Strassburg, popular protection of married priests, [423](#)

Synod of, in 1549, [528](#)

in 1687, [562](#)

Strype, his description of English clergy, [476](#)

Sturmius, Balt., his marriage, [421](#)

Subdeacons allowed to marry, [39](#)

their marriage forbidden in 530, [86](#)

separated from their wives, [124](#)

marriage of, forbidden in 952, [149](#)

subjected to the canon, [196](#), [204](#)

when married, removed from benefice, [242](#)

their celibacy in Dalmatia, [250](#)

their marriage in Hungary, [250](#)

and in Austria, 1267, [251](#)

their celibacy in Denmark, [253](#)

rules in England, [274](#)

exceptions in favor of immorality, [320](#)

their marriage permitted, [324](#)

Suchuen, abuse of confessional in, [578](#)

Suczinsky, Dean, his marriage, [604](#)

Suffolk, Duke of, suppresses insurrection, [455](#)

Suger of St. Denis imprisons Éon de l'Étoile, [372](#)

Suidger of Bamberg created pope, [184](#)

Sulpicius Severus, St., favors Vigilantius, [71](#)

Sulpitius of Bourges, [118](#)

Suppression of monasteries in Germany, [427](#), [435](#)

in England, [448](#), [454](#)

means adopted for, [457](#)

financial results of, [460](#)

by Joseph II., [584](#)

in France, [589](#)

in recent times, [608-9](#)

Suzor of Tours on clerical marriage, [594](#)

Swabia, enforcement of celibacy in, [233](#)

Sweden, position of concubines in, [197](#)
enforcement of celibacy in, [252](#)
Englishmen as bishops, [278](#)
morals of bishops, [389](#)

Swithin, St., marriage of, [165](#)

Switzerland, celibacy at Constance, [229](#)
clerical morals of, 13th century, [340](#)
organized concubinage in, [353](#)
Zwingli's movement, [421](#)
demoralization in 16th century, [429](#)
clerical marriage in modern times, [601](#)

Syllabus of 1864 on dissolution of marriage, [317](#)
its political teachings, [618](#)
argued away by Dupanloup, [642](#)

Symmachus prohibits marriage of nuns, [111](#)
on confessors and penitents, [567](#)

Synesius, case of, [85](#)

Taas, Hussite victory of, [382](#)

Taborites, the, [383](#)

Tacitus on morality of Germans, [118](#)

Taillard on origin of celibacy, [30](#)

Talasius of Angers on celibacy, [79](#)

Talesperianus of Lucca, charter of, [127](#)

Talleyrand secularizes church property, [589](#)

Talon, Omer, on marriage of apostates, [501](#)

Tamar and Judah, [21](#)

Tanner, Dr., on number of ejected priests, [480](#)

Tapas, character of, [24](#)

Tarento, Archb. of, advocates marriage, [631](#)

Tarragona, Council of, in 516, [80](#)
in 1591, [562](#)
in 1717, [626](#)

Tatianus, heresy of, [33](#)

Taxes of the Penitentiary, [428](#), [517](#)

Teachers, character of monastic, [618](#)

Teaching, political, of monachism, [618](#)

Tedaldo, Archbishop of Milan, [219](#)

Templars, military order of, [362](#)

Temporal possessions (see *Secularization*).

Temporalities of church endangered by marriage, [63](#), [407](#)
of married clerks, seizure of, [258](#)

Tenure of chastity, benefices held by, [311](#)

Terbinthus, teacher of Manes, [44](#)

Terouane, marriage of priests in, [262](#)

Terror, the, position of priests under, [590](#)
persecution of celibacy, [593](#)
Sisters of Charity tolerated, [613](#)

Tertullian denounces second marriages, [36](#)
on virginity of the Virgin, [68](#)
on merits of widows and virgins, [96](#)
on accusations against Christians, [208](#)

Test, clerical marriage as a, [592](#)

Tetradius, St., Rule of, [112](#)

Tetzel, sale of indulgences by, [413](#)

Teutonic Knights, order of, [366](#)
 marriage of, [434](#)
 tribes, virtue of, [82](#)

Thane-right, [173](#)

Theatricals in nunneries, [527](#)

Theocracy proposed by Gregory VII., [223](#)

Theodatus of Corvey, success of, [227](#)

Theodore of Canterbury, his penitential, [48](#), [162](#)
 on sacrament of sinful priests, [195](#)

Theodore Studita on monastic morals, [109](#)

Theodoric of Verdun, his remonstrances, [233](#)

Theodoric a Niem on John XXII., [344](#)
 on Swedish bishops, [389](#)

Theodosius the Great suppresses polygamy, [38](#)
 prohibits shaving of nuns, [104](#)
 restricts monachism, [108](#)

Theodosius of Jerusalem, [107](#)

Theodulf of Orleans on incest, [138](#)

Theodwin and Albert at Council of Avranches, [319](#)

Theophilus of Alexandria, rigor of, [349](#)

Theophylact on “unius uxoris vir,” [38](#)

Therapeutæ, [26](#)

Thessalonica, celibacy enforced in, [86](#)

Thibaut of Oxford on priests’ children, [276](#)

Thomas Aquinas (see *Aquinas*).

Thomas à Becket on simony, [284](#)

Thomas of Cantinpré on corrupting influence of priesthood, [350](#)

Thomas of Walden on Wickliffe, [379](#)

Thomas, Wm., on English monasteries, [452](#)
de Thou, on refusal to grant clerical marriage, [544](#)
Thuringia, the Brethren of the Cross, [385](#)
Thurles, Council of, in 1850, [626](#), [633](#)
Tibet, number of monks in, [95](#)
Tibullus on purity required for sacrifice, [49](#)
Timotheists, their heresy, [376](#)
Tithes, seizure of, by the laity, [258](#)
Toledo, Council of, in 398, [196](#), [566](#)
 in 400, [75](#), [105](#)
 in 531, [80](#)
 in 589, [80](#), [120](#)
 in 597 and 633, [80](#)
 in 653, [80](#), [121](#)
 in 655, [121](#)
 in 675, [80](#)
 in 1565 and 1582, [562](#), [574](#)
 discipline of, in Spanish church, [302](#)
Toleration of attacks by Rome, [386](#), [415](#), [417](#)
Toleration, condemned by the church, [618](#)
Tonsure, differences as to, [161](#), [163](#)
Toribio, St., of Peru, [564](#)
Torné of Bourges, his marriage, [591](#)
Tortosa, Council of, in 1429, [311](#), [364](#)
Torture not allowed in trials for solicitation, [571](#)
Toul, hereditary transmission in, [266](#)
 relaxation of discipline in, [326](#)
Toulouse, Council of, in 1056, [255](#), [304](#)
 in 1119, [208](#), [267](#)
 in 1850, [626](#), [633](#)

spread of heresy in, [207](#), [370](#)

Tournay, Synod of, in 1520, [575](#)
in 1574, [560](#)

Tournon, Cardinal, his efforts at reform, [515](#)

Tours, Council of, in 460, [80](#)
in 567, [80](#), [120](#)
in 925, [146](#)
in 1060, [198](#), [255](#)
in 1096, [263](#)
in 1163, [319](#)
in 1583, [560](#)
in 1849, [626](#)

Trani, married bishop deposed, [197](#)
civil marriage valid in, [606](#)

Transaction of Cadam, [439](#)
of Passau, [443](#)

Transsubstantiation, Wickliffe's error on, [378](#)

Treason, English monks punished for, [451](#), [457](#)

Treglia, Andrea, case of, [606](#)

Tréguier, residence of relatives forbidden, [332](#)

Trent, Council of, [514](#)-45
expectations with regard to it, [441](#), [443](#)
it authorizes dispensations for married priests, [442](#)
its canons on matrimony, [534](#)-6
on adultery, [566](#)
its non-reception in France, [546](#)
its reception elsewhere, [547](#)
failure of its reforms, [548](#) sqq.
enforcement of its canons, [552](#), [553](#), [554](#)
it avoids reference to abuse of confessional, [568](#)
on power of absolution, [575](#)
on age of ordination, [624](#)
on gift of chastity, [624](#)

on residence of women, [626](#), [628](#)
on celibacy as matter of faith, [640](#)

Trèves, persecution of married clergy in, [234](#)
morals of clergy, in 12th century, [248](#)
Archbp., asks for clerical marriage, [539](#)
effort for clerical marriage, in 1833, [601](#)
proportion of clergy in, [631](#)
Synod of, in 1548, [525](#)
in 1549, [526](#)
in 1678, [562](#)

Triologus, Wickliffe's, [380](#)

Tribunal, mixed, for married priests, [257](#)

Tribur, assembly of, in 1076, [237](#)

Trinidad and Mercede, Orders of, [311](#)

Trithemius on Benedictine saints, [113](#)
on monastic immorality, [404](#)

Tropea, sister of Pier-Leone, [342](#)

Trosley, Council of, in 909, [141](#)

Troyes, Synod of, in 1107, [245](#)
in 1128, [362](#)

Tsadukim, hereditary priesthood of, [22](#)
their conservatism, [24](#)

Tuam, Council of, in 1854, [633](#)

Tudeschi, Nich., advocates clerical marriage, [406](#)

Turin, Council of, in 401, [75](#)

Turner, John, penance of, [481](#)

Turquoin, suppression of unauthorized orders in, [622](#)

Tuscany, priestly marriage defended in, [199](#)
clerical morals in 18th century, [586](#)

Tyndale advocates priestly marriage, [462](#)

Ulric, St., of Augsburg on priestly marriage, [149](#)
Ulric of Bohemia founds Abbey of Zagow, [181](#)
Ulric of Tegernsee on bigamy, [181](#)
Umbilicani, [24](#)
Umiliati, their struggle with St. Charles Borromeo, [551](#)
Unchastity, forgiveness for, in False Decretals, [136](#)
 punished as homicide, [169](#)
United States, priestly marriage in, [607](#)
 morality of clergy in, [625](#)
 recent Councils of, [626-7](#), [633](#)
University Fellows, celibacy of, [492](#)
Urban II. on sacraments of sinful priests, [195](#)
 creates Conrad King of Lombardy, [220](#)
 reconciles the Milanese clergy, [220](#)
 holds Council of Piacenza, [221](#)
 enforcement of celibacy attributed to, [225](#)
 not recognized in Germany, [241](#)
 his enforcement of celibacy, [242](#)
 protects Flemish priests, [261](#)
 declares marriage incompatible with Orders, [313](#)
Urban III. enforces celibacy in Dalmatia, [250](#)
Urban VIII. on abuse of confessional, [573](#)
Urbicus of Clermont, case of, [73](#)
Urbino, Council of, in 1569, [553](#)
 in 1859, [627](#)
Urraca, Queen, [306](#)
Useria, supposed wife of Eriberto of Milan, [209](#)
Utopia, Sir Thomas More's, [446](#)
Utraquists, the, [384](#)
Utrecht, condition of nunneries, 14th century, [340](#)

reception of Council of Trent in, [553](#)
Synods of, in 1561 and 1565, [554](#)
in 1865, [627](#), [633](#)

Vagabond monks, [102](#), [109](#), [115](#)

Vagabondage, Tudor laws on, [455](#), [460](#)

Valence, Council of, in 374, [100](#), [103](#)

Valencia, Council of, in 1255, [309](#)
in 1565, [562](#)

Valens, his restrictions on monachism, [99](#)

Valentinian on clerical morals, [63](#)

Valentinus, heresy of, [33](#)

Valesians, sect of, [40](#)

Valladolid, Council of, in 1322, [310](#), [364](#)

Vallombrosa, monks of, [183](#)

Vanaprasthas, class of, [23](#)

Varahran I. persecutes Manichæism, [43](#)

Vatican, Council of, in 1870, [603](#)
its decree of infallibility, [608](#)
number of women in, 1882, [628](#)

Vaudois, the, [373](#)

Vedas, doctrine of Tapas in, [24](#)

Vega, Fray Juan de la, [572](#)

Veil, taking the, a marriage with Christ, [104](#)

Velda, Dr., case of, [570](#)

Venality of officials, [253](#), [278](#), [284](#), [293](#), [312](#), [321](#), [327](#), [332](#), [337](#), [339](#),
[345](#), [396](#), [401](#), [433](#), [517](#), [522](#)

Venantius of Syracuse, case of, [113](#)

Venezuela, suppression of monasteries in, [609](#)

Venice, relaxation of the canon in, [205](#)
 number of priests in, [588](#)
 Council of, in 1859, [627](#)

Vercelli, troubles of married priests in, [152](#)

Verdun, reform of monks of, [264](#)

Veringen, Count of, case of, [235](#)

Verneuil, Synod of, in 755, [134](#)

Vernon, Council of, in 845, [139](#)

Verona, trouble with married priests, [151](#)

Vertfeuil, extent of heresy in, [370](#)

Vestal Virgins, [50](#)

Vestments, monastic, salvation ensured by, [335](#)

Veillot, Louis, on droit de marquette, [355](#)

Vicenza, Council of Trent transferred to, [520](#)

Victimes de l'Amour de Dieu, [613](#)

Victor II., his efforts at reform, [191](#)
 enforces celibacy in France, [255](#)

Victor III. on Italian church, [180](#)

Victricius opposes Vigilantius, [71](#)

Vienna, Council of, in 1267, [251](#)
 in 1858, [627](#), [633](#)

Vienne, Council of, in 1060, [198](#)
 in 1311, [376](#)

Vigilantius, his resistance to celibacy, [70](#)

Vihara, Buddhist monastery, [94](#)

Villa, father, of Monza, [621](#)

Villiers, Abbé, defends celibacy, [582](#)

Villiers de l'Isle-Adam, [366](#)

Vincent, St., de Paul, [612](#)

Vintimiglia, Nunzio, his negotiations with Maximilian II., [543](#)

Virgil, Polydor, on celibacy in England, [273](#)

Virgin Mary, heresies concerning, [68](#)
her message to Gregory VII., [226](#)

Virginal, Curé of, his opinions, [623](#)

Virginity, extravagant praises of, [45](#), [347](#), [349](#)
by Chrysostom, [86](#)
importance attributed to, [98](#)
by the Fraticelli, [377](#)
by Wickliffe, [380](#)
compared with marriage, [46](#), [47](#), [96](#), [318](#), [347](#)
superiority of, a Tridentine dogma
of morals, [536](#), [641](#)
St. Jerome on its rarity, [624](#)
perpetual, of the Virgin, [68](#)
vows of (see *Vows*).

Virgins, priests to marry none but, [38](#)
number of, in early church, [98](#)
professed (see *Nuns*).

Visconti, Nunzio, on marriage at Trent, [535](#)

Visitation of monasteries by Archbishop Morton, [399](#)
by Archbishop Warham, [447](#)
ordered by Henry VIII., [451](#)
its effect, [453](#)

Vitalis of Mortain preaches reform, [258](#)

Vitry, Jacques de, case of, [398](#)

Vladislas II. on clerical immorality, [401](#)

Vows of chastity, introduction of, [41](#)
not favored in early church, [48](#)
their temporary character, [41](#), [97](#)
their increasing permanency, [105](#)

rendered irrevocable by Gregory I., [113](#)
infanticide caused by them, [100](#)
are ordered for subdeacons, [124](#)
their perversion, [127](#)
made a prerequisite to holy orders, [179](#)
work dissolution of marriage, [313](#)
difference between simple and formal, [321](#)
are denounced by Lollards, [381](#)
 by Luther, [421](#)
are maintained in the Six Articles, [469](#)
prelates at Trent sworn to support them, [533](#)
their observance a point of faith, [641](#)
papal dispensation for, [535](#), [642](#)
 never granted by Pius IX., [611](#)
minimum age for, defined by Pius IX., [611](#)
limited to five years in France, [613](#)

Vows, monastic, rendered indissoluble in the East, [107](#)
 of the military orders, [362](#)

Vrie, Theodoric, on clerical immorality, [389](#)

Wahu, Dr., on monastic schools, [619](#)
 on cases of clerical prosecution, [636](#)

Wake, Archbishop, his correspondence with Du Pin, [582](#)

Waldemar II. on concubines, [197](#)

Walden, Abbot of, his marriage, [463](#)

Waldo, Peter, [372](#)

Waldenses, the, [373](#)

Waldeck, Count of, his treatment of monks, [435](#)

Wales, celibacy in early church, [163](#)
 state of church in 9th century, [171](#)
 priestly marriage in 13th century, [285](#)
 its persistence, [294](#)

Walter of Orleans on residence of female relatives, [138](#)

Warham, Archbishop, his visitation, [447](#)

Wartburg, Luther's confinement in, [419](#)

Watten, Priory of, its troubles, [260](#)

Wealth of church, its growth, [63](#)

Wedlock (see *Marriage*).

Wenceslas of Bohemia, his reforms, [383](#)

Wendt, Rev. Mr., case of, [636](#)

Wer-gild of priest, [173](#)
of children of clerks, [336](#)

Western monachism, character of, [109](#), [112](#)

Westminster, Council of, in 1127, [280](#)
in 1138, [281](#)
short-lived bishopric of, [460](#)
canons of, ejected, [479](#)

Westmoreland, Earl of, his insurrection in 1569, [496](#)

Weston, Dr., story of, [477](#)

Wexford, married priests of, [298](#)

Whitby, Synod of, in 664, [161](#)

Wiburn, Percival, on marriage of Anglican clergy, [495](#)

Wicelius, George, on clerical marriage, [542](#)

Wickliffe on sacraments of sinful priests, [196](#)
his reforms, [378](#)

Widowhood, vows of, license caused by, [127](#)

Widows, priests not to marry, [39](#)
order of, in early church, [42](#), [96](#)
comparison of, with virgins, [46](#), [96](#), [347](#)
professed, marriage of, [110](#)

Wied, Hermann von, his attempts at reform, [518](#)

Wiesbaden, clerical marriage in 1821, [601](#)

Wilfreda, St., [167](#)

William of Bavaria on church corruption, [527](#)

William of Cantilupe enforces celibacy, [288](#)

William of Cologne forbids marriage of monks, [340](#)

William the Conqueror enforces celibacy in Normandy, [257](#)
permits marriage in Brittany, [259](#)
neglects reform in England, [271](#)

William of Hilderniss, [385](#)

William the Lion on concubines, [197](#)
persecutes the clergy, [301](#)

William of Malmesbury on Anglo-Saxon church, [176](#)

William of Paderborn, his failure to reform, [340](#)

William of Sabina, legate to Spain, [310](#)

William of Strassburg excommunicates married priests, [424](#)

Willibrod, St., his labors, [126](#)

Wills, ecclesiastical, providing for children, [337](#)

Winchester, reform of monastery of, [168](#), [169](#)
Council of, in 1070, [272](#)
in 1076, [273](#)
in 1139, [371](#)
hereditary transmission in, [286](#)

Windsor, Synod of, in 1070, [272](#)

Wine of Eucharist in early church, [44](#)
abstinence from, not recommended, [48](#)

Wishart, George, his trial, [510](#)

Wisigothic laws on clerical celibacy, [121](#)
on church property, [123](#)

Wisigoths of Spain, state of church under, [120](#)

Witgar of Mendlesham, [282](#)

Witiza, his licentious laws, [121](#)

Witnesses, use of ordeal for, [140](#)
married priests not admitted as, [294](#)
four required to prove solicitation, [571](#)

Wittenberg, books of canon law burned at, [418](#)
Synod of, in 1522, [420](#)

Wives, demerit of, [46](#)
adulterous, to be put away, [39](#)
of Huguenot pastors, [498](#)
of Anglican clergy, their position, [496](#)
of bishops, their retention, [85](#), [88](#)
to be separated, [89](#)
under the Franks, [119](#)
in Gothic Spain, [121](#)
they rank as countesses, [259](#)
their position in Anglican church, [495](#)
consent of, requisite for episcopate, [249](#)
for diaconate, [250](#), [251](#)
for monastic vows, [324](#)
of monks to become nuns, [114](#), [205](#), [324](#)
of priests, their cohabitation permitted, [28](#), [48](#)
forbidden by Council of Elvira, [50](#)
permitted by Councils of Ancyra and Neocæsarea, [51](#)
and by Council of Nicæa, [53](#), [54](#)
and through the 4th century, [55](#), [58](#), [61](#), [79](#)
forbidden by Damasus, [64](#)
and by Siricius, [65](#)
forbidden in Gaul and Spain, [75](#)
and in Africa, [73](#)
permitted in the East, [86](#), [89](#)
custom in modern Russia, [91](#)
their position under the Franks, [120](#)
legislation in Gothic Spain, [121](#)
are to be treated as sisters, [124](#)

in Italy, in 8th century, [127](#)
they cause dilapidation of property, [147](#)
Anglo-Saxon denunciation of, [175](#)
are stigmatized as concubines, [196](#)
their fidelity, [202](#)
their sufferings, [235](#)
are declared slaves of church, [189](#)
are reduced to slavery, [242](#), [309](#)
their seizure threatened, [261](#)
treatment of, in England, [274](#), [277](#), [287](#)
they assist at altar in Germany, [318](#)
are liable to death under the Six Articles, [468](#)
legislation under Queen Mary, [485](#)
are assumed to be serving women, [485](#)
of subdeacons to be separated, [124](#)

Wolff, Christian, on Paphnutius, [57](#)
on Council of Trent, [640](#)

Wolfgang of Ratisbon exhorts to chastity, [152](#)

Wolf-hunts, priests obliged to join in, [303](#)

Wolsey, Cardinal, attacks monastic orders, [447](#)
his fall, [449](#)

Women, abstinence from, in pagan priesthood, [49](#)
not admitted in temple of Hercules, [50](#)
admitted to monasteries, [101](#)
their exclusion from monasteries, [403](#)
their ministration forbidden, [60](#)
their teaching forbidden, [60](#)
discredited as witnesses, [571](#)
rules for, in visiting bishops, [119](#)
residence of (see *Residence*).

Wood, T., on position of Anglican clergy, [497](#)

Worcester, reformation of monks in, [169](#)
Chapter of, disorders of, [491](#)

Works, merits of, in Catholicism, [115](#)

in Calvinism, [498](#)
justification by, in Scotland, [506](#)
in Knox's confession, [512](#)

Worms, Diet of, in 1076, [234](#)

Wurtzburg, Council of, in 1446, [377](#)
in 1548, [528](#)
character of clergy, in 1521, [431](#)
clerical marriage in, [555](#)

Wu-Tsung, his persecution of Buddhism, [95](#)

Wyatt's rebellion, suppression of, [478](#)

Ximenes reforms the Franciscans, [402](#)

Yoga system, asceticism of, [23](#)

York, its claim on Scottish church, [161](#)
Council of, in 1195, [288](#)
Wolsey's reformation at, [447](#)
married priests ejected in, [480](#)

Ypres, Synod of, in 1629, [562](#)
abuse of confessional in 1768, [577](#)

Yves of Chartres (see *Ivo*).

Zabarella, Cardinal, advocates clerical marriage, [406](#)

Zabolcs, Synod of, in 1092, [248](#)

Zaccaria on origin of celibacy, [29](#)
on the Nicene canon, [55](#)
on Gregory of Nazianzum, [58](#)
on dissolution of priestly marriage, [317](#)
his defence of celibacy, [583](#)-4

Zachary, Pope, on Frankish church, [130](#)
on Saxon church, [164](#)

Zaga Zabo, his account of Coptic church, [93](#)

Zagow, Abbey of, foundation of, [181](#)

Zurich, priests of, defend their women, [340](#)

Zwilling, Gabriel, preaches against monasticism, [421](#)

Zwingli demands priestly marriage, [421](#)

WORKS BY THE SAME AUTHOR

STUDIES IN CHURCH HISTORY.

The Rise of the Temporal Power—Benefit of Clergy—Excommunication
—The Early Church and Slavery.

Second edition, revised. In one large royal 12mo. volume of 603 pages.
Cloth, \$2.50. Just issued.

No part of this learned and authoritative work has escaped revision. The new matter strengthens, illustrates more copiously, and enlivens with anecdote the original argument, and, by adducing modern instances, brings the work up to date.—*N. Y. Nation*, May 24, 1883.

The author is preëminently a scholar; he takes up every topic allied with the leading theme and traces it out to the minutest detail with a wealth of knowledge and impartiality of treatment that compel admiration. The amount of information compressed into the book is extraordinary, and the profuse citation of authorities and references makes the work particularly valuable to the student who desires an exhaustive review from original sources. In no other single volume is the development of the primitive church traced with so much clearness and with so definite a perception of complex or conflicting forces.—*Boston Traveller*, May 3, 1883.

Mr. Lea is *facile princeps* among American scholars in the history of the Middle Ages, and, indeed, we know of no European writer who has shown such research, accuracy, and grasp in investigating important and out-of-the-way topics connected with the history of Europe in the Middle Ages.—*N. Y. Times*, April 30, 1883.

It is some years since we read the first edition of this work by Mr. Lea, and the impression made by it on us at the time is confirmed by reperusal of it in this enlarged and improved form, namely, that it is a book of great research and accuracy, full of varied information on very interesting phases of church life and history. It discusses each subject with a rare fulness of

dates and instances, and a curious conscientiousness of verification and citation of authorities.—*Edinburgh Scotsman*, June 2, 1883.

SUPERSTITION AND FORCE.

Essays on The Wager of Law, The Wager of Battle, The Ordeal, and Torture.

Third revised and enlarged edition. In one handsome royal 12mo. volume of 552 pages. Cloth \$2.50.

This valuable work is in reality a history of civilization as interpreted by the progress of jurisprudence. In "Superstition and Force" we have a philosophic survey of the long period intervening between primitive barbarity and civilized enlightenment. There is not a chapter in the work that should not be most carefully studied; and, however well versed the reader may be in the science of jurisprudence, he will find much in Mr. Lea's volume of which he was previously ignorant. The book is a valuable addition to the literature of social science.—*Westminster Review*, Jan. 1880.

This is a book of extraordinary research. Mr. Lea has entered into his subject *con amore*, and a more striking record of the cruel superstitions of our Middle Ages could not possibly have been compiled. As a work of curious enquiry into certain outlying points of obsolete law, "Superstition and Force" is one of the most remarkable works we have met with.—*London Athenæum*, November 3, 1866.

The appearance of a third edition of Mr. Henry C. Lea's "Superstition and Force" is a sign that our highest scholarship is not without honor in its native country.—*N. Y. Nation*, August 1, 1878.

Mr. Lea's curious historical monographs, of which one of the most important is here reproduced in an enlarged form, have given him an unique position among English and American scholars. He is distinguished for his recondite and affluent learning, his power of exhaustive historical analysis, the breadth and accuracy of his researches among the rarer sources of knowledge, the gravity and temperance of his statements, combined with singular earnestness of conviction, and his warm attachment to the cause of freedom and intellectual progress.—*N. Y. Tribune*, August 9, 1878.

HENRY C. LEA'S SON & CO., PHILADELPHIA.

IMPORTANT RELIGIOUS BOOKS.

Rev. James Freeman Clarke.

Ten Great Religions. 8vo., \$3.00.

Ten Great Religions. Part II. Comparison of all Religions. 8vo., \$3.00.

Common Sense in Religion. 12mo., \$2.00.

Prof. J. Lewis Diman.

The Theistic Argument as Affected by Recent Theories. Crown 8vo. gilt top, \$2.00.

Orations and Essays, with selected Parish Sermons. With Memorial Address by Prof. J. O. MURRAY and Portrait. 8vo. gilt top, \$2.50.

Rev. Washington Gladden.

The Lord's Prayer. Seven Essays on the Meaning and Spirit of this universal Prayer. 16mo. gilt top, \$1.00.

Rev. Samuel Johnson.

Oriental Religions, and their Relation to Universal Religion. I. India, 8vo., \$5.00. II. China, 8vo., \$5.00. III. Persia, 8vo. (*In Press.*)

Lectures, Essays, and Sermons. With a Portrait and Memoir by Rev. SAMUEL LONGFELLOW. Crown 8vo. gilt top, \$1.75.

Rev. Elisha Mulford.

The Republic of God. An Institute of Theology. 8vo., \$2.00.

Rev. T. T. Munger.

On the Threshold. Familiar Lectures to Young People. 16mo. gilt top, \$1.00.

The Freedom of Faith. A volume of Sermons. 16mo. gilt top, \$1.50.

J. A. W. Neander.

General History of the Christian Religion and Church. Translated from the German by Rev. JOSEPH TORREY. With an Index volume. The set, six volumes, \$20.00. The Index volume separate, \$3.00.

Edward Robinson, D.D., LL.D.

Harmony of the Four Gospels, in Greek. 8vo., \$1.50.

The Same, in English. 12mo., 75 cents.

Biblical Researches in Palestine. With Maps. In three volumes, 8vo., \$10.00.

Physical Geography of the Holy Land. Supplement to "Biblical Researches in Palestine." 8vo., \$3.50.

Gesenius. A Hebrew and English Lexicon of the Old Testament, including the Biblical Chaldee. 8vo. half Russia, \$6.00.

English-Hebrew Lexicon: Being a complete Verbal Index to Gesenius' Hebrew Lexicon, as translated by Prof. EDWARD ROBINSON. By JOSEPH LEWIS POTTER, A.M. 8vo., \$2.00.

*For sale by all booksellers. Sent, post-paid, on receipt of price by the
Publishers,
HOUGHTON, MIFFLIN & CO., BOSTON, MASS.*

FOOTNOTES:

[1](#) Amos ii. 7.—Deut. xxiii. 18.—Micah i. 7.—Herod. I. 199.—Cf. Kuenen, Religion of Israel, I. 92-3, 368.—Rawlinson's Essay X. on Herod. I.—Luciani de Syria Dea vi.

[2](#) When the Church assumed that marriage was incompatible with the ministry of the altar, it was somewhat puzzled to reconcile the hereditary character of the high priesthood with the morning and evening sacrifice required of the high priest (Exod. xxx. 7-8). For ingenious special pleading to explain this away, see St. Augustin, Quæstt. in Pentateuch. iii. lxxxii. and Retractt. ii. lv. 2.

[3](#) Num. vi. 2-21.—Judges xiii-xvi.—I. Sam. i. 11.—Lament. iv. 7-8.—Amos ii. 11-12.—I. Macc. iii. 49.—Mishna, Tract. Nazir.

[4](#) Yasht-Kordah 10.—Bahram Yasht 46.—Sad-der, Porta C.—Philost. de Vit. Sophistt. I. 10.

[5](#) Justin. Historiar. x. ii.

[6](#) Kapila's Aphorisms I. 1 (Ballantyne's Translation).—Sankhya Karika xlv., lxvi., lxxviii. (Colebrook & Wilson's Translation).—For the intercourse between India and the West, see A. Weber, "Die Verbindungen Indiens," etc., in "Indische Skizzen."

[7](#) Surangama Sutra (Beal's Catena, pp. 348-9).—Davids and Oldenberg's Vinaya Texts, Part I. p. 4.—Hodgson's Essays on the Languages, etc., of Nepal and Tibet, pp. 63, 68-70.—Hardy's Eastern Monachism, pp. 50 sqq.

[8](#) Manava Dharma Sastra iv. 257; vi. 1-81. Yet the Sutta Nipata, a Buddhist scripture of unquestioned antiquity, states that of old the Brahmans practised celibacy up to the forty-eighth year. (Sir M. C. Swamy's Translation, p. 81.) Cf. Strabon. Lib. xv., and Clement. Alexand. Stromat. Lib. iii.

[9](#) See Bisse's edition of Palladius de Gentibus Indiæ.—Diog. Laert. Proœm.—Philost. de Vit. Apollon. Tyan.—Porphyry. de Abstinens. iv. 17.

[10](#) A. Weber, Hist. Ind. Lit., pp. 163, 237-9.—Wilson's Vishnu Purana, I. 164.—Garrett's Class. Dict. India, p. 753.

[11](#) Rig Veda, VIII. viii. 48 (Langlois' Translation).—Muir's Sanskrit Texts, IV. 160 sqq.—Harivansa Lect. xxxii.—Hitopadesa (Lancereau's Translation, pp. 178-9, and note to p. 160). The same follies were common to Buddhism. See Fah-Hian (Beal's Buddhist Pilgrims, pp. 101-2).—Eitel's Handbook of Chinese Buddhism, pp. 33, 76.—Rogers's Buddaghosha's Parables, p. 59.—How nearly Christian extravagance reached these altitudes may be seen by reference to the Umbilicani or Quietist monks of Mt. Athos, in the fourteenth century, who became suffused with divine light after prolonged contemplation of their navels (Basnage, in Canisii Thes. Monument. Eccles. IV. 366, sqq.—Dupin, Bibl. des Auteurs Eccles. XI. 96.—Beal's Catena, p. 151).

[12](#) A very good exposition of the Pharisaic revolution will be found in Cohen, *Les Pharisiens*, 2 vols. 8vo., Paris, 1877.

[13](#) Josephi Vit. 2.—Ejusd. Antiq. xv. x. 5; xvii. xiii. 3; xviii. i. 5.—Ejusd. Bell. Jud. ii. viii. 2, 3, 4, 5, 7, 12.—Euseb. H. E. ii. 23, ex Hegesippo.—Hippol. Refut. Omn. Hæres. ix. xiii.-xxii.—Philastr. Lib. de Hæres. ix.—Matt. xix. 12.—Porphyr. de Abstin. iv. 11-13.—Philo probably obtained from the Essenes the ideal which he embodied in his account of the supposititious Therapeutæ (Philon. Lib. de Vit. Contempl. pp. 690-1, Ed. 1613).

[14](#) Matt. xxxiii. 3.—Luc. xi. 46.—Matt. xi. 4-10.

[15](#) Acts ii. 44-6.—James ii. 10.—Matt. v. 17-19; xxiii. 15.—Cf. Galat. ii. 7.

[16](#) Irenæi contra Hæres. i. xxvi. 2.—Hippol. Refut. Omn. Hæres. vii. xxii.—Tertullii Præscript. xlvii.—Euseb. H. E. iii. xxvii.—Epiphan. Panar. Hæres. xxx.—Hieron. Comment. in Matt. ii. xii. 2.—It is possible that “them which say they are Jews and are not,” condemned in Rev. ii. 9; iii. 9, were Ebionites. The Talmud represents the Jewish doctors, after the destruction of Jerusalem, as consorting familiarly and disputing with the Ebionite Christians (Cohen, II. 238-9).

[17](#) Hieron. adv. Jovin. i. 34.

[18](#) Gratiani Decret. P. I. Dist. xxxi. c. xi.

[19](#) Gratiani Comment. in Can. 13. Dist. lvi. See also Comment. in Dist. xxxi.

[20](#) Summa II. ii. Quæst. 186 Art. 4 § 3.

[21](#) Gemma Eccles. ii. vi.

[22](#) Casar solien todos los clérigos antiguamente en el comienzo de la nuestra ley, segunt lo facien en la ley vieja de los judios: mas despues deso los clérigos de occidente, que obedecieron siempre á la eglefia de Roma, accordaron de vevir en castidat.—Las Siete Partidas I. vi. 39.

[23](#) Dial. Sophiae et Naturæ Act. 4.

[24](#) Non erravit ecclesia primitiva quæ sacerdotibus permisit uxores.—Ænei Sylvii Epist. cxxx. (*ap. Zaccaria, Storia Polemica del Celibato Sacro*, Roma, 1775, p. 354).

[25](#) Boussard's tract “De continentia Sacerdotum sub hac quæstione nova. Utrum papa possit cum sacerdote dispensare ut nubat,” was several times reprinted. The edition before me is that of Nürnberg, 1510.

[26](#) Le Plat, Concil. Trident. Monument. VI. 337.

[27](#) Zaccaria, *op. cit.* p. 65. It is curious to observe how, in his anxiety to explain the neglect of the church for these assumed Apostolic commands, Zaccaria proceeds to show that the orders of the Apostles were never received as absolutely binding, as for instance in regard to the prohibition of eating blood and animals dead through strangulation (*Ib.* p. 116).

[28](#) Taillard, *Le Célibat des Prêtres*, Gnesen, 1842.

[29](#) 1. Cor. vii. 8-9, 38.—1. Tim. ii. 14-15.

[30](#) 1. Tim. iv. 3.

[31](#) Quid enim enumeremus infinitam multitudinem eorum qui ab incontinenti intemperataque vita abducti sunt quum hæc ipsa didicissent?—Just. Mart. Apol. II.

[32](#) “Si gloriatur, perditur: et si videri velit plus Episcopo, corruptus est.”—Ad Polycarp. cap. v. (Cureton’s Corpus Ignat. p. 10.) This is the received Latin text, but the weight of authority seems to incline rather to the reading πλήν τοῦ ἐπισκόπου than πλέον (Cureton, p. 228—Petermann’s Ignatius, 274-5). The difference, however, is of little moment to our present purpose.

[33](#) Just. Mart. Apol. II.—Athenagor. pro Christianis Legat.—M. Minuc. Felicis Octavius.—Origenis Comment. in Matt. XIV. 24-5.

[34](#) So widely spread had these doctrines become by the end of the second century that Clement of Alexandria devotes the third book of his Stromata to their discussion and refutation. It is not worth while to examine their peculiarities minutely here. The curious reader can find all that he is likely to want concerning them in Irenæus, Hippolytus, Clement, Epiphanius, and Philastrius, without plunging further into the vast sea of controversial patristic theology.

[35](#) Apocalyps. II. 6, 14, 15, 20.—Irenæi contr. Hæres. I. xxvi.—Hippolyti Ref. omn. Hæres. IV. xxiv.—Clem. Alex. Stromat. Lib. III.—Epiphan. Hæres. xxv.—The injustice thus inflicted on the memory of the worthy Nicholas is recognized by the Apostolical Constitutions (Lib. IV. c. viii.). In 1679, E. P. Rothius published a dissertation (*De Nicholaitis*), in which a vast mass of curious learning is brought to the vindication of the apostolic deacon.

[36](#) Rufin. Hist. Eccles.—Euseb. IV. 23.

[37](#) Hieron. adv. Jovin. Lib. I. c. 42.

[38](#) Compare Beal’s “Romantic Legend of Sakhya Buddha from the Chinese Sanscrit,” pp. 33 sqq., with the Protevangelion, the Gospel of the Infancy, the Gospel of Nicodemus, etc.

Somewhat similar to the Buddhist legend is the assertion of the Jainas that their great Tirthankara, Mahavira, selected the womb of Brahamani Devanandi, wife of Rishabha Datta, as his place of birth; but Sakra, indignant that he should be born in the Brahman caste, caused him to be transferred to Trisala, wife of the Kshatriya Siddhartha (Kalpa Sutra, Bk. I. ch. I. Stevenson’s Translation, pp. 24, 38). Concerning the comparative priority of Jainism and Buddhism, see Thomas’s “Jainism, or the early Faith of Asoka,” London, 1877.

In this connection, it is perhaps worth while to note the Mazdean belief in Saoshyans, the future Messiah, who, as in Judaism, is to overcome the evil powers at the end of the world, and preside over the resurrection of mankind, and who is to be born of a virgin, Eredhat Fedri. (Vendidad, Fargard XIX. 18; Bundeshesh XXX. XXXII. 8, 9; Haug’s Essays, Ed. 1878, pp. 313-14). The mode of

his conception as related in the Bundelesh, may be compared with the less decent speculations of Sanchez as to that of Christ.

[39](#) Beal's Buddhist Tripitaka, pp. 114-5.

[40](#) Marini, Missioni di Tumkino, Roma, 1663, pp. 125, 481, 490 sq.

[41](#) "Quare vel ut natus est unusquisque nostrum manet, vel nuptiis copulatus unicis, secundæ enim decorum quoddam adulterium sunt." Athenag. pro Christ. Legat.—"Unius matrimonii vinculo libenter inhæremus, cupiditate procreandi aut unam scimus aut nullam." M. Minuc. Felicis Octavius.—"Ut ii qui lege humana bis conjugium ineunt peccatores sunt apud præceptorem nostrum." Justin. Mart. Apol. II.—I. Cor. vii. 39.

[42](#) Concil. Neocæs. ann. 314 c. 7.—Concil. Laodicens. ann. 352 c. 1.—Gelasii PP. I. Epist. IX. Rubr. ad cap. xxii.—Cf. Hieron. Epist. XLVIII. apologeticus, c. 18.—Ejusd. Comment. in Jeremiam Prolog. Even in modern times the priest who pronounces a benediction on a second marriage commits an offence subjecting him to punishment (Rodriguez, Nuova Somma de' Casi di Coscienza, Venez. 1609. P. I. cap. ccxl. No. 4).

[43](#) Val. Max. II. i. 3.—Plut. Quæstt. Roman. 105.—Diod. Sicul. XII. 14.—Tertull. Lib. di Exhort. Castit. xiii.—Auli Gellii x. 15.

[44](#) Tertull. Lib. di Exhort. Castit. VII.; de Monogam. xi.—Concil. Eliberit. xxxviii.

[45](#) Hippol. Ref. omn. Hæres. IX. vii.—Hieron. Epist. LXIX. ad Oceanum.—Constit. Apostol. VI. 17.—Canon. Apostol. xvii., xviii., xix.

[46](#) I. Tim. iii. 2, 11, 12—Tit. i. 6.—Origenis Comment. in Matt. XIV. 23. The polygamy practised by the Jews from the earliest times was continued after the Dispersion. Justin Martyr taxes them with it (Dial. cum Tryphone), and Theodosius, in 393 endeavored to suppress it (Const. 7 Cod. Lib. II. Tit. ix.) by a law, the preservation of which by Justinian, after an interval of nearly a century and a half, shows that the necessity for the prohibition still existed. Even among some of the eastern Christians the precept was required, if we may believe some ancient Arabic canons, which pass under the name of the Council of Nicæa (Decret. ex quatuor Regum libris can. v. *ap.* Harduin. Concil. I. 511).

This explanation of St. Paul's injunction is adopted by Theophylact (Comment. in I. Epist. ad Timoth.) and is expressed in the paraphrase "non plures habens uxores quam unam," in a tract of uncertain date, attributed to St. Cyprian or St. Augustin (De XII. Abusionibus Seculæ cap. x. *ap.* Opp. S. Cypriani Mantissa p. 49, Oxon. 1682). This is likewise the view put forward by the Church of Geneva in 1563 when replying to certain queries of the Huguenot Synod of Lyons (Cap. XXI. Art. x. *ap.* Quick, Synodicon in Gall. Reform. I. 49). Origen's discussion of the matter (Comment. in Matt. XIV. 23-4) shows how doubtful he considered it.

In fact, if the text is to be construed with rigorous exactness, it would exclude all unmarried men from the episcopate, and this seems to be the sense attributed to it in the Apostolic Constitutions (Lib. II. c. ii.), which in commenting upon it do not appear to contemplate bachelors as eligible.

[47](#) Levit. xxi. 13-14.—Innocent. PP. I. Epist. xxii. c. 1.—Epistt. Leon. PP. I. *ap.* Harduin. Concil. I. 1767, 1772, etc.

[48](#) Concil. Eliberit. can. 65.—Concil. Neocæsarens. c. 8.—Concil. Tarraconens. ann. 516. can. 9.—Boussardus de Continent. Sacerdot. Prop. 6., Nuremb., 1510.

[49](#) Constit. Apostol. vi. 17.—Canon. Apostol. vi. xvii. xviii. xix. xxvii.

[50](#) Porphy. de Abstinens. ii. 46, 61; iv. 20.—Cf. Jambl. de Mysteriis iv. xi.—Damasceni Vit. Isidori 311.

[51](#) For the influence of Buddhism on Neo-platonism, Gnosticism, and Manichæism, see A. Weber, *Indische Skizzen*, pp. 63, 91.

[52](#) Origenis Comment. in Matt. xv. 1-3.—Just. Martyr. Apolog. II.—Epiphan. Hæres. lvii.—Can. Apostol. xxii. xxiii. xxiv.—Concil. Nicæn. c. i.—Concil. Arelatens. II. ann. 452 c. vii., etc.—Sexti Philos. Sent. ix.—At the close of the twelfth century the canons were relaxed by Clement III. in favor of a priest of Ravenna whose ascetic ardor had led him to follow the example of Origen, and who was permitted to retain all the functions of the priesthood except the ministry of the altar (Can. iv. Extra, I. xx.). In the sixteenth century, Ambrosio Morales, a Dominican, took the same effectual means to extinguish his passions and was in consequence expelled from the Order, as required by the canons. He betook himself to literature and died in 1590 at the age of sixty, while professor of eloquence in the University of Alcalà (De Thou, Lib. xcix.). The practice has perpetuated itself to the nineteenth century in a Russian sect, which Catherine II. and her successors endeavored in vain to repress. In 1818 Alexander II. ordered the enthusiasts banished to Siberia, but the ardor with which they courted martyrdom rendered their zeal dangerously contagious and they were left in obscurity, in the hope of their dying out (Pluquet, *Dict. des Hérésies*, s. v. *Mutilés de Russie*). This proved equally ineffectual, for a recent traveller describes them under the name of *Skopsis* as a large tribe inhabiting the Caucasus, where they flourish in spite of the most energetic measures of repression on the part of the government—imprisonment, banishment to Siberia, conscription, and even the death penalty being powerless to overcome their fanaticism (Brugsch, *Reise der Preussischen Gesandtschaft nach Persien*, 1860-1, *ap.* London Reader, Jan. 3, 1863). Buffon (*Hist. Nat. de l'Homme*, *ap.* Helsen, *Abus du Célibat des Prêtres*, p. 52) states that he was acquainted with a priest who had adopted this mode as the only one to preserve his virtue.

[53](#) Cyprian, de Habit. Virgin.—That such laxity was indulged in by professed virgins is the more remarkable since promiscuous bathing was forbidden to every one by the Apostolic Constitutions, Lib. i. c. x.

[54](#) Tertull. de Virgin. veland. c. xv.

[55](#) Cyprian. Epist. iv. ad Pomponium.

[56](#) Concil. Antioch (Harduin. Concil. I. 198). Cf. Lactant. Divin. Institut. vi. xix.—Extravagances of this kind long continued to be a favorite exercise with enthusiasts. In 450 the anchorites of Palestine are described as herding together without distinction of sex, and with no garments but a breech-clout; while others

who frequented the cities exhibited their self-control by appearing in the public baths with women. (Niceph. Callist. H. E. xiv. 50.)

[57](#) Constit. Apost. II. i. ii.—Statut. Eccles. Antiq. civ.

[58](#) Chronique de Tabari, Ed. Rothenberg, II. 90. It is curious to observe that Persian tradition represented Manes as a Chinese magician and an excellent painter, who constructed figures that were able to move, and thus deceived the people. After gaining the confidence of the monarch, he was vanquished in controversy with the chief Mobed, and was flayed alive. (Mohl's *Livre des Rois*, V. 379-81.)

[59](#) Lib. xvi. Cod. Theod. Tit. v. l. 7.—Cf. Concil. Quinisext, c. 95.

Scythianus, the precursor of Manes, is said by Epiphanius (Hæres. LXVI.) to have visited India and to have brought from there certain books of magic, which must have been Buddhist, as Buddhism was at that period supreme in the Peninsula. His disciple, Terbinthus, the link between him and Manes, assumed the name of the Buddha.

[60](#) Ephræmi Syri Hymn. II. (Wegnern, *Manichæorum Indulgentias*, Lipsiæ 1827)—Thomas's *Sassanian Inscriptions*, p. 65.—Mainy-i-khard, West's Ed. xvi. 16 sq. and West's note p. 160; Glossary p. 64.—Haug's *Essays*, Bombay Ed. p. 239.—Shayast la-Shayast xvii. 2 (West's *Pahlavi Texts*, Pt. I. p. 382 and West's note p. 284).—*Dadistan-i Dinik*, ch. xxviii.-xxx. (*Pahlavi Texts*, II. 58 sqq.)—Plutarch de Isid. et Osirid. 46.—Justin. Mart. Apolog. II.

[61](#) Leon. PP. I. Serm. XLII. cap. 5.

[62](#) Epiphan. Hæres. LXVI.—The same doctrine was held by the Patricians, according to Philastrius, P. III. No. 15.

[63](#) Hieron. adv. Jovin. I. 3.—Ejusd. Epist. ad Eustoch. c. 5.

[64](#) Augustin. Epist. LXXIV. ad Deuterium—Ejusd. contra Faustum Lib. xxx. c. iv.

[65](#) Cyprian. de Habit. Virgin.—Synod. II. S. Patric. c. 18.

[66](#) Hieron. adv. Jovin. I. 2, 26.—Ejusd. Epistt. L. LI. LII.

[67](#) Augustin. de Concupisc. et de Nuptiis.—Ejusd. de Bono Conjugali c. x.—Panzini (*Confessione di un Prigioniero*, p. 193) is not far wrong in suggesting that the learned doctors who thus decry marriage are guilty of the blasphemy of addressing their creator—"Vergognatevi di avere inventato un modo così turpe per darci l'esistenza!"

[68](#) Sulpic. Sever. Dial. II.

[69](#) In Mag. Bib. Pat. T. V. P. II. pp. 652, 658.

[70](#) Gregor. P.P. I. Regist. Lib. XI. Epist. lxiv. Respons. 10; Lib. III. Epist. lxxv.

[71](#) Theodor. Penitent. Lib. I. c. xiv. 1, 2, 3. (Haddon & Stubbs's *Councils*, III. 187.)

[72](#) Epiphan. Exposit. Fid. Cathol.

[73](#) Constit. Apostol. Lib. iv. c. 14; vi. 11, 14, 26, 27, 28; viii. 30.

[74](#) Lactant. Instit. Divin. vi. xvi. xxiii.

[75](#) The fiftieth canon was omitted by Dionysius Exiguus, but was subsequently admitted by the church, notwithstanding that it proves in the clearest manner the full enjoyment of marriage by all grades of the clergy. The sixth canon (numbered fifth in the full collection) which prohibits the separation of ecclesiastics from their wives, was likewise accepted, although in the eighteenth century Cabassut stigmatizes it as heretical.

[76](#) Conc. Carthag. IV. c. 1.

[77](#) Thus Tibullus (Lib. I. El. 1.)—

“Vos quoque abesse procul jubeo, discedite ab aris,
Queis tulit hesterna gaudia nocte Venus.
Casta placent Superis.”

Cf. Juvenal, vi. 534-5.—Ælii Lamprid. Alex. Sever. xxix.—Porphy. de Abstin. ii. 50; iv. 6, 7.—Arriani de Epictet. Disertt. Lib. iii. c. xxi.—I. Cor. vii. 5.

[78](#) Diod. Sicul. i. 80.—Hieron. adv. Jovin. ii. 13.—Plut. de Isid. et Osirid. 2.—Lucian. de Syria Dea xv.—Sil. Ital. Punicor. iii. 21-8.—Cf. Virg. Æneid. vi. 661.—Pausan. vii. xxv. 8. Egyptian customs in this respect may perhaps be traced to the vow of continence made by Isis after the death of her husband-brother, Osiris (Diod. Sicul. i. 27). The Emperor Julian's neo-platonic explanation of the Syrian asceticism (Orat V.) is not without analogy to some of the rhapsodies of the fathers in the praise of virginity.

[79](#) Juliani Imp. Orat. V.—Tertull. de Monogam. xvii.; ad Uxorem i. 6; de Exhort. Castit. xiii.—Hieron. adv. Jovin. i. 26.—Pausan. ix. xxvii. 5.—Sueton. Octav. xxxviii.

[80](#) Concil. Eliberitan, can. 27, 33.—The 29th canon of the first council of Arles held in 314, if genuine, marks the extension of the movement eastward, but as it is contained in but one MS., Mansi supposes it probably to belong to some subsequent and forgotten synod. It is almost identical with Concil. Telensis ann. 386 can. 9; and, whatever be its date, its phraseology evidently indicates that it records the first introduction of the rule in its locality.

[81](#) Concil. Ancyran. ann. 314 can 9.—Concil. Neocæsar. ann. 314 can 1, 8.

[82](#) Euseb. Demonstr. Evang. i. ix.

[83](#) I give the version of Dionysius Exiguus: “Interdixit per omnia magna synodus, non episcopo, non presbytero, non diacono, nec alicui omnino qui in clero est, licere subintroductam habere mulierem; nisi forte matrem, aut sororem, aut amitam, vel eas tantum personas quæ suspiciones effugiunt.”

An Arabic version of the Nicene canons specially limits the prohibition to bishops, and to unmarried priests and deacons.—“Decernimus ut episcopi non

habitent cum mulieribus.... Idem decernitur de omni sacerdote cœlibe, idemque de diaconis qui sine uxore sunt.” (Harduin. Concil. I. 463.)—This expresses nearly the discipline of the Greek church.

[84](#) Concil. Ancyrens. can. 18.

[85](#) Pudet dicere, proh nefas! triste sed verum est. Unde in ecclesias Agapetarum pestis introiit? unde sine nuptiis aliud nomen uxorum? immo unde novum concubinarum genus? Plus inferam. Unde meretrices univiræ? eadem domo, uno cubiculo sæpe tenentur et lectulo: et suspiciosos nos vocant si aliquid extimemus. Frater sororem virginem deserit, cœlibum spernit virgo germanum, fratrem quærit extraneum: et cum in eodem proposito esse se simulent, quærunt alienorum spiritale solatium, ut domi habeant carnale commercium. (Epist. xxii. ad Eustoch. c. 5.) It should be observed that celibacy had become the rule of the church at the time when Jerome wrote thus.

[86](#) Accusant nimirum eos qui in ecclesia dilectas appellatas, aliunde introductas ac cohabitantes fœminas habent.—Panar. Hæres. LXIII.

[87](#) Hieron. Epist. ad Oceanum de Vit. Cleric.

[88](#) When, during the demoralization of the tenth century, the council of Augsburg made a spasmodic effort to revive the neglected rule of celibacy, it endeavored to include the lower orders of the clergy within its scope. Ratramnus of Corvey also does not fail to point out that such was the incontrovertible meaning of the Nicene canon, which in his time was universally considered to refer to marriage.

[89](#) Siricii Epist. 2.—Innocent. ad Victricium, ad Exuperium, &c.

[90](#) Lib. xvi. Cod. Theod. Tit. ii. l. 44.

[91](#) The learned and orthodox Zaccaria, concludes that the Nicene canon was only intended to forbid the irregular connexions with agapetæ, whence he ingeniously argues that as the Council of Nicæa did not in any way forbid priestly marriage, the origin of the rule of celibacy is to be assigned to the Apostles.—Storia Polemica, p. 90.

[92](#) Pseudo-Concil. Roman. sub. Silvest. can. xix. (Migne’s Patrol. VIII. 840.)

[93](#) Socrat. H. E. Lib. i. c. 11.—Sozomen. H. E. Lib. i. c. 22.

[94](#) Bernald. Altercat. de Incont. Sacerd.

[95](#) Monumenta Gregoriana (Migne’s Patrol T. CXLVIII. p. 1378).

[96](#) Verum quidem est, quod ob ministrorum Dei defectum in primitiva ecclesia conjugati admittebantur ad sacerdotium, ut ex canonibus apostolorum et Paphnutii responso liquet, et in Concilio Nicæno.—(Respons. Pii. IV. *ap.* Le Plat, Concil. Trident. Monument. VI. 337.)

[97](#) Sed præ cæteris omnibus Socrates et Sozomenus ac Theodoretus totius antiquitatis iudicio celebrati sunt, qui ab iis temporibus exorsi, in quibus Eusebius scribendi finem fecerat, ad Theodosii junioris tempora opus suum perduxerunt.—H. Valesii Præfat.

[98](#) Theodoret. Hist. Eccles. Lib. I. c. 7.

So also Rufinus (Hist. Eccles. Lib. x. c. 4): “Fuit præterea in illo concilio et Paphnutius homo Dei, episcopus Ægypti partibus, confessor, etc.,” but he makes no allusion to the incident related by Socrates and Sozomen.

[99](#) Act. Concil. Nicæn. II. xxxii. (Harduin. I. 438).—Hist. Tripart. II. 13.—Chr. Lupi Opp. I. 239 (Venet. 1724).

[100](#) Epist. ad Dracontium.

[\[101\]](#)

Οὐπὼ τοσούτον ἐκμετρηκὰς βίον,
Ὅσος διήλθε θυσιῶν ἐμοὶ χρόνος.

Baronius labors hard to break the force of this assertion, but his arguments seem to me successfully controverted by Calixtus. (De Conjug. Cleric. Ed. 1783, pp. 261-74.) The chapter devoted to this question by Zaccaria (Storia Polem. Lib. I. cap. vii.) is an example of desperate special pleading.

[102](#) Concil. Laodicens. can. xi.

[103](#) Romans, xvi. 1. The number of women alluded to by St. Paul in this chapter shows how active they were in disseminating the faith. Junia he dignities with the title of Apostle.

[104](#) Atton. Vercell. Epist. viii.—Epiphanius (Hæres. LXXIX) denies that women had ever been permitted to rise beyond the diaconate, and asserts that their functions in that grade were simply to render to women such offices as decency forbade to men. In the West, the ordination of deaconesses was prohibited by Concil. Arausican. I. ann. 441 can. xxvi.; Concil. Epaonens. ann. 513 can. xxi., and Concil. Aurelianens. II. ann. 538 can. xviii., on account of disorders arising through the fragility of the sex, as was perhaps not unnatural, after the adoption of enforced celibacy. It was probably for the sake of order that St. Paul forbade women from teaching or asking questions in church (I Cor. xiv. 34, 35; I. Tim. ii. 11, 12).

[105](#) Declaratum est enim hos eosdem nuptias accusare et docere quod nullus in conjugali positus gradu spem habeat apud Deum.... In domibus conjugatorum nec orationes quidem debere celebrari, persuasisse in tantum ut easdem fieri vetent.... Presbyteros vero qui matrimonia contraxerunt spemi debere dicunt, nec sacramenta quæ ab eis conficiuntur, attingi.—Concil. Gangrens. Proëm.

So also Socrates—“Benedictionem presbyteri habentis uxorem, quam lege cum esset laicus duxisset, tanquam scelus declinandum præcepit.”—Hist. Eccles. Lib. II. c. 33.

After the specific condemnation of this latter doctrine by the undoubtedly orthodox council of Gangra, it is somewhat remarkable to see it enunciated and erected into a law of the church by Gregory VII. in his internecine conflict with the married priests. Thus the heresy of one age becomes the received and adopted faith of another.

[106](#) Concil. Gangrens. c. 4.—Si quis decernit presbyterum conjugatum tanquam occasione nuptiarum quod offerre non debeat, et ab ejus oblatione ideo se abstinet, anathema sit.—I give the Isidorian version adopted by Gratian, Dist. xxviii. c. 15, and by Burchard, Lib. iii. 75. That of Dionysius Exiguus is somewhat different.

Can. 10.—Si quis propter Deum virginitatem professus in conjugio positos per arrogantiam vituperaverit, anathema sit.—Can. 1 and 9 are directed against those who condemn marriage, and teach that it affords no chance of heaven.

[107](#) Concil. Gangrens. Epilog.

[108](#) Lib. xvi. Cod. Theod. Tit. ii. l. 20.

[109](#) So great was the influx of wealth to the church from the pious legacies of the faithful that it became an evil of magnitude to the state, and in 370 a law of Valentinian pronounced null and void all such testamentary provisions made by those under priestly influence (Lib. xvi. Cod. Theod. Tit. ii. l. 20)—a provision repeated in 390 (Ibid. l. 27) with such additional details as show its successful evasion during the interval. Godefroi, in his notes to these laws (T. VI. pp. 48-50, 60-64), has collected much curious matter bearing on the subject.

[110](#) Synod. Roman. ad Gallos Episc. Respons. c. 3.—The date of this synod is not certain, but the year mentioned in the text is the earliest to which it is assigned. By some authorities it has been attributed to 398, and Hardouin suggests that it may even have been held under Innocent I.

[111](#) “Certe idololatræ, ut impietates exerceant et dæmonibus immolent, imperant sibi continentiam muliebrem, et ab escis quoque se purgari volunt, et me interrogas si sacerdos Dei vivi spiritualia oblaturus sacrificia purgatus perpetuo debeat esse, an totus in carne carnis curam debeat facere?”

If all the postulates be granted, the reasoning is unanswerable, and as the precedents of the Old Testament have been relied upon in all arguments since the time of Siricius, it may be worth while to refer to the caution of Ahimelech before giving the shew-bread to David (I. Sam. 21) as one of the texts most constantly quoted, and to the residence of Zacharias in the Temple during his term of ministration (Luke i. 23), which was frequently instanced. These are certainly more germane to the matter than the linen breeches provided for Aaron and his sons (Exod. xxviii. 42-3), by which the Venerable Bede assures us (De Tabernac. Lib. iii. c. 9) “significatum esse sacerdotes Novi Testamenti aut virgines esse, aut contracta cum uxoribus fœdera dissolvisse.”

[112](#) Siricii Epist. i. c. 7.—It would seem from this decretal (cap. 8, 9, 10, 11) that even the rule excluding digami was wholly neglected. Siricius further (cap. 13) urges the admission of monks to holy orders, for the purpose of providing a priesthood vowed to chastity.

[113](#) Præterea, quod dignum, pudicum et honestum est, suademus ut sacerdotes et levitæ cum uxoribus suis non coeant, quia in ministerio divino quotidianis necessitatibus occupantur.... Qua de re hortor, moneo, rogo, tollatur hoc opprobrium quod potest etiam jure gentilitas accusare.—Concil. Telensis. c. 9.

[114](#) Quod eo non præterii quia in plerisque abditioribus locis, cum ministerium gererent, vel etiam sacerdotium, filios susceperent, et id tanquam usu veteri defendunt, quando per intervallo dierum sacrificium deferebatur.—Ambros. de Officiis Lib. I. c. 50.

[115](#) Tertullian has no scruple in asserting—“Et Christum quidam virgo enixa est, semel nuptura post partum.” (De Monog. c. 8). This belief was founded on the words of Matthew (I. 25), “καὶ οὐκ ἐγίνωσκεν αὐτὴν ἕως οὗ ἔτεκετον υἱὸν αὐτῆς τὸν πρωτοτόκον, καὶ ἐκάλεσε τὸ ὄνομα αὐτοῦ ἰησοῦν.”—“And he knew her not till she had brought forth her first-born son; and he called his name JESUS.” The restrictive “till” and the characterization of Jesus as the first-born of the Virgin (though the latter is omitted in the Sinaitic and Vatican MSS.) are certainly not easily explicable on any other supposition; nor is the difficulty lessened by the various explanations concerning the family of Joseph, by which such expressions as ἡ μήτηρ αὐτοῦ καὶ οἱ ἀδελφοί αὐτοῦ—fratres et mater ejus (Marc. III. xxxi.), or the enumeration of his brothers and sisters in Matt. XIII. 55-6, Mark VI. 3, or the phrase ἰακώβον τὸν ἀδελφὸν τοῦ κυρίου—Jacobum fratrem Domini (Galat. I. 19)—are taken by commentators in a spiritual sense, or are eluded by transferring to the Greek a Hebrew idiom which confounds brothers with cousins. In the Constitutiones Apostolicæ occurs a passage—“Et ego Jacobus frater quidem Christi secundum carnem, servus autem tanquam Dei”—which seems to place it in an unmistakable light, if it be an extract from some forgotten Gospel, although it may only reflect the opinions of the third century when the collection was written or compiled.

The Bonosiacs were also sometimes called Helvidians.—S. Augustin. de Hæresibus § 84.—Isidor. Hispalens. Etymolog. Lib. VIII. c. v. § 57.

In an age which was accustomed to such arguments as “per mulierem culpa successit, per virginem salus evenit” (Rescript. Episcop. ad Siricium), it is easy to appreciate the pious horror evoked by such blasphemous heresies.

St. Clement of Alexandria alludes to a belief current in his day that after the Nativity the Virgin had to submit to an inspection *ab obstetrice* to prove her purity (Stromat. Lib. vii.)—a story which continued to trouble the orthodox until the seventeenth century.

The Buddhists eluded all these troublesome questions by making Queen Maya die seven days after the birth of Sakyamuni, and asserting that this was the case with the mothers of all the Buddhas.—Rgya Tch'er Rol P (Ed. Fou-a aux, p. 100).

[116](#) Epist. Siric. ap. Batthyani Legg. Eccles. Hungar. T. I. p. 210.

[117](#) Hieron. de Perpet. Virgin. B. Mariæ adv. Helvidium.

[118](#) Epist. xx.

[119](#) Concil. Arelatens. II. can. 17.—Concil. Aurelian. III. can. 31.

[120](#) Panar. Hæres. 78.—At the time of the Reformation the Bonosiac heresy naturally was revived. In 1523, at the Diet of Nuremberg, the Papal orator accused Osiander “quod prædicasset Beatam Virginem Mariam post Christi partum non mansisse Virginem” (Spalatini Annal. ann. 1523), but Osiander

found few followers. At the Colloquy of Poissy, in 1561 the learned Claude d'Expense, doctor of Sorbonne, in arguing that there were many things the authority of which rested solely on tradition, and yet which were admitted as undoubted by all parties, instanced “que la Vierge Marie demoura vierge après l'enfantement, et plusieurs autres semblables par conséquent; ce qui a esté baillé de main en main par nos pères, ores qu'il ne soit escript, n'est pourtant moins certain et approuvé que s'il estoit temoigné par l'Escripture” (Pierre de la Place, Liv. vii.).

[121](#) Siricii PP. Epist. ii.

[122](#) Rescript. Episcop. ad Siricium. (Harduin. Concil. I. 853.)

[123](#) Hieron. adv. Jovin.—Augustin. de Hæres. No. lxxxii.

[124](#) Augustin. Retract. ii. xxii. 1.

[125](#) Lib. xvi. Cod. Theod. Tit. v. l. 53. It is generally assumed from this law that Jovinian lived until 412. An expression of St. Jerome, however, (adv. Vigilant. cap. i.) would seem to show that he was already dead in 406, and critics have suggested either that there is an error in the date of the law or that another heresiarch is referred to.

[126](#) Exortus est subito Vigilantius, seu verius Dormitantius, qui immundo spiritu pugnat contra Christi spiritum, et martyrum neget sepulchra veneranda, dammandas dicat esse vigilias; nunquam nisi in Pascha alleluia cantandum; continentiam hæresim; pudicitiam libidinis seminarium. Et quomodo Euphorbus in Pythagora renatus esse perhibetur, sic in isto Joviniani mens prava surrexit; ut et in illo et in hoc diaboli respondere cogamur insidiis.—Hieron. adv. Vigilant. c. 1.

[127](#) Proh nefas! episcopos sui sceleris dicitur habere consortes: si tamen episcopi nominandi sunt qui non ordinant diaconos nisi prius uxores duxerint; nulli cœlibi credentes pudicitiam, immo ostendentes quam sancte vivant qui male de omnibus suspicantur; et nisi prægnantes uxores viderint clericorum, infantesque de ulnis matrum vagientes, Christi sacramenta non tribuant.... Hoc docuit Dormitantius, libidini fræna permittens, et naturalem carnis ardorem, qui in adolescentia plerumque fervescit, suis hortatibus duplicans, immo extinguens coitu fœminarum, ut nihil sit quo distemus a porcis, etc.—Hieron. adv. Vigilant. c. 2.

[128](#) Præterea quod dignum, pudicum et honestum est, tenere ecclesia omnino debet, ut sacerdotes et levitæ cum uxoribus non misceantur.... Maxime ut vetus regula hoc habet ut quisquis corruptus baptizatus clericus esse voluisset, spondeat uxorem omnino non ducere.—Innocent. PP. I. Epist. ii. c. 9, 10.

[129](#) Ut incontinentes in officiis talibus positi, omni ecclesiastico honore priventur, nec admittantur ad tale ministerium, quod sola continentia oportet impleri.—As for those who could be proved to have seen the epistle of Siricius —“illi sunt modis omnibus submovendi.”—Innocent. PP. I. Epist. iii. c. 1.

[130](#) The observance of the rule and its effects are well illustrated in the story of Urbicus, Bishop of Clermont, and his unhappy wife, as naïvely related by Gregory of Tours (Hist. Franc. L. i. c. 44).

[131](#) Ab universis episcopis dictum est: Omnibus placet, ut episcopi, presbyteri et diaconi, vel qui sacramenta contrectant, pudicitiae custodes etiam ab uxoribus se abstineant.—Concil. Carthag. II. can. 2 (Cod. Eccles. African. can. 3).

[132](#) Aurelius episcopus dixit: Addimus fratres carissimi praeterea, cum de quorundam clericorum, quamvis lectorum, erga uxores proprias incontinentia referretur, placuit, quod et in diversis conciliis firmatum est, ut subdiaconi, qui sacra mysteria contrectant, et diaconi et presbyteri, sed et episcopi, secundum priora statuta etiam ab uxoribus se contineant, ut tanquam non habentes videantur esse: quod nisi fecerint, ab ecclesiastico removeantur officio. Ceteros autem clericos ad hoc non cogi, nisi maturiori aetate. Ab universo concilio dictum est: Quae vestra sanctitas est juste moderata, et sancta et Deo placita sunt, confirmamus.—Concil. Carthag. V. c. 3 (Cod. Eccles. Afric. c. 25).

The councils thus alluded to are probably the Roman Synods under Damasus and Siricius.

I give the version most favored by modern critics, but it should be observed that there is doubt concerning several important points. In the older collections of councils (*e. g.* Surius, Ed. 1567, T. I. p. 519-20) the canon indicates no compulsion for the orders beneath the diaconate, commencing “Placuit episcopos et presbyteros et diaconos” and ending “Cæteros autem clericos ad hoc non cogi sed secundum uniuscujusque ecclesiae consuetudinem observari debere,” and this has probability in its favor, since the subdiaconate was not included in the restriction for nearly two centuries after this period, and the lower grades were never subjected to the rule.

The expression “secundum priora statuta” is probably the emendation of a copyist puzzled by the obscurity of “secundum propria statuta,” which latter is the reading given by Dionysius Exiguus. That it is the correct one is rendered almost certain by the Greek version, which is κατὰ τοὺς ἰδίους ὁρῶς (Calixt. Conjug. Cleric, p. 350) which would seem to leave the matter very much to the preëxisting customs of the individual churches.

[133](#) De Adulterin. Conjug. Lib. II. c. 20.

[134](#) Faustinus episcopus ecclesiae Potentinae, provinciae Piceni, legatus Romanae ecclesiae, dixit: Placet ut episcopus, presbyter et diaconus vel qui sacramenta contrectant pudicitiae custodes ab uxoribus se abstineant. Ab universis episcopis dictum est: Placet ut in omnibus pudicitia custodiatur qui altari inserviunt (Cod. Eccles. African. can. iv.).

That strict rules were not enforced in the African church is rendered probable by another circumstance. Faustus the Manichæan, in defending the tenets of his sect on the subject of marriage and celibacy, enters into an elaborate comparison of their doctrines and practices with those of the Catholic church. In ridiculing the idea that the Manichæans prohibited marriage to their followers, he could not have omitted the argument and contrast derivable from prohibition of marriage by the Catholics, had such prohibition been enforced. His omission to do this is therefore a negative proof of great weight.—See Augustin. contra Faust. Manich. Lib. xxx. c. iv.

[135](#) Concil. Toletan. I. ann. 400 can. 1, 3, 4, 6, 7, 18, 19.

[136](#) Hi autem qui contra interdictum sunt ordinati, vel in ministerio filios genuerunt, ne ad majores gradus ordinum permittantur synodi decrevit auctoritas.—Concil. Taurinens. c. 8.

[137](#) Concil. Arausic. I. c. 22, 23, 24.

[138](#) Leon. PP. I. Epist. clxvii. Inquis. iii.

[139](#) Catalogus Sanctt. Hibern. (Haddan & Stubbs II. 292)—Confessio S. Patricii (Ibid. 308, 310)—Epist. S. Patricii (Ibid. 317)—Synod. S. Patricii can. 6 (Ibid. 329). The date of all these documents is of course somewhat conjectural, but I have assumed it safe to follow the conclusions of the painstaking and lamented Mr. Haddan.

[140](#) Innocent. PP. I. Epist. v.

[141](#) Greg. Turon. Hist. Franc. Lib. II. c. 1.

[142](#) Greg. Turon. de Glor. Confess. c. 76.

[143](#) Sunt alii (de mei ordinis hominibus loquor) qui ideo presbyteratum et diaconatum ambiunt ut mulieres licentius videant.—Epist. xxii. ad Eustoch. cap. 28.

[144](#) Epist. cxxv. ad Rusticum, cap. 6.

[145](#) Lib. xvi. Cod. Theod. Tit. ii. l. 44.

[146](#) Concil. Andegav. ann. 453 c. 4.

[147](#) Nullus diaconus vel presbyter vel episcopus ad cellarii secretum intromittat puellam vel ingenuam vel ancillam.—Concil. Arelatens. II. c. 4.

[148](#) Epist. Lupi et Euphronii. (Harduin. II. 792.)

[149](#) Whatever interest there might be in exhibiting in detail the varying legislation and the expedients of lenity or severity by turns adopted, would scarcely repay the space which it would occupy or relieve the monotony of retracing the circle in which the unfortunate fathers of the church perpetually moved. I therefore content myself with simply indicating such canons of the period as bear upon the subject, for the benefit of any student who may desire to examine the matter more minutely.

Concil. Turon. I. (ann. 460) c. 2, 3.—Agathens. (506) c. 9.—Aurelianens. I. (511) c. 13.—Tarraconens. (516) c. 1.—Gerundens. (517) c. 6, 7.—Epaonens. (517) c. 2, 32.—Ilerdens. (523) c. 2, 5, 15.—Toletan. II. (531) c. 1, 3.—Aurelianens. II. (533) c. 8.—Arvernens. I. (535) c. 13, 16.—Aurelianens. III. (538) c. 2, 4, 7.—Aurelianens. IV. (541) c. 17.—Aurelianens. V. (549) c. 3, 4.—Bracarens. I. (563) c. 15.—Turonens. II. (567) c. 10, 12, 13, 15, 19, 20.—Bracarens. II. (572) c. 8, 32, 39.—Autissiodor. (578) c. 21.—Matiscon. I. (581) c. 1, 2, 3, 11.—Lugdunens. III. (583) c. 1.—Toletan. III. (589) c. 5.—Hispalens. I. (590) c. 3.—Cæsaraugustan. (592) c. 1.—Toletan. (597) c. 1.—Oscensis. (598) c. 2.—Egarens. (614) c. unic.—Concil. loc. incert. (a. 615) c. 8, 12.—Toletan. IV. (633) c. 42, 44, 52, 55.—Cabilonens (649) c. 3.—Toletan. VIII. (653) c. 4, 5,

6, 7.—Toletan. IX. (655) c. 10.—Toletan. XI. (675) c. 5.—Bracarens. III. (675) c. 4.—Augustodunens. (690) c. 10.

[150](#) Salvian. De Gubernat. Dei Lib. vi. vii.

[151](#) Expurgat. Sixti Papæ c. vi. (Harduin. Concil. II. 1742).—Pagi (ann. 433, No. 19) casts doubt on the authenticity of the proceedings of this trial, and modern criticism (see “Janus” The Pope and the Council, p. 124) assumes it to be a fabrication of the early part of the sixth century, made for the purpose of vindicating the immunity of the clergy from secular law.

[152](#) Concil. Chalcedon. Act. X. (Harduin. II. 518-9).

[153](#) The strictness with which the Nicene canon was enforced is shown by an epistle of St. Basil, about the middle of the fourth century, in which he sternly reproves a priest named Paregorius, who at the age of 70 had thought himself sufficiently protected against scandal to allow to his infirmities the comfort of a housekeeper. The unlucky female is ordered to be forthwith immured in a convent, and, until this is accomplished, Paregorius is forbidden to perform his priestly functions. The whole is based on the authority of the council of Nicæa.—“Nec primo nec soli (tibi Paregori) sancivimus, non debere mulierculas cohabitare viris. Lege canonem, a sanctis patribus nostris in Nicæna synodo constitutum: qui manifeste interdixit, ne quis mulierculam subintroductam habeat. Cœlibatus autem honestatem suam in eo habet, si quis a nexu mulieris secesserit.”

[154](#) Hæres. LIX. c. 4.

[155](#) Quid faciunt Orientis ecclesiæ? Quid Ægypti et sedis Apostolicæ, quæ aut virgines clericos accipiunt, aut continentes: aut si uxores habuerint, mariti esse desistunt.—Lib. adv. Vigilant. c. 2.

[156](#) Sextum, quod dimissa uxore sua cum ea rursus congressus est, filiosque ex ea procreasset.—Palladii Dial. de Vit. S. Joan. Chrysost. cap. xiii.

[157](#) Synesii Epist. cv.

[158](#) Ejusd. Epist. cviii.

[159](#) Et si placet, quanto etiam melior sit addam, quanto cœlum terra, quanto hominibus angeli.—Lib. de Virgin. c. x.

[160](#) Socrat. H. E. Lib. v. c. 21.

[161](#) S. Isidor. Pelusiot. Epist. Lib. III. No. 75.

[162](#) Constit. 45 Cod. i. 3. This law is preserved by Photius (Nomoc. Tit. ix. c. 29), but Balsamon (Schol. ad. loc.) says that it is omitted in the Basilica.

[163](#) “Nihil enim sic in sacris ordinationibus diligimus quam cum castitate viventes, aut cum uxoribus non cohabitantes, aut unius uxoris virum, qui vel fuerit vel sit, et ipsam castitatem eligentem.” The lector could, by forfeiting his prospects of promotion, marry a second time, if pressed by overmastering necessity, but he was not allowed, under any excuse, to take a third wife.—

Novell. vi. c. 5.—These provisions were repeated the following year in Novell. xxii. c. 42.

[164](#) Novell. cxxiii. c. 12.

[165](#) Basilicon iii. i. 26.

[166](#) Balsamon. Schol. ad Nomocanon. Tit. i. c. 23.

[167](#) Novell. cxxiii. c. 14.

[168](#) Const. 42 § 1. Cod. i. 3.—Basilicon iii. i. 26.

[169](#) Novell. vi. c. 1.

[170](#) Novell. cxxxvii. c. 2.—Basilicon iii. i. c. 8.—Balsamon. Schol. ad Nomocan. Tit. i. c. 23.

[171](#) Leonis. Novell. Constit. ii.

[172](#) Quinisext. can. 3.

[173](#) Ibid. c. 6.

[174](#) Ibid. can. 12, 48.—“Hoc autem dicimus non ad ea abolenda et evertenda quæ Apostolice antea constituta sunt, sed ... ne status ecclesiasticus ullo probro efficiatur.”

[175](#) Quinisext. c. 13, 30.

[176](#) Quinisext. c. 33.—The Armenian church in the middle ages, was excessively severe as to the chastity of its ministers. A postulant for orders was obliged to confess, and if he had been guilty of a single lapse, he was rejected. So a priest in orders if yielding to the weakness of the flesh out of wedlock was expelled, though they were not obliged to part with their wives, and the Greek rule permitting marriage in the lower orders was maintained.—Concil. Armenor. ann. 1362 Art. 50, 53, 93 (Martene Ampl. Collect. VII. 366-7, 403).

[177](#) Leonis Novell. Constit. iii.—It is not improbable that this custom resulted from the iconoclastic schism of Leo the Isaurian and Constantine Copronymus, which occupied nearly the whole of the eighth century. These emperors found their most unyielding enemies in the monks. In the savage persecutions which disgraced the struggle, Constantine endeavored to extirpate monachism altogether. The accounts which his adversaries have transmitted of the violence and cruelties which he perpetrated are doubtless exaggerated, but there is likelihood that his efforts to discountenance celibacy, as the foundation of the obnoxious institution, are correctly reported. “Publice defamavit et dehonestavit habitum monachorum in hippodromo, præcipiens unumquemque monachum manutenere mulierem, et taliter transire per hippodromum, sumptis injuriis ab omni populo cumulatis” (Baronii Annal. ann. 766, No. 1). He ejected the monks from the monasteries, which he turned into barracks; some of the monks were tortured, others fled to the mountains and deserts, where they suffered every extremity, while others again succumbed to threats and temptations, and were publicly married—“alii corporeis voluptatibus addicti, suas etiam uxores circumducere non erubescabant” (Ibid. No. 28, 29).

[178](#) Synod. Montis Libani ann. 1736 P. II. c. v. No. 16, 17, Tab. I. No. 11; P. III. c. i. No. 11; P. IV. c. ii. No. 16.—Synod. Ain-Traz ann. 1835 c. xii. (Concil. Collect. Lacens. II. 134, 138, 262, 263, 366, 367, 585).

[179](#) London “Academy,” Nov. 13th, 1869, p. 51.—See also “The Russian Clergy,” by Father Gagarin, London, 1872 (London Athenæum, No. 2334. p. 72-3).

[180](#) For these details from the collection of Asseman I am indebted to the Abate Zaccaria’s *Nuova Giustificazione del Celibato Sacro*, pp. 129-30.

[181](#) The strange similarity between some of the teachings of the Bhagavad-gita and Christianity, and the apparent identity of the name and of some of the story of Krishna with those of Christ, would seem to need some such explanation as the above. The problem however is too complicated for discussion here.—See Weber’s *Indian Literature* p. 238 and Monier Williams’s *Indian Wisdom* p. 136. For the question of St. Thomas’s Indian Apostolate see Hohlenberg’s learned tract, “De Originibus et Fatis Eccles. Christ. in India Orientali.” Havniæ 1822.

[182](#) Hi omnes Nestoriani ... cum Jacobinis longe plures esse dicuntur quam Latini et Græci.—Jac. de Vitriaco *Hist. Hierosol.* cap. lxxvi.

[183](#) Calixt. de Conjug. Cleric. p. 415.—Osorii de Rebus Emmanuelis Regis Lusit. Lib. IX. (Colon. 1574 p. 305a).

[184](#) Parkyns’s *Life in Abyssinia*, chap. xxxi.—Mr. Parkyns sums up about 260 fast days in the year, most of them much more rigid than those observed in the Catholic church.

[185](#) Davids & Oldenberg’s *Vinaya Texts*, Part I. pp. 4, 8, 14, 16, 32, 35-7, 42, 47, 56.—Cf. Beal’s *Catena* pp. 209-14.—Burnouf, *Introduction à l’histoire du Bouddhisme indien*. 2e Éd. pp. 245-8.

[186](#) Beal’s *Chinese Pilgrims* pp. xxxviii., xl., 155-9.—Schlagintweit’s *Buddhism in Tibet*, pp. 164-5.—Wheeler’s *Hist. of India*, III. 270.—Proc. Roy. Geog. Society, in London “Reader” Nov. 17, 1866.

[187](#) I. Tim. v. 3-14. cf. Act. IX. 39-41. In the time of Tertullian these women were regularly ordained (*Ad Uxor.* Lib. I. c. 7). This was forbidden by the council of Nicæa (can. 19) and by that of Laodicea (can. 11) in 372. In 451, however, we see by the council of Chalcedon (can. 15) that the ancient practice had been revived. The authorities on the question will be found very fully given by Chr. Lupus (*Scholion in Can. 15 Concil. Chalced.*—Opp. II. 90 sqq.). Even as late as the middle of the ninth century stringent rules were promulgated to punish the marriage of deaconesses (*Capitul. Add. III. Cap. 75.*—Baluz. I. 1191).

[188](#) Volo ergo juniores [viduas] nubere, filios procreare, matresfamilias esse, nullam occasionem dare adversario—I. Tim. v. 14.

[189](#) See Leon. I. *Epist.* lxxxvii. cap. 2. (Harduin. I. 1775). This was not so in the earlier periods. Tertullian (*De Præscription.* iii.), in alluding to the various classes of ecclesiastics, places the widows immediately after the order of deacons, and before the virgins.

[190](#) Nothing is so illogical as the logic resorted to in order to prove foregone conclusions. Donato Calvi (*apud* Panzini, *Pubblica Confessione di un Prigioneiro*, Torino, 1865, p. 111) quotes the texts Matt. xix. 12, Luke xiv. 33 and Matt. xix. 21, 27, and then triumphantly concludes—“Ben lice conchiudere chiaramente da’sacri Vangeli raccogliersi fossero gli Apostoli veri religiosi coi tre voti della religione legati.”

[191](#) If further proof of this be required, beyond what has already been incidentally adduced, it is to be found in the 19th canon of the council of Ancyra, held about the year 314. By this, the vow of celibacy or virginity when broken only rendered the offender incapable of receiving holy orders. He was to be treated as a “digamus,” showing evidently that no punishment was inflicted, beyond the disability which attached to second marriages.

Even in the time of St. Augustin monks were frequently married, as we learn from his remarks concerning the heretics who styled themselves Apostolici and who gloried in their superior asceticism—“eo quod in suam communionem non reciperent utentes conjugibus et res proprias possidentes; quales habet Catholica [ecclesia] et monachos et clericos plurimos.”—Augustin. *de Hæresib.* No. xl.

Even Epiphanius, the ardent admirer of virginity, when controverting the errors of the same sect, declares that those who cannot persevere in their vows had better marry and reconcile themselves by penitence to the church rather than to sin in secret—“Melius est lapsum a cursu palam sibi uxorem sumere secundum legem et a virginitate multo tempore pœnitentiam agere et sic rursus ad ecclesiam induci, etc.”—Panar. *Hæres.* lxi.

We shall see hereafter how long it took to enforce the strict segregation of the cenobite from the world.

[192](#) St. Jerome vindicates for Paul the priority which was commonly ascribed to Antony, but he fully admits that the latter is entitled to the credit of popularizing the practice.—“Alii, autem, in quam opinionem vulgus omne consentit, asserunt Antonium hujus propositi caput, quod ex parte verum est: non enim tam ipse ante omnes fuit, quam ab eo omnium incitata sunt studia,” etc.—Hieron. *Vit. Pauli* cap. 1.—*Epist.* xxii. ad Eustoch. cap. 36.

Jerome also asserts that monachism was unknown in Palestine and Syria until it was introduced there by Hilarion, a disciple of St. Antony.—*Vit. Hilarion.* cap. 14.

[193](#) *Instit. Divin. Lib.* vi. cap. 10.—Cf. c. 17.

[194](#) As early as the commencement of the fourth century, we find Faustus, in his “tu quoque” defence of Manichæism, asserting that in the Christian churches the number of professed virgins exceeded that of women not bound by vows.—Augustin, *contra Faust. Manich. Lib.* xxx. c. iv.

[195](#) *Propter luxum vanitatemque præsumptam.*—Concil. Cæsaraug. I. ann. 381 c. vi.—Disobedience to the prohibition is threatened with prolonged suspension from communion.

[196](#) Cassiod. *Hist. Tripart. Lib.* i. c. 9.

[197](#) See Lib. xvi. Cod. Theod. Tit. ii. ll. 9, 10, 11, 14, etc. This evil had become so great by the time of Valens that in 365 that emperor declares “Quidam ignaviæ sectatores desertis civitatum muneribus, captant solitudines ac secreta, et specie religionis cætibus monizonton congregantur.” The most vigorous measures were requisite, “erui e latebris consulta præceptione mandavimus,” and he orders the culprits to be subjected again to their municipal duties under pain of forfeiture of all their property (Lib. xii. Cod. Theod. Tit. i. l. 63). In 376 the same emperor endeavored to enforce the obligation of military service on the crowds of vigorous men who filled the monasteries, and on their resistance a persecution arose in which many were killed—Hieron. Euseb. Chron. ann. 378.

[198](#) The lamentations of St. Cyprian have already been alluded to. In 305 the council of Elvira found it necessary to denounce perpetual excommunication against the “virgines sacratæ” who abandoned themselves to a life of licentiousness, while those guilty only of a single lapse were allowed restoration to communion on the deathbed, if earned by continual penitence (Concil. Eliberit. c. 13).

[199](#) Piget dicere quot quotidie virgines ruant, quantas de suo gremio mater perdat ecclesia: super quæ sidera inimicus superbus ponat thronum suum; quot petras excavet et habitet coluber in foraminibus earum. Videas plerasque viduas antequam nuptas, infelicem conscientiam mutata tantum veste protegere. Quas nisi tumor uteri, et infantum prodiderit vagitus, sanctas et castas se esse gloriantur, et erecta cervice et ludentibus pedibus incedunt. Aliæ vero sterilitatem præbunt, et necdum sati hominis homicidium faciunt. Nonnullæ cum se senserint concepisse de scelere, abortii venena meditantur, et frequenter etiam ipsæ commortuæ, trium criminum reæ, ad inferos producuntur, homicidæ suæ, Christi adulteræ, necdum nati filii parricidæ—Hieron. Epist. xxii. ad Eustoch. c. 5.

[200](#) Concil. Carthag. I. c. 3.—Concil. Cæsaraugust. I. c. 8.

[201](#) Lib. ix. Cod. Theod. Tit. xxv. l. 2.

[202](#) Concil. Valent. I. ann. 374 can. ii.

[203](#) Postea vero in abruptum conscientiæ desperatione producti, de illicitis complexibus libere filios procreaverint, quod et publicæ leges et ecclesiastica jura condemnant.—Siricii Epist. i. c. 6.

[204](#) Regul. S. Pachom. c. 26, 79, 95.—The Rule which passes under the name of John, Bishop of Jerusalem, I believe is universally acknowledged to be spurious and therefore requires no special reference.

[205](#) Ibid. c. 29. This is in particularly striking contrast with mediæval monachism, which, as we shall see hereafter, considered the sacred precincts polluted by the foot of woman.

[206](#) Cassian. de Cænob. Instit. Lib. iv. c. 3, 4, 6, 6, 13.—Cassianus declares chastity to be the virtue by which men are rendered most like angels.

[207](#) De Monach. Decret. can. x. (Harduin. Concil. I. 498.)

[208](#) Nusquam missos, nusquam fixos, nusquam stantes, nusquam sedentes. Alii membra martyrum, si tamen martyrum, venditant; alii fimbrias et phylacteria sua magnificant ... et omnes petunt, omnes exigunt, aut sumptus lucrosæ egestatis, aut simulatæ pretium sanctitatis etc.—Augustin. de Opere Monachor. cap. 28.

[209](#) Cassian. Lib. v. c. 27, 28. The extravagant lengths to which this implicit subjection was habitually carried are further illustrated by Cassianus in Lib. iv. c. 10.

The same spirit is shown in the story told of St. Francis of Assisi, who took with him into the garden two novices to assist him in planting cabbages. He commenced by setting out the vegetables with their heads in the earth and their roots in the air. One of the novices ventured to remonstrate—"Father, that is not the way to make cabbages grow"—"My son," interrupted the Saint, "you are not fitted for our order,"—and he dismissed the incautious youth on the spot.

[210](#) Synod. Roman, ann. 384 c. 1, 2.

[211](#) Siricii Epist. 1, c. 6.—A rather curious episode in monastic discipline is a law promulgated in 390 by Theodosius the Great prohibiting nuns from shaving their heads under severe penalties. "Feminæ quæ crinem suum contra divinas humanasque leges instinctu persuasæ professionis absciderint ab ecclesiæ foribus arceantur," and any bishop permitting them to enter a church is threatened with deposition—Lib. xvi. Cod. Theod. Tit. ii. l. 27.

[212](#) De Bono Viduit. c. 10, 11.—It will be seen hereafter that in the twelfth century the church adopted as a rule of discipline the practices condemned by St. Augustin, and that in the sixteenth century the council of Trent elevated it into a point of faith.

[213](#) Innocent. Epist. ad Victricium. c. 12, 13.—The difficulty of the questions which arose in establishing the monastic system is shown in an epistle of Leo I. to the Mauritanian Bishops concerning some virgins professed who had suffered violence from the Barbarians. He decides that they had committed no sin, and could be admitted to communion if they persevered in a life of chastity and religious observance, but that they could not continue to be numbered with the holy maidens, while yet they were not to be degraded to the order of widows; and he further requires that they shall exhibit their sense of shame and humiliation. The problem evidently was one which transcended the acuteness even of Leo to solve—Leonis I. Epist. Episcop. per Cæsarien. Mauritan. cap. ii. V. (Harduin. I. 1775-6).

[214](#) Concil. Toletan. I. c. 16.

[215](#) Leo. Epist. ad Rusticum c. 12, 13, 14. So the second council of Arles, in 441 (can. 52), excommunicates the nun who marries until due penance shall have been performed, but does not indicate separation.

[216](#) Novell. Majorian. Tit. vi. This law continued in force for but five years, being abrogated in 463 by Severus.—Novell. Severi. Tit. i.

[217](#) For the ascetic extravagances which accompanied the development of monachism the reader is referred to the vigorous summary by Mr. Lecky in his

History of European Morals.

[218](#) Socrat. Hist. Eccles. Lib. vii. c. 13, 14, 15.—Even before this, in the province of Africa, the political utility of such enthusiastic disciples had been recognized and acted on. At the council of Carthage, in 411 where the Donatists were condemned, the Imperial Commissioner, in pronouncing sentence, warned the Donatist bishops that they must restrain the turbulent monks within their dioceses—“*Iti autem qui in præsidiis suis circumcellionum turbas se habere cognoscunt, sciant nisi eorum insolentiam omnimodis comprimere et refrenare gestierint, maxime ea loca fisco mox occupanda.*”—Concil. Carthag. ana. 411 Cognit. iii. cap. ult. (Harduin. I. 1190.)

[219](#) Concil. Chalced. c. 4, 7, 16. The most important of these, the fourth canon, was laid before the council by the Emperor in person.

[220](#) Lib. xvi. Cod. Theod. iii. 1.

[221](#) Lib. xvi. Cod. Theod. iii. 2.

[222](#) Const. 29 Cod. i. 3.

[223](#) Const. 53 § 1 Cod. i. 3.

[224](#) Novell. v. c. 4, 6.

[225](#) Novell. v. c. 8.

[226](#) Novell. cxxiii. c. 42.

[227](#) S. Theod. Studit. Testament. v. (Max. Bib. Pat. IX. i. 276).

[228](#) St. Benedict of Nursia, the real founder of Latin monachism, who quitted the world in 494 thus describes the wandering monks of his time: “*Tertium vero monachorum teterrimum genus est Sarabaitarum ... qui bini aut terni, aut certe singuli sine pastore, non Dominicis sed suis inclusi ovilibus, pro lege eis est desideriorum voluptas; cum quidquid putaverint vel elegerint, hoc dicunt sanctum, et quod noluerint putant non licere. Quartum vero genus est monachorum quod nominatur gyrovagum, qui tota vita sua per diversas provincias ternis aut quaternis diebus per diversorum cellas hospitantur, semper vagi et nunquam stabiles, et propriis voluptatibus et gulæ illecebris servientes, et per omnia deteriores Sarabaitis: de quorum omnium miserrima conversatione melius est silere quam loqui.*”—Regul. S. Benedicti c. 1.

[229](#) Cassiani de Cœnob. Instit. Lib. ii. c. 8; Lib. v. c. 1, 15.

[230](#) Gelasii PP. I. Epist. ix. cap. xx., xxi.

[231](#) Symmachi PP. Epist. vi.

[232](#) Greg. Mag. Vit. S. Benedicti c. 2.—Juan Cirita, a Spanish saint of the twelfth century, was exposed to the same temptation as St. Benedict, the devil visiting him in the shape of a lovely woman who sought refuge from her pursuers in his cell. During a sleepless night, feeling his resolution giving way, he roused his fire and with a glowing brand burned his arm to the bone, whereupon the devil vanished, loading him with reproaches (Henriquez Vit.

Joannis Cirita cap. ii.). Legends of this nature are not uncommon, nor are there wanting those of another class in which the immediate and visible agency of the Evil Spirit is not called into play. Thus the holy Godric, a Welsh saint of the twelfth century, endeavored to subdue his rebellious flesh in the manner which St. Benedict found so effectual, but without success. He then buried a cask in the earthen floor of his cell, filled it with water and fitted it with a cover, and in this receptacle he shut himself up whenever he felt the titillations of desire. In this manner, varied by occasionally passing the night up to his chin in a river of which he had broken the ice, he finally succeeded in mastering his fiery nature.—Girald. Cambrens. Gemm. Eccles. Dist. II. c. x.

[233](#) Regul. S. Benedicti c. 28, 29, 58.

[234](#) Tetrad. Regul. c. 1.

[235](#) Capit. Car. Mag. I. ann. 811 cap. xi. He also asks whether there were any monks in Gaul before the rule of St. Benedict was brought there, and is naturally not a little puzzled when told that St. Martin of Tours was a monk long anterior to the time of Benedict.—Capit. II. ann. 811 cap. xii. (Baluz. I. 331-2, Ed. Venet.).

[\[236\]](#)

Quinquaginta quinque millia quingenta quinque
Omnes canonizati a te sunt translati.
Est monachus sanctus. Caput vero Benedictus.—
(Birck de Monast. Campidonens. c. 25.)

Bishop Trithemius is more moderate, his estimate amounting to only 15,559. (Miræi Orig. Benedict.)

[237](#) Gregor. PP. I. Lib. I. Epist. 42. Six years later he had to repeat his commands in stronger terms. (Cf. Lib. VII. Epist. 35. Lib. II. Epist. 28. Lib. IV. Epist. 27. Lib. X. Epist. 8.) Yet when the offender was a man of rank and power, as in the case of Venantius, Patrician of Syracuse, Gregory could lay aside the tone of lofty command and condescend to tender entreaty and earnest exhortation (Lib. I. Epist. 34), without even a threat of excommunication, and remain for years on the friendliest terms with him (Lib. XI. Epist. 30, 35, 36), showing that the rule was as yet by no means firmly established. In another case, however, nothing can be more indignant and peremptory than his commands (Lib. VIII. Epist. 8, 9).

[238](#) Gregor. PP. I. Lib. IV. Epist. 42.

[239](#) Gregor. PP. I. Lib. X. Epist. 22, 23.—He states “ut etiam monachis ibidem degentibus mulieribus se jungere sine metu sit licitum” which he characterizes as “res ... omnino detestabilis et nefanda.”

[240](#) Gregor. PP. I. Lib. XI. Epist. 50.

[241](#) Concil. Parisiens. V. ann. 615 c. xiii.—In the decree of Clotair II., confirming the acts of this council, we find—“Puellas et viduas religiosas, aut sanctimoniales, quæ se Deo voverunt, tam quæ in propriis domibus resident, quam quæ in monasteriis positæ sunt, nullus nec per præceptum nostrum

competat, nec trahere nec sibi in conjugio sociare penitus præsumat etc.”—*Edict. Chlot. II. ann. 615 c. xviii. (Baluze).*

[242](#) *S. Fructuosi Bracarens. Regul. Commun. cap. 1.*

[243](#) *De Ecclesiast. Offic. Lib. II. cap. xvi. § 7.*

[244](#) *Solutos atque oberrantes, sola turpis vita complectitur et vaga, ... quique dum, nullum metuentes, explendæ voluptatis suæ licentiam consecantur, quasi animalia bruta, libertate ac desiderio suo feruntur, habentes signum religionis, non religionis officium, hippocentauris similes, neque equi neque homines, ... quorum quidem sordida atque infami numerositate satis superque nostra pars occidua pollet.—Ibid. Lib. II. c. iii.*

[245](#) *Ludov. Pii de Reform. Eccles. cap. 100. (Goldast. Const. Imp. III. 199.)*

[246](#) *Smaragd. Comment. in Regul. Benedict. c. 1.*

[247](#) *De Mor. German. c. 18, 19.* It is a little singular that Salvianus names the Alamanni as the only exception to the character for chastity which he bestows on the Barbarians in general.

[248](#) From such chance allusions as are made by Gregory of Tours, this would almost seem to be the general rule, and not the exception. Thus he mentions that Apollinaris obtained the see of Rhodéz at the solicitation of his wife and sister (*Hist. Franc. Lib. III. c. 2*), and shortly afterwards the same episcopate is filled by the appointment of “Innocentius Gabalitanorum comes” (*Ibid. Lib. VI. c. 38*). Sulpitius, when nominated to that of Bourges, “ad clericatum deductus, episcopatum ... suscepit” (*Ibid. Lib. VI. c. 39*). Badegisilus, Clotair’s mayor of the palace, received the bishopric of Le Mans “qui tonsuratus, gradus quos clerici sortiuntur ascensus,” was duly installed (*Ibid. Lib. VI. c. 9*). Indeed, in his catalogue of the Bishops of Tours, Gregory specifies of Euphronius, the eighteenth bishop, that he was “ab ineunte ætate clericus,” showing how unusual it was to be regularly bred to the church.

[249](#) *Hincmari Vit. S. Remigii c. 42, 43.*

[250](#) *Greg. Turon. de Glor. Confess. c. 78.*

[251](#) *Concil. Matiscon. I. c. 3.*

[252](#) *Greg. Turon. Hist. Franc. Lib. IV. c. 4.* At this period the church of Brittany was rather British than Frankish. See Haddan & Stubbs, II. 72 sqq.

[253](#) *Concil. Turon. II. c. 19, 20.*—A remark of Gregory of Tours (*Hist. Franc. Lib. VIII. cap. 19*) has been assumed to indicate that priests could legitimately have commerce with their wives. By comparing it with the canons cited above, however, it evidently can at the most have reference to the lower orders of the clergy.

[254](#) *Concil. Toletan. III. c. 5.*

[255](#) *L. Wisigoth. Lib. III. Tit. IV. l. 18.* This law is preserved in the *Fuero Juzgo*, or mediæval Romance version of the code (*Lib. III. Tit. IV. ley 18*).

[256](#) L. Wisigoth. Lib. III. Tit. v. l. 2.

[257](#) Concil. Toletan VIII. ann. 653 can. iv. v. vi.—These measures were as fruitless as the preceding. Cf. Concil. Toletan. IX. ann. 655 can. x.

[258](#) Rex Witiza se effrenate præcipitans per omne genus flagitii, legem nequissimam tulit; ut more sara(ce)norum cuilibet laico et clerico liceret, quotquot posset alere, uxores et concubinas impune domi suæ retinere.—Liutprandi Chron. No. 174 ann. 706.

[259](#) Liutprandi Chron. No. 181 ann. 709; No. 188 ann. 711. Without entering into the question of the correctness with which this chronicle has been attributed to Liutprand of Cremona, I may say that it has every appearance of being an authentic remnant of antiquity (Cf. Antonii Biblioth. Hispan. I. 585).

[260](#) Concil. Roman, sub Silvest. can. xix. (Migne's Patrol. VIII. 840).

[261](#) Pelagii PP. II. Epist. xiv.

[262](#) Superstes uxor aut filii, per quos ecclesiastica solet periclitari substantia.—Pelagii PP. I. Cethego Patricio.

[263](#) L. Wisigoth. Lib. v. Tit. i. l. 2.

[264](#) Gregor. PP. I. Lib. XIII. Epist. 6.—This rule had come to be very generally neglected. The importance attached to it, however, by strict disciplinarians is well illustrated in the firmness displayed by John, Patriarch of Alexandria, a contemporary of Gregory, whose bountiful charity had earned for him the title of Eleemosynarius. In a time of extreme famine, a wealthy aspirant offered him 200,000 bushels of corn and 100 pounds of gold for the grade of deacon. He had unluckily been twice married, and John refused the dazzling bribe, although the episcopal treasury had been exhausted in relieving the necessities of the suffering people (Thomassin, Discip. de l'Église, Pt. II. Liv. 3, c. 15.)

[265](#) Gregor. PP. I. Lib. XIII. Epistt. 35, 36.

[266](#) Ibid. Lib. IV. Epist. 26; Lib. V. Epist. 3; Lib. VIII. Epist. 24.—Similar attempts had previously been made by sundry provincial councils. In the case of Andrew, Bishop of Tarentum, who was accused of maintaining relations with a former concubine, Gregory recognizing the impossibility of obtaining proof, leaves it to his own conscience. If he has had any commerce with her since his ordination, he is commanded at once to resign his position as the only mode of insuring his salvation (Ibid. Lib. III. Epistt. 45, 46).

[267](#) Ibid. Lib. I. Epist. 44; Lib. IV. Epistt. 5, 36.

[268](#) Ibid. Lib. XI. Epist. 69.

[269](#) Ibid. Lib. IX. Epist. 106.

[270](#) Udalric. Bamberg. Cod. Lib. II. Epist. 10.

[271](#) Gregor. PP. I. Lib. I. Epist. 52; Lib. IX. Epist. 60.

[272](#) Gregor. PP. I. Dial. Lib. IV. cap. xi.

[273](#) In 649 we find Amandus, Bishop of Maestricht, resigning his office on account of the impossibility of enforcing the canons among his priests and deacons. Martin I. endeavored to dissuade him from his purpose, and urged his proceeding with the utmost rigor against all transgressors (Hartzheim Concil. German. I. 28).

[274](#) Concil. Roman. ann. 721.

[275](#) Chron. Gradensis Supplement.

[276](#) Capitul. Arechis Benevent. cap. xii. (Canciani I. 262).

[277](#) Muratori Antiq. Med. Ævi Dissert. LXXIV.

[278](#) Gregor. PP. II. Epist. 14 cap. 12.

[279](#) Modo autem maxima ex parte episcopales sedes traditæ sunt laicis cupidis ad possidendum, vel adulteratis clericis, scortatoribus et publicanis sæculariter ad perfruendum.... Si invenero inter illos diaconos quos nominant, qui a pueritia sua semper in stupris, semper in adulteriis et in omnibus semper spurcitiis vitam ducentes, sub tali testimonio venerunt ad diaconatum, et modo in diaconatu concubinas quatuor vel quinque vel plures noctu in lecto habentes, evangelium tamen legere et diaconos se nominare non erubescunt, nec metuunt: et sic in talibus incestis ad ordinem presbyteratus venientes, in iisdem peccatis perdurantes, et peccata peccatis adjicientes, presbyteratus officio fungentes, dicunt se pro populo posse intercedere, et sacras oblationes offerre. Novissime, quod pejus est, sub talibus testimoniis per gradus singulos ascendentes, ordinantur et nominantur episcopi. Si usquam tales invenero inter illos, rogo ut habeam præceptum et conscriptum auctoritatis vestræ, quid de talibus diffiniatis, ut per responsum Apostolicum convincantur et arguantur peccatores.—Bonifacii Epist. 132.

[280](#) Milo quidam, tonsura clericus, moribus, habitu, et actu irreligiosus laicus, episcopia Remorum ac Trevirorum usurpans insimul, per multos annos pessumderit.—Hincmar. Epist. xxx. c. 20.—Sola tonsura clerico, qui secum processerat ad bellum.—Flodoard. Hist. Remens. Lib. ii. c. 12.—Nihilque in eo de clericali honore vel vita nisi sola tonsura enituit.—Hist. Trevirens. (D'Achery Spicileg. II. 212).

[281](#) Hist. Trevirens. (D'Achery Spicileg. II. 212).

[282](#) Bonifacii Epist. 142.

[283](#) Hist. Trevirens. loc. cit.

[284](#) Bonifacii loc. cit.

[285](#) Othlon. Vit. S. Bonifac. Lib. i. c. 44.

[286](#) Bonifacii Epist. 85.

[287](#) Flodoard. Hist. Remens. Lib. ii. cap. 12.—Capit. Caroli Calvi Tit. xxvii. cap. 7 (Baluze).

[288](#) Et tam laicorum injusta concubinarum copula partim exhortante sancto viro separata est, quam etiam clericorum nefanda cum uxoribus conjunctio sejuncta ac separata.—Willibald. Vit. S. Bonifac. c. 9.

[289](#) Capit. Caroloman. ann. 742 c. 1, 3, 6.

[290](#) Bonifacii Epist. 137.

[291](#) Ibid. Epist. 132, 142.

[292](#) Capit. Caroloman. ann. 743 c. 1.

[293](#) Zachar. PP. Epist. 8, c. 11, 18.

[294](#) Pippini Capit. ann. 744 c. 4, 8, 9.

[295](#) Bonifac. Epistt. 135, 139 (Zachar. PP. Epist. 9).

[296](#) Othlon. Vit. S. Bonif. Lib. II. c. 11.

[297](#) Bonifacii Epist. 135.—S. Ludgeri Vit. S. Bonifacii.

[298](#) Bonifacii Epist. 140.

[299](#) Capit. Pippini ann. 755.

[300](#) Regul. S. Chrodegangi cap. 29, 56, 68, 70.

[301](#) Cod. Carolini Epist. lxiv. (Patrolog. T. 98 p. 319). Yet even in 772 we find that a council in Bavaria found it necessary to prohibit the marriage of nuns.—Concil. Dingolting. can. 2 (Hartzheim Concil. German. I. 129).

[302](#) Capit. Car. Mag. II. ann. 811 cap. iv. (Baluz. I. 329—Ed. Venet.).

[303](#) Ghaerbaldi Judicia Sacerdotalia de Criminibus c. 13 (Martene Ampl. Coll. VII. 31).

[304](#) Ludov. Pii. Capit. Ingelenheim. c. 5.

[305](#) Capit. Aquisgran. ann. 817. Cf. Miræi Cod. Donat. Piar. c. 13.—This Capitulary regulating monastic life was generally adopted as a supplement to the rule of Benedict (Leo. Ostiens. Chron. Cassinens. Lib. I. c. 16).

[306](#) See ante, p. 123. Cf. Pseudo-Hormisdæ Epist. Encyc. (Migne's Patol. T. LXIII. p. 527).

[307](#) Quid enim est gravius carnale delictum admittere *sine quo in multis pauci inveniuntur*, an Dei filium timendo negare? in quo uno ipsum beatum Petrum apostolorum principem, ad cujus nunc corpus indigni sedemus, lapsum esse cognoscimus, sed post negationem pœnitentia secuta, et post pœnitentiam misericordia data.—Pseudo-Gregor. Epist. ad Secundinum.

Isidor Mercator also includes two canons from the sixth century forgery of the Roman Council said to have been held under Silvester I. (see p. 122). Of these, one prohibits bishops from celebrating the marriage of nuns under seventy years of age; the other forbids priests from marrying, under a penalty of ten year's suspension, with a threat of perpetual deprivation for contumacy. (Constit.

Pseudo-Silvestri cap. x. xix.) The adoption of these in the False Decretals would seem at least to be superfluous.

[308](#) Capit. Carol. Mag. I. ann. 802 c. 17.

[309](#) Concil. Aquisgran. ann. 836, de vit. et doc. infer. ordin. can. xii., xiv.—De monasteriis puellarum quæ in quibusdam locis lupanaria potius videntur esse quam monasteria.

[310](#) Capitul. add. iv. cap. clx. (Baluze, I. 1227).

[311](#) Bonifacii Epist. 19.

[312](#) Capit. Aquisgran. ann. 817, c. xi.—Chavard, Célibat des Prêtres, Genève, 1874, p. 35.

[313](#) Quia, instigante diabolo, etiam in illis scelus frequenter perpetratum invenitur, aut etiam in pedissequis earum. Nec igitur matrem, neque amitam, neque sororem permittimus ultra habitare in domo una cum sacerdote.—Theodulf. Aurelian. Capit. Secund. (Baluz. et Mansi II. 99.)

He had previously (Epist. c. 12) promulgated the prohibition, assigning for it the more decent reason, in imitation of St. Augustin, of the danger arising from female attendants. In this he was imitated, about 850, by Rodolf of Bourges (Capit. Rodulf. Bituricens. c. 16), and about 871 by Walter of Orleans (Capit. Walteri Aurelian. c. 3).

In 889, however, Riculfus of Soissons declares the lamentable truth without reserve: “Nos vero etiam a matribus, amitis, sororibus vel propinquis cavendum dicimus, ne forte illud eveniat quod in sancta scriptura legitur de Thamar sorore Absalon ... de Loth etiam ... Quod si aliquis vestrum matrem, sororem vel amitam ad convescendum vocaverit, expleto convivio ad domos suas vel ad hospitia a domo presbyteri remota, cum luce diei eas faciat remeare; periculosum quippe est ut vobiscum habitent.”—Riculfi Suess. Const. c. 14.

[314](#) Thus the council of Mainz in 888—“Quod multum dolendum est, sæpe audivimus per illam concessionem plurima scelera esse commissa, ita ut quidam sacerdotum, cum propriis sororibus concumbentes, filios ex eis generassent, et idcirco constituit hæc sancta synodus, ut nullus presbyter ullam feminam secum in domo propria permittat quatenus occasio malæ suspicionis vel facti iniqui penitus auferatur” (Concil. Mogunt. ann. 888 c. 10). In the same year the third canon of the council of Metz repeats the prohibition; while in 895 the council of Nantes declares—“Sed neque illas quas canones concedunt; quia instigante diabolo, etiam in illis scelus frequenter perpetratum reperitur, aut etiam in pedisequis illarum, scilicet matrem, amitam, sororem.”—Concil. Namnetens. ann. 895 c. 3.

It is true that some authorities, including the great name of Pagi, attribute to this council of Nantes the date of 660, but this is unimportant as regards the canon in question, for its necessity during the period under consideration is shown by its insertion in the Capitularies of Benedict the Levite (Lib. vii. c. 376), and in the collection of Regino of Pruhm (Lib. i. c. 104).

[315](#) Capit. Carol. Calvi Tit. iii. cap. 4, 5.

[316](#) Martene Ampliss. Collect. I. 151.

[317](#) Hincmari Epist. xxxii. c. 20.

[318](#) Hincmari Capit. Presbyteris data. cap. xxi.-xxv.

Hincmar repeats his instructions, with some amplifications, in another document, in which he declares them to be the received traditional rules—“a majoribus nostris accepimus” (De Presbyt. criminos. c. xi.-xviii.). That they were generally practised is shown in their almost literal repetition by the council of Trosley in 909—with the exception that in some cases fourteen or twenty-one witnesses were required for conviction (Concil. Troslei. c. ix.).

[319](#) Martene Ampl. Collect. I. 151.

[320](#) Capit. Synod. Remens. ann. 874 c. 3.

[321](#) Nicholai I. Respons. ad Consult. Bulgar. c. 70.

[322](#) Efficitur ad hæc uxorius, liberos procreans, et ad suæ damnationis cumulum nil sibi clericale præter tonsuram præferens.—Folcuin. de Gest. Abbat. Laubiens. c. 12.

[323](#) Manton. Episc. Catalaun. Epist. ad Fulc. Remens. (Migne’s Patrol. T. 131, p. 23.)

[324](#) Liutprand. Antapod. Lib. iii. c. 43.

[325](#) Liutprand. Hist. Otton. c. 4, 10.—Chron. Benedict. S. Andreæ Monach. c. 35.

[326](#) Concil. Turon. ann. 925. (Martene Thesaur. IV. 73.)

[327](#) Ratherii de nuptu cujusdam illicito c. 4.

[328](#) Ratherii de contemptu canon. P. I. c. 4.

[329](#) Atton. Vercell. Epist. ix.

[330](#) Enarratio eorum quæ perverse gesta sunt, etc. (Muratori, Antiq. Med. Ævi Diss. LXII.).

[331](#) Institutes of Polity, Civil and Ecclesiastical, c. 19, 23 (Thorpe, Ancient Laws, &c. of England, II. 329, 337).

[332](#) Ratherii Itinerar. c. 5.

[333](#) Ratherii Synodica c. 15.

[334](#) Gunzo the Grammarian, in his learned treatise, makes use of the recognized celibacy of the clergy as a comparison. "Non enim una eademque res bona, licet æque omnibus conceditur. Siquidem nuptiæ, laicis concessæ, sacris ordinibus denegantur."—Gunzonis Epist. ad Augienses.

[335](#) Leon. PP. VII. Epist. 15.

[336](#) Constit. Otton. ann. 940, c. 12.

[337](#) Quod si sacerdotes incontinenter propter ipsam continentiam primam quam sortitus est, separati a consortio cellæ, teneat uxorem; si vere aliam duxerit, excommunicetur.—Concil. Spalatens. ann. 925 c. 15.

The passage is evidently corrupt, but its intention is manifest. The reading suggested by Batthyani may be reasonably accepted. "Quod si sacerdotes incontinentes propter ipsam continentiam quam quis primam sortitus est, separati a consortio cellæ, teneant uxorem, tolerantur; si vero aliam duxerint, excommunicentur." (Batthyani Legg. Eccles. Hungar. I. 333-4.)

[338](#) Richeri Hist. Lib. II. c. 81. The canons of the council, however, as they have reached us, are silent on the subject.

[339](#) Concil. Augustan. ann. 952 c. 1, 4, 11.

[340](#) Cod. Bamberg. Lib. II. Epist. 10.

St. Ulric is noteworthy as the first subject of papal canonization, having been enrolled in the calendar by the council of Rome in 993. That priestly marriage should be advocated by so pious and venerable a father was of course not agreeable to the sacerdotal party, and his evidence against celibacy has not infrequently been ruled out of court by discrediting the authenticity of the epistle. The compiler of the collection containing it, made in 1125, prefixed the name of Nicholas as that of the pope to whom it was addressed, and as St. Ulric was about equidistant between Nicholas I. in the ninth and Nicholas II. in the eleventh century, it has been suggested that the epistle was addressed to the latter, on the occasion of his reforms in 1059 the use of St. Ulric's name being assumed as a mistake of the compiler. That this is not so is shown by the fact that already in 1079 it was known as St. Ulric's, being condemned as such in that year by Gregory VII.—"scriptum quod dicitur sancti Oudalrici ad papam Nicholaum, de nuptiis presbiterorum" (Bernald. Constant. Chron. ann. 1079).

The authenticity of the document, I believe, is generally admitted by unprejudiced critics.

[341](#) Ratherii Discordia c. 1, 6.

[342](#) Ratherii Epist. XI., XII.—His letter to the Empress Adelaide, announcing his willingness to retire from the contest, and to seek the congenial shades of a monastery, is most uncourtly. (Epist. XIII.)

[343](#) Ruotgeri Vit. S. Brunonis c. 38.—Ratherius consoled himself epigrammatically by condensing his misfortunes in the Leonine verse—“Veronæ præsul, sed ter Ratherius exsul.”

[344](#) De Contempt. Canon. P. II. c. 2.—Præloquiorum Lib. v. c. 18.

The existing confusion is well exemplified by another remark—“Expertus sum talem qui ante ordinationem adulterium perpetravit, postea quasi continenter vixit; alterum qui post ordinationem uxorem duxit; et iste illum, ille istum carpebat.”—De Contempt. Canon. P. I. c. 11.

[345](#) Atton. Vercell. Epist. 9. In another epistle (No. 10) Atto congratulates himself on the reform of some of his clergy, and threatens the contumacious with degradation.

[346](#) Othloni Vit. S. Wolfkangi c. 15, 16, 17, 23.

[347](#) “Ad cumulum damnationis suæ, accepit mulierem, nomine Hildeburgam, in senectute, quæ, ingresso illo ad se, concepit et peperit filios et filias, &c.” The chronicler makes the end of this aged sinner an example of poetical justice such as may frequently be found in the monkish annals of those times—“Qui dum esset flebotomatus, nocte insecuta dormivit cum Episcopissa; qua de re vulnus cœpit intumescere, et dolor usque ad interiora cordis devenire.” Finding his end approaching, he assumed the monastic habit and took the vows, after which he immediately expired.—Act. Pontif. Cenoman. c. 29 (Dom Bouquet, X. 384-5).

Fulbert of Chartres has left us a lively sketch of the military bishops of the period.—“Tyrannos potius appellabo, qui bellicis occupati negotiis, multo stipati latus milite, solidarios pretio conducunt, ut nullos sæculi reges aut principes noverim adeo instructos bellorum legibus, totam armorum disciplinam in procinctu militiæ servare, digerere turmas, ordines componere, ad turbendam ecclesiæ pacem, et Christianorum, licet hostium, sanguinem, effundendum.”—Fulbert. Carnot. Epist. 112.

[348](#) Chron. S. Petri Vivi (D’Achery Spicileg. II. 470).

[349](#) This singular oath has been published by Muratori (Antiq. Ital. Diss. xx.).—“Ego Andrea presbiter promitto coram Deo et omnibus sanctis, et tibi Guarino episcopo, quod carnalem commistionem non faciam; et si fecero, et onoris mei et beneficio ecclesiæ perdam.”

[350](#) S. Petri Damiani Epist. Lib. IV. Epist. 8.—Leo Marsicanus (Chron. Cassinens. Lib. II. c. 16) asserts that in his youth he himself had seen and conversed with a priest who had been one of the eye-bearers.

[351](#) Abbon. Floriac. Epist. 14.

[352](#) Although Aimoin, who was an eye-witness, does not specially mention the cause that excited the monks to ungovernable fury, yet a casual allusion shows that women were responsible for it.—“Cæterum, tantæ cladis compilatores certissime agnoscentes beatum obiisse Abbonem, certatim cuncti in fugam vertuntur, ita ut, terris reddito die, ne mulieres quidam in universis forensibus ipsius villæ invenirentur domibus”—(Abbon. Floriac. Vit. c. 20)—and the day after his death “una ex his mulieribus quæ clamore suo seditionem concitaverant” became suddenly mad, and was struck with incurable leprosy—(Aimoin. Mirac. S. Abbonis c. 2).

[353](#) Damian. Carm. ccxxi.

[354](#) Aimoin. Vit. S. Abbonis c. 9.

[355](#) Episcopi sui temporis aliqui fastu superbiæ, aliqui simplicitate cordis, filios sæcularium sacerdotum ad sacros ordines admittere dedignabantur, nec ad clericatum eos recipere volentes; hic vero beatus, neminem despiciens, neminem spernens, passim cunctos recipiebat.—Constant. S. Symphor. Vit. Adalberon. II. c. 24.

[356](#) Dithmar. Merseberg. Lib. vi. c. 24.

[357](#) S. Heinrici Sentent. de Conjug. Cleric. (Patrologiæ T. 140 p. 231).

[358](#) A nullo scriptorum qui de illo sive de episcopo ejus locuti sunt, laudatus est. Palam memorant quod habitu non opere monachus fuerit.

Successit Hugo, legis Domini violator
Clara stirpe satus, sed Christi lumine cassus.
—Order. Vital. Lib. v. c. 10 § 41.

[359](#) About the year 990, for instance, we find Duke Richard reforming the celebrated Abbey of Fécamp and replacing with Benedictines the former occupants—canons whose secular mode of life outraged his pious sensibilities—“contigit Fiscannenses canonicos aliorum canonicorum mores imitari, latas perditionis vias ingredi, et rerum temporalium luxus et desidias voluptuose sectari.”—Anon. Fiscannens. c. 17.

[360](#) Nam conjugem nomine Herlevam, ut comes, habuit, ex qua tres filios, Richardum, Radulfum et Guillelmum genuit; quibus Ebroicensem comitatum et alios honores amplissimos secundum jus sæculi distribuit.—Orderic. Vital. Lib. v. c. 10 § 42.

So in the Normanniæ Nova Chronica, published by Chéruef in 1850, “Iste Robertus fuit uxoratus, et ex Herleva conjuge sua tres filios habuit, Richardum, Radulfum et Willelmum.”

[361](#) Bénoit, Chronique des Ducs de Normandie, v. 32427, 24912. We may fairly conclude from these expressions that Robert was educated for the priesthood.

[362](#) Voluptatibus carnis mundanisque curis indecenter inhæsit, filiumque nomine Michaellem probum militem et legitimum genuit, quem in Anglia jam senem rex Henricus honorat et diligit.—Orderic. Vital. Lib. v. c. 10 § 43.

[363](#) Concil. Ansan. ann. 990 c. 5.

[364](#) Concil. Pictaviens. c. ann. 1000 c. 3.

[365](#) Si clericus superioris gradus, qui uxorem habuit, et post confessionem vel honorem clericatus iterum earn cognoverit, sciat sibi adulterium commisisse, sicut superiore sententia unusquisque juxta ordine suo pœniteat [i. e. diaconus et monachi vii. (annos) iii. ex his pane et aqua. Presbyter x. Episcopus xii., v. ex his pane et aqua.] ... Si quis clericus aut monachus postquam se devoverit ad sæcularem habitum iterum reversus fuerit aut uxorem duxerit, x. annos pœniteat, iii. ex his in pane et aqua, nunquam postea in conjugium copuletur.—Judicium Pœnitentis ex Sacrament. Rhenaug.

[366](#) Gerberti Sermo de Informat. Episcoporum.

[367](#) Gerberti Opp. p. 197 sqq. (Ed. Migne).

[368](#) “Taceo de me quem novo locutionis genere equum emissarium susurrant, uxorem et filios habentem, propter partem familiæ meæ de Francia recollectam.”—Gerberti Epist. Sect. I. No. xi.—Gerbert’s reputation for sanctity is not such as to render scandalous the suspicion that the family thus gathered around him might afford legitimate occasion for gossip, notwithstanding his abbacy and the fact that he had been bred in a convent.

[369](#) Ita ut clerici (quod non absque dolore cordis fateor) impudici, bilingues, ebrii, turpis lucri cupidi, habentes fidem, et ut verius dicam, infidelitatem, in conscientia impura, non probati in bona, sed in malo opere præsciti ministrantes, et innumera crimina habentes, sacro ministerio adsciscantur.—Gildæ de Excid. Britan. Pt. iii. cap. 23—Cf. cap. 1, 2, 3.

[370](#) “*Unius uxoris virum.*” Quid ita apud nos quoque contemnitur, quasi non audiretur, vel idem dicere et virum uxorum?... Sed quid erit, ubi nec pater nec filius mali genitoris exemplo pravatus conspicitur castus?—Gildæ loc. cit.

[371](#) Modern criticism has raised doubts as to the existence of St. Patrick. Whether they are well-grounded or not is a matter of little importance here, as we are concerned only with the institutions bearing his name, which institutions undoubtedly did exist. Meanwhile I may add that few remote events appear to rest on better authority than the conversion of the Gaeidhil, about the year 438, by a person known to his contemporaries as Patraic, or Patricius; and the name of Cain Patraic applied to the secular code attributed to him, dates from a very high antiquity.—See Senchus Mor, Hancock’s Ed. Vol. I. Dublin, 1865.

[372](#) Synod. S. Patricii c. 9, 17 (Haddan & Stubbs II. 328-9)—Synod. II. S. Patricii c. 17, 21 (Ibid. 335-6).

[373](#) Præfat. Gildæ de Pœnitent. cap. 1 (Martene Thesaur. IV. 7).

[374](#) Lib. de Remed. Peccat. cap. de Fornicat. (Martene IV. 23).—Cf. Synod. Aquilon. Britan. cap. 1 (Ibid. p. 9).

[375](#) In this long course of penance, three months were to be spent in solitary confinement, with bread and water at night; then eighteen months in fasting on bread and water; then bread and water three days in the week for five years and

three months; then bread and water on Fridays for the remaining three years.—
Gratian. Dist. LXXXII. c. 5.

[376](#) Arbedoc et Haelhucar Lib. xxxviii. cap. 7 (D'Achery I. 500).

[377](#) Haddan & Stubbs, Councils of Great Britain, I. 112.

[378](#) Bernardi Vit. S. Malachiae cap. vi.

[379](#) S. Columbani Regul. cap. vi.

[380](#) Reliquit (Columbanus) successores magna continentia ac divino amore regularique institutione insignes ... pietatis et castitatis opera diligenter observantes (Bedæ Hist. Eccles. Lib. iii. c. 4, cf. also c. 26). Bede's orthodoxy on the subject is unquestionable: "Sacerdotibus ut semper altari queant assistere, semper ab uxoribus continendum, semper castitas observanda præcipitur" (In Lucae Evang. Exposit. Lib. I. cap. 1).—"Quanta sunt maledictione digni qui prohibent nubere et dispositionem cœlestis decreti quasi a diabolo repertam condemnant? ... sed magis honoranda, majore est digna benedictione virginitas." (Hexæmeron. Lib. I. sub tit. Benedixitque illis.) See also De Tabernac. Lib. iii. c. 9, already referred to (p. 65).

[381](#) See, for instance, the proceedings of the synod of Whitby in 664, where the differences between the Scottish and Roman observances were fully discussed (Spelman. Concil. I. 145). So when, in 633, Honorius I. addressed the Scottish clergy, reproving their false computation of Easter and their Pelagianism, he made no allusion to any want of clerical purity (Bedæ Hist. Eccles. Lib. ii. c. 19).

[382](#) "Opto enim doceri an clerici continere non valentes, possint contrahere; et si contraxerint, an debeant ad sæculum redire"—to which Gregory responds with a long exhortation as to the duties of the "clerici extra sacros ordines constituti"—Gregor. I. Regist. Lib. xi. Epist. lxiv. Respons. 2.

[383](#) Si episcopi filius sit, sit dimidium hoc (Leg. Inæ c. LXXVI.). The rubric of the law is "De occidente filiolum vel patrinum alicujus" (Thorpe, Ancient Laws of England, II. 472).

[384](#) Denique promulgatur decretum ... de abdicandis sacerdotum uxoribus.—
Spelman. Concil. I. 216.

[385](#) Cave, Script. Eccles. Hist. pp. 424-5 (Ed. 1705).

[386](#) Theodori Pœnitent. i. ix. 1, 4, 5, 6, 10; ii. ii. 12 (Haddan & Stubbs, III. 184-5, 192).

[387](#) See, for instance, St. Aldhelm's rhapsodies, "De laudibus virginitatis," and "De laudibus virginum." The orthodoxy of Bede on this question has already been alluded to.

According to the legend, St. Aldhelm tried his virtue by the same crucial experiments as those resorted to by some of the ardent devotees of the third century, concealing his motive in order that his humility might enjoy the benefit of undeserved reprobation. "Sancti Aldelmi Malmesburiensis, qui inter duas puellas, unam ab uno latere, alteram ab altero, singulis noctibus ut ab hominibus

diffamaretur, a Deo vero cui nota fuerat conscientia ipsius et continentia copiosius in futurum remuneraretur, jacuisse describitur.”—Girald. Cambrens. Gemm. Eccles. Dist. II. cap. xv.

[388](#) Ecgberti Pœnitent. I. II. 3; IV. 2, 7, 8; v. 1-22.—Ejusd. Dialog, v. (Haddan & Stubbs, III. 406, 419-23).

[389](#) Epist. ad Geruntium.—Aldhelmi Opp. p. 83 (Ed. Oxon. 1844).

[390](#) Johan. PP. IV. Epist. iii.

[391](#) Bedæ Epist. II.

[392](#) Bonifacii Epist. 105.

[393](#) Can. 20 directs greater strictness with regard to visitors, “unde non sint sanctimonialium domicilia turpium confabulationum, commessionum, ebrietatum, luxuriantiumque cubilia.” Can. 28 orders that nuns after taking the veil shall not wear lay garments; and can. 29 that clerks, monks, and nuns shall not live with the laity. (Spelman. Concil. I. 250-4.—Haddan & Stubbs, III. 369, 374.)

This demoralization of the nunneries is not to be wondered at when Boniface, in reproving Ethelbald, King of Mercia, for his evil courses, could say, “Et adhuc, quod pejus est, qui nobis narrant adjiciunt: quod hoc scelus maxime cum sanctis monialibus et sacratis Deo virginibus per monasteria commissum sit.” This sacrilegious licentiousness, indeed, would seem almost to have been habitual with the Anglo-Saxon reguli for Boniface instances the fate of Ethelbald’s predecessor Ceolred and of Osred of Northumbria who had both come to an untimely end in consequence of indulgence in similar evil courses.—Bonifacii Epist. 19.

[394](#) Concil. Calchuth. can. 15, 16 (Haddan & Stubbs, III. 455-6).

[395](#) Haddan & Stubbs, Councils, etc., III. 493.

[396](#) Propter fornicationem fugiendam unusquisque *laicus* suam uxorem legitimam habeat.—Concil. Calchuth. can. 16.

[397](#) Concil. Celicyth. ann. 816 can. 4 8 (Haddan & Stubbs, III. 580-3).

[398](#) Goscelini Vit. S. Swithuni c. 1, 2.

[399](#) Leg. Aluredi c. 8, 18.—Constit. Odon. Cantuar. c. 7.

[400](#) Leg. Edwardi et Guthrun. c. 3.—Leg. Eadmund. Eccles. c. 1.

[401](#) Bridfrit. Vit. S. Dunstan. c. 5, 7. Bridfrith was a disciple of St. Dunstan, and composed his biography but a few years after the death of his patron. He does not state what was the position of Dunstan at the time of his betrothal; but Osbern, a hundred years later, asserts that he had acquired the lower orders only, and that he received the priesthood and took the monastic vows simultaneously.—Osberni Vit. S. Dunstan. c. 8, 12.

[402](#) Osbern. Vit. S. Dunstan. c. 35.—Florent. Wigorn. ann. 964, 973.—Matt. Westmonast. ann. 963.

[403](#) Vit. S. Æthelwoldi c. 14.

[404](#) Si ista solerti scrutinio curassetis, non tam horrenda et abominanda ad aures nostras de clericis pervenissent ... dicam dolens quo modo diffluent in commensationibus, in ebrietatibus, in cubilibus et impudiciis, ut jam domus clericorum putentur prostibula meretricum, conciliabulum histrionum.... Ad hoc ergo exhauserunt patres nostri thesauros suos? ad hoc fiscus regius, detractis redditibus multis elargitus est? ad hoc ecclesiis Christi agros et possessiones regalis munificentia contulit, ut deliciis clericorum meretrices ornentur? luxuriosæ convivæ præparentur? canes ac aves et talia ludicra comparentur? Hoc milites clamant, plebs submurmurat, mimi cantant et saltant, et vos negligitis, vos parcitis, vos dissimulatis.—Oratio Edgari ann. 969 (Spelman. Concil. I. 477).

[405](#) Vit. S. Æthelwold. c. 12.

[406](#) “Gif preorst ewenan forlæte and oðre nime, anapema sit” (Leg. Presbyt. Northumbriens. c. 35). Spelman’s translation of this “Si presbyter concubinam suam dimiserit et aliam acceperit anathema sit” (Concil. I. 498) is perhaps hardly correct. Cwene can be interpreted in either a good or a bad sense, as a wife or a mistress; and the terms of the law show that the connection was a recognized one, the sin consisting in disregarding it. If the priest’s companion were only a concubine, his guilt would not be measurably increased by merely changing his unlawful consort.

[407](#) Chron. de Abbat. Abbendonæ (Chron. Abingdon. II. 279).

[408](#) Osborni Vit. S. Dunstan. c. 36.

[409](#) Chron. de Abbat. Abbendon. *loc. cit.*

[410](#) Vit. S. Æthelwold. c. 14, 15.

[411](#) Johannis PP. XIII. Epist. xxii.

[412](#) Concil. sub Dunstano (Spelman. I. 480).

[413](#) Ædgarī Charta de Oswalde’s Law (Spelman. I. 433).

[414](#) Anglo-Saxon Chron. ann. 964.

[415](#) Monach. Hydens. Leg. c. 8, 9 (Spelman. I. 438).

[416](#) Canon. sub Edgario—Mod. imponend. Pœnitent. c. 28, 29 (Thorpe, II. 273).

[417](#) Oratio Edgari (Spelman. I. 476).

[418](#) Spelman. I. 479.

[419](#) Guillel. Malmesbur. Lib. II. c. 8.

[420](#) Florent. Wigorn. ann. 975.—Matt. Westmonast. Lib. III. c. 18.—Chron. Winton. (Spelman. I. 490-2).

[421](#) Matt. Westmonast. Lib. III. c. 18. Henry of Huntingdon, however (Lib. v. ann. 978), who, as a secular priest and the son of a priest, did not look upon the labors of St. Dunstan with much favor, insinuates that the accident was intended to foreshow that the assembled wisdom and power of England were about to fall similarly from the grace of God.

[422](#) Haddan & Stubbs I. 286.

[423](#) Privilegi. Reg. Ethelredi (Spelman. I. 504).

[424](#) Ælfrici Canon. c. i.-viii. (Thorpe, II. 345). “Quasi periculosum non esset sacerdotem vivere more conjugati. Sed dicetis eum haud posse carere muliebribus servitiis. Respondeo, quonam pacto vitam transegerunt sancti olim viri absque femina vel uxore,” &c. (Spelman I. 573).—Spelman’s MS. was defective; that in Thorpe is perfect.

[425](#) Ælfric’s Pastoral Epistle, c. 32, 33 (Thorpe, II. 377).

[426](#) Omnes ministros Dei, præsertim sacerdotes, obsecramus et docemus, ut Deo obedientes, castitatem colant, et contra iram Domini se hoc modo muniant et tueantur. Certius enim norint quod non habeant debite ob aliquam coitus causam uxoris consortium. In more tamen est, ut quidam duas, quidam plures habeat; et nonnullus quamvis eam dimiserit quam nuper habuit, aliam tamen, ipsa vivente, accipit, quod nulla Christianorum lege est permissum. Dimittens autem et castitatem recolens, e cœlo assequetur misericordiam, in mundo etiam venerationem, adeo ut iuribus et tributis habeatur Thaini dignus cum in vita tum in funere. Qui autem ordinis sui regulam abdicaverit, omni cum apud Deum tum apud homines gratia exuatur.—Concil. Ænham. c. 2. (Spelman. I. 514-5).

I give the translation of Spelman, as being more faithful in spirit, although less literal than that of Thorpe; for though the expression “wifes gemanan” may not be especially limited to wifely relations, yet the whole tenor of the passage shows that the women concerned were not merely concubines, but were entitled to the consideration of legal wives.

The thane-right promised to those who should reform their lives was one of the recognized privileges of the church. In a list of wer-gilds, anterior to the period under consideration by about a century, the wer-gild for the priest—“mæsse-þegnes” is the same as that for the secular noble—“woruld-þegnes” (Thorpe, I. 187).

[427](#) “Munecas and mynecena canonicas and nunnan” (Concil. Ænham. c. 1). Spelman thinks that the mynecena were perhaps the wives or concubines of monks (Concil. I. 530). Mynecen is merely the feminine of munuc, a monk; Thorpe translates it as “mynchens,” and suggests that the “mynecena” were merely the younger nuns, not quite so strictly governed as the elder “nunnan.” To this opinion Bosworth (Dictionary, s. v. *nunne*) seems to incline. It would appear to be so from chapter xv. (be Mynecenan) of the “Institutes of Polity” (Thorpe, II. 322).

[428](#) Cnutes Domas c. vi. (Thorpe, I. 364).

[429](#) Cnutes Domas c. v. (Thorpe, I. 362). To appreciate the full weight of the privileges thus distributed, we should bear in mind how completely, in those

times, the various classes of society were distinguished by the facilities afforded them of acquittal in cases of accusation, and by the graduated scale of fines established for injuries inflicted on them. These were most substantial advantages when the wer-gild, or blood-money, was the only safeguard guaranteed by law for life and limb, and were most important privileges of the aristocracy. This constitutes the thane-right alluded to in the council of Enham, and retained by the laws of Cnut, as attaching to priests who preserve their chastity. Thus “sacramentum presbyteri regulariter viventis tantumdem valeat sicut liberalis hominis” (Cnuti Leg. Sæcul. c. 128—ed. Kolderup-Rosenvinge)—the expression “liberalis homo” being, in this version, used for the “tāynus” or thane of the other texts.

[430](#) Cnuti Leg. Eccles. c. 8, 9. (Kolderup-Rosenvinge, Hauniæ, 1826, p. 12).

[431](#) Institutes of Polity, &c., c. 16, 19, 23 (Thorpe, II. 325, 329, 337). It is observable that the words *wif* and *cwene* are used interchangeably to denote the consorts of priests.

[432](#) Lives of Edward the Confessor, pp. 60-1 (Chron. & Memor. of Gr. Brit.). In the same curious collection there is another life of Edward by a follower of Queen Edith and dedicated to her, the writer of which freely attributes the worst motives to the intrigues of the Norman monks in separating her from the king. See, for instance, his account of her immurement in the abbey of Wilton (Op. cit. p. 403).

Edward’s virginity is likewise attested by the MS. Monast. Ramesiens. (Spelman. I. 637)—“Cœlibem pudiciæ florem, quem inter regni delicias et inter amplexus conjugales ... conservarat, virtutemque perpetuo floribus immiscuit paradisi.” In this, however, Edward only imitated the asceticism ascribed to the Emperor St. Henry II. and his Empress St. Cunegunda, half a century earlier.

[433](#) Chron. Centulens. Lib. iv. c. xxii. (D’Achery II. 345).

[434](#) Orderic. Vital. P. II. Lib. iv. c. 10.—The testimony of William of Malmesbury (De Gest. Regum Lib. III.) is equally emphatic.

[435](#) Lives of Edward the Confessor, p. 432.

[436](#) Burchardi Decret. Lib. III. c. 108-116.

[437](#) Synod. Ticinens. ann. 1022 c. 1, 2, 3, 4.

[438](#) Respons Imperatoris in Synod. Ticinens.

[439](#) Concil. Bituricens. ann. 1031 c. 5, 6, 8, 10.

[440](#) Quoniam infelicem habuit introitum, infeliciorem persensit exitum. Horrendum quippe referri turpitudine illius conversationis et vitæ.—Rad. Glabri Lib. v. c. 5.

[441](#) Johann. Chron. Angliæ, c. 47 (Ludewig Rel. Msctorum. XII. 145). Semper enim luxuriæ et carnalibus illecebris deditus fuit.

[442](#) P. Damiani Opusc. vi. c. 18.

[443](#) Annal. Barenses, ann. 1035.—Shortly after this, we hear of two bishops killed in battle (Ibid. ann. 1041).

[444](#) P. Damiani, loc. cit.

[445](#) Desiderii Dialog. de Mirac. S. Benedict. Lib. III. (Script. Rer. Italicor. V. 396).

[446](#) John, a disciple of St. Peter Damiani, in alluding to the prevailing twin vices of simony and marriage, says: “Quæ videlicet pestes tam pernicioſa conſuetudine prævaluerant, tamque impune totam ferme eccleſiam in omni Romano orbe fædaverant, ut vix jam reprehensorem, tamquam licite, formidarent.”—Vit. S. P. Damiani c. 16.

[447](#) Cosmæ Pragens. Chron. Boem. Lib. III. (Mencken. Script. Rer. German. III. p. 1782).

[448](#) Batthyani Leg. Eccles. Hung. I. 335.

[449](#) Adam. Bremens. Gest. Pontif. Hammaburg. Schol. ad cap. 29 Lib. III.

[450](#) Perhaps as suggestive an illustration of the morals and manners of the age as can well be given is afforded by a deed executed in 1055 by a noble count of Catalonia on the occasion of his marriage. He pledges himself not to cast off his bride, except for infidelity—such infidelity not being plotted for by him—and to secure the performance of this promise he places in the hands of his father-in-law four castles, to be held in pledge, subject to forfeiture in case of his violating the agreement. (Baluz. Capit. Francor. Append. Actor. Vet. No. 148.)

[451](#) Atton. Vit. S. Johannis Gualbert. c. 31.

[452](#) The popular feelings which greeted his interposition are well conveyed in the jingling verse addressed to him by a holy hermit—

Una Sunamitis nupsit tribus maritis;
Rex Henrice, Omnipotentis vice,
Solve connubium, triforme, dubium.
(Annalista Saxo, ann. 1046.)

The invitation to interfere, however, was not needed. Henry’s prerogative as the representative of Charlemagne and Otho the Great was sufficient warrant, and his religious ardor an ample motive, without any special reference to his tribunal.

[453](#) Anon. de Episcop. Eichstett. c. 34 (Patrolog. T. 146, pp. 1021-2).

[454](#) It would be a work of supererogation to quote the innumerable evidences of this which crowd the pages of contemporary writers. The generalizing remark of Glaber will suffice—“Omnes quippe gradus ecclesiastici a maximo pontifice usque ad hostianum opprimuntur per suæ damnationis precium, ac juxta vocem Dominicam in cunctis grassatur spiritale latrocinium.”—Glab. Rodolph. Hist. Lib. v. c. 5.

[455](#) Damiani Lib. VIII. Epist. 3.

[456](#) Johannis Vit. B. P. Damiani c. 1.

[457](#) Alex. II. Epist. 15.

[458](#) Learning, on his death-bed, that he was not to be buried as a pope, he requested the prelates around him to place his coffin at the church-door securely fastened, and if the portals opened without human hands, it would be a sign that he should receive papal honors. It was done, when a gust of wind burst open the door and lifted the coffin from the bier (Martin. Fuldens. Chron. ann. 1046).

[459](#) Martin. Fuldens. ann. 1050.

[460](#) Damiani Opusc. vii. (Liber Gomorrhianus).—Some ten or twelve years later, Alexander II. obtained the manuscript from Damiani, under pretence of having it copied, but prudently locked it up and refused to return it. The saintly author complained bitterly of the deception thus practised upon him, which he unceremoniously characterized as a fraud (Damiani Lib. ii. Epist. 6).

[461](#) The world can never know the long and silent suffering endured in the terrible self-combat of ardent natures in the solitude of the cloister. If many succumb, the indignation which Damiani and his class so freely bestow on the victims should be transferred rather to the system which produces them. A monk of the period has left us a vivid and curious picture of his own tortures in the endless struggle with the tempter; and the mental torments to which his fellow-unfortunates were exposed are aptly condensed in the simple tale of the Abbess Sarah, who for thirteen long years maintained her ground without shrinking from the ceaseless assaults of the enemy by continually invoking the aid of God—"Da mihi fortitudinem Deus!" (Othlon. de Tentat. suis P. i.). The hagiology of the church is full of legends, more or less veritable, of the sufferings of these martyrs and of their triumphs over the flesh, from the time of St. Ammonius, who, when less decisive measures failed, bored his flesh in many places with red-hot iron, and thus vanquished passion by suffering. A collection of these stories, more curious than decent, may be found admiringly detailed by Giraldus Cambrensis in his Gemma Ecclesiastica, Dist. ii.

[462](#) Batthyani Leg. Eccles. Hung. I. 401.

[463](#) Adami Bremens. Gest. Pontif. Hammaburg. Lib. iii. c. 29.—Annalista Saxo, ann. 1048.

[464](#) Adam. Bremens. loc. cit.

[465](#) Tunc quippe in Neustria, post adventum Normannorum, in tantum dissoluta erat castitas clericorum, ut non solum presbyteri sed etiam præsules libere uterentur toris concubinarum, et palam superbirent multiplici propagine filiorum ac filiarum ... Tandem ... Leo Papa ... in Gallias A. D. 1049 venit ... Tunc ibidem (Remis) generale concilium tenuit, et inter reliqua ecclesiæ commoda quæ instituit, presbyteris arma ferre et conjuges habere prohibuit. Arma quidem ferre presbyteri jam gratanter desiere, sed a pellicibus adhuc nolunt abstinere, nec pudicitiae inhærere.—Orderic. Vital. P. ii. Lib. v. c. 15.—This portion of the work of Ordericus was written about the year 1125.

Ibi vero simoniaci, tam populares quam clerici, presbyterique uxorati, persuasione sancti Hugonis, a catholicorum communione et ab ecclesiis

eliminati sunt.—Alberic. Trium Fontium Chron. ann. 1049.

[466](#) Damiani Opusc. xviii. Diss. ii. c. 7.—It was probably some vague recollection of this provision, combined with the regulations adopted at Pavia in 1022 (p. 178) that led Dr. Martin, one of the commissioners who presided at the trial of Archbishop Cranmer, to declare to that unhappy culprit that “his children were bondmen to the see of Canterbury.”—Strype, Memorials of Cranmer, Book III. chap. 27.

[467](#) Herman. Contract. Chron. ann. 1051.

[468](#) Muratori Annali, ann. 1053.

[469](#) S. Leonis PP. IX. Mirac. (Migne’s Patrolog. CXLIII. 525 sqq.)

[470](#) Humberti Card. contra Nicetam xxv. xxvi.

[471](#) Lambert. Schaffnab. ann. 1054.—Martin. Polon. ann. 1057.

[472](#) Leo. Marsic. Chron. Casinens. Lib. ii. c. 97.

[473](#) Damiani Opusc. xviii. Diss. ii. c. 6.

[474](#) Ibid.

[475](#) Ut nullus missam audiat presbyteri quem scit concubinam indubitanter habere aut subintroductam mulierem.—Concil. Roman. ann. 1059 c. 3.

Singularly enough, this clause is omitted in the synodical epistle addressed to the Gallic clergy, as given by Hugh of Flavigny, Chron. Lib. ii. ann. 1059.

[476](#) How utterly this was opposed to the received dogmas and practice of the church can be seen from the decision of Nicholas I. on the same question —“Sciscitantibus vobis, si a sacerdote, qui sive comprehensus est in adulterio, sive de hoc fama sola respersus est, debeatis communionem suscipere, necne, respondemus: Non potest aliquis quantumcumque pollutus sit, sacramenta divina pollueri, quæ purgatoria cunctarum remedia contagionum existunt.... Sumite, igitur, intrepide ab omni sacerdote Christi mysteria, quoniam omnia in fide purgantur” (Nicolai I. Epist. xcvi. c. 71). See also a similar decision in 727 by Gregory II. (Bonifacii Epist. cxxvi.).

The only adverse authority of this period that I have met with is the Penitential of Theodore of Canterbury, already referred to, prescribing rebaptism for those baptized by priests of known unchastity (Lib. II. cap. ii. § 12.—Haddan & Stubbs’s Councils, III. 192).

Damiani saw the danger to which a practice such as this exposed the church, and lifted up his voice to prevent the evil results—

Audite etiam, laici,
Qui Christo famulamini;
Pro ullo unquam crimine,
Pastores non despiciat.
(Carmen ccxxii.)

and when, about the year 1060, the Florentines refused the ministrations of their bishop, whom they were determined from other causes to eject, he reproved them warmly, adducing the only reasonable view of the question, “quod Spiritus Sanctus per improbi ministerium dare potest sua charismata” (Opusc. xxx. c. 2).

Simoniacal priests as well as concubinary ones were included in the ban, and when, in 1049, Leo IX. commenced his vigorous persecution of simony, there arose a belief that ordination received at hands tainted with that sin was null and void. This was promptly stigmatized as a heresy, and Damiani’s untiring pen was employed in combating it. He argued the question very thoroughly and keenly when it was under debate by a synod, and succeeded in procuring its condemnation (Opusc. vi. c. 12).

The prohibition, first proclaimed by Nicholas II. and finally enforced by Gregory VII., caused no little trouble in the church. Towards the close of the century, Urban II. found himself obliged to discuss the question, and in an epistle to Lucius, provost of the church of St. Juventius at Pavia, he admits that the sacraments administered by guilty priests are uncorrupted, yet he approves of their rejection in order to stimulate the clergy to virtue, and even declares that those who receive them, except under instant and pressing necessity, are guilty of idolatry (“nisi forte sola morte interveniente, utpote ne sine baptisate vel communione quilibet humanis rebus excedat; eis, inquam, in tantum obsunt, ut veri idolatræ sint”—Urbani II. Epist. 273)—a decision the logic of which is not readily apprehended. St. Anselm of Canterbury assents to the doctrine, but places it in a more reasonable and practical shape—“non quo quis ea quæ tractent contemnenda, sed tractantes execrandos existimet” (Epist. viii.). The consequences of such a system, however, if strictly carried out, would have been most disastrous to the church, and when the zeal of Hildebrand became forgotten his injunctions were overruled. The century was scarcely out before Honorius of Autun maintained most positively that Christ operates through the hands of the vilest as well as of the most holy ministers, provided only they are orthodox in faith (Eucharistion c. vi.—Pez, Thesaur. II. i. 355). About 1150, however, Geroch of Reichersperg declares that he considered Gregory’s commands as still in force, and that he paid no more attention to the masses of concubinary priests than if they were so many Pagans (Gerhohi Dial. de Differentia Cleri—Pez, Thesaur. II. ii. 463). Yet before the end of the twelfth century, Lucius III. had returned to the policy of Nicholas I.—“Sumite ergo ab omni sacerdote intrepide Christi mysteria, quia omnia in fide Christi purgantur” (Post Lateran. Concil. P. L. c. 38), the positiveness of which was not much affected by the subtle distinctions which he endeavored to draw between crimes notorious and tolerated. Yet St. Thomas Aquinas, on the other hand, affirmed that it was a mortal sin to assist at the Mass celebrated by a priest who was notoriously unchaste (Pontas, Dict. de Cas de Conscience II. 1445). The church, however, gradually returned to the old doctrine and practice. The policy of Gregory was condemned as a heresy when adopted by the followers of Arnold of Brescia (Bonacursi Vit. Hæreticorum—D’Achery I. 214) and an austere priest, Albero of Mercke, near Cologne, who taught it was promptly silenced (Anon. adv. Alberonis errores—Martene Ampl. Coll. IX. 1251). In 1292 the council of Aschaffenburg anathematized those who “præsumptione dampnabili” taught the heresy that priests in mortal sin could not perform the sacred mysteries, and it decided “licite ergo a quocumque sacerdote ab ecclesia tolerato, divina mysteria

audiantur et alia recipiantur ecclesiastica sacramenta” (Concil. Schafnaburg. ann. 1292 can. i.—Hartzheim IV. 7). And when Wickliffe and Huss undertook to carry out the dicta of Nicholas II. and Gregory VII. to their legitimate conclusions, the policy was at once recognized as a heresy of the worst character and most destructive consequence. Thus in 1491 a Synod of Bamberg condemns as heretics those who refuse to receive the ministrations of sinful priests.—Synod. Bamberg. ann. 1491 Tit. xlv. (Ludewig. Script. Rer. German. I. 1241-2).

[477](#) Quicumque sacerdotum, diaconorum, subdiaconorum ... concubinam palam duxerit vel ductam non reliquerit, ... præcipimus et omnino contradicimus, ut missam non cantet, neque evangelium vel epistolam ac missam legat, neque in presbyterio ad divina officia cum iis qui præfatæ constitutioni obedientes fuerint, maneat; neque partem ab ecclesia suscipiat.—Concil. Roman. ann. 1059 c. 3.

It is evident here that the opprobrious epithet “concubine” is applied to those who were as legally wives as it was possible to make them. Damiani, indeed, admits it, and even intimates that concubine was too honorable a word to be applied to the wives of priests—“Illorum vero clericorum feminas, qui matrimonia nequeunt legali jure contrahere, non conjuges sed concubinas potius, sive prostibula congrue possumus appellare” (Opusc. xviii. Diss. iii. c. 2). After this period it will be found that the wives of priests were rarely dignified with the title of “uxores,” although ordination was not yet an impediment destructive of marriage.

It is as well to observe here that at this period and for some time later the position of the concubine had not the odium attaching to it by modern manners, and this should be borne in mind when reviewing the morals of the Middle Ages. The connection was a recognized and almost a legal one, following the traditions of the Roman law, by which it was legitimate and permanent, so long as the parties respectively remained unmarried. A man could not have a wife and concubine at the same time (Pauli Sentent. ii. 20), nor could he legally have two concubines together (Novel. xviii. c. 5). Not only were such regulations thus promulgated by Christian emperors, but the relationship was duly recognized by the Christian church. The first council of Toledo, in 398, enjoined upon the faithful “tantum aut unius mulieris, aut uxoris aut concubinæ, ut ei placuerit, sit conjunctione contentus” (Concil. Toletan. I. c. 17), showing that either connection apparently was legitimate, and this is quoted at the commencement of the tenth century, as still in force, by Regino (De Discip. Eccles. Lib. ii. c. 100). A half century later, about 450, Leo I. was actually appealed to to decide whether a man who quitted a concubine and took a wife committed bigamy—which Leo reasonably enough answered in the negative (Leon. Epist. xc. c. 5). The principle of the Roman law was still the rule of the church in the 9th century, for a Roman synod held by Eugenius II. in 826 declared “Ut non liceat uno tempore duas habere uxores, uxoremve et concubinam. De illo vero qui cum uxore concubinam habet, præcipit, ut si admonitus eam a se abjicere noluerit, communione privetur.” (Pertz, Legum T. II. P. ii. p. 12.) The view entertained of the matter at the time under consideration may be gathered from a canon of the councils of Rome, in 1052 and 1063, suspending from communion the layman who had a wife and concubine at the same time (Concil. Roman. ann. 1059 c. 12: ann. 1063 c. 10)—whence we may deduce that a concubine alone was hardly considered irregular. During the latter part of the succeeding century we find the

concubine a recognized institution in Scotland, for the laws of William the Lion, after stating that the wife was not bound to reveal the crimes of her husband, adds “De concubina vero et de familia domus non est ita; quia ipsi tenentur revelare maleficia magistri sui, aut debent a servitio suo recedere” (Statut. Willelmi c. xix. § 9). In England, late in the thirteenth century, Bracton speaks of the “concubina legitima” as entitled to certain rights and consideration (Lib. iii. Tract. ii. c. 28 § 1, and Lib. iv. Tract. vi. c. 8 § 4). In Spain, at the same period, the son of an unmarried noble by a concubine, was noble (Juan Perez de Lara, in Arch. Seld. 130, Bib. Bodl.), and in the Danish code of Waldemar II., which was in force from 1280 to 1683, there is a provision that a concubine kept openly for three years shall be held to be a legitimate and legal wife (Leg. Cimbric. Lib. i. cap. xxvii. Ed. Ancher); while the elaborate provisions for the division of estates between legitimate and illegitimate children, contained in the code compiled by Andreas Archbishop of Lunden, in the 13th century, show that certain legal rights were recognized in the latter (Legg. Scan. Provin. Ed. Thorsen pp. 110-2). Indeed, in the Norwegian law of that period, when the king left no legitimate sons the crown descended to illegitimates (Jarnsida, Kristendoms-Balkr, c. iii.). In Bigorre, concubines, under the name of *Massipia*, were recognized by law, and formal notarial contracts were drawn up, as late as the close of the fifteenth century, specifying the price to be paid and the duration of the connection; and when the man was already married he sometimes engaged to marry the *massipia* in case of his wife’s death during the term (Lagrèze, Hist. du Droit dans les Pyrénées, Paris, 1867, p. 377). We must therefore bear in mind that, until the rule of sacerdotal celibacy became rigorously enforced, the “concubina” of the canons generally means a wife, and that for some time afterwards the concubine was by no means necessarily the shameless woman implied under the modern acceptance of the term.

[478](#) Hujus autem constitutionis maxime fuit auctor Hildebrandus, tunc Romanæ ecclesiæ archidiaconus, hæreticis maxime infestus.—Bernaldi Chron. ann. 1061. Benzo declares, in his slashing way, stigmatizing Hildebrand as a Sarabite, or wandering monk, “De cetero pascebat suum Nicholaum Prandellus in Lateranensi palatio, quasi asinum in stabulo. Nullum erat opus Nicholaitæ, nisi per verbum Sarabaitæ” (Comment. de Reb. Henr. IV. Lib. vii. c. 2). The verses of Damiani on the influence of Hildebrand are too well known to quote.

[\[479\]](#)

... Hic [Nicholaus] ecclesiastica propter
 Ad partes illas tractanda negotia venit;
 Namque sacerdotes, levitæ, clericus omnis
 Hac regione palam se conjugio sociabant.
 Concilium celebrans ibi, Papa faventibus illi
 Præsulibus centum jus ad synodale vocatis,
 Ferre Sacerdotes monet, altarisque ministros
 Arma pudicitæ, vocat hos et præcipit esse
 Ecclesiæ sponso, quia non est jure sacerdos
 Luxuriæ cultor: sic extirpavit ab illis
 Partibus uxores omnino presbyterorum.
 (Gulielmi Appuli de Normann. Lib. II.)

[480](#) Concil. Turon. ann. 1060 c. 6.

[481](#) Porro autem nos contra divina mandata, personarum acceptores, in minoribus quidam sacerdotibus luxuriæ inquinamenta persequimur; in episcopis autem, quod nimis absurdum est, per silentii tolerantiam veneramur.—Damiani Opusc. xvii. c. 1.

[482](#) Sanctis eorum femoribus volui seras apponere. Tentavi genitalibus sacerdotum (ut ita loquar) continentiae fibulas adhibere.... Hujus autem capituli nudam saltem promissionem tremulis prolatam labiis difficilius extorquemus. Primo, quia fastigium castitatis attingere se posse desperant; deinde quia synodali se plectendos esse sententia propter luxuriæ vitium non formidant. ... Si enim malum hoc esset occultum, fuerat fortassis utcunque ferendum; sed, ah scelus! omni pudore postposito, pestis hæc in tantum prorupit audaciam, ut per ora populi volitent loca scortantium, nomina concubinarum, socerorum quoque vocabula simul et socrum ... postremo, ubi omnis dubietas tollitur, uteritumens et pueri vagientes etc.—Damiani Opusc. xvii.

[483](#) Decret. Nicolai PP. c. 3, 4 (Baluz. et Mansi II. 118-9).

[484](#) “Dogmatizatis enim sacri ministros altaris jure posse mulieribus permisceri ... Jam vero quod impudenter asseritis, ministros altaris conjugio debere sociari etc.”—Damiani Lib. v. Epist. 13.

[485](#) Ad Cadaloum Lib. i. Epist. 20.

[486](#) In 1060, Cardinal Humbert of Silva-Candida, in combating the prevailing vice of simony, made use of this argument, reasoning that an immoral priest may be suspended or may be tolerated in hope of amendment, but if he trenches on heresy, there can be neither hope nor mercy for him (Humbert. Cardinal. adv. Simoniac. Lib. iii. c. 43). Damiani applied this to the defenders of marriage with all his vigor. “Qui nimirum dum corruunt, impudici; dum defendere nituntur, merito judicantur hæretici” (Opusc. xviii. Diss. ii. c. 8). “Nam cum peccat homo, quasi in puteum labitur; cum vero peccata defendit, os putei super eum, ne pateat egressus, urgetur ... Hoc autem inter peccatorem et hæreticum distat: quia peccator est qui delinquit, hæreticus autem qui peccatum per pravum dogma defendit” (Opusc. xxiv. Præf.).

[487](#) Opusc. xxvii. Diss. ii. c. 8.

[488](#) Opusc. xviii. Diss. ii. c. 3.

[489](#) Obeunte igitur pellice, viduatus adjecit iterare conjugium. Quid plura? Confœderat sibi quasi tabularum lege prostibulum, amicorum atque confinium congregat nuptiali more conventum, epulaturis etiam totius affluentæ providet apparatus—Damiani Opusc. xviii. Diss. ii. c. 6.

[490](#) Nec vos terreat quod forte, non dicam fidei sed perfidæ, vos annulus subarrhavit: quod rata et monimenta dotalia notarius quasi matrimonii jure conscripsit; quod juramentum ad confirmandam quodammodo conjuii copulam utrinque processit. Totum hoc quod videlicet apud alios est conjugii firmamentum, inter vos vanum judicatur et frivolum—Opusc. xviii. Diss. ii. c. 7.

[491](#) Opusc. xviii. Diss. ii. Præf.

[492](#) Opusc. xviii. Diss. ii.

[493](#) Opusc. xviii. Diss. iii. c. 1, 2.

[494](#) Opusc. xviii. Diss. iii. c. 3.

[495](#) Opusc. xviii. Diss. i.

[496](#) Alex. II. Epist. 125.—Batthyani (Leg. Eccles. Hungar. I. 407) remarks that this lenity arose from the fact that otherwise divine service would have ceased—“omnes ecclesiæ a divinis officiis vacassent.”

It is also observable that subdeacons are not included in this prohibition—a remarkable exemption, since by this time their subjection to the law of celibacy had become a settled rule in the Roman church. I may here remark that I had collected considerable material to trace the varying practice with regard to the subdiaconate, but as it involves no principle, merely depending in earlier times upon the local custom as to the functions of that grade, the discussion would scarcely repay the space that it would occupy.

[497](#) De manifestis loquimur; secretorum autem cognitor et iudex Deus est.—Alex. II. Epist. 118.

[498](#) Cenomanensem electum, pro eo quod filius sacerdotis dicitur, si cæteræ virtutes in eum conveniunt, non rejicimus; sed, suffragantibus meritis, patienter suscipimus; non tamen ut hoc pro regula in posterum assumatur, sed ad tempus ecclesiæ periculo consulitur.—Gratian. Dist. lvi. c. 13.

[499](#) Nam pro eo quod filius sacerdotis dicitur, si cæteræ virtutes in eum convenient, non rejicimus, sed suffragantibus meritis connivendo, eum recipimus.—Alex. II. Epist. 133. Baronius attributes to this the date of 1071.

The contrast between the weakness of Alexander and the unbending rigidity of his successor, Hildebrand, is well shown by comparing this unlimited acceptance of priestly offspring with the refusal of the latter to permit the elevation of a clerk requested by both his bishop and the King of Aragon, simply because he was illegitimate, although in other respects admitted to be unexceptionable (Gregor. VII. Lib. ii. Epist. 50). We have already seen that even amid the license which prevailed during the early part of the century, some German bishops habitually refused orders to the sons of priests.

[500](#) Alex. II. Epist. 112.

[501](#) I think that there is too much concurrent testimony to this effect to admit a reasonable doubt that the Albigenses were Manichæans. I may return to them hereafter, and therefore will not discuss the point here. As regards the earlier heretics, however, I may mention the following contemporary authorities:—

With respect to those of Toulouse and Orleans, the “Fragmentum Historiæ Aquitaniæ” (Pithœi Hist. Franc. Script. p. 82) says: “Eo tempore decem ex canonicis sanctæ crucis Aurelianis probati sunt esse Manichæi, quos rex Robertus quum nollent ad Catholicam converti fidem, igne cremari jussit. Simili modo apud Tholosam inventi sunt Manichæi, et ipsi igne cremati sunt: et per diversas Occidentis partes Manichæi exorti per latibula sese occultare cœperunt”—and their errors are thus specified in the “Fragmentum Hist. Franc.” (Op. cit. p. 84) “Ii dicebant non posse aliquem in baptismo spiritum sanctum

suscipere, et post criminale peccatum veniam non promereri; impositionem manuum nihil posse conferre; nuptias spernebant; episcopum affirmabant non posse ordinare, &c.”

In the Artesian synod, held in 1025 to condemn those of Cambrai, the tenth canon is directed against their hostility to marriage (Labbei et Coleti XI. 1177-8).—See also the prefatory letter of Gerard, Bishop of Cambrai—“Conjugatos nequaquam ad regnum pertinere”—(Hartzheim Concil. German. III. 68).

Concerning those executed at Goslar in 1052—“Ibique quosdam hæreticos, inter alia pravi erroris dogmata Manichæa secta omnis esum animalis exsecrantes, consensu cunctorum, ne hæretica scabies latius serpens plures inficeret, in patibulis suspendi jussit.”—Herman. Contract. ann. 1052.

About 1100 Radolphus Ardens describes the Manichæans who infested the territory of Agen, and recapitulates their doctrines as embracing dualism, abhorrence of animal food and of marriage, rejection of the Old Testament and part of the New, disbelief in the Eucharist, in baptism and resurrection, &c.—“Dicunt enim tantum flagitium esse accedere ad uxorem, quantum ad matrem vel ad filiam”—Radulf. Ardent. T. I. P. ii. Homil. 19.

The council of Toulouse, held by Calixtus II. in 1119, adopted a canon condemning those who objected to the Eucharist, priesthood, and legitimate marriage, showing that Manichæism was unextinguished in Languedoc.—Udalr. Babenb. Cod. Lib. II. c. 303.

In 1146 a synod at Cologne tried certain heretics, but before the examination was concluded the unfortunates were seized by the rabble and burned “et quod magis mirabile est, ipsi tormentum ignis non solum cum patientia, sed et cum lætitia introierunt et sustinuerunt.” Their Manichæism is manifested by their tenets concerning marriage—“De baptismo nostro non curant: Nuptias damnant.... In cibis suis vetant omne genus lactis, et quod inde conficitur, et quidquid ex coitu procreatur”—Narratio Everwini Præpositi (Hartzheim. III. 353-4). Cf. Bernardi Serm. 65, 66, in Cantica.

The accusations so freely disseminated against them for the purpose of stirring up popular indignation—such as that in their conventicles, after religious exercises, the lights were extinguished, and the congregation abandoned themselves to indiscriminate excesses—are, of course, without foundation. It is instructive to observe that precisely the same scandals were asserted of the early Christians (Tertull. Apologet. c. vii.)—so little does human nature change with the lapse of centuries.

[502](#) It is scarcely worth while to more than refer to the assertion of mediæval Milanese chroniclers that Eriberto married a noble lady named Useria. Puricelli (Muratori Script. Rer. Ital. V. 122-3) has sufficiently demonstrated its improbability. He does not, however, allude to the argument derivable from the fact that Eriberto's name is signed to the proceedings of the council of Pavia in 1022, where priestly marriage was so severely condemned.

[503](#) Gualvaneo Flamma, Chron. Mag. c. 763.—Landulph. Senior. Mediolan. Hist. Lib. III. c. 2.

[504](#) Landulf. Senior. L. II. c. 35.

The writer was a partisan of the married clergy; but his description is confirmed by the testimony which Damiani bears (ante, p. 203) to the good character of the married clergy of Savoy. Still, there may be some truth in the counter statement of an opponent, S. Andrea of Vallombrosa, a disciple of S. Arialdo—"Nam alii cum canibus et accipitribus huc illucque pervagantes, suum venationi lubricæ famulatum tradebant; alii vero tabernarii et nequam villici, alii impii usurarii existebant; cuncti fere aut cum publicis uxoribus sive scortis, suam ignominiose ducebant vitam.... Universi sic sub simoniaca hæresi tenebantur impliciti."—Vit. S. Arialdi c. i. No. 7.

The Milanese defended their position not only by Scripture texts, but also by a decision which they affirmed was rendered by St. Ambrose, to whom the question of the permissibility of sacerdotal marriage had been referred by the pope and bishops. Of course the story was without foundation, but singularly enough, the Milanese clung to it long after the subject had ceased to be open to discussion. Puricelli has investigated the matter with his usual conscientious industry, and shows the repetition of the legend not only by Datus and Landulfus Senior in the eleventh century, but by Gualvaneo Flamma in the thirteenth, by the author of the *Flos Florum*, by Pietro Agario and by Bernardino Corio in the fifteenth, and by Tristano Calco in the sixteenth century—the two latter falling in consequence under the revision of the Index. (*Script. Rer. Ital.* V. 122-3.)

[505](#) Milan long retained its bad preeminence as a nest of heresy. When Frederic II., in 1236, delayed his promised crusade to subdue the rebellious Milanese, his excuse to the pope was that he ought not to leave behind him unbelievers worse than those whom he would seek across the seas. "Cum ... jam zizania segetes incipiant suffocare per civitates Italicas, præcipue Mediolanensium, transire ad Saracenos hostiliter expugnandos, et illos incorrectos pertransire, esset vulnus infixum ferro fomentis superficialibus delinire, et cicatricem deformam non medelam procurare," and Matthew Paris calls Milan "omnium hæreticorum, Paterinorum, Luciferanorum, Publicanorum, Albigenensium, Usurariorum refugium ac receptaculum."—*Hist. Angl. ann.* 1236.

[506](#) Arnulf. Gest. Archiep. Mediolan. Lib. III. c. 9.—Landulf. Sen. Lib. III. c. 10.

Benzo, the uncompromising imperialist, always alludes to the papal party when he speaks of the Patarini—that term not having yet assumed the significance which it subsequently obtained. He accuses Anselmo di Badagio of being the author of the troubles—"primitus Patariam invenit, arcanum domini sui archiepiscopi cui juraverat inimicis aperuit. Abusus est etiam quædam monacha, cum Landulphino suo proprio consobrino."—*Comment. de Reb. Henric.* IV. Lib. VII. c. 2.—The latter accusation can no doubt be set down as one of the baseless scandals so freely cast from one party to the other in those turbulent times.

[507](#) Arnulf. Lib. III. c. 10.—Landulf. Sen. Lib. III. c. 9.

[508](#) Arnulf. Lib. III. c. 11.

[509](#) Landulf. Sen. Lib. III. c. 13.

[510](#) “Quod Mediolanensis civitas tunc in seditionem versa, repentinum utique nostrum minabatur interitum.”—The peril must have been serious, for even Landolfo, whose nerves were seasoned by constant civic strife, made a vow to become a monk if he should escape—his delay in fulfilling which, after the danger was past, called forth the urgent remonstrances of Damiani.—Damiani Opusc. XLII. cap. 1.

[511](#) Their defence was “non debere Ambrosianam ecclesiam Romanis legibus subjacere, nullumque judicandi vel disponendi jus Romano pontifici in illa sede competere”.—Damiani Opusc. v.

[512](#) Nicolaitarum quoque hæresim nihilominus condemnamus, et non modo presbyteros sed et diaconos et subdiaconos ab uxorum et concubinarum fædo consortio, nostris studiis, in quantum nobis possibilitas fuerit, sub eodem quo supra testimonio arcendos esse promittimus.—Damiani Opusc. v.

[513](#) Damiani op. cit.—Damiani’s account is addressed to the pope, who, he seems to think, may be dissatisfied with the lenity which permitted heretics to return to the church on such easy terms, and he is at some pains to justify himself for his mildness.

[514](#) Alexand. II. Epist. 1.

[515](#) His followers claimed for him the honors of martyrdom. He was revered accordingly, and Muratori gravely asserts that the evidence in his favor is indubitable.

[516](#) Arnulf. Lib. III. c. 13, 14.—Landulf. Sen. Lib. III. c. 13, 14.

To this period may probably be attributed two epistles of Alexander II. (Epistt. 93, 94) to the clergy and people of Milan, informing both parties that a Roman synod had recently prohibited incontinent priests from officiating, and had ordered the people not to attend at their ministrations. He adds that those who abandon their functions to cleave to their wives, must be forced also to give up their benefices.

[517](#) Arnulf. Lib. III. c. 15.—Landulf. Sen. Lib. III. c. 15.—Arnulfus alludes to a dispute concerning the litany, which complicated the quarrel. The troubles even invaded the monasteries, for Erlembaldo procured the forcible ejection of sundry abbots appointed by Guido.

[518](#) Arnulf. Lib. III. c. 18.—Landulf. Lib. III. c. 29. In 1090 the remains of St. Arialdo were translated by Archbishop Anselmo IV. to the church of St. Denis, and Muratori quotes from Alciati a curious statement to the effect that in 1508 Louis XII. removed them to Paris in mistake for the relics of St. Denis the Areopagite, the Parisians in his time still venerating them as those of the latter saint.

About the time of Arialdo’s martyrdom, Cremona must have been won over to the cause of the reformers, for in 1066 we find Alexander II. addressing the “religiosis clericis et fidelibus laicis” of that city, thanking God that they had been moved to extirpate the simoniacal and Nicolitan heresies, and commanding

that in future all those in orders who contaminated themselves with women should be degraded.—Alex. II. Epist. 36.

[519](#) Arnulf. Lib. III. c. 18, 19.

[520](#) Landulf. Sen. Lib. III. c. 20.

[521](#) Arnulf. Lib. III. c. 19, 20, 21, 22, 23.—Landulf. Sen. Lib. III. c. 28.

[522](#) Arnulf. Lib. III. c. 23; Lib. IV. c. 2, 3, 4.

[523](#) Arnulf. Lib. IV., Lib. V. c. 2, 5, 9.—Landulf. Sen. Lib. III. c. 29, Lib. IV. c. 2.—Lambert. Schafnab. ann. 1077.

Erlembaldo was canonized by Urban II. towards the end of the century. Muratori (Annal. ann. 1085) styles Tedaldo “capo e colonna maestra degli Scismatici di Lombardia.”

[524](#) Landulf. Sen. Lib. III. c. 21, 22, 23, 24, 25.

[525](#) Gregor. II. Regist. Lib. I. Epistt. 25, 26, 27.

[526](#) Maritos ab uxoribus separat; scorta pudicis conjugibus; stupra, incestus, adulteria, casto præfert connubio; populares adversus sacerdotes, vulgus adversum episcopos concitat.—Comit. Ticinens. ann. 1076 (Goldast. III. 314).

[527](#) To this period is no doubt referable a fragment of a decretal addressed by Urban II. to Anselmo, Archbishop of Milan, giving him instructions as to the ceremony of restoring to the church the ecclesiastics who were to be reconciled (Ivon. Decret. P. VI. c. 407—Urbani II. Epist. 74)—showing that Milan had submitted, and that her clergy were forced to seek absolution and obey the canons. It was this revolution in Lombardy that drove the anti-pope Clement III. from Rome.

[528](#) Item heresis Nicolaitarum, id est incontinentium subdiaconorum, diaconorum et præcipue sacerdotum inretractabiliter damnata est, ut deinceps de officio se non intromittant qui in illa heresi manere non formidant; nec populus eorum officia ullo modo recipiat, si ipsi Nicolaitæ contra hæc interdicta ministrare præsumant.—Bernald. Constant. ann. 1095.

The very terms of this canon, however, show that “Nicolitism” was still an existing fact.

[529](#) Tamburini, Storia generale dell’ Inquizione, Milano, 1862, T. I. pp. 307-9.

[530](#) S. Leon. IX. Epist. 55.

[531](#) Vit. S. Anselmi Lucensis.—In his collection of canons, St. Anselmo is careful to accumulate authorities justifying his course, and condemning his antagonists.—S. Anselmi Collect. Canon. Lib. VIII. c. 2, 4, 5, 7, 8, 10.

[532](#) Bernald. Constant. ann. 1089.

[533](#) Cujus prudentia, non solum in Italia sed etiam in Theutonicis partibus refrenata est sacerdotum incontinentia, scilicet quod prædecessores ejus in Italia prohibuerunt, hoc ipse in aliis ecclesiæ catholicæ partibus prohibere studiosus

attemptavit.—Bertold. Constant, ann. 1073.—Also Bernald. Constant, ann. 1073.

Gregorius ... connubia clericorum a subdiaconatu et supra, per totum orbem Romanum edicto decretali, in æternum prohibuit.—Gotefrid. Viterb. Chron. P. xvii.

Sed et datis decretis clericorum a subdiaconatu et supra connubia in toto orbe Romano cohibuit.—Otton. Frisingen. Chron. Lib. vi. c. 34.

Eodem quoque tempore canones antiqui de continentia ministrorum sacri altaris innovari novis accedentibus præceptis cœperunt, per hunc Urbanum Papam et prædecessores suos Gregorium VII. et Nicholaum II. atque Alexandrum II.—Chron. Reichersperg. ann. 1098.

Tempore illo cum Gregorius qui et Hiltebrant Romani pontificatus jura disponeret, hoc decretum quidem antiquitus promulgatum, nunc autem innovatum est, ut videlicet omnes in sacris ordinibus constituti, presbyteri scilicet et diaconi, a cohabitationibus feminarum se, ut decet, cohiberent, aut ab officio cessarent.—Gest. Trevir. Archiep. cap. xxx. (Martene Ampliss. Collect. IV. 174).

Hoc tamen ab eo tempore fuit introductum ut nullus ordinaretur in presbyterum conjugatus: et ordinandi omnes castitatem promittere compellantur coram ordinante.—Chron. Hirsaug. ann. 1074.

One chronicler, however, attributes the reform to Alexander II. “Constituit etiam ut nullus presbyter sive diaconus vel subdiaconus, uxorem habeat, sive concubinam in occidentali ecclesia, sed ut sint casti.”—Chron. S. Ægid. in Brunswig. ann. 1071.

[534](#) Paul Bernried. Vit. Gregor VII. c. ii. § 20.

[535](#) Pauli Bernried. Vit. Gregor. VII. c. iii. § 26.

Even Gregory, however, was not equal to his contemporary Hugh, Bishop of Grenoble, who, during fifty-three years spent in the active duties of his calling, never saw the face of a woman, except that of an aged mendicant.—Rolevink Fascic. Temp. ann. 1074.

The fanciful purity which came to be considered requisite to the episcopal office is well illustrated by the case of Faricius, Abbot of Abingdon, who was elected to the see of Canterbury. His suffragans refused his consecration because he was a skilful leech—“tunc electus est Faricius ad archiepiscopatum, sed episcopus Lincolniensis et episcopus Salesburiensis obstiterunt, dicentes non debere archiepiscopum urinas mulierum inspicere” (De Abbat. Abbendon.—Chron. Abingdon. II. 287). The prejudice against the practice of physic as incompatible with the purity of an ecclesiastic was wide-spread and long-lived, as chronicled in the canons of numerous councils prohibiting it (e. g. Concil. Claromont. ann. 1130 c. 5)—but it was not always so. In 998 Theodatus, a monk of Corvey, received the bishopric of Prague from Otho III., as a reward for curing Boleslas I., Duke of Bohemia, of paralysis, by means of a bath of wine, herbs, spices, and three living black puppies four weeks old (Paulini Dissert. Hist. p. 198); and about the year 1200, Hubert Walter, Archbishop of Canterbury,

bestowed the see of St. David's on Geoffrey, Prior of Llanthony, his physician, whose skill had won his gratitude.—Girald. Cambrens. de Jur. et Stat. Menev. Eccles. Dist. vii.

[536](#) Gregor. VII. Regist. Lib. i. Epist. 30.

[537](#) Ut secundum instituta antiquorum canonum presbyteri uxores non habeant, habentes aut dimittant aut deponantur; nec quisquam omnino ad sacerdotium admittatur qui non in perpetuum continentiam vitamque cœlibem profiteatur.—Lambert. Hersfeldens. ann. 1074. Cf. Gregor. Epist. Extrav. 4.

[538](#) As regards Germany, Gregory, in 1074, sent two legates to Henry IV., who promulgated the canon in a national council; and the next year he followed this up by a legation empowered to forbid the laity from attending the offices of married priests. (Herman. Contract. ann. 1074-5.) His correspondence, however, shows that he did not rely alone on such measures, but that he also addressed the prelates directly.

[539](#) Lambert. Hersfeldens. ann. 1074.

[540](#) Novo exemplo et inconsiderato prejudicio, necnon et contra sanctorum patrum sententiam ... ex qua re tam grave scandalum in ecclesia oritur, quod antea sancta ecclesia nullius hæresis schismati tam graviter est attrita.—Chron. Turonens. (Martene Ampl. Collect. V. 1007.)

[541](#) Gregor. VII. Epist. extrav. 4, 12, 13.—Bernald. pro Gebhardo Episc. Apologet. c. 4, 5, 6, 7.

[542](#) Vit. S. Altmanni.—Hinc capitulum illud de incontinentia sacerdotum a tam invicto propugnatore castitatis dissimulatum non approbatum remansit.

[543](#) Gregor. VII. Epist. extrav. 12.—Lambert. Hersfeld. ann. 1074-5-6.—Udalr. Babenb. Cod. Lib. ii. c. 132.—Gregor. Regist. Lib. ii. Epist. 29.—Goldast. Constit. Imp. I. 237.

An encyclical letter of Siegfried, in 1075, states that Gregory had sent to his diocese commissioners to reform the immorality of the clergy, and that they had labored earnestly, but fruitlessly, to accomplish the task by a liberal use of suspension and excommunication. He had thereupon reported to the pope the scandal and infamy of his church, when Gregory, considering the multitude of the transgressors, counselled moderation. Siegfried therefore orders all incorrigible offenders to be suspended and sent to him for judgment. (Hartzheim Concil. German. III. 175.)—Hartzheim also (III. 749) gives, under date of 1077, another letter from Siegfried to Gregory, in which he promises to do his best in reforming the clergy, but advises moderation towards those whose weakness merits compassion.

[544](#) See, for instance, Lib. i. Epist. 30; Lib. ii. Epistt. 25, 55, 61, 62, 64, 66, 67, 68; Lib. iii. Epist. 4; Lib. iv. Epistt. 10, 11, 20; Lib. vii. Epist. 1; Epistt. extrav. 4, 12, 13, etc.

[545](#) His præcipimus vos nullo modo obedire, vel eorum præceptis consentire, sicut ipsi apostolicæ sedis præceptis non obediunt, neque auctoritati sanctorum

patrum consentiunt.—Gregor. VII. Epist. extrav. 14. “Omnibus clericis et laicis in regno Teutonicorum constitutis.”

[546](#) Regist. Lib. II. Epist. 45.

Letters conceived in the same spirit are extant, addressed to the principal laymen of Chiusi in Tuscany, to the Count and Countess of Flanders, &c. (Lib. II. Epist. 47; Lib. IV. Epist. 10, 11.)

[547](#) Martene et Durand. Thesaur. I. 218.—Hugon. Flaviniac. Chron. Lib. II. ann. 1079.—Cf. Chron. Augustinens. ann. 1075. Theodoric was naturally forced in the end to take a decided stand against Gregory. See his letter in Goldastus, T. I. p. 236, and the account of his episcopate in the Gesta Trevir. Archiep. (Martene Ampl. Collect. IV. 175-8).

[548](#) Udalr. Babenb. Cod. Lib. II. cap. 162.

[549](#) Annalista Saxo, ann. 1076.

We have already seen (p. 142) that Nicholas I., in the ninth century, had expressly forbidden any popular interference with married priests, and it is a little singular to observe that his decretal on the subject is extracted by Ivo of Chartres (Decreti P. II. cap. 82) and presented as valid law, in less than a generation after the death of Gregory VII.

[550](#) The writer indignantly adds—“Si autem quæris talis fructus a qua radice pullulaverit, lex ad laicos promulgata, qua imperitis persuasum est conjugatorum sacerdotum missas et quæcumque per eos implentur mysteria fugienda esse, in reipublicæ nostræ ornatum illud adjecit.”—Martene et Durand. Thesaur. I. 230-1.

[551](#) Sigebert. Gemblac. ann. 1074.

[552](#) Pauli Bernried. Vit. Gregor. VII. No. 81, 107.

[553](#) Ibid. No. 105, 106, 107.

[554](#) Gregor. VII. Regist. Lib. IV. Epist. 20.

[555](#) Pauli Bernried. Vit. Gregor. VII. No. 87.—Ekkehard of Uraugen and the Annalista Saxo, however, in their accounts of these disturbances, attribute them to political rather than to ecclesiastical causes. The latter, no doubt, would hardly have been efficient without the former. The efforts of Henry to reduce the savage feudal nobles to order made him, throughout his reign, a favorite with the cities.

[556](#) Lambert. Hersfeld. ann. 1076.

[557](#) Hugon. Flaviniac. Lib. II.

[558](#) Ob hanc igitur causam, quia scilicet sanctam Dei ecclesiam castam esse volebat, liberam atque catholicam, quia de sanctuario Dei simoniacam et neophytorum hæresim et fedam libidinosæ contagionis pollutionem volebat expellere, membra diaboli cœperunt in eum insurgere, et usque ad sanguinem præsumpserunt in eum manus injicere.—Hugon. Flaviniac. Lib. II.

Eo vesaniæ imperatorem induxerat cæca sacerdotum (qui tunc frequentes apud eum erant) libido. Timebant enim si cum pontifice in gratiam rediret, actum esse de concubinis suis, quas illi pluris quam vel propriam salutem vel publicam pendebant honestatem.—Hieron. Emser Vit. S. Bennon. c. III. § 40.

Gregory's celebrated exclamation on his death-bed does not, however, specially recognize this—"Dilexi justitiam et odivi iniquitatem, propterea morior in exilio."

[559](#) Gregor. VII. Regist. Lib. I. Epist. 30; Lib. III. Epist. 3.

[560](#) According to Conrad of Ursperg (Chron. ann. 1080) among the reasons adduced for the deposition of Gregory the synod of Brixen, was "*Qui inter concordēs seminavit discordiam, inter pacificos lites, inter fratres scandala, inter conjuges divortia, et quicquid quiete inter pie viventes stare videbatur, concussit*"—in which the words italicized may possibly allude to the separation of the married clergy. Conrad, however, was a compiler of the thirteenth century, and his statements are not to be received without caution. If this motive had its weight with the prelates of the synod, they did not care to publish it to the world, for there is no allusion to it in the letter of renunciation addressed by them to Gregory (Goldast. Const. Imp. I. 238)—forming a striking contrast to the proceedings of the synod of Pavia in 1076, already alluded to.

[561](#) Wibert Antipap. Epist. VI.

Bishop Benzo, the most bitter of imperialists, did not desire to be confounded with the Nicolitan heretics—

"Omnis enim caste vivens templum Dei dicitur;
Si quis tantum sacramentum violare nititur,
Unus de porcorum grege protinus efficitur.
Facti cœlibes ardentem fugiamus Sodomam:
Hierosolymam petamus, Christianis commodam."

Comment. de Reb. Hen. IV. Lib. v. c. 6.

[562](#) Honorius III. in Vit. Gregor. VII. No. 15.

[563](#) Bernald. Constant. ad Herman. Contract. Append. ann. 1085.

[564](#) Henricus multitudinem sequens, accessit eis qui sacerdotum conjugium sublatum volebant. Quare resistentes ei opinioni condemnati sunt.—H. Mutii German. Chron. Lib. xv.

I do not remember to have met with any contemporary authority for this assertion, nor is there any provision of this nature in the decrees of the Diet as given by Goldastus (I. 245); but the chroniclers of the period were generally papalists, and would be apt to omit recording anything which they would deem so creditable to their adversaries. Yet that the imperialists were no longer held responsible for clerical irregularities is evident from a letter written in 1090 by Stephen, the papalist Bishop of Halberstadt, to Waltram of Magdeburg, who was a follower of Henry. In all his violent invectives against the imperialists, and in his long catalogue of their sins, he makes no allusion to priestly incontinence, showing that they must have disavowed these irregularities so formally as to

leave no ground for imputations of complicity (Dodechini Append. ad Mar. Scot. ann. 1090).

[565](#) Bernald. Constant. ann. 1091.

[566](#) Bernald. Constant. ann. 1089.

[567](#) A monkish chronicler professes to record of his own knowledge Guiberto's death-bed remorse for the schism which he had been instrumental in causing. "Malens, ut ab ore ipsius didicimus, apostolici nomen nunquam suscepisse."—Chron. Reg. S. Pantaleon. ann. 1100.

[568](#) Udalr. Babenb. Cod. Lib. II. c. 173.

[569](#) Eos qui in subdiaconatu uxoribus vacare voluerint, ab omni sacro ordine removemus, officio atque beneficio ecclesiæ carere decernimus. Quod si ab episcopo commoniti non se correxerint, principibus licentiam indulgemus ut eorum feminas mancipent servituti. Si vero episcopi consenserint eorum pravitatibus, ipsi officii interdictione mulcentur.—Synod. Melfit. ann. 1089, can. 12.

The second canon of the same council—"Sacrorum canonum instituta renovantes, præcipimus ut a tempore subdiaconatus nulli liceat carnale commercium exercere. Quod si deprehensus fuerit, ordinis sui periculum sustinebit"—shows how much more venial was the offence of promiscuous licentiousness than the heresy of marriage.

[570](#) Urbani II. Epist. 24.

[571](#) Gratian. Dist. XXVII. c. 8.

[572](#) Decret. Comit. Constant. c. 2 (Goldast. I. 246).

[573](#) Et quia hospes est, plus ecclesiæ prodest: non eum parentela exhauriet, non *liberorum cura* aggravabit, non cognatorum turba despoliet—Cosmæ Pragenses. Chron. Lib. III. ann. 1098.—It should, however, be borne in mind that Bohemia had been Christianized in 871, by Cyrillus and Methodius, missionaries from Constantinople, and the national Slavonic worship, founded on the Greek faith, after many struggles, was not abolished until 1094 (see Krasinski's Reformation in Poland, London, 1838, I. 13). The attachment of the race to their ancestral rites explains the proneness of the Bohemians and Poles to fall away into heresy.

[574](#) Höfler, Concilia Pragensia p. xiii. (Prag, 1862.)

[575](#) Annalista Saxo, ann. 1105.

[576](#) Nycholaitarum quoque fornicaria commixtio ibidem est ab omnibus abdicata.—Chron. Reg. S. Pantaleon. ann. 1105. Cf. Annal. Saxo, ann. 1105.

[577](#) Compare Bernaldi Constant. de Reordinatione vitanda etc.

[578](#) Quod cum dolore dicimus, vix pauci sacerdotes aut clerici Catholici in tanta terrarum latitudine reperiantur.—Annal. Saxo, ann. 1106.

[579](#) Concil. Trecens. ann. 1107 c. 2 (Pertz, Legum T. II. P. ii. p. 181).

[580](#) Cosmæ Pragensis Chron. Lib. III. ann. 1118, 1123.

Rerum cunctarum comes indimota mearum
Bis Februi quinis obiit Boseteha kalendis.

[581](#) Ibid. Lib. III. ann. 1125 (Mencken. Script. Rer. German. III. 1799).

[582](#) Dubravii Hist. Bohem. Lib. XIV. (Ed. 1687, pp. 380-1.)

[583](#) Statuitur et hoc semper memorabile, secundum decreta canonum, presbyteros parochianos castos et sine uxoribus esse debere: uxorati vero presbyteri missam a nemine audiendam esse.—Annal. Bosoviens. ann. 1131.

Statuitur quoque ab omnibus, secundum decreta canonum, illud antiquum, quod semper erit innovandum, presbyteros castos et sine uxoribus esse, missam autem uxorati presbyteri neminem audire debere.—Chron. Sanpetrin. Erfurt. ann. 1131.

Statuitur etiam hoc semper memorabile, per decreta canonum presbyteros parrochianos castos et sine uxoribus esse debere, uxorati vero presbyteri missam a nemine audiendam esse.—Chron. Pegaviens. Continuatur. ann. 1131.

[584](#) Ruperti Tuitens. Comment. in Apocalyps. Lib. II. cap. II.

[585](#) Hist. Monast. S. Laurent. Leodiens. Lib. V. c. 39 (Martene Ampliss. Collect. IV. 1005).

[586](#) Henrici Salisburg. Archidiac. de Calam. Eccles. Salisburg. cap. IX.

[587](#) “Deinde dum nimio zelo rectitudinis de incontinentia clericorum multa sæve diserneret, sine condimento discrecionis, magnam sibi comparavit invidiam, et quam nec dici fas est, acquisivit infamiam.”—He went to Italy, seeking aid from Honorius II., but was captured by Conrad the Swabian, the rival of the Emperor Lothair, and died of affliction in his prison at Parma, October 1st, 1130. (Gest. Trevirorum Continuatur. c. 27, 28.)

[588](#) Anon. Zwetlensis Hist. Roman. Pontif. No. CLXI. (Pez, T. I. P. III. p. 385.)

[589](#) Concil. Ratisbonens. sæc. XIII. c. V. (Printed by Schneller, Straubing, 1785.)

[590](#) Presbyteris autem qui prima et legitima duxere conjugia, indulgentia ad tempus datur, propter vinculum pacis et unitatem Spiritus Sancti, quousque nobis in hoc Domini Apostolici paternitas consiliatur.—Synod. Zabolcs ann. 1092 c. 3, or Decret. St. Ladisl. Lib. I. c. 3. (Batthyani, I. 434-5.)

[591](#) Synod. Zabolcs c. 1, 2.—Any prelate assenting to such illicit unions, and not insisting on immediate separation, was punishable to a reasonable extent (Ibid. c. 4).

[592](#) Synod. Strigonens. II. (Batthyani, II. 121-8). Peterffy’s emendation of “voluerint” for “noluerint,” in the clause respecting *digami*, can hardly be questioned.

[593](#) Decret. Coloman. cap. 41, 42, Comp. cap. 27 and 37.

[594](#) Synod. Vencellina, circa 1109.

[595](#) Batthyani, I. 431.

[596](#) Epist. Urbani apud Batthyani, II. 274.

[597](#) Synod. Dalmatiæ ann. 1199 (Batthyani, II. 289-90).

[598](#) Concil. Vienn. ann. 1267 (Batthyani, II. 415-17).

[599](#) Complures ea tempestate sacerdotes uxoribus velut jure legitimo utebantur.—Dlugosz, ad ann. 1197 (apud Krasinski, I. 52).

[600](#) Staravolsk. Concil. Epit. ap. Harduin. T. VI. P. II. p. 1937.

[601](#) Innocent. PP. III. Regest. Lib. IX. Epist. 235.

[602](#) Concil. Vratislaviens. ann. 1279, c. iii. (Hartzheim III. 808).

[603](#) Saxo. Grammat. Hist. Dan. Lib. xv. (Ed. 1576, p. 327).

[604](#) Innocent. PP. III. Regest. VI. 198.

[605](#) Innocent. III. Regest. XVI. 118.

[606](#) Prima intentio et cura Cardinalis Sabinensis in hoc concilio erat revocare Suecos et Gothos a schismate Græcorum, in quo presbyteri et sacerdotes, ductis publicis uxoribus consensisse videbantur.—Harduin. VII. 423.

[607](#) Jaffé, Regesta, p. 515-6.—Paschal. II. Epist. 497.

[608](#) Concil. Bremens. ann. 1266 (Hartzheim IV. 580).

[609](#) Emonis Chron. ann. 1219.

[610](#) “Eodem tempore defunctus est præfatus decanus (Herbrandus) possessor ecclesiæ in Husquert, tertius heres illius nominis, relicto parvulo ejusdem nominis.” (Emonis Chron. ann. 1231.)—and Emo alludes to him as “honesto viro Herbrando.”

“Obiit Geyco decanus in Firmetium vir per omnia sæcularibus artibus idoneus, et bene religiosus et obsequiosus. Successit ei Sicco, quartus a proavo Sigrepo.”—Ibid. ann. 1233.

[611](#) Menconis Chron. Werens. ann. 1271.

[612](#) Concil. Tolosan. ann. 1056 can. vii.

[613](#) Concil. Turon. ann. 1060 c. 6.

[614](#) Ceterum, quod excommunicavit diaconum suum propter ductam uxorem, contra canones fecisse videtur mihi, nisi forte cogente pertinacia ipsius.—Epist. Berengar. Turon. (Martene Thesaur. I. 195-6). It must be borne in mind that the persecution of Berenger arose solely from his theological subtleties, and that objections to celibacy formed no portion of his errors.

[615](#) Art de Vérifier les Dates, s. v.

[616](#) Concil. Pictaviens. ann. 1078 can. 9.

[617](#) Concil. Rotomag. ann. 1072 can. 16 “de clericis uxoris.”

[618](#) Orderic. Vital. P. II. Lib. iv. c. 2.

[619](#) Concil. Juliobonens. ann. 1080 can. 3, 5 (Orderic. Vital. P. II. Lib. v. c. 6. —Harduin. Concil. T. VI. P. I. p. 1599).—Propter eorum feminas nulla pecuniæ emendatio exigatur.

[620](#) Pauli Carnot. Vet. Agano. Lib. VIII. c. 11.

[621](#) Gregor. VII. Regist. Lib. IX. Epist. 5.

[622](#) Gaufridi Grossi Vit. Bernardi Tironens. c. 6 §§ 51-54.

[623](#) Gregor. VII. Epist. Extrav. 29.—Epist. in Martene Thesaur. III. 871-6.

[624](#) Roujoux, Hist. de Bretagne, II. 98-99. The independence affected by the Breton church is well shown in a singularly impertinent letter addressed to Leo IX. by the clergy of Nantes, refusing to receive a bishop appointed by him, after the degradation for simony of Prodicus by the council of Rheims in 1050 (Martene Thesaur. I. 172-3).

[625](#) Martene Thesaur. III. 882.—Haddan and Stubbs II. 96.

[626](#) Gregor. VII. Regist. Lib. IV. Epist. 10, 11.

[627](#) Ebrardi Chron. Watinens. cap. 22-3. Ebrard was a contemporary, a disciple of Otfrid, and therefore his statement of the motives of the persecution is entitled to credence.

[628](#) “Addens malos sacerdotes sacerdotes non esse, acsi peccator homo non esset homo.” From the tenor of Robert’s defence it is evident that it was the children of the clerks whom he disinherited. The documents are in Warnkönig, *Hist. de Flandre*, I. 330-3 (Bruxelles, 1835).

[629](#) Urbani PP. II. Epist. 70.

[630](#) Lambert. Atrebat. Epist. 60.

[631](#) Lambert. Atrebat. Epist. 84—Paschalis PP. II. Epist. 134.—Lambert. Epist. apud Baluz. et Mansi II. 150.

[632](#) Paschalis PP. II. Epist. 415.

[633](#) Guibert. Novigent. de Vita Sua Lib. I. cap. vii.

[634](#) Concil. Claromont. can. 9, 10, 25.

In Lent of the following year (1096) Urban caused these canons to be received by a provincial council held under his auspices at Tours.—Bernald. *Constant. ann.* 1096.

[635](#) Ivon. Carnot. Epist. 218.

[636](#) Ivon. Decret. P. vi. c. 50 sqq.—Panorm. Lib. iii. c. 84 sqq.

[637](#) Ivon. Epist. 200.

[638](#) Quod ultra modum laxaveris frena pudicitiae, in tantum ut post acceptum archidiaconatum, accubante lateribus tuis plebe muliercularum, multam generis plebem puerorum et puellarum.—Ibid. Epist. 277.

[639](#) Est etiam eis publica et inexpugnabilis cum mulieribus familiaritas, quibus illae, promissis et praemissis obligatae munusculis, dies iniquitatis et noctes infamiae vindicare comprobantur.—Hildebert. *Cenoman. Epist.* 38 (Lib. II. Epist. 25).

[640](#) Hist. Episc. Verdunens. (D’Achery *Spicileg.* II. 254).

[641](#) Audivi turpissimam famam de monasterio Sanctae Faræ, quod jam non locus sanctimonialium sed mulierum daemonialium prostibulum dicendum est, corpora sua ad turpes usus omni generi hominum prostituentium.—Ivon. Epist. 70.

[642](#) Martene *Thesaur.* T. V. p. 1142-3.—Honorii PP. II. Epist. 91.—Guill. Nangis ann. 1123, 1124.

[643](#) P. Abælardi *Sermo* xxix.

[644](#) Bull. Pontif. No. xxiii. ap. Hahnii *Collect. Monument. Vet.* I. 147. As to the reformation of the nuns of Laon, see Guill. de Nangis ann. 1128.

[645](#) Roberti de Monte *Chron.* ann. 1143.

[646](#) Nonne qui nocentes deberemus absolvere, eis malo exemplo nocemus? Nonne qui deberemus pollutos lavare, vitiorum nostrorum contagione alios polluimus?— Sed nos, hodie indigni sacerdotes quid dicemus qui cæteris

hominibus non majores sed deteriores sumus? Qui cum in conspectu hominum gradu sacerdotalis ordinis celsiores cæteris videamur, tamen cæteris inferiores vita moribusque jacemus? Radulph. Ardent. T. II. P. ii. Homil. 25.—See also Homil. 21.

[647](#) Nihil enim est quo magis lædatur Ecclesia quam quod laicos videt esse meliores clericis.—Pet. Cant. Verb. Abbreviat. cap. lvii.

[648](#) Hoc totum factum est rogatu Germani presbyteri, filiorumque ejus, qui post inde noster effectus est monachus.—Chron. Besuens. Chart. de tenement. German. presbyt.

[649](#) Innocent. PP. III. Regest. v. 67.

[650](#) Petri Venerab. de Mirac. Lib. I. c. 25.—Chron. Episc. Mindens. c. 26.

[651](#) S. Bernardi Vitæ Primæ Lib. vii. cap. xxi.

[652](#) Concil. Remens. ann. 1119 can. 4, 5.—“Nullus episcopus, nullus presbyter, nullus omnino de clero ecclesiasticas dignitates vel beneficia cuilibet, quasi hereditario jure, derelinquat.” Calixtus had already caused this provision to be adopted by the council of Toulouse, held in the previous June (Concil. Tolosan. ann. 1119 can. 8).

[653](#) Cujas quotes these verses as still current in his day, and attributes to the efforts of Calixtus the suppression of sacerdotal marriage in France. (Giannone, Apologia, c. xiv.)

[654](#) Orderic. Vital. P. III. Lib. xii. c. 13.

[655](#) Arnulf. Lexoviens. de Schismate cap. I. II. (D’Achery I. 153).

[656](#) Vit. S. Bertrandi Convenar. No. 13, 14 (Martene Ampliss. Collect. VI. 1028).

[657](#) Ut clerici ejusdem ecclesiæ sicut usque modo vixerunt permaneant; hoc tamen præcipimus ut presbyteri, diaconi, subdiaconi nullatenus deinceps uxores concubinas habeant; cæteri vero cujuscumque ordinis clerici propter fornicationem, licentiam habeant ducendi uxores.—Du Cange, s. v. *Concubina*.

[658](#) Epist. Alex. PP. III. in Martene Ampliss. Collect. II. 794.

[659](#) Concil. Paris, ann. 1212 can. xvi., xviii. (Ibid. VII. 99).

[660](#) Gregor. VII. Regist. Lib. ix. Epist. 5.

[661](#) Roger of Hoveden. ann. 1070.—Baron. Annal. ann. 1070 No. 26.

[662](#) Lanfranci Epist. xxi.

[663](#) Alexand. II. Epist. 83.

[664](#) Wilkins Concil. Mag. Britan. I. 363.

[665](#) Camden’s Britannia, Tit. Shropshire.

[666](#) Decretumque est ut nullus canonicus uxorem habeat. Sacerdotes vero in castellis vel in vicis habitantes, habentes uxores non cogantur ut dimittant; non habentes interdican- tur ut habeant; et deinceps caventur episcopi ut sacerdotes vel diaconos non præsument ordinare, nisi prius profiteantur ut uxores non habeant. —Wilkins I. 367.

Polydor Virgil describes a council of London held by Lanfranc in 1078, in which—“Ante omnia mores sacerdotum parum puri quamproxime potuit, ad priscorum patrum regulam revocati sunt, estque illis in posterum tempus recte vivendi modus præs- criptus” (Angl. Hist. Lib. ix.); but he has evidently mixed together the proceedings of various synods.

[667](#) Henric. Huntingdon. Lib. vii.—Matt. Paris ann. 1102.—Henry of Huntingdon, though an archdeacon, was himself the son of a priest, and therefore was not disposed to regard with complacency the stigma attached to his birth by the new order of things.

[668](#) Concil. Londin. ann. 1102.—Wilkins. I. 382 (Eadmer. Hist. Novor. Lib. iii. ann. 1102).

[669](#) Anselmi Lib. iii. Epist. 62.

[670](#) D’Achery Spicileg. III. 434.

[671](#) Paschalis PP. II. Epist. lxxiv.—Anselmi Lib. iv. Epist. 41.

[672](#) Simeon Dunelmens. *ap.* Pagi IV. 348.

[673](#) See the confirmation of excommunication in which St. Anselm exhaled his fiery indignation at those who continued with “bestiali insania” to defy the authorities of the church. (Anselmi Lib. iii. Epist. 112.)

Anselm was not entirely without assistance in his efforts. One of his monks, Reginald, of the great monastery of Canterbury, wrote a fearfully diffuse paraphrase, in Leonine verse, of the life of St. Malchus. It was an evil-minded generation, indeed, that could resist such a denunciation of marriage as that pronounced by the saint—

Plenum sorde thorum subeam plenumque dolorum?
Plenus, ait, tenebris thalamus sordet muliebris.
Displicet amplexus, horror mihi copula, sexus.
Conjugium vile, vilescit sponsa, cubile.
Nolo thorum talem, desidero spiritualem.

(Croke’s Rhyming Latin Verse, p. 67.)

[674](#) Eadmer. Hist. Novor. Lib. iv.—Anselmi Lib. iii. Epist. 109.

[675](#) Wilkins, I. 378-80.—Paschalis II. Epist. 221.

[676](#) D’Achery Spicileg. III. 448.

[677](#) Eadmeri Hist. Novor. Lib. iv.

[678](#) Eadmeri Hist. Novor. Lib. iv.

[679](#) Eadmeri Hist. Novor. Lib. iv.

[680](#) Messenii Chron. Episcoporum per Sueciam etc. p. 76 (Stockholmiaë, 1611).

[681](#) Concil. Londiniens. ann. 1126 c. 13 (Wilkins, I. 408).

[682](#) Henric. Huntingd. Lib. vii.—Matt. Paris ann. 1125.—Baronius (ann. 1125, No. 12) endeavors to disprove the story, but is only able to offer general negative allegations, of but little weight when opposed to the testimony of a contemporary like Henry of Huntingdon, who speaks of it as a matter of public notoriety, which covered the cardinal with disgrace and drove him from England.

Such conduct was a favorite theme of objurgation with the ascetics of the twelfth and thirteenth centuries—

Certe tu qui missam dicis
Post amplexum meretricis,
Potaberis ab inimicis
Liquore sulphuris et picis.

(Du Méril, Poésies Latines, p. 133.)

So also, among the poems which pass under the name of Golias Episcopus is one of fierce invective directed against the priests, in which this is one of the principal accusations—

O sacerdos, hæc responde,
Qui frequenter et jocunde
Cum uxore dormis, unde
Mane surgens, missam dicis,
Corpus Christi benedicis,
Post amplexus meretricis
Minus quam tu peccatricis.

Plenus sorde, plenus mendis,
Ad autorem manus tendis,
Quem contempnis, quem offendis,
Meretrici dum ascendis.

Quali corde, quali ore
Corpus Christi, cum cruore,
Tractas, surgens de fœtore,
Dignus plagis et tortore.

Mapes's Poems (Camd. Soc. Ed. pp. 49-50).

[683](#) Concil. Westmonast. ann. 1127 c. 5, 6, 7 (Wilkins, I. 410).

[684](#) Henric. Huntingd. Lib. vii.—Anglo Saxon Chron. ann. 1129.—Matt. Paris ann. 1129.

[685](#) Concil. Westmonast. ann. 1138 c. 8 (Wilkins, I. 415).

[686](#) Rymer, Fœdera Tom. I. ann. 1144.—Post. Concil. Lateran, P. xix. passim.—Lib. i. Tit. 17 Extra.

[687](#) Orderic Vital. P. iii. Lib. xiii. c. 20.

[688](#) Fluit semine et hinnit in feminas, adeo impudens ut libidinem, nisi quam publicaverit, voluptuosam esse non reputet.... Fornicationis abusum comparat necessitati. Proletarius est adeo quod paucis annis ei soboles tanta succrevit ut patriarcharum seriem antecedit.—Joann. Saresberiens. Epist. 310. Well might Alexander, in ordering his ejection, say “ipsum invenerint tot excessibus et criminibus publicis irretitum, quod per eorum nobis litteras recitata auribus nostris nimium præstiterunt tædium et dolorem.”—Elmham Hist. Monast. August, p. 413.

[\[689\]](#)

Crescit malorum cumulus,
Est sacerdos ut populus,
Currunt ad illicitum,
Uterque juxta libitum
Audax et imperterritus.

(Wright, Polit. Songs of England, p. 9.) And another indignant churchman exclaims:—

Qui sunt qui ecclesias vendunt et mercantur?
Qui sunt fornicarii? Qui sunt qui mœchantur?
Qui naturam transvolant et abominantur?
Qui? clerici; a nobis non longe extra petantur.

Mapes's Poems, pp. 156-7.

[690](#) A woman applied to Bishop Hugh for advice “super impotentia mariti, quia debitum ei reddere non poterat,” when the prelate gravely replied, “Faciamus ergo si vis eum sacerdotem, et statim illo in opere, reddita sibi facultate, proculdubio potens efficietur.”—Girald. Cambrens. Gemm. Eccles. Dist. ii. c. xviii.

[691](#) Benedicti Abbatis Gesta Regis Henr. II. T. I. pp. 135-6; T. II. p. xxx. (M. R. Series.)

[692](#) Chron. Monast. de Bello, London, 1846, pp. 142-3.

[693](#) Haddan & Stubbs's Councils of Great Britain I. 423-4.

[694](#) Matt. Paris ann. 1208.

Perhaps it is to John's experience in this matter that may be attributed the fact that when, in 1214, he entered into a league with his knight-errant nephew, the

Emperor Otho IV., against Philip Augustus, they also declared war against Innocent III., and proposed to carry out a gigantic scheme of spoliation by enriching, from ecclesiastical property, all who might rally to their standard. They proclaimed their intention of humbling the church, reducing the numbers of the clergy, stripping those who were left of all their temporalities, and leaving them only moderate stipends. Both John and Otho had been under excommunication, and could speak feelingly of the overweening power and abuses of the church, whose members they characterize as “genus hoc pigrum et fruges consumere natum, quod otia ducit, quodque sub tecto marcet et umbra, qui frustra vivunt, quorum omnis labor in hoc est, ut Baccho Venerique vacent, quibus crapula obesis poris colla inflat, ventresque abdomine onerat.” (Lünig. Cod. Diplom. Italiæ I. 34). A few weeks later the Bridge of Bouvines put a sudden end to this prosperous plan of reformation.

[695](#) Du Ménil, Poésies Pop. Latines, p. 179.

[696](#) Mapes’s Poems, p. 10.

[697](#) Du Ménil, op. cit. p. 171.

[698](#) Filius autem, more sacerdotum parochialium Angliæ fere cunctorum, damnabili quidem et detestabili, publicam secum habebat comitem individuum, et in foco focariam et in cubiculo concubinam.—Girald. Cambrens. Specul. Eccles. Dist. iii. c. 8. (Girald. Opp. III. 129.) However Giraldus and the severer churchmen might stigmatize these companions as concubines, they were evidently united in the bonds of matrimony. He says himself, respecting Wales, “Nosse te novi ... canonicos Menevenses fere cunctos, maxime vero Walensicos, publicos fornicarios et concubinaros esse, sub alis ecclesiæ cathedralis et tanquam in ipso ejusdem gremio focarias suas cum obstetricibus et nutricibus atque cunabulis in laribus et penetralibus exhibentes.... Adeo quidem ut sicut patres eorum ipsos ibi genuerunt et promoverunt, sic et ipsi more consimili prolem ibidem suscitant, tam in vitiis sibi quam beneficiis succedaneam. Filiis namque suis statim cum adulti fuerint et plene pubertatis annos excesserint, concanonicorum suorum filias, ut sic firmiori fœdere sanguinis scilicet et affinitatis jure jungantur, *quasi maritali copula dari procurant*. Postmodum autem ... canonicas suas filiis suis conferri per cessionem non ineffaciter elaborant.” (De Jure et Statu Menev. Eccles. Dist. i.) That this condition of affairs was not confined to the canons of cathedral churches is evident from his general remarks in the Gemm. Eccles. Dist. II. cap. xxiii.

His treatise De Statu Menevens. Eccles. was written after 1215, and therefore subsequent to the death of Innocent III.

[699](#) Innocent. PP. III. Regest. v. 66; VIII. 147.

[700](#) De presbytero et logico. Mapes’s Poems, p. 256.

[701](#) Hali Meidenhad, p. 7. (Early English Text Society, 1866.)

[702](#) Innocent. PP. III. Regest. vi. 103.

[703](#) Mapes’s Poems, pp. 171-2. This well-known poem has been attributed to the Venerable Hildebert, Bishop of Le Mans, as written on the occasion of the reformation of the French clergy by Calixtus II. (Croke, Rhyming Latin Verse, p.

85), but the character of that reverend prelate forbids such an assumption, even if the allusion to Innocent did not assign to it a later period.

[704](#) Concil. Eboracens. ann. 1195 c. 17.—Concil. Londiniens. ann. 1200 c. 10.—Concil. Dunelmens. ann. 1220.—Concil. Oxoniens. ann. 1222 c. 28.—Constit. Archiep. Cantuar. ann. 1225 (Matt. Paris ann. 1225).—Constit. Episc. Lincoln. ann. 1230 (Wilkins, I. 627).—Constit. Provin. Cantuar. ann. 1236 c. 3, 4, 30.—Constit. Coventriens. ann. 1237 (Wilkins, I. 641), &c.

[705](#) Matt. Paris ann. 1237.

[706](#) Wilkins, I. 672-3.

[707](#) De Convocatione Sacerdotum (Mapes's Poems, pp. 180-2).

[708](#) Mapes's Poems, pp. 176-9.—All the poetasters of the period, however, were not enlisted on one side. There is extant an exhortation against marriage, addressed to the clergy, which consists of a violent invective against the sex, recapitulating the customary accusations against women with all the brutal coarseness of the age:—

Hæc est iniquitas omnis adulteræ
Qui virum proprium vellet non vivere,
Ut det adultero non cessat rapere—
Desistat igitur clerus nunc nubere.
Du Ménil, op. cit. p. 184.

The "Confessio Goliæ" feelingly bewails the difficulty of rendering obedience to the new regulations:—

Res est arduissima vincere naturam,
In aspectu virginum mentem ferre puram;
Juvenes non possumus legem sequi duram,
Leviumque corporum non habere curam.
Quis in igne positus igne non uratur?
Quis in mundo demorans castus habeatur?
Ubi Venus digito juvenes venatur
Oculis illaqueat, facie prædatur?
Mapes's Poems, p. 72.

[709](#) Matt. Paris ann. 1250.

This Boniface was brother of the Duke of Savoy, and was one of the Italian prelates whose intrusion into the choice places of the Anglican church was a source of intense irritation. The career of another brother, Philip, is an instructive illustration of the ecclesiastical manners of the age. He was in deacon's orders, and yet, as a leader of condottieri, he was a strenuous supporter of Innocent IV. in his quarrel with Frederic II. He was created Archbishop of Lyons, Bishop of Valence, Provost of Bruges, and Dean of Vienne, and, after enjoying these miscellaneous dignities for some twenty years, when at length Clement IV. insisted on his ordination and consecration, he threw off his episcopal robe, married first the heiress of Franche-Comté and then a niece of Innocent IV.—dying at last as Duke of Savoy (Milman, Latin Christ. IV. 326).

The indignation felt at the standing grievance of foreign prelates is quaintly expressed a century later by Langlande—

And a peril to the pope
And prelates that he maketh,
That bere bisshopes names
Of Bethleem and Babiloigne,
That huppe aboute in Engelond
To halwe mennes auteres,
And crepe amonges curatours,
And confessen ageyn the lawe.
Piers Ploughman, Wright's Edition, l. 10695-702.

[710](#) Nullusque eorum uxorem ducat: et si antequam sacros ordines suscepit uxorem duxerit, seu postea, si beneficium habeat, ipso privetur, et ab executione sui officii suspendatur, nisi in casu a jure concessio.—Constit. Walteri Episc. Dunelmensis. (Wilkins, I. 705).

[711](#) Sir, il ne doit mie joyer du benefit de celle priviledge, car il ad forfait per vice de Bigamy; comme celui qui ad espousé vefve ou plusors femmes.—Myrror of Justice, cap. III. sect. v.

[712](#) Concil. Londiniens. ann. 1268 c. 8 (Wilkins, II. 5).

[713](#) Convocat. Cantuar. ann. 1399 c. 13 (Wilkins, III. 240).

[714](#) The canon law maintained the extraordinary doctrine that the confession of the guilty woman could not be received as evidence against her accomplice, though it was good as against herself. "Unde nec sacerdotes accusare nec in eos testificari valent.... Quia ergo ista de se confitetur, super alienum crimen ei credi non oportet; sed contra eam sua confessio interpretanda est" (Gratian. P. II. c. xv. q. 3). It would be hard to imagine a rule of practice better fitted to repress investigation and to shield offenders.

[715](#) Wilkins, II. 40.

[716](#) Ad domos religiosarum veniens, fecit exprimi mammillas earundem, ut sic physice si esset inter eas corruptela, experiretur—Matt. Paris ann. 1251.

[717](#) Adæ de Marisco Epist. passim (Monumenta Franciscana). How little the character of the clergy had improved under the ceaseless efforts of the preceding half century may be guessed from Adam's description of his contemporary brethren—"Nihil aliud pervicacissima caninæ voracitatis impudentia consecantur, quam caducam fastuum arrogantiam, quam mobilem quæstum affluentiam, quam sordidam luxuum petulentiam, auctoritatem summæ salvationis in perditionis æternæ crudelitatem depravantes; cernimus usquequaque quasi solutum Satanam effrænata tyrannide beatam hæreditatem benedicti Dei immanissime depopulari."—Ibid. Epist. CCXLVII. P. i. c. 18.

[\[718\]](#)

And thise ersedeknes that ben set to visite holi churchē,
Everich fondeth hu he may shrewedelichest worche;
He wole take mede of that on and that other,
And late the parsoun have a wyf and the prest another,
At wille:
Coveytise shal stoppen here mouth, and maken hem al stille.
Wright, Political Songs of England,
p. 326.

So Robert Langlande states

“In the consistorie bfore the commissarie
He cometh noght but ofte;
For hir lawe dureth over longe,
But if thei lacchen silver,
And matrimoyne for moneie
Maken and unmake.”
Vision of Piers Ploughman, v. 10102-7
(Wright’s Edition).

[719](#) 1 Henry VII. cap. 4.

[720](#) Gwentian Code, Book II. chap. xxx. “Because he was begotten contrary to decree.”—Dimetian Code, Book II. chap. viii. § 27 (Aneurin Owen’s Ancient Laws and Institutes of Wales, Vol. I. pp. 761, 445). Of the latter of these codes, the recension which has reached us contains alterations made by Rys son of Grufudd, showing it to be posterior at least to the year 1180.

[721](#) Anomalous Laws, Book x. chap. vii. § 19 (Owen, Vol. II. p. 331).

[722](#) Ibid. chap. ix. (Vol. II. p. 347).

[723](#) Ibid. Book VIII. chap. xi. § 19 (Vol. II. p. 205).

[724](#) Ibid. Book XI. chap. iii. § 15 (Vol. II. p. 409).

[725](#) Senchus Mor. Introduction. pp. 57-9. (Edited by Hancock, Dublin, 1865.)

[726](#) Lanfranci Epistt. 37, 38.—Bernardi Vit. S. Malachiae cap. iii. viii.—The rudeness of the age may be measured by the fact that when Malachi determined to adorn the venerable monastery of Benchor with an oratory of stone such as he had seen abroad, the mere laying of the foundations aroused the wonderment of the people, to whom buildings of that kind were unknown—“quod in terra illa necdum ejusmodi aedificia invenirentur”—and his enemies took advantage of the feeling to interfere with the work on the ground that such an enterprise was unheard of, and that so stupendous an undertaking could never be accomplished. This piece of presumption was promptly rebuked by the death of the ringleader, and by the finding in the excavations of a treasure which enabled St. Malachi to execute his plans (Vit. S. Malach. c. xxviii.). St. Bernard, who derived his impressions from Malachi and his companions, thus describes the Irish of Connaught, “sic protervos ad mores, sic ferales ad ritus, sic ad fidem impios, ad leges barbaros, cervicosos ad disciplinam, spurcos ad vitam. Christiani nomine,

re pagani. Non decimas, non primitias dare, non legitima inire conjugia, non facere confessiones; pœnitentias nec qui peteret, nec qui daret penitus invenire. Ministri altaris pauci admodum erant.”—Ibid. cap. viii.

[727](#) Ibid. c. x. xi. xii. xiii.

[728](#) Ibid. c. x.

[729](#) Ibid. c. xv.

[730](#) Ibid. c. xviii.—Fiunt de medio barbaricæ leges, Romanæ introducuntur.—Ibid. c. viii.

[731](#) Ibid. c. xvi.—Illæ gentes quæ a diebus antiquis monachi quidem nomen audierunt, monachum non viderunt.

[732](#) In the hymn in which St. Bernard celebrated the virtues of his friend he compares him to the Apostles—

Sobrius victus, castitas perennis,
Fides, doctrina, animarum lucra,
Meritis parem cœtui permiscet Apostolorum.

[733](#) Sermo Giraldi in Concil. Dublinens. (De Rebus a se Gestis Lib. II. c. 14).

In the “Topographia Hibernica,” Dist. III. cap. 27, Giraldus confirms his assertion as to the chastity and drunkenness of the Irish clergy, but admits that they observed the canonical fasts with praiseworthy strictness.

[734](#) Hist. Archiep. Bremens ann. 1179 (Lindenbrog. Script. Septent. p. 107).

It must be borne in mind, however, that in the Irish church bishops were almost as numerous as in the primitive church of Africa—“singulæ pene ecclesiæ singulos haberent episcopos.”—Bernard. Vit. S. Malachiæ cap. X.

[735](#) Cap. 13 Extra Lib. I. Tit. xvii.

[736](#) Benedicti Abbatis Gesta Henrici II. ann. 1171.

[737](#) Girald. Cambrens. op. cit. Lib. II. c. 13.

[738](#) Girald. Cambrens. loc. cit.

[739](#) Innocent PP. III. Regest. v. 158.

[740](#) Concil. Dublinens. ann. 1217 (Wilkins, I. 548).

[741](#) Quia putridum libidinosæ spurcitæ contagium adeo apud clericos et presbyteros invaluit his diebus, quod nec auctoritas evangelica, nec canonica severitas illud hactenus extirpare potuit, quia in suæ perpetuæ damnationis periculum, et ordinis ecclesiasticæ ignominiam, populique perniciosum exemplum manifestum, adhuc suas publice detinent concubinas, etc.—Constit. Synod. Ossoriens. (Wilkins, II. 502).

[742](#) Bradshaw’s Enniskillen (London Athenæum, Sept. 7th, 1878, p. 305).

[743](#) Haddan and Stubbs, II. 175-80.

[744](#) Haddan and Stubbs, II, 216, 224-7, 235.—See also Cosmo Innes' "Scotland in the Middle Ages," pp. 107 sqq. We may assume that John of Crema or the pope must have conferred extraordinary powers on David before he could have the presumption to thus arbitrarily regulate and revolutionize the church. This, indeed, may readily be conceived as probable when we reflect how little authority Rome could have exercised over the Culdees, and how readily Scotland must have been subjected to the central power by placing her ecclesiastical establishment in the hands of the Sassenach monks.

Towards the end of the 12th century, Giraldus Cambrensis calls the Culdees of Bardsey in Wales, "Cœlibes vel Colidei" and characterizes them as "religiosissimi" (Itin. Cambr. II. 6—*ap.* Haddan and Stubbs, II. xxiii.).

[745](#) Gesta Henrici II. T. I. p. 282 (M. R. Series).

[746](#) Concil. Scotican. ann. 1225 c. 18, 62 (Wilkins, I. 610).

[747](#) Chron. Paslatens. ann. 1268 (Wilkins, II. 19).

[748](#) Hist. Compostellan. Lib. II. c. 1.

[749](#) Hist. Compostellan. Lib. I. c. 20.

[750](#) Didaci Decret. No. 15 (Hist. Compostellan. Lib. I. cap. 90).

[751](#) Synod. Helenens. ann. 1027 c. 3 (Aguirre, IV. 393).

[752](#) Hist. de España, Lib. IX. cap. xi.

[753](#) Concil. Compostellan. ann. 1056 can. 3. An allusion, however, to those who left the church and married being allowed to return on abandoning their wives, would seem to show that some supervision was exercised. The council of Coyanza, in 1050, had forbidden the residence of strange women, except mother, aunt, or step-mother, but says nothing as to marriage.—Con. Coyacens. ann. 1050 c. iii. (Aguirre IV. 405, 407).

[754](#) Concil. Gerundens. ann. 1068 can. 7, 8 (Labbei et Coleti T. XII.). The council of Toulouse, in 1056 (see ante, p. 255), which ordered the separation of priests from their wives, undertook to include Spain in its legislation, presumably meaning the eastern portion of the Peninsula which was subject to the Archbishops of Narbonne.

[755](#) Gregor. VII. Regist. Lib. IV. Epist. 28.

[756](#) Concil. Gerundens. ann. 1078 can. 1, 3, 4, 5 (Labbei et Coleti T. XII.).

[757](#) Mariana, loc. cit.

[758](#) Paschal. PP. II. Epist. 57.

[759](#) Hist. Compostellan. Lib. I. cap. 20, 58, 81; Lib. II. cap. 3; Lib. III. cap. 46.—Even the moderate reforms introduced met with violent opposition—"nobis omnibus, veluti bruta animalia, nulla adhuc jugali asperitate depressa, reluctantibus"—and only a portion seem to have submitted "quosdam sibi acquiescentes doctrina et operatione conspicuos divina clementia reddidit."

[760](#) Didaci Decreta, No. 21 (Hist. Compostell. Lib. I. cap. 96).

[761](#) Ibid. Lib. I. cap. 100.—“Si qui ex eorum progenie clerici esse et sæculariter continere vellent.”

[762](#) Hist. Compostellan. Lib. II. cap. 87.

[763](#) The Spanish church was not alone in this looseness of discipline as regards canons. When Arthur of Brittany took up arms against his uncle King John, and advanced with an army to Tours at Easter, A. D. 1200, he there “more debito in ecclesia B. Martini in canonicum est receptus, et in stallum decani in vestibus chori, sicut canonicus installatus.”—Chron. Turonens. ann. 1200 (Martene Ampl. Collect. V. 1038).

[764](#) Hist. Compostell. Lib. III. cap. 11.

[765](#) Ibid. Lib. I. cap. 101 (Concil. Legionens. ann. 1114 can. 8).

[766](#) Concil. Palentin. ann. 1129 can. 5.—“Concubinæ clericorum manifestæ ejiciantur.”

[767](#) Hist. Compostellan. Lib. III. cap. 20.—“Pro modulo suæ possibilitatis.”

[768](#) Concil. Hispan. Sæc. XIII. (Martene Thesaur. IV. 167).

[769](#) “De los clérigos que casan á bendiciones habiendo órdenes sagradas, que pena deben haber ellos et aquellas con quien casan.—Casándose algunt clérigo que hobiese orden sagrada non debe fincar sin pena, ca débenle vedar de oficio, et tollerle el beneficio que hobiere de la egleſia por sentencia de descomulgamiento fasta que la dexe et faga penitencia de aquel yerro, etc.”—Siete Partidas, P. I. Tit. vi. l. 41.

[770](#) Concil. Valentin. ann. 1255 (Aguirre V. 197, 201).

[771](#) Constit. Synodal. Arnaldi de Peralta Episc. Valentin. (Aguirre V. 207-8).

[772](#) Synod. Gerund. ann. 1257 can. 4; ann. 1274 can. 25 (Martene Ampl. Coll. VIII. 1461, 1469).

[773](#) Concil. Penna-fidelens. ann. 1302 can. ii. (Aguirre V. 226).

[774](#) Concil. Vallis-oletan. ann. 1322 can. vi. vii. (Aguirre V. 243-5).

[775](#) Concil. Salmanticens. ann. 1335 can. iii. (Aguirre V. 266).

[776](#) Concil. Palentin. ann. 1388 can. ii. (Aguirre V. 298-99).

[777](#) Et utinam nunquam continentiam promisissent, maxime Hispani et regnicolæ, in quibus provinciis in paucis maiori numero sunt filii laicorum quam clericorum.... Sæpe cum parochianis mulieribus quas ad confessionem admittunt, scelestissime fornicantur.... De bonis ecclesiæ pascunt concubinam continue et filios, et de pecunia ecclesiæ emunt eis possessiones.... Multi presbyteri et alii constituti in sacris, maxime in Hispania, in Asturia et Galicia et alibi, et publice et aliquoties per publicum instrumentum promittunt et jurant quibusdam, maxime nobilibus mulieribus, numquam eas dimittere; et dant eis arras de bonis ecclesiæ et possessiones ecclesiæ, publice eas ducunt, cum consanguineis et

amicis et solenni convivio, acsi essent uxores legitimæ.—Alv. Pelag. de Planctu Ecclesiæ Lib. II. Art. xxviii. (Ed. 1517 fol. 131-3).

This forms part of a list of fifty-four charges brought by Pelayo against the clergy of his time—"peccant in his communiter." If the good bishop does not exaggerate, these ministers of Christ must have been a fearful curse to the communities over which they presided in the name of the Saviour.

[778](#) Concil. Dertusan. ann. 1429 can. ii. (Aguirre V. 335-6).

[779](#) Presbyteris, diaconibus, subdiaconibus et monachis concubinas habere, seu matrimonia contrahere, penitus interdicimus: contracta quoque matrimonia ab hujusmodi personis disjungi, et personas ad pœnitentiam redigi, juxta sacrorum canonum diffinitiones judicamus.—Concil. Lateran. I. c. 21.

[780](#) Thus Gregory the Great, in 602: "Si enim dicunt religionis causa conjugia debere dissolvi sciendum est quia etsi hoc lex humana concessit, divina lex tamen prohibuit."—Gregor. I. Lib. XI. Epist. 45.

And St. Augustin: "Proinde qui dicunt talium nuptias non esse nuptias sed potius adulteria non mihi videntur satis acute ac diligenter considerare quid dicant ... et cum volunt eas separatas reddere continentiae faciunt maritos earum adulteros veros etc."—De Bono Viduit. c. 10.

[781](#) Decrevimus ut ii qui a subdiaconatu et supra uxores duxerint, aut concubinas habuerint, officio atque beneficio ecclesiastico careant.—Concil. Claromont. ann. 1130 can. 4. This is repeated verbatim in the council of Rheims in 1131, canon 4.

Concerning the latter a contemporary observes: "Placuit etiam domino apostolico et toti concilio, ne quis audiat missam presbyteri habentis concubinam vel uxorem. Assensu etiam omnium firmatum est ut clerici omnes a subdiacono et supra continentes sint, et qui non fuerint continentes, deponantur."—Udalr. Babenb. Cod. Lib. II. c. 1.

[782](#) Ut autem lex continentiae et Deo placens munditia in ecclesiasticis personis et sacris ordinibus dilatetur, statuimus quatenus episcopi, presbyteri, diaconi, subdiaconi, regulares canonici et monachi atque conversi professi, qui sanctum transgredientes propositum uxores sibi copulare praesumpserint, separentur. Hujusmodi namque copulationem, quam contra ecclesiasticam regulam constat esse contractam, matrimonium non esse censemus. Qui etiam ab invicem separati, pro tantis excessibus condignam pœnitentiam agant.—Concil. Lateran. II. ann. 1139 c. 7.

[783](#) Sed nimis abundans per universum orbem nequitia terrigenarum corda contra ecclesiastica scita obduravit.—Orderic. Vital. P. III. Lib. xiii. c. 20.

[784](#) Concil. Remens. ann. 1148 can. 3, 8. "Sanctorum patrum et prædecessoris nostri Papæ Innocentii vestigia inhærentes, statuimus quatenus episcopi, presbyteri, diaconi, etc."

[785](#) Et ad hæc nihil ad præsens certius breviusque respondendum occurrit, nisi quod ita sancti antistites sapuerunt: rectene? ipsi viderint.—Lib. de Præcept. et Dispensat, cap. XVII.—Abelard contrasts the contradictory canons of the church

in these matters in his *Sic et Non* cap. cxxii. It was possibly among other motives the skilful unveiling of ecclesiastical inconsistencies in this curious work that led the authorities of the church to procure the compilation of Gratian's "Decretum."

[786](#) Bernardi Epist. lxxvi.

[787](#) Ejusd. de Considerat. Lib. iii. cap. v.

[788](#) Si vero diaconus a ministerio cessare voluerit, et contracto matrimonio licite potest uti. Nam etsi in ordinatione sua castitatis votum obtulerit, tamen tanta est vis in sacramento conjugii, quod nec ex violatione voti potest dissolvi ipsum conjugium.—Comment. in Can. i. Dist. xxvii.

The introduction of the doctrine of Innocent and Eugenius into the church has given rise to some controversy. In the Encyclical of Aug. 22, 1851, and in the Syllabus of Dec. 1864, Pius IX. has condemned the error of attributing it to Boniface VIII. Some zealously orthodox writers have endeavored to prove that the church consistently maintained this doctrine from the beginning, but the contrary is admitted by the greater number of Catholic authorities. Cf. Zaccaria, *Storia Polemica*, p. 346-7 and Bernal Diaz, *Practice Criminalis Canonica* cap. 74.

[789](#) Gerhohi Tract. adv. Simoniac. c. 2.—About the year 1140, we find St. Bernard (Epist. 203) writing to the bishop and clergy of Trèves, urging them to labor for the reformation of a married subdeacon of their church, in terms which show that no severe application of the canons was to be expected.

[790](#) Gerhohi Exposit. in Psalm lxiv. cap. xlix.

[791](#) Gerhohi Exposit. in Psalm lxiv. c. xxxv. An allusion in this passage to Eugenius III. and the council of Rheims shows that it was written between 1148 and 1153. It seems that the nuns rebelled against the canon (Concil. Remens. ann. 1148 can. iv.) confining them to their convents under threat of deprivation of Christian sepulture.

[792](#) Ibid. cap. xlvi.

[793](#) Hugon. Rothomag. contra Hæret. Lib. iii. cap. v.—Hugh gives us in a new form the old calculation as to the comparative merits of virginity, continence, and marriage—"Non centesimo honore cum virginibus gloriatur, non sexagesima continentiae palma lætatur, sed tricesimo conjugii labore fatigatur."

[794](#) Fortescue de Laud. Leg. Angl. cap. xxi.—Fortescue speaks of the case as having occurred within his own knowledge.

[795](#) Et constituit ut nullus in sacris ordinibus habeat uxorem vel concubinam.—Chron. S. Ægid. in Brunswig.

[796](#) Concil. Turon. ann. 1163 can. 4 (MS. St. Michael. ap. Harduin. Tom. VI. P. ii. p. 1600).

[797](#) Qui autem a subdiaconatu vel supra ad matrimonia convolaverint, mulieres etiam invitas et renitentes relinquunt.—Concil. Abrincens. ann. 1172 c. 1. I give this on the authority of the Abate Zaccaria (*Nuova Giustificazione del Celibato Sacro* p. 120); there is no such canon among those attributed to the

council by Hardouin (T. VI. P. II. p. 1634), and by Bessin (Concil. Rotomagensia, p. 86), whose accounts of the proceedings are extracted from Roger of Hoveden and tally with that given in the Gesta Henrici II. attributed to Benedict of Peterboro (I. 33. M. R. Series). As a number of canons proposed by the papal legates, Cardinals Theodwin and Albert, were rejected by the Norman bishops, it is possible that the local reports and those current at Rome may have differed.

[798](#) Post Concil. Lateran. P. XVIII. c. 12.

[799](#) Post Concil. Lateran. P. XVIII. e. 2, 6.

[800](#) Sane sacerdotes illi, qui nuptias contrahunt, quæ non nuptiæ sed contubernia sunt potius nuncupanda, post longam pœnitentiam et vitam laudabilem continentes, officio suo restitui poterunt, et ex indulgentia sui episcopi ejus exsecutionem habere.—Can. 4 Extra, Tit. iii. Lib. III.

[801](#) Post Concil. Lateran. P. XVIII. c. 4.

[802](#) Post Concil. Lateran. P. XVIII. c. 13.—In a decretal addressed to the Dean and Chapter of Lincoln, Alexander grants permission of marriage to a certain subdeacon, and forbids interference with such legitimate marriage, giving as a reason that the subdiaconate of the person referred to carried with it no preferment.—Ibid. c. 14.

[803](#) Post Concil. Lateran. P. VI. c. 9.

[804](#) Votum simplex impedit sponsalia de futuro, non autem dirimit matrimonium sequens; secus in voto solenni.—Can. 6 Extra Lib. IV. Tit. VI.

The practical rule deduced by a shrewd lawyer in the latter half of the thirteenth century from this varying legislation is, “Note deus relles; que simple vou et sollempnié lie maeme quant à Deu; et simple vou empêche à marier, mès il ne tost pas ce qui est fet; et note que vou, de la nature de soi, ne dépièce pas mariage, mès c’est de constitution d’yglise”—(Livres de Jostice et de Piet, Liv. X. chap. VI. § 6). This is likewise the conclusion reached by Thomas Aquinas, Summ. Theol. Supp. Quæst. LIII. Art. I. II.

[805](#) Alani ab Insulis Lib. Pœnitentialis.

[806](#) Post. Concil. Lateran. P. XIX. c. 1, 2, 3, 4, 5, 6, 7, 9, 10.—Can. 10, 11, 12, 14, Extra Lib. I. Tit. XVII.

[807](#) Can. 17, 18, Extra Lib. I. Tit. XVII.

[808](#) Quia de talibus absque difficultate curia Romana dispensat, quia et de subdiaconibus quibusdam audivimus a domino Papa dispensatum.—Girald. Cambrens. Gemm. Eccles. Dist. II. cap. V.

[809](#) Consuetudinem introductam quod filii eorum qui vestras ecclesias tenuerunt ... patribus ... consecuti, sub reprehensibili collusionem volunt ipsas ecclesias jure successionis habere, etc.—Lucii. PP. III. Epist. 88.—Cf. Concil. Rotomag. ann. 1189 can. VI.

[810](#) Chartular. Eccles. Parisiens. No. XX. T. I. p. 35.

[811](#) D'Oudegherst, Annales de Flandre, chap. ciii.—Baluz. et Mansi T. i.—Miræi Diplom. Lib. i. c. 88.—Grandes Chroniques, T. IV. pp. 339-42.—Innocent. PP. III. Regest. Append. ad Lib. xiv.

[812](#) Innocent. PP. III. Regest. xi. 204.

[813](#) Innocent. PP. III. Regest. xii. 13.

[814](#) Girald. Cambrens. Gemm. Eccles. Dist. ii. cap. vi.

The “Gemma” was the favorite work of its author, who relates with pride the approbation specially bestowed upon it by Innocent III.

[815](#) Yet so hopeless was this well-intentioned attempt, that Giraldus is willing to let off his recalcitrant clergy with the simple restriction demanded of the laity—abstinence for three days previous to partaking of the communion. “Qui igitur in immunditiæ veluti suo volutabro volvitur adhuc et versatur, hanc saltem altari sacro et sacrificiis reverentiam sacerdos exhibeat, ut vel tribus diebus et noctibus priusquam corpus Christi consecrare præsumat mundum ... vas custodiat.”—Ibid. cap. vi.

[816](#) Hoc autem magistrum Petrum Manducatorem in audientia totius scholæ suæ quæ tot et tantis viris literatissimis referta fuit dicentem audiivi, quia nunquam hostis ille antiquus in aliquo articulo, adeo ecclesiam Dei circumvenit, sicut in voti illius emissionem.—Ibid. cap. vi.

[817](#) Epist. Henr. Card. Albanens. (Ludewig, Rei. Msctor. II. 441).

[818](#) Baluz. et Mansi III. 380.

[819](#) De filiis quoque sacerdotum, diaconorum, rusticorum, statuimus, ne cingulum militare aliquatenus assumant; et qui jam assumpserunt, per iudicem provincias a militia pellantur.—Feudor. Lib. v. Tit. x.—Conf. Conr. Urspergens. ann. 1187.

[820](#) Statut. Synod. Odon. Tullens. cap. vi. (Hartzheim III. 456).

[821](#) Can. 7 Extra Lib. v. Tit. xxxviii.

[822](#) Ne vero facilitas veniæ incentivum tribuat delinquendi: statuimus, ut qui deprehensi fuerint incontinentiæ vitio laborare, prout magis aut minus peccaverint, puniantur secundum canonicas sanctiones, quas efficacius et districtius præcipimus observari, ut quos divinus timor a malo non revocat, temporalis saltem pœna a peccato cohibeat.

Si quis igitur hac de causa suspensus, divina celebrare præsumpserit, non solum ecclesiasticis beneficiis spoliatur, verum etiam pro hac duplici culpa, perpetuo deponatur.

Prælati vero qui tales præsumpserint in suis iniquitatibus sustinere, maxime obtentu pecuniæ vel alterius commodi temporalis, pari subjaceant ultioni.

Qui autem secundum regionis suæ morem non abdicarunt copulam conjugalem, si lapsi fuerint, gravius puniantur, cum legitimo matrimonio possint uti.—Concil. Lateranens. IV. can. 14.

Ad abolendam pessimam, quæ in plerisque inolevit ecclesiis, corruptelam, firmiter prohibemus, ne canonicorum filii, maxime spurii, canonici fiant in sæcularibus ecclesiis, in quibus instituti sunt patres etc.—Ibid. can. 31.

[823](#) See his instructions to his legates, cap. xi. (Martene Ampl. Collect. VII. 267-74).

[824](#) Concil. Melfitan. ann. 1284 c. iii. (Ibid. p. 284).

[825](#) Tolle de ecclesia honorabile connubium et torum immaculatum; nonne repleas eam concubinariis, incestuosis, seminifluis, mollibus, masculorum concubitoribus et omni denique genere immundorum?—Bernardi Serm. lxvi. in Cantic. § 3.—This series is understood to have been written in 1135.

[826](#) Bernardi Serm. de Conversione cap. xx.

[827](#) Constit. Gallonis cap. (Harduin. i. T. VI. P. II. p. 1975).—Giraldus Cambrensis, a few years earlier, makes the same assertion (Gemma. Eccles. Dist. II. cap. xv.).

[828](#) Statut. Eccles. Trecorens. c. 32 (Martene Thesaur. IV. 1102). Cf. Synod. Andegavens. ann. 1312 cap. 1. (D'Achery I. 742).

[829](#) Statut. Eccles. Nemausens. Tit. VII. c. 5 (Martene Thesaur. IV. 1044).

[830](#) Innocent. PP. III. Regest. Lib. xv. Epist. 113.

[831](#) Concil. Parisiens, ann. 1212 can. 4 (Harduin. T. VI. P. II. p. 2001).

[832](#) Ibid. P. II. c. 21, P. III. c. 2 (Harduin. VI. II. 2009, 2011).

[833](#) Chron. Augustens. ann. 1260 (Freher. et Struv. I. 546-7).

[834](#) Michel, Théat. Franç. au Moyen Age, p. 23.

[835](#) Guillel. de Nangis ann. 1299.

[836](#) Cæsar. Heisterbach. Dial. Mirac. Dist. XII. c. xx. xxi.

[837](#) Chron. Casinens. Lib. III. cap. xxxix.

[838](#) Concil. Hammaburg. ann. 1406 (Hartzheim VI. 2).

[839](#) Constit. Sicular. Lib. III. Tit. 25 c. 1.

It is possible that Frederick's legislation may have attracted attention to the irregularities of the Neapolitan church, for in 1230 Gregory IX. addressed an encyclical letter to the prelates of that kingdom "præsertim super cohabitatione mulierum;" and two years later he deemed it necessary to repeat his admonitions.—Raynaldi Annal. ann. 1230 No. 20.

[840](#) Baluz. et Mansi I. 211.

[841](#) Specul. Saxon. Lib. III. art. 45.

[842](#) Richstich Landrecht, Lib. II. c. 25.

[843](#) Michelet, *Origines des Loix*, p. 68. This popular phrase gives point to the story told by Henri Estienne of a German ambassador to Rome, to whom, on his farewell audience, the pope gave a message to his master, commencing, “Tell our well-beloved son”—The honest Teuton could not contain himself at what he took to be a flagrant insult, and he interrupted the diplomatic courtesies with an angry exclamation that his noble master was not the son of a priest.—Apol. pour Herodote, Liv. I. chap. iii.

[844](#) This admirable prelate, after enjoying the episcopate for twenty-seven years, was at length deposed in 1274 by Gregory X., at the council of Lyons, in consequence of his excesses “*præsertem de deflorationibus virginum, stupris matronarum et incestibus monialium*” (Chron. Cornel. Zanfliet, ann. 1272). For some details of his excesses, see the epistle addressed to him by Gregory X. in Hardouin, Concil. T. VII. p. 665. As Gregory had been archdeacon of Liège, he was probably familiar with the subject. Henry’s promotion to the see of Liège was part of the policy of Innocent IV. in elevating William of Holland, his brother, to the imperial throne as a competitor to Frederic II. By special dispensation Henry had enjoyed the see for ten years before he was ordained to the priesthood, and after his degradation he infested the bishopric for twelve years, until his death, one of his exploits being the killing of his successor, John of Enghien.—Hist. Monast. S. Laurent. Leodiens. Lib. v. c. 69 (Martene Ampl. Collect. IV. 1105).

[845](#) Concil. German. ann. 1225 c. 5 (Hartzheim III. 521). This council was assembled to check the prevalent vices of concubinage and simony, and its elaborate provisions show how fruitless previous efforts had been.

[846](#) Gudeni Cod. Diplom. II. 36.—Not a few testaments of this kind are preserved.

[847](#) Concil. Fritzlar. ann. 1246 can. xi. (Hartzheim III. 574).

[848](#) Concil. Coloniens. ann. 1260 c. 1.

[849](#) Concil. Mogunt. ann. 1261 can. xxvii. xxxix. (Hartzheim III. 604, 607). The latter canon is very prolix and earnest, and inveighs strongly against the “*cullagium*,” or payment exacted by archdeacons and deans for permitting irregularities. The authorities apparently grew gradually tired of attempting the impossible. In 1284 the council of Passau, in a series of long and elaborate canons, contented itself with a vague threat of prosecuting priests who publicly kept concubines, and with prohibiting them from ostentatiously celebrating the marriage of their children.—Concil. Patav. ann. 1284 can. ix. xxxi. (Ibid. pp. 675, 679).

[850](#) Synod. Olomucens. ann. 1342 cap. viii. (Hartzheim IV. 338).

[851](#) Synod. Wratislav. ann. 1416 § 1 (Hartzheim V. 153).

[852](#) Concil. Melfitan. ann. 1284 c. v. (Martene Ampl. Coll. VII. 285-6).

[853](#) Giannone, *Apologia* cap. xiv.—Ancarono gave his name to one of the most celebrated colleges of law in Bologna.—Bruni Vita Gabrielis Palæoti c. 4 (Martene Ampl. Coll. VI. 1390).

[854](#) Gobelinae Personae Cosmodrom. Ætat. vi. c. 92, 93.—How utterly monastic discipline was neglected in Germany is shown by the fact that a century earlier, in 1307, a council of Cologne found it necessary to denounce the frequency with which nuns were seduced, left their convents, lived in open and public profligacy, and then returned unblushingly to their establishments, where they seem to have been received as a matter of course.—Concil. Colon. ann. 1307 c. xvii. (Hartzheim IV. 113). That this had little effect is proved by a repetition of the threats of punishment, three years later (Concil. Colon. ann. 1310 c. ix.; Hartzheim IV. 122). In 1347, John van Arckel, Bishop of Utrecht, was obliged to prohibit men from having access to the nunneries of his diocese, in order to put an end to the scandals which were apparently frequent (Hartzheim IV. 350). In 1350, the Emperor Charles IV. felt called upon to address an earnest remonstrance to the Archbishop of Mainz concerning the unclerical habits of his canons and clergy who spent the revenues of the church in jousts and tournaments, and who, in dress, arms, and mode of life, were not to be distinguished from laymen (Ibid. IV. 358). How little was effected by these efforts is manifest when, in 1360, William, Archbishop of Cologne, was obliged to refute the assertions of those monks and nuns who alleged in their defence that custom allowed them to leave their convents and contract marriage (Ibid. IV. 493).

[855](#) Henke, Append. ad Calixt. pp. 585-6.

[856](#) Trithem. Chron. Hirsaug. ann. 1128.—Platina sub Honor. II.

[857](#) Arnulphi Lexoviens. de Schismate cap. iii. (D'Achery I. 156).

[858](#) Anacleti Antipapæ Epist. x. (Martene Ampliss. Collect. I. 702).

[859](#) Matt. Paris ann. 1251.

[860](#) Matt. Paris Hist. Angl. ann. 1253.—The same author preserves a legend that when Innocent IV. heard of the death of Grosseteste, he ordered a letter to be prepared commanding Henry III. to dig up and cast out the remains of the bishop. The following night, however, Grosseteste appeared in his episcopal robes and with his crozier inflicted a severe castigation on the vengeful pope, who thereupon abandoned his unchristian purpose.—Ibid. ann. 1254.

[861](#) Portions of Petrarch's descriptions are unfit for transcription; the following, however, will give a sufficient idea of his experience. "Veritas ibi dementia est, abstinencia vero rusticitas, pudicitia probrum ingens. Denique peccandi licentia magnanimitas et libertas eximia, et quo pollutior eo clarior vita, quo plus scelerum eo plus gloriæ, bonum nomen cæno vilius, atque ultima mercium fama est.... Taceo utriusque pestis artifices, et concursantes pontificum thalamis proxonætas.... Quis, oro, enim non irascatur et rideat, illos senes pueros coma candida, togis amplissimis, adeoque lascivientibus animis ut nihil illuo falsius videatur quam quod ait Maro 'Frigidus in Venerem senior.' Tam calidi tamque præcipientes in Venerem senes sunt, tanta eos ætatis et status et virium capit oblivio, sic in libidines inardescunt, sic in omne ruunt dedecus, quasi omnis eorum gloria non in cruce Christi sit, sed in commensationibus et ebrietatibus, et quæ has sequuntur in cubilibus, impudicitia: ... atque hoc unum senectutis ultimæ lucrum putant, ea facere quæ juvenes non auderent.... Mitto stupra, raptus, incestus, adulteria qui jam pontificalis lasciviæ ludi sunt," etc. (Lib. sine Titulo Epist. xvi.).

In his vii. Eclogue Petrarch describes the cardinals individually. Their portraits, though metaphorically drawn, correspond with the general character of the above extracts. See also the Lib. sine Titulo Epistt. vii. viii. ix.

[862](#) Nic. de Clamengiis de Ruina Ecclesiæ cap. xvii.—Cf. Theod. a Niem Nemor. Union. Tract. vi. cap. xxxvi. xxxvii.

[863](#) Quod dominus Johannes papa cum uxore fratris sui et cum sanctis monialibus incestum, cum virginibus stuprum, et cum conjugatis adulterium et alia incontinentiæ crimina, propter quæ ira Dei descendit in filios diffidentiæ commisit.... Item quod dictus dominus Johannes papa fuit et sit homo peccator, notorie criminosus de homicidio, veneficio, et aliis gravibus criminibus quibus irretitus dicitur graviter diffamatus, dissipator bonorum ecclesiæ et dilapidator eorundem, notorius simoniacus, pertinax hæreticus et ecclesiam Christi notorie scandalizans. Item quod dictus Johannes Papa XXIII. sæpe et sæpius coram diversis prælatis et aliis honestis et probis viris pertinaciter, diabolo suadente, dixit, asseruit, dogmatizavit et adstruxit, vitam æternam non esse, neque aliam post hanc, etc.—Concil. Constantiens. Sess. xi.

Even supposing some of these special charges to have been manufactured for the purpose of effecting the desirable political object of getting rid of the objectionable pontiff, yet the profound conviction of his vileness, evinced by the proffering of such accusations, is almost equally damaging.

[864](#) Theod. a Niem de Vit. Joann. XXIII.

[\[865\]](#)

Leno vorax, pathicus, meretrix, delator, adulter,
Si Romam veniet, illico, cretus erit.
Pædico insignis, prædo furiosus, adulter,
Exitiumque Urbis, perniciesque Dei,
Gaude prisce Nero, superat te crimine Sixtus,
Hic scelus omne simul clauditur et vitium.

Steph. Infessuræ Diar. Rom. ann. 1484 (Eccard. Corp. Hist. II. 1941).

[\[866\]](#)

Innocuo priscos æquam est debere Quirites.
Progenie exhaustam restituit patriam.
(Sannazarii Epigram. Lib. i.)

[\[867\]](#)

Spurcities, gula, avaritia, atque ignavia deses,
Hoc, Octave, jacent quo tegeris tumulo.
(Marulli Epigram. Lib. iv.)

[868](#) Sannazaro, as was meet in a Neapolitan, hated Alexander cordially, and was never weary of assailing his wickedness. The relations between him and his daughter Lucretia were a favorite topic—

Ergo te semper cupiet Lucretia Sextus?
O fatum diri nominis! hic pater est?
(Sannazar. Epigr. Lib. II.)

Humana jura, nec minus cœlestia,
Ipsosque sustulit Deos:
Ut silicet liceret (heu scelus) patri
Natae sinum permingere,
Nec execrandis abstinere nuptiis
Timore sublato simul.
(Ibid.)

The well-known epigram of Pontanus tersely describes another of his vices—

Vendit Alexander sacramenta, altaria, Christum.
Emerat ille prius, vendere jure potest.

[869](#) In comparing the labors of the pope with those of St. Paul, St. Bernard exclaims, “Numquid ad eum de toto orbe confluebant ambitiosi, avari, simoniaci, sacrilegi, concubinari, incestuosi, et quæque istiusmodi monstra hominum, ut ipsius apostolica auctoritate vel obtinerent ecclesiasticos honores, vel retinerent?”—De Consideratione Lib. I. c. iv.

[870](#) According to St. Bonaventura, this scandalous doctrine was frequently taught.—Libell. Apologet. Quæst. I.

[871](#) Dial Mirac. Dist. XII. c. xix.

[872](#) Hali Meidenhad. (Early English Text Society, 1866.) The author at times trenches closely on Manichæism. It is true that he revives, with some variation, the ancient computation of the relative merits of the various conditions of life—“For wedlock has its fruit thirtyfold in heaven, widowhood sixtyfold; maidenhood with a hundredfold overpasses both” (p. 22); but while he thus faintly disavows an intention to revile marriage, he again and again alludes to it as wicked and impure *per se*. “Well were it for them, were they on the day of their bridal borne to be buried.... If thou askest why God created such a thing to be, I answer thee: God created it never such; but Adam and Eve turned it to be such by their sin, and marred our nature” (p. 8).

Virginity he asserts to be the highest attribute of humanity, and in heaven virgins are the equals of angels and the superiors of saints.—“Maidenhood is a grace granted thee from heaven.... ’Tis a virtue above all virtues, and to Christ the most acceptable of all” (p. 10). “To sing that sweet song and that heavenly music which no saints may sing, but maidens only in heaven.... But the maiden’s song is altogether unlike these, being common to them with angels. Music beyond all music in heaven. In their circle is God himself; and his dear mother, the precious maiden, is hidden in that blessed company of gleaming maidens, nor may any but they dance and sing” (pp. 18-20).

As for matrimony and maternity, nothing can redeem them in the eyes of the ascetic.—“All other sins are nothing but sins, but this is a sin and besides

denaturalizes thee and dishonoreth thy body. It soileth thy soul and maketh it guilty before God, and, moreover, defileth thy flesh.... Now what joy hath the mother? She hath from the misshapen child sad care and shame, both, and for the thriving one fear, till she lose it for good, though it would never have been in being for the love of God, nor for the hope of heaven, nor for the dread of hell" (p. 34).—But I dare not follow him in his more nauseous flights of imagination.

This is by no means a solitary example. The same pious obscenity is to be found, for instance, in some of Abelard's theological speculations addressed to Heloise and her nuns, as in his solution of her 42nd problem.

[873](#) Ayenbite of Inwyt, p. 328 (Early English Text Soc. 1866). This is a translation made in 1340 of "Le Somme des Vices et des Vertues," written in 1279 for Philippe-le-Hardi, by Laurentius Gallus. The author is not a whit behind his brother ascetics in extolling the praises of virginity.—"Vor maydenhod is a tresor of zuo grat worth thet hit ne may by be nonen y-zet a pris ... vor maidenhod aboue alle othre states berth thet gretteste frut" (Ibid. p. 233-4). The legend would seem to be suggested by a somewhat similar story narrated by Gregory the Great (Dialog. Lib. III. cap. 7).

[874](#) Theophili Alexandrin. Commonitor. can. v. (Harduin. I. 1198).

[875](#) Innocent. III. Regest. Lib. XVI. Epist. 118.

The curiously artificial standard of morals thus created may be estimated from the case of the archdeacon of Lisieux, who refused to accept an election to the see of that place on account of his inability to maintain the purity requisite for the episcopal office. Vanquished at length by the importunity of his friends, he was consecrated, and resolutely undertook to abandon his evil habits. The unaccustomed privation brought on a fearful disease, but though assured that his life would prove a sacrifice if he persisted in his resolution, he resisted all entreaties, and refused to purchase existence by sullyng his position. He thus fell a martyr to a tenderness of conscience which had not prevented him from indulgence while filling the responsible position of archdeacon.—Girald. Cambrens. Gemm. Eccles. Dist. II. cap. xi.

[876](#) Graviore autem sunt animadversione plectendi, qui proprias filias spirituales, quas baptizaverint vel semel ad confessionem admiserint, violaverint.—Constit. Synod. Gilb. Episc. Cirstrens. ann. 1289 (Wilkins, II. 169). Cf. Synod. Cenomanens. ann. 1248 (Martene Ampl. Coll. VII. 1375). Concil. Remens. ann. 1408 cap. 21 (Ibid. VII. 418). Concil. Salisburg. XXX. can. de Confess. (Dalham, Concil. Salisburg. p. 155.)

Abelard (Sermo XXIX.) in a passage which, though addressed to the virgins of the Paraclete, is hardly quotable, asserts the frequent corruption of nuns by their spiritual directors. See also St. Bonaventura, Tractatus quare Fr. Minores prædicent, (Romæ 1773, p. 431) and Gerson, who retorts the charge on the friars, in his Tract. de Reform. Eccles. in Concil. Constant. cap. x. (Von der Hardt, T. I. P. v. p. 93). Cf. Marsilii Patav. Defens. Pacis P. II. cap. xvii.—Synod. Andegavens. ann. 1262 cap. x.; ann. 1291 cap. 1; ann. 1312 cap. 1 (D'Achery I. 727, 735, 742). Similar allusions are unfortunately too frequent, and, as we shall see hereafter, are to be found until a recent period.

[877](#) In 1398, Cardinal Peter d'Ailly, Bishop of Cambrai, speaks of the manner in which his clergy lived with their concubines as man and wife, and brought up their children without concealment in their houses—"tenentes secum in suis domibus suas concubinas, et mulieres publice suspectas, in scandalum plurimorum cohabitant simul copulati, eisdem domo, mensa, et lecto, residendo, acsi essent vir et uxor matrimonialiter conjuncti: proles super terram gradientes ex hujusmodi suis concubinis susceptas una cum eisdem in suis domibus publice secum habendo et tenendo"—(Hartzheim VI. 709).

[878](#) Prout testatur nimia de plerisque regionibus clamans Christiani populi corruptela, quæ cum deberet ex sacerdotalis antidoti curari medelis, invalescit pro dolor! ex malorum contagione quod procedit a clero.—Chron. Augustens. ann. 1260.

[879](#) According to Thomas of Cantinpré, this occurrence took place at Paris, in a synod held in 1248, and Satan explained his candor by saying that he was compelled to it by God.—(Hartzheim IX. 663.)

[880](#) Inter alia dixit quod prælati faciebant ruere totum mundum.... Unde monuit eos quod ipsi se corrigerent ... alioquin dixit se dure acturum cum ipsis super reformatione morum.—Harduin. VII. 692.

[881](#) Clerici et presbyteri ... maxime per fetidum peccatum luxuriæ seipsos et alios pertrahunt ad infernum.—Concil. Parisiens. ann. 1323 can. iii. (Martene Ampl. Coll. VII. 1289).

[882](#) Petri de Herentals Vit. Gregor. XI. ann. 1375 (*ap.* Hecker, Epidemics of the Middle Ages, London, 1845, p. 153).

[883](#) "Swiche preestes be the sones of Hely ... hem thinketh that they be free and have no juge, no more than hath a free boll, that taketh which cow that him liketh in the toun. So faren they by women; for right as on free boll is ynough for all a toun, right so is a wicked preest corruption ynough for all a parish, or for all a countree."

[884](#) Li Gieus de Robin et de Marion (Michel, Théâtre Français au Moyen Age, p. 129).

[885](#) Wright's Edition, p. 491, l. 1359.

[886](#) Monumenta Franciscana, pp. 602-4.

This testimony concerning the Franciscans is not confined to heretics and laymen. Early in the fifteenth century, a council of Magdeburg took occasion to reprove them for the dissolute and unclerical mode of life of which they offered a conspicuous example. It appears that they dignified with the name of "Marthas" the female companions who, in primitive ages, were known as "agapetæ," and who had latterly acquired among the secular clergy the title of "focariæ"—"et in domibus suis frequenter soli cum mulieribus quas ipsorum *Martas* (ut eorum verbis utamur) habitare non verentur."—Concil. Magdeburg, ann. 1403 Rubr. de Pœnis. (Hartzheim V. 717.)

On the other hand, in the "Creed of Piers Ploughman," a Franciscan attacks the Carmelites—

They been but jugulers,
And japers of kynde;
Lorels and lechures,
And lemans holden.

And that wicked folk
Wymmen betraieþ,
And begileth hem her good
With glaverynge wordes,
And therwith holden her hous
In harlotes warkes.
Wright's Edition, pp. 453-4.

[887](#) This was written in answer to an attack on celibacy by Guillaume Saignet, entitled "Lamentatio ob cœlibatu sacerdotum, sive Dialogus Nicænæ Constitutionis et Naturæ ea di re conquerentis."—Zaccaria, *Storia Polemica del Celibato Sacro*, Præf. p. xiv.

[888](#) Vel inexperti forte erant hi doctores quam generale et quam radicum sit hoc malum, et quod deteriora flagitia circa uxores aut filias parochianorum et abominationes horrendæ in aliis provenerint apud multas patrias, rebus stantibus ut stant, si quærentur per tales censuras arceri. Scandalum certe magnum est apud parochianos curati ad concubinam ingressus, sed longe deterius si erga parochianas suas non servaverit castitatem.—*De Vita Spirit. Animæ Lect. iv. Corol. xiv. prop. 3.*

[889](#) De Statu. Relig. Lib. i. (Giannone Apolog. cap. 14).

[890](#) There is a tradition that the Abbey of Montariol lost its sovereignty over the inhabitants of the village of that name in consequence of a revolt caused by the monks exacting this feudal right in all its odious cynicism, in place of receiving a payment in commutation as was frequently done. A lively controversy has arisen over the exactness of this tradition, and the Abbé Marcellin, in his edition of Le Bret's *Histoire de Montauban* seems to me to have successfully proved its falsity. He admits, however, that in his researches on the subject he has found one case in which an ecclesiastic undertook to enforce his rights to the letter; and the President Boyer, writing in the sixteenth century (*Decisiones*, No. 17 *Decis.* 297) asserts that he had seen the proceedings of a lawsuit in which "Rector seu curatus parochialis prætendebat ex consuetudine primam habere sponsæ cognitionem" (*Eschbach, Introduction a l'Étude du Droit*, § 174). In some remote portions of France the tribute was still exacted "en nature" by temporal seigneurs as late as the sixteenth century, as appears from documents printed by MM. Mazure et Hatoulet (*Fors de Béarn*, p. 172). Velly (*Hist. de France*, Paris, 1770, T. III. p. 325) quotes from Laurière a document of 1507 which, in recounting the privileges of the barony of Saint-Martin states that the Comte d'Eu has the "droit de prélibation" there, and Boutaric (*Droits Seigneuriaux*, Toulouse, 1775, p. 650) remarks that he has met

nobles who pretended to possess the right, but that it had been abolished by the courts. In 1854 M. Bouthors, in his “*Coutumes locales du bailliage d’Amiens*,” chanced to allude to a custom by which the episcopal officers until 1607 exacted a tribute from newly married couples for permission to pass together the first three nights after the wedding—a custom growing out of the old *droit de marquette*. This aroused the ire of the faithful, and M. Louis Veuillot wrote a treatise in which he emphatically denied that such a right had ever existed, and a lively controversy arose on the subject. M. Lagréze (*Hist. du Droit dans les Pyrénées*, Paris, 1867, p. 390) has examined the matter thoroughly and the proof which he accumulates of the existence of the right is indisputable, though he denies that it was ever claimed by ecclesiastics.

[891](#) See the *Taxæ Sacræ Pœnitentiariæ*, a tariff of prices for absolution in the Roman curia for all infractions of human and divine law, of which more hereafter.

Heretically inclined reformers did not hesitate to accuse the clergy of thus speculating in the power of the keys and the sins of the people—

The power of the apostles
Thei pasen in speche,
For to sellen the synnes
For selver other mede.
And purliche a *pœna*,
The puple asoyleth,
And a *culpa* also,
That they may katchen
Money other money-worth,
And mede to fonge;
And ben at lone and at bode,
As burgeises useth.
Thus they serven Sathanas,
And soules bygyleth,
Marchaunes of malisones,
Mansede wrecches.
Creed of Piers Ploughman, l. 1417-32.

[892](#) The curious confusion of vice with religion, fostered by mediæval sacerdotalism, is well illustrated by the complaint which Erasmus puts in the mouth of the Virgin—“*Et nonnumquam ea petunt a virgine quæ verecundus juvenis vix auderet petere a lena, quæque ne pudet literis committere*” (*Erasmi Colloq. Peregrinatio Religionis*). The existence of such inconsistencies is one of the unfathomable mysteries of human intelligence.

[893](#) Anon. *Cartusiens. de Religionum Orig.* cap. 17-19 (*Martene Ampl. Coll.* VI. 40-46).

[894](#) See Lecky’s *History of Rationalism*.

[895](#) *Videlicet castitatem, obedientiam ... atque vivere sine proprio.*—Statut. Ord. S. Johan. Hierosol. Tit. i. § 1 (*Lünig Cod. Ital. Diplom.* T. II. p. 1743).

[896](#) Thus Cap. LV.: “Hoc enim injustum consideramus ut cum fratribus Deo castitatem promittentibus fratres hujusmodi in una eademque domo maneant.” Cap. LVI. and LXXII., by the latter of which even the kiss of a mother was denied them, render evident the extreme asceticism which was proposed by the founders of the order (Harduin. T. VI. P. II. pp. 1142, 1146).

At a subsequent period we learn that the Templar’s oath of initiation promised “obedientiam, castitatem, vivere sine proprio, et succurrere terræ sanctæ pro posse suo.” It was, moreover, enjoined upon them not to enter a house in which a woman lay in child-bed, not to be present at the celebration of weddings or the purification of women, nor to receive any service from a woman, even water for washing the hands.—See the proceedings against them in 1309, in Wilkins, II. 331 et seq.

[897](#) Rymer, Fœdera, I. 55.

[898](#) Wilkins II. 331-2.—Raynouard, Condamnation des Templiers, p. 83.

[899](#) Alexandri III. Epist. Append. III. No. 20 (Harduin. VI. P. II. p. 1557).

[900](#) Raynald. Annal. ann. 1210 No. 6, 7; ann. 1223 No. 54; ann. 1496 No. 33.

[901](#) Concil Vallis-oletan. ann. 1322 can vi. (Aguirre V. 243).

[902](#) Concil. Dertusan. ann. 1429 can. iii. (Harduin. VIII. 1076).

[903](#) Raynaldi Annal. ann. 1441 No. 20.—The Order of Calatrava was under the strictest of the rules, the Cistercian. (Giustiniani, Ordini Militari s. v.)

[904](#) Reg. Ord. Mil. Avisii a B. Joanne Cirita edita (Migne’s Patrologia, T. 188, p. 1669).

[905](#) Alexander’s Bull declares that “Milites dictarum militiarum pro majori parte, continentiae et castitatis voto, qui in eorum professione emittunt, contempto, concubinas etiam plures, et in eorum ac praeceptoriarum et prioratum dictarum militiarum propriis domibus et locis, non sine magno religionis opprobrio, publice tenere et eis cohabitare, et etiam adulteria cum aliis mulieribus conjugatis committere non verentur: ex quo ab eorundem regnorum incolis et habitatoribus maximo odio habentur, dissensiones et inimicitiae oriuntur, diversa scandala quotidie concitantur etc.”—Raynaldi Annal. ann. 1496 No. 33.

[906](#) Osorii de Reb. Emmanuelis R. Lusitan. Lib. I. (Edit. Colon. 1574, p. 12a.)

[907](#) Patrologia, T. 188, p. 1674.

[908](#) Statut. Ord. S. Johan. Hierosol. Tit. XVIII. § 50.

[909](#) Ibid. Tit. XVIII. § 51.

[910](#) See the supplication of Rodolph of Hapsburg to the Pope for assistance to the order.—Cod. Epist. Rodolphi I. No. xcix. (Lipsiæ, 1806).

[911](#) Anon. Cartus. de Relig. Orig. cap. XXVIII. (Martene Ampliss. Coll. VII. 62).

[912](#) Communis opinio Catharorum est quod matrimonium carnale fuit semper mortale peccatum, et quod non punietur quis gravius in futuro propter adulterium vel incestum quam propter legitimum conjugium, nec etiam inter eos propter hoc aliquis gravius puniretur.—Summa F. Renieri (Martene Thesaur. V. 1761).

This Regnier describes himself as a heresiarch previous to his conversion, and his summary of the creed of his former associates may be regarded as correct in the main, though perhaps somewhat heightened in repulsiveness. For further details see *ante*, p. 208.

[913](#) Bernardi Serm. lxvi. in Cantica §§ 9, 11.

[914](#) Bernardi Serm. lxv. in Cantica, §§ 4, 5.—“Cum femina semper esse et non cognoscere feminam, nonne plus est quam mortuum suscitare? Quod minus est non potes; et quod majus est vis credam tibi? Quotidie latus tuum ad latus juvenulæ est in mensa; lectus tuus ad lectum ejus in camera, oculi tui ad illius oculos in colloquio, manus tuæ ad manus ipsius in opere: et continens vis putari? Esto ut sis; sed ego suspicione non careo.”

The morality of the age had evidently not impressed the Saint with the conviction of human power to resist temptation.

[915](#) Pet. Cantor. Verb. Abbreviat. cap. lxxviii.

[916](#) Bishop Gerard, of Cambrai, confesses this in his refutation of the Artesian Manichæans in 1025—“De quibus nos responsuros quodam discretionis gubernaculo nostri sermonis carinam subire oportet, ne quasi inter duos scopulos naufragium incurrentes, occasionem demus in alterutrum, scilicet aut omnes indiscrete a conjugiiis exterrendo, aut omnes indiscrete ad connubia commonendo.”—Concil. Atrebatens. ann. 1025 cap. x. (Hartzheim III. 89).

When St. Bernard, in his fiery denunciation of the Manichæan errors, exclaimed, “non advertant qualiter omni immunditiæ laxat habenas qui nuptias damnat” (In Cantica Serm. lxvi. § 3), he did not pause to reflect how severe a sentence he was passing on the saints of the fifth century who, as we have seen, would only admit marriage to be a pardonable offence.

[917](#) Disputat. inter Cathol. et Paterin. c. ii. (Martene Thesaur. V. 1712-13).

It is somewhat singular that Manichæism should have been attributed to a sect of heretics in Bosnia who styled themselves Christians, and who were brought back to the fold in 1203 by a legate of Innocent III. It would appear that, so far from entertaining Manichæan doctrines, neglect of ecclesiastical celibacy was actually one of their erroneous practices, for in their pledge of reformation they promise that separation of man and wife shall thenceforth be enforced “neque de cætero recipiemus aliquem vel aliquam conjugatum, nisi mutuo consensu, continentia promissa, ambo pariter convertantur.”—Batthyani, II. 293.

[918](#) S. Petri Venerab. contra Petrobrusianos.—S. Bernardi Epist. 241.—Ejusd. Vit. Prim. Lib. vi. Part iii. c. 10.—Guill. de Podio-Laurent. c. i.—Alberic. Trium-Font. Chron. ann. 1148.

[919](#) Hugon. Rothomag. contra Hæret. Lib. III. cap. vi. This is by no means an unusual specimen of the inconsequential character of mediæval polemics. Archbishop Hugh was a man of mark among his contemporaries, both as a theologian and as a statesman. It was he who, in 1139, at the council of Winchester, saved King Stephen from excommunication by the English bishops. (Willelmi Malmesb. Hist. Novell. Lib. II. § 26.) For a somewhat similar specimen of fanciful theology, the reader may consult the exposition of the esoteric meaning of the plagues of Egypt by St. Martin of Leon, a writer of the twelfth century.—S. Martin. Legionens. Serm. xv.

[920](#) Epist. ad Lucium PP. Epist. 4. (Migne's Patrologia, T. CLXXIX. p. 957.)—Cf. Martene Ampliss. Collect. I. 177.

[921](#) Guillielm. de Newburgh, Lib. I. cap. 19.—Ottonis Frising. de Gest. Frid. I. Lib. I. cap. liv., lv.—Sigeberti Chron. Continuat. Gemblac. ann. 1146.—Ejusdem Continuat. Præmonstrat. ann. 1148.—Roberti de Monte Chron. ann. 1148.—The detailed account given by William of Newburgh he professes to have gathered from some of Éon's followers performing penitential pilgrimages after the death of the heresiarch.

[922](#) Conrad. Urspergens. ann. 1212.—“Hoc quoque probrosum in eis videbatur, quod viri et mulieres simul ambulabant in via, et plerumque simul manebant in una domo, ut de eis diceretur, quod quandoque simul in lectulis accubabant.” The follies of the early Christians were doubtless imitated by the new sectaries. As early as 1197 we find them denounced as heretics, under the various names of Waldenses, Poor Men of Lyons, and Sabatati, and condemned to the stake by the council of Girona, in Aragon.—Aguirre V. 103.

[923](#) La Nobla Leyczon, 408-13.—There has been considerable discussion as to the date of this work. It appears to me to bear the mark of more than one period, or, at least, of successive recensions. Internal evidence shows the beginning to have been written about the year 1100, while the later portion, commencing about l. 345, seems to have been composed subsequently to the persecutions of the early part of the 13th century.

[924](#) Bernardi Fontis Calidi Lib. contra Waldenses.—Alani de Insulis contra Hæret. Lib. II.

[925](#) La Nobla Leyczon, 242-3.

[926](#) Ibid., 88.

[927](#) Camerarii Hist. de Fratrum Orthodox. Ecclesiis pp. 104-7, 116-7.

[928](#) Pluquet, Dictionnaire des Hérésies, art. Vaudois.

[929](#) The heresy of one age becomes the orthodoxy of another. The views of St. Francis, when promulgated in the fifth century by the Timotheists, were stigmatized as heretical.—v. Harduin. Concil. I. 525.

[930](#) Concil. Mogunt. ann. 1261 can. xlviii. (Hartzheim III. 612, 615).

The decline of the order from the asceticism of its founder afforded a fair mark for satire—

Seyn that they folwen
Fully Fraunceyses rewle,
That in cotinge of his cope
Is more cloth y-folden
Than was in Fraunceis froc
When he hem first made.
And yet under that cope
A cote hathe he furred
With foyns or with fichewes
Other fyn bevere,
And that is cutted to the kne,
And queyntly y-botened,
Lest any spiritual man
Aspie that gyle.
Fraunceys bad his brethern
Bar-fot to wenden;
Now han they buckled shone,
For blenyng of her heles,
And hosen in hard weder
Y-hamled by the ancle,
And spicerie sprad in her purs
To parten where hem luste.
Creed of Piers Ploughman l. 579-600.

[931](#) Thus, a council held at Cologne in 1306, in denouncing the mendicancy of the Begghards, quotes Gen. III. 18: "In sudore vultus tui vesceris pane tuo," and proceeds: "Quod ad fortes et sui compotes moraliter intelligitur esse dictum: et tales in ocio victum vendicantes, eleemosynas rapiunt, quæ infirmis et debilibus fuerant pauperibus ministrandæ." And in objecting to their views of celibacy, "Ajunt etiam: Nisi mulier virginitatem in matrimonio deperditam doleat et dolendo deploret, salvari non potest: quasi matrimonium sit peccatum, cum tamen ipsum ante peccatum in loco sancto a sanctorum sanctissimo fuerit institutum: quæ virginitas in fœtum sobolis compensatur, per quam humana

natura stabilitate perdurat,” which contrasts strangely with the teachings quoted above from “Hali Meidenhad.” Great stress, moreover, is laid upon the indissolubility of the marriage vow and the wickedness of separating husband and wife:—“Quomodo spiritu Dei agantur qui contra spiritum Dei agunt, prohibentis virum ab uxore, et e converso sine causa dimitti?”—Concil. Coloniens. ann. 1306 cap. i., ii. (Hartzheim IV. 100-101). The good fathers of the council were discreetly blind to the antagonism of their teachings to the received doctrines and practices of the church.

[932](#) A collection of documents illustrating the history of this singular and powerful sect will be found in Baluze and Mansi III. 206 et seq.

How persistent and profound was the conviction which created the heresy is shown by its prolonged existence. Even as late as 1421 Martin V. found it necessary to issue a Bull denouncing it (Raynaldi Annal. ann. 1421 No. 4); and in Germany the council of Wurzburg in 1446, revived the old denunciations against the Begghards and Beguines (Hartzheim V. 336).

[933](#) Their customary salutation and password was an invocation of the fallen angel—“Salutet te injuriam passus.”—“May the wronged one preserve thee!”—Trithem. Chron. Hirsaug. ann. 1315.

[934](#) Trithem. loc. cit.—Raynaldi Annal. ann. 1318 No. 44.—Hartzheim Concil. German. IV. 630.

[935](#) Krasinski, Reformation in Poland, I. 55-56.

[936](#) Inter omnia monstra quæ unquam intraverunt ecclesiam, monstrum horum fratrum est seductivius, infundabilius, et a veritate ac a charitate distantius.—Univ. Oxon. Litt. de Error. Wicklif. Art. 103 (Wilkins III. 344).

[937](#) Trialogi Lib. iv. cap. 15.

[938](#) A Wickliffite tract (“De Officio Pastoralis,” published by Prof. Lechler, Leipzig, 1863) takes strong ground on this point. Speaking of unchaste priests, it says (P. I. cap. viii. pp. 16-17), “Talis sic notorie sustentans curatum dat imprudenter elemosinam contra Christum ... periculosum peccatum est crimini consentire; sed sic faciunt qui taliter curato in temporalibus subministrant.” And again (P. I. cap. xvii.), “Subditi enim non debent audire missam talium sacerdotum, et per consequens non debent dare sibi oblaciones vel decimas, ne videantur consencientes crimini sic notorio in curatis.”

[939](#) Si Deus est, domini temporales possunt legitime ac meritorie auferre bona fortunæ ab ecclesia delinquente.—Conclus. Magist. Johan. Wycliff. Art. vi. (Wilkins III. 123).

Licet regibus auferre temporalia a viris ecclesiasticis ipsis abutentibus habitualiter. Ibid. Art. xvii.

So in the proceedings conducted by Courtenay, Archbishop of Canterbury, against Wickliffe in 1382, among the articles presented as extracted from his writings were—

Art. 4. Quod si episcopus vel sacerdos existat in peccato mortali, non ordinat, consecrat nec baptizat.

Art. 16. Quod nullus est dominus civilis, nullus est episcopus, nullus est prælatus dum est in peccato mortali (Wilkins III. 157).

Even “verbum otiosum” and “ira quantumlibet levis” were denounced by him as mortal sins according to the University of Oxford.—Litt. de Error. Art. 210, 211 (Wilkins III. 347).

[940](#) Arnold’s Select English Works of John Wyclif, Vol. II. p. v.—Vol. I. p. 364.

[941](#) “God ordeyned prestis in the olde lawe to have wyves, and nevere forbode it in the newe lawe, neither bi Crist ne bi his apostlis, but rathere aprovede it. But now, bi ypocrisie of fendis and fals men, manye binden hem to presthod and chastite, and forsaken wifis bi Goddis lawe, and schenden maydenes and wifis and fallen foulest of alle.”—Of Weddid Men and Wifis, cap. i. (Arnold’s Wyclif, III. 190; also in Vaughan’s Tracts of John de Wyckliffe p. 58).—See also The Seven Deadly Sins, cap. xxx. (Arnold, Vol. III. p. 163).

In the tract “De Officio Pastorale,” alluded to above, there is a similar passage —“conjugium secundum legem Christi eis licitum odiunt ut venenum, et seculare dominium eis a Christo prohibitum nimis avide amplexantur” (P. II. cap. xi. pp. 50-51).

It is to be borne in mind that at this period no one assumed that clerical celibacy had been ordained of Christ or the Apostles.

[942](#) Trialogi Lib. III. c. 22, 23; Lib. IV. 16 (Ed. Lechler, Oxford 1869).—Cf. Apology for Lollard Doctrines, p. 38 (Ed. Camden Soc.).

[943](#) Wilkins III. 229,—Trialogi Lib. IV. c. 20.

[944](#) Conclusiones Lollardorum (Wilkins III. 221-3).

[945](#) Wilkins III. 248.

[946](#) In 1426, ten years after the execution of Lord Cobham, a Franciscan named Thomas Richmond was brought before the council of York for publicly preaching the high Wickliffite doctrine “Sacerdos in peccato mortali lapsus, non est sacerdos. Item quod ecclesia nolente vel non puniente fornicarios, licitum est sæcularibus eosdem pœna carceris castigare, et ad hoc astringuntur vinculo charitatis” (Wilkins III. 488). This practical application of the Hildebrandine principle did not suit the church of the fifteenth century. It was pronounced heretical, and Friar Thomas was forced to recant.

Equally offensive to the memory of Gregory was the decision of the Sorbonne in 1486, condemning as heretical the propositions of the puritan Bishop of Meaux—“3. Un prêtre fornicateur ne doit pas dire Dominus vobiscum ni reciter l’office en aucun lieu sacré. Ce qui est faux et suspect d’heresie.”—“4. Les sacremens administrez ou l’office dit par un tel prêtre ne valent pas mieux que les cris des chiens. Proposition fausse et erronée dans la premiere partie,

hérétique scandaleuse et offensant les oreilles pieuses dans la seconde.”—Fleury, Hist. Eccles. Liv. CXVI. No. 39.

[947](#) When, after the fearful disaster of Taas, the council of Bâle, in 1432, commenced the conferences which resulted in the nominal reconciliation of the Hussites, the fathers of the council were much scandalized at hearing the Bohemian deputies reverently quote Wickliffe as the Evangelical Doctor. In fact, Peter Payne, his disciple, who did so much to promulgate his doctrines in Bohemia, was one of the disputants (Hartzheim V. 762-4). Even as early as 1403 the errors of Wickliffe were formally condemned by the University of Prague, on presentation by the Ordinary of the diocese, showing that they were already spreading and attracting attention (Höfler, Concil. Pragensia, p. 43.—Prag, 1862).

[948](#) Artic. Damnat. Joannis Husz, No. viii. x. xi. xii. xiii. xxii. xxx. (Concil. Constantiens. Sess. xv.)—On his examination Huss declared that these articles were exaggerated. See the proceedings in Von der Hardt, T. IV. pp. 309-11. But on the next day he defended a proposition which was virtually identical (Ibid. p. 321).

[949](#) Poggii Florent. Descript. Hieron. Prag. (Von der Hardt, T. III. p. 69).

[950](#) Statut. Synod. ann. 1405; 1406 No. 1; 1407 No. 3 (Höfler Concil. Pragens. pp. 50, 54, 69).

[951](#) Pluquet, Diet. des Hérésies, s. v. Huss.—Synod. Olomucens. ann. 1413 can. 1. “asserentes etiam ... quod bona clericorum male viventium possunt rapere et eos spoliare sine pœna excommunicationis ... Ex eadem radice et hæretica pravitate dicunt alii, quod sacerdos in mortali existens peccato non possit conficere corpus Christi” (Hartzheim V. 39, 40).

[952](#) Conciliab. Pragens. ann. 1420 can. xii., xiii.—At this time the Hussites had full sway in Bohemia; the council was held by Conrad, Archbishop of Prague, who had adopted their faith, and its canons were intended for the internal regulation of their own church (Hartzheim V. 198). In the long conferences, extending from 1431 to 1438, which resulted in their reunion with the Catholic church, there is no allusion to the subject of celibacy. The four points on which they insisted were, 1st, the communion in both elements; 2d, the reformation of morals by abrogating ecclesiastical immunity; 3d, free preaching of the Scripture; and 4th, the secularization of church property (Ibid. 760-73). How little, in fact, they differed in doctrinal points from Rome is seen in the confession of faith agreed upon at Prague in 1432 (Johan, de Ragus. de Reduct. Bohem. ap. Monument. Concil. General. Sæc. xv. pp. 182 sq.).

This did not, however, save them from the customary accusations of immorality. Thus, a contemporary describes the indulgence of indiscriminate intercourse as one of the rules of the sect (Joann. Fistenportii Chron. ann. 1419. —Hahn. Collect. Monument. T. I. p. 403), and, in 1431, Conrad, Archbishop of Mainz, in convoking a council to take action against them, says of the sect “exterminavit clerum et omnem cœlibatum commercio nephando stupravit.”—Gudeni Cod. Diplom. IV. 185.

[953](#) Epist. Procopii Art. viii. (Martene Ampl. Coll. VIII. 25).

[954](#) Petit. Cæsaris No. 12 (Le Plat, Monument. Concil. Trident. V. 348).

[955](#) Conciliab. Pragense. ann. 1420 can. viii.

[956](#) Camerarii Hist. Narrat. de Fratrum Orthodox. Ecclesiis in Bohemia, etc. pp. 100, 109-10, 114, 121, 128.

[957](#) Consensus in Fide inter Ecclesias Evangelicas, etc. Haidelbergæ, 1605.

[958](#) The spirit of the sectaries of Schmidt is shown by one of their doctrines—"Propter sacerdotum nequitiam, licentiavit Deus et abjecit sacerdotium evangelicum," and by their argument for abolishing masses for the dead "nihil prosint defunctis, sed sint solatia vivorum et repleant marsupia clericorum."—Gobelin. Person. Cosmodrom. Ætat. vi. cap. xciii.—Cf. Theod. Vrie, Hist. Concil. Constant. Lib. iii. Dist. viii.

[959](#) See the proceedings in Baluze and Mansi, I. 288-93. As usual, the Men of Intelligence were accused of indulging in promiscuous intercourse.

[960](#) Even soon after Savonarola's martyrdom, Julius II. refused to listen to those who desired a condemnation of his memory. Leo X. honored him by celebrating the Epiphany of 1515 in his convent of San Marco. Julius III. declared that he would deem heretical any one who should attack him. Paul IV. assembled a congregation for the purpose of examining and deciding upon his works, and after six months' labor they reported that his writings were unexceptionable, though a portion which reflected too vigorously on the papal court were declared to be unfitted for general perusal.—Perrens, Jérôme Savonarole, Paris 1856, pp. 296-7.

[961](#) See Baluze et Mansi I. 584-5 for the letters to the Emperor of Germany and King and Queen of Spain. Perrens (op. cit. p. 375) also gives the one addressed to the King of France, while those to the Kings of England and Hungary have apparently been lost.

[962](#) Taceo de fornicationibus et adulteriis, a quibus qui alieni sunt probro cæteris ac ludibrio esse solent, spadonesque aut sodomitæ appellantur; denique laici usque adeo persuasum habent nullos cœlibes esse, ut in plerisque parochiis non aliter velint presbyterum tolerare nisi concubinam habeat, quo vel sic suis sit consultum uxoribus, quæ nec sic quidem usquequaque sunt extra periculum.—Nic. de Clemangis de Præsul. Simoniac. (Bayle, Dict. Hist. s. v. Hall).

[963](#) Nic. de Clamengiis Disput. super Mater. Concil. General.

[964](#) Nic. de Clamengiis de Ruina Ecclesiæ cap. xxii., xxxvi.—Conf. Theobaldi Conquest. (Von der Hardt T. I. P. xix. p. 909).

[965](#) P. de Alliaco Canones Reformat, cap. iv. (Von der Hardt T. I. P. vi. p. 425).

[966](#) Gersoni Declarat, defect, viror. ecclesiast. lxx., lxxvi.

[967](#) Dicimus quod de duobus malis minus est incontinentes tolerare sacerdotes quam nullos habere.—Gersoni Dial. Sophiæ et Naturæ Act. iv.

[968](#) Ejusd. Sermo de Vita Clericorum.

[969](#) Theod. a Niem Nemoris Unionis Tract. V. cap. xxxv.

[970](#) Theod. Vrie Hist. Concil. Constant. Lib. II., III. (Von der Hardt T. I.).

[971](#) Nic. de Clamengiis, Disput. sup. Mat. Conc. General. This work was written in 1416, after the council had been in session for nearly two years.

[972](#) Theobaldi Conquestio (Von der Hardt T. I. P. XIX. p. 904).

[973](#) Item, fistulatores, tubicenæ, joculatores, 516; item, meretrices, virgines publicæ, 718.—Laur. Byzynii Diar. Bell. Hussit. A Catholic contemporary, however, reduces the number of courtezans to 450 and that of jugglers and minstrels to 320 (Joann. Fistenportii Chron. ann. 1415.—Hahn. Collect. Monument. I. 401).

[974](#) Bernhardi Baptisati Sermo (Von der Hardt T. I. P. XVIII. pp. 884-5).

[975](#) Concil. Constant. Sess. XLIII. can. de Vita et Honestate Clericorum.

[976](#) De Ecclesiæ Reformat. Protocoll. cap. xxxiii. (Von der Hardt T. I. P. x. pp. 635-6).

[977](#) Reformatorii Constant. Decretal. Lib. I. Tit. v. (Ibid. p. 679).

[978](#) Ibid. Lib. III. Tit. x. cap. 20 (p. 722).

[979](#) For instance, as regards the religious houses—"In nonnullis quoque monasteriis ... norma disciplinæ respuitur, cultus divinus negligitur, personæ quoque hujusmodi, vitæ ac morum honestate prostrata, lubricitati, incontinentiæ, et aliis variis carnalis concupiscentiæ voluptatibus et viciis non sine gravi divinæ majestatis offensa tabescentes, vitam ducunt dissolutam."—Martin V. ad Brandam § iii. (Ludewig Reliq. Msctorum. XI. 409).

[980](#) Usque adeo nonnullorum clericorum corruptela excrevit, ut morum atque honestatis vestigia apud eos pauca admodum remanserint.—Constit. Brandæ § 1 (Op. cit. XI. 385). This condition of affairs was not the result of any abandonment of the attempt to enforce the canons. Local synods were meeting every year, and scarcely one of them failed to call attention to the subject, devising fresh penalties to effect the impossible. The result is shown in the lament of the council of Cologne in 1423—"Quia tamen, succrescente malitia temporis moderni, labes hujusmodi criminis in ecclesia Dei in tantum inolevit, quod scandala plurima in populo sunt exorta, et verisimiliter exoriri poterunt in futurum, et ex fide dignorum relatione percepimus quod quidam ecclesiarum prælati et alii, etiam capitula ... tales in suis iniquitatibus sustinuerunt et sustinent." So far, however, were the decrees of the council from being effective, that the Archbishop was obliged to modify them and to declare that they should only be enforced against those ecclesiastics who were notoriously guilty, and who kept their concubines publicly.—Concil. Coloniens. ann. 1423 can. i. viii. (Hartzheim V. 217, 220).

[981](#) Ambrosii Camaldulensis Lib. v. Epist. xii. (Martene Ampliss. Collect. III. 119-21). This was not the only case of abbots whose scandalous lives were treated with equal forbearance. See Epist. xiii., xiv.

[982](#) Harduini Andegav. Epist. Statut. Præf. (Martene Thesaur. IV. 523-4).

[983](#) Alan. Charter. Lib. de Exilio (Johan. Mariæ Lib. de Schismat. et Concil.).

[984](#) Nic. de Clamengiis de Lapsu et Reparat. Justitiæ (Ed. 1519 pp. 13-14).

[985](#) Wilkins III. 364-5.

[986](#) Æneæ Sylvii Comment. de Gest. Conc. Basil. ad calcem (Opp. Basil. 1551 pp. 66-70).—Cf. Sigismundi Imp. Avisam. ann. 1433 (Goldast. III. 427 sqq.).

[987](#) Concil. Basiliens. Sess. xx. (Jan. 22, 1435).

[988](#) Pragm. Sanct. ann. 1438 cap. 31 (Goldast. I. 403).

[989](#) Quoniam nostri temporis clerici sunt, heu, affectu crudeles, affatu mendaces, gestu incompositi, victu luxuriosi, actu impii, et sub vacuo sanctitatis nomine sancti nominis derogant disciplinæ (Hartzheim V. 266). The council contented itself with repeating the canons of Bâle.

[990](#) Lib. III. Tit. i. c. 3, in Septimo.

[991](#) Quicumque alii concubinas et mulieres hujusmodi, contra præsentem prohibitionem tenere præsumentes, inhabiles censeantur ad beneficia obtinenda, et in dicta curia officia hujusmodi exercenda, nec illorum capaces efficiantur, nisi inhabilitatem suam antea per dictæ sedis literas obtinuerint aboleri.—Ubi sup.

[992](#) Comp. Doeringii Chron. passim. Döringk was minister or head of the powerful Franciscan order in Saxony, and therefore may be considered an unexceptionable witness.

In the Polish diet of 1459, one of its leading members brought forward a series of propositions which showed the feelings entertained by the people towards papal exactions—"The Bishop of Rome has invented a most unjust motive for imposing taxes—the war against the infidels.... The Pope feigns that he employs his treasures in the erection of churches; but in fact he employs them to enrich his relations," etc.—Krasinski, Reformation in Poland I. 96.

The councils of Constance and Bâle had produced, for a time, a spirit of great independence. John of Frankfort does not hesitate to declare that the papal authority is not binding when in opposition to the law of God—"Unde patet quod nec papalis vel et imperialis constitutio legi Dei obvians possit dici recta; nec aliquis ipsorum potest licite mandare quod sua constitutio servetur a subditis" (Johann. de Francford. contra Feymeros). According to the decisions of the Decretalists, this was rank heresy, and yet John of Frankfort was one of the leading minds of the period, and of unquestioned orthodoxy. He was a popular preacher, a doctor of theology, chaplain and secretary of the Count Palatine of the Rhine, and a bold disputant against the Hussites. He records with his own hand that, as inquisitor, he convicted and burned, July 4th, 1429, at Lüders, an unfortunate heretic who denied the propriety of invoking the Virgin and the saints. Under the skilful management, however, of Nicholas V. and Pius II. this spirit of independence died away, to again revive, in the next century, in a more determined form.

[993](#) Ludewig Reliq. Msctorum. XI. 415.—Under Boniface IX., at the commencement of the century, claims arising from simoniacal transactions were constantly and openly prosecuted in the court of the Papal Auditor.—Theod. a Niem de Vit. Joann. XXIII.

[994](#) Concil. Constantiens. Sess. XI.

[995](#) Steph. Infessuræ Diar. Roman, ann. 1484 (Eccard. Corp. Hist. III. 1939-40).

[996](#) “Si vous saviez tout ce que je sais! des choses dégoûtantes! des choses horribles! vous en frémiriez! Quand je pense à tout cela, à la vie que mènent les prêtres, je ne puis retenir mes larmes.” And again, “Ma peggio ancora. Quello che sta la notte con la concubina, quell’ altro con il garzone, e poi la mattina va a dire messa, pensa tu come la va. Che vuoi tu fare di quella messa?”—Jérôme Savonarole d’après les Documents Originaux, par F. T. Perrens, pp. 71-2. Paris, 1856.

[997](#) Ap. Chavard, Le Célibat, des Prêtres, p. 400.

[998](#) Masselin, Journal des États de Tours, pp. 197-99.

What were the teachings and the influence on the people of such a priesthood may be guessed from a remark in one of the sermons of Oliver Maillard, a celebrated Franciscan preacher of the period. “Sunt ne ibi mulieres et sacerdotes qui dicunt quod mulieres comedentes venenum ad expellendum materiam de matrice sua, ne fœtus veniat ad partum, antequam anima rationalis introducatur, non peccant mortaliter?”—Ap. H. Estienne, Apol. pour Herodote Liv. I. chap. vi.

[999](#) 1 Henr. VII. 4.

[1000](#) Wilkins III. 630-33.

Yet in the letter of Archbishop Morton to the abbot reciting all these enormities, he is not even threatened with deposition, but only invited to mend his ways.

[1001](#) Froude’s History of England, Ch. III.

[\[1002\]](#)

Or gef hym self had done a synne
By the prestes sybbe kynne,
Moder or suster, or hys lemmon
Or by hys doghter gef he had on.

John Myrc’s Instructions for Parish Priests, p. 26 (Early English Text Society, 1868).

[1003](#) Concil. Arandens. ann. 1473 c. ix. (Aguirre V. 345-6).

[1004](#) Concil. Hispalens. ann. 1512 can. xxvi., xxvii. (Aguirre V. 371-2).

[1005](#) Statut. Eccles. in Braunschweig. cap. 75 (Mayer, Thes. Jur. Eccles. I. 124).

[1006](#) Synod. Strigonens. ann. 1382, 1450, 1480 (Batthyani III. 275, 481, 557).

[1007](#) Galeoti Martii de dictis et factis Matthiæ Regis cap. xi. (Schwandtneri Rer. Hungar. Script.).

[1008](#) Synod. Reg. ann. 1498 c. 16 (Batthyani I. 551).

[1009](#) Wiæ Hist. Episc. Camin. c. 41.—These irregularities were not of recent introduction. The canon referred to is copied almost literally from a synod held nearly forty years before by Bishop Henning. In fact, from the description given by the latter of the drinking, gambling, trading, and licentiousness of the ecclesiastics of Camin, there was little of the clerical character about them.—Synod. Camin. ann. 1454 (Hartzheim V. 930).

[1010](#) Wiæ Hist. Episc. Camin. c. 42.—Synod. Sedinens. c. 5.

In West Prussia, in 1497, the synod of Ermeland expresses itself as scandalized by the priests taking their companions publicly to fairs and other gatherings, and, to put a stop to the practice, it offers to secret informers one-half of the fine imposed on such indiscretions.—Synod. Warmiens. ann. 1497 c. xxxix. (Hartzheim V. 668).

[1011](#) Boissen Chron. Slesvicens. ann. 1494.

[1012](#) Robles, Vida del Card. Ximenes de Cisneros, cap. xii., xiii.—Robles was chaplain to Ximenes, and presumably derived his information from the cardinal himself.

[1013](#) Rursus in certis monasteriis dicti ordinis, ipsæ moniales apertis claustris, indifferenter omnes homines etiam suspectos intromittunt, ac extra monasteria in curiis, castris et plateis vagantes, plura scandala committunt.... Similiter religiosi qui in sacris ordinibus constituti non sunt, relicto habito regulari, matrimonium contrahere dicuntur.... Præterea omnes et singulos monachos et moniales regulam S. Benedicti hujusmodi expresse vel tacite professos, qui habitum monasticum sine dispensatione legitima reliquerunt aut matrimonia contraxerunt, ad monasteria, *si illa exiverunt*, redire et habitum monasticum ac velum nigrum reassumere dicta auctoritate compellatis.—App. ad Chron. Cassinens. Ed. Dubreul, pp. 902-3.

The words italicized would seem to indicate that monks and nuns occasionally married without even quitting their monasteries.

[1014](#) Perrens, Jérôme Savonarole, p. 84.

[1015](#) Statut. Ord. Cisterc. ann. 1516 (Martene Thesaur. IV. 1636-7).

[1016](#) Thus, in 1193, the general chapter of the order promulgated the rule —“Si contigerit mulieres abbatiam ordinis nostri ex consensu intrare, ipse abbas a patre abbate deponatur absque retractatione. Et quicumque sine conscientia abbatis introduxerit, de domo ejiciatur, non reversurus, nisi per generale capitulum.”—(Capit. General. Cisterc. ann. 1193 cap. 6—apud Martene Thesaur. IV. 1276.) The strictness with which this was enforced is illustrated by the proceedings in 1205 against the abbot of the celebrated house of Pontigny, because he had allowed the Queen of France and her train to be present at a

sermon in the chapel and a procession in the cloisters, and to spend two nights in the infirmary. He adduced in his defence a special rescript of the pope and a permission from the head of the order in favor of the queen, but these were pronounced insufficient, and sentence was passed that he merited instant deposition “quia tam enorme factum sustinuit, in totius ordinis injuriam,” but that in consequence of the powerful intercession of the Archbishop of Rheims and other bishops, he was allowed to escape with lighter punishment.—(Hist. Monast. Pontiniac.—Martene Thesaur. III. 1245.)

This rule, indeed, was almost universal in the ancient monasteries. The great abbey of St. Martin of Tours preserved it inviolate until the incursions of the Northmen rendered the house an asylum for the inhabitants of the surrounding territory, and the prohibition was subsequently revived and formally approved by Leo VII. in 938, (Leonis PP. VII. Epist. vi.). In that of Sithieu, from the time of its foundation early in the seventh century, it was preserved without infraction for more than three centuries. Even the license of the Carlovingian revolution did not cause its inobservance; and when, amid the disorders of the tenth century, the Counts of Flanders became lay abbots of the convent, and discipline was almost forgotten, the mediation of two bishops was required to obtain permission, about the year 940, for Adela, Countess of Flanders, prostrated with mortal sickness, to be carried in and laid before the altar, where she miraculously recovered.—(De Mirac. S. Bertin. Lib. II. c. 12—Chron. S. Bertin. c. 23, 24.)

So when Boniface founded the abbey of Fulda, he prohibited the entrance of women in any of the buildings, even including the church. The rule was preserved unfringed through all the license of the tenth and eleventh centuries, and when, in 1132, the Emperor Lothair came to Fulda to celebrate Pentecost, his empress was not allowed to witness the ceremonies. So when Frederic Barbarossa, in 1135, spent his Easter there, he was not permitted to enter the town, because his wife was with him. In 1398 Boniface IX., at the request of the Abbot John Merlaw, relaxed the rule and permitted women to attend at the services of the church—shortly after which it was destroyed by lightning, as a warning for the future.—(Paullini Chron. Badeslebiens. § viii.)—An equally convincing indication of the favor with which this regulation was regarded by Heaven was afforded when Abbot Helisacar, about the year 830, introduced it in the celebrated monastery of St. Riquier, and immediately the number of miracles worked by the relics of the Saint increased in a notable degree (Chron. Centulensis Lib. III. cap. iv).—At the Grande Chartreuse, founded by St. Bruno towards the end of the eleventh century, women were not even allowed to enter on the lands of the community.—Chart. S. Hugon. Gratianopolit. (Patrolog. T. 166, p. 1571).

[1017](#) Anon. Carthus. de Relig. Orig. cap. XL. (Martene Ampliss. Coll. VI. 93).

[1018](#) Johan. de Tritenheim Lib. Lugubris de Statu et Ruina Monast. Ordinis cap. iii.

[1019](#) Annuntia populo fidei meo, et dic quod Filius meus avaritiam, superbiam et luxuriam clericorum et sacerdotum amplius sustinere nec possit nec velit. Unde nisi se quantocius emendaverint, totus mundus propter eorum scelera periclitabitur.—Trithem. Chron. Hirsaug. ann. 1476.

[1020](#) Quum pene in omnibus conciliis et a plerisque Romanis pontificibus super cohibenda et punienda clericorum incontinentia, et eorum honestate servanda multa hactenus emanaverint constituta; et nullatenus ipsorum reformari quiverit correctio morum: ... videretur pensandum an expediret et posset provideri quod in ecclesia Occidentali, quantum ad votum continentiae, servaretur consuetudo ecclesiae Orientalis, quantum ad promovendos, potissime quum tempore Apostolorum consuetudo ecclesiae Orientalis servaretur.—Durand. de Modo General. Concil. P. II. rubr. 46 (Calixtus, p. 537).

[1021](#) Card. Zabarellae Capit. Agend. in Concil. Constant. cap. xii. (Von der Hardt T. I. P. ix. p. 525).

[1022](#) Zaccaria, Nuova Giustificaz. pp. 121-2.—Milman, Latin Christ. Book XIII. chap. 12.

[1023](#) Not having the works of Tudeschi to refer to, I give his remarks as quoted by Villadiego (Fuero Juzgo, p. 177, No. 85) from Gloss. in cap. olim, de cleric. conjug.—“Quod deberet ecclesia facere sicut bonus medicus, ut si medicina, experientia docente, potius officit quam prodit, cam tollat; sic eorum voluntati relinqueretur, ita ut sacerdos qui abstinere nolisset, posset uxorem ducere, cum quotidie illicito coitu maculentur.”

[1024](#) Sacerdotibus magna ratione sublata nuptias, majori restituendas videri.—Platina in Vit. Pii II.

[1025](#) Aeneae Sylvii de Concil. Basil. Lib. II.

[1026](#) De Continentia Sacerdotum, Nürnberg. 1510, Prop. 6, 7.

[1027](#) Trithem. Chron. Hirsau. ann. 1479.

[1028](#) Serrarii Hist. Rer. Mogunt. Lib. I. c. 34.

[1029](#) Fleury, Hist. Eccles. Liv. CXVI. No. 30-38.

[1030](#) Krasniski, Reformation in Poland, I. 110.

[1031](#) Gravamina German. Nationis, No. VII.—Remed. contra Gravamina (Freher. et Struv. II. 677-8).

In the previous century some remonstrances against grievances had been uttered, but in a very different tone from this.

[1032](#) Avisamenta ad Caesar. Majest. (Ibid. p. 680).

[1033](#) When Diether was elected Archbishop of Mainz, in 1459, his envoys sent to obtain his confirmation from Pius II. were stupefied with a demand for 20,506 florins—more than double the amount of annates previously assessed on the see. He refused to yield to the demand, but by a little sharp practice between the Apostolic Chamber and the Roman bankers he became entangled, and on his persistent refusal he was prosecuted for the amount, deposed by the pope, and Adolph of Nassau appointed in his place, leading to a bloody war and the devastation of city and territory.—Appell. Dom. Dytheri (Senckenberg. Selecta Juris T. IV. p. 393).—Cf. Helwich de Dissidio Moguntino (Rer. Moguntiac. Script. T. II.). This is probably the fraud alluded to by the Diet of 1510, where it

was complained that the annates of the see of Mainz were raised from 10,000 florins to 25,000; and this latter sum was exacted seven times in one generation, resulting in taxation on the peasantry so severe that an insurrection against the clergy was threatened.—Remed. contra Gravam. (Freher. et Struv. II. 678).

In the complaint made to Adrian VI., in 1523, by the Diet of Nürnberg, it is asserted that three generals of the mendicant orders at Rome had purchased the cardinalate with gold wrung from Germany.—Gravam. Nationis German, cap. lxxiii.—*ap.* Le Plat, Monument. Concil. Trident. II. 203.

The general popular opinion of the Roman court is manifested in the *Epistolæ Obscurorum Virorum*, when speaking of the quarrel between Reuchlin and the theologians, which had been carried before the papal tribunal—“Si Papa est pro theologi, tunc non timeo; etiam audiui ab uno notabili viro, qui est officialis curiæ, qui dixit. Quid nobis hic cum literis? Si Reuchlin habet pecuniam, mittat huc: quia in curia oportet habere pecunias, alias nihil potest expedire.”

That this estimate of the papal curia was shared by the orthodox is shown in the story told of Pierre Danes, Bishop of Vaur, who in 1545 was sent as ambassador by Francis I. to the Council of Trent. In debate a French theologian was inveighing against the corruptions of the Rota, when an Italian ecclesiastic sneeringly cried out, “Gallus cantat.” Danes promptly rejoined, “Utinam illo gallicinio Petrus ad resipiscentiam et fletum excitetur.”—Le Plat, Monument. Concil. Trident. VII. 224.

[1034](#) The *Epist. Obscur. Viror.* probably reflects the general sentiment of the conservatives of the time in denouncing Erasmus and the learned wits as heretics. “Quia juvenes volunt se æquiparare senibus, et discipuli magistris, et juristæ theologis, et est magna confusio, et surgunt multi hæretici et pseudochristiani, Iohann. Reuchlin, Erasmus Roterodamus: Bilibaldus nescio quis, et Ulricus Huttenus, Hermannus Buschius, Jacobus Wimphelingus, qui scripsit contra Augustinenses, et Sebastianus Brandt, qui scripsit contra prædicatores, etc.”

So, at a later date, after Luther had arisen, the “*Conciliabulum Theologistarum*” classes them together “Habeo etiam ego unum spiritum familiarem; illum ego volo mittere ad Lutherum et Erasmum de nocte in lectum, ut eos tribulet et vexet.”

[1035](#) *Erasmi Colloq. Confabulatio Pia.*

[1036](#) *Ibid.* See also the *Encomium Moriæ*.—“Nam quid dicam de iis qui sibi fictis scelerum condonationibus suavissime blandiuntur, ac purgatorii spatia veluti clepsydris metiuntur, secula, annos, menses, dies, horas, tanquam e tabula mathematica citra ullum errorem dimentientes?”

[1037](#) *Confabulatio Pia (Colloquia).*

[1038](#) Speaking of the Virgin’s milk and the countless relics of the cross everywhere exposed to the adoration of the pious, he exclaims, “O matrem filio simillimam! ille nobis tantum sanguinis reliquit in terris; hæc tantum lactis quantum vix credibile est esse posse uni mulieri uniparæ, etiamsi nihil bibisset infans.... Idem caussantur de cruce Domini, quæ privatum ac publice tot locis

ostenditur, ut si fragmenta conferantur in unum, navis onerariæ justum onus videri possint; et tamen totam crucem suam bajulavit Dominus”—to which he makes a pious interlocutor reply, “Novum fortasse dici possit; mirum nequaquam, quum Dominus, qui hæc auget pro suo arbitrio, sit omnipotens.”—Colloq. Peregrinat. Religionis.

[1039](#) Supplement. Epist. M. Lutheri, No. II. (Halæ, 1703).

[1040](#) The popular view of the priesthood is well summed up by Erasmus in the following dialogue: “COCLES, Cur mavis sacerdotium quam uxorem?—PAMPHAGUS, Quia mihi placet otium. Arridet Epicurea vita.—Co. At mea sententia suavius vivunt, quibus est lepida puella domi, quam complectantur, quoties libet.—PAM. Sed adde, nonnunquam quum non libet. Amo voluptatem perpetuam. Qui ducit uxorem, uno mense felix est: cui contingit optimum sacerdotium, in omnem usque vitam fruitur gaudio.—Co. Sed tristis est solitudo, adeo ut nec Adam suaviter victurus fuerit in Paradiso nisi deus illi adjunxisset Evam.—PAM. Non deerit Eva cui sit opulentum sacerdotium,” etc.—Erasmi Colloq. de Captandis Sacerdotiis.

It is, however, perhaps, in the “Encomium Moriæ” that he gives fullest rein to his bitter satire. His own sad experience of conventual life gave him special opportunity of declaiming against the monks “qui se vulgo religiosos ac monachos appellant, utroque falsissimo cognomine, quum et bona pars istorum longissime absit a religione, et nulli magis omnibus locis sint obvii.” Their habit, their observances, their discipline, their ignorance, idleness, vices, are recounted at great length and with the most stinging ridicule, and he makes Folly dismiss them with the contemptuous valediction, “Verum ego istos histriones, tam ingratos beneficiorum meorum dissimulatores quam improbos simulatores pietatis libenter relinquo.” The secular priesthood, the bishops, and even the pope himself, are treated with little more respect, and every class of the ecclesiastical body is stigmatized as endeavoring to thrust upon others the care of the flock and industrious only in shearing the sheep.

The “Encomium Moriæ” had an immediate and immense success. Numberless editions were required to supply the avidity of the learned, and it was immediately translated into almost every language of Europe for the benefit of the unlearned. It appeared in 1509; the Colloquies in 1516.—When these works had produced their result, their dangerous tendencies were discovered, and they enjoyed the honor of being included in the first Index Expurgatorius (App. Concil. Trident). Cardinal Caraffa, indeed, in 1538, had urged upon Paul III. the propriety of excluding the Colloquies from use in schools as a text-book for students.—Concil. de Emend. Eccles. (Le Plat, Monument. Concil. Trident. II. 602).

[1041](#) The “Epistolæ Obscurorum Virorum” was certainly published before 1516, probably in 1515 (Ebert, Bibliog. Dict. s. v.).—It is equally severe upon the monks—“Tunc ille dixit: ego distinguo de monachis, quia accipiuntur tribus modis. Primo, pro sanctis et utilibus, sed illi sunt in cœlo. Secundo, pro nec utilibus nec inutilibus, et illi sunt picti in ecclesia. Tertio modo pro illis qui adhuc vivunt, et illi multis nocent, etiam non sunt sancti, quia ita superbi sunt sicut unus sæcularium. Et ita libenter habent pecunias et pulchras mulieres,” etc.

And again, “Ubi enim diabolus pervenire vel aliquid officere non potest, ibi semper mittit unam malam antiquam vetulam vel unum monachum.”

[1042](#) De Vanitate Scientiarum cap. lxi., lxii., lxiv.

[1043](#) Orat. in Comit. Augustan. (Freher. et Struv. II. 702.)

[1044](#) Bartholini Comment. de Comit. Augustens. ann. 1518 (Senckenberg. Selecta Juris T. IV. pp. 669-70).

[1045](#) Rymer, Fœdera XIII. 586-7.

[1046](#) Even in this, Luther was by no means the first. Erasmus had exposed the wickedness of the system with fully as much fervor in the “Encomium Moriaë.”—“Hic mihi puta negotiator aliquis, aut miles, aut judex, abjecto ex tot rapinis unico nummulo, universam vitæ Lernam semel expurgatam putat, totque perjuriam, tot libidines, tot ebrietates, tot rixas, tot cædes, tot imposturas, tot perfidias, tot proditones existimat velut ex pacto redimi, et ita redimi ut jam liceat ad novum scelorum orbem de integro reverti.”—And in the “Epistolæ Obscurorum Vivorum” the falseness of its promises was unflinchingly asserted.

[1047](#) Ranke, Reformation in Germany, B. II. chap. 3.

[1048](#) Lutheri Opp. T. I. fol. 335a (Jenæ, 1564).

[1049](#) Mag. Bull. Roman. Ed. 1692, I. 614.

[1050](#) De Captiv. Babylon. Eccles. (Lutheri Opp. Jenæ, 1581, II. fol. 283a).

[1051](#) Artic. et Errores Libb. Jur. Canon. No. 18 (Lutheri Opp. Jenæ, 1581, II. fol. 318a).

[1052](#) Ibid. fol. 319b.

[1053](#) Ibid. fol. 362a, 374a.

[1054](#) Krasinski, op. cit. I. 112-3.

[1055](#) Lutheri Opp. Jenæ, 1581, T. II. fol. 438, 440.

[1056](#) Spalatin. Annal. ann. 1521.

[1057](#) Lutheri Epistt. Jenæ, 1545, T. II. fol. 38, 39.

[1058](#) Synod. Vuitenberg. (Lutheri Opp. II. 470).

[1059](#) Lutheri Opp. II. 477 sqq.—In this edition the tract is dated 1522 in the index and 1521 in the text. Henke and Ranke, however, agree in assigning it to a period subsequent to his return from Wartburg.

[1060](#) Spalatin. Annal. ann. 1523.—The fact that Spalatin recorded whether he wore the cowl or not, shows the importance which Luther’s friends attached to his example with respect to it.

[1061](#) Spalatin. Annal. ann. 1522.

[1062](#) Supplement. Epistt. M. Lutheri No. 31 (Halæ, 1703).

[1063](#) Spalatin. Annal. ann. 1523.—Thammii Chron. Colditens.—Link married a daughter of Suicer, a lawyer of Oldenburg in Misnia, and the bride's example was shortly afterwards followed by her two sisters, one of whom was united to Wolfgang Fuess, parish priest of Kolditz, and formerly a monk of Gera; while the other accepted the addresses of the parish priest of Kitscheren. (Spalatin, ubi sup.)

[1064](#) Spalatin, ubi sup.—How these innovations were regarded in Rome is manifested in a minatory epistle addressed, in 1522, by Adrian II. to the Elector Frederic of Saxony. “Et cum ipse sit apostata ac professionis suæ desertor, ut plurimos sui faciat similes, sancta illa Deo vasa polluere non veretur, consecratasque virgines et vitam monasticam professas extrahere a monasteriis suis, et mundo imo diabolo, quem semel abjuraverunt, reddere ... Christi sacerdotes etiam vilissimis copulat meretricibus etc.” (Hartzheim VI. 192.)

[1065](#) See the address of Frederic Nausea, surnamed Blancicampianus, afterwards Bishop of Vienna, at the Council of Mainz in 1527.—Synod. Mogunt. ann. 1527 (Hartzheim VI. 207).

[1066](#) Reformat. Cleri German. ann. 1524 c. 26 (Goldast. Constit. Imp. III. 491).

[1067](#) Spalatin. Annal. ann. 1524.

[1068](#) Respons. S. R. I. Ordinum Norim b. cap. 18 (Goldast. op. cit. I. 455).—With this the Legate Cheregato professed himself to be content, but he bitterly complained of an intimation that if these apostate priests and nuns transgressed the laws in any other way, the secular tribunals would punish them. He held that, though apostates, they were still ecclesiastics, only amenable to the courts Christian, and he protested against any violation of the privileges and jurisdiction of the church such as would be committed in bringing them before a civil magistrate. (Ibid. p. 456.)

[1069](#) Spalatin. ann. 1523.

[1070](#) Edict. Norimb. Convent, ann. 1523 c. 10, 18, 19 (Goldast. II. 151).—This illustrates well the vacillating conduct of the Council of Regency during this period.

[1071](#) Chron. Torgaviæ—Spalatin. Annal. ann. 1523. He conveyed them at once to Wittenberg, and Luther writes to Spalatin asking him to collect funds for their support until they can be permanently provided for.

[1072](#) Spalatin. ubi sup.

[1073](#) Spalatin. ann. 1524.

[1074](#) Melanchthon to Camerarius (*ap.* Mayeri Dissert. de Cath. Lutheri conjuge. pp. 25-6).—Melanchthon can only suggest that it was a mysterious act of Providence.—“Isto enim sub negotio fortassi aliquid occulti et quiddam divinius subest, de quo nos curiose quærere non decet.”—The whole letter is singularly apologetic in its tone.

[1075](#) Spalatin. ann. 1525.

Pomeranius, a priest of Wittenberg, in writing to Spalatin, gives as the reason of Luther's marriage—"Maligna fama effecit ut Doct. Martinus insperato fieret conjunx;" and Luther, in a letter to the same, admits this even more distinctly—"Os obstruxi infamantibus me cum Catherina Borana." That his action was not generally approved by his friends is apparent from his asking Michael Stiefel to pray that his new life may sanctify him—"Nam vehementer irritantur sapientes, etiam inter nostros."—Spalatin. ubi sup.

That surprise should have been aroused is singular, when he had already proclaimed the most extreme views in favor of matrimony. As early as 1522 he delivered his famous "Sermo de Matrimonio," in which he enjoins it in the strictest manner as a duty incumbent upon all. Thus, in considering the impediments to marriage, he treats of vows, concerning which he says: "Sin votum admissum est, videndum tibi est, ut supra memoravi, num tribus eviratorum generibus comprehendaris, quæ conjugio ademit Deus, ubi te in aliquo istorum uno non repereris, votum rescindas, monasticen deseras oportet; moxque ad naturalem sociam adjungas te matrimonii lege."—P. i. c. 8 (Opp. Ed. Vuitenberg. V. 121). To this must be added his decided opinions on the subject of conjugal rights, as developed in the well-known passage which has excited so much animadversion, and which, if we are to interpret it literally, conveys a doctrine which sounds so strangely as the precept of a teacher of morality. In treating of the causes of divorce, he remarks: "Tertia ratio est, ubi alter alteri sese subduxerit, ut debitam benevolentiam persolvere nolit, aut habitare cum renuerit. Reperiuntur enim interdum adeo pertinaces uxores, qui etiam si decies in libidinem prolabantur mariti pro sua durtia non curarent. Hic oportunum est ut maritus dicat 'Si tu nolueris, alia volet.' Si domina nolit, adveniat ancilla, ita tamen ut antea iterum et tertio uxorem admoneat maritus, et coram aliis ejus etiam pertinaciam detegat, ut publice et ante conspectum ecclesiæ, durtia ejus et agnoscatur et reprehendatur. Si tum renuat, repudia eam, et in vicem Vasti, Ester surroga, Assueri regis exemplo" (Ibid. p. 123).

One conclusion, at least, can safely be drawn from this, that the morality of the age had impressed Luther with the belief that the self-restraint of chastity was impossible.

That the Catholics should make themselves merry over the marriage of the apostate monk and nun was to be expected, and Jerome Emser did not think it beneath him to write an epithalamium on the wedding of his former friend, of which the following may be taken as a specimen—

Ad Priapum Lampsacenum
Veneramur, et Silenum
Bacchumque cum Venere
cum júbilo.

Septa claustrî dissipamus,
Sacra vasa compilamus
Sumptus unde suppetat
cum júbilo.

Mayeri Dissert. p. 22, 23.

[1076](#) Mayeri de Cath. Luth. conjug. Dissert. 4to. Hamburgi, 1702. Cranach, as we have seen, was one of the three witnesses present at the marriage.

[1077](#) Lutheri Opp. (Jenæ, 1564, T. I. fol. 496-500).

[1078](#) Supplement Epistt. M. Lutheri No. 212 (Halæ, 1703).

[1079](#) Avisamentum de Concubinariis non absolvendis, 4to. 1505.—The author devotes a long argument to prove that incontinence in a priest is worse than homicide. His conclusion is “Omnis sacerdos fornicando est sacrilegus et perjurus; et gravius totiens quotiens peccat quam si hominem occidat.”

[1080](#) Wideman. Chron. Curiae ann. 1505.

[1081](#) Neque superiorum tolerantia, seu prava consuetudo, quæ potius corruptela dicenda est, a multitudine peccantium, aliave quælibet excusatio eis aliquo modo suffragetur.—Concil. Lateran. V. ann. 1514 Sess. ix.

[1082](#) Quia vero in quibusdam regionibus nonnulli jurisdictionem ecclesiasticam habentes, pecuniarios quæstus a concubinariis percipere non erubescunt, patientes eos in tali fœditate sordescere.—Concil. Lateran. V. ann. 1516 Sess. xi.—Cf. Cornel. Agripp. De Vanitate Scient, c. lxiv.—Agrippa even states that it was a common thing for bishops to sell to women whose husbands were absent the right to commit adultery without sin.

[1083](#) Taxæ Sacræ Pœnitentiariæ, Friedrich's Ed. p. 38; Gibbings's, p. 3; Saint-André's, p. 8.

[1084](#) Gerardi Noviomagi Philippus Burgundus (Mathæi Analect. I. 230).

[1085](#) Statut. Synod. Joan. Episc. Ratispon. ann. 1512 (Hartzheim VI. 86).

[1086](#) Art. 18e “Item. Mais, Nous nous plaignions d’aucuns chanoines qui nous gâtent nôtre bordeau de la ville, car il y en a qui le tiennent en leurs maisons, privément, pour tous venans.”—Quoted from a contemporary MS. by Abraham Ruchat in his “Histoire de la Reformation de la Suisse,” T. I. p. xxxiii.-v. (Genève, 1727). According to Cornelius Agrippa, the Roman prelates derived a regular revenue from this source, the right to keep definite numbers of strumpets in the public brothels being partitioned out between them.—De Vanitate Scient, c. lxiv.

[1087](#) See, for instance, Novelle, P. iii. Nov. lvi.

[1088](#) Reformat. Cleri German. (Hartzheim VI. 198).—“Hanc perditissimam hæresin ... non parvam habuisse occasionem, partim a perditis moribus et vita clericorum etc.”

There was no scruple in confessing this fact by those who spoke authoritatively for the Catholic church, and it long continued to be alleged as the cause of the stubbornness of the heretics. Thus the Bishop of Constance, in the canons of his Synod of 1567—“Estote etiam memores, damnatam et detestandam cleri vitam huic malo in quo, proh dolor! versamur, majori ex parte ansam præbuisse.... Omnes sapientes peritique viri unanimi sententia hoc asserunt, hocque efflagitant penitus, ut prius clerus ecclesiarumque ministri ac doctores a vitæ sordibus repurgentur, quam ulla cum adversariis nostris de

doctrina concordia expectari queat.” And then, after describing in the strongest terms the vices of the clergy and their unwillingness to reform, he adds “Quæ sane morum turpitudine, vehementer et tantopere imperiti populi animos offendit ut subinde magis magisque a catholica nostra religione alienior efficiatur, atque sacerdotium una cum sacerdotibus doctrinam juxta atque doctores, excretur, dirisque devoveat: ita ut protinus ad quamvis sectam deficere potius paratus sit quam quod ad ecclesiam redire velit.”—Synod. Constant. ann. 1567 (Hartzheim VII. 455).

Pius V. himself did not hesitate to adopt the same view. In an epistle addressed to the abbots and priors of the diocese of Freysingen, in 1567, he says—“Cum nobiscum ipsi cogitamus quæ res materiam præbuerit tot tantisque pestiferis hæresibus ... tanti mali causam præcipue fuisse judicamus corruptos prælatorum mores, qui ... eandemque vivendi licentiam iis, quibus præerant permittentes et exemplo eos suo corrumpentes, maximum apud laicos odium contemptionem et invidiam non immerito contraxerunt.” (Hartzheim. VII. 586).

Alfonso de Castro in 1556 declares that the priesthood was one of the efficient causes of the spread of heresy. It would be difficult for orthodoxy to maintain itself without the direct interposition of God, in view of the scandalous lives, and general worthlessness of all orders of ecclesiastics, whose excessive numbers, ignorance, and turpitude exposed them to contempt.—Alph. de Castro de Just. Punit. Hæres. Lib. III. c. 5.

[1089](#) Reformat. Cleri German, cap. xv.—So when, in 1521, Conrad, Bishop of Wurzburg, issued a mandate for the reformation of his clergy, he described them as for the most part abandoned to gluttony, drunkenness, gambling, quarrelling, and lust.—Mandat. pro. Reformat. Cleri. (Gropp, Script. Rer. Wirceburg. I. 269).—In 1505 the Bishop of Bamberg, in complaining of his clergy, shows us how little respect was habitually paid to the incessant repetition of the canons.—“Condolenter referimus vitam et honestatem clericalem adeo apud quamplures nostrarum civitatis et dioceseos clericos esse obumbratam ut vix inter clericos et laycos discrimen habeatur: et ipsa statuta nostra synodalia in ipsorum clericorum cordibus oblitterata et a pluribus non visa aut perlecta vilipendantur: nullam propter nostram, quam hactenus pii pastoris more tolleravimus patientiam, capientes emendationem.”—(Hartzheim VI. 66.)

[1090](#) Grillandi Tract. de Sortilegiis Quæst. xvii. No. 1.

[1091](#) Gravamin. Ordin. Imperii cap. xxi., lvii., lxx. (Goldast. I. 464).

When such complaints were made by the highest authority in the empire, it is not difficult to understand the reasons which led the senate of Nürnberg—which city had not yet embraced the Reformation—to deprive, in 1524, the Dominicans and Franciscans of the superintendence and visitation of the nuns of St. Catharine and St. Clare; nor do we need Spalatin’s malicious suggestion—“cura et visitatione, pene dixeram corruptione.”—Spalatin. Annal. ann. 1524.

[1092](#) Adriani PP. VI. Instructio data Fr. Cheregato, Nov. 25, 1522 (Le Plat, Monument. Concil. Trident. II. 146).

[1093](#) Adriani PP. VI. Breve ad Frid. Saxon. (Lutheri Opp. T. II. fol. 542*b*.—Le Plat, II. 134).

[1094](#) Erasmi Lib. xxxi. Epist. 43.

Notwithstanding the sarcasm, popularly attributed to Erasmus, on the occasion of Luther's union with Catharine von Bora—that the Reformation had turned out to be a comedy, seeing that it resulted in a marriage—he continued to raise his voice in favor of abolishing the rule of celibacy. Thus he writes, in October, 1525, “Vehementer laudo cœlibatum, sed ut nunc habet sacerdotum ac monachorum vita, præsertim apud Germanos, præstaret indulgeri remedium matrimonii” (Lib. xviii. Epist. 9). And again, in 1526, “Ego nec sacerdotibus permitto conjugium, nec monachis relaxo vota, ni id fiat ex auctoritate Pontificum, ad ædificationem ecclesiæ non ad destructionem.... In primis optandum esset sacerdotes et monachos castitatem ac cœlestem vitam amplecti. Nunc rebus adeo contaminatis, fortasse levius malum erat eligendum” (Lib. xviii. Epist. 4).

Yet, in his “Liber de Amabili Ecclesiæ Concordia,” written in 1533 in the hope of reuniting the severed church, while awaiting the promised general council which was to reconcile all things, Erasmus did not hesitate to give utterance to the opinion that those who fell away in heresy or even schism were worse than those who lived impurely in the true faith.

[1095](#) Spalatin. Annal. ann. 1525.

[1096](#) Ibid. ann. 1526.

[1097](#) Henke Append. ad Calixt. p. 595.—Serrarii Rerum Mogunt. Lib. v. (Script. Rer. Mogunt. I. 831, 839). As Albert, though Primate of Germany, was only thirty-five or six years of age, the proposition was not an unreasonable one.

[1098](#) Spalatin. Annal. ann. 1526.

[1099](#) Thammii Chron. Coldicens.

[1100](#) Chron. Waldeccense (Hahnii Collect. Monument. I. 851).

[1101](#) Confess. Augustanæ P. II. Art. ii., vi.

In his Apology for the Augsburg Confession, however, even the coldness of Melancthon is warmed in describing the hideous licentiousness caused by the law of celibacy (Lutheri Opp. Jenæ, T. IV. p. 252-3).

[1102](#) Deliberat. de Concordia etc. c. iii., v. (Goldast. I. 509).

[1103](#) See Letter of Bergenroth to Romilly, from Simancas, June 14th, 1863 (Cartwright's Memoir of Bergenroth, London, 1870, p. 124).

[1104](#) Sentent. Caroli V. § 5 (Ibid. I. 510).—Rescript. Caroli V. § 5 (Ibid. III. 512). Henke, Append. ad Calixt. pp. 595-6.

[1105](#) Kerksenbroch Bell. Anabaptist. cap. 15, 31.

[1106](#) How little the situation was comprehended is amusingly shown in a letter from an enlightened and liberal prelate, Johann Schmidt, Bishop of Vienna, to Ferdinand, in 1540, concerning some proposed negotiations then on foot for a reconciliation between the churches. He lays down as a condition

precedent to reunion that all the church lands confiscated by the Protestants shall be restored, and the monastic orders reestablished. The mesne profits, he admits, cannot be collected, but some composition for them should be made.—Le Plat, Monument. Concil. Trident. II. 649.

[1107](#) An elaborate series of documents relating to these transactions may be found in Goldast. Constit. Imp. I. 511, III. 172-235. Also in Le Plat, Monument. Concil. Trident. Vol. II.

[1108](#) Artic. Melanch. ad Regem Franciæ, No. x., xi. (Le Plat, op. cit. II. 785-7).

[1109](#) Lib. ad Rationem Concord. ineundam Art. xxii. § 13 (Goldast. II. 199).

[1110](#) Respons. Protestant. Art. x. § 3 (Ibid. II. 206). This was still more strongly insisted on in a paper subsequently drawn up by Bucer and presented in the name of the Protestants.—Respons. Protestant. c. 11-14 (Ibid. p. 213).

[1111](#) Le Plat, Monument. Concil. Trident. III. 152-3.

[1112](#) Et quanquam cum Apostolo sentiendum eum qui cœlebs est curare quæ sunt Domini etc. (I. Cor. vii.) eoque magis optandum multos inveniri clericos qui cum cœlibes sint vere etiam contineant, tamen quum multi qui ministerii ecclesiastici functiones tenent, jam multis in locis duxerint uxores, quas a se dimittere nolint; super ea re generalis concilii sententia expectetur, cum alioqui mutatio in ea re, ut nunc sunt tempora, sine gravi rerum perturbatione nunc fieri non possit.—Interim cap. xxvi. § 17.

Charles must have entertained the expectation that a change would be authorized by the council of Trent, or prudence would have dictated the policy of not leaving the matter open with the consciousness that the difficulty could only become daily greater by tolerance.

[1113](#) Le Plat, Monument. Concil. Trident. IV. 19-25.

[1114](#) Pallavicini, Storia del Concilio di Trento Lib. xii. c. 8. Zaccaria (Nuova Giustificaz. pp. 145, 266), while admitting the fact, states that the original of this document has been sought for in vain; though it had long before been published by Dom Martene (Ampliss. Collect. VIII. 1203). In appointing, however, Jodocus, Bishop of Lubec, as a substitute to exercise their powers, the legates require that priests thus restored shall abandon their wives—a condition not expressed in the original bull (Ibid. p. 1211).

Both from this and from the language of the Interim, it appears that even the Catholic priesthood had begun to arrogate for themselves the right of marriage. That such was the case to a great extent will be seen hereafter.

[1115](#) Le Plat, T. IV. p. 27.

[1116](#) Recess. ann. 1551 c. 10 (Goldast. II. 341).

[1117](#) Transac. Pataviens. Artic. de Relig. (Ibid. I. 573).

[1118](#) Ibid. I. 574.

[1119](#) Vision of Piers Ploughman, Wright's ed., pp. 300, 303.

[1120](#) Ibid. p. 325.—According to David Buchanan, Langlande was also author of a tract "Pro conjugio sacerdotum." (Ibid. Introduction, p. x.)

[1121](#) In a sermon before the Convocation of 1512, Colet is very severe upon the vices of the church—"we are troubled in these days by heretics—men mad with strange folly—but this heresy of theirs is not so pestilential and pernicious to us and the people as the vicious and depraved lives of the clergy"—and he urges the prelates to revive the ancient canons, the enforcement of which would purify the church. (Seeböhm's Oxford Reformers of 1498, p. 170. London, 1867.)

The title of this work seems to me a misnomer. Neither Colet nor Erasmus had the aggressive spirit of martyrdom which was essential to the character of a reformer in those fierce times. They could deplore existing evils, but lacked all practical boldness in applying remedies, and their influence is only to be traced in the minds which they unwittingly trained to do work which they themselves abhorred.

[1122](#) Thus, in his Epigrams, he ridicules the bishops as a class:—

"Tam male cantasti possis ut episcopus esse,
Tam bene legisti, ut non tamen esse queas.
Non satis esse putet, si quis vitabit utrumvis,
Sed fieri si vis præsul, utrumque cave."
T. Mori Opp. p. 249. Francofurti, 1689.

And he addresses a parish priest:—

"Quid faciant fugiantve tui, quo cernere possint,
Vita potest claro pro speculo esse tua.
Tantum opus admonitu est, ut te intueantur, et ut tu
Quæ facis, hæc fugiant: quæ fugis, hæc faciant."
Ibid. p. 247.

See also his epigrams "In Posthumum Episcopum," "In Episcopum illiteratum," "De Nautis ejicientibus Monachum," etc.

[1123](#) Responsio ad Lutherum, *passim*: "Pater, frater, potator Lutherus," seems to be a favorite expression, but is mild in comparison with others—"novum inferorum Deum," "Satanista Lutherus," "pediculoso fraterculo." Luther's friends are "nebulonum, potatorum, scortatorum, sicariorum, senatum," and More winds up his theological argument with—"furiosum fraterculum et latrinarium nebulonem cum suis furiis et furoribus, cum suis merdis et stercoribus cacantem cacatumque relinquere."

Luther was himself a master in theological abuse, but More's admiring biographer, Stapleton, boasts that the German was appalled at the superior vigor of the Englishman, and for the first time in his life he declined further controversy—"magis mutus factus est quam piscis." (Stapletoni Vit. T. Mori cap. iv.) As More, however, published the tract under the name of "William Rosse, an Englishman who had recently died in Rome, Luther's reticence is more easily to be accounted for".

[1124](#) In one passage More describes his Utopians as considering virtue to consist in living according to nature. “Nempe virtutem definiunt, secundum naturam vivere: ad id siquidem a Deo institutos esse nos.... Vitam ergo jucundam, inquit, id est voluptatem, tanquam operationum omnium finem, ipsa nobis natura præscribit: ex cujus præsripto vivere, virtutem definiunt” (Utopiæ Lib. II. Tit. de Peregrinatione). In another passage, however, he describes two sects or heresies, the one consisting of men who abstained from marriage and the use of flesh, the other of those who devoted themselves to labor, marrying as a duty and indulging in food to increase their strength, and says of them “Hos Utopiani prudentiores, at illos sanctiores reputant” (Ibid. Tit. de Religionibus).

[1125](#) Respons. ad Lutherum Perorat.

It should be borne in mind that this was written after his friend Erasmus had publicly given in his adhesion to marriage as the only remedy for sacerdotal corruption.

[1126](#) Ibid. Lib. I. cap. iv.

[1127](#) Froude’s England, Ch. x.

[1128](#) Wilkins III. 669, 678.

[1129](#) Card. Eboracens. Epist. v. (Martene Ampliss. Collect. III. 1289).

[1130](#) Strype’s Eccles. Memorials, T. I. App. p. 19.

[1131](#) Strype’s Memorials of Cranmer, Bk. II. ch. v.

[1132](#) Rymer’s Fœdera, XIV. 15.

[1133](#) Wilkins III. 704.—Bishop Burnet says that Wolsey’s design in procuring this Bull was to suppress all monasteries, but that he was persuaded to abandon his purpose on account of opposition and dread of scandals.—Hist. Reform. Vol. I. p. 20 (Ed. 1679).

[1134](#) Rymer, XIV. 24.—Confirmed by the king, January 7, 1525 (Ibid. p. 32).

[1135](#) Ibid. pp. 156-6, 172-5.

[1136](#) Ibid. pp. 240-44, 250-58. See a letter of the English ambassadors at Rome to Wolsey, describing a conference on this subject with the Pope, wherein he freely acknowledged the propriety of destroying those houses which were nothing but a “Scandalum religionis.”—Strype, Eccles. Memorials, I. App. 58.

[1137](#) Rymer, XIV. pp. 270-1.

[1138](#) Rymer, XIV. 272-3.

[1139](#) Ibid. 273-5.

[1140](#) Ibid. 291-3.

[1141](#) Ibid. 345-6. A document showing one phase of the struggle may be found in Strype’s Memorials I. Append. p. 89. It is to the credit of Wolsey that he

retained his interest in his colleges even after his fall. See his letter to Gardiner of July 23rd, 1530 (Ibid. p. 92).

[1142](#) Pecock's Records of the Reformation No. 276 (Vol. II. p. 259).

[1143](#) Wilkins III. 755-62.

[1144](#) Ibid. 770-82, 789.—Parliamentary Hist. of England, I. 525. In 1532 Henry had complained to his Parliament that the clergy were but half subjects to him, in consequence of their oaths to the pope, and he desired that some remedy should be found for this state of things (Ibid. p. 519).

[1145](#) Strype, Eccles. Memor. I. 195.

[1146](#) Suppression of Monasteries, p. 40 (Camden Soc.).—Strype, op. cit. p. 197.

[1147](#) Strype, op. cit. pp. 277-8.

[1148](#) Burnet I. 182.

[1149](#) Wilkins III. 787.

[1150](#) Suppression of Monasteries, p. 175.

[1151](#) Hist. Reform. I. 190-1.

[1152](#) Le Plat V. 244-5.

[1153](#) Suppression of Monasteries, p. 112.

[1154](#) Eccles. Memorials, I. 256-7.

[1155](#) Suppression of Monasteries, Nos. xvii., xxi., xxiv., xlii., xlv., xlvii., xcvi., &c.

[1156](#) Ibid. No. cxx.

[1157](#) Travels of Nicander Nucius, pp. 68-71 (Camden Soc.).

[1158](#) Strype, Eccles. Memor. I. 249.

[1159](#) As published in the Harleian Miscellany, the Beggars' Petition bears the date of 1538, but internal evidence would assign it to a time anterior to the suppression of the monasteries, and Burnet attributes it to the period under consideration, saying that it was written by Simon Fish, of Gray's Inn, that it took mightily with the public, and that when it was handed to the king by Ann Boleyn, "he lik'd it well, and would not suffer anything to be done to the author" (Hist. Reform. I. 160). Froude, indeed, assigns it to the date of 1528, and states that Wolsey issued a proclamation against it, and further, that Simon Fish, the author, died in 1528 (Hist. Engl. Ch. vi.), while Strype (Eccles. Memorials. I. 165) includes it in a list of books prohibited by Cuthbert, Bishop of London, in 1526. In the edition of 1546, the date of 1524 is attributed to it.

The tone of that which was thus equally agreeable to the court and to the city, may be judged from the following extracts, which are by no means the plainest spoken that might be selected.

“§ 13. Yea, and what do they more? Truly, nothing but apply themselves by all the sleights they may to have to do with every man’s wife, every man’s daughter, and every man’s maid; that cuckoldry should reign over all among your subjects; that no man should know his own child; that their bastards might inherit the possessions of every man, to put the right-begotten children clean beside their inheritance, in subversion of all estates and godly order.

“§ 16. Who is she that will set her hands to work to get three-pence a day, and may have at least twenty-pence a day to sleep an hour with a friar, a monk, or a priest? Who is he that would labour for a groat a day, and may have at least twelve-pence a day to be a bawd to a priest, a monk, or a friar?

“§ 31. Wherefore, if your grace will set their sturdy loobies abroad in the world, to get them wives of their own, to get their living with their labour, in the sweat of their faces, according to the commandment of God, *Gen.* iii., to give other idle people, by their example, occasion to go to labour; tye these holy, idle thieves to the carts to be whipped naked about every market-town, till they will fall to labour, that they may, by their importunate begging, not take away the alms that the good Christian people would give unto us sore, impotent, miserable people your bedemen.”

[1160](#) Articles devised by the Kinges Highnes Majestie, ann. 1536 (Formularies of Faith, Oxford, 1856 p. xxxi.).

[1161](#) Burnet I. 193-4, 222-4;—Parl. Hist. I. 526-7. To our modern notions, there is something inexpressibly disgusting in the openness with which bribes were tendered to Cromwell by those who were eager to obtain grants of abbey lands (Suppression of Monasteries, *passim*). On the other hand, the abbots and abbesses who feared for their houses had as little scruple in offering him large sums for his protection. Thus the good Bishop Latimer renders himself the intermediary (Dec. 16th, 1536) of an offer from the Prior of Great Malvern of 500 marks to the king and 200 to Cromwell to preserve that foundation; while the Abbot, of Peterboro’ tendered the enormous sum of 2500 marks to the king and £300 to Cromwell (Ibid. 150, 179). The liberal disposition of the latter seems to have made an impression, for, though he could not save his abbey, he was appointed the first Bishop of Peterboro’—a see erected upon the ruins of the house.

[1162](#) “They be very pore, and can have lytyll serves withowtt ther capacityes. The bischoyppys and curettes be very hard to them, withowtt they have ther capacityes.”—The Bishop of Dover to Cromwell, March 10th, 1538 (Suppression of Monasteries, p. 193). These “capacities” empowered them to perform the functions of secular priests. The good bishop pleads that certain poor monks may obtain them without paying the usual fee.

[1163](#) 27 Henry VIII. c. 25, renewed by 28 Hen. VIII. c. 6.—Parliament. Hist. I. 574.

[1164](#) Burnet I. 227-34; Collect. 160.—Wilkins III. 784, 792, 812.—Rymer XIV. 549.

[1165](#) 28 Henry VIII. c. 10.—Parl. Hist. I. 533.

[1166](#) Burnet I. 235-7. These pensions were not in all cases secured without difficulty, even after promises had been made and agreements entered into (Suppression of Monasteries, p. 126).

[1167](#) Suppression of Monasteries, p. 170.—Strype's Eccles. Memor. I. 262.

[1168](#) Strype, Memorials of Cranmer, Book i. Chap. ix.

[1169](#) Suppression of Monast. pp. 194, 203.

[1170](#) A letter from John Bartelot to Cromwell shows that the abbot purchased secrecy by distributing thirty pounds to those who detected him, and promising them thirty more. This latter sum was subsequently reduced to six pounds, for which the holy man gave his note. This not being paid at maturity, he was sued, when he had the audacity to complain to Cromwell, and to threaten to prosecute the intruders for robbery and force them to return the money paid. Bartelot relates his share in the somewhat questionable transaction with great naïveté, and applies to Cromwell for protection.—Suppression of Monasteries, Letter xxv.

[1171](#) This may have been true, for Dr. London was one of the miserable tools who are the fitting representatives of the time. His desire to discover the irregularities of the monastic orders arose from no reverence for virtue, for he underwent public penance at Oxford for adultery with a mother and daughter (Strype, Eccles. Memor. I. 376); and his zeal in suppressing the monasteries was complemented with equal zeal in persecuting Protestants. In 1543 he made himself conspicuous, in conjunction with Gardiner, by having heretics burned under the provisions of the Six Articles. His eagerness in this good work led him to commit perjury, on conviction of which he was pilloried in Windsor, Reading, and Newbury, and thrust into the Fleet, where he died.—Strype, Memorials of Cranmer, Book i. Chap. 26, 27.

In fact, Henry's capricious despotism rendered it almost impossible that he could be served by men of self-respect and honor.

[1172](#) Burnet I. 238-43.—See also Froude's Hist. Engl. III. 285 et seq. During his visitation (Aug. 27th, 1538), the Bishop of Dover writes to Cromwell, "I have Malkow's ere that Peter stroke of, as yt ys wrytyn, and a M. as trewe as that" (Suppression of Monasteries, p. 212). In a report of Dec. 28th, 1538, Dr. London observes, with dry humor, "I have dyvers other propre thinges, as two heddes of seynt Ursula, wich bycause ther ys no maner of sylver abowt them, I reserve tyll I have another hedd of herse, wich I schall fynd in my waye within theese xiiii. days, as I am creadably informyd" (Ibid. p. 234). Dr. Leighton writes in the same spirit to Cromwell—"Yee shall also receive a Bag of Relicks wherein ye shall see Stranger Things as shall appear by the Scripture. As God's Coat, or Ladie's Smock; Part of God's Supper, In cœna Domini; Pars petræ super qua natus erat Jesus in Bethlehem. Besides there is in Bethlehem plenty of Stones and sometimes Quarries, and maketh their mangers of Stone. The scripture of every thing shall declare you all. And all these of Mayden Bradley. Where is a holy Father Prior; and hath but six Sons and one Daughter married yet of the goods of the Monastery. And he thanketh God, he never meddled with married women; but all with Maidens, the fairest could be gotten. And always married them right well. The Pope, considering his fragility, gave him license to

keep a w——: and hath good writing, sub Plumbo, to discharge his conscience” (Strype, *Eccles. Memor.* I. 253).—Nicander Nucius (*op. cit.* pp. 51-62) relates some of the stories current at the time of the miracles engineered by the monks to stave off their impending doom.

[1173](#) *Parl. Hist.* I. 535.

[1174](#) 31 Henry VIII. c. 13 (*Parl. Hist.* I. 537).

[1175](#) 32 Hen. VIII. c. 24 (*Ibid.* 543-44).

[1176](#) Burnet I. 262-3.

[1177](#) Rymer XIV., XV.

[1178](#) 37 Hen. VIII. c. 4 (*Parl. Hist.* I. 561).

[1179](#) *Parl. Hist.* I. 537. Such hospitals, chantries, &c., as were spared by Henry VIII. were speedily swept away, as soon as Edward VI. succeeded to the throne, by the act 1 Edw. VI. c. 14 (*Parl. Hist.* I. 583).

[1180](#) This may readily be considered no exaggeration. A letter from John Freeman to Cromwell values at £80,000 the lead alone stripped from the dismantled houses (*Suppression of Monasteries*, p. 290).

[1181](#) Such is the substance of a memorandum in Henry’s own hand-writing (*Suppression of Monasteries*, No. 131, p. 263).

[1182](#) 31 Hen. VIII. c. 9 (*Parl. Hist.* I. 540).

[1183](#) Burnet I. 300.

[1184](#) Strype, *Eccles. Memor.* I. 345.

[1185](#) See letters of the Lord Chancellor Audley and the learned Sir Thomas Elyot to Cromwell.—Strype, *Eccles. Memor.* I. 263-5.

[1186](#) *Op. cit.* I. 392-403; II. 258-63.

[1187](#) 5-6 Edw. VI. c. 2 (*Parl. Hist.* I. 596).

[1188](#) 1 Edw. VI. c. 3.—*Parl. Hist.* I. 583.—Burnet II. 45. In 1538 the Bishop of Dover interceded with Cromwell for licenses to enable some ejected friars to abandon their monastic gowns, “For off trewth the harttes be clene from the relygyon the more parte, so they myght change ther cotes, the whyche they be not abull to paye for, for they have no thenge” (*Suppression of Monasteries*, p. 197).

[1189](#) *Fœdera*, T. XIV. p. 551.

[1190](#) Froude, *Hist. Engl.* IV. 543.

[1191](#) Thus “An Exposition into the sevenith Chapitre of the firste Epistle to the Corinthians” seems to have been almost entirely devoted to an argument against celibacy, adducing all manner of reasons derived from nature, morality, necessity, and Scripture, and describing forcibly the evils arising from the rule. The author does not hesitate to declare that “Matrimony is as golde, the spirituall

estates as dung,” and the tenor of his writings may be understood from his triumphant exclamation, after insisting that all the Apostles and their immediate successors were married—“Seeing that ye chose not married men to bishoppes, other Criste must be a foole or unrighteous which so did chose, or you anticristis and deceyvers.”

The “Sum of Scripture” was more moderate in its expressions. “Yf a man vowe to lyve chaste and in povertie in a monasterie, than yf he perceyve that in the monastery he lyveth woorse than he did before, as in fornication and theft, then he may leve the cloyster and breke his vowe without synne.”

Tyndale in “The Obedience of a Cristen Man” is most uncompromising. “Oportet presbyterem ducere uxorem duas ob causas.” ... “If thou bind thy self to chastitie to obteyn that which Criste purchased for the, surely soo art thou an infidele.”

The “Revelation of Anticriste” carries the war into the enemy’s territory in a fashion somewhat savage. “Keping of virginite and chastite of religion is a devellishe thinge” (Wilkins III. 728-34).

[1192](#) Strype, Memorials of Cranmer, Book III. Chapter 34.

[1193](#) For instances of these practices, see Froude’s England, Ch. III.

[1194](#) Wilkins III. 778.—Strype, in his “Memorials of Cranmer,” Bk. I. Chap. 18, gives this proclamation as dated Nov. 16, in the 30th year of Henry VIII. which would place it in 1538, and Bishop Wilkins also prints (III. 696) from Harmer’s “Specimen of Errors” the same with unimportant variations, as “given this 16th day of November, in the 13th year of our reign,” which would place it in 1521. It is impossible, however, at a time when even the Lutherans of Saxony had scarcely ventured on the innovation, that in England priestly marriage could already have become as common as the proclamation shows it to be. The bull of Leo X., thanking Henry for his refutation of Luther, was dated Nov. 4th, 1521, and we may be sure that the king’s zeal for the faith would at such a moment have prompted him to much more stringent measures of repression, if he had ventured, at that epoch, to invade the sacred precincts of ecclesiastical jurisdiction—a thing he would have been by no means likely to do. The date of 1521 is therefore evidently an error.

For the same reasons I have been forced to reject a discussion in convocation of the same year (Wilkins III. 697), in which the question of sacerdotal marriage was decided triumphantly in the affirmative. The proceedings are evidently those of Dec. 1547, in the first year of Edward VI.

[1195](#) Burnet’s Collections I. 319.

[1196](#) MS. State Paper Office (Froude, III. 65). Ap Rice’s report to Cromwell is sufficiently suggestive as to the interior life of the monastic orders to deserve transcription. “As we were of late at Walden, the abbot there being a man of good learning and right sincere judgment, as I examined him alone, showed me secretly, upon stipulation of silence, but only unto you as our judge, that he had contracted matrimony with a certain woman secretly, having present thereat but one trusty witness; because he, not being able, as he said, to contain, though he

could not be suffered by the laws of man, saw he might do it lawfully by the laws of God; and for the avoiding of more inconvenience, which before he was provoked unto, he did thus, having confidence in you that this act should not be anything prejudicial unto him.”

[1197](#) MS. State Paper Office (Froude, III. 372). It is not to be assumed, however, that the clergy were worse than the laity. During the visitation of the monasteries, Thomas Leigh, one of the visitors, says, in writing to Cromwell, Aug. 22, 1536, concerning the region between Coventry and Chester “For certain of the knights and gentlemen, and most commonly all, liveth so incontinently, having their concubines openly in their houses, with five or six of their children, and putting from them their wives, that all the country therewith be not a little offended, and taketh evil example of them” (Miscellaneous State Papers, London, 1778, I. 21). It perhaps would not be easy to determine the exact responsibility of the clergy for this immorality of their flocks.

[1198](#) Strype, Eccles. Memorials, Vol. I. Append. p. 176.

[1199](#) Burnet’s Collect. I. 362.

[1200](#) Formularies of Faith, Oxford, 1856.—Wilkins III. 826.

[1201](#) Suppression of Monasteries, pp. 160-1.

[1202](#) He made one exception. Nuns professed before the age of 21 were at liberty to marry after the dissolution of their houses, whereat, according to Dr. London, they “be wonderfull gladde ... and do pray right hartely for the kinges majestie” (Suppression of Monasteries, p. 214).

[1203](#) Strype’s Eccles. Memor. I. 320.

[1204](#) Burnet I. 254-55; Collect. 332, 347.

[1205](#) “Nothing has yet been settled concerning the marriage of the clergy, although some persons have very freely preached before the king upon the subject.”—John Butler to Conrad Pellican (Froude III. 381).

[1206](#) Burnet, Collect. I. 329.

[1207](#) Strype’s Eccles. Memor. I. 339, 343.

[1208](#) Strype’s Eccles. Memor. I. 344.—Wilkins III. 847.

[1209](#) Yet the moderate party ventured to submit to parliament “A Device for extirpating Heresies among the People,” among the suggestions of which was a bill for abolishing ecclesiastical celibacy, legalizing all existing marriages, and permitting the clergy in general “to have wives and work for their living”—Rolls House MS. (Froude III. 381).

[1210](#) Burnet I. 258-9.—31 Henry VIII. c. xiv. Mr. Froude endeavors to relieve Henry of the responsibility of this measure, and quotes Melanchthon to show that its cruelty is attributable to Gardiner (Hist. Engl. III. 395). He admits, however, that the bill as passed differs but slightly from that presented by the king himself, with whom the committee which framed it must have acted in concert. According to Strype, “The Parliament men said little against this bill,

but seemed all unanimous for it; neither did the Lord Chancellor Audley, no, nor the Lord Privy Seal, Cromwel, speak against it: the reason being, no question, because they saw the king so resolved upon it.... Nay, at the very same time it passed, he (Cranmer) stayed and protested against it, though the king desired him to go out, since he could not consent to it. Worcester (Latimer) also, as well as Sarum (Shaxton), was committed to prison; and he, as well as the other, resigned up his bishopric upon the act”—(Memorials of Cranmer, Book i. Chap. 19). This shows us how the royal influence was used. Cranmer, indeed, in his reply to the Devonshire rebels, when in 1549 they demanded the restoration of the Six Articles, expressly asserts “that if the king’s majesty himself had not come personally into the Parliament house, those lawes had never passed” (Ibid. App. No. XL.).

[1211](#) 31 Henry VIII. c. 6 (Parl. Hist. I. 536-40).

[1212](#) Parl. Hist. I. 540.

There is a story current that soon after the passage of the Act, the Duke of Norfolk, who had had so much to do with it, on meeting a former chaplain of his named Lawney, jocularly said to him “O, my Lawney (knowing him of old much to favor priests’ matrimony), whether may priests now have wives or no?” “If it please your grace,” replied he, “I cannot well tell whether priests may have wives or no; but well I wot, and am sure of it, for all your act, that wives will have priests.”—Strype’s Memorials of Cranmer, Book i. Chap. viii.

[1213](#) Dr. London chronicles the troubles of this class. “I perceyve many of the other sortt, monkes and chanons, whiche be yonge lustie men, allways fatt fedde, lyving in ydelnes and at rest, be sore perplexide that now being prestes they may nott retorn and marye” (Suppression of Monasteries, p. 215).

Nicander Nucius asserts that many did marry openly—“ἄλλους δδὲ γυναῖκας ἐννόμως συνεύνους εἰσαγομένους” (Op. cit. p. 71).

[1214](#) His first marriage was entered into while he was still quite young, and before he had taken orders. The second, however, shows that he acted with some independence, for it took place in 1531, before Henry’s open rupture with Rome, and while he was ambassador to the Emperor. At that time he was King’s chaplain and archdeacon of Taunton, and his nuptials therefore were plainly an indication of heresy.—Strype’s Memorials of Cranmer, Book i. Chap. iii., Book iii. Chap. xxvii.

[1215](#) Burnet I. 256-7. It was not until 1543 that he ventured to confess this to the king (Ibid. p. 328). At his trial in 1556 his two marriages were one of the points of accusation against him (Ibid. II. 339).

Sanders, in commenting upon Cranmer’s time-serving disposition, which enabled him to accommodate himself to Henry’s capricious opinions, and yet to enter fully into the reformatory ideas predominant under Edward VI., does not fail to satirize his connubial propensities. “Unum illud molestissime tamen ferens, quod meretricem quandam suam non poterat palam uxoris loco libere habere, quia id non laturum Henricum sciebat, sed partim domi eam occultare, partim cum foras prodiret, cista quadam ad id affabre facta inclusam, secum una circumferre cogeretur. Iste ergo jam desiit esse Henricianus, et tam ex immatura

regis Edouardi ætate quam ex Protectoris in sectas summa propensione, suæ statim simul et libidini et hæresi habenas laxandas statuit; nam et scorto suo mox est publice pro uxore usus, et catechismum Edouardo dedicatum, falsæ impiæque doctrinæ plenum, in lucem edidit.”—De Orig. et Prog. Schismatis Anglicani, p. 193 (Ed. 1586).

[1216](#) Melanchthon. Epist. Ed. 1565 p. 34.

[1217](#) 2-3 Edw. VI. c. 21 (Parl. Hist. I. 586).

[1218](#) 32 Hen. VIII. c. 10.—Burnet I. 282.—Parl. Hist. I. 575.

Richard Hilles, writing in 1541 to Henry Bullinger, assumes that this modification of the Six Articles only applied to those who were guilty of incontinence, and that it did not “appear to the king at all extreme still to hang those clergymen who marry or who retain those wives whom they had married previous to the former statute” (Original Letters, Parker Soc. Pub. p. 205)—but both Burnet and the Parliamentary History make no such distinction, and in the abstract of the bill as printed in the Statutes at Large (I. 281) it is described as applicable to “priests married or unmarried.”

[1219](#) [see transcriber’s notes} Hooper to Bullinger.—Original Letters, Parker Soc. Pub. p. 36.

[1220](#) Thus Dr. Parker, afterwards Archbishop of Canterbury, was married on June 24th, 1547, within six months after Henry’s death, to Margaret, daughter of Robert Harlston of Mattishall. As he had been in priest’s orders since 1527, he assumed a liberty which was not even asked of Parliament until nearly eighteen months later (see his autobiographical memoranda in his Correspondence, pp. vii., x., Parker Soc., 1853).

[1221](#) 1 Edw. I. c. I, 12 (Parl. Hist. I. 582-4).—Wilkins IV. 16.—Burnet, II. 40, 41; III. 189.

[1222](#) 2-3 Edw. VI. c. 21 (Parl. Hist. I. 586).—Burnet II. 88-9.

[1223](#) Wilkins IV. 26.—Cardwell's Documentary Annals, I. 59. Wilkins and Cardwell date this in 1547, which is evidently impossible. Burnet (II. 102) alludes to it under 1549, which is much more likely to be correct.

[1224](#) Sanderi Schisma Anglic. pp. 214-5.

[1225](#) Strype, Memorials of Cranmer, Bk. II. chap. 14.—Smith subsequently at Louvain continued to urge the necessity of celibacy and was answered by Peter Martyr. Strype calls him a filthy fellow, notorious for lewdness, and his championship of chastity excited some merriment. There is an epigram upon him by Lawrence Humphrey—

“Haud satis affabre tractans fabrilia Smithus
Librum de vita cœlibe composuit
Dumque pudicitiam, dum vota monastica laudat,
Stuprat, sacra notans fœdera conjugii.”
(Ibid. Chap. 25.)

[1226](#) The vast growth of the sheep-farms had long been a subject of complaint. Even as early as 1516, Sir Thomas More describes with indignant energy the misery caused by the ejectment of the agricultural population in order to form enormous sheep-walks, which were found more profitable to the landlords than ordinary farming. He declares that the sheep “tam edaces atque indomitæ esse cœperunt, ut homines devorent ipsos, agros, domos, oppida vastent ac depopulentur.”—Utopia, Lib. I.

[1227](#) Burnet II. 117-9.

[1228](#) Strype's Eccles. Memorials, II. 420.

[1229](#) Burnet II. Collect. 217. In the Latin version, “Episcopis, presbyteris et diaconis non est mandatum ut cœlibatum voveant; neque, jure divino coguntur matrimonio abstinere” (Wilkins IV. 76).

[1230](#) Strype's Eccles. Memorials, II. 355.

[1231](#) Ibid. p. 445.—“Our curate is naught, an Assehead, a Dodipot, a Lack-Latine, and can do nothing.”

[1232](#) 5-6 Edw. VI. c. 12 (Parl. Hist. I. 594).—Burnet II. 192.

It is curious to observe that the modern “Ritualistic” portion of the English clergy adopt the same line of argument from the marriage service of the Anglican ritual, and apply it not only to the priesthood but to the whole body of believers. See “The Church and the World,” edited by the Rev. Orby Shipley, 2d edition, 1866, p. 161.

[1233](#) Reform. Legg. Eccles. Tit. de Hæresibus. cap. xx. (Cardwell's Ed., Oxford, 1850, p. 20).—Cf. Tit. de Matrimonio c. ix. (p. 44).

[1234](#) Strype's Eccles. Memor. III. 20. This story derives additional piquancy from the fact that this Dr. Weston was somewhat notorious for uncleanness and was subsequently deprived of the Deanery of Windsor for adultery (Ibid. pp. 111-2).

[1235](#) 1 Mary c. 2 (Parl. Hist. I. 609-10).—Burnet II. 255.

[1236](#) Strype's Eccles. Memorials, III. 52.

[1237](#) Burnet II. Append. 264. According to Strype, Bonner's impatience did not wait for the royal injunctions, for in February he deprived of their livings all the married priests in his diocese of London and commanded them to bring all their wives within a fortnight in order that they might be divorced.—Memorials of Cranmer, Bk. III. chap. 8.

Julius III. issued a Bull, March 8th, 1554, defining Cardinal Pole's legatine powers, among which was that of removing the excommunication from married clerks and legitimating their children, the fathers being removed from function and benefice, separated from their wives, and subjected to penance (Cardwell's Documentary Annals, I. 131). This was the course adopted for a time, but as the kingdom was not yet formally reconciled to Rome, the action had was under the local authorities.

[1238](#) Strype's Eccles. Memor. III. Append. 33.—In the same place (p. 31) may be found a copy of the summons served upon offenders of this class.

[1239](#) Burnet II. 275 and Append. 256.—Rymer (T. XV. pp. 376-77) gives a similar commission dated March 9th, issued to Stephen Gardiner to eject the canons and prebendaries of Westminster in the same summary manner. The proceedings throughout England were doubtless framed on these models.

[1240](#) Burnet II. Append. 260.

[1241](#) Bishop Poynette wrote a book entitled "An Apologie on the Godly Marriadge of Priestes," in rejoinder to Martin's "Traictise declaryng and plainly prouyng that the pretensed marriage of priestes and professed persones is no marriage," which was a reply to Poynette's previous work. Bale also issued a bitter attack on Bonner's Articles (Cardwell's Documentary Annals, I. 135) and Dr. Parker, afterwards Archbishop of Canterbury, published a voluminous rejoinder to Martin.

[1242](#) Wilkins IV. 96-7.

[1243](#) Burnet II. 276; III. 225-6.

[1244](#) A specimen of the form of restitution subscribed by those who were restored on profession of amendment and repentance has been preserved—"Whereas ... I the said Robert do now lament and bewail my life past, and the offence by me committed; intending firmly by God's grace hereafter to lead a pure, chaste, and continent life ... and do here before my competent judge and ordinary most humbly require absolution of and from all such censures and pains of the laws as by my said offence and ungodly behavior I have incurred and deserved: promising firmly ... never to return to the said Agnes Staunton as to my wife or concubine, &c."—(Wilkins IV. 104).

[1245](#) Strype's Memorials of Cranmer, Bk. III. chap. 8.—Nov. 14th, 1554, we find a record of four priests doing penance in white shirts and holding candles at Paul's Cross, London, while Harpsfield preached a sermon.—Strype's Eccles. Memor. III. 203.

[1246](#) Parl. Hist. I. 616.

[1247](#) The Bull is dated December 24, 1554 (Wilkins IV. 111).—Parliament repealed the attainder of Cardinal Pole, November 22d, and on the 24th he arrived in London as legate (Burnet II. 261-2).

[1248](#) 1 and 2 Phil. and Mary c. 8 (Parl. Hist. I. 624). The title of the bill shows that, though the Parliament was almost exclusively Catholic, it was disposed to make its obedience to Rome the price for obtaining confirmation of the abbey lands—"A Bill for repealing all statutes, articles, and provisoes made against the See Apostolique of Rome, since the 20th of Henry VIII., and for the establishment of all spiritual and ecclesiastical possessions and hereditaments conveyed to the laity."

[1249](#) 2 and 3 Phil. and Mary, c. 4 (Parl. Hist. pp. 626-8).

[1250](#) Mag. Bull. Roman. T. I. p. 809.

[1251](#) Original Letters, Parker Soc. Pub. p. 149.

[1252](#) Parl. Hist. I. 626; II. 342.

[1253](#) Card. Poli Constit. Legat. Decret. v. (Wilkins IV. 800).

[1254](#) Strype's Parker, Book II. chap. vi. In 1561 the remains were exhumed from the stables of Dr. Marshall, the previous dean of Christ's Church, and reburied in the church, the precaution being taken of mingling them with the bones of St. Frideswide, so as to prevent any future profanation in case of another revolution of religion. The affair excited considerable attention at the time, and produced the following epigram:

Femineum sexum Romani semper amarunt:
Projiciunt corpus cur muliebres foras?
Hoc si tu quæras, facilis responsio danda est:
Corpora non curant mortua, viva petunt.

[1255](#) "That none of those priests that were, under the pretence of lawfull matrimony, married, and now reconciled, do privilie resorte to their pretended wives, or suffer the same to resorte unto them. And that those priests do in no wise henceforth withdrawe themselves from the mynisterie and office of priesthodde under the paine of the lawes"—Pole's Injunctions in Diocese of Gloucester (Wilkins IV. 146).

[1256](#) Wilkins IV. 157. Thus in the visitation of the diocese of Lincoln, the vicar of Spaldwick was presented for scandalizing his flock by carrying in his arms his child by a wife from whom he had been separated. At the same time a priest of Caisho named Nix was subjected to penance for consorting with his former wife, but was permitted to resume his functions—Strype's Eccles. Memor. III. 293.

[1257](#) Strype's Eccles. Memor. III. 111-12.

[1258](#) Wilkins IV. 169.

[1259](#) 1 Eliz. c. 1, 2, 4 (Parl. Hist. I. 646-76).

[1260](#) Burnet, II. 386-95.

[1261](#) Parker's Correspondence, p. 66.—Sanders does not fail to make the most of this refusal to legalize priestly marriage by act of Parliament, and of the hesitation which rendered the final decision a mere toleration and not an approval. "Clerus enim in Anglia novus, partim ex apostatis nostris, partim ex hominibus mere laicis factus, ut est valde spiritualis, primo quoque tempore de nuptiis cogitabat; multumque satagit, ut conjugia Episcoporum Canonicorum et cæterorum ministorum legibus approbarentur; sed obtineri non potuit, quia vel turpe videbatur ministerio, vel reipublicæ perniciosum. Edovardus quidem sextus omnes canonicas et humanas prohibitiones circa clericorum aut etiam religiosorum connubia lege comitali seu parlamentaria sustulerat; eam legem mox abrogavit Maria, nunc restituendam ac renovandam clamitant isti, sed non exaudiuntur: omnes tamen per totum fere regnum quia de dono [castitatis] (ut loquuntur) non sunt certi, non secundum leges, sed secundum indulgentiam; vel (ut illi dicunt) secundum scripturas, sed ad libidinem suam compositas, ineunt prima, secunda, vel etiam tertia conjugia, contra canones et morem non solum Latinorum sed etiam Græcorum; et prole ita abundant, ut ad illam sustentandam opibusque augendam, et populus supra modum gravetur, et ipsi misere beneficia sua expilent."—De Schismate Anglicano, Lib. III. (Ingoldstati, 1586, p. 299).

[1262](#) Strype's Annals, I. 81.

[1263](#) Royal Injunctions of 1559, Art. xxix. "Although there be no prohibition by the word of God, nor any example of the primitive church, but that the priests and ministers of the church may lawfully, for the avoiding of fornication, have an honest and sober wife, and that for the same purpose the same was by act of Parliament in the time of our dear brother King Edward the Sixth made lawful, whereupon a great number of the clergy of this realm were married and so continue; yet, because there hath grown offence and some slander to the church, by lack of discreet and sober behavior in many ministers of the church, both in chusing of their wives and undiscreet living with them, the remedy whereof is necessary to be sought; it is thought therefore very necessary that no manner of priest or deacon shall hereafter take to his wife any manner of woman without the advice and allowance first had upon good examination by the bishop of the same diocese and two justices of the peace of the same shire dwelling next to the place where the same woman hath made her most abode before her marriage; nor without the goodwill of the parents of the said woman if she have any living, or two of the next of her kinsfolks, or for lack of the knowledge of such, of her master or mistress where she serveth. And before she shall be contracted in any place, he shall make a good and certain proof thereof to the minister or to the congregation assembled for that purpose, which shall be upon some holy-day where divers may be present. And if any shall do otherwise, that then they shall not be permitted to minister either the word or the sacraments of the church, nor shall be capable of any ecclesiastical benefice. And for the marriages of any bishops, the same shall be allowed and approved by the metropolitan of the

province and also by such commissioners as the Queen's Majesty thereunto shall appoint. And if any master or dean or any head of any college shall purpose to marry, the same shall not be allowed but by such to whom the visitation of the same doth properly belong, who shall in any wise provide that the same turn not to the hindrance of their house"—(Wilkins IV. 186).

See also a letter of Theodore Beza, Zurich Letters, p. 247 (Parker Soc. Publications).

[1264](#) Cardwell's Documentary Annals, I. 309.

[1265](#) Strype's Parker, Book II. chap. v.—In 1569 the returns for the Archdeaconry of Canterbury show 135 married clergymen to 34 licensed preachers, and there is no mention of any unmarried men (Ib. III. xxiv.).

[1266](#) In the English version, as given by Burnet (Vol. II. Append. 217), there are 42 articles, of which this is the 31st. In the Latin edition (Wilkins IV. 236), there are but 39 articles, this being the 32d, which is the arrangement according to the standard of the Anglican church.

[1267](#) Wilkins IV. 189-91.—This commission was the commencement of the Court of High Commission, which played so lamentable a part in the troubles of the succeeding reigns. The result of its visitation in 1559 shows how little real conviction existed among the clergy who had been exposed to the capricious persecutions of alternating rulers. Out of 9400 beneficiaries in England under Mary, but 14 bishops, 6 abbots, 12 deans, 12 archdeacons, 15 heads of colleges, 50 prebendaries, and 80 rectors of parishes had abandoned their preferment on account of Protestantism (Burnet Vol. II. Append. 217), and of these it is fair to assume that the higher dignitaries at least had not been allowed to retain their positions.

[1268](#) Wilkins IV. 253.—Strype's Parker, App. liii.

[1269](#) In 1576 she declared to Grindal, then Archbishop of Canterbury, "that it was good for the church to have few preachers, and that three or four might suffice for a county; and that the reading of the Homilies to the people was enough."—Strype's Life of Grindal, p. 221.—See also Strype's Parker, Book II. chap. xx.

[1270](#) Strickland, Life of Queen Elizabeth, Chap. iv.

[1271](#) Strype's Annals, I. 364-5.

[1272](#) Parker's Correspondence, pp. 146-8.

[1273](#) Ibid. p. 152.

[1274](#) Parker's Correspondence, pp. 156-8.

[1275](#) Wilkins IV. 269.

[1276](#) Parker's Correspondence, p. 259.

[1277](#) Qui autem istis darent filias suas, ne protestantes quidem fere inveniebantur, nedum Catholici: primum quia existimant id esse per se infame,

ut sint vel dicantur uxores presbyterorum. Secundo, quia juxta leges regni non sunt adhuc vera sed adulterina conjugia, ac proinde proles illegitima. Tertio quia non accrescit his uxoribus aut liberis suis ex maritorum loco aut honore in Republica ulla dignitas aut existimatio, quod est contra naturam veri matrimonii. Non enim Archiepiscopus, Episcopus, aliusve hodie prælatus in Anglia si sit conjugatus, tribuit quicquam ex eo honoris vel præeminentia uxori suæ, non magis quam si esset ejus tantum concubina. Hinc sit ut nec eas Elizabetha in aulam, nec principum uxores in consortium ullo modo admittant, ne Archiepiscoporum quidem vocatas conjuges; sed debent eas mariti domi continere, pro vasis tantem libidinis aut necessitatis suæ. Quæ istis ergo conditionibus, vel summis prælatis conjungerentur, cum honestiores paucae aut nullae reperiebantur, quas poterant habere accipere fuit necesse. Sed et aliis modis utcumque istorum hominum cupiditati per magistratum civilem impositum est frænum. Nam et Collegiorum alumni qui in Anglicanis universitatibus admodum multi erant, otioque ac saturitate panis abundabant, ac admodum proveci ætate erant, cupiebant et ipsi habere uxores; sed videbatur inconueniens, et id privilegii Collegiorum tantum Rectoribus concessum est, cum hac tamen exceptione, ut conjuges seorsim plerunque extra Collegia constituent, rariusque eas intromittant.—De Schismate Anglicano Lib. III. (Ingoldstat. 1586, p. 300).

See also Florimund. Raemund. Histor. Memoral. Lib. VI. cap. xii.

Of course much allowance must be made for the statements of so keen a partisan as Sanders, and one who had suffered so much from those whom he satirized, yet he was a man of too much shrewdness to make statements which his contemporaries could recognize as entirely destitute of foundation.

Even to this day the position of the wives of the Anglican prelates is made a subject of ridicule by Catholic polemics. A recent Italian tract entitled “Il Celibato del sacerdozio Cattolico” remarks “Osservate piuttosto le mogli de’ vescovi e degli arcivescovi Anglicani, tenute esse in conto di concubine non hanno posto alcuno nella civile società.”—Panzini, Confessione di un Prigioniero, p. 472.

[1278](#) Zurich Letters, Second Series, p. 359 (Parker Society, 1845). Wibur was deprived for non-conformity in 1564, so that this must have been written subsequently (Strype’s Life of Grindal, p. 98).

[1279](#) Zurich Letters, First Series, pp. 164, 179.

[1280](#) “That, concerning Virginitie and the Single Life, he handled the case so finely that to his thinking, if he should have believed him, he could not find three good Virgins since Christ’s time. And that so he left the Matter with an Exhortation to all to Mary, Mary. Further, That he said in that Sermon that single-living Men, that is to say unmarried, and especially unmarried priests, lived naught. And that there in that City were lately presented five or six unmarried priests that kept five or six whores apiece; though there were not above four unmarried priests in the City in all.”—Strype’s Annals, I. 349.

[1281](#) “Where he alledgeth that he never called Priests Wives *Whores*, it is untrue. For three Women going through his Park, wherein is a path for footmen,

he supposing they had been Priests Wives called unto them, *Ye shall not come through my Park and no such Priests Whores.*”—Ibid. p. 358.

[1282](#) See a tract published against the rebels, attributed by Strype to Sir Thomas Smith, which ridicules the advocates of celibacy with a vigor reminding us of the Beggars’ Petition.—“This is a quarrel wholly like the old Rebels Complaint of Enclosing of Commons. Many of your *Disordered and evil disposed* Wives are much agrieved that Priests, which were wont to be Common be now made Several. *Hinc illæ lachrymæ.* There is Grief indeed, and Truth it is, and so shall you find it. Few Women storm against the marriage of priests, calling it unlawful and incensing Men against it, but such as have been Priests Harlots or fain would be. Content your Wives yourselves and let Priests have their own.”—Strype’s Annals, I. 558.

[1283](#) A causidico, medicastro, ipsaque artificum farragine, ecclesiæ rector aut vicarius contemnitur et fit ludibrio. Gentis et familiæ nitor sacris ordinibus pollutus censetur: fœminisque natalitio insignibus unicum inculcatur sæpius præceptum, ne modestiæ naufragium faciant, aut (quod idem auribus tam delicatulis sonat) ne clerico se nuptas dari patiantur.—T. Wood, Angliæ Notitia (Macaulay’s Hist. Engl. Chap. III.).

Lord Macaulay attributes the degraded position of the clergy to their indigence and want of influence. These causes doubtless had their effect, but the peculiar repugnance towards clerical marriage ascribed to all respectable women had a deeper origin than simply the beggarly stipends attached to the majority of English livings.

[1284](#) Rahlenbeck, L’Église de Liège, p. 49. The stern and self-centred soul which won for Idelette the hand of Calvin was unshaken to the last, as may be seen by his curious account of her death-bed, in a letter to Farel (Calvini Epistolæ, p. 111. Genève, 1617). His grief was doubtless sincere, but his friends were able to compliment him on his not allowing domestic affliction to interfere with his customary routine of labor (Ibid. p. 116).

[1285](#) I have not access to the original, but quote the following from Quick’s “Synodicon in Gallia Reformata,” London, 1692—“Art. xxiv..... We do also reject those means which men presumed they had, whereby they might be redeemed before God; for they derogate from the satisfaction of the Death and Passion of Jesus Christ. Finally, We hold Purgatory to be none other than a cheat, which came out of the same shop: from which also proceeded monastical vows, pilgrimages, prohibition of marriage and the use of meats, a ceremonious observation of days, auricular confession, indulgences, and all other such matters, by which Grace and Salvation may be supposed to be deserved. Which things we reject, not only for the false opinion of merit which was affixed to them, but also because they are the inventions of men, and are a yoke laid by their sole authority upon conscience” (Quick I. xi.).—See also the Confession written by Calvin in 1562, to be laid before the Emperor Ferdinand (Calvini Epist. pp. 564-66).

[1286](#) Discip. Chap. XIII. can. xxviii. (Quick, I. liii.).

[1287](#) Ibid. Chap. I. can. xlvii.

[1288](#) Chap. iv. Art. xii., Chap. xvi. Art. xiv. (Quick, I. 32, 38).

[1289](#) Prelates of high position were not wanting to the list of married men. Carracioli, Bishop of Troyes, and Spifame, Bishop of Nevers, were of the number. Jean de Monluc, Bishop of Valence (brother of the celebrated Marshal Blaise de Monluc, whose cruelties to the Huguenots were so notorious), married without openly apostatizing, and died in the Catholic faith. Cardinal Odet de Châtillon, Bishop of Beauvais, and brother of the Admiral, became a declared Calvinist, married Mdlle. de Hauteville, and called himself Comte de Beauvais. He seems to have retained his benefices, and was still called by the Catholics M. le Cardinal, “Car il nous estoit fort à cœur,” says Brantôme (Discours 48), “de luy changer le nom qui luy avoit esté si bien seant.”

[1290](#) Édit de Roussillon, Art. 7 (Isambert, Anciennes Lois Françaises, XV. 172). This edict was cited in the proceedings of the case of Dumonteil, about the year 1830, of which more hereafter.

[1291](#) Édit de 1576, Art. 9.—Édit de Poitiers, Art. Secrets, No. 8 (Isambert, T. XV. pp. 283, 331).

[1292](#) Concil. Rotomag. ann. 1581 cap. de Monasteriis § 32 (Harduin. X. 1253).

[1293](#) Édit de Nantes, Art. Secrets, No. 39 (Isambert, T. XVI. p. 206).

[1294](#) Grégoire, Hist, du Mariage des Prêtres en France, pp. 58-9.

[1295](#) A decision rendered on the argument of the distinguished avocat général Omer Talon expressly states “que la prohibition du mariage des personnes constituées dans les ordres étant une loi de l’État aussi bien que de l’Église, un prêtre malgré sa profession de Calvinisme, était demeuré sujet aux lois de l’État, et dès lors n’avait pas pu valablement contracter mariage.”—Bouhier de l’Écluse, de l’État des Prêtres en France, Paris, 1842, p. 12.

[1296](#) Knox, History of the Reformation in Scotland, p. 3 (Ed. 1609).

[1297](#) Knox, pp. 15-16.—Calderwood’s Historie of the Kirk of Scotland, I. 83-5 (Wodrow Soc.).

[1298](#) Knox, pp. 16-17.

[1299](#) Buchanan. Rer. Scot. Hist. Lib. xv.—Robertson, Hist of Scot. B. II.—Knox, 71-2.—Calderwood I. 222.

[1300](#) Buchanan. Lib. xv.

[1301](#) Wilkins IV. 207.

[1302](#) Concil. Edinburgens. ann. 1549 can. 1, 2 (Wilkins IV. 48).

[1303](#) Wilkins IV. 207-10.—Knox, p. 129. It should be borne in mind in estimating these penalties that they are expressed in pounds Scots, which were about one-twelfth of the pound sterling. These canons, it appears, were not adopted without opposition. According to Knox, “But herefrom appealed the Bishop of Murray and other prelates, saying That they would abide the canon

law. And so they might well enough do, so long as they remained Interpreters, Dispensators, Makers and Disannullers of the law ” (Op. cit. 119). It was doubtless on some such considerations that the Archbishop of St. Andrews relied when he consented to waive his exemption in this matter. His personal reputation may be estimated from the remark of Queen Mary when, in December, 1566, he performed the rite of baptism on James VI. She forbade him to use the popular ceremony of employing his saliva, giving a reason which was in the highest degree derogatory to his moral character (Sir J. Y. Simpson, in Proceedings of Epidemiological Society of London, Nov. 5th, 1860).

[1304](#) Robertson, Hist. Scot. Bk. II.

[1305](#) Thus the Parliament of 1560, which effected a settlement of the Reformed Religion, was urged to its duty by a Supplication presented in the name of “The Barons, Gentlemen, Burgesses, and other true Subjects of this Realm, professing the Lord Jesus within the same,” which, among its arguments against Catholicism, does not hesitate to assert—“Secondarily, seeing that the sacraments of Jesus Christ are most shamefully abused and profaned by that Romane Harlot and her sworne vassals, and also because that the true Discipline of the Ancient Church is utterly now among that Sect extinguished: For who within the Realme are more corrupt in life and manners than are they that are called the Clergie, living in whoredom and adultery, deflouring Virgins, corrupting Matrons, and doing all abomination without fear of punishment. We humbly, therefore, desire your Honors to finde remedy against the one and the other”—Knox, p. 255.

[1306](#) This doctrine bore its full share in the history of the Scottish reformation. Two years after the execution of the protomartyr, Patrick Hamilton, in 1528, his sister Catharine was arraigned on account of her belief in justification through Christ. Learned divines urged upon her with prolix earnestness of disputation the necessity of works, until her patience gave way, and she rudely exclaimed, “Work here and work there, what kind of working is all this? No work can save me but the work of Christ my Saviour.” By the connivance of the king she was enabled to escape to England.—Calderwood’s Historie, I. 109.

[1307](#) Knox, p. 283.

[1308](#) Knox, p. 119.—Calderwood, I. 423.

[1309](#) Thus the assembly of the church in 1562, drew up a remonstrance to the queen, in which they requested that “in every Parish some of the Tythes may be assigned to the sustentation and maintenance of the poor within the same: And likewise that some publike relief may be provided for the poor within Burroughs”—Knox, p. 339.

[1310](#) Ibid. p. 278. The Book was signed at Edinburgh, Jan. 27, 1561, but only after the adoption of a proviso—“Provided that the Bishops, Abbots, Priors and other Prelates and Beneficed men, which else have adjoyned themselves to us, brooke the revenues of their Benefices during their lifetimes.”—Worldly wisdom certainly was not lost sight of in the ardor of a new and purer religion.

[1311](#) Knox, 136.

[1312](#) Calderwood's Historie, I. 123-4.

[1313](#) Knox, p. 65.—Knox's characteristic comment on this is—"When he had said these words, they were all dumb, thinking it better to have ten concubines than one wife."

[1314](#) Calderwood I. 231 sqq.

[1315](#) Knox, p. 130.—Calderwood I. 337 sqq.—Burnet vol. II. The implacable character of Scottish persecution is aptly illustrated by a proclamation issued by Cardinal Beaton in 1540 for the purpose of spiting Sir Ralph Sadler, the English envoy at Edinburgh. It was during Lent, and the proclamation declared "that whosoever should buy an egg or eat an egg within those dioceses should forfeit no less than his body to be burnt as a heretic, and all his goods confiscate to the king"—Froude, Hist. Engl. IV. 54.

It was a life and death struggle, in which quarter could neither be asked nor given.

[1316](#) Knox, p. 263.

[1317](#) Ibid. p. 304.

[1318](#) Strype's Parker, Book II. ch. xviii.

[1319](#) The orator of the council of Cologne in 1527, sharply reminded the assembled prelates that they must set the example of obeying their own statutes, and that they could not expect the people to reverence the true church so long as it notoriously bade defiance to the laws of God and man. "Quasi præscribatur lex cujus sancitor voluerit esse exlex. Parendum enim est legi quam quisque sancit.... Audis præterea non licere plurimas habere uxores, quæ animum tuum alliciant; non decere domi alere tot scorta tot Veneres, quæ te continue exedunt, tuamque substantiam disperdunt.... His et aliis datur scandalum populo; præbetur offendiculum vulgo, cui hac tempestate vilet et contemptui est ordo quilibet sacer. Vilis plebs te sacerdotem nunc cachinnis atque ludibriis incessit et odit, qui calumniandi ansam ultro præbueris. Dicit namque: tot hic, aut ille, scorta domi suæ ex patrimonio Crucifixi nutrit, quo non sordida scorta, sed pauperes Christi forent sustentandi"—Concil. Colon. ann. 1527 (Hartzheim VI. 210-213).

So at the council of Augsburg, in 1548, the orator dwelt upon the advantage which the heretics derived from the sins of the clergy—"Non estis nescii, quemadmodum nos hæretici apud populum perpetuo traducant: nos scortatores, nos ambitiosos, nos avaros, nos ignavos, et rudes esse, nos otio semper, luxui et ventri servire, identidem vociferantur.... Superbe itaque illi: sed utinam non nimium sæpe vere: nam si vera potius hoc loco, quam plausibilia, dicenda sint; negare certe non possumus, quin maximam ad nos accusandos occasionem sæpe dederimus"—Concil. Augustan. ann. 1548 (Hartzheim VI. 388).

[1320](#) Concil. Parisiens. ann. 1521 (Martene Ampl. Coll. VIII. 1018).

[1321](#) Quisquis igitur contra sacrorum conciliorum et patrum decreta, sacerdotes, diaconos aut subdiaconos lege cœlibatus non teneri docuerit aut liberas illis concesserit nuptias, inter hæreticos, omni tergiversatione rejecta numeretur.—Concil. Paris. ann. 1528, Decret. 8.

This, I think, is the first authoritative promulgation of Damiani's doctrine, which, as we shall hereafter see, was adopted and extended by the council of Trent.

[1322](#) Ibid. can. 3, 27.

[1323](#) Pierre de la Place, *Estat de Rel. et Rep.* Liv. III.

[1324](#) Concil. Narbonnens. ann. 1551 can. 22 (Harduin. X. 468).

[1325](#) Consilium de Emend. Eccles. (Le Plat, Monument. Concil. Trident. II. 598).

[1326](#) Bull, ad Canonum (Mag. Bull. Roman. Ed. 1692, I. 682).

Alexander III., in prohibiting the sons of priests from enjoying their fathers' benefices, had permitted it if a third party intervened, and a dispensation for the irregularity were obtained. The letter of this law was frequently observed, but its spirit eluded by nominally passing the preferment through the hands of a man of straw, and it was this abuse which Clement desired to eradicate.

[1327](#) Consilium de Emend. Eccles. (Le Plat, Monument. Concil. Trident. II. 599).

[1328](#) Wilkins IV. 209.

[1329](#) Le Plat, V. 88. The opinion which was held of the venality of the Roman Court in such matters is forcibly expressed in the instructions given to Lanssac, the French ambassador at Trent. He is ordered to press the abolition of the Papal power of dispensation "attendu que nul n'en est refusé s'il a argent."—Ibid. p. 153.

[1330](#) Ejus sanctitati lex non sit præscribenda.—Ibid. p. 385.

[1331](#) Tax. Sac. Pœnitent. Ed. Gibbings, p. 13.—This was only one carlino (the tenth part of a ducat, equal to about fourpence), more than the charge for the bastard of a layman.

[1332](#) In 1526 or 1527, the authorities of Seville endeavored to regulate this by forbidding certain articles of dress to concubines, whether of ecclesiastics or laymen.—Wahu, *Le Pope et la Société Moderne*, Paris, 1879 p. 395.

[1333](#) Ribadeneira Vit. Ignat. Loyol. Lib. II. cap. v.

Ribadeneira was one of Loyola's early disciples, and is therefore good authority. His description would show that permanent unions were formed, respected by the people but not recognized by the church, in the same manner as those alluded to by Bishop Pelayo, two centuries earlier.

[1334](#) Diaz de Luco, *Practica Criminalis Canonica* cap. lxxiii. (Venetiis, 1543).

[1335](#) Concil. Coloniens. ann. 1536, P. II. c. 28. Six years later, in 1542, Bishop Hermann embraced Lutheranism, married, and in 1546, was driven from his see and retired to his county of Wied, where he died some years afterwards, at the ripe age of 80 years.

[1336](#) Concil. Salisburg. XLI. (Dalham, Concil. Salisburgens. pp. 296-322).

[1337](#) Acta Concil. Trident. (Martene Ampl. Coll. VIII. 1063-9).

[1338](#) Sarpi, Istor. del Concilio Trident. Lib. vi. (Ed. Helmstad. II. 140).—Cf. Le Plat, V. 337-8.

[1339](#) Le Plat, V. 235.

[1340](#) Charles was careful to put on record his ceaseless endeavors with Clement and Paul to obtain the convocation of a council and the numberless promises made to him, for the evasion of which reasons were always found.—Commentaires de Charles-Quint, pp. 96-7 (Paris, 1862).

[1341](#) Select. Harl. Miscell., London, 1793, p. 137.

[1342](#) The temper with which the Protestants now viewed the council is well expressed in a letter from Aonio Paleario written in 1542 or 1545, from Rome to Luther, Melanchthon, Bucer, and Calvin, urging them by no means to sanction the assembly with their presence—(Published by Illgen, 4to. Leipzig, 1833).

[1343](#) There is something very amusingly suggestive in the guarded manner in which Charles alludes to the translation of the Council—“O ditto Papa Paulo por respeito, que o moveram (os quaes Deus permitta que forse bons) tratton de avocar e transferir a Bolonha”—(Commentaires, p. 98).

[1344](#) That the complaints of the Protestants were well founded, is evident from the secret instructions given, Feb. 20th, 1552, by Julius III. to the Bishop of Monte Fiascone, when sending him as legate to Charles V. He was to explain to the emperor that the Council would not discuss the propositions of the heretics “nimirum quod iudex non respondet parti, ne ex iudice se partem constituat;” and he is further to explain that “petentes commune concilium hæretici et schismatici repellendi sunt a conciliis universalibus ... nullo modo communicandum esse concilium cum hæreticis et schismaticis, qui sunt extra ecclesiam ... sed bene possunt admitti, ut possint interesse pro convincendis etiam pluries eorum erroribus.”—Le Plat, Monument. Concil. Trident. T. IV. p. 534-5.

[1345](#) The feeling entertained by Pius towards the council is shown by his remark, in Dec. 1561, to M. de Lisle, the French ambassador, that it had been called simply for the benefit of France—“dautant que ledit concile, qui est de peu de besoin pour le reste de la chrestienté, superflu aux Catholiques et non désiré des papes” (Le Plat, Monument. Concil. Trident. IV. 742).

[1346](#) The characteristic correspondence is in Le Plat, IV. 678-87.

[1347](#) Charles declares that at the commencement of his pontificate Paul was earnestly desirous of reforming the abuses of the church, but that his zeal rapidly diminished and he followed the example of Clement in contenting himself with empty promises.—“Com tudo depois com o tempo aquellas mostras e ardor primeiro se foi esfriando, e seguindo os passos e exemplo do Papa Clemente, com boas palavras prolongon e entretene sempre a convocação e ajuntamento do concilio” (Commentaires, p. 97).

[1348](#) Per serrar la bocca agl' heretici i quali non facevano altro in voce et in scritto che dir male della corte di Roma.—Carraciolo, Vita di Paolo IV. MS. Br. Mus. (Young, Life and Times of Aonio Paleario, I. 261).

[1349](#) Concilium de Emendanda Ecclesia (Le Plat, Monument. Concil. Trident. II. 601, 602).

[1350](#) It has been customarily stated by Catholic writers that this proceeding of Paul IV. was directed not against his own work, but against the heretically commentated editions, but this, I believe, has been refuted by Schelhorn. See Gibbings's "Taxes of the Penitentiary," p. xlix.

[1351](#) Published by Clausen, Copenhagen, 1829.

[1352](#) Lib. ad Ration. Concord. ineundam Art. xxii. § 13 (Goldast. II. 199).

[1353](#) Formul. Reformat, cap. xvii. § 4 (Goldast. II. 335).

[1354](#) Ibid. cap. iii. § 1, cap. v. § § 7, 9.

[1355](#) Synod. Augustan. ann. 1548 c. 10.

[1356](#) Synod. Trevirens. ann. 1548.

[1357](#) Synod. Trevirens. ann. 1548 cap. ii.

[1358](#) Synod. Trevirens. II. ann. 1549 cap. xi., xix.

[1359](#) Mandat. de abjic. Concub. (Hartzheim VI. 353).

[1360](#) Ibid. p. 358. A Diocesan Synod was also held at Liége, Nov. 15, which gave offending clerks fifteen days to part with their concubines (Ibid. VI. 395).

[1361](#) Concil. Coloniens. ann. 1549 cap. Quibus possint.—Cap. de Monach. conjugat.—Cap. de Concub. Monach.—Cap. Comœdias.

[1362](#) Hartzheim VI. 767, 781.

[1363](#) Dalham, Concil. Salisburg. pp. 328, 337 (Concil. Salisburg. XLIV. can. vii.).

[1364](#) Gropp, Collect. Script. Wirceburg. I. 311.—Hartzheim VI. 359, 417. In the epistle convoking his council, Bishop Melchior of Wurzburg alluded passionately to the evils everywhere existing: "Videtis percussum pastorem; videtis oves dispersas; videtis impudentem peccandi licentiam; videtis adversus pietatem audaciam tum loquendi tum disputandi impiissimam, et indies scelerata gliscere schismata" (Ibid. X. 753).

[1365](#) Concil. Mogunt. ann. 1549 c. 82, 102.

[1366](#) Synod. Camerac. ann. 1550 (Hartzheim VI. 654).

[1367](#) Le Plat, Monument. Concil. Trident. IV. 611.

[1368](#) Consult. Imp. Ferdinand. (Le Plat, V. 235). It would be impossible to conceive a darker picture of clerical life than is given in this document. "Ejici autem nunc clerum, conculcari pedibus, pro nihilo haberi et tanquam publicum

offendiculum devoveri diris aut paulo plus, tam verum est quam minime falsum, cleri mores insulsos esse, vanos esse, turpes esse, æque ecclesiæ perniciosos ac Deo execrabiles”—Ibid. p. 237.

[1369](#) Krasinski, Reformation in Poland, I. 190, 285.

[1370](#) Hosii Dialogus de ea, num Calicem Laicis et Uxores Sacerdotibus permitti etc. Dilingæ, 1558.

[1371](#) Pallavicini, Storia del Concil. di Trento, Lib. XIV. c. 13.

Twelve years before, his uncle, the Bishop of Liège, in promulgating the Augsburg formula of reformation, had made a similar assertion—“Preterquam quod hoc infœlici sæculo, quo omnis caro corrumpit viam suam, præsertimque ordo clericorum et ecclesiasticorum, nimium degenerant, plus quam unquam est necessaria”—Concil. Leodiens. ann. 1548 (Hartzheim VI. 392). The increased emphasis of Ferdinand is a measure of the success which had attended the reformatory movements of Charles V. during the interval.

In such a condition of ecclesiastical morality it is no wonder that even in orthodox Vienna the most popular theme on which preachers could expatiate was the corruption of the church.—See the Emperor Ferdinand’s secret instructions to his envoy in Rome, March 6th, 1560, in Le Plat, Monument. Concil. Trident. IV. 622.

[1372](#) Pallavicini, loc. cit. That the Catholic church of Germany had become widely infected with this Lutheran heresy is also shown by the fact that in 1548 the Archbishop of Cologne had found it necessary to prohibit throughout his province all marriages of priests, monks, and nuns, and had pronounced illegitimate the offspring of such unions.—Hartzheim VI. 357.

[1373](#) Le Plat, Monument. Concil. Trident. IV. 644.

[1374](#) Pallavicini, Lib. xv. c. 5.—The duke, though no bigot, was a good Catholic.

[1375](#) Pallavicini, Lib. xvii. c. 4. At the request of Duke Albert, the question was also mooted at the provincial synod of Salzburg, held in 1562 for the purpose of sending delegates to Trent.—Hartzheim VII. 230.

[1376](#) Articuli de Reform. Eccles. No. 14, 15, 18.—Goldast. II. 376.

[1377](#) Consultat. Imp. Ferdinandi (Le Plat, V. 249, 252).

[1378](#) Considerat. Cæsar. Majest. sup. Matrim. Sacerd. Nos. 6, 7, 8, 10, 11, 12, 13, 15, 16, 17 (Goldast. II. 382-3—Le Plat, VI. 315).

[1379](#) Le Plat, V. 154, 208, 211.

[1380](#) Le Plat, V. 562-3.

[1381](#) Capi dati da’ Francesi cap. 1—(Baluz. et Mansi IV. 374) Comp. Zaccaria pp. 133-4.

[1382](#) Votum castitatis sacris ordinibus conjunctum, atque vota quæ in probatis religionibus emittuntur, et alia quæcunque rite suscepta, fideliter sunt

observanda.—Le Plat, IV. 649.

[1383](#) Ibid. iv. 756, 760, 761, 765.—The 182 articles which, according to Archbishop Bartholomew, required reform in the internal discipline of the church form as damaging a commentary upon its condition as any of the attacks of the Protestants.

[1384](#) Art. v.—Lettere del Arcivesc. Calini (Baluz. et Mansi IV. 295).—Le Plat, V. 674.

[1385](#) Lettere di Calini (Ibid. 326).

[1386](#) See the apologetic letter of the nuncio to the emperor, Jan. 19th, 1562 (Le Plat, op. cit. V. 320). Ferdinand remonstrated earnestly, but did not venture to rebel against their decision (Ibid. 351-60).

[1387](#) Ibid. p. 388.

[1388](#) Lettere del Nunzio Visconti (Baluz. et Mansi III. 453).

[1389](#) Disputat. Joann, de Ludegna (Harduin. X. 359). The learned doctor presents his argument in the form of a colloquy between himself and Calvin, and its spirit may be gathered from the first speech of Calvin, in which he is made to declare that he is endeavoring to find arguments with which to defend himself and his apostate strumpets.

[1390](#) Sarpi, Lib. vii. (Opere, II. 280, Helmstat, 1761).

[1391](#) Sarpi (loc. cit.).

[1392](#) Pallavicini, Lib. xvii. c. 4.

[1393](#) Sarpi, Lib. viii. p. 315.

[1394](#) Concil. Trident. Sess. xxiv. De Sacrament. Matrimon.

Can. ix. Si quis dixerit clericos in sacris ordinibus constitutos, vel regulares castitatem solemniter professos, posse matrimonium contrahere, contractumque validum esse, non obstante lege ecclesiastica vel voto; et oppositum nihil aliud esse quam damnare matrimonium; posseque omnes contrahere matrimonium, qui non sentiunt se castitatis, etiamsi eam voverint, habere donum; anathema sit; quum Deus id recte petentibus non deneget, nec patiatur nos supra id quod possumus tentari.

Can. x. Si quis dixerit statum conjugalem anteponendum esse statui virginitatis vel cœlibatus, et non esse melius ac beatius manere in virginitate aut cœlibatu, quam jungi matrimonio, anathema sit.

[1395](#) The feelings which the Council excited among the Protestants are expressed with more vigor than elegance by Alexander Nowell, at that time Dean of St. Paul's—"No Sir, your Prelats sat not there about conning of Articles of Religion, or to Dispute with Hereticks to vanquish them. A few louzy Friars, whom no Man would fear but in his Pottage or Egg-py, did serve that Turn well enough. And your great Prelates devised the while by that long Consultation, how by Sword and Fire they might most cruelly murder all true Christians,

whom they call Hereticks; and now do labour to put in Execution such their bloody Devices.”—Strype’s Annals, I. 377.

[1396](#) Concil. Trident. Sess. xxv. Decret. de Reformat. cap. 14,15.

[1397](#) Ma noi facciamo quello che ci si permette di fare, non quello che vorremmo.—Examinatore, Firenze, 1868, p. 15.

[1398](#) Lett. No. LXIX. (Ed. Amsterd. II. 299). This and the concluding letters are not in Mansi’s edition.

[1399](#) Pallavicini, Lib. xxii. c. 10.

[1400](#) Goldast. II. 380.—Le Plat, VI. 310, 312.

It is observable from this that many priests left the church and married without formally embracing the Lutheran faith, and a return of these was anticipated from a relaxation of the canons. Others, as may be gathered from various references above, married and still performed their regular duties. Of these, some no doubt acted in virtue of dispensations granted by the nuncios of Paul III., after the promulgation of the Interim, but many did so in utter contempt of discipline. An illustrative example of the latter class may be found in the well-known Stanislas Orzechowski, whose marriage, notwithstanding his prominent position, shows the laxity of opinion which prevailed on the subject. As priest and canon of Przemysl in Poland, his marriage naturally gave great offence to his colleagues, which was not diminished by a dissertation which he wrote in favor of priestly marriage. This, he subsequently claimed, had been prepared for the purpose of laying before the council of Trent, and its publication had arisen from the indiscretion of a friend to whom he had entrusted it. Somewhat contaminated with the new ideas by his education at Wittenberg, he sturdily refused to give up either his wife or his position. His consequent excommunication he disregarded, though according to his own account he gave up on marrying his benefices and the ministry (Lettera a Guilio III. trad. di B. Leoni, Milano, anno. VI.), and notwithstanding this he had a very narrow escape from the death-penalty, and his condemnation excited a commotion throughout Poland that was very favorable to the spread of the reformed opinions (Orichovii Annales, pp. 71-84, 108, Ed. 1854). At length the feeling against the pretensions of the church became so strong that the Diet of 1552 removed all the civil and temporal penalties of excommunication, so that he triumphed for the time. When in 1556, the legate Lippomani held a synod at Lovictz, he called to account those who had connived at so great an irregularity. They denied granting the dispensation, saying that they had only suspended the censures until the pleasure of the pope should be known; but at the same time many prelates used all their influence with Lippomani to obtain one. Lippomani declared that he had no power to grant it, nor would he do so if he could, seeing that Orzechowski defended himself on heretical grounds (Concil. Lovitiens.—Labbei et Coleti Supp. T. V. p. 702). In 1561 Orzechowski, in his address to the synod of Warsaw, admitted that he had sinned, but claimed that he had been punished sufficiently —“Si quis igitur a me quærat; Num uxorem sacerdos duxerim? Duxisse me fatebor. Peccasti igitur? Peccavi. Pœnas ergo peccati debes? Debui et persolvi” (Doctrina de Sacerd. Cœlibatu, Varsaviæ, 1801). He therefore complained of the persecutions to which he was exposed on account of his wife, and he petitioned

both the pope and the council of Trent for a dispensation. While the Tridentine fathers refused it, some authors assert that it was granted by Pius IV. to him as an exceptional case “tibi soli Orichovio,” but careful investigation has failed to discover the Bull, and, according to Zaccaria the pope merely sent secret orders to his legate Commendone not to allow Orzechowski to be molested, but at the same time to give no publicity to an act of tolerance in contravention of the canons of the council of Trent (Grégoire, *Hist du Mariage des Prêtres en France*, pp. 51-55).

In his answer to Fricius, Orzechowski assumes that he was absolved from his excommunication by the Legate—“Præterea a sententia excommunicationis, qua eram a Joanne Episcopo Premisliensi, ob hanc eandem uxorem, ex ecclesia pulsus, a Legato Romani Petri absolutus cum sim, nihil feci contra ilium” (*ap. Doctrin. de Sacerd. Cœlibat.* p. 24). He also alleges the extraordinary excuse that he abandoned the priesthood before his marriage.

The history of Orzechowski, with probably a less fortunate result, is no doubt that of innumerable others, whose obscurity has prevented their sufferings from being known beyond their own narrow circle.

Strype (*Annals*, I. 485-6) asserts that after the accession of Queen Elizabeth the Catholic emissaries in England had a general dispensation to marry, in order to assist their concealment and to further the design of creating schism in the Anglican church. He gives as his authority one Malachi Malone, a converted Irish friar.

[1401](#) Le Plat, *Monument. Concil. Trident.* VI. 331.

[1402](#) This was not his first attempt of this kind. In 1540 he had called upon John Cochläus to examine the Confession of Augsburg and report as to what points were reconcilable with Catholicism and what were not. Cochläus responded in an elaborate dissertation, wherein he took strong ground against abandoning celibacy, but admitted that he was utterly unable to suggest any remedy for the evils resulting from it,—especially the “scandalosus presbyterorum in seculo concubinitus, præsertim apud plebanos in pagis, qui communiter cum ancillis rem domesticam gubernare necessitate quadam coguntur.”—Le Plat, II. 667.

[1403](#) G. Cassandri Consult, xxiii., xxv. (Le Plat, VI. 761-2, 783-4).

[1404](#) Wicelii *Via Regia, De Conjug. Sacerd.*

Both these tracts were printed with other controversial matter, by Hermann Conring, 4to. Helmstadt, 1569.

[1405](#) Goldast. II. 381.

[1406](#) Le Plat, VI. 335.

[1407](#) De Thou, Lib. xxxvii.

[1408](#) In 1560 Ferdinand addressed to Pius IV. an earnest request that a special dispensation might be granted to Maximilian, then king of Bohemia, authorizing him to receive the communion in both elements. In this he stated that his son's

scruples of conscience on the subject were so strong that he had abstained for three years from taking the sacrament. In the secret instructions to the Imperial ambassador accompanying this request, the latter is furnished with elaborate reasons to prove that the suspicions entertained at Rome of Maximilian's orthodoxy were unfounded.—Le Plat, Monument. Concil. Trident. IV. 619-23.

[1409](#) Le Plat, VI. 336.

[1410](#) Struvii Corp. Hist. German. II. 1097.

[1411](#) Bernardi Sermo. 66, in Cantica, cap. i.

[1412](#) Le Plat, Monument. Concil. Trident. V. 340.

[1413](#) The council of Trent has never been received in France. For a résumé of the efforts made to obtain its adoption and their uniform lack of success, see Chavart, Le Célibat des Prêtres, pp. 507-12.

[1414](#) In August, 1564, Philip II. had ordered its publication in the Low Countries, but Margaret of Parma had hesitated to obey in consequence of the intense opposition excited by its interference with local liberties and franchises, as it completed and crowned the centralizing policy which rendered the papacy supreme over all local churches. It was not until Dec. 18, 1565, that it was finally promulgated, under imperative commands from Philip. It is characteristic of Philip's habitual double-dealing, however, that while his public orders commanded the reception of the Council without exception, he secretly reserved the rights of himself and his subjects (Le Plat, Concil. Trident. VII. Præf. p. vi.).

[1415](#) By a Bull dated July 18, 1564, Pius IV. fixed May 1, 1564, as the time when the Tridentine canons became the law of the church. His letter to the Archbishop of Bremen with an official copy and directions as to its promulgation, is dated Oct. 3d of the same year (Hartzheim VII. 25).

It would seem to be a work of supererogation for a learned Italian lawyer to write an elaborate treatise, dedicated to Pius IV., against the abolition of celibacy, yet Marquardo dei Susani thought it worth while to do this in his "Tractatus de Cœlibatu Sacerdotum non abrogando," 4to. Venice, 1565.

[1416](#) Bull. Cum primum § 12 (Mag. Bull. Roman. II. 180).

[1417](#) "Plerosque ... abjecto Dei timore et sine ulla hominum verecundia, concubinas palam habere, easque perinde, ac si legitimæ eorum uxores essent, in ecclesiis et aliis locis publicis conspici, vulgo iisdem, quibus illi vocantur, officiorum et dignitatum nominibus appellatas; eoque hæreses tantopere crevisse, ac multiplicatas fuisse; quod ecclesiastici tam turpiter et nequiter vivendo, omnem plane existimationem amiserint, et in summam non apud hæreticos modo, sed etiam Catholicos contemptionem venerint.... Nisi enim tam nefandum concubinatus vitium extirpetur, nullam spem reliquam esse videmus reprimi posse hæreses. Sed timemus (quod Deus avertat) ne brevi tempore istæ, quæ supersunt, Catholicorum reliquias amittantur, et omnis prorsus Catholicæ religionis cultus apud vos extinguatur."—Breve Pii V. ad Archiep. Salzburg. (Hartzheim VII. 231).

[1418](#) Bull. Horrendum (Mag. Bull. Roman. II. 267).

[1419](#) Dalham, Concil. Salisburgens. p. 556.

[1420](#) De Thou, Hist. Univers. Lib. xxxviii. ann. 1566.

[1421](#) Bull. Quæ ordini.—How difficult was the task thus undertaken is admitted in the Bull itself—“Quia vero difficile nimis esset, præsentis quocumque illis opus erit proferre” (Ibid. II. 323-4).

[1422](#) Bull. Ad Romanum. (Mag. Bull. Roman. II. 325).

[1423](#) Synod. August. ann. 1610 P. III. c. iii. § 1 (Hartzheim IX. 59).

[1424](#) In hac etiam urbe meretrices ut matronæ incedunt per urbem, seu mula vehuntur, quas affectantur de media die nobiles familiares cardinalium clericique. Nulla in urbe vidimus hanc corruptionem, præterquam in hac omnium exemplari, habitant etiam insignes ædes: corrigendus etiam hic turpis abusus.—Le Plat, Monument. Concil. Trident. II. 604.

[1425](#) De Thou, Lib. xxxix.

[1426](#) Bull. Postquam verus (Mag. Bull. Roman. II. 567)—“Certum nequeat suæ testimonium continentiae exhibere.”

[1427](#) Fleury, Liv. CLXXI. chap. 104 et seq.

[1428](#) Muratori, Annal. ann. 1569.—Henrion, Hist. des Ordres Religieux I. 196.—Fleury, Liv. CLXXI. chap. 26.—De Thou, Lib. L.—The calm Muratori stigmatizes the Umiliati as “troppo scorretto e corrotto ordine,” and Henrion, who cannot certainly be regarded as a prejudiced authority, declares that “les excès des Humiliés surpassoient ceux des laïques les plus débauchés.” Pius V., in his Bull suppressing the order, is equally emphatic, and vouches for the truth of the miracle by which the life of St. Charles was preserved.—Bull. Quemadmodum sollicitus (Mag. Bull. Rom. II. 326).

[1429](#) Vû que par toute l’Italie on le vit reconnoître pour l’usage et observations de toutes les ordonnances, on n’en voit une seule entretenue de celles qui concerne la reformation de la vie et mœurs des ecclésiastiques.... Et ce peut dire pour ce regard que l’église n’est en autre lieu de la Chrétienté si déréglée et difforme qu’ès pays où le pape a commandement et puissance absolu.—Le Plat, VII. 259.

[1430](#) Concil. Mediolanens. ann. 1565 P. II. Const. xiv. (Harduin. X. 661)—Concil. Mediolanens. ann. 1582 Const. xiv. (Ibid. p. 1117).

[1431](#) Concil. Sipontin. ann. 1567 De Vit. et Honest. Cleric.—Concil. Ravennat. ann. 1568 De Vit. et Honest. Cleric. c. v.—Concil. Urbinat. ann. 1569 De Vit. et Honest. Cleric. c. vi.—Concil. Florent. ann. 1573 Rubr. xxxvii. c. 3, 4.—Concil. Neapol. ann. 1576 cap. xxii.—Concil. Consentin. ann. 1579 Sess. iv.—Concil. Salernit. ann. 1596 cap. xviii.—Concil. S. Severin. ann. 1597 De Vit. et Honest. Cleric.—Concil. Amalfitan. ann. 1597 De Vit. et Honest. Cleric. c. v.—(Labbei et Coleti Supplement. T. V. pp. 827-1331).

[1432](#) The documents are in Le Plat, Monument. Concil. Trident. VII. 199-201. For the condition of morals in the church of Holland, see Synod. Harlem. ann. 1564; Synod. Ultraject. ann. 1564; Concil. Ultraject. ann. 1565 (Hartzheim VII.

5, 22, 137). It was to the publication of the council of Trent that William of Orange attributed the inevitable revolution which followed (Stradæ de Bell. Belgic. Lib. iv.).

[1433](#) Synod. Salisburg. ann. 1569 Const. xxvii. cap. xviii., xix., xx., xxi., xxii. (Hartzheim VII. 306-8).

[1434](#) Concil. Salisburg. XLVII. (Dalham, Conc. Salisb. p. 583).

[1435](#) Visitat. Salisburg. ann. 1616 Tit. i. cap. vi. (Hartzheim IX. 266).

[1436](#) Decret. Reformat. Pragenses. (Hartzheim VII. 53).

[1437](#) Statut. Rural. Julii Wirceburg. P. iii. c. iv. (Gropp Script. Rer. Wirceburg. I. 471-4). It is somewhat remarkable that Bishop Julius attributes the prohibition of marriage to the Council of Nicæa. After describing the custom of the Greek church, he proceeds, "Permissio vero et consuetudo illa duravit usque ad Nicænum concilium, in quo generali decreto abrogata est, statutumque ne aliquis habens uxorem consecratur sacerdos"—a falsification which is equally singular, whether it proceeded from ignorance or fraud, and an admission that celibacy was not of apostolic origin which was rare in a Catholic prelate of that period.

[1438](#) Synod. Gnesnens. c. xxxiii. (Hartzheim VII. 891).

[1439](#) Synod. Wratislav. ann. 1580 (Hartzheim VII. 890).

[1440](#) Synod. Olomucens. ann. 1591 c. xiii. (Hartzheim VIII. 352).

[1441](#) Synod. Osnabrug. ann. 1628 (Hartzheim IX. 431).—As usual, a distinction is drawn between those who thus formed permanent, though illicit connections, and others who indulged in promiscuous license—"alii vaga dissoluti lascivia, tanquam equi emissarii, ad incontinentissimum quodque scortum aut adulteram adhinniunt trahuntque ingentes liberorum spuriorum greges. Hæc in propatulo sunt; quæ vero in occulto fiunt ab ipsis, turpe est et dicere."

[1442](#) Llorente, Histoire Critique de l'Inquisition d'Espagne, Chap. xxviii. Art. iii. No. 7.

[1443](#) Statut. Diœces. Pragenses. ann. 1565 (Hartzheim VII. 26).

[1444](#) Synod. Salisburg. ann. 1569 (Hartzheim VII. 407).

[1445](#) Le Plat, VII. 238.

[1446](#) Synod. Oriolan. ann. 1600 cap. xxxviii. (Aguirre, VI. 457).

[1447](#) Henr. Cuyckii Speculum Concubinariorum Sacerdotum, Monachorum ac Clericorum; Coloniae, 1599.

[1448](#) Synod. Constant. ann. 1609 (Hartzheim VIII. 838). Another orator, Dr. Mayer, S. J., though more cautious in his deductions, was equally outspoken in his denunciations of the wickedness of the clergy (Ibid. p. 831).

[1449](#) Synod. Antverp. ann. 1610 (Hartzheim VIII. 979).

- [1450](#) Damhouder. *Rerum Crimin. Praxis* cap. xxxvii. No. 25 (Antwerp. 1601).
- [1451](#) Synod. Boscodunens. II. ann. 1612 (Hartzheim IX. 200).
- [1452](#) Synod. Osnabrug. ann. 1625 cap. v., x. Hartzheim IX. 350.—Synod. Osnabrug. ann. 1628 (Ibid. p. 428).
- [1453](#) Synod. Monasteriens. ann. 1652 (Hartzheim IX. 786-7).
- [1454](#) Synod. Colon. ann. 1662 P. III. Tit. i. cap. 1 § iii. (Hartzheim IX. 1006).
- [1455](#) Mag. Bull. Roman. Ed. Luxemb. 1742, T. VI. App. p. 2.
- [1456](#) Pierre de la Place, *Estat. de Relig.* etc. Liv. iii.
- [1457](#) Quick, Synod. Gall. Reform. I. 18.
- [1458](#) Fleury, *Hist. Eccles.* Liv. CLVII. Nos. 37-42.
- [1459](#) Chavard, *Le Célibat des Prêtres*, p. 401.
- [1460](#) Concil. Remens. ann. 1564, Stat. xvii. (Harduin. X. 477).
- [1461](#) Concil. Camerac. ann. 1565, Rubr. viii. c. 3.—At this council, which was held in June, 1565, the council of Trent was formally adopted. As forming part of *Flandre Française*, Cambray may properly be considered as French, though Francis I., by the treaty of Madrid in 1526, had been compelled to surrender his sovereignty, and till a hundred years later it continued under Spanish dominion.
- [1462](#) Concil. Camerac. ann. 1567 c. iii. (Hartzheim VII. 216).
- [1463](#) Synod. Camerac. ann. 1631 Tit. xviii. c. xiv. (Ibid. IX. 562).
- [1464](#) Claudii Episc. Ebroicens. Statut. cap. iii. § 1 (Migne's Patrol. Tom. 147 pp. 244-5.)
- [1465](#) Concil. Remens. ann. 1583 cap. xviii. § 5 (Harduin. X. 1293).
- [1466](#) Concil. Turon. ann. 1583 cap. xv. (Ibid. p. 1481).
- [1467](#) Concil. Avenionens. ann. 1594 can. xxxii. (Ibid. p. 1854).
- [1468](#) Concil. Burdigalens. ann. 1624 cap. xiii. § 2. (Harduin. XI. 96).
- [1469](#) Synod. Tornacens. ann. 1574 Tit. xii. c. 5, 6, 7 (Hartzheim VII. 780).—Synod. Audomarens. ann. 1583 Tit. xvi. c. 2 (Ibid. VII. 947). Concil. Burdigalens. ann. 1583 can. xxi. (Harduin. X. 1360).—Concil. Bituricens. ann. 1584 Tit. xlii. can. 1-4 (Ibid. X. 1503-4).—Concil. Aquens. ann. 1585 cap. de Vit. et Honestate Cleric. (Ibid. X. 1547).—Concil. Narbonnens. ann. 1609 cap. xli. (Ibid. XI. 96).
- [1470](#) Du Fail, whose high official position in the Parlement of Rennes precludes the supposition of any tendency to Calvinism, devotes one of his discourses (*Contes et Discours d'Eutrapel* No. xx.) to the evils entailed by celibacy on the church and on society, quoting the exclamation of Cardinal Contarini to Velly the French ambassador, "O quæ mala attulit in ecclesia cœlibatus ille!" It is true that such stories as "Frater Fecisti" are not historical

documents, yet they have their value as indicating the drift of public feeling and the convictions forced upon the minds of the people by the irregularities of the clerical profession. The same lesson is taught by Boccaccio, Piers Ploughman, Chaucer, Poggio, the Cent Nouvelles Nouvelles, and all the other records of the interior life of the 14th, 15th, and 16th centuries.

[1471](#) Le Plat, Monument. Concil. Trident. vii. 136.—Collect. Synod. Mechlin. Tom. I. pp. 39, 57.—Synod. Mechlin. ann. 1570 Tit. xiv. (Ibid. I. 118).—Synod. Lovaniens. ann. 1574 (Ibid. I. 191).—Synod. Provin. Mechlin. ann. 1607 Tit. xviii. c. viii. (Ibid. I. 395).—Synod. Diœces. Mechlin. ann. 1607 Tit. xvii. c. vi. (Ibid. II. 237).—Congregat. Archipresbyt. ann. 1613 (Ibid. II. 271).—Tertia Congregat. Episc. ann. 1624 (Ibid. I. 466).—Ibid. I. 514.

Synod. Augustan. ann. 1567 P. iii. c. ii. (Hartzheim VII. 182).—Synod. Constant. ann. 1567 P. ii. Tit. i. c. 9 (Ibid. VII. 541).—Synod. Ruremond. ann. 1570 (Ibid. VII. 653).—Synod. Boscodunens. ann. 1571 Tit. xiv. c. ii. (Ibid. VII. 723).—Synod. Warmiens. ann. 1577 c. i. (Ibid. VII. 871).—Synod. Mettens. ann. 1604 c. xlviii., liii., lxii. (Ibid. X. 768-70).—Synod. Brixiens. ann. 1603 De discip. cler. c. xviii. (Ibid. VIII. 576).—Synod. Namurcens. ann. 1604 Tit. viii. c. vi. (Ibid. VIII. 623).—Synod. Constant. ann. 1609 P. ii. Tit. xvii. c. 7 (Ibid. VIII. 906).—Synod. Mettens. ann. 1610 Tit. xi. c. xi. (Ibid. VIII. 962).—Synod. Antverp. ann. 1610 Tit. xvii. c. vi. (Ibid. VIII. 1003).—Statut. Visitat. Salisburgens. ann. 1616 Tit. i. c. vi. (Ibid. IX. 266).—Synod. Iprens. ann. 1629 c. xx. (Ibid. IX. 496).—Synod. Namurcens. ann. 1639 Tit. xix. c. ix., x. (Ibid. IX. 592-3).—Synod. Audomar. ann. 1640 Tit. xiv. c. vii. (Ibid. X. 802).—Synod. Colon. ann. 1651 P. ii. c. ii. § 1 (Ibid. IX. 742).—Synod. Hildesheim. ann. 1652 (Ibid. IX. 805-6).—Synod. Colon. ann. 1662 P. iii. Tit. ii. c. 1, 2, 3 (Ibid. IX. 1008-11).—Statut. Synod. Trevirens. ann. 1678 c. xi., xii., xiii., xiv. (Ibid. X. 60).—Statut. Synod. Argentinens. ann. 1687 De clericis addit. i. (Ibid. X. 180).—Synod. Brugens. ann. 1693 Tit. v. § 2 (Ibid. X. 202).—Cod. Canon. Mettens. ann. 1699 Tit. x. c. xviii. (Ibid. X. 245).—Synod. Bisuntin. ann. 1707 Tit. ii. c. xxv. (Ibid. X. 291).—Synod. Culmens. et Pomesan. ann. 1745 c. ix. (Ibid. X. 517).

Concil. Toletan. ann. 1565 Act. ii. cap. xxii.; Act. iii. cap. xix., xxv. (Aguirre V. 396, 405-6).—Concil. Valentin. ann. 1565 Tit. ii. cap. xviii., xix. (Ib. 425).—Concil. Toletan. ann. 1582 Act. III. Decret. xxxv. (Ib. VI. 12).—Concil. Tarraconens. ann. 1591 Lib. i. Tit. viii.; Lib. iii. Tit. ii. (Ib. 256, 271-3).—Synod. Oriolan. ann. 1600 cap xxxiii. (Ib. 456).

[1472](#) Ratio est quia tunc non dimittit habitum ut periculose vagetur, sed ut commodius fornicetur, vel liberius furetur.—Apud C. Chabot, Encyclopédie Monastique p. 24 (Paris, 1827).

[1473](#) Spatharius, Aurea Methodus corrigendi regulares, 1625, p. 57—"atque mea sententia, in totalem ordinis ruinam et destructionem singularum religionum" (Apud Chabot, op. cit. p. 95).

[1474](#) Concil. Mexican. I. ann. 1555 cap. lvii.—The first and second Mexican Councils are not contained in Aguirre's collection, but were printed, together with the third, by Archbishop Lorenzana, in two folio volumes, Mexico, 1769.

The Third Council has also been reprinted in Mexico, in 1858, as a manual of existing local ecclesiastical law.

[1475](#) *Constituciones Sinodales de Santafé*, 1556 cap. iv. (Groot, *Hist. Eccles. y Civil del Nuevo Reino de Granada*, T. I. Append, ii. p. 497).

[1476](#) *Synod Diœc. Limens.* III. ann. 1585 cap. xi., lxvii. (Aguirre, VI. 193, 198).

[1477](#) *Concil. Mexican.* I. ann. 1555 cap. li.—*Concil. Mexican.* III. ann. 1585 Lib. v. Tit. x. § 8.

[1478](#) Aguirre, VI. 51, 55.—The canons of the council directed against concubinage &c. are Act. III. c. 18, 19, 20, 23, 24 (*Ibid.* pp. 40-41).

[1479](#) *Synod. Diœc. Limens.* III. ann. 1585 cap. xxxvi.—*Synod.* VIII. ann. 1594 cap. xxxvi.—*Concil. Provin. Limens.* III. ann. 1601 Act. II. Decret. iv. (Aguirre, VI. 197-8, 436, 479).

[1480](#) *Mendieta, Historia Eccles. Indiana*, Lib. iv. cap. xlvi. (Mexico, 1870).

[1481](#) *Memorias de los Vireyes del Perú*, Lima, 1859, T. III. pp. 63-70.

[1482](#) *Synod. Diœc. Limens.* III. ann. 1585 cap. xli.—V. ann. 1588 cap. ix. (Aguirre VI. 198, 216).

[1483](#) *Concil. Mexican.* I. ann. 1555 cap. lxxxi.

[1484](#) *Concil. Mexican.* III. ann. 1585 Lib. v. Tit. x. § 7.

[1485](#) Notes 57 and 229, pp. 452, 549.

[1486](#) *Concil. Trident. Sess. XXIV. De Reform. Matrim.* c. viii.—It requires some artful special pleading on the part of Rivera and of the authorities on whom he relies to reconcile this Mexican laxity with the instructions of the council of Trent.

[1487](#) For the brutal details of the questions which the confessor was required to ask of his penitents, female as well as male, see *Burchardi Decretorum* Lib. XIX. c. v. I dare not give even a specimen.

[1488](#) *Concil. I. Toletan.* ann. 398 can. vi. For the custom of the early church in the matter of the confession of sins, see *Socrates*, H. E. v. xix., and *Sozomen*, H. E. vii. xvi.—In the ninth century it was still an open question whether sacerdotal confession was necessary, v. *Concil. Cabillon.* II. ann. 813 c. xxxiii. (Cf. c. xxv. xxxii.). It was finally settled and auricular confession made obligatory by the Council of Lateran in 1215 (*Concil. Lateranens.* IV. ann. 1215 c. xxi.).

[1489](#) *Gratian. Caus.* xxx. q. i. can. 8—I accept this decretal as genuine on Jaffé's authority, though its authenticity seems to me more than doubtful.

[1490](#) *Gratian. Caus.* xxx. q. i. can. 9, 10.

[1491](#) See ante, passim, especially p. 350.

[1492](#) Calixti II. Serm. I. de S. Jacob. (Migne's Patrolog. T. 163 p. 1390).—The genuineness of these sermons has been doubted, but they are unquestionably, if not by Calixtus, by a writer nearly contemporary.

[1493](#) Perrens, Jérôme Savonarole, p. 71. See also Cornelius Agrippa, *De Vanitate Scientiar.* c. lxiv.

[1494](#) Limborch *Hist. Inquisitionis* p. 34.

[1495](#) Bernard. Diaz de Luco *Pract. Crimin. Canon.* cap. LXXV., LXXVI. (Ed. 1543, pp. 72-3).

[1496](#) Llorente, *Hist. de l'Inquisition d'Espagne*, Ch. xxviii. Art. i. No. 4.

[1497](#) Bull. *Cum sicut nuper* (Mag. Bull. Rom. II. 4. Ed. 1742).

[1498](#) Reg. Gonsalvii Montan. *Inquisit. Hispan. Exemplis Illustrata*, pp. 184 sqq. (Ed. Heidelbergæ, 1567).

[1499](#) Llorente, loc. cit. Nos. 6-8.

[1500](#) Bull. *Universi Dominici Gregis.* (Mag. Bull. Rom. III. 484).

In Spain, by the Carta Acordada of Aug. 3d, 1629, the Bull of Gregory XV. was to be referred to in the Edict of Denunciation; and by the Carta of Sept. 12th, 1634, a clause was to be added to the Edict to the effect that notwithstanding the Bull, the offence was reserved exclusively to the Inquisition.—*Breve Resumen de las Cartas Acordadas antiguas y modernas, dispuesto por Abecedario, s. v. Solicitante* (MS. Bib. Reg. Hafniens. No. 218*b*, p. 264). That the Court of Rome kept faith in the matter of solicitation would seem to be proved by a case occurring in 1695, when Dr. Augustin Velda, rector of La Sallana in Valencia was accused before the Inquisition, and fled to Rome, where he presented himself to the Sacred Congregation and was ordered to return. This he did, but with what result is not noted (*Ibid.* p. 339). [This exceedingly interesting MS. is a manual for use in one of the tribunals of the Spanish Inquisition, compiled about the year 1670, with notes bringing it down to the middle of the 18th century. I take this occasion of expressing my obligations to the gentlemen in charge of the Royal Library of Copenhagen, of the Bodleian Library of Oxford, and of the Royal Library of Munich, for their courtesy in communicating to me a number of MSS.]

[1501](#) Referred to in a Decree of 1745 (Bullar. Benedicti XIV. T. I. p. 291).

[1502](#) Pontas, *Dict. de Cas de Conscience*, Paris, 1741, T. I. p. 862.—Amort, *Diet. Selectt. Casuum Conscientiæ*, Aug. Vind. 1733, T. I. pp. 704-5. From the latter we learn that a few years previously the Franciscans of Bavaria had agreed to receive the Bull in so far as to prohibit any of their confessors from absolving a penitent who had been solicited by those of their own order, unless she would permit him to denounce the culprit to the Superior—an example which the writer wishes were followed elsewhere, as it would be very useful in repressing many scandals which afflicted the German church.

[1503](#) Rodriguez, *Nueva Somma de 'Casi de Coscienza*, P. I. cap. LIII. No. 10.

[1504](#) Rod. à Cunha pro SS. D. N. PP. Pauli V. Statuto nuper emisso in Confessarios Feminas solicitantes Quæst. xxii. No. 3; xxiii. No. 4, 5, 6, 8, 11, 12, 14 (4to. Benavente 1611).

[1505](#) Ant. de Sousa Opusc. circa Constit. Pauli PP. V. in Confessarios allicientes etc. 4to. Ulyssip. 1623, Tract. i. cap. xviii.

[1506](#) Ibid. Tract. ii. cap. xviii. No. 9-12.

[1507](#) MS. Bib. Reg. Hafniens. No. 218*b*, p. 264.

[1508](#) Ibid. pp. 264-5.

[1509](#) Llorente, Chap. xxviii. Art. i. Nos. 20, 23.

[1510](#) Ibid. Art. ii.

[1511](#) Ibid. Ch. xl. Art. ii. Nos. 2-14.

[1512](#) Le Plat, Monument. Concil. Trident. II. 602.—Caraffa and his coadjutors, indeed, went so far as to suggest the entire suppression of the conventual orders (Ibid. 601).

[1513](#) A printed copy of this Bull occurs in some voluminous pleadings between the church of Cordova and the Inquisition, in 1643.—MS. Bibl. Bodl. Arch. S. 130.

[1514](#) De Potter, Vie de Scipion de'Ricci, T. I. pp. 87 sqq. 258 sqq.

[1515](#) Michelet, La Sorcière, Ch. ix.

[1516](#) Llorente, Chap. xxviii. Art. i. No. 14.

[1517](#) The dangerous suggestiveness of the questions asked in the confessional was recognized, and confessors were sometimes warned to be careful.—Synod. Diœces. Mechlin. ii. ann. 1609 Tit. v. cap. i.

[1518](#) See, for instance, Concil. Toletan. ann. 1582, Decret. xxviii., xxix. (Aguirre, VI. 11).—Synod. Oriolan. ann. 1600 cap. xix. (Ib. p. 450).—Synod. Beneventan. ann. 1693 Tit. liv. c. iii. (Collect. Lacens. I. 94).—Synod. Neapol. ann. 1699 Tit. xi. c. i. No. 11 (Ib. p. 232). Also a curious list of twenty abuses of the confessional in a letter from the Bishop of Antwerp to the Archbishop of Mechlin in 1624 (Synodicon Mechliniense, T. I. p. 474).

[1519](#) Instructions for a Parish Priest, p. 27 (Early Eng. Text Soc. 1868).

[1520](#) As specimens of this, I may refer to Cardinal Cozza's "Dubia Selecta emergentia circa Sollicitationem in Confessione Sacramentali juxta Apostolicas Constitutiones" Lovanii, 1750—and the similar works by à Cunha and de Sousa, quoted above.

[1521](#) Cozza, op. cit. Dub. xvii. No. 112.

[1522](#) Mag. Bull. Roman. Tom. VI. App. p. 1.

[1523](#) Occasional references to this practice may be found in earlier times. See, for instance, Concil. Monasteriens. ann. 1279 c. xv. (Hartzheim III. 649)—

Suppression of Monasteries, No. xvii. (Camden Soc.).—Synod. Tornacens. ann. 1520 c. vii. (Hartzheim VI. 156).

[1524](#) V. Pontas, Dict. de Cas de Conscience, I. 836.

[1525](#) Conc. Trident. Sess. xiv. De Pœnitent. c. vi.

[1526](#) Del Bene de Offic. S. Inquisit. P. II. Dub. ccxxxvii. § ix. No. 6.

[1527](#) Cozza, op. cit. Dub. xxxiii.

[1528](#) Mag. Bull. Roman. Tom. VI. App. p. 1.

[1529](#) Synod. Camerac. ann. 1661 c. xi. (Hartzheim IX. 888).—Synodicon Mechliniense II. 319.

[1530](#) Ibid. I. 559.

[1531](#) Synod. Namurcens. ann. 1698 c. xxviii. (Hartzheim X. 219).

[1532](#) Synod. Bisuntin. ann. 1707 Tit. xiv. c. xiv. (Ibid. 323).

[1533](#) Pontas, Dict. de Cas de Conscience Paris, 1741, T. I. p. 837.—From the German edition of Amort (Dict. selectt. Casuum Conscientiæ, Aug. Vind. 1733) we learn that the state of the canon law on this subject was the same in Germany as in France.

[1534](#) Bull. Sacrament. Pœnitent. § 4 (Bullar. Benedicti XIV. T. I. p. 23).—In 1742 he extended the provisions of this constitution over the Greek churches subject to Rome.—Bull. Etsi pastoralis § ix. No. v. (Concil. Collect. Lacens. II. 518).

[1535](#) Benedict. XIV. Const. CXX. § 3 (Bullar. I. 219).

[1536](#) Ibid. p. 291.

[1537](#) Llorente, Chap. xviii. Art. i. No. 13.

[1538](#) Synod. Namurcens. ann. 1742 c. iv. (Hartzheim X. 487).

[1539](#) Instruct. Pastoral. ann. 1768 c. xcvi. (Ibid. 638).

[1540](#) Instruct. S. Inquisit. Roman. ann. 1867 (Collect. Lacens. III. 554).—Litt. Past. Episc. Caradrens. xxvii. 2, 3 (Ibid. VI. 646-7).

[1541](#) Ap. Helsen, Abus du Célibat des Prêtres, p. 87.

[1542](#) See, for instance, the manner in which Escobar (Theolog. Moralis Tract. i. Ex. viii. cap. 3 No. 80) and Avila (De Censuris Eccles. P. VII. Disp. iv. Dub. vii. in fin.) explain away the Bull of Pius V. contra clericos sodomitas.

[1543](#) Factum pour Marie Catherine Cadière, La Haye, 1731, pp. 142-44.

[1544](#) Michelet, La Sorcière, Chap. x., xi., xii.—After reading the pleadings on both sides (published at the Hague in 1731), I can entertain no doubt as to the guilt of Girard. The case at the time attracted general attention throughout Europe.

[1545](#) When Grandier was arrested and tried for sorcery, his papers were seized, and among them was found an essay against sacerdotal celibacy. Under torture, he confessed that he had written it for the purpose of satisfying the conscience of a woman with whom he had maintained marital relations for seven years (*Hist. des Diables de Loudun*, pp. 85, 191). The manuscript was burnt, with its unlucky author, but a copy was preserved, which has recently been printed (*Petite Bibliothèque des Curieux*, Paris, 1866). In it, Grandier shows himself singularly bold for a man of his time and station. The law of nature, or moral law, he holds to be the direct exposition of the Divine will. By it revealed law must necessarily be interpreted, and to its standard ecclesiastical law must be made to conform. He evidently was made to be burned as a heretic, if he had escaped as a sorcerer. The promise of chastity exacted at ordination he regards as extorted, and therefore as not binding on those unable to keep it; while he does not hesitate to assume that the rule itself was adopted and enforced on purely temporal grounds—"de crainte qu'en remuant une pierre on n'esbranlat la puissance papale; car hors cette considération d'Estat, l'Eglise romaine pense assez que le célibat n'est pas d'institution divine ni nécessaire au salut, puisqu'elle en dispense les particuliers, ce qu'elle ne pourrait faire si le célibat avoit esté ordonné d'en haut" (pp. 34-5).

[1546](#) Notwithstanding his Sorbonic degree, Du Pin is said to have been secretly married, and to have left a widow, who even ventured to claim the inheritance of his estate. He was engaged in a correspondence with William Wake, Archbishop of Canterbury, with a view to arrange a basis of reconciliation of the Anglican Church with Rome, and, according to Lafitau, Bishop of Sisteron, in that correspondence he assented to the propriety of sacerdotal marriage.

[1547](#) I cannot pretend to decide the controversy as to the alleged marriage between Bossuet and Mdle. Desvieux de Mauléon, nor to determine whether it is true that she and her daughters claimed his fortune after his death. Much has been written on both sides, and I have not the materials at hand to justify a positive opinion, though the extracts from La Baumelle's "Mémoires de Madame de Maintenon" given by the Abbé Chavard (*Le Célibat des Prêtres*, pp. 474 sqq.) would seem to show that there were good grounds for asserting the marriage. I believe, however, that there is no doubt of Bossuet engaging with Leibnitz and Molanus in a negotiation as to the terms on which the Lutherans could reënter the Roman communion, and that he promised, in the name of the pope, that Lutheran ministers admitted to the priesthood or episcopate should retain their wives. It is asserted that the proposed arrangement was nearly agreed to on both sides, when the pretensions of the House of Hanover to the English crown caused Leibnitz to withdraw from the undertaking.

[1548](#) Chavard, *Le Célibat des Prêtres*, p. 314-5.—Davanzati, Bishop of Canosa, was also in favor of abrogating the rule of celibacy.

[1549](#) This view of the competence of the temporal power to regulate the question seems to have been widely received at this period. An anonymous work published in 1769 under the title of “Recherches sur l’État Monastique et Ecclésiastique,” written by a good Catholic, asserts (p. 204), “Si le cas de donner des citoyens à la patrie devenoit urgent, le législateur, en autorisant le mariage des prêtres, n’entreprendroit rien sur le sacrement de l’Ordre.”

[1550](#) Zaccaria, in the introduction to his “Nuova Giustificazione” (p. ix.), denies that the papal court entertained any idea of making the concession; but, in considering the question as to the power or duty of the pope to alter the law of celibacy (Diss. iv. cap. 6), his remarks show clearly that the subject was discussed in a tone to afford the partisans of marriage reasonable grounds for hope. Among the threatening proceedings of the emperor was the suppression of no less than 184 monasteries (Lecky, Hist. of Rationalism, chap. vi.).

[1551](#) Vetus et Constans in Ecclesia Catholica de Sacerdotum Cœlibatu Doctrina. Varsaviæ, 1801.

[1552](#) “A Modest Apology for the Catholics of Great Britain,” published anonymously in 1800—a work singularly moderate and candid in its tone. Dr. Geddes had been suspended from his functions in consequence of a translation of the Bible which he had published. See Allibone’s Dictionary, I. 657.

[1553](#) Dupin, Manuel du Droit Pub. Ecclés. Français. 4e Ed. Paris, 1845, p. 274.—Édit de Mars 1768, concernant les Ordres Religieux (Isambert, XXIII. 476).

[1554](#) See Lasteyrie’s Hist. of Auricular Confession, translated by Cocks, London, 1848, Book II. chap. iv., vi.

[1555](#) Bouvet, De la Confession et du Célibat des Prêtres, Paris, 1845, p. 504.

[1556](#) Archives of Florence—Segreteria di Stato nella Reggenza, Filza 194 No. 6.

[1557](#) De Potter, Mémoires de Scipion de’ Ricci, I. 284 sqq.

[1558](#) Atti e Decreti del Concilio di Pistoja dell’ anno 1786, Pistoja, 4to. pp. 237, 239.

[1559](#) Acta Congr. Archiep. et Episc. Hetruriæ Sess. XVIII. (Bambergæ 1790, T. I. p. 453).—Bull. Auctorem fidei ann. 1794 § § 80-84.

[1560](#) Chiesi (Rivista Cristiana, Dic. 1876 p. 470).—Concil. Trident. Sess. XXV. De Reg. et Mon. cap. xv.

[1561](#) Panzini, Confessione di un Prigioniero, p. 333.

[1562](#) Vie de Scipion de’ Ricci I. 289: II. 373 sqq.

[1563](#) Pratica del Modo da procedersi nelle cause del S. Offitio cap. xxv. (MS. Bibl. Reg. Monacens. Cod. Ital. 598).

[1564](#) Esaminatore, Firenze, Ap. 15th, 1867, p. 100. In Spain, an official return made in 1764 estimated the number of ecclesiastics, regular and secular, at

281,160 souls (Castillo y Mayone, *Historia de los Frailes*, III. 144).

[1565](#) “D’être fidèle à la nation, à la loi, au roi, et del veiler exactement sur le troupeau confié à leurs soins.” It was not only the objections of the king and of the pope that rendered this oath unpalatable, but also the fact that it gave adhesion to the law for the secularization of ecclesiastical property and of the monastic orders. It was ordered in the *Constitution civile du Clergé*, Tit. II. Art. 21, 38, adopted July 12 and promulgated Aug. 24, 1790.

[1566](#) I have before me one of the pamphlets issued about this time (*Le Mariage des Prêtres*, Paris, Laclaye, 1790, 8vo. pp. 102), addressed to the Assembly. It is a tolerably calm and well-reasoned argument, basing its demand upon the usages of the primitive church, the precepts of Scripture, the rights of nature, and public utility. The author asserts himself to be a priest well advanced in life, and he assumes that the corruption of society disseminated by the licentiousness of ecclesiastics is generally recognized and understood.

[1567](#) This speech is printed in full from a MS. in the public library of Geneva, by the Abbé Chavard (*Le Célibat des Prêtres*, pp. 483-500).

[1568](#) La loi ne reconnaît ni vœux religieux, ni aucun autre engagement qui serait contraire aux droits naturels ou à la constitution.

[1569](#) Desmazes, *Pénalités Anciennes*, p. 222, Paris, 1866.

[1570](#) I have not found it easy to form a satisfactory estimate of the number of French ecclesiastics previous to the Revolution. Le Bas (*Dictionnaire Encyclopédique de l’Histoire de France*, V. 218) gives a table, showing an aggregate of 418,206 souls, of whom 235,147 may be considered as attached to the secular service, and 183,059 to the regular orders and canons. Of these latter, 100,451 were men and 82,608 were women. On the other hand, M. Sauvestre (*Congrégations Religieuses*, pp. 5, 6) quotes from the Abbé Expilly a statement that in 1765 there were 79,000 monks and 80,000 nuns; while he shows that other contemporary authorities reduce the number of members of religious orders in 1789 to 52,000 of both sexes. M. Charles Chabot (*Encyclopédie Monastique*, p. x., Paris, 1827) computes, after elaborate tabulation, the number of ecclesiastics, regular and secular, at 407,753 persons, enjoying a revenue of 127,610,576 francs.

[1571](#) Lett. Encyc. 15 Mars, 1795, art. IX. (Grégoire, p. 109).

[1572](#) This speech of Portalis *père* is an admirable commentary on the Concordat, developing its causes and consequences with a rigidity of logic and an enlightened spirit of faith which are equally creditable to the head and heart of the distinguished orator. From the portion devoted to the subject of marriage, I quote the following, as embodying a clear exposition of the intentions of those who negotiated the Concordat.

“Quelques personnes se plaindront peut-être de ce que l’on n’a pas conservé le mariage des prêtres.... En effet, d’une part nous n’admettons plus que les ministres dont l’existence est nécessaire à l’exercice du culte, ce qui diminue considérablement le nombre des personnes qui se vouaient anciennement au célibat. D’autre part, pour les ministres mêmes que nous conservons, et à qui le

célibat est ordonné par les réglemens ecclésiastiques, la défense qui leur est faite du mariage par ces réglemens n'est point consacrée comme *empêchement dirimant* dans l'ordre civil: ainsi leur mariage, s'ils en contractaient un, ne serait point nul aux yeux des lois politiques et civiles, et les enfans qui en naîtraient seraient légitimes; mais dans le for intérieur et dans l'ordre religieux, ils s'exposeraient aux peines spirituelles prononcées par les lois canoniques: ils continueraient à jouir de leurs droits de famille et de cité, mais ils seraient tenus de s'abstenir de l'exercice du sacerdoce. Conséquemment, sans affaiblir le nerf de la discipline de l'église, on conserve aux individus toute la liberté et tous les avantages garantis par les lois de l'état; mais il eût été injuste d'aller plus loin, et d'exiger pour les ecclésiastiques de France, comme tels, une exception qui les eût déconsidérés auprès de tous les peuples Catholiques, et auprès des Français mêmes, auxquels ils administreraient les secours de la religion" (Dupin, Manuel du Droit Public Ecclés. Français, 4ème éd. pp. 196-8).

[1573](#) Code Civil, Liv. I. Tit. v.

[1574](#) In an address to the Council of State, Dec. 20th, 1813, Napoleon said, "Le sacerdoce est une sorte de mariage; le prêtre étant uni à l'église comme l'époux à son épouse, il n'y aurait aucun inconvénient à appliquer au prêtre qui se marierait la peine de la bigamie: un tel ecclésiastique ne mérite aucun sorte de considération"—Bouhier de l'Écluse, de l'État des Prêtres en France, Paris, 1842, p. 17.—Chavard (Le Célibat des Prêtres, pp. 409-10) quotes Dean Stanley as asserting, on the authority of the elder Duc de Broglie, that Pius VIII. spontaneously offered to Napoleon to permit sacerdotal marriage, but that the Emperor declined the proposal. I cannot but think, however, that there must be some mistake in this statement.

[1575](#) For many of the above details I am indebted to the curious but ill-digested little work—"Histoire du Mariage des Prêtres en France," published by Grégoire in 1826. Grégoire, though a priest of the *ancien régime*, was a sincere and consistent republican. A member of the States General, of the Convention, and of the Council of Five Hundred, elected Bishop of Blois by the voice of a people who knew and respected him, he preserved his ardent faith through all the excesses of the Revolution, and his democratic ideas in spite of the injuries inflicted on his class in the name of the people. The sincerity and boldness of his character may be estimated by a single example. When, on the 7th of November, 1793, Gobel, Bishop of Paris, appeared before the Convention with twelve of his vicars and publicly renounced his sacred functions on the ground that hereafter there should be no other worship than that of liberty and equality, almost all the ecclesiastics in the Convention followed his example. To hold back at such a moment was dangerous in the extreme, yet Grégoire had the hardihood to utter a defiant protest. "I am a Catholic by conviction and by feeling, a priest by choice, a bishop by the voice of the people, but not from the people nor from you do I derive my mission, and I will not be forced to an abjuration." To him perhaps more than to any one else is attributable the skilful management which carried the church through the storms and persecutions of the Revolution, but the same inflexibility which maintained his Catholicism through the ordeal of 1793 and 1794 caused him to stand by his republicanism long after it had gone out of fashion. He was not to be bought or bullied; the Legitimist was less tolerant than the Terrorist, and under the Restoration he was reduced almost to absolute

indigence. Together with the other constitutional bishops, he had been compelled to resign his bishopric by order of the pope after the Concordat of 1801, and he was too dangerous a man to be rewarded for his invaluable services to religion. He died in 1831.

[1576](#) Grégoire, op. cit. p. 102.

[1577](#) Bouhier de l'Écluse, op. cit. It was apparently this case which led to the publication, under date of Monaco, 1829, of the "Considerazioni imparziali sopra la legge del Celibato Ecclesiastico, proposte dal Professore C. A. P."—a tolerably well written summary of the arguments against the rule.

[1578](#) Talmadge's Letters from Florence, p. 166.

[1579](#) Chavard, Le Célibat des Prêtres, pp. 525-30.

[1580](#) J. M. Cayla, Les Curés mariés par le Concile, Paris, 1869.

[1581](#) Encyc. Mirari vos.

[1582](#) Encyc. Qui pluribus.

[1583](#) Litt. Apostol. Multiplices inter.

[1584](#) Panzini, pp. 16, 58, 102, 143, 201, 401.

[1585](#) Ibid. p. 123.

[1586](#) Naples was, perhaps, the first kingdom in Europe to promulgate a civil marriage law, and to withdraw matrimonial cases from ecclesiastical jurisdiction. This was one of the reforms of the minority of Ferdinand IV. about the year 1760. See Colletti's History of Naples, Horner's Translation, I. 107.

[1587](#) Conc. Vatican. ann. 1870 Const. Dogmat. I. cap. iv. I use Cardinal Manning's version.

[1588](#) Castillo y Mayone, II. 247, 254.—Panzini, pp. 358-63.—Alloc. Acerbissimum, 27 Sept. 1852.—Encyc. Incredibili afflictaur, 17 Sept. 1863.—Chavard, op. cit. p. 263.

[1589](#) Panzini, pp. 596-7.

[1590](#) Esaminatore, Firenze 15 Dic. 1867, p. 396.

[1591](#) Encyc. Neminem latet, 19 Mar. 1857.—Panzini, pp. 535-6.

[1592](#) Panzini, p. 123. An example of this is to be seen in the case of Saurin vs. Starr and Kennedy, which excited so much interest in England in 1869 by its curious revelations of the petty tyrannies and sordid miseries which sometimes at least form a feature of conventual life.

[1593](#) Yet, to meet the spiritual wants of all classes, there are still congregations which practise the most severe ascetic austerities. Thus, in 1883, a description of the Barefooted Clares in Paris shows that, out of eighteen members, but four are more than twenty-two years of age, the severity of discipline causing nearly all who enter to die young. No fire is allowed, even

that in the kitchen being arranged to prevent access; sleep is only had on a narrow board, meat is only eaten on Christmas Day, and silence is enforced until some of the nuns lose the power of forming connected sentences.

[1594](#) The *Pères de la Foi*, also known as *Adorateurs de Jésus* and *Paccanaristes*, were Jesuits in disguise; the *Société des Victimes de l'Amour de Dieu* were Quietists. For the Report of M. Portalis, recommending their suppression, see Dutilleul, *Hist. des Corporations Religieuses en France*, Paris, 1846, pp. 411 sqq. For an exceedingly interesting sketch of modern French monachism, see also Ch. Sauvestre's "Les Congrégations Religieuses" (Paris, 1867)—a work to which I desire to acknowledge my indebtedness for much that follows.

[1595](#) Décret du 18 Fév. 1809 Sect. II. Art. 8 (Dupin, *Droit Ecclés.* p. 295). This regulation, I believe, is still in force, and the members of these bodies are accustomed to renew their engagements every five years. From the position taken by Bishop Fabre, of Montreal, in April, 1883, in the case of a young woman who desired to leave her convent, I presume that the same regulation is in force in the Dominion of Canada.

[1596](#) For details, see Dupin, *op. cit.* pp. 285-298.

[1597](#) Chabot, *Encyclopédie Monastique*, p. xi. (Paris, 1827).

[1598](#) N. Y. Nation, May 29th, 1879. It is to the Paris correspondence of this journal that I am indebted for most of the details respecting the recent struggle between the religious orders and the state.

[1599](#) "Règle 91.—Qu'il ne laisse entrevoir aucune opinion, soit politique, soit théologique ou religieuse, contraire aux opinions du saint-siège."—Sauvestre, *op. cit.* 215.

[1600](#) *Le Pape et la Société Moderne*, Paris, 1879, pp. 416-437.

[1601](#) Sauvestre, *op. cit.* pp. 123-4.

[1602](#) N. Y. Nation, April 21st, 1881.

[1603](#) *Noli metuer ne omnes virgines fiant; difficilis res est virginitas, et ideo rara quia difficilis. Incipere plurimorum est, perseverare paucorum.*—Hieron. *adv. Jovin.* I. 36.

[1604](#) Concil. Trident. Sess. XXIV. De Sacrament. Matrim. c. ix.

[1605](#) Concil. Trident. Sess. XXIII. De Reform. c. xii. The Abbé Chavard relates (*Le Célibat des Prêtres*, p. 269) that he once asked the directors of a seminary whether the age for assuming the burdens of the priesthood ought not to be postponed to the fortieth year, and he was told that the church must have priests and that there were few indeed who would submit to its conditions after the age of illusions was passed.

[1606](#) *Souvenirs d'Enfance et de Jeunesse*, Paris, 1883, p. 139. "Le fait est que ce qu'on dit des mœurs cléricales est, selon mon expérience, dénué de tout fondement. J'ai passé treize ans de ma vie entre les mains des prêtres, je n'ai pas vu l'ombre d'un scandale; je n'ai connu que de bons prêtres. La confession peut

avoir, dans certains pays, de graves inconvénients. Je n'en ai pas vu une trace dans mon jeunesse ecclésiastique."

[1607](#) Concil. Trident. Sess. xxv. De Reform. cap. xiv.

[1608](#) Convent. Episc. Mediolanens. ann. 1849 Sess. iii. No. 18 (Collect. Lacens. VI. 717).—Concil. Roman. ann. 1725 Tit. xvi. c. iii. (Ib. I. 372).

[1609](#) For the varying legislation on this subject the reader may refer to C. Beneventan. ann. 1693 Tit. xviii. c. iii. (Collect. Lacens. I. 44).—Synod. Bahiens. ann. 1707 Lib. iii. (I. 854).—C. Tarracon. ann. 1717 c. xxxi. (I. 779).—C. Avenionens. ann. 1725 Tit. xxxvii. c. iii. (I. 554).—Synod. Firmanens. ann. 1726 Tit. ix. (I. 599).—C. Ebreunens. ann. 1727 c. v. No. 5 (I. 626).—Synod. Nat. Hungar. ann. 1822 De Discip. renov. 3 (V. 940).—C. Baltimor. IV. ann. 1840 Decr. x. (III. 72).—Conv. Episc. Mediolan. ann. 1849 Sess. iii. No. 18 (VI. 717).—C. Turon. ann. 1849 Decr. xi. i. (IV. 268-9).—C. Avenionens. ann. 1849 Tit. vi. c. v. No. 16 (IV. 348).—C. Remens. ann. 1849 Tit. xii. c. ii. (IV. 129).—C. Albiens. ann. 1850 Tit. i. Decr. v. No. 1 (IV. 411).—C. Burdigal. ann. 1850 T. iv. c. xii. No. 3 (IV. 588).—C. Bituricens. ann. 1850 Tit. vi. (IV. 1122).—C. Tolosan. ann. 1850 Tit. iv. c. iv. No. 126 (IV. 1069).—C. Senonens. ann. 1850 Tit. iv. c. iv. (IV. 904).—C. Aquens. ann. 1850 Tit. v. § 2. c. ix. No. 1 (IV. 985).—C. Rothomag. ann. 1850 Decr. xi. No. 3-5 (IV. 525).—C. Lugdunens. ann. 1850 Decr. xviii. No. 1-3 (IV. 475).—Synod. Thulesiens. ann. 1850 Decr. xvii. No. 14 (III. 785).—Conv. Epp. Lauretan. ann. 1850 Sect. i. v. (VI. 778).—Conv. Epp. Siciliae Tit. ii. c. i. No. 9 (VI. 815).—C. Ausitan. ann. 1851 Tit. iv. c. i. No. 147 (IV. 1200).—C. Quebecens. I. ann. 1851 Decr. xiv. (III. 615).—C. Westmonasteriens. I. ann. 1852 Decr. xxiv. No. 4 (III. 939).—C. Quebecens. II. ann. 1854 Decr. xiv. No. 20 (III. 652).—C. Armacens. ann. 1854 Decr. xxiii. (III. 852).—C. Portus Hispaniae ann. 1854 Sect. II. No. 5 (III. 1100-1).—C. Ravennat. ann. 1855 P. iv. c. iv. No. 3 (VI. 198).—C. Seti. Ludovici II. ann. 1858 Decr. vii. (III. 318).—C. Viennens. ann. 1858 Tit. v. c. vi. (V. 197).—C. Strigonens. ann. 1858 Tit. vi. No. 9 (V. 53).—C. Venetic. ann. 1859 P. ii. c. xvii. No. 10-11 (VI. 317).—C. Urbinatens. ann. 1859 P. ii. Tit. vii. No. 148 (VI. 51).—C. Pragens. ann. 1860 Tit. i. c. vi. No. 1 (V. 426).—C. Coloniens. ann. 1860 Tit. ii. c. xxxiv., xxxviii. (V. 378-80).—C. Cincinnatiens. III. ann. 1861 Decr. ix. (III. 226).—C. Coloniens. ann. 1863 Tit. iv. c. iv. (V. 670).—C. Quitens. ann. 1869 Decr. iv. No. 2 (VI. 403).—C. Ultrajectens. ann. 1865 Tit. viii. c. iv. (V. 905).—C. Pl. Baltimor. II. ann. 1866 Tit. iii. c. vi. No. 164 (III. 446).—C. Halifaxiens. ann. 1868 Decr. xviii. (III. 751).

[1610](#) De Sacerdotum Cœlibatu Doctrina Varsoviæ, 1801 pp. 62-3.

[1611](#) See previous note for warnings of this kind. The council of Ausch, in 1851, even ventures to allude to the grave inconveniences which may arise from the residence of a sister or aunt, if young, and if there is not also the mother or a female servant in the house.

[1612](#) Helsen, Avis à l'Archevêque de Malines, Monseigneur Sterckx, sur les abus du Célibat des Prêtres, 4to. Bruxelles, 1833.

[1613](#) Helsen, pp. 19-20.

[1614](#) Ibid. pp. 74-5.

[1615](#) Helsen, pp. 13, 16, 18, 100.

[1616](#) The comparative strength of the ecclesiastical militia is an important element in considering the condition of the church and its influence on the laity. I have already quoted statistics with regard to France, Belgium, and Austria, and will here append those for some of the other states and cities of Europe as given by Prof. von Schulte in his work on the Newer Catholic Orders (N. Y. Nation, Aug. 1st, 1872, p. 75).

Prussia, one ecclesiastic for every 584 Catholics, of all ages.

Bavaria, one for every 300 Catholics.

Germany at large, one for every 481.

Aix-la-Chapelle, one for every 110.

Cologne, one for every 313.

Münster, one for every 61.

Trèves, one for every 56.

Paderborn, one for every 33.

In the old Kingdom of Naples, by the census of 1842, there were 55,167 ecclesiastics in a population of 6,145,492, making a proportion of one to 112 (Penka, *Ueberior Cœlibatus Sacerdotalis Expositio*, Cracoviæ, 1846).

[1617](#) In Italia libido non est probrosa.—P. Dens Theolog. No. 100 de jure et justitia. (ap. Helsen, p. 10). Dens died in 1775.

[1618](#) L'Esaminatore, Firenze, 15 Settemb. 1867.

[1619](#) Prota, Matrimonio Civile, Napoli, 1864, p. 44.

[1620](#) L'Esaminatore, 15 Oct. 1867.

[1621](#) Panzini, Pubblica Confessione, pp. 101, 357.

[1622](#) Report to the Italian Committee of the American Episcopal Church (The Episcopalian, Phila., Sept. 11th, 1867).

[1623](#) C. Baltimor. I. ann. 1829 Decr. xxv. (Collect. Lacens. III. 30-1).—C. Baltimor. V. ann. 1843 Decr. ix. (III. 90).—C. Australiens. I. ann. 1844 Decr. xii. (III. 1051).—C. Thurlesens. ann. 1850 Decr. xii. 41 (III. 782).—C. Rothomagens. ann. 1850 Decr. xvii. 3 (IV. 530).—C. Tolosan. ann. 1850 Tit. iii. c. i. No. 70 (IV. 1054).—C. Casseliens. ann. 1853 Tit. iii. (III. 837).—C. Tuamens. ann. 1854 Decr. viii. (III. 860).—C. Quebecens. II. ann. 1854 Decr. ix. § 7 (III. 639).—C. Port. Hispaniæ ann. 1854 Art. iv. No. 1, 2 (III. 1098).—C. Halifaxiens. I. ann. 1857 Decr. xiv. (III. 745).—C. Viennens. ann. 1858 Tit. iii. c. vii. (V. 169).—C. Coloniens. ann. 1860 Tit. ii. c. xv. (V. 351).—C. Pragens. ann. 1860 Tit. iv. c. vii.; Tit. v. c. viii. (V. 508, 543).—Synod. Ultraject. ann. 1865 Tit. iv. c. viii. (V. 830).—C. Plen. Baltimor. II. ann. 1866 App. X. (III. 553).

[1624](#) Helsen, Abus du Celibat, p. 85.

[1625](#) C. Tuamens. ann. 1817 Decr. xvii. (Collect. Lacens. III. 765).—C. Australiens. I. ann. 1844 Decr. xii. (III. 1052-3).—C. Remens. ann. 1857 c. vi. No. 27 (IV. 211).

[1626](#) Instruct. S. Inquisit. Roman. Feb. 20, 1867, No. 7, 11-14 (Collect. Lacens. III. 553-6).

[1627](#) For an extract from a modern manual of the confessional “de agendi ratione confessarii erga conjugatos et conjugendos,” see Bouvet, *De la Confession et du Célibat des Prêtres*, Paris, 1845, pp. 290-6. It will be remembered what excitement was aroused in the British House of Commons a few years since, when a member produced and read a very much less objectionable form prepared for use by “Anglican priests.”

[1628](#) Bouvet, p. 516.

[1629](#) Lasteyrie, *Hist. of Auricular Confession*, II. 38-45.

[1630](#) Wahu, *op. cit.* p. 423.

[1631](#) Sauvestre, *op. cit.* p. 144. It is by this policy that the church renders itself responsible for the evil committed by its members. No human organization is without its share of the weak or vicious, and there is no lack of scandals in the Protestant denominations; but in these there is a wholesome jealousy which usually seeks at once to cast out and punish the offender. Thus, when, in July, 1867, the Rev. Mr. Wendt, at an orphan institution near Philadelphia, was discovered to be tampering with the virtue of the children under his charge, those who were most nearly connected with the management of the asylum were the first to take steps for his prosecution, and, as soon as the necessary legal proceedings could be had, he was undergoing a sentence of fifteen years' solitary confinement, without a voice being raised in palliation of his crime.

[1632](#) *Op. cit.* pp. 138-44.

[1633](#) One result of this is that there is a large number of priests, summarily deprived by their bishops of the ministry, who seek the great cities to hide their poverty or find some miserable means of support. As all requests for dispensation to marry are refused, they mostly live in concubinage and their offspring go to swell the ranks of the dangerous classes. See Chavard, *Le Célibat des Prêtres*, pp. 542-48.

[1634](#) Wahu, *op. cit.* pp. 154-55.

[1635](#) Syllab. Dec. 1864 No. xix., xlii., liv., lv.

[1636](#) Clement. PP. VIII. Instruct. super aliquibus ritibus Græcorum, A. D. 1595, § v. No. 27.—Benedict. PP. XIV. Bull. Etsi Pastoralis, A.D. 1742, § vii. No. 16, 27, 28 (Concil. Collect. Lacens. II. 449, 517).

*** END OF THE PROJECT GUTENBERG EBOOK AN HISTORICAL
SKETCH OF SACERDOTAL CELIBACY IN THE CHRISTIAN
CHURCH ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.